

Message 1 of 1118

(00-327)Approved amendment to NYMEX Platinum & Palladium

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/3586.

TO:ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS

FROM:Neal Wolkoff, Executive Vice President

SUBJECT:Approved Amendment to the NYMEX Platinum and Palladium Futures=20 Contracts to Add Brink=01,s Inc. as an Exchange Licensed Depository.

The Exchange has received approval from the Commodity Futures Trading=20 Commission to amend Supplement No. 1 of the NYMEX Platinum and Palladium=20 Futures Contracts to add the Brink=01,s Inc. vault facility located at 652 = Kent=20 Avenue, Brooklyn, New York as a Licensed Depository for the storage of=20 platinum and palladium deliverable against the Exchange=01,s Platinum and= =20 Palladium Futures Contracts. Brink=01,s Inc=01,s charges for platinum and= =20 palladium are attached.

The approved amendment is effective October 1, 2000.

Copies of the approved amendment are attached. CAPITAL LETTERS indicate=20 additions, bracketing [] indicates deletions.

Should you have any questions regarding the above, please contact Albert J.= =20 Getz at 212-299-2608. Approved Rule Amendment CAPITAL LETTERS indicate additions; [] indicates deletions.

PALLADIUM FUTURES CONTRACT

Supplement No. 1

OFFICIAL LIST OF APPROVED DEPOSITORIES

Depository Facility at

NEW YORK

ScotiaMocatta Depository, 4 World Trade Center A Division of The Bank of New York, NY 10048 ova Scotia 212-912-8530
HSBC Bank USA 1 West 39th Street New York, NY 10018 212-525-6439 BRINK=01,S INC. 652 KENT AVENUE
BROOKLYN, NY 11211 718-260-2200

DELAWARE

Delaware Depository Service Company, LLC 3601 North Market Street Wilmington, DE 19802 302-765-3889

Approved Rule Amendment CAPITAL LETTERS indicate additions; [] indicates deletions.

PLATINUM FUTURES CONTRACT

Supplement No. 1

OFFICIAL LIST OF APPROVED DEPOSITORIES

Depository Facility at

NEW YORK

ScotiaMocatta Depository, 4 World Trade Center A Division of The Bank of New York, NY 10048 Nova Scotia
212-912-8530

HSBC Bank USA 1 West 39th Street New York, NY 10018 212-525-6439

BRINK=01,S INC. 652 KENT AVENUE BROOKLYN, NY 11211 718-260-2200

DELAWARE

Delaware Depository Service Company, LLC 3601 North Market Street Wilmington, DE 19802 302-765-3889

BRINKS Incorporated 652 Kent Avenue Brooklyn, New York 11211

PRECIOUS METALS EXCHANGE RATES

Contract Weight Monthly Charge Out Charge 5,000 T.O. Silver \$18.50 \$65.00 100 T.O. Gold \$ 7.00 \$15.00 50 T.O. Platinum \$7.00 \$15.00 100 T.O. Palladium \$ 7.00 \$15.00

Contract Weight Weighing Charge 5,000 T.O. Silver \$5.00 100 T.O. Gold \$2.00 50 T.O. Platinum \$1.00 00 T.O. Palladium \$2.00

 There is no delivery in charge for any Exchange Registered metal.  There is no charge to issue a contract for an Exchange warrant.  There is a \$5.00 replacement charge for each warrant.  There is no internal vault charge when transferring metal from=20 Non-Exchange to Exchange.  Standard Exchange Contract out charges will be assessed when=20 transferring metal off an Exchange to Non-Exchange.

OTHER SERVICES

 Pallet strapping - \$10.00 per pallet  Brink=01,s Global Services Domestic Network*  Brink=01,s Global Services International Network*  Brink=01,s Tractor Trailer Services*

 Please call 1-800-5 BRINKS for rates and destinations.

Should you have any questions regarding the above, pleasecontact Albert J.= 20 Getz at 212-299-2608.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com& refdoc=3D(00-327)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 2 of 1118

(01-121) Proposed Amendment to COMEX Gold Supplement and Silver

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10364.

Notice Number: 01-121 April 5, 2001

TO: ALL COMEX DIVISION MEMBERS

FROM: M. Dawn Lowe Vice President and Assistant Corporate Secretary

SUBJECT: Proposed Amendment to COMEX Gold Supplement No. 3 =01&Approved Assayers for= 20 Gold=018 and COMEX Silver Supplement No. 4 =01&Approved Assayers for Silver= .

Attached please find a proposed amendment to Supplement No. 3, =01&Approved= 20 Assayers for Gold=018 of the Gold Futures Contract and Supplement No. 4,=20 =01&Approved Assayers for Silver=018 of the Silver Futures Contract which a= dd Alex=20 Stewart (Assayers) Ltd. as an Approved Assayer for the COMEX Division=01,s = Gold=20 and Silver Futures Contracts.

The proposed amendment to Supplement No. 3, =01&Approved Assayers for Gold= =018 of=20 the Gold Futures Contract and Supplement No. 4, =01&Approved Assayers for= 20 Silver=018 of the Silver Futures Contract affects a

=01&Special Matter=018 = under the=20 terms of the COMEX By-Laws. Accordingly, COMEX Division Members have ten= =20 (10) days to submit a petition signed by owners of at least 155 COMEX=20 Division Memberships requesting a vote of the COMEX Division Members to=20 disapprove the amendments, pursuant to the procedures set forth under COMEX= =20 By-Law 205(D). If a petition is not received, or if the amendment is not= =20 disapproved, it will be submitted to the Commodity Futures Trading Commissi= on=20 (CFTC).

If you have any questions, please contact Dawn Lowe at 212-299-2370 or Albe= rt=20 J. Getz at 212-299-2608.

Proposed Amendment. Underlining indicates additions and bracketing indicate= s=20 deletions. Gold Supplement No. 3
COMMODITY EXCHANGE, INC.

APPROVED ASSAYERS FOR GOLD

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 (Orders: NJ (201) 837-7160)

Alex Stewart (Assayers) Ltd. Caddick Road Knowsley Industrial Estate Knowsley Merseyside L34 9ER England (Orders: 0151 548 7777)

US LOCATION: Alex Stewart (Assayers) Inc. 472 Westfield Avenue Clark, NJ 07066 (Orders: (908) 827-0656)

A H Knight Eccleston Grange Prescott Road St Helens Merseyside WA10 3BQ England (Orders: (01744) 733757)

US LOCATION: A H Knight North America, Ltd. PO Box 3504 130 Tradd Street Spartanburg, SC 29304-3504 (Orders: (864) 595-1627)

Proposed Amendment. Underlining indicates additions and bracketing indicate= s=20 deletions. Silver Supplement No. 4
COMMODITY EXCHANGE, INC.

APPROVED ASSAYERS FOR SILVER

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 (Orders: NJ (201) 837-7160)

Alex Stewart (Assayers) Ltd. Caddick Road Knowsley Industrial Estate Knowsley Merseyside L34 9ER England (Orders: 0151 548 7777)

US LOCATION: Alex Stewart (Assayers) Inc. 472 Westfield Avenue Clark, NJ 07066 (Orders: (908) 827-0656)

A H Knight Eccleston Grange Prescott Road St Helens Merseyside WA10 3BQ England (Orders: (01744) 733757)

US LOCATION: A H Knight North America, Ltd. PO Box 3504 130 Tradd Street Spartanburg, SC 29304-3504 (Orders: (864) 595-1627)

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D\(01-121\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(01-121))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 3 of 1118

Hawaii 125-0, Series McGarret D (Revised Docs in WordPerfect)

Sender	mcfam@andrews-kurth.com
Recipients	['mcfam@andrews-kurth.com', 'lowed@andrews-kurth.com', 'barbd@andrews-kurth.com', 'therman@wilmingtontrust.com...]
File	shackleton-s/all_documents/3780.

Attached, in WordPerfect format, for immediate execution are the following three documents:

Asset Notice (258187) (clean and marked against latest draft circulated earlier today); Prepayment Notice w/respect to McGarret B (259570) (clean-only change was to correct date from June 22 to September 22); and Direction Letter to Owner Trustee (258312) (clean-deleted references to all documents except Prepayment Notice)

Please ignore instructions in previous e-mail and proceed as follows:

Brenda Funk - Please (i) coordinate with Charles to determine the final debt and equity amounts for Series McGarret D, (ii) complete the blanks in the Asset Notice, and (iii) send an executed, clean copy of the Asset Notice to Mercy Arango.

Mercy Arango - Please execute the Direction Letter and fax the executed copy directly to:

(i) Tiffany Herman (fax 302-427-4749; phone 302-651-8631), (ii) Glen Kenton (fax 302-658-6548; phone 302-651-7726), (iii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iv) Brenda Funk (fax 713-853-9252; phone 713-853-6950).

Tiffany Herman/Glen Kenton - When you receive the executed copy of the Direction Letter, please execute the Prepayment Notice (attached to this e-mail as doc #259570) and fax the executed notice immediately to:

(i) Mercy Arango (fax 212-885-4909; phone 212-856-3862), (ii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iii) Brenda Funk (fax 713-853-9252; phone 713-853-6950).

I will be out of the office tomorrow, and will therefore not be available to coordinate the delivery of the above documents. If you have any questions, comments or concerns, please call David Barbour at 214-659-4444.

Muriel C. McFarling Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201 (214) 659-4461 (214) 659-4784 (fax)

- 258312.wpd - 258187rl.wpd - 258187.wpd - 259570.wpd

Message 4 of 1118

Hawaii 125-0, Series McGarret D (Docs in Word)

Sender	mcfam@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/3774.

To catch everyone up, we have changed the Danno C transaction to McGarret D. The debt and equity received by the trust in McGarret D will be used to repay the McGarret B series, which will then be terminated, and the excess funds will go to Enron pursuant to the Total Return Swap executed in connection with the McGarret B closing.

Attached, in Word format, for immediate execution are the following three documents:

Asset Notice (258187) (clean and marked against latest draft); Prepayment Notice w/respect to McGarret B (259570) (clean); and Direction Letter to Owner Trustee (258312) (clean and marked against latest draft).

Gina Karanthanos - Please (i) coordinate with Charles to determine the final debt and equity amounts for Series McGarret D, (ii) complete the blanks in the Asset Notice and the Direction Letter, (iii) send an executed, clean copy of the Asset Notice to Mercy Arango, and (iv) send a clean copy of the Direction Letter to Mercy Arango for execution.

Mercy Arango - When you have the clean copy of the Direction Letter (or alternatively know the amounts to fill in as debt and equity), please execute the Direction Letter and fax the executed copy directly to:

(i) Ann Roberts (fax 302-427-4749; phone 302-651-8681), (ii) Glen Kenton (fax # 302-658-6548; phone 302-651-7726), (iii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iv) Gina Karanthanos (fax 713-853-9252; phone 713-853-3376)

Ann Roberts/Glen Kenton - When you receive the executed copy of the Direction Letter, please execute the Prepayment Notice (attached to this e-mail as doc #259570) and fax the executed notice immediately to:

(i) Mercy Arango (fax 212-885-4909; phone 212-856-3862), (ii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iii) Gina Karanthanos (fax 713-853-9252; phone 713-853-3376)

I will be out of the office tomorrow, and will therefore not be available to coordinate the delivery of the above documents. If you have any questions, comments or concerns, please call David Barbour at 214-659-4444.

Muriel C. McFarling Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201 (214) 659-4461 (214) 659-4784 (fax)

- 258312rl.doc - 258187rl.doc - 258312.doc - 258187.doc - 259570.doc

Message 5 of 1118

(01-135) Proposed Amendments

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10585.

April 17, 2001 Notice Number: 01-135

TO: ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: Proposed Amendment to COMEX Gold Supplement No. 3 =01&Approved Assayers for= =20 Gold=018 and COMEX Silver Supplement No. 4 =01&Approved Assayers for Silver= .

The Exchange proposes to amend Supplement No. 3, =01&Approved Assayers for = Gold=018=20 of the Gold Futures Contract and Supplement No. 4, =01&Approved Assayers fo= r=20 Silver=018 of the Silver Futures Contract. The proposed amendment adds Ale= x=20 Stewart (Assayers) Ltd. as an Approved Assayer for the COMEX Division=01,s = Gold=20 and Silver Futures Contracts.

The proposed amendments must be approved by the Commodity Futures Trading= =20 Commission (=01&CFTC=018) before becoming effective. The Exchange membersh= ip will=20 be notified upon receipt of CFTC approval and the effective date of the=20 amendments.

A copy of the proposed amendments is attached.

If you have any questions, please contact Albert J. Getz at 212-299-2608.

Proposed Amendment. Underlining indicates additions and bracketing indicate= s=20 deletions. Gold Supplement No. 3 COMMODITY EXCHANGE, INC.

APPROVED ASSAYERS FOR GOLD

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 (Orders: NJ (201) 837-7160)

Alex Stewart (Assayers) Ltd. Caddick Road Knowsley Industrial Estate Knowsley Merseyside L34 9ER England (Orders: 0151 548 7777)

US LOCATION: Alex Stewart (Assayers) Inc. 472 Westfield Avenue Clark, NJ 07066 (Orders: (908) 827-0656)

A H Knight Eccleston Grange Prescott Road St Helens Merseyside WA10 3BQ England (Orders: (01744) 733757)

US LOCATION: A H Knight North America, Ltd. PO Box 3504 130 Tradd Street Spartanburg, SC 29304-3504 (Orders: (864) 595-1627)

Proposed Amendment. Underlining indicates additions and bracketing indicate= s=20 deletions. Silver Supplement No. 4 COMMODITY EXCHANGE, INC.

APPROVED ASSAYERS FOR SILVER

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 (Orders: NJ (201) 837-7160)

Alex Stewart (Assayers) Ltd. Caddick Road Knowsley Industrial Estate Knowsley Merseyside L34 9ER England (Orders: 0151 548 7777)

US LOCATION: Alex Stewart (Assayers) Inc. 472 Westfield Avenue Clark, NJ 07066 (Orders: (908) 827-0656)

A H Knight Eccleston Grange Prescott Road St Helens Merseyside WA10 3BQ England (Orders: (01744) 733757)

US LOCATION: A H Knight North America, Ltd. PO Box 3504 130 Tradd Street Spartanburg, SC 29304-3504 (Orders: (864) 595-1627)

Please click on the link below to indicate you have received this email.

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Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 6 of 1118

(01-122) ALUMINUM WAREHOUSES

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2585.

Notice Number: 01-122 April 6, 2001

TO: ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: ALUMINUM WAREHOUSES

The Exchange proposes to amend Supplement No. 2, "List of Licensed Warehouses" and Weighmasters of the Aluminum Futures Contract. The proposed amendments add the warehouse facilities of Lanham River Terminals, LLC, Maceo, Kentucky, Southern Shore Terminal, Inc., Hawesville, Kentucky, R. J. Corman Distribution Centers, LLC, South Union, Kentucky as Licensed Warehouses and Licensed Weighmasters of the Aluminum Futures Contract. In addition, the proposed amendments change the name of the R. J. Corman Railroad Company, LLC to the R. J. Corman Distribution Centers, LLC for the Clarksville, Tennessee facility.

The proposed amendments must be approved by the Commodity Futures Trading Commission before becoming effective. The Exchange Membership will be notified upon receipt of CFTC approval and the effective date of the amendments.

Should you have any questions please contact Albert J. Getz at 212-299-2608.

Proposed Amendments. Underlining indicates additions; bracketing indicates deletions.

ALUMINUM SUPPLEMENT No. 2

LIST OF LICENSED WAREHOUSES AND WEIGHMASTERS

FACILITIES COMPUTER CODE KENTUCKY

Owensboro Riverport Authority 2300 Harbor Road 2101 P.O. Box 21955 Owensboro, Kentucky Owensboro, Kentucky 42304 Phone: 270-926-4238 Facsimile: 270-683-3711

Lanham River Terminal, LLC 7415 Terminal Road 4101 7415 Terminal Road Maceo, Kentucky Maceo, Kentucky 42355
Phone: 270-264-1844 Facsimile: 270-264-1589

R. J. Corman Distribution Centers, LLC 444 N. Hardison Road 3102 444 N. Hardison Road South Union, Kentucky South Union, Kentucky 42283 Phone: 270-542-7300 Facsimile: 270-542-7363

Southern Shores Terminal, Inc. 1900 Highway 271 North 5101 1900 Highway 271 North Hawesville, Kentucky Hawesville, Kentucky 42348 Phone: 270-927-8007 Facsimile: 270-927-8191

TENNESSEE

[R. J. Corman Railroad Company, LLC] 931 Alfred Thun Road 3101 R. J. Corman Distribution Centers, LLC Clarksville, Tennessee 931 Alfred Thun Road Clarksville, Tennessee 37040 Phone: 270-542-7300 Facsimile: 270-542-7363

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(01-122)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 7 of 1118

RE: Schedule meeting with Mark Taylor for Thursday, June 7

Sender sara.shackleton@enron.com

Recipients ['christian.yoder@enron.com']

File shackleton-s/all_documents/11456.

Christian: How is 3 pm Houston/1 pm Portland on Friday?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Christian Yoder/ENRON@enronXgate 06/05/2001 11:07 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Schedule meeting with Mark Taylor for Thursday, June 7

3:30 Thursday, Central Time happens to fall exactly to the minute on a time when I have to be on the phone with Mark Haedicke and Elizabeth Sager. I cannot move that time. Can we go earlier or move it to Friday? I am trying to get the cases to you as soon as I can. ----cgy

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, June 05, 2001 7:07 AM To: Yoder, Christian Subject: Re: Schedule meeting with Mark Taylor for Thursday, June 7

Christian: Please mark this time on your calendar to speak with Mark T.: 3:30 Houston/1:30 Portland. We'll call you.

Will Pat Boylston send over 1 or 2 cases for us to review prior to the call?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/05/2001 09:00 AM -----

Holly Keiser@ENRON_DEVELOPMENT 06/05/2001 08:36 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Schedule meeting with Mark Taylor for Thursday, June 7 << OLE Object: StdOleLink >>

Sorry... you mentioned that in the subject line.

3:30 pm on Thursday.

Holly Keiser Enron Americas Legal Department - EB 3887 713-345-7893 (ph) 713-646-3490 (fx) Holly.Keiser@enron.com

Sara Shackleton@ECT 06/05/2001 08:19 AM To: Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Re: Schedule meeting with Mark Taylor for Thursday, June 7 << OLE Object: StdOleLink >>

I'd like to meet Thursday, June 7

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Holly Keiser@ENRON_DEVELOPMENT 06/05/2001 07:34 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Schedule meeting with Mark Taylor for Thursday, June 7 << OLE Object: StdOleLink >>

Sara -- I've scheduled 3:00 PM following today's Legal/Credit meeting. If you prefer later, please let me know.

Thanks! Holly Keiser Enron Americas Legal Department - EB 3887 713-345-7893 (ph) 713-646-3490 (fx) Holly.Keiser@enron.com

Sara Shackleton@ECT 06/04/2001 06:12 PM To: Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Schedule meeting with Mark Taylor for Thursday, June 7

Does Mark have time in the afternoon to meet with me and Christian Yoder (Portland - 2 hours earlier than CST)? The topic is "Washington State PUD's". I'd schedule about an hour. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 8 of 1118

RE: Enron/Corrugated Services

Sender	neel.lemon@bakerbotts.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3299.

Sara:

Thanks for the info. Carol has already left me a voicemail.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

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-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, February 07, 2001 1:46 PM
To: Neel.Lemon@bakerbotts.com Subject: Enron/Corrugated Services

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/07/2001 01:49 PM

Sara

Shackleton To: neel.lemon@bakerbot

cc: Carol St Clair/HOU/ECT@ECT

02/07/2001 Subject: Enron/Corrugated Services 01:27 PM

Neel:

My apologies for the late response. Carol St. Clair will be handling Corrugated and she will call or email you to schedule a call. Carol can be reached at 713-853-3989. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/07/2001 01:13 PM -----

Neel.Lemon@bake

rbotts.com To: Sara.Shackleton@enron.com

cc: Rebecca.Williams@BakerBotts.com, ffelvey@csipaper.com 02/06/2001 Subject: Enron/Corrugated Services 07:29 PM

Sara:

Any chance you are available at 1:30pm on Wednesday for a call regarding the Enron/Corrugated Services ISDA? If that time will not work for you, please suggest another time tomorrow afternoon that would.

Also, you will be receiving on Thursday morning a copy of some of the more relevant documentation relating to the June 2000 drop down of the Corrugated Services, Inc. operating assets and liabilities (including the original Enron/Corrugated Services, Inc. ISDA) into a newly formed limited partnership known as Corrugated Services, L.P. In connection with that transaction, Corrugated Services, Inc. changed its name to CSI Holdings, Inc. CSI Holdings, Inc. also formed at that time and now owns 100% of CSI GP, Inc., which entity serves as the general partner of Corrugated Services, L.P. All of this was done to create a more franchise tax efficient operating and ownership structure.

Based on the foregoing, we believe that it will be necessary to redocument the original agreement either through an amendment thereto or the cancellation thereof and the creation of a new LP/Enron agreement.

We plan on discussing the foregoing during our call tomorrow afternoon.

Thanks.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

The information contained in this email is confidential and may be subject to the attorney-client privilege. As a result, any unauthorized use or transmission is prohibited. If you are not the intended addressee, please delete this email and notify the sender.

Message 9 of 1118

Re: futures agreement/J.P. Morgan

Sender	samon_corinne@jpmorgan.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10205.

Sara, Apologies for the delay. The JPM salesperson has been traveling and I needed to make sure that the commission schedule was complete. I am told that it will be completed by Monday morning, so Thomas Alterson from our Client, Credit and Control group will be sending you the final agreements by e-mail today. For the sake of time, you can execute the agreements by fax with originals to follow.

Tom's fax number is (212) 648-5347.

Regards, Corinne 6-4292

Sara.Shackleton@enron.com on 03/28/2001 06:04:03 PM

To: samon_corinne@jpmorgan.com cc: Subject: Re: futures agreement/J.P. Morgan

Corinne: Please ignore the earlier message. See below. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 05:03 PM -----

Sara Shackleton To: samon_corinne@jpmorgan.com cc: Sheila Glover/HOU/ECT@ECT 03/28/2001 Subject: Re: futures agreement/J.P. Morgan 01:31 PM

Corinne:

Just checking to see if you had sent execution copies of the agreement. I spoke with Mike Schneider last week to verify our acceptance of the rate schedule. Please let me know when we can execute - my traders are calling! Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 01:28 PM -----

Sara Shackleton To: "Corinne A Samon" <samon_corinne@jpmorgan.com>@ENRON cc: 03/20/2001 Subject: Re: futures agreement(Document link: Sara Shackleton) 01:17 PM

Corinne:

We will accept your interest rate schedules. Also, you can include the witness line for our signatory. Please prepare execution copies and let me know if there is anything else to be done. Thanks for your patience.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpm To: Sara.Shackleton@enron.com organ.com> cc: Subject: Re: futures agreement 02/28/2001 10:05 AM

Sara, We are in agreement with your proposed changes to the arbitration language.

I await your reply concerning the rest of the comments to the client agreement.

Regards, Corinne 6-4292

Sara.Shackleton@enron.com on 02/27/2001 06:33:48 PM

To: samon_corinne@jpmorgan.com cc: Subject: Re: futures agreement

Corinne:

Attached is your arbitration language (marked) and our arbitration text. I hope this does it! Thanks.

(See attached file: JPMorganarbitrationR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpm To: Sara.Shackleton@enron.com organ.com> cc: Subject: Re: futures agreement 02/27/2001 02:58 PM

Sara, Thank you for your fax. Section 180.3 of the CEA prohibits us from agreeing to any settlement procedure/forum ahead of time. JPMFI, in accordance with 180.3, will offer 3 forums - which will include AAA. If Enron chooses AAA, the arbitration will be subject to the provisions specified in your fax dd 2/26/2001.

Attached is JPM's proposed language for the arbitration agreement.

(See attached file: ARBITRATION AGREEMENT.doc)

If you are in agreement with the language, please forward Enron's proposed language (detailed in your 2/26 fax) electronically (if available).

Thank you and Regards, Corinne

Sara.Shackleton@enron.com on 02/26/2001 12:36:22 PM

To: samon_corinne@jpmorgan.com cc: Subject: futures agreement

Corinne:

I just sent you a fax re: arbitration.

I have not heard from your salesperson re: interest schedule for debit rate (Sec. 2) and credit rate (Sec. 6). Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

(See attached file: ARBITRATION AGREEMENT.doc)

(See attached file: JPMorganarbitrationR1.doc) (See attached file: ARBITRATION AGREEMENT.doc)

- JPMorganarbitrationR1.doc - ARBITRATION AGREEMENT.doc

Message 10 of 1118

Re: Representations for ISDA Transaction

Sender	dick.varner@eweb.eugene.or.us
Recipients	['sara.shackleton@enron.com', 'bert.dunn@eweb.eugene.or.us']
File	shackleton-s/notes_inbox/2312.

I thought Bert had done that, but I will ask him to double check.

<Sara.Shackleton@enron.com> 05/01/01 04:19PM >>>

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/01/2001 06:18 PM -----

Sara Shackleton To: "Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US>@ENRON cc: Kimberly Hundl/Corp/Enron@Enron 05/01/2001 Subject: Re: Representations for ISDA Transaction(Document link: Sara 05:11 PM Shackleton)

Dick:

That will be fine. However, you need to attach the trade confirmation (marked Exhibit "A") to each of your certificates since that is how each certificate is drafted.

Thus, for the April 12, 2001 transaction, please resend your certificates with the appropriate attachments as referenced in the certificates. Please call if you have any questions.

Thanks for ;your assistance.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eug To: <Sara.Shackleton@enron.com> ene.OR.US> cc: Subject: Re: Representations for ISDA Transaction 05/01/2001 04:02 PM

From our end, we would like to have the direct reference to the specific confirm. I know it is a little more hassle, but it works better for us politically.

<Sara.Shackleton@enron.com> 05/01/01 01:14PM >>>

Dick:

I never heard back from you regarding my email of 4/18/01. I had asked if you would mind revising the forms of certificate which we will attach to each trade confirmation.

We would appreciate revisions to the April 12, 2001 certificates. This will be the format for all future transactions.

Please send revisions to Kimberly Hundl. Her phone number is (713) 853-1647 and fax if (713) 646-2443.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/01/2001 03:07 PM -----

Sara Shackleton To: "Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US>@ENRON cc: Kimberly Hundl/Corp/Enron@Enron 04/18/2001 Subject: Re: Representations for ISDA Transaction(Document link: Sara 10:57 AM Shackleton)

Dick:

I am suggesting a minor change to the "Power Risk Management Committee" certificate (to eliminate the reference to the Exhibit "A"). If we leave the reference in the certificate, you will always have to label the confirm as Exhibit "A" and resend the completed papers to us. Please let me know if you are alright with this change. If so, we ask that you please resend the certificate dated April 12, 2001. If you do not wish to make the change, please resend the two certificates to which the confirmation labeled Exhibit "A" is attached.

Please call if you have any questions. Thanks.

(See attached file: EWEBISDA Confirm RepresentationsR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eug To: <Sara.Shackleton@enron.com> ene.OR.US> cc: <Holli.Krebs@enron.com> Subject: Re: Representations for ISDA Transaction 04/12/2001 07:00 PM

Thanks, Sara. No problem making the changes.

<Sara.Shackleton@enron.com> 04/12/01 01:56PM >>>

Dick:

Attached are my comments to the certificates. We will need to attach the form of confirmation to be certain that each particular transaction is authorized. Let me know if you have any questions. Thanks.

(See attached file: EWEBISDA Confirm RepresentationsR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eug To: <sara.shackleton@enron.com> ene.OR.US> cc: <Holli.Krebs@enron.com>, "Bert I DUNN"

<Bert.Dunn@EWEB.Eugene.OR.US> 04/12/2001 11:09 AM Subject: Representations for ISDA Transaction

Attached are drafts of two certificates which I believe will satisfy you needs. Please get back to me with any comments.

(See attached file: ISDA Confirm Representations)

Message 11 of 1118

RE: Repo Agreement

Sender	sara.shackleton@enron.com
Recipients	['marcelo_cosma@ml.com']
File	shackleton-s/sent/6257.

Thanks so much for your quick response.

We're having the documents executed right now and will fax an executed copy to you. We may want to trade in the a.m.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma, Marcelo (Toronto-BCE)" <Marcelo_Cosma@ml.com> 05/23/2001 04:55 PM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: Repo Agreement

Let's use the same dates, then.

Thanks,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

This email message is intended for the addressee only. It may contain information which is privileged, confidential or exempt from disclosure under applicable law. Any dissemination or copying of this email message by anyone other than the addressee is strictly prohibited.

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, May 23, 2001 5:41 PM To: Cosma, Marcelo (Toronto-BCE) Subject: RE: Repo Agreement

no, same dates are fine with me

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma,

Marcelo To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> (Toronto-BCE) cc:

" Subject: RE: Repo Agreement

<Marcelo_Cosm

a@ml.com>

05/23/2001

03:49 PM

Sara:

Do you have any issue with the signatures having the same date?

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, May 23, 2001 4:48 PM To: Marcelo_Cosma@ml.com Subject: Re: Repo Agreement

Marcelo:

We are ready to execute. You did not date your signature. Do you want us to use any particular date for your execution? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma,

Marcelo To: "'Sara Shackleton'" <Sara.Shackleton@enron.com> (Toronto-BCE) cc:

" Subject: Repo Agreement

<Marcelo_Cosm

a@ml.com>

05/22/2001

07:28 AM

Sara:

Thank you for your fax of May 21st. I apologize for the oversights you noted. Your suggestion of making the changes on your end is fine.

Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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Message 12 of 1118

Re: Representations for ISDA Transaction

Sender	sara.shackleton@enron.com
Recipients	[dick.varner@eweb.eugene.or.us', 'kimberly.hundl@enron.com']
File	shackleton-s/all_documents/10923.

Dick:

That will be fine. However, you need to attach the trade confirmation (marked Exhibit "A") to each of your certificates since that is how each certificate is drafted.

Thus, for the April 12, 2001 transaction, please resend your certificates with the appropriate attachments as referenced in the certificates. Please call if you have any questions.

Thanks for your assistance.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US> 05/01/2001 04:02 PM

To: <Sara.Shackleton@enron.com> cc: Subject: Re: Representations for ISDA Transaction

From our end, we would like to have the direct reference to the specific confirm. I know it is a little more hassle, but it works better for us politically.

<Sara.Shackleton@enron.com> 05/01/01 01:14PM >>>

Dick:

I never heard back from you regarding my email of 4/18/01. I had asked if you would mind revising the forms of certificate which we will attach to each trade confirmation.

We would appreciate revisions to the April 12, 2001 certificates. This will be the format for all future transactions.

Please send revisions to Kimberly Hundl. Her phone number is (713) 853-1647 and fax if (713) 646-2443.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/01/2001 03:07 PM -----

Sara Shackleton To: "Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US>@ENRON cc: Kimberly Hundl/Corp/Enron@Enron 04/18/2001 Subject: Re: Representations for ISDA Transaction(Document link: Sara 10:57 AM Shackleton)

Dick:

I am suggesting a minor change to the "Power Risk Management Committee" certificate (to eliminate the reference to the Exhibit "A"). If we leave the reference in the certificate, you will always have to label the confirm as Exhibit "A" and resend the completed papers to us. Please let me know if you are alright with this change. If so, we ask that you please resend the certificate dated April 12, 2001. If you do not wish to make the change, please resend the two certificates to which the confirmation labeled Exhibit "A" is attached.

Please call if you have any questions. Thanks.

(See attached file: EWEBISDA Confirm RepresentationsR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eug To: <Sara.Shackleton@enron.com> ene.OR.US> cc: <Holli.Krebs@enron.com> Subject: Re: Representations for ISDA Transaction 04/12/2001 07:00 PM

Thanks, Sara. No problem making the changes.

<Sara.Shackleton@enron.com> 04/12/01 01:56PM >>>

Dick:

Attached are my comments to the certificates. We will need to attach the form of confirmation to be certain that each particular transaction is authorized. Let me know if you have any questions. Thanks.

(See attached file: EWEBISDA Confirm RepresentationsR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eug To: <sara.shackleton@enron.com> ene.OR.US> cc: <Holli.Krebs@enron.com>, "Bert I DUNN"

<Bert.Dunn@EWEB.Eugene.OR.US> 04/12/2001 11:09 AM Subject: Representations for ISDA Transaction

Attached are drafts of two certificates which I believe will satisfy you needs. Please get back to me with any comments.

(See attached file: ISDA Confirm Representations)

Message 13 of 1118

Re: Schedule meeting with Mark Taylor for Thursday, June 7

Sender	sara.shackleton@enron.com
Recipients	[christian.yoder@enron.com]
File	shackleton-s/all_documents/11430.

Christian: Please mark this time on your calendar to speak with Mark T.: 3:30 Houston/1:30 Portland. We'll call you.

Will Pat Boylston send over 1 or 2 cases for us to review prior to the call?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/05/2001 09:00 AM -----

Holly Keiser@ENRON_DEVELOPMENT 06/05/2001 08:36 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Schedule meeting with Mark Taylor for Thursday, June 7

Sorry... you mentioned that in the subject line.

3:30 pm on Thursday.

Holly Keiser Enron Americas Legal Department - EB 3887 713-345-7893 (ph) 713-646-3490 (fx) Holly.Keiser@enron.com

Sara Shackleton@ECT 06/05/2001 08:19 AM

To: Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Re: Schedule meeting with Mark Taylor for Thursday, June 7

I'd like to meet Thursday, June 7

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Holly Keiser@ENRON_DEVELOPMENT 06/05/2001 07:34 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Schedule meeting with Mark Taylor for Thursday, June 7

Sara -- I've scheduled 3:00 PM following today's Legal/Credit meeting. If you prefer later, please let me know.

Thanks! Holly Keiser Enron Americas Legal Department - EB 3887 713-345-7893 (ph) 713-646-3490 (fx) Holly.Keiser@enron.com

Sara Shackleton@ECT 06/04/2001 06:12 PM

To: Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Schedule meeting with Mark Taylor for Thursday, June 7

Does Mark have time in the afternoon to meet with me and Christian Yoder (Portland - 2 hours earlier than CST)? The topic is "Washington State PUD's". I'd schedule about an hour. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 14 of 1118

Re: FW: ECT Investments, Inc.	
Sender	deb.korkmas@enron.com
Recipients	['samantha.boyd@enron.com', 'sara.shackleton@enron.com', 'Inc.', 'Luis Gonzales/Enron@EnronXGate Subject: ECT...]
File	shackleton-s/notes_inbox/3111.

FYI, see email below. Deb

Deb Korkmas EWS Legal Dept. 1400 Smith Street, Room 3819 Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393 ----- Forwarded by Deb Korkmas/HOU/ECT on 02/27/2001 04:44 PM -----

Deb Korkmas 02/27/2001 04:44 PM

To: Luis A Gonzalez/ENRON@enronXgate@ENRON cc: Subject: Re: FW: ECT Investments, Inc.

Luis, I have just been informed that indeed Jeff Kinneman is no longer the President of ECT Investments, Inc. Gary Hickerson is the new President but I do not have an effective date for that as yet. All other officers would remain the same as far as I know now. I've left a voice mail for Mr. Hickerson's assistant to get effective date of change for me. There was no announcement about this change and no one here in Legal had heard about it so I had to ask around a bit to find out about this change. Sorry for the delay. Deb

Deb Korkmas EWS Legal Dept. 1400 Smith Street, Room 3819 Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393

Luis A Gonzalez/ENRON@enronXgate 02/26/2001 09:05 AM

To: Deb Korkmas/HOU/ECT@ECT cc: Subject: FW: ECT Investments, Inc.

Dear Deb, Please forward me an updated list of officers for this entity. Thanks in advance.

Luis A. Gonzalez luis.a.gonzalez@enron.com Enron Global Finance Cash Management EB2008d ext. 57362

-----Original Message-----

From: Boyd, Samantha Sent: Sunday, February 25, 2001 11:22 AM To: Gonzalez, Luis A. Subject: Re: ECT Investments, Inc.

Luis:

Please contact Deb Korkmas on this issue. Deb is responsible for the corporate minutes and has the most current listing of officers for this entity. Deb can be reached at extension 3-5448.

Samantha M. Boyd Sr. Legal Specialist Enron North America Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Sara Shackleton@ECT 02/23/2001 02:18 PM To: Samantha Boyd/NA/Enron@Enron cc: Luis Gonzales/Enron@EnronXGate Subject: ECT Investments, Inc.

Sam: Will you please respond to Luis? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 02:17 PM -----

Luis A Gonzalez/ENRON@enronXgate 02/22/2001 05:20 PM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ECT Investments, Inc.

Dear Sarah, Please forward me an updated list of officers for this entity. I am trying to update the signatories for this account and upon getting approval, Mr. Kinneman advised me that he was no longer President of this entity. I obtain my information from secretariat and as you know is not the most efficient. Thanks in advance.

Luis A. Gonzalez luis.a.gonzalez@enron.com Enron Global Finance Cash Management EB2008d ext. 57362

Message 15 of 1118

RE: ISDA Schedule/Paragraph 13

Sender	sara.shackleton@enron.com
Recipients	[yyaish@exchange.ml.com', 'Tracy.Ngo@enron.com']
File	shackleton-s/all_documents/10522.

Yair:

I've left a message with Tracy Ngo (in Portland) and will let you know as soon as I hear from her. How long will you be in the office today?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" <YYaish@exchange.ml.com> 04/13/2001 08:28 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: ISDA Schedule/Paragraph 13

Sara, Allegheny would like to be able to assign to affiliates in the same manner that we are allowing Enron to make an assignment so long as the Gty goes along. In our case, however, there is no gty, hence the stipulation that such assignment must be to an entity with an equal or better credit rating. If you wish, I can limit such assignment to an entity rated at least BBB+ or better. Would that resolve your concerns?

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Thursday, April 12, 2001 12:26 PM To: YYaish@exchange.ml.com Subject: RE: ISDA Schedule/Paragraph 13

Yair:

It's a good thing you didn't try to get back to me! Sorry.

(See attached file: AlleghenyCPformacceptR1.DOC)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> <YYaish@exchange.ml.com> Subject: RE: ISDA Schedule/Paragraph 13

04/12/2001 10:16 AM

Sara, sorry i didn't get back to you yesterday, I was out sick. I didn't notice anything attached, did u send a subsequent e-mail?

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, April 11, 2001 4:01 PM To: YYaish@exchange.ml.com Cc: Tracy.Ngo@enron.com Subject: RE: ISDA Schedule/Paragraph 13 Importance: High

Yair:

Attached is my redline. Call me so that we can discuss the remaining issues, including:

- (1) Calculation Agent. We believe that the existing dispute mechanism is adequate.
- (2) Procedures for Entering into Transactions. There is no procedure for dual confirms. This is too confusing.
- (3) Transfer. We cannot agree to your assignment provision as it is too subjective.

The other changes were not substantive.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> <YYaish@exchange.ml.com> Subject: RE: ISDA Schedule/Paragraph 13

04/10/2001 07:46 AM

Sara, any thoughts on my comments ISDA I sent out last week?

-----Original Message-----

From: Yaish, Yair (OGC) Sent: Thursday, April 05, 2001 6:19 PM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Schedule/Paragraph 13

Sara, I have good news, I think we are very close to executing this baby.

I am attaching comments to the ISDA. They reflect comments by our outside counsel which highlight the differences between this contract and the side letter/ML ISDA. They are not much. I have also made some changes directly on their draft where I either concurred with Enron or needed to make some of my own changes. Pls review and let me know what you think.

I will be leaving the office soon, so if we can wrap it up tomorrow that would be great (I'm out Monday for Passover).

Yair Yaish Director and Senior Counsel Allegheny Energy Global Markets, LLC 212-236-7346

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, March 30, 2001 4:10 PM To: yyaish@exchange.ml.com Subject: ISDA Schedule/Paragraph 13

Yair:

Attached is a blacklined (against the Enron North America Corp. draft of 3/15/01) Schedule and Paragraph 13 to the ISDA Credit Support Annex. I have tried to incorporate the essence of the March 19, 2001 "swap side letter agreement." Please call me to discuss as it would be nice to finalize by April 6. Thanks.

(See attached file: 098a Blackline ctr (Allegheny Energy Supply).doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 16 of 1118

(00-334) Proposed Amendments to COMEX Silver Futures Contract

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/4041.

Notice No. 00-334 September 29, 2000

TO: ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: Proposed Amendments to the COMEX Silver Futures Contract to Add Brink=01,s = Inc.=20 and Delaware Depository Service Company, LLC as Exchange Licensed=20 Depositories.

The Exchange proposes to amend Supplement No. 2, "Licensed Depositories and Weighmasters for Silver" of the COMEX Silver Futures Contracts to add Brink Inc. vault facility located at 652 Kent Avenue, Brooklyn, NY and Delaware Depository Service Company, LLC vault facilities located at 3601 North Market Street and 4200 Governor Printz Boulevard, Wilmington, DE as license depositories for the storage of silver deliverable against the Exchange, s=20 COMEX Division Silver Futures Contract. The proposed amendments must be approved by the Commodity Futures Trading Commission (CFTC). The Exchange membership will be notified when CFTC approval is received and when these amendments will become effective.

Copies of the proposed amendments are attached. Capital letters indicate additions, bracketing [] indicates deletions.

Should you have any questions regarding the above, please contact Albert J. Getz at 212-299-2608.

Silver Supplement No. 2 Proposed Rule Amendments Capital letters indicate additions; [] indicate deletions.

Commodity Exchange, Inc.

Licensed Depositories and Weighmasters for Silver

New York

Depository: ScotiaMocatta Depository, A Division of The Bank of Nova Scotia 4 World Trade Center New York, NY 10048
Orders: 212-912-8530

Facilities: 4 World Trade Center New York, NY

Computer Code: 3002

Depository: HSBC Bank 1 West 39th Street, SC 2 Level New York, NY 10018 Orders: 212-525-6439

Facilities: 1 West 39th Street, SC Level 2 New York, NY

Computer Code: 5001

Depository: BRINK'S INCORPORATED SUITE 400 580 5TH AVENUE NEW YORK, NY 10036 ORDERS: 718-260-2200

Facilities: 642 KENT AVENUE BROOKLYN, NY

Delaware Depository: DELAWARE DEPOSITORY SERVICE COMPANY, LLC 3601 NORTH MARKET STREET
WILMINGTON, DELAWARE 19802 ORDERS: 302-765-3884

Facilities: 3601 NORTH MARKET STREET WILMINGTON, DELAWARE

4200 GOVERNOR PRINTZ BLVD. WILMINGTON, DELAWARE

Additional Licensed Weighmasters For Silver

International Testing Laboratories, Inc. 578-582 Market Street Newark, NJ 07105 Orders: (201) 589-4772

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 Orders: NJ (201) 837-7160

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D\(00-334\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(00-334))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 17 of 1118

Re: futures agreement

Sender	sara.shackleton@enron.com
Recipients	[samon_corinne@jpmorgan.com]
File	shackleton-s/all_documents/10168.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 05:02 PM -----

Sara Shackleton 03/20/2001 01:17 PM

To: "Corinne A Samon" <samon_corinne@jpmorgan.com>@ENRON cc: Subject: Re: futures agreement

Corinne:

We will accept your interest rate schedules. Also, you can include the witness line for our signatory. Please prepare execution copies and let me know if there is anything else to be done. Thanks for your patience.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpmorgan.com> 02/28/2001 10:05 AM

To: Sara.Shackleton@enron.com cc: Subject: Re: futures agreement

Sara, We are in agreement with your proposed changes to the arbitration language.

I await your reply concerning the rest of the comments to the client agreement.

Regards, Corinne 6-4292

Sara.Shackleton@enron.com on 02/27/2001 06:33:48 PM

To: samon_corinne@jpmorgan.com cc: Subject: Re: futures agreement

Corinne:

Attached is your arbitration language (marked) and our arbitration text. I hope this does it! Thanks.

(See attached file: JPMorganarbitrationR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpm To: Sara.Shackleton@enron.com organ.com> cc: Subject: Re: futures agreement 02/27/2001 02:58 PM

Sara, Thank you for your fax. Section 180.3 of the CEA prohibits us from agreeing to any settlement procedure/forum ahead of time. JPMFI, in accordance with 180.3, will offer 3 forums - which will include AAA. If Enron chooses AAA, the arbitration will be subject to the provisions specified in your fax dd 2/26/2001.

Attached is JPM's proposed language for the arbitration agreement.

(See attached file: ARBITRATION AGREEMENT.doc)

If you are in agreement with the language, please forward Enron's proposed language (detailed in your 2/26 fax) electronically (if available).

Thank you and Regards, Corinne

Sara.Shackleton@enron.com on 02/26/2001 12:36:22 PM

To: samon_corinne@jpmorgan.com cc: Subject: futures agreement

Corinne:

I just sent you a fax re: arbitration.

I have not heard from your salesperson re: interest schedule for debit rate (Sec. 2) and credit rate (Sec. 6). Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

(See attached file: ARBITRATION AGREEMENT.doc)

- JPMorganarbitrationR1.doc - ARBITRATION AGREEMENT.doc

Message 18 of 1118

(00-318) Proposed Amendment to Supplement No. 2 of the Silver

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/3399.

Notice No. 00-318

September 7, 2000

TO: ALL COMEX DIVISION MEMBERS

FROM: M. Dawn Lowe Vice President and Assistant Corporate Secretary

SUBJECT: Proposed Amendments to Supplement No. 2 "Licensed Depositories and Weighmasters for Silver" of the Silver Futures Contract

Attached please find proposed amendments to Supplement No. 2 "Licensed Depositories and Weighmasters for Silver" of the Silver Futures Contract. The proposed amendments add Brink Incorporated's facility at 652 Kent Avenue, Brooklyn, New York and Delaware Depository Service Company, LLC's facilities at 3601 North Market Street and 4200 Governor Printz Boulevard, Wilmington, Delaware as Licensed Depositories for silver deliverable against the Silver Futures Contract.

The proposed amendments to Supplement No. 2 "Licensed Depositories and Weighmasters for Silver" of the Silver Futures Contract affects a "Special Matter" under the terms of the COMEX By-Laws. Accordingly, COMEX Division Members have ten (10) days to submit a petition signed by owners of at least 155 COMEX Division Memberships requesting a vote of the COMEX Division Members to disapprove the amendments, pursuant to the procedures set forth under COMEX By-Law 205(D). If a petition is not received, or if the amendment is not disapproved, it will be submitted to the Commodity Futures Trading Commission (CFTC).

Please contact Albert J. Getz at 212-299-2608 for additional information.

Silver Supplement No. 2 Proposed Rule Amendments Capital letters indicate additions; [] indicate deletions.

Commodity Exchange, Inc.

Licensed Depositories and Weighmasters for Silver

New York

1. ScotiaMocatta Depository, A Division of The Bank of Nova Scotia 4 World Trade Center New York, NY 10048 Orders: 212-912-8530

Facilities: 4 World Trade Center New York, NY

Computer Code: 3002

2. HSBC Bank 1 West 39th Street, SC 2 Level New York, NY 10018 Orders: 212-525-6439

Facilities: 1 West 39th Street, SC Level 2 New York, NY

Computer Code: 5001

3. BRINK'S INCORPORATED SUITE 400 580 5TH AVENUE NEW YORK, NY 10036 ORDERS: 718-260-2200

Facilities: 642 KENT AVENUE BROOKLYN, NY

Delaware

1. DELAWARE DEPOSITORY SERVICE COMPANY, LLC 3601 NORTH MARKET STREET WILMINGTON, DELAWARE 19802 ORDERS: 302-765-3884

Facilities: 3601 NORTH MARKET STREET WILMINGTON, DELAWARE

and

4200 GOVERNOR PRINTZ BLVD. WILMINGTON, DELAWARE

Additional Licensed Weighmasters For Silver

1. International Testing Laboratories, Inc. 578-582 Market Street Newark, NJ 07105 Orders: (201) 589-4772

2. Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 Orders: NJ (201) 837-7160

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D\(00-318\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(00-318))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 19 of 1118

RE: ISDA Schedule/Paragraph 13

Sender	tracy.ngo@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2510.

Please see my additional comment. I think this is acceptable if the cp agrees. -Tracy

From: Sara Shackleton on 04/13/2001 11:44 AM To: Tracy Ngo/PDX/ECT@ECT cc:

Subject: RE: ISDA Schedule/Paragraph 13

I'll call in a few

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/13/2001 01:43 PM -----

Sara Shackleton 04/12/2001 11:26 AM

To: "Yaish, Yair (OGC)" <YYaish@exchange.ml.com>@ENRON cc: Subject: RE: ISDA Schedule/Paragraph 13

Yair:

It's a good thing you didn't try to get back to me! Sorry.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" <YYaish@exchange.ml.com> 04/12/2001 10:16 AM

To: "Sara.Shackleton@enron.com" <Sara.Shackleton@enron.com> cc: Subject: RE: ISDA Schedule/Paragraph 13

Sara, sorry i didn't get back to you yesterday, I was out sick. I didn't notice anything attached, did u send a subsequent e-mail?

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, April 11, 2001 4:01 PM To: YYaish@exchange.ml.com Cc: Tracy.Ngo@enron.com Subject: RE: ISDA Schedule/Paragraph 13 Importance: High

Yair:

Attached is my redline. Call me so that we can discuss the remaining issues, including:

- (1) Calculation Agent. We believe that the existing dispute mechanism is adequate.
- (2) Procedures for Entering into Transactions. There is no procedure for dual confirms. This is too confusing.
- (3) Transfer. We cannot agree to your assignment provision as it is too subjective.

The other changes were not substantive.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" To: "Sara.Shackleton@enron.com" <Sara.Shackleton@enron.com> <YYaish@exchange.ml.com> Subject: RE: ISDA Schedule/Paragraph 13

04/10/2001 07:46 AM

Sara, any thoughts on my comments ISDA I sent out last week?

-----Original Message-----

From: Yaish, Yair (OGC) Sent: Thursday, April 05, 2001 6:19 PM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Schedule/Paragraph 13

Sara, I have good news, I think we are very close to executing this baby.

I am attaching comments to the ISDA. They reflect comments by our outside counsel which highlight the differences between this contract and the side letter/ML ISDA. They are not much. I have also made some changes directly on their draft where I either concurred with Enron or needed to make some of my own changes. Pls review and let me know what you think.

I will be leaving the office soon, so if we can wrap it up tomorrow that would be great (I'm out Monday for Passover).

Yair Yaish Director and Senior Counsel Allegheny Energy Global Markets, LLC 212-236-7346

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, March 30, 2001 4:10 PM To: yyaish@exchange.ml.com Subject: ISDA Schedule/Paragraph 13

Yair:

Attached is a blacklined (against the Enron North America Corp. draft of 3/15/01) Schedule and Paragraph 13 to the ISDA Credit Support Annex. I have tried to incorporate the essence of the March 19, 2001 "swap side letter agreement." Please call me to discuss as it would be nice to finalize by April 6. Thanks.

(See attached file: 098a Blackline ctr (Allegheny Energy Supply).doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 20 of 1118

RE: Enron Credit Inc. ("ECI") consent	
Sender	gail.shanley@gs.com
Recipients	['ted.leh@gs.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/10667.

Sara,

Unfortunately I was unexpectedly out of the office yesterday and did not get to review the consent. I will look at it today and get back to you on it.

Gail

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, April 20, 2001 10:13 AM To: gail.shanley@gs.com Subject: RE: Enron Credit Inc. ("ECI") consent

Thanks. Any word on the consent?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Shanley,

Gail" To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> <gail.shanley cc: "Pagano, Rossella" <rossella.pagano@gs.com> @gs.com> Subject: RE: Enron Credit Inc. ("ECI") consent

04/20/2001

08:04 AM

Sara,

The attached documents are for Goldman Sachs & Co. only. GSI has their own documentation that they use for repo transactions. I will ask my colleague in London, Rossella Pagano, to forward you a set of GSI agreements.

Gail

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Thursday, April 19, 2001 5:39 PM To: gail.shanley@gs.com Subject: RE: Enron Credit Inc. ("ECI") consent

Gail:

Is the attached Master Repurchase Agreement used by both GS&Co as well as GSI? It looks like both Enron companies (U.S and U.K.) will want repos and the U.S. company . What is the difference in the forms used by GS&Co and GSI?

Any word on the consent?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Shanley,

Gail" To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com>, <gail.shanley gail.shanley@gs.com

@gs.com> cc: ted.leh@gs.com

Subject: RE: Enron Credit Inc. ("ECI") consent 04/17/2001

08:44 AM

Sara -

I will look at your consent document today. Attached please find the standard repo documentation used by Goldman.

Gail

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Tuesday, April 17, 2001 9:42 AM To: gail.shanley@gs.com Cc: ted.leh@gs.com Subject: Enron Credit Inc. ("ECI") consent

Gail:

The commercial team is pressuring for a fairly quick implementation of a repo agreement. If the consent which I sent yesterday is not satisfactory, please advise as soon as possible so that I can obtain a repo specific consent. Also, could you please submit repo documents to me for review.

I do not know who may have contacted you from the London group (Enron Credit Ltd.) but we can surely coordinate. That entity should have its own form of unanimous consent or resolution.

Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/17/2001 08:36 AM -----

Sara

Shackleton To: gail.shanley@gs.com

cc:

04/16/2001 Subject: Enron Credit Inc. ("ECI") consent 02:36 PM

Gail:

Attached is a form of ECI unanimous consent. Will you accept this for the purpose of signing a repo agreement and transacting thereunder? Please let me know.

Also, you can email repo documents to me.

Thanks.

(See attached file: Resolution - ECI.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

(See attached file: p4233104a.pdf) (See attached file: p4233104b.pdf)

Message 21 of 1118

(#51) Approved Amendment to Supplement No. 2, "Licensed Depositor"

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/428.

Notice Number: 02-51

February 8, 2002

TO: ALL COMEX DIVISION MEMBERS ALL COMEX DIVISON MEMBER FIRMS ALL COMEX DIVISION CLEARING MEMBERS

FROM: J. Robert Collins, Jr., President

SUBJECT: Approved Amendment to Supplement No. 2, "Licensed Depositories and Weighmasters for Silver" of the Silver Futures Contract.

The Exchange has received approval from the Commodity Futures Trading Commission to amend Supplement No. 2, "Licensed Depositories and Weighmasters for Silver" of the Silver Futures Contract. The approved amendment adds the HSBC Bank USA vault facility located at 425 Sawmill River Road, Ardsley, New York as a Licensed Depository for the storage of silver deliverable against the COMEX Division Silver Futures Contract.

The approved amendment is effective immediately.

A copy of the approved amendment is attached.

If you have any questions, please contact Albert J. Getz at 212-299-2608.

Approved Amendment. Underlining indicates additions. Bracketing [] indicates deletions. Silver Supplement No. 2

COMMODITY EXCHANGE, INC. LICENSED DEPOSITORIES AND WEIGHMASTERS FOR SILVER

Depository Facilities Computer Code

NEW YORK

SCOTIAMOCATTA DEPOSITORY, A DIVISION OF THE BANK OF NOVA SCOTIA 26 Broadway 3001 26 Broadway New York, NY New York, NY 10004 Orders: (212) 912-8530

HSBC Bank USA 1 West 39th Street, SC 2 Level 5001 1 West 39th Street, SC 2 Level New York, NY New York, NY 10018 Orders: (212) 525-6439 425 Sawmill River Road 5002 Ardsley, New York

BRINK'S Incorporated 652 Kent Avenue 4001 Suite 400 Brooklyn, New York 580 5th Avenue New York, New York 10036 Orders: (718) 260-2200

DELAWARE

Delaware Depository Service Company, LLC 3601 North Market Street 6001 3601 North Market Street Wilmington, Delaware Wilmington, Delaware 19802 Orders: (302) 765-3884 4200 Governor Printz Blvd. 6002 Wilmington, Delaware

ADDITIONAL LICENSED WEIGHMASTERS FOR SILVER

International Testing Laboratories, Inc. 578-582 Market Street Newark, NJ 07105 Orders: (973) 589-4772

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 Orders: NJ (201) 837-7160

Message 22 of 1118

Re: Legal Opinons

Sender	sara.shackleton@enron.com
Recipients	['Sara Shackleton/HOU/ECT@ECT', 'mary.cook@enron.com']
File	shackleton-s/sent/5514.

Mary: I received a link several years ago to a European database. I don't know how to send it to you. It contains opinions, etc. Either Justin doesn't know if its existence or London never uses it!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Mary Cook 02/08/2001 10:01 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Legal Opinons

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 02/08/2001 10:01 AM -----

Justin Boyd 02/08/2001 09:12 AM

To: Mary Cook/HOU/ECT@ECT cc: Subject: Re: Legal Opinons

not yet, i'm afraid

justin

MARY COOK 08/02/2001 14:20 To: Justin Boyd/LON/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT

Subject: Re: Legal Opinons

We are going to develop an index of what we have and eventually look to including it in our financial database. Do you have an index developed yet? If so, could we get a copy? I will keep you posted and provide ours to you as we move forward. Thanks. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Justin Boyd 02/08/2001 02:30 AM

To: Mary Cook/HOU/ECT@ECT cc: Subject: Re: Legal Opinons

hello mary

thanks for for your note.

we don't currently have a central legal database of opinions from various legal jurisdictions, although it is envisaged that in due course we will pull these together onto a central database. i would certainly welcome any thoughts/ideas you may have in this respect

regards

justin

MARY COOK 06/02/2001 20:45 To: Justin Boyd/LON/ECT@ECT cc:

Subject: Legal Opinons

Hi Justin. It has been quite some time. I hope all is well with you. I am back after teaching for a year--it was fun and I received my certification (hopefully for later use.)

Sara Shackleton mentioned that at one time your office created (and perhaps still updates and utilizes) a legal opinion database with respect to physical and financial trading matters in various jurisdictions. Could you advise if this is the case? If so, I would like to visit with you about it. If this is not within your purview, could you forward this to the correct person and advise me of whom that would be. We are working to organize our opinions and thought it would be helpful to know what the London office has.

Thanks much.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 23 of 1118

Re: Representations for ISDA Transaction

Sender	sara.shackleton@enron.com
Recipients	['dick.varner@eweb.eugene.or.us', 'kimberly.hundl@enron.com']
File	shackleton-s/all_documents/10920.

Dick:

I never heard back from you regarding my email of 4/18/01. I had asked if you would mind revising the forms of certificate which we will attach to each trade confirmation.

We would appreciate revisions to the April 12, 2001 certificates. This will be the format for all future transactions.

Please send revisions to Kimberly Hundl. Her phone number is (713) 853-1647 and fax if (713) 646-2443.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/01/2001 03:07 PM -----

Sara Shackleton 04/18/2001 10:57 AM

To: "Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US>@ENRON cc: Kimberly Hundl/Corp/Enron@Enron Subject: Re: Representations for ISDA Transaction

Dick:

I am suggesting a minor change to the "Power Risk Management Committee" certificate (to eliminate the reference to the Exhibit "A"). If we leave the reference in the certificate, you will always have to label the confirm as Exhibit "A" and resend the completed papers to us. Please let me know if you are alright with this change. If so, we ask that you please resend the certificate dated April 12, 2001. If you do not wish to make the change, please resend the two certificates to which the confirmation labeled Exhibit "A" is attached.

Please call if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US> 04/12/2001 07:00 PM

To: <Sara.Shackleton@enron.com> cc: <Holli.Krebs@enron.com> Subject: Re: Representations for ISDA Transaction

Thanks, Sara. No problem making the changes.

<Sara.Shackleton@enron.com> 04/12/01 01:56PM >>>

Dick:

Attached are my comments to the certificates. We will need to attach the form of confirmation to be certain that each particular transaction is authorized. Let me know if you have any questions. Thanks.

(See attached file: EWEBISDA Confirm RepresentationsR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eug To: <sara.shackleton@enron.com> ene.OR.US> cc: <Holli.Krebs@enron.com>, "Bert I DUNN" <Bert.Dunn@EWEB.Eugene.OR.US> 04/12/2001 11:09 AM Subject: Representations for ISDA Transaction

Attached are drafts of two certificates which I believe will satisfy you needs. Please get back to me with any comments.

(See attached file: ISDA Confirm Representations)

Message 24 of 1118

RE: assignment of trade to Raptor vehicle

Sender	lisa.mellencamp@enron.com
Recipients	['mary.cook@enron.com', 'george.mckean@enron.com', 'gordon.mckillop@enron.com', 'brenda.funk@enron.com']
File	shackleton-s/notes_inbox/3097.

mary let's discuss this afternoon. linda calling you to set up call with astin/joel/angela (re hanover) to discuss some tweaking/practical issues.

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Mary Cook 02/28/2001 10:54 AM

To: Joel Ephross/ENRON@enronXgate@ENRON cc: Brenda L Funk/ENRON@enronXgate, George McKean/NA/Enron@Enron, Gordon McKillop/NA/Enron@ENRON, Lisa Mellencamp/HOU/ECT@ECT, Ron Baker/Corp/Enron@ENRON, Sara Shackleton/HOU/ECT@ECT Subject: RE: assignment of trade to Raptor vehicle

1. We should not terminate. Sara will call Joel to discuss.
2. If the Raptor process documentation I prepared several months ago (and to which we all agreed) is being altered, it would be appreciated if the swap attorneys and Lisa Mellencamp could be a part of discussing changes, and minimally, be advised of any changes.

Thank you.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Joel Ephross/ENRON@enronXgate 02/28/2001 09:15 AM

To: Mary Cook/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: George McKean/NA/Enron@Enron, Ron Baker/Corp/Enron@ENRON, Brenda L Funk/ENRON@enronXgate, Gordon McKillop/NA/Enron@ENRON, Lisa Mellencamp/HOU/ECT@ECT Subject: RE: assignment of trade to Raptor vehicle

I assume that what this e-mail relates to is the discussed "transfer" of the 2 LDC swaps from Raptor 2 to Raptor 4. Frankly, I do not know what it means to assign a swap from 1 of these vehicles to another vehicle. I think that in general the schedules to the ISDAs that each of the 2 sets of parties executed are the same, but what happens in the case of differences? My rather simplistic approach would be to terminate the existing swaps in Raptor 2 and execute new swaps at the same time and on the same terms in Raptor 4.

Unless anyone objects, I propose that we proceed along the lines outlined above, using the Raptor process documentation developed by Lisa and recently updated by Gordon.

We recently [like yesterday] received closing books on Raptor 3 and distributed those. If Anyone needs documentation on the other 3 structures, let us know....[Realizing that they are about to change due to the planned merger of Raptor 1, 2 and 4 into Mega-Raptor -- sounds like a bad Rug-Rats movie I recently had the misfortune of viewing doesn't it?] -----Original Message----- From: Cook, Mary Sent: Wednesday, February 28, 2001 8:29 AM To: Shackleton, Sara Cc: Ephross, Joel Subject: Re: assignment of trade to Raptor vehicle

No. I guess the first step is to know into which Raptor the swaps are moving and to get Joel to give us a closing book on that Raptor so we can get the correct parties etc. Attached is an assignment/assumption document I drafted for the VPP transaction which might be helpful (of course, it has a lot of inapplicable specifics) . We ought to also check with Joel about any provisions in the rest of the vehicle docs that may apply to an assignment. I would think that if all parties join and

consent and provide no ED or TE under the ISDAs shall occur on the basis of the assignment that it would be clean from the ISDA point of view. Mary

<< File: assignment Brazos Pres 2.doc >>

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Sara Shackleton 02/28/2001 08:21 AM To: Mary Cook/HOU/ECT@ECT cc: Subject: assignment of trade to Raptor vehicle
Mary:

Do you have a form of "approved" assignment for transferring trades into the Raptor vehicle?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 25 of 1118

Re: Commodity Futures Modernization Act ("the Act")

Sender	susan.bailey@enron.com
Recipients	['sara.shackleton@enron.com', 'martin.rosell@enron.com']
File	shackleton-s/notes_inbox/2719.

Martin,

Sara asked that I furnish you with a copy of our "newly revised" Schedule to the ISDA Master Agreement. This document includes under Part 5 the new reps as a result of the changes to the Act.

For your convenience, if you have access to Houston's "o" drive you can access any of our swap forms by following path set forth below:

O:\Legal\ATTY.FMS\SWAPFORMS

Hope this helps.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 03/28/2001 08:53 AM -----

Sara Shackleton 03/28/2001 08:34 AM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: Re: Commodity Futures Modernization Act ("the Act")

Susan: Put this on your list (it is not urgent). Please send to Martin Rosell or advise him of the location of ENA's revised ISDA Schedule. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 08:33 AM -----

Martin Rosell 03/28/2001 01:27 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Commodity Futures Modernization Act ("the Act")

Sara, tks for your swift response. I'll follow up with Mark E. on the memos, but would very much like to see the new "eligible contract participant" and line of business reps (or perhaps just a copy of ENA's revised ISDA Schedule). Tks

FYI, I won't come to San Antonio; hope instead to see you at the autumn conference.

Martin ----- Forwarded by Martin Rosell/OSL/ECT on 28/03/2001 09:23

From: Sara Shackleton on 27/03/2001 11:29 CDT To: Martin Rosell/OSL/ECT@ECT cc: Mark Evans/Legal/LON/ECT@ECT

Subject: Re: Commodity Futures Modernization Act ("the Act")

Martin: further to my earlier email, the U.S. changes (relating to the Act) were previously sent to the attention of Mark Evans for the appropriate distribution.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/27/2001 10:27 AM -----

Sara Shackleton 03/27/2001 09:05 AM

To: Martin Rosell/OSL/ECT cc: Subject: Re: Commodity Futures Modernization Act

Martin:

How are things going?

In response to your question, there is no internal memo but we do have copies of external lawfirm memoranda. Yes, ENA has changed its ISDA Schedule form to provide for the "eligible contract participant" rep and line of business. I'll verify with Susan Bailey as to whether these changes have been submitted to ECTRIC.

Rather than bombard you with lots of paper, please let me know what you would like to see regarding the new legislation. Please note that the act is very broad, extremely confusing (even to CFTC "know-it alls") and addresses many types of derivatives (ag, equity, etc.) with some specificity.

Will you be in San Antonio?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Martin Rosell 03/27/2001 08:57 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Commodity Futures Modernization Act

Hi Sara

Can you shed any light on the issues below?

Martin ----- Forwarded by Martin Rosell/OSL/ECT on 27/03/2001 16:56

Martin Rosell 18/03/2001 16:58 To: Elizabeth Sager/HOU/ECT@ECT cc:

Subject: Commodity Futures Modernization Act

Elisabeth:

I read an article in a law magazine about the captioned Act and it was, among other things, stated therein that CFTC under the Act had been deprived of its jurisdiction over swaps (other than those related to agricultural products) made by eligible contracts participants. Since the Oslo office trades through ECTRIC, I wonder whether this new piece of legislation has an impact on our standard reps relating to the "trade options exemption" and as to the parties being "eligible swap participants" (are they still required)? Is there any internal memo yet prepared on the Act and its implications?

Martin

Message 26 of 1118

Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and

Sender	sara.shackleton@enron.com
Recipients	['Mark Taylor/HOU/ECT@ECT', 'susan.bailey@enron.com']
File	shackleton-s/sent/5792.

Susan:

Will you do a favor for me, please? As you will see from the email below, Denis O'Connell in London has had two ISDA's executed in the name of ENA. We need to log this into Lotus Notes and we have not received copies (and Denis will not log onto Lotus Notes). Thanks.

Also, did we ever resolve that RMT problem with EECC?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/13/2001 01:26 PM -----

Denis O'Connell 03/02/2001 04:19 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Details of ENA ISDAs:

ISDA Master Agreement dated as of 19 October 2000 between ENA and RVI Guaranty Co. Ltd.

ISDA Master Agreement dated as of 22 December 2000 between ENA and Credit Protection Trust XXVI (Amended and Restated as of 2 March 2001)

NB: Both of these ISDA's are 'Single Transaction' ISDAs - ie no further transactions shall be governed by same.

I will forward you copies over the course of the next week.

At this point there it is not contemplated that these ISDA's and underlying transactions shall be assigned to Enron Credit Inc.

Tks

Denis

From: Sara Shackleton on 01/03/2001 08:50 CST To: Denis O'Connell/LON/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Denis:

We'll forward originals per your message.

I would appreciate your compliance with the remainder of my message. Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/01/2001 08:48 AM -----

Sara Shackleton 02/27/2001 05:41 PM

To: Denis O'Connell/LON/ECT cc: Mark Taylor/HOU/ECT@ECT, Mark Evans/Legal/LON/ECT@ECT Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Denis:

I will initial the Security Agreement for you and have it executed. Where do you want the executed documents sent?

As you know, all of our master agreements (whether or not related to structured deals) are logged into our Lotus Notes database to which London has access. Please provide me with a list and copies of the ISDA Master Agreements (and/or related financial agreements) which have been executed by London in the name of ENA. These agreements should also be logged onto the ENA database.

Will these masters be assigned to Enron Credit Inc.? Will all trades be assigned? If so, will you prepare the assignment for execution?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Denis O'Connell 02/27/2001 09:50 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Mark Greenberg/NA/Enron@ENRON, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT, Tanya Rohauer/Enron@EnronXGate, Rod Nelson/LON/ECT@ECT Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Sara - I did the ISDA with RVI. - This was a structured Credit Derivative Trade so you will not find this on the system.

I have reviewed and approved the Security Agreement.

many tks

Denis

From: Sara Shackleton on 27/02/2001 09:43 CST To: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Mark Greenberg/NA/Enron@ENRON, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT, Denis O'Connell/LON/ECT@ECT cc: Tanya Rohauer/Enron@EnronXGate, Rod Nelson/LON/ECT@ECT

Subject: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Is anyone familiar with an ISDA Master Agreement executed between ENA and the above company? I have received a Security Agreement executed by this party seeking ENA's signature and the document references the Endorsement (to a policy - what policy?) issued to ENA on 10/19/00 which defines the ISDA agreement. This could be related to credit activity in London. I am waiting to hear from Jeff Kinneman and Denis O'Connell.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 27 of 1118

(00-401) Approved Amendment to COMEX Silver Futures Contract

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/4813.

Notice No. 00-401 November 20, 2000

TO: ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: Approved Amendments to the COMEX Silver Futures Contract to Add Brink Inc. and Delaware Depository Service Company, LLC as Exchange Licensed Depositories.

The Exchange has received approval from the Commodity Futures Trading Commission to amend Supplement No. 2, "Licensed Depositories and Weighmasters for Silver" of the COMEX Silver Futures Contract. The purpose of the approved amendment is to add Brink Inc. vault facility located at 652 Kent Avenue, Brooklyn, NY and Delaware Depository Service Company, LLC vault facilities located at 3601 North Market Street and 4200 Governor Printz Boulevard, Wilmington, DE as Exchange Licensed Depositories for the storage of silver deliverable against the Exchange COMEX Division Silver Futures Contract.

Effective Thursday, February 1, 2001, Brink Inc. in Brooklyn, New York and Delaware Depository Service Company, LLC in Wilmington, Delaware will become eligible as Licensed Depositories for the storage and delivery of silver against the COMEX Silver Futures Contract.

In order to provide the market with relevant data pertaining to both Brink and Delaware Depository Service Company silver stock figures, the Exchange will report historical stock figures for both companies on November 27, 2000. The Exchange will then report the stock figures as of November 30th, December 15th, December 29th 2000 and January 16th 2001 in a separate report from the daily metal warehouse statistics. Effective February 1, 2001, the Exchange will begin reporting the eligible and registered silver stocks in the daily metal warehouse statistics for both companies.

Eligible and Registered Silver

The eligible silver stocks at both companies and that of the daily metal warehouse statistics are limited to silver bars that meet the Exchange criteria for delivery. This criteria specifies that a silver bar must weigh 1,000 troy ounces, plus or minus 10% and be on the Exchange Official List of Approved Refiners and Brands for silver. The eligible stocks denoted here, and in the daily warehouse statistics, do not include such items as 100 troy ounce silver bars or silver coins.

Specifically, eligible metal is not the same as registered metal. Registered metal is defined as metal which meets the standards for delivery as stated in the COMEX Rules and for which a COMEX Depository Receipt (Warrant) has been issued. Eligible metal is defined as metal which meets the standards for delivery as stated in the COMEX Rules and for which no COMEX Depository Receipt (Warrant) has been issued.

In order for eligible metal to become registered metal, the owner of the metal must have an Exchange Licensed Depository issue a Depository Receipt (Warrant) on those silver bars meeting Exchange standards comprising 5,000 troy ounces (plus or minus 6%) stored at its facility.

A copy of the approved amendments is attached. Capital letters indicate additions, bracketing [] indicates deletions.

Should you have any questions regarding the above, please contact Albert J. Getz at 212-299-2608. Silver Supplement No. 2 Approved Rule Amendments Capital letters indicate additions; [] indicate deletions.

COMMODITY EXCHANGE, INC. LICENSED DEPOSITORIES AND WEIGHMASTERS FOR SILVER

New York

Depository: ScotiaMocatta Depository, A Division of The Bank of Nova Scotia 4 World Trade Center New York, NY 10048
Orders: (212) 912-8530

Facilities: 4 World Trade Center New York, NY

Computer Code: 3002

Depository: HSBC Bank USA 1 West 39th Street, SC 2 Level New York, NY 10018 Orders: (212) 525-6439

Facilities: 1 West 39th Street, SC 2 Level New York, NY

Computer Code: 5001

DEPOSITORY: BRINK=01,S INCORPORATED SUITE 400 580 5th AVENUE NEW YORK, NEW YORK 10036 ORDERS: (718) 260-2200

FACILITIES: 652 KENT AVENUE BROOKLYN, NEW YORK

COMPUTER CODE: 4001

DELAWARE

DEPOSITORY: DELAWARE DEPOSITORY SERVICE COMPANY, LLC 3601 NORTH MARKET STREET WILMINGTON, DELAWARE 19802 ORDERS: (302) 765 =01)3884

FACILITY: 3601 NORTH MARKET STREET WILMINGTON, DELAWARE COMPUTER CODE: 6001

4200 GOVERNOR PRINTZ BLVD. WILMINGTON, DELAWARE COMPUTER CODE: 6002

Additional Licensed Weighmasters For Silver

International Testing Laboratories, Inc. 578-582 Market Street Newark, NJ 07105 Orders: (201) 589-4772

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 Orders: NJ (201) 837-7160

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D\(00-401\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(00-401))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 28 of 1118

Re: mariner

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/sent/5855.

She did not know anything about a new swap.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 03/20/2001 04:30 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: mariner

Sara: Angela may know something about this as I thought that she had given this to her.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Sara Shackleton 03/20/2001 02:44 PM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Carol St Clair/HOU/ECT@ECT Subject: Re: mariner

Lisa:

I don't know anything about this swap and Mary is on vacation. Would you please provide me with more information about the swap, deadlines, etc.? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Lisa Mellencamp 03/19/2001 12:47 PM

To: James Grace/Corp/Enron@ENRON, Deb Korkmas/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Lance Schuler-Legal/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT Subject: mariner

the latest is that they are going to put equity and warrants into raptor and not the debt. deb, did mary leave you the questionnaire of jim's re this asset? that needs to go to mary/sara to do the swap (i can't remember mary's vacation schedule, but sara i think she is gone now??)

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Message 29 of 1118

Re: Assignment of trades

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/all_documents/9774.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/13/2001 01:39 PM -----

Sara Shackleton 03/13/2001 12:59 PM

To: steven.kessler@db.com@ENRON cc: William S Bradford/Enron@EnronXGate Subject: Re: Assignment of trades

I don't have the list yet but I'll forward the info to you immediately upon receipt.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

steven.kessler@db.com 03/13/2001 12:47 PM

To: Sara.Shackleton@enron.com cc: Subject: Re: Assignment of trades

Hi Sara. I did just hear. Your approach sounds fine. Do you have a schedule of trades, or should I try and dig one up?

Rgds

Steven Kessler Director and Counsel Deutsche Bank AG New York Branch Tel: (212) 469-8202 Fax: (212) 469-8172

Sara.Shackleton@enron.com on 03/13/2001 12:39:20 PM

To: steven.kessler@db.com cc: Subject: Assignment of trades

Hi, Steve:

We am preparing a form of assignment from ECT Investments, Inc. in favor of Enron North America Corp. which will transfer several credit derivative Transactions. I anticipate an attachment to the assignment which will identify the trades. I believe that Bill Bradford (Ernon) and Mark Tarkington have discussed these trades and Bill is sending me the list.

Please let me know that you are aware of this request. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 30 of 1118

RE: CSI	
Sender	sara.shackleton@enron.com
Recipients	['Stephanie.Panus@enron.com', 'neel.lemon@bakerbotts.com']
File	shackleton-s/all_documents/8633.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, TX 77002

Neel.Lemon@bakerbotts.com 01/02/2001 01:21 PM

To: Sara.Shackleton@enron.com, Neel.Lemon@BakerBotts.com cc: Stephanie.Panus@enron.com Subject: RE: CSI

Thanks.

Could you send me your mailing info so I will know where to send the partnership documents. Those should be to you later this week.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

The information contained in this email is confidential and may be subject to the attorney-client privilege. As a result, any unauthorized use or transmission is prohibited. If you are not the intended addressee, please delete this email and notify the sender.

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Tuesday, January 02, 2001 11:58 AM
To: Neel.Lemon@bakerbotts.com Cc: Stephanie.Panus@enron.com Subject: Re: CSI

Neel:

We will overnight the agreement to you. Sara

Neel.Lemon@bake

rbotts.com To: sara.shackleton@enron.com

cc: ffelvey@csipaper.com

01/02/2001 Subject: CSI

09:01 AM

Sara:

Here is my contact info. Please send me yours.

Please feel free to call Forest Felvey at CSI to check signals on the confidentiality agreement issue you mentioned. He will verify that Baker Botts is assisting CSI on swap issues and that it is okay to communicate with me. [I've copied Forest with this email for his info.]

As we discussed, I will get you copies of the new LPS documentation relating to the 2000 CSI franchise tax restructuring and you will get me copies of the existing Enron/CSI contractual documentation relating to the original 1998 arrangements and any amendments, etc., since then.

Thereafter, we can figure out what our next steps are.

Thanks.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

The information contained in this email is confidential and may be subject to the attorney-client privilege. As a result, any unauthorized use or transmission is prohibited. If you are not the intended addressee, please delete this email and notify the sender.

*Message 31 of 1118***Project GEM - Global Enron Migration to Windows 2000**

Sender	enron.announcements@enron.com
Recipients	[all.users@enron.com]
File	shackleton-s/all_documents/2839.

One Enron=01(. To support this corporate goal, Enron Net Works (both Europ= ean=20 and Houston Information Technology) is standardizing technology across the= =20 Enron Business Units outlined below. Project plans for EBS, GPG, and Azur= ix=20 are still being finalized and will be communicated separately. Our goal is= =20 to create a computing environment with the same look and feel across all of= =20 Enron. Oh, and did we mention that this will make traveling to another Enr= on=20 site feel almost like you=01,ve never left home? (At least when it comes = to=20 your ability to access Enron information.) Well, we plan to accomplish this= =20 with Project GEM!=20

Project GEM (Global Enron Migration) is a collaborative project team=20 comprised of IT employees from London and Houston that have focused on=20 delivering a standardized rollout of Windows 2000. We want to thank our=20 customers who have already been contacted by Project GEM for their=20 participation and feedback. Currently we have approximately 600 employees= =20 using Windows 2000 and we are ready to begin an Enron-wide roll out.

We are finalizing our Business Unit rollout schedule. Additional informati= on=20 will be provided as it becomes available. In the meantime, please contact= =20 your Business Unit representative listed below if you have any questions.

Business Unit / Date=09Contact Name=09Contact Information Enron Corp Enron North America (ENA) Enron Property & Services Company Enron Net Works Enron Global Finance=09Denise Rancour=09 713-345-8069 ENA Remote Offices=09 Fred Philipson=09 713-345-9323 Enron Global Exploration & Pipeline=09 Denise Rancour=09713-345-8069 Enron Engineering & Construction Co.=09 Burt Wilson=09 713-345-5974 Enron Europe=09 Chris Farrell=09 +44(0)20 7783 4537 Enron India=09 Burt Wilson=09 713-345-5974 Enron South America =09 Burt Wilson=09 713-345-5974 CALME Region - Enron Caribbean Basin - Enron Global LNG - Enron Middle East=09 Burt Wilson=09 713-345-5974 APACHI Region - Enron Asia/Pacific - Enron Africa - Enron China=09 Fred Philipson=09 713-345-9323 Enron Energy Services=09Rob Collier=09713-853-7826

In addition to these contacts, you also may send questions to "Project GEM"= =20 or project.gem@enron.com, and a member of the project team will be happy to= =20 address these individually. The latest project updates and news will also = be=20 posted on the Project section of the IT Central Web site at=20 <http://itcentral.enron.com>.=20

We are very excited about the roll out of Windows 2000. It is the foundati= on=20 for the delivery of future applications. So, stay tuned for more details!!= !

*Message 32 of 1118***RE: Hess-Enron ISDA Agreement(s)**

Sender	sara.shackleton@enron.com
Recipients	[ddellacona@hess.com]
File	shackleton-s/sent/5562.

Dana:

I haven't heard from credit. Why don't you call Tana Jones (our EOL paralegal specialist) at 713-853-3399 and let her know that you want to pursue the Electronic Trading Agreement and GTC's for online trading. I will also provide Tana with the background discussion that you and I had. At least she can get you moving on EOL and pursue credit at the same time. Let me know if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dellacona, Dana (Commodities - NY)" <ddellacona@Hess.com> 02/13/2001 09:12 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: "Ceria, Chuck (Commodities - NY)" <cceria@Hess.com> Subject: RE: Hess-Enron ISDA Agreement(s)

Sara,

Per our discussion on February 6th, I was wondering if you had any feedback from your credit people regarding the five Enron-Hess entity ISDAs we discussed. Also, as I mentioned in the February 6th e mail to you, Amerada Hess Corporation would like to be able to trade on Enron On-Line immediately. Can you give me a call to discuss how soon we can make arrangements for this?

Thanks,

Dana M. Dellacona 1185 Avenue of the Americas NY, NY 10036 Ph:212.536.8133 Fx:917.342.8810
ddellacona@hess.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Tuesday, February 06, 2001 7:11 PM To: ddellacona@Hess.com Subject: Hess-Enron ISDA Agreement(s)

Dana:

Mark Taylor asked that I look into this for you. Please give me a call and/or send me an email. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/06/2001 06:02 PM -----

Mark Taylor

To: Sara Shackleton/HOU/ECT@ECT

02/06/2001 cc:

05:51 PM Subject: Hess-Enron ISDA Agreement(s)

----- Forwarded by Mark Taylor/HOU/ECT on 02/06/2001 05:50 PM -----

"Dellacona,

Dana To: "'mark.taylor@enron.com'" <mark.taylor@enron.com> (Commodities cc:

- NY)" Subject: Hess-Enron ISDA Agreement(s) <ddellacona@H

ess.com>

01/26/2001

11:11 AM

Mark,

I would like to contact you in order to follow up to your conversation of last week with Mr. Chuck Ceria regarding executing an ISDA between numerous Hess entities and numerous Enron entities. Unfortunately, I do not have your phone number.

Could you either call me or e mail it to me?

Thanks so much,

Dana Dellacona 212-536-8133

Message 33 of 1118

RE: guaranties

Sender	mara_alexander@cargill.com
Recipients	['sara.shackleton@enron.com', 'andrzej_kabarowski@cargill.com', 'edward.sacks@enron.com']
File	shackleton-s/all_documents/10669.

Dear Sara,

Thanks for your response to (1) below regarding Set-Off.

As to your points (2) and (3), I have forwarded your email to Andrzej Kabarowski. I've just learned that he's in Europe until April 30th, but it's possible that he may contact Ed from there.

Regards, Mara Alexander Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Thursday, April 19, 2001 10:55 AM To: alexander, mara /xtwn Cc: Wendy.Conwell@enron.com; Edward.Sacks@enron.com Subject: RE: guaranties

Mara:

(1) The second setoff paragraph is intended to allow the Non-defaulting party to withhold payment if is not paid amounts that, for whatever reason, do not qualify for setoff.

(2) My credit group is calling to inquire about the delay. Can you elaborate further or better yet, ask Andrzej to contact Ed Sacks? Thanks.

(3) Can we finalize the agreement even though we have not concluded the guaranties?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

-----Original Message-----

Mara_Alexander@cargill.com To: Sara.Shackleton@enron.com

04/12/2001 12:15 PM Subject: RE: guaranties

Dear Sara,

Thanks for your agreement to the Set-Off language. Do you have some insights I can pass on to our attorney, who was wondering about the reason behind the language in Part 5(B), the second Set-Off paragraph?

I had forwarded your comments to our Credit Manager, Andrzej Kabarowski, who works with our Corporate Treasury on the Cargill guarantees, but have yet to receive a response. I have, however, learned that our Corporate Treasury has begun implementing a revised guarantee format (and I am told they are absolutely inflexible about the new language). We're trying to ascertain whether guarantees are also changing for Cargill-Alliant, which is a joint venture rather than a subsidiary. I will advise as soon as I know something definitive in this regard.

Unfortunately, it looks as though this Agreement will need to remain in the "pending" stack for a little while longer.

Regards, Mara Alexander Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail:
Mara_Alexander@Cargill.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Monday, April 09, 2001 5:20 PM To: alexander, mara /xtwn Cc: Edward.Sacks@enron.com Subject: guaranties

Mara:

Attached are blacklined versions based upon Cargill's comments to both the Enron Corp. and Cargill, Incorporated which I received from Ed Sacks. Please note that I added a comma to guarantor's name in the Cargill, Incorporated guaranty since that is how we executed the Cargill, Incorporated ISDA Master Agreement.

Also, your change to the setoff language is fine.

Let's try to agree to everything this week. Thanks.

(See attached file: ENEguarantyCargillR1.doc)(See attached file: CargillguarantorR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 34 of 1118

Re: Swaps in Structured Finance Transactions: The Trading

Sender	sara.shackleton@enron.com
Recipients	[cheryl.nelson@enron.com]
File	shackleton-s/all_documents/8734.

As promised -

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/17/2001 07:16 PM -----

Mary Cook 01/16/2001 08:45 AM

To: Brenda L Funk/HOU/ECT@ECT, Jordan Mintz/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Angela Davis/NA/Enron@Enron cc: Laurel Adams/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT, Bob Bowen/HOU/ECT@ECT, Derek Bailey/Corp/Enron@ENRON Subject: Re: Swaps in Structured Finance Transactions: The Trading Confirmation Desks

Brenda, for future transactions wherein swaps are involved, please see that extra copies of executed swaps are made at closing so that copies may be immediately distributed to the applicable confirmation desks. Since this aspect of the structured finance transactions include "trading" transactions, the confirmation desks need the paperwork immediately for their reference and audit trails and to avoid confusion with deal tickets etc. Please forward this memo to the other paralegals and attorneys in your group. For your reference, at this time the distribution of executed copies should be provided as follows depending upon the nature of the swaps:

Laurel Adams: Interest Rate Swaps

Larry Joe Hunter and Bob Bowen: Gas Commodity Swaps

Derek Bailey: Crude Oil Swaps

Melissa Murphy: Power Swaps

Dianne Seib: Canada Swaps

Swap Trading Attorney: as applicable to the attorney who assisted

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Brenda L Funk 01/16/2001 07:58 AM

To: Mary Cook/HOU/ECT@ECT cc: Laurel Adams/HOU/ECT@ECT Subject: Re: Brazos

Mary,

We do not yet have execution copies of the documents. I am expecting them this week. I will send copies of the swaps as soon as I receive them.

Thanks, Brenda Funk (713) 853-6950 (713) 853-9252 (fax)

Mary Cook 01/11/2001 01:43 PM

To: Laurel Adams/HOU/ECT@ECT cc: Brenda L Funk/HOU/ECT@ECT Subject: Re: Brazos

As to the initial closing into the Brazos partnership of Preston 1 and Crescendo, legal drafted the interest rate swaps.

Brenda, may Laurel and I get executed copies of the interest rate swaps, and I need the rest of the swap docs too, as well as copies to Larry Joe Hunter, all as previously requested. Mary

Laurel, I do not have executed versions. I did draft the swaps and they were signed at closing, but Global Finance Legal is in charge of distribution of executed docs. To the extent it is helpful here are the final versions that I sent to closing. If I can be of further help, please call.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Laurel Adams 01/11/2001 12:12 PM

To: Mary Cook/HOU/ECT@ECT cc: Subject: Brazos

Mary,

It was my understanding (from Tim Proffitt) that the legal department drafted all of the documents related to Brazos. Does this include the interest rate swaps? Originally you had sent me to Brenda Funk to get copies of the confirms for my records, but I have not heard anything from her at all. Could you please forward to me a copy of the documents, even if it has only been signed off on by one party? I would like to review them and send them on to our file room.

IF LEGAL HAS NOT DRAFTED THE INTEREST RATE SWAP CONFIRMS, PLEASE LET ME KNOW RIGHT AWAY, SO THAT I CAN PREPARE THESE DOCUMENTS!!

Thank you.

Message 35 of 1118

Re: ING Barings (U.S.) Capital Markets LLC

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent/6018.

Susan: This is for the ING master. We need to email to Cheryl and her colleagues.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/12/2001 08:24 AM

Cheryl La Belle <clabelle@bblnyrep.com> 04/12/2001 07:51 AM

To: Sara.Shackleton@enron.com cc: chuck.spence@ing-barings.com, matt.shimaitis@ing-barings.com Subject: Re: ING Barings (U.S.) Capital Markets LLC

Sara-

Finally - It was a pelasure to speak to you and here are the coordinates.

The ISDA Agreement would be in the name of ING Baring (U.S.) Capital Markets LLC.

Your should forward it to me and to my colleagues at ING, Matt Shimaitis and Chuck Spence by e-mail, or if easier, by mail.

My address is as follows:

BBL New York Rep Office 590 Madison Avenue 28th Floor New York, New York 10022 Phone - (212) 218-5232

and Chuck's and Matt's address is

ING 1325 Avenue of the Americas New York, New ork 10015 Phone (212) 409-6106

My E-mail you will obviously have, but Chuck's and Matt's are: chuck.spence@ing-barings.com
matt.shimaitis@ing-barings.com

Thanks for your help -

Regards,

Cheryl

Sara.Shackleton@enron.com wrote:

Cheryl: We'll email the draft ISDA Schedule and CSA to you and Chuck. Please email me back with address, phone, email, etc. information as to how you would like the drafts sent. Thanks. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 36 of 1118

Re: Allegheny sample confirmation draft

Sender	sara.shackleton@enron.com
Recipients	['brent.hendry@enron.com']
File	shackleton-s/all_documents/11296.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/30/2001 10:59 AM -----

Sara Shackleton 04/05/2001 02:46 PM

To: Kimberly Hundl/Corp/Enron@ENRON cc: Subject: Re: Allegheny sample confirmation draft

Kim: It looks fine, and, you should use this format until the ISDA is executed. We spoke with Allegheny this morning and they promise to execute next week.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kimberly Hundl@ENRON 04/05/2001 12:45 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Allegheny sample confirmation draft

Hi Sara, Attached are the changes you requested. Shall I begin confirming all Allegheny deals on this form until the ISDA is complete?

Thanks for your help! Kimberly Hundl x31647

From: Sara Shackleton@ECT on 04/04/2001 06:58 PM To: Kimberly Hundl/Corp/Enron@ENRON cc:

Subject: Re: Allegheny sample confirmation draft

Kim:

Attached are my comments.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kimberly Hundl@ENRON 04/04/2001 10:43 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Melissa Ann Murphy/HOU/ECT@ECT Subject: Allegheny sample confirmation draft

Hi Sara, Ok, I think I have properly referenced the side letter in this confirmation. Please let me know what changes should be made.

P.S. I am leaving at noon today, so if I haven't heard from you by then, I will give you a call tomorrow morning. Thanks!
Kim x31647

Message 37 of 1118

RE: Enserco Energy, Inc. L.C. Address Info

Sender	edward.sacks@enron.com
Recipients	['sara.shackleton@enron.com', 'carol.st.@enron.com']
File	shackleton-s/inbox/169.

Veronica Gonzalez will be delivering the original L/C to your attention shortly.

-----Original Message-----

From: St. Clair, Carol Sent: Thursday, December 27, 2001 11:14 AM To: Sacks, Edward; Bradford, William S. Subject: FW: Enserco Energy, Inc. L.C. Address Info

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: levans@blackhillscorp.com@ENRON Sent: Thursday, December 27, 2001 10:31 AM To: Shackleton, Sara; St. Clair, Carol Cc: dperkins@enserco.com Subject: Enserco Energy, Inc. L.C. Address Info

Carol & Sara- The original Bank of America letter of credit number 3024519 should be returned to: Fortis Capital Corp. ATTN: Jonathan Fronda Three Stamford Plaza 301 Tresser Blvd. Stamford, CT 06901-3239 I am informed that a letter of cancellation signed by an authorized representative of Enron North America Corp. should also accompany the original letter of credit and all amendments. A facsimile of this cancellation letter is acceptable if transmitted to 203-705-5898 (ATTN: Jonathan Fronda). A copy of the overnight courier air waybill should be attached to the facsimile. I understand that Don Perkins has also started the process to confirm Fortis Capital Corp. letter of credit number 011290 through the parent company, Fortis Bank, as well as making the correction we discussed earlier (delivery of gas). Please call me if you have any questions. Thank you for your assistance in this matter. Linn Evans Black Hills Corp. P.O. Box 1400 625 Ninth St. - 3rd Fl. Rapid City, South Dakota 57709 T: 605.721.2305 F: 605.721.2550 C: 605.390.6003

Message 38 of 1118

Transfer and Assignment of Enron North America Corp. ("ENA")

Sender	sara.shackleton@enron.com
Recipients	['pamela.coleman@gs.com', 'tom.doukas@enron.com', 'nikki.kroll@gs.com']
File	shackleton-s/all_documents/11227.

Pamela:

Please call or email regarding the account assignment. If you are not the right person, please forward the request and advise. We are anxious to have this executed. Thank you for your assistance.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/24/2001 04:52 PM -----

Sara Shackleton 05/22/2001 10:31 AM

To: pamela.coleman@gs.com cc: nikki.kroll@gs.com Subject: Transfer and Assignment of Enron North America Corp. ("ENA") accounts to Enron Credit Inc. ("ECI")

Pamela:

I am also sending you the attached message which I just sent to Nikki Kroll. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/22/2001 10:30 AM -----

Sara Shackleton 05/22/2001 10:27 AM

To: nikki.kroll@gs.com cc: Subject: Transfer and Assignment of Enron North America Corp. ("ENA") accounts to Enron Credit Inc. ("ECI")

Nikki:

I am a lawyer with ENA. I understand that you have been involved with the execution of the Goldman Sachs & Co. ("GSC")/ECI Corporate Account Agreement, working with both Cheryl Nelson and Stephanie Panus of ENA.

ENA would like to transfer several accounts to ECI. In connection therewith, I am attaching a form of Assignment and Assumption Agreement for that purpose. This document is based upon a similar agreement executed by GSC, ENA and ECT Investments, Inc. on January 22, 2001.

I ask that you please advise me of the following:

- (1) What is the effective date of the Corporate Account Agreement between ECI and GSC? Has it been executed by GSC?
- (2) Is the attached form of assignment acceptable?
- (3) Is there anybody else with GSC that needs to be involved with the review/execution of the attached assignment?

Please let me hear from you. Our commercial group is extremely anxious to effectuate the transfer. Thank you for your assistance.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 39 of 1118

RE: Enron Credit Inc. ("ECI") consent

Sender	sara.shackleton@enron.com
Recipients	['ted.leh@gs.com', 'tom.doukas@enron.com', 'mark.k.wilson@enron.com', 'jeff.kinneman@enron.com']
File	shackleton-s/all_documents/11412.

All: attached below is the repo - see Par. 4 for "Margin Maintenance"

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/04/2001 02:53 PM

"Shanley, Gail" <gail.shanley@gs.com> 04/17/2001 08:44 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com>, gail.shanley@gs.com cc: ted.leh@gs.com Subject: RE: Enron Credit Inc. ("ECI") consent

Sara -

I will look at your consent document today. Attached please find the standard repo documentation used by Goldman.

Gail

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Tuesday, April 17, 2001 9:42 AM To: gail.shanley@gs.com Cc: ted.leh@gs.com Subject: Enron Credit Inc. ("ECI") consent

Gail:

The commercial team is pressuring for a fairly quick implementation of a repo agreement. If the consent which I sent yesterday is not satisfactory, please advise as soon as possible so that I can obtain a repo specific consent. Also, could you please submit repo documents to me for review.

I do not know who may have contacted you from the London group (Enron Credit Ltd.) but we can surely coordinate. That entity should have its own form of unanimous consent or resolution.

Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/17/2001 08:36 AM

Sara

Shackleton To: gail.shanley@gs.com

cc:

04/16/2001 Subject: Enron Credit Inc. ("ECI") consent 02:36 PM

Gail:

Attached is a form of ECI unanimous consent. Will you accept this for the purpose of signing a repo agreement and transacting thereunder? Please let me know.

Also, you can email repo documents to me.

Thanks.

(See attached file: Resolution - ECI.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

- p4233104a.pdf - p4233104b.pdf

Message 40 of 1118

RE: ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/all_documents/9443.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/27/2001 08:31 AM -----

Mara_Alexander@cargill.com 02/27/2001 07:37 AM

To: Sara.Shackleton@enron.com cc: Subject: RE: ISDA Master Agreement

Sara,

My Credit Manager advises that he needs to consult with one of our Corporate Treasury's attorneys on the Cargill, Inc. guarantee, but that attorney will be out all this week. Hopefully I can get a response to you on the guarantee early next week.

Meanwhile, attached please find one small change to Set-Off language from the latest draft. Can you please explain the reason behind adding the second paragraph -- is this bankruptcy related?

Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Alexander, Mara /xtwn Sent: Monday, February 26, 2001 5:09 PM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Master Agreement

Sara,

I'm sorry, but I'm still awaiting word on the Cargill, Inc. guarantee of Cargill-Alliant, which was in the hands of our Credit Manager for a final once-over. (Unless they've by-passed me? Have you seen a revised copy of this guarantee?)

I also need that same Credit Mgr. to give his final nod of approval to the Set-Off language you'd put into the last draft. Our Legal only had on a couple of minor comments on it.

Thanks for the follow-up! I intend to press hard this week for a final response so we can at last get this wrapped up.

Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Monday, February 26, 2001 4:45 PM To: alexander, mara /xtwn Subject: ISDA Master Agreement

Mara: Are we done? I don't think we have heard from you about the master? Can we go ahead and have the guaranty executed? I don't think we have any outstanding issues.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

- 2-27.doc

Message 41 of 1118

RE: Enron Credit Inc. ("ECI") consent

Sender	sara.shackleton@enron.com
Recipients	['ted.leh@gs.com', 'gail.shanley@gs.com']
File	shackleton-s/all_documents/10651.

Gail:

Is the attached Master Repurchase Agreement used by both GS&Co as well as GSI? It looks like both Enron companies (U.S and U.K.) will want repos and the U.S. company . What is the difference in the forms used by GS&Co and GSI?

Any word on the consent?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

"Shanley, Gail" <gail.shanley@gs.com> 04/17/2001 08:44 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com>, gail.shanley@gs.com cc: ted.leh@gs.com Subject: RE: Enron Credit Inc. ("ECI") consent

Sara -

I will look at your consent document today. Attached please find the standard repo documentation used by Goldman.

Gail

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Tuesday, April 17, 2001 9:42 AM To: gail.shanley@gs.com Cc: ted.leh@gs.com Subject: Enron Credit Inc. ("ECI") consent

Gail:

The commercial team is pressuring for a fairly quick implementation of a repo agreement. If the consent which I sent yesterday is not satisfactory, please advise as soon as possible so that I can obtain a repo specific consent. Also, could you please submit repo documents to me for review.

I do not know who may have contacted you from the London group (Enron Credit Ltd.) but we can surely coordinate. That entity should have its own form of unanimous consent or resolution.

Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/17/2001 08:36 AM

Sara

Shackleton To: gail.shanley@gs.com

cc:

04/16/2001 Subject: Enron Credit Inc. ("ECI") consent 02:36 PM

Gail:

Attached is a form of ECI unanimous consent. Will you accept this for the purpose of signing a repo agreement and transacting thereunder? Please let me know.

Also, you can email repo documents to me.

Thanks.

(See attached file: Resolution - ECI.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

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Message 42 of 1118

Re: Valentis and CD Holdings

Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com', 'Carol St Clair/HOU/ECT@ECT', 'Frank']
File	shackleton-s/all_documents/10811.

In case no one told you, Brent is not in the office today.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 12:31 PM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron cc: Paul Radous/Corp/Enron, Fred Lagrasta/HOU/ECT@ECT Subject: Re: Valentis and CD Holdings

sure... i think you have everything on valentis and cd holdings.. i am waiting for those docs and AIG to go out.. i have all the other info on the funds we have in the system and will just use the template you gave me to organize it.

Brent- did you find the Catequil confirms ... also, comments on Catequil????

thanks, Caroline

From: Sara Shackleton@ECT on 04/25/2001 11:04 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Re: Valentis and CD Holdings

Caroline:

As you know, Carol is working on your template; then Frank, Carol and I will have to review/discuss. You will have the template soon. We are all working hard to provide you with the necessary documentation.

Are you preparing the information for us?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 10:07 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Valentis and CD Holdings

sara- can i have a blank template over email.. thanks, ca

From: Sara Shackleton@ECT on 04/25/2001 09:03 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate

Subject: Re: Valentis and CD Holdings

Caroline:

No Deemed ISDA, we decided that yesterday for the long-dated deal.

We are working on the draft masters for emailing. Please send me the information about your counterparties' lawyers so we can begin negotiating.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 06:42 AM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Corp/Enron Subject: Valentis and CD Holdings

Please send the draft ISDAS to:

Marty Lifgren- mlifgr@wexford.com Charles Davidson- cdavid@wexford.com

We agreed that the fastest way to proceed wwas to send the ISDA or can we still send the deemed ISDA?.

Message 43 of 1118

Re: Enron/Corrugated Services

Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/8998.

Sara: Sounds good. I've got something at 2. How about 2:30?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Sara Shackleton 02/07/2001 09:12 AM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: Enron/Corrugated Services

Carol:

Here's another paper & pulp master with a relatively new deal person (Steve Klein). The file has sat for ages and it looks like outside counsel has some time (he's a good guy). Please let me know.

Also, I spoke with Mark and I'd like to sit down with you to do some brainstorming/planning, e.g., a group offsite, in-house training, form changes. Today is not a good day but tomorrow is fine. How about 2 pm?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/07/2001 09:12 AM

Neel.Lemon@bakerbotts.com 02/06/2001 07:29 PM

To: Sara.Shackleton@enron.com cc: Rebecca.Williams@BakerBotts.com, ffelvey@csipaper.com Subject: Enron/Corrugated Services

Sara:

Any chance you are available at 1:30pm on Wednesday for a call regarding the Enron/Corrugated Services ISDA? If that time will not work for you, please suggest another time tomorrow afternoon that would.

Also, you will be receiving on Thursday morning a copy of some of the more relevant documentation relating to the June 2000 drop down of the Corrugated Services, Inc. operating assets and liabilities (including the original Enron/Corrugated Services, Inc. ISDA) into a newly formed limited partnership known as Corrugated Services, L.P. In connection with that transaction, Corrugated Services, Inc. changed its name to CSI Holdings, Inc. CSI Holdings, Inc. also formed at that time and now owns 100% of CSI GP, Inc., which entity serves as the general partner of Corrugated Services, L.P. All of this was done to create a more franchise tax efficient operating and ownership structure.

Based on the foregoing, we believe that it will be necessary to redocument the original agreement either through an amendment thereto or the cancellation thereof and the creation of a new LP/Enron agreement.

We plan on discussing the foregoing during our call tomorrow afternoon.

Thanks.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

The information contained in this email is confidential and may be subject to the attorney-client privilege. As a result, any unauthorized use or transmission is prohibited. If you are not the intended addressee, please delete this email and notify the sender.

Message 44 of 1118

Re: Reschedule one fo the three brokerage meetings tomorrow

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'keegan.farrell@enron.com']
File	shackleton-s/all_documents/10314.

Sara, I agree.

Keegan, I think Sara is now saying that we will have one meeting a month.

Sara, please copy Keegan on the schedule so she can put the meetings on my calendar.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 04/04/2001 09:46 AM -----

Sara Shackleton@ECT 04/04/2001 08:42 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: Reschedule one fo the three brokerage meetings tomorrow

Cheryl:

I think it would be helpful for the desk and legal to retain monthly meetings just to stay abreast of activity and expectations. Why don't we keep the end of month meetings? I'll resend the schedule to you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/04/2001 08:34 AM -----

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/03/2001 05:49 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Keegan Farrell/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron Subject: Re: Reschedule one fo the three brokerage meetings tomorrow

Keegan, please take the future scheduled brokerage account meetings off of the calendar. Thanx Sara.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/03/2001 05:06 PM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Subject: Re: Reschedule one fo the three brokerage meetings tomorrow

Sounds like Keegan has somethig wrong. I have no meetings scheduled with you tomorrow. I don't know anything about a 9 am meeting. The brokerage meetings were originally scheduled every other week until we could bring ourselves up to date (and we met last week). The swap group meeting is always held twice monthly. Hope this helps.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/03/2001 05:01 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Keegan Farrell/NA/Enron@Enron Subject: Reschedule one fo the three brokerage meetings tomorrow

Hi Sara,

I need to reschedule on of the three brokerage account meetings that are on my calendar for tomorrow.

My calendar indicates that I have a 9 a.m. one hour meeting with you, a 10 a.m. one hour swaps meeting, a 1:30 brokerage account meeting a 2:30 one hour credit support meeting and a 4 p.m. meeting with someone from yet another Enron entity seeking to open a brokerage account on an urgent basis.

Keegan and I have now developed a strategy to ensure that we do not have so many meetings on one day. Most of the other meetings are group meetings and therefore are not possible to reschedule.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 45 of 1118

Re: Goldman, Sachs & Co

Sender	sara.shackleton@enron.com
Recipients	['vivian.siao@gs.com']
File	shackleton-s/all_documents/8669.

Vivian: I have not received the copy of our executed electronic trading agreement. Please let me know if there is a problem. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/08/2001 11:58 AM -----

Sara Shackleton 01/04/2001 08:41 AM

To: "Siao, Vivian" <vivian.siao@gs.com>@ENRON cc: Subject: Re: Goldman, Sachs & Co

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Siao, Vivian" <vivian.siao@gs.com> 01/03/2001 04:59 PM

To: "'sara.shackleton@enron.com'" <sara.shackleton@enron.com> cc: "Leh, Ted" <ted.leh@gs.com> Subject: Goldman, Sachs & Co

The Goldman Sachs Client Access Agreement (the "Agreement") and/or Schedule A -- Electronic Trading Services ("Schedule A") are attached for your review and signature. The Agreement and Schedule A are required for each legal entity whose trading personnel are enabled to access Goldman Sachs' electronic systems. The documents must be

signed by an authorized signatory of the legal entity(ies) that employs each enabled person. The list of persons within your organization that have been enabled to access Goldman Sachs electronic systems and their associated legal entity(ies) are listed below. If the Legal Entity name is incorrect, please indicate the appropriate name for purposes of this Agreement and Schedule A. Please list all enabled users and their corresponding legal entity on Schedule A-ETS Authorized Users. You may add additional users or delete ones that are currently enabled.

Enabled users Legal Entity Harry Arora Enron NA

Please complete, date and sign both the Agreement and Schedules separately. Please pay special attention to the following points:

* At the top of the document -- "Client:" Fill in the legal name and the address of the entity that will execute both the Agreement and Schedule A. If the document is intended to cover more than one entity, please list in a separate annex each entity that the document covers.

* Next to the line "Attn:" Fill in the name and title of the authorized person that is signing the document on behalf of the legal entity.

Please return the completed and signed documents via fax to:

GS contact: Vivian Siao

Fax: 212-428-1872

Phone: 212-902-1429

Any questions regarding the Agreement or Schedule A should be directed to the GS contact listed above.

<<Client Access Agreement.pdf>> <<generic e-trading ver3.sch.pdf>> <<Authorized User Annex to Schedule A-ETS.pdf>>

Vivian Siao Stephan Fixed Income, Currency & Commodities Compliance Tel: (212) 902-1429 Fax: (212) 428-1872

- Client Access Agreement.pdf - generic e-trading ver3.sch.pdf - authorized user annex to Schedule A-ETS.pdf

Message 46 of 1118

Re: Nova Scotia Power

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/all_documents/11271.

Susan: Please assign someone to Nova Scotia Power and let me know (and=20 change in Lotus Notes). Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/29/2001 01:47 PM -----

=09Tana Jones =0905/29/2001 12:59 PM =09=09 =09=09 To: Sara Shackleton/HOU/ECT@ECT =09=09 cc:=20 =09=09 Subject: Re: Nova Scotia Power

Sara, there is no paralegal yet working this deal. It is an old Susan Flynn= n=20 deal and no credit has been received. Unless you appoint a paralegal to=20 handle this I expect I will still be the paralegal that gets the snotty=20 emails and phone calls from Jen and from Rich Lassander.

=09Sara Shackleton =0905/29/2001 10:32 AM =09=09=20 =09=09 To: Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha=20 Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Marie=20 Heard/NA/Enron@Enron =09=09 cc:=20 =09=09 Subject: Re: Nova Scotia Power

I'm not sure who is handling. Tanya is supposed to prepare credit.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/29/2001 10:30 AM

=09Jennifer Fraser/ENRON@enronXgate =0905/28/2001 09:51 AM =09=09=20 =09=09 To: Sara Shackleton/HOU/ECT@ECT =09=09 cc: Richard Lassander/ENRON@enronXgate =09=09 Subject: FW: NSPI - ISDA _Update

Below you will find the full contact information. Please have a copy sent to= =20 Richard Lassander as well. -----=20

=20

=01;

Don Keith

Treasurer

Nova Scotia Power Inc.

1894 Barrington St 9th Floor

Scotia Square

Halifax NS

Canada

B3J 3 A8

Phone 902- 428-6848

fax; 902-428-6181

The website for the CP is <http://www.nspower.ca/>

Their finacials can be found at <http://www.emera.com/>

Please note that NSPI (Emera) is a publicly traed utility -- they are not= =20 gov't owned.

=01; =01; -----Original Message-----=20 From: Lassander, Richard=20 Sent: Mon 21/05/2001 18:33=20 To: Fraser, Jennifer=20 Cc:=20 Subject: NSPI - ISDA

Jen,=20 An update with regards to the Nova Scotia Power ISDA. After several days of= =20 trying to hunt down Brant Reves he referred me to Rudwell Johnson in Credit= .=20 He in turn sent me back to Tana Jones because there is an ISDA issued and y= ou=20 don't have to renew it if it is already in place. I go back to Tana Jones t= o=20 see if the ISDA sent to Nova Scotia in July 1999 included Weather=20 Derivatives. Tana Jones referred me back to Sara Shackleton. I left a voice= =20 mail with Sara this afternoon. Through this process I found out that the IS= DA=20 sent to NSPI in July 1999 was never executed and we need to execute it befo= re=20 we can do any deals with them. I was under the impression that we already= =20 have been doing deals with them.

=01;

Richard Lassander=20 Enron Global Markets=20 Phone: 713-345-7600=20 Fax: 713-758-8400=20

Message 47 of 1118

Re: FW: Re: futures agreement

Sender	sara.shackleton@enron.com
Recipients	[samon_corinne@jpmorgan.com]
File	shackleton-s/sent/5766.

Corinne: Thanks for the message. We have not yet resolved the interest issue. But it is the only issue left. Please retain the second signature for Singapore trading. I hope to have an answer early next week.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpmorgan.com> 03/08/2001 03:24 PM

To: Sara.Shackleton@enron.com cc: Subject: FW: Re: futures agreement

Sara, As per our discussion last week, we have agreed upon all changes to the client agreement with the exception of the interest issue - which was under review by your business people.

Can you please provide me with a status update? If you prefer, our salesperson is more than happy to discuss the issue with your business people. Please forward the appropriate contact name or number, or have them call Michael Schneider directly at (212) 648-1164.

Many thanks for your assistance with this matter.

Regards, Corinne

Corinne A Samon 02/28/2001 11:05 AM

To: Sara.Shackleton@enron.com cc: Subject: Re: futures agreement (Document link not converted)

Sara, We are in agreement with your proposed changes to the arbitration language.

I await your reply concerning the rest of the comments to the client agreement.

Regards, Corinne 6-4292

Sara.Shackleton@enron.com on 02/27/2001 06:33:48 PM

To: samon_corinne@jpmorgan.com cc: Subject: Re: futures agreement

Corinne:

Attached is your arbitration language (marked) and our arbitration text. I hope this does it! Thanks.

(See attached file: JPMorganarbitrationR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpm To: Sara.Shackleton@enron.com organ.com> cc: Subject: Re: futures agreement 02/27/2001 02:58 PM

Sara, Thank you for your fax. Section 180.3 of the CEA prohibits us from agreeing to any settlement procedure/forum ahead of time. JPMFI, in accordance with 180.3, will offer 3 forums - which will include AAA. If Enron chooses AAA, the arbitration will be subject to the provisions specified in your fax dd 2/26/2001.

Attached is JPM's proposed language for the arbitration agreement.

(See attached file: ARBITRATION AGREEMENT.doc)

If you are in agreement with the language, please forward Enron's proposed language (detailed in your 2/26 fax) electronically (if available).

Thank you and Regards, Corinne

Sara.Shackleton@enron.com on 02/26/2001 12:36:22 PM

To: samon_corinne@jpmorgan.com cc: Subject: futures agreement

Corinne:

I just sent you a fax re: arbitration.

I have not heard from your salesperson re: interest schedule for debit rate (Sec. 2) and credit rate (Sec. 6). Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

(See attached file: ARBITRATION AGREEMENT.doc)

- JPMorganarbitrationR1.doc - ARBITRATION AGREEMENT.doc

Message 48 of 1118

FW: Re: futures agreement

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com']
File	shackleton-s/all_documents/9692.

Sheila: The attached information may help you with respect to the JP Morgan Futures Agreement. I will let the lawyer know that we still have the issue under consideration. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/08/2001 04:44 PM -----

"Corinne A Samon" <samon_corinne@jpmorgan.com> 03/08/2001 03:24 PM

To: Sara.Shackleton@enron.com cc: Subject: FW: Re: futures agreement

Sara, As per our discussion last week, we have agreed upon all changes to the client agreement with the exception of the interest issue - which was under review by your business people.

Can you please provide me with a status update? If you prefer, our salesperson is more than happy to discuss the issue with your business people. Please forward the appropriate contact name or number, or have then call Michael Schneider directly at (212) 648-1164.

Many thanks for your assistance with this matter.

Regards, Corinne

Corinne A Samon 02/28/2001 11:05 AM

To: Sara.Shackleton@enron.com cc: Subject: Re: futures agreement (Document link not converted)

Sara, We are in agreement with your proposed changes to the arbitration language.

I await your reply concerning the rest of the comments to the client agreement.

Regards, Corinne 6-4292

Sara.Shackleton@enron.com on 02/27/2001 06:33:48 PM

To: samon_corinne@jpmorgan.com cc: Subject: Re: futures agreement

Corinne:

Attached is your arbitration language (marked) and our arbitration text. I hope this does it! Thanks.

(See attached file: JPMorganarbitrationR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpm To: Sara.Shackleton@enron.com organ.com> cc: Subject: Re: futures agreement 02/27/2001 02:58 PM

Sara, Thank you for your fax. Section 180.3 of the CEA prohibits us from agreeing to any settlement procedure/forum ahead of time. JPMFI, in accordance with 180.3, will offer 3 forums - which will include AAA. If Enron chooses AAA, the arbitration will be subject to the provisions specified in your fax dd 2/26/2001.

Attached is JPM's proposed language for the arbitration agreement.

(See attached file: ARBITRATION AGREEMENT.doc)

If you are in agreement with the language, please forward Enron's proposed language (detailed in your 2/26 fax) electronically (if available).

Thank you and Regards, Corinne

Sara.Shackleton@enron.com on 02/26/2001 12:36:22 PM

To: samon_corinne@jpmorgan.com cc: Subject: futures agreement

Corinne:

I just sent you a fax re: arbitration.

I have not heard from your salesperson re: interest schedule for debit rate (Sec. 2) and credit rate (Sec. 6). Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

(See attached file: ARBITRATION AGREEMENT.doc)

- JPMorganarbitrationR1.doc - ARBITRATION AGREEMENT.doc

Message 49 of 1118

Re: Carastar Industries, Inc. ("CP") ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'robert.bruce@enron.com']
File	shackleton-s/sent/5475.

Bob: I spoke with John on Friday and you can revise this master per Paul's email. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/05/2001 10:01 AM -----

Paul Radous@ENRON 02/05/2001 09:47 AM

To: John Fortunato/NA/Enron@Enron cc: Sara.Shackleton@Enron.com Subject: Re: Carastar Industries, Inc. ("CP") ISDA Master Agreement

I have spoken with Matthew Carnwath. I have explained the meanings of the various thresholds. Sara, it appears that I made an error in calculating the cross default threshold for the c/p. Please raise it from \$10MM to \$15MM in the

executable version. For your reference, I have enclosed another credit worksheet incorporating that change. Otherwise, there appear to be no remaining points of disagreement involving Credit.

John Fortunato 02/02/2001 11:01 AM To: Paul.Radous@Enron.com cc: Sara.Shackleton@Enron.com

Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

Paul:

I will have Mathew Carnwath contact you early next week. Mathew is the controller at Caruastar's large Rittman Ohio mill and has been directed by the CFO (Lee Thrash) to work out these details. Mathew is only the messenger, but is in contact with the Caruastar attorney's on these issues.(FYI, he can be reached at 330-927-7244 or via e-mail, Mathew.Carnwath@Caruastar.com).

Thanks for the help

John ----- Forwarded by John Fortunato/NA/Enron on 02/02/2001 10:50 AM ----- From: Sara Shackleton@ECT on 02/02/2001 10:28 AM To: John Fortunato/NA/Enron@Enron cc: Stephanie Panus/NA/Enron@Enron

Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

John: Please have Caraustar call Paul Radous about the cross default issue. Legal will wait to hear back from Paul after his discussion with your counterparty.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 10:25 AM -----

Paul Radous@ENRON 02/02/2001 10:09 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

We are ok with reciprocal website financials. Please have the counterparty call me to discuss the cross default threshold. We use a widely accepted standard in the industry, which is 2% of total debt, rounded. In fact, by this standard, Enron has set it's own threshold too low.

From: Sara Shackleton@ECT on 02/02/2001 09:04 AM To: Paul Radous/Corp/Enron@ENRON cc: John Fortunato/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron

Subject: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

Paul:

John Fortunato has advised me that CP has only three (3) issues with the draft which we delivered in November, 2000. The credit issues are:

(1) CP financials available online - we'll need their website address

(2) CP Threshold for cross default is too low and wish a "higher number" but have not given John any indication of what they want

Please let John and Stephanie know the outcome so that we can prepare executable docs. Thanks.

P.S. The legal issue was governing law, Texas or NY. CP doesn't care but needs confirmation and possibly explanation.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 50 of 1118

Re: Enron Credit Inc. - request for urgent information

Sender	cheryl.nelson@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10278.

Sara, as I stated below, I checked my lotus notes entry and did not see it. This could be because lotus notes is in disarray or just in the stress we are all face being under the gun, I am overlooking it. But we all agreed yesterday that time is of the essence and this matter is now of the most critical importance so if you see the information or otherwise have it, particularly because you have spoken with her, the please, forward the information so that we can get the guaranty executed. Thank you.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/03/2001 09:03 AM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Subject: Re: Enron Credit Inc. - request for urgent information

Cheryl:

1. Check the comments for Ms. Lewis' information.
2. No, I indicated that the assignment and account agreement were essential. I did not say that accompanying docs were not required. I suggested that someone should verify with Cheryl Lewis. Often, the broker will rely on our relationship and subsequent delivery of accompanying docs. This must be determined on an ad hoc basis.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/03/2001 08:53 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Enron Credit Inc. - request for urgent information

Sara:

1. Ms. Lewis' information does not appear to be in the lotus notes entry for ECI-Bear that I have used for the past two weeks. Re: lotus notes, however, I certainly could be wrong. If you are certain, please point out or forward.
2. You indicated in our meeting in my office that someone represented that Bear does not need the standard accompanying documents to open the account. As per my email request yesterday evening, can you confirm who determined this (if it was not you) so that I know what is going on and what I can represent in talking with the people at Bear?

Much thanx,

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/02/2001 05:09 PM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Subject: Re: Enron Credit Inc.

Cheryl:

1. & 3. You should verify with Cheryl Lewis whose information is in Lotus Notes. I do not have correct spelling of name or her fax number.
2. Officers need to be confirmed through the Enron Corp. corporate secretary's office. See the separate email I just sent you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/02/2001 04:45 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron Subject: Enron Credit Inc.

Sara, I have stopped by your office but you are not around. Please provide the following information/clarification in light of your conversations with other folks:

1. We do not have to send Bear the Officers/Traders list and other documents with the agreements to get things moving?
2. If we do, then who do I contact or ask Richard Sage to contact to get this information re: the correct slate of officers updated? No one has advised me of these steps. And actually, if we have to do this, I would like Stephanie to take the lead on finishing her work on this part of the project.
3. Re: this attorney Cheryl at Bear that you have talked to -- what is her full name, phone, and fax?

Thanx.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 51 of 1118

Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['robert.bruce@enron.com', 'Sara.Shackleton@Enron.com']
File	shackleton-s/all_documents/8942.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/05/2001 11:21 AM -----

John Fortunato@ENRON 02/05/2001 11:05 AM

To: Sara.Shackleton@enron.com cc: Stephen.Klein@Enron.com Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

Sara:

I guess this is good news. What is the next step. Will your group now draft a final ISDA? I am in contact with Caraustar on Tuesday, just want my story correct.

Thanks

John ----- Forwarded by John Fortunato/NA/Enron on 02/05/2001 10:56 AM ----- From: Paul Radous on 02/05/2001 09:47 AM To: John Fortunato/NA/Enron@Enron cc: Sara.Shackleton@Enron.com

Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

I have spoken with Matthew Carnwath. I have explained the meanings of the various thresholds. Sara, it appears that I made an error in calculating the cross default threshold for the c/p. Please raise it from \$10MM to \$15MM in the executable version. For your reference, I have enclosed another credit worksheet incorporating that change. Otherwise, there appear to be no remaining points of disagreement involving Credit.

John Fortunato 02/02/2001 11:01 AM To: Paul.Radous@Enron.com cc: Sara.Shackleton@Enron.com

Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

Paul:

I will have Mathew Carnwath contact you early next week. Mathew is the controller at Caruastar's large Rittman Ohio mill and has been directed by the CFO (Lee Thrash) to work out these details. Mathew is only the messenger, but is in contact with the Caruastar attorney's on these issues. (FYI, he can be reached at 330-927-7244 or via e-mail, Mathew.Carnwath@Caruastar.com).

Thanks for the help

John ----- Forwarded by John Fortunato/NA/Enron on 02/02/2001 10:50 AM ----- From: Sara Shackleton@ECT on 02/02/2001 10:28 AM To: John Fortunato/NA/Enron@Enron cc: Stephanie Panus/NA/Enron@Enron
Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

John: Please have Caraustar call Paul Radous about the cross default issue. Legal will wait to hear back from Paul after his discussion with your counterparty.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 10:25 AM -----

Paul Radous@ENRON 02/02/2001 10:09 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

We are ok with reciprocal website financials. Please have the counterparty call me to discuss the cross default threshold. We use a widely accepted standard in the industry, which is 2% of total debt, rounded. In fact, by this standard, Enron has set it's own threshold too low.

From: Sara Shackleton@ECT on 02/02/2001 09:04 AM To: Paul Radous/Corp/Enron@ENRON cc: John Fortunato/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron

Subject: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

Paul:

John Fortunato has advised me that CP has only three (3) issues with the draft which we delivered in November, 2000. The credit issues are:

- (1) CP financials available online - we'll need their website address
- (2) CP Threshold for cross default is too low and wish a "higher number" but have not given John any indication of what they want

Please let John and Stephanie know the outcome so that we can prepare executable docs. Thanks.

P.S. The legal issue was governing law, Texas or NY. CP doesn't care but needs confirmation and possibly explanation.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 52 of 1118

Re: FW: Executing Broker Agreement

Sender	sara.shackleton@enron.com
Recipients	[stephanie.panus@enron.com]
File	shackleton-s/sent/5470.

no

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Stephanie Panus@ENRON 02/02/2001 03:32 PM

To: Cheryl Nelson/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT cc: Samantha Boyd/NA/Enron@Enron Subject: FW: Executing Broker Agreement

Does anyone have the file Jason sent over for Raymond James? It should have his comments to the Agreement so that I can compare it with the attached from Raymond James. ----- Forwarded by Stephanie Panus/NA/Enron on 02/02/2001 03:30 PM ----- From: Cheryl Nelson on 02/01/2001 04:34 PM Sent by: Cheryl Nelson To: stephanie.panus@enron.com cc:

Subject: FW: Executing Broker Agreement

Stephanie, can you print this out and see were we are so that we can get this one out of the door by Monday? Let me know. ---- Forwarded by Cheryl Nelson/NA/Enron on 02/01/2001 04:34 PM ----

Sara Shackleton@ECT 02/01/2001 03:17 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron Subject: FW: Executing Broker Agreement

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ---- Forwarded by Sara Shackleton/HOU/ECT on 02/01/2001 02:52 PM ----

"Peters, Jason" <jasonpeters@akllp.com> 02/01/2001 08:25 AM

To: <sara.shackleton@enron.com> cc: Subject: FW: Executing Broker Agreement

FYI

-----Original Message-----

From: Debbie Hawke [mailto:DHawke@Legal.RJF.com] Sent: Thursday, February 01, 2001 8:11 AM To: Peters, Jason Cc: Paul Matecki Subject: Executing Broker Agreement

THIS COMMUNICATION IS PROTECTED BY THE ATTORNEY-CLIENT AND WORK PRODUCT PRIVILEGES. IT MAY NOT BE DISCLOSED OR FORWARDED TO ANY OTHER PARTY WITHOUT THE PRIOR AUTHORIZATION OF THE SENDER ****

Dear Mr. Peters:

On January 8 the Executing Broker Agreement was forwarded to you via e-mail. Paul Matecki requested that I contact you to see when we might expect back the executed document.

Thank you very much for your assistance.

Debbie Hawke Legal Department (727) 573-3800 Ext. 15185

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-----Original Message----- From: Debbie Hawke Sent: Monday, January 08, 2001 11:33 AM To: 'jpeters@akllp.com' Subject: Executing Broker Agreement THIS COMMUNICATION IS PROTECTED BY THE ATTORNEY-CLIENT AND WORK PRODUCT

PRIVILEGES. IT MAY NOT BE DISCLOSED OR FORWARDED TO ANY OTHER PARTY WITHOUT THE PRIOR AUTHORIZATION OF THE SENDER **** Dear Mr. Peters: Attached is an Executing Broker Agreement from Paul Matecki. I believe

all the changes requested have been made. <<Executing Broker Agreement.doc>> Debbie Hawke Legal Department (727) 573-3800 Ext. 15185 **** This electronic message and all contents contain information from the Legal Department of Raymond

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and

destroy the original message and all copies.

- Executing Broker Agreement.doc

Message 53 of 1118

Re: Carastar Industries, Inc. ("CP") ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['robert.bruce@enron.com', 'Sara.Shackleton@Enron.com']
File	shackleton-s/sent/5480.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/05/2001 12:11 PM

Paul Radous@ENRON 02/05/2001 12:02 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Carastar Industries, Inc. ("CP") ISDA Master Agreement

Sara,

I didn't save the attached before forwarding it to you. So you may have still gotten the old amount. In any event, here is the sheet.

----- Forwarded by Paul Radous/Corp/Enron on 02/05/2001

12:00 PM -----

From: Paul Radous 02/05/2001 09:47 AM

To: John Fortunato/NA/Enron@Enron cc: Sara.Shackleton@Enron.com

Subject: Re: Carastar Industries, Inc. ("CP") ISDA Master Agreement

I have spoken with Matthew Carnwath. I have explained the meanings of the various thresholds. Sara, it appears that I made an error in calculating the cross default threshold for the c/p. Please raise it from \$10MM to \$15MM in the executable version. For your reference, I have enclosed another credit worksheet incorporating that change. Otherwise, there appear to be no remaining points of disagreement involving Credit.

John Fortunato 02/02/2001 11:01 AM To: Paul.Radous@Enron.com cc: Sara.Shackleton@Enron.com

Subject: Re: Carastar Industries, Inc. ("CP") ISDA Master Agreement

Paul:

I will have Mathew Carnwath contact you early next week. Mathew is the controller at Caruastar's large Rittman Ohio mill and has been directed by the CFO (Lee Thrash) to work out these details. Mathew is only the messenger, but is in contact with the Caruastar attorney's on these issues.(FYI, he can be reached at 330-927-7244 or via e-mail, Mathew.Carnwath@Caruastar.com).

Thanks for the help

John ----- Forwarded by John Fortunato/NA/Enron on 02/02/2001 10:50 AM ----- From: Sara Shackleton@ECT on 02/02/2001 10:28 AM To: John Fortunato/NA/Enron@Enron cc: Stephanie Panus/NA/Enron@Enron
Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

John: Please have Caraustar call Paul Radous about the cross default issue. Legal will wait to hear back from Paul after his discussion with your counterparty.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 10:25 AM -----

Paul Radous@ENRON 02/02/2001 10:09 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

We are ok with reciprocal website financials. Please have the counterparty call me to discuss the cross default threshold. We use a widely accepted standard in the industry, which is 2% of total debt, rounded. In fact, by this standard, Enron has set it's own threshold too low.

From: Sara Shackleton@ECT on 02/02/2001 09:04 AM To: Paul Radous/Corp/Enron@ENRON cc: John Fortunato/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron

Subject: Caraustar Industries, Inc. ("CP") ISDA Master Agreement

Paul:

John Fortunato has advised me that CP has only three (3) issues with the draft which we delivered in November, 2000. The credit issues are:

- (1) CP financials available online - we'll need their website address
- (2) CP Threshold for cross default is too low and wish a "higher number" but have not given John any indication of what they want

Please let John and Stephanie know the outcome so that we can prepare executable docs. Thanks.

P.S. The legal issue was governing law, Texas or NY. CP doesn't care but needs confirmation and possibly explanation.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 54 of 1118

RE: ISDA Schedule/Paragraph 13

Sender	yyaish@exchange.ml.com
Recipients	['sara.shackleton@enron.com', 'Tracy.Ngo@enron.com']
File	shackleton-s/notes_inbox/2522.

I reviewed the comments, we're close to signing. I need to speak to our confirms dept and to credit regarding the last two points (we may craft some language on the assignment that makes u more comfortable). As for calculation agent, we can probably live with it, i'll confirm and get back to you, hopefully today.

In addition, I am assuming that you simply accepted the changes and worked from there, or do I need to review the entire contract to compare it to the previous version (as a lawyer, my conscience will probably make do it anyway, but just checking).

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Thursday, April 12, 2001 12:26 PM To: YYaish@exchange.ml.com Subject: RE: ISDA Schedule/Paragraph 13

Yair:

It's a good thing you didn't try to get back to me! Sorry.

(See attached file: AlleghenyCPformacceptR1.DOC)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> <YYaish@exchange.ml.com> Subject: RE: ISDA Schedule/Paragraph 13

04/12/2001 10:16 AM

Sara, sorry i didn't get back to you yesterday, I was out sick. I didn't notice anything attached, did u send a subsequent e-mail?

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, April 11, 2001 4:01 PM To: YYaish@exchange.ml.com Cc: Tracy.Ngo@enron.com Subject: RE: ISDA Schedule/Paragraph 13 Importance: High

Yair:

Attached is my redline. Call me so that we can discuss the remaining issues, including:

- (1) Calculation Agent. We believe that the existing dispute mechanism is adequate.
- (2) Procedures for Entering into Transactions. There is no procedure for dual confirms. This is too confusing.
- (3) Transfer. We cannot agree to your assignment provision as it is too subjective.

The other changes were not substantive.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> <YYaish@exchange.ml.com> Subject: RE: ISDA Schedule/Paragraph 13

04/10/2001 07:46 AM

Sara, any thoughts on my comments ISDA I sent out last week?

-----Original Message-----

From: Yaish, Yair (OGC) Sent: Thursday, April 05, 2001 6:19 PM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Schedule/Paragraph 13

Sara, I have good news, I think we are very close to executing this baby.

I am attaching comments to the ISDA. They reflect comments by our outside counsel which highlight the differences between this contract and the side letter/ML ISDA. They are not much. I have also made some changes directly on their draft where I either concurred with Enron or needed to make some of my own changes. Pls review and let me know what you think.

I will be leaving the office soon, so if we can wrap it up tomorrow that would be great (I'm out Monday for Passover).

Yair Yaish Director and Senior Counsel Allegheny Energy Global Markets, LLC 212-236-7346

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, March 30, 2001 4:10 PM To: yyaish@exchange.ml.com Subject: ISDA Schedule/Paragraph 13

Yair:

Attached is a blacklined (against the Enron North America Corp. draft of 3/15/01) Schedule and Paragraph 13 to the ISDA Credit Support Annex. I have tried to incorporate the essence of the March 19, 2001 "swap side letter agreement." Please call me to discuss as it would be nice to finalize by April 6. Thanks.

(See attached file: 098a Blackline ctr (Allegheny Energy Supply).doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 55 of 1118

Re: Fax Number

Sender	kaye.ellis@enron.com
Recipients	['marlene.brady@kmz.com']
File	shackleton-s/all_documents/1639.

Marlene,

I am Sara Shackleton's assistant. The contact information you have for Sara is partially correct. The email address you have is correct but she has an additional address if it is easier to remember. It is Sara.Shackleton@enron.com.

The following are the correct mailing addresses:

Enron North America Corp. 1400 Smith Street Houston, TX 77002-7361

Dir: 713-853-5620 Fax: 713-646-3490

P.O. Box 1188 Houston, TX 77251-1188

If you need any additional information, my email address is Kaye.Ellis@enron.com

Regards,

Kaye

Marlene.Brady@kmz.com on 04/06/2000 11:37:22 AM To: sshackl@enron.com cc: Subject: Fax Number

I am Robert Aicher's secretary. I am updating his rolodex regarding the Loan and Security Agreement among ABN Bank, ABN and ENA. The fax I have is slightly blurred, so I apologize; please confirm the following:

Sara Shackleton sshackl@enron.com Senior Counsel Enron North America Corp. 1400 Smith Street Houston, TX 77002-7661

Gen: 713-853-6161 Dir: 713-853-6620 Fax: 713-646-8490 (??)

PO Box 1188 Houston, TX 77251-1188

Message 56 of 1118

Re: Boeing

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'john.malowney@enron.com']
File	shackleton-s/all_documents/10341.

John: If Stephanie was unable to send today, she (or I) will do it in the a.m. Unfortunately, she is the only paralegal in the office right now. Thanks for your patience.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

John Malowney 04/04/2001 04:09 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Boeing

Please e-mail it to: Michele Giusiana (206) 544-3198 @ michele.a.giusiana@boeing.com and Al Warman (206) 544-7429 @ allan.p.warman@boeing.com

I appreciate your efforts. John

From: Sara Shackleton on 04/04/2001 02:00 PM CDT To: John Malowney/HOU/ECT@ECT cc: Subject: Re: Boeing

I'm reviewing the draft now. Who do we send this draft to? Do we have an email address? Let me know.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

John Malowney 04/04/2001 11:40 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Boeing

Sara, any progress on providing Boeing with the ISDA they requested ?? John

Message 57 of 1118

RE: repo agreement

Sender	sara.shackleton@enron.com
Recipients	['marcelo_cosma@ml.com']
File	shackleton-s/all_documents/10915.

Thank you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma, Marcelo (Toronto-BCE)" <Marcelo_Cosma@ml.com> 05/01/2001 01:46 PM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: repo agreement

Sara:

Apologies for the delay. The changes in your previous email are fine. If there are no further issues, I will arrange for execution copies.

Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Monday, April 30, 2001 6:57 PM To: Marcelo_Cosma@ml.com Subject: repo agreement

Marcelo:

When we last spoke on April 3, you told me that the blacklined agreement would be sent in the next few days. Can you please provide me with an update? I would like to finalize/execute before May 2 when I will be on vacation.

Please advise. Thank you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 58 of 1118

Re: FPL Energy Power Marketing Inc./Enron North America Corp.

Sender	sara.shackleton@enron.com
Recipients	['russell.diamond@enron.com']
File	shackleton-s/all_documents/8689.

Thanks, Russell. That was precisely the answer I was looking for. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Russell Diamond 01/10/2001 10:09 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: FPL Energy Power Marketing Inc./Enron North America Corp.

Sara,

I mentioned this ISDA to Tanya and before we begin negotiations, she wants to understand their reasoning for this ISDA because of their other trading entities. I will call Serge and then respond back to you.

Thanks Russell

From: Sara Shackleton on 01/09/2001 03:22 PM To: Russell Diamond/HOU/ECT@ECT cc: Subject: FPL Energy Power Marketing Inc./Enron North America Corp.

And there's more!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/09/2001 03:21 PM -----

"Serge Martin" <Sgm@steelhector.com> 01/09/2001 03:15 PM

To: Sara.Shackleton@enron.com cc: Subject: FPL Energy Power Marketing Inc./Enron North America Corp.

Sara: As promised, enclosed is a red-line of the FPL Energy Power Marketing Inc./Enron North America Corp. drafts vs. the final executed Florida Power & Light Co./Enron North America Corp. agreements. Regards, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 phone (305) 577-7001 fax

- 641009_1.DOC

Message 59 of 1118

Repo comments

Sender	sara.shackleton@enron.com
Recipients	['marcelo_cosma@ml.com']
File	shackleton-s/all_documents/9414.

Marcelo:

I have no further comments. Will you please send the final blackline. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 04:11 PM -----

Sara Shackleton 02/23/2001 10:34 AM

To: Marcelo_Cosma@ml.com cc: Subject: Repo comments

Marcelo:

We need to eliminate Appendix B altogether. We have previously agreed to eliminate substitution and FAS 125 does not require substitution. I have only one more issue to resolve.

Will you revise again?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 10:29 AM -----

Sara Shackleton 02/22/2001 01:48 PM

To: Marcelo_Cosma@ml.com cc: Subject: Repo comments

Marcelo:

Attached are my comments to your initial draft of Appendix C to the Canadian form of repo agreement. Please note the following:

- (1) You attached "Annex II" to the end of Appendix C. That annex came from the US repo with Merrill. The information should actually be incorporated into "Appendix A" of your repo agreement.
- (2) I am waiting to hear internally regarding substitution and a default issue.
- (3) Please let me know if we have any issues on the Appendix C (and add a reference to Appendix C at the end of your printed form).

We should be ready to execute shortly.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 60 of 1118

RE: BNP Netting Agreement

Sender	alice.wright@enron.com
Recipients	['sara.shackleton@enron.com', 'chip.schneider@enron.com', 'harlan.murphy@enron.com']
File	shackleton-s/inbox/1133.

EB 3824 is reserved from 2:00 p.m. to 3:00 p.m. Central

Alice Wright Enron Wholesale Services - Legal 1400 Smith St., EB3809A Houston, Texas 77002 Tel: 713-853-5438 Fax: 713-646-3491 alice.wright@enron.com

-----Original Message-----

From: Murphy, Harlan Sent: Monday, November 19, 2001 10:21 AM To: Schneider, Chip; Shackleton, Sara Cc: Wright, Alice Subject: FW: BNP Netting Agreement

I'll get a conference room.

Harlan E. Murphy Enron Wholesale Services - Legal 1400 Smith Street, EB 3811 Houston, Texas 77002 Tel: 713.345.2679 Fax: 713.646.3490 E-mail: Harlan.Murphy@Enron.com

-----Original Message-----

From: "Lech Kalembka" <Lech.Kalembka@cwt.com>@ENRON Sent: Monday, November 19, 2001 10:19 AM To: drosen@cgsh.com Cc: Murphy, Harlan Subject: BNP Netting Agreement

We are available for a call at 3 PM EST. Please let us know if this works for you and your client. Thanks.

Lech Kalembka Cadwalader, Wickersham & Taft 100 Maiden Lane New York, NY 10038 Tel.: (212) 504-6918 Fax: (212) 504-6666 E-mail: lech.kalembka@cwt.com

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Message 61 of 1118

Re: WTI-Brent trades

Sender	sara.shackleton@enron.com
Recipients	['trena.mcfarland@enron.com']
File	shackleton-s/sent/5586.

Trena: attached is an email from Joe Hunter which has some of your answers. You may want to chat with Shifali Sharma (I don't know her but will be glad to call). My guess is that many of the crude deals are brokered (maybe that's why the deals originate in Houston). I'm also forwarding to you Joe's message about traders.

Please call me if we need to pursue further. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/14/2001 06:56 PM

Larry Joe Hunter 02/12/2001 01:40 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: WTI-Brent trades

Sara,

We're waiting on Shifali Sharma for this info. She is our Risk person for the Crude Desk. There are going to be quite a few Traders and Books. All deals that are Financial will be booked as ENA (RMT if internal). I'm not sure if that's what your looking for as far as question 3 below.

We'll forward the other info along as soon as we get it.

Joe

From: Sara Shackleton on 02/12/2001 11:19 AM To: Larry Joe Hunter/HOU/ECT@ECT cc: Subject: WTI-Brent trades

Joe: Can you provide me with this information please? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/12/2001 11:19 AM -----

Sara Shackleton 02/08/2001 09:57 AM

To: Larry Joe Hunter/HOU/ECT cc: Subject: WTI-Brent trades

Joe: A few questions:

1. Who trades this? 2. What book does it sit in? 3. What legal entity is that book?

Please let me know as we are comparing this to another product. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 62 of 1118

Re: Intercompany counterparties

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent/5620.

Susan: Don't we always include "change of ownership"? Has credit ever requested anything different?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/20/2001 09:04 AM -----

Susan Bailey 02/20/2001 09:01 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Intercompany counterparties

Sara,

As you know I am the paralegal incharge of RMT masters. I will prepare a master agreement for each of the Enron affiliates listed below. I will submit such documents to you for review.

Before preparing such masters, please advise if Credit needs to advise us of any creit matters.

I look forward to your response.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Sara Shackleton 02/20/2001 08:45 AM

To: Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Laurel Adams/HOU/ECT@ECT Subject: Intercompany counterparties

Please assign to the list of new masters for preparation and execution.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/20/2001 08:43 AM -----

Laurel Adams 02/19/2001 09:10 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Intercompany counterparties

Sara,

Below is a list (hopefully comprehensive) of intercompany counterparties we trade with, but do not have an RMT master agreement in place with:

Enron Metals Limited Enron Metals Recycling Enron Netherlands Holdings BV Enron Development Funding limited Enron Metals & Commodity Limited

LEt me know if you need any more info.

Recycling & Metals & Commodity Limited have very little trade activity.

Message 63 of 1118

MEGA Assignment

Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/all_documents/11520.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/07/2001 06:11 PM -----

Susan Bailey 06/06/2001 01:26 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Subject: MEGA Assignment

Ladies,

I do not which of you will be handling the Merchant Energy Group of the Americas ("MEGA") consents for financial trading.

So I am forwarding Carol's message to each of you. As mentioned in my email of 6/5, Carol is handling the EPMI consents with MEGA.

Thanks.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 06/06/2001 01:23 PM -----

Carol St Clair 06/06/2001 11:40 AM

To: Rhonda L Denton/HOU/ECT@ECT cc: Christian Yoder/Enron@EnronXGate, Susan Bailey/HOU/ECT@ECT, Tracy Ngo/Enron@EnronXGate, Wendy Conwell/Enron@EnronXGate Subject: MEGA Assignment

Rhonda: Enclosed is a new revised draft of the MEGA Consent marked against the draft that they sent to us. Here is what we have decided to do:

1. As a condition to our execution of this Consent, we will execute an amendment to the existing Master with Morgan to (a) insert collateral provisions and (b) clean up some of the defined terms in the MEGA confirms. I will draft the amendment and Christian will help you and Melissa develop the language for the amendment that deals with the confirm clean-up.
2. We need to know from MEGA and Morgan what the transfer effective date is that establishes the cutoff date for these trades as between ourselves and each of Morgan and MEGA. My revised draft of the Consent makes it clearer how this cutoff date works.
3. We need a contact from Morgan that we can send the form of amendment to.

Call me if you have any questions.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 64 of 1118

Re: 1991 ISDA Definitions and 1998 Supplement

Sender	sara.shackleton@enron.com
Recipients	['bill.bowes@enron.com', 'taffy.milligan@enron.com']
File	shackleton-s/all_documents/8770.

Taffy: Can you please send copies of ALL THREE sets of ISDA definitions to Bill Bowes? Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/22/2001 02:28 PM -----

Bill Bowes@ENRON 01/22/2001 02:12 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: 1991 ISDA Definitions and 1998 Supplement

Sara,

I was interested in the 1991 and 1998 definitions because they referenced by name in the Rabo-RBC TRS Confirmation (Cerberus restructuring). I didn't realize there was a newer version of the definitions. Unless that Confirmation is scheduled to be modified to refer solely to the 2000 definitions, I'd like to get a copy of all 3 if possible.

Thanks, Bill

From: Sara Shackleton@ECT on 01/22/2001 02:12 PM To: Bill Bowes/NA/Enron@ENRON cc:

Subject: Re: 1991 ISDA Definitions and 1998 Supplement

Bill: Is there a reason why you don't want the ISDA 2000 Definitions/Annex A (which supercede the 1991 and 1998 Definitions)? Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Bill Bowes@ENRON 01/22/2001 12:11 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: 1991 ISDA Definitions and 1998 Supplement

Not yet. Thanks for checking.

Regards, Bill

From: Sara Shackleton@ECT on 01/22/2001 08:58 AM To: Bill Bowes/NA/Enron@ENRON cc:

Subject: Re: 1991 ISDA Definitions and 1998 Supplement

Have you been helped yet? Please let me know. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Bill Bowes@ENRON 01/18/2001 04:09 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: 1991 ISDA Definitions and 1998 Supplement

Sara,

Brent suggested you might have copies of the above-referenced documents that you could e-mail or interoffice to me (EB 1768). If not, any suggestions regarding where I might get my hands on them?

Thanks, Bill

Message 65 of 1118

Enron/Corrugated Services

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/all_documents/9012.

Neel:

My apologies for the late response. Carol St. Clair will be handling Corrugated and she will call or email you to schedule a call. Carol can be reached at 713-853-3989. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/07/2001 01:13 PM -----

Neel.Lemon@bakerbotts.com 02/06/2001 07:29 PM

To: Sara.Shackleton@enron.com cc: Rebecca.Williams@BakerBotts.com, ffelvey@csipaper.com Subject: Enron/Corrugated Services

Sara:

Any chance you are available at 1:30pm on Wednesday for a call regarding the Enron/Corrugated Services ISDA? If that time will not work for you, please suggest another time tomorrow afternoon that would.

Also, you will be receiving on Thursday morning a copy of some of the more relevant documentation relating to the June 2000 drop down of the Corrugated Services, Inc. operating assets and liabilities (including the original Enron/Corrugated Services, Inc. ISDA) into a newly formed limited partnership known as Corrugated Services, L.P. In connection with that transaction, Corrugated Services, Inc. changed its name to CSI Holdings, Inc. CSI Holdings, Inc. also formed at that time and now owns 100% of CSI GP, Inc., which entity serves as the general partner of Corrugated Services, L.P. All of this was done to create a more franchise tax efficient operating and ownership structure.

Based on the foregoing, we believe that it will be necessary to redocument the original agreement either through an amendment thereto or the cancellation thereof and the creation of a new LP/Enron agreement.

We plan on discussing the foregoing during our call tomorrow afternoon.

Thanks.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

The information contained in this email is confidential and may be subject to the attorney-client privilege. As a result, any unauthorized use or transmission is prohibited. If you are not the intended addressee, please delete this email and notify the sender.

Message 66 of 1118

RE: guaranties

Sender	sara.shackleton@enron.com
Recipients	['edward.sacks@enron.com', 'Edward.Sacks@enron.com']
File	shackleton-s/all_documents/10510.

Ed: In case you are wondering about Cargill-Alliant.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/12/2001 03:01 PM -----

Mara_Alexander@cargill.com 04/12/2001 12:15 PM

To: Sara.Shackleton@enron.com cc: Subject: RE: guaranties

Dear Sara,

Thanks for your agreement to the Set-Off language. Do you have some insights I can pass on to our attorney, who was wondering about the reason behind the language in Part 5(B), the second Set-Off paragraph?

I had forwarded your comments to our Credit Manager, Andrzej Kabarowski, who works with our Corporate Treasury on the Cargill guarantees, but have yet to receive a response. I have, however, learned that our Corporate Treasury has begun implementing a revised guarantee format (and I am told they are absolutely inflexible about the new language). We're trying to ascertain whether guarantees are also changing for Cargill-Alliant, which is a joint venture rather than a subsidiary. I will advise as soon as I know something definitive in this regard.

Unfortunately, it looks as though this Agreement will need to remain in the "pending" stack for a little while longer.

Regards, Mara Alexander Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Monday, April 09, 2001 5:20 PM To: alexander, mara /xtwn Cc: Edward.Sacks@enron.com Subject: guaranties

Mara:

Attached are blacklined versions based upon Cargill's comments to both the Enron Corp. and Cargill, Incorporated which I received from Ed Sacks. Please note that I added a comma to guarantor's name in the Cargill, Incorporated guaranty since that is how we executed the Cargill, Incorporated ISDA Master Agreement.

Also, your change to the setoff language is fine.

Let's try to agree to everything this week. Thanks.

(See attached file: ENEGuarantyCargillR1.doc)(See attached file: CargillguarantorR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 67 of 1118

Re: Allegheny sample confirmation draft

Sender	janie.aguayo@enron.com
Recipients	['sara.shackleton@enron.com', 'Melissa Ann Murphy/HOU/ECT@ECT']
File	shackleton-s/notes_inbox/2525.

Sara,

Thank you for your response, unfortunately the document attached was prepared for a power deal versus a gas deal. Please let me know if you would like me to update the appropriate language or if you rather send me an updated template. i.e. (watts to mmbtu.)

Please advise. Thank you - Janie

From: Sara Shackleton on 04/11/2001 10:55 AM To: Janie Aguayo/HOU/ECT@ECT cc: Melissa Ann Murphy/HOU/ECT@ECT Subject: Re: Allegheny sample confirmation draft

Janie: I prepared a format last week for Allegheny for use until the ISDA Master Agreement is executed. Let me know if you have any questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/11/2001 10:53 AM -----

Sara Shackleton 04/05/2001 02:46 PM

To: Kimberly Hundl/Corp/Enron@ENRON cc: Subject: Re: Allegheny sample confirmation draft

Kim: It looks fine, and, you should use this format until the ISDA is executed. We spoke with Allegheny this morning and they promise to execute next week.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kimberly Hundl@ENRON 04/05/2001 12:45 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Allegheny sample confirmation draft

Hi Sara, Attached are the changes you requested. Shall I begin confirming all Allegheny deals on this form until the ISDA is complete?

Thanks for your help! Kimberly Hundl x31647

From: Sara Shackleton@ECT on 04/04/2001 06:58 PM To: Kimberly Hundl/Corp/Enron@ENRON cc:

Subject: Re: Allegheny sample confirmation draft

Kim:

Attached are my comments.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kimberly Hundl@ENRON 04/04/2001 10:43 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Melissa Ann Murphy/HOU/ECT@ECT Subject: Allegheny sample confirmation draft

Hi Sara, Ok, I think I have properly referenced the side letter in this confirmation. Please let me know what changes should be made.

P.S. I am leaving at noon today, so if I haven't heard from you by then, I will give you a call tomorrow morning. Thanks!
Kim x31647

Message 68 of 1118

RE: guaranties	
Sender	sara.shackleton@enron.com
Recipients	['mara_alexander@cargill.com', 'edward.sacks@enron.com', 'wendy.conwell@enron.com']
File	shackleton-s/all_documents/10633.

Mara:

(1) The second setoff paragraph is intended to allow the Non-defaulting party to withhold payment if is not paid amounts that, for whatever reason, do not qualify for setoff.

(2) My credit group is calling to inquire about the delay. Can you elaborate further or better yet, ask Andrzej to contact Ed Sacks? Thanks.

(3) Can we finalize the agreement even though we have not concluded the guaranties?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Mara_Alexander@cargill.com 04/12/2001 12:15 PM

To: Sara.Shackleton@enron.com cc: Subject: RE: guaranties

Dear Sara,

Thanks for your agreement to the Set-Off language. Do you have some insights I can pass on to our attorney, who was wondering about the reason behind the language in Part 5(B), the second Set-Off paragraph?

I had forwarded your comments to our Credit Manager, Andrzej Kabarowski, who works with our Corporate Treasury on the Cargill guaranties, but have yet to receive a response. I have, however, learned that our Corporate Treasury has begun implementing a revised guarantee format (and I am told they are absolutely inflexible about the new language). We're trying to ascertain whether guarantees are also changing for Cargill-Alliant, which is a joint venture rather than a subsidiary. I will advise as soon as I know something definitive in this regard.

Unfortunately, it looks as though this Agreement will need to remain in the "pending" stack for a little while longer.

Regards, Mara Alexander Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail:

Mara_Alexander@Cargill.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Monday, April 09, 2001 5:20 PM To: alexander, mara /xtwn Cc: Edward.Sacks@enron.com Subject: guaranties

Mara:

Attached are blacklined versions based upon Cargill's comments to both the Enron Corp. and Cargill, Incorporated which I received from Ed Sacks. Please note that I added a comma to guarantor's name in the Cargill, Incorporated guaranty since that is how we executed the Cargill, Incorporated ISDA Master Agreement.

Also, your change to the setoff language is fine.

Let's try to agree to everything this week. Thanks.

(See attached file: ENEguarantyCargillR1.doc)(See attached file: CargillguarantorR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 69 of 1118

Re: Repo agreements

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/sent/5476.

Sam: Please let me know when you can review the repo situation. Gary is asking for more repos. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/05/2001 10:15 AM -----

Sara Shackleton 01/23/2001 10:25 AM

To: Samantha Boyd/NA/Enron cc: Subject: Re: Repo agreements

Sam: Would you please verify for me that Lotus Notes is accurate (i.e., the information is correct) with respect to Repo agreements and that we can locate all files. Be sure that global contracts has originals. Let me know when you will have this done. I will be negotiating some additional agreements. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/23/2001 10:22 AM -----

Samantha Boyd@ENRON 01/17/2001 12:39 PM

To: Laurel Adams/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: Re: Repo agreements

My review of our file with Repo Agreements shows that we have agreements with the following Counterparties:

1. Chase Securities Inc. 2. BZW Securities Limited 3. Goldman Sachs & Co. 4. Goldman Sachs Canada 5. Goldman Sachs International 6. Credit Suisse First Boston Corporation 7. HBC Greenwell 8. RBC Dominion Securities Inc. 9. The Royal Bank of Scotland PLC

Sara, is out of the office on Jury Duty. I will follow-up with her on the status of the agreement with WDR when she return later this week.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Laurel Adams@ECT 01/17/2001 10:36 AM

To: Stephanie Panus/NA/Enron@Enron, Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron cc: Subject: Repo agreements

Ellen Su, bond trader in Gary Hickerson's world, would like to know with whom we have repo agreements. I'm pretty sure we have them with Goldman Sachs & Co. and with BMO/Nesbitt Burns. Sara Shackleton has been working on getting an agreement signed with Warburg Dillon Read, but it appears that at present this document is not signed.

Could you please advise if we have signed repo docs with any other counterparties? Could you also update me on the status of the WDR agreement?

Thank you very much for your help.

Message 70 of 1118

RE: ISDA Master Agreement

Sender	mara_alexander@cargill.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9742.

Dear Sara,

I have been advised that a response regarding the Cargill, Inc. guarantee of Cargill-Alliant, LLC was returned with comments to Ed Sachs early last week. Are you aware if the language was found acceptable?

Also, regarding the modification we requested to the Set-Off language of the most recent draft, can you please advise if we've come to agreement on these? (What was the reason behind adding the second paragraph of the Set-Off provisions?)

Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Alexander, Mara /xtwn Sent: Tuesday, February 27, 2001 7:38 AM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Master Agreement

Sara,

My Credit Manager advises that he needs to consult with one of our Corporate Treasury's attorneys on the Cargill, Inc. guarantee, but that attorney will be out all this week. Hopefully I can get a response to you on the guarantee early next week.

Meanwhile, attached please find one small change to Set-Off language from the latest draft. Can you please explain the reason behind adding the second paragraph -- is this bankruptcy related?

Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Alexander, Mara /xtwn Sent: Monday, February 26, 2001 5:09 PM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Master Agreement

Sara,

I'm sorry, but I'm still awaiting word on the Cargill, Inc. guarantee of Cargill-Alliant, which was in the hands of our Credit Manager for a final once-over. (Unless they've by-passed me? Have you seen a revised copy of this guarantee?)

I also need that same Credit Mgr. to give his final nod of approval to the Set-Off language you'd put into the last draft. Our Legal only had on a couple of minor comments on it.

Thanks for the follow-up! I intend to press hard this week for a final response so we can at last get this wrapped up.

Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Monday, February 26, 2001 4:45 PM To: alexander, mara /xtwn Subject: ISDA Master Agreement

Mara: Are we done? I don't think we have heard from you about the master? Can we go ahead and have the guaranty executed? I don't think we have any outstanding issues.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 71 of 1118

Re: "ECT Europe Accounting" as ENA hedge counterparty

Sender	sara.shackleton@enron.com
Recipients	['Laurel Adams/HOU/ECT@ECT', 'jeff.blumenthal@enron.com']
File	shackleton-s/sent/5330.

Jeff: I'll call you later. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/18/2001 09:33 AM -----

Peter Russell@ENRON 01/17/2001 09:14 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: "ECT Europe Accounting" as ENA hedge counterparty

Sara

I am not sure I understand the question. What do you mean by RMT?

Here is an explanation of what happened here in London:

Due to cash flows originated by tax in London before year end, some Enron Europe companies had FX positions that needed to be hedged. However, due to tax reasons we could not hedge the FX positions in the entities in which they arose because the hedge gains or losses would be subject to the 'sub-part F' income rules (and liable to double tax).

Tax therefore suggested that we transact the hedges in the name of 'ECT Europe Accounting Entity' (company 912), where they would be consolidated into Enron Europe for management accounting but would be within a US legal entity and therefore not subject to double tax. My understanding is that 912 is a branch of ENA and therefore there is a hedge transacted between ENA 912 and ENA.

We have been trying to identify the hedges within company 912 but cannot see them there. Can you help with this?

Regards

Peter

From: Sara Shackleton@ECT on 17/01/2001 09:00 CST To: Jeff Blumenthal/HOU/ECT@ECT, Peter Russell/EU/Enron@Enron cc: Laurel Adams/HOU/ECT@ECT

Subject: "ECT Europe Accounting" as ENA hedge counterparty

Jeff and Peter:

Has this question been resolved? Please let me hear from you. We need to make certain that these transactions are properly booked. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/17/2001 08:58 AM -----

Sara Shackleton 01/10/2001 09:50 AM

To: Jeff Blumenthal/HOU/ECT@ECT cc: Subject: "ECT Europe Accounting" as ENA hedge counterparty

Jeff: Do you have an answer yet? Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/10/2001 09:49 AM -----

Sara Shackleton 01/03/2001 01:08 PM

To: Jeff Blumenthal/HOU/ECT cc: Subject: "ECT Europe Accounting" as ENA hedge counterparty

Jeff:

In connection with the instructions given by London to Shane Dallmann, note that the instruction for ENA to transact the Euro hedges was given by Peter Russell. Please advise as to whether these should be RMT transactions and which Enron affiliate should be involved. Thanks. Sara

Message 72 of 1118

Re: Valentis/CD Holding: TWO HEDGE FUNDS

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/6139.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/25/2001 01:36 PM -----

Susan Bailey 04/25/2001 11:46 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Valentis/CD Holding: TWO HEDGE FUNDS

Sara,

Stephanie can help you regarding these ISDA requests.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Sara Shackleton 04/25/2001 11:41 AM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: Valentis/CD Holding: TWO HEDGE FUNDS

Susan: We need to prepare materials this afternoon on these two hedge funds. The credit is different but the FORMS will be identical. Please let me know who will handle and I can discuss with that person now! Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/25/2001 11:39 AM -----

Paul Radous/ENRON@enronXgate 04/19/2001 05:43 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Caroline Abramo/Corp/Enron@Enron Subject: Valentis

Here are the credit worksheets for Valentis (25% of the trade and Independent amount should be allocated here) and CD Holdings (75% allocated here). This will work for the ISDA, and I am hearing from Caroline that they are ok with posting this up front amount in cash. So, for purposes of the Deemed ISDA, we may as well include all of the credit provisions, but make the \$2MM a "Special Independent Amount" applicable to the counterparty, which may be increased by Enron up to \$5MM. This Special Independent Amount should be added to the Independent Amount as that term is used in the ISDA in order to give us the ability to demand more collateral at will with respect to the long term hedge. Given the fact that the c/p can post cash instead of LC's I see no reason for us to always have the Special Independent Amount in cash. That is, if we are \$2MM out of the money on the position, I do not have a problem returning their cash, so long as it is in increments of

the rounding amount.

So I think we should just go ahead and put credit into these Deemed ISDAs, and require that the failure of the parties to execute an ISDA within 60 days will constitute a termination event.

Caroline, again, the c/p will have to verbally agree to Loss instead of market quotation, to the special margining provisions with respect to this particular long term trade, etc. Let's discuss how this will work, since it is different from what I proposed on the phone.

Sara, after you have had a chance to look at these, give me a call so we can discuss.

Thanks. Paul

Message 73 of 1118

RE: Enron Credit Inc. ("ECI") consent

Sender	gail.shanley@gs.com
Recipients	['ted.leh@gs.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2406.

The consent looks ok from the GS&Co. side. I will check with GSI to see if they have any comments.

Gail

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Thursday, April 19, 2001 5:39 PM To: gail.shanley@gs.com Subject: RE: Enron Credit Inc. ("ECI") consent

Gail:

Is the attached Master Repurchase Agreement used by both GS&Co as well as GSI? It looks like both Enron companies (U.S and U.K.) will want repos and the U.S. company . What is the difference in the forms used by GS&Co and GSI?

Any word on the consent?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Shanley,

Gail" To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com>, <gail.shanley gail.shanley@gs.com @gs.com> cc: ted.leh@gs.com

Subject: RE: Enron Credit Inc. ("ECI") consent 04/17/2001

08:44 AM

Sara -

I will look at your consent document today. Attached please find the standard repo documentation used by Goldman.

Gail

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Tuesday, April 17, 2001 9:42 AM To: gail.shanley@gs.com Cc: ted.leh@gs.com Subject: Enron Credit Inc. ("ECI") consent

Gail:

The commercial team is pressuring for a fairly quick implementation of a repo agreement. If the consent which I sent yesterday is not satisfactory, please advise as soon as possible so that I can obtain a repo specific consent. Also, could you please submit repo documents to me for review.

I do not know who may have contacted you from the London group (Enron Credit Ltd.) but we can surely coordinate. That entity should have its own form of unanimous consent or resolution.

Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/17/2001 08:36 AM -----

Sara

Shackleton To: gail.shanley@gs.com

cc:

04/16/2001 Subject: Enron Credit Inc. ("ECI") consent 02:36 PM

Gail:

Attached is a form of ECI unanimous consent. Will you accept this for the purpose of signing a repo agreement and transacting thereunder? Please let me know.

Also, you can email repo documents to me.

Thanks.

(See attached file: Resolution - ECI.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

(See attached file: p4233104a.pdf) (See attached file: p4233104b.pdf)

Message 74 of 1118

RE: assignment of trade to Raptor vehicle

Sender	sara.shackleton@enron.com
Recipients	['Joel', 'carol.clair@enron.com', 'Ephross']
File	shackleton-s/all_documents/9506.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/28/2001 04:41 PM -----

Joel Ephross/ENRON@enronXgate 02/28/2001 09:15 AM

To: Mary Cook/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: George McKean/NA/Enron@Enron, Ron Baker/Corp/Enron@ENRON, Brenda L Funk/ENRON@enronXgate, Gordon McKillop/NA/Enron@ENRON, Lisa Mellencamp/HOU/ECT@ECT Subject: RE: assignment of trade to Raptor vehicle

I assume that what this e-mail relates to is the discussed "transfer" of the 2 LDC swaps from Raptor 2 to Raptor 4. Frankly, I do not know what it means to assign a swap from 1 of these vehicles to another vehicle. I think that in general the schedules to the ISDAs that each of the 2 sets of parties executed are the same, but what happens in the case of differences? My rather simplistic approach would be to terminate the existing swaps in Raptor 2 and execute new swaps at the same time and on the same terms in Raptor 4.

Unless anyone objects, I propose that we proceed along the lines outlined above, using the Raptor process documentation developed by Lisa and recently updated by Gordon.

We recently [like yesterday] received closing books on Raptor 3 and distributed those. If Anyone needs documentation on the other 3 structures, let us know....[Realizing that they are about to change due to the planned merger of Raptor 1, 2 and 4 into Mega-Raptor -- sounds like a bad Rug-Rats movie I recently had the misfortune of viewing doesn't it?] -----Original Message----- From: Cook, Mary Sent: Wednesday, February 28, 2001 8:29 AM To: Shackleton, Sara Cc: Ephross, Joel Subject: Re: assignment of trade to Raptor vehicle

No. I guess the first step is to know into which Raptor the swaps are moving and to get Joel to give us a closing book on that Raptor so we can get the correct parties etc. Attached is an assignment/assumption document I drafted for the VPP transaction which might be helpful (of course, it has a lot of inapplicable specifics) . We ought to also check with Joel about any provisions in the rest of the vehicle docs that may apply to an assignment. I would think that if all parties join and consent and provide no ED or TE under the ISDAs shall occur on the basis of the assignment that it would be clean from the ISDA point of view. Mary

<< File: assignment Brazos Pres 2.doc >>

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Sara Shackleton 02/28/2001 08:21 AM To: Mary Cook/HOU/ECT@ECT cc: Subject: assignment of trade to Raptor vehicle

Mary:

Do you have a form of "approved" assignment for transferring trades into the Raptor vehicle?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 75 of 1118

Enron NA Corp	
Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'Michael C Schneider@JPMORGAN', 'Charles A Wheeler@JPMORGAN']
File	shackleton-s/sent/5939.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/02/2001 09:30 AM -----

"Thomas P Alterson" <alterson_thomas@jpmorgan.com> 03/30/2001 03:00 PM

To: Sara.Shackleton@enron.com cc: "Kyle L Petersen" <petersen_kyle@jpmorgan.com>, "Corinne A Samon" <samon_corinne@jpmorgan.com>, "Michael C Schneider" <schneider_michael@jpmorgan.com> Subject: Enron NA Corp

Sara:

As per your negotiations with Corinne Samon, please find attached below both a black-lined copy of the negotiated Futures Account Agreement as well as a Clean copy. (See attached file: Enron Corp ... JPMorganFuturesBlklned033001.doc)(See attached file: Enron Corp ... JPMorganFuturesCLEAN033001.doc) Please execute and send back to me via facsimile & courier at your earliest convenience. Also, please be sure to send back all ancillary documentation that is required. (See my note to you on 01.05.01)

Regards, Tom Alterson

JP Morgan Futures Inc. 60 Wall Street, 41st Floor New York, NY 10260-0060 Tel. (212) 648-4315 Fax (212) 648-5347

Thomas P Alterson 01/05/2001 04:02 PM

To: sara.shackleton@enron.com cc: Michael C Schneider@JPMORGAN, Charles A Wheeler@JPMORGAN, di_vincenzo_glenn@jpmorgan.com Subject: JPMFI Futures Account Opening Documentation - Enron North America Corporation

Sara,

Please find attached below the documentation required for the opening of a futures account with JP Morgan Futures Inc.

Included are: (1) Futures Client Agreement (2) Risk Disclosures (3) Letter in Lieu (4) W-9 Tax Form

(See attached file: ENRON NA CORP Client Agreement.doc)(See attached file: Risk Disclosure Statement 12_05_00.doc)(See attached file: Letter in Lieu.doc)(See attached file: fw9.pdf)

In order to a open futures account with JP Morgan Futures Inc. ("JPMFI"), you must sign the attached Client Agreement, and as regulations require, check each appropriate Risk Disclosure acknowledgment box as well your preference of notification or immediate liquidation. Further, please complete and sign the W-9 form included above. You must also provide authorization for Enron North America Corporation to open a futures account with JPMFI by either completing the attached Letter in Lieu on your letterhead or by providing us with your own form of authorization. Please note: if you use your form of authorization it should include the names of the individual(s) authorized to sign the Client Agreement as well as those authorized to place orders for the account. Additionally, if there is an advisor relationship whereby an advisor is placing orders on behalf of Enron North America Corporation, please also provide this representation.

Please feel free to contact me with any questions or concerns.

Regards, Tom Alterson

JP Morgan Futures Inc. 60 Wall Street, 41st Floor New York, NY 10260-0060 Tel. (212) 648-4315 Fax (212) 648-5347

- Enron Corp ... JPMorganFuturesBlklnd033001.doc - Enron Corp ... JPMorganFuturesCLEAN033001.doc - ENRON NA CORP Client Agreement.doc - Risk Disclosure Statement 12_05_00.doc - Letter in Lieu.doc - fw9.pdf

Message 76 of 1118

Re: BEAR Guarantee letter

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'David A Wall/Risk Mgmt/LON/ECT@ECT', 'Jeff Kinneman/Enron@EnronXGate']
File	shackleton-s/all_documents/10101.

I am on top of it - I talked to him by phone today. (though my "eager beaver" battery is running on low [ha-ha])

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 03/26/2001 05:03 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: BEAR Guarantee letter

OK, Cheryl, you thought I was kidding about needing the guaranty! Can we request the new guaranty now?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/26/2001 05:02 PM -----

Tom Doukas@ENRON 03/26/2001 04:59 PM

To: Sara Shackleton/HOU/ECT@ECT cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Jeff Kinneman/Enron@EnronXGate@ECT, Richard Sage/LON/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Cheryl

Nelson/NA/Enron@Enron Subject: Re: BEAR Guarantee letter

Just wanted to follow up to see if we have a time frame as to when the letter will be fully executed.

Thanks,

Tom

From: Sara Shackleton@ECT on 03/22/2001 08:41 AM To: Tom Doukas/NA/Enron@ENRON cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Jeff Kinneman/Enron@EnronXGate, Richard Sage/LON/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron

Subject: Re: BEAR Guarantee letter

Here's a recap for everyone. Our original negotiation with Bear (for the Securities Loan Agreement) was in the name of ENA, and, ENA had an existing account agreement with Bear. However, Bear insisted that the account agreement was "too old" and that we negotiate a new agreement. I agreed on the condition that this not hold up execution of the Securities Loan Agreement. We have one or two final points remaining on the new account agreement which we'll execute for both ENA and Enron Credit Inc.. ("ECI"). We have the authorized trader list for ECI and are waiting for Richard to designate the new officer/director slate but we are prepared for execution by the existing officers in London. The assignment instrument will be very short for transferring the ECI book from ENA to ECI. It will take only a few days to replace the existing ENE guaranty for the Securities Loan Agreement.

Jeff and Sheila: Please verify that both ENA and ECI do not need the Securities Loan Agreement. I believe it is just ECI and we can transfer the existing agreement to ECI.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 03/21/2001 12:28 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Jeff Kinneman/Enron@EnronXGate, Sheila Glover/HOU/ECT@ECT, Richard Sage/LON/ECT@ECT, David A Wall/Risk Mgmt/LON/ECT@ECT Subject: BEAR Guarantee letter

Sara,

I just spoke with Russ Miron from Bear Sterans regarding our Guaranty to Reduce funding to 20% per side.

I had asked him about when they will be executing the agreement. He said that his lawyers are ready to sign but are under the impression that you have one remaining point to resolve and that this point is holding up the finalization of the agreement.

Is there an issue from our side? If not we should be able to get this execution taken care of immediately?

Thanks,

Tom 713-853-9074

Message 77 of 1118

Re: BEAR Guarantee letter

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'David A Wall/Risk Mgmt/LON/ECT@ECT', 'Jeff Kinneman/Enron@EnronXGate']
File	shackleton-s/all_documents/10033.

Yes, I mentioned the guaranty issues to her in the conference call this morning and she and i are going to resume talks on Monday. Thanx for your guidance.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 03/22/2001 11:11 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: BEAR Guarantee letter

Cheryl: You may want to mention to Anna (Bear) that ENA would like to transfer the Securities Loan Agreement to Enron Credit Inc., retrieve the ENE guaranty for ENA and have Enron Credit Inc. guaranteed under a new ENE guaranty.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/22/2001 11:09 AM -----

Sheila Glover 03/22/2001 10:59 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Richard Sage/LON/ECT@ECT Subject: Re: BEAR Guarantee letter

Sara, I am okay with the transfer of the Securities Loan Agreement from ENA to ECI. Shela

From: Sara Shackleton on 03/22/2001 08:41 AM CST To: Tom Doukas/NA/Enron@ENRON cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Jeff Kinneman/Enron@EnronXGate, Richard Sage/LON/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron Subject: Re: BEAR Guarantee letter

Here's a recap for everyone. Our original negotiation with Bear (for the Securities Loan Agreement) was in the name of ENA, and, ENA had an existing account agreement with Bear. However, Bear insisted that the account agreement was "too old" and that we negotiate a new agreement. I agreed on the condition that this not hold up execution of the Securities Loan Agreement. We have one or two final points remaining on the new account agreement which we'll execute for both ENA and Enron Credit Inc.. ("ECI"). We have the authorized trader list for ECI and are waiting for Richard to designate the new officer/director slate but we are prepared for execution by the existing officers in London. The assignment instrument will be very short for transferring the ECI book from ENA to ECI. It will take only a few days to replace the existing ENE guaranty for the Securities Loan Agreement.

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Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 03/21/2001 12:28 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Jeff Kinneman/Enron@EnronXGate, Sheila Glover/HOU/ECT@ECT, Richard Sage/LON/ECT@ECT, David A Wall/Risk Mgmt/LON/ECT@ECT Subject: BEAR Guarantee letter

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I had asked him about when they will be executing the agreement. He said that his lawyers are ready to sign but are under the impression that you have one remaining point to resolve and that this point is holding up the finalization of the agreement.

Is there an issue from our side? If not we should be able to get this execution taken care of immediately?

Thanks,

Tom 713-853-9074

Message 78 of 1118

Re: Enron Teeside Operating Limited ("ETOL")

Sender	sara.shackleton@enron.com
Recipients	['karolina.moran@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/sent/6288.

Karolina: Please call me in the a.m to discuss. (10:00 am Houston time would be ideal) Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Karolina Moran 05/24/2001 12:42 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Rod Nelson/LON/ECT@ECT Subject: Re: Enron Teeside Operating Limited ("ETOL")

Sara/Mary,

I very much apologise for taking some time with regards to a reply on the credit issues for the ISDA.

With regards to your question on whether ETOL is prohibited from entering into Swaps with other parties - I actually do not have the answer to that question so I cannot comment on that.

I have looked at the documents and I would like to in as much as possible replicate the terms we have with ETOL in the ECT ISDA. I cannot see any reason not to go with the same structure as we have in that ISDA. We will provide an Enron Corp guarantee in favour of ETOL as well as have a \$50M collateral threshold (like in the previos ISDA). I further assume that we should roll up any outstanding ISDA confirmations with this counterparty under this ISDA. With regards to the cap on the Enron guarantee - this is set as 10,000,000 for the previous ISDA. Again here I think we can go for the same amount.

Please give me a call if you have any questions and we can discuss,

Kind Regards,

karolina

From: Sara Shackleton on 17/05/2001 15:44 CDT To: Rod Nelson/LON/ECT@ECT, Karolina Moran/LON/ECT@ECT cc: Rhett Jackson/Enron@EnronXGate

Subject: Re: Enron Teeside Operating Limited ("ETOL")

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/17/2001 03:43 PM -----

Jorge A Garcia@ENRON 05/17/2001 03:26 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Enron Teeside Operating Limited ("ETOL")

Good Afternoon Sara,

I have had an opportunity to review this counterparty and have the following information for you. Here is a list of the current trades (Interest Rate Swaps) for ETOL.

I am attaching the only confirmation that was created and amended for ETOL. It is in the name of RMT.

Please call or e-mail me should you require any additional information.

Regards,

Jorge

From: Sara Shackleton@ECT on 05/17/2001 02:51 PM To: Susan Bailey/HOU/ECT@ECT, Rod Nelson/LON/ECT@ECT
cc: Karolina Moran/LON/ECT@ECT, Jorge A Garcia/NA/Enron@Enron, Rhett Jackson/Enron@EnronXGate

Subject: Enron Teeside Operating Limited ("ETOL")

Susan:

Rod or Karolina will prepare a credit worksheet for an ISDA Master Agreement between ETOL and RMT. Jorge has a 3-year rate swap awaiting documentation.

Rod/Karolina: Is there any reason to not use RMT? Is an ETOL sell-off imminent? If so, would it be in the near term?

Rhett: If an ETOL sell-off (in whole or part) is imminent, should the deal be booked in ENA rather than RMT?

Jorge: The transaction confirm should be an ISDA format. Also, please verify whether any ETOL deals are on ENA/RMT books and the remaining terms

Thanks..

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 79 of 1118

Re: Enron Teeside Operating Limited ("ETOL")

Sender	sara.shackleton@enron.com
Recipients	['Rhett Jackson/Enron@EnronXGate', 'mary.cook@enron.com']
File	shackleton-s/sent/6263.

Mary: I didn't know you were also looking at this.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/24/2001 12:47 PM
----- Mary: Were you also working on this?

Karolina Moran 05/24/2001 12:42 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Rod Nelson/LON/ECT@ECT Subject: Re: Enron
Teeside Operating Limited ("ETOL")

Sara/Mary,

I very much apologise for taking some time with regards to a reply on the credit issues for the ISDA.

With regards to your question on whether ETOL is prohibited from entering into Swaps with other parties - I actually do not have the answer to that question so I cannot comment on that.

I have looked at the documents and I would like to in as much as possible replicate the terms we have with ETOL in the ECT ISDA. I cannot see any reason not to go with the same structure as we have in that ISDA. We will provide an Enron Corp guarantee in favour of ETOL as well as have a \$50M collateral threshold (like in the previos ISDA). I further assume that we should roll up any outstanding ISDA confirmations with this counterparty under this ISDA. With regards to the cap on the Enron guarantee - this is set as 10,000,000 for the previous ISDA. Again here I think we can go for the same amount.

Please give me a call if you have any questions and we can discuss,

Kind Regards,

karolina

From: Sara Shackleton on 17/05/2001 15:44 CDT To: Rod Nelson/LON/ECT@ECT, Karolina Moran/LON/ECT@ECT cc: Rhett Jackson/Enron@EnronXGate

Subject: Re: Enron Teeside Operating Limited ("ETOL")

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/17/2001 03:43 PM -----

Jorge A Garcia@ENRON 05/17/2001 03:26 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Enron Teeside Operating Limited ("ETOL")

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I am attaching the only confirmation that was created and amended for ETOL. It is in the name of RMT.

Please call or e-mail me should you require any additional information.

Regards,

Jorge

From: Sara Shackleton@ECT on 05/17/2001 02:51 PM To: Susan Bailey/HOU/ECT@ECT, Rod Nelson/LON/ECT@ECT cc: Karolina Moran/LON/ECT@ECT, Jorge A Garcia/NA/Enron@Enron, Rhett Jackson/Enron@EnronXGate

Subject: Enron Teeside Operating Limited ("ETOL")

Susan:

Rod or Karolina will prepare a credit worksheet for an ISDA Master Agreement between ETOL and RMT. Jorge has a 3-year rate swap awaiting documentation.

Rod/Karolina: Is there any reason to not use RMT? Is an ETOL sell-off imminent? If so, would it be in the near term?

Rhett: If an ETOL sell-off (in whole or part) is imminent, should the deal be booked in ENA rather than RMT?

Jorge: The transaction confirm should be an ISDA format. Also, please verify whether any ETOL deals are on ENA/RMT books and the remaining terms

Thanks..

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 80 of 1118

Re: First Union National Bank ("FUNB") ISDA's with ENA and Enron

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com']
File	shackleton-s/sent/5575.

Tanya:

First Union has asked for the following:

Choice 1: Minimum Transfer Amount of \$500,000/Rounding of \$10,000

Choice 2: Minimum Transfer Amount of \$250,000/Rounding of \$10,000

We're almost done. Please email response tonight, if possible. Many thanks. Sara

P.S. Do you have about 30 minutes to chat about all the things we seem to be voice/emailing about?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tanya Rohauer 01/22/2001 08:01 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: First Union National Bank ("FUNB") ISDA's with ENA and Enron Corp.

On the thresholds, I will agree to their matrix with one change for BBB-. Revised looks like this:

25MM AAA 20MM A or above 15MM BBB+ or above 10MM BBB 5MM BBB- 0 below BBB-

Rounding at 10K is fine. I would prefer to leave our Min Trf amount the way it is (only changes the threshold, in effect). Or, I am amenable to one amount for everyone (say 100K instead of our 0).

Do I need to look at Inset B and C?

From: Sara Shackleton on 01/22/2001 02:04 PM To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: First Union National Bank ("FUNB") ISDA's with ENA and Enron Corp.

Tanya: I spoke with FUNB on Friday. We are waiting for credit when you have some time. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/22/2001 02:03 PM -----

Sara Shackleton 01/11/2001 05:34 PM

To: Tanya Rohauer/HOU/ECT cc: Subject: First Union National Bank ("FUNB") ISDA's with ENA and Enron Corp.

Tanya:

I know you're swamped so I'll try to make this easy and you can answer "yes" or "no", etc.

1. Is First Union National Bank the correct name? (as opposed to First Union National Bank, Charlotte)
2. Threshold for cross default: We used \$100,000,000 for ENE and \$50,000,000 for FUNB. FUNB wants \$100,000,000.
3. Documents to be delivered: FUNB will produce audited/consolidated financials for First Union Corporation. We requested FUNB financials.
4. With respect to the ENA master only (the CSA):
 - (i) FUNB wants to post 10-year government bonds in addition to cash and L/C's
 - (ii) I sent you the FUNB matrix Is it acceptable?
 - (iii) FUNB wants to revise the MAC trigger to include "Baa3 by Moody's" and "failure to have a Credit Rating from either S&P or Moody's".
 - (iv) FUNB wants to revise the definition of "Qualified Institution" to include not only the rating we assign, but also "having assets in excess of \$10 billion" and also not subject to approval by the non-downgraded party
 - (v) FUNB wants all demands for delivery or return of collateral to be made on a Valuation Date. I think we should retain language that demands can be made on or after a Valuation Date. But I think we could agree that demands be made prior to 5 pm New York time.
5. With respect to the ENA master only (the Enron Corp. guaranty in favor of First Union National Bank):

(i) FUNB wants a \$30,000,000 cap (as opposed to the \$15,000,000 cap we proposed)

Two different FUNB people keep calling me, one on the ENA front and the other with respect to ENE. Now you know why your assistance is always greatly appreciated.

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 81 of 1118

Re: Project Cerberus - amended to introduce the swap counterparty

Sender	sara.shackleton@enron.com
Recipients	['angela.davis@enron.com', 'Angela Davis/NA/Enron@Enron', 'susan.bailey@enron.com']
File	shackleton-s/sent/5318.

Susan: Per Tanya's message below, please prepare a draft Schedule for the bank listed below. There is no CSA. Angela can help you with the choices. THIS IS A DEAL SPECIFIC ISDA SCHEDULE and not for general use.

Angela: I know that this Schedule will never be accepted in total but it highlights the ENA priorities. You can forward to the Rabobank person who sent the email request the other day and David Barbour et al. I would appreciate if you could handle and I'll let you know when I'm back in the office for good.

Thank you both. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/12/2001 05:23 PM -----

Tanya Rohauer 01/12/2001 05:16 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Project Cerberus - amended to introduce the swap counterparty Rabobank ("Rabo")

I would use the following:

Rabobank Nederland (per your voice mail that outside counsel is not sure): No CSA Enron Corp Gty - have they asked about a limit? I would propose \$25MM Bilateral Cross Defaults of \$100MM for Enron Corp and Rabobank Nederland I'd leave out the Additional Termination Event since these guys are AAA rated Is Credit Event upon Merger normally in our schedule or the CSA? If we usually omit when we do not have a CSA, then I am ok with that.

I'll try to get to First Union this weekend. Sorry for the delays - the insanity is at the worst levels yet!!

Tanya

From: Sara Shackleton on 01/12/2001 09:23 AM To: Tanya Rohauer/HOU/ECT@ECT cc: Angela Davis/NA/Enron@Enron Subject: Project Cerberus - amended to introduce the swap counterparty Rabobank ("Rabo")

Tanya: I'd like to send our Schedule to Rabobank today since we will be off Monday, Jan. 15 and I have been called for jury duty on Tuesday, Jan. 16. I will ask Angela Davis (a finance lawyer with swap experience who is helping us out on the structured deals) to handle this for me. I don't want to deal with Rabobank's form of Schedule as a basis for discussion and I am told that this deal closes Friday, Jan. 19..

A voice mail would be greatly appreciated. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/12/2001 09:18 AM -----

Sara Shackleton 01/10/2001 12:23 PM

To: Tanya Rohauer/HOU/ECT cc: Angela Davis/NA/Enron@Enron Subject: Project Cerberus - amended to introduce the swap counterparty Rabobank ("Rabo")

Tanya:

Enron Corp, (global finance) has a FASB 125 structured deal executed in Dec., 2000 which requires amendment for tax purposes. A new total return equity swap on EOG stock will need to be executed between ENA and Rabo. ENA must be the swap counterparty ("normal course of business") for the legal opinion which must be issued for the structure. I would like to send Rabo our ISDA format so as to avoid any surprises; time is short. I assume we do not want a CSA but will require an Enron Corp. guaranty. Do we want cross default and Credit Event Upon Merger to apply to the parties? Do we want to add/eliminate additional events of default? The ultimate Schedule will probably look very different from our standard but we need to urge our format as much as possible.

Please call me to update. This update is currently scheduled to close next Friday. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 82 of 1118

Re: Transfer of bond business from ENAC to ECI

Sender	sara.shackleton@enron.com
Recipients	['richard.sage@enron.com', 'Stephanie Panus/NA/Enron@Enron']
File	shackleton-s/sent/5639.

Richard:

The Bear/ENA Securities Loan Agreement will be signed tonight and Bear should receive tomorrow morning. The Enron Corp. guaranty has been executed as well and will be included in the package.

I will also ask Bear for an immediate assignment of the agreement to Enron Credit Inc.

Sorry for the confusion over this agreement; I didn't realize that ENA was doing this for ECI.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Richard Sage 02/21/2001 12:25 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron, Guenther Klar/LON/ECT@ECT, David A Wall/Risk Mgmt/LON/ECT@ECT Subject: Re: Transfer of bond business from ENAC to ECI

Sara, Sorry, I wasn't trying to be unreasonable - where I put down dates in the past it was because I thought they had been done. We have found a way of paying intermediate margin, so the only deadline now is the end of the month. Can you advise what is reasonably doable by when.

Yes, London will prepare confirmations for ECI. We will therefore need a services agreement between ECI and Enron Credit Ltd. This is at the bottom of the list.

Sheila, Did the idea of getting a guarantee from Bear ever lead to anything?

Thanks, Richard

From: Sara Shackleton on 20/02/2001 16:16 CST To: Richard Sage/LON/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron

Subject: Re: Transfer of bond business from ENAC to ECI

Richard:

Further to my message below, after speaking with Sheila, it appears that the Securities Loan Agreement that ENA will sign (hopefully tomorrow) is actually the same agreement to be used by Enron Credit Inc. ("ECI"). I think we can have this assigned from ENA to ECI. We will have to get a new guaranty from Enron Corp. I still do not know anything about the Bear guaranty that you mentioned in your email. Please advise.

Also, please verify for me which office will prepare confirmations for ECI. If it is London, is there a services agreement in place between ENA and ECI?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/20/2001 04:05 PM -----

Sara Shackleton 02/20/2001 09:23 AM

To: Richard Sage/LON/ECT cc: Tanya Rohauer/HOU/ECT@ECT Subject: Re: Transfer of bond business from ENAC to ECI

Richard:

Your deadlines for the securities loan agreement for and related guaranties are impossible to meet (2/16/01 was last Friday). The same agreement with ENA has yet to be completed due to protracted negotiations.

Please advise as to who in credit approved the USD25million Enron Corp. guaranty on behalf of ECI. Also, FYI, Bear will not provide a reciprocal guaranty for ENA.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Richard Sage 02/18/2001 09:07 PM

To: Sheila Glover/HOU/ECT@ECT, Tom Doukas/NA/Enron@ENRON, David A Wall/Risk Mgmt/LON/ECT@ECT, Ian Sloman/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Richard Kerr/Corp/Enron@ENRON, Stephanie Panus/NA/Enron@Enron, Teresa Callahan/Enron@EnronXGate, Sue Kelly/LON/ECT@ECT, Stephen Bell/LON/ECT@ECT cc: Denis O'Connell/LON/ECT@ECT Subject: Transfer of bond business from ENAC to ECI

All, So that everyone can see what everyone else is doing, below is the list of steps of which I am aware. I think quite a few of these were completed in Houston on Friday. Please shout if: - I have missed anything - Any deadlines are unrealistic - Anybody else should be copied in etc

Thanks, Richard

Message 83 of 1118

Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com']
File	shackleton-s/all_documents/11141.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/21/2001 03:27 PM -----

Stephanie Panus@ENRON 05/21/2001 11:54 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Keegan Farrell/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

You may want to clarify this with Keegan as 1) your voice mail was full on that Friday, 2) Keegan tried to contact you in New York and the number she had for you was disconnected, and 3) we tried to locate the documents that Friday and were not able to.

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 11:00 AM

To: Sara Shackleton/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Tom Doukas/Enron@EnronXGate cc: Keegan Farrell/NA/Enron@Enron Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Sara,

Moreover, Keegan represented to me that you requested that she locate for you the Securities Loan Agreement for you while I was out and that she went into my office and retrieved that document from my Enron Credit Inc. file and gave it to you. So, I am not sure of the source of confusion about not being able to find my file but for future reference, the best thing to do is to ask Keegan how to contact me immediately and directly - when out the office she always knows how to reach me.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 10:36 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron, Tom Doukas/Enron@EnronXGate Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Sara:

I will forward the documents to you.

For future reference, if anyone is looking for a file for an urgent matter while I am out, she should convey that fact to me by either (1) leaving a voice mail - as I checked my voicemails on Friday (that is how I was able to speak with Tom from New York on Friday) or (2) advise Keegan and she will contact me immediately by cell phone as she did regarding other matters on Friday.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Sara Shackleton@ECT 05/15/2001 03:45 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Tom Doukas/Enron@EnronXGate, Stephanie Panus/NA/Enron@Enron Subject: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Cheryl:

I spoke with Clem and he is preparing the amendment for immediate execution as the signers will be at an offsite tomorrow. I'll let Tom know as soon as the amendment has been executed. Anna Meytina is on vacation so I left a message with Sharon Chernick.

In order to complete our files with respect to the Enron North America Inc. ("ENA") Securities Loan Agreement, please provide me with copies of the following documents:

- (1) assignment of the Securities Loan Agreement from ENA to ECI (or was a separate agreement with ECI executed?)
- (2) termination of the prior Enron Corp. guaranty on behalf of ENA in the amount of USD25 Million

I spoke with Stephanie and she could not locate your Bear/ECI files on Friday of last week.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 84 of 1118

Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and

Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com', 'denis.o'connell@enron.com']
File	shackleton-s/notes_inbox/3075.

Denis, I am sending the Security Agreement to Sharon White today. Also, per Sara's below message, please be sure to enter this agreement and any others into the Lotus Notes database and provide us with copies of the documentation for any related to ENA.

Stephanie ----- Forwarded by Stephanie Panus/NA/Enron on 03/01/2001 09:44 AM -----

From: Sara Shackleton@ECT on 02/28/2001 04:39 PM To: Stephanie Panus/NA/Enron@Enron cc:

Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/28/2001 04:39 PM

Sara Shackleton 02/27/2001 05:41 PM

To: Denis O'Connell/LON/ECT cc: Mark Taylor/HOU/ECT@ECT, Mark Evans/Legal/LON/ECT@ECT Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Denis:

I will initial the Security Agreement for you and have it executed. Where do you want the executed documents sent?

As you know, all of our master agreements (whether or not related to structured deals) are logged into our Lotus Notes database to which London has access. Please provide me with a list and copies of the ISDA Master Agreements (and/or related financial agreements) which have been executed by London in the name of ENA. These agreements should also be logged onto the ENA database.

Will these masters be assigned to Enron Credit Inc.? Will all trades be assigned? If so, will you prepare the assignment for execution?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Denis O'Connell 02/27/2001 09:50 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Mark Greenberg/NA/Enron@ENRON, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT, Tanya Rohauer/Enron@EnronXGate, Rod Nelson/LON/ECT@ECT Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Sara - I did the ISDA with RVI. - This was a structured Credit Derivative Trade so you will not find this on the system.

I have reviewed and approved the Security Agreement.

many tks

Denis

From: Sara Shackleton on 27/02/2001 09:43 CST To: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Mark Greenberg/NA/Enron@ENRON, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT, Denis O'Connell/LON/ECT@ECT cc: Tanya Rohauer/Enron@EnronXGate, Rod Nelson/LON/ECT@ECT

Subject: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Is anyone familiar with an ISDA Master Agreement executed between ENA and the above company? I have received a Security Agreement executed by this party seeking ENA's signature and the document references the Endorsement (to a policy - what policy?) issued to ENA on 10/19/00 which defines the ISDA agreement. This could be related to credit activity in London. I am waiting to hear from Jeff Kinneman and Denis O'Connell.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 85 of 1118

Re: ?	
Sender	susan.bailey@enron.com
Recipients	['sara.shackleton@enron.com', 'diane.anderson@enron.com']
File	shackleton-s/notes_inbox/2230.

Sara,

FYI: The Confirm desk has had a difficult time in receiving confirmations for trades done with BNP Paribas. Under ENA's master with Paribas, Paribas was designated as the Confirming Party.

As you will see below in an earlier email last week Diane asked for the specific language set forth in the Paribas ISDA since they ere designated a the Confirming Party.

At this time, please advise Diane since her most recent query calls for legal advise.

Thanks

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 05/15/2001 02:45 PM -----

Diane Anderson@ENRON 05/15/2001 02:43 PM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: Re: ?

One final question (hopefully) on this particular issue:

Since the Master doesn't define promptly, I'm wondering how this effects the New York Statute of Frauds (confirmation sent within 5 days must be responded to within 3 days)? If BNP isn't even getting the confirm to us within 5 days, where do we stand with them?

Can we start sending them our confirmation just so something is out there acknowledging the deal...until we receive and execute theirs?

Thanks, Diane

Susan Bailey@ECT 05/14/2001 08:36 AM To: Diane Anderson/NA/Enron@ENRON cc:

Subject: Re: ?

Diane,

Here is how the operative part of the provision entitled "Procedures for Entering into Transactions." reads:

"On or promptly following the date on which the parties reach agreement on the terms of a Transaction..... Paribas will promptly send to ENA a Confirmation."

As you can see no specific number of days is designated, only that the confirmation will be promptly sent once the parties agree to the terms of a Transaction.

Hope this helps.

"Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Diane Anderson@ENRON 05/11/2001 05:20 PM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: Re: ?

Thanks. No rush, Monday or whenever, could you take a look at BNPParibas and see if there is any mention of how fast they'll get us their confirm. They are consistently really slow in getting them to us, and if it exists, I'd like to be able to quote the terms of the Master to them when I format my nasty letter to them. :)

Thanks, Diane

Susan Bailey@ECT 05/11/2001 04:58 PM To: Diane Anderson/NA/Enron@ENRON cc:

Subject: Re: ?

Diane,

For those Counterparties that are the confirming party, I would have to say that the arrangement is on a counterparty basis, and what ENA may have negotiated.

Legal would have to look at the specific Master to ascertain the timing for that counterparty who is the confirming party.

Typically, ENA prefers to me the confirming party so that there is method of time to follow. But as you know some counterparties may win out and be designated as the confirming party.

Therefore, if you have a specific counterparty in mind let me know and we will take look at their Master.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Diane Anderson@ENRON 05/11/2001 04:46 PM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: ?

Susan, this is a general question, but I don't know if there is a specific answer for each counterparty:

For counterparties that are the confirming party, is there a standard time in which they are required to send us their confirm...? ...or is it just a "best effort" type thing, specific to each CP? We have some counterparties that are great, send us their confirms T+1.....but a few take 3,4,5 days to get them here....and I'm just wondering if there is any kind of mention of this in the Master Agreement.

Thanks, Diane

Message 86 of 1118

Re: First Union National Bank ("FUNB")

Sender	sara.shackleton@enron.com
Recipients	['Susan Bailey/HOU/ECT@ECT', 'rod.nelson@enron.com']
File	shackleton-s/sent/5919.

Hey, DUDE! Have you forgotten to read your Lotus Notes today? Looks like this one filtered through lots of people (since you left, multiple people fill your shoes). And where did you hear it was nice over in Houston? It's raining with a high of 54 F. But it is supposed to reach mid-70's over the weekend.

I'll ask Susan B. to send you a copy. Stay tuned for the mad cow email.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Rod Nelson 03/28/2001 10:27 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: First Union National Bank ("FUNB")

Hi Sara. Who set the credit terms for this one? Let me guess ... me. I actually would like a copy for our files over here.

It's raining. Again. I hear Houston is nice.

From: Sara Shackleton on 03/28/2001 10:08 CST To: Rod Nelson/LON/ECT@ECT, Denis O'Connell/LON/ECT@ECT cc: Susan Bailey/HOU/ECT@ECT

Subject: First Union National Bank ("FUNB")

With respect to Enron Credit Ltd., please note that ENA has and executed master with FUNB. Let Susan Bailey know if you need a copy of the agreement.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 10:06 AM -----

Susan Bailey 03/28/2001 09:49 AM

To: Bob Bowen/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT, Andrea R Guillen/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT, Gordon Heaney/Corp/Enron@ENRON, Janie Aguayo/HOU/ECT@ECT, Diane Anderson/NA/Enron@Enron, Melissa Ann Murphy/HOU/ECT@ECT, Scott Tackett/Corp/Enron@Enron, Celeste Cisneros/NA/Enron@Enron, Sharen Cason/HOU/ECT@ECT, Kim S Theriot/HOU/ECT@ECT, Tiffany Williams/NA/Enron@Enron, Dianne Seib/CAL/ECT@ECT, Bianca Ornelas/NA/Enron@Enron, Kimberly Allen/ENRON@enronxgate, Julie Brewer/NA/Enron@Enron, Jean Bell/HOU/ECT@ECT, Jason Fischer/NA/Enron@Enron, Jorge A Garcia/NA/Enron@Enron, Kimberly Hundl/Corp/Enron@Enron, Stephanie Piwetz/HOU/ECT@ECT, Melissa Rodriguez/HOU/ECT@ECT, Melinda Whalen/CAL/ECT@ECT, William S Bradford/Enron@EnronXGate, Debbie R Brackett/HOU/ECT@ECT, Tanya Rohauer/Enron@EnronXGate, Brant Reves/Enron@EnronXGate, Russell Diamond/Enron@EnronXGate, Lesli Campbell/Enron@EnronXGate, Wendi LeBrocq/Enron@EnronXGate, Edward Sacks/Enron@EnronXGate, Veronica Espinoza/Enron@EnronXGate, Veronica Gonzalez/Enron@EnronXGate, Paul Radous/Enron@EnronXGate, Jason R Williams/Enron@EnronXGate, Wendy Conwell/NA/Enron@Enron, Darren Vanek/Enron@EnronXGate, Rudwell Johnson/Enron@EnronXGate, Ken Curry/Enron@EnronXGate, Aparna Rajaram/Enron@EnronXGate, Tom Moran/Enron@EnronXGate, Nidia Mendoza/Enron@EnronXGate, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Brent Hendry/NA/Enron@Enron, Mary Cook/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Angela Davis/NA/Enron@Enron, Anne C Koehler/HOU/ECT@ECT, Marilyn Colbert/HOU/ECT@ECT, Diane Ellstrom/Enron@EnronXGate, Lynn E

Shivers/LON/ECT@ECT, Bill D Hare/HOU/ECT@ect, Leslie Reeves/HOU/ECT@ECT, Jason Moore/HOU/ECT@ECT, Dianne Seib/CAL/ECT@ECT, Samuel Schott/HOU/ECT@ECT, Anthony Campos/HOU/ECT@ECT, Karen Lambert/HOU/ECT@ECT, Frank L Davis/HOU/ECT@ECT, Carrie Southard/LON/ECT@ECT, Bernice Rodriguez/HOU/ECT@ECT, Sheri Thomas/HOU/ECT@ECT, Amber Ebow/HOU/ECT@ECT, Melissa Ann Murphy/HOU/ECT@ECT, Linda S Bryan/HOU/ECT@ECT, Stacey Richardson/HOU/ECT@ECT, Lisa Lees/HOU/ECT@ECT, Georgi Landau/NA/Enron@ENRON, Cheryl Johnson/Corp/Enron@Enron, Stephanie Sever/HOU/ECT@ECT cc: Subject: First Union National Bank

We have received an executed Master Agreement:

Type of Contract: ISDA Master Agreement (Multicurrency-Cross Border)

Effective Date: March 7, 2001

Enron Entity: Enron North America Corp.

Counterparty: First Union National Bank

Transactions Covered: Approved for all products

Confirming Entity: Enron North America Corp.

Governing Law: New York

SPECIAL NOTE: Counterparty has 10 Local Business Days to dispute or accept the terms of a Confirmation.

Copies will be distributed.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 87 of 1118

Re: prime broker account numbers

Sender	sara.shackleton@enron.com
Recipients	['cheryl.nelson@enron.com']
File	shackleton-s/sent/5904.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/27/2001 12:46 PM -----

Tom Doukas@ENRON 03/27/2001 11:18 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Sheila Glover/HOU/ECT@ECT, David A Wall/Risk Mgmt/LON/ECT@ECT
Subject: Re: prime broker account numbers

The accounts at Bear owned by the credit book are:

The old account under ECT name: 102-04919 This account is empty but not yet closed

The current ENA acct is: 102-06181 This is where the positions are now held

These are the accounts that need to go to Enron Credit Inc

Thanks,

Tom

From: Sara Shackleton@ECT on 03/27/2001 10:22 AM To: Tom Doukas/NA/Enron@ENRON cc:

Subject: prime broker account numbers

Tom: Which accounts are being transferred to Bear? Are these internal account numbers? Thanks

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/27/2001 10:20 AM

Sheila Glover 03/08/2001 11:31 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: prime broker account numbers

Message 88 of 1118

Re: Hedge Fund Meeting

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/6096.

Kaye:

Without making this too complicated, Frank Sayre wants to join in. And I am waiting to hear when Caroline Abramo will be in Houston. Thursday and Friday are not acceptable dates. Please call me Monday morning. Thanks.

p.s. The essential invitees are Fred, Paul, Caroline and either Carol or me.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/20/2001 03:29 PM

Sara Shackleton 04/20/2001 10:14 AM

To: Kaye Ellis/HOU/ECT cc: Subject: Re: Hedge Fund Meeting

Kaye:

Please reschedule the meeting for an afternoon meeting (best after 3 pm Houston) to include the following people:

Fred Lagrasta Paul Radous Caroline Abramo (NY - she can be available by phone) Robyn Zivic Russ Dyk Carol Brent me

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/20/2001 10:01 AM

Carol St Clair 04/20/2001 08:51 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Hedge Fund Meeting

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 04/20/01 08:46 AM -----

Kaye Ellis 04/19/01 04:32 PM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: Re: Hedge Fund Meeting

Carol,

Your Hedge Fund Meeting is scheduled for Tuesday, April 24 at 10:00 am in EB38C2.

Kaye

*Message 89 of 1118***Re: Enron Credit Inc. officers**

Sender	kathryn.thomas@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2931.

Sara,

Richard has asked me to contact you. Teresa Callahan works for the Corporate Secretary team in Houston. Her contact number is : (713) 345 8444

If you need anything else please let me know.

Many thanks

Kath ext. 32253

From: Sara Shackleton on 13/03/2001 10:27 CST To: Richard Sage/LON/ECT@ECT cc:

Subject: Re: Enron Credit Inc. officers

Richard:

Thanks. Your chart indicates that Callahan (I don't know who this is) is working on the director/officer changes. Just keep me up to date. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Richard Sage 03/09/2001 05:56 AM

To: Sue Kelly/LON/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT Subject: Enron Credit Inc. officers

Sara, New personnel to be: Directors - Frevert/Derrick/Haedicke. Officers - same, plus Jeff Kinneman. Sue, I know that Bryan and I have resigned. Have we appointed Jeff?

Thanks, Richard ----- Forwarded by Richard Sage/LON/ECT on 09/03/2001 11:15

From: Sara Shackleton on 08/03/2001 18:01 CST To: Richard Sage/LON/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron

Subject: Enron Credit Inc.

Richard:

Does Enron Credit Inc. have U.S. resident officers/directors? Cheryl Nelson is trying to set up three U.S. brokerage accounts and needs signatories. Please let Cheryl know. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 90 of 1118***Hess Energy Trading Company, LLC ("Hess") and affiliates**

Sender	sara.shackleton@enron.com
Recipients	['tana.jones@enron.com']
File	shackleton-s/all_documents/9154.

Tana: A lawyer from Amerada Hess (Dana Dellacona) will probably call you about EOL trading. She is interested in several trading relationships which you can see from the email that I sent to Tanya. Let me know if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/13/2001 09:20 AM -----

Sara Shackleton 02/07/2001 05:29 PM

To: Tanya Rohauer/HOU/ECT cc: Subject: Hess Energy Trading Company, LLC ("Hess") and affiliates

I have received the following request from a Hess lawyer:

ECT and Hess have an executed ISDA effective 1/29/98.

Guess what they want? The following ISDA agreements to trade financial (and PHYSICAL):

(1) Amerada Hess Corp. and ENA (2) Hess Energy Services Company, LLC and ENA (3) Hess Energy Trading Company, LLC and ELFI (4) Hess Energy Trading Company, LLC and ECT Singapore Pte. Ltd. (5) Hess Energy Trading Company, LLC and ECTRIC

I explained our financial trading entities. She did not know what products each of the Hess affiliates would be trading. Hess CREDIT: Grim Trivino at 212-536-8979 Hess LEGAL: Dana Dellacona at 212-536-8133

Please let me know who will handle in credit (and I'll intercede with the lawyer). TO MY KNOWLEDGE, NOBODY AT ENRON IS PUSHING HESS. As usual, thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 91 of 1118

Hess Energy Trading Company, LLC ("Hess") and affiliates

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com', 'tana.jones@enron.com']
File	shackleton-s/all_documents/9609.

Hi, Tanya:

I received another call from Dana Dellacona at Hess asking about online and offline trading. I'll direct her once again to Tana for online trading.

I'll ask her again to describe the products they want to trade.

Will you evaluate?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/05/2001 08:41 AM -----

Sara Shackleton 02/07/2001 05:29 PM

To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: Hess Energy Trading Company, LLC ("Hess") and affiliates

I have received the following request from a Hess lawyer:

ECT and Hess have an executed ISDA effective 1/29/98.

Guess what they want? The following ISDA agreements to trade financial (and PHYSICAL):

(1) Amerada Hess Corp. and ENA (2) Hess Energy Services Company, LLC and ENA (3) Hess Energy Trading Company, LLC and ELFI (4) Hess Energy Trading Company, LLC and ECT Singapore Pte. Ltd. (5) Hess Energy Trading Company, LLC and ECTRIC

I explained our financial trading entities. She did not know what products each of the Hess affiliates would be trading. Hess CREDIT: Grim Trivino at 212-536-8979 Hess LEGAL: Dana Dellacona at 212-536-8133

Please let me know who will handle in credit (and I'll intercede with the lawyer). TO MY KNOWLEDGE, NOBODY AT ENRON IS PUSHING HESS. As usual, thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 92 of 1118

RESPONSE TO ENRON DRAFT ISDA - Energy New England LLC

Sender	sara.shackleton@enron.com
Recipients	['brant.reves@enron.com']
File	shackleton-s/all_documents/9088.

Brant:

I haven't heard of anyone pushing this internally but there are serious issues here because of the "agency" relationship that Energy New England has with various municipalities. You want the municipalities on the dotted line and not the agent.

How do you want to handle?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/09/2001 02:01 PM -----

Susan Bailey 02/09/2001 08:17 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RESPONSE TO ENRON DRAFT ISDA

Sara,

Set forth below and attached are Mr. Delani's comments to our ISDA draft for Energy New England. Please advise if I may be of further assistance.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 02/09/2001 08:20 AM -----

Jimdelani@aol.com 02/08/2001 05:48 PM

To: Susan.Bailey@enron.com cc: Subject: RESPONSE TO ENRON DRAFT ISDA

Susan;

Leo Swift, our chief financial officer, requested that I review the Draft ISDA you transmitted to him and send you our comments.

I have prepared them in letter form [attached]. Please review at you convenience and let me know if you would like additional information or clarification.

I work flex hours and can be reached at the office in Foxborough or at 781-272-7262 Fax 781-272-7197.

Thanks Jim Delani Energy New England

- Enron_Feb_ISDA_ltr.doc

Message 93 of 1118

Re: Valentis and CD Holdings

Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com', 'Paul Radous/Corp/Enron']
File	shackleton-s/all_documents/10852.

Sorry, Caroline.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/26/2001 10:33 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Valentis and CD Holdings

----- Forwarded by Caroline Abramo/Corp/Enron on 04/26/2001

11:33 AM -----

Caroline Abramo 04/25/2001 09:38 AM To: Sara Shackleton/HOU/ECT@ECT cc: Paul Radous/Corp/Enron

Subject: Re: Valentis and CD Holdings

sara- valentis llc is definitely domestic.. checking on delaware or CT..

Their inhouse legal counsel is Arthur Amron... please cc him on ISDA.. aamron@wexford.com 203 862 7012

From: Sara Shackleton@ECT on 04/25/2001 09:03 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate

Subject: Re: Valentis and CD Holdings

Caroline:

No Deemed ISDA, we decided that yesterday for the long-dated deal.

We are working on the draft masters for emailing. Please send me the information about your counterparties' lawyers so we can begin negotiating.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 06:42 AM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Corp/Enron Subject: Valentis and CD Holdings

Please send the draft ISDAS to:

Marty Lifgren- mlifgr@wexford.com Charles Davidson- c david@wexford.com

We agreed that the fastest way to proceed wwas to send the ISDA or can we still send the deemed ISDA?.

Message 94 of 1118

RE: ISDA Schedule/Paragraph 13

Sender	sara.shackleton@enron.com
Recipients	[yyaish@exchange.ml.com]
File	shackleton-s/all_documents/10444.

I'm running behind and will try to review first thing in the a.m.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" <YYaish@exchange.ml.com> 04/10/2001 07:46 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: ISDA Schedule/Paragraph 13

Sara, any thoughts on my comments ISDA I sent out last week?

-----Original Message-----

From: Yaish, Yair (OGC) Sent: Thursday, April 05, 2001 6:19 PM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Schedule/Paragraph 13

Sara, I have good news, I think we are very close to executing this baby.

I am attaching comments to the ISDA. They reflect comments by our outside counsel which highlight the differences between this contract and the side letter/ML ISDA. They are not much. I have also made some changes directly on their draft where I either concurred with Enron or needed to make some of my own changes. Pls review and let me know what you think.

I will be leaving the office soon, so if we can wrap it up tomorrow that would be great (I'm out Monday for Passover).

Yair Yaish Director and Senior Counsel Allegheny Energy Global Markets, LLC 212-236-7346

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, March 30, 2001 4:10 PM To: yyaish@exchange.ml.com Subject: ISDA Schedule/Paragraph 13

Yair:

Attached is a blacklined (against the Enron North America Corp. draft of 3/15/01) Schedule and Paragraph 13 to the ISDA Credit Support Annex. I have tried to incorporate the essence of the March 19, 2001 "swap side letter agreement." Please call me to discuss as it would be nice to finalize by April 6. Thanks.

(See attached file: 098a Blackline ctr (Allegheny Energy Supply).doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 95 of 1118

Re: Hello Sara. Mary Lou and I are available all day on the 25th

Sender	sara.shackleton@enron.com
Recipients	['terrance.ganser@funb.com']
File	shackleton-s/all_documents/8810.

Terry: Please verify that the call tomorrow works for you. If so, I can call you at whatever phone number you designate. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/24/2001 06:36 PM -----

Sara Shackleton 01/24/2001 10:55 AM

To: "Ganser, Terrance" <terrance.ganser@funb.com>@ENRON cc: Clint Freeland/Corp/Enron@Enron, Jim Armogida/Corp/Enron@ENRON Subject: Re: Hello Sara. Mary Lou and I are available all day on the 25th and 26th. We look forward to hearing from you.

Terry:

How about Thursday, January 25 at 2 pm Houston time? Please verify. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Ganser, Terrance" <terrance.ganser@funb.com> 01/22/2001 09:58 AM

To: "Sara Shackleton (E-mail)" <sara.shackleton@enron.com> cc: "Guttmann, Mary Lou" <marylou.guttmann@funb.com> Subject: Hello Sara. Mary Lou and I are available all day on the 25th and 26th. We look forward to hearing from you.

First Union Securities, Inc.

Terry Ganser

First Union Securities 12 East 49th Street NYC, NY 10017

(212) 891 5003

This is for your information only and is not an offer to sell, or a solicitation of an offer to buy, the securities or instruments mentioned. The information has been obtained or derived from sources believed by us to be reliable, but we do not represent that it is accurate or complete. Any opinions or estimates contained in this information constitute our judgement as of this date and are subject to change without notice. First Union Securities, Inc. (FUSI), or its affiliates may provide advice or may from time to time acquire, hold or sell a position in the securities mentioned herein. FUSI is a subsidiary of First Union Corporation and is a member of the NYSE, NASD and SIPC. FUSI is a separate and distinct entity from its affiliated banks and thrifts.

Message 96 of 1118

Re: EGM Monthly Legal Report for Feb 2001

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/5585.

just check with bob late in the morning

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/14/2001 06:14 PM -----

Robert Bruce@ENRON Sent by: Robert Bruce@ENRON 02/14/2001 10:55 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: EGM Monthly Legal Report for Feb 2001

I will -- fyi, I am expecting today or tomorrow an explanation from Billy Lemmons on my involvement in formulation of the business plan; am awaiting this before I revise the agenda. If I don't hear from Billy by tomorrow morning I will send a revised agenda at that time -- Bob

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Sara Shackleton@ECT 02/14/2001 10:41 AM

To: Robert Bruce/NA/Enron@Enron cc: Kaye Ellis/HOU/ECT@ECT Subject: EGM Monthly Legal Report for Feb 2001

Bob: Could you please forward changes to the Ag section to Kaye? Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/14/2001 10:40 AM -----

Alan Aronowitz 02/13/2001 06:51 PM

To: Daniel R Rogers/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Coralina Rivera/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Ned E Crady/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Nancy Corbet/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, John Viverito/Corp/Enron@Enron, Matthias Lee/SIN/ECT@ECT, Michael A Robison/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Brent Hendry/NA/Enron@Enron, Lou Stoler/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Robert Quick/LON/ECT@ECT, Wayne Gresham/HOU/ECT@ECT, Justin Boyd/LON/ECT@ECT, Rahul Saxena/LON/ECT@ECT cc: Legal Temp 3/HOU/ECT@ECT Subject: EGM Monthly Legal Report for Feb 2001

Please provide to me by e-mail by Thursday of this week your suggested changes to the January 2001 Monthly Report, so that we can issue the February 2001 Monthly Report by the end of this week. Thanks for your attention to this matter.

Regards, Alan

Message 97 of 1118

RE: ISDA Master Agreement with Enron North America Corp.

Sender	sara.shackleton@enron.com
Recipients	[paul.radous@enron.com]
File	shackleton-s/sent/5567.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/13/2001 01:15 PM -----

"Travella, Delene M." <delene.travella@funb.com> 02/13/2001 11:33 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: ISDA Master Agreement with Enron North America Corp.

Hi Sara, Thanks for the update. With respect to First Union Corp., the holding company of First Union National Bank ("FUNB") providing a guaranty, I don't believe that's an option. FUNB is a rated entity and as mentioned in my Jan. 23rd email, we can provide quarterly call reports (with year-to-date information), which is also available on the FDIC page (www.fdic.gov). First Union Corporation's consolidated annual financial statements are available on EDGAR as well as First Union's home page (www.firstunion.com). I look forward to hearing from you as soon as possible. It seems that our marketers are asking for credit approval to enter into the Shenandoah trade today without the Master in place. If approval is given, we will need mutual downgrade provisions in our confirm. I think all other pending trades are on hold until we can get our docs wrapped up.

Delene M. Travella Vice President Capital Markets, Derivatives Telephone: (704) 383-8778 Facsimile: (704) 383-0575 email: delene.travella@funb.com

-----Original Message----- From: Sara.Shackleton@enron.com [SMTP:Sara.Shackleton@enron.com] Sent: Monday, February 12, 2001 7:28 PM To: delene.travella@funb.com Subject: ISDA Master Agreement with Enron North America Corp. Dee: I am trying to hear from credit on about four issues, namely, the legal entity, need for First Union Corp. guaranty (due to the availability of financials), haircut on bonds and Specified Conditions. I would then propose preparation of a blackline to squeeze out the remaining issues. If I hear from credit tomorrow (and I'm pushing), I could have the blackline by Wednesday and we could talk. Hopefully, we'd be done by this week. Hope this works. Regards. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 98 of 1118

Re: Hello Sara. Mary Lou and I are available all day on the 25th

Sender	sara.shackleton@enron.com
Recipients	['clint.freeland@enron.com']
File	shackleton-s/all_documents/8798.

Clint: This call will be to discuss the confirm. We'll meet in my office. I'm still waiting for Terry to confirm. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Clint Freeland@ENRON 01/24/2001 11:59 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Hello Sara. Mary Lou and I are available all day on the 25th and 26th. We look forward to hearing from you.

I assume this is a call to talk about the ISDA and forward confirm? Should I just come to your office? CF

Sara Shackleton@ECT 01/24/2001 10:55 AM

To: "Ganser, Terrance" <terrance.ganser@funb.com>@ENRON cc: Clint Freeland/Corp/Enron@Enron, Jim Armogida/Corp/Enron@ENRON Subject: Re: Hello Sara. Mary Lou and I are available all day on the 25th and 26th. We look forward to hearing from you.

Terry:

How about Thursday, January 25 at 2 pm Houston time? Please verify. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Ganser, Terrance" <terrance.ganser@funb.com> 01/22/2001 09:58 AM

To: "Sara Shackleton (E-mail)" <sara.shackleton@enron.com> cc: "Guttmann, Mary Lou" <marylou.guttmann@funb.com> Subject: Hello Sara. Mary Lou and I are available all day on the 25th and 26th. We look forward to hearing from you.

First Union Securities, Inc.

Terry Ganser

First Union Securities 12 East 49th Street NYC, NY 10017

(212) 891 5003

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affiliated banks and thrifts.

Message 99 of 1118

Re: Cerberus	
Sender	sara.shackleton@enron.com
Recipients	['Angela Davis/NA/Enron@Enron', 'mary.cook@enron.com', 'Brenda L Funk/HOU/ECT@ECT']
File	shackleton-s/sent/5450.

Mary: per my voice mail. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/01/2001 06:48 PM -----

Tanya Rohauer 01/31/2001 09:20 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Cerberus

Your thoughts? ----- Forwarded by Tanya Rohauer/HOU/ECT on 01/31/2001 09:17 AM -----

Susan Bailey 01/31/2001 09:16 AM To: Tanya Rohauer/HOU/ECT@ECT cc: Brenda L Funk/HOU/ECT@ECT, Angela Davis/NA/Enron@Enron Subject: Re: Cerberus

Tanya,

With regard to Credit's "initialling-off" on the Confirmation signature pages, that would be my call. I know we have done so with some other structured deals.

So my apologies if this was not to be the case. If you prefer, Brenda can run off new signature pages (where legal will "initial-off" only). The others can be destroyed.

Brenda,

Please run-off new pages, and I will get legal to initial-off only.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Tanya Rohauer 01/31/2001 09:10 AM

To: Brenda L Funk/HOU/ECT@ECT cc: Susan Bailey/HOU/ECT@ECT, Angela Davis/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: Re: Cerberus

Brenda,

I am comfortable with the concept of the confirm you sent me; however, why are we not circulating the actual final confirmation with the signature pages? The file you sent me still has a few blanks, etc. I am not sure why credit is signing off on the confirm as this is not standard procedure. Please advise.

Thanks, Tanya

Brenda L Funk

01/30/2001 07:39 PM

To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: Cerberus

Tanya,

Susan Bailey asked that I forward this to you for your review. I will send the signature pages for the confirm to you for your initials. Please let me know if you have any questions or concerns.

Thanks, Brenda Funk (713) 853-6950 (713) 853-9252 (fax) ----- Forwarded by Brenda L Funk/HOU/ECT on 01/30/2001 07:37 PM -----

"Sullivan, Danny" <dannysullivan@akllp.com> 01/30/2001 07:33 PM

To: <brenda.l.funk@enron.com> cc: Subject: Cerberus

Latest draft of confirm is attached.

Danny - BREN.DOC

Message 100 of 1118

FW: Hess Energy Trading Company, LLC ("Hess") and affiliates

Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com', 'russell.diamond@enron.com', 'rod.nelson@enron.com']
File	shackleton-s/all_documents/9720.

Russell,

Please give Grim a call and find out what they are trying to do. Explain to him why this is a bad idea. Sara, we don't trade financial out of ELFI so that's one off the list - and liquids does not have a master physical to the best of my knowledge. We are doing some financial business with ENA/Hess Energy Services today with a gty and omnibus treatment. My understanding from Bob Bruce is that all the finc trading is being cleaned out of ECTRIC and stuck somewhere else too. I do not think ECT Singapore does financial trading either -so that may be another quick one to shoot down.

-----Original Message-----

From: Shackleton, Sara Sent: Monday, March 05, 2001 8:45 AM To: Rohauer, Tanya Cc: Jones, Tana Subject: Hess Energy Trading Company, LLC ("Hess") and affiliates

Hi, Tanya:

I received another call from Dana Dellacona at Hess asking about online and offline trading. I'll direct her once again to Tana for online trading.

I'll ask her again to describe the products they want to trade.

Will you evaluate?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/05/2001 08:41 AM -----

Sara Shackleton 02/07/2001 05:29 PM To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: Hess Energy Trading Company, LLC ("Hess") and affiliates

I have received the following request from a Hess lawyer:

ECT and Hess have an executed ISDA effective 1/29/98.

Guess what they want? The following ISDA agreements to trade financial (and PHYSICAL):

(1) Amerada Hess Corp. and ENA (2) Hess Energy Services Company, LLC and ENA (3) Hess Energy Trading Company, LLC and ELFI (4) Hess Energy Trading Company, LLC and ECT Singapore Pte. Ltd. (5) Hess Energy Trading Company, LLC and ECTRIC

I explained our financial trading entities. She did not know what products each of the Hess affiliates would be trading. Hess CREDIT: Grim Trivino at 212-536-8979 Hess LEGAL: Dana Dellacona at 212-536-8133

Please let me know who will handle in credit (and I'll intercede with the lawyer). TO MY KNOWLEDGE, NOBODY AT ENRON IS PUSHING HESS. As usual, thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 101 of 1118

RE: ISDA Master Agreement with Enron North America Corp.

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com', 'delene.travella@funb.com']
File	shackleton-s/all_documents/9168.

Dee:

I tried to call you about 30 minutes ago (together with my credit guys). We would really like to chat today. I have a meeting that will last about an hour. Please talk to my assistant Kaye Ellis (X35968) to try to talk at about 3pm Houston time. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Travella, Delene M." <delene.travella@funb.com> 02/13/2001 11:33 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: ISDA Master Agreement with Enron North America Corp.

Hi Sara, Thanks for the update. With respect to First Union Corp., the holding company of First Union National Bank ("FUNB") providing a guaranty, I don't believe that's an option. FUNB is a rated entity and as mentioned in my Jan. 23rd email, we can provide quarterly call reports (with year-to-date information), which is also available on the FDIC page (www.fdic.gov). First Union Corporation's consolidated annual financial statements are available on EDGAR as well as First Union's home page (www.firstunion.com). I look forward to hearing from you as soon as possible. It seems that our marketers are asking for credit approval to enter into the Shenandoah trade today without the Master in place. If approval is given, we will need mutual downgrade provisions in our confirm. I think all other pending trades are on hold until we can get our docs wrapped up.

Delene M. Travella Vice President Capital Markets, Derivatives Telephone: (704) 383-8778 Facsimile: (704) 383-0575 email: delene.travella@funb.com

-----Original Message----- From: Sara.Shackleton@enron.com [SMTP:Sara.Shackleton@enron.com] Sent: Monday, February 12, 2001 7:28 PM To: delene.travella@funb.com Subject: ISDA Master Agreement with Enron North America Corp. Dee: I am trying to hear from credit on about four issues, namely, the legal entity, need for First Union Corp. guaranty (due to the availability of financials), haircut on bonds and Specified Conditions. I would then propose preparation of a blackline to squeeze out the remaining issues. If I hear from credit tomorrow (and I'm pushing), I could have the blackline by Wednesday and we could talk. Hopefully, we'd be done by this week. Hope this works. Regards. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 102 of 1118

Re: ISDA Master Agreement for Cargill International, S.A.

Sender	sara.shackleton@enron.com
Recipients	['rod.nelson@enron.com', 'Cheryl Nelson/NA/Enron@Enron']
File	shackleton-s/sent/5459.

Rod: Will you please read the email attached below from Cargill and let me know the proper Enron party? Ed has punted this one to you. Thanks.

And, I hope things are going well. I know you'll miss rodeo time here in the Bayou City. I just received an invitation (courtesy of Enron) to the BBQ cookoff at the Reliant Astrodome Park (you know, the dome). I'll bet your mouth is watering.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 09:55 AM -----

Edward Sacks@ENRON 02/02/2001 09:50 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: ISDA Master Agreement for Cargill International, S.A.

Rod Nelson would probably be the best starting point.

Ed Sacks

From: Sara Shackleton@ECT on 02/02/2001 09:08 AM To: Edward Sacks/Corp/Enron@Enron cc: Cheryl Nelson/NA/Enron@Enron

Subject: ISDA Master Agreement for Cargill International, S.A.

Ed:

Without knowing what's being hedged, it could be either ENA or ECTRIC. Do you have more info? Also, if the Enron party is ECTRIC, will Rod handle? Please let me know and I'll chat with Mara. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 09:06 AM -----

Mara_Alexander@cargill.com 02/02/2001 07:34 AM

To: Cheryl.Nelson@enron.com, Sara.Shackleton@enron.com cc: Edward.Sacks@enron.com Subject: ISDA Master Agreement for Cargill International, S.A.

Dear Sara & Cheryl,

I have been asked by our affiliate in Geneva, Cargill International, S.A. ("CISA"), to begin negotiations for them on an ISDA Master Agreement with Enron.

There had been some question as to which Enron entity was to enter into an ISDA with CISA, but the latest information they had (possibly from someone in an Enron office in London?) was that it should be Enron Capital & Trade Resources International Corp. FYI, Cargill International, S.A. is located and incorporated in Geneva.

Could you kindly advise whom I should be contacting to confirm this is indeed the proper Enron entity and with whom I should be speaking to begin negotiations? Please also let me know if there is anything that needs to be done from a Credit or Trading perspective in order to get this ISDA started on Enron's part.

Thanks and Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

Message 103 of 1118

Re: Goldman Sachs International - Terms of Business Letter

Sender	sara.shackleton@enron.com
Recipients	[cheryl.nelson@enron.com]
File	shackleton-s/sent/5665.

There are multiple Goldman files. I do have the "ENA/GS&Co." online agreement only. I have it only for reference as it has been executed. The problem I'm referring to is the identification of the Lotus Notes Goldman files. We can catch up in our meeting which I have scheduled for Monday.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 02/23/2001 10:56 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Goldman Sachs International - Terms of Business Letter

I believe that Goldman is the file that you took back from me la while ago to handle yourself, remember?

Cheryl Nelson Senior Counsel EB3880D (713) 345-4693

Sara Shackleton@ECT 02/23/2001 08:40 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Goldman Sachs International - Terms of Business Letter

Cheryl:

Goldman is one of the brokers "messed up" in Lotus Notes. I had given you the files some time ago with my comments. I think it would make sense for us to sort through Goldman for all affiliated companies. I don't see an agreement in Lotus Notes for ECT Inv. and Goldman Int'l.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 08:37 AM -----

Theresa T Brogan 02/22/2001 06:20 PM

To: Sara Shackleton/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron cc: Cassandra Schultz/NA/Enron@Enron, John Greene/LON/ECT@ECT, Sheila Glover/HOU/ECT@ECT Subject: Goldman Sachs International - Terms of Business Letter

Sara/Cheryl, ECT Investments Inc has received a faxed document from Goldman Sachs International regarding terms of business for executing equity transactions through the London office. This document is not intended for the purposes of opening up a new executing broker account with Goldman Sachs International. ECT Investments Inc currently has an existing executing broker agreement with Goldman Sachs & Co which should cover trades done in Houston and London since we are trading under the same legal entity. The Terms of Business Letter sets forths terms and conditions that would apply to transactions executed by ECT Investments in London which is governed under the SFA rules and regulations. I will forward a copy of the document to Cheryl. Goldman Sachs International is waiting for us to review and sign. If you have additional questions and concerns, I can be reached at extension 31439.

Thanks, Theresa

Message 104 of 1118

Re: Valentis and CD Holdings

Sender	carol.clair@enron.com
Recipients	['caroline.abramo@enron.com', 'sara.shackleton@enron.com', 'frank.sayre@enron.com', 'paul.radous@enron.com']
File	shackleton-s/carol_stclair/20.

Caroline: Has Joe Hunter prepared the AIG confirms? As I mentioned earlier this week, once we get the signed confirms and the opinion from AIG we will circulate the ISDA draft. I will send the template to Sara, Frank and Paul shortly.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Caroline Abramo@ENRON 04/25/2001 12:31 PM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron cc: Paul Radous/Corp/Enron, Fred Lagrasta/HOU/ECT@ECT Subject: Re: Valentis and CD Holdings

sure... i think you have everything on valentis and cd holdings.. i am waiting for those docs and AIG to go out.. i have all the other info on the funds we have in the system and will just use the template you gave me to organize it.

Brent- did you find the Catequil confirms ... also, comments on Catequil????

thanks, Caroline

From: Sara Shackleton@ECT on 04/25/2001 11:04 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Re: Valentis and CD Holdings

Caroline:

As you know, Carol is working on your template; then Frank, Carol and I will have to review/discuss. You will have the template soon. We are all working hard to provide you with the necessary documentation.

Are you preparing the information for us?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 10:07 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Valentis and CD Holdings

sara- can i have a blank template over email.. thanks, ca

From: Sara Shackleton@ECT on 04/25/2001 09:03 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate

Subject: Re: Valentis and CD Holdings

Caroline:

No Deemed ISDA, we decided that yesterday for the long-dated deal.

We are working on the draft masters for emailing. Please send me the information about your counterparties' lawyers so we can begin negotiating.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 06:42 AM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Fred Lagrasta/HOU/ECT@ECT, Paul

Radous/Corp/Enron Subject: Valentis and CD Holdings

Please send the draft ISDAS to:

Marty Lifgren- mlifgr@wexford.com Charles Davidson- cdavid@wexford.com

We agreed that the fastest way to proceed wwas to send the ISDA or can we still send the deemed ISDA?.

Message 105 of 1118

Re: Enron North America Corp. ("ENA") Global Custody and Clearance	
Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/all_documents/11392.

Sheila:

Please call me when you receive this message from Mary Perkins.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/04/2001 08:16 AM -----

"mike perkins" <mperkins@ix.netcom.com> 06/03/2001 04:09 PM

To: <Sara.Shackleton@enron.com> cc: <paul.garcia@enron.com>, <cathy.moehlman@enron.com> Subject: Re: Enron North America Corp. ("ENA") Global Custody and Clearance Agreement

Sara, I have reviewed this briefly and have a couple of issues/comments. I am concerned about the references to cash accounts. I need to discuss with the group. ENA is not authorized to operate cash accounts. Overdrafts and advances should not be permitted (sections 2Ciii and 4A) I need to discuss FX with Laurel. Again, ENA should not be operating cash accounts. Any verbal or fax instruction must be confirmed with callback or other security procedures. We have some sample call back procedures, test keys are mentioned but are messy. Need to discuss. 3C-authority to act should be predicated on following the agreed procedures. Maybe this is implied. In 2, it is mentioned that info can be given. I think it should be only if required by law. 5A, generally, we don't allow fees to be debited. 5C I agree with you 5C is ugly. I think this must be limited to the assets in the specific accounts related to the agreement. My number is 713 355 3814 Mary

----- Original Message -----

From: <Sara.Shackleton@enron.com> To: <mperkins@ix.netcom.com> Cc: <Sheila.Glover@enron.com> Sent: Friday, June 01, 2001 4:46 PM Subject: Enron North America Corp. ("ENA") Global Custody and Clearance Agreement

Mary: Attached is the latest draft from Chase. In particular, please take a look at the following paragraphs: 2.A (the definition of "Securities") 5.B (lien on securities) 5.C (setoff) The ENA contact is Gennaro Contella. Please leave me or Sheila a voice mail and we can arrange a conference call on Monday with Gennaro, Nancy Callahan, if necessary (Chase legal) and anyone that you need to

conference

in on behalf of Enron Corp. The traders are anxious to have this account in place. Irrespective of which Enron entity takes ownership of this agreement, we were looking to you for information regarding existing Chase accounts (in ENA's name). Thanks for your help. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/01/2001 04:38 PM ----- Nancy.K.Callahan @chase.com To:

Sara.shackleton@enron.com

cc:

Gennaro.Contella@chase.com

05/31/2001 01:45 Subject: Enron Global Custody and Clearance Agreement

PM As requested, attached is the final Agreement which I believe reflects the revisions we discussed this morning. If this is acceptable, please have the Agreement executed on behalf of Enron and return the necessary counterparts to me for signature by Chase. I will then return fully executed copies to you. (See attached file: Enron.doc) (See attached file: Enron.doc)

Message 106 of 1118

Re: Merchant Energy Group of the Americas

Sender sara.shackleton@enron.com

Recipients ['wendy.conwell@enron.com']

File shackleton-s/all_documents/11481.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/06/2001 03:37 PM -----

Susan Bailey 06/05/2001 05:40 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Subject: Re: Merchant Energy Group of the Americas

Sara or Mary,

Carol asked that I have one of you handle the following request for the captioned counterparty with respect to the financial consents.

++++
++++
++++

Carol is handling the consent for EPMI, and set forth below are her instructions to Rhonda Denton with EPMI

Rhonda: Enclosed is a clean and marked version of the MEGA Assignment. Is the plan to confirm these trades under the existing Master with Morgan until a new EEI Master is executed? What is the cutoff date for this assignment?

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Set forth below is original message I received from the Counterparty requesting such consents. I originally thought Carol would handle, but she said one of you should handle the financial piece for ENA. So attached hereto is that original message and the proposed consents:

Susan Bailey 05/14/2001 03:12 PM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: From MEGA, Consent to Assignment....

Carol,

Please review message below from Kristina Drew @ Merchant Energy. I thought you would be the appropriate lawyer to work on this as it involves EPMI as well as a derivative piece with ENA.

FYI: the assignment is not of immediate need, being that FERC approval must be secured.

If you do not think this to be the case, please advise as to who should work on this matter.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E-mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on

05/14/2001 03:06 PM -----

"Drew, Kristina" <DrewK@merchantenergy.com> 05/14/2001 03:05 PM

To: "susan.bailey@enron.com" <susan.bailey@enron.com> cc: "Abba Gana, Mustapha" <AbbaGanaM@merchantenergy.com> Subject: From MEGA, Consent to Assignment....

Susan,

Please find attached for your review, a Consent to Assignment Agreement between us, Enron North America Corporation and Morgan Stanley Capital Group Inc. We would like to have the document ready to execute at about the same time we execute the Physical Power Consent to Assignment Agreement with Enron Power Marketing, Inc., and we are waiting for FERC approval on the Physical Power Sales as well. I just wanted to present the agreement to you now, so that if it is necessary, we have time to discuss any concerns. I look forward to talking with you to work toward the execution of the Agreement.

<<ENA (Basis Swap) Assignment Consent Agreement 042501.doc>> <<ENA (Nat Gas) Assignment Consent Agreement 042501.doc>>

Thanks,

Kristina M. Drew Contract Administrator Merchant Energy Group of the Americas, Inc. 410.295.1708

- ENA (Basis Swap) Assignment Consent Agreement 042501.doc - ENA (Nat Gas) Assignment Consent Agreement 042501.doc

Message 107 of 1118

RE: Compagnie de Papiers Stadacona

Sender	jeff.blumenthal@enron.com
Recipients	['sara.shackleton@enron.com', 'laurel.adams@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/10835.

Susan,

EIM Holdings (Canada) Co., a Canadian Nova Scotia Unlimited Liability Company that is an indirect wholly-owned subsidiary of Enron Corp., acquired all of the shares of Daishowa Forest Products Limited, a Canadian corporation, on March 30, 2001. DFPL owns all of the shares of Compagnie de papiers Stadacona, Ltee., a Quebec corporation whose name Enron changed from "Daishowa, Inc." to "Compagnie de papiers Stadacona, Ltee." approximately two to three weeks after the acquisition of DFPL.

I don't know the date of the FX trade that you're asking about, but please note that we should be including language in each confirm reflecting that any hedging transaction entered into by Stadacona is properly identified as a hedge for U.S. federal tax purposes. Please let me know if you need that language.

Regarding the notice address in the ISDA, Peter del Vecchio should be able to provide you with what may be the new address for Stadacona, as I believe the address below is that of the company that sold the shares of DFPL to us.

I hope this helps. Please contact me at ext. 35777 if you'd like to discuss further.

Best regards. -----Original Message----- From: Bailey, Susan Sent: Wednesday, April 25, 2001 6:42 PM To: Blumenthal, Jeff Cc: Shackleton, Sara; Adams, Laurel Subject: Compagnie de Papiers Stadacona Importance: High

Jeff,

Sara has asked me to follow-up regarding the captioned Enron Affiliate and the need to confirm a trade.

Being that this Enron affiliate does not appear in the Corporate Database I was hoping you could furnish details regarding this Enron Affiliate, as follows:

1. When was the company incorporated??? 2. Where was it incorporated??? 3 Or did we acquire an existing company by virtue of an acquisition??? 4. What is the date of the FX trade, for which this Enron Affiliate is a party??? 5. If this is a newly formed Enron Affiliate was the date of the FX trade dated simultaneous with the company's incorporation??? 6. For notice purposes under the ISDA -- would we use the following???

Bay Wellington Tower - BCE Place 181 Bay Street, Suite 1540 Toronto, Ontario M5J 2T3 7. If the foregoing address for notice is sufficient -- please advise as to: (a) whom's attention, (b) phone number, and (c) fax number.

In discussing this matter with Sara, we have determined it would be a cleaner transaction if the FX trade could be confirmed under an RMT master rather than doing a Deemed ISDA confirmation. Therefore, once you furnish the foregoing information Sara and I will be able to decide what path to take in order to consummate this FX trade.

Thanks for the help.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 04/25/2001 06:22 PM -----

Sara Shackleton 04/25/2001 01:55 PM To: Susan Bailey/HOU/ECT@ECT cc: Subject: Deemed ISDA

Susan:

Laurel Adams has an FX deal where RMT must be a party. The counterparty is a 100% owned Enron sub named "Compagnie de Papiers Stadacona". When I last checked, nothing shows up in the corporate database. However, I have verified the name, ownership, etc. with Jeff Blumenthal. I will separately email you the counterparty info that I have.

We need a deemed ISDA for the parties. We should later do the ISDA when the information is available on the database (which could be any day, I suppose). I would just use our standard RMT format.

Please assign. Feel free to call me or Laurel with questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 108 of 1118

Re: Enron North America Corp. ("ENA") Global Custody and Clearance

Sender	sara.shackleton@enron.com
Recipients	[sheila.glover@enron.com', 'cathy.moehlman@enron.com']
File	shackleton-s/all_documents/11410.

Cathy: attached is Mary's email which you may not have received. Let me know if you need a separate copy of the existing (Global Custody) agreement draft which ENA has negotiated with Chase. I am hoping to conference in Chase as soon as we can.

Also, Mary mentioned that you should verify with Richard Sage (Enron Credit Ltd. in London) whether ECL is currently negotiating with BONY to put another "Global Custody Agreement" in place. He may be negotiating an almost identical agreement (not necessary if Enron Corp. is the contracting party or perhaps if ENA).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/04/2001 01:29 PM -----

"mike perkins" <mperkins@ix.netcom.com> 06/03/2001 04:09 PM

To: <Sara.Shackleton@enron.com> cc: <paul.garcia@enron.com>, <cathy.moehlman@enron.com> Subject: Re: Enron North America Corp. ("ENA") Global Custody and Clearance Agreement

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----- Original Message -----

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Mary: Attached is the latest draft from Chase. In particular, please take a look at the following paragraphs: 2.A (the definition of "Securities") 5.B (lien on securities) 5.C (setoff) The ENA contact is Gennaro Contella. Please leave me or Sheila a voice mail and we can arrange a conference call on Monday with Gennaro, Nancy Callahan, if necessary (Chase legal) and anyone that you need to

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in on behalf of Enron Corp. The traders are anxious to have this account in place. Irrespective of which Enron entity takes ownership of this agreement, we were looking to you for information regarding existing Chase accounts (in ENA's name). Thanks for your help. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/01/2001 04:38 PM ----- Nancy.K.Callahan @chase.com To:

Sara.shackleton@enron.com

cc:

Gennaro.Contella@chase.com

05/31/2001 01:45 Subject: Enron Global

Custody and Clearance Agreement

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Message 109 of 1118

FW: Merchant Energy Group of the Americas

Sender	wendy.conwell@enron.com
Recipients	['sara.shackleton@enron.com', 'jason.williams@enron.com']
File	shackleton-s/all_documents/11482.

Jay, Please see below and let us know who will be handing this from the gas side.

Thanks

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, June 06, 2001 3:37 PM To: Conwell, Wendy Subject: Re: Merchant Energy Group of the Americas

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/06/2001 03:37 PM -----

Susan Bailey 06/05/2001 05:40 PM To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Subject: Re: Merchant Energy Group of the Americas

Sara or Mary,

Carol asked that I have one of you handle the following request for the captioned counterparty with respect to the financial consents.

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FYI: the assignment is not of immediate need, being that FERC approval must secured.

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Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 05/14/2001 03:06 PM -----

"Drew, Kristina" <DrewK@merchantenergy.com> 05/14/2001 03:05 PM To: "susan.bailey@enron.com" <susan.bailey@enron.com> cc: "Abba Gana, Mustapha" <AbbaGanaM@merchantenergy.com> Subject: From MEGA, Consent to Assignment....

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<<ENA (Basis Swap) Assignment Consent Agreement 042501.doc>> <<ENA (Nat Gas) Assignment Consent Agreement 042501.doc>>

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Kristina M. Drew Contract Administrator Merchant Energy Group of the Americas, Inc. 410.295.1708

- ENA (Basis Swap) Assignment Consent Agreement 042501.doc - ENA (Nat Gas) Assignment Consent Agreement 042501.doc

Message 110 of 1118

Re: Merchant Energy Group of the Americas

Sender	sara.shackleton@enron.com
Recipients	['jason.williams@enron.com', 'larry.hunter@enron.com']
File	shackleton-s/all_documents/11512.

Joe:

Per Jay's voice mail to you, could you please take a look at the two exhibits attached to the two documents at the bottom of this email and verify the trades with Jay. MEGA wants to transfer the described financial trades and the ISDA Master Agreement to Morgan Stanley Capital Group Inc.. MEGA is making the same request on the physical side. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/07/2001 01:43 PM -----

Susan Bailey 06/05/2001 05:40 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Subject: Re: Merchant Energy Group of the Americas

Sara or Mary,

Carol asked that I have one of you handle the following request for the captioned counterparty with respect to the financial consents.

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"Drew, Kristina" <DrewK@merchantenergy.com> 05/14/2001 03:05 PM

To: "susan.bailey@enron.com" <susan.bailey@enron.com> cc: "Abba Gana, Mustapha" <AbbaGanaM@merchantenergy.com> Subject: From MEGA, Consent to Assignment....

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Kristina M. Drew Contract Administrator Merchant Energy Group of the Americas, Inc. 410.295.1708

- ENA (Basis Swap) Assignment Consent Agreement 042501.doc - ENA (Nat Gas) Assignment Consent Agreement 042501.doc

Message 111 of 1118

Re: Enron Credit Inc. ("ECI")

Sender	tom.doukas@enron.com
Recipients	['sara.shackleton@enron.com', 'cheryl.nelson@enron.com', 'derek.lee@enron.com']
File	shackleton-s/all_documents/10572.

Sara,

The point person in London has been Derek Lee.

He is here in Houston right now, and will be for the remainder of the week.

I would love it if we could coordinate both entities as one negotiation.

Perhaps you and derek should compare notes?

FYI - Ted Leh has sent a message to Jeff Kinneman that he is working with you on the docs. Thanks, that should ease management's mind somewhat as to continuing progress.

Thanks,

Tom

From: Sara Shackleton@ECT on 04/16/2001 03:54 PM To: Tom Doukas/NA/Enron@ENRON cc: Cheryl Nelson/NA/Enron@Enron

Subject: Re: Enron Credit Inc. ("ECI")

Tom:

I forwarded a copy of the ECI unanimous consent to Goldman to see if they will accept "as is". I have not heard back. Goldman legal will email repo docs.

Regarding Enron Credit Limited ("ECL"), I spoke with Goldman commercial and understand that someone (don't know who) from London ECL contacted Goldman inquiring about repos. I'm happy to facilitate with contacts, etc. so please let me know.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 04/16/2001 01:29 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: Enron Credit Inc. ("ECI")

Whenever you decide whether the UCD for ECI is sufficient or not please let me know urgently. Management in London has some aggressive expectations for a deliverable on repos. We will have to push back on them if the UCD has to be redrafted.

I would very much like to give management a clear status and a realistic time-frame for when we can expect to have the repo capacity in place.

I do recognize the time frame is highly dependent on what the current situation actually is. Therefore I am hopeful we can answer the below questions sooner than later.

If I can provide any help in anyway please let me know.

Tom,

04/16/2001 12:16 PM Cheryl Nelson Cheryl Nelson Cheryl Nelson 04/16/2001 12:16 PM 04/16/2001 12:16 PM Sent by: Cheryl Nelson To: Tom Doukas/NA/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT

Subject: Re: Enron Credit Inc. ("ECI")

Sara, I do not agree with the view that we cannot use the existing resolutions for repos. Please call me at your convenience so that we can discuss.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Tom Doukas 04/16/2001 08:55 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Re: Enron Credit Inc. ("ECI")

I am assuming that you are saying that if repos go through the Prime Broker accounts it is a problem. The problem being that the current brokerage agreements for ECI do not provide for repos. Is my assumption correct?

Is our UCD adequate as is for repos?

What is our existing format that you mention below?

Are you able to pursue this with Goldman right now today?

Thanks,

Tom

From: Sara Shackleton@ECT on 04/16/2001 08:36 AM To: Tom Doukas/NA/Enron@ENRON cc: Cheryl Nelson/NA/Enron@Enron

Subject: Re: Enron Credit Inc. ("ECI")

Tom:

I am not certain that the existing resolution permits repurchase and reverse repurchase transactions and securities lending, bonds borrow pledge, etc. as the brokerage consent was not written to accommodate these types of transactions. However, if the repo party will accept our existing format, then we need not worry. I'll call Ted Leh and try to find the proper

Goldman person.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 04/16/2001 08:10 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron, David A Wall/Risk Mgmt/LON/ECT@ECT, Greg Hedger/LON/ECT@ECT, Reza Rezaeian/EU/Enron@ENRON Subject: Re: Enron Credit Inc. ("ECI")

Sara,

Can you please provide your findings on the following items:

1. Determine with Cheryl that ECI is in fact authorized to transact Repos
2. How robust the Goldman Repo agreements are, and their suitability to ECI.
3. An estimate on how long it will take to set up the Goldman Repo Agreements in ECI's name.

Can you please also provide any ideas how ECI or ECL could transact a Repo trade today using existing documentation.

London has indicated an urgent need to carry out these transactions.

Thanks,

Tom

Message 112 of 1118

Re: Legal/Credit meeting

Sender	sara.shackleton@enron.com
Recipients	[cheryl.nelson@enron.com]
File	shackleton-s/all_documents/9537.

I appreciate your message. Just let the group know if you're unable to attend.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 03/01/2001 11:07 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Legal/Credit meeting

Sara, Keegan and I are aware of the time for the credit meetings; however, I had to complete an urgent task in order to leave early since I was not feeling well.

Cheryl Nelson Senior Counsel EB3880D (713) 345-4693

Sara Shackleton@ECT 02/28/2001 08:40 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Legal/Credit meeting

Cheryl: Please be sure to schedule our regular meeting with credit. We missed you yesterday.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 113 of 1118

RE: Lunch

Sender	sara.shackleton@enron.com
Recipients	['lynn.aven@enron.com']
File	shackleton-s/all_documents/10632.

See ya in el lobbyo at noon

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Lynn Aven/ENRON@enronXgate 04/19/2001 10:42 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Lunch

How about noon?

Lynn

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, April 19, 2001 10:22 AM To: Aven, Lynn Subject: Re: Lunch

Yes, I'm available. What time works for you? I'd rather go after 11:45.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Lynn Aven/ENRON@enronXgate 04/19/2001 09:45 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Lunch

Sara: Are you still on for lunch today? Where do they have good tunnel of fudge downtown? If you are available, let me know time and I will meet you in the lobby of the Enron Building.

Lynn

Message 114 of 1118

Morgan Stanley Capital Services Inc. ("MSCI") and ENA

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com']
File	shackleton-s/all_documents/11345.

Tanya: I faxed the prior credit worksheet (from 5/16/00) to you last week. Aaron Armstrong in London is asking for the draft ISDA. Have you had a chance to review the old credit?

Please let me know if I can help. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/31/2001 03:04 PM -----

Sara Shackleton 04/20/2001 02:27 PM

To: Tanya Rohauer/Enron@EnronXGate cc: Rod Nelson/LON/ECT@ECT Subject: Morgan Stanley Capital Services Inc. ("MSCI") and ENA

Tanya:

Our FX/currency traders in London need an ISDA with MSCI. Rod prepared a credit work sheet on 6/16/00. The negotiations never went anywhere. MSCI has now sent their form of agreement.

Do you want to propose new credit or use the existing credit from last year?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 115 of 1118

ISDA w/Enron Corp.

Sender	sara.shackleton@enron.com
Recipients	['terrance.ganser@funb.com', 'delene.travella@funb.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/11183.

Terry and Dee:

I am resending the draft ISDA which was sent to Terry and Vijay on April 25, 2001.

Please let me know if you have any questions. Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/23/2001 01:14 PM -----

Susan Bailey 04/25/2001 06:05 PM

To: terrance.ganser@funb.com, vijay.suchdev@funb.com cc: Sara Shackleton/HOU/ECT@ECT, Tanya Rohauer/Enron@EnronXGate Subject: ISDA w/Enron Corp.

Gentlemen:

Attached for your review is a draft of the Schedule to the ISDA Master Agreement.

FYI: The ISDA Master Agreement is a preprinted form for which the Schedule supplements, and such form is not able to be emailed. Therefore it is not attached to this transmission.

We look forward to your comments.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 116 of 1118

Re: Credit Suisse First Boston ("CSFB")

Sender	sara.shackleton@enron.com
Recipients	['jeff.nogid@enron.com']
File	shackleton-s/all_documents/8784.

Gosh, my memory is short!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jeff Nogid 01/23/2001 03:57 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Clint Freeland/Corp/Enron@Enron Subject: Re: Credit Suisse First Boston ("CSFB")

Sara-

I have left a message with Steven Haratunian asking him for a legal contact and their deal numbers for our 2 equity forwards. I will pass them on as soon as I hear from CSFB.

Jeff Nogid Enron Global Finance 713-853-4782

Sara Shackleton 01/23/01 03:52 PM

To: Jeff Nogid/HOU/ECT@ECT, Clint Freeland/Corp/Enron@Enron cc: Subject: Credit Suisse First Boston ("CSFB")

Clint/Jeff:

ENA has an ISDA master agreement with an affiliate of CSFB (but not CSFB). Can you provide me with the name of a CSFB lawyer so that I can send over a form of ISDA Master Agreement with Enron Corp.? Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 117 of 1118

RE:

Sender	sara.shackleton@enron.com
Recipients	['Carol', 'carol.clair@enron.com', 'St Clair']
File	shackleton-s/all_documents/10271.

Mark your calendar.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/03/2001 08:56 AM -----

Tanya Rohauer/ENRON@enronXgate 04/03/2001 08:51 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE:

11 works for me. I'll just come up there.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, April 03, 2001 8:35 AM To: Rohauer, Tanya Cc: St Clair, Carol Subject: Re:

Tanya:

Carol and I would like to meet with you tomorrow (Wed.) at 11 am. The credit worksheet would be a very timely issue for us. Does the time work for you?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tanya Rohauer/ENRON@enronXgate 04/03/2001 07:47 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject:

Sara,

I don't think we ever touched base on the issues surrounding the credit worksheet. Please let me know if we still need to talk. Thanks.

Message 118 of 1118

Re: KCS confirm

Sender	sara.shackleton@enron.com
Recipients	['diane.anderson@enron.com']
File	shackleton-s/all_documents/11250.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/25/2001 03:13 PM -----

Sara Shackleton 05/25/2001 02:39 PM

To: Diane Anderson/NA/Enron@ENRON cc: Subject: Re: KCS confirm

Diane:

Let's add these provisions and send off to George and Tanya. There are several blanks to be completed after everyone reviews.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Diane Anderson@ENRON 05/25/2001 11:10 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: KCS confirm

Sara,

The confirms pulled in under an ENA Master Agreement (dated 9/1/94), not under an ISDA Master Agreement, as Tanya was mentioning.

I looked in the Financial Trading Agreements database and confirmed the ENA Master.

After you've incorporated the changes, please send them back to me, because Derek is has to send them to George for his review, and then I'll fax them out:

Message 119 of 1118

ISDA Master Agreement between Enron Corp. ("Enron") and Lehman

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com', 'rhackman@lehman.com', 'clint.freeland@enron.com', 'jeff.nogid@enron.com', 'rweiss...']
File	shackleton-s/all_documents/10433.

SECOND REQUEST

Russ and Richard:

I have never had a response from anyone at Lehman about my prior attached message. Will one of you please call me?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/10/2001 09:25 AM -----

Sara Shackleton 04/02/2001 09:21 AM

To: rhackman@lehman.com, rweiss@lehman.com cc: Clint Freeland/Corp/Enron@Enron, Jeff Nogid/HOU/ECT@ECT, Tanya Rohauer/Enron@EnronXGate Subject: ISDA Master Agreement between Enron Corp. ("Enron") and Lehman Bros.

Finance S.A. ("Lehman")

Russ and Richard:

The referenced agreement was sent to you for execution on December 7, 2000. We have never received an executed original of the agreement or the guaranty from Lehman Bros. Holdings Inc. We have called on several occasions to locate these instruments.

Please let us know if there is a problem.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 120 of 1118

Re: Hedge Fund Meeting

Sender	carol.clair@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/carol_stclair/33.

Sara On the offsite, Frank has a doctor's appt. that afternoon and asked that we reschedule. Should we have it in the morning of the 24th or reschedule our 23rd c credit seminar? As for a list, I'm working on it. Last week was a blur with PG&E and Proctor & Gamble.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Sara Shackleton 04/16/2001 10:21 AM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: Re: Hedge Fund Meeting

Sure. I think we should ask Paul R. if anyone else from credit is necessary (London, perhaps?) and from legal, you, Brent and me.

Also, we need to refine the offsite now that we have a date set. I will be on vacation during the week of May 7 - 11. Were you able to put a list together?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 04/16/2001 09:46 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Hedge Fund Meeting

Sara: Do you want me to coordinate setting this up and if so, who should attend?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 121 of 1118

Enron Credit Inc. ("ECI") consent

Sender	sara.shackleton@enron.com
Recipients	['ted.leh@gs.com', 'gail.shanley@gs.com']
File	shackleton-s/all_documents/10579.

Gail:

The commercial team is pressuring for a fairly quick implementation of a repo agreement. If the consent which I sent yesterday is not satisfactory, please advise as soon as possible so that I can obtain a repo specific consent. Also, could you please submit repo documents to me for review.

I do not know who may have contacted you from the London group (Enron Credit Ltd.) but we can surely coordinate. That entity should have its own form of unanimous consent or resolution.

Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/17/2001 08:36 AM -----

Sara Shackleton 04/16/2001 02:36 PM

To: gail.shanley@gs.com cc: Subject: Enron Credit Inc. ("ECI") consent

Gail:

Attached is a form of ECI unanimous consent. Will you accept this for the purpose of signing a repo agreement and transacting thereunder? Please let me know.

Also, you can email repo documents to me.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 122 of 1118

Re: Trading Edge

Sender	samantha.boyd@enron.com
Recipients	['paul.radous@enron.com', 'jgreenberg@tradingedge.com', 'jpeters@andrews-kurth.com', 'mike.fowler@enron.com', ...]
File	shackleton-s/credit_watch/17.

Anthony and Joe:

I am back in the office and I want to follow-up on the status of the Prime Broker Letter. Please let me know how things are going at your earliest convenience.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Anthony:

In connection with preparing the Prime Broker Letter for Trading Edge, Inc. I wanted to provide you with information for our contact person at Trading Edge, Inc.:

Mr. Joe Greenberg Trading Edge, Inc. Clearing/Credit Department (212) 813-6043 jgreenberg@tradingedge.com

Mr. Greenberg will be expecting your call. I have also provide him with your contact information. Please remember to forward a copy of all correspondence with Mr. Greenberg to my attention for our files.

Joe:

Mike Fowler will be calling you to verify which Enron entity this transaction is for. Please provide that information to Anthony for the Prime Broker Letter.

Thanks for your assistance with this matter.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 123 of 1118

ISDA Master Agreement between ENA and The Ospraie Portfolio Ltd.

Sender	susan.flynn@enron.com
Recipients	['rod.nelson@enron.com', 'dharris@shearman.com', 'sara.shackleton@enron.com', 'jason.peters@enron.com']
File	shackleton-s/all_documents/2533.

Sorry - Here are the attachments.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 06/27/2000 11:35 AM -----

Susan Flynn 06/26/2000 03:40 PM

To: dharris@shearman.com cc: Jason Peters/Corp/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Rod Nelson/HOU/ECT@ECT, Per Sekse/NY/ECT@ECT Subject: ISDA Master Agreement between ENA and The Ospraie Portfolio Ltd.

Pursuant to your telecon with Jason Peters, attached are clean and redlined versions of the Schedule and Credit Support Annex to the referenced agreement. Please contact Jason Peters at (713)853-9720 with your questions and comments.

Also re: billing details for the opinion letter. The opinion letter should address both Cayman Island entities. The legal bill should provide a detailed, itemized accounting of the services rendered. The bill should reference the ISDA agreements. The bill should be sent to Sara Shackleton, Enron North America Corp., 1400 Smith Street, Suite EB3801, Houston, Texas 777002. Sara's phone number is (713) 853-5620.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 124 of 1118

Vitro Corporativo

Sender	susan.flynn@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/2308.

Sara - I also spoke with Souad in person to explain to her what the Exhibits to the Partial Assignment should be. She is preparing them for your review.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 06/08/2000 05:29 PM -----

Susan Flynn 06/08/2000 05:29 PM

To: Rod Nelson/HOU/ECT@ECT, Souad Mahmassani/Corp/Enron@ENRON, Larry Joe Hunter/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT Subject: Vitro Corporativo

Rod - Please review the attached documents and advise Sara if acceptable from a credit standpoint.

Souad - Once Sara and Rod say docs are Ok, you can dup them out for the 11 subs. Show Sara all docs before you send them to CP.

Sara - there is a Guarantor for Vidriera Mexico, S.A. de C.V. The Guarantor is --Vidro Envases Norte America, S.A. de C.V. Rod wants it to be an unlimited Guaranty on our form of CP GTY. I am sending the form of GTY to Eduardo Melo by fax tonight at fax number 011-528-378-4793. You will need to prepare a form of sub deemed ISDA for this sub to include the GTY.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 125 of 1118

Re: Docs	
Sender	susan.bailey@enron.com
Recipients	['sara.shackleton@enron.com', 'denis.o'connell@enron.com']
File	shackleton-s/all_documents/11625.

Sara,

Please see message below re: status of First Union ISDA.

Thanks.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 02/12/2001 10:55 AM -----

Denis O'Connell 02/12/2001 10:35 AM

To: "Roberts, Max" <max.roberts@funb.com> @ ENRON cc: Susan Bailey/HOU/ECT@ECT Subject: Re: Docs

Susan - can you give us an update on where we are re: the ISDA with ENA - many tks, Denis

"Roberts, Max" <max.roberts@funb.com> on 06/02/2001 19:32:01 To: "Denis O'Connell (E-mail)" <Denis.O'Connell@enron.com> cc:

Subject: Docs

Denis,

How are you doing? Hope things are going well for you.

Are you working on the ISDA Master btw Enron and First Union? Apparently, it is still not complete and I am getting some heat on this end. I would appreciate it if you could give me an update.

Any word from Mr. Webster lately? Every time I hear something about ML London it sounds like chaos.

Take care.

Max

Max Roberts Credit Derivatives Group

Phone: (704) 383-8689 Fax: (704) 383-0575 E-mail: max.roberts@funb.com

First Union National Bank One First Union Center, NC0600 Charlotte, NC 28288-0600

Message 126 of 1118

Re: Financial Deals to Assign

Sender	sara.shackleton@enron.com
Recipients	['larry.hunter@enron.com']
File	shackleton-s/all_documents/9833.

Thank you! (as usual, you're a life saver)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Larry Joe Hunter 03/15/2001 11:45 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Financial Deals to Assign

Sara,

All Nat Gas deals in the attachment below are under the format attached here:

None of the 53 deals include any additional provisions or representations.

Thanks, Joe

From: Sara Shackleton on 03/15/2001 10:27 AM To: Larry Joe Hunter/HOU/ECT@ECT cc: Subject: Financial Deals to Assign

I NEED!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/15/2001 10:26 AM -----

Tracy Ngo 03/14/2001 08:15 PM

To: jcukierman@exchange.ml.com cc: torr@exchange.ml.com, William S Bradford/HOU/ECT, Janice R Moore/HOU/ECT@ECT, Rhonda L Denton/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, rsheybani@exchange.ml.com Subject: Financial Deals to Assign

Yoram/Yair,

Attached please find Enron's records showing the outstanding gas financial swaps between Enron North America Corp. and Merrill Lynch Capital Services, Inc. Please let me know if this is in agreeance with your records.

Regards, Tracy 503-464-8755

Message 127 of 1118

ISDA Master Agreement between Enron North America Corp. ("ENA") and

Sender	sara.shackleton@enron.com
Recipients	['yyaish@exchange.ml.com', 'jlimone@exchange.ml.com', 'tracy.ngo@enron.com']
File	shackleton-s/all_documents/11119.

Yair:

Please give me a call. We need to execute the agreement this week. We do not want to restrict trading.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/21/2001 08:43 AM

Sara Shackleton 05/17/2001 03:11 PM

To: yyaish@exchange.ml.com cc: jlimone@exchange.ml.com, Tracy Ngo/Enron@EnronXGate, Brent Hendry/NA/Enron@Enron Subject: ISDA Master Agreement between Enron North America Corp. ("ENA") and Allegheny Energy Supply Company, LLC ("AESC")

Yair:

Tracy and Tom Moore have come to an understanding regarding the "Transfer" language for the ISDA Schedule and have agreed that AESC will propose language for ENA to review. We ask that you blackline that language in a final blacklined document for us to review.

We need to execute the ISDA Master Agreement (the "ISDA") now. I understand that Joe Limone and Brent Hendry have been discussing contingent call options and related documentation. ENA would like to incorporate these potential trades and other transactions under the new ISDA

If you prefer, ENA would be glad to take over the drafting of the ISDA. Please let me hear from you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 128 of 1118

Re: Employment Candidate

Sender	anna.jansson@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10869.

Sara, Just to confirm that you have the right mail address to me. Also, to let you know that we have received Kristina's CV/application and Michelle Kingsbury from my team will contact her shortly.

Kind regards Anna

From: Sara Shackleton@ECT on 24/04/2001 08:34 CDT To: Anna Jansson/EU/Enron@Enron cc:

Subject: Employment Candidate

Anna:

Could I please have your email address? Is it "anna.jansson@enron.com"?

Also, are you interested in receiving Kristina Fisher's resume via facsimile?

Regards

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/24/2001 08:33 AM

Sara Shackleton 04/20/2001 11:31 AM

To: Anna Jansson/EU/Enron@Enron cc: Subject: Employment Candidate

Anna:

I would like to fax the resume of Kristina Fisher to you (I do not have a word version to email). She is the candidate about whom we spoke recently. I have also asked Kristina to visit the website "www.enroncareers.com" and apply through that process. I assume that you are the person who receives inquiries on the website.

Please advise me of your fax number and I can send the resume directly to you.

Thanks so much for your interest.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 129 of 1118

RE: S&P and Moody's ratings

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'tanya.rohauer@enron.com']
File	shackleton-s/all_documents/10423.

Tanya: Do we need to differentiate between the MAC as used in the CSA and in the Schedule (as an "Additional Event of Default") with respect to the disappearance of a credit rating from either S&P or Moody's (or both) based on your usage in power masters?

I believe that we agreed that for purposes of the CSA (when S&P and Moody's are indicated on the credit worksheet), both ratings must disappear to trigger the MAC.

For purposes of an Additional Event of Default, should we just pose the question to credit?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/09/2001 05:47 PM

Edward Sacks/ENRON@enronXgate 04/09/2001 05:31 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Cargill Alliant master

It should say either; therefore, if one were to disappear, an Event of Default would occur. This was the intent and is probably consistent with that in the Master Power agmt.

-----Original Message-----

From: Shackleton, Sara Sent: Monday, April 09, 2001 5:22 PM To: Sacks, Edward Subject: Cargill Alliant master

Ed: For the Additional Event of Default (ratings trigger), do you intend the MAC to apply when only one or both credit ratings disappear?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 130 of 1118

RE: Allegheny Energy Supply

Sender	tracy.ngo@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11078.

me.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, May 17, 2001 8:58 AM To: Ngo, Tracy Subject: RE: Allegheny Energy Supply

Tracy: Thanks!!!! (and I'll call Yair in a day or so if I haven't heard from him)

New Question: Will you be handling credit for the Washington Public Utility Districts (Benton, Franklin and Grays Harbor)? I spoke with Jeff Fuller (PRM) and a lawyer for the PUDs yesterday and I'm analyzing the authority issue.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tracy Ngo/ENRON@enronXgate 05/17/2001 10:14 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Allegheny Energy Supply

Sara,

Spoke with Tom Moore this morning regarding the last outstanding issue (assignment clause for cp) and he is on board with my methodology and agrees as well. He and Yair will propose to Enron replacement language to get us where we need to be hopefully.

Tracy

-----Original Message-----

From: Shackleton, Sara Sent: Monday, May 14, 2001 12:11 PM To: Ngo, Tracy Subject: Allegheny Energy Supply

Tracy:

Did you and Yair finalize the "transfer" language? It seems that too many confirm questions are popping up and different forms are being drafted. We should be done with the ISDA.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 131 of 1118

Re: your request for FPL Energy Power Marketing ("FPL") ISDA

Sender	sgm@steelhector.com
Recipients	['morgan_davies@fpl.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/10088.

Sara: The second FPL entity is "FPL Energy Power Marketing Inc." It is the FPL entity that handles all trades for the non-regulated business units of FPL. We completed the ISDA agreements between Florida Power & Light Co. (the regulated utility) and ENA in early January and I then sent you on January 9th a red-line of the FPL Energy Power Marketing Inc./ENA drafts vs. the final executed Florida Power & Light Co./ENA agreements for ease of review, since the agreements were near twins though you may also recall that we had added a guaranty of FPL Group Capital Inc (FPL Energy Power Marketing Inc. debt is unrated, FPL Group Capital Inc debt is single A). I appreciate your assistance in helping to move this along. Regards, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 phone (305) 577-7001 fax

<Sara.Shackleton@enron.com> 03/26/01 12:46PM >>>

Serge:

Sorry to take so long to respond. A few things:

(1) What is the correct legal name of the entity you are inquiring about? Is it the unregulated marketing arm of the regulated utility?

(2) There has not been a commercial push from the ENA perspective to set up a new agreement with FPL which explains why I cannot get our credit group to react. I'll broach the topic again when I hear from you.

Please let me know if you have any other questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 132 of 1118

RE: Louis Dreyfus Plastics LLC master swap

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'Sayre', 'Frank']
File	shackleton-s/all_documents/10622.

Frank: Please refresh my geriatric mind! Are you handling this one?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/18/2001 06:23 PM

Nidia Mendoza/ENRON@enronXgate 04/10/2001 01:30 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Louis Dreyfus Plastics LLC master swap

Sara,

I checked with Frank and he is not handling it. My paralegal person is Stephanie Panus, but I believe she is out of the office this week. The latest on this master negotiation was that Stephanie was reviewing some comments from LDPLLC. She was working on this comments last Wed., and she said she was trying to get them done that same day. I have not heard back from Stephanie. Currently LDPLLC is trying to get some deals done on EOL with longer tenors, and Credit as well as LDPLLC want to get this master swap signed as soon as possible. Will you please check who in legal is reviewing this doc.?

Thanks for your help,

Nidia x3-4868

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, April 10, 2001 12:26 PM To: Mendoza, Nidia Cc: Sayre, Frank Subject: Re: Louis Dreyfus Plastics LLC master swap

I believe Frank is handling. Is there a problem? I approved them for LPG online last Friday (I think Tom Moran handled from credit).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Nidia Mendoza/ENRON@enronXgate 04/10/2001 11:59 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Louis Dreyfus Plastics LLC master swap

Sara,

Will you please let me know what is the status of this master swap?

Thanks for your help,

Nidia x3-4868

Message 133 of 1118

Re: Revision to Schedule

Sender	sara.shackleton@enron.com
Recipients	[dick.varner@eweb.eugene.or.us', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/8659.

Dick: Yes, please let me know who received the executed confirm (or you can fax me copies at 713-646-3490). We'll insert your bank info when we hear from you today and I'll Fed Exp execution copies this evening. Thanks so much for your help. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US> 01/04/2001 07:16 PM

To: <Sara.Shackleton@enron.com> cc: Subject: Re: Revision to Schedule

Your language is fine. I will get the bank info to you tomorrow.

We faxed back the confirm yesterday. Our mgmt assistant did it. If you need the name of the recipient, I can get that for you.

Dick

<Sara.Shackleton@enron.com> 01/04/01 03:04PM >>>

Dick:

After our conversation, I spoke with our settlements people again who requested an EWEB invoice when Enron owes money to EWEB. I propose that we add a section to the Schedule entitled "Accounts" (Part 3(h)) as follows:

"Prior to each payment date for any Transaction, Party A (ENA) shall provide Party B with an invoice reflecting the net payment owed by a party. Notwithstanding the foregoing, Party B shall provide Party A with an invoice prior to any payment date on which Party A owes a net payment to Party B. With respect to all payments hereunder, and except as otherwise directed in writing, the parties shall comply with the following payment instructions:

[bank, account no., ABA no.]"

Please provide me with EWEB's account data and let me know if you have any comments. I'll send the blackline immediately after I hear from you.

Also, I have not received EXECUTED CONFIRMATIONS. Have these been sent to anyone at Enron? Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 134 of 1118

Re: JP Morgan Equity Swap Basket Confirmation

Sender	jorge.garcia@enron.com
Recipients	[sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1983.

Good morning Sara,

I was out yesterday. I was involved in a car accident. I was at a red light behind 6 cars and a Toyota Corolla slammed into the back of my Explorer. I was at a stand still, he was travelling at least 40 mph. I ended up with a severe case of whiplash.

The other guys car was completely totalled. I'm sore today but ready to work.

I listened to your messages this morning. Aneela Charania, X 30951, is aware of the transaction. I spoke with Jeff this morning and provided him with her phone number.

Please advise if I can be of further assistance.

Thanks for your response regarding the JP Morgan Equity Swap Basket Confirmation.

Enjoy your day!

Jorge

From: Sara Shackleton@ECT on 06/06/2001 10:01 AM To: Jorge A Garcia/NA/Enron@ENRON cc:

Subject: Re: JP Morgan Equity Swap Basket Confirmation

Jorge: I never heard back from you about the ENE forward amendment? Did you speak with Jeff Nogid?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jorge A Garcia@ENRON 06/06/2001 08:19 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: JP Morgan Equity Swap Basket Confirmation

Thanks! Have a great day! JAG

From: Sara Shackleton@ECT on 06/05/2001 09:47 AM To: Jorge A Garcia/NA/Enron@ENRON cc:

Subject: Re: JP Morgan Equity Swap Basket Confirmation

These are fine as long as the economics are what was agreed.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jorge A Garcia@ENRON 05/30/2001 02:29 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: JP Morgan Equity Swap Basket Confirmation

Good Afternoon Sara,

I wanted to follow up with you regarding the JP Morgan Equity Basket Swap Confirmation. Please advise if the language is acceptable or if you recommend any changes.

Regards,

Jorge

Message 135 of 1118

RE: Legal Credit List

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/all_documents/10566.

Carol:

(1) see Tanya's note re: Occidental

(2) I think I negotiated either a confirm or Schedule with a Trust (I'll try to find). Of course, there are lots of structured deals with Trusts.

(3) I don't have strong feelings about the offsite - but I'd vote for the a.m. rather than change the legal credit seminar to accommodate the offsite.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/16/2001 02:52 PM -----

Tanya Rohauer/ENRON@enronXgate 04/16/2001 02:15 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Legal Credit List

Nova Scotia Power - this was pending a credit wkst from me. Weather desk was pursuing - I have not heard anything out of them regarding this customer and have not seen any trades other than the one. Brent may have heard more...If not, I am game with removing until the commercial team resurrects.

Occidental - I agree it has not moved forward. We can take off the list, but I will ask Brant/Jay to pursue on our end.

-----Original Message-----

From: Shackleton, Sara Sent: Friday, April 13, 2001 2:12 PM To: Rohauer, Tanya Subject: Legal Credit List

Tanya:

After the last meeting, I promised to ask you about the following:

(1) Nova Scotia Power Inc. - this shows up as "credit review". Should this remain on the list and if so, is there anything that legal needs to do?

(2) Occidental Energy Marketing, Inc. - this is the new "Forest Oil" of the list so I say let's forget it. No, seriously, Carol did revisit the latest draft and said it was pared down about as far as it could go. Further, she cannot get anyone at Occidental to return phone calls.

Please let me know what you would like to do.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 136 of 1118

Re: RMT/EEL confirmation

Sender	sara.shackleton@enron.com
Recipients	[jorge.garcia@enron.com]
File	shackleton-s/all_documents/10270.

George:

1. You didn't answer my question about "Calculation Period" and "IPA Modified Calculation Period".
2. Are you saying that EEL "elects" to increase/decrease the Basket Component Shares? Are you saying that the "IPA Number of Shares" is negative or the IPA is negative? Is the IPA negative when the Initial Price exceeds the Relevant Price?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jorge A Garcia@ENRON 04/03/2001 08:37 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: RMT/EEL confirmation

Good Morning Sara,

"Share Spread" is not applicable and should be deleted.

A negative IPA is subject to a specific swap traded. It would have to be a case where the Stock is already part of the Basket and they elect to unwind the swap and reduce the number of shares from the basket. For example, if 10,000 shares of XYZ Company were part of the original basket, they can trade off 5,000 shares of the swap effectively creating a negative IPA. The trade is mutually agreed upon.

Looking forward to meeting with you!

Jorge

From: Sara Shackleton@ECT on 04/02/2001 06:32 PM To: Jorge A Garcia/NA/Enron@Enron cc:

Subject: RMT/EEL confirmation

Jorge: I may send you some emails throughout the day to help clarify some things for me.

Where are your definitions of "Calculation Period" and "IPA Modified Calculation Period"?

In your definition of "IPA Floating Rate Payment", you use the term "Share Spread" which is not defined. What do you mean? There is a dangling definition of "Share Spread" at the end of the IPA Compensation section, but it refers to spreads appearing in either Annex I or Annex II.

In the "IPA Compensation" section, how is "a negative IPA elected"? Who is making an election?

Let's discuss tomorrow.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 137 of 1118

RE: Hess-Enron ISDA Agreement(s)

Sender	ddellacona@hess.com
Recipients	['sara.shackleton@enron.com', 'ccerria@hess.com']
File	shackleton-s/notes_inbox/3298.

Sara,

I do know that we just spoke today, however, I failed to bring an important issue up in our conversation. It is a priority of ours to allow Amerada Hess Corporation to trade on Enron On-Line. I know that this would be possible if we execute the ISDA. Therefore, can you give me a call so we can discuss an approximate date for execution or some other way that Amerada Hess Corporation could begin to trade on Enron On-Line.

Thanks,

Dana M. Dellacona 1185 Avenue of the Americas NY, NY 10036 Ph:212.536.8133 Fx:917.342.8810
ddellacona@hess.com

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Tuesday, February 06, 2001 7:11 PM To: ddellacona@Hess.com Subject: Hess-Enron ISDA Agreement(s)

Dana:

Mark Taylor asked that I look into this for you. Please give me a call and/or send me an email. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/06/2001 06:02 PM

Mark Taylor

To: Sara Shackleton/HOU/ECT@ECT

02/06/2001 cc:

05:51 PM Subject: Hess-Enron ISDA Agreement(s)

----- Forwarded by Mark Taylor/HOU/ECT on 02/06/2001 05:50 PM -----

"Dellacona,

Dana To: "mark.taylor@enron.com" <mark.taylor@enron.com> (Commodities cc:

- NY)" Subject: Hess-Enron ISDA Agreement(s) <ddellacona@H

ess.com>

01/26/2001

11:11 AM

Mark,

I would like to contact you in order to follow up to your conversation of last week with Mr. Chuck Cerria regarding executing an ISDA between numerous Hess entities and numerous Enron entities. Unfortunately, I do not have your phone number. Could you either call me or e mail it to me?

Thanks so much,

Dana Dellacona 212-536-8133

Message 138 of 1118

RE: Canadian Repo Documentation

Sender	marcelo_cosma@ml.com
Recipients	['sara.shackleton@enron.com', 'trowley@exchange.ml.com']
File	shackleton-s/all_documents/9189.

Sara:

Thank you. I'll await the remainder of the documents.

Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, February 14, 2001 12:18 PM To: Marcelo_Cosma@ml.com Subject: Re: Canadian Repo Documentation

Marcelo:

Thanks for the info. I'm attaching comments to Appendix C. I also have someone reviewing Appendix B and am preparing Appendix A.

(See attached file: MLrepo.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma,

Marcelo To: "'Sara Shackleton'" <Sara.Shackleton@enron.com> (Toronto-BCE) cc:

" Subject: Canadian Repo Documentation <Marcelo_Cosma@ml.com>

01/24/2001

09:24 AM

Sara:

As per our conversation yesterday, attached for your review and comment please find a draft Appendix C to the IDA Repurchase/ Reverse Repurchase Transaction Agreement marked to show changes from Annex I to the BMA Master Repurchase Agreement between Enron North America Corp. and Merrill Lynch.

<<DOC0123C.doc>> Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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(See attached file: DOC0123C.doc)

Message 139 of 1118

Re: hedge funds

Sender	caroline.abramo@enron.com
Recipients	['Fred Lagrasta/HOU/ECT@ECT', 'sara.shackleton@enron.com']
File	shackleton-s/abramo/20.

hi.. marty works on admin stuff.. chuck davidson is the portfolio manager

From: Sara Shackleton@ECT on 04/26/2001 10:24 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Fred Lagrasta/HOU/ECT@ECT

Subject: Re: hedge funds

Caroline:

Your email is the first I've heard of Arthur Amron as legal counsel. Do you have his email address? Also, who are Marty Lifgren and Charles Davidson at Wexford who received our documents? Are these individuals traders?

I will let you know who my backup will be.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/26/2001 10:05 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Fred Lagrasta/HOU/ECT@ECT Subject: Re: hedge funds

i gave you inside counsel for valentis / cd- arthur amron 203 862-7012.. ok- i guess i will have to get everything done monday and tuesday.. i am out from the 3-11 as well.. who can i have the rest of the team direct inquiries to in your absence.. frank?

thanks, ca

From: Sara Shackleton@ECT on 04/26/2001 09:33 AM To: Caroline Abramo/Corp/Enron@Enron cc: Brent Hendry/NA/Enron@Enron, Paul Radous/Enron@EnronXGate, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Carol St Clair/HOU/ECT@ECT

Subject: hedge funds

Caroline:

You should have already seen the two ISDA's (Valentis, CD Holdings) emailed yesterday evening per your instructions. I am still waiting for you to send information regarding inhouse/outside legal counsel for both parties.

The Schedule and Paragraph 13 sent to Valentis et al is very much like the hedge fund template which legal is refining. We are reviewing the first draft and commenting.

FYI - I will not be in the office on Friday, April 27. Also, the Enron legal conference is next week and the lawyers will be in San Antonio from May 2 (afternoon) through May 4. And finally, I will be on vacation during the week of May 7 - May 11. Please try to make plans (conference calls, counterparty comments, etc.) accordingly.

Let me know if you have any questions.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 140 of 1118

Re: ISDA Master Agreement between ENA and The Ospraie Portfolio

Sender	susan.flynn@enron.com
Recipients	['sara.shackleton@enron.com', 'Jason Peters' <Jason.Peters@enron.com>, 'Sara Shackleton']
File	shackleton-s/notes_inbox/1626.

FYI

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 06/29/2000 02:33 PM -----

"Daniel A Harris" <dharris@shearman.com> 06/29/2000 02:17 PM

To: Susan.Flynn@enron.com, Jason.Peters@enron.com cc: Steve.Waldman@tudor.com Subject: Re: ISDA Master Agreement between ENA and The Ospraie Portfolio Ltd.

Susan: That's right, the ISDAs will be substantially similar, although there will be some fund-specific differences, such as the Cross Default Threshold Amount. I will go ahead with Maples and "cc" Jason Peters. Thanks. Kind regards. Daniel Harris

"Susan Flynn" <Susan.Flynn@enron.com> on 29/06/2000 15:49:34

To: Daniel A Harris/LN/EU/ShS@ShSDOMAIN cc: "Jason Peters" <Jason.Peters@enron.com>, "Sara Shackleton" <Sara.Shackleton@enron.com>, "Per Sekse" <Per.Sekse@enron.com>, "Rod Nelson" <Rod.Nelson@enron.com>

Subject: ISDA Master Agreement between ENA and The Ospraie Portfolio Ltd.

Our Credit Department has approved Enron North America Corp. ("ENA") entering into ISDA Master Agreement with the following Tudor entities:

The Ospraie Portfolio Ltd. (which you have told us is a Cayman Island company) Tudor BVI Global Portfolio Ltd. (which you have told us is a Cayman Island company) Tudor Proprietary Trading, L.L.C. (which you have told us is a Delaware limited liability company)

It is our understanding that once we finalize the negotiation of the form of the ISDA Master Agreement for The Ospraie Portfolio Ltd., we will use substantially the same form to prepare ISDA Master Agreements for Tudor BVI Global Portfolio Ltd. and Tudor Proprietary Trading, L.L.C. Therefore, we are authorizing you to retain Cayman Island Counsel (we believe you are going to use the Maples Calder law firm) to prepare one legal opinion covering the ISDA Master Agreements between ENA and each of Tudor BVI Global Portfolio Ltd. and The Ospraie Portfolio Ltd.

If our understanding of these matters is incorrect, please immediately contact Jason Peters at (713) 853-9720.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 141 of 1118

Heinz: needs copy of their ISDA

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent/6220.

Susan: Would you please handle this? I'll also send Elliott Bonner's request with an address. It should match (we'll need to check) the master agreement address. Let me know if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/17/2001 09:11 AM -----

Elliot Bonner/ENRON@enronXgate 05/17/2001 09:08 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Swaps

-----Original Message-----

From: "Weltmer, Dewann (HNA)" <Dewann.Weltmer@hjheinz.com>@ENRON
[mailto:IMCEANOTES+22Weltmer+2C+20Dewann+20+28HNA+29+22+20+3CDewann+2EWeltmer+40hjheinz+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, May 17, 2001 7:17 AM To: Bonner, Elliot Subject: RE: Swaps

Hello Elliot, Sorry I couldn't get back with you until now. Either I am out of the office or in meetings all day. Last we spoke you were going to send me a copy of the previous agreed upon ISDA between Heinz and Enron. I believe you wanted our legal contact but is there anyway you can send the copy to my attention. I would like to have a copy for my files. We have not made a decision yet on linerboard swaps. I have a meeting with my General Manager on Monday PM and hope to know more. Can you please send me a copy of the ISDA prior to Monday PM? Thanks, Dewann Weltmer Heinz NA Procurement Packaging 412-237-3538 (phone) 412-237-3543 (fax) -----Original Message----- From:

Elliot.Bonner@enron.com [mailto:Elliot.Bonner@enron.com] Sent: Thursday, May 10, 2001 8:31 AM To: Dewann.Weltmer@hjheinz.com Subject: RE: Swaps Have you made a decision on this swap yet? Please let me know either way. Thanks. -----Original Message----- From: "Weltmer, Dewann (HNA)" <Dewann.Weltmer@hjheinz.com>@ENRON

[mailto:IMCEANOTES+22Weltmer+2C+20Dewann+20+28HNA+29+22+20+3CDewann+2EWeltmer+40hjheinz+2Ecom+3E+40ENRON@ENRON.com] Sent: Tuesday, May 01, 2001 6:10 AM To: Bonner, Elliot Subject:

Swaps Hi Elliott, I talked with Corby and today we have an offer around \$428/ton for 2 years 5,000 tons. Can you provide a better offer that we could discuss? Thanks, Dewann Weltmer Heinz NA Procurement Packaging 412-237-3538 (phone) 412-237-3543 (fax)

Message 142 of 1118

RE: ISDA Schedule/Paragraph 13

Sender	sara.shackleton@enron.com
Recipients	[yyaish@exchange.ml.com', 'tracy.ngo@enron.com']
File	shackleton-s/sent/6015.

Yair:

Attached is my redline. Call me so that we can discuss the remaining issues, including:

- (1) Calculation Agent. We believe that the existing dispute mechanism is adequate.
- (2) Procedures for Entering into Transactions. There is no procedure for dual confirms. This is too confusing.
- (3) Transfer. We cannot agree to your assignment provision as it is too subjective.

The other changes were not substantive.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Yaish, Yair (OGC)" <YYaish@exchange.ml.com> 04/10/2001 07:46 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: ISDA Schedule/Paragraph 13

Sara, any thoughts on my comments ISDA I sent out last week?

-----Original Message-----

From: Yaish, Yair (OGC) Sent: Thursday, April 05, 2001 6:19 PM To: 'Sara.Shackleton@enron.com' Subject: RE: ISDA Schedule/Paragraph 13

Sara, I have good news, I think we are very close to executing this baby.

I am attaching comments to the ISDA. They reflect comments by our outside counsel which highlight the differences between this contract and the side letter/ML ISDA. They are not much. I have also made some changes directly on their draft where I either concurred with Enron or needed to make some of my own changes. Pls review and let me know what you think.

I will be leaving the office soon, so if we can wrap it up tomorrow that would be great (I'm out Monday for Passover).

Yair Yaish Director and Senior Counsel Allegheny Energy Global Markets, LLC 212-236-7346

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, March 30, 2001 4:10 PM To: yyaish@exchange.ml.com Subject: ISDA Schedule/Paragraph 13

Yair:

Attached is a blacklined (against the Enron North America Corp. draft of 3/15/01) Schedule and Paragraph 13 to the ISDA Credit Support Annex. I have tried to incorporate the essence of the March 19, 2001 "swap side letter agreement." Please call me to discuss as it would be nice to finalize by April 6. Thanks.

(See attached file: 098a Blackline ctr (Allegheny Energy Supply).doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 143 of 1118

Joshua Tree

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/all_documents/4610.

by the way, THANKS. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 11/13/2000 09:52 AM -----

Teresa G Bushman 11/10/2000 05:20 PM

To: Sara Shackleton/HOU/ECT@ECT, Dan J Hyvl/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT cc: Subject: Joshua Tree

The term sheet is attached.

Thanks.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 11/10/2000 05:19 PM -----

Nora Dobin@ENRON 11/08/2000 04:38 PM

To: Teresa G Bushman/HOU/ECT@ECT cc: Tim Proffitt/HOU/ECT@ECT, Brenda L Funk/HOU/ECT@ECT Subject: Joshua Tree

Teresa, as I mentioned, attached is revised term sheet intended to reflect latest commercial changes but subject to legal review. Please particularly consider (with commercial and operational teams as appropriate) Engineering (eligibility) Criteria applicable to proposed VPPs, and proposed terms of Balancing Agreement, Master Natural Gas Purchase and Sale Agreement, and Master Crude Oil Purchase and Sale Agreement. Of course, any other thoughts you have are most welcome.

We are having an internal meeting (global finance, accounting and tax) to discuss term sheet at 2:00 PM on Friday, 11/10/00 in EB 2868.

If you can meet with us on Friday or otherwise give us feedback by Friday afternoon, it would help facilitate finalization of term sheet and movement to drafting of definitive documents.

Thanks, NJD

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

----- Forwarded by Nora Dobin/Corp/Enron on 11/08/2000 04:18 PM -----

"Robin Miles" <rmiles@bracepatt.com> 11/08/2000 02:53 PM

To: <james.r.allred@bankofamerica.com>, <richard.stein@bankofamerica.com>, <stephanie.pendleton@bankofamerica.com>, <nora.dobin@enron.com>, <tim.proffitt@enron.com> cc: Subject: B of A/Phoenix Term Sheet

Attached is a redline and clean version of the term sheet. Please call me or Jim Allred with any questions or comments.

Robin

Mr. Robin J. Miles Bracewell & Patterson, L.L.P. 711 Louisiana St., Suite 2900 Houston, Texas 77002 Ph: 713-221-1319
Fax: 713-221-2120 E-mail: rmiles@bracepatt.com

- Phoenix Term Sheet Company Redline.pdf - Phoenix Term Sheet.pdf

Message 144 of 1118

Re: FW: Chautauqua

Sender	brent.hendry@enron.com
Recipients	['caroline.abramo@enron.com', 'sara.shackleton@enron.com', 'frank.sayre@enron.com']
File	shackleton-s/all_documents/11267.

The Chautauqua Airlines master agreement has a confidentiality clause in it that precludes us from showing the agreement to third parties. The clause does allow the parties to show it to their "affiliates" who are required to keep the information confidential. In this case if Wexford is an "affiliate" of Chautauqua Airlines then Chautauqua can give Wexford a copy of the agreement. An "affiliate" would be an entity that would be controlling or under common control or controlled by the other entity.

The only way for us to deliver the agreement to Wexford is if we received a waiver from Chautauqua allowing us to give a copy of the agreement to Wexford. Please let me know if you have any questions.

Brent Hendry Enron North America 1400 Smith Street Houston, TX 77002 Phone: (713) 853-7124 Fax: (713) 646-3490

Caroline Abramo 05/25/2001 10:42 AM

To: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Brent Hendry/NA/Enron@Enron cc: Subject: Re: FW: Chautauqua

please... can you help with this... wexford ownd chautauqua and wants to compare that ISDA with the ones we have outstanding.. Valentis and CD Holdings (also owned by Wexford)

From: Darren Vanek/ENRON@enronXgate on 05/25/2001 10:15 AM To: Caroline Abramo/Corp/Enron@Enron cc:

Subject: FW: Chautauqua

Caroline, Due to the sensitive nature of the issue, I suggest that you discuss the disclosure of such documents with our Legal Group. Credit is not authorized to distribute these documents. Please call if you have any questions.

Darren Vanek 713-853-1436 -----Original Message----- From: Abramo, Caroline Sent: Friday, May 25, 2001 6:47 AM To: Brant Reves/HOU/ECT@ENRON Subject: Chautauqua

Brant- we are negotiating docs with more entities owned by Wexford.. they want to compare ISDAs.. can you please make sure someone in legal gets the Chautauqua ISDA to them today...

Thanks so much, Have a good weekend, Caroline 212 702 3910 ----- Forwarded by Caroline
Abramo/Corp/Enron on 05/25/2001 07:44 AM -----

Caroline Abramo 05/24/2001 05:41 PM To: Stephanie Panus/NA/Enron@Enron cc:

Subject: Chautauqua

stephanie/ marie.. can you please email or fed ex a copy of the executed master we have with chataqua to the counterparty and cc me:

Mark Zand mzand@wexford.com

wexford plaza 411 putnam ave. greenwich, CT 06830

tahnsk so much, please call me if any problems, kind regards, caroline

Message 145 of 1118

Re: Representations for ISDA Transaction

Sender	kimberly.hundl@enron.com
Recipients	['Kimberly Hundl/Corp/Enron@Enron', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/10615.

Hi Sara, I have attached the blank ISDA template that created for EWEB. The "Other Provisions" section has been highlighted in yellow so you can add special language.

Thank You, Kimberly Hundl x31647

From: Sara Shackleton@ECT on 04/18/2001 10:57 AM To: "Dick D VARNER"
<Dick.Varner@EWEB.Eugene.OR.US>@ENRON cc: Kimberly Hundl/Corp/Enron@Enron

Subject: Re: Representations for ISDA Transaction

Dick:

I am suggesting a minor change to the "Power Risk Management Committee" certificate (to eliminate the reference to the Exhibit "A"). If we leave the reference in the certificate, you will always have to label the confirm as Exhibit "A" and resend the completed papers to us. Please let me know if you are alright with this change. If so, we ask that you please resend the certificate dated April 12, 2001. If you do not wish to make the change, please resend the two certificates to which the confirmation labeled Exhibit "A" is attached.

Please call if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US> 04/12/2001 07:00 PM

To: <Sara.Shackleton@enron.com> cc: <Holli.Krebs@enron.com> Subject: Re: Representations for ISDA Transaction

Thanks, Sara. No problem making the changes.

<Sara.Shackleton@enron.com> 04/12/01 01:56PM >>>

Dick:

Attached are my comments to the certificates. We will need to attach the form of confirmation to be certain that each particular transaction is authorized. Let me know if you have any questions. Thanks.

(See attached file: EWEBISDA Confirm RepresentationsR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eug To: <sara.shackleton@enron.com> ene.OR.US> cc:
<Holli.Krebs@enron.com>, "Bert I DUNN" <Bert.Dunn@EWEB.Eugene.OR.US> 04/12/2001 11:09 AM Subject:
Representations for ISDA Transaction

Attached are drafts of two certificates which I believe will satisfy you needs. Please get back to me with any comments.

(See attached file: ISDA Confirm Representations)

Message 146 of 1118

Re: Fwd: Florida Power & Light Company - Attached Files

Sender	jason.peters@enron.com
Recipients	['sara.shackleton@enron.com', 'sgm@steelhector.com']
File	shackleton-s/all_documents/2326.

Serge,

Attached for your review, please find a blacklined copy of the FPL-Enron ISDA marked to show changes to the draft previously provided to us. Please provide us with your comments to the Credit Support Annex at your earliest convenience. I am in the process of obtaining approval to release our long form ISDA (it should not be a problem) and I will forward it to you shortly. please call me at 713-853-9720 with any comments or questions.

"Serge Martin (SGM)" <Sgm@Steelhector.com> 05/17/2000 09:02 AM

To: jason.peters@enron.com cc: Subject: Fwd: Florida Power & Light Company - Attached Files

Jason: As you requested I am forwarding a copy of my March note to Sara with the clean and marked copies of the FPL-Enron ISDA schedule attached. I have a small favor to ask too, if I may. By coincidence I am updating a form of long-form ISDA confirm for the same client (i.e., the form used where an ISDA master agreement is not even in draft yet and a large trade is made). I have seen and prepared a good number of these, but I've not seen Enron's. Since your schedule was one of the best drawn I've seen (and I've seen maybe 100), I'd appreciate your sending me a reference copy of your long-form confirm, if you wouldn't mind. I'd be happy to reciprocate. Regards, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 voice (305) 577-7001 fax

Date: Mon, 27 Mar 2000 13:22:07 -0500 From: "Serge Martin" <Sgm@Steelhector.com> To: Sara.Shackleton@enron.com Subject: Florida Power & Light Company - Attached Files

Sara: Enclosed are clean and marked copies of a revised schedule for the proposed ISDA master agreement between Enron and FP&L. I have only reviewed and commented at this time on the master agreement's schedule itself (I have left the credit support annex attached within the same document, as you sent it, but have not yet reviewed or commented on it, so ignore it for now). I have reviewed many such schedules and found your form to be quite good (as you may know, those of some large market-makers are not so good, so please don't take this as patronizing; it's a sincere compliment). Hopefully you will find the revisions equally acceptable. I look forward to your comments or approval. Regards, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 voice (305) 577-7001 fax

- 570710_2.DOC - 572856_1.DOC

Message 147 of 1118

Goldman, Sachs & Co

Sender	sara.shackleton@enron.com
Recipients	['cheryl.nelson@enron.com']
File	shackleton-s/all_documents/8645.

Per my voice mail. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/04/2001 08:30 AM -----

"Siao, Vivian" <vivian.siao@gs.com> 01/03/2001 04:59 PM

To: "'sara.shackleton@enron.com'" <sara.shackleton@enron.com> cc: "Leh, Ted" <ted.leh@gs.com> Subject: Goldman, Sachs & Co

The Goldman Sachs Client Access Agreement (the "Agreement") and/or Schedule A -- Electronic Trading Services ("Schedule A") are attached for your review and signature. The Agreement and Schedule A are required for each legal entity whose trading personnel are enabled to access Goldman Sachs' electronic systems. The documents must be signed by an authorized signatory of the legal entity(ies) that employs each enabled person. The list of persons within your organization that have been enabled to access Goldman Sachs electronic systems and their associated legal entity(ies) are listed below. If the Legal Entity name is incorrect, please indicate the appropriate name for purposes of this Agreement and Schedule A. Please list all enabled users and their corresponding legal entity on Schedule A-ETS Authorized Users. You may add additional users or delete ones that are currently enabled.

Enabled users Legal Entity Harry Arora Enron NA

Please complete, date and sign both the Agreement and Schedules separately. Please pay special attention to the following points:

* At the top of the document -- "Client:" Fill in the legal name and the address of the entity that will execute both the Agreement and Schedule A. If the document is intended to cover more than one entity, please list in a separate annex each entity that the document covers.

* Next to the line "Attn:" Fill in the name and title of the authorized person that is signing the document on behalf of the legal entity.

Please return the completed and signed documents via fax to:

GS contact: Vivian Siao

Fax: 212-428-1872

Phone: 212-902-1429

Any questions regarding the Agreement or Schedule A should be directed to the GS contact listed above.

<<Client Access Agreement.pdf>> <<generic e-trading ver3.sch.pdf>> <<Authorized User Annex to Schedule A-ETS.pdf>>

Vivian Siao Stephan Fixed Income, Currency & Commodities Compliance Tel: (212) 902-1429 Fax: (212) 428-1872

- Client Access Agreement.pdf - generic e-trading ver3.sch.pdf - authorized user annex to Schedule A-ETS.pdf

Message 148 of 1118

Re: Ag's Recurring Staff Meeting Notification for 2001

Sender	sara.shackleton@enron.com
Recipients	['Billy Lemmons/Corp/Enron@ENRON', 'Maxine', 'robert.bruce@enron.com', 'Elsa Piekieniak/Corp/Enron@Enron']
File	shackleton-s/sent/5346.

Thanks. I'd like to attend today. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Robert Bruce@ENRON Sent by: Robert Bruce@ENRON 01/22/2001 09:10 AM

To: Alan Aronowitz/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Ag's Recurring Staff Meeting Notification for 2001

If you are available/interested

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com
----- Forwarded by Robert Bruce/NA/Enron on 01/22/2001 09:10 AM -----

Carmella Jones 01/22/2001 08:23 AM

To: Erin Willis/HOU/ECT@ECT, Mark Slaughter/NA/Enron@Enron, Mauricio Mora/NA/Enron@Enron, Maria Arefieva/NA/Enron@ENRON, Ted Noble/HOU/ECT@ECT, Trena McFarland/NA/Enron@Enron, Darren Maloney/Corp/Enron@ENRON, Dan Feather/NA/Enron@Enron, Rommel Aganon/Corp/Enron@Enron, Jose Marquez/Corp/Enron@ENRON, Vasant Shanbhogue/HOU/ECT@ECT, Israel Estrada/Corp/Enron@ENRON, Brant Reves/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Chris Long/Corp/Enron@ENRON, Lisa Yoho/NA/Enron@Enron cc: Billy Lemmons/Corp/Enron@ENRON, Elsa Piekieniak/Corp/Enron@Enron, Maxine E Livingston/Corp/Enron@Enron, Laura Mireles/Corp/Enron@ENRON Subject: Re: Ag's Recurring Staff Meeting Notification for 2001

Reminder! Please plan to attend today's staff meeting at 1:30 in EB30C2.

Thank you.

From: Carmella Jones 12/11/2000 04:48 PM

To: Erin Willis/HOU/ECT@ECT, Mark Slaughter/NA/Enron@Enron, Mauricio Mora/NA/Enron@Enron, Maria Arefieva/NA/Enron@ENRON, Ted Noble/HOU/ECT@ECT, Trena McFarland/NA/Enron@Enron, Darren Maloney/Corp/Enron@ENRON, Dan Feather/NA/Enron@Enron, Rommel Aganon/Corp/Enron@Enron, Jose Marquez/Corp/Enron@ENRON, Vasant Shanbhogue/HOU/ECT@ECT, Israel Estrada/Corp/Enron@ENRON, Brant Reves/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Chris Long/Corp/Enron@ENRON, Lisa Yoho/NA/Enron@Enron cc: Billy Lemmons/Corp/Enron@ENRON, Elsa Piekieniak/Corp/Enron@Enron, Maxine E Livingston/Corp/Enron@Enron, Laura Mireles/Corp/Enron@ENRON

Subject: Ag's Recurring Staff Meeting Notification for 2001

Due too the upcoming holidays/vacation schedules, we will not have another staff meeting until January 2001. The meetings will still occur every other Monday, from 1:30 to 2:30 in EB30c2 (pls. note the first meeting is scheduled for Monday, January 8th).

New York participants/traveller's will be connected via bridge line. To access the bridge line dial 888-476-3757, listen for the beep then dial the six digit pass-code number, 934 803. You will automatically be connected into the conference.

If you have any questions or concerns, please contact me at (713) 853-5879.

Thanks, Carmella

Message 149 of 1118

Re: FW: Futures Agreement

Sender	sara.shackleton@enron.com
Recipients	['samon_corinne@jpmorgan.com']
File	shackleton-s/all_documents/9409.

Corinne:

Thanks so much for the voice and emails. I'm reviewing your comments now and ask that you please forward your rate schedule and arbitration language/reg. Thank.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpmorgan.com> 02/23/2001 11:24 AM

To: sara.shackleton@enron.com cc: Subject: FW: Futures Agreement

Sara, As per my voice mail the attached document contains JPM's comments.

(See attached file: JPMorganFuturesEnronBlklned2232001.doc)

With regard to Section 2, 6(c), 14, 17 and 24:

Section 2: Our debit rate benchmark for \$ is the 30 day Libor rate with a spread. We typically do not reference the rate in the agreement to allow for changes. We do have an interest schedule that I can have e-mailed to you on Monday when the salesperson returns. Section 6 (c): Our credit rate benchmark for \$ is the 13 wk T-bill with a spread. As above, we typically do not reference the rate in the agreement to allow for changes as agreed between JPMFI and Client. I will have our salesperson include this schedule in the e-mail. Section 14: If we are to include arbitration language, the CFTC mandates the exact form (180.3 of the CEA). I can fax you the language and the reg. Please send me an e-mail with your fax number. Section 17: Unfortunately we cannot accept the additional language. Clients are sent daily statements in which they are required to notify us any objections within 24 hours since the nature of the futures market is such that large market movements can occur over short periods of time. The monthly statement is a recap of the daily statements and the same reasoning applies. Section 24: We can accept the deletion of the witness line as long as Enron does not intend to trade SGXDT.

Please feel free to call me at your earliest convenience (212) 648-4292.

Thank you and Regards, Corinne

Thomas P Alterson 02/22/2001 01:01 PM

To: Corinne A Samon@JPMORGAN cc: Subject: FW: Futures Agreement (Document link not converted)

Sara.Shackleton@enron.com on 02/22/2001 10:27:22 AM

To: alterson_thomas@jpmorgan.com cc: Subject: Futures Agreement

Thomas:

Attached is a redline of the Client Agreement. I know that Gary Hickerson will be meeting with J P Morgan early next week and would like to have this agreed. Please advise as to what attorney will review my comments and put me in touch with that person today. Please let me know if you have any questions. Thanks.

(See attached file: JPMorganFutures.R1doc.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

- JPMorganFutures.R1doc.doc - JPMorganFuturesEnronBlklned2232001.doc

Message 150 of 1118

Enron -- Goldman Sachs Futures Documentation

Sender	sara.shackleton@enron.com
Recipients	['ficc-nyfutlegal <ficc-nyfutlegal@ny.email.gs.com>', 'Wenger', 'kaye.ellis@enron.com', 'Lynsey']
File	shackleton-s/sent/6170.

Kaye:

Please print copies of the attached documents but I will need 2 copies of the first document.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/01/2001 10:23 AM -----

Sheila Glover 04/30/2001 06:34 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Enron -- Goldman Sachs Futures Documentation

Sara. Goldman agreement. sg ----- Forwarded by Sheila Glover/HOU/ECT on 04/30/2001 06:34 PM -----

"Mordini, Elisa" <elisa.mordini@gs.com> on 04/30/2001 03:49:49 PM To: "sheila.glover@enron.com" <sheila.glover@enron.com> cc: ficc-nyfutlegal <ficc-nyfutlegal@ny.email.gs.com>, "Wenger, Lynsey" <lynsey.wenger@gs.com> Subject: Enron -- Goldman Sachs Futures Documentation

Sheila,

As requested by Lynsey Wenger, attached for your review and use is our futures documentation (in pdf format). Booklet I contains the actual futures account agreement; Booklet II contains disclosures for your review and retention.

I am providing you with the below checklist to facilitate your efforts in gathering the appropriate supporting documentation to provide us when opening a futures account.

Supporting Documentation to be provided with fully executed Futures Account Agreement

* IRS Form W-8 or W-9, as applicable, must be fully completed/executed..

* Documents that authorize the use of futures and establish the client's existence:

For the corporation, a certified resolution, internal investment guidelines and/or operating agreement.

For a pension - a trust agreement.

* Audited financials.

* Signature authority (generally in the form of a resolution).

Please call me at 212 902-0861 if you have any questions.

<<BOOK 1 MASTER JANuary 1999 (2).pdf>> <<BOOK 2 MASTER FEB 2001.pdf>> <<fw8ben.pdf>> <<iw8ben.pdf>> <<fw9.pdf>>

Elisa ~~~~~ Elisa Mordini Legal Dept - Futures Services Goldman, Sachs & Co. Tel: (212) 902-0861 Direct Fax: (212) 428-1645 Dept Fax (212) 357-1049 elisa.mordini@gs.com

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- BOOK 1 MASTER JANuary 1999 (2).pdf - BOOK 2 MASTER FEB 2001.pdf - fw8ben.pdf - iw8ben.pdf

Message 151 of 1118

RE: FX trade Counterparty

Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com', 'Laurel Adams/HOU/ECT@ECT']
File	shackleton-s/all_documents/10704.

Anything is possible, but I would say not in the near future since the original investor deal fell through.

-----Original Message-----

From: Shackleton, Sara Sent: Monday, April 23, 2001 9:22 AM To: Rohauer, Tanya Subject: RE: FX trade Counterparty

Is there any intention of selling off equity in this company? If so, in the near future?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tanya Rohauer/ENRON@enronXgate 04/19/2001 07:52 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: FX trade Counterparty

This is where the Daishowa mill assets are held so they are eligible; additionally, this is 100% owned Enron sub. Let me know if you have any questions.

Thanks, Tanya

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, April 18, 2001 5:58 PM To: Rohauer, Tanya Subject: FX trade Counterparty

Tanya:

Bob Crane did a deal with the Canadian party identified below. Sounds like he originally told our FX trader that the parties would be EGM (actually ENA) and Enron Industrial Markets ("EIM"). In the end, EIM was not the correct party but the Canadian party was the correct party.

Is this trade between ENA and Compagnie de Papiers Stadacona authorized by credit? Is the company eligible?

Please let me know what you think. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/18/2001 05:53 PM

Laurel Adams 04/17/2001 05:22 PM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Sara,

Are we able to do FX deals with the company shown below? Also, would this be an RMT confirm or an ENA confirm?

----- Forwarded by Laurel Adams/HOU/ECT on 04/17/2001 05:20 PM ----- From: Ana Rizvi on 04/17/2001 04:59 PM To: Clara Carrington/HOU/ECT cc: Laurel Adams/HOU/ECT@ECT Subject: changes needed for currency trade confirmation

see below...

ana

----- Forwarded by Ana Rizvi/HOU/ECT on 04/17/2001 03:14 PM

From: Bob Crane/ENRON@enronXgate on 04/17/2001 04:51 PM To: Ana Rizvi/HOU/ECT@ECT, William Stuart/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Ana,

The information on the confirm executed (deal no. m439607) between EGM and EIM needs a couple of changes. Please make the counterparty:

Compagnie de papiers Stadacona Bay Wellington Tower - BCE Place 181 Bay Street, Suite 1540, P.O. Box 822 Toronto, Ontario, Canada M5J 2T3

And the bank accounts should be

Account Name Currency Notes

2013883015 EIM Holdings, (Canada) Inc. US\$ Primary concentration & funding account Co# 1469 Receives US\$ deposits from BoA collections US\$ collection Funds FX settlement for Can\$ Funding source for BNS US\$ accounts

2013883007 EIM Holdings, (Canada) Co. Can \$ Can\$ deposit account Co# 1469 Deposit Acct for FX purchases of Can\$ Primary funding account for operations

Thank you

Bob Crane

Message 152 of 1118

RE: ENA credit derivative transaction

Sender	sara.shackleton@enron.com
Recipients	['Shackleton', 'Sara', 'jorge.garcia@enron.com']
File	shackleton-s/all_documents/11104.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/18/2001 09:27 AM -----

Guenther Klar/Enron@EUEnronXGate 05/18/2001 07:17 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Janine Juggins/ENRON@EUEnronXGate Subject: RE: ENA credit derivative transaction

Sara

Not sure how much I can add on this other than a little background, of which you may already be aware.

Enron Credit has a trader in Houston. His name is Seung-Taek Oh. In respect of two of Enron Credit's counterparties, First Union and Swiss Re, Seung-Taek trades in the name of ENA, because ENA has ISDAs with these counterparties. I had always understood that this was intended to be a temporary fix while Enron Credit Inc was concluding its own ISDAs with these counterparties. No other traders, and in particular no London-based traders, trade with these counterparties in the name of ENA.

The particular trade you mention was executed in Houston by Seung-Taek. I had always understood that Seung-Taek had authority to trade in ENA's name. It may be worth following up with Jeff Kinneman on this point.

In terms of giving you the full picture, the following may be useful.

Enron Credit is sending a new trader out to Houston. His name is Nick Stephan. I imagine he will want to trade with First Union and Swiss Re in the name of ENA until Enron Credit Inc's ISDAs are concluded.

Denis O'Connell and I have been talking about drafting an ISDA borrowing agreement between ENA and Enron Credit Inc. We'll send a draft through to you.

Enron Credit's originator in New York, Bridget Fraser, is talking to a few counterparties that want to trade both credit derivatives and commodities. The issue we're having to deal with is which Enron entity should face counterparties for

multi-product ISDAs. Barrick Gold is the only live one. I've been keeping Steve Douglas in the loop on the ENA tax side. Ed Cooper has been involved on the Enron Credit legal side - you may want to contact him.

Trust this is of use - feel free to give me a call.

Kind regards

Guenther

-----Original Message-----

From: Juggins, Janine Sent: 17 May 2001 18:08 To: Klar, Guenther Cc: Shackleton, Sara Subject: FW: ENA credit derivative transaction

Sara, I think Guenther may have been involved in this transaction. He is out of the office today but back tomorrow and will follow up with you directly. I will be in Houston next week so may stop by to say hello. Regards Janine -----Original Message----- From: Shackleton, Sara Sent: 17 May 2001 17:21 To: Juggins, Janine Subject: ENA credit derivative transaction

Janine:

First Union National Bank ("FUNB") entered into a credit derivative trade with ENA effective 20 April 2001 (our trader was a London trader). Although ENA has a Master ISDA Agreement with FUNB (the "ISDA"), this does not appear to be the impetus for the booking since the confirm didn't reference the ISDA.

Is ENA alright confirming trades in this manner?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 153 of 1118

Re: ISDA/Financial Trades for Washington State PUD's and Muni's

Sender	sara.shackleton@enron.com
Recipients	['stewart.rosman@enron.com', 'Stephanie Panus/NA/Enron@Enron']
File	shackleton-s/all_documents/9079.

Thanks - I'm sure glad one of us is thinking!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Stewart Rosman 02/09/2001 12:36 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: ISDA/Financial Trades for Washington State PUD's and Muni's

The four counterparties are munis.

I believe you are referring to the City of Oakland not Portland with respect to the ISDA.

Stewart

From: Sara Shackleton on 02/09/2001 12:28 PM CST To: Stewart Rosman/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron Subject: Re: ISDA/Financial Trades for Washington State PUD's and Muni's

Stewart:

I'd be glad to draft a "sample ISDA" for you and Jeff to use. Please verify that the type of counterparty you are looking at will be a municipal/governmental.

On a related matter, we are still waiting to speak with Ed Sachs about the credit rating for the City of Portland and should have the agreement to you afterwards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Stewart Rosman 02/09/2001 12:02 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ISDA/Financial Trades for Washington State PUD's and Muni's

Sara -

Jeff Fuller is interested in pursuing ISDA's with a number of his other customers after a successful experience with Merced Irrigation District. He would like a generic ISDA to start with and hopes to negotiate four ISDA's in the near future. The purpose of the ISDA will be to hedge their price risk once they get a piece of slice (this is a BPA plan to allocate slices of their system to customers). Feel free to call me if you have any questions at 503-464-3810.

Stewart ----- Forwarded by Stewart Rosman/HOU/ECT on 02/09/2001 10:45 AM -----

Enron Capital & Trade Resources Corp.

From: Jeff Fuller <JFuller@prmlp.com> 02/09/2001 08:06 AM

To: "Stewart Rosman" <Stewart.Rosman@enron.com> cc: Subject: ISDA/Financial Trades for Washington State PUD's and Muni's

Stewart,

PRM has 4 utility clients (Benton PUD, Franklin PUD, Grays Harbor PUD and City of Richland) that will be purchasing BPA's Slice product beginning October 1, 2001. I want to get the process started to get ISDA's in place between Enron and these utilities. We are currently in the beginning stages of discussing financial trades with their legal counsel. Fortunately for Enron, I think we can have one attorney represent all 4 of PRM's clients. (FYI, that attorney will be Doug Rosenberg at Preston Gates & Ellis in Seattle.)

To get started, I'd like Enron to forward to me copies of the ISDA agreement that you would propose as the starting point for discussions. I also ask that you send me a list/examples of any other documentation Enron will require (e.g., legal opinion, board resolution, etc.). Please send just one set of documentation at this point. I want to get the basic legal review process underway before you prepare four different sets of documents. I'd also like to request that when we get to the point of having Enron's attorney walk through the ISDA with our attorney, that Enron use Sara Shackleton. Sara was great to work with when we went through this for Merced, and I think she'd be extremely helpful once again as we venture into new territory with these 4 utilities.

Thanks for your help.

Jeff

Message 154 of 1118

Re: Raymond James Brokerage Agreement & more

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9068.

Sara,

The emails -- with respect to the priority agreements -- should be in lotus notes since I immediately forwarded the emails to Sam and Stephanie asking that they put the information in there.

I think that after we get the priority agreements done in the next few days hopefully, we can get lotus notes updated for all of the agreements.

Cheryl Nelson Senior Counsel EB3875 (713) 345-4693

Sara Shackleton@ECT 02/08/2001 04:25 PM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Subject: Re: Raymond James Brokerage Agreement & more

You are correct in that I do not need the emails. However, when I receive calls from Sheila or Gary or a counterparty, I rely upon Lotus Notes and the information is not there. I know that everyone is working diligently to satisfy the traders' requests. The emails you are sending can be entered directly into the database so that everyone can access the information. I will be glad to show you how to utilize this feature.

What do you think is a reasonable date to ask Sam and Stephanie to complete their review of the brokerage agreements in Lotus Notes?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 02/08/2001 03:46 PM

To: sara.shackleton@enron.com cc: Subject: Raymond James Brokerage Agreement & more

Sara, earlier this week, I asked Stephanie and Samantha to update lotus notes on the brokerage agreements that we prioritized last week. In addition to lotus notes, I often send emails to the traders to keep them updated -- as the attached is an example. If you would like to be copied so that you know what's going on -- i.e., that I am working diligently on the brokerage agreements on a daily basis, let me know. I figured that you did not want to be flooded with the emails and that, instead, we would meet every other week for an update. Let me know -- whatever makes you feel more comfortable is what I would like to do.

Cheryl Nelson Senior Counsel EB3875 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 02/08/2001 03:42 PM -----

Cheryl Nelson Sent by: Cheryl Nelson 02/08/2001 10:38 AM

To: aneela.charania@enron.com cc: Subject: Raymond James Brokerage Agreement

Hey Aneela, here is the other email sent to Paul this week. As you can see from the attached, we are still in the process of discussing key issues with RJ, the agreement is not yet in execution posture. In a phone call subsequent to the attached email, we resolved all of the issues identified below (in Enron's favor), except for the limitation of liability issue (see my previous email to you) that Paul and I are looking into. I just want to convey to you that this is a priority to us and we are working on it daily.

Cheryl Nelson Senior Counsel EB3875 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 02/08/2001 10:35 AM -----

Cheryl Nelson Sent by: Cheryl Nelson 02/07/2001 03:04 PM

To: pmatecki@enron.com; dhawke@enron.com cc: stephanie.panus@enron.com Subject: Raymond James Brokerage Agreement

Paul, I tried to call you at our scheduled time but you were not available. To expedite the process, let me tell you here what the outstanding issues are:

1. Para. 15 - Can we clarify this last sentence that you put in the most recent draft. What are we meaning to say there?
2. We feel strongly about including the limitation on liability issue. We especially want to limit any liability to punitive damages. We think its mutually beneficial. Did you leave this out intentionally?
3. Did you intentionally reject our draft confidentiality provisions?

If you do not have time to call me today, please send back an emailed response.

Cheryl Nelson Senior Counsel EB3875 (713) 345-4693

Message 155 of 1118

FW: Powerhouse Pilates

Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/sent_items/749.

-----Original Message-----

From: Davis, Angela Sent: Thursday, November 15, 2001 1:29 PM To: Shackleton, Sara; Bushman, Teresa G. Subject: FW: Powerhouse Pilates

Here is the Pilates info.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

-----Original Message-----

From: Anne Walzel <annewalzel@yahoo.com>@ENRON
[mailto:IMCEANOTES-Anne+20Walzel+20+3Cannewalzel+40yahoo+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, October 03, 2001 1:36 PM To: Davis, Angela Subject: Powerhouse Pilates

Hi Angela,

It was great seeing you in class this afternoon. Keep up the good work! Here is some information about my Pilates studio as well as Pilates in general. Private sessions in the studio are much different than the mass mat class. At Powerhouse Pilates, I will design a workout specifically for your body. We will focus on your problem areas and we will increase your overall strength and flexibility using all of the Pilates equipment.

1. The benefits of Pilates

Pilates strengthens your abdominals, tightens your buttocks, improves your posture, corrects your alignment, reduces stress, alleviates lower back pain and neck pain, strengthens and tones your muscles without building bulk, and lengthens your body as a whole. It helps you look and feel great, gives you a sense of ease and confidence, and helps you feel grounded and centered at all times.

2. Location

Powerhouse Pilates 1117 Omar St. Houston, Texas 77009 Phone: 713-880-5307 Fax: 713-426-5466

Powerhouse is located in the Houston Heights, just 10 minutes from downtown Houston. From downtown, take Allen Parkway to Studemont and turn right on Studemont. Turn left on Omar and it's in the first block on the left.

3. Hours of Operation:

Monday-Friday: 7am to 9pm Saturday: 8am to 2pm

4. Cost:

Private session: \$65 per session Duet: \$50 per person

Series cards are also available and can bring the cost of a private session down to as low as \$50 per session. Duets are Pilates sessions with two students and one instructor. If you know someone who is interested in Pilates, you might consider bringing them in so that you can work out together. If you buy a duet series card, the price can be as low as \$37.50 per person per session.

Series Cards:

Ten private sessions: \$550 (save \$100) Fifteen private sessions: \$800 (Save \$175) Twenty private sessions: \$1000 (save \$300)

Ten duet sessions: \$425 (save \$75) Fifteen duet sessions: \$600 (save \$150) Twenty duet sessions: \$750 (save \$250)

5. Payment methods:

We accept Visa, Mastercard, American Express, checks, and cash.

6. Scheduling

Appointments are scheduled on the hour and are fifty minutes long. You will work on all of the Pilates equipment and your instructor will develop a Pilates routine specifically for your body.

7. Credentials

Powerhouse is owned and operated by Anne Walzel, a certified Pilates instructor, dancer, member of the Pilates Guild, and Pilates student of ten years. She was certified through the Pilates Studio of New York under the direction of Romana Kryzanowska, Joseph Pilates' protege. Anne has taught Pilates at the Pilates Studio at Atlanta ballet, the Pilates Studio of New York, re:AB, and Tribeca Bodyworks, New York's renowned Pilates studio. She danced at the Houston Ballet Academy for 15 years as well as the School of American Ballet, Martha Graham, the Paul Taylor School, and the Jose Limon Institute, New York. She has a bachelor's degree from Northwestern University and is a graduate of St. John's School, Houston.

8. Pilates materials

"The Pilates Body," by Brooke Siler "The Pilates Powerhouse," by Mari Winsor

www.pilates-studio.com

I hope this information helps! Feel free to call me at the studio (713-880-5307) to schedule your session or to ask me any questions.

Sincerely,

Anne Walzel

Do You Yahoo!? Listen to your Yahoo! Mail messages from any phone. <http://phone.yahoo.com>

Message 156 of 1118

Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'keegan.farrell@enron.com']
File	shackleton-s/all_documents/11136.

Stephanie, you may want to clarify all of the facts as well. That a local phone number was disconnected is irrelevant because keegan called my cell phone number and spoke with my fiance. He and Keegan then called my house in New York and notified my family that Keegan wanted to reach me. They conveyed that message to me immediately as I walked though the door. I then immediately called Keegan the minute I walked into my house in New York.

As I mentioned to Sara, if you need to reach me

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Stephanie Panus 05/21/2001 11:54 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Keegan Farrell/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor

of Bear, Stearns, et al

You may want to clarify this with Keegan as 1) your voice mail was full on that Friday, 2) Keegan tried to contact you in New York and the number she had for you was disconnected, and 3) we tried to locate the documents that Friday and were not able to.

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 11:00 AM

To: Sara Shackleton/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Tom Doukas/Enron@EnronXGate cc: Keegan Farrell/NA/Enron@Enron Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Sara,

Moreover, Keegan represented to me that you requested that she locate for you the Securities Loan Agreement for you while I was out and that she went into my office and retrieved that document from my Enron Credit Inc. file and gave it to you. So, I am not sure of the source of confusion about not being able to find my file but for future reference, the best thing to do is to ask Keegan how to contact me immediately and directly - when out the office she always knows how to reach me.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 10:36 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron, Tom Doukas/Enron@EnronXGate Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Sara:

I will forward the documents to you.

For future reference, if anyone is looking for a file for an urgent matter while I am out, she should convey that fact to me by either (1) leaving a voice mail - as I checked my voicemails on Friday (that is how I was able to speak with Tom from New York on Friday) or (2) advise Keegan and she will contact me immediately by cell phone as she did regarding other matters on Friday.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Sara Shackleton@ECT 05/15/2001 03:45 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Tom Doukas/Enron@EnronXGate, Stephanie Panus/NA/Enron@Enron Subject: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Cheryl:

I spoke with Clem and he is preparing the amendment for immediate execution as the signers will be at an offsite tomorrow. I'll let Tom know as soon as the amendment has been executed. Anna Meytina is on vacation so I left a message with Sharon Chernick.

In order to complete our files with respect to the Enron North America Inc. ("ENA") Securities Loan Agreement, please provide me with copies of the following documents:

- (1) assignment of the Securities Loan Agreement from ENA to ECI (or was a separate agreement with ECI executed?)
- (2) termination of the prior Enron Corp. guaranty on behalf of ENA in the amount of USD25 Million

I spoke with Stephanie and she could not locate your Bear/ECI files on Friday of last week.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 157 of 1118

RE: Cash Collateral	
Sender	paul.radous@enron.com
Recipients	['caroline.abramo@enron.com', 'sara.shackleton@enron.com', 'brent.hendry@enron.com', 'carol.st.clair@enron.com...]
File	shackleton-s/all_documents/11173.

Carol,

I'm assuming we'd have to do this all over again once we have an ISDA (I guess we register the credit support annex?)... Does this process compromise any confidential information?

Paul

-----Original Message-----

From: "Chris Garrod" <CGGarrod@cdp.bm>@ENRON
[mailto:IMCEANOTES+22Chris+20Garrod+22+20+3CCGGarrod+40cdp+2Ebm+3E+40ENRON@ENRON.com] Sent:
Wednesday, April 18, 2001 11:02 AM To: Carol.St.Clair@enron.com Cc: Hendry, Brent; Abramo, Caroline; Radous, Paul;
Shackleton, Sara Subject: Re: Cash Collateral

Carol:

The total estimated cost would be in the region of \$1,250 - \$1,500, including disbursements.

Please feel free to let me see a copy of the charging document.

Kind regards Chris Garrod

<Carol.St.Clair@enron.com> 04/18/01 12:18PM >>>

Chris: Thanks for your prompt response. I think that we do need to register the charge document which in this case would be the confirmation that will be executed. Can you provide me with an estimate of the total cost?

Does everyone at Enron agree?

Caroline, I will redraft the Bermuda confirm to change from LC's to cash and send to you. Please make sure that the counterparty is aware that we plan to register/file the confirm in Bermuda.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

"Chris Garrod" To: <Carol.St.Clair@enron.com> <CGGarrod@cdp cc: <Brent.Hendry@enron.com>, <Caroline.Abramo@enron.com>, .bm> <Paul.Radous@enron.com>, <Sara.Shackleton@enron.com> Subject: Re: Cash Collateral 04/18/2001 09:50 AM

Dear Carol

Under Bermuda law, there is no real concept of "perfecting" security since it is not necessary to ensure the enforceability in Bermuda that a charge be registered in Bermuda. However, although it is not necessary for a security interest to be registered in order for it to be valid, the charge document itself can be registered in Bermuda in the Register of Charges in accordance with Section 55 of the Companies Act 1981 in order to ensure the priority in Bermuda of the charge. On registration, any charge evidenced in the charging document will have priority over any unregistered competing charge or any subsequently registered competing charge in respect of the assets which are the subject of the charge (i.e. the cash).

If the agreement will be governed by either Texas or New York law, it will be a matter of the laws of either Texas or New York as to the actual nature of the security interest which is created by the charge.

If you would like us to effect the registration of the charge, we would need an original (or a certified true copy) of the executed document which creates the security interest. There is no time limit on such registration. However, please note

that, in addition to our professional fees, there is a filing fee of \$446 which is payable in respect of the registration.

I trust that the above is of some assistance. If you have any questions please do not hesitate to contact me.

Kind regards.

Chris Garrod

Christopher Garrod Conyers Dill & Pearman Clarendon House, 2 Church Street Hamilton HM 11, Bermuda Direct dial 441 299 4923 Fax: 441 292 4720 email cggarrod@cdp.bm

<Carol.St.Clair@enron.com> 04/17/01 06:54PM >>>

Christopher: We have done a trade with a Bermuda hedge fund and have negotiated collateral provisions that may require them to post cash to us. The agreement will be governed by either Texas or New York law. We need your advice on how to perfect our interest in any cash posted to us that we would hold in an account in the United States. Could you please call either me or Sara Shackleton (713)853-5620 if possible tomorrow or you can send me an e-mail if that is easier. I'm hoping that our possession of the cash is enough. Sorry for the short fuse on this. If you need any additional information, please contact me or Sara. I will be unavailable from 9-11 and 2-3 tomorrow Houston time.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 158 of 1118

Re: URGENT -- Re: Papers for Raptor Meeting Tuesday

Sender	gordon.mckillop@enron.com
Recipients	['sara.shackleton@enron.com', 'Randy', 'Frank Stabler/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT']
File	shackleton-s/all_documents/3889.

----- Forwarded by Gordon McKillop/NA/Enron on 09/26/2000

03:12 PM -----

Nancy Muchmore 09/26/2000 11:27 AM To: Gordon McKillop/NA/Enron@ENRON cc: Frank Stabler/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Randy Young/NA/Enron@Enron

Subject: Re: URGENT -- Re: Papers for Raptor Meeting Tuesday

Gordon:

Randy Young asked me to send you the following information concerning the entity to be inserted directly under Ponderosa Assets L.P. The entity will be a Cayman Islands company, Enron International Brazil 2000 Ltd., with 50,000 shares authorized and 1,000 shares issued to Ponderosa Assets L.P.

Please call me at ext. 66197 should you have any questions or need further information regarding this company.

Nancy

Randy Young 09/26/2000 10:42 AM To: Nancy Muchmore/NA/Enron@Enron, Frank Stabler/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc:

Subject: URGENT -- Re: Papers for Raptor Meeting Tuesday

fyi. ----- Forwarded by Randy Young/NA/Enron on 09/26/2000 11:31 AM -----

Scott Sefton@ECT 09/26/2000 10:37 AM To: Randy Young/NA/Enron@Enron cc: Gordon McKillop/NA/Enron@ENRON

Subject: URGENT -- Re: Papers for Raptor Meeting Tuesday

Randy,

Hedges in the Raptor structure require that a Proposal Sheet be submitted to the counterparty to the swap (the counterparty is owned by an outside investor and our agreement with them requires this). Attached to Mary's email below is the Raptor Derivative Proposal Sheet that the business unit will need to submit. Gordon is responsible for this process and can answer any questions you have.

Also attached below is a Raptor Securities/Confidentiality Response Form that ENA legal prepared to help them conduct a due diligence exercise on their merchant assets being hedged to confirm that there were no contractual or other legal restrictions that may affect their ability to enter into the swap. Although many of the items on this form won't be relevant to what you're hedging, I thought it may be helpful. Because we're not familiar with the assets or any South American legal issues that may apply, we'll be looking to you for confirmation that there aren't any issues in this regard.

You can ignore the document entitled Raptor Process for Inclusion of Swaps into Raptor Vehicles.

Please call me or Gordon if you have any questions. Thanks!

Scott ----- Forwarded by Scott Sefton/HOU/ECT on 09/26/2000 08:19 AM -----

MARY COOK 09/25/2000 06:38 PM To: Scott Sefton/HOU/ECT@ECT cc: Andrea V Reed/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron, Hope Vargas/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Lisa Mellencamp/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT Subject: Re: Papers for Raptor Meeting Tuesday

We can discuss tomorrow, but the swap group is not staffed either to fulfill the coordination of all the work in respect of the underlying assets. Do you have alternative ideas?

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Scott Sefton 09/25/2000 06:34 PM

To: Mary Cook/HOU/ECT@ECT cc: Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron Subject: Re: Papers for Raptor Meeting Tuesday

Although I'm happy to discuss this at our meeting tomorrow, I don't think the draft process document describes a role for Global Finance legal that we can properly fulfill.

MARY COOK 09/25/2000 02:14 PM To: Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Scott Sefton/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron cc: Subject: Papers for Raptor Meeting Tuesday

See attached for your review prior to meeting, Tuesday 9:30 38C1. Thanks. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 159 of 1118

FW: Total International Ltd.

Sender	sara.shackleton@enron.com
Recipients	['brant.reves@enron.com']
File	shackleton-s/all_documents/11047.

Brant: I am now waiting to hear from Paul Simons in London (legal) about London's assessment of ECTRIC's counterparties.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/16/2001 09:33 AM -----

Justin Boyd/Enron@EUEnronXGate 05/16/2001 09:24 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Total International Ltd.

sara

fyi - i am awaiting a rsonse from paul

justin

-----Original Message-----

From: Boyd, Justin Sent: 16 May 2001 15:09 To: Boyd, Justin Subject: RE: Total International Ltd.

----- Forwarded by Justin Boyd/LON/ECT on 16/05/2001 15:13 -----

Justin Boyd 15/05/2001 08:06 To: Paul Maley/LON/ECT@ECT cc:

Subject: RE: Total International Ltd.

Paul

it's always been my impression that CRM assesses each C/P to determine whether it meets not only the SFA but also the CFTC test....[although it is true that in many cases if the SFA test is met so will be the CFTC one

can we chat...

Thanks. Justin ----- Forwarded by Justin Boyd/LON/ECT on 15/05/2001 08:08 -----

From: Sara Shackleton on 14/05/2001 18:26 CDT To: Justin Boyd/LON/ECT@ECT cc:

Subject: RE: Total International Ltd.

Justin:

What lawyer handles daily financial trading issues? I need to speak with that person about US swap eligibility rules governing US companies, specifically, ECTRIC, and who evaluates ECTRIC's counterparties for eligibility. The specific issue has to do with Total as you will see from the string of emails attached. I look forward to hearing from you. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/14/2001 06:22 PM -----

Brant Reves/ENRON@enronXgate 05/08/2001 02:23 PM To: Sara Shackleton/HOU/ECT@ECT cc: Paul Maley/LON/ECT@ECT Subject: RE: Total International Ltd.

Sara,

ECTRI is a UK registered company. As a subsidiary of ENA, which is registered under US law, can my trader sleeve deals through ECTRI to get around the eligibilty issue. We are working with Total to get a confidentiality agreement signed but it is taking awhile and we will not be receiving financial statements to evidence eligibility for another three weeks.

thanks brant

-----Original Message-----

From: Maley, Paul Sent: Tuesday, May 08, 2001 10:56 AM To: Reves, Brant Subject: RE: Total International Ltd.

Brant For SFA purposes as they are ulitimately owned by a quoted company on a recognised stock exchange then this is sufficient to sign them off. I don't really know whether this makes them an elligible swap participant for the US though. Paul

From: Brant Reves/ENRON@enronXgate on 07/05/2001 09:59 CDT To: Paul Maley/LON/ECT@ECT cc:

Subject: RE: Total International Ltd.

I am not quite sure I understand. Does SFA requirements mean you have a guaranty, financial statements, or other material that establishes them as an eligible derivative customer. One of our marketers continues to try and trade with them and I still don't fully understand how they are open in London. Does meeting SFA requirements establish this customer as an eligible counterparty under US statutes?

brant

-----Original Message-----

From: Maley, Paul Sent: Friday, May 04, 2001 7:53 AM To: Reves, Brant Cc: Jackson, Lee; Shackleton, Sara Subject: Re: Total International Ltd.

Brant We have passed them for SFA requirements in London so yes they can trade through London no problem at all. (see Regulatory tab in CAS) Any problems, let me know. Paul

From: Brant Reves/ENRON@enronXgate on 03/05/2001 08:30 CDT To: Paul Maley/LON/ECT@ECT cc: Lee Jackson/ENRON@enronXgate, Sara Shackleton/HOU/ECT@ECT

Subject: Total International Ltd.

Paul,

I have a trader that is trying to trade financially with Total International Ltd., but we have asked that he not until we can sort out some eligibility issues. Prior to speaking with Ben Hamida at Total last week, we had never approached them for financial statements or a guaranty that would establish them as eligible contract parties. I noticed that we have significant financial trading with them in London. How have you established eligibility? My trader is asking, since he cannot trade under ENA with Total, if he can sleeve deals through London.

Any ideas or insight would be helpful.

thanks brant

Message 160 of 1118

Joshua Tree VPP Financing

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com', 'tanya.rohauer@enron.com', 'sara.shackleton@enron.com', 'nora.dobin@enron.com', 'jor...]
File	shackleton-s/notes_inbox/218.

Tanya, FYI.

Nora, please add Tanya Rohauer of the wholesale credit department on your distribution list on Joshua Tree.

Jordan, please advise your group that the wholesale credit department, Tanya Rohauer and Bill Bradford, have requested that they be kept advised of any of the global finance transactions involving swaps. Just be sure Tanya is included by your group members in deal routing materials and that they are advised of the deal at its commencement.

Thank you!

Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 11/27/2000 08:38 AM

Nora Dobin@ENRON 11/24/2000 03:54 PM

To: Angela Davis/NA/Enron@enron, Cris Sherman/HOU/ECT@ECT, Jesus Melendrez/Corp/Enron@enron, John Thompson/LON/ECT@ECT, Kevin Liss/Corp/Enron@enron, Mary Cook/HOU/ECT@ECT, Shirley A Hudler/HOU/ECT@ECT, Scott Josey/Corp/Enron@enron, Teresa G Bushman/HOU/ECT@ECT, Stanley Farmer/Corp/Enron@ENRON, Brenda L Funk/HOU/ECT@ECT cc: Tim Proffitt/HOU/ECT@ECT, Chris Herron/Corp/Enron@enron Subject: Joshua Tree VPP Financing

Attached is latest term sheet (marked to show changes to 11/18 draft); clean version is attached to e-mail below to Jim Lawler of Wilmington Trust. Note that we had an extensive call with NatWest on Wednesday and are considering some of their issues for next draft of term sheet. We will keep you posted.

Note also that new entities signed off upon by accounting, legal and tax for financing transaction are Delaware business trust for bank investments, Texas limited partnership for VPP investments, and [Delaware or Texas] limited liability company owned by ENA (or affiliate) to be managing partner of limited partnership.

Please remember that we need to finalize names for these new entities.

Regards, NJD

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

----- Forwarded by Nora Dobin/Corp/Enron on 11/24/2000 03:23 PM -----

Nora Dobin 11/24/2000 02:50 PM

To: "Lawler, James P." <JLawler@WilmingtonTrust.com> cc: Tim Proffitt/HOU/ECT@ECT, Chris Herron/Corp/Enron@Enron, rainj@tklaw.com, Brenda L Funk/HOU/ECT@ECT, "Roberts, Ann E." <ARoberts@WilmingtonTrust.com>, "Doneene Damon" <Damon@rlf.com>, "Shane Gunter" <gunter@rlf.com> Subject: Re: New Transaction

Jim, thanks for being so responsive. Attached please find the latest draft of term sheet for the Joshua Tree transaction. We continue to negotiate with the banks but want to get this to you so you can get up to speed on transaction structure. Basically, banks would invest in certificates of a Delaware business trust of which Wilmington would be trustee. The trust in turn would be the limited partner in a Texas limited partnership. The managing partner of the limited partnership would be Enron North America Corp. or another Enron subsidiary. The limited partnership would invest in volumetric production payments. Note that names given in term sheet for new entities may change.

Tim Proffitt is the Enron commercial lead on this transaction. John Rain of Thompson & Knight (Dallas) is our outside counsel. Robin Miles of Bracewell & Patterson (Houston) is representing Bank of America. Thompson & Knight is doing initial draft of trust agreement (starting with Margaux form).

Let us know particulars of your team and counsel (names, firms, office and home contact info) and we will add them to the working group list and distribute. The goal is to have this transaction closed by December 15, 2000.

Thanks again and let me know as you need additional information.

Regards, NJD

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

"Lawler, James P." <JLawler@WilmingtonTrust.com> 11/23/2000 08:07 AM

To: "Nora Dobin" <Nora.Dobin@enron.com> cc: "Roberts, Ann E." <ARoberts@WilmingtonTrust.com>, "Doneene Damon" <Damon@rlf.com>, "Shane Gunter" <gunter@rlf.com> Subject: New Transaction

Nora; I was able to confirm that Doneen Damon of Richards Layton as well as Shane Gunter worked on the Margeaux transaction and will represent us on this new one as well. Doneen's email is damon@rlf.com and Shane's is gunter@rlf.com. For Wilmington, could you also add my associate Ann Roberts to your list. Ann's email is aroberts@wilmingtontrust.com. Thank you very much and please let me know if there is anything else that you need.

Regards, Jim Jim Lawler Vice President - Regional Manager Wilmington Trust Company 1100 North Market Street
Wilmington, Delaware 19890 Phone:302.651.8775 Email:jlawler@wilmingtontrust.com

Message 161 of 1118

Contact Name for Sawnee and Coweta-Fayette

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com']
File	shackleton-s/all_documents/10440.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/10/2001 01:14 PM

Lucy Ortiz 04/10/2001 11:08 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Contact Name for Sawnee and Coweta-Fayette

Sara,

My contact is Fred Ritts at Brickfield, Bruchette, Ritts & Stone, PC 202.342.0800

Just in case you need to talk to someone directly. I will be out for just a little while, please call me on my cell if you need
me immediately. 281.782.6397.

Many thanks, Lucy

Message 162 of 1118

corporate resolutions and unanimous consents

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/6033.

Stephanie: please note below.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/13/2001 10:41 AM

Sara Shackleton 04/12/2001 01:04 PM

To: Cheryl Nelson/NA/Enron cc: Mark Taylor/HOU/ECT@ECT Subject: corporate resolutions and unanimous consents

Cheryl:

All resolutions and consents for Enron companies subject to oversight by our group must be approved by Mark Taylor.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 163 of 1118

Consolidated Edison Comopany of New York

Sender	sara.shackleton@enron.com
Recipients	[mary.cook@enron.com]
File	shackleton-s/sent/6067.

Mary: Can you assign Susan to this one since she's already working on the omnibus and revising a prior trade?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/18/2001 06:03 PM

Sara Shackleton 04/18/2001 04:29 PM

To: Mary Cook/HOU/ECT cc: Subject: Consolidated Edison Comopany of New York

Can't recall if I asked you to reassign to another paralegal. Please let me know. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 164 of 1118

Heinz ISDA

Sender	sara.shackleton@enron.com
Recipients	[susan.bailey@enron.com]
File	shackleton-s/sent/6221.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/17/2001 09:15 AM

Elliot Bonner/ENRON@enronXgate 05/17/2001 08:58 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Heinz ISDA

I am forwarding you the information of the contact at Heinz who requested a copy of their ISDA. Will you please forward her a copy of the ISDA via overnight mail or fax today. She has requested a copy by Monday May 21. Please let me know if you have any questions. Thanks.

Dewann Weltmer Heinz North America P.O. Box 57 Pittsburgh, PA 15230-0057

email: dewann.weltmer@hjheinz.com Ph: 412-237-3538 Fx: 412-237-3543

Message 165 of 1118

Par Forward EOL product

Sender	sara.shackleton@enron.com
Recipients	[william.stuart@enron.com', 'carlos.alatorre@enron.com', 'susan.musch@enron.com']
File	shackleton-s/sent/5850.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/20/2001 02:16 PM

Sara Shackleton 03/20/2001 02:16 PM

To: Susan Musch/Enron@EnronXGate cc: William Stuart/HOU/ECT@ECT, Carlos Alatorre/NA/Enron@Enron Subject: Par Forward EOL product

Please review the GTC's for the Canadian FX product.

Stuart: Please call about your form of confirmation.

Carlos: We may want to amend the descriptions to match the "ISDA language" contained in the GTC's.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 166 of 1118

Re: Canada - confirmation desk

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/8930.

I am open, just let me know when and where. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Sara Shackleton 02/02/2001 04:24 PM

To: Mary Cook/HOU/ECT@ECT cc: Subject: Canada - confirmation desk

Mary:

Melissa Murphy (financial power) will be in Calgary next week (Tues - Fri) assisting the confirm desk. I thought it would be helpful if you and I scheduled a short meeting with Melissa on Monday to discuss desk issues. What is your schedule like on Monday?

Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 167 of 1118

Sylvia at Con Edison

Sender	sara.shackleton@enron.com
Recipients	['clement.abrams@enron.com']
File	shackleton-s/all_documents/8866.

FYI - our phone call

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/31/2001 01:21 PM

Samantha Boyd@ENRON 01/29/2001 04:59 PM

To: dooleys@coned.com cc: Sara Shackleton/HOU/ECT@ECT Subject: Sylvia at Con Edison

Per Sara Shackleton's previous e-mail, attached for your review is Enron North America Corp.'s form of guaranty with most of your requested changes (the "ENA Guaranty") and a comparison of your guaranty markup against the ENA Guaranty.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 168 of 1118

RE: TXU

Sender	sara.shackleton@enron.com
Recipients	['neil.kelly@enron.com']
File	shackleton-s/sent_items/499.

Neil - please call me. Your extension is not 54613. Sara

Raj would like to meet now.

-----Original Message-----

From: Kelly, Neil Sent: Monday, March 25, 2002 1:04 PM To: Shackleton, Sara Subject: RE: TXU

Sara I am in today and subject to a theoretical 1 pm (never received confirmation), I am available to meet at your and Raj's convenience.

My number is 54613. I believe the other number is from a prior secondment to Enron.

-----Original Message-----

From: Shackleton, Sara Sent: Monday, March 25, 2002 12:58 PM To: Kelly, Neil Subject: TXU

Neil:

I wasn't sure if you still had the 53913 extension.

Raj Thapar wants to discuss this global settlement. Are you in the office today?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 169 of 1118

Enron Corp ("ENE") guaranty of Enron North America Corp.

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com']
File	shackleton-s/sent/5560.

Sheila: here's the email; I'll call Sharon now.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/13/2001 08:55 AM -----

Sara Shackleton 02/12/2001 05:53 PM

To: schernick@bear.com cc: Subject: Enron Corp ("ENE") guaranty of Enron North America Corp.

Sharon:

With respect to the ENE form of guaranty, we will agree to delete Paragraph 4 (setoff and counterclaims) in its entirety. This is a major concession by ENE. Can you now agree to the remainder of the ENE guaranty format? Please let me know. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 170 of 1118

Re: File Check Out Cards

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/sent/5716.

Working great!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Mary Cook 03/01/2001 09:48 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: File Check Out Cards

We discussed the idea of each file having its own card. It was the consensus that this would be too much to track on a going forward basis due to all the name changes, mergers and the like. I suggest we delay this project and assess how the new system works for awhile. Then after we get caught up on other of the projects, we can reassess this idea. Let me know what you think. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 171 of 1118

Allegheny ISDA Schedule (revised)

Sender	sara.shackleton@enron.com
Recipients	['teiglandl@sullcrom.com']
File	shackleton-s/sent/5933.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/30/2001 01:29 PM -----

Sara Shackleton 03/30/2001 11:57 AM

To: teigland@sullcrom.com cc: Subject: Allegheny ISDA Schedule (revised)

Hi, Lauren:

I cannot find the new email address for the Allegheny lawyer for delivery of a revised ISDA Schedule. I left a voice mail for Yair Yaish and for Laurie Peddicord but have not heard back. Can you provide me with the latest information? Are you the lawyer who should receive this Schedule? Please let me hear from you. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 172 of 1118

FRA confirmation format

Sender	sara.shackleton@enron.com
Recipients	['william.stuart@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/sent/5807.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/15/2001 10:50 AM -----

Sara Shackleton 03/15/2001 10:46 AM

To: William Stuart/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT cc: Subject: FRA confirmation format

Please see if the attached format documents the par forward transactions in a manner more like CIBC (and a little different than the ENA format).

Stuart: I'll send the GTC's to you for review today. I'm updating the ISDA format used in the global weather transactions (which are the only products using this format). We may need to adjust the product description.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 173 of 1118

Revised form of guaranty

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/6079.

Stephanie:

The attached message is only for the email address. Please send the Annex B/B-1 blackline for ConEd to Michael Forte (email below) and Janelle Scheuer. I'm looking at the amendment now. Thanks so much.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/19/2001 01:54 PM -----

Sara Shackleton 04/18/2001 10:27 AM

To: fortem@coned.com cc: Edward Sacks/Enron@EnronXGate, Susan Bailey/HOU/ECT@ECT, Janelle Scheuer/Enron@EnronXGate Subject: Revised form of guaranty

Michael:

Attached is a revised blackline of the Enron Corp. guaranty for your review. Please let us have your comments.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 174 of 1118

Re: softs trading

Sender sara.shackleton@enron.com

Recipients ['robert.bruce@enron.com', 'Robert Bruce/NA/Enron@Enron']

File shackleton-s/sent/5635.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/21/2001 08:51 AM -----

Tanya Rohauer 02/21/2001 08:51 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Robert Bruce/NA/Enron@Enron Subject: Re: softs trading

Me

From: Sara Shackleton on 02/21/2001 08:38 AM To: Tanya Rohauer/HOU/ECT@ECT cc: Robert Bruce/NA/Enron@Enron Subject: softs trading

Tanya: Who in your group handles softs (coffee, sugar, cocoa)? As you may know, softs have been approved for OTC financial trading. We are currently structuring the softs trading entity(ies) and I think credit should be involved. Janine Juggins is handling tax.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 175 of 1118

Re: if possible, can you send the sample EOL confirm now? I'd be

Sender sara.shackleton@enron.com

Recipients ['Larry Joe Hunter/HOU/ECT@ECT', 'diane.anderson@enron.com']

File shackleton-s/sent/5922.

Thanks so much.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Diane Anderson@ENRON 03/28/2001 10:37 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: if possible, can you send the sample EOL confirm now? I'd be most appreciative. Sara

I can fax you exactly what went out, but it's not possible to email the confirm with the Annex together because our confirm system doesn't house them together. I saved them separately:

From: Sara Shackleton@ECT on 03/28/2001 10:23 AM To: Diane Anderson/NA/Enron@Enron cc: Larry Joe Hunter/HOU/ECT@ECT

Subject: if possible, can you send the sample EOL confirm now? I'd be most appreciative. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 176 of 1118***Re: Allegheny****Sender** sara.shackleton@enron.com**Recipients** ['tracy.ngo@enron.com']**File** shackleton-s/sent/5936.

Tracy: Lauren called me and I was able to reach Yair. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tracy Ngo 03/30/2001 03:28 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Allegheny

I will try!

From: Sara Shackleton on 03/30/2001 06:48 AM To: Tracy Ngo/PDX/ECT@ECT cc:

Subject: Allegheny

Tracy:

The Allegheny swap side letter provides that the parties will make a good faith effort to negotiate the ISDA master by April 6. I am waiting with the first redraft of the agreement but can't get a response from anyone as to whom and where to send (via email). I've left voice mails for Yair and Kate at Allegheny and Lauren at Sullivan and Cromwell.

Can you exert some pressure here?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 177 of 1118***ANZ Bank - ATTACHMENT****Sender** samantha.boyd@enron.com**Recipients** ['sara.shackleton@enron.com', 'mmidden@anz.com', 'jason.williams@enron.com']**File** shackleton-s/all_documents/9269.

Here is the attachment!!

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Michael:

Attached for your immediate review is the form of Enron Corp. ("Enron") guaranty which would be utilized to guaranty all financial trading obligations pursuant to an ISDA Master Agreement and transactions thereunder which would be entered into between Enron North America Corp. and ANZ Bank. Jason Williams (in Enron's risk control group) asked that you receive a copy of Enron's form of guaranty if you had not already received one. We are in the process of preparing a draft ISDA Master Agreement and will forward it to you next week. Please let us know if you have any questions.

Samantha M. Boyd Sr. Legal Specialist Enron North America Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

*Message 178 of 1118***ConEd Financial Website**

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/sent/5468.

Sam:

Please fax the guaranty to Michael Forte at both fax numbers:

212-982-4524 917-534-4042

Fed Ex the original as set forth below in Janelle's message. Revise Annex B/B-1 per my email of last evening and find web address below. Thanks for all of your help. Janelle will most likely execute a trade Monday morning.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 03:26 PM -----

Janelle Scheuer 02/02/2001 03:23 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ConEd Financial Website

Micheal Forte gave me the following web site address for financial info:

http://investor.conedison.com/ireye/ir_site.zhtml?ticker=ed&script=2100

FedEx guaranty to:

Michael Forte ConEdison Co. Of NY Inc. Energy Trading Department 4 Irving Place, Rm. 1300 NY, NY 10003-3598, and, a copy to Gary Rozmus, to the same address.

Thanks! Janelle

*Message 179 of 1118***Re: Repo Agreement**

Sender	sara.shackleton@enron.com
Recipients	['marcelo_cosma@ml.com']
File	shackleton-s/all_documents/11186.

Marcelo:

We are ready to execute. You did not date your signature. Do you want us to use any particular date for your execution? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma, Marcelo (Toronto-BCE)" <Marcelo_Cosma@ml.com> 05/22/2001 07:28 AM

To: "'Sara Shackleton'" <Sara.Shackleton@enron.com> cc: Subject: Repo Agreement

Sara:

Thank you for your fax of May 21st. I apologize for the oversights you noted. Your suggestion of making the changes on your end is fine.

Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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Message 180 of 1118

FPL Energy Power Marketing Inc./Enron North America Corp.

Sender	sara.shackleton@enron.com
Recipients	['russell.diamond@enron.com']
File	shackleton-s/sent/5282.

Boy, he sure didn't waste any time! Let me know what we need to do. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/09/2001 03:21 PM -----

"Serge Martin" <Sgm@steelhector.com> 01/09/2001 03:13 PM

To: Sara.Shackleton@enron.com cc: Subject: FPL Energy Power Marketing Inc./Enron North America Corp.

Sara: Enclosed per our conversation are drafts of the FPL Energy Power Marketing Inc./Enron North America Corp. ISDA master agreement, credit support annex, guaranty of Enron Corp. and guaranty of FPL Group Capital Inc (FPL Energy Power Marketing Inc. debt is unrated, FPL Group Capital Inc debt is single A). Thank you in advance for your assistance with these agreements. Regards, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 phone (305) 577-7001 fax

- 640966_1.DOC

Message 181 of 1118

Re: Cargill-Alliant

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/all_documents/8755.

Sam: I want to send this out today. Please let me review your work. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/22/2001 08:38 AM -----

Edward Sacks@ENRON 01/20/2001 10:46 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Cargill-Alliant

My intent on the Credit Worksheet was to only require guaranties and to set default perimeters (3rd party debt and S&P/Moody ratings). I believe that this can be taken care of outside of the CSA. Let me know if this helps.

Ed Sacks

From: Sara Shackleton@ECT on 01/19/2001 11:04 AM To: Edward Sacks/Corp/Enron@Enron cc:

Subject: Cargill-Alliant

Ed: This counterparty does not want a CSA!!!!!!! Can you please call Andre and discuss? Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 182 of 1118

Re: Enron North America Corp: execuuiou of Futures Agreement

Sender	alterson_thomas@jpmorgan.com
Recipients	['petersen_kyle@jpmorgan.com', 'sara.shackleton@enron.com', 'schneider_michael@jpmorgan.com']
File	shackleton-s/all_documents/9304.

Sara:

Please direct comments my way.

Thank you, Tom Alterson JP Morgan Futures Inc. 60 Wall Street, 41st Floor New York, NY 10260-0060 Tel. (212) 648-4315 Fax (212) 648-5347

Sara.Shackleton@enron.com on 02/16/2001 02:18:33 PM

To: alterson_thomas@jpmorgan.com cc: Subject: Enron North America Corp: execuuiou of Futures Agreement

Tom:

To whose attention should I direct comments to the Client Agreement?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

This communication is for informational purposes only. It is not intended as an offer or solicitation for the purchase or sale of any financial instrument or as an official confirmation of any transaction. All market prices, data and other information are not warranted as to completeness or accuracy and are subject to change without notice. Any comments or statements made herein do not necessarily reflect those of J.P. Morgan Chase & Co. Incorporated, its subsidiaries and affiliates.

Message 183 of 1118

Re: Raptor Swaps: Privates

Sender	lisa.mellencamp@enron.com
Recipients	['brian.schwertner@enron.com', 'mary.cook@enron.com', 'annmarie.tiller@enron.com', 'andrea.reed@enron.com']
File	shackleton-s/notes_inbox/1041.

confirming these have been sent to julia chin

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

Mary Cook 09/15/2000 02:42 PM

To: Julia Murray/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT, Hope

Vargas/HOU/ECT@ECT, Ryan Siurek/Corp/Enron@ENRON, AnnMarie Tiller/Corp/Enron@ENRON, Brian Schwertner/NA/Enron@Enron, Lisa Mellencamp/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, Scott Sefton/HOU/ECT@ECT Subject: Raptor Swaps: Privates

The attached swaps will be delivered by hard copy batch, together with the revised proposal sheets and a copy of the legal worksheets, to Julia Chin today. Upon receipt, Julia will attach the valuation data that has been previously provided to her by Hope Vargas and coordinate execution.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 184 of 1118

Re: List of authorized traders

Sender	marie.heard@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/11447.

No. I left Veronica Valdez a voice mail yesterday as to the status, but have heard nothing.

Marie

Marie Heard Senior Legal Specialist Enron North America Corp. Phone: (713) 853-3907 Fax: (713) 646-3490
Marie.Heard@Enron.com

Sara Shackleton@ECT 06/05/2001 11:39 AM

To: Marie Heard/NA/Enron@Enron cc: Subject: List of authorized traders

Marie: OK, here's a request from the outside. Have we heard from Cassandra?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/05/2001 11:39 AM -----

"Thomas P Alterson" <alterson_thomas@jpmorgan.com> 06/05/2001 11:18 AM

To: Sara.Shackleton@enron.com cc: Subject: List of authorized traders

Sara:

Would you please send me a list of authorized traders for Enron NA Corp? We are updating our files and noticed that we are missing an ATL for Enron.

*ATL form: (See attached file: ATL Enron NA Corp.doc)

Thank you, Tom Alterson

- ATL Enron NA Corp.doc

Message 185 of 1118

Re: ENERGY NEW ENGLAND / ENRON ISDA STATUS INQUIRY

Sender	sara.shackleton@enron.com
Recipients	[susan.bailey@enron.com]
File	shackleton-s/all_documents/8778.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/23/2001 02:34 PM

Sara Shackleton 01/22/2001 09:11 AM

To: Jimdelani@aol.com@ENRON cc: Brant Reves/HOU/ECT@ECT Subject: Re: ENERGY NEW ENGLAND / ENRON ISDA STATUS INQUIRY

Jim: We delivered a draft to our trader on 2/7/00 and I believe that you also received a copy. We would need to re-evaluate given the lapse of time since the prior draft. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jimdelani@aol.com 01/17/2001 04:11 PM

To: Sara.Shackleton@enron.com cc: Subject: ENERGY NEW ENGLAND / ENRON ISDA STATUS INQUIRY

Sara:

Just doing a follow up inquiry regarding the status of our request for an ISDA Agreement with Enron. Also to inquire if there is anything else you may need as part of your evaluation.

Thanks Jim Delani

Message 186 of 1118

ISDA w/ First Union National Bank

Sender	sara.shackleton@enron.com
Recipients	['delene.travella@funb.com']
File	shackleton-s/sent/5736.

Dee: Let me know if we need to discuss anything. I am hopeful that we are ready to prepare execution copies. Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/02/2001 11:45 AM

Susan Bailey 02/27/2001 08:23 AM

To: <delene.travella@funb.com> cc: Sara Shackleton/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate Subject: ISDA w/ First Union National Bank

Dee,

Attached for your review is a blacklined version of the: (a) Schedule and (b) Paragraph 13 to the ISDA Master Agreement. These have been compared against the draft dated 11/8/2000, and include ENA's accepted changes per your (a) faxed comments transmitted to ENA on January 5, 2001, and (b) e-mail comments transmitted to ENA on January 19th, 2001.

We look forward to your response.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 187 of 1118

Re: Financial Trading Agreement Database Link

Sender	sara.shackleton@enron.com
Recipients	[mike.kelly@enron.com]
File	shackleton-s/sent/5385.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/24/2001 02:32 PM -----

Sara Shackleton 01/22/2001 10:35 AM

To: Tana Jones/HOU/ECT cc: Subject: Re: Financial Trading Agreement Database Link

Tana: Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tana Jones 01/22/2001 10:21 AM

To: Karla Compean/HOU/ECT@ECT, Mike Kelly/EWC/Enron@ENRON, Doug Sewell/HOU/ECT@ECT, Edward D Baughman/HOU/ECT@ECT, Terri Clynes/HOU/ECT@ECT, Oscar Dalton/HOU/ECT@ECT, Gary Justice/NA/Enron@Enron, Steve Wang/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Financial Trading Agreement Database Link

At the request of Sara Shackleton, I am attaching the link that will provide you access the the financial trading agreement database. Please call me if you have any questions about the information contained in the database.

Link -->

Message 188 of 1118

Re: setoff

Sender	robert.bruce@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10541.

I spoke to Mark yesterday about (B) of the Setoff clause. He says it has been in our form since time immemorial; he is not sure at whose behest it was put in there or for what specific reasons, although he did confirm what we concluded -- it is meant to allow the Non-defaulting party to hold back payment if it is not paid amounts that, for whatever reason, do not qualify for Setoff. To this end, he authorized me to elaborate on the phrase "other obligations" by changing it to "obligations (other than those pursuant to Section 6(e))"

Robert E. Bruce Senior Counsel Enron Wholesale Services T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Sara Shackleton@ECT 04/12/2001 12:38 PM

To: Robert Bruce/NA/Enron@Enron cc: Subject: setoff

Bob:

(1) got a vm from Carol and she really needs the EES C.A. - I know she left you a vm

(2) surprise! I just received an email from Cargill asking about none other than setoff Part (b)! Let me know what you find out.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 189 of 1118

Update!

Sender sara.shackleton@enron.com

Recipients ['kaye.ellis@enron.com']

File shackleton-s/sent/2208.

Please send update back to V&E. Note room change and YOUR NAME and info. Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 10/23/2000 08:32 AM -----

"Theaker, Helen" <htheaker@velaw.com> 10/21/2000 01:16 PM

To: "Shackleton, Sara (Enron)" <sara.shackleton@enron.com> cc: Subject: Update!

Mr. Shackleton,

I'm updating V&E's contact list for Joe Dilg and would like to confirm/correct the information we have in our system for you and/or fill in any blanks. In that we may have deliveries to make, I am including your home address in this request. Here's what we show:

Name: Sara Shackleton Title: Senior Counsel Company: Enron North America Corp. Physical Address: 1400 Smith, EB3801 Houston, TX 77002 Phone: 713-853-5620 Fax: 713-646-3490 Best E-Mail Address: sara.shackleton@enron.com

Home Address: _____

Assistant Name: Faye Ellis Assistant E-Mail: _____ Assistant Phone: 713-853-5968

Thank you so much for your time. I REALLY appreciate it!

Helen Theaker Assistant to Joseph C. Dilg Vinson & Elkins L.L.P. Phone: 713.758.2519 Fax: 713.615.5034 E-Mail: htheaker@velaw.com

Message 190 of 1118

Re: assignment of trade to Raptor vehicle

Sender mary.cook@enron.com

Recipients ['sara.shackleton@enron.com', 'joel.ephross@enron.com']

File shackleton-s/all_documents/9478.

No. I guess the first step is to know into which Raptor the swaps are moving and to get Joel to give us a closing book on that Raptor so we can get the correct parties etc. Attached is an assignment/assumption document I drafted for the VPP transaction which might be helpful (of course, it has a lot of inapplicable specifics) . We ought to also check with Joel about any provisions in the rest of the vehicle docs that may apply to an assignment. I would think that if all parties join and consent and provide no ED or TE under the ISDAs shall occur on the basis of the assignment that it would be clean from the ISDA point of view. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Sara Shackleton 02/28/2001 08:21 AM

To: Mary Cook/HOU/ECT@ECT cc: Subject: assignment of trade to Raptor vehicle

Mary:

Do you have a form of "approved" assignment for transferring trades into the Raptor vehicle?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 191 of 1118

Re: mariner

Sender	gordon.mckillop@enron.com
Recipients	['sara.shackleton@enron.com', 'angela.davis@enron.com', 'mary.cook@enron.com', 'carol.clair@enron.com']
File	shackleton-s/all_documents/9993.

We are currently working on fixing the credit capacity in the Raptor structure. The current thinking is that the swap will be at the money and look like the other private swaps in Raptor I and II. The amount, termination date and Raptor vehicle are still being discussed. The termination date could change with the credit capacity fix. I will provide you the information when it is finalized. Thanks, Gordon

Sara Shackleton@ECT 03/21/2001 09:01 AM

To: Gordon McKillop/NA/Enron@ENRON cc: Carol St Clair/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT Subject: mariner

Gordon: Please advise Carol, Mary and me. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/21/2001 08:59 AM -----

Lisa Mellencamp 03/21/2001 08:38 AM

To: Gordon McKillop/NA/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT Subject: mariner

gordon what will the terms of the raptor swap on mariner be?? Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Message 192 of 1118

RE: paper & pulp defaults

Sender	cheryl.lindeman@enron.com
Recipients	['sara.shackleton@enron.com', 'alan.aronowitz@enron.com', 'sheila.tweed@enron.com', 'robert.bruce@enron.com']
File	shackleton-s/inbox/609.

No. Yesterday, Sheila mentioned that Bob Bruce would be handling the EIM financial contracts. I do have a stack of Financial confirms that Gordon Heeney provided - who should I send them to?

Cheryl Lindeman Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith Street, EB3842 Houston, TX 77002 Phone: (713) 345-2849 Fax: (713) 646-3393 cheryl.lindeman@enron.com

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, January 24, 2002 9:02 AM To: Lindeman, Cheryl Cc: Tweed, Sheila; Aronowitz, Alan Subject: paper & pulp defaults

Cheryl:

Gordon Heaney tells me that you have received information about non-terminated, defaulting P&P counterparties (on the financial side). We are developing a strategy for handling these types of entities and I want to ensure that ENA responds/acts consistently. Many of the P&P parties misinterpret the ISDA documents and I observe that many are in the money to ENA, have not terminated and may be in default for failures to pay or post collateral. Can you let me know if you actively pursued these parties for Bob Crane?

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 193 of 1118

Enron Teeside Operating Limited ("ETOL")

Sender	sara.shackleton@enron.com
Recipients	['rhett.jackson@enron.com']
File	shackleton-s/sent/6292.

Per my voice mail, please respond about RMT vs. ENA. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/30/2001 10:42 AM -----

Sara Shackleton 05/17/2001 02:51 PM

To: Susan Bailey/HOU/ECT, Rod Nelson/LON/ECT cc: Karolina Moran/LON/ECT@ECT, Jorge A Garcia/NA/Enron@Enron, Rhett Jackson/Enron@EnronXGate Subject: Enron Teeside Operating Limited ("ETOL")

Susan:

Rod or Karolina will prepare a credit worksheet for an ISDA Master Agreement between ETOL and RMT. Jorge has a 3-year rate swap awaiting documentation.

Rod/Karolina: Is there any reason to not use RMT? Is an ETOL sell-off imminent? If so, would it be in the near term?

Rhett: If an ETOL sell-off (in whole or part) is imminent, should the deal be booked in ENA rather than RMT?

Jorge: The transaction confirm should be an ISDA format. Also, please verify whether any ETOL deals are on ENA/RMT books and the remaining terms

Thanks..

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 194 of 1118

RE: Sempra

Sender	sara.shackleton@enron.com
Recipients	['brent.hendry@enron.com']
File	shackleton-s/all_documents/11025.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/15/2001 09:40 AM -----

Celeste Cisneros/ENRON@enronXgate 05/10/2001 09:43 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Sempra

Hi Sara. I can't find in my email system what our conversations were after this. Did you get a chance to respond? If so, please advise. Thanks.

-----Original Message-----

From: Cisneros, Celeste Sent: Thursday, April 26, 2001 2:28 PM To: Shackleton, Sara Subject: FW: Sempra

Sara, the weather group is wanting to get Sempra prepared to do weather trades, how should we proceed?

-----Original Message-----

From: St Clair, Carol Sent: Thursday, April 26, 2001 2:23 PM To: Cisneros, Celeste Subject: Sempra

Celeste: I think that we need to execute an ISDA to do weather trades with Sempra as the 2/22/96 Agreement appears to only work for commodity trades. If this needs to be pursued further, please have someone contact Sara Shackleton as I am moving to the power group. Thanks.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 195 of 1118

Valentis

Sender	sara.shackleton@enron.com
Recipients	[paul.radous@enron.com]
File	shackleton-s/sent/6106.

Paul:

Further to my earlier email:

Do you want to request the language which we have devised for (1) hedge fund monthly account statements and (2) quarterly/annual engineering reserve reports?

Please call to discuss. Caroline says she may be transacting today.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/23/2001 10:11 AM -----

Sara Shackleton 04/23/2001 09:56 AM

To: Paul Radous/Enron@EnronXGate cc: Subject: Valentis

Paul:

With respect to Valentis:

(a) Does the MAC apply to both S&P and Moody's? (not clear from worksheet) (b) Are the financial covenants Events of Default or Termination Events? (looks like these were Termination Events in AIG) (c) Is this deal two-way margining? You have set 0 Thresholds but indicated Return/Delivery for both parties. Our discussion of last week may have changed (we discussed one-way margining for CP only).

I'll have the same questions for CD Holdings.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 196 of 1118

Re: ISDA language: see if you like the way this looks

Sender	larry.hunter@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3040.

That looks perfect. We refer to the Master Agreement as the "Agreement".

Thanks, Joe

From: Sara Shackleton on 03/02/2001 02:24 PM To: Larry Joe Hunter/HOU/ECT@ECT cc: Subject: ISDA language: see if you like the way this looks

"Other Provisions: On each Payment Date, [ENA] shall pay [a fee of] [an amount equal to] USD{38,000?}, which amount shall be subject to the netting provisions of the [Master Agreement - how do you refer to the agreement?]"

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/02/2001 02:20 PM -----

Sara Shackleton 03/02/2001 02:10 PM

To: Larry Joe Hunter/HOU/ECT cc: Subject: ISDA language: see if you like the way this looks

"Calculation of Floating Amount: The Floating Amount payable by [ENA] on a Payment Date will be calculated for that Payment Date as follows:

Floating Amount = (Notional Quantity per Calculation Period X Floating Price) - USD[38,000?]

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 197 of 1118

Re: Praxair

Sender	sara.shackleton@enron.com
Recipients	['chris.foster@enron.com', 'tracy.ngo@enron.com', 'Tracy Ngo/PDX/ECT@ECT']
File	shackleton-s/all_documents/8700.

Tracy/Chris: We would replace the old ERMS agreement with an ISDA.

Tracy: If you need a copy of the existing credit terms, please let me know.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Chris H Foster 01/11/2001 10:26 AM

To: Tracy Ngo/PDX/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, rick_noger@praxair.com Subject: Re: Praxair

Tracy:

Can you prepare a credit worksheet for a Master ISDA with Praxair and forward it to Sara?

Thanks

Chris

From: Sara Shackleton on 01/11/2001 10:27 AM CST To: Chris H Foster/HOU/ECT@ECT cc: Tracy Ngo/PDX/ECT@ECT
Subject: Re: Praxair

Chris:

There is a March 26, 1993 Master Commodity Price Swap Agreement between ERMS and Praxair, Inc. However, it is limited to natural gas price swap transactions. This is an extremely old, outdated form of agreement.

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Chris H Foster 01/11/2001 09:58 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Tracy Ngo/PDX/ECT@ECT Subject: Praxair

S

Do we have a ISDA w/ Praxair that will allow me to do power swaps at Mid-C?

C

Message 198 of 1118

Raptor and the South American Swap

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/sent/6190.

Mary:

Remember, this is the swap that you finally decided to go ahead and terminate yourself. There was much confusion about how many S.A. swaps actually existed (only one) and after sorting through the mess, when I asked if you had established a Raptor "format for termination", you decided to do the drafting. Let me know if there is a problem.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/14/2001 01:31 PM

Mary Cook 05/11/2001 11:38 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Maricela Trevino/Enron@EnronXGate, Gordon McKillop/Enron@EnronXGate,
Joel Ephross/Enron@EnronXGate Subject: Raptor and the South American Swap

Maricela has requested a copy of the termination notice for the referenced swap. I advised her that you would have done the document in relation to the swap (of which I think there was only one). I cannot remember if it was ever terminated. Can you coordinate this matter with Maricela. I am covering the rest of the Raptor requests.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713)
345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 199 of 1118

RE: Credit Suisse First Boston ("CSFB") account with Enron Credit

Sender	tom.doukas@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'david.wall@enron.com', 'marie.heard@enron.com']
File	shackleton-s/inbox/418.

Sara,

I called Scott with no answer. My contact does not know who he is, but suggested you could send the ECI and ENA agreements to her and she would ensure both were put in place with her legal and compliance people.

You can send the completed agreements to:

Kelly Keneally 11 Madison Ave, 5th Floor NY, NY 10010 Phone: 212/538-5581 Fax: 212/538-4057

Please advise me when you send the documents out so I can ensure they are dealt with properly.

Thanks,

Tom -----Original Message----- From: Shackleton, Sara Sent: Tuesday, October 16, 2001 11:14 AM To: Doukas, Tom Cc: Heard, Marie; Panus, Stephanie Subject: Credit Suisse First Boston ("CSFB") account with Enron Credit Inc.

Tom:

We would like to use the same format which was agreed to by ENA and CSFB. That agreement was sent for execution on July 6, 2001 and we have never received an executed version.

Please feel free to contact Scott Kreuzinger (phone is 617-556-5730 or fax is 617-542-1814) to ensure that ENA has executed docs which can also be duplicated for ECI. Perhaps your contact at CSFB can assist. Scott Kreuzinger was ENA's contact for having docs executed.

We have been unable to extract any response from Scott Kreuzinger.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 200 of 1118

RE: CARGILL-ALLIANT, LLC

Sender	mara_alexander@cargill.com
Recipients	['samantha.boyd@enron.com', 'sara.shackleton@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/notes_inbox/3252.

Many thanks for the revised draft. I will review and revert with any comments early next week. We also are eagerly awaiting receipt of the comments from our Treasury Dept. on the Guaranty, and anticipate that we may finally receive them sometime next week.

Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Samantha.Boyd@enron.com [mailto:Samantha.Boyd@enron.com] Sent: Thursday, February 15, 2001 2:13 PM To: alexander, mara /xtwn Cc: Sara.Shackleton@enron.com; Edward.Sacks@enron.com Subject: CARGILL-ALLIANT, LLC

I am forwarding to your attention a clean and red-lined draft of the revised Schedule to the ISDA Master Agreement. Please note that we are still waiting to receive comments from your Treasury Department on the Guaranty from Cargill Incorporation.

If you have any questions or comments, please feel free to contact me at the number referenced below or Sara at (713) 853-5620. We look forward to hearing from you soon.

(See attached file: 053D ctr (Cargill-Alliant, LLC).doc) (See attached file: 053D ctr (Cargill-Alliant, LLC) - RED.doc)

Samantha M. Boyd Sr. Legal Specialist Enron North America Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 201 of 1118

Re: JP Morgan Futures Broker Agreement

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'theresa.brogan@enron.com']
File	shackleton-s/all_documents/10517.

Sara, do you want me to include on the Brokerage Agreement Report any other updates on the futures or other agreements you are working on? You can forward to me and I will make sure it gets added.

Thanx.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/12/2001 03:59 PM

To: Theresa T Brogan/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Re: JP Morgan Futures Broker Agreement

Sent for execution on April 6. Aneela called JP to hurry them along for final docs. You may need to call them as we've not received account information.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/12/2001 03:57 PM -----

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/12/2001 03:44 PM

To: Theresa T Brogan/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: JP Morgan Futures Broker Agreement

Theresa, this is one that Sara is working on.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Theresa T Brogan@ECT 04/11/2001 05:23 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: JP Morgan Futures Broker Agreement

Cheryl, Just want to confirm with you that the futures brokerage agreement with JP Morgan has been executed.

Thanks, TB

Message 202 of 1118

RE: Allegheny Energy Supply

Sender	sara.shackleton@enron.com
Recipients	['tracy.ngo@enron.com']
File	shackleton-s/sent/6222.

Tracy: Thanks!!!! (and I'll call Yair in a day or so if I haven't heard from him)

New Question: Will you be handling credit for the Washington Public Utility Districts (Benton, Franklin and Grays Harbor)? I spoke with Jeff Fuller (PRM) and a lawyer for the PUDs yesterday and I'm analyzing the authority issue.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tracy Ngo/ENRON@enronXgate 05/17/2001 10:14 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Allegheny Energy Supply

Sara,

Spoke with Tom Moore this morning regarding the last outstanding issue (assignment clause for cp) and he is on board with my methodology and agrees as well. He and Yair will propose to Enron replacement language to get us where we need to be hopefully.

Tracy

-----Original Message-----

From: Shackleton, Sara Sent: Monday, May 14, 2001 12:11 PM To: Ngo, Tracy Subject: Allegheny Energy Supply

Tracy:

Did you and Yair finalize the "transfer" language? It seems that too many confirm questions are popping up and different forms are being drafted. We ;should be done with the ISDA.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 203 of 1118

Re: Southern California Water Company

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/all_documents/8914.

Sam:

Please put entry into Lotus Notes and take off of legal/credit list. Thanks. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 01:09 PM

Tracy Ngo 02/02/2001 12:59 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Chris H Foster/HOU/ECT@ECT Subject: Re: Southern California Water Company

I don't believe so Sara. Initially, the cp wanted to do a financial trade but since then Chris Foster informed me that they are now looking to take it physical. Therefore, I recently sent a request to the physical power legal team to process a draft EEI.

I will advise if financial becomes a priority but it doesn't look like it at this time.

Thanks for following up.

Tracy

From: Sara Shackleton on 02/02/2001 07:22 AM To: Tracy Ngo/PDX/ECT@ECT cc:

Subject: Southern California Water Company

Tracy:

We can't move any further with Southern California Water Company (for derivatives trading) as they believe that the company requires CA PUC approval. Does legal need to actively pursue this party for financial trading?

Hope you're surviving!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 204 of 1118

RE: Chase custody account

Sender	sara.shackleton@enron.com
Recipients	[paul.garcia@enron.com]
File	shackleton-s/sent/5682.

Paul:

Why don't you and I speak about the Enron concerns first. I've reviewed the agreement and have a couple of questions about how we intend to use the account. I'm available this morning before 10 am and after 3 pm this afternoon. And I'm free all day tomorrow. Thanks. Sara

p.s. Do we need to bring in someone from Gary's group (e.g., Sheila Glover)?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Paul Garcia/ENRON@enronXgate 02/27/2001 07:48 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Chase custody account

I received a call from Bank of New York's Ray Palmer. He indicated that he would like to set up a conference call. They are a bit more expensive and we initially had some legal concerns with their documentation. Lets discuss.

-----Original Message-----

From: Shackleton, Sara Sent: Monday, February 26, 2001 3:48 PM To: Garcia, Paul Subject: Chase custody account

Paul:

Laurel Adams told me that you would provide me with a name and phone number of someone at Chase for purposes of negotiating the global custody account. Do you have any information? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 205 of 1118

Re: FW: Sempra

Sender	sara.shackleton@enron.com
Recipients	['celeste.cisneros@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/all_documents/11023.

Celeste:

Brent is looking into this for you. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Celeste Cisneros/ENRON@enronXgate 05/15/2001 06:56 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Diane Anderson/NA/Enron@Enron Subject: FW: Sempra

Sara, the trader is asking me about this. Any word?

-----Original Message-----

From: Cisneros, Celeste Sent: Thursday, May 10, 2001 9:44 AM To: Shackleton, Sara Subject: RE: Sempra

Hi Sara. I can't find in my email system what our conversations were after this. Did you get a chance to respond? If so, please advise. Thanks.

-----Original Message-----

From: Cisneros, Celeste Sent: Thursday, April 26, 2001 2:28 PM To: Shackleton, Sara Subject: FW: Sempra

Sara, the weather group is wanting to get Sempra prepared to do weather trades, how should we proceed?

-----Original Message-----

From: St Clair, Carol Sent: Thursday, April 26, 2001 2:23 PM To: Cisneros, Celeste Subject: Sempra

Celeste: I think that we need to execute an ISDA to do weather trades with Sempra as the 2/22/96 Agreement appears to only work for commodity trades. If this needs to be pursued further, please have someone contact Sara Shackleton as I am moving to the power group. Thanks.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 206 of 1118

Re: Meeting in Houston

Sender	sara.shackleton@enron.com
Recipients	['Susan', 'janine.juggins@enron.com', 'Guenther Klar/LON/ECT@ECT', 'Robert Bruce/NA/Enron@Enron']
File	shackleton-s/sent/5654.

fine with me. I thought Susan might have a problem on Tuesday morning (for the credit piece).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Janine Juggins 02/22/2001 11:35 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Robert Bruce/NA/Enron@Enron, Guenther Klar/LON/ECT@ECT, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Re: Meeting in Houston

Slight amendment to your proposal:

(1) Credit Tuesday 27th at 10 am (2) Softs Tuesday 27th at 11 am

Already have a meeting scheduled at 9am that day. Will this work for you ? Thanks Janine

From: Sara Shackleton on 22/02/2001 10:08 CST To: Janine Juggins/LON/ECT@ECT cc: Robert Bruce/NA/Enron@Enron, Guenther Klar/LON/ECT@ECT, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Meeting in Houston

Janine: I would like to meet with you (and Guenther) regarding two topics:

(1) softs trading (together with Bob Bruce)

(2) credit trading (do we need anyone else?)

Either of Tuesday or Friday morning works fine. Let me propose 9 am Tuesday for softs and 10 am for credit (and I am flexible). Bob and I are located only several offices apart on the 38th floor of the Enron building.

We look forward to hearing from you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 207 of 1118

Re: J.P. Morgan Futures Inc. ("JP")

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com']
File	shackleton-s/all_documents/9356.

I'm sending my comments to Thomas Alterson within the hour. He is not the lawyer.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Sheila Glover 02/22/2001 08:25 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Ellen Su/Corp/Enron@Enron Subject: J.P. Morgan Futures Inc. ("JP")

SARA, Notes below. Gary is going to an offsite meeting with JP Morgan next week and has requested that he would like this in place when he goes. Many thanks. Sheila ----- Forwarded by Sheila Glover/HOU/ECT on 02/22/2001 08:25 AM ----- From: Sara Shackleton on 02/21/2001 04:43 PM To: Sheila Glover/HOU/ECT@ECT cc: Subject: J.P. Morgan Futures Inc. ("JP")

Sheila:

Just a few questions about this futures agreement:

(1) Is it OK for JP to combine our orders with orders of other clients and JP's affiliates? YES (2) Is it OK (after we deposit property into our account) for JP to return "property of like or equivalent kind or amount"? NO (3) Do you want to agree to an interest rate (on customer funds) upfront or only "as agreed from time to time"? I WOULD LIKE TO AGREE TO AN INTEREST RATE UPFRONT. (EG. FED FUNDS). CAN WE TAKE A LOOK AT PRU, CARR AND CSFB futures agreements TO SEE WHAT IS MARKET?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 208 of 1118

Re: futures agreement

Sender	sara.shackleton@enron.com
Recipients	[samon_corinne@jpmorgan.com]
File	shackleton-s/sent/5689.

Corinne:

Attached is your arbitration language (marked) and our arbitration text. I hope this does it! Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Corinne A Samon" <samon_corinne@jpmorgan.com> 02/27/2001 02:58 PM

To: Sara.Shackleton@enron.com cc: Subject: Re: futures agreement

Sara, Thank you for your fax. Section 180.3 of the CEA prohibits us from agreeing to any settlement procedure/forum ahead of time. JPMFI, in accordance with 180.3, will offer 3 forums - which will include AAA. If Enron chooses AAA, the arbitration will be subject to the provisions specified in your fax dd 2/26/2001.

Attached is JPM's proposed language for the arbitration agreement.

(See attached file: ARBITRATION AGREEMENT.doc)

If you are in agreement with the language, please forward Enron's proposed language (detailed in your 2/26 fax) electronically (if available).

Thank you and Regards, Corinne

Sara.Shackleton@enron.com on 02/26/2001 12:36:22 PM

To: samon_corinne@jpmorgan.com cc: Subject: futures agreement

Corinne:

I just sent you a fax re: arbitration.

I have not heard from your salesperson re: interest schedule for debit rate (Sec. 2) and credit rate (Sec. 6). Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

- ARBITRATION AGREEMENT.doc

Message 209 of 1118

Enron Global Markets LLC Monthly Report Reminder

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/5294.

Kaye: I need to revise this report and I will email changes for the ag section. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/10/2001 06:30 PM

Joya Williams 01/10/2001 10:47 AM

To: Wayne Gresham/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Lou Stoler/HOU/ECT@ECT, David Minns/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Matthias Lee/SIN/ECT@ECT, Robert Quick/LON/ECT@ECT, Michael A Robison/HOU/ECT@ECT, Marcus Nettelton/NA/Enron@ENRON, Brent Hendry/NA/Enron@Enron, Daniel R Rogers/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Paul Simons/LON/ECT@ECT cc: Alan Aronowitz/HOU/ECT@ECT, Alison Keogh/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Angeline Poon/SIN/ECT@ECT, Linda J Simmons/HOU/ECT@ECT, Connie Castillo/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Nina Edmonds/LON/ECT@ECT, Becky Spencer/HOU/ECT@ECT, Dina Snow/Corp/Enron@Enron, Jenny Helton/HOU/ECT@ect, Kaye Ellis/HOU/ECT@ECT
Subject: Enron Global Markets LLC Monthly Report Reminder

Please provide your response to me via e-mail by Thursday, January 11th. This report must be completed by Thursday for Alan's review. I have attached a copy of the December report for your review.

Thanks for your cooperation.

Joya' F. Williams, Sr. Admin. Assistant EGM Legal Department 1400 Smith St., EB3855A Houston, Texas 77002
joya.williams@enron.com (713) 853-9559 (direct dial) (713) 646-4842 (fax)

Message 210 of 1118

RE: Enron Metall Recycling GmbH & Co. KG

Sender	kate.cole@enron.com
Recipients	['sara.shackleton@enron.com', 'cindy.buckley@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/11315.

Funny you should ask..... I asked that question a long time ago to London legal but I've not managed to get a response yet.

Cindy - The A&J memo shows as follows:

Directors: MG Metall Recycling Verwaltungs GmbH Management Officers: Achim Lindhorst, Hermann Ritterbach, Micahel Schaaf, Stefan Scheppler, Hans-Peter Schneider.

My questions are still the same: (i) what is the title of each of the officers, and (ii) should I name the directors of MG Metall Recycling Verwaltungs GmbH as directors of the captioned co? Until I get a response my hands are tied.

Susan - this is probably not too helpful to you but you can see my dilemma.

Best regards Kate

Kate B. Cole Director, Corporate Services Enron Corp. Tel: (713) 853-1624 Fax: (713) 646-8007 Email: kate.cole@enron.com

-----Original Message-----

From: Bailey, Susan Sent: 30 May, 2001 2:27 PM To: Cole, Kate Cc: Shackleton, Sara Subject: Enron Metall Recycling GmbH & Co. KG Importance: High

Kate,

Hi!!

Please advise: Who is an authorized signatory for the captioned Enron affiliate. According to the Secretariat Database, no directors, officers, or managing directors have been designated.

Reason for inquiry: I need to get an ISDA Master Agreement executed for this Enron affiliate, in order that their financial FX transactions can be confirmed under said ISDA.

I look forward to your response.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 211 of 1118

RE: Amendment to IRCEA

Sender	sara.shackleton@enron.com
Recipients	['maureen.ryan@chase.com']
File	shackleton-s/sent_items/261.

Maureen:

Am I reading too many documents at once? After receiving your voice mail, I realized the error of my ways. Your amendment is fine as is. I will have this executed. Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Maureen.Ryan@chase.com@ENRON Sent: Friday, October 26, 2001 11:12 AM To: Shackleton, Sara Subject: Amendment to IRCEA

Sara,

Per your conversation with Phil Levy, attached please find our proposed amendment to the Interest Rate and Currency Exchange Agreement currently in place between The Chase Manhattan Bank and Enron North America Corp. I have reviewed the definition of "Specified Swap" as defined in Part 1(2) of the Schedule and it does not appear to include foreign exchange transactions. Therefore, I have modified the definition in the amendment.

Please review the amendment and, if satisfactory, arrange for the execution of two copies. Both copies should then be returned to my attention at 270 Park Avenue, 40th Floor, New York, New York 10017. In addition, once executed, I would appreciate your faxing me a copy at 212-270-7368. Once I receive the originals and have them executed by Chase, I will return to you one fully executed original for your files.

If you have any questions or comments, feel free to contact me. My telephone number is 212-270-2673.

Best Regards,

Maureen Ryan

(See attached file: Enron North America Corp. amendment to IRCEA.DOC) - Enron North America Corp. amendment to IRCEA.DOC << File: Enron North America Corp. amendment to IRCEA.DOC >>

Message 212 of 1118

Re: ISDA Master Agreement between Enron North America Corp. and

Sender	sara.shackleton@enron.com
Recipients	['mara_alexander@cargill.com', 'cheryl.nelson@enron.com']
File	shackleton-s/all_documents/8647.

Mara:

Got your voice mail and wanted to let you know that Cheryl Nelson will be handling this file. Cheryl will give you a call.
Sara

ps Her phone number is 713-345-4693

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Mara_Alexander@cargill.com 12/12/2000 09:35 AM

To: sara.shackleton@enron.com cc: Subject: ISDA Master Agreement between Enron North America Corp. and Cargill, Incorporated

Dear Sara,

Attached please find our response to the draft Amendment to the CSA for the above-referenced Agreement. You will note that I have added some additional language which our Legal Dept. prefers to include in Amendments, which I trust will be acceptable to you as well. As mentioned briefly over the telephone the other day, I have also incorporated some changes with respect to Letter of Credit provisions.

The changes to the LC terms are those which our Credit Department is requiring as a result of a review of Cargill's LC language. The main issue is that an LC issued as collateral can no longer be transferable. I note from the file on our ISDA negotiations that Enron may have preferred transferability in order to be able to transfer an LC to its Affiliates. If this is still the case, we can certainly discuss options which may specify and limit transferability accordingly.

I look forward to your response at your earliest opportunity.

Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

- 31409_Amnd_CSA.doc

Message 213 of 1118

Re: Credit Agricole- 2nd Request for Info.

Sender	sara.shackleton@enron.com
Recipients	[samantha.boyd@enron.com]
File	shackleton-s/sent/1764.

I don't have a 7/28/00 email from you. What do you need? SS

Samantha Boyd@ENRON 08/07/2000 03:29 PM

To: Rod Nelson/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: Credit Agricole- 2nd Request for Info.

Please provide me with the requested information per my 7/28/00 e-mail to you. Your attention to this matter is greatly appreciated.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

----- Forwarded by Samantha Boyd/NA/Enron on 08/07/2000 03:26 PM -----

Samantha Boyd 07/28/2000 05:22 PM

To: Rod Nelson/LON/ECT@ECT cc: Subject: Credit Agricole

Per Sara Shackleton, I need to check with you to find out if the guaranty cap for the above-referenced Counterparty has not changed. Please respond to my e-mail at your earliest convenience so that I can forward a new Guaranty to Emma

Nakakuke. Your assistance with this matter is greatly appreciated.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

----- Forwarded by Samantha Boyd/NA/Enron on 07/28/2000 05:16 PM -----

Sara Shackleton@ECT 07/27/2000 08:48 AM

To: Samantha Boyd/NA/Enron@Enron cc: Subject: Credit Agricole

Would you please generate a fresh ENE guaranty and email to the lawyer (see Lotus Notes - Emma Nakakuki is the new attorney). Also, please verify with credit (Rod Nelson in London) that the guaranty cap has not changed. I have the file in my office. Thanks. SS

Message 214 of 1118

Frontera - ISDA Agreement

Sender sara.shackleton@enron.com

Recipients ['paul.radous@enron.com', 'david.portz@enron.com', 'edward.sacks@enron.com']

File shackleton-s/sent/6217.

Paul:

I originally sent this request to Ed but I understand from Mike Curry that you handled credit for the physical agreements. Would you please prepare a credit worksheet for this counterparty or direct the request to the appropriate person? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/16/2001 03:16 PM

Sara Shackleton 05/15/2001 06:21 PM

To: Edward Sacks/Enron@EnronXGate cc: Tanya Rohauer/Enron@EnronXGate, David Portz/HOU/ECT@ECT Subject: Frontera - ISDA Agreement

Ed:

Will you please prepare a credit worksheet for Frontera? I don't know the complete name for this counterparty.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/15/2001 06:19 PM

David Portz 05/15/2001 05:18 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Mike Curry/ENRON@enronXgate Subject: Frontera - ISDA Agreement

Sara-- Are you still the swaps lawyer to assist with this? If not, would you pass it to the person who can help Mike Curry with this? Thanks.

----- Forwarded by David Portz/HOU/ECT on 05/15/2001 05:11 PM -----

Mike Curry/ENRON@enronXgate 05/15/2001 04:47 PM

To: David Portz/HOU/ECT@ECT cc: Subject: Frontera - ISDA Agreement

David, We want to be able to start performing financial trades with Frontera so could you please prepare an ISDA Agreement for their review. Thanks, - Mike

Message 215 of 1118

RE: Amendment to IRCEA

Sender	sara.shackleton@enron.com
Recipients	['maureen.ryan@chase.com']
File	shackleton-s/sent_items/259.

Maureen:

Thanks for the amendment. I have made a change that I hope you will find acceptable. Just give me a call. We will have this executed today and faxed back to you immediately. Thanks for your help.

Regards. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Maureen.Ryan@chase.com@ENRON Sent: Friday, October 26, 2001 11:12 AM To: Shackleton, Sara Subject: Amendment to IRCEA

Sara,

Per your conversation with Phil Levy, attached please find our proposed amendment to the Interest Rate and Currency Exchange Agreement currently in place between The Chase Manhattan Bank and Enron North America Corp. I have reviewed the definition of "Specified Swap" as defined in Part 1(2) of the Schedule and it does not appear to include foreign exchange transactions. Therefore, I have modified the definition in the amendment.

Please review the amendment and, if satisfactory, arrange for the execution of two copies. Both copies should then be returned to my attention at 270 Park Avenue, 40th Floor, New York, New York 10017. In addition, once executed, I would appreciate your faxing me a copy at 212-270-7368. Once I receive the originals and have them executed by Chase, I will return to you one fully executed original for your files.

If you have any questions or comments, feel free to contact me. My telephone number is 212-270-2673.

Best Regards,

Maureen Ryan

(See attached file: Enron North America Corp. amendment to IRCEA.DOC) - Enron North America Corp. amendment to IRCEA.DOC << File: Enron North America Corp. amendment to IRCEA.DOC >>

Message 216 of 1118

Re: Energy New England LLC ("ENE")

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/all_documents/9146.

I've tabled this one.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/13/2001 08:34 AM -----

Edward Sacks@ENRON 02/13/2001 07:29 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Brant Reves/HOU/ECT@ECT Subject: Re: Energy New England LLC ("ENE")

In our previous dealings, the counterparty never responded to the proposed EEI Master Energy Purchase and Sale Agreements. Concepts like margining were not understood and there was even a case whereby we tried to margin them and they failed to post. Jim Delany at ENE has tried to reignite the EEI discussions, but I'm not very interested until I get their comments to our original EEI. Let me know if I can be of assistance.

From: Sara Shackleton@ECT on 02/12/2001 10:21 AM To: Edward Sacks/Corp/Enron@Enron, Brant Reves/HOU/ECT@ECT cc:

Subject: Energy New England LLC ("ENE")

Ed & Brant:

I'm being hounded by ENE but no Enron traders seem interested. Brant prepared a new worksheet based upon which we sent a new ISDA. ENE "represents" four municipal utilities and is trying to negotiate ISDA's on behalf of those utilities. I think the agent is off-base and I'm not sure that any of the utilities really want to trade financial.

Ed, Shari suggested that you may have some insight into ENE. Should I drop this one altogether? Or are we interested in pursuing?

Either Ed or Brant please let me know. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 217 of 1118

Re: Chase - optional early termination

Sender	sara.shackleton@enron.com
Recipients	['pushkar.shahi@enron.com', 'melissa.rodriguez@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/sent/5544.

Melissa:

Before I can respond, I need to know the following answers:

(1) What is the Exercise Period (Commencement/Expiration Dates) for the swaption and during what hours can we exercise? Is it from Jan. 2 - Feb 28, 2001 from 9 am to 11 am New York time?

(2) Is the Commencement Date also the Premium Payment Date?

(3) For early termination purposes, is there just a single Optional Early Termination Date or is it a period of time and during what hours?

(4) Did we want to specify any Cash Settlement Reference Banks?

I can mark this confirm quickly when I hear from you. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Melissa Rodriguez 02/12/2001 11:48 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Chase - optional early termination

Sara,

Would it be possible for you to forward the Early Term. Language that you requested be changed by Chase? They have not responded at all and I would like to continue insisting by faxing it over to them as many times as it takes to get this issue resolved. Let me know if this is possible.

Thanks, Melissa ----- Forwarded by Melissa Rodriguez/HOU/ECT on 02/12/2001 11:42 AM
----- From: Sara Shackleton on 01/10/2001 01:15 PM To: Melissa Rodriguez/HOU/ECT@ECT cc:
Subject: Chase - optional early termination

Melissa: You may want to follow up with Amy. She should have received my comments last night. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 218 of 1118

RE: form of Note

Sender	sara.shackleton@enron.com
Recipients	['rhackman@lehman.com']
File	shackleton-s/sent_items/648.

Russ: Please add Jim Armogida to the distribution for the note (jim.armogida@enron.com). Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax:
(713) 646-3490

-----Original Message-----

From: "Hackmann, Russell" <rhackman@lehman.com>@ENRON Sent: Friday, November 02, 2001 2:16 PM To:
Freeland, Clint; Shackleton, Sara Cc: Despain, Tim; Jacobe, Lee; Guenther, Todd; Karna, Angie Subject: form of Note

Clint and Sara,

Our attorneys are preparing the form of note for delivery on Tuesday. We will send you the draft later today or Monday morning.

FYI our internal attorney dealing with this is Angie Karna, cell # 917-596-0671.

Regards,

Russell F. Hackmann, CFA Lehman Brothers Corporate Equity Derivatives (201) 524-2279 phone (917) 596-2936 cell
rhackman@lehman.com

This message is intended only for the personal and confidential use of the designated recipient(s) named above. If you are not the intended recipient of this message you are hereby notified that any review, dissemination, distribution or copying of this message is strictly prohibited. This communication is for information purposes only and should not be regarded as an offer to sell or as a solicitation of an offer to buy any financial product, an official confirmation of any transaction, or as an official statement of Lehman Brothers. Email transmission cannot be guaranteed to be secure or error-free. Therefore, we do not represent that this information is complete or accurate and it should not be relied upon as such. All information is subject to change without notice.

Message 219 of 1118

FW: paper & pulp defaults

Sender	sheila.tweed@enron.com
Recipients	['sara.shackleton@enron.com', 'robert.bruce@enron.com']
File	shackleton-s/inbox/618.

Sorry that I did not get around to talk with you both but if Bob Bruce could pick up the financial side of EIM, that would be a big help to Cheryl. Bob, please talk with Steve VanHooser for transition. Let me know if there are questions etc.

-----Original Message-----

From: Lindeman, Cheryl Sent: Thursday, January 24, 2002 9:04 AM To: Shackleton, Sara Cc: Tweed, Sheila; Aronowitz, Alan; Bruce, Robert Subject: RE: paper & pulp defaults

No. Yesterday, Sheila mentioned that Bob Bruce would be handling the EIM financial contracts. I do have a stack of Financial confirms that Gordon Heeney provided - who should I send them to?

Cheryl Lindeman Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith Street, EB3842 Houston, TX 77002 Phone: (713) 345-2849 Fax: (713) 646-3393 cheryl.lindeman@enron.com <mailto:cheryl.lindeman@enron.com>

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, January 24, 2002 9:02 AM To: Lindeman, Cheryl Cc: Tweed, Sheila; Aronowitz, Alan Subject: paper & pulp defaults

Cheryl:

Gordon Heeney tells me that you have received information about non-terminated, defaulting P&P counterparties (on the financial side). We are developing a strategy for handling these types of entities and I want to ensure that ENA responds/acts consistently. Many of the P&P parties misinterpret the ISDA documents and I observe that many are in the money to ENA, have not terminated and may be in default for failures to pay or post collateral. Can you let me know if you actively pursued these parties for Bob Crane?

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 220 of 1118

RE: Copy of ISDA Schedule (internal "form")

Sender	sara.shackleton@enron.com
Recipients	['susan.musch@enron.com']
File	shackleton-s/sent/5857.

DONE! Don't worry about this - I'll let you know about our next meeting. Thanks for your help as I really appreciate it.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Susan Musch/ENRON@enronXgate 03/20/2001 06:22 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Copy of ISDA Schedule (internal "form")

If at all possible, I would really appreciate postponing the tax discussion until your next swap group meeting, which I think is in 2 weeks. I have other projects that I have to work on tonight and will not get the opportunity to prepare a presentation for the group before the meeting. I really appreciate your asking me to speak to the group and also (hopefully) your

understanding and patience in postponing the tax discussion.

Best regards, Susan

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, March 20, 2001 6:18 PM To: Musch, Susan Subject: Copy of ISDA Schedule (internal "form")

Susan: This may look confusing! It contains all of our "choices" for preparing the documents. See Part 2 (Tax Reps) and the end of the document which has our "choices" of tax forms.

I thought it might be helpful to be very basic about withholding issues, etc., why we need the tax reps, and what questions we could ask upfront about a party that would help us select an appropriate tax module. We tend to not "think" and expect a party "fill in the blank" when we are preparing draft documents.

<< File: isda-schedule(multicurrency02-14-01).doc >>

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 221 of 1118

RE: Bank Brussels Lambert (acquired by ING)

Sender	sara.shackleton@enron.com
Recipients	['Pushkar', 'stephanie.panus@enron.com', 'Shahi', 'susan.bailey@enron.com']
File	shackleton-s/sent/6014.

Please prepare a new ISDA. I'm waiting for instructions from the counterparty as to distribution.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/11/2001 01:48 PM -----

Tanya Rohauer/ENRON@enronXgate 04/11/2001 09:11 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Bank Brussels Lambert (acquired by ING)

Call me if you have any questions on the attached credit worksheet

.

Thanks, Tanya

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, April 11, 2001 8:45 AM To: Rohauer, Tanya Cc: Shahi, Pushkar Subject: Bank Brussels Lambert (acquired by ING)

Tanya:

Once again, we need a master for Pushkar's FX trading. The counterparty's name is:

ING Barings (U.S.) Capital Markets LLC

I am constantly receiving calls for this agreement. Please assign. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/11/2001 08:42 AM -----

Sara Shackleton 10/31/2000 09:50 AM To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: Bank Brussels Lambert (acquired by ING)

Tanya: This is the master referred to in my vm. Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 10/31/2000 09:50 AM -----

Sara Shackleton 10/02/2000 08:29 AM To: William S Bradford/HOU/ECT, Tanya Rohauer/HOU/ECT, Paul Radous/Corp/Enron cc: Subject: Bank Brussels Lambert (acquired by ING)

Don't know if I have the name spelled correctly but I received a call requesting an ISDA Master (for Pushkar Shahi) for trading rate/currency. Thanks. Sara

Message 222 of 1118

Re: ENA signatories

Sender	sara.shackleton@enron.com
Recipients	['Samantha Boyd/NA/Enron@Enron', 'denis.o'connell@enron.com', 'Stephanie Panus/NA/Enron@Enron', 'Mark']
File	shackleton-s/all_documents/9575.

Denis: Please arrange with Jeff to have someone available to sign as Jeff can explain the purpose of your deal. When executed, we can fax per your earlier email. If necessary, get Jeff and Samantha on the phone.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Denis O'Connell 03/02/2001 04:12 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Mark Evans/Legal/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Robina Barker-Bennett/LON/ECT@ECT, Jeff Kinneman/HOU/ECT@ECT, Bryan Seyfried/LON/ECT@ECT Subject: Re: ENA signatories

Sara - whoever normally signs the ENA ISDA Master Agreements should sign this one. Can I leave this in your hands. It is imperative that fax signatory pages of the ISDA are sent through to FSA today - per my previous email. I have initialled signatory pages for your records and faxed to Samantha this morning. I will ensure the details of each of the ENA ISDAs that I have negotiated are uploaded into Lotus Notes. Please call me when you come in.

Many tks,

Denis

From: Sara Shackleton on 01/03/2001 14:05 CST To: Denis O'Connell/LON/ECT@ECT cc: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Mark Evans/Legal/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT

Subject: ENA signatories

Denis:

Per my voice mail, please advise which ENA officer will execute your documents for ENA. When we hear from you, we can have the docs executed and delivered.

Also, we need copies of the executed ENA masters and the information entered into Lotus Notes.

Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 223 of 1118

RE: Frontera - ISDA Agreement

Sender	paul.radous@enron.com
Recipients	['sara.shackleton@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/notes_inbox/2217.

We will handle this. -----Original Message----- From: Shackleton, Sara Sent: Wednesday, May 16, 2001 3:19 PM To: Radous, Paul Cc: Portz, David; Sacks, Edward Subject: Frontera - ISDA Agreement

Paul:

I originally sent this request to Ed but I understand from Mike Curry that you handled credit for the physical agreements. Would you please prepare a credit worksheet for this counterparty or direct the request to the appropriate person? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/16/2001 03:16 PM -----

Sara Shackleton 05/15/2001 06:21 PM To: Edward Sacks/Enron@EnronXGate cc: Tanya Rohauer/Enron@EnronXGate, David Portz/HOU/ECT@ECT Subject: Frontera - ISDA Agreement

Ed:

Will you please prepare a credit worksheet for Frontera? I don't know the complete name for this counterparty.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/15/2001 06:19 PM -----

David Portz 05/15/2001 05:18 PM To: Sara Shackleton/HOU/ECT@ECT cc: Mike Curry/ENRON@enronXgate Subject: Frontera - ISDA Agreement

Sara-- Are you still the swaps lawyer to assist with this? If not, would you pass it to the person who can help Mike Curry with this? Thanks.

----- Forwarded by David Portz/HOU/ECT on 05/15/2001 05:11 PM -----

Mike Curry/ENRON@enronXgate 05/15/2001 04:47 PM To: David Portz/HOU/ECT@ECT cc: Subject: Frontera - ISDA Agreement

David, We want to be able to start performing financial trades with Frontera so could you please prepare an ISDA Agreement for their review. Thanks, - Mike

Message 224 of 1118

Re: ISDA Agreement for EECC

Sender	john.schwartzenburg@enron.com
Recipients	['sara.shackleton@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/9588.

Thnaks for the schedule. May I have a copy of the contract as well? Thanks.

JWVS

Susan Bailey@ECT 03/02/2001 10:16 AM

To: John Schwartzenburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Sara Shackleton/HOU/ECT@ECT
Subject: Re: ISDA Agreement for EECC

John,

At the request of Sara Shackleton, attached is the draft Schedule.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 03/02/2001 10:14 AM -----

Sara Shackleton 03/02/2001 10:09 AM

To: John Schwartzenburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: (bcc: Susan Bailey/HOU/ECT)
Subject: Re: ISDA Agreement for EECC

John: I hope you are able to locate an executed ISDA Master Agreement between RMT and EECC inasmuch as neither our database nor files reflect one. , I've asked Susan Bailey to resend the draft Schedule. In the event that we need to execute this Schedule, you should provide us with appropriate notice information. We can then prepare execution originals.

Let me know if you need further assistance. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

John Schwartzenburg@ENRON_DEVELOPMENT 03/02/2001 07:12 AM

To: Sara Shackleton@ECT cc: Susan Bailey@ECT, Wyndel McNamara@ENRON Subject: ISDA Agreement for EECC

Sara, our CFO remembers executing one of these some time ago, but we cannot locate the document yet. If we can't get our hands on it by next week, we will go ahead and do a new form. Please resend the electronic form of the ISDA master agreement. Your prior transmission seems to have been deleted in a clean-up of the e-mails over here.. Thanks

JWVS

Message 225 of 1118

RE: Morgan Stanley Capital Services Inc. ("MSCI") and ENA

Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com', 'Rod Nelson/LON/ECT@ECT Subject: Morgan Stanley Capital Services Inc.']
File	shackleton-s/notes_inbox/2046.

sorry for the delay..I looked at Rod's wkst and it seems fine.

Also, on the Chase agmt - setoff against bank accts - Despain wanted to know if there was a cure period before they could do that (we would insist on one). do we even have any bank accounts with Chase and do they get swept to Corp? Kelly Boots did not know so I have a call into Mary Perkins. Other questions I have thought of, can it be any Enron affiliate with the bank account or just the contracting party? We MUST exclude our custody account for securities as this is where we hold securities that are posted to us as collateral from third parties.

Thanks, tanya

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, May 31, 2001 3:08 PM To: Rohauer, Tanya Subject: Morgan Stanley Capital Services Inc. ("MSCI") and ENA

Tanya: I faxed the prior credit worksheet (from 5/16/00) to you last week. Aaron Armstrong in London is asking for the draft ISDA. Have you had a chance to review the old credit?

Please let me know if I can help. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/31/2001 03:04 PM -----

Sara Shackleton 04/20/2001 02:27 PM To: Tanya Rohauer/Enron@EnronXGate cc: Rod Nelson/LON/ECT@ECT
Subject: Morgan Stanley Capital Services Inc. ("MSCI") and ENA

Tanya:

Our FX/currency traders in London need an ISDA with MSCI. Rod prepared a credit work sheet on 6/16/00. The negotiations never went anywhere. MSCI has now sent their form of agreement.

Do you want to propose new credit or use the existing credit from last year?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 226 of 1118

Re: Enron Credit Inc. ("ECI")

Sender	sara.shackleton@enron.com
Recipients	['Sheila', 'Samantha Boyd/NA/Enron@Enron', 'cheryl.nelson@enron.com', 'Stephanie Panus/NA/Enron@Enron']
File	shackleton-s/sent/5588.

Cheryl: Sheila can print out a listing of instruments to be assigned to each new Enron Credit Inc. account. The portfolio includes high-risk, high yield instruments. We should contact the brokers today or tomorrow for the form of agreements. Why don't you ask Stephanie or Sam to prepare three sets of assignments? They should coordinate with Sheila to identify the attachment.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/15/2001 08:52 AM -----

Sheila Glover 02/15/2001 08:09 AM

To: Sara Shackleton/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: Enron Credit Inc. ("ECI")

Sara and Cheryl, This related to the CREDIT Book only. Sheila

From: Sara Shackleton on 02/14/2001 06:13 PM To: Cheryl Nelson/NA/Enron@Enron cc: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Sheila Glover/HOU/ECT@ECT Subject: Enron Credit Inc. ("ECI")

Cheryl:

Enron Credit Inc. , a Delaware corporation, has been created for U.S. debt trading currently handled by ENA. As a result, ENA will need to transfer its brokerage debt positions to Enron Credit Inc. accounts with those brokers. The brokers include our favorites:

Bear Stearns Companies Morgan Stanley & Co. Inc. Goldman Sachs & Co.

ENA will need to assign its positions by the end of February, 2001. Richard Sage (London office) will need to see the "sample package" (unanimous consent, authorized trader list). Will you please see that an email is sent to Richard with this information?

We should begin the documentation now. Let me know if you have any questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 227 of 1118

RE: About Coillte ([http:](http://www.coillte.ie/about_coillte/annual_report.htm)

Sender	brent.hendry@enron.com
Recipients	['aparna.rajaram@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2004.

Who is the proposed counterparty, Coillte Teoranta or the joint venture entity, Lousiana Pacific Coillte (Ireland) Ltd? This will help me focus my research.

Brent Hendry Enron North America 1400 Smith Street Houston, TX 77002 Phone: (713) 853-7124 Fax: (713) 646-3490

Aparna Rajaram/ENRON@enronXgate 06/04/2001 09:03 AM

To: Sara Shackleton/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron cc: Subject: RE: About Coillte (http://www.coillte.ie/about_coillte/annual_report.htm)

Brent,

We currently have not executed any transactions with this counter-party, but Rob is ineterested in doing a financial deal with them once an ISDA gets put in place. Thanks.

Regards,

Aparna Rajaram ext. 5-4563

-----Original Message-----

From: Shackleton, Sara Sent: Monday, June 04, 2001 8:59 AM To: Hendry, Brent Cc: Rajaram, Aparna Subject: FW: About Coillte (http://www.coillte.ie/about_coillte/annual_report.htm)

Brent: Attached is Aparna's email. Please call her if you have any questions. I believe that Rob Scheuer is the commercial person.

Aparna: Would you please advise Brent as to whether or not a transaction has been executed.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/04/2001 08:56 AM -----

Aparna Rajaram/ENRON@enronXgate 06/04/2001 08:54 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: About Coillte (http://www.coillte.ie/about_coillte/annual_report.htm)

Sara,

Here is the link to the Irish entity I just spoke to you about. The Lumber Group is looking to get an ISDA in place with this entity but I wanted to get your input on the legal side on an entity that is probably 100% owned by the Irish Govt.

www.coillte.ie

Thanks for your help!

Regards,

Aparna Rajaram ext. 5-4563

Message 228 of 1118

RE: Document you sent to Enron

Sender	sara.shackleton@enron.com
Recipients	['becky.spencer@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/sent/6149.

Is Maud Perrodin with Banque do Reescompte et de Placement? She told me it was Banque CPR. What is the letterhead? We need to add to Lotus Notes. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Becky Spencer 04/25/2001 07:45 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Brent Hendry/NA/Enron@Enron Subject: RE: Document you sent to Enron

----- Forwarded by Becky Spencer/HOU/ECT on 04/25/2001 07:44 AM -----

PERRODIN Maud <MPERRODIN@CPR.FR> 04/25/2001 04:03 AM

To: "Becky.Spencer@enron.com" <Becky.Spencer@enron.com> cc: Subject: RE: Document you sent to Enron

Becky, As regards the ISDA agreement I sent to Brent Hendry, the name of the trader in charge of the transaction at Enron is Steven Vu. We look forward to receiving your comments on this agreement, together with the draft confirmation of the transaction at your earliest convenience. Kind regards. Maud PERRODIN Legal Adviser Tel : + 33 1 45 96 20 19 Fax : + 33 1 45 96 25 40 -----Message d'origine----- De : Becky.Spencer@enron.com [mailto:Becky.Spencer@enron.com] Envoy, : mardi 24 avril 2001 18:51 ? : mperrodin@cpr.fr Objet : Document you sent to Enron

Hello, Maud! My name is Becky Spencer and I work for Brent Hendry. In answer to your question of this morning, yes, Brent did receive the document you sent to him on April 12th. Could you please let us know the name of the contact person here at Enron to whom you have been speaking so we can better coordinate our discussions with you? Thank you! We look forward to doing business with you. Becky Spencer Enron North America Corp. 1400 Smith Street 38th Floor Houston TX 77002 713-853-7599 Office 713-646-3490 Fax My e-mail address: becky.spencer@enron.com Brent Hendry's e-mail address: brent.hendry@enron.com

Message 229 of 1118

Re: EOL tax reps

Sender	sara.shackleton@enron.com
Recipients	['Carlos Alatorre/NA/Enron@Enron', 'susan.musch@enron.com']
File	shackleton-s/all_documents/9343.

Susan: You've just hit the nail on the head! Remember, for FX trading ENA is always the principal, either in Houston, through EEFT as agent (under services agreement which I presume covers FX deals) or Enron Japan Corp. (under services agreement). Most problematic are the counterparties since they could originate from anywhere in the world.

I have heard that Enron Japan had some GTC's that contained "universal tax reps" but I haven't checked it out. Why don't you give me a call.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Susan Musch@ENRON_DEVELOPMENT 02/21/2001 03:42 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Carlos Alatorre/NA/Enron@Enron@ECT, Jeff Blumenthal/Enron@EnronXGate
Subject: Re: EOL tax reps

Sara,

Which Enron entities would be a party to the transactions? Also, where would the counterparties likely be organized and doing business?

Best regards, Susan

From: Sara Shackleton@ECT on 02/21/2001 08:45 AM To: Susan
Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Carlos Alatorre/NA/Enron@Enron

Subject: EOL tax reps

Susan:

The internal EOL FX products will be opened up to third parties shortly. I'm reviewing the GTC's. With respect to the tax reps which are incorporated into the GTC's, I think we need a "universal" rep since the products could be traded by parties residing anywhere in the world. I believe that the first week in March is the target EOL date.

Can you prepare the tax rep section for the GTC's? I am not aware of any other EOL product having this type of rep but I am not familiar with the totality of EOL products.

Please call me if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 230 of 1118

Re: Bear Stearns "Securities Loan Agreement"

Sender	jeff.kinneman@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3212.

If its not to difficult let's use the ISDA format. I can live with the other language if need be. thanks jeff

From: Sara Shackleton on 02/16/2001 11:46 AM To: Jeff Kinneman/HOU/ECT@ECT cc: Subject: Re: Bear Stearns
"Securities Loan Agreement"

Jeff:

Do you have a preference regarding the payment of "Default Interest"? Please let me know.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/16/2001 11:45 AM

Tanya Rohauer 02/16/2001 11:30 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Bear Stearns "Securities Loan Agreement"

I think this is Kinneman's decision. To the extent that an agreement uses a rate that may result in P&L when it is pulled out of the book, that is his risk. Not too big of an issue from my perspective.

From: Sara Shackleton on 02/16/2001 09:22 AM To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: Bear Stearns
"Securities Loan Agreement"

Tanya:

We finally agreed on the guaranty form (the cap is \$25 million) and are about ready to execute the actual agreement. I have one question: in the ISDA world, we use "cost of funds plus 1%" as the default interest rate. The Bear document provides:

"...interest thereon at a rate equal to (A) in the case of purchases of Foreign Securities, LIBOR, (B) in the case of purchases of any other securities (or other amounts, if any, due to Lender hereunder), the Federal Funds Rate or (C) such other rate as may be specified in Schedule B, in each case as such rate fluctuates from day to day, from the date of such purchase until the date of payment of such excess."

What is your preference: Bear's standard language or do you want to specify another rate?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 231 of 1118

Re: Financial Training

Sender	sara.shackleton@enron.com
Recipients	['Brent Hendry/NA/Enron@Enron', 'tana.jones@enron.com']
File	shackleton-s/sent/5389.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/24/2001 05:36 PM -----

Kim S Theriot 01/24/2001 05:23 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Financial Training

Sara, I spoke with Brent and we are going to try and have the first session next Tues. if possible. I will let you and Brent know for sure. My assistant is trying to locate a large conference room.

Kim

From: Sara Shackleton on 01/24/2001 10:52 AM To: Kim S Theriot/HOU/ECT@ECT cc: Brent Hendry/NA/Enron@Enron Subject: Re: Financial Training

Kim:

I hope Portland was successful.

I'd like to go ahead and schedule two lunch sessions with the confirm/settlements group: the first regarding basic financial agreements/confirmations and format, lingo, etc (very general) and the second more specific session addressing types of financial transactions and their basic structures. One day next week would be great and perhaps one or two weeks after the first session for the followup. Please send your dates and list of attendees.

Please let me know if you have any questions or comments.

Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kim S Theriot 01/22/2001 07:01 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Brent Hendry/NA/Enron@Enron Subject: Financial Training

Sara, I am actually in Portland but I got your voicemail regarding setting up a training class. I will be back in the office on Wed. afternoon and will compile a list of people that need to attend. I will have my assistant try and locate a large conference room. I would like to do this next week if possible. I was thinking maybe Tues. or Wed. I will talk to you when I return on Wed. Thanks!

Kim Theriot

Message 232 of 1118

Goldman Sachs/UBS Warburg	
Sender	sara.shackleton@enron.com
Recipients	['aneela.charania@enron.com']
File	shackleton-s/sent/5662.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 10:11 AM -----

Sara Shackleton 02/14/2001 09:37 AM

To: Darren Delage/AP/Enron cc: Sheila Glover/HOU/ECT@ECT Subject: Goldman Sachs/UBS Warburg

Darren:

(1) Goldman Sachs ENA executed the Client Access Agreement with Goldman, Sachs & Co. on June 15, 2000. Since you are trading in the name of ENA, you should not need to execute an additional agreement. I confirmed this with Ted Leh this morning. At Ted's suggestion, please forward to me the fax number and email address of the Goldman person requesting that you execute further documentation. I can fax to him a copy of the agreement and correspond by email. I will also copy Ted Leh and Vivian Siao (keeps track of agreements and authorized traders) so that everyone is up to date.

(2) UBS Warburg I spoke with Sheryl Gallant. ENA and other Enron affiliates are already trading on the UBS electronic websites for OTC transactions. Interestingly enough, UBS does not require an electronic trading agreement to be signed by a customer for online trading. In other words, ENA has an executed ISDA with UBS dated May 31, 1993, you are an authorized trader for ENA and UBS is happy to let you access their platform. Sheryl does not know why Jun Ishi requested execution of a "Client User List" (i.e., an authorized trader list) and said to forget it. If you would like for me to speak to Jun Ishi or correspond with him (please send his email address), just let me know.

Please let me hear from you if you would like for me to pursue further. As a representative of ENA, you will probably have most agreements already in place.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 233 of 1118

Re: Con Ed	
Sender	sara.shackleton@enron.com
Recipients	['janelle.scheuer@enron.com', 'samantha.boyd@enron.com']
File	shackleton-s/sent/5467.

Janelle: I discussed this earlier with Michael Brown. We've never heard from Con Ed re: the message I sent last night (attached). Samantha has the executed guaranty in hand. Please advise.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 03:17 PM -----

Sara Shackleton 02/01/2001 05:58 PM

To: "Rozmus, Gary" <RozmusG@coned.com>@ENRON, dooleys@coned.com cc: Janelle Scheuer/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron Subject: Re: Enron Credit Annex

Annex B comments fine except we need your website address for purposes of Paragraph 4. Please note that:

Par. 3 Credit Support Agreements - Guaranty this assumes that we have the signed guaranty on the date of the Confirmation

The Enron Corp. guaranty in favor of ConEd was submitted to our Treasury group this morning for signature. As of 5:30 p.m., it had not been returned to me. I have left a message with Treasury and hope that I will receive in the morning. Please advise (1) fax number of person to whom I should fax guaranty upon my receipt and (2) person/address for FedEx delivery of executed guaranty.

Please let me know if you have any questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Rozmus, Gary" <RozmusG@coned.com> 02/01/2001 12:52 PM

To: "'Samantha.Boyd@enron.com'" <Samantha.Boyd@enron.com>, "'Edward.Sacks@enron.com'" <Edward.Sacks@enron.com>, "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: Enron Credit Annex

Attached are our latest comments relating to Annex B and Annex B-1 please review and let me know if the changes are acceptable.

<<enron credit annex draft 012901.doc>>

Gary

<<Rozmus, Gary.vcf>>

- enron credit annex draft 012901.doc - Rozmus, Gary.vcf

Message 234 of 1118

Re: hedge funds

Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com', 'frank.sayre@enron.com', 'paul.radous@enron.com', 'fred.lagasta@enron.com']
File	shackleton-s/sent/6183.

Caroline:

On April 25, you and your counterparties were provided with draft documentation (including the Schedule and Paragraph 13 to the Credit Support Annex). Did you read the documents? Are you asking for ISDA boilerplate? I will be here until noon.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 05/02/2001 09:32 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Re: hedge funds

Sara/ Frank- do you think we can get the draft of the CSA before you leave for your offsite.. Frank- want to discuss you coming up to discuss ISDAs.. in the interests of time, its probably best to do a video confo.. I am out next week.. the following week??

From: Sara Shackleton@ECT on 04/26/2001 09:33 AM To: Caroline Abramo/Corp/Enron@Enron cc: Brent Hendry/NA/Enron@Enron, Paul Radous/Enron@EnronXGate, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Carol St Clair/HOU/ECT@ECT

Subject: hedge funds

Caroline:

You should have already seen the two ISDA's (Valentis, CD Holdings) emailed yesterday evening per your instructions. I am still waiting for you to send information regarding inhouse/outside legal counsel for both parties.

The Schedule and Paragraph 13 sent to Valentis et al is very much like the hedge fund template which legal is refining. We are reviewing the first draft and commenting.

FYI - I will not be in the office on Friday, April 27. Also, the Enron legal conference is next week and the lawyers will be in San Antonio from May 2 (afternoon) through May 4. And finally, I will be on vacation during the week of May 7 - May 11. Please try to make plans (conference calls, counterparty comments, etc.) accordingly.

Let me know if you have any questions.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 235 of 1118

Re: Wine, Dinner and Friends

Sender	sara.shackleton@enron.com
Recipients	['carlew@flash.net']
File	shackleton-s/sent/6082.

April 17

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"R. Carson Llewellyn" <carlew@flash.net> 04/19/2001 03:54 PM

To: Sara.Shackleton@enron.com cc: Subject: Re: Wine, Dinner and Friends

When was Monty's B'day?

Sara.Shackleton@enron.com wrote:

Carson: I'm on the phone with Donna and due to our extremely busy schedules we have penciled in May 16 as D-Day (you know, "dinner date"). After the Enron legal conference, I'm on vacation which is the reason for the May date. Before the Enron legal conference, Donna is out of town most of the time. So - please let us hear from you. Did you remember Monty's birthday?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com "R. Carson Llewellyn" To: Sara Shackleton

<sshackl@email.msn.com>, Sara Shackleton

<carlew@flash <Sara.Shackleton@enron.com>, Donna

Mullen <Donna_J_Mullen@dom.com>

.net> cc: Subject: Wine, Dinner and

Friends

04/19/2001 11:08 AM Sara and Donna: I apologize for waiting two months to pick a date in order to consume some of Sara's excess wine, but I think I found a good place to meet. There is a restaurant named La Vista at 1936 Fountain View, just North of the Rice Epicurean. It should be real close to Donna, and they let you bring your own bottle(s) of wine. If Sara brings the wine, then I could spring for the dinner and Donna could bring the flowers. I am tied up next Thursday and Friday, and I know that Sara has the Enron Law Conference in San Antonio the following Wednesday, Thursday and Friday. Hopefully, there is a window in there when we can all get together. Carson

Message 236 of 1118

Re: Glencore

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'brant.reves@enron.com']
File	shackleton-s/all_documents/9625.

Sorry! Please ignore my prior message.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/05/2001 11:22 AM -----

Sara Shackleton 03/05/2001 11:21 AM

To: Frank Sayre/ENRON_DEVELOPMENT, Brant Reves/Enron@EnronXGate cc: Subject: Re: Glencore

Frank: Brant's worksheet contains the remaining items for the amendment to the ISDA Master Agreement.

Brant: Your credit worksheet is in the name of "Glencore Ltd.". Since we're amending the master to reflect Glencore's home office as our counterparty, please verify that your credit is appropriate for "Glencore SA".

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/05/2001 11:16 AM -----

Brant Reves 02/23/2001 11:14 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Dan J Hyvl/HOU/ECT@ECT Subject: Re: Glencore

Sara,

Here is a credit worksheet detailing the changes we should include in the ISDA amendment.

Dan,

I am forwarding by interoffice mail (i do not have an electronic copy) a physical/financial guaranty for your review. As of now, they do not transact with Enron in the physical markets, but they may in the future. Please review...

thanks brant

Sara Shackleton 02/23/2001 09:48 AM To: Brant Reves/HOU/ECT@ECT cc: Subject: Glencore

ENA will review CP's form of guaranty and comment; Brant will circulate guaranty to a physical lawyer and advise him that financial is also reviewing. I spoke with David Porter and we have decided to amend the ISDA to acknowledge that all three branches can transact under the existing Glencore Ltd. master agreement. The use of several different corporate designations (Ltd., SA, AG) is confusing CP's trading partners in the U.S.

Click on this link to view the document in the Financial Trading Agreements database-->

Message 237 of 1118

RE: Non-ISDA Master CP's

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'Subject: Non-ISDA Master CP's']
File	shackleton-s/all_documents/9729.

Carol: Tanya's comments. Let's go ahead with the "conversion" per Tanya.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/12/2001 08:33 AM -----

Tanya Rohauer/ENRON@enronXgate 03/09/2001 04:36 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Non-ISDA Master CP's

Sara,

Some thoughts on some of these:

Entergy Power Marketing - shouldn't be using anymore - Axia is the mktg JV for Koch and Entergy LG&E - hardly ever see trades here anymore; once in a blue moon we see something - not worth anyone's time PMI - highly negotiated their paper; not going to touch it Cross Timbers, Belco, Breitburn, Cabot - all Fred customer's - I would not hold my breath Dynegy Canada - should already be on our list Dynegy - should convert to an ISDA Reliant - should convert to an ISDA MSCG - should convert to an ISDA

The rest can wait for another time.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, March 08, 2001 8:46 AM To: Rohauer, Tanya; St Clair, Carol Subject: Non-ISDA Master CP's

Attached is a list of high volume "old" ECT Masters which was obtained from the confirmation desk. Many of them appeared on our working list from last year.

Tanya: We have enough legal help to pursue the names on the list. Would you like to prioritize or amend?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/08/2001 08:42 AM -----

Larry Joe Hunter 03/07/2001 09:14 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Non-ISDA Master CP's

Sara,

The attached is a list of Companies with whom we currently have a non-ISDA master and with whom we still do a good deal of trades with. They are listed in priority order of which ones we would like to see converted to ISDA .

Thanks, Joe

<< File: ECT Master CP's priority.xls >>

Message 238 of 1118

Re: Deutsche Banc Alex Brown - Agreement for Prime Brokerage

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'aneela.charania@enron.com']
File	shackleton-s/nelson/115.

Aneela, also, I called Brian Coad at DBAB to ask him as well to let Jamie know that the agreements are in place. The account numbers are

ECT : 70900497

ENA: 70901071

Brian also confirmed that we have sent the executed documents to Terry Finn for signature and that we should receive them back shortly. In any case, as a matter of law, we have executed agreements in place. Brian said that if we do not receive them by the end of the day tomorrow, Stephanie should give Terry Finn a call at 410-895-3602.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Aneela Charania@ECT 04/23/2001 02:58 PM

To: Cheryl Nelson/NA/ENRON@ENRON, Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Deutsche Banc Alex Brown - Agreement for Prime Brokerage Clearance Services

Hey guys,

Jamie at Frost is on the business side and did not know that we had an executed agreement. Please disregard the agreement we sent interoffice today.

Thanks, Aneela :-)

04/23/2001 02:55 PM Cheryl Nelson@ENRON Cheryl Nelson@ENRON Cheryl Nelson@ENRON 04/23/2001 02:55 PM
04/23/2001 02:55 PM Sent by: Cheryl Nelson@ENRON To: Sara Shackleton/HOU/ECT@ECT cc: Aneela
Charania/HOU/ECT@ECT Subject: Re: Deutsche Banc Alex Brown - Agreement for Prime Brokerage Clearance Services

Aneela, I will call Jamie to clarify any confusion -- please forward the phone number to me. We have an executed agreement already - it was executed within the past two weeks.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/23/2001 02:45 PM

To: Aneela Charania/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Deutsche Banc Alex Brown - Agreement for Prime Brokerage Clearance Services

Aneela:

I received the referenced agreement in inter-office mail. According to Cheryl's latest report, identical agreements were executed by both ENA and ECT Investments, Inc. on or about 4/12/01.

What is it that you are asking us to do with the draft from "Jamie"?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 239 of 1118

Re: Worksheet - Northern Border Partners

Sender	rhett.jackson@enron.com
Recipients	['sara.shackleton@enron.com', 'jeff.blumenthal@enron.com']
File	shackleton-s/notes_inbox/3193.

The ISDA should be between Northern Border Partners, LP and RMT. Northern Border Partners, LP is a Delaware limited partnership and , as such, income from a financial trade between the two parties will be sourced to Delaware (the desired result). Please call me if you have any other questions. Rhett

From: Sara Shackleton on 02/21/2001 08:51 AM To: Jeff Blumenthal/Enron@EnronXGate, Rhett Jackson/HOU/ECT@ECT cc: Subject: Worksheet - Northern Border Partners

Jeff and/or Rhett:

Can you advise me as to Northern Border Partners, L.P. below? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/21/2001 08:49 AM -----

Susan Bailey 02/20/2001 05:15 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Brant Reves/HOU/ECT@ECT Subject: Worksheet - Northern Border Partners

Sara,

Per Brant's request, please advise if it is more appropriate to have the requested master for Northern Border Partners, L.P. with RMT or ENA. According to the corporate database, two (2) of the three general partners (being Northern Plains Natural Gas Company and Pan Border Gas Company), are directly or indirectly owned by Enron Corp.

Let me know your thoughts.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 02/20/2001 05:01 PM -----

Brant Reves 02/20/2001 04:42 PM

To: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT cc: Fred Lagrasta/HOU/ECT@ECT Subject: Worksheet - Northern Border Partners

Fred has asked that we prepare an ISDA between ENA and Northern Border Partners, L.P., which is also a wholly owned Enron subsidiary. Should we prepare an RMA or regular ISDA? I have provided a worksheet that contains Enron's ownership structure and little else. Let me know if I should provide another worksheet with more detail.

thanks brant

Message 240 of 1118

FW: Transfer and Assignment of Enron North America Corp. ("ENA")

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com']
File	shackleton-s/sent_items/111.

Here it is. I'm fairly certain that Annabel said the assignment was fine and we'd execute when we got the Securities Lending Agreement done. SS

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 10, 2001 10:24 AM To: 'annabel.houx@gs.com' Cc: Glover, Sheila; Doukas, Tom; Panus, Stephanie Subject: FW: Transfer and Assignment of Enron North America Corp. ("ENA") accounts to Enron Credit Inc. ("ECI")

Annabel:

I sent a fax to you regarding the assignment referenced in the attached email on February 2, 2001 and May 30, 2001. I never received a response from you.

Please put me in touch with the appropriate person for resolving this assignment issue. Thank you for your attention to this matter.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 10, 2001 10:18 AM To: 'pamela.coleman@gs.com' Cc: 'nikki.kroll@gs.com'; Glover, Sheila; Doukas, Tom; Panus, Stephanie Subject: Transfer and Assignment of Enron North America Corp. ("ENA") accounts to Enron Credit Inc. ("ECI")

Pamela:

On May 22, 2001, I sent an email to you regarding the aforementioned account assignment. I also copied Nikki Kroll on that email. ENA and ECI are anxious to have this assignment executed but we have not had any response. I am reattaching a copy of the assignment for your convenience. I will need your assistance in identifying the ECI account with Goldman, Sachs & Co. ("GS"). Stephanie Panus sent Nikki Kroll the ECI account documentation via overnight delivery on May 18, 2001.

Please direct your attention to the following:

(1) Please execute and return to ECI an original Corporate Account Agreement with GS. Also, please provide ECI with the account number.

(2) Please review the attached Assignment and Assumption Agreement and advise if we can execute and forward to GS for execution.

Your prompt attention to this matter is greatly appreciated.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 241 of 1118

Re: WAPA ISDA Request

Sender	tracy.ngo@enron.com
Recipients	['sara.shackleton@enron.com', 'Tracy Ngo/PDX/ECT@ECT']
File	shackleton-s/notes_inbox/2700.

will advise shortly,

From: Sara Shackleton on 03/28/2001 03:30 PM To: Stewart Rosman/HOU/ECT@ECT cc: Tracy Ngo/PDX/ECT@ECT

Subject: WAPA ISDA Request

Stewart:

Per your voice mail, I have not yet received any credit from Tracy and, consequently, have not sent a master to the WAPA lawyer. Do you want me to send a "sample governmental master agreement" which would not be tailored specifically for WAPA?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 05:22 PM -----

Sara Shackleton 03/20/2001 01:22 PM

To: Tracy Ngo/PDX/ECT cc: Stewart Rosman/HOU/ECT@ECT Subject: WAPA ISDA Request

Tracy:

I just spoke with Stewart about this counterparty and the fact that you previously prepared credit (for physical trading). Please send a credit worksheet for financial trading and we can deliver a draft ISDA to the lawyer per Stewart's instructions. Let me know if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/20/2001 01:18 PM -----

Stewart Rosman 03/16/2001 11:24 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Steve C Hall/PDX/ECT@ECT, Christian Yoder/HOU/ECT@ECT Subject: WAPA ISDA Request

Sara -

I would like to discuss with you a potential opportunity at WAPA Sierra Nevada. We have just sent them an EEI and would like you to send them an ISDA. Basically in the near future they might find themselves quite short due to a PG&E contract being invalidated. If that happens they will either:

1. Buy physical power from the market (use our EEI) 2. Do a financial swap with the market and continue to do the physical index with PG&E (there are some reasons for this which I am not 100% sure on).

The lawyer we have dealt with is Koji Kawamura and his email address is:

kawamura@wapa.gov

Thanks for your help - If you have any questions please let me know.

Stewart Rosman

Message 242 of 1118

First Union National Bank ("FUNB") ISDA's with ENA and Enron Corp.

Sender	sara.shackleton@enron.com
Recipients	[paul.radous@enron.com]
File	shackleton-s/all_documents/9163.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/13/2001 01:16 PM -----

Sara Shackleton 01/11/2001 05:34 PM

To: Tanya Rohauer/HOU/ECT cc: Subject: First Union National Bank ("FUNB") ISDA's with ENA and Enron Corp.

Tanya:

I know you're swamped so I'll try to make this easy and you can answer "yes" or "no", etc.

1. Is First Union National Bank the correct name? (as opposed to First Union National Bank, Charlotte)
2. Threshold for cross default: We used \$100,000,000 for ENE and \$50,000,000 for FUNB. FUNB wants \$100,000,000.
3. Documents to be delivered: FUNB will produce audited/consolidated financials for First Union Corporation. We requested FUNB financials.
4. With respect to the ENA master only (the CSA):
 - (i) FUNB wants to post 10-year government bonds in addition to cash and L'C's
 - (ii) I sent you the FUNB matrix Is it acceptable?
 - (iii) FUNB wants to revise the MAC trigger to include "Baa3 by Moody's" and "failure to have a Credit Rating from either S&P or Moody's".
 - (iv) FUNB wants to revise the definition of "Qualified Institution" to include not only the rating we assign, but also "having assets in excess of \$10 billion" and also not subject to approval by the non-downgraded party
 - (v) FUNB wants all demands for delivery or return of collateral to be made on a Valuation Date. I think we should retain language that demands can be made on or after a Valuation Date. But I think we could agree that demands be made prior to 5 pm New York time.
5. With respect to the ENA master only (the Enron Corp. guaranty in favor of First Union National Bank):
 - (i) FUNB wants a \$30,000,000 cap (as opposed to the \$15,000,000 cap we proposed)

Two different FUNB people keep calling me, one on the ENA front and the other with respect to ENE. Now you know why your assistance is always greatly appreciated.

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 243 of 1118

Enron/Mahonia December 2000 forward sale documents

Sender	teresa.bushman@enron.com
Recipients	['donna.lowry@enron.com', 'cris.sherman@enron.com', 'clement.abrams@enron.com']
File	shackleton-s/notes_inbox/23.

Attached are initial drafts of documents for the referenced transaction. Please let me know if you do not wish to receive drafts or if there is anyone else that should receive drafts.

Please call me with your questions or comments.

Thanks.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 12/12/2000 06:13 PM -----

"Rosser, Dianna" <drosser@velaw.com> 12/12/2000 06:05 PM

To: "'teresa.g.bushman@enron.com'" <teresa.g.bushman@enron.com> cc: "Shouse, August" <AShouse@velaw.com>
Subject: Enron/Mahonia December 2000 forward sale documents

Teresa,

Attached please find clean and blacklined drafts of the main documents. Augie and I have talked with Milbank and plan to send them drafts of these documents tomorrow, but we wanted to give you a chance to review them first. Please feel free to call or e-mail us with any questions or comments.

Warm regards,

Dianna J. Rosser Vinson & Elkins L.L.P. Business and International Section 3300 First City Tower 1001 Fannin Street
Houston, Texas 77002-6760 tel: (713) 758-3688 fax: (713) 615-5899 email: drosser@velaw.com

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- Houston_404983_1.DOC - Houston_408033_1.DOC - Houston_404950_1.DOC - Houston_404980_1.DOC -
Houston_404914_1.DOC - Houston_404981_1.DOC - Houston_404917_2 (2).DOC - Houston_404942_1.DOC -
Houston_404948_1.DOC - Houston_408015_1.DOC - Houston_408008_1.DOC - Houston_408002_1.DOC -
Houston_407997_1.DOC - Houston_407993_1.DOC - Houston_407981_1.DOC - Houston_407974_1.DOC

Message 244 of 1118

Corrugated Services, Inc.

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'ffelvey@csipaper.com']
File	shackleton-s/sent/5228.

Stephanie:

Happy New Year!

I have assigned you to this former Marie Heard file. We need to overnight copies of the master agreement (boilerplate and all) to Neel Lemon in Dallas. He does not need ENA's or the CP's background documentation. You can send the ENE guaranty. This company has undergone a franchise tax restructuring and has survived as a limited partnership which we are in the process of evaluating. I'll bring the file to you. Details to follow soon. SS ----- Forwarded by Sara Shackleton/HOU/ECT on 01/02/2001 09:12 AM -----

Forest Felvey <ffelvey@csipaper.com> 01/02/2001 09:08 AM

To: "'Neel.Lemon@bakerbotts.com'" <Neel.Lemon@bakerbotts.com>, sara.shackleton@enron.com cc: Forest Felvey <ffelvey@csipaper.com> Subject: RE: CSI

Sara, you have my permission to communicate with Neel Lemon at Baker Botts as you would with me. Please call me anytime. 214 515 6401.

Forest Felvey

-----Original Message-----

From: Neel.Lemon@bakerbotts.com [mailto:Neel.Lemon@bakerbotts.com] Sent: Tuesday, January 02, 2001 9:02 AM To: sara.shackleton@enron.com Cc: ffelvey@csipaper.com Subject: CSI

Sara:

Here is my contact info. Please send me yours.

Please feel free to call Forest Felvey at CSI to check signals on the confidentiality agreement issue you mentioned. He will verify that Baker Botts is assisting CSI on swap issues and that it is okay to communicate with me. [I've copied Forest with this email for his info.]

As we discussed, I will get you copies of the new LPS documentation relating to the 2000 CSI franchise tax restructuring and you will get me copies of the existing Enron/CSI contractual documentation relating to the original 1998 arrangements and any amendments, etc., since then.

Thereafter, we can figure out what our next steps are.

Thanks.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

The information contained in this email is confidential and may be subject to the attorney-client privilege. As a result, any unauthorized use or transmission is prohibited. If you are not the intended addressee, please delete this email and notify the sender.

Message 245 of 1118

Enron/Mahonia	
Sender	teresa.bushman@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/5085.

The Mahonia term sheet mentioned in the last email is attached.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 12/07/2000 01:41 PM -----

Joseph Deffner 12/07/2000 01:28 PM

To: Teresa G Bushman/HOU/ECT@ECT cc: Subject: Enron/Mahonia

Can you take a look at the term sheet below. This was the concept of "participation" in a gas contract as envisioned by Milbank. We may be moving away from this concept towards what I suggested last night and perhaps a bit further than that as well but wanted to get a legal view on this participation concept. ----- Forwarded by Joseph Deffner/HOU/ECT on 12/07/2000 01:27 PM -----

<Jeffrey.W.Dellapina@chase.com> on 12/05/2000 05:07:46 PM To: joseph.deffner@enron.com cc: Subject: Enron/Mahonia

----- Forwarded by Jeffrey W. Dellapina/CHASE on 12/05/2000 06:14 PM -----

<MWilson@milbank.com> on 12/05/2000 05:06:17 PM

To: philip.levy@chase.com, stuart.d.fishman@chase.com, jeffrey.w.dellapina@chase.com cc: RWight@milbank.com, TDavis@milbank.com, MWilson@milbank.com Subject: Enron/Mahonia

Attached please find a preliminary draft term sheet for the Mahonia transaction based on the original Chase term sheet and our subsequent structuring conversations, along with a revised transaction diagram in powerpoint.

Kind regards,

Melanie Wilson Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005 ph.: 212-530-5098 fax: 212-530-5219 email: mwilson@milbank.com

<<Term Sheet Enron-Mahonia.doc>> <<Annex 1 -Transaction Diagram.ppt>>

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(See attached file: Term Sheet Enron-Mahonia.doc) (See attached file: Annex 1 -Transaction Diagram.ppt)

- Term Sheet Enron-Mahonia.doc - Annex 1 -Transaction Diagram.ppt

Message 246 of 1118

Re: Authorized Signers

Sender	sara.shackleton@enron.com
Recipients	['Michael W', 'John Greene/LON/ECT@ECT', 'cheryl.nelson@enron.com', 'Gary Hickerson/HOU/ECT@ECT']
File	shackleton-s/sent/5313.

It may be the first email but I gave this to Sam at our legal/credit meeting last week. She was going to wait for the meeting with Cassandra for approval and signature (which was postponed). But we can't postpone responding to the request. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 01/12/2001 09:12 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Authorized Signers

I think that this is the first time I am hearing about this email? did I miss something? Let me know. in any case, I will get to it right away. Thanx.

Sara Shackleton@ECT 01/12/2001 08:32 AM

To: Samantha Boyd/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron cc: Subject: Authorized Signers

As a general proposition, I need to be advised of the activity on Gary's desk. Please let me know if you have responded to Sheila. I think the request is about two weeks old. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/12/2001 08:20 AM

Sheila Glover 01/11/2001 12:47 PM

To: Sara Shackleton/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron cc: John Greene/LON/ECT@ECT, Israel Estrada/Corp/Enron@ENRON, Aneela Charania/HOU/ECT@ECT Subject: Authorized Signers

Sara and Samantha, When will ECT Investments be signed so we can send an updated copy to our Prime brokers?

Thanks. Sheila ----- Forwarded by Sheila Glover/HOU/ECT on 01/11/2001 12:41 PM -----

From: Sheila Glover 01/03/2001 10:17 AM

To: William Patrick Lewis/HOU/ECT@ECT, Michelle D Cisneros/HOU/ECT@ECT cc: Gary Hickerson/HOU/ECT@ECT, John Greene/LON/ECT@ECT, Michael W Bradley/HOU/ECT@ECT, Aneela Charania/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT Subject: Authorized Signers

Patrick and Michelle, We added both of you to the list for Authorized Signers for ECT Investments, Inc. for transfer of funds. Authorization requires one commercial and one commercial support signature. Thanks. Sheila

Current Authorized Signers for transfer of funds for ECT Investments, Inc. are M. Bradley, J. Greene, G. Hickerson, P. Lewis and M. Ruch.

Message 247 of 1118

Compagnie de Papiers Stadacona

Sender	susan.bailey@enron.com
Recipients	['sara.shackleton@enron.com', 'jeff.blumenthal@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/notes_inbox/2364.

Jeff,

Sara has asked me to follow-up regarding the captioned Enron Affiliate and the need to confirm a trade.

Being that this Enron affiliate does not appear in the Corporate Database I was hoping you could furnish details regarding this Enron Affiliate, as follows:

1. When was the company incorporated??? 2. Where was it incorporated??? 3 Or did we acquire an existing company by virtue of an acquisition??? 4. What is the date of the FX trade, for which this Enron Affiliate is a party??? 5. If this is a newly formed Enron Affiliate was the date of the FX trade dated simultaneous with the company's incorporation??? 6. For notice purposes under the ISDA -- would we use the following???

Bay Wellington Tower - BCE Place 181 Bay Street, Suite 1540 Toronto, Ontario M5J 2T3 7. If the foregoing address for notice is sufficient -- please advise as to: (a) whom's attention, (b) phone number, and (c) fax number.

In discussing this matter with Sara, we have determined it would be a cleaner transaction if the FX trade could be confirmed under an RMT master rather than doing a Deemed ISDA confirmation. Therefore, once you furnish the foregoing information Sara and I will be able to decide what path to take in order to consummate this FX trade.

Thanks for the help.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 04/25/2001 06:22 PM -----

Sara Shackleton 04/25/2001 01:55 PM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: Deemed ISDA

Susan:

Laurel Adams has an FX deal where RMT must be a party. The counterparty is a 100% owned Enron sub named "Compagnie de Papiers Stadacona". When I last checked, nothing shows up in the corporate database. However, I have verified the name, ownership, etc. with Jeff Blumenthal. I will separately email you the counterparty info that I have.

We need a deemed ISDA for the parties. We should later do the ISDA when the information is available on the database (which could be any day, I suppose). I would just use our standard RMT format.

Please assign. Feel free to call me or Laurel with questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 248 of 1118

Re: Enron/Rabo Equity Swap

Sender	sara.shackleton@enron.com
Recipients	[angela.davis@enron.com]
File	shackleton-s/sent/5329.

yes, please

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Angela Davis@ENRON 01/17/2001 06:48 AM

To: sara.shackleton@enron.com cc: Subject: Enron/Rabo Equity Swap

Shall I respond to this?

Angela D. Davis Enron North America Corp. 1400 Smith, Suite 3842 Houston, Texas 77002 Tele. (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com ----- Forwarded by Angela Davis/NA/Enron on 01/17/2001 06:52 AM -----

"Thomas, JA (Jane)" <thomasja@RABO-BANK.COM> 01/17/2001 03:47 AM

To: "angela.davis@enron.com" <angela.davis@enron.com> cc: "Lauber, M (Mark)" <LauberM@RABO-BANK.COM>, "Hogg, C (Christine)" <HoggC@rabo-bank.com> Subject: Enron/Rabo Equity Swap

Angela

Thank you very much for your message. I am happy for you to prepare the equity swap confirmation for Rabo's review. I will review the document but could you also copy in Mark Lauber and Christine Hogg. I have copied them on this mail, so you'll have their email addresses.

Will you also be negotiating the ISDA? If it is not you, could you let me know who it will be.

Kind regards

Jane Anne Thomas Assistant General Counsel Rabobank International Tel: +44 20 7809 3240 Fax: +44 20 7809 3507

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Message 249 of 1118

Re: Total International v24545

Sender	sara.shackleton@enron.com
Recipients	[brant.reves@enron.com]
File	shackleton-s/sent/6000.

I don't understand your message. Parties must be "eligible" at the time each Transaction is entered into.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brant Reves/ENRON@enronXgate 04/10/2001 01:56 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Brent Hendry/NA/Enron@Enron, Janie Aguayo/HOU/ECT@ECT, Bianca Ornelas/NA/Enron@Enron Subject: Total International v24545

From a credit standpoint, potential risk of this 25,000 bbls/mo, May'01, financial swap is very small. But I recognize ECP issues since no support and no information has ever been available. Can we include a representation that, upon execution, would establish eligibility. I will manage credit under volume/tenor limits and implied support of a AA parent. If acceptable, please send language to Confirmations for use in this (v24545) and all future trades.

thanks brant

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, April 10, 2001 10:51 AM To: Reves, Brant Subject: Re: ECTRI financial requirements

Yes, "eligible contract participant" ("ECP") is an issue. Both ENA and ECTRI are Delaware corporations and are therefore subject to the jurisdiction of the Commodity Futures Trading Commission (the U.S. regulatory agency with oversight for derivatives). As a practical matter, I understand that ECTRI does have many executed ISDA agreements. I do not know the volume of "omnibus" trades. However, the ECTRI omnibus should have ECP representations in the annex.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brant Reves/ENRON@enronXgate 04/10/2001 10:29 AM To: Sara Shackleton/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron cc: Subject: ECTRI financial requirements

A financial trade v24545 was done with Total International Limited. This entity is subsidiary of a very good credit customer, TotalElf (S&P rated AA-). Risk is acceptable, small volumes, short tenor, but from a legal standpoint, I do not think this entity is an "Eligible Contract Party" as we have no guaranty support or financial statements to support trading. I noticed that quite a bit of financial trades are currently booked in London with this customer. Does Enron Capital & Trade Resources International Corp. (London financial) have the same ECP requirements as ENA. If so, I would like to know how they have established eligibility.

thanks brant

Message 250 of 1118

Re: FW: ISDA Master Agreement Louis Dreyfus Plastics LLC and Enron

Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10311.

Sara, We are getting pressure from our commercial people to finalize the ISDA with Louis Dreyfus Plastics. -----
Forwarded by Stephanie Panus/NA/Enron on 04/04/2001 09:21 AM -----

Jennifer McQuade 04/04/2001 09:13 AM

To: Stephanie Panus/NA/Enron@Enron cc: Subject: Re: FW: ISDA Master Agreement Louis Dreyfus Plastics LLC and Enron

Stephanie, I hate to keep bothering you about this, but if there's any way to hurry up this process it would be greatly appreciated. Louis Dreyfus Plastics is one of only three big marketers that plays the LPG market on EnronOnline, and, by

losing them, we have lost a great amount of liquidity and volume. Not to mention, our customer relations are definitely going downhill. I completely realize that this is not "our fault," but I would like to solicit your help in resolving this as quickly as possible.

Thanks, Jennifer

Stephanie Panus on 04/04/2001 08:55:18 AM To: Jennifer McQuade/NA/Enron@Enron cc:

Subject: Re: FW: ISDA Master Agreement Louis Dreyfus Plastics LLC and Enron

We are reviewing some changes that they have requested to the agreement and need to determine if we can agree to the terms they have requested.

Jennifer McQuade 04/04/2001 08:46 AM

To: Stephanie Panus/NA/Enron@Enron cc: Subject: FW: ISDA Master Agreement Louis Dreyfus Plastics LLC and Enron

Stephanie, Could you please let me know where we are on this one?

Thanks, Jennifer McQuade EnronOnline ----- Forwarded by Jennifer McQuade/NA/Enron on 04/04/2001 08:42 AM ----- From: Nidia Mendoza/ENRON@enronXgate on 04/02/2001 01:50 PM To: Jennifer McQuade/NA/Enron@Enron cc:

Subject: FW: ISDA Master Agreement Louis Dreyfus Plastics LLC and Enron

FYI

-----Original Message-----

From: Panus, Stephanie Sent: Friday, March 30, 2001 4:38 PM To: BellM@louisdreyfus.com Cc: Mendoza, Nidia Subject: Re: ISDA Master Agreement Louis Dreyfus Plastics LLC and Enron

Mary Ellen,

We are reviewing your comments and should respond to you on Monday or Tuesday.

Stephanie Panus Sr. Legal Specialist Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 ph: 713.345.3249 fax: 713.646.3490

BellM@louisdreyfus.com 03/27/2001 08:36 AM To: stephanie.panus@enron.com cc: Subject: ISDA Master Agreement Louis Dreyfus Plastics LLC and Enron

Stephanie,

Just wanted to touch base regarding the ISDA agreement. I was wondering if you had a chance to look over our latest comments of 3/15/01.

Regards Mary Ellen Bell Louis Dreyfus Contract Administration tel: (203) 761-8108 fax: (203) 761-8182 e-mail: bellme@louisdreyfus.com

Message 251 of 1118

Re: Reschedule one fo the three brokerage meetings tomorrow

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'keegan.farrell@enron.com']
File	shackleton-s/nelson/81.

I read Sara's message to mean cancel all the meetings since she said she said she had no meetings scheduled on her calendar because the meetings were just for the initial stages of the project.

In any case Keegan, do not stress about it. I know you are trying to do a good job and I appreciate your efforts.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Keegan Farrell 04/04/2001 08:07 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: Reschedule one fo the three brokerage meetings tomorrow

Just to confirm, you mean the 9am meeting tomorrow, not the weekly Brokerage Agreement Meetings on Wednesday, from 1:30 - 2:30, correct? I do not want to make any more mistakes with your schedule as a result of my confusion. Please advise. Thank you for your help.

Keegan

Cheryl Nelson Sent by: Cheryl Nelson 04/03/2001 05:49 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Keegan Farrell/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron Subject: Re: Reschedule one fo the three brokerage meetings tomorrow

Keegan, please take the future scheduled brokerage account meetings off of the calendar. Thanx Sara.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/03/2001 05:06 PM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Subject: Re: Reschedule one fo the three brokerage meetings tomorrow

Sounds like Keegan has somethig wrong. I have no meetings scheduled with you tomorrow. I don't know anything about a 9 am meeting. The brokerage meetings were originally scheduled every other week until we could bring ourselves up to date (and we met last week). The swap group meeting is always held twice monthly. Hope this helps.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/03/2001 05:01 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Keegan Farrell/NA/Enron@Enron Subject: Reschedule one fo the three brokerage meetings tomorrow

Hi Sara,

I need to reschedule on of the three brokerage account meetings that are on my calendar for tomorrow.

My calendar indicates that I have a 9 a.m. one hour meeting with you, a 10 a.m. one hour swaps meeting, a 1:30 brokerage account meeting a 2:30 one hour credit support meeting and a 4 p.m. meeting with someone from yet another Enron entity seeking to open a brokerage account on an urgent basis.

Keegan and I have now developed a strategy to ensure that we do not have so many meetings on one day. Most of the other meetings are group meetings and therefore are not possible to reschedule.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 252 of 1118

Enron/Mahonia

Sender	teresa.bushman@enron.com
Recipients	['sara.shackleton@enron.com', 'jeffrey.hodge@enron.com']
File	shackleton-s/all_documents/5134.

Sara and Jeff:

Attached is the term sheet for the slightly different Mahonia structure.

Question for Sara: With this structure, do we have any CFTC issues if we're buying gas from Chase?

We may have tax or accounting issues if we buy from Chase, so we may buy from Stoneville (also a Jersey Is. co.) instead. Jeff: Do you know that entity? Joe said we did several of the old deals purchasing from them under a GISB PSA. We should know in the next day or so. I'll let you know. Will you be working on this?

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 12/11/2000 06:52 PM -----

Joseph Deffner 12/07/2000 01:28 PM

To: Teresa G Bushman/HOU/ECT@ECT cc: Subject: Enron/Mahonia

Can you take a look at the term sheet below. This was the concept of "participation" in a gas contract as envisioned by Milbank. We may be moving away from this concept towards what I suggested last night and perhaps a bit further than that as well but wanted to get a legal view on this participation concept. ----- Forwarded by Joseph Deffner/HOU/ECT on 12/07/2000 01:27 PM -----

<Jeffrey.W.Dellapina@chase.com> on 12/05/2000 05:07:46 PM To: joseph.deffner@enron.com cc: Subject: Enron/Mahonia

----- Forwarded by Jeffrey W. Dellapina/CHASE on 12/05/2000 06:14 PM -----

<MWilson@milbank.com> on 12/05/2000 05:06:17 PM

To: philip.levy@chase.com, stuart.d.fishman@chase.com, jeffrey.w.dellapina@chase.com cc: RWight@milbank.com, TDavis@milbank.com, MWilson@milbank.com Subject: Enron/Mahonia

Attached please find a preliminary draft term sheet for the Mahonia transaction based on the original Chase term sheet and our subsequent structuring conversations, along with a revised transaction diagram in powerpoint.

Kind regards,

Melanie Wilson Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005 ph.: 212-530-5098 fax: 212-530-5219 email: mwilson@milbank.com

<<Term Sheet Enron-Mahonia.doc>> <<Annex 1 -Transaction Diagram.ppt>>

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(See attached file: Term Sheet Enron-Mahonia.doc) (See attached file: Annex 1 -Transaction Diagram.ppt)

- Term Sheet Enron-Mahonia.doc - Annex 1 -Transaction Diagram.ppt

Message 253 of 1118

RE: Oil Prepay Rollover

Sender	dan.boyle@enron.com
Recipients	[' sara.shackleton@enron.com ']
File	shackleton-s/inbox/234.

I agree. I have told James that we would like to close with CSFB International and work after the closing to change, if possible, as appropriate.

Dan O. Boyle Vice President Enron Global Finance Phone: 713-853-1532 Mobile: 713-417-3532 Pager: 877-390-2838
Skytel PIN: 880FBF5

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 24, 2001 5:37 PM To: Boyle, Dan Cc: Cook, Mary; Rohauer, Tanya
Subject: FW: Oil Prepay Rollover

Dan: Neither credit nor legal has ever received info about the "Cayman branch" (if it is a branch) so we have never assessed that entity in full. Treasa and Raj were trying to avoid use of that entity and trying to stick with CSFBI. Sara

-----Original Message-----

From: Rohauer, Tanya Sent: Wednesday, September 19, 2001 12:20 PM To: Shackleton, Sara; Jamadagni, Rajaram;
Bruce, Robert Cc: Kirby, Treasa Subject: RE: Oil Prepay Rollover

As I do not have any details of this deal, I cannot comment on the need for a carve out of margining rights. The only issue that I have been aware of is the Cayman branch possibility. My comment on that to both Raj and Teresa was that if it is in fact a different legal entity (as determined by legal) then I will need financial information to make an assessment of this entity. If it is a branch and part of CSFB International, which is sometimes the case with financial institutions, we would have recourse to CSFB International and it would be confirmed under the existing document.

Regards, Tanya

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, September 19, 2001 9:48 AM To: Jamadagni, Rajaram; Bruce, Robert;
Rohauer, Tanya Cc: Kirby, Treasa Subject: RE: Oil Prepay Rollover

Raj: CAVEAT: I never heard back from Tanya about whether the CSFB confirmation would have a carve-out for margining pursuant to the master agreement. Bob was going to send me the format he drafted for the prior CSFB deal but which was never executed so that I could incorporate that language. Tanya may agree to allow this trade to margin under the agreement just like the confirm which terminated 9/12/01.

Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax:
(713) 646-3490

-----Original Message-----

From: Jamadagni, Rajaram Sent: Wednesday, September 19, 2001 9:23 AM To: Bruce, Robert; Shackleton, Sara Cc:
Kirby, Treasa Subject: Oil Prepay Rollover

Sara/ Bob,

Further to my discussions with Sara yesterday evening, and in the absence of any email from both of you to the contrary, I conclude that the confirms as they stand now should be OK from a legal perspective, subject to the credit approval of the entities. As I mentioned yesterday, Treasa's contact at CSFB here is trying to retain CSFB International as the counter-party as was the case for the 2000 transaction earlier.

Thanks very much for your help.

Regards

Rajaram Jamadagni

Message 254 of 1118

FW: US Filter Comments on Omnibus and Annex A of a Heating Oil

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent_items/78.

thanks! sara

-----Original Message-----

From: Griffin, Scott Sent: Wednesday, September 19, 2001 11:10 AM To: Shackleton, Sara Subject: US Filter Comments on Omnibus and Annex A of a Heating Oil Deferred Premium Call

Sara,

Sorry, about the mix-up, but below are both their reply and our original sample confirmations.

Thanks,

Scott

Scott: here are the comments from the USFilter legal group. Please review with your legal people and provide a response. The documents to which Keith refers are the most recent Confirmation for the Deferred Premium call and the associated Terms and Conditions Addendum.

Thanks,

Tom Fields Director Strategic Sourcing US Filter 847.706.6914 847.706.9025 (fax) 847.682.3836 (cell)

fieldst@usfilter.com

Confidentiality Note: This email message and any attachments to it are intended only for the named recipients and may contain legally privileged and/ or confidential information. If you are not one of the intended recipients, please do not duplicate or forward this email message and immediately delete it from your computer.

-----Original Message----- From: Graham, Keith Sent: Thursday, September 13, 2001 11:34 AM To: Fields Tom Subject: Enron Confirmation Tom: As best I could determine, the agreement and general terms are consistent with the industry standard and are not unreasonable. Nonetheless, there are a few minor points worth mentioning, per our specialist, as set forth below. 2. The Transaction is more of a swap than an option. If Enron insists on still calling it a Deferred Premium Call Option, then I would make it clear in the Confirmation that (1) the "Swap" payment terms in Section 2 of the GTC's apply and (2) the "Exercise Period" is inapplicable (given that the Confirmation specifies "Automatic Exercise" as being applicable). 3. The term "Calculation Period" in the Confirm should be "Determination Period." I believe that use of the "Calculation Period" is a typo. 4. The representation in Section 1(b)(i) should be: "Eligible Contract Participant" as defined in Section 1a(12) of the Commodity Exchange Act, as amended." 5. Please note that the setoff provision allows setoffs of amounts owed to and from Affiliates. This is a keen legal point because typically affiliates have no legal authority to bind one another. 6. New York law (not Texas) should apply, per our specialist. If you have questions or comments, please let me know. Keith Confidentiality Note: This e-mail message and any attachments to it are intended only for the named recipients and may contain legally privileged and/or confidential information. If you are not one of the intended recipients, please do not duplicate or forward this e-mail message and immediately delete it from your computer.

Scott F. Griffin Enron Global Markets, LLC 1400 Smith Street Houston, TX 77002-7361

Office: (713)-853-0973 Mobile: (713)-503-5686

Message 255 of 1118

RE: FX trade Counterparty

Sender sara.shackleton@enron.com

Recipients ['tanya.rohauer@enron.com', 'Laurel Adams/HOU/ECT@ECT']

File shackleton-s/sent/6103.

Is there any intention of selling off equity in this company? If so, in the near future?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tanya Rohauer/ENRON@enronXgate 04/19/2001 07:52 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: FX trade Counterparty

This is where the Daishowa mill assets are held so they are eligible; additionally, this is 100% owned Enron sub. Let me know if you have any questions.

Thanks, Tanya

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, April 18, 2001 5:58 PM To: Rohauer, Tanya Subject: FX trade Counterparty

Tanya:

Bob Crane did a deal with the Canadian party identified below. Sounds like he originally told our FX trader that the parties would be EGM (actually ENA) and Enron Industrial Markets ("EIM"). In the end, EIM was not the correct party but the Canadian party was the correct party.

Is this trade between ENA and Compagnie de Papiers Stadacona authorized by credit? Is the company eligible?

Please let me know what you think. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/18/2001 05:53 PM

Laurel Adams 04/17/2001 05:22 PM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Sara,

Are we able to do FX deals with the company shown below? Also, would this be an RMT confirm or an ENA confirm?

----- Forwarded by Laurel Adams/HOU/ECT on 04/17/2001 05:20 PM ----- From: Ana Rizvi

on 04/17/2001 04:59 PM To: Clara Carrington/HOU/ECT cc: Laurel Adams/HOU/ECT@ECT Subject: changes needed for currency trade confirmation

see below...

ana

----- Forwarded by Ana Rizvi/HOU/ECT on 04/17/2001 03:14 PM

From: Bob Crane/ENRON@enronXgate on 04/17/2001 04:51 PM To: Ana Rizvi/HOU/ECT@ECT, William Stuart/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Ana,

The information on the confirm executed (deal no. m439607) between EGM and EIM needs a couple of changes. Please make the counterparty:

Compagnie de papiers Stadacona Bay Wellington Tower - BCE Place 181 Bay Street, Suite 1540, P.O. Box 822 Toronto, Ontario, Canada M5J 2T3

And the bank accounts should be

Account Name Currency Notes

2013883015 EIM Holdings, (Canada) Inc. US\$ Primary concentration & funding account Co# 1469 Receives US\$ deposits from BoA collections US\$ collection Funds FX settlement for Can\$ Funding source for BNS US\$ accounts

2013883007 EIM Holdings, (Canada) Co. Can \$ Can\$ deposit account Co# 1469 Deposit Acct for FX purchases of Can\$ Primary funding account for operations

Thank you

Bob Crane

Message 256 of 1118

Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and

Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com', 'denis.o'connell@enron.com']
File	shackleton-s/all_documents/9534.

Denis, I will not be able to send the Security Agreement via overnight courier, as they cannot deliver to PO boxes. If you want it sent overnight, I will need a physical address. ----- Forwarded by Stephanie Panus/NA/Enron on 03/01/2001 10:05 AM ----- From: Sara Shackleton@ECT on 03/01/2001 08:47 AM To: Stephanie Panus/NA/Enron@Enron cc:

Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Stephanie: Please forward per the message. We need to keep a file for this agreement.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/01/2001 08:46 AM -----

Denis O'Connell 03/01/2001 08:35 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Sara - apologies - I thought my original mail to yourself and Jeff explained. I would be grateful if you could have this couriered today. I attach my original mail for convenience.

many tks,

Denis

Denis O'Connell 21/02/2001 18:55 To: Jeff Kinneman/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT

Subject: RVI - Portfolio CDS No.1 (Equity Tranche)

Jeff - you should receive in the next day or so a Security Agreement from our lawyers in Bermuda (Appleby Spurling) which has to be executed on behalf of ENA. I have approved these docs - in short the agreement grants us security in a Reinsurance Contract which supports RVI's obligation under the Credit Default Swap.

I would be grateful if you could sign where necessary and forward all copies by courier directly to Sharon White at the following address:

Sharon White Conyers Dill & Perman Clarendon House PO Box HM 666 Hamilton Bermuda

Sara - I would be grateful if you could provide the requisite legal initials. On a separate point - Sara - can you confirm that Greg Whalley has the authority to sign on behalf of ENA - if so can you have someone fax me a copy of the signatory authority.

If you have any questions give me buzz.

Many tks

Denis

PS - Drop me a mail when the docs have gone so I can chase-up with Sharon.

From: Sara Shackleton on 01/03/2001 08:27 CST To: Denis O'Connell/LON/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron

Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

No - you never answered my email of 2/27.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Denis O'Connell 03/01/2001 07:38 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Sara - Has this been sent to Bermuda yet ? - tks Denis

Message 257 of 1118

SSB Acct. Docs and rates

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10842.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 04/26/2001 09:19 AM -----

Sheila Glover@ECT 04/25/2001 08:17 AM

To: Ellen Su/Corp/Enron@Enron, Pushkar Shahi/HOU/ECT@ECT, Greg Whiting/Corp/Enron, Gerri Gosnell/HOU/ECT@ECT cc: Kim S Theriot/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Gary Hickerson/HOU/ECT@ECT Subject: SSB Acct. Docs and rates

FYI, Solomon Smith Barney Futures Clearing rates will be \$9.00 roundturn which is the same rate we currently pay with Prudential. Sheila

----- Forwarded by Sheila Glover/HOU/ECT on 04/25/2001 08:13 AM -----

"Gallagher, Brian J [PVTC]" <brian.j.gallagher@rssmb.com> on 04/25/2001 08:06:18 AM To: "Sheila Glover" <Sheila.Glover@Enron.com> cc: Subject: SSB Acct. Docs and rates

Sheila, By now you should have received our account documents from Tania Wilson. The commission rates you were asking for are as follows. All futures products are \$9.00, roundturn, inclusive of all exchange and regulatory agency fees. Options on futures are charged at a rate of \$4.50/side. Currently, I am clearing a portion of the Financials, Stock indices and Agricultural futures for Enron. Financing rates have not been applicable to your account with us to date, due to the fact

that we are marked to market daily. If excess margin balances were to occur in the future, we would pay you a negotiated rate similar to the average 30 day bill rate (because monies are wired back and forth daily this rarely happens, credit or debit). I do understand the need for financing(e.g.. Energy trading business) and would like to have the opportunity to bid on clearing and financing Enrons energy futures trades, as well as utilizing the financing capabilities that Citibank can provide. If you feel that I can further assist in any of these areas, please call me and I'll come down to Houston to discuss the specific needs of Enron.

Thanks for your time and the effort to get our present documents executed. Sheila, could you please include your phone number in case I need to contact you? Thanks again.

Sincerely,

Brian J. Gallagher
Brian Gallagher Salomon Smith Barney 10 S. Wacker Dr. Suite 2800 Chicago, Illinois 60606
312-648-3510 800-621-5231 Fax 312-648-3344

Reminder: E-mail sent through the Internet is not secure. Do not use e-mail to send us confidential information such as credit card numbers, changes of address, PIN numbers, passwords, or other important information. Do not e-mail orders to buy or sell securities, transfer funds, or send time sensitive instructions. We will not accept such orders or instructions. This e-mail is not an official trade confirmation for transactions executed for your account. Your e-mail message is not private in that it is subject to review by the Firm, its officers, agents and employees.

Message 258 of 1118

RE: POA/ Cargill line...

Sender	sara.shackleton@enron.com
Recipients	[d1m@globaladvisors.co.uk, 'wendi.lebrocq@enron.com', 'Sara.Shackleton@enron.com']
File	shackleton-s/sent/5735.

Wendi: Following is a quick message I shot off to Caroline. She will wait for us to call.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/02/2001 11:38 AM -----

Sara Shackleton 03/02/2001 11:24 AM

To: Caroline Abramo/Corp/Enron@ENRON cc: Subject: RE: POA/ Cargill line...

I think these guys are trying to create a \$35M line (\$15M Collateral Threshold from the ISDA Credit Support Annex and a separate \$20M line for the Global agency trading). All trading with Cargill will be subject to the ISDA Master Agreement and Credit Support Annex.

Wendi and I discussed briefly and we'll call you later. It seems that Wendi has spoken with Mark Rubenstein who handles credit and there is some confusion.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 03/02/2001 10:46 AM

To: Wendi LeBrocq/Corp/Enron, Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: POA/ Cargill line...

what do you think? ----- Forwarded by Caroline Abramo/Corp/Enron on 03/02/2001 11:44 AM -----

Joe_Lardy@cargill.com on 03/02/2001 10:39:03 AM To: Caroline.Abramo@enron.com cc: d1m@globaladvisors.co.uk, Sara.Shackleton@enron.com, Wendi.LeBrocq@enron.com

Subject: RE: POA/ Cargill line...

Currently Cargill and Enron have a 15MM collateral threshold. If possible, I think the cleanest way to run this biz would be to put a box around the prime broker biz. We would still operate under the master isda but could set up a mutually agreeable credit support annex for this biz. We would still keep the 20,000,000 line referenced in Schedule B of the POA agreement. The line in the POA is a seperate and distinct measure from the daily collateral. The 20 mill reflects gross exposure. Let me know if you think this is reasonable and workable. We too, are open to suggestion as the Global and Enron relationships are very important and a high priority to us.

Thanks Joe

-----Original Message-----

From: Caroline.Abramo@enron.com [mailto:Caroline.Abramo@enron.com] Sent: Friday, March 02, 2001 7:26 AM To: lardy, joe /xtwn Cc: dlm@globaladvisors.co.uk; Wendi.LeBrocq@enron.com; Sara.Shackleton@enron.com Subject: POA/ Cargill line...

Joe- a few things regading the POA/ Cargill line..

I am going to find out how much line we currently have available... you probably already have this. We should allocate a piece to Global which would solve the problem of other Cargill people using the line, putting us over the limit, without me knowing...

We could change the language of the POA to this... we will not go over Global's piece of the Cargill line...I think this would solve our main concern...

Please let me know... we are eager to keep trading with Global and yourselves...

Regards, Caroline

Message 259 of 1118

Re: Confidentiality Agreement with Scana

Sender	sara.shackleton@enron.com
Recipients	['richard.sage@enron.com', 'Janine Juggins/LON/ECT@ECT', 'Tana Jones/HOU/ECT@ECT']
File	shackleton-s/all_documents/9257.

Richard: Certainly ECL can execute the NDA. I am not the ECL lawyer.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Richard Sage 02/16/2001 12:18 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Guenther Klar/LON/ECT@ECT, Denis O'Connell/LON/ECT@ECT, Tana Jones/HOU/ECT@ECT Subject: Re: Confidentiality Agreement with Scana

Sara, Sorry, I was too assiduous in deleting what I thought would be duplicated on this thread, so I'm working from memory on comments before Guenther's last contribution.

Data for pricing is owned by Enron Credit Ltd (generated by employees of Enron Power Operations Ltd whose costs are charged to ECL) Information deals are done with ECL (Derivative transactions are currently with Enron North America Corp, probably with Enron Credit Inc in the future) The Enron staff who would be looking at this are employed by Enron North America Corp which is why I suggested ENAC as the named party. They clearly act for ECL on information deals. If it's OK to use ECL then that would be easier for us.

I have no objections to suggestions that I should be promoted! In the meantime, I am a board director of ECL and have both legal and group management authority to sign contracts (with a lawyer's initials being a prerequisite).

Regards, Richard

From: Sara Shackleton on 16/02/2001 08:44 CST To: Guenther Klar/LON/ECT@ECT, Richard Sage/LON/ECT@ECT, Denis O'Connell/LON/ECT@ECT cc: Janine Juggins/LON/ECT@ECT, Tana Jones/HOU/ECT@ECT

Subject: Re: Confidentiality Agreement with Scana

Guenther:

Thanks for the response. I'll wait to hear from Richard Sage as to who owns the information. Only officers at the VP level or higher may execute binding contracts for all Enron U.S. companies (bylaws). I do not know the "rule" for non-U.S. companies (although I suspect the articles of association would contain that information).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Guenther Klar 02/16/2001 08:24 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Janine Juggins/LON/ECT@ECT, Richard Sage/LON/ECT@ECT, Denis O'Connell/LON/ECT@ECT, Tana Jones/HOU/ECT@ECT Subject: Re: Confidentiality Agreement with Scana

Sara

You are right about the tax issue - in fact, we are in the process of replacing the UK directors and officers of Enron Credit Inc with US directors and officers.

The entity that signs up to the confidentiality agreement ought to be the one that owns the information to be supplied. Based on conversations I have had with Richard Sage, I had formed the impression that the owner of the information was Enron Credit Ltd. If this is right, we should pursue your first suggestion. Otherwise, given that the tax issue is being rectified and this should therefore be an isolated incident, I think we can wear the tax risk inherent in your second suggestion. Though I do wonder whether an officer of Enron Credit Inc, such as Richard Sage (currently), could sign, rather than a director?

Kind regards

Guenther Klar

Message 260 of 1118

Details of the Accounts Payable Department Move

Sender	enron.announcements@enron.com
Recipients	[all.america@enron.com]
File	shackleton-s/all_documents/1507.

To: All Enron Employees From: Larry J. Dallman Subject: Details of the Accounts Payable Department Move

Effective Monday, March 27, 2000, the Enron Corp Accounts Payable department will be located on the 5th floor of the 600 Jefferson building in Houston. This move will officially combine the Accounts Payable department currently located on the 12th floor of the Enron Building and the Accounts Payable department known as Enron International Accounts Payable, currently located on the 12th floor of Three Allen Center. In the new organization, Larry Dallman will be director of AP operations and Judy Kneppshield will be the director of Strategic Direction and Best Practices.

This move will not affect the EE&CC Accounts Payable department on the 35th floor of Three Allen Center.

Because of this move, our services will be somewhat limited on Friday, March 24 and on Monday, March 27 as we get situated in our new offices. If you anticipate having special requests on those two days, please get them to us before Thursday, March 23.

Below are the particulars about the move, the new location, and how we will interact with our customers:

MAILING ADDRESS:

Enron Corp Accounts Payable JFR 585 P. O. Box 1188 Houston, Texas 77251-1188

A directory of Accounts Payable personnel (office locations and telephone numbers) and services will be published on the AP websites at a later date.

TELEPHONE NUMBERS:

The telephone numbers of AP employees located in the Enron Building will remain the same. Telephone numbers for AP employees presently located in Three Allen Center will have new numbers. A directory of Accounts Payable personnel will be published at a later date.

FAX NUMBERS FOR AP SERVICES:

Optical Imaging/File Room 713-646-8533 Vendor Set-up 713-646-7710 Wires 713-646-3206 AP Department (all other services) 713-646-4763

ACCOUNTS PAYABLE MAIL DROPS (for Payment Requests, Wire Transfer Requests, and Employee Expense Reports and other correspondence):

Enron Building Mail Drop: EB0330 (beside the mail room window) Three Allen Center Mail Drop: 3AC0101 (between the mail center and Travel Agency in the Park office)

Documents must be placed in mailing envelopes before being dropped into the secure containers. Mail will be picked up and delivered to Accounts Payable five (5) times a day (approximately every two hours).

Payment Requests and Wire Transfer Requests for same day checks, wires, and other priority requests must be hand delivered to the appropriate AP location.

REQUESTS FOR COPIES FROM THE AP IMAGING GROUP:

Requests for copies of documents not appearing in Envision should be e-mailed to Lessie Marks or Valeria Johnson. To find invoices in the system, we need the company number, vendor number or name, document date, amount and any other pertinent information you might have to help us find the document. We cannot find documents using account coding data. Due to the number of requests we are presently receiving, we cannot promise delivery dates; but we will make every effort to find documents promptly.

AP HOTLINE

713-853-7127 Available between the hours of 8 AM and 4 PM CST to answer questions about the status of invoices and payments.

AP WEBSITES

<http://home.fan.enron.com/Ap/index.html> <http://hrweb.enron.com/accts/index.asp>

Message 261 of 1118

RE: Enron-BuySideDirect Agreement

Sender	minnich@imarkets.com
Recipients	['lisa@buysidedirect.com', 'sara.shackleton@enron.com', 'jpeters@andrews-kurth.com', 'mike.fowler@enron.com']
File	shackleton-s/all_documents/3783.

1. As discussed I added that BuySideDirect is the counterparty prior to trade affirmation and the our clearing firm will clear and settle the trade in Section 5.2. And as discussed with WPG, your credit risk after trade affirmation is your prime broker.

2. We can agree to your requested on arbitration. Namely, A. New York Law B. Silent on jurisdiction C. Choice of either NASD or AAA arbitration Please send me the appropriate language for insertion into the agreement.

3. Let's discuss this concept of consequential damages further.

Regards,

Mike 415-369-5016

-----Original Message-----

From: Michael Minnich [mailto:minnich@imarkets.com] Sent: Wednesday, September 13, 2000 4:58 PM To: Mike.Fowler@enron.com Cc: jpeters@andrews-kurth.com; sara.shackleton@enron.com; Lisa@Buysidedirect. Com Subject: RE: Enron-BuySideDirect Agreement

I made the two remaining changes:

1. added limits on clearly erroneous policy time limits. We will promptly notify other side and will make a decision within 4 hours of the issue being raised or by 6PM whichever is sooner. 2. deleted first sentence from 5.4

I am still trying to get further resolution from WPG with regard to your insert #6.

Please call with any questions.

Regards,

Mike 415-369-5016

-----Original Message-----

From: Mike.Fowler@enron.com [mailto:Mike.Fowler@enron.com] Sent: Wednesday, September 13, 2000 6:06 AM To: minnich@imarkets.com Cc: mike.fowler@enron.com; jpeters@andrews-kurth.com; sara.shackleton@enron.com; Lisa@Buysidedirect. Com; minnich@imarkets.com Subject: Re: Enron-BuySideDirect Agreement

In case I did not specify this previously, with regard to time limits for the clearly erroneous policy, I would encourage you to consider both 1) counterparty notification that a trade is being questioned and 2) resolution.

Thanks.

Mike

"Michael Minnich" <minnich@imarkets.com> on 09/12/2000 07:00:10 PM

Please respond to <minnich@imarkets.com>

To: <mike.fowler@enron.com>, <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com> cc: "Lisa@Buysidedirect. Com" <lisa@buysidedirect.com>, <minnich@imarkets.com>

Subject: Enron-BuySideDirect Agreement

I apologize for the delay. I made the changes as discussed except:

1. I did not put a limit on the Clearly erroneous policy--not because I didn't agree, but because I did not see an obvious answer in the Nasdaq agreement. I will look at it more tomorrow, but I wanted to get this to you rather than delay further. 2. Striking first sentence in 5.4--I have not heard back from our lawyers. Hopefully tomorrow.

Also, I attach the broker dealer attachment 2 which you said you didn't have.

I think we resolved most of your WPG questions. WPG is OK with all of your changes except Insert 6. I will try to get further resolution as to why they object so that you can negotiate further if you like.

If all goes well, hopefully this can be wrapped up tomorrow.

Regards,

Mike

BuySideDirect LLC a subsidiary of Intelligent Markets, Inc.

410 Jessie Street, Suite 602 San Francisco, CA 94103 (415) 369-5016 direct (415) 369-5020 sales (415) 369-5010 fax
minnich@imarkets.com

(See attached file: Enron BuySideDirect Subscriber Agreement, Dated August 25, 2000.doc) (See attached file: Enron BuySideDirect Subscriber Application, Version August 25, 2000.doc) (See attached file: BuySideDirect Attachment 2.DOC)

- Enron BuySideDirect Subscriber Agreement, Dated August 25, 2000.doc

Message 262 of 1118

Re: More reasons we need to revise the ENA authorized traders list

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/all_documents/10390.

Right. For sure, the authority is not invalidated if the issue is that some officer is simply not named, but that is not the main problem with our documents. In any case, [on this first point], putting Gary's name on the list of officers since he is the officer signing will avoid potential problems and questions from brokers.

What WOULD invalidate the authority, however, is if the secretary's statement provides that only officers providing certain positions can open accounts and no such officers/positions exist. This is the case with our ENA documents. If you look at them you will see that there are obvious errors - in particular, read the secretary's statement and note the inconsistencies/errors compared to the authorized officers list.

We need to change these immediately today so I will stop by and talk to you and/or Stephanie about what corrections need to be made.

Thanx.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/05/2001 05:35 PM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Stephanie Panus/NA/Enron@Enron Subject: Re: More reasons we need to revise the ENA authorized traders list generally and right away

Cheryl:

Just a bit of history: I think that the partial listing of officers on the (authorized traders) list is only meant to be illustrative of corporate officers and directors. The ENA unanimous consent for the relevant company is the authority for document execution. If, for example, a VP is authorized to execute for a particular company (by virtue of a corporate resolution or unanimous consent) and that particular VP's name does not appear in the partial listing, execution is not invalidated. The execution is valid.

Have you had a broker question ENA's authority?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/05/2001 03:57 PM

To: Stephanie Panus/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT, Keegan Farrell/NA/Enron@Enron Subject: More reasons we need to revise the ENA authorized traders list generally and right away

Hey Stephanie, we need to revise this list because it does not make sense at least with respect to ENA. It does not list key people (e.g. Gary) and it is inconsistent with the resolutions. For example, the resolutions say that a managing director and

treasurer can be a designated person to open an account but ENA does not have such an officer. There are MD's and then there is a VP and Treasurer. There are I think other inconsistencies we need to clear up to avoid having the accounts invalidated. Having these points clear is especially important where, like now, we won't have Gary or Mark Frevert sign because they are out of town and we need to open the account right away.

I know you are swamped so I will work tonight on revising the List for ENA tonight and give the revisions to do first thing in the morning.

Can you revise the List for ECT today (or just doublecheck it) so that we do not have a hold up in executing the Goldman International account for ECT first thing in the morning. I promised Sheila Glover we would execute it right away.

Did we open any ENA accounts in the past two weeks and if so, just to be clear, can we send them a list that includes Gary's name and title if he signed.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 263 of 1118

Re: Confidentiality Agreement with Scana	
Sender	janine.juggins@enron.com
Recipients	['guenther.klar@enron.com', 'sara.shackleton@enron.com', 'tana.jones@enron.com', 'richard.sage@enron.com', 'de...]
File	shackleton-s/notes_inbox/3240.

guenther, please can you respond to Sara thanks Janine

From: Sara Shackleton on 15/02/2001 16:43 CST To: Richard Sage/LON/ECT@ECT, Denis O'Connell/LON/ECT@ECT, Janine Juggins/LON/ECT@ECT cc: Tana Jones/HOU/ECT@ECT

Subject: Confidentiality Agreement with Scana

Richard:

The corporate workbook reflects that the officers of Enron Credit, Inc. all reside in the U.K. I don't see anyone identified with a power of attorney for executing documents in Houston.

As there may be tax issues associated with U.K. officers signing (in the U.K) on behalf of a U.S. company, I am asking for verification from Janine.

My suggestion is that Enron Credit Ltd. negotiate and execute the agreement and include the usual "affiliates, representatives, etc." who may need to know any confidential information. Your V.P.'s are all in London.

If Janelle confirms that it's alright for Brown, Sherriff or Seyfried to sign for Enron Credit, Inc. from London, then we can prepare the document and have a V.P. sign and fax the agreement to the U.S. party. At a minimum, though, we should try to work from our form of NDA.

Let me know if you have any questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/15/2001 04:11 PM -----

Tana Jones 02/15/2001 02:41 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Confidentiality Agreement with Scana

It is not clear to me how we should handle this, what do you suggest? As a note, I will be out of the office on Friday. ----- Forwarded by Tana Jones/HOU/ECT on 02/15/2001 02:40 PM -----

Richard Sage 02/15/2001 11:04 AM

To: Tana Jones/HOU/ECT@ECT cc: Denis O'Connell/LON/ECT@ECT, John Haggerty/Corp/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Craig Chaney/HOU/ECT@ECT Subject: Confidentiality Agreement with Scana

Tana, I guess we need to change the Enron legal entity from Enron Corp? In our current model the transacting entity will be Enron North America (which is a Delaware corporation?) Can you then arrange a suitable signature (Haedicke?) Can we get this done by the end of Friday?

Thanks, Richard

----- Forwarded by Richard Sage/LON/ECT on 15/02/2001 16:54

John Haggerty@ENRON 15/02/2001 15:14 To: Richard Sage/LON/ECT@ECT cc: Craig Chaney/HOU/ECT@ECT, Bruce Harris/NA/Enron@Enron, David P Dupre/HOU/ECT@ECT, Jeff Kinneman/HOU/ECT@ECT, Bryan Seyfried/LON/ECT@ECT

Subject: Confidentiality Agreement

Richard, Craig told me you could review and sign this confidentiality agreement, naturally it might need a little editing.

----- Forwarded by John Haggerty/Corp/Enron on 02/15/2001 10:12 AM -----

"FOLK, JESSE C III" <JCFolk@scana.com> on 02/15/2001 02:30:48 PM To: "john.haggerty@enron.com" <john.haggerty@enron.com>, "denis.o'connell@enron.com" <denis.o'connell@enron.com> cc:

Subject: Confidentiality Agreement

John and Denis--

Here is the proposed confidentiality agreement. I wasn't sure about the exact name for you, so I just put in the generic "Enron". Let me know if this is okay.

Call me if you have any questions, and I'm looking forward to reaching an agreement with you.

Thanks.

Jay Folk Trading Operations Manager SCANA Energy Marketing, Inc. 803-217-1433 (Phone) 888-309-2859 (Mobile) 803-217-1455 (Fax) jcfolk@scana.com (E-mail)

- SEMI-Enron conf agreement.doc

Message 264 of 1118

Re: Enron Teeside Operating Limited ("ETOL")

Sender	rod.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'Rod Nelson/LON/ECT@ECT']
File	shackleton-s/notes_inbox/2119.

Karolina jumped right on this with much apology - probably because I was sitting three feet away writing her PRC. In truth, she had actually been busy like the rest of us. Sorry for the delay.

I've been doing well. My second daughter, Eliza Joyce, was born on March 12th here in London. We are still waking up at least once a night, but I generally go right back to sleep. Our "flat" seems to have shrunk. We are thinking of moving to a larger place, but this will depend greatly on how long we decide to stay. In some ways, we've grown quite attached to the place. It does have a communal garden, which is a valuable commodity central London.

How have you been? Any exotic trips? Tell everyone else (who's still there) I said hello.

Rod

----- Forwarded by Rod Nelson/LON/ECT on 25/05/2001 07:34

Karolina Moran 24/05/2001 18:42 To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Rod Nelson/LON/ECT@ECT

Subject: Re: Enron Teeside Operating Limited ("ETOL")

Sara/Mary,

I very much apologise for taking some time with regards to a reply on the credit issues for the ISDA.

With regards to your question on whether ETOL is prohibited from entering into Swaps with other parties - I actually do not have the answer to that question so I cannot comment on that.

I have looked at the documents and I would like to in as much as possible replicate the terms we have with ETOL in the ECT ISDA. I cannot see any reason not to go with the same structure as we have in that ISDA. We will provide an Enron Corp guarantee in favour of ETOL as well as have a \$50M collateral threshold (like in the previos ISDA). I further assume that we should roll up any outstanding ISDA confirmations with this counterparty under this ISDA. With regards to the cap on the Enron guarantee - this is set as 10,000,000 for the previous ISDA. Again here I think we can go for the same amount.

Please give me a call if you have any questions and we can discuss,

Kind Regards,

karolina

From: Sara Shackleton on 17/05/2001 15:44 CDT To: Rod Nelson/LON/ECT@ECT, Karolina Moran/LON/ECT@ECT cc: Rhett Jackson/Enron@EnronXGate

Subject: Re: Enron Teeside Operating Limited ("ETOL")

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/17/2001 03:43 PM -----

Jorge A Garcia@ENRON 05/17/2001 03:26 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Enron Teeside Operating Limited ("ETOL")

Good Afternoon Sara,

I have had an opportunity to review this counterparty and have the following information for you. Here is a list of the current trades (Interest Rate Swaps) for ETOL.

I am attaching the only confirmation that was created and amended for ETOL. It is in the name of RMT.

Please call or e-mail me should you require any additional information.

Regards,

Jorge

From: Sara Shackleton@ECT on 05/17/2001 02:51 PM To: Susan Bailey/HOU/ECT@ECT, Rod Nelson/LON/ECT@ECT cc: Karolina Moran/LON/ECT@ECT, Jorge A Garcia/NA/Enron@Enron, Rhett Jackson/Enron@EnronXGate

Subject: Enron Teeside Operating Limited ("ETOL")

Susan:

Rod or Karolina will prepare a credit worksheet for an ISDA Master Agreement between ETOL and RMT. Jorge has a 3-year rate swap awaiting documentation.

Rod/Karolina: Is there any reason to not use RMT? Is an ETOL sell-off imminent? If so, would it be in the near term?

Rhett: If an ETOL sell-off (in whole or part) is imminent, should the deal be booked in ENA rather than RMT?

Jorge: The transaction confirm should be an ISDA format. Also, please verify whether any ETOL deals are on ENA/RMT books and the remaining terms

Thanks..

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 265 of 1118

RE: JP Morgan Securities Inc. (Electronic Order)

Sender	tana.jones@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/9879.

----- Forwarded by Tana Jones/HOU/ECT on 03/16/2001 11:48 AM

From: Michael Neves/ENRON@enronXgate on 03/15/2001 07:29 PM To: Tana Jones/HOU/ECT@ECT cc: Subject: RE: JP Morgan Securities Inc. (Electronic Order)

Tana,

The problem has been fixed. The select statements of each of the "views" 1-12 to exclude "Other" Agreements. The view "13. Other Agreements" excludes all "Regular" Agreements and in addition all "Other" Agreements are excluded from the unsecured All By C/P view that everyone in Enron has access to. Please check/verify that the "Other" Agreements are no longer showing up in the All By C/P view(s) and let me know if it still needs attention. Hopefully it doesn't.

Thanks, Mike 3-3363 -----Original Message----- From: Jones, Tana Sent: Wednesday, March 14, 2001 6:41 PM To: Neves, Michael Cc: Shackleton, Sara Subject: Re: JP Morgan Securities Inc. (Electronic Order)

Mike,

I know I'm not supposed to continue imposing on you, but if these entries are showing up in both places this is going to creating large problems for us, as well as giving persons who should not have access to brokerage/other agreements access to that information. Our brokers are quite confidential. The only information we want to make available to all Enron employees is the master swap agreements. Can you PLEASE, PLEASE take a look at this for me. It is very critical that this drop down works correctly.

Sara Shackleton 03/14/01 06:32 PM To: Tana Jones/HOU/ECT@ECT cc: Subject: Re: JP Morgan Securities Inc. (Electronic Order) << OLE Object: StdOleLink >>

You need to speak with the developer. There is no way to control the inclusion of "Other Agreements" in the "All Agreements" section as the system is currently designed.

I am not disagreeing with you; I learned this the hard way a few months ago. The system is confusing.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tana Jones 03/14/2001 05:47 PM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: JP Morgan Securities Inc. (Electronic Order) << OLE Object: StdOleLink >>

It has been my understanding that the first section is supposed to be for master swap agreements only. Having other documents listed in that section may be misleading to some parties who may misconstrue their use for general trading purposes, such as Global Contracts. That is why we created the "Other Agreements" section, to house these other agreements. My understanding is that the only reason other agreements has been listed in the Master Swap Agreements Section is that they have been done so erroneously. The drop down were not created too artfully created, allowing wrong agreements to be put in Master Swap Agreements, which has been proliferating. If my understanding is not correct, than

when did the intentional use of that first section change? I think putting all agreement is a very bad idea.

Sara Shackleton 03/14/01 05:35 PM To: Tana Jones/HOU/ECT@ECT cc: Subject: Re: JP Morgan Securities Inc. (Electronic Order) << OLE Object: StdOleLink >>

Tana: I think the agreement is listed in Section 1 (all agreements) which is not just Master Swap Agreements. It is also listed in the appropriate Section 13 entry. Hope you're enjoying Canada!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tana Jones 03/14/2001 04:26 PM To: Samantha Boyd/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron cc: (bcc: Sara Shackleton/HOU/ECT) Subject: JP Morgan Securities Inc. (Electronic Order)

The above counterparty has been created in the Financial Trading Agreements Database and is listed as a master swap agreement, and it's not. It is an Electronic Trading Agreement and needs to be moved down to "Other Agreements". Please let me know when that is done and I will delete the entry in the master swap agreement database. Thanks!

Message 266 of 1118

Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'keegan.farrell@enron.com']
File	shackleton-s/nelson/336.

Stephanie, you may want to clarify all of the facts as well. That a local phone number was disconnected is irrelevant because keegan called my cell phone number and spoke with my fiance. He and Keegan then called my house in New York and notified my family that Keegan wanted to reach me. They conveyed that message to me immediately as I walked though the door. I then immediately called Keegan the minute I walked into my house in New York.

As I mentioned to Sara, if you need to reach me

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Stephanie Panus 05/21/2001 11:54 AM To: Cheryl Nelson/NA/Enron@Enron cc: Keegan Farrell/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

You may want to clarify this with Keegan as 1) your voice mail was full on that Friday, 2) Keegan tried to contact you in New York and the number she had for you was disconnected, and 3) we tried to locate the documents that Friday and were not able to.

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 11:00 AM To: Sara Shackleton/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Tom Doukas/Enron@EnronXGate cc: Keegan Farrell/NA/Enron@Enron Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Sara,

Moreover, Keegan represented to me that you requested that she locate for you the Securities Loan Agreement for you while I was out and that she went into my office and retrieved that document from my Enron Credit Inc. file and gave it to you. So, I am not sure of the source of confusion about not being able to find my file but for future reference, the best thing to do is to ask Keegan how to contact me immediately and directly - when out the office she always knows how to reach me.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 10:36 AM To: Sara Shackleton/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron, Tom Doukas/Enron@EnronXGate Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Sara:

I will forward the documents to you.

For future reference, if anyone is looking for a file for an urgent matter while I am out, she should convey that fact to me by either (1) leaving a voice mail - as I checked my voicemails on Friday (that is how I was able to speak with Tom from New York on Friday) or (2) advise Keegan and she will contact me immediately by cell phone as she did regarding other matters on Friday.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Sara Shackleton@ECT 05/15/2001 03:45 PM To: Cheryl Nelson/NA/Enron@Enron cc: Tom Doukas/Enron@EnronXGate, Stephanie Panus/NA/Enron@Enron Subject: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Cheryl:

I spoke with Clem and he is preparing the amendment for immediate execution as the signers will be at an offsite tomorrow. I'll let Tom know as soon as the amendment has been executed. Anna Meytina is on vacation so I left a message with Sharon Chernick.

In order to complete our files with respect to the Enron North America Inc. ("ENA") Securities Loan Agreement, please provide me with copies of the following documents:

- (1) assignment of the Securities Loan Agreement from ENA to ECI (or was a separate agreement with ECI executed?)
- (2) termination of the prior Enron Corp. guaranty on behalf of ENA in the amount of USD25 Million

I spoke with Stephanie and she could not locate your Bear/ECI files on Friday of last week.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

<Embedded StdOleLink> <Embedded StdOleLink> <Embedded StdOleLink>

Message 267 of 1118

Re: URGENT -- Re: Papers for Raptor Meeting Tuesday

Sender	gordon.mckillop@enron.com
Recipients	scott.sefton@enron.com , randy.young@enron.com , sara.shackleton@enron.com
File	shackleton-s/notes_inbox/855.

To follow up on Scott's message below. The attached proposal sheet has the entity information for the Raptor II structure. The proposal sheet should contain the information that is necessary to support the confirm. The asset description should describe the business or entity. A specific description of the underlying investment and interest in should also be included. Under the detail of the derivative include the type (at the money price return swap, put, call...), term, legal name, specific investment type (type of stock, warrant ...), initial price, initial shares, initial notional value. The valuation support should be attached with the proposal sheet. For this transaction, there is no premium calculation since the swap is at the money.

Please provide this information to Sara and me. I will distribute the information to Ryan and Scott. After the confirm is completed, I will submit the information to the counterparty for approval.

Please call me if you have any questions. Thanks, Gordon

Scott Sefton@ECT 09/26/2000 08:37 AM To: Randy Young/NA/Enron@Enron cc: Gordon McKillop/NA/Enron@ENRON
Subject: URGENT -- Re: Papers for Raptor Meeting Tuesday

Randy,

Hedges in the Raptor structure require that a Proposal Sheet be submitted to the counterparty to the swap (the counterparty is owned by an outside investor and our agreement with them requires this). Attached to Mary's email below is the Raptor Derivative Proposal Sheet that the business unit will need to submit. Gordon is responsible for this process and can answer any questions you have.

Also attached below is a Raptor Securities/Confidentiality Response Form that ENA legal prepared to help them conduct a due diligence exercise on their merchant assets being hedged to confirm that there were no contractual or other legal restrictions that may affect their ability to enter into the swap. Although many of the items on this form won't be relevant to what you're hedging, I thought it may be helpful. Because we're not familiar with the assets or any South American legal issues that may apply, we'll be looking to you for confirmation that there aren't any issues in this regard.

You can ignore the document entitled Raptor Process for Inclusion of Swaps into Raptor Vehicles.

Please call me or Gordon if you have any questions. Thanks!

Scott ----- Forwarded by Scott Sefton/HOU/ECT on 09/26/2000 08:19 AM -----

MARY COOK 09/25/2000 06:38 PM To: Scott Sefton/HOU/ECT@ECT cc: Andrea V Reed/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron, Hope Vargas/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Lisa Mellencamp/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT Subject: Re: Papers for Raptor Meeting Tuesday

We can discuss tomorrow, but the swap group is not staffed either to fulfill the coordination of all the work in respect of the underlying assets. Do you have alternative ideas?

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Scott Sefton 09/25/2000 06:34 PM

To: Mary Cook/HOU/ECT@ECT cc: Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron Subject: Re: Papers for Raptor Meeting Tuesday

Although I'm happy to discuss this at our meeting tomorrow, I don't think the draft process document describes a role for Global Finance legal that we can properly fulfill.

MARY COOK 09/25/2000 02:14 PM To: Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Scott Sefton/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron cc: Subject: Papers for Raptor Meeting Tuesday

See attached for your review prior to meeting, Tuesday 9:30 38C1. Thanks. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 268 of 1118

Fwd: Enron Monterrey Project - Draft ISDA Master Agreement Schedule

Sender	mark.taylor@enron.com
Recipients	['francisco.leite@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/9097.

Francisco - Here is an ISDA that Peggy needs in connection with a project she is working on in Mexico. Can you take care of this one? It looks like it is a deal-specific agreement for an interest rate swap or swaps. Sara can probably fill you in on the kinds of changes from our standard form that would be ok. ----- Forwarded by Mark Taylor/HOU/ECT on 02/12/2001 06:39 AM -----

Peggy Banczak 02/09/2001 09:10 AM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Fwd: Enron Monterrey Project - Draft ISDA Master Agreement Schedule

Mark

Attached are some comments from Enron's outside counsel on the draft ISDA Master Agreement which I forwarded to you earlier this week.

Could you please advise who is reviewing this document and when their review might be completed.

Thank you for your assistance. ----- Forwarded by Peggy Banczak/HOU/ECT on 02/09/2001 09:09 AM -----

"Nancy Jo Nelson" <nnelson@bracepatt.com> 02/08/2001 02:38 PM

To: "Carlyn Carey" <ccarey@bracepatt.com>, <rlopezv@lvha.com.mx> cc: "Robert Stephens" <rstephens@bracepatt.com>, <michael.garberding@enron.com>, <peggy.banczak@enron.com> Subject: Fwd: Enron Monterrey Project - Draft ISDA Master Agreement Schedule

Attached is the email forwarding the draft swap agt with SG.

Rogelio--please take a look at the docs required in Part 3-- some changes will need to be made I am sure to reflect that EEIM is a Mexican company--please fax me a markup with your suggested changes. It looks like we are going to need Mexican Power of Attorney for CT Corp. for this agreement also.

Carlyn--please look at the CT Corp. appointment letter and let me know if any hedging agt is contemplated to be included. We may need a separate appointment letter for this document (see Part 5, clause (vi)) -- note also that the jurisdictional consent language is different than in the Loan Agt and most of the other IDB docs--I don't think we care but I will point it out to SG--they may want to conform the language to have the same court jurisdiction.

Mike--on substantive issues, please call me when you get back into town and have a moment to talk. I spoke with one of my partners in Houston who is much more familiar with swaps and he thinks it looks ok for the most part--I have only a few questions/comments for you.

Thanks all!

Nancy Jo Nelson Bracewell & Patterson, L.L.P. 2000 K Street, N.W., Suite 500 Washington, DC 20006-1872 direct phone: (202) 828-5843 direct fax: (202) 857-2120 email: nnelson@bracepatt.com cell phone: (202)251-6956 Received: from mcafee.bracepatt.com by bracepatt.com; Fri, 02 Feb 2001 10:12:48 -0600 Received: FROM rconnect2.hunton.com BY mcafee.bracepatt.com; Fri Feb 02 10:21:49 2001 -0600 X-Proxy: keymaster.bracepatt.com protected Received: by rconnect2 with Internet Mail Service (5.5.2651.48) id <D8K4M5CH>; Fri, 2 Feb 2001 11:11:46 -0500 Message-ID: <11A113B59DF4D311A0DE00805FA7F3230126CB7A@DCMAIL1> From: "Peterson, Bruce" <BPeterson@hunton.com> To: "Kerrigan, Brian" <brian.kerrigan@enron.com>, "Irvin, Steven" <sirvin@enron.com>, "Garberding, Michael" <michael.garberding@enron.com>, "Banczak, Peggy" <peggy.banczak@enron.com>, "Robert Stephens" <rstephens@bracepatt.com>, "Nancy Jo Nelson" <nnelson@bracepatt.com> Cc: "Weizman, Leif" <LEIFW@iadb.org>, "De Castro, Denis Roberto" <DENISDC@iadb.org>, "jeffrey.wood@us.socgen.com" <jeffrey.wood@us.socgen.com>, "pierre-antoine.barreault@us.socgen.com" <pierre-antoine.barreault@us.socgen.com>, "Giovannelli, Giovanni"

<GIOVANNIG@iadb.org>, ""Garcia, Juan Jose"" <JUANJOSEG@iadb.org>, ""Robert.LASKY@us.socgen.com""
<Robert.LASKY@us.socgen.com> Subject: Enron Monterrey Project - Draft ISDA Master Agreement Schedule Date: Fri,
2 Feb 2001 11:11:45 -0500 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2651.48) Content-Type:
multipart/mixed; boundary="----=_NextPart_000_01C08D32.D6E3E090"

Attached at the request of IDB is a draft ISDA Master Agreement Schedule for the Monterrey project Hedging Agreements.
A preliminary draft of this document has been circulated and discussed between IDB and SG, but this draft is being
circulated concurrently to all parties and has not yet been finally between the Banks.

Bruce D. Peterson Hunton & Williams 1900 K Street, N.W. Washington, D.C. 20006 Tel. 202.955.1521 Fax 202.778.2201

NOTE: This message contains information which is confidential and may be privileged. Unless you are the addressee (or a
person authorized to receive for the addressee) of this message, you may not use, copy or disclose this message or any
information contained in this message. If you have received the message in error, please advise the sender by reply e-mail
and delete this message.

- Enron SG SWAP Schedule(v2).DOC

Message 269 of 1118

Re: URGENT -- Re: Papers for Raptor Meeting Tuesday

Sender	scott.sefton@enron.com
Recipients	['Sara Shackleton/HOU/ECT@ECT', 'gordon.mckillop@enron.com', 'Scott Sefton/HOU/ECT@ECT']
File	shackleton-s/all_documents/3868.

I think you ought to do a bit of hand holding to help Randy complete this. For example, we know the type of derivative, the
specific investment type and a lot of the other information called for by the form. I really think you'll spend less time
working on this if you sit down with Randy and help him prepare the form. Also, Randy needs some guidance on what sort
of description of the underlying investment is appropriate. I'm sure Randy can attach something in his file that works just
fine (as opposed to preparing something for this). Also, you and Randy need to discuss how the fairness opinion is used
and whether it's provided to LJM to help support the swap price. Thanks!

Gordon McKillop@ENRON 09/26/2000 09:36 AM To: Randy Young/NA/Enron@Enron cc: Scott Sefton/HOU/ECT@ECT,
Sara Shackleton/HOU/ECT@ECT Subject: Re: URGENT -- Re: Papers for Raptor Meeting Tuesday

To follow up on Scott's message below. The attached proposal sheet has the entity information for the Raptor II structure.
The proposal sheet should contain the information that is necessary to support the confirm. The asset description should
describe the business or entity. A specific description of the underlying investment and interest in should also be included.
Under the detail of the derivative include the type (at the money price return swap, put, call...), term, legal name, specific
investment type (type of stock, warrant ...), initial price, initial shares, initial notional value. The valuation support should be
attached with the proposal sheet. For this transaction, there is no premium calculation since the swap is at the money.

Please provide this information to Sara and me. I will distribute the information to Ryan and Scott. After the confirm is
completed, I will submit the information to the counterparty for approval.

Please call me if you have any questions. Thanks, Gordon

Scott Sefton@ECT 09/26/2000 08:37 AM To: Randy Young/NA/Enron@Enron cc: Gordon McKillop/NA/Enron@ENRON
Subject: URGENT -- Re: Papers for Raptor Meeting Tuesday

Randy,

Hedges in the Raptor structure require that a Proposal Sheet be submitted to the counterparty to the swap (the
counterparty is owned by an outside investor and our agreement with them requires this). Attached to Mary's email below
is the Raptor Derivative Proposal Sheet that the business unit will need to submit. Gordon is responsible for this process
and can answer any questions you have.

Also attached below is a Raptor Securities/Confidentiality Response Form that ENA legal prepared to help them conduct a due diligence exercise on their merchant assets being hedged to confirm that there were no contractual or other legal restrictions that may affect their ability to enter into the swap. Although many of the items on this form won't be relevant to what you're hedging, I thought it may be helpful. Because we're not familiar with the assets or any South American legal issues that may apply, we'll be looking to you for confirmation that there aren't any issues in this regard.

You can ignore the document entitled Raptor Process for Inclusion of Swaps into Raptor Vehicles.

Please call me or Gordon if you have any questions. Thanks!

Scott ----- Forwarded by Scott Sefton/HOU/ECT on 09/26/2000 08:19 AM -----

MARY COOK 09/25/2000 06:38 PM To: Scott Sefton/HOU/ECT@ECT cc: Andrea V Reed/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron, Hope Vargas/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Lisa Mellencamp/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT Subject: Re: Papers for Raptor Meeting Tuesday

We can discuss tomorrow, but the swap group is not staffed either to fulfill the coordination of all the work in respect of the underlying assets. Do you have alternative ideas?

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Scott Sefton 09/25/2000 06:34 PM

To: Mary Cook/HOU/ECT@ECT cc: Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron Subject: Re: Papers for Raptor Meeting Tuesday

Although I'm happy to discuss this at our meeting tomorrow, I don't think the draft process document describes a role for Global Finance legal that we can properly fulfill.

MARY COOK 09/25/2000 02:14 PM To: Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Scott Sefton/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron cc: Subject: Papers for Raptor Meeting Tuesday

See attached for your review prior to meeting, Tuesday 9:30 38C1. Thanks. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 270 of 1118

Enron Credit Inc. Officers

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com']
File	shackleton-s/all_documents/11211.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/24/2001 11:46 AM -----

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 05/24/2001 09:59 AM

To: Tana Jones/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron Subject: Enron Credit Inc. Officers

Include:

Mark Frevert

Mark Haedicke

James Derrick

Craig Chaney

Jeff Kinneman

So, you can get docs signed in Houston.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Message 271 of 1118

Re: Work

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/sent/5458.

Hi! There are only FOUR Top Tens and none are mine. I've asked credit to update the list. I am sending you all paper and pulp inquiries (just spoke with a new guy named John Fortunato). Why don't we talk Monday morning?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 02/02/2001 09:03 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Work

Sara: If you have any top 10's or other Masters that you need help with, let me know.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 272 of 1118

Consulting Agreement Form

Sender	sara.shackleton@enron.com
Recipients	['legal.2@enron.com']
File	shackleton-s/all_documents/11402.

Damon: Can you print the agreement for met? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/04/2001 10:07 AM -----

Twanda Sweet 06/01/2001 05:35 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Consulting Agreement Form

This is set up as a merge document. If it asks you to find the data source, you can click on the document below or just delete the header source.

This is the attachment referenced in the the Consulting Agreement.

Twanda Sweet Enron North America Corp. EB3822 (713) 853-9402 twanda.sweet@enron.com

Message 273 of 1118

Hedge Fund Template

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/6155.

Kaye: I'll give you my comments to the template and I ask that you please add these to the "clean" document. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/26/2001 09:24 AM -----

Carol St Clair 04/25/2001 01:45 PM

To: Sara Shackleton/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Paul Radous/Enron@EnronXGate, Brent Hendry/NA/Enron@Enron cc: Subject: Hedge Fund Template

Enclosed is a form of hedge fund ISDA template. I have blacklined it against the Union Spring schedules.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 274 of 1118

nan

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/all_documents/8987.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/06/2001 07:14 PM -----

Robert Bruce@ENRON Sent by: Robert Bruce@ENRON 02/06/2001 03:22 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject:

here's the redline.

I gave my hard-copy of the Act itself (in the version we agreed upon) to Kaye, along w/ copies of three or four law firm memos on the CFMA, in case you think any or all of those should be included in the binder. I told Kaye she would hear from you later on the binder -- Bob

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 275 of 1118

ISDA Contact	
Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/all_documents/8999.

Stephanie:

Here's the contact info. I don't think that this guy is a lawyer but I could be mistakem. Mention in the email that the draft was requested by Clint Freeland with Enron Corp. and to let us know who will be negotiating for CSFB. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/07/2001 09:32 AM -----

Jeff Nogid 01/23/2001 05:24 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Clint Freeland/Corp/Enron@Enron Subject: ISDA Contact

Sara-

You can send the ISDA draft to:

Keith McNally 212-325-3633 Keith.McNally@csfb.com

Deals #s still pending.

Jeff Nogid Enron Global Finance 713-853-4782

Message 276 of 1118

REMINDER -- EGM Organizational Post Petition Meeting	
Sender	judy.zoch@enron.com
Recipients	['richard.baumfield@enron.com', 'donna.baker@enron.com', 'christina.brandli@enron.com', 'sally.beck@enron.com']...
File	shackleton-s/inbox/664.

New time for tomorrow only!

REMINDER -- The EGM Org. Post Petition Meeting will be held on Wednesday, February 6 at 9:00 am in conf. room ECN 30C1. Please plan to attend or use the dial-in number shown below:

Domestic Callers Dial 1-877-987-1409 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

International Participants Dial 001-610-769-3343 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

LONDON EMPLOYEES ONLY: Please meet in conference room SE1002 (tele# 011-44-207-783-0113) and dial into the meeting using the number above. If you have any questions, please call Kathy Tibbs in London on ext. 5479.

Thank you.

Judy Zoch Enron Global Markets LLC Financial Trading 1400 Smith Houston, TX 77002 (713) 853-0655 email: judy.zoch@enron.com

Message 277 of 1118

LEGAL CONFERENCE REPLY FORM

Sender	dorie.hitchcock@enron.com
Recipients	['yao.apasu@enron.com', 'suzanne.adams@enron.com', 'sami.arap@enron.com']
File	shackleton-s/inbox/200.

The Enron Wholesale Services Legal Conference will be held at The Woodlands Resort & Conference Center on October 11-12, 2001.

Attached is a PowerPoint file containing the reply form for this event. There are two options for completing this form: First Option Open file Print page Type or print information Fax reply to (713) 646-5800

Second Option Open file Enter information directly onto the page by using text boxes Save file E-mail reply to dorie.hitchcock@enron.com

Please note that each box should be completed in its entirety.

Reply forms should be sent to Dorie Hitchcock no later than Friday, September 21. Thank you for your assistance.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978 Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 278 of 1118

Re: Duke Energy File

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/all_documents/8800.

No - who was the paralegal?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 01/24/2001 12:46 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Tana Jones/HOU/ECT@ECT Subject: Duke Energy File

I am looking for Shari's file/papers on the ISDA Master that we did in Canada with Duke Energy Limited Partnership. At one point in her negotiations with them, Stikeman Elliot changed our cash collateral provisions to make it work in Canada and taht language may be useful to me on another ISDA that I am working on with our office in Japan. Does anyone have her working file on this or know where her papers would be?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 279 of 1118

REMINDER -- TIME CHANGE --EGM Organizational Post Petition Meeting

Sender	judy.zoch@enron.com
Recipients	['richard.baumfield@enron.com', 'donna.baker@enron.com', 'christina.brandli@enron.com', 'sally.beck@enron.com']...
File	shackleton-s/inbox/656.

Please note the time change for the the EGM Org. Post Petition meeting. The meetings scheduled every Monday and Wednesday will now be held from 9:30-10:30 am CST in ECN 30C1. The next meeting will be held Monday, February 4. Please plan to attend or use the dial-in number shown below:

Domestic Callers Dial 1-877-987-1409 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

International Participants Dial 001-610-769-3343 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

LONDON EMPLOYEES ONLY: Please meet in conference room SE1002 (tele# 011-44-207-783-0113) and dial into the meeting using the number above. If you have any questions, please call Kathy Tibbs in London on ext. 5479.

Thank you.

Judy Zoch Enron Global Markets LLC Financial Trading 1400 Smith Houston, TX 77002 (713) 853-0655 email: judy.zoch@enron.com

Message 280 of 1118

Re: Questions regarding Confirmations

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'linda.sietzema@enron.com']
File	shackleton-s/all_documents/10135.

Linda:

Carol St. Clair is one of the Houston lawyers handling Canadian matters. She will speak with Russell this morning about revising the credit worksheets and will be available to answer questions. Her extension is 33989. Also, as Tana mentioned in her email yesterday, both Susan Bailey and Stephanie Panus are the paralegals in Houston who create the omnibus confirms having credit and you should always feel free to contact them.

P.S. Russell is going on vacation this week and I don't know who will handle Canadian credit issues in his absence.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Linda Sietzema 03/28/2001 09:19 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Questions regarding Confirmations

I have not received revised worksheets yet.

Linda

Message 281 of 1118

CA	
Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/all_documents/2965.

----- Forwarded by Sara Shackleton/HOU/ECT on 08/11/2000 11:35 AM -----

Kay Young 08/11/2000 11:27 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: CA

Sara: I did a conflicts search and did not find anything pertaining to American Fiber Resources or AFR, Kay

Kay C. Young Legal Specialist 713-853-6794 Phone 713-646-3393 Fax kay.young@enron.com

----- Forwarded by Kay Young/HOU/ECT on 08/11/2000 11:26 AM -----

Kimberly Bullock 08/11/2000 11:23 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Kay Young/HOU/ECT@ECT Subject: CA

Hi Susan,

Please put together our general Confidentiality Agreement and ISDA Agreement and send to the following:

AFR (American Fiber Resources) Attn: Robert C. Garland, President and CFO 701 Fourth Avenue PO Box 277
Menominee, MI 49858 (906) 864-9120 (906) 863-2491-fax Email: RGarland@GLPF.com

Should you have questions please call Glenn Connors, ext 3-6324. Thank you.

Message 282 of 1118

ANZ ISDA	
Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'samantha.boyd@enron.com']
File	shackleton-s/sent/5799.

Frank:

Please email as soon as possible to the address below. I have already sent a short email to Geoffrey Pack explaining the delay. Thanks.

Samantha: Please enter latest into, including email, address, etc., into Lotus Notes. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/14/2001 10:38 AM

Sarah Heineman 03/14/2001 10:18 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ANZ ISDA

Sara,

Thanks for your help. Geoffrey Pack, SVP (Enron's Global Relationship Manager for ANZ) requested that you send all of the information to him at:

gpack@anz.com

His number is 212.801.9736. He also requested that you just give the details on what has occurred up to this point (info sent to M. Midden etc.)

Thank you for your help,

Sarah 57208

Message 283 of 1118

Re: FW: Sempra

Sender	sara.shackleton@enron.com
Recipients	['celeste.cisneros@enron.com']
File	shackleton-s/sent/6162.

Celeste: I've asked Brent to give you a call. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Celeste Cisneros/ENRON@enronXgate 04/26/2001 02:27 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Sempra

Sara, the weather group is wanting to get Sempra prepared to do weather trades, how should we proceed?

-----Original Message-----

From: St Clair, Carol Sent: Thursday, April 26, 2001 2:23 PM To: Cisneros, Celeste Subject: Sempra

Celeste: I think that we need to execute an ISDA to do weather trades with Sempra as the 2/22/96 Agreement appears to only work for commodity trades. If this needs to be pursued further, please have someone contact Sara Shackleton as I am moving to the power group. Thanks.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 284 of 1118

RSVP - Law Conference Autoreply

Sender	joseph.lippeatt@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10184.

Thank you for submitting the following responses on the RSVP Online Form for the 2001 Enron Law Conference. The information you submitted is as follows:

Attendance: Y First Name: Sara Last Name: Shackleton Position: Attorney Legal Group: Enron Wholesale Services Phone: (713) 853-5620 Fax: (713) 646-3490 Email: sara.shackleton@enron.com Admin. Name: Kaye Ellis Admin. Phone: (713) 853-5968 Admin. Email: kaye.ellis@enron.com Arrival Date: May 2, 2001 Departure Date: May 4, 2001 Hotel Accommodations: King Sized Bed Non-Smoking: Y Other: Thursday Activity: None Selected - No Activity Selected Golf Handicap: Awards Dinner: Y SAP Company: 0413 SAP Cost Center: 105657 State Bar Licensed: TEXAS Bar #: 18071900 State Bar Licensed: LOUISIANA Bar #: 11959

This message is a confirmation of the details of your RSVP form. If any of the information is incorrect or your plans change, e-mail Sara Davidson with the information. Do not make any changes on the website.

Message 285 of 1118

Re: Brazil	
Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/sent/5756.

Brent will talk with you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 03/07/2001 08:36 AM

To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Anne C Koehler/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Julia Murray/HOU/ECT@ECT Subject: Brazil

Can anyone give me an update on where things stand with our ability to enter into ISDA's with Brazilian counterparties? (i.e., can we do it? Are there any limitations?)

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 286 of 1118

Re: Offsite	
Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/sent/5977.

I have no preference but it looks like the 24th is best.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 04/05/2001 04:30 PM

To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Anne C Koehler/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Mark Greenberg/NA/Enron@ENRON cc: Subject: Offsite

We would like to hold a 1/2 day offsite either on Wednesday, May 23 or Thursday, May 24. Please let me know what your preference would be.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 287 of 1118

RE: novation

Sender	sara.shackleton@enron.com
Recipients	['steven.kessler@db.com']
File	shackleton-s/sent_items/260.

Steven:

I made a few changes but I realize this was your "form" letter. The ISDA Master is not with the branch. Just give me a call and we can resolve quickly. Thanks very much. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: "Steven Kessler" <steven.kessler@db.com>@ENRON Sent: Friday, October 26, 2001 11:21 AM To: Shackleton, Sara Subject: novation

(See attached file: enronnov.doc)

Steven Kessler Director and Counsel Deutsche Bank AG New York Branch Tel: (212) 469-8202 Fax: (212) 469-8172

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- enronnov.doc << File: enronnov.doc >>

Message 288 of 1118

Re: Repo Agreement

Sender	sara.shackleton@enron.com
Recipients	['marcelo_cosma@ml.com']
File	shackleton-s/sent/6244.

Marcelo:

Thanks for the response. I'll make the changes and return the executed documents. Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma, Marcelo (Toronto-BCE)" <Marcelo_Cosma@ml.com> 05/22/2001 07:28 AM

To: "'Sara Shackleton'" <Sara.Shackleton@enron.com> cc: Subject: Repo Agreement

Sara:

Thank you for your fax of May 21st. I apologize for the oversights you noted. Your suggestion of making the changes on your end is fine.

Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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Message 289 of 1118

Re: Enron - London	
Sender	sara.shackleton@enron.com
Recipients	[gail.shanley@gs.com]
File	shackleton-s/sent/6295.

Gail:

My London trader, Derek Lee, tells me that no one has received the GSI Master Repurchase Agreement. The Enron Credit Limited lawyer in London is Denis O'Connell. Can you please check with your London counterpart about having the document forwarded to Derek and Denis is our London office? Thanks so much. Please let me know what you find out.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Shanley, Gail" <gail.shanley@gs.com> 04/25/2001 11:30 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: Enron - London

Sara,

Derek Lee left me a message this past Monday regarding repo agreements (I assume for your London office). Can you please let me know if he has received GSI Master Repurchase Agreements or if I need to follow up on my end. Thank you.

Gail Shanley 1 NYP, 37th Fl New York, NY 10004 212.902.4053 gail.shanley@gs.com

Message 290 of 1118

Re: Congrats	
Sender	sara.shackleton@enron.com
Recipients	[carol.clair@enron.com]
File	shackleton-s/all_documents/9768.

Carol: Thanks so much for your good wishes. I really value your opinion and consider you a major asset to the swap group (I actually give myself a "pat on the head" for being able to entice you to join the group). I look forward to lunch next week.

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 03/13/2001 10:24 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Congrats

Sara: I just wanted to finally congratulate you on your well-deserved promotion to AGC! I am really, really happy for you, as you are one of the primary reasons why I have chosen to stay in this group. I would like to take you out to lunch to celebrate and will ask Suzanne to get in touch with Kay to get a date that is good for both of us. Again, congrats on a tremendous accomplishment.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 291 of 1118

RE: Credit Suisse First Boston ("CSFB") account with Enron Credit

Sender	tom.doukas@enron.com
Recipients	['marie.heard@enron.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/inbox/433.

I have a fax copy of the executed ENA agreement from CSFB. Jeff Kinneman was able to have his contact supply it. Please advise where I should fax it to.

Tom

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 16, 2001 11:14 AM To: Doukas, Tom Cc: Heard, Marie; Panus, Stephanie Subject: Credit Suisse First Boston ("CSFB") account with Enron Credit Inc.

Tom:

We would like to use the same format which was agreed to by ENA and CSFB. That agreement was sent for execution on July 6, 2001 and we have never received an executed version.

Please feel free to contact Scott Kreuzinger (phone is 617-556-5730 or fax is 617-542-1814) to ensure that ENA has executed docs which can also be duplicated for ECI. Perhaps your contact at CSFB can assist. Scott Kreuzinger was ENA's contact for having docs executed.

We have been unable to extract any response from Scott Kreuzinger.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 292 of 1118

Re: Southern California Water Co. - ISDA

Sender	tracy.ngo@enron.com
Recipients	['samantha.boyd@enron.com', 'sara.shackleton@enron.com', 'chris.foster@enron.com']
File	shackleton-s/notes_inbox/267.

thank you for the quick turnaround.

From: Samantha Boyd@ENRON on 11/17/2000 11:57 AM To: dkkolk@compenergy.com cc: Chris H Foster/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT

Subject: Southern California Water Co. - ISDA

Mr. Kolk:

At the request of Chris Foster, I am forwarding to your attention the draft of the following documents:

1. Schedule to the Master Agreement; and 2. Paragraph 13 to the Credit Support Annex

Please note that the "Boiler Plate" of the ISDA Master Agreement and the Credit Support Annex can not be transmitted via e-mail. In order to expedite your review of the Schedule and Paragraph 13, Chris advised me to send you these documents via e-mail.

If you have any questions or need additional assistance, please feel free to contact me at (713) 853-9188 or you may contact Mary Cook at (713) 345-7732. We look forward to hearing from you soon.

Samantha M. Boyd Sr. Legal Specialist Enron North America Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 293 of 1118

Re: Enron Credit Inc. ("ECI")	
Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'tom.doukas@enron.com']
File	shackleton-s/all_documents/10497.

Tom, I am now faxing a copy to you and forwarding a copy to Sara.

Sara, Tom would like us both to call him to discuss further whether we can construe that "repos" as included in the definition of products set forth in the Consent. I told Tom, yes, I would believe so. But we would like to conference you in to doublecheck. So hopefully you are available in next few minutes.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/12/2001 09:22 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Tom Doukas/NA/Enron@ENRON Subject: Enron Credit Inc. ("ECI")

Cheryl:

Can you please forward a copy of the ECI resolution(s) (or consent) which was used to establish the Bear account and Securites Loan Agreement? We need to determine all products authorized for ECI trading. Also, copies of Enron Credit Limited authorizations would be useful. Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 294 of 1118

Florida Power & Light / DLJ International Capital	
Sender	samantha.boyd@enron.com
Recipients	['petej@andrews-kurth.com', 'clement.abrams@enron.com', 'cindy.richardson@enron.com', 'carol.essig@enron.com']
File	shackleton-s/all_documents/3035.

Per Jason Peters, we are not ready to executed the Guaranty for Florida Power & Light and DLJ International Capital. Jason needs to provide the counterparties with a copy of your mark-ups and comments for each Guaranty so that they can review our changes. If you have any questions, please feel free to contact Sara Shackleton at x-35620 or me at x-39811.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

----- Forwarded by Samantha Boyd/NA/Enron on 08/15/2000 04:18 PM -----

Sara Shackleton@ECT 08/15/2000 03:41 PM

To: Samantha Boyd/NA/Enron@Enron cc: Subject: Florida Power & Light

FYI ----- Forwarded by Sara Shackleton/HOU/ECT on 08/15/2000 03:41 PM -----

"JASON PETERS" <PETEJ@andrews-kurth.com> 08/15/2000 03:06 PM

To: <Sara.Shackleton@enron.com> cc: Subject: Florida Power & Light

We're not ready to execute. We are responding to the latest round of comments.

Thanks,

Jason

Message 295 of 1118

Re: Form Changes

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/sent/5685.

Carol: I've not reviewed these (my apologies) and I'd ask until Thursday, if possible. Please let me know. I will block off this afternoon to focus.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 02/27/2001 08:52 AM

To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Anne C Koehler/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Subject: Form Changes

Does anyone have any comments to the chnages that I've marked on the Schedule to the Collateral Support Annex? Please call me or e-mail me if you do so that we can implement them soon.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 296 of 1118

Re: Pinot Purchase

Sender	sara.shackleton@enron.com
Recipients	['mrapp@oakvillegrocery.com']
File	shackleton-s/all_documents/10337.

Hi, Michael:

Per my voice mail, I am interested in purchasing a case of Skewis half-bottles (any vineyard). Do you have 12 bottles available? That is my first request. If you don't have 12 Skewis, then I may have to search for alternatives.

Shipment for this case will be directly to:

Michael C. McKeogh 601 Poydras Street, 23rd Floor New Orleans, LA 70130

We can discuss payment when I hear from you. Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Michael Rapp" <mrapp@oakvillegrocery.com> 02/27/2001 06:51 PM Please respond to "Michael Rapp"

To: <sara.shackleton@enron.com> cc: Subject: Pinot Purchase

Sara, It was nice talking to you and thank you for your order. The cost will be $287.95 - 10\% = 259.16 + 35.50$ shipping comes to a grand total of 294.66. I will follow shortly with a list of dazzling pinots. Let me know if there is a favorite out there that your trying to find. Thank you Michael Rapp (707) 433- 3200??

Message 297 of 1118

RE: Owensboro Municipal Utilities

Sender	per.sekse@enron.com
Recipients	['sara.shackleton@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/inbox/856.

Thanks for the update. Did he leave his tel number with you? Per

Per Sekse, Vice President Enron Global Markets LLC 520 Madison Avenue, 28th Floor New York, NY 10022 Tel: (212) 715-5959 Cell: (203) 984-2427 Fax: (212) 715-5950 Home: (203) 655-1069 per.sekse@enron.com Private email: PerSekse@aol.com

-----Original Message-----

From: Adams, Laurel Sent: Monday, March 25, 2002 11:33 AM To: Sekse, Per Cc: Shackleton, Sara Subject: Owensboro Municipal Utilities

Per,

Robert Hunzinger from Owensboro gave me a call this morning to find out the status of his contingent call option with Enron.

I told him that since ENA was one of the bankrupt entities, that it would be highly unlikely that he would get paid if his option were to strike this summer. His determination period is June 17, 2002-August 30, 2002.

Not sure if you'd like to give Robert a call or not, just wanted to let you know that he had called in regarding his swap.

Sara--I gave Robert your name and numbers in case he wanted to talk to an attorney, or send in a letter terminating the transaction.

Message 298 of 1118

Re: offsite, etc.

Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2324.

Sara: The offsite list is still on my list of things to do. On Montana Power, no draft has been sent. Please touch base with Tanya as my recollection was that she had a credit issue that needed to be addressed in the draft. On the swaption, the Exercise date is 6/29 and the confirm requires oral or written notice of its intent to enter into the transaction, followed up with written confirmation of notice of exercise. Is there anything that we can or should do ahead of time?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Sara Shackleton 04/30/2001 06:33 PM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: offsite, etc.

Carol:

Have you had a chance to recap our "offsite" discussion?

Also, what can you tell me about Montana Power Company (1st draft ISDA)?

Stop by in the a.m regarding exercise of your swaption. What does your confirm say about the form of notice of exercise and the exercise date (or period)?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 299 of 1118

FSA Synthetic CBO (Mezzanine USD 120m - USD 270m)

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/all_documents/9545.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/01/2001 01:25 PM -----

Denis O'Connell 03/01/2001 12:23 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, Jeff Kinneman/HOU/ECT@ECT, Robina Barker-Bennett/LON/ECT@ECT Subject: FSA Synthetic CBO (Mezzanine USD 120m - USD 270m)

Sara

Further to my voicemail I would be grateful if you could have the attached ISDA Schedule bound into an ISDA Master Agreement and have Jeff signed on behalf of ENA.

Four originals should be forwarded by courier to Ed Newman at the address below. Prior to forwarding by courier a the cover and signatory pages together with the Schedule should be faxed to Ed at the fax number below.

Ed Newman Legal Counsel Financial Security Assurance Inc. 350 park Avenue New York, NY 10022

Tel. 212-826-0100 Fax. 212-3390828

This transaction is to close tomorrow.

Many tks for your help with this.

If you have any questions please feel free to contact me on my mobile +447733001094

Denis

*Message 300 of 1118***Re: MEGA Assignment**

Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com', 'christian.yoder@enron.com']
File	shackleton-s/all_documents/11478.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 06/06/2001 02:36 PM -----

Rhonda L Denton 06/06/2001 02:23 PM

To: DrewK@merchantenergy.com cc: Carol St Clair/HOU/ECT@ECT, Wendy Conwell/Enron@EnronXGate Subject: Re: MEGA Assignment

Kristina, here are the proposed changes to the Assignment Consent Agreement. Our attorney is Carol St. Clair . Please respond to her (and copy me if via email) with your response to the proposed changes. She indicated that we are negotiating an amendment to our master with Morgan in order to accommodate this assignment so we will not be executing the Assignment Consent Agreement until Enron and Morgan sign the amendment to our Master with them. We need to know from MEGA and Morgan what the transfer effective date is that establishes the cutoff date for these trades as between ourselves and each of Morgan and MEGA. She indicated that her revised draft of the Consent makes it clearer how this cutoff date works. Carol's contact information is below.

Carol St. Clair 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

*Message 301 of 1118***Brokerage Files**

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com']
File	shackleton-s/all_documents/11170.

FYI only

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/22/2001 01:42 PM -----

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 05/22/2001 12:53 PM

To: Sara Shackleton/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron cc: Subject: Brokerage Files

Hi Sara and Stephanie,

It is my understanding that the paralegals working on the brokerage accounts are to (1) send documents to counterparties; (2) track their return and (3) keep the fully executed documents received from counterparties in the file cabinet next to Stephanie's office.

In light of our being short-staffed in light of Samantha's absence, I have tried to be helpful to our team by assisting in preparing the documents for execution & getting some signatures. I hope that has been helpful. But once Stephanie [or whichever legal assistant assumes her role] notes that the documents have gone out, then that person should track the documents and be the keeper of records.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Message 302 of 1118

Update

Sender	carol.clair@enron.com
Recipients	['mark.taylor@enron.com', 'jrazguzman@rhm.com.mx', 'jaime.williams@enron.com', 'pperezalonso@rhm.com.mx']
File	shackleton-s/notes_inbox/3356.

Jaime: Just wanted to update you on the call that I had this morning with Jose and Pablo. As a general matter, I think that we are going to be okay with offering physical and financial derivative products to Mexican counterparties online. They are in the process of reviewing the online documents and will get back to me sometime next week with any thoughts or recommendations. One area that we will need to be careful in is in how we market Enron Online for there are restrictions in connection with the offering of "securities". While it is fairly clear that commodity based derivatives are not securities there may be other products where it is not so clear cut. I think that it would be very helpful if you would send to Jose and Pablo the Online materials (i.e, brochures etc.) that we would plan to send to prospective counterparties so that we can make sure that our marketing efforts don't violate any restrictions taht we would be subject to.

Here is their address:

c/o Ritch, Heather Y Mueller, S.C. Amberes No. 5-PH Colonia Juarez 06600-Mexico, D.F.

525-207-6533 (phone) 525-207-1382 (fax)

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 303 of 1118

RE: outside counsel

Sender	rose.liu@moorecap.com
Recipients	['sara.shackleton@enron.com', 'joe.hamilton@moorecap.com', 'jeff.popock@moorecap.com']
File	shackleton-s/all_documents/8865.

Sara- I apologize for not responding yesterday to your question. The outside counsel for legal opinions for the Moore off-shore funds (Moore Global Investments, Ltd., Moore Global Fixed Income Fund, Ltd. and Moore Emerging Markets Fund, Ltd.) is Graham, Thompson & Co. in Nassau, Bahamas. The contact at Graham Thompson that handles the relationship is Gilbert A. Ward at 242-328-6287.

With regard to Remington Investment Strategies, L.P. (the Delaware limited partnership), the legal opinion is done by Cadwalader Wickersham & Taft in New York. The contact at Cadwalader is Jeanne Naughton Carr 212-504-6427.

I am waiting for a reply as to who FIF Masters Fund Ltd. uses as their outside counsel. I will let you know once i find out.

Regards- Rose Liu

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, January 31, 2001 12:34 PM
To: rose.liu@moorecap.com Subject: outside counsel

Rose:

You were going to provide with essentials regarding your Bahamian counsel. Please forward information. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 304 of 1118

RE: Enron Credit Limited ("ECL")

Sender	delene.travella@funb.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2602.

Hi Sara, I'll look forward to receiving the docs for Enron Corp. As far as the vacation went, I wound up being sick for the first 5 days, and my husband got it after me. It was cold and rainy in Ft. Worth all but one day.....I'll stop whining, it was still good to be away for a bit, but don't think I'd do the drive again! Thanks for the update, Dee

Delene M. Travella Vice President Capital Markets, Derivatives Telephone: (704) 383-8778 Facsimile: (704) 383-0575
email: delene.travella@funb.com

-----Original Message----- From: Sara.Shackleton@enron.com [SMTP:Sara.Shackleton@enron.com] Sent: Thursday, April 05, 2001 12:24 PM To: delene.travella@funb.com Cc: Rod.Nelson@enron.com; Denis.O'Connell@enron.com Subject: Enron Credit Limited ("ECL") Dee: Hope you had a good vacation. I sent a copy of the Enron North America Corp. ISDA Schedule/CSA to Rod Nelson who is the credit person in London reviewing credit for ECL. Rod can be reached at 011-44-20-7783-5275, I need to send the Enron Corp. Schedule to you. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 305 of 1118

Re: updated credit luncheon discussion list

Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/carol_stclair/61.

Sara: Just a few additional thoughts on this list as possible topics:

1. credit event upon merger - seems like more counterparties want to define the "materially weaker" standard. Alos, I'm wondering how credit monitors mergers in general.
2. additional termination events - when does credit consider additional events like change of control, MAC, chnages to partnership agreement or structure etc.
3. minimum transfer amount - how it works and how it is different from the threshold
4. threshold amount - what triggers makes it reduce to zero
5. enforcement of collateral remedies - going over the timetable for enforcing our remedies when a counterparty fails to post and the different cure periods.
6. letter of credit bank qualifications - confirming with credit that these are still current
7. cash collateral in Canada

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Sara Shackleton 02/20/2001 09:47 AM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: updated credit luncheon discussion list

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 306 of 1118

Re: Canadian Repo Documentation

Sender	sara.shackleton@enron.com
Recipients	['marcelo_cosma@ml.com']
File	shackleton-s/all_documents/9186.

Marcelo:

Thanks for the info. I'm attaching comments to Appendix C. I also have someone reviewing Appendix B and am preparing Appendix A.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Cosma, Marcelo (Toronto-BCE)" <Marcelo_Cosma@ml.com> 01/24/2001 09:24 AM

To: "Sara Shackleton" <Sara.Shackleton@enron.com> cc: Subject: Canadian Repo Documentation

Sara:

As per our conversation yesterday, attached for your review and comment please find a draft Appendix C to the IDA Repurchase/ Reverse Repurchase Transaction Agreement marked to show changes from Annex I to the BMA Master Repurchase Agreement between Enron North America Corp. and Merrill Lynch.

<<DOC0123C.doc>> Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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- DOC0123C.doc

Message 307 of 1118

Re: **Futures Agreement**

Sender	sara.shackleton@enron.com
Recipients	['alterson_thomas@jpmorgan.com']
File	shackleton-s/sent/6075.

Tom: Thanks for the info. I did not receive anything from you yesterday (Wed., April18). Please update. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Thomas P Alterson" <alterson_thomas@jpmorgan.com> 04/18/2001 10:53 AM

To: Sara.Shackleton@enron.com cc: Subject: **Futures Agreement**

Sara:

I have tried to fax you the cover and signature page from our Client Agreement 3 times now and the fax is not going through. I am sending to fax # 713-646-3490. Please advise if there is another number I can fax this too.

In addition, I have been instructed by our compliance people to send you back the original copies of the Client Agreement so that a duly authorized representative of Enron can sign off on Section 24.(b). The Agreement has been sent to you. Please have the correct boxes checked, initialed and then sent back to us for execution by JPMFI. We will turn them around in one day.

Attached below is a copy of the cover and sig page (fax copy) in .pdf format.

(See attached file: Enron cov+sig.pdf)

If you have any questions please call me at 212-646-4315.

Thank you, Tom Alterson

- Enron cov+sig.pdf

Message 308 of 1118

Re: ISDA Draft Quark Power LLC and ENA

Sender	carol.clair@enron.com
Recipients	['caroline.abramo@enron.com', 'sara.shackleton@enron.com', 'frank.sayre@enron.com']
File	shackleton-s/carol_stclair/15.

Caroline: Please make sure that they know that in addition to the signed confirms, we need the legal opinion. I'm in meetings after 2 today so try to catch me before then.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Caroline Abramo@ENRON 05/01/2001 12:27 PM

To: Brent Hendry/NA/Enron@Enron cc: Carol St Clair/HOU/ECT@ECT, Russell Dyk/Corp/Enron@ENRON, Mog Heu/NA/Enron@Enron, Robyn Zivic/NA/Enron@Enron Subject: Re: ISDA Draft Quark Power LLC and ENA

Brent/ Carol- before you go to your conference:

Brent- can you please send out the doc to SAC- checking on the manager (its just the one fund) but please just leave blank for now. Carol- AIG funds.. I am getting the confirm back..their lawyer has a question.. we will call you with him today. Hope to get the ISDAs out to them too.

From: Brent Hendry on 05/01/2001 11:48 AM To: dbicker@paloma.com cc: Paul Radous/Enron@EnronXGate, Caroline Abramo/Corp/Enron@Enron

Subject: ISDA Draft Quark Power LLC and ENA

Dan,

Here is the latest draft of the ISDA Agreement. Please review and let me know if you have additional comments or questions.

Regards, Brent Hendry

Enron North America 1400 Smith Street Houston Texas 77002 Phone: 713 853 7124 Fax: 713 646 3490

Message 309 of 1118

FW: Sempra

Sender	sara.shackleton@enron.com
Recipients	['brent.hendry@enron.com']
File	shackleton-s/sent/6161.

Brent:

It's a weather question. Looks like Carol asked Susan or Stephanie to let Celeste know if weather trades were possible (she thought it was). If weather is a commodity, I guess it works but you'd probably need to incorporate ISDA terminology and your definitions, etc. Check the blue file - you'll see Carol's email.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/26/2001 05:07 PM -----

Celeste Cisneros/ENRON@enronXgate 04/26/2001 02:27 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Sempra

Sara, the weather group is wanting to get Sempra prepared to do weather trades, how should we proceed?

-----Original Message-----

From: St Clair, Carol Sent: Thursday, April 26, 2001 2:23 PM To: Cisneros, Celeste Subject: Sempra

Celeste: I think that we need to execute an ISDA to do weather trades with Sempra as the 2/22/96 Agreement appears to only work for commodity trades. If this needs to be pursued further, please have someone contact Sara Shackleton as I am moving to the power group. Thanks.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 310 of 1118

An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	['tjones3@notes.enron.com', 'sshackl@notes.enron.com', 'mtaylo1@notes.enron.com']
File	shackleton-s/deleted_items/632.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: od@mta2.srv.hcvlny.cv.net Date: Sat, 05 Jan 2002 01:47:51 -0500 (EST) Subject: Melrose Course Friday matches Attachment Type: Scenarios/Incoming/Inbound COM Catcher: A filename matching the file mask was detected: 'twosome?.com'. Scenarios/Incoming/Inbound DOC Catcher: A filename matching the file mask was detected: 'golf revised.doc'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 311 of 1118

paine webber

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/all_documents/8891.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/01/2001 06:07 PM -----

"Donald Blake" <donald.blake@painewebber.com> 02/01/2001 02:39 PM

To: "'sara.shackleton@enron.com'" <sara.shackleton@enron.com> cc: Subject:

Dear Sara,

Thanks again for your interest in our services. In order to prepare a retirement plan for you please send copies of statements from the various financial institutions that currently hold your retirement assets. I am ready to meet with you at your convenience to discuss your options and to answer any questions.

Sincerely, Don Blake

713-654-4714

PaineWebber Inc. 1111 Bagby Ste 5100 Houston, TX 77002

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Message 312 of 1118

JPM's commission schedule

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'Corinne A Samon@JPMORGAN']
File	shackleton-s/all_documents/10430.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/10/2001 09:13 AM -----

"Michael C Schneider" <schneider_michael@jpmorgan.com> 04/10/2001 08:46 AM

To: Sara.Shackleton@Enron.Com cc: "Thomas P Alterson" <alterson_thomas@jpmorgan.com>, "Charles A Wheeler" <wheeler_charles@jpmorgan.com>, "Glenn H. Di Vincenzo" <di_vincenzo_glenn@jpmorgan.com> Subject: JPM's commission schedule

Sara- Just in case Tom didn't have a chance to email to you prior to leaving for his vacation, I've enclosed the commission schedule. I've priced equities, fixed income and commodity products. Please let me know if you have any questions.

Regards, Mike

(See attached file: Enron Comm 4-01.xls)

Michael C Schneider 02/26/2001 03:47 PM

To: sara.shackleton@enron.com cc: Corinne A Samon@JPMORGAN Subject: JPM's interest schedule

Sara- Per your conversation with Corinne, please find enclosed JPM's interest rate schedule. Pls do not hesitate to call me at (212) 648-1164 if you have any questions or require any other information. Regards, Mike (NA Technology & Clearing Sales)

(See attached file: Enron Int Schedule 2-01.xls)

- Enron Comm 4-01.xls - Enron Int Schedule 2-01.xls

Message 313 of 1118

Re: CSI

Sender	sara.shackleton@enron.com
Recipients	['neel.lemon@bakerbotts.com', 'stephanie.panus@enron.com']
File	shackleton-s/sent/5231.

Neel:

We will overnight the agreement to you. Sara

Neel.Lemon@bakerbotts.com 01/02/2001 09:01 AM

To: sara.shackleton@enron.com cc: ffelvey@csipaper.com Subject: CSI

Sara:

Here is my contact info. Please send me yours.

Please feel free to call Forest Felvey at CSI to check signals on the confidentiality agreement issue you mentioned. He will verify that Baker Botts is assisting CSI on swap issues and that it is okay to communicate with me. [I've copied Forest with this email for his info.]

As we discussed, I will get you copies of the new LPS documentation relating to the 2000 CSI franchise tax restructuring and you will get me copies of the existing Enron/CSI contractual documentation relating to the original 1998 arrangements and any amendments, etc., since then.

Thereafter, we can figure out what our next steps are.

Thanks.

Neel Lemon Baker Botts LLP 2001 Ross Avenue Suite 700 Dallas, Texas 75201 214.953.6954 - office 214.661.4954 - fax 469.323.6120 - NEW MOBILE 214.361.6717 - home neel.lemon@bakerbotts.com - email

The information contained in this email is confidential and may be subject to the attorney-client privilege. As a result, any unauthorized use or transmission is prohibited. If you are not the intended addressee, please delete this email and notify the sender.

*Message 314 of 1118***RE: Stadacona confirm**

Sender	jeff.blumenthal@enron.com
Recipients	['sara.shackleton@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/10934.

Sara and Susan,

I've reviewed the attachment and the tax rep's. in Section 6 are fine for both parties. I know we spoke yesterday about the fact that the confirm is currently drafted such that it will be sent to Bob Crane in Houston but, if at all possible, can we substitute "Brad Kirchhofer" in place of Bob? Also, I'd prefer that Stadacona's fax number (and phone number, if applicable) be included in the confirm in place of any Enron U.S. entity's. Finally, as you suggested, we should include a line on the signature page where Brad will sign that will allow him to designate his physical presence (i.e., Canada) when he executes the agreement.

Please call me at ext. 35777 if you'd like to discuss. Best regards. -----Original Message----- From: Shackleton, Sara Sent: Tuesday, May 01, 2001 1:53 PM To: Blumenthal, Jeff Subject: Stadacona confirm

Jeff: Check the reps at the end of the confirm. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/01/2001 01:52 PM -----

Laurel Adams 05/01/2001 11:10 AM To: Sara Shackleton/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT cc: Subject: Stadacona confirm

Is it safe to send this out??

<< File: M439607 ATT.doc >>

*Message 315 of 1118***Re: Trading Edge**

Sender	mike.fowler@enron.com
Recipients	['paul.radous@enron.com', 'jgreenberg@tradingedge.com', 'samantha.boyd@enron.com', 'a.capolongo@msdw.com']
File	shackleton-s/notes_inbox/707.

We intend to execute agreements with Trading Edge for ENA and ECT Investments. Therefore, the prime broker letter Trading Edge requested should address both entities.

Thanks.

Mike 713-853-9990

Samantha Boyd 10/05/2000 11:49 AM To: a.capolongo@msdw.com, jgreenberg@tradingedge.com cc: Mike Fowler/Corp/Enron@ENRON, Paul Radous/Corp/Enron@ENRON, jpeters@andrews-kurth.com, Sara Shackleton/HOU/ECT@ECT

Subject: Re: Trading Edge

Anthony:

In connection with preparing the Prime Broker Letter for Trading Edge, Inc. I wanted to provide you with information for our contact person at Trading Edge, Inc.:

Mr. Joe Greenberg Trading Edge, Inc. Clearing/Credit Department (212) 813-6043 jgreenberg@tradingedge.com

Mr. Greenberg will be expecting your call. I have also provide him with your contact information. Please remember to forward a copy of all correspondence with Mr. Greenberg to my attention for our files.

Joe:

Mike Fowler will be calling you to verify which Enron entity this transaction is for. Please provide that information to Anthony for the Prime Broker Letter.

Thanks for your assistance with this matter.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 316 of 1118

Re: Meeting in Houston	
Sender	robert.bruce@enron.com
Recipients	['sara.shackleton@enron.com', 'janine.juggins@enron.com', 'guenther.klar@enron.com', 'susan.musch@enron.com']
File	shackleton-s/notes_inbox/3170.

I'm available for that -- Bob

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Janine Juggins@ECT 02/22/2001 11:35 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Robert Bruce/NA/Enron@Enron, Guenther Klar/LON/ECT@ECT, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Re: Meeting in Houston

Slight amendment to your proposal:

(1) Credit Tuesday 27th at 10 am (2) Softs Tuesday 27th at 11 am

Already have a meeting scheduled at 9am that day. Will this work for you ? Thanks Janine

From: Sara Shackleton on 22/02/2001 10:08 CST To: Janine Juggins/LON/ECT@ECT cc: Robert Bruce/NA/Enron@Enron, Guenther Klar/LON/ECT@ECT, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Meeting in Houston

Janine: I would like to meet with you (and Guenther) regarding two topics:

(1) softs trading (together with Bob Bruce)

(2) credit trading (do we need anyone else?)

Either of Tuesday or Friday morning works fine. Let me propose 9 am Tuesday for softs and 10 am for credit (and I am flexible). Bob and I are located only several offices apart on the 38th floor of the Enron building.

We look forward to hearing from you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 317 of 1118***Re: Enron Credit Inc. ("ECI")****Sender** cheryl.nelson@enron.com**Recipients** ['sara.shackleton@enron.com']**File** shackleton-s/all_documents/10114.

Sara, nothing has changed since yesterday, I don't think.

ECI Brokerage Agreement: Anna and I completed negotiations on the agreement and she agreed last week to implement the changes by today.

Assignment: Anna and I have a scheduled conference call today to resolve any outstanding issues. If you talked to her today, please let me know before I initiate the call.

Guaranty: To be discussed today during our call.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 03/27/2001 09:44 AM

To: ameytina@bear.com cc: Cheryl Nelson/NA/Enron@Enron Subject: Enron Credit Inc. ("ECI")

Anna:

I know that you have been negotiating with Cheryl Nelson about the new ECI account. I am receiving urgent calls from ECI traders and hope you give me some answers since Cheryl is in a meeting.

Can we execute the ECI agreement today? Have we agreed on the assignment? Does the assignment also provide for the transfer of the Master Securities Loan Agreement? Regarding the new ENE guaranty, Cheryl has told me that this was already requested. I'll check on the expedited delivery date.

Please call me when you receive this email. Thanks very much for your attention to this matter.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 318 of 1118***RE: Limitation of Liability Insert - Enron Credit Inc./Goldman****Sender** tom.doukas@enron.com**Recipients** ['sara.shackleton@enron.com', 'cheryl.nelson@enron.com']**File** shackleton-s/all_documents/10879.

Thanks for all the activity on this. Can you give us a general status email towards the end of the day? Looks like it is rolling quite smoothly.

Really appreciate it.

Tom

-----Original Message-----

From: Nelson, Cheryl Sent: Friday, April 27, 2001 6:57 PM To: Panus, Stephanie Cc: Doukas, Tom Subject: Limitation of Liability Insert - Enron Credit Inc./Goldman Sachs

Stephanie, Goldman accepted this change. Can you contact the lawyer (see lotus notes) and ask her to send us an electronic version of the agreement (preferably with this language implemented)?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 04/27/2001 06:54 PM -----

Samantha Boyd 03/01/2001 10:56 AM To: a.capolongo@msdw.com, pamela.coleman@gs.com cc: Sara Shackleton/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron Subject: Limitation of Liability Insert - Enron Credit Inc.

Per our previous conversation. Attached is our proposed language regarding limitation of liability. Please have your legal department review and advise me of any comments. Your immediate attention to this matter is greatly appreciated.

<< File: Limitation of Liability insert.doc >>

Samantha M. Boyd Enron North America Corp. 1400 Smith Street, EB 3802a Houston, Texas 77002 713-853-9188 (phone) 713-646-3490 (fax) samantha.boyd@enron.com

Message 319 of 1118

Memorandum on Issues Relating to Exchange Membership

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/sent/5618.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/16/2001 06:00 PM -----

Robert Bruce@ENRON Sent by: Robert Bruce@ENRON 02/12/2001 02:08 PM

To: Trena McFarland/NA/Enron@Enron, Darren Maloney/Corp/Enron@ENRON cc: limor.nissan@enron.com, Alan Aronowitz/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT Subject: Memorandum on Issues Relating to Exchange Membership

Trena, attached please find a brief memorandum on the referenced subject. As we discussed, this memo outlines the issues in very general terms. Some of the legal concepts touched upon -- e.g., the exact nature of the fiduciary relationship between a licensed broker and its customers -- are rather complex, and would bear out very involved legal research and analysis in a more detailed memorandum.

Mark Taylor has advised me that the legal department's approval of the purchase of any exchange membership (clearing or non-clearing) will require the personal approval of Mark Haedicke, the chief legal officer of Enron Wholesale Services.

As always, please feel free to call me with any comments or questions. Thanks -- Bob

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 320 of 1118

RE: repo agreement with Enron North America Corp.

Sender	marcelo_cosma@ml.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3271.

Sara:

In terms of time references, the convention in Canada is that all time references are to Toronto time. In addition, with respect to defaults, the Canadian practice (including Merrill Lynch Canada's) as to fails on the initial delivery will depend

on the duration of the trade. For long dated trades, the trade will be revised to reflect the original duration less the delay for the initial delivery. For short dated trades, payment will be made as if the securities had been delivered.

If you require additional information, please contact me.

Regards,

Marcelo A. Cosma Office of General Counsel--Canada Tel.: 1-416-369-7478 Fax: 1-416-369-4551 E-mail: marcelo_cosma@ca.ml.com

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-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Monday, February 12, 2001 11:57 AM
To: marcelo_cosma@ca.ml.com Subject: repo agreement with Enron North America Corp.

Marcelo:

Just checking to see if you had any information for me (default, time zone). Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 321 of 1118

Contact Information for Samantha Boyd

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'keegan.farrell@enron.com', 'mary.cook@enron.com']
File	shackleton-s/all_documents/10185.

Hello, does any one have an alternative phone number for Samantha Boyd? and if so, can you pass it on to Mary Cook and/or Mark Taylor. There may be a new problem with the number listed below.

Kaye, I know that Erica may have it but I do not have the correct spelling of her last name. Can you find out for Mary?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 03/29/2001 03:30 PM -----

Keegan Farrell 03/19/2001 02:33 PM

To: Nony Flores/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Mary Cook/HOU/ECT@ECT, Angela Davis/NA/Enron@Enron, Brent Hendry/NA/Enron@Enron, Anne C Koehler/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Becky Spencer/HOU/ECT@ECT, Taffy Milligan/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT, Esmeralda Gonzalez/ENRON@enronXgate, Pat Radford/HOU/ECT@ECT, Janette Elbertson/HOU/ECT@ECT cc: Subject: Contact Information for Samantha Boyd

Samantha Boyd can be reached by the following:

281-893-8693 (unlisted)

12315 Wilde Laurel Ln Houston, TX 77014

If anyone should need ANY assistance, please do not hesitate to contact me at x5-3317. Thank you for your attention to this matter.

Message 322 of 1118

Re: hedge fund "meeting"

Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2445.

Sara: Please coordinate with Kaye on this. She has access to my schedule. I think that she set something up already with you, me Brent and Paul.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Sara Shackleton 04/19/01 04:37 PM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: hedge fund "meeting"

Carol:

Regarding a "hedge fund meeting" next week, I have spoken with most of the likely participants and everyone is eager to meet next week. I'll fill you in on details in person. I think the following people should attend:

Fred Lagrasta Caroline Abramo Robyn Zivic Russell Dyk you Brent me

I believe that we have a mushrooming "process" issue. I also believe that the credit group is part of the problem (we should have a separate discussion with Paul to discuss potential hedge fund credit issues - maybe there are none and maybe our legal choices are unimportant to credit). My observations are that all hedge funds need not be "last minute" deals, Caroline can be our ally and needs to learn our documents and credit needs to advise legal sooner. I have asked Caroline to prepare a list of all funds she is currently working with, has already discussed with Paul or is considering.

Afternoon is best. Shall I schedule or have you already begun?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 323 of 1118

Re: NRG Power Marketing Inc.

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/all_documents/9557.

Yes, my recollection is that Janelle was negotiating a deal with these guys in January, 2001. I had conversations with David Adams and Grant Adamson but I can't recall if the swaption was ever executed. I discussed the confirmation problem with David and noted that a small percentage of confirms were being marked inconsistently (in Dec., 2000) after months of trading without any changes at all. He was too busy to focus (and was a new lawyer, I think, which is why changes were appearing in the omnibus).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carol St Clair 03/01/2001 04:41 PM

To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Anne C Koehler/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Elizabeth Sager/HOU/ECT@ECT, Shari Stack/HOU/ECT@ECT, Janice R Moore/HOU/ECT@ECT Subject: NRG Power Marketing Inc.

Has anyone recently spoken with this counterparty's legal group about the revisions that they are marking on confirms that they have been receiving?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 324 of 1118

Re: BEAR Guarantee letter

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/nelson/51.

I see so, in another words the "credit book" consists of -- or is considered --- "obligations" etc. but there are no other agreements. Thanx for reiterating.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 03/28/2001 10:20 AM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Subject: Re: BEAR Guarantee letter

(1) The only agreement that ENA is assigning is the Securities Loan Agreement.

(2) Remember, ENA is also assigning the "credit book" (identified in Sheila's earlier email and more clearly identified in Tom Doukas' email of yesterday which I forwarded to ;you yesterday).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 03/28/2001 10:11 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: BEAR Guarantee letter

Sara, I am on hold on a conference call but wanted to talk with you about some questions/issues re: the assignment agreement. (My questions are not holding us up since Anna is proceeding to try to get a final draft as we know it executed). But for my own understanding:

1. Is ENA assigning to Enron Credit Inc. any agreements other than the Securities Loan Agreement? If so, let me know. If not, then would we need an assignment agreement as opposed to just having Enron Credit Inc. sign a Securities Loan Agreement?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 325 of 1118

AIG Legal Opinion

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com']
File	shackleton-s/sent/6245.

Frank: Do you want to handle this or shall I?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/22/2001 09:06 AM -----

Carol St Clair 05/22/2001 09:02 AM

To: Caroline Abramo/Corp/Enron@Enron cc: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Sara Shackleton/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate, Russell Dyk/Corp/Enron@ENRON Subject: AIG Legal Opinion

Caroline, As I have said from the outset, before we send them an ISDA, we need to obtain from their Bermuda counsel a legal opinion that gives us the assurances that we need that (1) all of the Bermuda transactions have been duly authorized and are enforceable by us against AIG and (2) we have a perfected security interest in any collateral that has been posted by AIG to us. A form of the legal opinion is attached to the confirm. As to point #1, we have no way of confirming this on our own and I understand from Brent Hendry that because of various peculiarities with Bermuda law, our only way of gaining comfort on this is through the legal opinion process. As to point #2, we have gotten some comfort from our legal counsel on this but again it is appropriate to have AIG's counsel opine as to this.

Please call or e-mail me, Sara or Frank if you have any additional questions.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 326 of 1118

FW: Fimat - Account opening documentation

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'ellen.su@enron.com', 'marie.heard@enron.com', 'jstcy@fimat.com']
File	shackleton-s/sent_items/256.

Jean-Pierre:

We are faxing the FIMAT USA futures customer agreement to you now. Marie Heard will be assisting me in forwarding required documentation. Enron North America Corp. will provide authorization (corporate and trading). We will call you shortly about the full package.

Thanks for your help.

Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Glover, Sheila Sent: Friday, October 26, 2001 9:29 AM To: Shackleton, Sara; Heard, Marie Subject: FW: Fimat - Account opening documentation

-----Original Message-----

From: "Jean-Pierre St-Cyr" <jstcy@fimat.com>@ENRON Sent: Friday, October 26, 2001 9:13 AM To: Glover, Sheila
Subject: Fimat - Account opening documentation

Attached is the account opening documentation in order to open an account at Fimat Derivatives Canada Inc.

(See attached file: KITANGLAIS.DOC)

Please have this documentation completed and signed by authorized people at Enron.

In order to open the account today, you could fax to my attention only the signed pages and thereafter send the whole package by courier to my attention.

For any questions on these papers, you or your legal department can contact me directly via e-mail or phone.

Regards,

Jean-Pierre St-Cyr Vice-pr?sident, Audit et Affaires juridiques / Vice-President, Audit and Legal Fimat Produits D?riv?s
Canada Inc. / Fimat Derivatives Canada Inc. T?l?p./Phone: 514-841-6208 T?l?c./Fax: 514-841-6217 - KITANGLAIS.DOC

Message 327 of 1118

Re: AEP Master Amendments

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/all_documents/11152.

I have reviewed, initialed and now forwarded the Amendment and file back to you.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Stephanie Panus 05/21/2001 04:11 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: AEP Master Amendments

Cheryl, Sara wanted me to check on the AEP amendment that you are reviewing regarding the confirming party. -----
Forwarded by Stephanie Panus/NA/Enron on 05/21/2001 04:10 PM -----

Sara Shackleton@ECT 05/21/2001 03:59 PM

To: Stephanie Panus/NA/Enron@Enron cc: Subject: AEP Master Amendments

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/21/2001 03:59 PM

Larry Joe Hunter 05/21/2001 03:28 PM

To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: AEP Master Amendments

Mark/Sara,

We are attempting to get two amendments to the ISDA with AEP right now. Mark, you are working on the Amendment allowing for EOL Transactions to not need written Confirmations and Sara is working on an amendment that will change the Confirming Party to ENA (for some reason, AEP was allowed to be the Confirming Party when the Master was drafted.) At any rate, is it possible that we send both of these amendments to AEP at the same time? We want to make sure that AEP views these amendments together and sign off on both. We think they'll be more comfortable signing them both at once rather than a couple of weeks apart.

Let me know.

Thanks, Joe Hunter

Message 328 of 1118

Relocation Scheduled for 9/26 Churn

Sender	joya.davis@enron.com
Recipients	['mark.taylor@enron.com', 'janette.elbertson@enron.com', 'chaundra.woods@enron.com', 'elizabeth.sager@enron.co...]
File	shackleton-s/notes_inbox/906.

Your move has been added to the 9/26 Churn (Tuesday evening after 5pm). Please order boxes and have your equipment, file cabinets, etc. marked accordingly.

Elizabeth Sager - EB3832 to EB3805 Sara Shackleton - EB3839A to EB3801A Brent Hendry - EB3890 to EB3804 Janet Moore - EB3853 to EB3890

Robert George, Sr. Counsel will office in EB3832 starting on October 2, 2000. He will need a telephone and computer.

John Viverito will be turning on October 2, 2000 from Tokyo and will need his telephone changed back to original set up. His Extension is 57814 in office EB3853.

Janette/Chaundra:

We will need telephones & computer equipment in the new offices as well by Friday, October 29th (before our visiting attorneys arrive on Monday, October 2nd). If we can get the new telephone extensions ASAP, we can add that to the visiting attorney log, and forward the information to the visiting parties and their assistants, so people will have a telephone number to contact them here in Houston.

Thanks.

Joya' F. Williams Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

----- Forwarded by Joya Davis/HOU/ECT on 09/22/2000 08:28 AM -----

Move-Team@ENRON Sent by: John Salinardo@ENRON 09/21/2000 06:05 PM

To: Joya Davis/HOU/ECT@ECT cc: Danita Cole/Corp/Enron@Enron Subject: Re: CHURN REQUEST

your request has been added to the 9/26 churn. Thank you

To: Move-Team/EPSC/HOU/ECT@ECT cc: Subject: CHURN REQUEST

Joya' F. Williams Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

Message 329 of 1118

Re: Indian Tribal Government

Sender	susan.flynn@enron.com
Recipients	['sara.shackleton@enron.com', 'jeff.blumenthal@enron.com']
File	shackleton-s/all_documents/2344.

Sorry - it took me so long to get back to you. I was out of the office on Friday. Please see my responses below. Please call me if you have any other questions. Thank you!

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Jeff Blumenthal 06/07/2000 07:13 PM

To: Susan Flynn/HOU/ECT@ECT cc: James Harrison/NA/Enron@Enron Subject: Indian Tribal Government

Susan,

I received your interoffice mail regarding an ISDA Master Agreement between ENA and Southern Ute Indian Tribe, and have the following comments:

1. Is the Tribe's official name Southern Ute Indian Tribe of the Southern Ute Reservation, Colorado?

Response: I don't know. John Suttle of our Credit Department gave us the name as it appears on the draft agreement. I'll have to check with the Counterparty.

2. What are the payment terms of the Agreement (i.e., how will payments by ENA and the Tribe be determined)?

Response: Please listen to the voice mail message Sara Shackleton left for you. If you have any other questions re: payments, please call Sara at 3-5620.

2. I'd like to visit briefly with our outside counsel at Modrall, Sperling regarding the language that they proposed in Part 2(b)(ii) of the Schedule to the Master Agreement. Can you provide me with a contact name and number?

Response: Contact is William Scott, phone - (505) 848-1800, fax - (505) 848-1889.

3. I suggest that "None" in Part 3 of the Schedule to the Master Agreement be changed to "IRS Form W-9."

Response: OK

Please call me at ext. 35777 to discuss.

Best regards,

Jeff

Message 330 of 1118

Request for ISDA and Other Documents for Warm Springs Tribe

Sender	sara.shackleton@enron.com
Recipients	['Rawleigh White', 'tracy.ngo@enron.com', 'Loren Baker <LBaker@prmlp.com>']
File	shackleton-s/all_documents/10009.

Here's the other message.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/21/2001 03:37 PM -----

Stewart Rosman 03/06/2001 09:28 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Request for ISDA and Other Documents for Warm Springs Tribe

Could you please assign this to the propoer paralegal. You can reach me at 503-464-3810. Thanks.

Stewart

----- Forwarded by Stewart Rosman/HOU/ECT on 03/06/2001

09:25 AM -----

Enron Capital & Trade Resources Corp.

From: Jeff Fuller <JFuller@prmlp.com> 03/05/2001 05:29 PM

To: "Stewart Rosman" <Stewart.Rosman@enron.com> cc: Loren Baker <LBaker@prmlp.com>, "Rawleigh White" <rwhite@wstribes.org> Subject: Request for ISDA and Other Documents for Warm Springs Tribe

Stewart, effective 1/1/2002, the Warm Springs Tribe will be purchasing a 1/3 share of PGE's Pelton/Round Butte Project. They will be selling the output to PGE at prices indexed to the Dow Jones Mid-Columbia Index, and are interested in executing financial swaps to manage their market price risk. Would you please forward on to me drafts of the legal documents that will be required to execute financial transactions (e.g., ISDA, legal opinion, etc.). As with my previous request pertaining to the public utilities we are working with, I ask that Sara Shackleton be assigned to this. Thanks for your help. I think we are interested in moving fairly quickly to get the necessary documentation in place.

Jeff

Message 331 of 1118

Updated Brokerage & Related Agreement List

Sender	sara.shackleton@enron.com
Recipients	['donna.lowry@enron.com']
File	shackleton-s/sent/6270.

Donna:

See the attachment for latest recap of Brokerage Agreements. I'll send you the Financial Trading link separately.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/25/2001 10:55 AM -----

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 05/10/2001 05:46 PM

To: John Greene/LON/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, David J Vitrella/Enron@EnronXGate, Sheila Glover/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT, Aneela Charania/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Paul Pizzolato/Enron@EnronXGate cc: Subject: Updated Brokerage & Related Agreement List

Here is the attachment. Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/> ----- Forwarded by Cheryl Nelson/NA/Enron on 05/10/2001 05:41 PM -----

Cheryl Nelson Sent by: Cheryl Nelson 05/10/2001 05:33 PM

To: John Greene/LON/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, David J Vitrella/Enron@EnronXGate, Sheila Glover/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT, Aneela Charania/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Paul Pizzolato/Enron@EnronXGate cc: Subject: Updated Brokerage & Related Agreement List

Attached is the most recent update on the status of brokerage/related agreements you have requested. Most agreements have been fully executed including most recently, ITG-Europe

Reminder: I will be out of the office tomorrow and Monday. If you have questions in my absence about any agreements on this list, please contact Stephanie Panus at 5-4239.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Message 332 of 1118

Re: ISDA Master Agreement for Cargill International, S.A.

Sender	edward.sacks@enron.com
Recipients	['sara.shackleton@enron.com', 'Cheryl Nelson/NA/Enron@Enron']
File	shackleton-s/all_documents/8903.

Rod Nelson would probably be the best starting point.

Ed Sacks

From: Sara Shackleton@ECT on 02/02/2001 09:08 AM To: Edward Sacks/Corp/Enron@Enron cc: Cheryl Nelson/NA/Enron@Enron

Subject: ISDA Master Agreement for Cargill International, S.A.

Ed:

Without knowing what's being hedged, it could be either ENA or ECTRIC. Do you have more infor? Also, if the Enron party is ECTRIC, will Rod handle? Please let me know and I'll chat with Mara. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 09:06 AM -----

Mara_Alexander@cargill.com 02/02/2001 07:34 AM

To: Cheryl.Nelson@enron.com, Sara.Shackleton@enron.com cc: Edward.Sacks@enron.com Subject: ISDA Master Agreement for Cargill International, S.A.

Dear Sara & Cheryl,

I have been asked by our affiliate in Geneva, Cargill International, S.A. ("CISA"), to begin negotiations for them on an ISDA Master Agreement with Enron.

There had been some question as to which Enron entity was to enter into an ISDA with CISA, but the latest information they had (possibly from someone in an Enron office in London?) was that it should be Enron Capital & Trade Resources International Corp. FYI, Cargill International, S.A. is located and incorporated in Geneva.

Could you kindly advise whom I should be contacting to confirm this is indeed the proper Enron entity and with whom I should be speaking to begin negotiations? Please also let me know if there is anything that needs to be done from a Credit or Trading perspective in order to get this ISDA started on Enron's part.

Thanks and Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

Message 333 of 1118

RE -- ML deal

Sender	janice.moore@enron.com
Recipients	['tracy.ngo@enron.com', 'sara.shackleton@enron.com', 'David; yyaish@exchange.ml.com', 'Gilberg', 'rhonda.dento...']
File	shackleton-s/all_documents/10002.

Rhonda -- over to you. Let me know what you do. Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842) ----- Forwarded by Janice R Moore/HOU/ECT on 03/21/2001 12:41 PM -----

TeiglandL@sullcrom.com 03/21/2001 12:29 PM

To: Janice.R.Moore@enron.com cc: Subject: RE: <No subject>

Janice, I forwarded the deal ticket for the 3/16 CAISO transaction to Yair. When I spoke to him (before he saw the fax), he indicated that Allegheny would assume that one as well, so it needs to be added to the schedule and attachment A. Is Rhonda or someone else there going to make this correction and send revised schedule to Kate and revised attachment A to me?

-----Original Message-----

From: <Janice.R.Moore@enron.com> Sent: Tuesday, March 20, 2001 10:08 AM To: Teigland, Lauren Cc: Gilberg, David; yyaish@exchange.ml.com Subject: <No subject>

Here's the new CAISO transactions exhibit Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842) ----- Forwarded by Janice R Moore/HOU/ECT on 03/20/2001 09:14 AM -----

Rhonda L

Denton To: Janice R Moore/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT cc:

03/20/2001 Subject: 09:00 AM

Here's the exhibits with CAISO attachment redone.

(See attached file: enron_appendix.xls)

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

Message 334 of 1118

CARGILL-ALLIANT, LLC

Sender	sara.shackleton@enron.com
Recipients	['edward.sacks@enron.com']
File	shackleton-s/sent/5444.

Ed: Let me know what you think about the setoff (it excludes three Termination Events: Illegality, Tax Event and Tax Event Upon Merger) and I'll reinsert our part (b) setoff paragraph addressing the NDP's satisfaction that other payments by the DP have been made. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/31/2001 02:17 PM -----

Mara_Alexander@cargill.com 01/31/2001 02:07 PM

To: Sara.Shackleton@enron.com cc: Edward.Sacks@enron.com Subject: CARGILL-ALLIANT, LLC

Dear Sara,

Further to our conversation of this morning, I have spoken to our Credit Manager, Andrzej Kabarowski. We are able to significantly move negotiations forward by agreeing to your proposed \$100MM Cross-Default Thresholds for Cargill-Alliant and Enron North America Corp. I can also agree to your language and a trigger of BELOW BBB- for the Additional Event

of Default.

Regarding the Set-Off issue, I attach language for your consideration which demonstrates our agreement to include a Non-Defaulting Party's Affiliates. This language does not, however, make Set-Off available in all instances, but rather restricts it to the market standard of set-off in cases of any Event of Default and the Credit Event Upon Merger Termination Event. In light of our agreement to the 3 major items above, we ask that you consider using the attached language in this ISDA Master Agreement between Enron North America Corp. and Cargill-Alliant LLC.

Unfortunately, I still have no further information on the Guarantee from Cargill, Incorporated. We have again pressed our Corporate Treasury Dept. for a prompt response.

I look forward to hearing from you again at your earliest convenience.

Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

- SetOff.doc

Message 335 of 1118

Re: Cargill-Alliant - PCGs between CA and Enron NA

Sender	sara.shackleton@enron.com
Recipients	['edward.sacks@enron.com', 'Kabarowski', 'Andrzej /hdqt']
File	shackleton-s/sent/5951.

ours

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Edward Sacks/ENRON@enronXgate 04/03/2001 07:52 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Cargill-Alliant - PCGs between CA and Enron NA

Is the ball in our court or theirs? Ed

-----Original Message-----

From: Andrzej_Kabarowski@cargill.com@ENRON

[mailto:IMCEANOTES-Andrzej+5FKabarowski+40cargill+2Ecom+40ENRON@ENRON.com] Sent: Tuesday, April 03, 2001 6:35 AM To: Sacks, Edward; Andrzej_Kabarowski@cargill.com Subject: RE: PCGs between CA and Enron NA

Understand this may still be in your legal dept. Appreciate a call or email advising of status when you get a chance. Thx. Andrzej

-----Original Message-----

From: Kabarowski, Andrzej /hdqt Sent: Friday, March 09, 2001 1:37 PM To: Kabarowski, Andrzej /hdqt; 'Edward Sacks (E-mail)' Subject: RE: PCGs between CA and Enron NA

-----Original Message-----

From: Kabarowski, Andrzej /hdqt Sent: Friday, March 09, 2001 1:23 PM To: Kabarowski, Andrzej /hdqt; 'Edward Sacks (E-mail)' Subject: RE: PCGs between CA and Enron NA

Ed, have you had a chance to look over. Pls let me know if we can go ahead and get this executed. Thx much. Andrzej

-----Original Message-----

From: Kabarowski, Andrzej /hdqt Sent: Monday, March 05, 2001 1:30 PM To: 'Edward Sacks (E-mail)' Cc: Kabarowski, Andrzej /hdqt Subject: PCGs between CA and Enron NA

Ed, sorry for the time it has taken for me to respond. The lawyer involved in the initial review was on vacation till today. I am attaching both PCGs to this email with our suggested changes/acceptance to the standard forms. Pls do not hesitate to call me if you have any questions.

thank you and best regards

Andrzej Kabarowski WW Credit Manager Global Petroleum Trading NatGas/Electricity Trading CRMPG

Tel: 952-984 3664 Fax: 952-984 3763

Message 336 of 1118

RE: legal opinion

Sender	mcbarnes@kslaw.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11207.

I got your message. I did speak to my contact earlier this week and got comfortable about Marta's authorization of the swap, but I didn't inquire as to legal counsel/opinions for other similar transactions. I hoped our opinion would be acceptable. I just left her a message asking her that. Her name is Thay (pronounced Tie) Bishop. She is the Treasurer. Feel free to call her directly if necessary. 404-848-4246.

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, May 18, 2001 5:58 PM To: mcbarnes@kslaw.com Subject: legal opinion

Mae Charles:

Attached is the form of legal opinion which Enron North America Corp. ("ENA") submitted to M.A.R.T.A. (together with ENA's draft ISDA Schedule and Paragraph 13 to the Credit Support Annex). As we discussed, ENA will now be requesting this opinion from you.

ENA has prepared and submitted a trade confirmation for the recent financial swap to M.A.R.T.A. Other than this document executed by ENA and awaiting execution by M.A.R.T.A., no instruments have been executed by the parties. If you need to see the terms and conditions of the trade, please let me know.

I look forward to speaking with you early next week.

Regards.

(See attached file: MARTA.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Confidentiality Notice This message is being sent by or on behalf of a lawyer. It is intended exclusively for the individual or entity to which it is addressed. This communication may contain information that is proprietary, privileged or confidential or otherwise legally exempt from disclosure. If you are not the named addressee, you are not authorized to read, print, retain, copy or disseminate this message or any part of it. If you have received this message in error, please notify the sender immediately by e-mail and delete all copies of the message.

Message 337 of 1118

Confirmation Template

Sender	sara.shackleton@enron.com
Recipients	['melissa.murphy@enron.com']
File	shackleton-s/sent/6126.

Per my voice mail. We should put a draft together today for Chris to review. He will start giving Merchant Energy pricing today but will not transact until the end of the week.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/24/2001 11:52 AM -----

Chris H Foster 04/23/2001 06:49 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Confirmation Template

Sara:

I am looking at a transaction with MErchant Energy Group. We have an ISDA with them. It is a financial tolling deal where we will be a fixed price payor for power and gas and we will pay them an option premium. They forwarded the attached pro forma to illustrate how the deal would be papered. Can you please review the attached and let me know if it looks OK or what changes are required? They indicated an interest to transact late this week or early next.

C ----- Forwarded by Chris H Foster/HOU/ECT on 04/23/2001 04:31 PM -----

Enron Capital & Trade Resources Corp.

From: "Brock, Travis" <BrockT@merchantenergy.com> 04/23/2001 02:30 PM

To: "Chris Foster (E-mail)" <chris.h.foster@enron.com> cc: Subject: Confirmation Template

Attached is a sample confirmation template for 100 MW's Sep01-Nov01. We can use this as a starting point.

<<Swap Confirm Template.doc>>

Travis J. Brock Merchant Energy Group of the Americas brockt@merchantenergy.com Phone: (410) 295-1734 Fax: (410) 295-1705

CONFIDENTIALITY NOTICE: This e-mail may contain TRADE SECRET, PRIVILEGED AND/OR CONFIDENTIAL INFORMATION intended only for the use of the addressee. If you are not the addressee, or the person responsible for delivering it to the person addressed, you may not copy or deliver this to anyone else. If you received this e-mail by mistake, please immediately notify us by returning the original message to the sender.

- Swap Confirm Template.doc

Message 338 of 1118

Re: Off-Site for Administrative Assistants - EWS Legal

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/5453.

Lucky you!!!!!!!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kaye Ellis 02/02/2001 08:51 AM

To: sstack@enron.com@ECT, Sara Shackleton/HOU/ECT@ECT, Peggy Banczak/HOU/ECT@ECT, Debra Perlingiere/HOU/ECT@ECT cc: Subject: Off-Site for Administrative Assistants - EWS Legal

Looks like I will be out of the office next Friday afternoon. ----- Forwarded by Kaye Ellis/HOU/ECT on 02/02/2001 08:50 AM -----

Janette Elbertson 02/01/2001 07:15 PM

To: Suzanne Adams/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT, Pat Radford/HOU/ECT@ECT, Becky Spencer/HOU/ECT@ECT, Brenda Whitehead/HOU/ECT@ECT, Connie Castillo/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Margaret Doucette/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Taffy Milligan/HOU/ECT@ECT, Sheri L Cromwell/HOU/ECT@ECT, Carolyn George/Corp/Enron@ENRON, Linda J Simmons/HOU/ECT@ECT, Dina Snow/Corp/Enron@Enron, Twanda Sweet/HOU/ECT@ECT cc: Subject: Off-Site for Administrative Assistants - EWS Legal

The Half Day of Beauty spa arrangements have been confirmed. As mentioned in my earlier e-mail, you will need to arrive at Tova's by 12:00 Noon on your scheduled day. Please plan on leaving the office at 11:30 AM. Arrangements will be made to have a temporary fill in at your desk for the afternoon. Tova's address is: 1409 South Post Oak Lane (next to the original Post Oak Grill). You will receive lunch, manicure, pedicure, full body massage, and facial. The gratuity has already been taken care of so you do not need to tip.

You are scheduled as follows:

Friday, February 9 Friday, February 16 Friday, March 2 Friday, March 16 Suzanne Adams Connie Castillo Carolyn George Sheri Cromwell Kaye Ellis Margaret Doucette Linda Simmons Pat Radford Holly Keiser Dina Snow Becky Spencer Taffy Milligan Twanda Sweet Brenda Whitehead

Relax and enjoy!

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Message 339 of 1118

Re: LEGAL REVIEW OF THIRD PARTY ELECTRONIC TRADING PLATFORMS

Sender cheryl.nelson@enron.com

Recipients ['sara.shackleton@enron.com']

File shackleton-s/nelson/103.

Hey Sara, my notes indicate that the 9 a.m. meeting I had on the schedule= =20 last week or so was to discuss this project. Let me know when you wanted t= o=20 meet to discuss.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

=09Sara Shackleton@ECT =0903/26/2001 05:01 PM =09=09=20 =09=09 To: Cheryl Nelson/NA/Enron@Enron =09=09 cc:=20 =09=09 Subject: LEGAL REVIEW OF THIRD PARTY ELECTRONIC TRADING PLATFORMS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/26/2001 05:01 PM -----

=09Mark Haedicke@ENRON =09Sent by: Enron Announcements@ENRON =0903/02/2001 04:51 PM =09=09=20 =09=09 To: All_ENA_EGM_EIM, Enron Global Assets =09=09 cc:=20 =09=09 Subject: LEGAL REVIEW OF THIRD

PARTY ELECTRONIC TRADING PLATFORMS

In order to ensure adequate, consistent legal review of on-line terms and conditions governing use of third party electronic trading platforms, you must have all registration documentation (including, for example, password applications and access agreements) approved by the On-Line Trading Legal Contact before such documentation is submitted or executed. Any document that requires acceptance by clicking should be treated like any other legal document. You are not authorized to accept any such click agreement without written approval of the On-Line Trading Legal Contact. In addition, the On-Line Trading Legal Contact must review and approve all product descriptions and other on-line terms and conditions applicable to a product before a password may be used to trade that product on a third party electronic trading platform. Accordingly, before any master user or subuser uses a password to trade a product, he or she must confirm that the On-Line Trading Legal Contact has approved all applicable product descriptions and terms and conditions applicable to such product.

The current On-Line Trading Legal Contact is Mark Greenberg (extension 58897) (or in his absence, Mark Taylor (extension 37459)).

Message 340 of 1118

Thank You For Your Recent Interest In Strong Funds

Sender	sara.shackleton@enron.com
Recipients	['sshackl@msn.com']
File	shackleton-s/sent/866.

----- Forwarded by Sara Shackleton/HOU/ECT on 01/31/2000

01:35 PM -----

service@strong-funds.com on 01/31/2000 12:57:57 AM Please respond to service@strong-funds.com To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Thank You For Your Recent Interest In Strong Funds

Dear Investor:

Thank you for your recent interest in Strong Investments. If you have already sent in your application, you should receive a confirmation of your investment shortly.

If you have further questions about our products and services, please visit our web site, eStrong.com at <http://www.strong.com> or send us an e-mail at the following link: <http://www.strong.com/strong/Services98/contact/email.htm>

If you prefer, you can contact a Strong Representative 24 hours a day, 7 days a week at 1-800-359-3379.

Here are some links that you may find helpful:

Best Performing Funds: Many of our funds have received the industry's top rankings. To view these funds and those that have outperformed the S&P 500 Index, click on the following link: http://www.strong.com/strong/perl/email.pl?11410,/strong/Our_Funds/45star.htm

StrongOne Brokerage Account: StrongOne allows to you consolidate all of your holdings into one convenient portfolio. To learn more about the products and services that make StrongOne the best choice for your stock, bond, and fund investments, click on the following link: <http://www.strong.com/strong/perl/email.pl?11410,/strong/strongone/aboutindex.htm>

Interactive Tools & Calculators: <http://www.strong.com/strong/perl/email.pl?11410,/strong/Interactive98/index.htm>

Strong Funds Prospectuses & On-line Application: <http://www.strong.com/strong/perl/email.pl?11410,/strong/orderform.htm>

Once again, we appreciate your consideration of Strong Investments, and we look forward to helping you pursue your financial goals.

Sincerely,

Byron C. Vielehr Strong Investments www.eStrong.com

Strong Investments, Inc. 11624E99

***** If you prefer not to receive e-mail updates from Strong Funds in the future, please follow this link:
http://www.strong-funds.com/strong/Services98/contact/unsub_change.htm?sshackl@enron.com

Message 341 of 1118

Commodity Exchange Act, as revised by CFMA

Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/all_documents/9273.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/16/2001 06:00 PM -----

Robert Bruce@ENRON Sent by: Robert Bruce@ENRON 01/16/2001 04:15 PM

To: Chris Long/Corp/Enron@ENRON, Mark Taylor/HOU/ECT@ECT, Lisa Yoho/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Commodity Exchange Act, as revised by CFMA

Enclosed is a version of the Commodity Exchange Act, redlined to show how it has been revised by the CFMA. This document was e-mailed to me earlier today by Cadwalader, Wickersham & Taft.

Chris, the language in the "Definitions" sections (Section 1a) is what concerns us most.

A new definition has been added -- "EXEMPT COMMODITY" which is (14) of Sec. 1a (not to be confused w/ "EXCLUDED COMMODITY," which is (13) of Sec 1a.). The new "scheme" is as follows -- an "excluded" commodity (essentially, financials and weather) is the most deregulated, an "exempt" commodity is almost but not quite as deregulated, and agricultural commodities are still subject to full jurisdiction of the CFTC and the Commodity Exchange Act.

As you can see, the definition of "Exempt Commodity" is simply stated as everything other than an excluded commodity or agricultural commodity. The ambiguity is that "agricultural commodity" is not defined, so the question is -- is the reference to "agricultural commodity" here meant to encompass coffee, sugar and cocoa as well as grains and meats?

FYI, the list of "enumerated" agricultural commodities is in (4) of Sec 1a, in the old definition of "COMMODITY," which remains in the Act. Usually, when regulators wish to reference the restricted list of grains and meats, it is this section they refer to. In fact, Congress referred expressly to this list in other places in the CFMA. For example, see the new Section 4p(c)(1) (which is on page 59 of the attached document).

Please feel free to call me w/ any comments or questions. Thanks -- Bob

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 342 of 1118

RE: ISDA Master Agreement between Cargill-Alliant and Enron North

Sender	mara_alexander@cargill.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/11262.

Sara,

Have you had the opportunity to review the proposed language below? This language, as well as your confirmation that the latest guarantee version is acceptable, are the two remaining items in our Agreement. Could you please let me know where we stand on these?

Thanks, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

-----Original Message-----

From: Alexander, Mara /xtwn Sent: Friday, May 04, 2001 9:08 AM To: 'Sara.Shackleton@enron.com' Subject: ISDA Master Agreement between Cargill-Alliant and Enron North America Corp.

Dear Sara,

I understand from our Credit Manager that guarantee formats are again with you. Thanks for your patience regarding the delay; we look forward to your response on these.

With respect to the Schedule, I believe we're in agreement on all the issues to-date. As indicated earlier, I do have one more provision for your consideration which our attorney recommends we include in all of Cargill-Alliant's Schedules.

This provision pertains to Cargill-Alliant's joint venture structure, and is intended to prevent changes in that structure from being interpreted as an Event of Default under Part 5(a)(vii). It is consistent with language we have commonly seen used for similar entities. I would suggest we include it in the Schedule as a new Part 1(g). The provision reads as follows:

"(g) The 'Bankruptcy' provisions of Section 5(a)(vii) are hereby amended by: (i) adding in Clause (1) thereof (third line) after the word 'merger' and before the closed parenthetical the words 'or, in the case of Party B, any reconstitution, incorporation or admission or withdrawal of a member'; and (ii) adding in Clause (5) thereof (fourteenth line) after the word 'merger' and before the closed parenthetical the words 'or, in the case of Party B, any reconstitution, incorporation or admission or withdrawal of a member'."

This would be the final item outstanding in the Schedule. I look forward to your response at your earliest opportunity.

Regards, Mara Alexander Sr. Documentation Analyst Cargill, Incorporated Tel: 952.984.3417 Fax: 952.984.3872 e-mail: Mara_Alexander@Cargill.com

Message 343 of 1118

RE: U.S. Brick

Sender	stephanie.panus@enron.com
Recipients	[sara.shackleton@enron.com', 'alan.aronowitz@enron.com', 'robert.sevitz@enron.com']
File	shackleton-s/inbox/665.

The Confirm Desk has confirmed that there are no live physical deals with US Brick. I see from Global Contracts that there is a GISB that was assigned as part of the CES deal. I will pull a copy of that contract even though there are no trades. The confirm desk is making sure that the two trades referenced by US Brick are in fact the only live financial deals. There is no ISDA Master - they must have been just confirms. We have begun a file - I will check with the list Alan just emailed to make sure there are not other items we need.

Stephanie Panus Enron Wholesale Services ph: 713.345.3249 fax: 713.646.3490

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, February 05, 2002 12:35 PM To: Panus, Stephanie; Sevit, Robert Cc: Aronowitz, Alan Subject: FW: U.S. Brick

Stephanie/Bob:

US Brick is now on the "fast track" for settlement. Could you please prepare a binder to include the ISDA, other relevant agreements, confirms, any notices? Please include the RAC assessment attached. Thanks. Sara

-----Original Message-----

From: Moran, Tom Sent: Tuesday, February 05, 2002 10:59 AM To: Shackleton, Sara; Baumfield, Richard Cc: Hagelmann, Bjorn; Gonzalez, Veronica Subject: RE: U.S. Brick

Attached is the information concerning U.S. Brick a division of Tiffany Brick Company, L.P. It appears that our current exposure is in the money \$383,108 to Enron at close of business 2-4-02 which is substantially less then the \$200,000 proposal by U.S. Brick.

<< File: U.S Brick Company - CAS 2-5-02.xls >>

Regards, tm

-----Original Message-----

From: Shackleton, Sara Sent: Monday, February 04, 2002 9:17 AM To: Moran, Tom; Hagelmann, Bjorn Cc: Baumfield, Richard Subject: U.S. Brick

We have received a settlement offer from U.S. Brick with respect to two financial trades (V48090.1, V48242.1 dated April 20, 2001) on GTC's. CP is disputing previous invoices and has not yet terminated the trades.

Settlement offer is \$200,00 per letter dated January 22, 2002.

Please advise regarding FMTM, your "spreadsheet" and outstanding confirms. Thanks.

SS

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 344 of 1118

RE: Revised Total Retun Confirmation

Sender	sara.shackleton@enron.com
Recipients	['jim.armogida@enron.com', 'stephen.haratunian@enron.com', 'maria'.\'"chiodi@enron.com', 'michael.emerson@enro...]
File	shackleton-s/sent_items/155.

Maria and Michael:

The form of confirmation of fine. How would you like to handle execution of this transaction? of remaining transactions? Scheduling the VE discussion for later this week is also acceptable. We look forward to hearing from you. Regards.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: "Chiodi, Maria" <maria.chiodi@csfb.com>@ENRON [mailto:IMCEANOTES-+22Chiodi+2C+20Maria+22+20+3Cmaria+2Echiodi+40csfb+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, October 04, 2001 4:58 PM To: Armogida,

Jim; Shackleton, Sara Cc: Emerson, Michael; Haratunian, Stephen Subject: Revised Total Retun Confirmation

Jim and Sara:

As we discussed, I attach a revised copy of the confirmation that is marked to show changes made to our June 27th draft.

Regards,

Maria Chiodi Legal and Compliance Department CREDIT | FIRST SUISSE | BOSTON Phone: 212-325-6724 Fax: 917-326-7763

<<TRS Oct 4 2001 CSFB Draft.doc>>

This message is for the named person's use only. It may contain confidential, proprietary or legally privileged information. No confidentiality or privilege is waived or lost by any mistransmission. If you receive this message in error, please immediately delete it and all copies of it from your system, destroy any hard copies of it and notify the sender. You must not, directly or indirectly, use, disclose, distribute, print, or copy any part of this message if you are not the intended recipient. CREDIT SUISSE GROUP and each of its subsidiaries each reserve the right to monitor all e-mail communications through its networks. Any views expressed in this message are those of the individual sender, except where the message states otherwise and the sender is authorised to state them to be the views of any such entity. Unless otherwise stated, any pricing information given in this message is indicative only, is subject to change and does not constitute an offer to deal at any price quoted. Any reference to the terms of executed transactions should be treated as preliminary only and subject to our formal written confirmation.

- TRS Oct 4 2001 CSFB Draft.doc << File: TRS Oct 4 2001 CSFB Draft.doc >>

Message 345 of 1118

Re: Confirmation Template ("Merchant")

Sender	sara.shackleton@enron.com
Recipients	['chris.foster@enron.com', 'melissa.murphy@enron.com']
File	shackleton-s/sent/6121.

Chris:

We should chat. Per the ISDA, ENA is the calc agent and we have already agreed to usual Market Disruption Events and fallbacks in the ISDA. If you want to change the ISDA agreement, then we can consider the items which Merchant has included in the draft.

As calc agent, we should create a draft and send the form to you for review. However, I do need you to explain/verify Floating Price B. And verify rounding convention which differs from our standard.

Please call to discuss.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Chris H Foster 04/23/2001 06:49 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Confirmation Template

Sara:

I am looking at a transaction with MERCHANT Energy Group. We have an ISDA with them. It is a financial tolling deal where we will be a fixed price payor for power and gas and we will pay them an option premium. They forwarded the attached pro forma to illustrate how the deal would be papered. Can you please review the attached and let me know if it looks OK or what changes are required? They indicated an interest to transact late this week or early next.

C ----- Forwarded by Chris H Foster/HOU/ECT on 04/23/2001 04:31 PM -----

Enron Capital & Trade Resources Corp.

From: "Brock, Travis" <BrockT@merchantenergy.com> 04/23/2001 02:30 PM

To: "Chris Foster (E-mail)" <chris.h.foster@enron.com> cc: Subject: Confirmation Template

Attached is a sample confirmation template for 100 MW's Sep01-Nov01. We can use this as a starting point.

<<Swap Confirm Template.doc>>

Travis J. Brock Merchant Energy Group of the Americas brockt@merchantenergy.com Phone: (410) 295-1734 Fax: (410) 295-1705

CONFIDENTIALITY NOTICE: This e-mail may contain TRADE SECRET, PRIVILEGED AND/OR CONFIDENTIAL INFORMATION intended only for the use of the addressee. If you are not the addressee, or the person responsible for delivering it to the person addressed, you may not copy or deliver this to anyone else. If you received this e-mail by mistake, please immediately notify us by returning the original message to the sender.

- Swap Confirm Template.doc

Message 346 of 1118

RE: blackline of master

Sender	delene.travella@funb.com
Recipients	[paul.riddle@funb.com', 'sara.shackleton@enron.com', 'steved.hawk@funb.com', 'terrance.ganser@funb.com']
File	shackleton-s/notes_inbox/3169.

Hi Sara, Any progress on the blackline? I was hoping to review and determine any "final" outstanding issues before going back to legal and/or credit. Although we entered into the deal you referenced without docs in place, First Union credit had been assured that we were very close to finalizing our docs before giving approval to proceed with the trade. As previously discussed, our equity and credit default business people are also anticipating our getting docs in place with Enron Corp. and Enron Credit Limited following completion of Enron North America Corp. I look forward to hearing from you. Dee
Delene M. Travella Vice President Capital Markets, Derivatives Telephone: (704) 383-8778 Facsimile: (704) 383-0575
email: delene.travella@funb.com

-----Original Message----- From: Sara.Shackleton@enron.com [SMTP:Sara.Shackleton@enron.com] Sent: Wednesday, February 14, 2001 2:52 PM To: delene.travella@funb.com Subject: blackline of master Dee: We are working on the blackline. Since the "deal" that you mentioned yesterday has no bearing on the master between ENA and FUNB, there is no emergency at hand. A few things to note: (1) regarding "Procedures for entering into Transactions," my suggestion is that you consider a reasonable time period in which to respond upon receipt of a confirmation. It is in both parties best interest to have an executed (and therefore enforceable) writing This can be accomplished by under the NY General Obligations law by our agreement as to a "deemed response" if a party will not sign a trade confirmation. (2) regarding the concept of "Specified Transaction", ENA has reconsidered the earlier concession to exclude most Termination Events as Specified Conditions. It is not ENA's position to unwind Transactions upon the occurrence of these events, and, therefore, each party ought to be able to rely upon the protections afforded it under the related provisions. Regarding the Credit Event Upon Merger, FUNB is protected with the amendment which we make to Section 5(b)(iv). I hope that the blackline will resolve our outstanding issues. Sara Shackleton
Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax)
sara.shackleton@enron.com

Message 347 of 1118

Avalon Northwest Weekly Wine and Gourmet News

Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/sent/6276.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/29/2001 08:32 AM -----

Oregon Gourmet <info@oregongourmet.com> 05/25/2001 12:40 AM

To: sara.shackleton@enron.com cc: Subject: Avalon Northwest Weekly Wine and Gourmet News

Avalon of Oregon Weekly NW Wine and Gourmet News May 26, 2001

The new newsletter is here: <http://www.avalonwine.com/weeklynewsCURRENT.htm>

This Week's Top Ten North West Wines- New Feature! <http://www.avalonwine.com/toptenlist.htm>

Memorial Day Oregon Wine Touring- Our Suggestions <http://www.avalonwine.com/jeanswinetours.htm>

New Wine Releases- Complete redo and update as of 5/26/01 <http://www.oregongourmet.com/newwinereleases.html>

Prerelease Sale- St Innocent 1999 Single Vineyard Pinot Noirs Top Rated Wines, Buy Now and Guarantee you get some! <http://www.avalonwine.com/stinnocentwinery.htm#t>

Wine Tales: "Good Wine, Good Company, Pushy Waiter" By Christina Kelly
<http://www.avalonwine.com/christinakellycolumns.htm>

Northwest Wine Industry News Briefs- Tye Awards, NW Wine Sales Drop, Bear Creek Winery, Stoller Winery formed, St Innocent. <http://www.avalonwine.com/weeklynewsbriefs.htm>

Belle Pente: The Little Winery That Could! <http://www.avalonwine.com/bellepente.htm>

May Wine Club Newsletter is Out: <http://www.avalonwine.com/wineclubCURRENT.htm>

Andy's Wine of the Week: Arbor Crest Chardonnay- Not the same Arbor Crest- not at all!
<http://www.avalonwine.com/ArborCrest.htm>

Cole Danehower's Oregon Wine Report on Oregon Chardonnay
<http://www.avalonwine.com/coledannehauermay2001column.htm>

Ann's Wine of the Week: Ponzi Arneis <http://www.avalonwine.com/annsweeklyfavorites.htm>

Also on the newsletter page- Adelsheim second label, organic wines, news from the store, Torii Mor new releases, Bethel Heights new 99 Single vineyard Pinot Noirs, Patty GReen futures, and more.
<http://www.avalonwine.com/weeklynewsCURRENT.htm>

Jean Yates Avalon of Oregon 201 SW 2nd Street Corvallis OR 97333 541-752-7418 www.avalonwine.com

To be removed from this mailing list click on the link below
<http://www.avalonwine.com/htbin/mail.cgi?sara.shackleton@enron.com>

Message 348 of 1118

NUI Agreements	
Sender	sara.shackleton@enron.com
Recipients	['larry.hunter@enron.com', 'diane.anderson@enron.com']
File	shackleton-s/sent/6048.

FYI - I am reviewing

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/16/2001 10:57 AM -----

Stacy E Dickson 04/16/2001 10:39 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: NUI Agreements

Sara,

Number 3 concerns the swap piece of this deal.

Stacy ----- Forwarded by Stacy E Dickson/HOU/ECT on 04/16/2001 10:38 AM -----

Paul Chymiy <pchymiy@NUI.com> 04/16/2001 09:44 AM

To: Stacy.E.Dickson@enron.com, Mark.Breese@enron.com cc: Brian Rose <brose@NUI.com>, Jennifer Forno <jforno@NUI.com>, Laura DiBenedetto <ldbenedetto@NUI.com>, Terri Sue Gross <tgross@NUI.com> Subject: NUI Agreements

I though it might be helpful to review where we stand on the various agreements:

1. Enfolio Agreement between NUI Utilities and ENA - The version (including all Exhibits) that Stacy sent on April 11 (5:23 p.m.) is the final and is acceptable. I have asked Terri Sue to forward NUI's Notice Information (Exhibit A) to Stacy. Stacy, upon receipt, can you please generate the final agreement? 2. Physical Transaction Agreement - I need to review Section 4 with Bob Lurie who will be back in the office tomorrow. 3. April Transaction Confirmation Letter - Stacy, this letter should be addressed to Thomas E. Smith, Director, Energy Planning (who signed the Confirmation). Also, please confirm that the Exhibits are NUI Confirmation Nos. 31060 and 46669. 3. Swap Transaction Agreements - I am attaching a revised version of the Transaction Agreement and Exhibit for Swap V09140.4 from Enron's review. As Mark and I discussed, NUI Corporation, not NUI Utilities, will be the Guarantor. In addition, I have modified the form of Guaranty to make it clear that it only applies to these two Swaps; this is similar to what Enron had agreed to when we were contemplating an NUI Corp. Guaranty for the Enfolio Agreement. I have made this change to the Guaranty because I am not satisfied that the discussion within the Confirmation that purports to limit the scope of the Guaranty is sufficient. I think the limitations need to be set forth within the four corners of the Guaranty itself. If acceptable, the same changes should be made to the Transaction Agreement and Exhibit for Swap V09140.5. <<ENA Swap Confirm Red 4-16-01.doc>>

- ENA Swap Confirm Red 4-16-01.doc

Message 349 of 1118

RE: Enron Credit Limited and Enron Corp.	
Sender	delene.travella@funb.com
Recipients	['sara.shackleton@enron.com', 'rod.nelson@enron.com', 'connell@enron.com']
File	shackleton-s/notes_inbox/2600.

Hi Sarah and Rod, Before sending the docs for these two additional Enron entities, would you run these securities by your credit folks to see if they are OK with including government agencies as acceptable collateral. First Union has recently

changed it's position and is now including these in all of our CSA's, valued at 92%. Thanks, Dee

Agency Securities: negotiable debt obligations of the Federal National Mortgage Association (FNMA), Federal Home Loan Mortgage Corporation (FHLMC), Federal Home Loan Banks (FHLB), Federal Farm Credit Banks (FFCB), Student Loan Marketing Association (SLMA), Tennessee Valley Authority (TVA) having an original maturity at issuance of not more than 30 years.

FHLMC Certificates. Mortgage participation certificates issued by FHLMC evidencing undivided interests or participations in pools of first lien conventional or FHA/VA residential mortgages or deeds of trust, guaranteed by FHLMC, and having an original maturity at issuance of not more than 30 years.

FNMA Certificates. Mortgage-backed pass-through certificates issued by FNMA evidencing undivided interests in pools of first lien mortgages or deeds of trust on residential properties, guaranteed by FNMA, and having an original maturity at issuance of not more than 30 years.

GNMA Certificates. Mortgage-backed pass-through certificates issued by private entities, evidencing undivided interests in pools of first lien mortgages or deeds of trust on single family residences, guaranteed by the Government National Mortgage Association (GNMA) with the full faith and credit of the United States, and having an original maturity at issuance of not more than 30 years.

Delene M. Travella Vice President Capital Markets, Derivatives Telephone: (704) 383-8778 Facsimile: (704) 383-0575 email: delene.travella@funb.com

-----Original Message----- From: Sara.Shackleton@enron.com [SMTP:Sara.Shackleton@enron.com] Sent: Thursday, April 05, 2001 12:24 PM To: delene.travella@funb.com Cc: Rod.Nelson@enron.com; Denis.O'Connell@enron.com Subject: Enron Credit Limited ("ECL") Dee: Hope you had a good vacation. I sent a copy of the Enron North America Corp. ISDA Schedule/CSA to Rod Nelson who is the credit person in London reviewing credit for ECL. Rod can be reached at 011-44-20-7783-5275, I need to send the Enron Corp. Schedule to you. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 350 of 1118

Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'keegan.farrell@enron.com', 'tom.doukas@enron.com']
File	shackleton-s/nelson/354.

Sara,

Moreover, Keegan represented to me that you requested that she locate for you the Securities Loan Agreement for you while I was out and that she went into my office and retrieved that document from my Enron Credit Inc. file and gave it to you. So, I am not sure of the source of confusion about not being able to find my file but for future reference, the best thing to do is to ask Keegan how to contact me immediately and directly - when out the office she always knows how to reach me.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 10:36 AM To: Sara Shackleton/HOU/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron, Tom Doukas/Enron@EnronXGate Subject: Re: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Sara:

I will forward the documents to you.

For future reference, if anyone is looking for a file for an urgent matter while I am out, she should convey that fact to me by either (1) leaving a voice mail - as I checked my voicemails on Friday (that is how I was able to speak with Tom from New York on Friday) or (2) advise Keegan and she will contact me immediately by cell phone as she did regarding other matters on Friday.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Sara Shackleton@ECT 05/15/2001 03:45 PM To: Cheryl Nelson/NA/Enron@Enron cc: Tom Doukas/Enron@EnronXGate, Stephanie Panus/NA/Enron@Enron Subject: Enron Corp./Enron Credit Inc. ("ECI") guaranty amendment (increase from USD25 Million to USD100 Million) in favor of Bear, Stearns, et al

Cheryl:

I spoke with Clem and he is preparing the amendment for immediate execution as the signers will be at an offsite tomorrow. I'll let Tom know as soon as the amendment has been executed. Anna Meytina is on vacation so I left a message with Sharon Chernick.

In order to complete our files with respect to the Enron North America Inc. ("ENA") Securities Loan Agreement, please provide me with copies of the following documents:

- (1) assignment of the Securities Loan Agreement from ENA to ECI (or was a separate agreement with ECI executed?)
- (2) termination of the prior Enron Corp. guaranty on behalf of ENA in the amount of USD25 Million

I spoke with Stephanie and she could not locate your Bear/ECI files on Friday of last week.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

<Embedded StdOleLink>

Message 351 of 1118

Re: ISDA files I am working on

Sender	sara.shackleton@enron.com
Recipients	[robert.bruce@enron.com]
File	shackleton-s/sent/5912.

Bob:

Thanks for the update. No need to call back but here are my comments:

Allied Waste North America - please follow up on your own as the paralegals don't have the resources right now for handling all of Sam's load

FirstEnergy Services Corp - please have your assistant redline changes since this is also one of Sam's items

City of Palo Alto and Macquarie Inc. (or "Bank Ltd") - neither of these are on anyone's radar screen so please proceed as you wish

Proctor & Gamble - please return to me for further handling. Ed Quinn is leaving Enron

Thanks and let me know if you have any questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Robert Bruce@ENRON Sent by: Robert Bruce@ENRON 03/28/2001 08:24 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ISDA files I am working on

Allied Waste North America -- Samantha has this marked "sent for execution" as of 2/13; can I get one of the other specialists to follow up on this?

FirstEnergy Services Corp -- Very close to finishing this (I hope); I owe them another redline that should reflect agreement on all issues

Select Energy -- this has recently been revived after a long dormancy. Ed Sacks is revisiting credit issues. Meanwhile, I am plodding through minutiae with their very detail-minded attorney

City of Palo Alto -- recently received an e-mail from their assistant city attorney stating that they are internally discussing what needs to be done to their city code to allow for derivatives trading; he also said they will not be ready to discuss this w/ me for a couple of weeks

Macquarie Bank Ltd. -- this is an ag ISDA (although there is no specific trade for it at this time). I am waiting for our meeting to discuss ag-related changes to our ISDA forms. Once that is settled, I will send them an updated draft

Proctor & Gamble -- I sent Libby Rutherford a letter in December, outlining the issues to be discussed. I think I also put in a few phone calls to her at that time. I never heard from her. I haven't heard any pressure for movement from the pulp & paper desk since I met w/ Ed Quinn and some other people in January (although I did happen to get a call yesterday from an EES person working on a deal with them; he was just curious as to what we were doing w/ them and the status of things; I put him in touch w/ Ed)

still happy to meet w/ you on these if you wish -- Bob

Robert E. Bruce Senior Counsel Enron Wholesale Services T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 352 of 1118

ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	[shari.stack@enron.com]
File	shackleton-s/sent/896.

Have you sorted through the ENE ISDA masters with Jeff Nogid? Should I call him again? Anyway, it looks like another request is attached. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 02/07/2000 10:55 AM -----

Clement Abrams@ENRON 02/07/2000 10:48 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ISDA Master Agreement

Sara,

Per our conversation. ----- Forwarded by Clement Abrams/Corp/Enron on 02/07/2000 10:47 AM -----

Jeff Nogid@ECT 11/12/99 03:26 PM To: Clement Abrams/Corp/Enron@Enron cc:

Subject: ISDA Master Agreement

Clem Here is another ISDA agreement we'd like to get signed. How is the SBCM ISDA going?

Thanks

Jeff ----- Forwarded by Jeff Nogid/HOU/ECT on 11/12/99 03:24 PM

"McNally, Keith" <keith.mcnally@csfp.co.uk> on 11/12/99 02:52:45 PM To: Jeff Nogid/HOU/ECT@ECT cc: "Hubbard, Andrew" <andrew.hubbard@csfb.com> Subject: ISDA Master Agreement

Jeff, at the request of my colleague Andy Hubbard, please find attached for your perusal a copy of CSFP's draft Schedule to the Agreement.

Once you have had an opportunity to review the draft Schedule please do not hesitate to contact me either on telephone number (212) 325-3633, facsimile number (212) 325-8044 or via email at keith.mcnally@csfp.co.uk with any questions or comments you may have.

I look forward to hearing from you, at your earliest convenience.

Thanks and regards

KEITH MCNALLY Email: keith.mcnally@csfp.co.uk Assistant Vice President LEGAL DEPARTMENT CREDIT SUISSE | FINANCIAL PRODUCTS TEL. (212) 325 3633

Credit Suisse First Boston Corporation FAX. (212) 325 8044 11 Madison Avenue, New York, N.Y. 10010

<<kmsc1.doc>>

This message is for the named person's use only. It may contain confidential, proprietary or legally privileged information. No confidentiality or privilege is waived or lost by any mistransmission. If you receive this message in error, please immediately delete it and all copies of it from your system, destroy any hard copies of it and notify the sender. You must not, directly or indirectly, use, disclose, distribute, print, or copy any part of this message if you are not the intended recipient. CREDIT SUISSE GROUP, CREDIT SUISSE FIRST BOSTON, and each of their subsidiaries each reserve the right to monitor all e-mail communications through its networks. Any views expressed in this message are those of the individual sender, except where the message states otherwise and the sender is authorised to state them to be the views of any such entity.

- kmsc1.doc

Message 353 of 1118

Re: Weyerhaeuser

Sender	sara.shackleton@enron.com
Recipients	['paul.radous@enron.com']
File	shackleton-s/all_documents/9648.

Let's talk in the a.m.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Paul Radous/ENRON@enronXgate 03/06/2001 12:58 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Weyerhaeuser

Sara,

Okay, looks to me like Weyerhaeuser wants us to act as their counsel. I told Bill to propose the language he wanted, but he said his lawyer was out of town for two weeks. Which makes me wonder if they can even sign this thing without her consent, but I did not think to ask him this at the time.

Anyway, he basically wants to add a third party guarantee as eligible credit support in the event of a downgrade. He said he is willing to include language indicating that the nondowngraded party would have to accept this guarantee, subject to a commercially reasonable objection. On its face, I have no objection to such a provision, but would like to quickly bounce it off of you. I'm not sure that I want to be forced to disclose what that reason is....

And basically, I also have no objection to allowing the posting of collateral in a form and amount acceptable to the nondowngraded party, with such amount subject to change as conditions warrant.

Also, I thought we usually had assignability to affiliates so long as the guarantor remained the same. I think Bill indicated we probably removed that because we had it this way with the Canadian subsidiary. He wants to put it back in. I want it back in as well.

Otherwise, we are increasing the guaranty amounts to \$25MM, and they have agreed to the cross default provisions.

Let's discuss this when you get a minute. He had some additional clarification he needed, but these seemed to be the legal issues on his list. I don't think there is going to be any way around this other than to call him and explain. Sorry.

Paul

-----Original Message-----

From: "Bowman, Bill" <bill.bowman@weyerhaeuser.com>@ENRON
[mailto:IMCEANOTES--+22Bowman+2C+20Bill+22+20+3Cbill+2Ebowman+40weyerhaeuser+2E
com+3E+40ENRON@ENRON.com] Sent: Tuesday, March 06, 2001 11:50 AM To: Radous, Paul Subject: Provisions

1 - We would like the right to assign to another counterparty as well as Enron. Something within Weyerhaeuser.

2 - If Weyerhaeuser or Enron below investment grade, can

Post collateral, Counterparty will act in a commercially reasonable manner

Obtain a third party guarantee, Counterparty will act in a commercially reasonable manner

Regards,

Bill Bowman Phone - 253-924-3418 Fax - 253-924-3870 e-mail bill.bowman@weyerhaeuser.com

All contents in this e-mail should be considered proprietary and treated in a confidential manner

Message 354 of 1118

Re: **Futures Agreement**

Sender alterson_thomas@jpmorgan.com

Recipients ['sara.shackleton@enron.com']

File shackleton-s/notes_inbox/2462.

I have a call into the compliance officer who supposedly sent the docs.

*At the request of Michael Schneider I have attached a .zip file containing the documentation we require in order for Enron NA Corp to open listed options accounts with JP Morgan Securities Inc. Please review the instructions, complete the necessary docs and feel free to contact me with any questions (212/648-4315).

Exchange Traded Options Account Agreement and related documentation is attached below. In addition to signing the Agreement, you should make sure to read all disclosure statements as well as sign and date the Options New Account Form. Also, you should note that in order to have the authority to transfer funds between or among any accounts which may exist in other areas of J.P. Morgan you must actively acknowledge the "Authorization to Transfer Funds" form attached. Further, just as with the JPMFI account, we're going to need you to completely fill out the JPMSI Letter In Lieu attached. (See attached file: Enron NA Corp OCC Documents.ZIP) Again, if you have any questions please phone me.

Regards, Tom Alterson

Sara.Shackleton@enron.com on 04/19/2001 11:43:31 AM

To: alterson_thomas@jpmorgan.com cc: Subject: Re: **Futures Agreement**

Tom: Thanks for the info. I did not receive anything from you yesterday (Wed., April18). Please update. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Thomas P Alterson" <alterson_thomas@jpm To: Sara.Shackleton@enron.com organ.com> cc: Subject: **Futures Agreement** 04/18/2001 10:53 AM

Sara:

I have tried to fax you the cover and signature page from our Client Agreement 3 times now and the fax is not going through. I am sending to fax # 713-646-3490. Please advise if there is another number I can fax this too.

In addition, I have been instructed by our compliance people to send you back the original copies of the Client Agreement so that a duly authorized representative of Enron can sign off on Section 24.(b). The Agreement has been sent to you. Please have the correct boxes checked, initialed and then sent back to us for execution by JPMFI. We will turn them around in one day.

Attached below is a copy of the cover and sig page (fax copy) in .pdf format.

(See attached file: Enron cov+sig.pdf)

If you have any questions please call me at 212-646-4315.

Thank you, Tom Alterson

(See attached file: Enron cov+sig.pdf)

- Enron cov+sig.pdf - Enron NA Corp OCC Documents.ZIP

Message 355 of 1118

Industry topics being presented in New York and Washington DC

Sender	info@futuresindustry.org
Recipients	['info@futuresindustry.org']
File	shackleton-s/deleted_items/475.

Need to know more about the how the markets function, the players, the regulators and today's hot topic? Then, check-out the cost-effective courses being offered by the Institute for Financial Markets. The IFM, established in 1989, is a nonprofit foundation and leading educational and information institute serving the financial services industry. Programs are directed to market-users, journalists, academics, congressional staffers, agency personnel and those who develop and implement public policy. Futures and Options Seminar Feb. 25 & 26 - Washington DC Mar. 18 & 19 - New York City This comprehensive two-day training session is ideal for new hires, those requiring a more in depth knowledge about futures and options. The seminar provides a foundation in the fundamentals of futures and options market theory and practice. (The class also is ideal Series 3 candidates seeking market knowledge.) This seminar price of \$525 includes two text books and PassMaster a tutorial software program. An Introduction to Security Futures Mar. 20 - New York City Apr. 23 - New York City It's the new hot topic! Security Futures, once a banned product, will begin trading later this year. This half-day course presents an overview of security futures and the underlying cash markets including the requirements for trading and offering these innovative products. The class price is only \$225. What are security futures? Click here <http://www.theifm.org/index.cfm?inc=securityFutures/securityFutures.inc>. For more information please call 202.223.1528 or visit our web site at www.theifm.org. For program details please click on the following direct link <http://www.theifm.org/index.cfm?inc=eventsCalendar.inc>. Multiple attendees and government discounts are available. Class size is limited to promote an interactive and productive learning environment, so please respond now to reserve your seat! Please feel free to forward this email to others who are seeking training solutions on these specific topics. Best Regards, Trish Fosh?e Director, Sales and Marketing Institute for Financial Markets 2001 Pennsylvania Ave. NW | Suite 600 Washington DC 20006 Tel: 202.223.1528 x.120 Fax: 202.296.3184 www.theifm.org - The FII is now the Institute for Financial Markets. Our new name reflects our expanded mission to develop and provide products and services for the financial services industry. ----- If you do not wish to receive e-mails from us in the future, you may opt out by notifying us via e-mail at optout@futuresindustry.org or by writing us at 2001 Pennsylvania Avenue N.W., Suite 600, Washington, DC 20006.

*Message 356 of 1118***Re: Legal Review - Enron Credit Inc.**

Sender	cheryl.nelson@enron.com
Recipients	[sara.shackleton@enron.com']
File	shackleton-s/all_documents/9599.

Hey Sara,

Let's talk in detail Monday but just quickly - its precisely the decision to include the arbitration clause that makes the language prohibitive. I think the gist of the applicable NASD rule is that members cannot draft arbitration clauses which limit the damages that either party would otherwise be entitled to in court. Thus, the solution if Morgan or the others object would be to draft a clause that is consistent with what New York provides -- since New York is the applicable jurisdiction. (I'll find a sample clause I drafted in the past and bring when we meet). Otherwise, these firms could be fined for including such language. I am going to find the applicable rule and make sure that it is still good law but off hand I believe that it is. It will be interesting to note if any of the firms object on this ground.

I may have some questions about other legal issues in the agreements; if so, I will bring them up when we meet so that we can work through them together.

Cheryl Nelson Senior Counsel EB3880D (713) 345-4693

Sara Shackleton@ECT 03/02/2001 11:18 AM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Subject: Re: Legal Review - Enron Credit Inc.

With respect to Morgan, I believe that a paragraph could be added to reflect the parties' agreement to a forum other than a contract market (i.e., "AAA"), and if the customer chose a particular forum for arbitration, then the parties could stipulate that the arbitrators not have authority to award punitive, exemplary or similar damages. Because these are fairly old forms, I can't recall the reason for excluding this language.

I'll schedule some time on Monday for us to talk.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 03/02/2001 10:58 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Legal Review - Enron Credit Inc.

Hi Sara,

I have completed a preliminary legal review of the Account Agreements with Goldman Sachs and Morgan Stanley.

I read the draft language you sent re: limitation of liability that you suggested we add to these and the Bear Stearns agreements for Enron Credit, Inc. Because these agreements have arbitration clauses, this provision as drafted might be unenforceable under the NASD rules. I am going to doublecheck the law on this point today or over the weekend. If this is in fact correct, the firms will probably reject the provision on this ground especailly if including it would subject them to NASD fines. In any case, we can wait to see what there response is but in the meantime we should set aside time to discuss the law on this point.

Cheryl Nelson Senior Counsel EB3880D (713) 345-4693

*Message 357 of 1118***Re: Enron Credit Inc. ("ECI")**

Sender	tom.doukas@enron.com
Recipients	['sara.shackleton@enron.com', 'cheryl.nelson@enron.com']
File	shackleton-s/all_documents/10563.

Whenever you decide whether the UCD for ECI is sufficient or not please let me know urgently. Management in London has some aggressive expectations for a deliverable on repos. We will have to push back on them if the UCD has to be redrafted.

I would very much like to give management a clear status and a realistic time-frame for when we can expect to have the repo capacity in place.

I do recognize the time frame is highly dependent on what the current situation actually is. Therefore I am hopeful we can answer the below questions sooner than later.

If I can provide any help in anyway please let me know.

Tom,

04/16/2001 12:16 PM Cheryl Nelson Cheryl Nelson Cheryl Nelson 04/16/2001 12:16 PM 04/16/2001 12:16 PM Sent by: Cheryl Nelson To: Tom Doukas/NA/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT

Subject: Re: Enron Credit Inc. ("ECI")

Sara, I do not agree with the view that we cannot use the existing resolutions for repos. Please call me at your convenience so that we can discuss.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Tom Doukas 04/16/2001 08:55 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Re: Enron Credit Inc. ("ECI")

I am assuming that you are saying that if repos go through the Prime Broker accounts it is a problem. The problem being that the current brokerage agreements for ECI do not provide for repos. Is my assumption correct?

Is our UCD adequate as is for repos?

What is our existing format that you mention below?

Are you able to pursue this with Goldman right now today?

Thanks,

Tom

From: Sara Shackleton@ECT on 04/16/2001 08:36 AM To: Tom Doukas/NA/Enron@ENRON cc: Cheryl Nelson/NA/Enron@Enron

Subject: Re: Enron Credit Inc. ("ECI")

Tom:

I am not certain that the existing resolution permits repurchase and reverse repurchase transactions and securities lending, bonds borrow pledge, etc. as the brokerage consent was not written to accommodate these types of transactions. However, if the repo party will accept our existing format, then we need not worry. I'll call Ted Leh and try to find the proper Goldman person.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 04/16/2001 08:10 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron, David A Wall/Risk Mgmt/LON/ECT@ECT, Greg Hedger/LON/ECT@ECT, Reza Rezaeian/EU/Enron@ENRON Subject: Re: Enron Credit Inc. ("ECI")

Sara,

Can you please provide your findings on the following items:

1. Determine with Cheryl that ECI is in fact authorized to transact Repos
2. How robust the Goldman Repo agreements are, and their suitability to ECI.
3. An estimate on how long it will take to set up the Goldman Repo Agreements in ECI's name.

Can you please also provide any ideas how ECI or ECL could transact a Repo trade today using existing documentation.

London has indicated an urgent need to carry out these transactions.

Thanks,

Tom

Message 358 of 1118

Re: Enron Credit Inc. ("ECI")

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'Cheryl Nelson/NA/Enron@Enron']
File	shackleton-s/all_documents/10569.

Sara,

As a courtesy, Bear Stearns permitted us to open the Prime Broker Account without receipt of the resolutions provided that we sent them under separate cover. This was necessary because I needed to get more firm approval on the slate of officers that Richard Sage had communicated to me and Stephanie.

The question of whether the consents were drafted to provide for Repos is new to me since I do not recall that you and I discuss this during the process of opening the accounts. However, in any case, if necessary, we could easily and quickly edit the resolutions today and send them overnight to Bear to make explicit that we would want to use Bear for financing any repos. Again, I am not sure if this is what we want to do since we have not discussed it, but let me know.

If I can be of any further assistance today, let me know. I had planned to leave at 5:30 p.m. but can rearrange my schedule if you need any help with any thing.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 04/16/2001 03:24 PM -----

Tom Doukas 04/16/2001 08:55 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Re: Enron Credit Inc. ("ECI")

I am assuming that you are saying that if repos go through the Prime Broker accounts it is a problem. The problem being that the current brokerage agreements for ECI do not provide for repos. Is my assumption correct?

Is our UCD adequate as is for repos?

What is our existing format that you mention below?

Are you able to pursue this with Goldman right now today?

Thanks,

Tom

From: Sara Shackleton@ECT on 04/16/2001 08:36 AM To: Tom Doukas/NA/Enron@ENRON cc: Cheryl Nelson/NA/Enron@Enron

Subject: Re: Enron Credit Inc. ("ECI")

Tom:

I am not certain that the existing resolution permits repurchase and reverse repurchase transactions and securities lending, bonds borrow pledge, etc. as the brokerage consent was not written to accommodate these types of transactions. However, if the repo party will accept our existing format, then we need not worry. I'll call Ted Leh and try to find the proper Goldman person.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 04/16/2001 08:10 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron, David A Wall/Risk Mgmt/LON/ECT@ECT, Greg Hedger/LON/ECT@ECT, Reza Rezaeian/EU/Enron@ENRON Subject: Re: Enron Credit Inc. ("ECI")

Sara,

Can you please provide your findings on the following items:

1. Determine with Cheryl that ECI is in fact authorized to transact Repos
2. How robust the Goldman Repo agreements are, and their suitability to ECI.
3. An estimate on how long it will take to set up the Goldman Repo Agreements in ECI's name.

Can you please also provide any ideas how ECI or ECL could transact a Repo trade today using existing documentation.

London has indicated an urgent need to carry out these transactions.

Thanks,

Tom

Message 359 of 1118

RE: ISDA w/ First Union National Bank

Sender	delene.travella@funb.com
Recipients	['paul.radous@enron.com', 'sara.shackleton@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/9695.

Hi Susan, I understand that Sara is out until Monday, 3/12. Based on your email regarding the dates of comments provided, it appears that you did not include First Union's requested additions to the Confidentiality provision (emailed on Jan 24th). Please let me know if these changes are problematic for Enron, or if the reason they were not included was just an oversight. I've attached again for your reference:

I've attached your confidentiality provision with our requested insertions (underlined) below. (j) Confidentiality. The contents of this Agreement and all other documents relating to this Agreement, and any information made available by one party or its Credit Support Provider to the other party or its Credit Support Provider with respect to this Agreement is confidential and shall not be disclosed to any third party (nor shall any public announcement relating to this Agreement be made by either party), except for such information (i) as may become generally available to the public, other than as a result of a disclosure in violation of the terms hereof (ii) as may be required or appropriate in response to any summons, subpoena, or otherwise in connection with any litigation or to comply with any applicable law, order, regulation, ruling, or

accounting disclosure rule or standard, whether in response thereto or upon initiation by either party in defending itself, reducing its liability, or protecting or exercising any of its claims, rights, remedies or interests under or in connection with this Agreement or any Transaction (iii) as may be obtained from a non-confidential source that disclosed such information in a manner that did not violate its obligations to the non-disclosing party or its Credit Support Provider in making such disclosure, or (iv) as may be furnished to the disclosing party's Affiliates, and to each of such person's auditors, attorneys, advisors or lenders which are required to keep the information that is disclosed in confidence.

Thanks, Dee Delene M. Travella Vice President Capital Markets, Derivatives Telephone: (704) 383-8778 Facsimile: (704) 383-0575 email: delene.travella@funb.com

-----Original Message----- From: Susan.Bailey@enron.com [SMTP:Susan.Bailey@enron.com] Sent: Tuesday, February 27, 2001 9:24 AM To: delene.travella@funb.com Cc: Sara.Shackleton@enron.com; Paul.Radous@enron.com Subject: ISDA w/ First Union National Bank Importance: High Dee, Attached for your review is a blacklined version of the: (a) Schedule and (b) Paragraph 13 to the ISDA Master Agreement. These have been compared against the draft dated 11/8/2000, and include ENA's accepted changes per your (a) faxed comments transmitted to ENA on January 5, 2001, and (b) e-mail comments transmitted to ENA on January 19th, 2001. We look forward to your response. (See attached file: 163actr(ena-firstunion).doc) Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com << File: 163actr(ena-firstunion).doc >>

Message 360 of 1118

(01-10) Henry Hub Natural Gas Margin Rate Change for Back Month

Sender	sara.shackleton@enron.com
Recipients	['sarah.wesner@enron.com', 'joseph.deffner@enron.com', 'mary.cook@enron.com']
File	shackleton-s/sent/5272.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/08/2001 04:04 PM -----

exchangeinfo@nymex.com 01/08/2001 02:09 PM

To: sara.shackleton@enron.com cc: Subject: (01-10) Henry Hub Natural Gas Margin Rate Change for Back Month Contracts:

Notice No. 01-10 January 8, 2001

TO: ALL NYMEX MEMBERS AND MEMBER FIRMS ALL NYMEX CLEARING FIRMS ALL NYMEX OPERATIONS MANAGERS

FROM: Neal Wolkoff Executive Vice President

SUBJECT: MARGIN RATE CHANGE FOR BACK MONTH CONTRACTS

Effective Date: Monday, January 8, 2001 (close of business).

Futures Contract: Henry Hub Natural Gas.

Contract Months: April 2001 and all Subsequent Contract Months.

Rate Change:

NYMEX Division Margins for the April 2001 Contract and all Subsequent Henry Hub Natural Gas Futures Contracts

Effective Date: Monday, January 8, 2001 (close of business)

Clearing Member (Maintenance Margin): Old: \$7,000 New: \$5,000

Member Customer (Initial Margin): Old: \$7,700 New: \$5,500

Non-Member Customer (Initial Margin): Old: \$9,450 New: \$6,750

Current systems calculate the margin requirement for spread positions by first determining the "Scan Risk" and then multiplying the number of spreads by a rate set by the Exchange. Scan Risk is determined by netting the outright margin required for each leg of a spread.

Because there is a difference between the outright margin required for the February 2001 and March 2001 delivery months and other months, each spread which includes one leg in either the February 2001 or March 2001 delivery months will have its requirement (at the clearing member rates) calculated at \$11,500 starting on Monday, January 8, 2001. This figure is determined as follows:

Example at Clearing Member Rates

One Long February 2001 or March 2001 NG (1 x \$14,000) = \$14,000 One Short April 2001 - January 2004 NG (1 x \$5,000) = - \$ 5,000 Net Scan Risk (\$14,000-\$5,000) = \$ 9,000 Spread Rate (1x \$2,500) = + \$ 2,500 Total Requirement = \$11,500

NYMEX Division Margins on Natural Gas Futures Spreads: Requirements for Spreads with One Leg in February 2001 or March 2001 Contract, and One in the April 2001 Contract or Subsequent Contracts

Clearing Member (Maintenance Margin): \$11,500

Member Customer (Initial Margin): \$12,650

Non-Member Customer (Initial Margin): \$15,525

Should you have any questions regarding these changes, please contact Arthur McCoy at (212) 299-2928 or Joe Sanguedolce at (212) 299-2855. This notice supersedes all previous notices regarding outright margins for the NYMEX Henry Hub Natural Gas Futures Contract.

Please click on the link below to indicate you have received this email.

" [http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&r_efdoc=\(01-10\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&r_efdoc=(01-10))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 361 of 1118

Futures Documentation - Update

Sender	samantha.boyd@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1132.

FYI

Lotus notes has been updated to reflect this new entry. A green file has been created and copies of the two attachments have been placed in it.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Sara Shackleton@ECT 09/11/2000 05:02 PM

To: Samantha Boyd/NA/Enron@Enron cc: Subject: Futures Documentation

Sam: We do need to enter into Lotus Notes. I am negotiating the futures agreement now together with PrimeTrade.
Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 09/11/2000 05:00 PM -----

Sara Shackleton 07/27/2000 04:46 PM

To: Samantha Boyd/NA/Enron cc: Subject: Futures Documentation

Please enter into Lotus Notes so that we can track. ----- Forwarded by Sara Shackleton/HOU/ECT on 07/27/2000 04:43 PM -----

Sheila Glover 07/27/2000 03:59 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Gary Hickerson/HOU/ECT@ECT, Darren Delage/HOU/ECT@ECT Subject: Futures Documentation

Sara, The clearing agreement is below. We do not need to complete the Give-up agreement. We will execute and clear through CSFB for this activity. Sheila ----- Forwarded by Sheila Glover/HOU/ECT on 07/27/2000 03:21 PM -----

"Reis, Steven" <steven.reis@csfb.com> on 07/27/2000 02:58:04 PM To: "sheila.glover@enron.com" <sheila.glover@enron.com> cc: Subject: Futures Documentation

Sheila,

At the request of Kate Goss of our Fixed Income Trading Group please find clearing documentation and a Give-Up agreement for executing with additional brokers.

<<futures.pdf>> <<3prtygu.doc>> Please have the clearing documents executed by the appropriate parties and returned to my attention along with supporting documents establishing the ability of the entity to trade futures, authorization of the individual(s) who signed the documents to be able to do so, trading guidelines and any applicable resolutions.

With regard to the Give-up Agreement, please have this document executed on behalf of Enron and forwarded to the executing broker with instructions to return the Give-Up agreement to me for final signature and distribution..

Please call with any questions or concerns.

Regards, Steven J. Reis Vice President CREDIT I FIRST SUISSE I BOSTON Legal and Compliance Tel: 212-325-6365 Fax: 212-325-8282 e-mail Steven.Reis@CSFB.com

[INFO] -- Content Manager: This message is for the named person's use only. It may contain confidential, proprietary or legally privileged information. No confidentiality or privilege is waived or lost by any mistransmission. If you receive this message in error, please immediately delete it and all copies of it from your system, destroy any hard copies of it and notify the sender. You must not, directly or indirectly, use, disclose, distribute, print, or copy any part of this message if you are not the intended recipient. CREDIT SUISSE GROUP and each of its subsidiaries each reserve the right to monitor all e-mail communications through its networks. Any views expressed in this message are those of the individual sender, except where the message states otherwise and the sender is authorised to state them to be the views of any such entity. Unless otherwise stated, any pricing information given in this message is indicative only, is subject to change and does not constitute an offer to deal at any price quoted. Any reference to the terms of executed transactions should be treated as preliminary only and subject to our formal written confirmation.

- futures.pdf - 3prtygu.doc

Message 362 of 1118

BuySideDirect Agreement

Sender	mike.fowler@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/3576.

Sheila indicated that your group would complete the sections of the Buy Side Direct Agreement referenced below. I was not aware of how that part of the process works at Enron.

Thanks.

Mike ----- Forwarded by Mike Fowler/Corp/Enron on 09/14/2000 02:09 PM -----

Mike Fowler 09/14/2000 08:46 AM To: Sheila Glover/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, PETEJ@andrews-kurth.com, Tom Doukas/NA/Enron@ENRON, Eric Tipp/Corp/Enron@ENRON, Madhur Dayal/HOU/ECT@ECT

Subject: BuySideDirect Agreement

It appears that we are close to resolving outstanding legal issues regarding the agreement to allow online bond trading through Buy Side Direct. Sheila, is your group the appropriate area to complete the Subscriber Application and Attachment 2 documents provided below ?

We will also execute an agreement with Buy Side Direct's clearing firm (Weiss, Peck & Greer) which will direct them to clear our trades through the prime broker we designate. Sheila, I will leave you a paper copy of the preliminary version of this agreement. Is your group the appropriate area to complete the information this agreement requires on pages 7 and 8 - essentially, tax ID # and account # ?

Eric / Tom, please handle any communication required with our prime broker required before we initiate trading on Buy Side Direct.

Sara / Jason, please let me know if I am overlooking any other information that we will require from Sheila's group related to Buy Side Direct.

(Approval from our Credit group is expected this week.)

Thanks.

Mike x39990

To: <Mike.Fowler@enron.com> cc: <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com>, "Lisa@Buysidedirect. Com" <lisa@buysidedirect.com>

Subject: RE: Enron-BuySideDirect Agreement

I made the two remaining changes:

1. added limits on clearly erroneous policy time limits. We will promptly notify other side and will make a decision within 4 hours of the issue being raised or by 6PM whichever is sooner. 2. deleted first sentence from 5.4

I am still trying to get further resolution from WPG with regard to your insert #6.

Please call with any questions.

Regards,

Mike 415-369-5016 ----- Forwarded by Mike Fowler/Corp/Enron on 09/14/2000 08:13 AM -----

"Michael Minnich" <minnich@imarkets.com> on 09/12/2000 07:00:10 PM Please respond to <minnich@imarkets.com>
To: <mike.fowler@enron.com>, <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com> cc: "Lisa@Buysidedirect. Com" <lisa@buysidedirect.com>, <minnich@imarkets.com>

Subject: Enron-BuySideDirect Agreement

I apologize for the delay. I made the changes as discussed except:

1. I did not put a limit on the Clearly erroneous policy--not because I didn't agree, but because I did not see an obvious answer in the Nasdaq agreement. I will look at it more tomorrow, but I wanted to get this to you rather than delay further. 2. Striking first sentence in 5.4--I have not heard back from our lawyers. Hopefully tomorrow.

Also, I attach the broker dealer attachment 2 which you said you didn't have.

I think we resolved most of your WPG questions. WPG is OK with all of your changes except Insert 6. I will try to get further resolution as to why they object so that you can negotiate further if you like.

If all goes well, hopefully this can be wrapped up tomorrow.

Regards,

Mike

BuySideDirect LLC a subsidiary of Intelligent Markets, Inc.

410 Jessie Street, Suite 602 San Francisco, CA 94103 (415) 369-5016 direct (415) 369-5020 sales (415) 369-5010 fax
minnich@imarkets.com

- Enron BuySideDirect Subscriber Application, Version August 25, 2000.doc - BuySideDirect Attachment 2.DOC

Message 363 of 1118

Weiss, Peck & Greer Agreement

Sender	mike.fowler@enron.com
Recipients	['petej@andrews-kurth.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1060.

Do have an electronic version of the Prime Brokerage agreement (Security Industry Association form 151) ?

If we use the "marked-up" version, I ask that we incorporate my previous comments:

Regarding your comments, I would not change the 2nd line of 5a from "your Prime Broker" to "the exchange".

Fees: We will not be assessed any fees from WPG. Thus, I suggest that section 9 state this, or be removed.

Margin: Section 14 should note that margin for our transactions through Buy Side Direct would be maintained at our prime broker. WPG would only request margin if our prime broker disaffirms a trade.

How would you suggest we proceed ?

Thanks.

Mike

----- Forwarded by Mike Fowler/Corp/Enron on 09/14/2000

12:31 PM -----

"Michael Minnich" <minnich@imarkets.com> on 09/14/2000 12:30:31 PM Please respond to <minnich@imarkets.com>

To: <Mike.Fowler@enron.com> cc:

Subject: RE: Enron-BuySideDirect Agreement

I assume you have a standard agreement with these changes? I don't think WPG is going to make your changes for you.

Most firms simply cross out / insert as you did and sign the agreement and send it in.

-----Original Message-----

From: Mike.Fowler@enron.com [mailto:Mike.Fowler@enron.com] Sent: Thursday, September 14, 2000 10:03 AM To: minnich@imarkets.com Subject: RE: Enron-BuySideDirect Agreement

Could you send us a revised Weiss, Peck and Greer agreement ?

Thanks.

Mike

"Michael Minnich" <minnich@imarkets.com> on 09/13/2000 06:58:21 PM

Please respond to <minnich@imarkets.com>

To: <Mike.Fowler@enron.com> cc: <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com>, "Lisa@Buysidedirect. Com" <lisa@buysidedirect.com>

Subject: RE: Enron-BuySideDirect Agreement

I made the two remaining changes:

1. added limits on clearly erroneous policy time limits. We will promptly notify other side and will make a decision within 4 hours of the issue being raised or by 6PM whichever is sooner. 2. deleted first sentence from 5.4

I am still trying to get further resolution from WPG with regard to your insert #6.

Please call with any questions.

Regards,

Mike 415-369-5016

-----Original Message-----

From: Mike.Fowler@enron.com [mailto:Mike.Fowler@enron.com] Sent: Wednesday, September 13, 2000 6:06 AM To: minnich@imarkets.com Cc: mike.fowler@enron.com; jpeters@andrews-kurth.com; sara.shackleton@enron.com; Lisa@Buysidedirect. Com; minnich@imarkets.com Subject: Re: Enron-BuySideDirect Agreement

In case I did not specify this previously, with regard to time limits for the clearly erroneous policy, I would encourage you to consider both 1) counterparty notification that a trade is being questioned and 2) resolution.

Thanks.

Mike

"Michael Minnich" <minnich@imarkets.com> on 09/12/2000 07:00:10 PM

Please respond to <minnich@imarkets.com>

To: <mike.fowler@enron.com>, <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com> cc: "Lisa@Buysidedirect. Com" <lisa@buysidedirect.com>, <minnich@imarkets.com>

Subject: Enron-BuySideDirect Agreement

I apologize for the delay. I made the changes as discussed except:

1. I did not put a limit on the Clearly erroneous policy--not because I didn't agree, but because I did not see an obvious answer in the Nasdaq agreement. I will look at it more tomorrow, but I wanted to get this to you rather than delay further. 2. Striking first sentence in 5.4--I have not heard back from our lawyers. Hopefully tomorrow.

Also, I attach the broker dealer attachment 2 which you said you didn't have.

I think we resolved most of your WPG questions. WPG is OK with all of your changes except Insert 6. I will try to get further resolution as to why they object so that you can negotiate further if you like.

If all goes well, hopefully this can be wrapped up tomorrow.

Regards,

Mike

BuySideDirect LLC a subsidiary of Intelligent Markets, Inc.

410 Jessie Street, Suite 602 San Francisco, CA 94103 (415) 369-5016 direct (415) 369-5020 sales (415) 369-5010 fax minnich@imarkets.com

(See attached file: Enron BuySideDirect Subscriber Agreement, Dated August 25, 2000.doc) (See attached file: Enron BuySideDirect Subscriber Application, Version August 25, 2000.doc) (See attached file: BuySideDirect Attachment 2.DOC)

(See attached file: Enron BuySideDirect Subscriber Agreement, Dated August 25, 2000.doc)

Message 364 of 1118

BuySideDirect - Outstanding Issues	
Sender	mike.fowler@enron.com
Recipients	['petej@andrews-kurth.com', 'sara.shackleton@enron.com', 'Sara Shackleton/HOU/ECT@ECT', 'PETEJ@andrews-kurth.c...]
File	shackleton-s/notes_inbox/1063.

My understanding is that the following issues are outstanding with regard to the Buy Side Direct agreements:

Buy Side Direct Agreement:

Notice - Sara is developing proposed guidelines for notification (how + who should receive).

Indemnity (#6) - Jason and Sara will discuss.

I would encourage you to discuss these issues without me unless you prefer that I participate.

Weiss, Peck & Greer Agreement:

Fees: We will not be assessed any fees from WPG. Thus, I suggest that section 9 state this, or be removed.

Margin: Section 14 should note that margin for our transactions through Buy Side Direct would be maintained at our prime broker. WPG would only request margin if our prime broker disaffirms a trade.

Mike Minnich noted that WPG had agreed to our other comments. Have we received a revised WPG agreement with these changes ?

As noted below, I have asked Sheila to provide information required for the BSD and WPG agreements.

Please let me know if there are other issues which I should be involved in discussing.

Thanks.

Mike x39990

----- Forwarded by Mike Fowler/Corp/Enron on 09/14/2000

10:03 AM -----

Mike Fowler 09/14/2000 08:46 AM To: Sheila Glover/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, PETEJ@andrews-kurth.com, Tom Doukas/NA/Enron@ENRON, Eric Tipp/Corp/Enron@ENRON, Madhur Dayal/HOU/ECT@ECT

Subject: BuySideDirect Agreement

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We will also execute an agreement with Buy Side Direct's clearing firm (Weiss, Peck & Greer) which will direct them to clear our trades through the prime broker we designate. Sheila, I will leave you a paper copy of the preliminary version of this agreement. Is your group the appropriate area to complete the information this agreement requires on pages 7 and 8 - essentially, tax ID # and account # ?

Eric / Tom, please handle any communication required with our prime broker required before we initiate trading on Buy Side Direct.

Sara / Jason, please let me know if I am overlooking any other information that we will require from Sheila's group related to Buy Side Direct.

(Approval from our Credit group is expected this week.)

Thanks.

Mike x39990

To: <Mike.Fowler@enron.com> cc: <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com>, "Lisa@Buysidedirect. Com" <lisa@buysidedirect.com>

Subject: RE: Enron-BuySideDirect Agreement

I made the two remaining changes:

1. added limits on clearly erroneous policy time limits. We will promptly notify other side and will make a decision within 4 hours of the issue being raised or by 6PM whichever is sooner. 2. deleted first sentence from 5.4

I am still trying to get further resolution from WPG with regard to your insert #6.

Please call with any questions.

Regards,

Mike 415-369-5016 ----- Forwarded by Mike Fowler/Corp/Enron on 09/14/2000 08:13 AM

"Michael Minnich" <minnich@imarkets.com> on 09/12/2000 07:00:10 PM Please respond to <minnich@imarkets.com>

To: <mike.fowler@enron.com>, <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com> cc: "Lisa@Buysidedirect. Com" <lisa@buysidedirect.com>, <minnich@imarkets.com>

Subject: Enron-BuySideDirect Agreement

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1. I did not put a limit on the Clearly erroneous policy--not because I didn't agree, but because I did not see an obvious answer in the Nasdaq agreement. I will look at it more tomorrow, but I wanted to get this to you rather than delay further. 2. Striking first sentence in 5.4--I have not heard back from our lawyers. Hopefully tomorrow.

Also, I attach the broker dealer attachment 2 which you said you didn't have.

I think we resolved most of your WPG questions. WPG is OK with all of your changes except Insert 6. I will try to get further resolution as to why they object so that you can negotiate further if you like.

If all goes well, hopefully this can be wrapped up tomorrow.

Regards,

Mike

BuySideDirect LLC a subsidiary of Intelligent Markets, Inc.

410 Jessie Street, Suite 602 San Francisco, CA 94103 (415) 369-5016 direct (415) 369-5020 sales (415) 369-5010 fax minnich@imarkets.com

- Enron BuySideDirect Subscriber Application, Version August 25, 2000.doc - BuySideDirect Attachment 2.DOC

Message 365 of 1118

(01-124) SPECIAL MEETING OF NYMEX HOLDINGS, INC. STOCKHOLDERS

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10382.

Notice No. 01-124 April 5, 2001

To: All NYMEX Holdings, Inc. Stockholders All NYMEX Division Members

From: Donna M. Talamo, Director Office of the Corporate Secretary

Re: SPECIAL MEETING OF NYMEX HOLDINGS, INC. STOCKHOLDERS =01) FILLING OF BOARD = OF=20 DIRECTORS VACANCIES

The Board of Directors of NYMEX Holdings, Inc. has called a special meeting= =20 of the NYMEX Holdings, Inc. stockholders for the purpose of filling vacanci= es=20 on the Board of Directors. This meeting will be held on Wednesday, May 23,= =20 2001 at 4:00 p.m. in Board Room 1010 of the Exchange, One North End Avenue,= =20 New York City. For your convenience, however, ballots will also be accepte= d=20 until 4:00 p.m. in the Members=01, Lounge on the third floor of the Exchang= e.

At the special meeting, the following vacancies will be filled as follows:

- o Equity Holders Representative* -One position to expire 2002 (Three vacancies) -One position to expire 2003 -One position to expire 2004
- o Futures Commission Merchant Representative -One position to expire 2003 (One vacancy)
- o Public Director Representative -One position to expire 2002 (One vacancy)

*The three Equity Holders Representatives will be elected as follows: of t= he=20 three elected candidates, the candidate receiving the most votes will be=20 elected to the term expiring 2004, the candidate receiving the second highe= st=20 number of votes will be elected to the term expiring 2003, and the candidat= e=20 receiving the third highest number of votes will be elected to the term=20 expiring 2002.

The Office of the Corporate Secretary (c/o Donna M. Talamo, One North End= =20 Avenue, Room 1548, New York, NY 10282 =01) fax 212-301-4645 or email=20 dtalamo@nymex.com) will accept written recommendations of proposed nominees= =20 from stockholders for the vacancies on the Board of Directors not later tha= n=20 5:00 p.m., MONDAY, APRIL 16, 2001. A stockholder may not recommend more th= an=20 one candidate per category. After Monday, April 16, 2001, a list of the=20 recommendations of proposed nominees will be posted.

ONLY PERSONS WHOSE NAMES HAVE BEEN SUBMITTED TO THE OFFICE OF THE CORPORATE= =20 SECRETARY BY 5:00 P.M. ON MONDAY, APRIL 16, 2001 WILL BE PERMITTED TO STAND= =20 FOR ELECTION.

Please note that in order to qualify as a Public Director, a person must be= =20 knowledgeable of futures trading or financial regulation or otherwise capab= le=20 of contributing to the deliberations of the Board of Directors and may not = be=20 a member of the Exchange or affiliated with any member of the Exchange or a= n=20 employee of the Exchange.

After Monday, April 16, 2001, the Membership Subcommittee (=01&Subcommittee= =018)=20 will convene to make its determination as to the eligibility of the propose= d=20 nominees to run in the category for which he was proposed or otherwise. = =20 Such determination will be immediately posted. Should the Subcommittee=20 determine that a proposed candidate is ineligible to run in the category fo= r=20 which he was recommended, written notice thereof shall immediately be=20 submitted to that person. To assist the Subcommittee, NYMEX members may=20 submit information regarding the eligibility of a proposed nominee to the= =20 Subcommittee. All such submissions must be received by 5:00 p.m. on=20 Thursday, April 19, 2001 at the Office of the Corporate Secretary. In=20 addition, a proposed nominee may appeal the Subcommittee=01,s categorizatio= n=20 Such appeal must be made by 5:00 p.m. on April 20, 2001. The Subcommittee= =20 will consider the appeal and make a final ruling no later than April 23,=20 2001. At that time, the Subcommi! tt! ee will

assign the proposed nominees to the proper categories, regardless of the category for which the proposed nominee was originally recommended.

TO BE OFFICIALLY NOMINATED, EACH PROPOSED NOMINEE WILL BE REQUIRED TO FILE WITH THE OFFICE OF THE CORPORATE SECRETARY A DECLARATION WHICH STATES THAT CATEGORY IN WHICH THE PERSON INTENDS TO STAND FOR ELECTION. FAILURE TO SUBMIT A DECLARATION TO THE OFFICE OF THE CORPORATE SECRETARY BY 5:00 P.M. ON TUESDAY, APRIL 24, 2001 WILL RENDER THE PROPOSED NOMINEE INELIGIBLE TO RUN IN ANY CATEGORY.

Please note: only those persons who were proposed by 5:00 p.m. on Monday, April 16, 2001 will be permitted to be officially nominated.

The Record Date for the determination of stockholders entitled to vote will be April 25, 2001.

The Candidates Forum will be held on May 9, 2001.

Proxy statements and ballots will be mailed on or about May 1, 2001.

The election will be held on Wednesday, May 23, 2001.

Should you have any questions regarding the above, please contact Christopher Bowen at (212) 299-2200 or Donna Talamo at (212) 299-2372.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D\(01-124\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-124))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 366 of 1118

Special Meeting - Friday, February 1

Sender	judy.zoch@enron.com
Recipients	['richard.baumfield@enron.com', 'donna.baker@enron.com', 'christina.brandli@enron.com', 'karen.campos@enron.co...]
File	shackleton-s/deleted_items/384.

Gary Hickerson has requested a special EGM Organizational Post Petition Meeting on Friday, February 1 to be held in ECN 30C1 from 9:00 - 9:30 am. Please plan to attend or use the dial-in number shown below:

Domestic Callers Dial 1-877-987-1409 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

International Participants Dial 001-610-769-3343 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

Thank you.

Judy Zoch Enron Global Markets LLC Financial Trading 1400 Smith Houston, TX 77002 (713) 853-0655 email: judy.zoch@enron.com

Message 367 of 1118

RE: Union Springs Fund Ltd.

Sender	paul.radous@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/123.

Thanks. I'm sure Lavo will put them at the top of the priority list.

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, December 19, 2001 4:17 PM To: Rohauer, Tanya; Radous, Paul; St. Clair, Carol Subject: Union Springs Fund Ltd.

Just received a call from Virginia Loebel (609-936-8057) for a return of the \$100,000 cash collateral (Independent Amount) we are holding. She is sending a request which I will forward. She says all trades have rolled off the books.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 368 of 1118

CARGILL-ALLIANT, LLC

Sender	samantha.boyd@enron.com
Recipients	['mara_alexander@cargill.com', 'sara.shackleton@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/boyd/6.

I am forwarding to your attention a clean and red-lined draft of the revised Schedule to the ISDA Master Agreement. Please note that we are still waiting to receive comments from your Treasury Department on the Guaranty from Cargill Incorporation.

If you have any questions or comments, please feel free to contact me at the number referenced below or Sara at (713) 853-5620. We look forward to hearing from you soon.

Samantha M. Boyd Sr. Legal Specialist Enron North America Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 369 of 1118

hedge fund meeting

Sender	sara.shackleton@enron.com
Recipients	['paul.radous@enron.com', 'carol.clair@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/all_documents/10689.

We will keep the 10 am meeting on Tuesday, April 24, EB 38C2 (legal and credit only). We will also schedule a meeting at 3 pm (same day after legal/credit regular meeting) with Fred, Caroline, Russell Dyk and Robyn Zivic. Fred could not meet in the morning and he is an integral part of the process we are trying to develop for hedge funds. I apologize if all of the lawyers cannot meet at 3 pm but at least one lawyer in attendance should keep us on track.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 370 of 1118

your request for FPL Energy Power Marketing ("FPL") ISDA Master

Sender	sara.shackleton@enron.com
Recipients	['smartin@steelhector.com']
File	shackleton-s/all_documents/10085.

Serge:

Sorry to take so long to respond. A few things:

(1) What is the correct legal name of the entity you are inquiring about? Is it the unregulated marketing arm of the regulated utility?

(2) There has not been a commercial push from the ENA perspective to set up a new agreement with FPL which explains why I cannot get our credit group to react. I'll broach the topic again when I hear from you.

Please let me know if you have any other questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 371 of 1118

RE: Union Springs Fund Ltd.

Sender	tanya.rohauer@enron.com
Recipients	['paul.radous@enron.com', 'sara.shackleton@enron.com', 'carol.st.@enron.com']
File	shackleton-s/inbox/122.

they have been asking for it for weeks. Wouldn't they just have an unsecured claim for it?

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, December 19, 2001 4:17 PM To: Rohauer, Tanya; Radous, Paul; St. Clair, Carol Subject: Union Springs Fund Ltd.

Just received a call from Virginia Loebel (609-936-8057) for a return of the \$100,000 cash collateral (Independent Amount) we are holding. She is sending a request which I will forward. She says all trades have rolled off the books.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 372 of 1118

Frost Securities (DB Alex Brown)

Sender	samantha.boyd@enron.com
Recipients	['sara.shackleton@enron.com', 'jpeters@andrews-kurth.com']
File	shackleton-s/all_documents/3390.

The compliance department for DB Alex Brown has rejected our comments to the Prime Brokerage Agreement. Jason, since the file is in your possession, I left word with the compliance officer, Terry Finn, to contact you so that their concerns could be addressed. Terry's phone number is (410) 895-3602.

Today conversations will be logged in Lotus Notes. In the interim, please let me know if there is anything else you guys want me to do on this issue.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 373 of 1118

Re: Could you please resend the latest brokerage agreement status

Sender	sara.shackleton@enron.com
Recipients	['keegan.farrell@enron.com']
File	shackleton-s/all_documents/10405.

No, thanks. I'll wait for Cheryl's review.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Keegan Farrell@ENRON 04/09/2001 08:36 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Could you please resend the latest brokerage agreement status report? thanks

Sara,

I am finishing the last of the edits right now, and was going to wait until I was finished to give them to Cheryl for review. Would you like to see them before she gives the final review? I will be glad to send them to you. Thanks,

Keegan

Message 374 of 1118

Enron Teeside Operating Limited ("ETOL") 3-year rate swap with

Sender	sara.shackleton@enron.com
Recipients	['karolina.moran@enron.com', 'rod.nelson@enron.com']
File	shackleton-s/all_documents/11084.

Karolina and Rod:

This swap has ended up on my desk! Imagine that.

This transaction ought to be booked between RMT and ETOL. The existing ISDA Master Agreement from December 31, 1998 is between Enron Capital & Trade Resources Corp. and ETOL. We need to create an RMT/ETOL ISDA Master Agreement for this 3-year rate swap.

Is ETOL prohibited from entering into swaps with other parties, such as RMT (under the terms of the lending documents)?

Please bring me up to date. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 375 of 1118

Brokerage Agreement - Enserco, LLC

Sender	samantha.boyd@enron.com
Recipients	['stephanie.panus@enron.com', 'richard.lauer@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/5030.

Per our previous conversations, attached is a list of the required documents need to open the account for Enserco, LLC. As soon as I receive the Brokerage Agreement from Aneela, I will enter it into our data base and legal will begin the process of reviewing the agreement for execution. If you have any questions or need additional assistance, please feel free to contact me at the number referenced below or you may contact Stephanie Panus at extension 53249.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 376 of 1118

Consulting Agreement Form

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/sent/6320.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/01/2001 05:39 PM -----

Twanda Sweet 06/01/2001 05:35 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Consulting Agreement Form

This is set up as a merge document. If it asks you to find the data source, you can click on the document below or just delete the header source.

This is the attachment referenced in the the Consulting Agreement.

Twanda Sweet Enron North America Corp. EB3822 (713) 853-9402 twanda.sweet@enron.com

Message 377 of 1118

Sample Forward Confirmation

Sender	sara.shackleton@enron.com
Recipients	['jim.armogida@enron.com']
File	shackleton-s/sent/5397.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/25/2001 02:12 PM -----

Stephanie Panus@ENRON 12/07/2000 11:00 AM

To: terrance.ganser@funb.com cc: Clint Freeland/Corp/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: Sample Forward Confirmation

At the request of Clint Freeland (who works with Tim DeSpain), attached is Enron Corp.'s template for a forward transaction.

Stephanie Panus Sr. Legal Specialist Enron North America Corp. 1400 Smith Street, Suite 3806 Houston, Texas 77002

Message 378 of 1118

Re: CSFB/Enron Corp.

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/all_documents/9429.

Yes, please. Let's look at the .com master before we do anything. The Enron Corp. master should be "easier".

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Stephanie Panus@ENRON 02/26/2001 12:23 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: CSFB/Enron Corp.

FYI - I received a voice mail from Anita Khosla of CSFB (212-538-1938). She wants the Enron Corp. master to mirror the master they recently executed with Enron Credit.com. I have not had a chance to call her back yet. Do you want me to obtain a copy of the Enron Credit master?

Stephanie

Message 379 of 1118

Re: Ofelia Q

Sender	sara.shackleton@enron.com
Recipients	['mary.ogden@enron.com']
File	shackleton-s/all_documents/11393.

Mary: Thanks for the email. No, I cannot use Ofelia on June 18 and I do not want a substitute while she is gone.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Mary Ogden 06/01/2001 04:27 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Ofelia Q

Dear Sara: Ofelia says that if you like, she can work for you on Monday, June 18 since she won't be in town that Thursday, when she's supposed to work for you. Please advise if you'd like her to come on the 18th.

Please also advise if you'd like a sub while she's gone to Colombia.

Thanks, Mary x37796

Message 380 of 1118

RE: Revised form of guaranty

Sender	fortem@coned.com
Recipients	['sara.shackleton@enron.com', 'Edward.Sacks@enron.com; Susan.Bailey@enron.com;']
File	shackleton-s/all_documents/10609.

Thanks, Sara. I'll forward for our internal review.

Thank you and have a great day! Michael

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Wednesday, April 18, 2001 11:27 AM To: fortem@coned.com Cc: Edward.Sacks@enron.com; Susan.Bailey@enron.com; Janelle.Scheuer@enron.com Subject: Revised form of guaranty

Michael:

Attached is a revised blackline of the Enron Corp. guaranty for your review. Please let us have your comments.

(See attached file: con ed of ny amendedR1.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 381 of 1118

Net Asset Value

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/all_documents/10819.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/25/2001 04:17 PM -----

Paul Radous/ENRON@enronXgate 04/25/2001 04:14 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Net Asset Value

"Net Asset Value" means as of the relevant time of determination, an amount (expressed in United States Dollars) equal to the sum of Party B's Assets minus Liabilities. "Assets" means all assets and "Liabilities" means all liabilities, as would generally be classified as such in accordance with generally accepted accounting principles.

Message 382 of 1118

Midwest Power Team - Lotus Notes Access

Sender	sara.shackleton@enron.com
Recipients	['tana.jones@enron.com']
File	shackleton-s/sent/5338.

Tana: Would you please request Lotus Notes access for the individuals listed below? Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/19/2001 03:22 PM -----

Karla Compean 01/19/2001 02:48 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Midwest Power Team

Below please find the list of names:

Karla Compean - Analyst Mike E. Kelly - Associate Doug Sewell - Manager Ed Baughman - VP Terri Clynes - Director Oscar Dalton - Director Gary Justice - Analyst Steve Wang - Manager

Thank you,

Karla Compean 37412

Message 383 of 1118

Re: update

Sender	aaron.armstrong@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11369.

Hi Sara Thanks for update. PLease keep me informed of developments and see if we can put in place the various agreements as speedily as possible. Many thanks Aaron.

From: Sara Shackleton on 01/06/2001 09:06 CDT To: Aaron Armstrong/LON/ECT@ECT cc:

Subject: update

I received an email from Tanya:

I have credit for Morgan and can draft the ISDA.

No response on a conference call to discuss Chase and the collateral situation.

Also, I spoke with Carr Futures and resolved ENA's issue. I'm waiting to receive the give-up agreements.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 384 of 1118

Re: Wine Celler

Sender	sara.shackleton@enron.com
Recipients	['carlew@flash.net']
File	shackleton-s/all_documents/10762.

I can't remember exactly - maybe \$4000 - \$5000

Sure looks like you like to pry!!! (just kidding, Carson) I've picked out a variety of wine for the 16th, by the way

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"R. Carson Llewellyn" <carlew@flash.net> 04/24/2001 11:32 AM

To: Sara Shackleton <Sara.Shackleton@enron.com> cc: Subject: Wine Celler

Sara:

I hate to pry but I might be doing some remodeling to my house in July and wonder what it would cost to duplicate your closet wine cellar. Do you recall a ball park figure on the costs.

See you on May 16th.

Carson

Message 385 of 1118

Re: Medallion Fund/Renaissance

Sender	sara.shackleton@enron.com
Recipients	[paul.radous@enron.com', 'brent.hendry@enron.com', 'francisco.leite@enron.com', 'carol.clair@enron.com']
File	shackleton-s/all_documents/10207.

Paul: Carol will handle the hedge funds. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Paul Radous/ENRON@enronXgate 03/30/2001 01:18 PM

To: Carol St Clair/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Medallion Fund/Renaissance

Please let me know who will be handling this new hedge fund client. I need to forward the limited information I have, and Caroline Abramo needs a list of additional items required.

Thanks. Paul

Message 386 of 1118

"Mega" transaction

Sender	sara.shackleton@enron.com
Recipients	[chris.foster@enron.com', 'melissa.murphy@enron.com']
File	shackleton-s/all_documents/11009.

Do I need to do anything?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/14/2001 10:57 AM -----

Chris H Foster/ENRON@enronXgate 05/08/2001 08:26 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Melissa Ann Murphy/HOU/ECT@ECT Subject:

Sara:

I received a call from Mega today. That financial gas/power deal could come together today. Attached is the draft confirm you prepared. Let me know ASAP if you have any "issues" with closing this deal pursuant to the language you prepared. I will contact you immediately if it closes.

Thanks!

Chris

Message 387 of 1118

Warm Springs Tribe

Sender	sara.shackleton@enron.com
Recipients	['stewart.rosman@enron.com']
File	shackleton-s/all_documents/10024.

Stewart:

I spoke with Rawleigh White (Tribal CFO) and the Tribe's outside counsel the other day. Pending receipt of Tracy's credit worksheet, I'll send the Tribe/lawyers a "sample ISDA without credit" which is not specific to the Tribe. The lawyers will begin to determine if the Tribe is an "eligible contract participant" for purposes of the Commodity Exchange Act.

Rawleigh wants to know if Enron is interested in helping the Tribe finance the purchase of the two dams. Can you please address for West Origination and respond to Raleigh?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 388 of 1118

Citibank ISDA

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/all_documents/10345.

When you have a chance

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/05/2001 08:56 AM -----

Rod Nelson 04/05/2001 03:53 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Citibank ISDA

Hi Sara. I'm sorry to bother with this, but I'm not sure who the appropriate para-legal is these days.

Can you have someone send me an electronic copy of the ENA-Citibank N.A. ISDA contract? I'm looking for the general trading contract and not the one used to confirm the one-off Yosemite structure.

Thanks Sara (or whoever ends up helping out).

Rod

Message 389 of 1118

Re: Foreign currency

Sender	melba.lozano@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10275.

I will remove the footer. Thanks,

Melba

From: Sara Shackleton on 04/02/2001 06:02 PM To: Melba Lozano/HOU/ECT@ECT cc: Subject: Re: Foreign currency

Melba:

It looks fine. Do you remove the footer from the document when it goes online?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Melba Lozano 04/02/2001 05:50 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, William Stuart/HOU/ECT@ECT, Justin Rostant/HOU/ECT@ECT, Robert B Cass/HOU/ECT@ECT, Kevin Meredith/Corp/Enron@ENRON, Chris Walker/HOU/ECT@ECT Subject: Foreign currency

Please find the final draft of the GTC:

Message 390 of 1118

Re: Lawyer Burlingame Birthday

Sender	sara.shackleton@enron.com
Recipients	[pkdaigle@neosoft.com]
File	shackleton-s/all_documents/10596.

Hey, you and I think alike (being that we were raised by the same GAM&D crew). Lawyer Burlingame was unavailable when I called to wish him the best, and of course, he has no email address. Maybe a joint belated call tomorrow?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"P. Keith Daigle" <pkdaigle@neosoft.com> 04/17/2001 05:27 PM Please respond to pkdaigle

To: Shackleton Sara <Sara.Shackleton@enron.com> cc: Subject: Lawyer Burlingame Birthday

I called him today but it was too late. He was probably on his 3rd bottle of champagne at Galatoire's. Can you make it in for a belated?

Lawyer Dago

Message 391 of 1118

RE: capacity of Washington PUD's

Sender	christian.yoder@enron.com
Recipients	[sara.shackleton@enron.com']
File	shackleton-s/all_documents/11419.

Why don't you tell Stewart that we will have an answer for him by Friday. Pat just said on the phone that he would send two cases to me and I will forward them on to you right away. ----cgy

-----Original Message-----

From: Shackleton, Sara Sent: Monday, June 04, 2001 3:11 PM To: Yoder, Christian Subject: capacity of Washington PUD's

Hi, Christian:

Stuart has already called this week inquiring about his ability to continue negotiating with the PUDs. Have you had a chance to speak with Pat Boylston? Let me know if I can assist. Thanks (as usual) for all of your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 392 of 1118

attorney workload

Sender	sara.shackleton@enron.com
Recipients	[mark.taylor@enron.com']
File	shackleton-s/all_documents/10429.

Mark:

When you have a few minutes, I'm glad to discuss continuing "training" and balancing workloads. Mary has no one to unload Canada and structured transactions (Global Finance) since Carol does not have time for either. Angela has no time for equity deals. I think we need a backup for each. Perhaps Anne Koehler fits the bill. Or Cheryl. Each of Anne and Cheryl need ISDA experience. I don't know Francisco's longer term schedule and maybe you need to speak with him and/or Mark Haedicke about his contined international workload. This could turn into a "Yao long term project."

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 393 of 1118

REMINDER --EGM Org Post Petition Meeting

Sender	judy.zoch@enron.com
Recipients	[richard.baumfield@enron.com', 'donna.baker@enron.com', 'christina.brandli@enron.com', 'sally.beck@enron.com']...
File	shackleton-s/inbox/719.

This note is to confirm that Gary Hickerson has requested your attendance at the EGM Organizational Post Petition meeting on Wednesday, February 20 from 9:00 a.m. to 9:30 am in ECN 30C1. Following the meeting the EGM Asset Disposition meeting will take place from 9:30 a.m. to 10:30 a.m. in ECN 30C1. Please plan to attend or use the dial-in

number shown below:

Domestic Callers Dial 1-877-987-1409 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

International Participants Dial 001-610-769-3343 Operator will assist with the call Leaders Name: Gary Hickerson Pass Code: Gary

Thank you.

Judy Zoch Enron Global Markets LLC Financial Trading 1400 Smith Houston, TX 77002 (713) 853-0655 email: judy.zoch@enron.com

Message 394 of 1118

KCS Energy Marketing Inc. ("KCS")

Sender	sara.shackleton@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	shackleton-s/all_documents/11265.

Lisa:

FYI, there has been activity regarding the KCS file, in particular, the status of the amendment to permit cross-netting of certain agreements and the impact of that amendment now that KCS has emerged from bankruptcy. Two (2) new financial transactions have been executed and there is a VPP looming ahead for June 15. The issue which we were trying to isolate is the effect of the amendment to the financial/physical agreements post-bankruptcy. We concluded that KCS is bound post-bankruptcy (Carol St. Clair thought you may have had some reservations). I'll keep you apprised of any developments.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 395 of 1118

Re: Enron Credit Inc. ("ECI")

Sender	tom.doukas@enron.com
Recipients	['sara.shackleton@enron.com', 'cheryl.nelson@enron.com', 'david.wall@enron.com']
File	shackleton-s/all_documents/10492.

Cheryl,

Could we also get copies of the executed prime broker agreements (at least Bear). London would like to take a look the agreements.

Thanks,

Tom

From: Sara Shackleton@ECT on 04/12/2001 09:22 AM To: Cheryl Nelson/NA/Enron@Enron cc: Tom Doukas/NA/Enron@ENRON

Subject: Enron Credit Inc. ("ECI")

Cheryl:

Can you please forward a copy of the ECI resolution(s) (or consent) which was used to establish the Bear account and Securites Loan Agreement? We need to determine all products authorized for ECI trading. Also, copies of Enron Credit

Limited authorizations would be useful. Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 396 of 1118

legal opinion	
Sender	sara.shackleton@enron.com
Recipients	['mcbarnes@kslaw.com']
File	shackleton-s/all_documents/11115.

Mae Charles:

Attached is the form of legal opinion which Enron North America Corp. ("ENA") submitted to M.A.R.T.A. (together with ENA's draft ISDA Schedule and Paragraph 13 to the Credit Support Annex). As we discussed, ENA will now be requesting this opinion from you.

ENA has prepared and submitted a trade confirmation for the recent financial swap to M.A.R.T.A. Other than this document executed by ENA and awaiting execution by M.A.R.T.A., no instruments have been executed by the parties. If you need to see the terms and conditions of the trade, please let me know.

I look forward to speaking with you early next week.

Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 397 of 1118

Re: Richard Sage	
Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/all_documents/8980.

after 2 pm

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Kaye Ellis 02/06/2001 08:20 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Richard Sage

Sara - What time is best for you? Kaye ----- Forwarded by Kaye Ellis/HOU/ECT on 02/06/2001 08:19 AM -----

Kathryn Thomas 02/06/2001 05:29 AM

To: Kaye Ellis/HOU/ECT@ECT, Taffy Milligan/HOU/ECT@ECT cc: Subject: Richard Sage

Kaye/Taffy

I've sent this to you both because I'm not sure who looks after Sara Shackleton. Richard Sage is in Houston for one day on Wednesday 14th February and would like to meet with Sara for 30 minutes if possible. Please can you let me know her availability.

Many thanks

Kath ext. 32253

Message 398 of 1118

negotiation of ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['edward.sacks@enron.com', 'mrgelnett@nyseg.com']
File	shackleton-s/all_documents/10086.

Maria:

I was waiting to see if Jason Peters ever sent a "position letter" to you when we brought this negotiation back inhouse. Absent that information, it appears that we had at least one issue remaining and it concerned the disruption fallbacks, in particular, your request for both you and ENA to each obtain two quotes and then average those quotes (the ultimate fallback). We cannot agree to your request. The last database entry I reflect was in October, 2000, when we were having difficulty obtaining your response.

Given the lapse of time, we could try to generate a blackline and review the status. Please let me know what you would like to do.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 399 of 1118

Re: meetings

Sender	sara.shackleton@enron.com
Recipients	['cheryl.nelson@enron.com']
File	shackleton-s/all_documents/9786.

No, I would like to meet with you individually to discuss the unenforceability issues with respect to brokerage agreements. Our 11 am will be short. The afternoon meeting will be with Sam, Stephanie and the two of us.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 03/13/2001 06:06 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: meetings

Sara, my calendar says we have two brokerage meetings for tomorrow. You and I may have set up one individual one and then apparently there is a team meeting. I do not think we need to meet twice so maybe we should just all meet in the afternoon, right?

Cheryl Nelson Senior Counsel EB3880D (713) 345-4693

Message 400 of 1118

ECT Investments, Inc.

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'luis.gonzales@enron.com']
File	shackleton-s/sent/5669.

Sam: Will you please respond to Luis? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 02:17 PM

Luis A Gonzalez/ENRON@enronXgate 02/22/2001 05:20 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ECT Investments, Inc.

Dear Sarah, Please forward me an updated list of officers for this entity. I am trying to update the signatories for this account and upon getting approval, Mr. Kinneman advised me that he was no longer President of this entity. I obtain my information from secretariat and as you know is not the most efficient. Thanks in advance.

Luis A. Gonzalez luis.a.gonzalez@enron.com Enron Global Finance Cash Management EB2008d ext. 57362

Message 401 of 1118

NYSEG

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'melissa.murphy@enron.com']
File	shackleton-s/sent/5810.

Frank:

BEWARE! This ISDA was almost finalized but for disagreement about assignment and arbitration (so there's not much in the Annex A to dispute). Check Lotus Notes first and add to this file.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/15/2001 11:54 AM

Melissa Ann Murphy 03/15/2001 08:43 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: NYSEG

Hi Sara, Maria Gelnett from New York State Electric & Gas called me. She would like to talk to an attorney about annex A that is attached to the financial confirmation letters that we send them. I have attached the confirmation letter that she is reviewing.

Maria's phone number is (607) 762-7688.

Thanks, Melissa

*Message 402 of 1118***Conference Call Request**

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/6186.

Kaye: Please verify phone number below and on my calendar for 5/16.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/14/2001 09:39 AM

Stewart Rosman/ENRON@enronXgate 05/10/2001 06:13 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Conference Call Request

Sara -

Jeff Fuller of PRM is requesting a conference call with you next Wednesday May16th. just to refreash your memory he represents some NW puds - he wants to discuss the ISDA process with you now that they are prepared to move forward - I believe he will have the opion letter by then. If this is possble can you schedule a time that works for both of you with him? His number is 425-451-9123. Thanks

Stewart

*Message 403 of 1118***Re:**

Sender	peggy.banczak@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10759.

I will be happy to contribute my share. As I mentioned earlier, in the event someone does not want to contribute, I will be happy to absorb that cost also. Please let me know when you have received confirmation of who will and will not contribute and I will drop by to pay you.

Sara Shackleton 04/24/2001 11:27 AM

To: Jeffrey T Hodge/HOU/ECT@ECT, Peggy Banczak/HOU/ECT@ECT, Debra Perlingiere/HOU/ECT@ECT cc: Subject:

I ordered a \$75 flower arrangement for Kaye to be delivered today and signed all of our names. Sorry for not checking with each of you individually beforehand. If you would like to contribute, the cost will be \$18.75 each. I'll absorb delivery. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 404 of 1118***Re: Class Confirmation - Harassment Avoidance**

Sender	sara.shackleton@enron.com
Recipients	[ernie@enron.com]
File	shackleton-s/sent/5592.

I think I inadvertently registered twice. Please delete the duplicate registration. Thank you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Ernie Sent by: Sara Shackleton 02/15/2001 11:12 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Class Confirmation - Harassment Avoidance

You are enrolled in the following class:

Harassment Avoidance

Class Days and Times: 2/23/2001 02:45:00 PM - 04:15:00 PM Room # & Location: DoubleTree-La Salle B, Houston Last Day to Cancel: 02/23/2001 Participant Fee: \$50.00 Note:

Please review any prerequisite material to validate your eligibility in this class. Your Company and RC will be charged \$50.00

If you have any questions, please call the Development Center Team at 713-853-0357.

Thank you.

*Message 405 of 1118***Re: Enron/Florida Power & Light Company ISDA agreements**

Sender	clement.abrams@enron.com
Recipients	[petej@andrews-kurth.com, 'sara.shackleton@enron.com', 'sgm@steelhector.com']
File	shackleton-s/all_documents/4385.

Serge,

The revisions look fine. Call me if you have any questions (713) 853-5986.

Clement

"Serge Martin" <Sgm@steelhector.com> 10/27/2000 01:11 PM

To: clement.abrams@enron.com cc: PETEJ@andrews-kurth.com, Sara.Shackleton@enron.com Subject: Enron/Florida Power & Light Company ISDA agreements

Clement: Enclosed in re the Enron/FP&L ISDA agreements is the revised guaranty we discussed today. Please let me know if the revisions meet with your approval so Sara and I can proceed to finalize this and the related agreements - as well as prepare the corresponding agreements for Enron and FPL Energy Power Marketing, Inc. (the non-regulated FP&L affiliate we discussed). Thank you, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 phone (305) 577-7001 fax

- 625145_5.DOC

Message 406 of 1118

Re: Frontera - ISDA Agreement

Sender	sara.shackleton@enron.com
Recipients	[david.portz@enron.com]
File	shackleton-s/all_documents/11042.

David: Ed Sacks is out of the office until May 17. Is this request urgent?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

David Portz 05/15/2001 05:18 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Mike Curry/ENRON@enronXgate Subject: Frontera - ISDA Agreement

Sara-- Are you still the swaps lawyer to assist with this? If not, would you pass it to the person who can help Mike Curry with this? Thanks.

----- Forwarded by David Portz/HOU/ECT on 05/15/2001 05:11 PM -----

Mike Curry/ENRON@enronXgate 05/15/2001 04:47 PM

To: David Portz/HOU/ECT@ECT cc: Subject: Frontera - ISDA Agreement

David, We want to be able to start performing financial trades with Frontera so could you please prepare an ISDA Agreement for their review. Thanks, - Mike

Message 407 of 1118

Re: employment candidate

Sender	michael.brown@enron.com
Recipients	[sara.shackleton@enron.com, 'anna.jansson@enron.com']
File	shackleton-s/all_documents/10393.

Yes , Anna could you give Sara a call . Thanks Michael

From: Sara Shackleton on 06/04/2001 11:29 CDT To: Michael R Brown/LON/ECT@ECT cc:

Subject: employment candidate

Hi, Michael - hope all is well.

Just curious if London might be interested in a George Washington University MBA (International Business) looking for work in London or Europe. She is a family friend. She is bilingual (Swedish and English) and fluent in French and German. She also has work experience. I am going to send her resume to HR in Houston and suggest her for the analyst/associate program. However, I wasn't certain as to whether the London/European offices worked through a different processs. Please let me know if you think there may be some interest.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 408 of 1118

Inland - ISDA and Confirms

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent/5401.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/25/2001 03:27 PM -----

Jim Crump@ENRON 01/25/2001 09:32 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Inland - ISDA and Confirms

Sara:

Julie Beck (VP Finance - Inland Paperboard and Packaging) has given me the name of another attorney who will review the new ISDA and confirms:

Jack Falconi, (214) 360-4865, jfalconi@gfbank.com

Temple Inland (the parent - will provide a \$15 million guaranty) has worked with Jack in the past and wants him involved.

It might be a good idea to call Jack. I am not clear on the role that Grant Adamson will play (Grant gave us comments on the earlier ISDA). From what Julie said, I think that Jack will be our main legal contact at this point.

Thanks, Jim

Message 409 of 1118

Fourth Amendment to Master Agreement

Sender	beth.ng@morganstanley.com
Recipients	['sara.shackleton@enron.com', 'tanya.rohauer@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/deleted_items/209.

Re: Proposed Fourth Amendment to the Master Energy Price Swap Agreement between Enron North America Corp. ("Enron") and Morgan Stanley Capital Group Inc. ("MSCGI")

Dear Susan:

Pursuant to the discussions between Anthony Lupiano of our Credit Department and Bill Bradford of your Credit Department yesterday, attached you will find a proposed Fourth Amendment to the Master Energy Price Swap Agreement. The purpose of this Fourth Amendment is to amend the Exposure Threshold definition. It is my understanding that Mr. Bradford has agreed to these terms. Our Credit Department is expecting that we bring this document to a closure quickly.

Please contact me with any questions or comments you may have.

Kind regards,

Beth Ng Commodities Division - Documentation Tel: 212 761 8720 Fax: 212-507-4898 / 212 761 0293 Email: Beth.Ng@morganstanley.com

1585 Broadway, 4th Floor New York, NY 10036

- enron north america_4th Amend.doc - Beth.Ng.vcf

Message 410 of 1118

RE: just got a call from Russ Hackman - he's waiting for the signed

Sender	sara.shackleton@enron.com
Recipients	['clint.freeland@enron.com']
File	shackleton-s/sent_items/638.

Clint: Russ needs to know that the both parties are on the same page as to the commercial terms of the agreement. He'd like to hear from you on that point now. He's art 201-524-2279. Sara

-----Original Message-----

From: Freeland, Clint Sent: Thursday, November 01, 2001 5:34 PM To: Shackleton, Sara Subject: RE: just got a call from Russ Hackman - he's waiting for the signed agreement and would like for someone to call

I a walking to another meeting. Please call him and tell him that we're waiting for Jim Derrick's approval. We'll have it to them tonight as I told him earlier. Thanks.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, November 01, 2001 5:30 PM To: Freeland, Clint Subject: just got a call from Russ Hackman - he's waiting for the signed agreement and would like for someone to call

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 411 of 1118

FW: About Coillte (http:

Sender	sara.shackleton@enron.com
Recipients	['aparna.rajaram@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/all_documents/11399.

Brent: Attached is Aparna's email. Please call her if you have any questions. I believe that Rob Scheuer is the commercial person.

Aparna: Would you please advise Brent as to whether or not a transaction has been executed.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/04/2001 08:56 AM -----

Aparna Rajaram/ENRON@enronXgate 06/04/2001 08:54 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: About Coillte (http://www.coillte.ie/about_coillte/annual_report.htm)

Sara,

Here is the link to the Irish entity I just spoke to you about. The Lumber Group is looking to get an ISDA in place with this entity but I wanted to get your input on the legal side on an entity that is probably 100% owned by the Irish Govt.

www.coillte.ie

Thanks for your help!

Regards,

Aparna Rajaram ext. 5-4563

Message 412 of 1118

AEP Energy Services, Inc. - ISDA

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'carol.clair@enron.com']
File	shackleton-s/all_documents/10958.

Stephanie, please put this in rotation. One of the Paralegals can prepare the first draft of an amendment. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 05/07/2001 10:07 AM -----

Larry Joe Hunter 05/04/2001 04:18 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT cc: Kim S Theriot/HOU/ECT@ECT Subject: AEP Energy Services, Inc. - ISDA

To all,

AEP has recently stopped signing our Financial Confirmations due to the fact that the ISDA Master shows that they are the confirming party. We have never signed their confirmations, nor do they even send confirmations currently. AEP has indicated that they would be willing to amend the Master for the confirming party to be Enron. Can one of you please start this ball rolling?

Thanks, Joe

Message 413 of 1118

Re: Futures Agreement

Sender	alterson_thomas@jpmorgan.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9366.

Sara:

Corinne Samon shall be reviewing the black-lined copy of the agreement you've attached. She will be available later this afternoon to discuss suggested changes to our agreement, as well as any additional comments you may have.

Corinne can be reached at 212-648-4292 or via email at samon_corinne@jpmorgan.com

Regards, Tom Alterson

Sara.Shackleton@enron.com on 02/22/2001 10:27:22 AM

To: alterson_thomas@jpmorgan.com cc: Subject: Futures Agreement

Thomas:

Attached is a redline of the Client Agreement. I know that Gary Hickerson will be meeting with J P Morgan early next week and would like to have this agreed. Please advise as to what attorney will review my comments and put me in touch with that person today. Please let me know if you have any questions. Thanks.

(See attached file: JPMorganFutures.R1doc.doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

- JPMorganFutures.R1doc.doc

Message 414 of 1118

Inland - ISDA and Confirms

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/all_documents/8835.

FYI - and if you can't review this one before you leave today, drop off in my office. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/29/2001 08:44 AM -----

Jim Crump@ENRON 01/25/2001 09:32 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Inland - ISDA and Confirms

Sara:

Julie Beck (VP Finance - Inland Paperboard and Packaging) has given me the name of another attorney who will review the new ISDA and confirms:

Jack Falconi, (214) 360-4865, jfalconi@gfbank.com

Temple Inland (the parent - will provide a \$15 million guaranty) has worked with Jack in the past and wants him involved.

It might be a good idea to call Jack. I am not clear on the role that Grant Adamson will play (Grant gave us comments on the earlier ISDA). From what Julie said, I think that Jack will be our main legal contact at this point.

Thanks, Jim

Message 415 of 1118

Re: assignment agreement

Sender	sara.shackleton@enron.com
Recipients	['andrew.schwed@morganstanley.com']
File	shackleton-s/sent/6243.

Andrew:

Thanks for the email.

I now have my facts straight. The account is currently in the name of "ECT Investments, Inc." (and not Enron North America Corp.). The specific ECT Investments, Inc. account at Morgan Stanley that is being transferred is: 038-08826-6 (which is the credit book).

I thought you would want to modify the assignment agreement since it is your agreement. I also wanted to be certain that the Annex A description is sufficient for you.

Please call if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"H. Andrew Schwed" <Andrew.Schwed@morganstanley.com> 05/21/2001 03:54 PM Please respond to Andrew.Schwed

To: sara.shackleton@enron.com cc: Ketan Parekh <Ketan.Parekh@morganstanley.com> Subject: assignment agreement

Sara,

Attached is the amended agreement. Please call me with any questions.

Regards, Andrew Schwed

- Enron Assignment.doc

Message 416 of 1118

Re: Legal Status Report

Sender	sara.shackleton@enron.com
Recipients	['cheryl.nelson@enron.com']
File	shackleton-s/sent/5984.

thanks. I only asked Keegan for the most recent version since I misplaced it. She misread my message. In any event, I told her I'd wait for the updated version.

Also, you know Stephanie is on vacation this week.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 04/09/2001 12:36 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Keegan Farrell/NA/Enron@Enron Subject: Legal Status Report

Hello Sara,

Keegan told me that you had asked her today to send to you an updated Brokerage Agreement Status Report. We (the legal eagles) and the business folks agreed at the last meeting on 3/28 that I would distribute the report every two weeks - every other Thursday. This works best for me and Keegan. Under that schedule, Keegan and I have planned that the report would be ready for group-wide distribution this Thursday.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 417 of 1118

UtiliCorp United Inc.

Sender	susan.bailey@enron.com
Recipients	['bob.bowen@enron.com', 'andrea.guillen@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/all_documents/11613.

We have received an executed Consent to Assignment and Amendment to ISDA Master Agreement (this "Assignment/Amendment"), dated effective as of February 9, 2001, among UtiliCorp United Inc. ("UCU"), Aquila Risk Management Corporation ("ARM"), and Enron North America Corp. ("ENA"). Under this Assignment/Amendment: (a) UCU assigned their rights and obligations under their ISDA Master Agreement (the "Master Agreement") with ENA dated May 3, 2000 to ARM, (b) ARM assumed all of UCU's rights and obligations under the Master Agreement with ENA, and (c) ENA consented to the UCU's assignment to ARM.

As a result, ARM is now the Counterparty under the Master Agreement with ENA dated May 3, 2000. Therefore, effective today -- February 9, 2001, any and all EOL and offline financial transactions will be confirmed under the Master Agreement dated May 3, 2000.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 418 of 1118

Oregon Steel Mills, Inc.

Sender	samantha.boyd@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/56.

Just wanted to let you know that we received the credit worksheet for the above referenced Counterparty and I will be drafting the ISDA.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

----- Forwarded by Samantha Boyd/NA/Enron on 12/11/2000 11:30 AM -----

Tracy Ngo@ECT 12/11/2000 11:05 AM

To: Shari Stack/HOU/ECT@ECT cc: Dave Fuller/PDX/ECT@ECT, John Malowney/HOU/ECT@ECT, Edward Sacks/Corp/Enron@Enron, William S Bradford/HOU/ECT@ECT, Wendy Conwell/NA/Enron@ENRON, Susan Bailey/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Samantha Boyd/NA/Enron@Enron, Chris H Foster/HOU/ECT@ECT, Russell Diamond/HOU/ECT@ECT, Veronica Espinoza/Corp/Enron@ENRON, Veronica Gonzalez/HOU/ECT@ECT Subject: Oregon Steel Mills, Inc.

Attached please find a credit worksheet for a draft ISDA Master Swap Agreement between ENA and Oregon Steel Mills, Inc. Please call w/any questions or comments.

Regards, Tracy 503-464-8755

Message 419 of 1118

Eugene Water & Electric Board ("EWEB")

Sender	sara.shackleton@enron.com
Recipients	['holli.krebs@enron.com', 'tracy.ngo@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/sent/2445.

Attached is the Schedule we sent and Par. 13. ----- Forwarded by Sara Shackleton/HOU/ECT on 11/29/2000 08:24 AM -----

Susan Bailey 11/13/2000 04:48 PM

To: jdeason@chbh.com, Holli Krebs/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT, Edward Sacks/Corp/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Eugene Water & Electric Board ("EWEB")

All,

Attached is a redlined version of the draft form of (a) Schedule to the ISDA Master Agreement, and (b) Paragraph 13 to the ISDA Credit Support Annex. The attached tracks the changes between the 11/3/2000 draft presented by EWEB, with that

of the 11/10/2000, being presented here for review.

If you have any questions, you may call me at the number set for below or you may contact Sara at (713) 853-5620.

Further, attached is a draft of the proposed resolution language for derivative transactions, which EWEB's board must adopt.

Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 420 of 1118

RE: ECT Investments, Inc.

Sender	luis.gonzales@enron.com
Recipients	['samantha.boyd@enron.com', 'sara.shackleton@enron.com', 'Gonzales', 'Luis']
File	shackleton-s/all_documents/9415.

May need to redirect this to Luis Gonzalez (with a Z)

-----Original Message-----

From: Shackleton, Sara Sent: Friday, February 23, 2001 2:19 PM To: Boyd, Samantha Cc: Gonzales, Luis Subject: ECT Investments, Inc.

Sam: Will you please respond to Luis? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 02:17 PM -----

Luis A Gonzalez/ENRON@enronXgate 02/22/2001 05:20 PM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ECT Investments, Inc.

Dear Sarah, Please forward me an updated list of officers for this entity. I am trying to update the signatories for this account and upon getting approval, Mr. Kinneman advised me that he was no longer President of this entity. I obtain my information from secretariat and as you know is not the most efficient. Thanks in advance.

Luis A. Gonzalez luis.a.gonzalez@enron.com Enron Global Finance Cash Management EB2008d ext. 57362

Message 421 of 1118

Hess-Enron ISDA Agreement(s)

Sender	sara.shackleton@enron.com
Recipients	['ddellacona@hess.com']
File	shackleton-s/sent/5489.

Dana:

Mark Taylor asked that I look into this for you. Please give me a call and/or send me an email. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/06/2001 06:02 PM -----

Mark Taylor 02/06/2001 05:51 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Hess-Enron ISDA Agreement(s)

----- Forwarded by Mark Taylor/HOU/ECT on 02/06/2001 05:50 PM -----

"Dellacona, Dana (Commodities - NY)" <ddellacona@Hess.com> 01/26/2001 11:11 AM

To: "mark.taylor@enron.com" <mark.taylor@enron.com> cc: Subject: Hess-Enron ISDA Agreement(s)

Mark,

I would like to contact you in order to follow up to your conversation of last week with Mr. Chuck Cerria regarding executing an ISDA between numerous Hess entities and numerous Enron entities. Unfortunately, I do not have your phone number. Could you either call me or e mail it to me?

Thanks so much,

Dana Dellacona 212-536-8133

Message 422 of 1118

KCS 2 Into Brazos: The Swaps

Sender	mary.cook@enron.com
Recipients	['rainj@tklaw.com', 'sara.shackleton@enron.com', 'nora.dobin@enron.com', 'teresa.bushman@enron.com']
File	shackleton-s/all_documents/11414.

See the attached drafts for your review and comment. The preswaps on gas and crude have been distributed for execution by Diane Anderson. As discussed last week, and approved by the gas structure desk, the basis swap has been imbedded in the gas swap for the outyears and in the gas assignment and amendment document. Should you have any comments, please advise.

I will need prices and schedules to complete the swap paper. Remember, schedules are to be at 97%. Further, Jesus is to advise of how the 3% volumes remaining between KCS Energy and ENA under the preswaps are to be handled so that appropriate paper can be drafted.

As and when a closing day is set, please advise.

Diane Anderson: By copy of this memo, would you please distribute the final unexecuted versions of the preswaps to the captioned working group by email? (VC0975.1 and VC0917.1) Thank you.

Thank you everyone.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 423 of 1118

FW: Global Custody Agreement (ENA) Repo Agreement (Enron Credit

Sender	paul.radous@enron.com
Recipients	['sara.shackleton@enron.com', 'tanya.rohauer@enron.com']
File	shackleton-s/all_documents/11164.

Sara,

Tanya is handling these agreements now. I have forwarded to her office.

Thanks. Paul

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, May 22, 2001 11:15 AM To: Radous, Paul Subject: Global Custody Agreement (ENA) Repo Agreement (Enron Credit Inc. or "ENA")

Paul:

I need to speak with you about the foregoing.

(1) Re: the Chase Global Custody Agreement

Are you OK with Chase's ability to setoff amounts in any ENA Chase accounts against amount which ENA may owe under the Global Custody Agreement? Does ENA have many accounts with Chase?

(2) Re: Enron Credit Inc. repo agreement with Goldman Sachs & Co. ("GSC")

By way of background, ECT executed a repo with GSC on 4/25/97. FYI, Enron Corp. issued a guaranty in the amount of \$10 million.

Do you have any concerns with respect to a repo agreement between GSC and Enron Credit Inc.?

If possible, could we speak today? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 424 of 1118

Sample "forward" confirmation (VE comments).DOC

Sender	badranguet@velaw.com
Recipients	['rbaird@velaw.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/notes_inbox/84.

Stephanie and Sara,

Enclosed is the revised sample forward confirmation marked to show our comments. Please feel free to call me with any questions.

Regards, Beth Ann

Beth Ann Dranguet Vinson & Elkins L.L.P. One American Center 600 Congress, Suite 2700 Austin, Texas 78701 (512) 495.8595 (512) 236.3226 fax (888) 203.5056 pager badranguet@velaw.com

<<Sample "forward" confirmation (VE comments).DOC>> ++++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

- Sample "forward" confirmation (VE comments).DOC

Message 425 of 1118

Merrill Lynch International Bank Ltd.

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/5596.

Stephanie:

Let's prepare and submit for execution. Let me know if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/15/2001 04:57 PM -----

Jason R Williams@ENRON 02/15/2001 04:27 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Merrill Lynch International Bank Ltd.

Sara -

Per our earlier conversation, could you please prepare a revised guaranty for Merrill Lynch? There are two significant changes to the guaranty currently in place:

- 1) Beneficiary of the new guaranty should be Merrill Lynch International Bank, Ltd. The current guaranty is to Merrill Lynch International Bank.
- 2) The guaranty amount should be increased from \$30 million to \$150 million.

Please send revised guaranty to:

Todd Gibson, Vice President Merrill Lynch & Co., Inc. 4 World Financial Center, 16th Floor New York, NY 10080

Thanks for all your help and please let me know if you have any questions.

Jay

Message 426 of 1118

Re: EGM Monthly Legal Report for April 2001

Sender	kaye.ellis@enron.com
Recipients	['nita.garcia@enron.com', 'alan.aronowitz@enron.com']
File	shackleton-s/all_documents/10458.

Please see the attached for my revisions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Nita Garcia@ENRON 04/10/2001 05:56 PM

To: Daniel R Rogers/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Coralina Rivera/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Ned E Crady/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, John Viverito/Corp/Enron@Enron, Matthias Lee/SIN/ECT@ECT, Michael A Robison/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Brent Hendry/NA/Enron@Enron, Lou Stoler/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Robert Quick/LON/ECT@ECT, Wayne Gresham/HOU/ECT@ECT, Justin Boyd/LON/ECT@ECT, Rahul Saxena/LON/ECT@ECT, Randy Young/NA/Enron@Enron cc: Alan Aronowitz/HOU/ECT@ECT Subject: EGM Monthly

Legal Report for April 2001

At Alan's request, please provide to me by e-mail (with a cc: to Alan) by Thursday of this week your suggested changes to the March 2001 Monthly Report, so that we can issue the April 2001 Monthly Report by the end of this week. Thanks for your attention to this matter.

Nita

Message 427 of 1118

Re: Vitro Corporativo

Sender	souad.mahmassani@enron.com
Recipients	['sara.shackleton@enron.com', 'rod.nelson@enron.com', 'larry.hunter@enron.com']
File	shackleton-s/all_documents/2310.

Sara,

The document attached below titled "114conf.doc", does not pertain to Vitro, I think it was attached by accident. Can you resend us the appropriate documents please. Thanks,

Susan Flynn@ECT 06/08/2000 05:29 PM To: Rod Nelson/HOU/ECT@ECT, Souad Mahmassani/Corp/Enron@ENRON, Larry Joe Hunter/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT

Subject: Vitro Corporativo

Rod - Please review the attached documents and advise Sara if acceptable from a credit standpoint.

Souad - Once Sara and Rod say docs are Ok, you can dup them out for the 11 subs. Show Sara all docs before you send them to CP.

Sara - there is a Guarantor for Vidriera Mexico, S.A. de C.V. The Guarantor is --Vitro Envases Norte America, S.A. de C.V. Rod wants it to be an unlimited Guaranty on our form of CP GTY. I am sending the form of GTY to Eduardo Melo by fax tonight at fax number 011-528-378-4793. You will need to prepare a form of sub deemed ISDA for this sub to include the GTY.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 428 of 1118

The Confederated Tribe of Warm Springs

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/all_documents/10025.

Susan:

I've spoken with a new Indian tribe and need to send the "sample governmental ISDA" to several people. I'll forward the names/addresses to you. Stewart Rosman is the commercial person and he should be copied as well as Tracy Ngo. Please include the following message (verify the question I left for you) with the attachment:

"Per our recent conversation, please find attached a sample Schedule to the ISDA Master Agreement (and Paragraph 13 to the ISDA Credit Support Annex - Susan, can we send?) which is not tailored specifically for the Tribe. We will be able to provide a specific Schedule and Paragraph 13 after our credit group has concluded its review. You may already be familiar with the ISDA Municipal Counterparty Schedule and will note that although we are incorporating many of those provisions.

We assume that you have the ISDA boilerplate (for the Master Agreement and the Credit Support Annex).

Please let us know if you have any questions."

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 429 of 1118

Re: Allison and Adam's Wedding

Sender	sara.shackleton@enron.com
Recipients	['labdsc@womans.com']
File	shackleton-s/all_documents/10124.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/27/2001 04:08 PM -----

SSher5DUN@aol.com 03/26/2001 08:16 PM

To: Sara.Shackleton@enron.com cc: Subject: Re: Allison and Adam's Wedding

We're glad to hear that you are coming and we're looking forward to seeing you again.

You can fly into any one of the three Washington area airports. Reagan National is the closest (about 35 minutes by car in non-rush hour traffic), Washington Dulles is about 40 minutes away and BWI is about 50 minutes away. That is generally our order of preference in looking for flights. However, flights into BWI in general may be cheaper than flights into Dulles or National, and National tends to be the most expensive. You need to check all three as to price, because airfares change frequently and sometimes USAir or another airline will quote a decent price into National. Once you have decided which airport you will be using, let us know and we will e-mail directions.

Love - Anita and Steve

Message 430 of 1118

Hawaii I Facility Agreement

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/4555.

Attached is the Facility Agreement for Hawaii I marked against the Hawaii II Facility Agreement. Please call Muriel McFarling at (214) 659-4461 when we have final sign off and I will e-mail you a clean copy at that time.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 266253.wpd - 266253.doc

Message 431 of 1118

Hawaii II Facility Agreement

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/notes_inbox/422.

Attached is the Facility Agreement for Hawaii II marked against the version we discussed this morning. Please call Muriel McFarling at (214) 659-4461 when we have final sign off and I will e-mail you a clean copy at that time.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 265273.wpd - 265273.doc

Message 432 of 1118

Re: Valentis and CD Holdings

Sender	caroline.abramo@enron.com
Recipients	['paul.radous@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/abramo/15.

sara- valentis llc is definitely domestic.. checking on delaware or CT..

Their inhouse legal counsel is Arthur Amron... please cc him on ISDA.. aamron@wexford.com 212 203 862 7012

From: Sara Shackleton@ECT on 04/25/2001 09:03 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate

Subject: Re: Valentis and CD Holdings

Caroline:

No Deemed ISDA, we decided that yesterday for the long-dated deal.

We are working on the draft masters for emailing. Please send me the information about your counterparties' lawyers so we can begin negotiating.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 06:42 AM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Fred Lagrasta/HOU/ECT@ECT, Paul

Radous/Corp/Enron Subject: Valentis and CD Holdings

Please send the draft ISDAS to:

Marty Lifgren- mlifgr@wexford.com Charles Davidson- cdavid@wexford.com

We agreed that the fastest way to proceed wwas to send the ISDA or can we still send the deemed ISDA?.

Message 433 of 1118

Re: Class Confirmation - Harassment Avoidance

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/5625.

and I'm going on Friday, 2/23 at the same time.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kaye Ellis 02/20/2001 10:17 AM

To: sstack@enron.com@ECT, Peggy Banczak/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Debra Perlingiere/HOU/ECT@ECT cc: Taffy Milligan/HOU/ECT@ECT Subject: Class Confirmation - Harassment Avoidance

I will be attending the Harassment Avoidance Class 3/5/01 from 2:45 pm to 4:15 pm.

Kaye ----- Forwarded by Kaye Ellis/HOU/ECT on 02/20/2001 10:14 AM -----

Ernie Sent by: Kaye Ellis 02/20/2001 09:10 AM

To: Kaye Ellis/HOU/ECT@ECT cc: Subject: Class Confirmation - Harassment Avoidance

You are enrolled in the following class:

Harassment Avoidance

Class Days and Times: 3/5/2001 02:45:00 PM - 04:15:00 PM Room # & Location: DoubleTree-La Salle B, Houston Last Day to Cancel: 03/05/2001 Participant Fee: \$50.00 Note:

Please review any prerequisite material to validate your eligibility in this class. Your Company and RC will be charged \$50.00

If you have any questions, please call the Development Center Team at 713-853-0357.

Thank you.

Message 434 of 1118

Executing Broker Agreement with Frost Securities - UPDATE

Sender	samantha.boyd@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com', 'jpeters@andrews-kurth.com', 'michael.bradley@enron.c...']
File	shackleton-s/notes_inbox/992.

I received a telephone call from Brian Coad with Frost Securities. He is aware of our problems and will be working to help resolve our issues with DB Alex Brown. Since Jason Peters has been over the negotiations with DB Alex Brown, Brian will contact him. I have also left a message for Jason to follow-up with Brian.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Sheila Glover@ECT 09/19/2000 11:41 AM

To: larry.hollingsworth@frostsecurities.com cc: Sara Shackleton/HOU/ECT@ECT, Michael W Bradley/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron Subject: Executing Broker Agreement with Frost Securities

Larry, I just left you a voice mail message.....

ECT Investments, Inc. has been trying to get an executing broker agreement in place with Frost Securities. Our legal department has not been getting much cooperation. I would appreciate your assistance in resolving this situation on your end.

Our SR. counsel, Sara Shackleton, 713-853-5620, has been the person who forwarded our comments to Frost Securities and has now been told that all our comments have been rejected absolutely.

Please advise. Sheila

Message 435 of 1118

Sample "forward" confirmation (VE comments).DOC

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/all_documents/8530.

----- Forwarded by Sara Shackleton/HOU/ECT on 12/15/2000 04:26 PM -----

"Dranguet, Beth Ann" <badranguet@velaw.com> 12/15/2000 04:20 PM

To: "Shackleton, Sara (Enron)" <sara.shackleton@enron.com> cc: Subject: Sample "forward" confirmation (VE comments).DOC

Sara,

Here's a clean version. Please call me if you need anything else.

Beth Ann

Beth Ann Dranguet Vinson & Elkins L.L.P. One American Center 600 Congress, Suite 2700 Austin, Texas 78701 (512) 495.8595 (512) 236.3226 fax (888) 203.5056 pager badranguet@velaw.com

<<Sample "forward" confirmation (VE comments).DOC>> ++++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

- Sample "forward" confirmation (VE comments).DOC

Message 436 of 1118

CSFB Confirmations	
Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/5162.

----- Forwarded by Sara Shackleton/HOU/ECT on 12/19/2000 11:32 AM -----

"Dranguet, Beth Ann" <badranguet@velaw.com> 12/18/2000 04:36 PM

To: "Shackleton, Sara (Enron)" <sara.shackleton@enron.com> cc: Subject: CSFB Confirmations

Sara,

Attached are the CSFB Confirmations marked to show changes. Let me know if you need clean versions also.

Regards, Beth Ann

Beth Ann Dranguet Vinson & Elkins L.L.P. One American Center 600 Congress, Suite 2700 Austin, Texas 78701 (512) 495.8595 (512) 236.3226 fax (888) 203.5056 pager badranguet@velaw.com <<Austin_169775_2.DOC>>
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- Austin_169775_2.DOC - Austin_169752_2.DOC

Message 437 of 1118

Pending ISDA Masters	
Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'mark.taylor@enron.com']
File	shackleton-s/all_documents/10856.

We forgot to discuss form work.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 04/26/2001 02:29 PM -----

Carol St Clair 04/26/2001 02:08 PM

To: Mary Cook/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron Subject: Pending ISDA Masters

Sara and Mary: The following is a list of ISDA Master counterparties that I will continue to handle:

AIG Commodity Arbitrage Fund Ltd. AIG Commodity Arbitrage Fund L.P. SMUD - first amendment only. brent will handle any other issues. PECO Energy Company Inland Paperboard & Packaging Proctor & Gamble Encore Energy Solutions LP Maclaren Energy Inc. Casco Inc. AK Steel Project Mercury Project Superman Constellation Power Source Tenaska Marketing Ventures

As I mentioned earlier this week, the following projects will need to be reassigned

Negotiating Enron Japan Corp. ISDA's - Susan Bailey has my Japan file Forms Work Offsite - I will send around an initial issues list EIM Financial Trading point person Canada back-up

I will continue to monitor the bankruptcy legislation

Carol

Message 438 of 1118

Enron Credit Inc.	
Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com']
File	shackleton-s/sent/6355.

I'll touch base with you this afternoon. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/06/2001 11:41 AM -----

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 06/06/2001 09:15 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Tom Doukas/Enron@EnronXGate Subject: Enron Credit Inc.

Sara, as you assumed this matter, see attachments.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/> ----- Forwarded by Cheryl Nelson/NA/Enron on 06/06/2001 09:14 AM -----

Anthony Capolongo <A.Capolongo@morganstanley.com> 06/06/2001 07:43 AM Please respond to A.Capolongo

To: cheryl.nelson@enron.com cc: Ketan Parekh <Ketan.Parekh@morganstanley.com>, Joseph Marovich <Joseph.Marovich@morganstanley.com>, tom.doukas@enron.com Subject: Enron Credit Inc.

Cheryl:

As requested, attached are the Master Securities Loan Agreement and Cash Letter needed to set up Enron Credit Inc. on the enhanced product. Please forward two sets of originals to my attention and I will forward a fully executed original copy to Enron.

Regards,

Anthony

- EnronCredit.doc - Arranged Cash Agreement Letter.DOC

Message 439 of 1118

Docs to File	
Sender	cheryl.nelson@enron.com
Recipients	['marie.heard@enron.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/all_documents/11352.

Marie, also as per below re: ECI, please get a copy of the tax i.d. form from Stephanie. Also can someone please send a copy to me for my file.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/> ----- Forwarded by Cheryl Nelson/NA/Enron on 05/31/2001 04:54 PM -----

Cheryl Nelson Sent by: Cheryl Nelson 05/23/2001 06:14 PM

To: Marie Heard/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Subject: Docs to File

Marie, I am forwarding to you for Brokerage files

1. A copy of the executed copy of the Javelin Technologies Agreement that was faxed to me. We need to follow up to get the original. In the meantime, we'll put this doc in the executed file.
2. A copy of the ECI - Bear Stearns guaranty that I had faxed to the office while I was in New York.

Also, Stephanie, reminder that I believe that we still have not sent a signed Tax Form to Bear re: Enron Credit Inc. (although we did so for Morgan). In any case, Mike Bruegel at Bear says he does not have it. Please send one to him. His phone number is 312-663-3253. This did not affect the opening of the account but they still need it. Please make sure that in fact we also sent one to Goldman.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Message 440 of 1118

(02-76) Annual Meetings of Stockholders and Class A Members

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/592.

Notice No.: 02-76 March 13, 2002

To: All NYMEX Division Members

From: J. Robert Collins, Jr.

Re: Annual Meetings of Stockholders and Class A Members

The Annual Meetings of Stockholders of NYMEX Holdings, Inc., and Class A members of New York Mercantile Exchange, Inc., will be held on Tuesday, March 19, 2002, at 3:00 p.m., (New York Time), at One North End Avenue, Boardroom 1016, New York, New York 10282-1101.

On the day of the Annual Meetings, you can cast your vote in person or submit your completed proxy in the Members' Lounge on the 3rd floor. An information table will be provided from the hours of 9am until 3pm to assist in the election process. However, no voting machines will be utilized at the Annual Meetings.

If you have not received voting materials or need replacement proxy(ies), please contact Donna Talamo - Office of the Corporate Secretary, One North End Avenue, Suite 1563, New York, New York 10282-1101, telephone: (212) 299-2372, fax: (212) 301-4645.

WHETHER OR NOT YOU PLAN TO ATTEND THE ANNUAL MEETINGS, YOU ARE REQUESTED TO COMPLETE, SIGN, DATE AND PROMPTLY RETURN THE PROXY CARD AND PROXY ENVELOPE BY FAX, MAIL OR BY HAND IN ACCORDANCE WITH THE VOTING PROCEDURES AS SET FORTH IN THE PROXY STATEMENT WHICH WAS MAILED TO ALL ELIGIBLE VOTING MEMBERS.

Message 441 of 1118

RE: draft letter for calculation of settlement amount/methodology

Sender	robert.bruce@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/inbox/736.

ok I will copy Stephanie on the letters I send out (I have two queued up right now) -- Bob

-----Original Message-----

From: Shackleton, Sara Sent: Monday, February 25, 2002 11:57 AM To: Bruce, Robert Cc: Panus, Stephanie Subject: RE: draft letter for calculation of settlement amount/methodology

Financial trading is just now gearing up to send these follow-up letters. The few that have been sent have been incorporated into the counterparty files and logged onto the "Master Letter Log" which is updated by Stephanie Panus.

Sara

-----Original Message-----

From: Bruce, Robert Sent: Monday, February 25, 2002 11:23 AM To: Shackleton, Sara Subject: RE: draft letter for calculation of settlement amount/methodology

thanks

are we keeping a log of these as we send them out -- Bob

-----Original Message-----

From: Shackleton, Sara Sent: Monday, February 25, 2002 11:21 AM To: Bruce, Robert Subject: draft letter for calculation of settlement amount/methodology

Bob:

The attached letter can be used for terminated or non-terminated parties; just tweak the letter.

<< File: #631941 v2 - Draft letter from Enron to XYZ Corp. - January 20021.doc >>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 442 of 1118

RE: Deutsche Bank AG ("DB") request for ISDA Master Agreement with

Sender	sara.shackleton@enron.com
Recipients	[tanya.rohauer@enron.com', 'roderick.nelson@enron.com', 'credit <.williams@enron.com']
File	shackleton-s/sent_items/653.

Rod: London legal should coordinate with you. Sara

-----Original Message-----

From: Rohauer, Tanya Sent: Friday, November 02, 2001 5:40 PM To: Shackleton, Sara Cc: Williams, Jason R (Credit) Subject: RE: Deutsche Bank AG ("DB") request for ISDA Master Agreement with ECTRIC

rod's the man....don't think we need a master unless they ask for it

-----Original Message-----

From: Shackleton, Sara Sent: Friday, November 02, 2001 3:58 PM To: Boyd, Justin; Simons, Paul; Cooper, Edmund; Dawson, Matthew; Williams, Jason R (Credit) Cc: Rohauer, Tanya; Cook, Mary; St. Clair, Carol Subject: Deutsche Bank

AG ("DB") request for ISDA Master Agreement with ECTRIC

Steve Kessler (212-469-8202) with DB legal has called to request an ISDA Master Agreement with ECTRIC. Who is the appropriate legal contact in London to initiate this process?

DB has an ISDA with ENA. Steve told me that DB also has an ISDA with Enron Credit Limited. Is a master netting arrangement appropriate here?

London: Please let me know on Monday which lawyer will handle this ISDA request.

Jay: Please let legal know if this arrangement requires a master netting agreement.

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 443 of 1118

RE: lotus notes link

Sender	shemeika.landry@enron.com
Recipients	['donna.lowry@enron.com', 'sara.shackleton@enron.com', 'shelli.smith@enron.com', 'tana.jones@enron.com']
File	shackleton-s/all_documents/11365.

Tana:

When attempting to access the link you sent below I was unsuccessful. In speaking with IT, they indicated that I need to know the server that the below database is on in order to be able to launch this database. I did indicate to IT that it was a lotus notes application. If you can look on your lotus notes icon for the below database link and tell me if the server is NAHOU or ECTHOU that would help us out a lot. Or I don't mind coming to your work location and looking at the icon myself on your pc to determine the information that I need in order to launch the database.

Thanks.

Shemeika X52552

-----Original Message-----

From: Jones, Tana Sent: Friday, June 01, 2001 8:32 AM To: Lowry, Donna; Landry, Shemeika S.; Smith, Shelli Subject: lotus notes link

Link --> << OLE Object: StdOleLink >> ----- Forwarded by Tana Jones/HOU/ECT on 06/01/2001 08:31 AM -----

Sara Shackleton 06/01/2001 08:22 AM To: Tana Jones/HOU/ECT@ECT cc: Subject: lotus notes link

Tana: The following people have requested a link;

Donna Lowry Shemeika Landry Shelli Smith

Shemeika and Shelli work with Donna in risk analytics.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 444 of 1118

UBS Confirmation v.2 (VE comments).DOC

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/all_documents/8558.

----- Forwarded by Sara Shackleton/HOU/ECT on 12/19/2000 11:32 AM -----

"Dranguet, Beth Ann" <badranguet@velaw.com> 12/18/2000 04:55 PM

To: "Shackleton, Sara (Enron)" <sara.shackleton@enron.com> cc: Subject: UBS Confirmation v.2 (VE comments).DOC

Sara,

Here is the UBS Confirmation. Please call me if you have any questions regarding the changes made to either this confirm or the CSFB ones.

Regards, Beth Ann

Beth Ann Dranguet Vinson & Elkins L.L.P. One American Center 600 Congress, Suite 2700 Austin, Texas 78701 (512) 495.8595 (512) 236.3226 fax (888) 203.5056 pager badranguet@velaw.com

<<UBS Confirmation v.2 (VE comments).DOC>> ++++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

- UBS Confirmation v.2 (VE comments).DOC

Message 445 of 1118

Re: Hickerson "High Priority" brokerage agreements

Sender	cheryl.nelson@enron.com
Recipients	['stehanie.panus@enron.com', 'sara.shackleton@enron.com', 'aneela.charania@enron.com', 'boyd@enron.com']
File	shackleton-s/nelson/1.

Sara:

I received the list from Aneela. The brokerage agreements marked on her list as priority were ones that I too had already marked as priority and hence, the same ones that Stephanie, Sam and I have been pushing, at the latest, since last week. One of the agreements, ITG, was sent for execution today -- we were awaiting Mark Haedicke's approval for an exeption and received it this morning. I conveyed all of this to Aneela earlier today. In most cases, the ball is in the court on the other side so I think from our end, I think from our end, we have been working diligently to get these agreements executed as soon as possible. At the moment, I do not think that we need to meet again.

Cheryl Nelson Senior Counsel EB3875 (713) 345-4693

Sara Shackleton@ECT 02/08/2001 01:56 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Hickerson "High Priority" brokerage agreements

Cheryl:

Have you responded to Aneela yet? Have drafts already been sent? I'd like to make sure that our internal process has been implemented so that we can address Gary's workload on a timely basis. If we need to meet, please let me know and I'll have Kaye schedule a meeting.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 446 of 1118

Re: Deutsche Banc Alex Brown - Agreement for Prime Brokerage

Sender	aneela.charania@enron.com
Recipients	['sara.shackleton@enron.com', 'Aneela Charania/HOU/ECT@ECT', 'cheryl.nelson@enron.com']
File	shackleton-s/nelson/114.

Hey guys,

Jamie at Frost is on the business side and did not know that we had an executed agreement. Please disregard the agreement we sent interoffice today.

Thanks, Aneela :-)

04/23/2001 02:55 PM Cheryl Nelson@ENRON Cheryl Nelson@ENRON Cheryl Nelson@ENRON 04/23/2001 02:55 PM
04/23/2001 02:55 PM Sent by: Cheryl Nelson@ENRON To: Sara Shackleton/HOU/ECT@ECT cc: Aneela
Charania/HOU/ECT@ECT Subject: Re: Deutsche Banc Alex Brown - Agreement for Prime Brokerage Clearance Services

Aneela, I will call Jamie to clarify any confusion -- please forward the phone number to me. We have an executed agreement already - it was executed within the past two weeks.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/23/2001 02:45 PM

To: Aneela Charania/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Deutsche Banc Alex Brown - Agreement for Prime Brokerage Clearance Services

Aneela:

I received the referenced agreement in inter-office mail. According to Cheryl's latest report, identical agreements were executed by both ENA and ECT Investments, Inc. on or about 4/12/01.

What is it that you are asking us to do with the draft from "Jamie"?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 447 of 1118

FW: Deutsche Bank AG ("DB") request for ISDA Master Agreement with

Sender	sara.shackleton@enron.com
Recipients	['roderick.nelson@enron.com']
File	shackleton-s/sent_items/654.

Rod: I guess this is old news to you. Hope all is well. Sara

-----Original Message-----

From: Boyd, Justin Sent: Sunday, November 04, 2001 5:43 AM To: Shackleton, Sara Cc: Brungs, Ian; Fox, Anna Subject: RE: Deutsche Bank AG ("DB") request for ISDA Master Agreement with ECTRIC

sara

anna fox is the one her ...we have already opened discussions with DB about an ISDA with ECTRIC so i don't know why this person is raising this

justin

-----Original Message-----

From: Shackleton, Sara Sent: 02 November 2001 21:58 To: Boyd, Justin; Simons, Paul; Cooper, Edmund; Dawson, Matthew; Williams, Jason R (Credit) Cc: Rohauer, Tanya; Cook, Mary; St. Clair, Carol Subject: Deutsche Bank AG ("DB") request for ISDA Master Agreement with ECTRIC

Steve Kessler (212-469-8202) with DB legal has called to request an ISDA Master Agreement with ECTRIC. Who is the appropriate legal contact in London to initiate this process?

DB has an ISDA with ENA. Steve told me that DB also has an ISDA with Enron Credit Limited. Is a master netting arrangement appropriate here?

London: Please let me know on Monday which lawyer will handle this ISDA request.

Jay: Please let legal know if this arrangement requires a master netting agreement.

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 448 of 1118

Re:

Sender sara.shackleton@enron.com

Recipients ['robert.bruce@enron.com']

File shackleton-s/sent/5631.

Bob: Now there's the real reason! If there are two new softs entities, then ENA and ECTRIC lose the netting benefits. The tax issues are transparent (it's like the two credit derivative entities). Who is involved from credit? We need to discuss the structures with them because credit may be concerned about the loss of netting privileges.

Also, we need to verify that US entity softs trades will be USD based and the European softs entity will settle in Euro or GBP. It seems obvious but a US entity could routinely settle in a currency other than USD. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/21/2001 08:27 AM -----

Trena McFarland@ENRON 02/21/2001 08:11 AM

To: Robert Bruce/NA/Enron@Enron cc: Jonathan Marsh/EU/Enron@Enron, sara.shackleton@enron.com Subject: Re:

Bob

Just so you have the answers.

Products will be settled in the currency they are traded in....that is USD, Euro or GBP We would intend the new Enron softs entity to be a US entity and that the UK trading would be done through the arranger....EEFT.

I am presently looking at another structure, that if it can be done technically then I will go for that.

Lets discuss when you are out of your meeting.

Trena 212 702 3945

Message 449 of 1118

RE: ISDA Schedule/Paragraph 13

Sender	yyaish@exchange.ml.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2594.

Sara, I have good news, I think we are very close to executing this baby.

I am attaching comments to the ISDA. They reflect comments by our outside counsel which highlight the differences between this contract and the side letter/ML ISDA. They are not much. I have also made some changes directly on their draft where I either concurred with Enron or needed to make some of my own changes. Pls review and let me know what you think.

I will be leaving the office soon, so if we can wrap it up tomorrow that would be great (I'm out Monday for Passover).

Yair Yaish Director and Senior Counsel Allegheny Energy Global Markets, LLC 212-236-7346

-----Original Message-----

From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com] Sent: Friday, March 30, 2001 4:10 PM To: yyaish@exchange.ml.com Subject: ISDA Schedule/Paragraph 13

Yair:

Attached is a blacklined (against the Enron North America Corp. draft of 3/15/01) Schedule and Paragraph 13 to the ISDA Credit Support Annex. I have tried to incorporate the essence of the March 19, 2001 "swap side letter agreement." Please call me to discuss as it would be nice to finalize by April 6. Thanks.

(See attached file: 098a Blackline ctr (Allegheny Energy Supply).doc)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

- Enron North America ISDA.DOC

Message 450 of 1118

Re: Wine, Dinner and Friends

Sender	sara.shackleton@enron.com
Recipients	['donna_j_mullen@dom.com', 'carlew@flash.net']
File	shackleton-s/all_documents/10643.

Carson:

I'm on the phone with Donna and due to our extremely busy schedules we have penciled in May 16 as D-Day (you know, "dinner date"). After the Enron legal conference, I'm on vacation which is the reason for the May date. Before the Enron legal conference, Donna is out of town most of the time. So - please let us hear from you.

Did you remember Monty's birthday?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"R. Carson Llewellyn" <carlew@flash.net> 04/19/2001 11:08 AM

To: Sara Shackleton <sshackl@email.msn.com>, Sara Shackleton <Sara.Shackleton@enron.com>, Donna Mullen <Donna_J_Mullen@dom.com> cc: Subject: Wine, Dinner and Friends

Sara and Donna:

I apologize for waiting two months to pick a date in order to consume some of Sara's excess wine, but I think I found a good place to meet. There is a restaurant named La Vista at 1936 Fountain View, just North of the Rice Epicurean. It should be real close to Donna, and they let you bring your own bottle(s) of wine. If Sara brings the wine, then I could spring for the dinner and Donna could bring the flowers.

I am tied up next Thursday and Friday, and I know that Sara has the Enron Law Conference in San Antonio the following Wednesday, Thursday and Friday. Hopefully, there is a window in there when we can all get together.

Carson

Message 451 of 1118

Re: ECTRI financial requirements

Sender	sara.shackleton@enron.com
Recipients	['brant.reves@enron.com']
File	shackleton-s/all_documents/10435.

Yes, "eligible contract participant" ("ECP") is an issue. Both ENA and ECTRI are Delaware corporations and are therefore subject to the jurisdiction of the Commodity Futures Trading Commission (the U.S. regulatory agency with oversight for derivatives). As a practical matter, I understand that ECTRI does have many executed ISDA agreements. I do not know the volume of "omnibus" trades. However, the ECTRI omnibus should have ECP representations in the annex.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brant Reves/ENRON@enronXgate 04/10/2001 10:29 AM

To: Sara Shackleton/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron cc: Subject: ECTRI financial requirements

A financial trade v24545 was done with Total International Limited. This entity is subsidiary of a very good credit customer, TotalElf (S&P rated AA-). Risk is acceptable, small volumes, short tenor, but from a legal standpoint, I do not think this entity is an "Eligible Contract Party" as we have no guaranty support or financial statements to support trading. I noticed that quite a bit of financial trades are currently booked in London with this customer. Does Enron Capital & Trade Resources International Corp. (London financial) have the same ECP requirements as ENA. If so, I would like to know how they have established eligibility.

thanks brant

Message 452 of 1118

UPDATE - Various Master Agreements with OPG

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'tana.jones@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/sent/5574.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/13/2001 04:03 PM -----

Shari Stack 02/13/2001 03:57 PM

To: Edward Sacks/Corp/Enron@Enron, Garrett Tripp/TOR/ECT@ECT, Chris Gaffney/TOR/ECT@ECT, Tom May/Corp/Enron@Enron, Janelle Scheuer/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT cc: Subject: UPDATE - Various Master Agreements with OPG

Greg Malcolm, the Contract Administrator for OPG just called to give me the status of the following documents that were sent to them by Enron last fall:

1. EEI (physical power): Said I could expect to receive their comments to our initial draft no later than the end of Feb.
2. ISDA (financial): I should receive a response from them on our initial draft sometime in March (he was not as firm on this timeframe as he was about the EEI).
3. Physical Power Confirms: For interim trading, he is going to send me the form of confirmation template they want to use for sales to us.

Commercial People: If these timeframes are unacceptable given whatever business you are trying to do with OPG - please ask your equivalent at OPG to put pressure on OPG's Legal Dept. There is nothing I can do to make this go any faster.

Thanks,

Shari Stack Enron North America, Legal Department Tel: (713) 853-9477

Message 453 of 1118

Counterparty List & ISDA Agreements

Sender	sara.shackleton@enron.com
Recipients	['Jonathan McKay/CAL/ECT@ECT', 'greg.johnston@enron.com']
File	shackleton-s/all_documents/10091.

Greg: Per my voice mail, please see the list below. It is not specific enough for Susan Musch and I to identify potential counterparties. I look forward to hearing from you. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/26/2001 02:19 PM -----

William Stuart 02/14/2001 05:17 PM

To: Sara Shackleton/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Tom Moran/HOU/ECT@ECT, David Forster/Corp/Enron@Enron, Carlos Alatorre/NA/Enron@Enron, Justin Rostant/HOU/ECT@ECT cc: Subject: Counterparty List & ISDA Agreements

I'm forwarding ECT Canada's top 15 counterparties. We will use this list with the exception of J. Aaron, BP Amoco, PG&E, Morgan Stanley and Bank of Montreal as our target list for the USD/CAD products. Please ensure that a GTC is drawn up to allow EOL trading of these currency products. I would like to have the legal work done by March 6 in order to meet Gary's deadline.

David: I talked to Goldman today. They have developed a mechanism to feed live rates from their website into Excel. They will be here in 2 weeks to do a demo.

W.Stuart

----- Forwarded by William Stuart/HOU/ECT on 02/14/2001

03:31 PM -----

Jason Garvey 02/13/2001 02:59 PM To: William Stuart/HOU/ECT@ECT cc: Jonathan McKay/CAL/ECT@ECT Subject: ISDA Agreements

Message 454 of 1118

Re: Goldman Sachs - ECI

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/all_documents/11167.

Stephanie, please follow - up to find out the account number, confirm the execution date and get the documents back.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Stephanie Panus 05/21/2001 12:29 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: Goldman Sachs - ECI

I have left a message with Nikki Kroll today.

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 10:50 AM

To: Stephanie Panus/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Goldman Sachs - ECI

Stephanie,

I have asked a couple of times but still have not heard back from you about what happened to the Goldman Sachs completed agreements I gave you on Thursday 10th to get signatures and send to Goldman. When Tom and I spoke this morning he expressed angst that Goldman did not have the Agreement yet. Can you tell me today where those documents are and whether or not they went out to Goldman?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/> ----- Forwarded by Cheryl Nelson/NA/Enron on 05/21/2001 10:45 AM -----

Cheryl Nelson Sent by: Cheryl Nelson 05/17/2001 11:37 AM

To: Stephanie Panus/NA/Enron@Enron cc: Tom Doukas/Enron@EnronXGate Subject: Goldman Sachs - ECI

Hi Stephanie, can you call Pam Coleman or whomever you sent the agreement to at Goldman last Thursday to get an account number and confirmation? Thanx.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Message 455 of 1118

Enron Credit Inc. ("ECI") positions

Sender	sara.shackleton@enron.com
Recipients	['bryan.seyfried@enron.com', 'edmund.cooper@enron.com']
File	shackleton-s/sent_items/50.

I have verified that ECI, although a non-debtor entity, must have all proposed dispositions of assets or liquidation of positions approved by Ernst & Young ("E&Y"). Brent Hendry's memo of December 20, 2001 contains the phone/fax numbers for Cindy Ma who is our contact person. Cindy's email address is: cindy.ma@ey.com and her cell phone number

is 917-680-7810.

Cindy Ma is currently in transit back to New York. Although she doesn't know who I am, I will leave her an email and voice mail detailing who you are and the urgency of your situation. You should do the same by email, voice mail and fax. I suggest a deadline for E&Y to respond to you since I was told in a voice mail from Tony Buggs that any delay whatsoever will frustrate your process for a sale on Friday, December 21. I am not at all familiar with the details of your proposed transaction but I would alert E&Y to the reasons why you need their "approval" (for which there is no written procedure) immediately or else your "value" evaporates. There is nothing that I can do if E&Y is slow to respond. In that situation, I suppose I would keep calling the E&Y New York office to request immediate attention to your situation. By the way, I was unable to return Tony's message since I received it about 10 minutes ago and it's very late in the U.K.

Just copy me in case I receive a call.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 456 of 1118

Re: GTA SURVEY and License Agreement

Sender	laurel.adams@enron.com
Recipients	['sara.shackleton@enron.com', 'Laurel Adams/HOU/ECT@ECT', 'Ellen Su/Enron@EnronXGate']
File	shackleton-s/notes_inbox/2052.

WOOHOOO!

From: Sara Shackleton on 05/31/2001 01:56 PM To: Gennaro.Contella@chase.com@ENRON cc: Laurel Adams/HOU/ECT@ECT, Ellen Su/Enron@EnronXGate Subject: Re: GTA SURVEY and License Agreement

Gennaro:

Nancy Callahan and I are agreed with respect to the Global Custody Agreement. She will email the final version today and I will have it executed immediately. Nancy suggested that I return the executed documents to her attention. We will fax the executed agreement to you as well. Laurel (713-853-7035) needs to hear from you how quickly we will be ready for trading. Please give her a call if you have not spoken recently. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Gennaro.Contella@chase.com 05/31/2001 09:56 AM

To: sara.shackleton@enron.com, laurel.adams@enron.com cc: Subject: GTA SURVEY and License Agreement

Sara / Laurel,

Just following up on the GTA information we will require to install GTA in your office. I have attached the legal agreement and the surveys for stand alone users and LAN (multiple) users. Please don't hesitate to call me with any questions you might have.

(See attached file: GTA_SURVEY2_Stand_Alone.doc)(See attached file: GTA_SURVEY_Multi_User_Clr_blank.doc)(See attached file: GTA_LEG AGREEMENT.doc)

- GTA_SURVEY2_Stand_Alone.doc - GTA_SURVEY_Multi_User_Clr_blank.doc - GTA_LEG AGREEMENT.doc

Message 457 of 1118

RE: Amendment Document

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'Sara Shackleton@ECT; Reves', 'Brant']
File	shackleton-s/sent/5728.

Frank: Do you have the Glencore file?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/02/2001 08:51 AM -----

Brant Reves/ENRON@enronXgate 03/02/2001 08:50 AM

To: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, David.Porter@glencore-us.com@SMTP@enronXgate cc: Sara Shackleton@ECT Subject: RE: Amendment Document

David,

We continue to wait for word from you on the availability of additional financial information to review Glencore International AG. We are looking for similar information to that which was provided S&P. Without such information, a limited global credit line will be allocated per your direction.

Sara, I believe we should holdoff preparing executable documents until we hear back from David. That way, we can include in a single amendment those changes I referenced in my credit worksheet.

thanks brant

-----Original Message-----

From: Sayre, Frank Sent: Thursday, March 01, 2001 3:27 PM To: David.Porter@glencore-us.com Cc: Sara Shackleton@ECT; Reves, Brant Subject: Amendment Document

David - Per our telephone conversation of earlier today, please find the document amending the ISDA Master Agreement dated July 11, 1994 between Glencore Ltd. and Enron Capital & Trade Resources Corp. Please give me a call if you have any questions (713-345-7894). Frank

<< File: glencore amendment.doc >>

Message 458 of 1118

job referral

Sender	sara.shackleton@enron.com
Recipients	['krifisher@hotmail.com']
File	shackleton-s/all_documents/10682.

Hi, Kristina:

It was great speaking with you last night! Hope your dad is home and doing well.

I have contacted two different offices within Enron. The first is Human Resources in Houston. I suggested to them that you might be a good candidate for the associate/analyst program but they may think of other positions as well. I don't know how quickly that office might respond so let me know. The second "office" is directly to London. There is a woman in London named Anna Jansson who is currently leading efforts for the associate/analyst program in the Eastern Hemisphere. I have spoken with Anna and she has asked that you visit the website "www.enroncareers.com" and apply through the site. She already knows your name and I am trying to fax your resume (business resume) to her as well. When

you visit the site, you may decide to use a different resume; just let me know. Just in case you would like to call directly, Anna's number in London (dialed from the U.S.) is 011-44-20-7783-5912. The company directory shows her email address as "anna_jansson@enron.net" (which looks a little weird to me).

Please keep in touch and let me know if you receive responses (or don't hear back) so that I can follow up internally. By the way, you have an impressive resume.

Please feel free to call me at anytime. I hope we get to meet soon.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 459 of 1118

Re: AEP Master Amendments

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/nelson/338.

I have reviewed, initialed and now forwarded the Amendment and file back to you.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Stephanie Panus 05/21/2001 04:11 PM To: Cheryl Nelson/NA/Enron@Enron cc: Subject: AEP Master Amendments

Cheryl, Sara wanted me to check on the AEP amendment that you are reviewing regarding the confirming party. ----- Forwarded by Stephanie Panus/NA/Enron on 05/21/2001 04:10 PM -----

Sara Shackleton@ECT 05/21/2001 03:59 PM To: Stephanie Panus/NA/Enron@Enron cc: Subject: AEP Master Amendments

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/21/2001 03:59 PM -----

Larry Joe Hunter 05/21/2001 03:28 PM To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: AEP Master Amendments

Mark/Sara,

We are attempting to get two amendments to the ISDA with AEP right now. Mark, you are working on the Amendment allowing for EOL Transactions to not need written Confirmations and Sara is working on an amendment that will change the Confirming Party to ENA (for some reason, AEP was allowed to be the Confirming Party when the Master was drafted.) At any rate, is it possible that we send both of these amendments to AEP at the same time? We want to make sure that AEP views these amendments together and sign off on both. We think they'll be more comfortable signing them both at once rather than a couple of weeks apart.

Let me know.

Thanks, Joe Hunter

Message 460 of 1118

FW: MTM Mexico

Sender	sara.shackleton@enron.com
Recipients	['tom.moran@enron.com', 'tanya.rohauer@enron.com']
File	shackleton-s/sent_items/341.

FYI, Mexico. I'll rely on your 11/30/01 calculations. I don't know if Jaime worked with credit.

Sara

-----Original Message-----

From: Williams, Jaime Sent: Tuesday, January 29, 2002 10:52 AM To: Leite, Francisco Pinto; Shackleton, Sara Cc: Irvin, Steve Subject: RE: MTM Mexico

Absolutely, The Mark to Market was calculated as of Nov. 30th, which is the friday before the Bancruptcy filling. Sara, please feel free to call me at our new office...Best regards.

Phone: 011-52-81-8124-0151 Fax: 011-52-81-8124-0153 Celular: 011-52-81-8170-4418

Address: Edificio Miravalle Calz. San Pedro 250 Nte Piso 3 Col. Miravalle Monterrey, N.L. 64660

-----Original Message-----

From: Leite, Francisco Pinto Sent: Tuesday, January 29, 2002 10:25 AM To: Williams, Jaime; Shackleton, Sara Cc: Irvin, Steve Subject: MTM Mexico

Jaime:

As I told you before, Sara Shackleton is the lawyer of the Estate in charge of all financial trading matters. I prepared a memo to her that included the MTM you gave me and also the status of the contract with each counterparty. One question Sara had was about the date of the MTM valuation you sent me. I know it is a bit old but cannot recall the exact date. Could you please let Sara know the date and who exactly prepared the valuation (I am talking about the MTM you sent me).

Also, please let Sara know all your contact info.

Sara, Steve Irvin is also helping on Mexican matters. Steve, is located in Houston and he works with Don Miller

Francisco Pinto-Leite Enron Americas 1400 Smith Street, EB 3888 Houston, TX 77002-7361

Tel: 713-345-7942 Fax: 713-646-3490 fleite@enron.com

Message 461 of 1118

FW: Total International Ltd.

Sender	brant.reves@enron.com
Recipients	['frank.sayre@enron.com', 'sara.shackleton@enron.com', 'paul.maley@enron.com']
File	shackleton-s/all_documents/10606.

Paul,

How has London credit established Total International Ltd. has an "eligible contract party". I have left two e-mails for Total and they are not getting back with me. I have informed our trader not to take them again until we can sort out this eligibility issue. Any assistance from you would be appreciated.

brant

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, April 18, 2001 9:44 AM To: Reves, Brant Cc: Sayre, Frank Subject: Re: Total International Ltd.

Did you speak with your ECTRIC credit counterpart? Who is it? Did he make this inquiry already? One of you needs to speak with Total. The "due diligence" issue is a credit responsibility. Please let us know how we can help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brant Reves/ENRON@enronXgate 04/17/2001 05:01 PM To: Sara Shackleton/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Adam Gross/HOU/ECT@ECT Subject: Total International Ltd.

Did we ever get any further on ECP issues related to ENA subs, i.e. ECTRIC business with Total International Ltd, an unsupported subsidiary of TotalFina.

I have left two emails with my contact regarding ECP issues, with no reply. What are our choices to do with trade v34062, a trade not yet confirmed with this customer. I don't see this as a credit issue, but more of a legal issue. From a credit standpoint, I am ok with the trade.

Adam - consider these guys on the No Trade list until we can finalize handling status.

brant

Message 462 of 1118

Re: Commodity Futures Modernization Act

Sender	sara.shackleton@enron.com
Recipients	['tana.jones@enron.com']
File	shackleton-s/all_documents/10003.

Yes, we distributed several memoranda to the group before Ken Raceler's talk. You should have received one.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tana Jones 03/21/2001 12:30 PM

To: Carol St Clair/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: Commodity Futures Modernization Act

Do we have an outside counsel memorandum, or will we have an internal one soon, that we can send to Martin (as well as the other non-US swap lawyers)? ----- Forwarded by Tana Jones/HOU/ECT on 03/21/2001 12:25 PM -----

Elizabeth Sager 03/21/2001 11:58 AM

To: Tana Jones/HOU/ECT@ECT cc: Subject: Commodity Futures Modernization Act

can you help Martin w this

thanks ----- Forwarded by Elizabeth Sager/HOU/ECT on 03/21/2001 11:57 AM -----

Martin Rosell 03/18/2001 09:58 AM

To: Elizabeth Sager/HOU/ECT@ECT cc: Subject: Commodity Futures Modernization Act

Elisabeth:

I read an article in a law magazine about the captioned Act and it was, among other things, stated therein that CFTC under the Act had been deprived of its jurisdiction over swaps (other than those related to agricultural products) made by eligible contracts participants. Since the Oslo office trades through ECTRIC, I wonder whether this new piece of legislation has an

impact on our standard reps relating to the "trade options exemption" and as to the parties being "eligible swap participants" (are they still required)? Is there any internal memo yet prepared on the Act and its implications?

Martin

Message 463 of 1118

Confirms with Enron

Sender	sara.shackleton@enron.com
Recipients	['melissa.murphy@enron.com']
File	shackleton-s/all_documents/10765.

Melissa:

I just got this but have not reviewed. Last night we only discussed the collar. You could look at their regular swap and compare it to the January swap (for form). I have meetings this afternoon but will get back to you as soon as I can.

Thanks for the spark spread draft which I will also review.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/24/2001 01:32 PM -----

"Forte, Michael" <FORTEM@coned.com> 04/24/2001 01:22 PM

To: "'Michael Brown'" <Michael.Brown@enron.com> cc: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com>, "Cray, Brian E." <CRAYB@coned.com> Subject: Confirms with Enron

Michael,

Attached are our re-drafts of the financial products (collar, participating swap and swap) that we are contemplating. Note that with regard to the collar, the Notional Quantity was not put in the chart of the call and put prices as we discussed, as it was too cumbersome to do so. It was set out as a separate line item. We also provided for copies of certain notices to be sent notices to be sent to the Con Edison General Counsel. The draft confirms for the participating swap and the swap also use similar provisions for Notional Quantity and provide for copies of such notices to be sent to the Con Edison General Counsel.

<<ENA-CE Collar Confirm (4-24PM).doc>> <<ENA-CE Partic Swap Confirm (4-24PM).doc>> <<ENA-CE Swap Confirm (4-24PM).doc>>

Thank you and have a great day! Michael

- ENA-CE Collar Confirm (4-24PM).doc - ENA-CE Partic Swap Confirm (4-24PM).doc - ENA-CE Swap Confirm (4-24PM).doc

Message 464 of 1118

JPM's interest schedule

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'ellen.su@enron.com', 'shane.dallmann@enron.com']
File	shackleton-s/all_documents/9637.

Sara, I spoke with Ellen Su on the trading desk. As discussed previously, we would like fed funds rate. Also, Ellen suggested that we get the same rate reference on the Debit side as the Credit side (e.g. J.P. Morgan Overnight Borrowing Rate???? is noted on the Debit side) I am sending to Shane for him to review the market rates for the other currencies.

Ellen said that Canadian should be Canandian Overnight Deposit Rate (CDOR). Thanks. Sheila -----
Forwarded by Sheila Glover/HOU/ECT on 03/06/2001 01:45 PM ----- From: Sara Shackleton on
02/26/2001 03:39 PM To: Sheila Glover/HOU/ECT@ECT cc: Subject: JPM's interest schedule

Sheila: Regarding the JP Morgan ("JP") Futures Agreement, please see the attached for debit and credit rates which JP charges its customers. I asked for (1) agreed to overnight rate for debit rate and (2) Fed Funds for interest rate. Please let me know if you are agreeable to the attached rates. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/26/2001 03:36 PM

"Michael C Schneider" <schneider_michael@jpmorgan.com> 02/26/2001 02:47 PM

To: sara.shackleton@enron.com cc: "Corinne A Samon" <samon_corinne@jpmorgan.com> Subject: JPM's interest
schedule

Sara- Per your conversation with Corinne, please find enclosed JPM's interest rate schedule. Pls do not hesitate to call me
at (212) 648-1164 if you have any questions or require any other information. Regards, Mike (NA Technology & Clearing
Sales)

(See attached file: Enron Int Schedule 2-01.xls)

- Enron Int Schedule 2-01.xls

Message 465 of 1118

Re: Enron-BuySideDirect Agreement

Sender	mike.fowler@enron.com
Recipients	['minnich@imarkets.com', 'sara.shackleton@enron.com', 'jpeters@andrews-kurth.com', 'mike.fowler@enron.com']
File	shackleton-s/notes_inbox/1098.

In case I did not specify this previously, with regard to time limits for the clearly erroneous policy, I would encourage you to
consider both 1) counterparty notification that a trade is being questioned and 2) resolution.

Thanks.

Mike

"Michael Minnich" <minnich@imarkets.com> on 09/12/2000 07:00:10 PM Please respond to <minnich@imarkets.com>
To: <mike.fowler@enron.com>, <jpeters@andrews-kurth.com>, <sara.shackleton@enron.com> cc: "Lisa@Buysidedirect.
Com" <lisa@buysidedirect.com>, <minnich@imarkets.com>

Subject: Enron-BuySideDirect Agreement

I apologize for the delay. I made the changes as discussed except:

1. I did not put a limit on the Clearly erroneous policy--not because I didn't agree, but because I did not see an obvious
answer in the Nasdaq agreement. I will look at it more tomorrow, but I wanted to get this to you rather than delay further. 2.
Striking first sentence in 5.4--I have not heard back from our lawyers. Hopefully tomorrow.

Also, I attach the broker dealer attachment 2 which you said you didn't have.

I think we resolved most of your WPG questions. WPG is OK with all of your changes except Insert 6. I will try to get
further resolution as to why they object so that you can negotiate further if you like.

If all goes well, hopefully this can be wrapped up tomorrow.

Regards,

Mike

BuySideDirect LLC a subsidiary of Intelligent Markets, Inc.

410 Jessie Street, Suite 602 San Francisco, CA 94103 (415) 369-5016 direct (415) 369-5020 sales (415) 369-5010 fax
minnich@imarkets.com

- Enron BuySideDirect Subscriber Agreement, Dated August 25, 2000.doc - Enron BuySideDirect Subscriber Application,
Version August 25, 2000.doc - BuySideDirect Attachment 2.DOC

Message 466 of 1118

ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'jeff.nogid@enron.com']
File	shackleton-s/sent/6049.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/16/2001 12:57 PM

"Dautenhahn, Kimberly" <kdauteh@lehman.com> 04/16/2001 11:49 AM

To: "'sara.shackleton@enron.com'" <sara.shackleton@enron.com> cc: Subject: ISDA Master Agreement

Sara,

I apologize for the delay in getting the signed Agreement back to you. We are waiting to receive it back from our Zurich office (unfortunately the person required to sign has been out). We should have faxed signature pages (which we can, in turn, fax to you) at some point tomorrow. In addition, we should be able to get you your original copy later this week.

Regards, Kimberly

Kimberly A. Dautenhahn Transaction Management Corporate Advisory Division Lehman Brothers (646) 836-2011/0609
(fax) kdauteh@lehman.com

This message is intended only for the personal and confidential use of the designated recipient(s) named above. If you are not the intended recipient of this message you are hereby notified that any review, dissemination, distribution or copying of this message is strictly prohibited. This communication is for information purposes only and should not be regarded as an offer to sell or as a solicitation of an offer to buy any financial product, an official confirmation of any transaction, or as an official statement of Lehman Brothers Inc. Email transmission cannot be guaranteed to be secure or error-free. Therefore, we do not represent that this information is complete or accurate and it should not be relied upon as such. All information is subject to change without notice.

Message 467 of 1118

RE: Enron / Tri-Met Legal Follow Up

Sender	john.van@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/950.

Tri-Met is the regional transportation company for the greater Portland area. A good overview can be found on www.tri-met.org <<http://www.tri-met.org>>. From the web page, the full name and address is:

Tri-County Metropolitan Transportation District of Oregon (Tri-Met) 4012 SE 17th Avenue Portland, OR 97202

The ISDA that we left with them was dated 1992 and was a generic version. We have not even had credit discussions yet.

Let me know if you would like any additional information. Thanks, John

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 30, 2001 6:48 AM To: Van Gelder, John Subject: RE: Enron / Tri-Met Legal Follow Up

John: Thanks for the heads-up. What is the full name of this party? Exactly what "ISDA" did you leave for them to review (i.e., was this a customized agreement with credit)? Can I please have a copy in case someone calls me.

Thanks. Sara

-----Original Message-----

From: Van Gelder, John Sent: Monday, October 29, 2001 7:14 PM To: 'playfair@tri-met.org' Cc: Shackleton, Sara; Yoder, Christian; Malowney, John Subject: Enron / Tri-Met Legal Follow Up

Brian:

Thank you for meeting with myself and John Malowney today to discuss the opportunities for Enron and Tri-Met to work together. As we discussed, in order for Enron to provide either physical or financial products as an Oregon Direct Access ESS provider, the EEI and ISDA contracts that we left with you today will need to be executed.

Please feel free to contact the following individuals in our legal department at Enron to discuss the documents in more detail.

ISDA Sara Shackleton Enron - Houston 713-853-5620

EEI Christian Yoder Enron - Portland 503-464-7845

Thank you and please call with any questions. John

John Van Gelder Enron North America - West Desk 503-464-3708

Message 468 of 1118

RE: Deutsche Bank AG ("DB") request for ISDA Master Agreement with

Sender	anna.fox@enron.com
Recipients	[sara.shackleton@enron.com, 'justin.boyd@enron.com']
File	shackleton-s/inbox/1043.

We have sent the first draft of an ISDA with EFET LLC to Deutsche Bank, which mirrored the terms of the Enron NA ISDA with English law amendments.

Are you happy for me to negotiate the ECTRIC ISDA on the same terms with English law amendments? I will run it past tax and credit again. We will be wanting gas as well as lc's in the CSA for both.

Credit think Steve will want a MAC clause which we want to avoid and they have asked me to stall him so I haven't called him back yet but I will tomorrow.

Thanks. Anna

-----Original Message-----

From: Boyd, Justin Sent: 04 November 2001 11:43 To: Shackleton, Sara Cc: Brungs, Ian; Fox, Anna Subject: RE: Deutsche Bank AG ("DB") request for ISDA Master Agreement with ECTRIC

sara

anna fox is the one her ...we have already opened discussions with DB about an ISDA with ECTRIC so i don't know why this person is raising this

justin

-----Original Message-----

From: Shackleton, Sara Sent: 02 November 2001 21:58 To: Boyd, Justin; Simons, Paul; Cooper, Edmund; Dawson, Matthew; Williams, Jason R (Credit) Cc: Rohauer, Tanya; Cook, Mary; St. Clair, Carol Subject: Deutsche Bank AG ("DB") request for ISDA Master Agreement with ECTRIC

Steve Kessler (212-469-8202) with DB legal has called to request an ISDA Master Agreement with ECTRIC. Who is the appropriate legal contact in London to initiate this process?

DB has an ISDA with ENA. Steve told me that DB also has an ISDA with Enron Credit Limited. Is a master netting arrangement appropriate here?

London: Please let me know on Monday which lawyer will handle this ISDA request.

Jay: Please let legal know if this arrangement requires a master netting agreement.

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 469 of 1118

Re: Wine, Dinner and Friends

Sender	carlew@flash.net
Recipients	['sara.shackleton@enron.com', 'donna_j_mullen@dom.com']
File	shackleton-s/all_documents/10646.

Hi Sara and Donna:

I am in for May 16th. Do you want to try La Vista? Enjoy your vacation.

Sara.Shackleton@enron.com wrote:

Carson: I'm on the phone with Donna and due to our extremely busy schedules we have penciled in May 16 as D-Day (you know, "dinner date"). After the Enron legal conference, I'm on vacation which is the reason for the May date. Before the Enron legal conference, Donna is out of town most of the time. So - please let us hear from you. Did you remember Monty's birthday?
Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com "R. Carson Llewellyn" To: Sara Shackleton

<sshackl@email.msn.com>, Sara Shackleton

<carlew@flash <Sara.Shackleton@enron.com>, Donna

Mullen <Donna_J_Mullen@dom.com>

.net> cc: Subject: Wine, Dinner and

Friends

04/19/2001 11:08 AM Sara and Donna: I apologize for waiting two months to pick a date in order to consume some of Sara's excess wine, but I think I found a good place to meet. There is a restaurant named La Vista at 1936 Fountain View, just North of the Rice Epicurean. It should be real close to Donna, and they let you bring your own bottle(s) of wine. If Sara brings the wine, then I could spring for the dinner and Donna could bring the flowers. I am tied up next Thursday and Friday, and I know that Sara has the Enron Law Conference in San Antonio the following Wednesday, Thursday and Friday. Hopefully, there is a window in there when we can all get together. Carson

Message 470 of 1118

FW: Fourth Amendment to Master Agreement between Morgan Stanley

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent_items/247.

Susan, here's my email. I just left Bill another message. Sara

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 23, 2001 10:29 AM To: Bradford, William S.; Rohauer, Tanya Subject: RE: Fourth Amendment to Master Agreement between Morgan Stanley Capital Group Inc. ("Morgan") and ENA

Bill and Tanya:

Please verify that the attached document accurately reflects your agreement with Morgan as to changes to the "Exposure Threshold" and I will initial for execution. All else looks fine.

Thanks. Sara

-----Original Message-----

From: Beth Ng <Beth.Ng@morganstanley.com>@ENRON Sent: Tuesday, October 23, 2001 9:28 AM To: Bailey, Susan Cc: Shackleton, Sara; Rohauer, Tanya; William.Bradford@ENRON.com; Anthony T Lupiano JR Subject: Fourth Amendment to Master Agreement

Re: Proposed Fourth Amendment to the Master Energy Price Swap Agreement between Enron North America Corp. ("Enron") and Morgan Stanley Capital Group Inc. ("MSCGI")

Dear Susan:

Pursuant to the discussions between Anthony Lupiano of our Credit Department and Bill Bradford of your Credit Department yesterday, attached you will find a proposed Fourth Amendment to the Master Energy Price Swap Agreement. The purpose of this Fourth Amendment is to amend the Exposure Threshold definition. It is my understanding that Mr. Bradford has agreed to these terms. Our Credit Department is expecting that we bring this document to a closure quickly.

Please contact me with any questions or comments you may have.

Kind regards,

Beth Ng Commodities Division - Documentation Tel: 212 761 8720 Fax: 212-507-4898 / 212 761 0293 Email: Beth.Ng@morganstanley.com

1585 Broadway, 4th Floor New York, NY 10036

- enron north america_4th Amend.doc << File: enron north america_4th Amend.doc >> - Beth.Ng.vcf << File: Beth.Ng.vcf >>

Message 471 of 1118

Re: J.P. Morgan Chase Futures Agreement

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'cheryl.nelson@enron.com']
File	shackleton-s/all_documents/9118.

Cheryl: I'll finish this one. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/12/2001 01:09 PM -----

Sheila Glover 02/12/2001 12:47 PM

To: Cheryl Nelson/NA/ENRON@ENRON cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: J.P. Morgan Chase Futures Agreement

Cheryl, Gary Hickerson has requested so I would ID as high. Sara has the agreement as Gary had sent directly to her.

I would not have included everyone in the CC regarding this question which relates more to Logistics between Legal and me. Many Thanks. Sheila

02/12/2001 12:32 PM Cheryl Nelson@ENRON Cheryl Nelson@ENRON Cheryl Nelson@ENRON 02/12/2001 12:32 PM 02/12/2001 12:32 PM Sent by: Cheryl Nelson@ENRON To: Sheila Glover/HOU/ECT@ECT cc: Cassandra Schultz/NA/Enron@Enron, Gary Hickerson/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT Subject: Re: J.P. Morgan Chase Futures Agreement

Sheila, should this account be placed on the high priority list? Also, to whom in legal did you send the info?

Cheryl Nelson Senior Counsel EB3875 (713) 345-4693

Sheila Glover@ECT 02/12/2001 11:57 AM

To: Cassandra Schultz/NA/Enron@Enron, William S Bradford/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT Subject: J.P. Morgan Chase Futures Agreement

Cassandra, Bill and Cheryl, We have sent to legal a request to open a new Futures Clearing Agreement with JP Morgan Chase. Gary is requesting that we establish this account to provide additional coverage for Rate & Currency and Equity Products. Carr and Pru have lost some key persons and service levels are not deemed to be as good as previously. Thanks. Sheila

Message 472 of 1118

Allegheny Energy Supply Company LLC Credit Worksheets - URGENT

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/all_documents/9817.

Sam: Please prepare ASAP. The Merrill party referenced is "Merrill Lynch Capital Services" which we'll need to review.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/15/2001 10:00 AM -----

Tracy Ngo 03/14/2001 09:52 PM

To: Janice R Moore/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: William S Bradford/HOU/ECT, Rhonda L Denton/HOU/ECT@ECT, Genia FitzGerald/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Shari Stack/HOU/ECT@ECT Subject: Allegheny Energy Supply Company LLC Credit Worksheets

Janice/Sara,

Attached please find the fully, negotiated credit terms for an Amended Master Energy Purchase and Sale Agreement between CP and EPMI as well as the new credit terms for an ISDA Master Swap Agreement between CP and ENA.

Janice/Sara: Please ensure that Specified Entities for the ISDA include Enron Corp. and EPMI, and that the setoff provisions in both the ISDA and Master Power are consistent.

Sara: In the essence of time, Merrill Lynch showed Allegheny Energy the existing ISDA between ENA and Merrill Lynch. So, Allegheny's attorneys have reviewed the ISDA terms that we had with Merrill in order to "get up to speed" with the ISDA that Allegheny would end up having with ENA via assignment or "reproduction of some sort." After the financial gas and power deals are assigned completely to Allegheny, ENA will continue to have interest rate swaps/and maybe even a weather swap with Merrill. That being said, I don't think we can necessarily "assign" the ISDA with Merrill to Allegheny. I think we will need to "reproduce" the majority of the terms to a new ISDA w/Allegheny.

Please let me know if you have any questions.

Regards, Tracy 503-464-8755

(revised terms for existing Master Power) (new terms for ISDA)

Message 473 of 1118

Mid-Year 2000 Performance Feedback

Sender	perfmgmt@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11959.

NOTE: YOU WILL RECEIVE THIS MESSAGE EACH TIME YOU ARE SELECTED AS A REVIEWER.

You have been selected to participate in the Mid-Year 2000 Performance Management process by providing meaningful feedback on specific employee(s) that have been identified for you. Your feedback plays an important role in the performance management process, and your participation is very critical to the success of Enron's Performance Management goals.

Please provide feedback on the employee(s) listed below by accessing the Performance Management System (PEP) and completing an online feedback form as described in the "Performance Management Quick Reference Guide". You may begin your feedback input immediately. Please have all feedback forms completed by the date noted below.

If you have any questions regarding PEP or your responsibility in the process, please call the PEP Help Desk at the following numbers:

In the U.S.: 1-713-853-4777, Option 4 In Europe: 44-207-783-4040, Option 4 In Canada: 1-403-974-6724 (Canada employees only)

Or e-mail your questions to: perfmgmt@enron.com

Thank you for your participation in this important process.

The following list of employees is a CUMULATIVE list of all feedback requests, by operating company, that have an "OPEN" feedback status. An employee's name will no longer appear once you have completed the feedback form and select the "SUBMIT" button in PEP.

Review Group: ENRON Feedback Due Date: Jun 16, 2000

Employee Name Supervisor Name Date Selected ----- ADAMS, LAUREL R SHEILA M
GLOVER May 24, 2000 BAILEY, SUSAN S. MARK TAYLOR May 25, 2000 CYPROW, JARROD JEFFERSON D
SORENSEN May 23, 2000 ELLIS, REGINA K SHARI S STACK May 19, 2000 ST. CLAIR, CAROL L MARK TAYLOR May
17, 2000

Message 474 of 1118

FW: Con Edison Form of ISDA Agreements

Sender	sara.shackleton@enron.com
Recipients	[cheryl.nelson@enron.com]
File	shackleton-s/all_documents/11308.

Cheryl:

Attached are Con Ed's documents. We need to do an "ISDA comparison" and prepare a redline to submit to Con Ed. Sam worked on the original ConEd draft, the latest dated 1/24/01. The file should be in the file drawer. We can talk about the comparison when we meet. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/30/2001 03:42 PM -----

Janelle Scheuer/ENRON@enronXgate 04/10/2001 04:17 PM

To: Sara Shackleton/HOU/ECT@ECT, Edward Sacks/ENRON@enronXgate cc: Subject: FW: Con Edison Form of ISDA Agreements

Hi Sara and Ed! ConEd wants to get going on an ISDA , in parallel to adjusting as necessary the long form for the upcoming transaction. They believe that the ISDA will not be negotiated in time for when they want to execute, thus the parallel documents. Regarding the annex, the uncoming deals could potentially be swaps, collars, or participating swaps. I think they are quite eager to hear our response. Thanks, Janelle -----Original Message----- From: "Forte, Michael" <FORTEM@coned.com>@ENRON

[mailto:IMCEANOTES+22Forte+2C+20Michael+22+20+3CFORTEM+40coned+2Ecom+3E+40ENR ON@ENRON.com]

Sent: Tuesday, April 10, 2001 4:00 PM To: Scheuer, Janelle Subject: Con Edison Form of ISDA Agreements

Janelle,

Attached for Enron's review are Con Edison's form of the ISDA Master Agreement Schedule, Credit Support Annex, Form of Guarantee, and Letter of Credit Form. <<Con Edison - ISDA Schedule 041001 draft.doc>> <<Con Edison - Credit Annex 041001 draft.doc>> <<Con Edison Form of Guarantee.doc>> <<Con Edison Letter of Credit Form 041001 Draft.doc>>

Thank you and have a great day! Michael

- Con Edison - ISDA Schedule 041001 draft.doc - Con Edison - Credit Annex 041001 draft.doc - Con Edison Form of Guarantee.doc - Con Edison Letter of Credit Form 041001 Draft.doc

Message 475 of 1118

FW: Enron Gas Liquids, Inc. and Enron Reserve Acquisition Corp.

Sender	sara.shackleton@enron.com
Recipients	[marie.heard@enron.com]
File	shackleton-s/sent_items/621.

Marie: here's what John V. was going to sign.

-----Original Message-----

From: Viverito, John Sent: Tuesday, October 30, 2001 4:03 PM To: Shackleton, Sara Cc: Cook, Mary; St. Clair, Carol; Williams, Jason R (Credit); Aronowitz, Alan; Moran, Tom Subject: FW: Enron Gas Liquids, Inc. and Enron Reserve Acquisition Corp.

Sara-

As discussed, I am forwarding the correspondence from Beth Ng of Morgan Stanley containing the draft netting agreements (based on the Enron Capital & Trade Resources Ltd. forms provided to Morgan Stanley) to be entered into by EGLI and ERAC.

I am attaching below, amended versions of the netting agreements that Morgan Stanley would like to enter into today. I note that Tom Moran, who heads up EGM credit, would like to get Morgan Stanley comfortable ASAP.

Let me know if there is any problem with entering into these arrangements.

Thanks for your help.

John

-----Original Message-----

From: Beth Ng <Beth.Ng@morganstanley.com <mailto: Beth.Ng@morganstanley.com>>@ENRON Sent: Friday, October 26, 2001 4:38 PM To: Viverito, John Subject: Enron Gas Liquids, Inc. and Enron Reserve Acquisition Corp.

Dear John:

As discussed, we have exposures under Enron Reserve Acquisition Corp. and Enron Gas Liquids, Inc. We would like to enter into a netting agreement with each of the Enron entities.

Today, we executed a netting agreement with your London entity, Enron Capital & Trade Resources Ltd. Enclosed please find the proposed netting agreements for these two Enron entities based on your UK entity's form of netting agreement.

Please review and provide us with your comments by Monday.

Kind regards, MORGAN STANLEY CAPITAL GROUP INC.

Beth Ng Commodities Division - Documentation Tel: 212 761 8720 Fax: 212-507-4898 / 212 761 0293 Email: Beth.Ng@morganstanley.com <mailto: Beth.Ng@morganstanley.com>

1585 Broadway, 4th Floor New York, NY 10036

- Enron Gas Netting Agreement 10-26-01 v. orig.doc - Enron Reserve Netting Agreement 10-26-01 v orig.doc - Beth.Ng.vcf

Message 476 of 1118

Confirmation Agreement

Sender	sara.shackleton@enron.com
Recipients	['janelle.scheuer@enron.com', 'melissa.murphy@enron.com']
File	shackleton-s/all_documents/8916.

Melissa:

Please refer to Janelle's request for a draft confirm. The counterparty's draft has a floating price reference and you should verify with Janelle. Use the ISDA format; the counterparty is the "Power Authority for the State of New York". Ignore the "junk" in the counterparty's form. I have no other info about the particular deal. Call if you have any questions and please send me a copy. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 01:24 PM -----

Janelle Scheuer 02/02/2001 01:21 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Confirmation Agreement

Rather than a "redline" of their confirmation, maybe its better if we just send our confirmation, and see if that would be acceptable. Can you either email me the appropriate draft to distribute to them or have it distributed directly? Thanks.
Janelle ----- Forwarded by Janelle Scheuer/HOU/ECT on 02/02/2001 01:17 PM -----

"McGill, Marissa" <Marissa.McGill@nypa.gov> on 02/02/2001 12:57:00 PM To: "Janelle Scheuer" <janelle.scheuer@enron.com> cc: "Nock, Leon" <Leon.Nock@nypa.gov>, "Kmiotek-Welsh, Jacqueline" <Jacqueline.Kmiotek@nypa.gov>, "Moreland, Terry" <Terry.Moreland@nypa.gov> Subject: Confirmation Agreement

Hi, Janelle - Per our conversation this morning, the appropriate contact would be Jackie Kmiotek-Welsh in our Legal Dept. You can e-mail her the agreement with the desired changes (redline) to her. If you could cc Terry, Leon, and myself on the e-mail, that would be great.

Jackie's telephone number is (914)390-8019. Any questions, please contact us.

Marissa D. McGill Marketing Coordinator Marketing and Economic Development New York Power Authority 123 Main Street - Mailstop 10F White Plains, New York 10601 (914)390-8146 or 718-8146 marissa.mcgill@nypa.gov
<mailto:marissa.mcgill@nypa.gov>

- Chess.gif

Message 477 of 1118

Re: FW: Enron Corp. ISDA.

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com', 'Richard_Newman@westlb.com']
File	shackleton-s/sent/6328.

Tanya:

If you check Lotus Notes, you'll see an entry by Shari Stack (waiting for Credit). I checked my list of requested Enron Corp. ISDA's (see my email to you of 10/26/00) and I don't see anything. I don't know where the internal request came from. Should we check with Treasury?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tanya Rohauer/ENRON@enronXgate 06/04/2001 01:09 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Enron Corp. ISDA.

Do you know about this? Sounds like maybe we want to duplicate the ENA ISDA to Corp.

-----Original Message-----

From: Radous, Paul Sent: Friday, June 01, 2001 10:09 AM To: Rohauer, Tanya Subject: FW: Enron Corp. ISDA.

As we discussed this morning....

-----Original Message-----

From: Nelson, Roderick Sent: Friday, June 01, 2001 4:41 AM To: Radous, Paul Subject: FW: Enron Corp. ISDA.

Paul,

I don't mean to dump this on you, but it was part of my old life. Do you know who would cover an ISDA contract with Enron Corp? I was working on these corporate type contracts for a bit before I left. If you did not assume this responsibility, could you forward to the guilty party. (I would ask Bill, but he's out - as you know).

Hope things are going well otherwise.

Later, Rod

-----Original Message-----

From: Glen_Smith@westlb.com [mailto:Glen_Smith@westlb.com] Sent: 31 May 2001 15:16 To: Nelson, Roderick Cc: Richard_Newman@westlb.com Subject: Enron Corp. ISDA.

Dear Rod:

It was a pleasure speaking with you yesterday. As discussed, I found the draft from last July and I have attached it below. Please let me know whom I should contact to follow up and I will do. I greatly appreciate your help in moving this negotiation along. As per notes from my colleague, Joyce Lim, this draft was constructed based on our executed ISDA Master with Enron North America Corp. Regards, Glen (212) 852-6274

(See attached file: Schedule Feb 10.doc)

Message 478 of 1118

Re: P&P confirm help

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'diane.anderson@enron.com']
File	shackleton-s/all_documents/10959.

I will look at it.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Diane Anderson@ENRON 05/03/2001 12:02 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Subject: P&P confirm help

Sara/Mary -

I'm not sure which of you to direct this question to, so I'll ask you both and either can run with it.....

I am attaching a confirmation for the paper product OCC#11. The desk came back to me with modifications to incorporate that change this into a type of confirmation I have never done before. So I need some help:

- This will be an American Call Swaption. The Buyer has the option to settle physically or financially into a call.
- For financial settlement: Exercise periods: May 1 - May31 to exercise the June period June 1 - June 30 to exercise the July period July 1 - July 31 to exercise to August period (close of business 4:30 EST)
- For physical settlement: Exercise periods are the same as for financial settlement
- If they exercise physically, the Seller must be allowed at least 30 days to deliver 2000 short tons per month for each Determination Period at the defined Location.
- The language they gave me for the Floating Price is:

The Floating Price for each Determination Period shall be based off the arithmetic average fo the bid/offer price based off www.clickpaper.com at the time of exercising the call option (US Physical OCC#11 FAS Port Elizabeth Harbor, Spot month)

I'm attaching a copy of the original confirmation I generated , using just the info that was on the ticket. (clearly the ticket was lacking a lot of important things, and incorrect on others)....you can use it to incorporate the necessary changes if you'd like, or start from scratch.

Let me know what other info you might need and I'll try to get it from either the desk or from the physcial confirms group.

Thanks a lot, Diane

Message 479 of 1118

Re: job referral

Sender	krifisher@hotmail.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10700.

Hi: I've just finished the Enron online careers application. I've put your name down in the section entitled internal referral when they asked how I heard of Enron. I will also send Ana an email to confirm that I've proceeded as directed. Have a great week regards, Kristina

From: Sara.Shackleton@enron.com To: krifisher@hotmail.com Subject: job referral Date: Fri, 20 Apr 2001 15:24:37 -0500 Hi, Kristina: It was great speaking with you last night! Hope your dad is home and doing well. I have contacted two different offices within Enron. The first is Human Resources in Houston. I suggested to them that you might be a good candidate for the associate/analyst program but they may think of other positions as well. I don't know how quickly that office might respond so let me know. The second "office" is directly to London. There is a woman in London named Anna Jansson who is currently leading efforts for the associate/analyst program in the Eastern Hemisphere. I have spoken with Anna and she has asked that you visit the website "www.enroncareers.com" and apply through the site. She already knows your name and I am trying to fax your resume (business resume) to her as well. When you visit the site, you may decide to use a different resume; just let me know. Just in case you would like to call directly, Anna's number in London (dialed from the U.S.) is 011-44-20-7783-5912. The company directory shows her email address as "anna.jansson@enron.net" (which looks a little weird to me). Please keep in touch and let me know if you receive responses (or don't hear back) so that I can follow up internally. By the way, you have an impressive resume. Please feel free to call me at anytime. I hope we get to meet soon. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Get your FREE download of MSN Explorer at <http://explorer.msn.com>

Message 480 of 1118

Louisiana-Pacific: I'll call you in a few minutes. Look at

Sender	sara.shackleton@enron.com
Recipients	['jason.williams@enron.com']
File	shackleton-s/sent/6202.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/15/2001 02:56 PM -----

John Malowney/ENRON@enronXgate 05/14/2001 09:55 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: ISDA

Sara, some time ago we forwarded Louisiana-Pacific (L-P) an ISDA for their review and consideration. They have responded with the following comments. Can you give me a hand in addressing them? John

-----Original Message-----

From: "Roger Dieringer" <Roger.Dieringer@LPCorp.com>@ENRON
[mailto:IMCEANOTES-+22Roger+20Dieringer+22+20+3CRoger+2EDieringer+40LPCorp+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, May 09, 2001 11:49 AM To: Malowney, John Subject: ISDA

John,

Listed below are several issues we need to have addressed prior to signing the agreement!

- 1) Curt Stevens name is consistently misspelled throughout the documents. We should also be sure that our new corporate address is used. 805 SW Broadway, Suite 1200, Portland, Oregon 97205-3303.
- 2) Enron doesn't like late payments or early termination of their agreements. Interest on amounts owing is compounded daily. John - this needs to be changed. What other decent arrangements can be put in here. (I thought only loan sharks compounded daily?)
- 3) Part 3 of the Schedule to the Master Agreement should be amended to provide that LP may satisfy its obligation to provide updated financial information by posting it to EDGAR or on the web. Enron now has that ability.
- 4) We don't have the 1991 ISDA Definitions or the 1993 ISDA Commodity Derivatives Definitions cited in Parts 5 and 6 of the Schedule to the Master Agreement. I wasn't able to locate them on the web. We will need these provide to LP.
- 5) The Credit Support Annex is designed to apply to ISDA Agreements subject to New York law. Our Agreement is subject to Texas law. We may not have the proper form.

Let me know at your convenience.

Thanks Roger

Message 481 of 1118

Enron/Danno C

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/notes_inbox/1043.

In connection with the Hawaii 125-0 Danno C transaction scheduled to close September 29, 2000, attached in Word format are the following closing documents marked against the McGarret C Series:

Closing Checklist (258185) Asset Notice (258187) Series Certificate (258191) Series Supplement (258196) Drawdown Request (258198) Total Return Swap Confirmation (258201) Put Option Agreement (258202) Put Option Assignment (258215) Notice of Put Option Assignment (258218) Maui III Promissory Note (258221) B Interest Assignment (258233) Assignment Agreement (258256) Amended and Restated LLC of Danno III (258239) Amended and Restated LLC of Maui III (258260) Receipt of Asset LLC (258267) Receipt of Transferor (258268) Receipt of Trust (258270) Independent Auctioneer Letter (258302) Sale and Auction Agmt (258307) Direction Letter (258312)

Please call Muriel McFarling at (214) 659-4461 if you have any questions or comments.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 258312.doc - 258187.doc - 258191.doc - 258196.doc - 258198.doc - 258201.doc - 258202.doc - 258215.doc - 258218.doc - 258221.doc - 258233.doc - 258239.doc - 258256.doc - 258260.doc - 258267.doc - 258268.doc - 258270.doc - 258302.doc - 258307.doc - 258185.doc

*Message 482 of 1118***Enron/Danno C**

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/3596.

In connection with the Hawaii 125-0 Danno C transaction scheduled to close September 29, 2000, attached in WordPerfect format are the following closing documents marked against the McGarret C Series:

Closing Checklist (258185) Asset Notice (258187) Series Certificate (258191) Series Supplement (258196) Drawdown Request (258198) Total Return Swap Confirmation (258201) Put Option Agreement (258202) Put Option Assignment (258215) Notice of Put Option Assignment (258218) Maui III Promissory Note (258221) B Interest Assignment (258233) Assignment Agreement (258256) Amended and Restated LLC of Danno III (258239) Amended and Restated LLC of Maui III (258260) Receipt of Asset LLC (258267) Receipt of Transferor (258268) Receipt of Trust (258270) Independent Auctioneer Letter (258302) Sale and Auction Agmt (258307) Direction Letter (258312)

Please call Muriel McFarling at (214) 659-4461 if you have any questions or comments.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 258312.wpd - 258187.wpd - 258191.wpd - 258196.wpd - 258198.wpd - 258201.wpd - 258202.wpd - 258215.wpd - 258218.wpd - 258221.wpd - 258233.wpd - 258239.wpd - 258256.wpd - 258260.wpd - 258267.wpd - 258268.wpd - 258270.wpd - 258302.wpd - 258307.wpd - 258185.wpd

*Message 483 of 1118***RE: Draft ISDA Master Agreement**

Sender	keith.mcnally@csfb.com
Recipients	['clint.freeland@enron.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/notes_inbox/3304.

Stephanie, I have forwarded your draft to my colleague Anita Khosla who has just recently concluded negotiations with Enron Credit Corp and is therefore probably better placed than myself to take on board these negotiations. She can be contacted on (212) 538-1938 and at antia.khosla@csfb.com

Thanks and regards

Keith

-----Original Message-----

From: Stephanie.Panus@enron.com [mailto:Stephanie.Panus@enron.com] Sent: Wednesday, February 07, 2001 11:04 AM
To: keith.mcnally@csfb.com Cc: Sara.Shackleton@enron.com; Clint.Freeland@enron.com
Subject: Draft ISDA Master Agreement

Mr. McNally,

Per the request of Clint Freeland of Enron Corp., attached for your review is a draft of the ISDA Master Agreement between Enron Corp. and CSFB. If you will not be negotiating the Agreement on behalf of CSFB, please let us know the correct person.

Please contact myself or Sara Shackleton if you have any questions.

(See attached file: 056ctr(csfb-ene).doc)

Stephanie Panus Sr. Legal Specialist Enron North America Corp. 1400 Smith Street, Suite 3806 Houston, Texas 77002
phone: 713.345.3249 fax: 713.646.3490

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Message 484 of 1118

Re: Derivatives: Ruling Against Texas Hospital Swap May Put Similar

Sender sara.shackleton@enron.com

Recipients ['mark.taylor@enron.com']

File shackleton-s/sent/198.

No I had not. I'm no up on DJ and The Bond Buyer currently requires subscription. Let me know what you learn. Sara

From: Mark - ECT Legal Taylor 07/26/99 05:37 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Derivatives: Ruling Against Texas Hospital Swap May Put Similar Deals in Jeopardy

Have you heard anything about this? I can't get into this on the internet from here but will certainly check into it when I get back. ----- Forwarded by Mark - ECT Legal Taylor/HOU/ECT on 07/26/99 05:25 PM -----

Enron Capital & Trade Resources Corp.

From: djcustomclips@djinteractive.com 07/26/99 03:49 AM

Please respond to custom.news@wsj.dowjones.com To: 94094@mailman.enron.com cc: (bcc: Mark - ECT Legal Taylor/HOU/ECT) Subject: Derivatives: Ruling Against Texas Hospital Swap May Put Similar Deals in Jeopardy

Ruling Against Texas Hospital Swap May Put Similar Deals in Jeopardy

DALLAS -- A recent ruling that the El Paso County, Tex., Hospital District illegally entered into an interest rate swap in late 1996 may imperil attempts by other county health care providers to issue similar hedges, according to officials familiar with ...

Published by: The Bond Buyer Date: 07/26/1999 Word Count: 470 Relevance Score on Scale of 100: 89 Folder Name: Derivatives

Full-text article available at http://nrstg1p.djnr.com/cgi-bin/NewsRetrieval?cgi=WEB_ST_WC_STORY&DBNAME=FINSE RV&HDAN=TBBY9920700008&Search=Derivatives&QID=94094&QT=R&HDSC=TBBY

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Message 485 of 1118

Re: Reminder of Brokerage Agreements Meeting Tomorrow at 1:30 pm in

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'keegan.farrell@enron.com']
File	shackleton-s/nelson/83.

Sara, Keegan and I do not know what you are saying you want to do finally.

You indicated yesterday that you did not have any meetings scheduled with me today on brokerage accounts and immediately thereafter, Keegan and I adjusted my schedule accordingly with other meetings.

Are you now saying that you want to still meet at these times referenced in Kay's email below.

Or, are you saying, based on a more recent email, that you only want to meet Monthly?

Let us know.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/04/2001 08:43 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Reminder of Brokerage Agreements Meeting Tomorrow at 1:30 pm in 38C1

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/04/2001 08:42 AM -----

Kaye Ellis 04/04/2001 08:20 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Reminder of Brokerage Agreements Meeting Tomorrow at 1:30 pm in 38C1

Here is the email I sent out listing when each Brokerage Agreement Meeting would be held.. ----- Forwarded by Kaye Ellis/HOU/ECT on 04/04/2001 08:18 AM -----

Kaye Ellis 03/13/2001 03:14 PM

To: Cheryl Nelson/NA/Enron@Enron, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Subject: Reminder of Brokerage Agreements Meeting Tomorrow at 1:30 pm in 38C1

----- Forwarded by Kaye Ellis/HOU/ECT on 03/13/2001 03:12 PM -----

Kaye Ellis 02/22/2001 11:15 AM

To: Cheryl Nelson/NA/Enron@Enron, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT, Keegan Farrell/NA/Enron@Enron, Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Brokerage Agreements Meetings

Please put the following dates on your calendar for the Brokerage Agreements meetings.

Monday, February 26 at 2 pm in 38C1

The following meetings will all be held at 1:30 pm in 38C2:

March 14 March 28 April 11 April 25 May 9 May 23 June 13 June 27 July 11 July 25 August 8 August 22 Sept. 12 Sept. 26
Oct. 10 Oct. 24 Nov. 14 Nov. 28 Dec. 12 Dec. 26

Please let me know if you have any conflicts.

Thanks Kaye

Message 486 of 1118

FX trade Counterparty	
Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com', 'Laurel Adams/HOU/ECT@ECT']
File	shackleton-s/all_documents/10618.

Tanya:

Bob Crane did a deal with the Canadian party identified below. Sounds like he originally told our FX trader that the parties would be EGM (actually ENA) and Enron Industrial Markets ("EIM"). In the end, EIM was not the correct party but the Canadian party was the correct party.

Is this trade between ENA and Compagnie de Papiers Stadacona authorized by credit? Is the company eligible?

Please let me know what you think. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/18/2001 05:53 PM -----

Laurel Adams 04/17/2001 05:22 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Sara,

Are we able to do FX deals with the company shown below? Also, would this be an RMT confirm or an ENA confirm?

----- Forwarded by Laurel Adams/HOU/ECT on 04/17/2001 05:20 PM ----- From: Ana Rizvi

on 04/17/2001 04:59 PM To: Clara Carrington/HOU/ECT cc: Laurel Adams/HOU/ECT@ECT Subject: changes needed for currency trade confirmation

see below...

ana

----- Forwarded by Ana Rizvi/HOU/ECT on 04/17/2001 03:14 PM -----

From: Bob Crane/ENRON@enronXgate on 04/17/2001 04:51 PM To: Ana Rizvi/HOU/ECT@ECT, William Stuart/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Ana,

The information on the confirm executed (deal no. m439607) between EGM and EIM needs a couple of changes. Please make the counterparty:

Compagnie de papiers Stadacona Bay Wellington Tower - BCE Place 181 Bay Street, Suite 1540, P.O. Box 822 Toronto, Ontario, Canada M5J 2T3

And the bank accounts should be

Account Name Currency Notes 2013883015 EIM Holdings, (Canada) Inc. US\$ Primary concentration & funding account Co# 1469 Receives US\$ deposits from BoA collections US\$ collection Funds FX settlement for Can\$ Funding source for BNS US\$ accounts

2013883007 EIM Holdings, (Canada) Co. Can \$ Can\$ deposit account Co# 1469 Deposit Acct for FX purchases of Can\$ Primary funding account for operations

Thank you

Bob Crane

Message 487 of 1118

CSFB legal docs

Sender	sara.shackleton@enron.com
Recipients	['laurel.adams@enron.com']
File	shackleton-s/all_documents/3310.

Just let Mr. De Dalmas know that I asked someone to respond. SS ----- Forwarded by Sara Shackleton/HOU/ECT on 09/01/2000 11:43 AM -----

Sheila Glover 08/01/2000 09:47 AM

To: Sara Shackleton/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron cc: Subject: CSFB legal docs

----- Forwarded by Sheila Glover/HOU/ECT on 08/01/2000 09:41

AM -----

"De Dalmas, Guillaume" <guillaume.dedalmas@csfb.com> on 08/01/2000 09:31:17 AM To: "'sheila.glover@enron.com'" <sheila.glover@enron.com> cc: Subject: CSFB legal docs

Dear Sheila

My colleagues have told me that you have received the following CSFB documents.

* PrimeTrade access agreement * standardized give ups * clearing docs * futures fees.

Please let me know if you need any help or have any questions , I will make sure that you get answers right away.

Sincerely

G de Dalmas

Guillaume de Dalmas Director CREDIT | FIRST SUISSE | BOSTON Prime Brokerage & Listed Derivatives Eleven Madison Avenue New York, NY 10010-3629 email: guillaume.dedalmas@csfb.com Tel: 212-325-2730 Fax: 603-250-4916 Mobile: 914-830-4842

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Message 488 of 1118

Re: New Futures Execution and Clearing Agreements

Sender	cheryl.nelson@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/nelson/120.

Sara, I have them all so I will send/forward to you.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Sara Shackleton@ECT 04/25/2001 06:30 PM

To: Sheila Glover/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Re: New Futures Execution and Clearing Agreements

Sheila:

Please send the futures and repo agreements to me. What futures products will Gary be trading and which exchanges?

Please continue to send brokerage agreements to Cheryl.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Sheila Glover 04/25/2001 08:19 AM

To: Cassandra Schultz/NA/Enron, Cheryl Nelson/NA/Enron@Enron, David Port/Market Risk/Corp/Enron cc: Sara Shackleton/HOU/ECT@ECT, Mary Nordstrom/ENRON@enronXgate, Theresa T Brogan/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, William S Bradford/HOU/ECT, Greg Whiting/Corp/Enron, Kim S Theriot/HOU/ECT@ECT, Gerri Gosnell/HOU/ECT@ECT Subject: New Futures Execution and Clearing Agreements

Cassandra, Cheryl and David, Gary requested this morning that we add Goldman Sach's Futures Clearing capability as well. I will request account opening information from them and forward to legal. Sheila ----- Forwarded by Sheila Glover/HOU/ECT on 04/25/2001 08:18 AM -----

From: Sheila Glover 04/24/2001 03:02 PM

To: Cassandra Schultz/NA/Enron, Cheryl Nelson/NA/Enron@Enron, David Port/Market Risk/Corp/Enron cc: Sara Shackleton/HOU/ECT@ECT, Mary Nordstrom/ENRON@enronXgate, Theresa T Brogan/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, William S Bradford/HOU/ECT, Greg Whiting/Corp/Enron, Kim S Theriot/HOU/ECT@ECT Subject: New Futures Execution and Clearing Agreements

Cassandra, Cheryl and David,

Gary has requested that we establish new futures execution and clearing agreements with Solomon Smith Barney/Citigroup and Morgan Stanley. I will forward the agreements when we receive them to Cheryl Nelson in Legal for review.

Prudential is exiting the business and the prior people at Pru have moved to SSB.

Please do not hesitate to call, 3-3210, if you have any questions. Sheila

Message 489 of 1118

Re: ISDA Master Agreement between CSFBi and Enron Corp.

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/5520.

Please update the CSFB/Enron Corp. entry on Lotus Notes with status info (change from "legal review" to "draft sent") and names, phone nos., email addresses. The data will be accessible to anyone.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Stephanie Panus@ENRON 02/08/2001 12:46 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ISDA Master Agreement between CSFBi and Enron Corp.

FYI - below is the name and phone number of the person who will be handling the CSFB/Enron Corp. agreement.

----- Forwarded by Stephanie Panus/NA/Enron on 02/08/2001

12:45 PM -----

"Khosla, Anita" <anita.khosla@csfb.com> on 02/08/2001 12:36:34 PM To: "stephanie.panus@enron.com" <stephanie.panus@enron.com> cc:

Subject: ISDA Master Agreement between CSFBi and Enron Corp.

Stephanie-thank you for forwarding the proposed Schedule. I will be responsible for handling this matter. I will respond to upon the return from my vacation, 20 Feb. FYI-my direct line is 212 538 1938. Kind regards Anita Khosla Vice President Legal Dept.

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Message 490 of 1118

RE: Mirant

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/all_documents/9670.

Ed: I need to understand factually what is happening. All transactions between ENA and Mirant Americas Energy Marketing should be subject to the existing ISDA between ERMS and Vastar Gas Marketing Inc., as amended. The

existing guaranty from Vastar Resources, Inc. applies to all trades through approximately the end of this week

Who have you spoken with at Mirant as a follow up to our conversation of last Friday? It appears that Mirant is trying to prevent trading until the new guaranty is in place. Frank has contacted Mirant legal and are in agreement in principle as to the new guaranty from Mirant Corporation. However, we understand that this entity will be spun off in the near future and the credit could change substantially. Have you given thought to the effect of the new guaranty?

Also, have we traded today with Mirant Americas Energy Marketing? Online or offline? We should talk to our traders about apparent authority and/or save tapes if we are having problem

Call.

We will negotiate a new ISDA in the next few months Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Edward Sacks/ENRON@enronXgate 03/07/2001 10:55 AM

To: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Sara Shackleton@ECT Subject: RE: Mirant

It was my understanding that they would not be able to opt out of trading under the ISDA, since this contract has not been terminated. However, if this is not the case and the trades that we are currently entering into are not being confirmed under the ISDA, I think that we should get together as soon as possible. We do a significant volume of trades each day with this counterparty both OTC and EOL.

Lets discuss.

Ed Sacks

-----Original Message-----

From: Sayre, Frank Sent: Wednesday, March 07, 2001 9:05 AM To: Sacks, Edward Cc: Sara Shackleton@ECT Subject: Mirant Importance: High

Ed - After we hung up, I though a bit more about trading with Mirant. In light of the letter sent by Mirant on February 26 that stated ". . . no further transactions will be enter into under the agreement", we need to call Mirant prior to completing the trade. I will try on this end, but you should also try. The contact is Nicole Russell (678) 579-7489.

Message 491 of 1118

WestLB optional early termination language

Sender	sara.shackleton@enron.com
Recipients	[ellen.su@enron.com', 'jorge.garcia@enron.com']
File	shackleton-s/all_documents/10528.

Ellen:

I've reviewed WestLB's optional early termination language which is similar to the other's which I've reviewed (e.g., Goldman, Chase, Merrill, etc.). Here's how it works for your 3/26/01 - 3/26/21 swap:

- (1) March 28, 2011 is the "Break Date" or "Early Termination Date".
- (2) Either party can give notice of early termination to the other party on the day that is 5 NY Business Days prior to the Break Date. By the way, this is also the day on which the parties must mutually agree on 5 leading dealers in the relevant market in case the valuation process in (3) below is later disputed by the other party.
- (3) The party giving notice determines (in good faith) the Cash Settlement Amount as of 11 a.m. NY time on the Break Date (which should be the mid-market value of the deal on the Break Date.
- (4) Payment will occur on the Break Date.

(5) I am adding a provision requiring the exercising party to notify the other party on the day that is 3 NY Business Days prior to the Break Date. There may be a dispute over the calculation and the parties will need to resolve.

(6) If the parties cannot agree on the Cash Settlement Amount calculation, then the party who gave notice seeks mid-market quotes from the 5 leading dealers (previously agreed to) at 11 a.m. on the day that is 2 NY Business Days before the Break Date. The confirm describes how the quotes are averaged. A minimum of 3 quotes is essential. Payment is still made on the Break Date.

George:

(1) Please verify that the Break Date is 3/28/11. My copy is a little fuzzy and the date could actually be 3/26/11.

(2) I've marked the confirm and faxed it to you. Please note that:

(a) the second paragraph purports to incorporate the 1991 ISDA Definitions but the master overrides this language because it incorporates the 1991 Definitions "as amended, modified, superceded or replaced from time to time" (i.e., the 2000 ISDA Definitions). There is a problem if WestLB disagrees because I've left some language in Paragraph 3 "as is" since it is based upon the 2000 ISDA Definitions.

(b) no need to say that the Calculation Agent is "as otherwise stated in the Agreement" because WestLB is stated to be the Calculation Agent in the Agreement.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 492 of 1118

Re: Enron Teeside Operating Limited

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'Laurel Adams/HOU/ECT@ECT']
File	shackleton-s/all_documents/10982.

You had done the master and it appears restricted. Could you look at this one? Karolina Moran is preparing a credit worksheet to forward to us. Thanks.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 05/10/2001 10:22 AM -----

Rod Nelson 05/10/2001 09:58 AM

To: Jorge A Garcia/NA/Enron@ENRON cc: Karolina Moran/LON/ECT@ECT, Mary Cook/HOU/ECT@ECT Subject: Re: Enron Teeside Operating Limited

Karolina in my group will contact Mark. Karolina investigated the transaction and transacting entity to ensure that no CredReserve was required. She will also ensure the documentation is acceptable.

Typically, on deals such as this (financing related) the lender will dictate the terms - to avoid subordination or early termination events.

Rod

To: Rod Nelson/LON/ECT@ECT cc: Laurel Adams/HOU/ECT@ECT

Subject: Enron Teeside Operating Limited

Good Afternoon Rod,

I wanted to follow up with you regarding Credit Approval for the Interest Rate Swap that Aaron Armstrong negotiated on 5/1/01. I spoke with Mary Cook, Legal in Houston, and she stated that she requires a Credit Approval Term Sheet from you. She said she would be happy to prepare the Master ISDA Agreement for us.

In the event you haven't received the terms of the Interest Rate Swap from Aaron, here they are:.

Trade Date: 5/1/01

Effective Date: 1/1/2002 Maturity Date: 12/31/04

Notional Amount: GBP 103,180,000.00

Fixed Rate Payer: Enron North America Corp. Floating Rate Payer: Enron Teeside Operating Limited

Fixed Rate: 5.61 Floating Rate Index: GBP 6 month Libor T3750*1 Index Spread: 0

Structure: Bullet

Fixed Rate Day Count: ACT/365 Floating Rate Day Count: ACT/365

Fixed Rate Payment Frequency: Semi-Annually First Payment Date: 6/30/2002 Subject to the "Modified Following Business Day Convention"

Floating Rate Payment Frequency: Semi-Annually First Payment Date: 6/30/2002 (Subject to the "Modified Following Business Day Convention")

Calculation Method: Simple

Payment Holidays: London

Please advise when you have provided Mary with the Credit Approval Term Sheet so I can follow up with her for the Master ISDA Agreement.

Mary Cook's direct phone number is 713/345-7732.

Thanks in advance for your assistance in this matter.

Regards,

Jorge

Message 493 of 1118

Forward Terms

Sender	jeff.nogid@enron.com
Recipients	['steve.ross@enron.com', 'sara.shackleton@enron.com', 'jill.erwin@enron.com', 'clint.freeland@enron.com']
File	shackleton-s/all_documents/10276.

Jeff Nogid Enron Global Finance 713-853-4782 ----- Forwarded by Jeff Nogid/HOU/ECT on 04/03/01 09:07 AM -----

"Fleming, Matthew" <mfleming@lehman.com> 04/03/01 08:26 AM

To: "jeff.nogid@enron.com" <jeff.nogid@enron.com> cc: "Kakar, Rahul S" <rkakar@lehman.com> Subject: Forward Terms

Jeff,

As discussed yesterday, please find attached the final numbers for the forward rolls as well as the put options. The only thing to note is that as Enron pays dividends, the forward prices will be adjusted downward accordingly.

<<ENE - Forward Roll.xls>>

Please call if there are any questions. Regards, Matt

Matt Fleming Corporate Equity Derivatives Lehman Brothers, Inc. Phone: (212) 526-8030 Fax: (212) 526-2755

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- ENE - Forward Roll.xls

Message 494 of 1118

FW: Garden State Paper Gas Swap

Sender	brad.kirchhofer@enron.com
Recipients	['sara.shackleton@enron.com', 'cheryl.lindeman@enron.com']
File	shackleton-s/inbox/811.

Where do we stand on this? Can we proceed with providing GSP a valuation of ENA's claim?

Brad A. Kirchhofer

-----Original Message-----

From: Lindeman, Cheryl Sent: Tuesday, March 12, 2002 8:18 AM To: Kirchhofer, Brad Subject: RE: Garden State Paper Gas Swap

GSP terminated so ENA did not sign. I am sending the termination letter to Sara Shackleton.

Cheryl Lindeman Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith Street, EB3842 Houston, TX 77002
Phone: (713) 345-2849 Fax: (713) 646-3393 cheryl.lindeman@enron.com

-----Original Message-----

From: Kirchhofer, Brad Sent: Friday, March 08, 2002 11:48 AM To: Lindeman, Cheryl Subject: Garden State Paper Gas Swap

Cheryl, I thought we terminated the gas swap in the mad scramble before the GSP bankruptcy filing. Do you have the documentation of who signed for ENA?

Brad A. Kirchhofer

-----Original Message-----

From: Ruiz, Carlos Sent: Friday, March 08, 2002 10:40 AM To: Kirchhofer, Brad Subject: FW: Garden State Paper

FYI

-----Original Message-----

From: Dicarlo, Louis Sent: Friday, March 08, 2002 10:03 AM To: Ruiz, Carlos Subject: FW: Garden State Paper

Sara and Cheryl need to discuss this data request. Please have Cheryl contact Sara so she can understand the exact nature of the request and any deadline issues.

Thanks.

-----Original Message-----

From: Shackleton, Sara Sent: Friday, March 08, 2002 9:43 AM To: Dicarlo, Louis Cc: Lindeman, Cheryl; Bruce, Robert Subject: RE: Garden State Paper

This appears to be an open position since neither party has terminated on the Master Log.

(1) Any reason why one party cannot terminate? (2) Is this a single swap or several? (3) I think PWC ought to reveiw our "valuation" (and Bob's curve) since it becomes a matter of public record when the claim is filed in the bankruptcy. Any valuation ought to be documented.

-----Original Message-----

From: Dicarlo, Louis Sent: Friday, March 08, 2002 9:16 AM To: Shackleton, Sara Cc: Ruiz, Carlos Subject: Garden State Paper

Carlos Ruiz is asking for the value of the ENA/Garden State Paper (GSP) swap to be included as a creditor in the GSP bankruptcy. GSP is a bankrupt affiliate and the purpose of the valuation is not to settle but merely to show the claim that ENA has against GSP. Can I provide him a MTM on the position?

The internal attorney involved is Cheryl Lindeman.

Thanks

Louis R. DiCarlo ENA Gas Structuring Phone: 713-345-4666 Email: louis.dicarlo@enron.com

Message 495 of 1118

Re: BEAR Guarantee letter

Sender	richard.sage@enron.com
Recipients	[tom.doukas@enron.com', 'jeff.kinneman@enron.com', 'sara.shackleton@enron.com', 'david.wall@enron.com']
File	shackleton-s/notes_inbox/2775.

Sorry, as I had signed a resignation letter I assumed that the changes had already happened. Sue is faxing to Jeff Hodge today to execute.

the Directors are: Derrick, Haedicke, Frevert the officers will be: President Frevert Secretary Jeff Kinneman Treasurer Craig Chaney

From: Sara Shackleton on 22/03/2001 08:41 CST To: Tom Doukas/NA/Enron@ENRON cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Jeff Kinneman/Enron@EnronXGate, Richard Sage/LON/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron

Subject: Re: BEAR Guarantee letter

Here's a recap for everyone. Our original negotiation with Bear (for the Securities Loan Agreement) was in the name of ENA, and, ENA had an existing account agreement with Bear. However, Bear insisted that the account agreement was "too old" and that we negotiate a new agreement. I agreed on the condition that this not hold up execution of the Securities Loan Agreement. We have one or two final points remaining on the new account agreement which we'll execute for both ENA and Enron Credit Inc.. ("ECI"). We have the authorized trader list for ECI and are waiting for Richard to designate the new officer/director slate but we are prepared for execution by the existing officers in London. The assignment instrument will be very short for transferring the ECI book from ENA to ECI. It will take only a few days to replace the existing ENE guaranty for the Securities Loan Agreement.

Jeff and Sheila: Please verify that both ENA and ECI do not need the Securities Loan Agreement. I believe it is just ECI and we can transfer the existing agreement to ECI.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 03/21/2001 12:28 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Jeff Kinneman/Enron@EnronXGate, Sheila Glover/HOU/ECT@ECT, Richard Sage/LON/ECT@ECT, David A Wall/Risk Mgmt/LON/ECT@ECT Subject: BEAR Guarantee letter

Sara,

I just spoke with Russ Miron from Bear Sterans regarding our Guaranty to Reduce funding to 20% per side.

I had asked him about when they will be executing the agreement. He said that his lawyers are ready to sign but are under the impression that you have one remaining point to resolve and that this point is holding up the finalization of the agreement.

Is there an issue from our side? If not we should be able to get this execution taken care of immediately?

Thanks,

Tom 713-853-9074

Message 496 of 1118

RE: SEC 13F Filing Obligation for March 31, 2001

Sender	h.george@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com', 'gary.hickerson@enron.com', 'donna.lowry@enron.com']
File	shackleton-s/inbox/561.

Sheila: After we spoke, I did go back and check the rule and it appears that the filing must be made for 3 more quarters in 2002. In the example used by the SEC: [Enron] will file a Form 13F for the calendar quarter ending in December 200[1] - and the calendar quarters ending in March 200[2], June 200[2], and September 200[2] - if [Enron] meet[s] the \$100 million filing threshold on the last trading day of at least one month during the year 200[1]. In other words, if we go this route, I think we need 2 more filings for 2002.

Robert H. George Enron North America Corp. 1400 Smith Street EB 3832 Houston Texas 77002-7361 Phone: (713) 345-4159 Fax: (713) 646-3490 Email: robert.h.george@enron.com

-----Original Message-----

From: Glover, Sheila Sent: Friday, January 11, 2002 10:19 AM To: Lowry, Donna; Shackleton, Sara Cc: George, Robert H.; Hickerson, Gary Subject: RE: SEC 13F Filing Obligation for March 31, 2001

Donna and Sara,

Rather than calling the SEC, a easier and a cost effective approach may be to prepare the March 31, 2002 SEC 13F filing which is due on May 15, 2002 now.

I have confirmed with Art Boos, Bowne, 713-869-9181, that we can submit and approve now and they will hold until the release date in May.

Please advise if you are okay with this approach. At Sara's suggestion, I have discussed with Robert George who agrees with the efficacy of this approach.

Regards, Sheila

-----Original Message-----

From: Glover, Sheila Sent: Friday, January 11, 2002 9:32 AM To: Hickerson, Gary Cc: Lowry, Donna; Shackleton, Sara
Subject: FW: ECT 13F Submission Proof Importance: High

Donna and Sara,

Executed hard copy to be sent to you today.

I will call the SEC because once you drop below the 100 million you are supposed to file for three quarters. June 30th was the last time we were over \$100 million so by rule we should file one more time. I am not sure how they treat a company that is no longer in business.

Sheila

-----Original Message-----

From: Glover, Sheila Sent: Friday, January 11, 2002 9:19 AM To: Art Boos (E-mail) Cc: Lowry, Donna Subject: FW: ECT 13F Submission Proof Importance: High

Art, Approved for submission as due on February 14, 2002.

Regards, Sheila

-----Original Message-----

From: "Boos, Art" <Art.Boos@Bowne.com>@ENRON Sent: Thursday, January 10, 2002 5:41 PM To: Glover, Sheila
Subject: ECT 13F Submission Proof Importance: High

Sheila,

Attached is the ECT Investments 13F-HR Submission Proof for your review. I made it 8.5 x 11 so that you can print it out easy.

Art

- H93401A.pdf << File: H93401A.pdf >>

Message 497 of 1118

Pan Canadian Energy Services ("PCES")

Sender	sara.shackleton@enron.com
Recipients	['russell.diamond@enron.com']
File	shackleton-s/all_documents/2718.

FYI ----- Forwarded by Sara Shackleton/HOU/ECT on 07/24/2000 09:12 AM -----

Susan Bailey 07/19/2000 05:28 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Pan Canadian Energy Services ("PCES")

Sara,

As way of background, Carol has been working on an ISDA with PCES. I had advised our PCES contact that I was unable to attend to this before my departure. As you know, PCES is a "Top Ten", therefore, you may want to pass this message onto to someone to handle.

FYI: Our PCES contact is out of the office until August 2nd, but you may want to tackle anyway.

The PCES file can be found in the file drawers for "green files".

Thanks.

Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on

07/19/2000 05:20 PM -----

"Rick Tucker" <RTUCKER@PCENERGY.COM> 07/13/2000 03:40 PM

To: susan.bailey@enron.com cc: Harry Wijsman <Harry_Wijsman@pancanadian.ca> Subject: Enron ISDA

Susan,

We are definitely getting closer to bringing this ISDA agreement to a close. I reviewed with the Calgary office the latest draft you e-mailed; listed below are the remaining questions: Part 1 of the Schedule; subitem (k) with reference to romanette (ix) - the term "Performance Assurance" should be changed to "Eligible Credit Assurance" (same as in subitem (f) of Part 1).

Part 4 of the Schedule; subitem (h) Governing Law - question was asked about Texas being the choice of law as opposed to New York. Our understanding is that the ISDA was structured under the guidance of New York law and request that Governing Law be changed to New York.

Paragraph 13(c)(iv), Notification Time - request that the time be changed to 1:00 p.m.

Paragraph 13 - the remaining issues (listed below) will be discussed by Mr. Harry Wijsman in Calgary's Credit Department with Mr. Bill Bradford. These same issues were discussed during the ISDA negotiations with PanCanadian Petroleum and Enron's Canada office. The items are:

Paragraph 13(b)(iv)(C) - Minimum Transfer Amount Paragraph 13(g)(ii)(2) - Use of Posted Collateral Paragraph 13(m)(i) - Material Adverse Change Irrevocable Transfer Letter of Credit: transferability and automatic extension language.

Your assistance over this time period of negotiating has been appreciated very much. FYI: I will be leaving for vacation on Thursday, July 20 and back in the office on Wednesday, August 2. If you have any questions, please contact me at 713-331-5049.

Best regards, Rick

Message 498 of 1118

Re: changes needed for currency trade confirmation

Sender	sara.shackleton@enron.com
Recipients	['laurel.adams@enron.com']
File	shackleton-s/all_documents/10776.

Laurel: I have left messages with Rhett Jackson (RMT vs. ENA) and Brad Kirchhofer (why doesn't "Compagnie de Papiers Stadacona" show up on the corporate database).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Laurel Adams 04/24/2001 02:43 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Sara,

Have you had a chance to look into this? Per Stuart, this company is owned by Enron. We bought it outright, with the intent of putting into an off-balance sheet company. I'm not sure if that part has happened yet, but we theorize that when we entered into the hedge, it was still fully Enron owned. Bob Crane would really like to get this resolved, so if you could let me know your thoughts, I'd appreciate it. Do I need to check with Rhett Jackson in tax as well? -----

Forwarded by Laurel Adams/HOU/ECT on 04/24/2001 02:31 PM -----

Laurel Adams 04/17/2001 05:22 PM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Sara,

Are we able to do FX deals with the company shown below? Also, would this be an RMT confirm or an ENA confirm?

----- Forwarded by Laurel Adams/HOU/ECT on 04/17/2001 05:20 PM ----- From: Ana Rizvi on 04/17/2001 04:59 PM To: Clara Carrington/HOU/ECT cc: Laurel Adams/HOU/ECT@ECT Subject: changes needed for currency trade confirmation

see below...

ana

----- Forwarded by Ana Rizvi/HOU/ECT on 04/17/2001 03:14 PM -----

From: Bob Crane/ENRON@enronXgate on 04/17/2001 04:51 PM To: Ana Rizvi/HOU/ECT@ECT, William Stuart/HOU/ECT@ECT cc: Subject: changes needed for currency trade confirmation

Ana,

The information on the confirm executed (deal no. m439607) between EGM and EIM needs a couple of changes. Please make the counterparty:

Compagnie de papiers Stadacona Bay Wellington Tower - BCE Place 181 Bay Street, Suite 1540, P.O. Box 822 Toronto, Ontario, Canada M5J 2T3

And the bank accounts should be

Account Name Currency Notes 2013883015 EIM Holdings, (Canada) Inc. US\$ Primary concentration & funding account Co# 1469 Receives US\$ deposits from BoA collections US\$ collection Funds FX settlement for Can\$ Funding source for BNS US\$ accounts

2013883007 EIM Holdings, (Canada) Co. Can \$ Can\$ deposit account Co# 1469 Deposit Acct for FX purchases of Can\$ Primary funding account for operations

Thank you

Bob Crane

Message 499 of 1118

ISDA/Financial Trades for Washington State PUD's and Muni's

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/5590.

Stephanie: Please see me about a "draft ISDA municipal format". Let's talk as soon as you have a minute and prioritize. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/15/2001 10:46 AM -----

Stewart Rosman 02/09/2001 12:02 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: ISDA/Financial Trades for Washington State PUD's and Muni's

Sara -

Jeff Fuller is interested in pursuing ISDA's with a number of his other customers after a successful experience with Merced Irrigation District. He would like a generic ISDA to start with and hopes to negotiate four ISDA's in the near future. The purpose of the ISDA will be to hedge their price risk once they get a piece of slice (this is a BPA plan to allocate slices of

their system to customers). Feel free to call me if you have any questions at 503-464-3810.

Stewart ----- Forwarded by Stewart Rosman/HOU/ECT on 02/09/2001 10:45 AM -----

Enron Capital & Trade Resources Corp.

From: Jeff Fuller <JFuller@prmlp.com> 02/09/2001 08:06 AM

To: "Stewart Rosman" <Stewart.Rosman@enron.com> cc: Subject: ISDA/Financial Trades for Washington State PUD's and Muni's

Stewart,

PRM has 4 utility clients (Benton PUD, Franklin PUD, Grays Harbor PUD and City of Richland) that will be purchasing BPA's Slice product beginning October 1, 2001. I want to get the process started to get ISDA's in place between Enron and these utilities. We are currently in the beginning stages of discussing financial trades with their legal counsel. Fortunately for Enron, I think we can have one attorney represent all 4 of PRM's clients. (FYI, that attorney will be Doug Rosenberg at Preston Gates & Ellis in Seattle.)

To get started, I'd like Enron to forward to me copies of the ISDA agreement that you would propose as the starting point for discussions. I also ask that you send me a list/examples of any other documentation Enron will require (e.g., legal opinion, board resolution, etc.). Please send just one set of documentation at this point. I want to get the basic legal review process underway before you prepare four different sets of documents. I'd also like to request that when we get to the point of having Enron's attorney walk through the ISDA with our attorney, that Enron use Sara Shackleton. Sara was great to work with when we went through this for Merced, and I think she'd be extremely helpful once again as we venture into new territory with these 4 utilities.

Thanks for your help.

Jeff

Message 500 of 1118

Re: Badge Nos.

Sender	sara.shackleton@enron.com
Recipients	['taffy.milligan@enron.com']
File	shackleton-s/sent/5271.

11928

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Taffy Milligan 01/08/2001 02:38 PM

To: Alan B Aronowitz/HOU/ECT@ECT, Roger Balog/HOU/ECT@ECT, Peggy Banczak/HOU/ECT@ECT, Sandi M Braband/HOU/ECT@ECT, Teresa G Bushman/HOU/ECT@ECT, Bob Carter/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT, Barton Clark/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT, Shonnie Daniel/HOU/ECT@ECT, Peter del Vecchio/HOU/ECT@ECT, Stacy E Dickson/HOU/ECT@ECT, Shawna Flynn/HOU/ECT@ECT, Chris Gaffney/HOU/ECT@ECT, Barbara N Gray/HOU/ECT@ECT, Wayne Gresham/HOU/ECT@ECT, Leslie Hansen/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Dan J Hyvl/HOU/ECT@ECT, Dan Lyons/HOU/ECT@ECT, Laurie Mayer/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Janet H Moore/HOU/ECT@ECT, Janice Moore/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Gerald Nemec/HOU/ECT@ECT, David Portz/HOU/ECT@ECT, Michael A Robison/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Lance Schuler-ECT Legal/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Shari Stack/HOU/ECT@ECT, Lou Stoler/HOU/ECT@ECT, Mark E Taylor/HOU/ECT@ECT, Sheila Tweed/HOU/ECT@ECT, Stephen W Van

Hooser/HOU/ECT@ECT, Ann Elizabeth White/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT, Suzanne Adams/HOU/ECT@ECT, Joya Davis/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT, Jenny Helton/HOU/ECT@ECT, Taffy Milligan/HOU/ECT@ECT, Patt Radford/HOU/ECT@ECT, Linda J Simmons/HOU/ECT@ECT, Twanda Sweet/HOU/ECT@ECT, Becky Spencer/HOU/ECT@ECT, Brenda Whitehead/HOU/ECT@ECT, Chaundra Woods/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Kimberlee A Bennick/HOU/ECT@ECT, Genia FitzGerald/HOU/ECT@ECT, Nony Flores/HOU/ECT@ECT, Susan Flynn/HOU/ECT@ECT, Linda R Guinn/HOU/ECT@ECT, Marie Heard/HOU/ECT@ECT, Ed B Hearn III/HOU/ECT@ECT, Mary J Heinitz/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Deb Korkmas/HOU/ECT@ECT, Laurie Mayer/HOU/ECT@ECT, Mary Ogden/HOU/ECT@ECT, Debra Perlingiere/HOU/ECT@ECT, Robert Walker/HOU/ECT@ECT, Kay Young/HOU/ECT@ECT, Eric Gillaspie/HOU/ECT@ECT, Sheri L Cromwell/HOU/ECT@ECT, Anne C Koehler/HOU/ECT@ECT, Carolyn George/Corp/Enron@ENRON, James Grace/Corp/Enron@ENRON, Richard Jeffrey/Corp/Enron@Enron, Dina Snow/Corp/Enron@Enron, Kay Mann/Corp/Enron@Enron, John Viverito/Corp/Enron@Enron, Matt Maxwell/Corp/Enron@ENRON, Gloria Cruz/Corp/Enron@Enron, Cheryl Nelson/NA/Enron@Enron cc: Subject: Badge Nos.

The move team has implemented a new system that requires the badge number of the employee. This number can be found at the top of your badge.

If you have not provided this information to me prior to this e-mail. Please do so as soon as possible.

Thank you for your cooperation.

Message 501 of 1118

CSFB legal docs

Sender	sara.shackleton@enron.com
Recipients	['jpeters@andrews-kurth.com']
File	shackleton-s/all_documents/2860.

----- Forwarded by Sara Shackleton/HOU/ECT on 08/04/2000 02:44 PM -----

Sheila Glover 08/01/2000 11:13 AM

To: Sara Shackleton/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron cc: Jonathan Le/HOU/ECT@ECT, Guillaume.dedalmas@csfb.com, Gary Hickerson/HOU/ECT@ECT, Darren Delage/HOU/ECT@ECT Subject: CSFB legal docs

Sara, Samantha, I spoke with Guillaume this morning. He suggested that we do the PrimeTrade Access Agreement first. This allows us to get the CD for the PrimeTrade application and to install it on a PC here, roll it out to the traders, and have CSFB come in for training. At the same time we can complete the clearing agreement. We will not do the give up agreement. If we decide we can do easily in the future. Guillaume suggested that you call him if you have any questions. He will be happy to facilitate.

Sheila ----- Forwarded by Sheila Glover/HOU/ECT on 08/01/2000 10:56 AM -----

"De Dalmas, Guillaume" <guillaume.dedalmas@csfb.com> on 08/01/2000 09:31:17 AM To: "sheila.glover@enron.com" <sheila.glover@enron.com> cc: Subject: CSFB legal docs

Dear Sheila

My colleagues have told me that you have received the following CSFB documents.

* PrimeTrade access agreement * standardized give ups * clearing docs * futures fees.

Please let me know if you need any help or have any questions , I will make sure that you get answers right away.

Sincerely

G de Dalmas

Guillaume de Dalmas Director CREDIT | FIRST SUISSE | BOSTON Prime Brokerage & Listed Derivatives Eleven
Madison Avenue New York, NY 10010-3629 email:guillaume.dedalmas@csfb.com Tel: 212-325-2730 Fax: 603-250-4916
Mobile: 914-830-4842

[INFO] -- Content Manager: This message is for the named person's use only. It may contain confidential, proprietary or legally privileged information. No confidentiality or privilege is waived or lost by any mistransmission. If you receive this message in error, please immediately delete it and all copies of it from your system, destroy any hard copies of it and notify the sender. You must not, directly or indirectly, use, disclose, distribute, print, or copy any part of this message if you are not the intended recipient. CREDIT SUISSE GROUP and each of its subsidiaries each reserve the right to monitor all e-mail communications through its networks. Any views expressed in this message are those of the individual sender, except where the message states otherwise and the sender is authorised to state them to be the views of any such entity. Unless otherwise stated, any pricing information given in this message is indicative only, is subject to change and does not constitute an offer to deal at any price quoted. Any reference to the terms of executed transactions should be treated as preliminary only and subject to our formal written confirmation.

Message 502 of 1118

(01-171) COPPER WAREHOUSE RATE CHANGE

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/11107.

Notice No. 01-171 May 17, 2001

TO: ALL COMEX DIVISION MEMBERS ALL COMEX DIVISION CLEARING MEMBERS ALL COMEX DIVISION
MEMBER FIRMS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: COPPER WAREHOUSE RATE CHANGE

The following new rate for the handling out charges for copper has been submitted to the Exchange by Dalby Moving & Storage Co., Inc. for its facilities located in Amarillo, Texas. Dalby Moving & Storage Co., Inc. is a COMEX Licensed Warehouse for the storage of copper deliverable against the COMEX Grade 1 Copper Futures Contract. The new rate will become effective on July 1, 2001. All other charges remain unchanged.

RATES AND CHARGES FOR COPPER

Dalby Moving & Storage Co., Inc. Effective: July 1, 2001

Handling Out Charge per Short Ton: \$ 22.75

The following previously published charges for the storage and handling of copper at Dalby Moving & Storage Co., Inc. remain unchanged.

Handling Inbound per Short Ton: \$ 0.00 Monthly Storage Charge per Short Ton: \$ 3.60 Preparation of Warehouse
Receipt: \$ 0.00 Replacement of Each Warehouse Receipt: \$ 0.00 Bill of Lading: \$ 5.00 Insurance Premiums: \$ 0.00
Loading Trucks & Trailers or Rail cars: \$ 0.00

Please be advised that the warehouse, at its discretion, may require handling fees based on the new rates for all copper physically in storage as of the effective date. That is, the old rates are not grandfathered for copper already in storage prior to July 1, 2001.

Specific to handling out charges, invoices prepared by COMEX Clearing for warrants issued prior to July 1, 2001 should not call for reimbursements for handling out charges based on the new rates. Reimbursements for these warrants should

be based on the old handling out rate because the warehouse was prepaid based on the old handling out rate. Though the warehouses have been prepaid the handling out charges based on the old rate, the party shipping the metal out on or after July 1, 2001, may owe the warehouse the difference between the old and new rates upon shipment, at the discretion of the warehouse. Clearing Members are advised to carefully review invoices to ensure that reimbursement payments are not made for charges that have not actually been prepaid by the market short.

Should you have any questions or require any additional information, please contact Albert J. Getz at 212-299-2608, Nick Galati at 212-299-2920 or Ploumi Efkarpidis at 212-299-2334.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-171)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 503 of 1118

Enron Japan Corp. crude deal

Sender	sara.shackleton@enron.com
Recipients	['alan.aronowitz@enron.com', 'susan.musch@enron.com', 'jane.mcbride@enron.com']
File	shackleton-s/sent_items/197.

Jane: Jane:

I wanted to give you the benefit of some of my thoughts before I considered your Annex A which I would like to compare to the ENA current version. We are currently considering more revisions so your Annex A will help me to think a bit.

I have attached a redline of the actual confirm (without Annex A). A couple of thoughts: (1) for purposes of creating a "template", I gave a choice for Termination Date (2) I collapsed Payment Date/Invoice because I'm concerned that EJC may forget to send a timely invoice so we need to ensure that there is no issue about whether or not a payment is owed (3) We need to "fix" the Floating Price language. I don't know where the reference to "North Sea, West Africa, Mediterranean" comes from. I didn't see it in Marketwire and London doesn't use it. Also, the conversion language is vague (i.e., TTM, TTB and TTS are not defined but I suspect they refer to bid/mid/sell? Are they references on the Bank of Tokyo-Mitsubishi, Ltd. screen?). Also, it may be better to create a conversion reference to your Central Bank and not a particular banking institution (you could get caught later dealing with that bank, using the conversion language and then giving the bank an unfair advantage). (4) I didn't see your Schedule 1 guarantee but I assume that it is the normal ENE format.

Regarding Annex A, I quickly noticed an issue with the "TIBOR" definition (which uses quite a bit of ISDA language) which can be easily fixed with an appropriate ISDA reference. Give me another day or so to comment.

Let me know if you'd like to talk. My home number is 713-664-3207 if you'd like to call.

Regards. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: McBride, Jane Sent: Friday, October 12, 2001 1:20 AM To: Shackleton, Sara Cc: Aronowitz, Alan; Bekeng, Jan-Erland; Hirl, Joseph; Glover, Sheila; Musch, Susan Subject:

<< File: Final.doc >> Dear Sara,

I am attaching the long form confirm re a deal which we did yesterday - small, but our office's first yen based crude transaction!

The yen-USD forex however was done through ENA and needs to be documented. ENA will also be providing these services to EJ (through our metals desk) moving forward so we need a master agreement in place.

Alan suggested you may be able to assist with a form of document that would work in this situation. The only requirement from EJ's perspective is that it be effective from yesterday, Oct 11, 2001.

If you need more information about the forex arrangements we have with ENA, Sheila / Jan Erland may be able to assist.

Otherwise, if you were able to get a draft together, I will run it by Susan Musch and Jan-Erland, and get it signed up.

Thanks Sara.

Jane McBride

Ps. I didn't make it to the GM Legal Conference this time but hope it went well and to see you in May.

Message 504 of 1118

RE: ADR

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/sent/1593.

fyi ----- Forwarded by Sara Shackleton/HOU/ECT on 06/21/2000 08:40 AM -----

Susan Flynn 06/21/2000 08:38 AM

To: floencia.groppo@hds.com.ar cc: Rafael Rangel/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: RE: ADR

Floencia - the resolutions which you sent to me by facsimile yesterday are not in the format we use to open brokerage accounts. We always use the same form to be in compliance with Enron's Risk Management Policy. I think that Nancy Muchmore will be preparing the resolutions and sending them to Argentina.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 06/21/2000 08:35 AM -----

Rafael Rangel@ENRON 06/20/2000 04:35 PM

To: Susan Flynn@ECT cc: Subject: RE: ADR

Please let me know so that hopefully we can finish this thing off this week. Next week, I will be in Brazil so maybe I can take this issue of my pending list.

RFR

----- Forwarded by Rafael Rangel/NA/Enron on 06/20/2000

04:35 PM -----

Floencia Groppo <floencia.groppo@hds.com.ar> on 06/20/2000 05:02:20 PM Please respond to "floencia.groppo@hds.com.ar" <floencia.groppo@hds.com.ar> To: "Rafael.Rangel@enron.com" <Rafael.Rangel@enron.com> cc:

Subject: RE: ADR

Dear Rafael, I talked with Susan, and I am faxing her the board resolution to open brokerage accounts. Best Regards
Floencia Groppo

-----Mensaje original----- De: Rafael.Rangel@enron.com [SMTP:Rafael.Rangel@enron.com] Enviado el: Martes 20 de Junio de 2000 5:55 PM Para: floencia.groppo@hds.com.ar CC: Robert.H.George@enron.com;

Nancy.Muchmore@enron.com; Susan.Flynn@enron.com Asunto: Re: ADR

Florencia, did you and Susan get a chance to talk today?

RFR

Rafael Rangel 06/16/2000 03:43 PM

To: "florescia.groppo@hds.com.ar" <florescia.groppo@hds.com.ar> cc: Robert H George/SA/Enron@Enron, Nancy Muchmore/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Re: ADR (Document link: Rafael Rangel New Mail- Office)

Florencia, we are lacking only one thing to finalize this matter. We will need to modify the corporate resolutions that you prepared. I have asked Susan Flynn (713-853-0975) to work with you on making the appropriate modifications to the corporate resolutions. I left a message at your office today and am requesting that you call Susan on Tuesday to make the modifications.

Susan, thanks for your help. Robert, I am proceeding as we discussed.

RFR

Florencia Groppo <florescia.groppo@hds.com.ar> on 06/15/2000 01:08:52 PM

Please respond to "florescia.groppo@hds.com.ar" <florescia.groppo@hds.com.ar>

To: "'Rafael Rangel'" <Rafael.Rangel@enron.com> cc:

Subject: ADR

Estimado Rafael, Necesitar?a saber en que estado se encuentra el tr?mite de la conversi?n de ADR y su dep?sito en la cuenta de Edide. Muchas gracias Florencia Groppo

Message 505 of 1118

Re: BEAR Guarantee letter

Sender	sheila.glover@enron.com
Recipients	['tom.doukas@enron.com', 'richard.sage@enron.com', 'jeff.kinneman@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2732.

Tom, The day i received this I responded to Sara and cc'd richard that I was okay with transferring the Stock Loan Agreement from ENA to ECI. The ENA was executed and the ECI piece is what is in process.

Sara, Any update? How far are we away from exectution? Do you need anything from anyone?

Thanks. Sheila

Tom Doukas@ENRON 03/26/2001 11:59 PM To: Sara Shackleton/HOU/ECT@ECT cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Jeff Kinneman/Enron@EnronXGate@ECT, Richard Sage/LON/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron Subject: Re: BEAR Guarantee letter

Just wanted to follow up to see if we have a time frame as to when the letter will be fully executed.

Thanks,

Tom

From: Sara Shackleton@ECT on 03/22/2001 08:41 AM To: Tom Doukas/NA/Enron@ENRON cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Jeff Kinneman/Enron@EnronXGate, Richard Sage/LON/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron

Subject: Re: BEAR Guarantee letter

Here's a recap for everyone. Our original negotiation with Bear (for the Securities Loan Agreement) was in the name of ENA, and, ENA had an existing account agreement with Bear. However, Bear insisted that the account agreement was "too old" and that we negotiate a new agreement. I agreed on the condition that this not hold up execution of the Securities Loan Agreement. We have one or two final points remaining on the new account agreement which we'll execute for both ENA and Enron Credit Inc.. ("ECI"). We have the authorized trader list for ECI and are waiting for Richard to designate the new officer/director slate but we are prepared for execution by the existing officers in London. The assignment instrument will be very short for transferring the ECI book from ENA to ECI. It will take only a few days to replace the existing ENE guaranty for the Securities Loan Agreement.

Jeff and Sheila: Please verify that both ENA and ECI do not need the Securities Loan Agreement. I believe it is just ECI and we can transfer the existing agreement to ECI.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tom Doukas@ENRON 03/21/2001 12:28 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Jeff Kinneman/Enron@EnronXGate, Sheila Glover/HOU/ECT@ECT, Richard Sage/LON/ECT@ECT, David A Wall/Risk Mgmt/LON/ECT@ECT Subject: BEAR Guarantee letter

Sara,

I just spoke with Russ Miron from Bear Sterans regarding our Guaranty to Reduce funding to 20% per side.

I had asked him about when they will be executing the agreement. He said that his lawyers are ready to sign but are under the impression that you have one remaining point to resolve and that this point is holding up the finalization of the agreement.

Is there an issue from our side? If not we should be able to get this execution taken care of immediately?

Thanks,

Tom 713-853-9074

Message 506 of 1118

FW: CSFB Prepay - Morgan Stanley Confirmation Format

Sender	rajaram.jamadagni@enron.com
Recipients	['sara.shackleton@enron.com', 'treasa.kirby@enron.com', 'mary.cook@enron.com']
File	shackleton-s/inbox/242.

Mary/ Sara,

Morgan Stanley has proposed a few changes to the confirm that was executed last year. These changes are all in blue and most of these seem to be legal in nature. The number of barrels and the payments dates need to be changed.

I am also sending the Morgan Stanley confirm circulated by you yesterday to Beth Ng at Morgan Stanley and asking her to have a look at its acceptability in order to speed up the process.

Could you also liaise with Beth, so that we arrive at an agreeable confirm by close of business today? Beth's card is enclosed for this purpose. As an alternative (if we can't come to an agreeable format), could you please take a look at the MS confirms sent by MS and see whether it is acceptable to us?

Thanks very much & Regards

Rajaram Jamadagni 0044-2077832505

-----Original Message-----

From: Glaas, Chris Sent: 24 September 2001 18:51 To: Kirby, Treasa Cc: Jamadagni, Rajaram Subject: FW: Confirmation Format

Treasa Spoke to Beth from MS NY today. She got our modified confirm and she has some comments on the matter. regards chris glaas -----Original Message----- From: Beth Ng [mailto:Beth.Ng@morganstanley.com] Sent: 24 September 2001 18:44 To: Glaas, Chris Cc: David Morgan; Jaakko Ahmala; Tim Arcedeckne-Butler; Laura Higginson; Jonathan M Pell; Benjamin Johns Subject: Confirmation Format

Dear Chris:

David Morgan of our London Desk has forwarded for my review your proposed form of Confirmation.

Attached you will find the Confirmation marked with our proposed modifications. Please be mindful that I have not looked at any of the commercial elements of the proposed Transaction. I will leave this review for our trading desk. Our suggested modifications are highlighted in blue. Our specific comments are as follows:

1. Second paragraph. The reference to "Rights of Third Party" was deleted because the transaction will be between U.S. parties and the Agreement is governed under the laws of the State of New York. Rights of Third Party has no relevance.
2. Third paragraph. We have added this paragraph because the Agreement between MSCGI and Enron North America is a non-ISDA. We have noted that some of the terms in the Confirmation definitions from ISDA.
3. Fourth paragraph. I believe you want to insert a "non-reliance" provision in this Confirmation. I have included some additional elements to "non-reliance". Alternatively, we can insert the "No Reliance" provision as suggested by ISDA.

I am working with Susan Bailey of your Houston office to update the current master agreement to an ISDA Master Agreement. Hopefully, in the very near future, we will have an ISDA to govern our relationship.

Should you have any questions, please feel free to contact me.

Kind regards,

Beth Ng Commodities Division - Documentation Tel: 212 761 8720 Fax: 212-507-4898 / 212 761 0293 Email: Beth.Ng@morganstanley.com

1585 Broadway, 4th Floor New York, NY 10036 U.S.A.

Message 507 of 1118

Re: Fwd: Re: Online application

Sender	sara.shackleton@enron.com
Recipients	['krifisher@hotmail.com']
File	shackleton-s/sent/6187.

Kristina:

I'm sorry too! However, I also sent your application through Houston and it may end up with a different group. I'll keep my fingers crossed (not just for Enron) because I know you'll find an exciting position with a good company. Hope all is well. I just returned from a week in California and I'm having a hard time adjusting to the office. Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"kristina fisher" <krifisher@hotmail.com> 05/09/2001 01:13 PM

To: Sara.Shackleton@enron.com cc: Subject: Fwd: Re: Online application

Hi Sara: Thanks for trying but appears as if they were looking for a technical trading person to participate in the associates and analysts program...too bad. I thought perhaps ebusiness or the like would have been fun. I'll keep you posted on any

future news from them. Kindest Regards, Kristina

From: Michelle.Kingsbury@enron.com To: "kristina fisher" <krifisher@hotmail.com> Subject: Re: Online application Date: Wed, 9 May 2001 18:11:41 +0100 Kristina I have spoken to my colleagues concerning possible roles in Marketing and Business Development that may be of interest to you. Unfortunately there are no roles which match your career aspirations at present. However, we will keep your details on file and contact you if any suitable positions arise. Good luck with your job search and thank you for your interest in Enron Regards Michelle Kingsbury "kristina fisher" <krifisher@hotmail.com> on 27/04/2001 18:13:46 To: Michelle.Kingsbury@enron.com cc: Subject: Re: Online application Dear Michelle: Thank you for your email and phone message. I am presently visiting my parents in New Orleans. I would be available for a phone conversation on Tuesday. The telephone number is +504.283.1652. New Orleans has a 6 hour time difference with London. It is best to reach me in the morning, perhaps 9AM my time would work for you? Please let me know if that is convenient. Kindest Regards, Kristina >From: Michelle.Kingsbury@enron.com >To: krifisher@hotmail.com >Subject: Online application >Date: Fri, 27 Apr 2001 17:45:14 +0100 > >Kristina > >Many thanks for your on line application for the Enron Europe's A&A >programme. > >I tried to call you this afternoon and have left you a message on your >answer phone. I would be keen to have a telephone conversation with you >next week and am contacting you to schedule an appropriate time. > >It may be easiest if you specify a time that I could contact you. Currently >the most likely availability in my diary is for Tuesday, if this is >convenient for you. > >Regards > >Michelle Kingsbury > > > _____ Get your FREE download of MSN Explorer at <http://explorer.msn.com>

Get your FREE download of MSN Explorer at <http://explorer.msn.com>

Message 508 of 1118

Frost Securities Inc. account with ECT Investments, Inc.

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'Ted Murphy (Cover Page only)', 'ted.murphy@enron.com']
File	shackleton-s/glover/53.

Sara, Purpose of Account includes rationale (see below), I have added Ted as a C= C:=20 on our top page request=20 Deutsche Banc Alex , Brown is the back office service utilized by Frost=20 Securites, Inc to clear their trades. When we execute through Frost they u= se=20 DB Alex Brown to settle the trade with our prime Broker. 3. 2000 Petroleum Analyst Yearbook Frost Securities Inc.=20 Lewis W. Kreps=20 R. Lewis Ropp=20 Gary L. Russell Frost Securities Inc. 2727 N. Harwood St., Ste. 1000 Dallas, Texas 75201-1515 Phone: 214-515-4400 Fax: 214-515-4430 Contact: Lewis W. Kreps E-mail: lewis.kreps@frostsecurities.com

Frost Securities, Inc. is a Dallas-based full-service=20 investment banking firm focused on equity research, institutional brokerage= =20 and trading and corporate finance. The firm is a wholly owned subsidiary = of=20 Cullen/Frost Bankers (NYSE: CFR). Frost Securities, Inc. is leading th= e=20 charge to service companies and industries of the Southwest with an= =20 emphasis on the energy and technology sectors. The company=01,s effor= t is=20 "research led" and "trading driven," with multiple analysts per sector.= =20 The firm=01,s research team averages more than 10 years of direct industry=20 experience in their respective industries. The firm=01,s corporate finance gr= oup=20 consists of seasoned professionals with an in-depth understanding of= =20 public offerings, private placements, leveraged buyouts, M&A advisory, sale= =20 advisory and takeover defenses.=20 4. Janet is the contact for Frost.

Please call=20

Date: May 19, 2000

To: ENA Legal Department Attn: Sara Shackleton

cc: Ted Murphy (Cover Page only)

Requestor: Sheila Glover

Entity Opening Account (Legal Name): ECT Investments, Inc.

Brokerage Firm: Frost Securities, Inc. Investment Bankers Contact: Janet Phone Number: 214-515-4495

Type of Account: Executing Broker Only

Purpose of Account: Transactions limited to executing broker relationship. = =20 Frost Securities, Inc.. has an energy analyst which is utilized by the= =20 Energy Portfolio=20 =20

----- Forwarded by Sheila Glover/HOU/ECT on 05/25/2000 10:=-

20=20 AM ----- From: Sara Shackleton on 05/22/2000 01:24 PM To: Sheila Glover/HOU/ECT@ECT cc: =20 Subject: Frost Securities Inc. account with ECT Investments, Inc.

Sheila: I received a request from you. Please advise if: =20

(1) You sent explanation to Ted Murphy stating purpose for account. (2) Agreement reflect DB Alex Brown LLC to clear trades with prime broker = of=20 our choice (3) Why is this a Deutsche Bank agreement? Who is "Frost Securities, Inc.= "? (4) Do we contact "Janet" at 214/515-4495 with markup?

Message 509 of 1118

CSFB and UBS Confirmations

Sender	sara.shackleton@enron.com
Recipients	['clint.freeland@enron.com']
File	shackleton-s/sent/5183.

----- Forwarded by Sara Shackleton/HOU/ECT on 12/20/2000 05:01 PM -----

"Dranguet, Beth Ann" <badranguet@velaw.com> 12/19/2000 09:52 PM

To: "Shackleton, Sara (Enron)" <sara.shackleton@enron.com> cc: "Clint.Freeland@enron.com" <Clint.Freeland@enron.com>, "Jim Armogida (E-mail)" <jarmogi@enron.com>, "Baird, Bob" <RBaird@velaw.com>
Subject: CSFB and UBS Confirmations

Sara,

I am still working on the share repurchase program question but wanted to get to you what answers I had.

1. On UBS, the language we discussed could be drafted as follows:

"In the event the Trigger Price is increased to equal the Other Trigger Price, the Determined Amount shall be reduced so that the Effective Share Price is increased in direct proportion to the increase in the Trigger Price. The "Effective Share Price" shall be the result obtained by dividing X by Y where "X" equals the product of the Price Per Share multiplied by the Number of Shares, and "Y" equals the Number of Shares plus the Determined Amount."

2. I was able to find a summary of the November 15-16, 2000 Emerging Issues Task Force meeting discussing the "best efforts" language in increasing the authorized shares. I would propose revising the stricken language in 3(a) to read as follows:

"In the event that, but for this Section 3, titled "Other Provisions," Party B would be obligated to deliver a number of Shares equal to the Determined Amount plus the Excess Shares, Party B shall have an ongoing obligation to satisfy delivery of the Excess Shares; provided however that the number of Excess Shares to be delivered hereby shall not exceed [] shares. Party B may, at its sole option, satisfy delivery of the Excess Shares by using its best efforts to increase its Authorized Shares or by delivery of a cash payment equal to the [product obtained by multiplying the Excess Shares by the Final Price]."

Please confirm that the formula for the cash payment is appropriate. Their language puts a cap on the number of shares to be delivered but that cap is tied to a value making the number of shares to be delivered indeterminate and therefor outside your control. The cap drafted above solves this problem. It is important to note that no interest can accrue while Party B is waiting to get approval to increase its authorized shares, if so the obligation would be accounted for as debt.

Beth Ann Dranguet Vinson & Elkins L.L.P. One American Center 600 Congress, Suite 2700 Austin, Texas 78701 (512) 495.8595 (512) 236.3226 fax (888) 203.5056 pager badranguet@velaw.com

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Message 510 of 1118

Trading Edge / Bond Link Agreement

Sender	sara.shackleton@enron.com
Recipients	[jpeters@andrews-kurth.com']
File	shackleton-s/all_documents/3409.

Here's Trading Edge (the comments are from an internal Enron group). This is a high priority. I'll review over the weekend and let's talk on Monday. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 09/08/2000 12:01 PM -----

Sara Shackleton 09/06/2000 09:12 AM

To: Kaye Ellis/HOU/ECT@ECT cc: Subject: Trading Edge / Bond Link Agreement

please print ----- Forwarded by Sara Shackleton/HOU/ECT on 09/06/2000 09:12 AM -----

Mike Fowler@ENRON 08/11/2000 01:33 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Laine Borgman/NA/Enron@Enron Subject: Trading Edge / Bond Link Agreement

The IT Contract group has been involved in reviewing documents for Trading Edge's Bond Link online bond trading site. George Weber, who has since moved into another area, discussed various issues with Trading Edge early this year. Laine Borgman, a contract administrator in the IT Contracts group, has become involved in the Trading Edge review during the past week. Attached below are Trading Edge agreements and their responses to issues raised by IT Contracts.

The primary issues Laine and I discussed yesterday are as follows:

Jurisdiction: Our preference is Texas, but we would accept New York. Trading Edge's response is unclear, although I believe they will readily agree to New York.

Indemnification (similar to issues with Buy Side Direct): Agreement assigns no liability to 3rd parties which the agreement describes as "providers of software". As Trading Edge is the nominal counterparty for all trades, this may be acceptable if the agreement held Trading Edge liable for settling trades. However, I do not see where section 11 addresses Trading Edge's liability for trades. We would also like assurances / liability regarding the accuracy of order and trade information.

Limits of Liability: Review language in both the Access and TIPs agreements (per Trading Edge, they will not agree to modify the TIPs Agreement, which is dictated by a 3rd party).

Assignment: Trading Edge's agreement does not allow Enron to assign the agreement to other parties. Initially, only EnronCredit.com personnel in Houston and possibly London would use Trading Edge's site, so this would not be an issue initially. Although we would prefer that the ability to assign be included, this issue could be addressed later as needed.

Electronic Mail (#18): We do not want to accept email communication in the event of a lawsuit. From the tone of their previous response, I believe they will agree to include lawsuits in the definition of extraordinary matters, for which email will not be employed.

Sara, how would you suggest we proceed with the Trading Edge review ? I will speak with Sheila Glover regarding the involvement of Credit and Risk Control in our request to utilize Trading Edge's trading platform.

Thanks.

Mike x39990

-----Original Message-----

From: Jay Mortenson Sent: Friday, August 04, 2000 11:38 AM To: 'Mike Fowler' Subject: Trading Edgel legal stuff

Hi Mike-

Give me a call if you have any problems or questions.

The bilateral access agreement is our main agreement. It references the online policies and the TIPS agreement, and I have included all of these documents.

Regards,

Jay Mortenson Sales Executive Trading Edge, Inc. 2425 Olympic Blvd., Suite 500E Santa Monica, CA 90404
310-442-6862 phone 310-314-9115 fax 310-990-1792 mobile jmorte@tradingedge.com www.tradingedge.com
Bondlink(tm) Get The Edge.

- enrside2-1.doc - BilateralAccess.pdf - ONLINE policies.pdf - TIPS Agreement.pdf

Message 511 of 1118

RE: Sample Forward Confirmation

Sender	sara.shackleton@enron.com
Recipients	['clint.freeland@enron.com']
File	shackleton-s/sent/5242.

Clint:

Will ENE be transacting with First Union National Bank or First Union Securities, Inc.? I need to know the correct legal entity. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/03/2001 04:33 PM -----

"Ganser, Terrance" <terrance.ganser@funb.com> 01/03/2001 04:29 PM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: Subject: RE: Sample Forward Confirmation
First Union Securities, Inc.

Sara:

Thank you for resending it. After going through our files, I did see where you had sent it last month, and we are currently working on it. I am aware that we are about to finalize an ISDA with Enron North America, but I wasn't sure if the provisions in the schedules would be the same given that the ENE share transactions would be documented under the Enron Corp ISDA. I'm sure the provisions are similar and we will be able to fast track the ENE Corp. document. Our internal negotiator's e-mail is vijay.suchdev@funb.com (who I believe has dealt with you in his former life at Lehman Brothers)

Regards,

Terry Ganser

-----Original Message----- From: Sara.Shackleton@enron.com [SMTP:Sara.Shackleton@enron.com] Sent: Wednesday, January 03, 2001 2:54 PM To: terrance.ganser@funb.com Cc: Clint.Freeland@enron.com; Stephanie.Panus@enron.com Subject: Sample Forward Confirmation Terry: Clint Freeland asked that we resend our forward confirmation template to you. It

is attached below. Also, we will send a draft of our ISDA Master Agreement (Schedule only, no boilerplate) to you shortly. Can you provide me with the name of your attorney so that we can email directly? It seems that Enron North America Corp. is currently negotiating an ISDA with First Union National Bank and sent a new ISDA draft to the attention of Delene Travella on 11/08/00. There may be an efficient way to handle both master agreements simultaneously. I look forward to hearing from you. Regards, Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 01/03/2001 01:22 PM ----- Stephanie Panus@ENRON To: terrance.ganser@funb.com cc: Clint Freeland/Corp/Enron@Enron, Sara Shackleton/HOU/ECT@ECT 12/07/2000 Subject: Sample Forward Confirmation 11:00 AM At the request of Clint Freeland (who works with Tim DeSpain), attached is Enron Corp.'s template for a forward transaction. Stephanie Panus Sr. Legal Specialist Enron North America Corp. 1400 Smith Street, Suite 3806 Houston, Texas 77002 (See attached file: SampleForward a.doc) << File: SampleForward a.doc >>

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Message 512 of 1118

FW: Sale of Catalytica Shares by JSB Asset LLC

Sender	sara.shackleton@enron.com
Recipients	['donna.lowry@enron.com', 'tanya.rohauer@enron.com', 'm..melman@enron.com', 'l.carson@enron.com']
File	shackleton-s/sent_items/642.

Gil:

Will you be handling the documentation? Does JSB Asset, LLC have an authorized trader list? a resolution to open the account?

-----Original Message-----

From: Melman, Gil M. Sent: Friday, November 02, 2001 10:49 AM To: Shackleton, Sara; Rohauer, Tanya Cc: Charania, Aneela; Funk, Brenda L.; Ephross, Joel; Mckillop, Gordon; Heinitz, Mary J.; Johnson, Pat; Lydecker Jr., Richard Subject: Sale of Catalytica Shares by JSB Asset LLC

Yesterday we entered into a trade with CSFB for the block sale of our shares of common stock of Catalytica, a public company. The shares are held in JSB Asset LLC. We now have to set up an account with CSFB on behalf of JSB Asset, LLC to consummate the sale of our shares in Catalytica. Please note that the trade occurred yesterday so we are now in documentation stage. We will most likely terminate the account immediately upon conclusion of the transaction.

Brenda and Joel--any problems with us setting up an account with CSFB for JSB Asset LLC?

Also note that I ran this by our internal and external counsel handling the investigations and these transactions in Catalytica do not create any issues relevant to the investigation. -----Original Message----- From: Charania, Aneela Sent: Friday, November 02, 2001 10:34 AM To: Parnizari, Lori Cc: Melman, Gil M. Subject: FW: Account Documentation.

Hey,

We have decided that it would be best to set up an account at CSFB. I think you guys are already working on everything else, but we will need to additionally complete the customer account agreement and W-9. Once everything is complete, can you please send me copies for our records.

Also, we are still pending an okay from Donna Lowry.

Thanks! Aneela :-)

-----Original Message-----

From: "Kearns, Neil" <neil.kearns@csfb.com>@ENRON Sent: Friday, November 02, 2001 10:17 AM To: Charania, Aneela Cc: Melman, Gil M. Subject: Account Documentation.

<<W9.pdf>> <<custacc combined.pdf>> <<IRREVOCABLE STOCK POWER.doc>> <<144k Seller rep let.doc>> Please fill out (as best you can) and sign the W9, Corporate Resolution, Customer Agreement, Stock Power and 144k Sellers Rep. Letter. Please fax them to my attention at 212-325-8072 and FedEx the originals also to my attention at Credit Suisse First Boston 11 Madison Avenue New York, N.Y. 10010 ECM, 3rd. Floor Do not hesitate to call me with any questions. Thank you.

Neil Kearns Director Equity Capital Markets CREDIT SUISSE | FIRST BOSTON neil.kearns@csfb.com TEL. (212) 325 2981 Fax. (212) 325 8072

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- W9.pdf - custacc combined.pdf - IRREVOCABLE STOCK POWER.doc - 144k Seller rep let.doc

Message 513 of 1118

(02-23) Initial List of Proposed Nominees for Election to the Boa

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/312.

January 16, 2002 Notice No.: 02-23

Initial List of Proposed Nominees for Election to the Board of Directors of NYMEX Holdings, Inc.

Please be advised that the following persons were recommended as proposed nominees for the 2002 elections:

1. Recommended as Proposed Nominees for "VICE CHAIRMAN of the Board": (ONE three-year term)

Robert Coakley (SWIM) Mitchell Steinhause (STEN)

2. Recommended as Proposed Nominees for "Director":

PUBLIC (ONE three-year term) Melvyn Falis

FCM (ONE three-year term) Richard Schaeffer (SHAF)

LOCAL (ONE three-year term) Kevin McDonnell (KMAC)

FLOOR BROKER (ONE three-year term) Steven Karvellas (KVL)

TRADE (ONE three-year term/ONE two-year term) Jeffrey Beicker Stephen Forman George Gero (ANT)

EQUITY HOLDER (ONE three-year term) Joseph Cicchetti

AT LARGE (ONE three-year term) Eric Bolling (RBI) Richard Buccellato (BUCC) Michael Cardelfe (MFC) Daniel Dicker (DANO)

Additional written recommendations by stockholders for proposed nominees may be submitted to the Subcommittee (c/o the Donna Talamo, Office of the Corporate Secretary, One North End Avenue, Room 1563, New York, NY 10282 or by fax 212-301-4645) by 5:00 p.m. on January 22, 2002. Thereafter, a final list of recommended names and the categories in which they are proposed to run will be immediately posted.

NO PERSON WHOSE NAME HAS NOT BEEN SUBMITTED BY 5:00 P.M. ON TUESDAY, JANUARY 22, 2002 WILL BE PERMITTED TO STAND FOR ELECTION. IN ADDITION, NO PERSON WHOSE NAME HAS NOT BEEN RECOMMENDED TO RUN FOR VICE CHAIRMAN BY THAT DATE WILL BE PERMITTED TO RUN FOR THAT OFFICE.

Please note that in order to qualify as a Public Director, a person must be knowledgeable of futures trading or financial regulation or otherwise capable of contributing to the deliberations of the Board of Directors and may not be a member of the Exchange or affiliated with any member of the Exchange or an employee of the Exchange.

After January 22, 2002, the Subcommittee will convene to make its determination as to the eligibility of the proposed nominees to run in the category for which he was proposed or otherwise. Such determination will be immediately posted. Should the Subcommittee determine that a proposed candidate is ineligible to run in the category for which he was recommended, written notice thereof shall immediately be submitted to that person. To assist the Subcommittee, NYMEX members may submit information regarding the eligibility of a proposed nominee to the Subcommittee. All such submissions must be received by 5:00 p.m. on January 29, 2002 at the Office of the Corporate Secretary. In addition, a proposed nominee may appeal the Subcommittee's categorization. Such appeal must be made by 5:00 p.m. on February 1, 2002. The Subcommittee will consider the appeal and make a final ruling no later than February 5, 2002. At that time, the Subcommittee will assign the proposed nominees to the proper categories, regardless of the category for which the proposed nominee was originally recommended; however, only persons who were recommended to be candidates for Vice Chairman are eligible to run for that office.

TO BE OFFICIALLY NOMINATED, EACH PROPOSED NOMINEE WILL BE REQUIRED TO FILE WITH THE OFFICE OF THE CORPORATE SECRETARY A DECLARATION WHICH STATES THAT CATEGORY IN WHICH THE PERSON INTENDS TO STAND FOR ELECTION. FAILURE TO SUBMIT A DECLARATION TO THE OFFICE OF THE CORPORATE SECRETARY BY 5:00 P.M. ON FRIDAY FEBRUARY 8, 2002 WILL RENDER THE PROPOSED NOMINEE INELIGIBLE TO RUN IN ANY CATEGORY.

Note, only those persons who were proposed by January 22, 2002 will be permitted to be officially nominated.

Ballots will be mailed on or about February 26, 2002.

The election will be held on Tuesday, March 19, 2002.

Should you have any questions regarding the above, please contact Christopher Bowen at (212) 299-2200 or Donna Talamo at (212) 299-2372.

Message 514 of 1118

(02-15) PROCEDURES FOR 2002 ANNUAL MEETING OF STOCKHOLDERS OF NYM

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/268.

January 10, 2002 Notice No. 02-15

PROCEDURES FOR 2002 ANNUAL MEETING OF STOCKHOLDERS OF NYMEX HOLDINGS, INC.

On January 16, 2002, the Membership Subcommittee will hold an open meeting at 3:00 p.m. in Boardroom 1015 to accept recommendations of names for proposed nominees for the Board of Directors. At that meeting, stockholders may recommend proposed nominees for each open position. The Board of Directors positions for which nominations will be accepted are:

Vice Chairman - 3 Year Term Public Director - 3 Year Term FCM - 3 Year Term Local - 3 Year Term Floor Broker - 3 Year Term Trade (2) - 3 Year Term/2 Year Term Equity Holder - 3 Year Term At-Large - 3 Year Term

A stockholder may not recommend more than one candidate per category. Written recommendations by stockholders proposing candidates may be presented prior to or at this meeting. Thereafter, a list of the recommendations of proposed nominees will be compiled and immediately posted.

Additional written recommendations by stockholders for proposed nominees may be submitted to the Subcommittee (c/o the Donna Talamo, Office of the Corporate Secretary, One North End Avenue, Room 1563, New York, NY 10282 or by fax 212-301-4645) by 5:00 p.m. on January 22, 2002. Thereafter, a final list of recommended names and the categories in which they are proposed to run will be immediately posted.

NO PERSON WHOSE NAME HAS NOT BEEN SUBMITTED BY 5:00 P.M. ON TUESDAY, JANUARY 22, 2002 WILL BE PERMITTED TO STAND FOR ELECTION. IN ADDITION, NO PERSON WHOSE NAME HAS NOT BEEN RECOMMENDED TO RUN FOR VICE CHAIRMAN BY THAT DATE WILL BE PERMITTED TO RUN FOR THAT OFFICE.

Please note that in order to qualify as a Public Director, a person must be knowledgeable of futures trading or financial regulation or otherwise capable of contributing to the deliberations of the Board of Directors and may not be a member of the Exchange or affiliated with any member of the Exchange or an employee of the Exchange.

After January 22, 2002, the Subcommittee will convene to make its determination as to the eligibility of the proposed nominees to run in the category for which he was proposed or otherwise. Such determination will be immediately posted. Should the Subcommittee determine that a proposed candidate is ineligible to run in the category for which he was recommended, written notice thereof shall immediately be submitted to that person. To assist the Subcommittee, NYMEX members may submit information regarding the eligibility of a proposed nominee to the Subcommittee. All such submissions must be received by 5:00 p.m. on January 29, 2002 at the Office of the Corporate Secretary. In addition, a proposed nominee may appeal the Subcommittee's categorization. Such appeal must be made by 5:00 p.m. on February 1, 2002. The Subcommittee will consider the appeal and make a final ruling no later than February 5, 2002. At that time, the Subcommittee will assign the proposed nominees to the proper categories, regardless of the category for which the proposed nominee was originally recommended; however, only persons who were recommended to be candidates for Vice Chairman are eligible to run for that office.

TO BE OFFICIALLY NOMINATED, EACH PROPOSED NOMINEE WILL BE REQUIRED TO FILE WITH THE OFFICE OF THE CORPORATE SECRETARY A DECLARATION WHICH STATES THAT CATEGORY IN WHICH THE PERSON INTENDS TO STAND FOR ELECTION. FAILURE TO SUBMIT A DECLARATION TO THE OFFICE OF THE CORPORATE SECRETARY BY 5:00 P.M. ON FRIDAY FEBRUARY 8, 2002 WILL RENDER THE PROPOSED NOMINEE INELIGIBLE TO RUN IN ANY CATEGORY.

Note, only those persons who were proposed by January 22, 2002 will be permitted to be officially nominated.

Ballots will be mailed on or about February 26, 2002.

The election will be held on Tuesday, March 19, 2002.

Should you have any questions regarding the above, please contact Christopher Bowen at (212) 299-2200 or Donna Talamo at (212) 299-2372.

Message 515 of 1118

FW: FW: Master purchase/sale agreement - Salt River

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net', 'marussel@srpnet.com']
File	shackleton-s/deleted_items/80.

-----Original Message-----

From: Ward, Kim S (Houston) Sent: Monday, October 15, 2001 11:28 AM To: Shackleton, Sara Cc: Williams, Jason R (Credit) Subject: RE: FW: Master purchase/sale agreement - Salt River

Jay, Can you send a credit worksheet to Sara for an ISDA for Salt River Project?

Sara, I am attaching the SRP documents.

Let me know if you guys need anything else. What do you think the timing is on getting a credit worksheet together and a review of their docs?

Thanks,

Kim

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 15, 2001 11:13 AM To: Ward, Kim S (Houston) Cc: Williams, Jason R (Credit); Ngo, Tracy Subject: RE: FW: Master purchase/sale agreement - Salt River

Kim:

Legal and credit have never responded on this one since there was no activity. We will have to do a comparison of the CP form. We also need credit since nothing has happened since 1999.

Can you resend the email version which Salt River sent to you?

Jay and/or Tracy: Who will prepare credit?

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Ward, Kim S (Houston) Sent: Monday, October 15, 2001 10:28 AM To: Shackleton, Sara Subject: FW: FW: Master purchase/sale agreement

Sara,

Mark Russell of Salt River Project sent me their ISDA documents last week. Can we take a look at them and make the changes we would like to incorporate? He called this morning and they are considering financial transactions with us. Please give me a call and let me know where we stand with this when you get a chance. If I should send it on to some one else. Please let me know that as well.

Thanks,

Kim

-----Original Message-----

From: marussel@srpnet.com@ENRON [mailto:IMCEANOTES-marussel+40srpnet+2Ecom+40ENRON@ENRON.com] Sent: Friday, October 05, 2001 4:12 PM To: Ward, Kim S (Houston) Subject: RE: FW: Master purchase/sale agreement

I would like to begin working on an ISDA, I have attached our standard form schedule and CSA for your review. I think this is a good window of opportunity.

-----Original Message-----

From: Kim.Ward@enron.com [mailto:Kim.Ward@enron.com] Sent: Thursday, April 05, 2001 9:13 AM To: marussel@srpnet.com Subject: Re: FW: Master purchase/sale agreement

Mark,

The best person to talk to about the ISDA is me. I discussed an ISDA with Tim Roberts when I was in the Salt River offices on March 23rd. A draft ISDA was sent to Bill Abraham on November 17, 1999. I requested for a new legal review on 3/28/01. Let me know if you need a new draft and I can send you or Tim a copy. My number is 713-853-0685.

Thanks for your inquiry -

Kim Ward

marussel@srpnet.com on 04/05/2001 08:20:15 AM

To: <Kim.Ward@enron.com> cc: <marussel@srpnet.com> Subject: FW: Master purchase/sale agreement

I have been trying to get an ISDA going with Enron for several months. Who is the best contact to call?

-----Original Message-----

From: Kim.Ward@enron.com [mailto:Kim.Ward@enron.com] Sent: Friday, March 30, 2001 2:59 PM To: kaprice@srpnet.com Subject: Master purchase/sale agreement

Kent,

Attached is a draft copy of our Master Purchase/Sale Agreement for physical natural gas transactions. As I mentioned before, we can enter into transactions for less than one year out. However, for those outside of a year and for longer terms, we need to have a master in place. Hopefully, we can get this one in place so that we will be prepared when/if we get ready to transact.

Let me know if you have any questions. I will have our legal guys standing by to help, too.

Thanks,

Kim Ward

(See attached file: Master_NG_draft_contract.doc)

(See attached file: Master_NG_draft_contract.doc)

- 070301.sample Paragraph13 credit annex isda.doc << File: 070301.sample Paragraph13 credit annex isda.doc >> - 062701.sample isda schedule.doc << File: 062701.sample isda schedule.doc >>

Message 516 of 1118

RE: Enron Japan Corp. crude deal

Sender	jane.mcbride@enron.com
Recipients	['sara.shackleton@enron.com', 'alan.aronowitz@enron.com', 'susan.musch@enron.com']
File	shackleton-s/inbox/440.

Dear Sara,

Thanks for this help and I hope you are well. Will make these changes to our form ASAP and get back to you if need be (I am still on my own here unfortunately so things are pretty hectic). Comments below.

May be better if you look at our current version of Confirm/Annex A - attached.

Jane

-----Original Message-----

From: Shackleton, Sara Sent: 17 October 2001 07:41 To: McBride, Jane Cc: Musch, Susan; Aronowitz, Alan Subject: Enron Japan Corp. crude deal

Jane: Jane:

I wanted to give you the benefit of some of my thoughts before I considered your Annex A which I would like to compare to the ENA current version. We are currently considering more revisions so your Annex A will help me to think a bit.

I have attached a redline of the actual confirm (without Annex A). A couple of thoughts: (1) for purposes of creating a "template", I gave a choice for Termination Date [McBride, Jane] Looks good (2) I collapsed Payment Date/Invoice

because I'm concerned that EJC may forget to send a timely invoice so we need to ensure that there is no issue about whether or not a payment is owed [McBride, Jane] I will discuss with our CAO - he proposed and likes this language but i see your point (3) We need to "fix" the Floating Price language. I don't know where the reference to "North Sea, West Africa, Mediterranean" comes from. I didn't see it in Marketwire and London doesn't use it. [McBride, Jane] Agree that we need to work on these defs - we back to back crude deals with Singapore and this seems to be what they use there - I don't mind what we use but must be the same as what Singapore put in back to back with us.

Also, the conversion language is vague (i.e., TTM, TTB and TTS are not defined but I suspect they refer to bid/mid/sell? Are they references on the Bank of Tokyo-Mitsubishi, Ltd. screen?). [McBride, Jane] Yes, and it is market practice apparently to use commercial bank rates.

Also, it may be better to create a conversion reference to your Central Bank and not a particular banking institution (you could get caught later dealing with that bank, using the conversion language and then giving the bank an unfair advantage). [McBride, Jane] (4) I didn't see your Schedule 1 guarantee but I assume that it is the normal ENE format. [McBride, Jane] Yes and it has been signed and delivered already. Regarding Annex A, I quickly noticed an issue with the "TIBOR" definition (which uses quite a bit of ISDA language) which can be easily fixed with an appropriate ISDA reference. Give me another day or so to comment. [McBride, Jane] This has been sorted I think now, see attachment.

Let me know if you'd like to talk. My home number is 713-664-3207 if you'd like to call.

Regards. Sara

<< File: Enron Japan Corp.R1.doc >>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: McBride, Jane Sent: Friday, October 12, 2001 1:20 AM To: Shackleton, Sara Cc: Aronowitz, Alan; Bekeng, Jan-Erland; Hirl, Joseph; Glover, Sheila; Musch, Susan Subject:

<< File: Final.doc >> Dear Sara,

I am attaching the long form confirm re a deal which we did yesterday - small, but our office's first yen based crude transaction!

The yen-USD forex however was done through ENA and needs to be documented. ENA will also be providing these services to EJ (through our metals desk) moving forward so we need a master agreement in place.

Alan suggested you may be able to assist with a form of document that would work in this situation. The only requirement from EJ's perspective is that it be effective from yesterday, Oct 11, 2001.

If you need more information about the forex arrangements we have with ENA, Sheila / Jan Erland may be able to assist.

Otherwise, if you were able to get a draft together, I will run it by Susan Musch and Jan-Erland, and get it signed up.

Thanks Sara.

Jane McBride

Ps. I didn't make it to the GM Legal Conference this time but hope it went well and to see you in May.

Message 517 of 1118

FW: Sale of Catalytica Shares by JSB Asset LLC

Sender	sara.shackleton@enron.com
Recipients	['donna.lowry@enron.com', 'l.carson@enron.com']
File	shackleton-s/sent_items/643.

fyi - I don't have any idea if this will be routed in accordance with the "process" for ENA brokerage agreements

Do you care? This is the second such brokerage agreement coming from Gil.

Sara

-----Original Message-----

From: Melman, Gil M. Sent: Friday, November 02, 2001 11:33 AM To: Shackleton, Sara Subject: RE: Sale of Catalytica Shares by JSB Asset LLC

we're handling and getting resolutions in place.

-----Original Message-----

From: Shackleton, Sara Sent: Friday, November 02, 2001 11:28 AM To: Melman, Gil M. Cc: Carson, Rick L.; Lowry, Donna; Rohauer, Tanya Subject: FW: Sale of Catalytica Shares by JSB Asset LLC

Gil:

Will you be handling the documentation? Does JSB Asset, LLC have an authorized trader list? a resolution to open the account?

-----Original Message-----

From: Melman, Gil M. Sent: Friday, November 02, 2001 10:49 AM To: Shackleton, Sara; Rohauer, Tanya Cc: Charania, Aneela; Funk, Brenda L.; Ephross, Joel; Mckillop, Gordon; Heinitz, Mary J.; Johnson, Pat; Lydecker Jr., Richard Subject: Sale of Catalytica Shares by JSB Asset LLC

Yesterday we entered into a trade with CSFB for the block sale of our shares of common stock of Catalytica, a public company. The shares are held in JSB Asset LLC. We now have to set up an account with CSFB on behalf of JSB Asset, LLC to consummate the sale of our shares in Catalytica. Please note that the trade occurred yesterday so we are now in documentation stage. We will most likely terminate the account immediately upon conclusion of the transaction.

Brenda and Joel--any problems with us setting up an account with CSFB for JSB Asset LLC?

Also note that I ran this by our internal and external counsel handling the investigations and these transactions in Catalytica do not create any issues relevant to the investigation. -----Original Message----- From: Charania, Aneela Sent: Friday, November 02, 2001 10:34 AM To: Parnizari, Lori Cc: Melman, Gil M. Subject: FW: Account Documentation.

Hey,

We have decided that it would be best to set up an account at CSFB. I think you guys are already working on everything else, but we will need to additionally complete the customer account agreement and W-9. Once everything is complete, can you please send me copies for our records.

Also, we are still pending an okay from Donna Lowry.

Thanks! Aneela :-)

-----Original Message-----

From: "Kearns, Neil" <neil.kearns@csfb.com>@ENRON Sent: Friday, November 02, 2001 10:17 AM To: Charania, Aneela Cc: Melman, Gil M. Subject: Account Documentation.

<<W9.pdf>> <<custacc combined.pdf>> <<IRREVOCABLE STOCK POWER.doc>> <<144k Seller rep let.doc>> Please fill out (as best you can) and sign the W9, Corporate Resolution, Customer Agreement, Stock Power and 144k Sellers Rep. Letter. Please fax them to my attention at 212-325-8072 and FedEx the originals also to my attention at Credit Suisse First Boston 11 Madison Avenue New York, N.Y. 10010 ECM, 3rd. Floor Do not hesitate to call me with any questions. Thank you.

Neil Kearns Director Equity Capital Markets CREDIT SUISSE | FIRST BOSTON neil.kearns@csfb.com TEL. (212) 325 2981 Fax. (212) 325 8072

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- W9.pdf << File: W9.pdf >> - custacc combined.pdf << File: custacc combined.pdf >> - IRREVOCABLE STOCK POWER.doc << File: IRREVOCABLE STOCK POWER.doc >> - 144k Seller rep let.doc << File: 144k Seller rep let.doc >>

Message 518 of 1118

Enron/Tahiti	
Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/all_documents/3387.

I think this is identical. Also print Bali trust ----- Forwarded by Sara Shackleton/HOU/ECT on 09/07/2000 11:50 AM -----

"CHRIS KRECEK" <KRECC@andrews-kurth.com> 09/06/2000 05:05 PM

To: "David Barbour" <BARBD@andrews-kurth.com>, "DEBORAH LOWE" <LOWED@andrews-kurth.com>, "MURIEL McFARLING" <MCFAM@andrews-kurth.com>, "SCOTT OLSON" <OLSOS@andrews-kurth.com>, <alan.quaintance@enron.com>, <brenda.l.funk@enron.com>, <charles.delacey@enron.com>, <Clement.abrams@enron.com>, <David.roland@enron.com>, <Joel.Ephross@enron.com>, <LOri.pinder@enron.com>, <sara.shackleton@enron.com>, <tina.livingston@enron.com>, <Trevor.Randolph@enron.com>, <trushar.patel@enron.com>, <mniebruegge@mayerbrown.com>, <tellwood@mayerbrown.com>, <eawilburn@prickett.com>, <Tamullen@prickett.com>, <kenton@rlf.com>, <mark.wolf@us.cibc.com>, <Mercedes.arango@us.cibc.com>, <schottla@us.cibc.com>, <ARoberts@WilmingtonTrust.com> cc: Subject: Enron/Tahiti

Attached are the transaction documents for Project Tahiti. Each of the documents is marked to show revisions against the version circulated last Wednesday, August 30. As we discussed on the phone, we have incorporated the business agreement reached between CIBC and Enron, as follows:

The Tahiti Series Trust Agreement has been revised to require the consent of all certificateholders (which includes Fiji Z LLC, which can only consent with the consent of its Class B Member - CIBC) prior to (i) the creation of any series after December 31, 2000 (see definition of Series Supplement) and (ii) making any amendments to the purpose provision (which specifically limits the purposes of the Trust to holding Trust Property - defined as the warrants) or the definition of Series Supplement.

The Subscription Agreement has been revised to provide that CIBC's commitment to fund on December 31, 2000 will be terminated if the Bali Trust receives any funds except in connection with the issuance of debt of the Bali Trust (which would require the consent of CIBC as the beneficial owner) or funds received from CIBC.

Please be aware that because of the revisions described above, it was not necessary to incorporate all of Tim Elwood's comments received September 3, 2000.

The documents in Word format are identified as follows:

Closing Checklist (255001) Trust Agreement of Tahiti (254424) Beneficial Interest Certificate (254806) Series Supplement Creating Series Z (254816) Tahiti Series Z Certificate issued to Fiji Z (254975) Warrant Assignemtn (254974) Promissory Note from Tahiti (254802) Direction Letter to Owner Trustee of Tahiti (254976) Amended and Restated LLC Agreement of Fiji Z, L.L.C. (254423) Promissory Note from Fiji to Tahiti (254977) Amended and Restated LLC Agreement of Bora Bora (254978) Promissory Note from Bora Bora to Fiji (254979) Sale and Auction Agreement (255084) Independent Auctioneer Letter Agmt (254097) B Interest Assignment AGmt (254982) Assignment of Bali Promissory Note to Fiji (255717) Trust Agreement of Bali (255146) Reimbursement and Disclosure Agreement (255563) Promissory Note from Bali to Bora Bora (254981) Certificate Distribution Agreement (255568) Subscription Documents (255729); Certificate Interest Certificate to CIBC (254983); and Direction Letter to Owner Trustee of Bali (254980)

If you have any questions, please call Muriel McFarling at (214) 659-4461.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 255729.doc - 254424.doc - 254802.doc - 254806.doc - 254816.doc - 254974.doc - 254975.doc - 254976.doc - 254977.doc - 254978.doc - 254979.doc - 254980.doc - 254981.doc - 254982.doc - 254983.doc - 255001.doc - 255084.doc - 255097.doc - 255146.doc - 255563.doc - 255568.doc - 255717.doc - 254423.doc

Message 519 of 1118

Enron/Tahiti	
Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/1965.

Please print checklist, Trust and the email itself. 2d message to follow ----- Forwarded by Sara Shackleton/HOU/ECT on 09/07/2000 11:48 AM -----

"CHRIS KRECEK" <KRECC@andrews-kurth.com> 09/06/2000 05:04 PM

To: "David Barbour" <BARBD@andrews-kurth.com>, "DEBORAH LOWE" <LOWED@andrews-kurth.com>, "MURIEL McFARLING" <MCFAM@andrews-kurth.com>, "SCOTT OLSON" <OLSOS@andrews-kurth.com>, <alan.quaintance@enron.com>, <brenda.l.funk@enron.com>, <charles.delacey@enron.com>, <Clement.abrams@enron.com>, <David.roland@enron.com>, <Joel.Ephross@enron.com>, <LOri.pinder@enron.com>, <sara.shackleton@enron.com>, <tina.livingston@enron.com>, <Trevor.Randolph@enron.com>, <trushar.patel@enron.com>, <mniebruegge@mayerbrown.com>, <tellwood@mayerbrown.com>, <eawilburn@prickett.com>, <Tamullen@prickett.com>, <kenton@rlf.com>, <mark.wolf@us.cibc.com>, <Mercedes.arango@us.cibc.com>, <schottla@us.cibc.com>, <ARoberts@WilmingtonTrust.com> cc: Subject: Enron/Tahiti

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December 31, 2000 (see definition of Series Supplement) and (ii) making any amendments to the purpose provision (which specifically limits the purposes of the Trust to holding Trust Property - defined as the warrants) or the definition of Series Supplement.

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If you have any questions, please call Muriel McFarling at (214) 659-4461.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 255729.wpd - 254424.wpd - 254802.wpd - 254806.wpd - 254816.wpd - 254974.wpd - 254975.wpd - 254976.wpd - 254977.wpd - 254978.wpd - 254979.wpd - 254980.wpd - 254981.wpd - 254982.wpd - 254983.wpd - 255084.wpd - 255097.wpd - 255146.wpd - 255563.wpd - 255568.wpd - 255717.wpd - 254423.wpd - 255001.wpd

Message 520 of 1118

Re: Alberta PPA Financing - URGENT

Sender	clement.abrams@enron.com
Recipients	['sara.shackleton@enron.com', 'greg.johnston@enron.com', 'peter.keohane@enron.com']
File	shackleton-s/notes_inbox/1009.

The specifics for Bryan Pechersky at Vinson & Elkins, L.L.P. follows. He will need the Master Agreements and the ENE guarantees in order to complete his opinion. I will be sending the guarantees in short order.

Bryan J. Pechersky Vinson & Elkins L.L.P. 1325 Avenue of the Americas 17th Floor New York, NY 10019 (917) 206-8105
Email: bpechersky@velaw.com

Peter Keohane@ECT 09/18/2000 09:11 PM

To: Soma Ghosh/HOU/ECT@ECT, Clement Abrams/Corp/Enron@ENRON, Tana Jones/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Derek Davies/CAL/ECT@ECT, wen@blakes.com, dpef@blakes.com, Brian Kerrigan/HOU/ECT@ECT, Greg Johnston/CAL/ECT@ECT cc: Sharon Crawford/CAL/ECT@ECT Subject: Alberta PPA Financing - URGENT

I hate to sound like a jerk (but its the nature of my job, and perhaps my personality, so I will). Another day has passed and the Bank has yet to see paper, and frankly we have yet to see the Bank's paper. Frankly I am very concerned about this getting done on time. I know this can all be put in place, but I think we need to make a concerted and coordinated effort to make this our individual priorities between now and Friday. I will be in a plane until mid-afternoon tomorrow, but will be reachable after that by cell @ 403-819-5528.

In my absence Greg Johnston has kindly agreed to help out. Greg can be reached @ 403-974-6745.

I want to set out below the various tasks and responsibilities as I see them, and the outstanding issues as I understand them. I think a distribution of all drafts needs to be circulated by no later than mid-afternoon tomorrow, with a view to review of drafts Tuesday, revising drafts Wednesday, finalizing drafts and executing Thursday and funding Friday.

A. SWAP #1 w/ Swapco (Bow River Trust):

- * Credit worksheet - Bill
- * ISDA Master, etc. - Tana/Sara
- * Transaction terms (gas prepay) - Brian/Soma/RBC
- * Confirm (gas prepay) - Sara
- * Blakes opinion re; ECC - Warren
- * Enron Corp. G'ee - Clement
- * J. Derrick opinion re: Enron Corp. - Clement
- * VE opinion re: Enron Corp. - ? (Clement)
- * Macleod Dixon opinion re: Swapco - Warren to follow-up

B. SWAP #3 w/ RBC

- * Credit worksheet - Bill
- * ISDA Master, etc. - Tana/Sara
- * Transaction terms (gas swap) - Brian/Soma/RBC
- * Confirm (gas swap) - Sara
- * Transaction terms (interest rate swap) - Brian/Soma/RBC
- * Confirm (interest rate swap) - Sara
- * Blakes opinion re; ECC - Warren
- * Enron Corp. G'ee - Clement
- * J. Derrick opinion re: Enron Corp. - Clement
- * VE opinion re: Enron Corp. - ? (Clement)
- * Macleod Dixon opinion re: RBC - Warren to follow-up

C. OTHER

- * Fee Letter - Macleod Dixon - Warren to follow-up
- * Indemnification re: Increased Costs - Macleod Dixon - Warren to follow-up

- * Promissory Note from ECPC to ECC - Greg
- * Resolution re: Promissory Note for ECC - Greg
- * Resolution re: Promissory Note for ECPC - Greg

D. ISSUES

- * Generic cross-default to any ECC swap in ECC portfolio over specified threshold amount - as discussed, I would consider this as unacceptable but will defer to commercial. The scope of the default would be overly broad, the Bank is relying on Enron Corp. credit and will have a third party debt x-default to Enron Corp. of US\$100MM. If agreed, this needs to be considered for both Swap #1 and #3
- * Cross-default to Enron Corp. Credit Agreement - as discussed, this should be unnecessary if Credit Agreement reps/wars/covenants are in the Enron Corp. G'ee, but this could be a solution to providing a short for Enron Corp. G'ee
- * Cross-default to Swapco Credit Agreement with BF Equity for illegality - as discussed, since ECC is not a party to that transaction and would have no standing to take any position to prevent acceleration, since ECC would nonetheless be obligated on Swap #1, the Bank's only issue would be timing of repayment, the risk is more theoretical than real for the Bank and given that the loan is part of the Bank's own off-balance sheet structure, this should not be acceptable. If agreed, this needs to be considered for both Swap #1 and #3
- * Syndication - the Bank will be entitled to syndicate up to 50% of the amount funded under Swap #1 to Canadian Chartered Banks, but not more than 20% of the funded amount to Schedule II Canadian Chartered Banks. Increased cost of funding by Schedule II Banks will be accounted for under the interest rate swap. The issue will be to define the parameters of our participation in syndication, to whom we have recourse under Swap #3 (and #1) and to document the right to syndicate Swap #1 separately from the adjustment to the interest rate swap.

Finally, we need some answers on my earlier e-mail, including as to wiring of funds and amount required to be funded.

PK

Message 521 of 1118

Joshua Tree Financing Structure

Sender	sara.shackleton@enron.com
Recipients	['angela.davis@enron.com', 'teresa.bushman@enron.com']
File	shackleton-s/sent/2341.

----- Forwarded by Sara Shackleton/HOU/ECT on 11/13/2000 09:24 AM -----

Teresa G Bushman 11/10/2000 05:19 PM

To: Sara Shackleton/HOU/ECT@ECT, Dan J Hyvl/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT cc: Subject: Joshua Tree Financing Structure

Per my voicemails. Please provide comments sometime on Monday if possible. Thanks very much for your assistance.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 11/10/2000 04:56 PM -----

Nora Dobin@ENRON 11/10/2000 11:14 AM

To: Tim Proffitt/HOU/ECT@ECT, Chris Herron/Corp/Enron@Enron, Cris Sherman/HOU/ECT@ECT, Kevin Liss/Corp/Enron@ENRON, Teresa G Bushman/HOU/ECT@ECT, Scott Josey/Corp/Enron@ENRON, John Thompson/LON/ECT@ECT, Jesus Melendrez/Corp/Enron@Enron cc: Brenda L Funk/HOU/ECT@ECT, rainj@tklaw.com

Subject: Joshua Tree Financing Structure

In preparation for the 2:00 p.m. meeting today regarding the Bank of America term sheet, please consider the following:

(1) Proposed Trust/LLC Structure. Trust would own 99% of LLC with ENA as managing member owning other 1%. LLC would purchase/own VPPs.

Legal prefers the two-tier structure but

(i) would prefer the use of a Delaware business trust with Wilmington Trust Company as the trustee instead of a Texas trust to own equity in underlying LLC/LP, and

(ii) as to the proposed Delaware limited liability company which would own the VPPs, asks the tax and commercial teams to consider (a) whether this entity might or will derive significant income from Texas based properties/operations or otherwise be subject to material Texas franchise tax, and (b) if so, whether we should use a Texas limited partnership instead of the LLC.

(2) Proposed Certificate and Trust Terms and Conditions.

Clarify that certificate holders commit to fund their pro rata portion of aggregate A and B loans/investments (similar to contribution obligations of equity owners of LLC, i.e., LLC terms expressly provide that Trust and ENA must make pro rata (to their respective ownership interests) contributions to LLC for purchase price of VPPs]. Identity of A and B holders, e.g., banks get A and [who?] get B?

(3) LLC Terms.

Is proposed 99% and 1% ownership of LLC by Trust and ENA (as managing member), respectively, ok? Same ownership percentages if we use LP?

VPP commercial and legal teams need to determine acceptability of proposed terms of:

(i) Master Balancing Agreement between LLC and ENA, Note re item 1 of Mandatory Cost Advances: only require ENA to make specified expenditures where it has control of, or not prohibited by, specific situation or governing contract. (ii) Master Natural Gas Purchase and Sale Agreement between LLC and [need to determine correct Enron counterparty since Enron Gas Marketing, Inc. does not exist] (provide for Texas governing law?), (iii) Master Crude Oil Purchase and Sale Agreement between LLC and Enron Reserve Acquisition Corp. (correct counterparty? provide for Texas governing law?), and (iv) Eligibility/engineering criteria for new VPPs. Query regarding item 10: why can't LLC buy a VPP from a seller in bankruptcy on a free-and-clear basis?

Clarify whether specified New Company Asset Procedures are alternatives (i.e., either proposed new VPPs (1) meet specified eligibility criteria as certified by ENA or independent third party, or (2) new VPP are approved by Engineering Banks (with no objection by majority of Trust certificate holders, rather than either proposed new VPPs (i) meet specified eligibility criteria as certified by ENA and independent third party, or (ii) new VPP are approved by Engineering Banks (with no objection by majority of Trust certificate holders).

Enron Corp. Performance Guaranty. Presumably "performance" guaranty is one of payment or can be reduced to a pre-agreed payment amount. Try for Texas governing law. Start with Enron Corp. standard form of guarantee with revolver reps and covenants.

(4) Swaps (interest rate and energy price)

Should these be assets of Trust or LLC/LP? Any related tax issues? Who is swap counterparty (ENA?) Is non-ISDA format acceptable? If so, is Texas law (as opposed to NY law typically covering an ISDA) ok?

(5) Production Pricing Flexibility

Consider consistency between pricing parameters contained in VPP purchase documents on the one hand (e.g., Crescendo), and financing documents on the other hand (e.g., Master Purchase Agreements under (3) above and swaps under (4) above).

Regards, NJD

Message 522 of 1118

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2441.

Position Limits, Accountability and Reporting. With regard to the four=20 physical delivery enymexK crude oil contracts, the amendments to NYMEX Rule= s=20 9.26 and 9.27 provide for position accountability in the back months and a= =20

spot month limit of 2,000 contracts for each of these four contracts. Also, the Exchange's current hedge exemption procedures will be made applicable to the enymexK contracts. With regard to the cash-settled enymexK contracts, the rule amendments provide for position accountability across all contract months. The amendments to Rule 9.34 establish a reporting level of 25 contracts for each enymexK contract, the same reporting level currently used for many other Exchange contracts. However, NYMEX staff also has initiated discussions with CFTC staff regarding possible regulatory relief to exempt market participants from these reporting requirements to the CFTC for the cash-settled contracts.

Brokerage and Clearing Member Financial Responsibility. As to brokerage, new Rule 9.04A (enymexK Trading) permits brokerage to be done for enymexK products. Section (C) of new Rule 9.04A clarifies that a Clearing Member will be financially responsible for trades done for each account it carries, even if there is a system malfunction.

Arbitration Rules The Exchange's arbitration rules are being amended to reference Non-Member enymexK Users and to provide that disputes between a Member and a Non-Member enymexK User or between Non-Member enymexK Users would be subject to Exchange arbitration on a permissive rather than on a mandatory basis.

Summary Disciplinary Procedures The sole disciplinary sanction that would be applicable to a Non-Member enymexK User would be denial of further direct access to the system. Consistent with this approach, new Exchange Rule 8.99A establishes a summary disciplinary procedure that would allow the Exchange to take action when necessary on an expedited basis.

Please note that Exchange Members who are enymexK Users also will continue to be subject to Exchange rules.

If you have any questions concerning these rules, please contact Christophe K. Bowen, Senior Vice President and General Counsel, NYMEX Legal Department, at (212) 299-2220; or Brian Regan, Senior Associate General Counsel, NYMEX Legal Department, at (212) 299-2207.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D\(01-137\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-137))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 523 of 1118

Adding authorized traders to the ENA Authorized Trader List

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com', 'david.wall@enron.com']
File	shackleton-s/sent/6252.

David:

Please send an email request to Cassandra Schultz and Veronica Valdez requesting that the following Enron Credit Inc. traders be added to the ENA Authorized Trader List (for the purpose of using ENA executed ISDA Master Agreements in the credit trading area, such as Swiss Re and First Union National Bank):

Jeff Kinneman Nicholas Stephan Paul Pizzolato

Please copy me and Marie Heard. Call if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 524 of 1118***Beau Canada Common**

Sender	lisa.mellencamp@enron.com
Recipients	['mary.heinitz@enron.com', 'julia.murray@enron.com', 'stuart.zisman@enron.com']
File	shackleton-s/notes_inbox/1081.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 09/13/2000 01:31 PM -----

Andrea V Reed 09/13/2000 01:11 PM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Michael S Galvan/HOU/ECT@ECT, Carol Jean Marshall/HOU/ECT@ECT, David Maxwell/HOU/ECT@ECT Subject: Beau Canada Common

Lisa, I just found out this morning that Canada does not want to include Beau Canada in the Raptor I hedge. Sorry for such late notice. Attached is a new Raptor Asset List reflecting the change.

avr

*Message 525 of 1118***confid agreement**

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent/5443.

Susan: would you please respond to this trader? thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/31/2001 01:52 PM -----

Erik Deadwyler@ENRON 01/31/2001 11:40 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: confid agreement

Hi Sara-

I'm trying to obtain financials from a counterparty and need a copy of our confidential statement? Can you provide me with this?

thanks

Erik Deadwyler Physical Trader-Recovered Paper

*Message 526 of 1118***RE: EY**

Sender	alan.aronowitz@enron.com
Recipients	['sara.shackleton@enron.com', 'sheila.tweed@enron.com']
File	shackleton-s/inbox/591.

Let's discuss at 11 am meeting today.

Alan

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, January 17, 2002 5:25 PM To: Tweed, Sheila; Aronowitz, Alan Subject: EY

Just spoke with Cindy Ma who tells me that Wilbur Foster will be in Houston next Thurs/Fri. She again says that Millbank is asking about our strategy for handling in the money gas swaps.

I know you guys are managing the EY relationship and I just wanted to let you know how she's bouncing.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 527 of 1118

pavia catalogs	
Sender	sara.shackleton@enron.com
Recipients	['olana@bestweb.net']
File	shackleton-s/sent/5296.

Dear Mr. Rosenberg:

I'm signed up with PayPal and you should have received confirmation. Please ignore shipping instructions accompanying PayPal because I had a problem trying to change the shipping address.

The correct shipping address for the Pavia Federal Express is listed below (together with other information):

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

I enjoyed speaking with you. Please let me know if you have any problems.

I will put together a list soon.

Regards. Sara

Message 528 of 1118

CMPC - ISDA Agreement	
Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/5255.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/04/2001 05:30 PM -----

Gustavo Junqueira 01/04/2001 02:32 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: CMPC - ISDA Agreement

Sara, I have talked to Alejandro in Chile regarding where to send the ISDA agreement. He would rather receive it by email but if it is not possible, please fax it to him at 011 56 2 671 0621. Please let me know as soon as you send it. Thanks, Gustavo

*Message 529 of 1118***Into Tva**

Sender	sara.shackleton@enron.com
Recipients	['anne.koehler@enron.com']
File	shackleton-s/sent/6147.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/25/2001 05:10 PM -----

Melissa Ann Murphy 04/25/2001 04:54 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Into Tva

Hello, this index language is for a 16 hour daily product. The wording changes a little bit for a forward product. For a forward product the heading is as follows: Trades for Standard Forward Products instead of Trades for Standard 16-Hour Daily Products.

Thanks, Melissa

*Message 530 of 1118***Agriculture-related revisions to ISDA documentation**

Sender	robert.bruce@enron.com
Recipients	['sara.shackleton@enron.com', 'mark.taylor@enron.com', 'carol.clair@enron.com']
File	shackleton-s/all_documents/10063.

The enclosed doc contains two clauses from our ISDA schedule that I feel would need to be substantively revised for ag products. There are a few other suggested changes I have as well (e.g. footnote references w/ instructions on drafting). Finally, there are some conceptual points that I believe should be discussed w/ relation to the unique structure for "softs" trading we have been planning.

I will ask my assistant to schedule a 30-min. meeting with the four of us for sometime next week. -- Bob

Robert E. Bruce Senior Counsel Enron Wholesale Services T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

*Message 531 of 1118***Document you sent to Enron**

Sender	becky.spencer@enron.com
Recipients	['mperrodin@cpr.fr']
File	shackleton-s/notes_inbox/2402.

Hello, Maud!

My name is Becky Spencer and I work for Brent Hendry. In answer to your question of this morning, yes, Brent did receive the document you sent to him on April 12th. Could you please let us know the name of the contact person here at Enron to whom you have been speaking so we can better coordinate our discussions with you?

Thank you! We look forward to doing business with you.

Becky Spencer Enron North America Corp. 1400 Smith Street 38th Floor Houston TX 77002 713-853-7599 Office
713-646-3490 Fax My e-mail address: becky.spencer@enron.com Brent Hendry's e-mail address:
brent.hendry@enron.com

Message 532 of 1118

RE: UBS

Sender	sheila.tweed@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/667.

I have asked them to work cooperatively with us and to use copiers on other floors or to send out large jobs to the copy center. Let me know if the situation does not improve.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, February 05, 2002 12:44 PM To: Aronowitz, Alan; Tweed, Sheila Subject: UBS

fyi: It has come to my attention that Tana/Marie are making constant use of the xerox for copying the ISDA preprinted form, etc. Is there a standard for outsourcing these jobs?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 533 of 1118

Updated Raptor Sheets for the Private investments

Sender	mary.cook@enron.com
Recipients	['lisa.mellencamp@enron.com', 'stuart.zisman@enron.com']
File	shackleton-s/notes_inbox/1061.

See attachments for the latest.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 09/14/2000 11:41 AM -----

Brian Schwertner@ENRON 09/13/2000 07:18 PM

To: Mary Cook/HOU/ECT@ECT cc: Hope Vargas/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT Subject: Updated Raptor Sheets for the Private investments

Mary,

See the attached proposal sheets for the Private Raptor investments.

These include the latest valuation changes to date as well as any wording changes from Legal.

Message 534 of 1118

ISDA Master Agreement with Enron North America Corp.

Sender	sara.shackleton@enron.com
Recipients	['delene.travella@funb.com']
File	shackleton-s/all_documents/9133.

Dee: I am trying to hear from credit on about four issues, namely, the legal entity, need for First Union Corp. guaranty (due to the availability of financials), haircut on bonds and Specified Conditions. I would then propose preparation of a blackline to squeeze out the remaining issues. If I hear from credit tomorrow (and I'm pushing), I could have the blackline by Wednesday and we could talk. Hopefully, we'd be done by this week. Hope this works. Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 535 of 1118

RE: status of financial trading

Sender	ted.murphy@enron.com
Recipients	['sara.shackleton@enron.com', 'paul.simons@enron.com']
File	shackleton-s/inbox/662.

Sara, Mary Nell and I will give you a call. Paul can ignore this as he is part of the administration. Marcus von Bach is working on ECTRIC but is currently out of the office. Ted

-----Original Message-----

From: Shackleton, Sara Sent: 04 February 2002 19:15 To: Murphy, Ted; Simons, Paul Subject: status of financial trading

Ted/Paul: Could you give me a call on Tuesday morning to discuss? I think Mary Nell will try to call me as well. I just want to determine how Houston can assist. Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 536 of 1118

merger between Banque Nationale de Paris ("BNP") and Paribas

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'stephanie.panus@enron.com', 'tanya.rohauer@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/sent/5368.

Tanya:

Enron Corp. has a 1/17/92 Interest Rate and Currency Exchange master with Paribas. I will fax to you the letter which I received regarding the above merger. Basically, Enron Corp.'s signature to this letter will indicate agreement to put all [existing, if any, and future] Transactions under this master but with all obligations becoming those of the surviving entity which is BNP and which changed its name to "BNP Paribas."

Do you have any credit issues?

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 537 of 1118

Master Log entry for Dynegy Marketing and Trade ET ALS

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent_items/444.

We need to revise the Master Log to specifically identify ALL of the parties to the Master Netting Agreement between the Dynegy group and the Enron group because all contracts subject to that Master Netting Agreement were terminated effective as of December 20, 2001.

This should pick up Dynegy Canada Inc. and ENA pursuant to the Mster Agreement dated as of 6/16/95 and cause our recent default notice to become moot.

I have not pulled the Master Netting Agreement today. Let me know if you have any questions.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 538 of 1118

Raymond James & Associates - Broker Agreement

Sender	samantha.boyd@enron.com
Recipients	['sara.shackleton@enron.com', 'jpeters@andrews-kurth.com', 'aneela.charania@enron.com']
File	shackleton-s/all_documents/4800.

Janson:

On 11/09 I forwarded to your attention the Executing Broker Agreement for Raymond James & Associates, Inc. Per Aneela Charania, Raymond James & Associates will not do trades for us until this Agreement is executed. Aneela would like for us to make our review and executing of this agreement a high priority. Please advise at your earliest convenience the status of your review and/or negotiations. Thanks for your attention with this matter.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 539 of 1118

RE: in-the-money settlements

Sender	alan.aronowitz@enron.com
Recipients	['sara.shackleton@enron.com', 'sheila.tweed@enron.com']
File	shackleton-s/deleted_items/305.

Sara:

I presume RBC is Royal Bank of Canada.

What does SEB stand for?

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, January 16, 2002 3:23 PM To: Aronowitz, Alan Cc: Tweed, Sheila Subject: in-the-money settlements

The following parties have either tired of speaking with us or would still like to agree to settlement:

San Diego Gas & Electric (Not Terminated) RBC SEB

Francisco was handling SDG&E; I have been working on the latter two (which were both subject to termination notices).

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 540 of 1118

Twister Gas Services, L.L.C. Deal Nos. NM0809.1 and NM0795.1 /

Sender	susan.flynn@enron.com
Recipients	['sara.shackleton@enron.com', 'john.suttle@enron.com', 'carol.clair@enron.com', 'sheetal.patel@enron.com']
File	shackleton-s/all_documents/2495.

Here is Annex B to Sanguine Confirm with Assignment doc. Joe Hunter put this deal together the last time we did it; ask him if you have any questions.

You have do Twister confirm (no credit); assignment; sanguine confirm (w/credit -per John Suttle no upfront LC this time/zero collateral threshold).

Sheetal - Assignment must be signed by Vice President or above (suggest Fred Lagrasta or Craig Breslau). They will not sign until Carol St. Clair or Sara Shackleton initials the assignment.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 541 of 1118

Hawaii I & II Facility Agreements - To Be Posted

Sender	mcfam@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/notes_inbox/415.

THIS E-MAIL SUPERSEDES THE PREVIOUS E-MAIL WITH HAWAII I FACILITY AGREEMENT ATTACHED.

Attached are the Hawaii I and Hawaii II Facility Agreements. I have attached a clean draft of both facility agreements, as well as a copy marked to show changes in each facility agreement against the existing Amended and Restated Facility Agreement for Hawaii 125-0.

Please call me if you have any trouble accessing these documents.

Muriel C. McFarling Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201 (214) 659-4461 (214) 659-4784 (fax)

- Hawaii_I(marked).doc - Hawaii_I(Clean).doc - Hawaii_II(marked).doc - Hawaii_II(clean).doc

Message 542 of 1118

authorized signatory list

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'stephanie.panus@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/all_documents/8682.

I'm not sure who is handling but we need to add Jorge as a signatory for ENA (Jorge is inHickerson's group). Let me know when this is completed and if you have any questions. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/09/2001 03:04 PM -----

Laurel Adams 01/09/2001 02:58 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: authorized signatory list

To whom to we send a request to have Jorge A. Garcia added as an authorized signatory for ENA?

Thanks.

Message 543 of 1118

Master and Other Agreements

Sender	sara.shackleton@enron.com
Recipients	['jpeters@andrews-kurth.com']
File	shackleton-s/all_documents/8705.

Jason:

I received the A&K package the other day. Thanks very much. According to my list, you still have the following files:

Dynegy Canada, Inc.* SMUD** Weather Services International Wabash Valley Power Assoc. Moore Global Investments, Ltd. NYSE&G

*Please prepare an exit memo to the file **Please call Brent Hendry to determine status

Subject to your conversation with Brent, please return the remaining files to my attention. Please call me if you have any questions.

Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 544 of 1118

hedge funds

Sender	sara.shackleton@enron.com
Recipients	['per.sekse@enron.com']
File	shackleton-s/all_documents/8821.

Per:

I am told that Mark Taylor sent an email in December to Bob Shultz at EOL addressing the hedge fund issues (and CTA issues) associated with online trading and that you and Caroline received that email. Apparently the hedge fund crises of last year have heightened regulatory scrutiny of the funds' derivatives activity. EOL does not want to be subjected to any regulatory oversight. I have not seen the email yet. I will broach the subject with Mark when he returns to the office.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 545 of 1118

FW: Enron Corp. Guaranty

Sender	sara.shackleton@enron.com
Recipients	['sschultz@carrfutures.com']
File	shackleton-s/sent_items/774.

-----Original Message-----

From: Panus, Stephanie Sent: Wednesday, November 21, 2001 9:10 AM To: 'hschiff@carrfut.com' Cc: Shackleton, Sara; Rohauer, Tanya; Glover, Sheila Subject: Enron Corp. Guaranty

Mr. Schiff, Attached for your review is the proposed form of Enron Corp. Guaranty, which will guarantee the obligations of Enron North America Corp. and Enron Capital & Trade Resources International Corp. under their respective agreements with Carr Futures Inc.

Stephanie Panus Senior Legal Specialist Enron Wholesale Services 1400 Smith Street, EB3803C Houston, Texas 77002 ph: 713.345.3249 fax: 713.646.3490 email: stephanie.panus@enron.com

Message 546 of 1118

Re: Glencore - David Porter left me a voice mail yesterday

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com']
File	shackleton-s/sent/5715.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/01/2001 10:00 AM -----

"David Porter" <David.Porter@glencore-us.com> 02/27/2001 01:33 PM

To: Sara.Shackleton@enron.com cc: Subject: Re:

Sara,

A question for you:

Would it be possible to very quickly amend the existing ISDA to add the name Glencore AG? Brant is unable to approve certain trades until this is done and I would rather not wait for the guarantee and credit issues to be resolved as this may take some time.

David

Message 547 of 1118

Re: Cinergy Marketing & Trading LLC

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/all_documents/4359.

How about TODAY or Monday at 9 am? I'll need my prior markup. Sara

Samantha Boyd@ENRON 10/27/2000 03:02 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Cinergy Marketing & Trading LLC

Sara,

I received a phone call from Randy Beeves with Cinergy today. He has provided comments to our latest draft of the Schedule and Credit Support Annex. I would like to discuss those changes with you on Monday. Please let me know if you have any available time.

Samantha M. Boyd Sr. Legal Specialist Enron North America Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 548 of 1118

Ameritex Ventures II, Ltd.

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com', 'julia.chin@enron.com', 'sara.shackleton@enron.com', 'andrea.reed@enron.com', 'teres...]
File	shackleton-s/all_documents/3725.

Attached is a revised proposal sheet and swap confirmation for the captioned underlying partnership interest. The notional value has been changed in both, and EGF has been added as a business unit to the proposal. The prior valuation did not include the SLP/Chewco interest that is covered by the swap. Hopefully, this will correct any confusion.

Julia Chin should substitute the following for the hard copies previously provided to her. If you have any questions, please advise. Mary Cook

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 549 of 1118

Re: Congratulations are in order!

Sender	rod.nelson@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3308.

Thanks, Sara. You've been a great resource in helping me move along in this organization. Maire Heard was here the other day. Reminded me of the good 'ole days back in Houston.

Hope things are going well.

Rod

From: Sara Shackleton on 06/02/2001 18:45 CST To: Rod Nelson/LON/ECT@ECT cc:

Subject: Congratulations are in order!

But you have to keep reading to get the entire message which is: I'm so pleased to hear of your promotion, and, how well deserved. We'll have to celebrate one day.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 550 of 1118

ENA arbitration language

Sender	sara.shackleton@enron.com
Recipients	['richard.sanders@enron.com']
File	shackleton-s/all_documents/9152.

Richard:

This is a first for me. I received the following objection to our standard arbitration language:

"The arbitration does not provide for expedited procedures with limited discovery and limited live testimony. This could take as long as in court and cost more."

Is this a valid objection? If so, how should we amend our language? Or should we be silent as to jurisdiction without waiving any objections (venue, forum) and waive jury trial?

I look forward to hearing from you. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 551 of 1118

David Minns

Sender	joya.davis@enron.com
Recipients	['david.minns@enron.com', 'nella.cappelletto@enron.com', 'peter.keohane@enron.com']
File	shackleton-s/all_documents/11942.

David Minns has joined ECT Legal as Senior Legal Counsel for the Enron Australia office in Sydney. He previously was Senior Counsel with Woodside Petroleum Limited in Perth, Western Australia where he primarily focused on transactions involving oil & gas transactions, and financial derivatives. For Enron Australia, he will be focusing on the legal aspects of the commodity trading and marketing transactions (e.g., gas, power, coal, and financial derivatives) arising out of the Australia office. He will be a member of the Emerging Markets Group reporting to Alan Aronowitz. David's phone number is 011-612-9229-2310 and fax number is 011-612-9229-2350.

Message 552 of 1118

RE: RMT Masters

Sender	sara.shackleton@enron.com
Recipients	['legal <taylor@enron.com>', 'susan.bailey@enron.com']
File	shackleton-s/sent_items/181.

Mark:

Can't these go into the rotation?

Sara

-----Original Message-----

From: Bailey, Susan Sent: Tuesday, October 16, 2001 8:39 AM To: Shackleton, Sara Subject: RMT Masters

Sara,

Please advise if you are still the lawyer who reviews RMT masters, when requested for preparation.

If so, Legal has been requested to prepare an ISDA between RMT and Enron Japan Corp., which shall support their FX transactions.

Let me know, so I can pass this draft on to you for review.

Thanks.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3803A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 Email: Susan.Bailey@enron.com

Message 553 of 1118

Re: California Water Resources - REVISED!

Sender	tracy.ngo@enron.com
Recipients	['samantha.boyd@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/8975.

Samantha/Sara,

Thanks for handling the ISDA today in such a short time frame. I'm gonna try and request some "normal" ISDA paced credit worksheets to try and improve my "firedrill rep" with your team!

Tracy

Samantha Boyd@ENRON 02/06/2001 12:38 PM To: Tracy Ngo/PDX/ECT@ECT, Dale Rasmussen/HOU/ECT@ECT, Christian Yoder/HOU/ECT@ECT cc:

Subject: California Water Resources - REVISED!

Tracy,

Per our telephone conversation, please use this Schedule and Paragraph 13.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Message 554 of 1118

Copy of ISDA Schedule (internal "form")

Sender	sara.shackleton@enron.com
Recipients	['susan.musch@enron.com']
File	shackleton-s/sent/5856.

Susan: This may look confusing! It contains all of our "choices" for preparing the documents. See Part 2 (Tax Reps) and the end of the document which has our "choices" of tax forms.

I thought it might be helpful to be very basic about withholding issues, etc., why we need the tax reps, and what questions we could ask upfront about a party that would help us select an appropriate tax module. We tend to not "think" and expect a party "fill in the blank" when we are preparing draft documents.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 555 of 1118

Houston-Charlotte flights

Sender	sara.shackleton@enron.com
Recipients	['barry.taylorbrill@wachovia.com']
File	shackleton-s/sent_items/391.

Dear Mr. Taylor-Brill:

I believe that the best direct jet service between Houston and Charlotte is via US Air. Continental has fewer flights and uses other carriers (unfamiliar to me).

For example:

USAIR #586 departs Houston at 7:50 am and arrives in Charlotte at 11:10 am [USAIR#1620 departs Houston at 6:30 pm and arrives in Charlotte at 9:46 pm] USAIR #897 departs Charlotte at 5:10 pm and arrives in Houston at 6:59 pm

I am certainly open to other options. Please advise if there is anything further that I can do.

Regards. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 556 of 1118

JEDI I Investments

Sender	mary.cook@enron.com
Recipients	['brian.schwertner@enron.com', 'hope.vargas@enron.com', 'michael.galvan@enron.com']
File	shackleton-s/notes_inbox/951.

For those of you involved in any Raptor equity investments out of JEDI I, I have been advised by Andrea Reed that Chewco Investments purchased a position in JEDI I. Chewco is owned in part by an Enron entity. The result is that Enron entities now have a 96.12% interest in JEDI I (60% ENA + 36.12% EGF based upon Chewco). I hope this is helpful in your review of the Raptor matters. The closing binders are in the file room for you to review if you need to verify the materials.

Thank you. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 557 of 1118

R.V.I. Guaranty Co., Ltd. & Continental Insurance Company

Sender	susan.bailey@enron.com
Recipients	['sara.shackleton@enron.com', 'denis.o'connell@enron.com']
File	shackleton-s/all_documents/9912.

Denis,

Just a follow-up regarding the captioned counterparties. It is my understanding, ISDA Master Agreements have been entered into. As you know, information regarding masters must be entered into our FTA Database under Lotus Notes, as well as copies of the agreements are needed for our files.

Please direct me at the address set forth below: (a) FTA database info, and (b) copies of the executed Master Agreements.

You prompt attention to this request is greatly appreciated.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 558 of 1118

RE: Bear Stearns Securities Corp. ("Bear") - you asked what this

Sender	tom.doukas@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/1125.

We are still doing business with Bear, but we are in the process of winding down the entire book. Considering our future prospects are somewhere between slim and none I doubt any agreements going forward will matter.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, November 15, 2001 4:45 PM To: Doukas, Tom Subject: Bear Stearns Securities Corp. ("Bear") - you asked what this was about

Tom: You sent me documents for Thos. Weisel to clear through Bear.

I guess you are no longer interested in Bear. Am I correct?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 559 of 1118

Raptor Swaps

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com', 'julia.chin@enron.com', 'sara.shackleton@enron.com', 'andrea.reed@enron.com', 'scott...]
File	shackleton-s/all_documents/3736.

The attached swaps will be delivered by hard copy batch, together with the revised proposal sheets and a copy of the legal worksheets, to Gordon McKillop, in Julia Chin's absence, today. Upon receipt, Gordon will attach the valuation data that has been previously provided to Julia Chin by Hope Vargas and coordinate execution.

First, additional publics representing the incremental interests of Chewco, then followed by numerous privates. As of now, we still are working Catalytica and Merlin.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 560 of 1118

Market Disruption - Nuevo Energy Company - in case you receive a

Sender	sara.shackleton@enron.com
Recipients	['s..theriot@enron.com', 'legal <.taylor@enron.com']
File	shackleton-s/sent_items/134.

Mark:

I'll be brief. We received an objection from Nuevo (wants to use Monday, Sept. 10 price). David Andrews (Treasurer) sent the letter and I left him a voice mail. The ENA trader is Bill Berkeland and Bill suggested that Fred handle this customer (since it's Fred's customer). Nuevo neglected to read our ISDA (all standard language) and we actually fall into the "ENA averages two quotes" scenario. Fred should try to negotiate this one. I left Fred a voice mail and Bill will contact Fred in the a.m. Kim is aware of this situation.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 561 of 1118

FW: EY and Millbank

Sender	sara.shackleton@enron.com
Recipients	['paul.puchot@enron.com']
File	shackleton-s/sent_items/319.

Paul, FYI

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, January 24, 2002 9:22 AM To: Tweed, Sheila; Aronowitz, Alan Subject: EY and Millbank

I'm sure this is not new to you but Cindy Ma just called. I guess Raj was trying to schedule a meeting today for lawyers (in/out) to meet for several hours with these guys who are only here today. I punted to you guys. She's asking specifically about strategies for terminated/nonterminated positions and other time sensitive issues. Also wants people like Sager, Hodge, etc.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

*Message 562 of 1118***HEDGE FUND NAMES**

Sender	sara.shackleton@enron.com
Recipients	[frank.sayre@enron.com]
File	shackleton-s/sent/6314.

What's the purpose of this?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/01/2001 08:31 AM -----

Caroline Abramo@ENRON 05/31/2001 05:59 PM

To: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Sara Shackleton/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Paul Radous/Corp/Enron cc: Robyn Zivic/NA/Enron@Enron, Russell Dyk/Corp/Enron@ENRON Subject: HEDGE FUND NAMES

Here's our current list of clients.. please let me know if you have any comments..

Thanks for all your help, Kind Regards, Caroline

*Message 563 of 1118***Re: Cargill Alliant**

Sender	sara.shackleton@enron.com
Recipients	[cheryl.nelson@enron.com]
File	shackleton-s/sent/5275.

Actually, Bob was handling and he knows you will handle. I believe that this master was based upon the Cargill, Incorporated master. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 01/08/2001 05:49 PM

To: sara.shackleton@enron.com cc: Subject: Cargill Alliant

We discussed the possibility of my working on this -- we planned that you would talk to Mary about it first. Let me know the outcome.

I am already working on Cargill, Inc. I am in the process of talking to Mara Alexander.

*Message 564 of 1118***Financial Trading Agreement Database**

Sender	sara.shackleton@enron.com
Recipients	[donna.lowry@enron.com]
File	shackleton-s/sent/6271.

Donna: see if this works! If it does, see "13." which includes our "other types of agreements" (other than master swap agreements)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/25/2001 11:01 AM -----

Tana Jones 06/27/2000 10:11 AM

To: Jeff Nogid/HOU/ECT@ECT, Clint Freeland/Corp/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Financial Trading Agreement Database

Below is the link that will give you access to the referenced database. Call me a x33399 if you have any problems.

Link -->

Message 565 of 1118

RE: FX deals between ENA and Enron Japan Corp.

Sender	cassandra.schultz@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/422.

Thanks. Yes, our group was aware - evidently all the Japan crude trades will be like this, also w/a crude swap w/the Singapore office so Japan is flat.

Cassandra.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 16, 2001 11:21 AM To: Schultz, Cassandra Subject: FX deals between ENA and Enron Japan Corp.

Cassandra:

Just checking to make sure you were aware that currency swaps are being executed between the above Enron offices. I came across this issue in connection with a crude trade I'm looking at for Enron Japan Corp.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 566 of 1118

ISDA

Sender	sara.shackleton@enron.com
Recipients	['paul.radous@enron.com', 'susan.flynn@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/2164.

Paul: We'll await your credit worksheets to begin preparing the ISDA's. Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 05/31/2000 12:37 PM -----

Michael Moulton Sent by: Kimberly Bullock 05/31/2000 12:17 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Paul Radous/Corp/Enron@ENRON Subject: ISDA

Sarah,

Could you please put together an ISDA for the following customers of Michael Moulton to go out via federal express as soon as possible?

1. James W. Bohlig Sr VP & Chief Operating Officer Casella Waste Systems, Inc. 25 Greens Hill Lane Rutland, VT 05701
2. Sean Duffy Sr. Vice President FCR, Inc. 809 West Hill Street Charlotte, NC 28208 704-379-0600

Message 567 of 1118

Open house tonight @ James Gallery ++ Rice Media Center opening

Sender	contactus@jamesgalleryhouston.com
Recipients	['contactus@jamesgalleryhouston.com']
File	shackleton-s/deleted_items/562.

FotoFest 2002 at James Gallery DORNITH DOHERTY New work JOHN SPARAGANA Love Is The Drug ANN STAUTBERG Texas Coast Open House tonight March 7 5:00-8:00pm -Exhibition runs through March 30

FotoFest 2002 at Rice University Media Center (University Boulevard & Stockton Drive, Entrance #8) JOHN SPARAGANA I Wait For You Every Night Opening tonight March 7 5:00-8:00pm -Exhibition runs through April 15th For information contact James Gallery or the Rice University Media Center

james gallery 307 sul ross | houston | tx 77006 713.942.7035 tel | 713.942.7038 fax contactus@jamesgalleryhouston.com
gallery hours: wed-sat 10-5:30 N <http://www.jamesgalleryhouston.com>

Message 568 of 1118

Enron Corp. Guaranty in favor of First Union National Bank ("FUNB")

Sender	sara.shackleton@enron.com
Recipients	['clement.abrams@enron.com']
File	shackleton-s/all_documents/8710.

Hey, Clem:

Hope you had a great New Year!

I'll try to make this easy so that you can respond "yes" or "no":

(1) FUNB wants ENE remain liable for payments covering "any other damages, costs and attorney's fees". Do you agree?

(2) FUNB only wants to make a demand for payment with no strings attached. I'll try to whittle the demand period down from five days to three. Do you agree:

(3) Guaranty to be governed by NY law. Agreed?

I'm sure you enjoyed this little exercise if I hear back from you.

Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 569 of 1118

agreement update

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'theresa.brogan@enron.com', 'aneela.charania@enron.com']
File	shackleton-s/sent/5663.

(1) The ENA Securities Loan Agreement/ENE Guaranty was received by Bear on 2/22. Bear is preparing a form of assignment from ENA to Enron Credit Inc.

(2) JP Morgan sending comments to Futures Agreement

(3) I am reviewing Chase custody agreement. I need info on a legal contact at Chase.

(4) ML Canada repo. Waiting for response.

(4) Enron Credit Inc. accounts. Preparing form of assignment for all three accounts. Cheryl opening the accounts. NOTE: In general, Cheryl will be responsible for opening accounts.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 570 of 1118

Enron & Florida Power & Light Company IDSA Doc's

Sender	sgm@steelhector.com
Recipients	['sara.shackleton@enron.com', 'jason.peters@enron.com']
File	shackleton-s/all_documents/2660.

Jason: Attached for your review please find a black-lined copy of the FPL-Enron ISDA master agreement marked to show changes from your last draft. Also attached are the credit support annex, form of LOC and form of guaranty with our changes to your initial drafts. The changes in this set of drafts are light in the master, a little heavier in the annex and heaviest with respect to the proposed guaranty. Please provide us with your comments or approval of the enclosed drafts. Regards, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 voice (305) 577-7001 fax

- 570710_4.DOC - 603603_1.DOC

Message 571 of 1118

Re: Project Tahiti

Sender	sara.shackleton@enron.com
Recipients	['angela.davis@enron.com']
File	shackleton-s/sent/2319.

Yes. I thought you understood as much from our meeting. I have asked A&K repeatedly to add you to the email list. Also, it was my understanding from Mark Taylor that you would be responsible for the "structured" equity derivatives (with assistance from the swap group as needed). Please let me know if I'm assuming too much. Thanks. Sara

Angela Davis@ENRON 11/08/2000 06:45 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Project Tahiti

You had these documents forwarded to me. Is this now my project?

Angela D. Davis Enron North America Corp. 1400 Smith, Suite 3842 Houston, Texas 77002 Tele. (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 572 of 1118

Re: Allison and Adam's Wedding

Sender	sara.shackleton@enron.com
Recipients	['ssher5dun@aol.com']
File	shackleton-s/sent/5890.

Anita/Steve:

I'm working on the schedule. Please confirm whether Washington (which airport) is closer to ;you. Also, how difficult is it to get from the Baltimore ariport to you? I'll let you know soon. Mike will not be coming with me.

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

SSher5DUN@aol.com 03/25/2001 08:53 PM

To: sshackl@ect.enron.com cc: Subject: Allison and Adam's Wedding

We have not received a response card from you as to whether you are coming. Can you let us know soon (and whether Mike is coming with you)?

Love - Anita and Steve

Message 573 of 1118

Cargill-Alliant, LLC ("CA")

Sender	sara.shackleton@enron.com
Recipients	['edward.sacks@enron.com']
File	shackleton-s/sent/5428.

Ed:

CA has responded with the following comments:

- (1) Additional Event of Default - CA will accept if minimum ratings are set at BBB- or Baa3.
- (2) Financials - no Cargill entities provide quarterly financials as a matter of practice.
- (3) Setoff - will not agree to our usual affiliate setoff language but will agree to setoff under the ISDA or other agreements.

CA has not accepted our cross default threshold language or guaranty pending a determination from their credit group.

Please let me know your response. Thanks. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 574 of 1118***Cadwalader lawyer**

Sender	sara.shackleton@enron.com
Recipients	[alan.aronowitz@enron.com', 'sheila.tweed@enron.com', 'nell.browning@enron.com']
File	shackleton-s/sent_items/365.

Mary Nell:

Mark Ellenberg is the N.Y. Cadwalader lawyer who is assisting Houston on a regular basis (he has an office on our floor and is available through our email system). Mark has asked Michelle Duncan with Cadwalader's U.K. office to contact you to explore the possibility of assisting you with ECTRIC and other trading/bankruptcy issues. I was thinking that the U.S. process for trade termination/evaluation could be replicated in London and a Cadwalader lawyer (with trading experience) could make use of Mark's experience with pre- and post-filing "Enron" issues.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

*Message 575 of 1118***Enron Master Netting Agreements**

Sender	mary.cook@enron.com
Recipients	['rick.antonoff@enron.com', 'alan.aronowitz@enron.com', 'morris.clark@enron.com']
File	shackleton-s/inbox/981.

Attached are clean and redline versions of the "without margining" master netting agreement. The redline is just for your review to discern the changes. I have also included a clean version without the user notes. I will distribute a process memo tomorrow. Please note that even though this does not include margining provisions, the agreement still provides for the reciprocal grant of the security interest in each Group's own payments (see 6 b) and thus, you still need to coordinate with Lech Kalemka at Cadwalader for its perfection.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

*Message 576 of 1118***Canadian "Industrial" / Short Form Financial Master**

Sender	mary.cook@enron.com
Recipients	['peter.keohane@enron.com', 'mary.cook@enron.com', 'greg.johnston@enron.com', 'mark.powell@enron.com', 'brent...']
File	shackleton-s/notes_inbox/2929.

Attached below for your review is a proposed short form master agreement for Canadian use on the basis of our prior conversations. The form is now available for your use under appropriate circumstances. Use of the form will require credit approval and credit worksheet preparation submitted to Houston legal for preparation, similar to the ISDA procedures for credit review, drafting, and negotiation. Please inform your working groups of the foregoing. Susan Bailey will be including this form in our current form bank.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 577 of 1118

Re: City of Glendale ISDA

Sender	sara.shackleton@enron.com
Recipients	['kim.ward@enron.com']
File	shackleton-s/sent/5968.

Kim:

Anytime this afternoon or tomorrow (before noon) is fine.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Kim Ward 04/05/2001 08:38 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: City of Glendale ISDA

Sara,

I would like to set up a conference call with you and my counterparts at the City of Glendale. They have some questions regarding some currency language. Just let me know when you are available and I will set it up with Glendale. I'm sorry I can't be more clear - I got the information off of a voice message. Call me if you have any questions.

Thanks,

Kim

Message 578 of 1118

ISDA Master Agreement

Sender	stephanie.panus@enron.com
Recipients	['nidia.mendoza@enron.com', 'bellm@louisdreyfus.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3028.

Mary Ellen,

Attached for your review is a revised copy of the ISDA Master Agreement between Enron North America Corp. and Louis Dreyfus Plastics LLC. Some of the changes you requested have not been incorporated as some of our requirements have changed since the agreement between ENA and Louis Dreyfus Corporation was executed. We are currently reviewing the form of guaranty forwarded by Louis Dreyfus Corporation and will have comments for you shortly. Please contact either myself or Sara Shackleton to discuss.

We look forward to hearing from you.

Stephanie Panus Sr. Legal Specialist Enron North America Corp. 1400 Smith Street, Suite 3806 Houston, Texas 77002
ph: 713.345.3249 fax: 713.646.3490

Message 579 of 1118

RE: PLI Securities Laws Seminar

Sender	legal <taylor@enron.com>
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/247.

Sounds good to me.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, September 25, 2001 8:58 AM To: Taylor, Mark E (Legal) Subject: PLI Securities Laws Seminar

Mark:

The PLI has a 2-day seminar in Houston on Nov. 5 and 6 which I would like to attend (mega-refresher course for me). The cost is \$1295. Although I have been looking for a seminar about equity derivatives, this seminar will be helpful in the context of ENE forwards and other affiliated equity deals from the securities vantage point. Sara

Let me know if you would like to see the brochure.

Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 580 of 1118

Re: Monday Meeting

Sender	susan.flynn@enron.com
Recipients	['carol.clair@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/2488.

Monday at 10:00 a.m. is fine. Attached is my updated work status memo.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Carol St Clair 06/22/2000 05:35 PM

To: Susan Flynn/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT Subject: Monday Meeting

Susan: Sara and I would like to meet with you sometime on Monday to go over all outstanding work items so we are aware of what can be accomplished before you leave and what may need to be given to the other paralegals. Can we do that at 10 and can you send to us before then an updated list of your outstanding work assignments? Thanks.

Carol

Message 581 of 1118

EDIDE - ADR	
Sender	susan.flynn@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1617.

FYI - Re: opening of brokerage account for Rafael Rangel.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 07/05/2000 08:25 AM -----

Florencia Groppo <florence.groppo@hds.com.ar> 07/03/2000 08:06 PM Please respond to "florence.groppo@hds.com.ar"

To: "'Nancy Muchmore'" <nancy.muchmore@enron.com> cc: "'Susan Flynn'" <Susan.Flynn@enron.com> Subject: EDIDE - ADR

Dear Nancy, In connection with the mail I sent you on June 24, I need to know in what status is the deposit of the ADRs in the account of EDIDE and the conversion into TGS shares. Best regards. Florencia Groppo

Message 582 of 1118

RE: Emergency Password Reset	
Sender	janette.oquendo@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9931.

NT Pw=banker01!

Thanks, Janette

-----Original Message-----

From: Shackleton, Sara Sent: Monday, March 19, 2001 4:04 PM To: Oquendo, Janette Subject: Emergency Password Reset

Samantha Boyd had a death in her family early this morning and I do not know when she will return to work. I do not know her computer password she is working on time sensitive documents with correspondence being done through email. Please reset her computer password and lotus notes password so I may access the correspondence. Please notify me of the new passwords.

Thank you,

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 583 of 1118

Re: Brokerage Agreements - Checklist	
Sender	sara.shackleton@enron.com
Recipients	['cheryl.nelson@enron.com']
File	shackleton-s/all_documents/8693.

the attachment?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 01/10/2001 03:54 PM

To: aneela.chavania@enron.com; eddy.daniels@enron.com; samantha.boyd@enron.com cc: sara.shackleton@enron.com Subject: Brokerage Agreements - Checklist

Hi Aneela & Eddy:

Attached please find the current Checklist of Information required to open such accounts.

I have replaced Sara as the attorney coordinating the opening of brokerage agreements. Thus, you can address all questions and correspondence to me, instead of Sara. You can call me at x5-4693.

Message 584 of 1118

Re: ISDA Confirms for Equity Trades

Sender	sara.shackleton@enron.com
Recipients	[jorge.garcia@enron.com]
File	shackleton-s/all_documents/9587.

I don't know anything about these transactions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jorge A Garcia@ENRON 03/01/2001 01:35 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Aneela Charania/HOU/ECT@ECT Subject: ISDA Confirms for Equity Trades

Good Afternoon Sara,

I wanted to follow up with you regarding the creation and approval of ISDA Confirmations for the following equity trades that I understand Laurel had discussed with you previously.

1) Edison International- Swap with Enron Europe Ltd. (2 in total) 2) PG & E- Swap with Enron Europe Ltd. (3 in total)

Please advise.

Regards,

Jorge

Message 585 of 1118

Re: Project PATS

Sender	sara.shackleton@enron.com
Recipients	[who@velaw.com]
File	shackleton-s/sent/1534.

I'll get to this later today. Call if you have immediate issues. Sara

"Ho, Wendy" <who@velaw.com> 06/08/2000 05:15 PM

To: "Shackleton, Sara (Enron)" <sara.shackleton@enron.com> cc: Subject: Project PATS

Hi Sara,

Gareth and I were going over the documents this morning and was wondering if you have any comments on the revised Swaps (the three currency swaps and the two option swaps). Could you fax me your comments?

Could you also forward to me the Master Agreement btw UBS and Enron and Enron's std language with respect to set offs, jurisdiction etc.. (as per your e-mail two weeks ago). Thanks.

Wendy Ho Vinson & Elkins 1001 Fannin St. Suite 2300 Houston, TX 77002 tel: 713-758-3895 fax: 713-615-5849

Message 586 of 1118

Public Utility District No. 1 of Benton County

Sender	samantha.boyd@enron.com
Recipients	['kimberly.allen@enron.com', 'laurel.adams@enron.com', 'diane.anderson@enron.com']
File	shackleton-s/deleted_items/176.

We have received an executed financial master agreement:

Type of Agreement: ISDA Master Agreement (Multicurrency-Cross Border)

Effective Date: September 27, 2001

Enron Entity: Enron North America Corp.

Counterparty: Public Utility District No. 1 of Benton County

Transactions Covered: The agreement is limited to natural gas, electricity or other energy used for the production of electricity.

Confirming Entity: Enron North America Corp.

Governing Law: New York

Special Handling Requirements: No special handling requirements

Copies will be distributed

Samantha M. Boyd Senior Legal Specialist Enron Wholesale Services 1400 Smith Street, EB3803 Houston, Texas 77002
Ph: (713) 853-9188 Fax: (713) 646-3490

Message 587 of 1118

Consolidated Edison Solutions, Inc.

Sender	sara.shackleton@enron.com
Recipients	['janelle.scheuer@enron.com']
File	shackleton-s/sent/5437.

Janelle:

I reviewed the email of 1/19/01 from Ben Chu. There are only 2 items listed:

- (1) I will beef up the language to make it absolutely clear that ENA can select the price only if it hears from ConEd first.
- (2) I am not sure that I agree about the NY ISO changing pricing after 30 days. We will need to discuss. I have heard that this is not as frequent an occurrence as in the past and we are using the same mechanism as the ISDA procedure for change in prices.

(3) Other than the foregoing, he had no other comments exept to say that he would review again.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 588 of 1118

Legal Agreement Status from Aneela

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'stephanie.panus@enron.com', 'cheryl.nelson@enron.com']
File	shackleton-s/all_documents/9787.

Attached is the most recent listing from Aneela. Please bring to our 1:30 meeting this afternoon.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/14/2001 08:30 AM

Eric Tipp@ENRON 03/14/2001 08:12 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Legal Agreement Status from Aneela

Sara,

Here's the updated status report as of the 5th.

I realize Cheryl has been working on some of this. I would appreciate it if your group could update the list as far as status is concerned and send the file back to me.

Thanks, Aneela

Message 589 of 1118

RE: Blake Estes

Sender	becky.spencer@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/583.

I will give Blake a copy of our phone list.

Margaret Doucette is the person setting up id's and requesting program clearance. I will let her know about Blake needing access to Outlook. Please be aware that the requests have been taking a few days before they are completed. Computer guys are staffed!

Becky

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, March 12, 2002 11:56 AM To: Spencer, Becky Subject: Blake Estes

Can you please give Blake a copy of a phone list? Also, can Blake get security clearance for our email system?

He is going to have a security badge in a few days.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

*Message 590 of 1118***Goldman, Sachs & Co. - Electronic Trading Agreement**

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'cassandra.schultz@enron.com', 'stephanie.panus@enron.com', 'cheryl.nelson@enron.c...]
File	shackleton-s/sent/5261.

Earlier this year, I negotiated this agreement with GS&C. I cannot locate the agreement so GS&C is sending a copy. The Enron party is ENA. We now need to amend the authorized trader list which I will email to you. ENA's use of GS&C's platform is for trading US treasuries, agencies, money market, corporates, JGB's. We need to:

- (1) remove Harry Arora (who was the sole authorized trader)
- (2) add the following: Darren Delage Shane Dallmann Ellen Su Pushkar Shahi Gary Hickerson

THIS IS A VERY HIGH PRIORITY FOR GARY AND WE SHOULD TRY TO COMPLETE TODAY.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 591 of 1118***Re: ISDA Credit Derivative Definitions 1999**

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/sent/1996.

I have a copy AND Taffy should have a copy because she is preparing the notebooks with all of the definitions.

Mary Cook 09/11/2000 05:42 PM

To: Robert Bruce/NA/Enron@Enron, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Jason Peters/Corp/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT cc: Subject: ISDA Credit Derivative Definitions 1999

Does anyone have these? If so, let me know so I can get a copy ASAP. Thanks. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

*Message 592 of 1118***Optima Energy Pty Ltd - ISDA**

Sender	susan.flynn@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/2591.

More on Australia. I asked Laurie to provide a copy to us.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 07/05/2000 11:23 AM -----

Laurie Mayer 05/08/2000 11:23 AM

To: David Minns/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jerven Zhang/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Jana Morse/Corp/Enron@Enron, Susan Flynn/HOU/ECT@ECT Subject: Optima Energy Pty Ltd - ISDA

David, Jana brought to my attention that we received only a copy of the Schedule to the ISDA Master Agreement for Optima. Would you please have your assistant fax a copy of the ISDA to us at your earliest convenience? Thank you.
Laurie

Message 593 of 1118

Welch Foods Inc.

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'jason.williams@enron.com', 'cheryl.nelson@enron.com']
File	shackleton-s/notes_inbox/2142.

I got a call from Jason Williams on this file. As it turns out, in his review of the annual report of Welch he noted that it stated that Welch is a cooperative. The original draft of the ISDA was not drafted with this knowledge as there was no indication from any source that Welch was a cooperative. This fact needs to be confirmed, and if Welch is a cooperative, you will need to research the issue. I attach for you a letter of issues sent to outside counsel last year when we were investigating another proposed cooperative counterparty. Hope this will help.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 594 of 1118

Re: equity trading in the U.K.

Sender	justin.boyd@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2778.

hi sara

i'll set something up with you this week if that suits you

...and yes i'll be the conference - see you then!

j

From: Sara Shackleton on 21/03/2001 11:59 CST To: Justin Boyd/LON/ECT@ECT cc:

Subject: equity trading in the U.K.

Justin: I haven't heard from you in some time now. How is everything? Are you going to be in San Antonio?

I wanted to set up a short call to discuss equity trading and what Houston and London can do (are doing?) to stay abreast of activity and developments on the trading desks. Please let me know a convenient time for you.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 595 of 1118

GS&Co Corporate Account Agreement

Sender	sara.shackleton@enron.com
Recipients	['nora.dobin@enron.com']
File	shackleton-s/sent_items/276.

Nora:

I checked two other ENE subsidiary agreements and found:

(1) We have successfully negotiated a limitation of liability clause (ENE's format)

(2) We have been able to amend Par. 2 to "delete all references to affiliates of GS&Co, including the words "or any of your affiliates" and "each of your affiliates" wherever such words appear AND delete the words "without notice to Client " in the sixth line and replacing them with "without prior notice to Client, but with reasonable notice thereafter" AND deletethe last sentence of Section 2

(3) Section 4: same as (2) above

Let me know if I can help further -

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 596 of 1118

Delivery Status Notification (Relay)

Sender	postmaster@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/495.

This is an automatically generated Delivery Status Notification.

Your message has been successfully relayed to the following recipients, but the requested delivery status notifications may not be generated by the destination.

pushkar_shahi@hotmail.com

----- Inline attachment follows -----

From: </O=ENRON/OU=NA/CN=RECIPIENTS/CN=SSHACKL> To: pushkar_shahi@hotmail.com Date: Friday, February 22, 2002 9:33:29 GMT Subject:

Pushkar:

If you have a list of Dallas funds, I would be very interested. Also, please stay in touch and best of luck! You can email at Enron or at sshackl@swbell.net. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

*Message 597 of 1118***Temple Inland/Inland Paperboard and Packaging**

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/all_documents/8817.

Susan: Did you ever receive this from Paul? If not, you should please call him. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/25/2001 03:14 PM -----

Paul Radous@ENRON 01/19/2001 02:22 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Jim Crump/Corp/Enron@ENRON Subject: Temple Inland/Inland Paperboard and Packaging

Sara,

I will be sending to your legal assistant (under separate cover) a credit worksheet for a new ISDA with Inland Paperboard & Packaging, Inc. This worksheet will reflect a \$10MM credit support threshold, with a \$15MM guaranty from Temple Inland.

Paul

*Message 598 of 1118***Re: Enron Capital & Trade Resources International Corp**

Sender	sara.shackleton@enron.com
Recipients	['steven.kessler@db.com']
File	shackleton-s/sent/5522.

Steve:

I know that Tana has already answered your immediate question. I am responding because Enron Corp. is also asking for an ISDA. I am the Enron Corp. lawyer. Can you also send a draft master to me? Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

steven.kessler@db.com 02/08/2001 12:49 PM

To: sara.shackleton@enron.com, tana.jones@enron.com cc: Subject: Enron Capital & Trade Resources International Corp

Hi Sara/Tana--

I've been told to get started on Enron Capital & Trade Resources International Corp. ISDA. Is this handled out of Houston or in UK (or otherwise)?

Thanks and regards,

Steve

Message 599 of 1118

RE: ISDA request for FX desk

Sender	tanya.rohauer@enron.com
Recipients	[william.stuart@enron.com', 'sara.shackleton@enron.com', 'pushkar.shahi@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/notes_inbox/2150.

done

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, May 23, 2001 10:41 AM To: Rohauer, Tanya Cc: Shahi, Pushkar; Stuart III, William; Adams, Laurel Subject: ISDA request for FX desk

Tanya:

Our FX desk has requested an ISDA Master Agreement for ENA's FX trades with: Credit Suisse First Boston, London Branch.

The entity with which ENA already has an executed master (effective 4/21/93) is Credit Suisse First Boston International, which trades derivatives.

I will have the name of the CSFB lawyer this afternoon.

Can you please prepare a credit worksheet? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 600 of 1118

Small Ventures USA, LLC

Sender	sara.shackleton@enron.com
Recipients	['russell.diamond@enron.com', 'susan.flynn@enron.com', 'sheetal.patel@enron.com']
File	shackleton-s/all_documents/2373.

Sheetal: Please note that ENA will ALWAYS want to include an Annex B with this Counterparty. Legal will need to review each time. Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 06/13/2000 11:24 AM -----

Susan Flynn 06/06/2000 07:48 PM

To: Sheetal Patel/HOU/ECT@ECT cc: Russell Diamond/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT Subject: Small Ventures USA, LLC

Here is Annex B for the Omnibus Conf. for all six deals for the referenced CP.

Here is confirmation (which you emailed to me and I revised for options). Use this confirm format for all Option transactions for this CP.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 601 of 1118

RE: Chase Master Agreement - "no more confirms"

Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/369.

in gils office at 9:30 - i'll be there. will look into but i think we need a brand new isda

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 09, 2001 8:26 AM To: Rohauer, Tanya Cc: Taylor, Mark E (Legal); Koehler, Anne C. Subject: Chase Master Agreement - "no more confirms"

Tanya:

EOL is asking for the Chase master to be amended to eliminate the need for confirms on EOL trades. Do we need to meet to determine which Chase master (i.e., Chase or JP Morgan) should be amended (or both)? Do we want to begin the upgrade process? Please call.

Also, are you available for the 9:30 Hanover call?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 602 of 1118

confirming financial transactions for Allegheny Energy Supply

Sender	sara.shackleton@enron.com
Recipients	['janie.aguayo@enron.com', 'julie.brewer@enron.com', 'larry.hunter@enron.com']
File	shackleton-s/sent/5972.

All:

Effective March 19, 2001, AESC and ENA entered into a "Side Letter Agreement" which is an ISDA Master Agreement from a legal perspective. ENA and AESC have agreed this morning to negotiate and execute a new ISDA Master Agreement by April 13, 2001. Until that date, however, we can confirm financial trades between ENA and AESC under the Side Letter Agreement. Attached below is a markup of an ISDA form of confirmation which contains language for these confirmations (the draft was prepared for Kim Hundl handling financial power).

Please let me know if you have any questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 603 of 1118

RE: Agency Agreement dated August 6, 2001 between Enron North

Sender	alan.aronowitz@enron.com
Recipients	['donna.lowry@enron.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'wayne.gresham@enron.com']
File	shackleton-s/inbox/174.

Sara:

I have not seen the notice, but it would relate to a coal makrketing agency agreement between Anker and ENA, as agent.
Could you have forwarded to me.

Alan

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 27, 2001 1:04 PM To: Lowry, Donna Cc: Panus, Stephanie; Aronowitz, Alan Subject: Agency Agreement dated August 6, 2001 between Enron North America Corp. and Anker Coal Group, Inc.

Donna:

A termination notice of the foregoing agreement was sent to your attention. Do you know what this agreement is? Could it be related to Enron Credit Limited (which had a position in Anker paper)?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 604 of 1118

I would like to speak with you

Sender	sara.shackleton@enron.com
Recipients	['mark.ellenberg@enron.com']
File	shackleton-s/sent_items/411.

Mark:

I don't know what your schedule is this week but I want to discuss ENA's response to counterparties who do not respond to our request for settlement calculations and methodology (e.g., Goldman Sachs Capital Markets, L.P., J.Aron, etc.). I understand that you may not be the lawyer to handle a response; this is a "protocol" issue.

Also, on the financial trading side, I have another "protocol" issue with respect to nonpayment by non-terminated counterparties (under the ISDA, GTC's or Master Energy Price Swap Agreement). Specifically, let's discuss ENA's approach and use of a possible "test case" in this area.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 605 of 1118

ISDA 2000 Supplement to the 1993 Commodity Derivatives Definitions

Sender	sara.shackleton@enron.com
Recipients	['robert.bruce@enron.com']
File	shackleton-s/sent/5374.

Bob:

Thanks for the memo and we should discuss in a future meeting dedicated to form changes.

If we adopt the 2000 Definitions in our Schedule, we will also need to change the existing reference in Part 6(f)(iii) to "Negotiated Fallback" (to Section 7.5(c)(iv))

Also, the term "Relevant Price" is used in the "Negotiated Fallback" definition. We should clarify whether we need to retain Part 6(f)(iv) of the Schedule when using "Negotiated Fallback" or whether we intend that "Fallback Reference Dealers" be an entirely separate and distinct fallback (i.e. the 4th fallback in our Schedule).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 606 of 1118

Re: Wednesday, Dec. 6

Sender	sara.shackleton@enron.com
Recipients	['mary.ogden@enron.com']
File	shackleton-s/sent/2485.

Mary: Thanks so very much! And you're absolutely right about it being a good day! Sara

Mary Ogden 12/04/2000 04:26 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Wednesday, Dec. 6

Dear Sara: I talked to Ofelia this afternoon and she said she'll be happy to make the change between us. Therefore, she'll go to your house this Wednesday, Dec. 6. She did want me to tell you, though, that she'll arrive a little later than usual because she has to get some kind of a lab test early in the morning.

It's always a good day when Ofelia comes over!

Regards, Mary

Mary C. Ogden Legal Specialist Enron North America Corp./Legal 1400 Smith Street, EB 3876d Houston, TX 77002-7361
Phone: 713-853-7796 Fax: 713-646-3490 Mary.Ogden@enron.com

Message 607 of 1118

Re:

Sender	jonathan.marsh@enron.com
Recipients	['sara.shackleton@enron.com', 'robert.bruce@enron.com', 'justin.boyd@enron.com']
File	shackleton-s/all_documents/10174.

Bob

I spoke to Sheila yesterday and she will be joining the call. I'll ask her to give you a call about Japan

Regards Jonathan

From: Robert Bruce on 28/03/2001 12:45 CDT Sent by: Robert Bruce To: justin.boyd@enron.com, Jonathan Marsh/EU/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT

Subject:

Hello London, this is Bob Bruce -- I will be joining Sara on the conference call you have scheduled for Friday (3/27).

If Sheila Glover is still in London, I think her participation in the call would be very valuable if she is available.

p.s. if either of you run across Sheila prior to the call, could you ask her to call me re Japan? thanks, Bob

Robert E. Bruce Senior Counsel Enron Wholesale Services T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 608 of 1118

Re: Papers for Raptor Meeting Tuesday

Sender	scott.sefton@enron.com
Recipients	['travis.mccullough@enron.com', 'lisa.mellencamp@enron.com', 'mary.cook@enron.com']
File	shackleton-s/all_documents/3852.

Although I'm happy to discuss this at our meeting tomorrow, I don't think the draft process document describes a role for Global Finance legal that we can properly fulfill.

MARY COOK 09/25/2000 02:14 PM To: Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Scott Sefton/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron cc: Subject: Papers for Raptor Meeting Tuesday

See attached for your review prior to meeting, Tuesday 9:30 38C1. Thanks. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 609 of 1118

Re: Representations for ISDA Transaction

Sender	sara.shackleton@enron.com
Recipients	['dick.varner@eweb.eugene.or.us', 'holli.krebs@enron.com']
File	shackleton-s/sent/6028.

Dick:

Attached are my comments to the certificates. We will need to attach the form of confirmation to be certain that each particular transaction is authorized. Let me know if you have any questions. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Dick D VARNER" <Dick.Varner@EWEB.Eugene.OR.US> 04/12/2001 11:09 AM

To: <sara.shackleton@enron.com> cc: <Holli.Krebs@enron.com>, "Bert I DUNN" <Bert.Dunn@EWEB.Eugene.OR.US>
Subject: Representations for ISDA Transaction

Attached are drafts of two certificates which I believe will satisfy you needs. Please get back to me with any comments.

- ISDA Confirm Representations

Message 610 of 1118

Enron Global Custody and Clearance Agreement

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com']
File	shackleton-s/sent/6309.

Here it is

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/31/2001 03:48 PM -----

Nancy.K.Callahan@chase.com 05/31/2001 01:45 PM

To: Sara.shackleton@enron.com cc: Gennaro.Contella@chase.com Subject: Enron Global Custody and Clearance Agreement

As requested, attached is the final Agreement which I believe reflects the revisions we discussed this morning. If this is acceptable, please have the Agreement executed on behalf of Enron and return the necessary counterparts to me for signature by Chase. I will then return fully executed copies to you. (See attached file: Enron.doc) - Enron.doc

Message 611 of 1118

Valentis and CD Holdings - email addresses

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/6143.

Please don't email to the parties below until we have a final conversation.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/25/2001 01:58 PM -----

Caroline Abramo@ENRON 04/25/2001 06:42 AM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Corp/Enron Subject: Valentis and CD Holdings

Please send the draft ISDAS to:

Marty Lifgren- mlifgr@wexford.com Charles Davidson- cdavid@wexford.com

We agreed that the fastest way to proceed wwas to send the ISDA or can we still send the deemed ISDA?.

Message 612 of 1118

Lehman Bros. forwards

Sender	sara.shackleton@enron.com
Recipients	['clint.freeland@enron.com', 'jim.armogida@enron.com', 'rex.rogers@enron.com', 'jeff.nogid@enron.com']
File	shackleton-s/sent_items/124.

Clint:

Lehman called to discuss the two (2) forwards on 9/28/01 (2,245,761 shares at \$56.7925 and 2,434,339 shares at \$67.5243, respectively) and roll of the 9/18/01 400,000 share forward into the new forwards. It appears that you also rolled all of the five (5) remaining forwards which terminated on 10/3/01 into the two new forwards.

Lehman is sending three new confirmations for the foregoing transactions.

Please verify with deal tickets. I have the ticket for the 400,000 share trade.

Also, can you please verify final confirm format (i.e., blackline sent noon on 9/26/01). I have Jim's comment for "material information".

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 613 of 1118

Article (	
Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com', 'mary.cook@enron.com']
File	shackleton-s/all_documents/11341.

Mary and Sara: I spoke with Lech about the Article 9 questions. He is going to send me some articles that they have written which I will send to you. He also confirmed that the cash perfection issue has not changed under new Article 9 although his view on it was that this type of collateral under the UCC is more like a deposit account than "money" which, under common law principles, gets perfected through the exercise of dominion and control over the cash. Under the new Article 9, deposit accounts are covered and the new Article 9 codifies the common law control test. He also expressed a view that it may take longer than July 1st for NY to adopt the new Article 9.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 614 of 1118

Re: Merrill Lynch International Bank Ltd.	
Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3194.

Sara,

I have been unable to locate the executed agreement. I will contact Merrill Lynch and see if they can provide a copy. However, if we need an original, perhaps we should have it executed again.

From: Sara Shackleton@ECT on 02/21/2001 09:27 AM To: Stephanie Panus/NA/Enron@Enron cc:

Subject: Merrill Lynch International Bank Ltd.

Stephanie:

I have the blue file in my office and a marked version of the ENE guaranty. However, we are missing the recent assignment from the NY office to London which you and I discussed last week. I was waiting for you to figure out whether the assignment is MIA. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 615 of 1118

RE: Can we have a conference call Wednesday, Feb. 6 at approx. 8:30

Sender	ted.murphy@enron.com
Recipients	['sara.shackleton@enron.com', 'nell.browning@enron.com']
File	shackleton-s/inbox/670.

let's hold off on this.

-----Original Message-----

From: Shackleton, Sara Sent: 05 February 2002 23:23 To: Browning, Mary Nell; Murphy, Ted Subject: Can we have a conference call Wednesday, Feb. 6 at approx. 8:30 a.m. Houston time? Importance: High

Please leave me a voice mail or email and advise what phone number to call. Alan Aronowitz (if available), Mark Ellenberg (Cadwalader in New York) and I would like to speak with you about the possibility of immediate assistance which will blend into the Houston process and institutional knowledge.

We are anxious to speak with you before the dial-in conference call.

Please let me know. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 616 of 1118

Enron Corp. guaranties

Sender	sara.shackleton@enron.com
Recipients	['william.bradford@enron.com', 'tanya.rohauer@enron.com']
File	shackleton-s/sent/5595.

I believe that there is a general consensus that Clem needs assistance to respond timely to the mounting number of guaranties requested from Enron Corp. In speaking with Clem, it seems that any evidence of increased and increasing business and demand for guaranties will be helpful for him to obtain help. Would your group be able to put together some facts and projections which might address the continuing demand for new guaranties? Since you are the first (and most important) point of contact for evaluating potential business, I think that your input would be extremely valuable for Clem to "plead his case."

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 617 of 1118

forward confirmations

Sender	sara.shackleton@enron.com
Recipients	['william.stuart@enron.com', 'patrigey@daishowa.ca', 'brad.kirchhofer@enron.com']
File	shackleton-s/all_documents/9597.

Pat:

I've finished reviewing the confirms and am missing the following FX confirmations:

- (1) National Bank of Canada 4/25/01 maturity
- (2) Comerica 4/17/01 maturity
- (2) Scotia Bank maturities for 5/8/01, 6/8/01, 7/8/01 and 8/8/01

Also, if you have added more transactions beyond your January 31, 2001 summary, we would like copies.

Other than with respect to the two Forward Extras with Bank of America, are there any restrictions in your credit agreements with the various banks that require notice and/or consent (with respect to forward positions) when there is a change of ownership, etc. (as to Daishowa)?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 618 of 1118

Re: status

Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com', 'brent.hendry@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/9410.

Caroline:

I am reviewing Moore comments. Brent Hendry is handling Catequil. I don't know what Paloma is.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 02/23/2001 10:59 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Paul Radous/Corp/Enron@ENRON, Mog Heu/NA/Enron@Enron Subject: status

Sara- can you please let me know the status of the Paloma and Moore documents?

On Paloma, I was under the impression all the points were agreed- are we just waiting for them to send back the signed doc?

Moore- any sticking points that I can talk to their business line about.?

Catequil- have they sent back another draft yet?

Thanks very much, Caroline...

Message 619 of 1118

CFD Confirmation

Sender	sara.shackleton@enron.com
Recipients	['melissa.murphy@enron.com']
File	shackleton-s/sent/2461.

----- Forwarded by Sara Shackleton/HOU/ECT on 11/29/2000 05:45 PM -----

Dennis De Cuir <dennis@ddecuir.com> 11/28/2000 08:19 PM

To: Sara Shackleton <sara.shackleton@enron.com> cc: Dave Kolk <dkolk@compenergy.com> Subject: CFD Confirmation

Sara,

Is the attachment the form of confirmation that would be employed for a Enron/SCWC "contract for differences" transaction? I pulled it from the ISDA website you mentioned. For Dave's benefit, the site is www.isda.org. Sara, Dave advises SCWC on energy matters.

-- Dennis

Dennis W. De Cuir A Law Corporation 2999 Douglas Boulevard, Suite 325 Roseville, California 95661

(916) 788-1022 Telephone (916) 788-1023 Facsimile dennis@ddecuir.com Email

This is a privileged and confidential communication.

- shortconf_matrix.pdf

Message 620 of 1118

RE: Interstate Resources ("IR")

Sender	kevin.sweeney@enron.com
Recipients	['sara.shackleton@enron.com', 'robert.bruce@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/inbox/794.

Scanning through Tagg, I only see this transaction with the below counterparty

-----Original Message-----

From: Shackleton, Sara Sent: Monday, March 11, 2002 4:14 PM To: Sweeney, Kevin Cc: Bruce, Robert; Panus, Stephanie Subject: Interstate Resources ("IR")

I just received two letters from IR dated 12/6/01 and 2/1/02 which were probably in a black hole somewhere or on Elliot Bonner's desk. IR is terminating Commodity Swap Y810701 and demanding payment from ENA.

Kevin, can you please confirm that Y810701 is the only active financial swap between the two parties? If it is not, then we cannot reflect that IR has terminated its swap(s). We will also need

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 621 of 1118

Re: Salt River Project ("SRP")

Sender	kim.ward@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2429.

Sara,

I am available all day wednesday but will be out of the office on Thursday. Let me know when you would like to meet.

Thanks,

Kim

From: Sara Shackleton on 04/20/2001 04:33 PM To: Jason R Williams/Enron@EnronXGate, Kim Ward/HOU/ECT@ECT
cc: Subject: Salt River Project ("SRP")

Just spoke with Mark Russell. SRP will be in Houston next week on Wednesday and Thursday and would like to meet to discuss the ISDA with legal and credit. I told Mark that I was available Wed. and Thurs. morning. Are you guys available at the same time?

Jay - please call me with your bond rating info so that I can email a draft agreement to SRP.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 622 of 1118

Re: Conference Room

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/all_documents/8813.

Kaye: 10 am is good.

Would you please invite the paralegals and lawyers in the swap group "to please plan to attend a meeting to discuss and learn about Confirmations and Transactions" at 10 am tomorrow, etc.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Kaye Ellis 01/25/2001 01:55 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Conference Room

The only time a conference room is available on Friday afternoon is from 1- 2 pm. Brent said people are not back from lunch by 1 pm, so he had me block from 10 am to 12 noon. He said the mtg. will only last an hour and you can tell me what time between 10 & 12 you want to have the meeting. Just let me know.

Message 623 of 1118

ISDA for EECC

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent/5910.

Susan:

Are you the "someone" who will prepare execution copies? Strange.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 08:26 AM

John Schwartzenburg@ENRON_DEVELOPMENT 03/28/2001 06:54 AM

To: Sara Shackleton@ECT, Keith Marlow/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: ISDA for EECC

Keith Marlow, our CFO, has finished his review of the ISDA forms you guys sent to us. He is not certain we need it, but has no objection to executing it. We have no changes. Please have someone prepare execution copies of the agreement and exhibits and send two sets over to us for signature by EECC.

Thanks.

JWVS

Message 624 of 1118

Prime Brokerage Documents

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'cheryl.nelson@enron.com']
File	shackleton-s/sent/5291.

She forgot both of you!!!!!!!!!!!!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/10/2001 02:51 PM -----

Aneela Charania 01/10/2001 02:47 PM

To: Eddy Daniels/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Prime Brokerage Documents

Eddy,

Attached below are some of the documents that need to be completed in order to open a new account for ECTMI Trutta Holdings, LP. Sara Shackleton will forward the additional documents to you. Please send me all original documents as they are executed so that I can send them to Morgan Stanley.

Regards, Aneela

- New Account Form.DOC

- W-9 Form.pdf - Proxy Disclosure Agr.doc

Message 625 of 1118

Samantha Boyd

Sender	mary.cook@enron.com
Recipients	['angela.davis@enron.com', 'anne.koehler@enron.com', 'becky.spencer@enron.com']
File	shackleton-s/notes_inbox/2531.

Samantha will not be returning for an additional and yet undetermined number of weeks. In light of this, I reviewed the matters remaining in her office and have distributed them to a number of you for further review and handling in accordance with assigned files and areas. If you have any questions about any of those matters, please stop by. Further, with respect to other files for which Samantha remains the assigned paralegal pursuant to the trading data base, any attorney needing paralegal support during the course of work on the file should please see me to coordinate reassignments to other paralegals. Thank you all.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 626 of 1118

IOU's and "Additional Event of Default"

Sender	sara.shackleton@enron.com
Recipients	[mark.taylor@enron.com]
File	shackleton-s/sent/5748.

Mark: I just received a copy of my "IOU/municipal" chart from last year with an undated note from you about our omnibus format/IOU's. I would like to speak with you especially since I'm speaking with credit about municipals on Wednesday.

As a practical matter, I'm not sure whether we even transact with utilities on the omnibus. Perhaps Tana can answer the question as to online trading and the confirmation desk as to offline trading. Secondly, I'm not sure how often the Additional Event of Default is successfully negotiated into the ISDA Agreement. The latter point might be worth an email to the lawyers.

Do you have a few minutes today?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 627 of 1118

N.Y State Electric & Gas Corporation ("NY")

Sender	sara.shackleton@enron.com
Recipients	[jpeters@andrews-kurth.com]
File	shackleton-s/sent/5887.

Hey, Jason:

Hope you're doing alright. I received a call from NY and before I called back, I checked the infamous Lotus Notes. It seems that you were going to send a letter to NY summarizing the outstanding issues (I think there was only one issue). Please let me know if this was ever done. Thanks.

On a sad note, I don't know if you heard but Samantha's 19-month old daughter (adoption not final) was killed in a tragic car accident last week. The child managed to crawl under the car while it was in the driveway and Sam didn't see her. Did you really get to know Samantha? If so, and if you would like her home address, please let me know.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 628 of 1118

RE: RMT Masters

Sender	sara.shackleton@enron.com
Recipients	[susan.bailey@enron.com]
File	shackleton-s/sent_items/188.

Susan:

I'll continue to review the RMT masters and these should be included in the attorney rotation which Mark should mention at our swap meeting. Let's discuss the recent changes to the form.

Sara

-----Original Message-----

From: Bailey, Susan Sent: Tuesday, October 16, 2001 8:39 AM To: Shackleton, Sara Subject: RMT Masters

Sara,

Please advise if you are still the lawyer who reviews RMT masters, when requested for preparation.

If so, Legal has been requested to prepare an ISDA between RMT and Enron Japan Corp., which shall support their FX transactions.

Let me know, so I can pass this draft on to you for review.

Thanks.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3803A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 Email: Susan.Bailey@enron.com

Message 629 of 1118

Oregon Laws Website

Sender	jdeason@chbh.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/14.

Sara -- A link to the Oregon Revised Statutes and the Oregon Constitution on-line can be found at www.state.or.us

Jim Deason Cable Huston Benedict Haagensen & Lloyd, LLP Suite 2000, 1001 SW Fifth Avenue Portland, OR 97204 503.224.3092 503.224.3176 (fax) email: jdeason@chbh.com

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Message 630 of 1118

FIMAT Canada, Inc. Customer Agreement

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com']
File	shackleton-s/sent_items/274.

Sheila: attached is the markup I am preparing to send to FIMAT Canada. Some of the redlining reflects ENA's prior agreement with FIMAT USA, Inc. A few things for you to note and we can chat quickly:

- (1) Par. 5 - will we agree to a fee schedule now or "as agreed to from time to time"?
- (2) Par. 7 - I have requested the interest rate schedule. Alternatively, I have "borrowed" language from the FIMAT USA, Inc. agreement. Which do you think is best?
- (3) Par. 8 - is the reference to CAD50,000 for speculative accounts alright? Or will this be simply a hedge account and that particular language is extraneous?
- (4) Par. 14 - will you need to object by phone (or is fax sufficient)?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 631 of 1118

Inland	
Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'ken.curry@enron.com']
File	shackleton-s/sent/5915.

Ken:

Good idea! Carol St. Clair is handling this agreement. Please give her a call at X33989.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/28/2001 10:09 AM -----

Ken Curry/ENRON@enronXgate 03/28/2001 08:32 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Inland

Sara, Paul Radous passed the Inland Paperboard ISDA over to me. (Thanks, Paul!) Jim Crump forwarded me the 43 issues they had with the document. Since I am not familiar with where we are, I would like to get together to talk about their issues and decide how best to move forward. Please let me know if you have some time to get together. Thanks, Ken Curry X 3-6165

Message 632 of 1118

FW: Nelson Work Processes	
Sender	mary.cook@enron.com
Recipients	['frank.sayre@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/nelson/416.

FYI

-----Original Message-----

From: Cook, Mary Sent: Tuesday, July 03, 2001 3:30 PM To: Taylor, Mark E (Legal) Subject: Nelson Work Processes

My thoughts: I suggest that each Nelson file be assigned by the paralegals to an attorney mentor as well as Cheryl and that we ask that Cheryl not send any matters out until reviewed by the particular mentor attorney. In this way we can assure that items are not being externally distributed without review. I am trying to get with her on all Canada files and have asked that she always check in with me prior to distribution. However, I think other ISDA world matters are being distributed without adequate review.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 633 of 1118

Port of Oakland - ISDA Credit Worksheet

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'tana.jones@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/sent/5524.

This should be sent today. Stewart is the commercial person in Portland. Thanks. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/08/2001 02:25 PM

Edward Sacks@ENRON 02/08/2001 02:15 PM

To: Sara Shackleton/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron, Samantha Boyd/NA/Enron@Enron, Susan Bailey/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT, Paul Radous/Corp/Enron@ENRON, Wendy Conwell/NA/Enron@ENRON cc: Stewart Rosman/HOU/ECT@ECT Subject: Port of Oakland - ISDA Credit Worksheet

Attached please find the proposed credit terms for the draft ISDA. If you should have any comments or questions, please reply.

Ed Sacks

Message 634 of 1118

RE: financial status/comments

Sender	sheila.tweed@enron.com
Recipients	['sara.shackleton@enron.com', 'alan.aronowitz@enron.com']
File	shackleton-s/deleted_items/431.

Thanks for your report. I needed a format for my own "to do" list. I asked Barbara to get more involved with the financial contracts and to get more visible with Ed and Don, so please take her with you to meetings etc. Also Frank is going to let me know on Monday about rejoining us.

-----Original Message-----

From: Shackleton, Sara Sent: Friday, February 08, 2002 4:43 PM To: Tweed, Sheila Subject: financial status/comments

Sheila:

(1) the most critical piece of the data retrieval puzzle is RAC!!! We are losing ground rapidly since they cannot respond to our requests.

(2) attached is a "short version" of what's going on in the financial world

<< File: Estate Project List 1.doc >>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 635 of 1118

ConEd of NY - Revised Credit Worksheet - Omnibus Agmt

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/sent/5410.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/26/2001 01:05 PM -----

Edward Sacks@ENRON 01/26/2001 09:11 AM

To: Sara Shackleton/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT, William S Bradford/HOU/ECT@ECT, Wendy Conwell/NA/Enron@ENRON, Janelle Scheuer/HOU/ECT@ECT cc: Subject: ConEd of NY - Revised Credit Worksheet - Omnibus Agmt

Sara, Janelle - The terms that we have agreed to are transaction specific. Given the unfavorable credit terms for Enron, we will have to give serious consideration if we should elect to trade with this counterparty in the future, unless we can force them to deviate from thier credit policies. Good luck on the other issues.

Message 636 of 1118

RE: amending ISDA Masters

Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9735.

Don't have any recollection...but my CAS records do show that we are using the old SBC master.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, March 08, 2001 7:19 PM To: Rohauer, Tanya Subject: amending ISDA Masters
Tanya:

I have been reviewing some of Gary Hickerson's older master agreements which may require amending (to provide for multibranch transactions). I wanted to verify which master we are relying on for UBS AG. The files are a little confusing but it appears that we use the May 31, 1993 Swiss Bank Corporation master (and not the March 15, 1994 master with Union Bank of Switzerland).

Do you have any recollection of this?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 637 of 1118

ISDA Agreement for EECC

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/all_documents/9574.

Susan: Looks like it worked. Can you please repsond to John's request?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/02/2001 08:53 AM -----

John Schwartzenburg@ENRON_DEVELOPMENT 03/02/2001 07:12 AM

To: Sara Shackleton@ECT cc: Susan Bailey@ECT, Wyndel McNamara@ENRON Subject: ISDA Agreement for EECC

Sara, our CFO remembers executing one of these some time ago, but we cannot locate the document yet. If we can't get our hands on it by next week, we will go ahead and do a new form. Please resend the electornic form of the ISDA master agreement. Your prior transmission seems to have been deleted in a clean-up of the e-mails over here.. Thanks

JWVS

Message 638 of 1118

check out procedure for swap group files

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com', 'mary.cook@enron.com', 'angela.davis@enron.com', 'robert.bruce@enron.com']
File	shackleton-s/all_documents/8823.

In an effort to avoid loss of our executed agreements/files (master agreements, brokerage and futures agreements, repo agreements), we are testing out the "library approach" and instituting a checkout procedure. Whenever you remove one of these files from the file cabinet, please "hold the file location" with a signed "card" (legal sized) available on top of the master agreement file cabinet. You will also see a large sign reminding you to sign out for your file. When the file is returned, just replace the "card" with the file and delete your name from the "card".

Please be sure to check out all files currently in your office.

Thanks for your cooperation.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 639 of 1118

New York State Electric & Gas ("NYSEG")

Sender	sara.shackleton@enron.com
Recipients	['tom.may@enron.com']
File	shackleton-s/sent/5263.

Tom:

I'm trying to finalize the ISDA Master Agreement with these guys. We have one issue:

If there is a long-term market disruption event (i.e. over 3 days), and we have no fallback price, then we negotiate a price and ENA would normally obtain 2 quotes and average them. Our position is that we prefer to obtain the quotes because if a disruption were to occur, we would obtain quotes for hundreds of deals in the same manner (because our agreements will all have the same provisions) and it is possible that 4 quotes may not be available.

NYSEG would like for each of ENA and NYSEG to obtain 2 quotes and then average the 4 quotes.

Are you agreeable to this?

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 640 of 1118

RE: margin call request

Sender	marcus.nettelton@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/20.

Sara

The defined terms in the EEI Master and other Master Agreements on the Power side are generic so probably good to have them included and this still enables us to maintain a generic form. In the older Master Agreements the only difference is in respect of the relevant Section reference and sometimes "termination Payment" is referred to as "Early Termination Payment".

Regards,

Marcus

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, November 29, 2001 11:57 AM To: Nettelton, Marcus Subject: margin call request

Marcus: will the attached work as a "generic" margin call for credit to use (with respect to physical deals)? (no defined terms) Sara

<< File: Margin Request.doc >>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 641 of 1118

Total

Sender	sara.shackleton@enron.com
Recipients	['brant.reves@enron.com']
File	shackleton-s/sent/6171.

Brant: refresh my memory, please. do we need to call Lee Jackson?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/01/2001 10:48 AM

Lee Jackson/ENRON@enronXgate 05/01/2001 10:21 AM

To: Sara Shackleton/HOU/ECT@ECT, Brant Reves/ENRON@enronXgate cc: John L Nowlan/HOU/ECT@ECT, Tracy Wallace/LON/ECT@ECT Subject: Total

All,

There seems to be a lot of confusion, on our ability to trade with Total Intl. Our London group seems to be able to trade with this counterparty on a regular basis, but I understand, we have a legal issue outstanding with Total. Could I please

have further info on why Houston cannot trade with this counterparty.

Thank you,

Lee Jackson

Message 642 of 1118

lotus notes link

Sender	tana.jones@enron.com
Recipients	['sara.shackleton@enron.com', 'shemeika.landry@enron.com']
File	shackleton-s/notes_inbox/2020.

I have submitted the security requests to get the three of you access to the "Other Agreements" subdirectory of the Financial Agreement Database. That approval usually takes about a day, as soon as it comes through I'll let you know. You will of course, still need to solve how to get into the directory with Mike Neves. Let me know when you can get in. -----
Forwarded by Tana Jones/HOU/ECT on 06/04/2001 10:12 AM -----

Sara Shackleton 06/01/2001 08:22 AM

To: Tana Jones/HOU/ECT@ECT cc: Subject: lotus notes link

Tana: The following people have requested a link;

Donna Lowry Shemeika Landry Shelli Smith

Shemeika and Shelli work with Donna in risk analytics.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 643 of 1118

Enron/Florida Power & Light Company ISDA agreements

Sender	sara.shackleton@enron.com
Recipients	['jpeters@andrews-kurth.com']
File	shackleton-s/all_documents/4357.

----- Forwarded by Sara Shackleton/HOU/ECT on 10/27/2000 01:45 PM -----

"Serge Martin" <Sgm@steelhector.com> 10/27/2000 01:11 PM

To: clement.abrams@enron.com cc: PETEJ@andrews-kurth.com, Sara.Shackleton@enron.com Subject: Enron/Florida Power & Light Company ISDA agreements

Clement: Enclosed in re the Enron/FP&L ISDA agreements is the revised guaranty we discussed today. Please let me know if the revisions meet with your approval so Sara and I can proceed to finalize this and the related agreements - as well as prepare the corresponding agreements for Enron and FPL Energy Power Marketing, Inc. (the non-regulated FP&L affiliate we discussed). Thank you, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 phone (305) 577-7001 fax

- 625145_5.DOC

Message 644 of 1118

Re: Amendment Document

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com']
File	shackleton-s/sent/5727.

Frank: I think his changes were with respect to addresses, accounts, etc. Do we need to include an affirmative statement by AG that it assumes all obligations under the Master? I'm neutral.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/02/2001 08:48 AM -----

"David Porter" <David.Porter@glencore-us.com> 03/02/2001 08:47 AM

To: Frank.Sayre@enron.com cc: Brant.Reves@enron.com, Sara.Shackleton@enron.com Subject: Re: Amendment Document

Frank,

I made a few small changes:

(See attached file: Enron ISDA amend.doc)

Please confirm the revised document is acceptable and I will have it signed and sent to you as soon as possible

Kind regards

David

- Enron ISDA amend.doc

Message 645 of 1118

Re: Net Asset Value

Sender	sara.shackleton@enron.com
Recipients	['paul.radous@enron.com']
File	shackleton-s/sent/6146.

Paul: There is already a definition of "Liabilities" in the hedge fund template. We will enhance the existing definition to add the last phrase "...as would ...GAAP" and delete the "Liabilities" portion from your NAV definition.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Paul Radous/ENRON@enronXgate 04/25/2001 04:14 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Net Asset Value

"Net Asset Value" means as of the relevant time of determination, an amount (expressed in United States Dollars) equal to the sum of Party B's Assets minus Liabilities. "Assets" means all assets and "Liabilities" means all liabilities, as would generally be classified as such in accordance with generally accepted accounting principles.

*Message 646 of 1118***Swap Confirmations**

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'larry.hunter@enron.com', 'gina.karathanos@enron.com', 'brenda.funk@enron.com']
File	shackleton-s/notes_inbox/609.

A. You will be sent:

1. Drafts of the Yosemite 3 confirmations (Gina Karathanos (Global Fiannce paralegal) will follow up with executed versions when we receive them from Milbank Tweed).

2. Copies of the executed swaps that were done in connection with Raptor 1.

B. Attached below are the final drafts of 3 swaps that were done in connection with Raptor 3.

Brenda Funk will provide you with copies of the executed versions of these swaps as soon as possible.

C. Sara is working on Raptor 2 swaps. You may wish to contact her regarding the status of these particular confirmations.

By copy of this memo to Gina and Brenda, please provide me with executed versions as well. Thank you.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

*Message 647 of 1118***Non-ISDA Master CP's**

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'tanya.rohauer@enron.com']
File	shackleton-s/all_documents/9678.

Attached is a list of high volume "old" ECT Masters which was obtained from the confirmation desk. Many of them appeared on our working list from last year.

Tanya: We have enough legal help to pursue the names on the list. Would you like to prioritize or amend?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/08/2001 08:42 AM -----

Larry Joe Hunter 03/07/2001 09:14 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Non-ISDA Master CP's

Sara,

The attached is a list of Companies with whom we currently have a non-ISDA master and with whom we still do a good deal of trades with. They are listed in priority order of which ones we would like to see converted to ISDA .

Thanks, Joe

Message 648 of 1118

FW: Merced

Sender	sara.shackleton@enron.com
Recipients	['stewart.rosman@enron.com']
File	shackleton-s/sent_items/163.

Stewart: Do you have Jeff Fuller's address? Sara

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 09, 2001 6:31 PM To: Rosman, Stewart Subject: Merced

Stewart:

Just wanted to chat quickly about the amendment we're sending to Merced. The major changes are credit related: raising our Threshold to \$40million and their's to \$8million and giving giving us a "regulatory out" for Merced's legal inability to collect rates to cover O&M.

Whenever we prepare an amendment, we usually add other document "upgrades" (i.e., our form changes). We have made some important changes since 1999. I just wanted to alert you to these so that we don't "surprise" your customer.

Give me a call if you have a chance. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 649 of 1118

Goldman Sach \$ repo docs

Sender	sara.shackleton@enron.com
Recipients	['derek.lee@enron.com']
File	shackleton-s/sent/6290.

Derek:

I'm on the phone. Is this agreement for Enron Credit Inc. or Enron Credit Limited? I only represent the former. Dennis represents the latter.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/30/2001 10:15 AM -----

Derek Lee@ENRON 05/30/2001 02:08 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Simon Brooks/LON/ECT@ECT Subject: Goldman Sach \$ repo docs

Sara, I left u a voice mail and email 2 weeks ago regarding the status of the Goldman docs. I haven't seen a reply from you but as I remember from speaking to you last time, the ball is essentially in our court. Can u tell me what is up? In the meantime I can't do any US\$ credit biz with GS and it is a MAJOR problem.

regards, Derek

Message 650 of 1118

RE: Interstate Resources ("IR")

Sender	kevin.sweeney@enron.com
Recipients	[sara.shackleton@enron.com', 'robert.bruce@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/inbox/797.

I might have sent a response yesterday, but cannot find it so here it is:

This is the only deal I see in trade capture with this counterparty.

Thanks,

Kevin

-----Original Message-----

From: Shackleton, Sara Sent: Monday, March 11, 2002 4:14 PM To: Sweeney, Kevin Cc: Bruce, Robert; Panus, Stephanie Subject: Interstate Resources ("IR")

I just received two letters from IR dated 12/6/01 and 2/1/02 which were probably in a black hole somewhere or on Elliot Bonner's desk. IR is terminating Commodity Swap Y810701 and demanding payment from ENA.

Kevin, can you please confirm that Y810701 is the only active financial swap between the two parties? If it is not, then we cannot reflect that IR has terminated its swap(s). We will also need

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 651 of 1118

Re: New Hedge Fund Family

Sender	carol.clair@enron.com
Recipients	[paul.radous@enron.com', 'mary.cook@enron.com', 'sara.shackleton@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/all_documents/10089.

Paul: I will work with you on this.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Paul Radous/ENRON@enronXgate 03/26/2001 08:31 AM

To: Sara Shackleton/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Mary Cook/HOU/ECT@ECT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: New Hedge Fund Family

Caroline Abramo has initiated a new hedge fund family for financial trading. I am anticipating up to 4 separate masters, but likely only one series of negotiations (the others will likely duplicate the terms of the first one). The paper has started flow in. Would you please advise which attorney will handle this? The group is Wexford. I need to start forwarding up to you copies of the offering memoranda.

Thanks.

*Message 652 of 1118***Allison's Wedding**

Sender	sara.shackleton@enron.com
Recipients	['labdsc@womans.com']
File	shackleton-s/sent/6185.

Deb: THIS IS TACKY! And, I haven't sent my gift yet!!!!!!!!!!!!!!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/14/2001 09:34 AM -----

SSher5DUN@aol.com 05/10/2001 07:34 PM

To: sara.shackleton@enron.com cc: Subject: Allison's Wedding

Allison is writing her thank-you notes. With gifts going in different directions after the wedding, cards were detached from boxes and envelopes were scattered in different directions. Allison has not been able to account for everything, and while we're not trying to be rude, can you let us know what you sent so she can match everything up and thank you in writing. Hope you had a good time. Sorry I didn't get to spend more time with you.

Love - Anita

*Message 653 of 1118***Allegheny/Enron side letter re: ISDA Agreement**

Sender	sara.shackleton@enron.com
Recipients	['tracy.ngo@enron.com', 'janice.moore@enron.com']
File	shackleton-s/sent/5844.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/20/2001 12:58 PM -----

TeiglandL@sullcrom.com 03/19/2001 01:21 PM

To: Sshackl@enron.com cc: Subject: Allegheny/Enron side letter re: ISDA Agreement

Sara, attached is a blackline which shows some minor changes we have made to the above to fix some nits/clarify exhibit references. Let me know if you have any questions or comments.

<<Allegheny ENRON ISDA SIDE LETTER(v4).DOC>>

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

- Allegheny ENRON ISDA SIDE LETTER(v4).DOC

Message 654 of 1118

MARTA	
Sender	craig.breslau@enron.com
Recipients	['fred.lagasta@enron.com', 'sara.shackleton@enron.com', 'derek.bailey@enron.com']
File	shackleton-s/all_documents/11091.

Sara,

The name of the Senior Counsel at MARTA is Bruce Bomberg. The phone number is 404-848-5200.

They are fully authorized to hedge. They already sent a copy of the Board Resolution to Jay Williams. Their Investment Policy also allows them to hedge.

MARTA has been hedging interest rates and fuel since the early 80's. As a matter of fact their hedging program is featured in "Corporate Investing" magazine. I have faxed a copy of this article for your attention.

Should you need to reach her, Thay Bishop's number is 404-848-5485.

Since we are one of their new counterparties in their long-running hedging program, they will be testing us on our confirmation and settlements process. Thus it is very important to send their confirm as promptly as possible. Your assistance in getting this confirm to them as soon as possible is greatly appreciated.

Thanks, Craig

Message 655 of 1118

RE: First Union National Bank ("FUNB")/Enron Corp. ISDA Master	
Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2465.

I think permitted transfers are those where the credit support is the same (Enron Corp gty covers affiliate we transfer to). In this case, FUNB could transfer to an affiliate if they were willing to gty the obligations of the affiliate (since it is the parent, in essence).

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, April 19, 2001 9:33 AM To: Rohauer, Tanya Subject: First Union National Bank ("FUNB")/Enron Corp. ISDA Master Agreement

Tanya:

For purposes of "Transfer", shall we permit both parties to transfer to Affiliates? Would FUNB require a guaranty? Or do we feel strongly that neither party should have the ability to transfer except with the written consent of the other party?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 656 of 1118

Sylvia at Con Edison

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com', 'dooleys@coned.com']
File	shackleton-s/sent/5425.

Sylvia:

Shortly Samantha Boyd will email to you two documents: Enron North America Corp.'s final form of guaranty with most of your requested changes (the "ENA Guaranty") and a comparison of your guaranty markup against the ENA Guaranty. I am hopeful that this will be satisfactory for purposes of the deal at hand. Let me know if you have any questions or comments. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/29/2001 04:07 PM -----

Kaye Ellis 01/29/2001 03:20 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Sylvia at Con Edison

Sylvia called with her email address:

dooleys@coned.com

She said she has a document Samantha Boyd faxed to her Fri. night that has minor changes.

K

Message 657 of 1118

Progressive Raptors

Sender	mary.cook@enron.com
Recipients	['lance.schuler-legal@enron.com', 'mark.taylor@enron.com', 'sara.shackleton@enron.com', 'travis.mccullough@enr...]
File	shackleton-s/notes_inbox/1037.

We will be completing the Raptor 1 swaps by this Friday's deadline as requested of Sefton's group. I am not sure which of you will be replacing Julia Murray's role in coordinating the work of the finance group on Raptor's 2, 3, 4 programs and beyond; however, within the next few days, please let me know so that I can set a meeting with you to discuss processes and procedures for future securities and investment review in connection with the preparation of the swaps. Raptor 1 processes were fine for the first round, but a number of changes should be made for future programs to improve information flow, logistics, and division of labor. Advise this week, and then next week I will set a time to meet for discussion.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 658 of 1118

Enron Swap Project Raptor	
Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/sent/2041.

----- Forwarded by Sara Shackleton/HOU/ECT on 09/18/2000 06:22 PM -----

Mary Cook 09/17/2000 09:28 AM

To: jnaughto@cwt.com, Sara Shackleton/HOU/ECT@ECT cc: Subject: Enron Swap Project Raptor

I understand that Sara and I will visit with you Monday about this project. Attached are two updated forms of the equity swaps we have created thus far for warrants and shares with public/private options, and language to cover conversions of preferred, or rights to exercise warrants, that are not 1 to 1. Additionally, I learned late Friday that the materials I sent to you by fax last week are not the most current amendments to the Oconto Falls transaction. You will be receiving another fax Monday morning.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 659 of 1118

Bonus Resource Common: FYI	
Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'julia.murray@enron.com', 'stuart.zisman@enron.com']
File	shackleton-s/notes_inbox/1108.

FYI--Bonus was a public which was already submitted to Chin.

Julia C., please note and act accordingly re execution etc. Mary Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 09/12/2000 11:16 AM -----

Brad Carey@ENRON 09/12/2000 10:24 AM

To: Mary Cook/HOU/ECT@ECT cc: Andrea V Reed/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT Subject: Bonus Resource Common

Mary,

Bonus Resources Common has been taken out of Raptor I. I am not sure who else in legal would need to be notified. If you could pass along this information I would appreciate it. I will have a clerk send you a complete set of documents when we have finalized the notional value of Raptor I this afternoon.

Regards,

Brad Carey

Message 660 of 1118

"Credit" seminars	
Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'tanya.rohauer@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/sent/5552.

Tanya:

Our legal group would like to schedule instructional seminars covering the ISDA Schedule, Credit Support Annex, omnibus and other forms and, specifically, the credit issues which arise in the preparation and negotiation of these documents. Our thought is to eventually offer regular instruction every other month but we believe that initially we should offer monthly seminars.

In order to avoid "legal/credit Tuesday" boredom, we propose Wednesday or Thursday as a regular luncheon meeting date. How does the week of February 19 or 26 sound? I believe that we can circulate a "curriculum" of sorts to you or at the least a listing of topics.

Please let me know what you think. As always, we welcome your suggestions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 661 of 1118

Negotiation of the Enron Corp. guaranty	
Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com', 'mary.cook@enron.com', 'peter.keohane@enron.com', 'brent.hendry@enron.com', 'jeffrey...']
File	shackleton-s/sent/5930.

Subsequent to our swap group meeting with Clement last week, I have discussed the issue further with Jeff Hodge, Peter Keohane, Russell Diamond and Clem. In addition to ENA, ECC is feeling the pressure of delays for obtaining corporate guaranties caused by increased guaranty requests, too few signers and insufficient legal staffing to handle the volume.

Although Clem will have assistance soon, we concluded that it would be prudent to begin negotiation of a guaranty immediately rather than wait for the conclusion of the master agreement (or confirmation) negotiations. Please try to incorporate this approach, particularly with Canadian counterparties.

Credit will continue to push our internal form of Enron Corp. guaranty.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 662 of 1118

Re: Opening of Brokerage Account at Morgan Stanley for Enron de	
Sender	rafael.rangel@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com', 'susan.flynn@enron.com', 'nancy.muchmore@enron.com']
File	shackleton-s/glover/17.

Susan, thanks for the note.

Nancy, what is status?

Thanks,

RFR

Susan Flynn@ECT 06/28/2000 04:22 PM To: Rafael Rangel/NA/Enron@ENRON, Nancy Muchmore/NA/Enron@Enron
cc: Sara Shackleton/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron

Subject: Opening of Brokerage Account at Morgan Stanley for Enron de Inversiones de Energia S.C.A.

Please be advised that at the close of business on Friday, July 7, 2000, I will be taking a personal leave of absence from Enron. When you receive the executed corporate resolutions and authorized traders list required to open the referenced brokerage account, please forward the documents to:

Samantha Boyd EB3802A Phone: 3-9188

Samantha will assist you to open the brokerage account.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 663 of 1118

Re: Nexen Energy (f/k/a CXY Energy Marketing)

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/all_documents/8994.

no

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Stephanie Panus@ENRON 02/07/2001 09:01 AM

To: Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Robert Bruce/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT, Taffy Milligan/HOU/ECT@ECT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Cheryl Nelson/NA/Enron@Enron, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT, Angela Davis/NA/Enron@Enron cc: Subject: Nexen Energy (f/k/a CXY Energy Marketing)

Does anyone have the blue file for Nexen Marketing (formerly CXY Energy Marketing)? We need to amend the Master and the blue file is not in the file cabinet.

Message 664 of 1118

Chase Prepay

Sender	teresa.bushman@enron.com
Recipients	['sara.shackleton@enron.com', 'jeffrey.hodge@enron.com']
File	shackleton-s/notes_inbox/40.

Please see the attached.

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 12/12/2000 10:04 AM -----

Michael Garberding 12/12/2000 09:52 AM

To: Cris Sherman/HOU/ECT@ECT, Morris Richard Clark/HOU/ECT@ECT, Sandra F Brawner/HOU/ECT@ECT, Teresa G Bushman/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT cc: Joseph Deffner/HOU/ECT@ECT Subject: Chase Prepay

Included is an updated diagram of the proposed Chase prepay that includes Stoneville - please let me know if you have any questions. With regard to Stoneville, Enron Hydrocarbons Marketing Corp. entered into an agreement in December 1994 whereby Enron would sell to Mahonia and buy-back from Stoneville (Stoneville Aegean Ltd) - a transaction very similar to this prepay. Thanks.

Michael

Message 665 of 1118

Re: Equity Swap Confirm

Sender	jorge.garcia@enron.com
Recipients	[' sara.shackleton@enron.com ']
File	shackleton-s/notes_inbox/2551.

Good Morning Sara,

Thanks for the e-mail. Have you had an opportunity to review the optional termination language for the West LB Interest Rate Swap Confirmation?

Please advise.

Enjoy your day!

Jorge

From: Sara Shackleton@ECT on 04/11/2001 08:29 AM To: Jorge A Garcia/NA/Enron@ENRON cc:

Subject: Re: Equity Swap Confirm

Jorge: The attached confirmation looks fine. However, you did not attach Annex II which is referenced all over the confirmation. For future reference, "Calculation Period(s)" should be used for multiple periods.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jorge A Garcia@ENRON 04/06/2001 03:03 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Equity Swap Confirm

There were a couple of cosmetic changes. This is it! Disregard the previous attachment.

JAG

*Message 666 of 1118***Carr Futures, Inc. ("Carr") request for guaranty**

Sender	sara.shackleton@enron.com
Recipients	['s..bradford@enron.com', 'joseph.deffner@enron.com', 'tanya.rohauer@enron.com', 'marie.heard@enron.com']
File	shackleton-s/sent_items/251.

Larry Anderson with Carr has called to inquire about ENA financials and an Enron Corp. guaranty. From an historical perspective, it has always been my understanding that Enron Corp. did not wish to provide guaranties to brokers and we have been successful in that regard with several recent exceptions. In particular, Enron Corp. provided Carr with a "comfort letter" reciting the corporate "policy of general financial responsibility and interest in seeing that subsidiaries act responsibly." [letter dated February 16, 1999] Such letter is no longer sufficient to satisfy Credit Agricole which owns Carr.

Joe, I believe that Larry may have already spoken with you. I don't know if your conversation included discussion of a guaranty.

Please let me know how you would like to proceed. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

*Message 667 of 1118***Raptor Swaps**

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com', 'julia.chin@enron.com', 'andrea.reed@enron.com', 'scott.sefton@enron.com', 'julia.mu...]
File	shackleton-s/notes_inbox/1173.

The attached swaps will be delivered by hard copy batch, together with the revised proposal sheets and another copy of the legal worksheets, to Julia Chin on Monday morning. Julia suggested due to the floor move on 27 that I wait until first thing Monday to have the batched execution versions delivered to her. Upon receipt, Julia will attach the valuation data that has been previously provided to her by Hope Vargas and coordinate execution. Michael Galvan and Anne Koehler are working together on final Active Power proposals sheets. The Active Power swaps will be drafted after the final proposal sheet has been approved by both Michael and Anne. As and when Proposal Sheets are provided on the privates we will commence drafting the private swaps.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

*Message 668 of 1118***Financial trading - ENA's "long form confirmation"**

Sender	sara.shackleton@enron.com
Recipients	['doug.sewell@enron.com', 'mike.kelly@enron.com']
File	shackleton-s/sent/5265.

Below is a document containing "General Terms and Conditions" which is ALWAYS attached to a financial confirmation when the parties have no executed master agreement. If Ed, Tracy or someone in credit needs to add credit to the transaction, then we ALSO attach an Annex B (counterparty specific credit provisions), Annex B-1(collateral and exposure provisions) and a letter of credit format.

I am only attaching the General Terms and Conditions.

Let me know if you still want to see the ISDA Master Agreement (preprinted boilerplate consisting of an agreement and Credit Support Annex which I cannot email) together with a sample Schedule and Paragraph 13 to the Credit Support Annex (which are the two "customized" pieces negotiated by legal) .

Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 669 of 1118

Re: Inconsistent Credit Amounts

Sender	sara.shackleton@enron.com
Recipients	['brant.reves@enron.com']
File	shackleton-s/sent/5751.

Brant: Please send complete copies of these confirms (including the Annexes!)

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brant Reves/ENRON@enronXgate 03/06/2001 11:37 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Susan Bailey/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Nidia Mendoza/ENRON@enronXgate, Brant Reves/ENRON@enronXgate Subject: Inconsistent Credit Amounts

Gas Producers Liquids Inc. - Omnibus confirmations only - No ISDA

How do we margin this LC customer when the Exposure Thresholds are not consistent across each Annex B? Their financial mark to market exposure is currently \$1.3MM.

Annex Trades B-Credit Line

QL3281.1 \$0 QL3360.1 \$0 QN8251.1 \$0 QN8251.2 \$0 QQ7096.1 \$0 QQ7109.1 \$500,000 QR4386.1 \$0 QS3259.1 \$0 QS3259.2 \$25,000

Brant

Message 670 of 1118

Re: Weyerhaeuser Co.

Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9106.

There should be a clean copy of the Agreement in the file. We blacklined it against the existing agreement with Weyerhaeuser Company Limited and such blackline is also in the file. If there is not a clean copy of the new agreement, let me know and I'll print out another one.

From: Sara Shackleton@ECT on 02/12/2001 10:40 AM To: Stephanie Panus/NA/Enron@Enron cc:

Subject: Weyerhaeuser Co.

Stephanie: The fax that you gave to me with this file states that the CP wants to change jurisdiction "back to New York." I don't see a prior draft; only a blackline against a Weyerhaeuser Company Limited document, the latter ISDA having been executed in June, 2000. Does his question refer to that executed master? If so, please let me know what we agreed to. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 671 of 1118***Exhibition Information**

Sender	contactus@jamesgalleryhouston.com
Recipients	['contactus@jamesgalleryhouston.com']
File	shackleton-s/deleted_items/515.

FotoFest 2002 at James Gallery DORNITH DOHERTY New work JOHN SPARAGANA Love Is The Drug ANN STAUTBERG Texas Coast Opening Friday March 1 5:30-8:30pm -Exhibition runs through March 30

FotoFest 2002 at Rice University Media Center (University Boulevard & Stockton Drive, Entrance #8) JOHN SPARAGANA I Wait For You Every Night Opening Thursday March 7 7-9pm -Exhibition runs through April 15th For information contact James Gallery or the Rice University Media Center

Upcoming KIRK HAYES / PAINTINGS

April 5-May 4, 2002 Opening Friday, April 5, 6-9pm Please join us for Kirk Hayes' first solo exhibition in Houston, our 25th Anniversary exhibition, and our final Houston exhibition. James Gallery will move out-of-state this summer.

james gallery 307 sul ross | houston | tx 77006 713.942.7035 tel | 713.942.7038 fax contactus@jamesgalleryhouston.com
gallery hours: wed-sat 10-5:30 N <http://www.jamesgalleryhouston.com>

*Message 672 of 1118***ANZ Bank email information**

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/all_documents/9267.

Sam: the addressee for the guaranty is : mmidden@anz.com (his name is Michael Midden)

The message is : Attached for your immediate review is the form of Enron Corp. ("Enron") guaranty which would be utilized to guaranty all financial trading obligations pursuant to an ISDA Master Agreement and transactions thereunder which would be entered into between Enron North America Corp. and ANZ Bank. Jason Williams (in Enron's risk control group) asked that you receive a copy of Enron's form of guaranty if you had not already received one. We are in the process of preparing a draft ISDA Master Agreement and will forward it to you next week. Please let us know if you have any questions.

Please copy Jay Williams and me. Thanks and sorry for such short notice.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 673 of 1118

Re: Equity Trading in the UK

Sender	nicola.beales@enron.com
Recipients	['ian.brungs@enron.com', 'sara.shackleton@enron.com', 'justin.boyd@enron.com']
File	shackleton-s/notes_inbox/2742.

Thanks for getting back to me. I will ask Justin to initiate the call.

Kind regards, Nicola

From: Sara Shackleton on 26/03/2001 10:07 CDT To: Nicola Beales/LON/ECT@ECT cc:

Subject: Re: Equity Trading in the UK

The time works fine. Will Justin initiate the call?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Nicola Beales 03/26/2001 08:49 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Ian Brungs/EU/Enron@Enron, Justin Boyd/LON/ECT@ECT Subject: Equity Trading in the UK

Sara,

Further to your e-mail to Justin re equity trading in the UK, I would be grateful if you could let me know whether you would be free to have a conference call this Friday 30 March @ 3.00 p.m. London time. If this is not convenient, please suggest an alternative time.

I look forward to hearing from you.

Kind regards, Nicola

Message 674 of 1118

RE: I would like to speak with you

Sender	mark.ellenberg@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/739.

i will call tomorrow (tuesday)

-----Original Message-----

From: Shackleton, Sara Sent: Mon 2/25/2002 12:50 PM To: Ellenberg, Mark Cc: Subject: I would like to speak with you
Mark:

I don't know what your schedule is this week but I want to discuss ENA's response to counterparties who do not respond to our request for settlement calculations and methodology (e.g., Goldman Sachs Capital Markets, L.P., J.Aron, etc.). I understand that you may not be the lawyer to handle a response; this is a "protocol" issue.

Also, on the financial trading side, I have another "protocol" issue with respect to nonpayment by non-terminated counterparties (under the ISDA, GTC's or Master Energy Price Swap Agreement). Specifically, let's discuss ENA's approach and use of a possible "test case" in this area.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 675 of 1118

Re: ISDA Master Agreement with Morgan Stanley Capital Services Inc.

Sender	richard.sage@enron.com
Recipients	['sara.shackleton@enron.com', 'aaron.armstrong@enron.com', 'denis.o'connell@enron.com']
File	shackleton-s/notes_inbox/2463.

We have a signed ISDA and CSA dated 26th October 2000 between Enron Credit Ltd and Morgan Stanley Credit Products Ltd (Cayman). I wasn't aware of anything else.

From: Sara Shackleton on 19/04/2001 09:01 CDT To: Aaron Armstrong/LON/ECT@ECT, Denis O'Connell/LON/ECT@ECT, Jeff Kinneman/Enron@EnronXGate, William Stuart/HOU/ECT@ECT cc: Tanya Rohauer/Enron@EnronXGate, Rod Nelson/LON/ECT@ECT, Richard Sage/LON/ECT@ECT

Subject: ISDA Master Agreement with Morgan Stanley Capital Services Inc. ("MSCS")

All:

I received a draft master agreement from MSCS for proposed execution with Enron North America Corp. Are any of you trying to push execution of this agreement? Have either of Enron Credit, Inc. or Enron Credit Limited been speaking with MSCS about this?

Please advise. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 676 of 1118

Re: Rep Agreement

Sender	sara.shackleton@enron.com
Recipients	['cris.sherman@enron.com']
File	shackleton-s/all_documents/9353.

Yes, it does. Thanks so much.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Cris Sherman 02/22/2001 07:48 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Rep Agreement

Sara, in the interest of time this morning, I thought I would send a quick e-mail. I have read the appendix to the repo agreement and think it is OK. No accounting issues, I think they just want to address the substitution mechanics. Technically, repo transactions are FAS 125 transactions (sales of financial assets), so I presume that is why the "FAS 125" is noted at the top of the page (I don't believe it is necessary - what value does it add?). I think the issue is one for Treasury - are we OK with the counterparties ability to terminate the contract if we do not agree to the replacement (substituted) securities? Hope this helps.

Message 677 of 1118

NRG Power Marketing ("NRG")	
Sender	sara.shackleton@enron.com
Recipients	['janelle.scheuer@enron.com', 'tom.may@enron.com']
File	shackleton-s/sent/5302.

I've left a message for Dave Adams (legal) to call back AND described to him the following situation:

ENA and NRG have executed OVER 130 financial deals both online (EOL) and offline WITHOUT EVER CHANGING ANY OF THE GTC's. In the absence of an executed master agreement, we never want the GTC's to change! The reason is that bankruptcy protection for swap agreements requires a single agreement for all swap transactions. If you don't have an ISDA master agreement in place, you want your single set of GTC's to be viewed by a court as a single agreement. Having different versions of the GTC's does not look like a single agreement.

I will try to convince Dave Adams that we should retain our GTC's but move forward on an ISDA which would then govern all online and offline trades.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 678 of 1118

Delivery Status Notification (Relay)	
Sender	postmaster@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/502.

This is an automatically generated Delivery Status Notification.

Your message has been successfully relayed to the following recipients, but the requested delivery status notifications may not be generated by the destination.

dmitchel@cwt.com

----- Inline attachment follows -----

From: </O=ENRON/OU=NA/CN=RECIPIENTS/CN=SSHACKL> To: dmitchel@cwt.com Date: Monday, February 25, 2002 6:13:15 GMT Subject:

David:

Attached is a draft demand letter for nonpayment. This form is specifically geared to the ISDA. Please comment. Do you think we need a "savings clause" for deals which we might inadvertently fail to mention, the date by which payment is required, or a telephone contact for questions?

We are collecting the data for a rash of these letters.

Thanks. Sara

<<Payment demand generic.doc>>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 679 of 1118

RE: status meeting

Sender	alan.aronowitz@enron.com
Recipients	['sara.shackleton@enron.com', 'sheila.tweed@enron.com']
File	shackleton-s/deleted_items/443.

Sara:

I think we should get w/ R Baumfield and M Ellenberg to complete the decision tree on trading contracts analysis we started last week.

Per a discussion I had with Sheila last night, I am setting up a meeting with the participants last week to finish the decision tree tomorrow when Mark is back here in Houston.

In the meantime, I am happy to discuss the topic with you today with Richard Baumfield.

Alan

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, January 29, 2002 9:18 AM To: Tweed, Sheila; Aronowitz, Alan Subject: status meeting

Can we have a short meeting to identify our immediate path for trade termination? I'm not certain of the critical steps required before we can begin to respond.

I have a short list of questions.

I apologize if you covered this in yesterday's meeting. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 680 of 1118

Schedule "B" to Securities Loan Agreement

Sender	sara.shackleton@enron.com
Recipients	['ameytina@bear.com']
File	shackleton-s/all_documents/9294.

Anna:

I propose the following for Schedule B:

"The fourth sentence of Paragraph 10 of the Securities Loan Agreement is amended to read as follows:

In the event that (i) the purchase price of Replacement Securities (plus all other amounts, if any, due to Lender hereunder) exceeds (ii) the amount of the Collateral, Borrower shall be liable to Lender for the amount of such excess together with interest thereon at a rate equal to the rate per annum equal to the cost (without proof or evidence of any actual cost) to the Lender (as certified by it) if it were to fund or of funding the relevant amount plus 1% per annum, as such rate fluctuates from day to day, from the date of such purchase until the date of payment of such excess."

Clement Abrams is on vacation this week. I'll call soon.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 681 of 1118

FW: Magnum Hunter Resources, Inc.

Sender	sara.shackleton@enron.com
Recipients	['brent.hendry@enron.com']
File	shackleton-s/sent_items/534.

Brent:

I must have been reviewing something from this CP when I sent the message to Tanya. Is Tanya right about having discussed this with you already? I can't remember.

Sara

-----Original Message-----

From: Rohauer, Tanya Sent: Wednesday, January 02, 2002 9:58 AM To: Shackleton, Sara; Sacks, Edward Cc: Panus, Stephanie Subject: RE: Magnum Hunter Resources, Inc.

The trades have already been pulled from the system. I'll have to check with Debbie on the file of terminated trades. Didn't I discuss this one with Brent before the holiday?

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 27, 2001 5:58 PM To: Rohauer, Tanya; Sacks, Edward Cc: Panus, Stephanie Subject: Magnum Hunter Resources, Inc.

How many outstanding trades will we be terminating with this party? Is there only a collar?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 682 of 1118

ConfirmLogic Target Customer List-Legal Entity Name

Sender	s..theriot@enron.com
Recipients	['sara.shackleton@enron.com', 'kathryn.cordes@enron.com', 'legal <.taylor@enron.com']
File	shackleton-s/inbox/192.

Sara, See attached spreadsheet which shows the legal entity names by counterparty for each commodity. Name differences between the commodities are highlighted in Blue.

Kim Theriot

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 17, 2001 9:56 AM To: Theriot, Kim S. Cc: Greenberg, Mark; Cordes, Kathryn; Taylor, Mark E (Legal); Hansen, Leslie Subject: ConfirmLogic Target Customer List

Kim:

I am reviewing the list of 20 target customers dated 9/14/01 in an effort to set up a document drafting timetable.

For financial trading purposes, I need an accurate list of trading counterparties reflecting the complete name of each legal entity. Also, if a company is split into more than one legal entity (such as power and gas) for financial trading purposes, I need the names of both entities.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 683 of 1118

Hedge Funds

Sender	sara.shackleton@enron.com
Recipients	['tana.jones@enron.com']
File	shackleton-s/sent/5371.

Tana: Other than your email attached, have you had other discussions with Mark or credit about hedge funds? Sara
Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/23/2001 05:41 PM

Tana Jones 12/14/2000 10:43 AM

To: Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St
Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron,
Robert Bruce/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron cc: Subject:
Hedge Funds

Just a note to Group after discussion w/paralegals and Mark: on a going forward basis if our counterparty is a hedge fund,
we will ask for all corporate documents, plus a copy of their prospectus (which should show us what the fund is allowed to
invest in).

Message 684 of 1118

RE: Thiele Kaolin Company

Sender	louis.dicarlo@enron.com
Recipients	['susan.bailey@enron.com', 'ed.mcmichael@enron.com', 'sara.shackleton@enron.com', 'samantha.boyd@enron.com', '...']
File	shackleton-s/inbox/709.

The multi-page printout titled "Bankruptcy Book Exposure - COB 2/1/02," which contains exposure broken out by power,
gas, and all other products shows exposure as gas-physical only.

The same is true for: National Fuel Marketing Company LLC Ormet Primary Aluminum Corp. San Diego Gas and Electric
Company

Can we remove all of these from our "financial" list?

Eric Boyt: Note that the above listed companies might get shifted to the physical book.

-----Original Message-----

From: Shackleton, Sara Sent: Friday, February 15, 2002 10:21 AM To: McMichael Jr., Ed; Dicarlo, Louis; Moran, Tom;
Apollo, Beth Cc: Bailey, Susan; Boyd, Samantha; Panus, Stephanie Subject: Thiele Kaolin Company

We cannot locate any financial contracts for this counterparty.

Please verify that this party belongs on the ITM Non-terminated financial gas list.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax:
(713) 646-3490

Message 685 of 1118

Enron North America Corp. ("ENA") ISDA with First Union National

Sender	sara.shackleton@enron.com
Recipients	['delene.travella@funb.com']
File	shackleton-s/all_documents/8771.

Hi, Dee:

A few pieces of information from credit.

1. With respect to ENA's swap counterparty, we note that the rated entity per S&P is "First Union National Bank, Charlotte". You need to let us know which entity is in fact the swap party.
2. Regarding Threshold for cross default, \$100,000,000 is fine.
3. Regarding financials, if you want to provide us with First Union Corp. financials, we will need a guaranty and credit will switch to the guarantor.
4. 10 year bonds are OK with a haircut (probably 90 or 95%).
5. Credit is still reviewing the matrix
6. Your changes to the MAC trigger are fine.
7. Your comments to our definition of "Qualified Institution" have been rejected.
8. The \$30,000,000 cap on the Enron Corp. guaranty is fine.

I'll try to follow up with you tomorrow.

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 686 of 1118

Re: Sempra Energy Trading

Sender	melissa.murphy@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2348.

Hello, thanks for looking at the contract we have with Sempra. Do you think we could have EOL add the rounding language and the correction to published prices as part of the product description for all power financial products? Would the correction to published prices language contradict the language already in the ISDA agreement?

Let me know what you think. Thanks, Melissa

From: Sara Shackleton on 04/26/2001 06:28 PM To: Melissa Ann Murphy/HOU/ECT@ECT cc: Subject: Sempra Energy Trading

Melissa:

I started with Sempra. It's one of the more unusual masters (a "Master Master" covering both physical and financial) and it's not the typical "ECT Master". Further, it contains no rounding or correction to published prices provisions.

We'll have to review these masters on a case by case basis.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 687 of 1118

Re: NUI revised

Sender	sara.shackleton@enron.com
Recipients	['mark.breese@enron.com', 'larry.hunter@enron.com', 'diane.anderson@enron.com']
File	shackleton-s/sent/6027.

Diane: Looks like the guarantor will have to change to: NUI Corp. (and replace NUI Utilities, Inc.) This will require changes to the "Additional Provisions" section, part (b) and the Exhibit A. We will target Monday morning to finalize. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Diane Anderson@ENRON 04/12/2001 12:03 PM

To: Mark Breese/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT Subject: NUI revised

Mark,

Attached please see the confirmations, with a change to the Additional Provisions (b) section referencing both deals - which should answer your concerns, as per Sara.

Please let me know if these are OK to sign and send. If you are unable to OK these by 12:45 today (I'm leaving for the weekend), please respond to Joe Hunter and he will sign and send them.

Thanks, Diane 3-0443

Message 688 of 1118

ISDA Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['gpack@anz.com', 'sarah.heineman@enron.com']
File	shackleton-s/all_documents/9792.

Mr. Geoffrey Pack;

Per Sarah Heineman's earlier discussion with you, Enron North America Corp. ("ENA") will shortly email to you the ISDA Schedule and Paragraph 13. We do not have ISDA boilerplate in word format and assume that you have such documents. If not, please let us know.

We received internal credit information in mid-January. Unfortunately, the derivatives legal group at ENA has been short staffed until very recently so we apologize for the delay in submitting draft documentation to you. We did email the Enron Corp. form of guaranty to Michael Midden on 2/16/01. We are currently working with Jay Williams (credit) to respond to any credit issues and John Suttle has transferred to our Australia office.

Please feel free to contact me if you have any questions.

Sara Shackleton Assistant General Counsel Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 689 of 1118

FW: Authorized signatories

Sender	sara.shackleton@enron.com
Recipients	['asheers@bear.com']
File	shackleton-s/sent_items/34.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 13, 2001 1:01 PM To: 'asheers@bear.con' Cc: Cooper, Edmund; Seyfried, Bryan Subject: Authorized signatories

Alex:

Sorry for the delay (meetings). The authorized signers (for both the authorization letter and the Waiver and Release) are:

- (1) Enron Credit Inc. Gary J. Hickerson Managing Director
- (2) ECT Investments, Inc. Gary J. Hickerson President
- (3) Enron Credit Limited Bryan R. Seyfried Director
- (4) ECT Europe Finance, Inc. [leave blank as I will have to find someone]

Please note proper spelling of the company names.

Hope this does it. I'll see Gary at a 1:30 meeting (Houston time) and can secure his signature; will have someone locate the remaining signer. Please email to London as well for the Enron Credit Limited signature.

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 690 of 1118

RE: ISDA request for FX desk

Sender	tanya.rohauer@enron.com
Recipients	['William; Adams', 'Pushkar; Stuart III', 'Shahi', 'sara.shackleton@enron.com', 'Laurel']
File	shackleton-s/notes_inbox/2151.

Do you mean athat CSFB International is where they currently trade commodities? Why would we include 'London Branch' in the name of the contracting entity? Wouldn't all branches be eleigible under this one doc? Lets discuss.

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, May 23, 2001 10:41 AM To: Rohauer, Tanya Cc: Shahi, Pushkar; Stuart III, William; Adams, Laurel Subject: ISDA request for FX desk

Tanya:

Our FX desk has requested an ISDA Master Agreement for ENA's FX trades with: Credit Suisse First Boston, London Branch.

The entity with which ENA already has an executed master (effective 4/21/93) is Credit Suisse First Boston International, which trades derivatives.

I will have the name of the CSFB lawyer this afternoon.

Can you please prepare a credit worksheet? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 691 of 1118

Re: FX Product Descriptions

Sender	sara.shackleton@enron.com
Recipients	['william.stuart@enron.com', 'carlos.alatorre@enron.com']
File	shackleton-s/all_documents/9311.

Carlos:

Attached are my comments to the LME product.

Also, I understand that the forward and currency swap products are already online. I only noted that the reference to Greenwich Mean time in your draft appeared as "Greenwich Meantime". You may have already made this correction.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carlos Alatorre@ENRON 02/12/2001 06:28 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Justin Rostant/HOU/ECT@ECT Subject: FX Product Descriptions

Sara, Thanks for meeting with us, attached you can find two documents: Product Descriptions with highlighted changes to existing products on which the unit of measure is changing (from Millions of USD to USD) Proposed Product description for new LME Product Type (INTERNAL ONLY) Please let me know your approval or any comments/changes, Thanks!
Carlos Alatorre 713) 345-8705

Message 692 of 1118

Re: Structured Finance Luncheon

Sender	sara.shackleton@enron.com
Recipients	['legal.4@enron.com']
File	shackleton-s/all_documents/9020.

Either works for me right now.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Legal Temp 4 02/07/2001 01:59 PM

To: Carol St Clair/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Suzanne Adams/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT Subject: Structured Finance Luncheon

I'm still trying to schedule the structured finance luncheon - (see below):

Please check your calendar for availability as per the following information:

Lunch Meeting (Possible Dates): Monday, February 12 or Wednesday, February 14 Time: 12 noon - 1 p.m. Location: To be determined Chair: Mary Cook Agenda: To discuss how to improve coordination and communication with credit on structured finance or other one-off type of, transactions and what is needed from the finance group to assist in the

process.

Regards, Karla Kelley x57621

Message 693 of 1118

Enron Global Custody and Clearance Agreement

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com']
File	shackleton-s/sent/6310.

Tanya: Please see page 7 of the attachment (Par. 5, part C) regarding setoff. ENA was about to have this agreement executed just as I received your email. I'll call you after 5 pm. We need to discuss today. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/31/2001 04:07 PM -----

Nancy.K.Callahan@chase.com 05/31/2001 01:45 PM

To: Sara.shackleton@enron.com cc: Gennaro.Contella@chase.com Subject: Enron Global Custody and Clearance Agreement

As requested, attached is the final Agreement which I believe reflects the revisions we discussed this morning. If this is acceptable, please have the Agreement executed on behalf of Enron and return the necessary counterparts to me for signature by Chase. I will then return fully executed copies to you. (See attached file: Enron.doc) - Enron.doc

Message 694 of 1118

RE: CSFB (head office)

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/sent_items/100.

Won't you carve your deal out of the Threshold for your "Deemed ISDA"?

-----Original Message-----

From: Cook, Mary Sent: Wednesday, September 26, 2001 9:17 AM To: Shackleton, Sara Subject: RE: CSFB (head office)

So long as they adopt 10a as well--that is what we are doing. We will need to be careful as and when this is finalized to segregate threshold etc. for the prepay deal. Also, talk to Musch re tax rep. -----Original Message----- From: Shackleton, Sara Sent: Wednesday, September 26, 2001 9:09 AM To: Cook, Mary Subject: CSFB (head office)

Mary: FYI , just spoke with Anita Khosla. The ENA ISDA with CSFB will be with the head banking office in Zurich and we will identify the branches with which we anticipate business, including at the moment, NY, London, Cayman Islands. I have received comments to our Schedule and CSA.

Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 695 of 1118

nan	
Sender	susan.bailey@enron.com
Recipients	['dtorkelson@snwsc.com', 'tracy.ngo@enron.com', 'sara.shackleton@enron.com', 'jmwspe@bendnet.com', 'jdn@karnop...]
File	shackleton-s/notes_inbox/2758.

All,=20

Per Sara=01,s recent conversation with you all, please find attached a samp= le=20 form of Schedule to the ISDA Master Agreement, along with Paragraph 13 to t= he=20 ISDA Credit Support Annex. Please be advised that the attached is only a= =20 sample and has not been customized for the Tribe. =20 We will be able to provide a specific Schedule and Paragraph 13 after our= =20 credit group has concluded its review. You may be familiar with the ISDA= =20 Municipal Counterparty Schedule and will note that although we are=20 incorporating many of those provisions. =20

We assume that you have the ISDA boilerplate (for the Master Agreement and= =20 Credit Support Annex), and therefore, these are not included with this=20 transmission.

Please let us know if you have any questions. =20

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 696 of 1118

Mexico	
Sender	pinto.leite@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/569.

Sara:

We have a situation in Mexico that we need to address fairly soon. In a nutshell, we were negotiating a master with this counterparty for a long time and at a certain point we (with credit approval) entered into a transaction and a day later we agreed on the final terms of the Master. We sent them final execution copies in one day and Enron filed for bankruptcy 2 days later. They never signed the docs and we never confirmed the transaction because we were waiting for the master. They now do not want to send us an execution copy of the master because it provides for automatic early termination. I will stop by your office to discuss.

I will be talking with this counterparty tomorrow to propose some solution but would like to have your views before talking to them. WE are about US\$1MM in the money with these people.

Thanks

Francisco Pinto-Leite Enron Americas 1400 Smith Street, EB 3888 Houston, TX 77002-7361

Tel: 713-345-7942 Fax:713-646-3490 fleite@enron.com

*Message 697 of 1118***Give-Up Agreement: ENRON / JPMSL / Carr Futures**

Sender	thompson_david@jpmorgan.com
Recipients	['sara.shackleton@enron.com', 'labiche_maryline@jpmorgan.com', 'berger_david@jpmorgan.com']
File	shackleton-s/all_documents/11436.

Dear Sara,

I refer to our conversation this afternoon. I confirm that my colleague, Maryline Labiche, has spoken to Christene McAdams at Carr Futures in Illinois and will liaise with her regarding issue and execution of the required give-up agreement.

We have also agreed that the Give-Up will be subject to the laws of New York.

If you have any questions regarding the documentation please feel free to call either myself (+44 207 325 3619) or Maryline Labiche (+44 207 325 0434).

Regards

David Thompson

This communication is for informational purposes only. It is not intended as an offer or solicitation for the purchase or sale of any financial instrument or as an official confirmation of any transaction. All market prices, data and other information are not warranted as to completeness or accuracy and are subject to change without notice. Any comments or statements made herein do not necessarily reflect those of J.P. Morgan Chase & Co., its subsidiaries and affiliates.

*Message 698 of 1118***Mirant Americas Energy Marketing. L.P. ("CP")**

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'veronica.espinoza@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/sent/5759.

All:

I have verified with CP that we do not want to stop financial trading between CP and ENA. The immediate plan is as follows:

- (1) Immediate new guaranty from Mirant Corporation (Frank to send draft in the a.m.)
- (2) Immediate amendment of the existing ISDA Master Agreement to replace Vastar with Mirant Corporation as the credit support provider (CP to send draft in the a.m.)
- (3) Immediate execution of a short letter agreement to reflect that all financial trades done until the effective date of the new guaranty will be honored by CP and subject to the existing ISDA Master Agreement (I will prepare)
- (4) Review of the existing agreement to see if CP has issues (which we may consider).

If anyone has any questions, please let me know!

Let's all stay in touch throughout the day to get this done. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 699 of 1118

RE: Paper/steel positions

Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/42.

The Worthington Steel Company - they have an ISDA I also show ENA financial exposure for the following companies for steel: Dennen Steel Corp Balli Trading Ltd Huntco Steel Metalwest LLC Triorient Trading Inc. Webco International LLC

Some may not be regular financial deals - but structured ones - such as Huntco, Balli, and Webco. Sam Leuschen is the best contact to discuss the deals as she was involved in the booking of all of them.

Thanks, Tanya

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 06, 2001 9:13 AM To: Rohauer, Tanya Subject: Paper/steel positions

Tanya:

Is there a way to identify outstanding financial/physical positions with respect to these products?

I'd like to cross check to see which counterparties have sent termination notices.

I've already spoken to Bob who will compile his list for me to track.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 700 of 1118

Hedge Funds

Sender	sara.shackleton@enron.com
Recipients	['paul.radous@enron.com']
File	shackleton-s/all_documents/8787.

Paul: This was the only "hedge fund" related item that I could find. I think that I may be the lucky recipient of Moore Global Investments. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/23/2001 05:31 PM -----

Tana Jones 12/14/2000 10:43 AM

To: Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Robert Bruce/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron cc: Subject: Hedge Funds

Just a note to Group after discussion w/paralegals and Mark: on a going forward basis if our counterparty is a hedge fund, we will ask for all corporate documents, plus a copy of their prospectus (which should show us what the fund is allowed to invest in).

*Message 701 of 1118***Re: Nicor Enerchange, LLC**

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/5893.

Have you checked with credit?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Stephanie Panus@ENRON 03/26/2001 03:42 PM

To: Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Tana Jones/HOU/ECT@ECT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Cheryl Nelson/NA/Enron@Enron, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT, Angela Davis/NA/Enron@Enron, Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Nicor Enerchange, LLC

Does anyone remember working on an ISDA Master between ENA and Nicor Enerchange, LLC. They are saying that an agreement has been executed. However, our database shows that we received comments from them but nothing further.

Thanks, Stephanie

*Message 702 of 1118***Changes are afoot**

Sender	contactus@jamesgalleryhouston.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/444.

Dear Sara, Our upcoming exhibition of Kirk Hayes' wonderful paintings (his first show in Houston) will mark our 25th anniversary, and it will also be our final exhibition in Houston !

Early this summer, Gary and I will move the gallery and our residence to southern Arizona. We've had a wonderful 25+ year run in Houston and we're sad to be leaving our many friends and supporters, but new adventures beckon. We're looking forward to many visitors once we get settled. More details to follow regarding our new location, etc.... Our final schedule is as follows- 14 Artists through February 23 FotoFest: Doherty, Sparagana & Stautberg March 1-30 Our 25th anniversary Swansong event- Kirk Hayes: new paintings April 5-May 4 6! Let me know if there's anything you can't (or shouldn't) live without. Best, Kathleen james gallery 307 sul ross | houston | tx 77006 713.942.7035 tel | 713.942.7038 fax contactus@jamesgalleryhouston.com wed-sat 10-5:30 N <http://www.jamesgalleryhouston.com>

*Message 703 of 1118***Re: vacation**

Sender	brent.hendry@enron.com
Recipients	['anne.koehler@enron.com', 'sara.shackleton@enron.com', 'cheryl.nelson@enron.com', 'carol.clair@enron.com']
File	shackleton-s/notes_inbox/2206.

I have family coming sometime in the middle of June as well as the end of July. I do not know the exact dates yet but I will try and coordinate with everyone on what days I take off so as to maximize lawyer coverage during Sara's scheduled vacation.

Sara Shackleton@ECT 05/17/2001 11:05 AM

To: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Mark Greenberg/NA/Enron@ENRON, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT cc: Subject: vacation

I will be on vacation from June 14 - 22. I do not see any conflicts on the calendar.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 704 of 1118

RE: Your request for authorization to sign J.Aron & Company

Sender	a.garcia@enron.com
Recipients	['sara.shackleton@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/inbox/1076.

Hi Sara,

There were two options terminated on the same date. I faxed you one of the two. The content was my concern.

Thanks for your feedback.

Enjoy your weekend!

Jorge

-----Original Message-----

From: Shackleton, Sara Sent: Friday, November 09, 2001 11:52 AM To: Garcia, Jorge A. Cc: Adams, Laurel Subject: Your request for authorization to sign J.Aron & Company Currency Option Transaction termination ("Termination")

Jorge:

Please read paragraph 2 of the Termination confirmation.

It refers to the terminated transaction having "Reference number 1980816".

The confirmation that you sent to me (for the terminated transaction) has a Reference number 1980815. The termination confirmation is referenced as 1980816.

You need to correct paragraph 2 of the Termination confirmation. Then the document can be executed.

Please let me know if you have further questions.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 705 of 1118

Event of Default Termination log

Sender	sara.shackleton@enron.com
Recipients	['carol.st.@enron.com']
File	shackleton-s/sent_items/23.

Carol:

As the log is continually updated, we should be clear as to which entities we are reviewing for purposes of informing the book ad mins. To date, we have only focused on:

ENA EPMI ENE ENA Upstream Company LLC ` EPMI

We have consciously excluded EES and the London entities or US entities trading through EEFT in London (such as ECTRIC).

Since Enron Global Markets (and presumably EIM next) is under a mandate for liquidation, don't we need to liase with Alan (for his US products) and London (for products such as weather) which are EGM products? Since ENA includes FX/rate, we have included that global product in our original review. This is needed to understand the process of liquidation of the FX/rate book (as netted against other ENA outstanding positions).

Or is our focus still only gas and power? I just don't want to miss anything or slow down the process.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 706 of 1118

ENA - - Mitsui & Co. (USA) Inc. GTC's

Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11289.

Sara: I asked Sean to contact either you or Mark if anything needs to be done on the financial GTC's for this counterparty.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 05/30/2001 09:57 AM -----

Harry M Collins Sent by: Vanessa Griffin 05/29/2001 03:24 PM

To: Sean Keenan/Enron@EnronXGate cc: Ken Curry/Enron@EnronXGate, Julia Murray/HOU/ECT@ECT, Cheryl Lindeman/ENRON@enronXgate, Deb Korkmas/HOU/ECT@ECT, Dan Lyons/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT Subject: ENA - - Mitsui & Co. (USA) Inc. GTC's

Pursuant to our discussion, please find enclosed separate ENA-Mitsui Steel GTC's for physical steel.

I have made the requested changes in the following provisions:

Clause 1.3 Clause 3.1 Clause 3.2 Clause 4.1 Clause 8

I am also enclosing a redlined version for ease of comparison. Mark Taylor or Carol St. Clair should be consulted to make any changes to the financial GTC's.

Message 707 of 1118

Re:	
Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/3595.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 09/15/2000 02:49 PM -----

Barton Clark 09/15/2000 02:07 PM

To: Brian Schwertner/NA/Enron@ENRON cc: Hope Vargas/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT Subject: Re:

A couple of clarifications to the Proposal itself. The option to acquire 535,715 additional shares is in place now and is currently exercisable by payment of the \$26.88 per share strike price, but after effectiveness of the CCSI S-1 related to the spin-off, we have the option to exercise the option on a cashless basis and the shares will be split 2 for 1. That wasn't clear to me in the revision, and I will have my secretary E-Mail to you and the other members of the distribution a revised Proposal reflecting my clarifications on those points and Exhibit A incorporated therein.

Message 708 of 1118

Re: Marfa	
Sender	sara.shackleton@enron.com
Recipients	['carlew@flash.net']
File	shackleton-s/sent/5597.

Carson: I'm doing fine, thank you very much. It's about time to call Donna and raid someone's wine cellar and/or refrigerator. I'm not going out of town any time soon so let's pick a date.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"R. Carson Llewellyn" <carlew@flash.net> 02/15/2001 10:52 AM

To: Sara Shackleton <Sara.Shackleton@enron.com> cc: Subject: Marfa

Hi Sara:

I heard about a group called "Looking at Art", and they are going to Marfa, Texas to check out the art colony there. I remembered that you had gone there a couple of times and enjoyed it. The most important thing about the conversation to me was that it reminded me that I had not heard from you in a while. I am sure that you are very busy, but I wanted you to know that I hoped things are going well with you and that you get a chance to kick back some soon. Probably because that is what I want to do.

Take Care,

Carson

Message 709 of 1118

ISDA Process Review

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/5301.

Kaye: Please remind Mike and me if I end up serving on a jury next week. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/11/2001 01:27 PM -----

Mike E Kelly@ENRON 01/11/2001 12:03 PM

To: Sara Shackleton/HOU/ECT@ECT, Edward Sacks/Corp/Enron@Enron, Edward D Baughman/HOU/ECT@ECT, Doug Sewell/HOU/ECT@ECT cc: Oscar Dalton/HOU/ECT@ECT, Terri Clynes/HOU/ECT@ECT Subject: ISDA Process Review

Folks,

We are confirmed for our meeting next Wednesday the 17th in room 3125b at 3 pm. To reiterate, the purpose of the meeting will be to clarify the procedures for implementing ISDA agreements with counterparties interested in financial derivative transactions. The goal is for everyone to understand the process as it relates to different types of counterparties and to streamline the internal process wherever possible.

See you next week.

-Mike ex 3-3947

Message 710 of 1118

Re: equity trading in the U.K.

Sender	sara.shackleton@enron.com
Recipients	['paul.simons@enron.com']
File	shackleton-s/sent/5833.

Thanks for the reply!

Paul Simons 03/18/2001 07:36 AM To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: equity trading in the U.K.

Sara

Thanks for the note and good wishes!

Probably wondering what I'm doing in the office on a Sundy as a newly-wed:catching up on email!

Justin's group deal with equity trading; Jonathan Marsh will cover on the regulatory side.

Hope things are fine back at the ranch and going well for you.

Regards

Paul

From: Sara Shackleton on 13/03/2001 13:17 CST To: Paul Simons/LON/ECT@ECT cc:

Subject: equity trading in the U.K.

Paul:

Just checking to see if you are the lawyer monitoring equity trading in the U.K. I am charged with the oversight of Gary Hickerson's equity activity here in Houston and I want to coordinate with the London lawyer. Please advise.

Also, I heard that you were recently married. Congratulations!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 711 of 1118

FW: Morgan Stanley & Co. Draft

Sender	joanne.rozycki@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/6.

-----Original Message-----

From: Dobin, Nora Sent: Monday, November 26, 2001 4:04 PM To: Rozycki, Joanne; Armogida, Jim Cc: DeSpain, Tim Subject: RE: Morgan Stanley & Co. Draft

This appears to be change of authorized signatories direction and looks ok. You might indicate the title of each person authorized to sign and insert Enron Corp. beneath Sincerely, and By: in front of each signature line.

Regards, NJD

-----Original Message-----

From: Rozycki, Joanne Sent: Monday, November 26, 2001 3:01 PM To: Dobin, Nora; Armogida, Jim Cc: DeSpain, Tim Subject: Morgan Stanley & Co. Draft

The attached document is being forwarded at the request of Sara Shackleton. Please let her know by email whether or not you have any objection to execution of the attached document. Tim Despain is okay with it.

<< File: DRAFT.doc >>

Joanne Rozycki Senior Administrative Assistant Enron North America Corp. 1400 Smith Street, EB3880D Houston, TX 77002 Phone: (713) 853-5968 Fax: (713) 646-3490 Email: joanne.rozycki@enron.com

Message 712 of 1118

FW: List of authorized traders

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com']
File	shackleton-s/sent/6356.

Let's add this to "this afternoon"

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/06/2001 11:44 AM -----

"Thomas P Alterson" <alterson_thomas@jpmorgan.com> 06/06/2001 11:31 AM

To: Sara.Shackleton@enron.com cc: Subject: FW: List of authorized traders

Have you been able to take a look at this?

I hate to be a pest, but we are in the midst of an internal audit right now and we are being pressured for this list.

Thank you for your time. Tom Alterson

Thomas P Alterson 06/05/2001 12:18 PM

To: Sara.Shackleton@enron.com cc: Subject: List of authorized traders (Document link not converted)

Sara:

Would you please send me a list of authorized traders for Enron NA Corp? We are updating our files and noticed that we are missing an ATL for Enron.

*ATL form: (See attached file: ATL Enron NA Corp.doc)

Thank you, Tom Alterson

- ATL Enron NA Corp.doc

Message 713 of 1118

Enron North America Corp. confirmations with Bear Stearns & Co Inc.

Sender	sara.shackleton@enron.com
Recipients	['joseph.henry@enron.com', 'tanya.rohauer@enron.com', 'm..melman@enron.com']
File	shackleton-s/sent_items/148.

Gil:

(1) the BS&Co. confirm references the "Irrevocable Sell Order dated August 9, 2001". Please forward a copy. This apparently contains definitions for (multiple) Sell Order Execution Dates.

(2) according to your notes, the BSIL "Standard Terms and Conditions of Business" is subject to review by a UK lawyer. Please advise of your conclusions. Forward executed version (which is incorporated into the confirms).

(3) the BS&Co. confirm references the Customer Agreement and incorporates this as a Credit Support Document. Please forward executed version. [BS&Co. also claims that deals pursuant to your Customer Agreement are Specified Transactions for purposes of OTC derivative transactions]

(4) portions of the confirm do not match the unexecuted Term Sheet which you gave me. Was a Term Sheet executed? Is there an ENE guaranty which is supposed to be a Credit Support Document under the confirm?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 714 of 1118

Raptor Vehicles

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'jordan.mintz@enron.com']
File	shackleton-s/notes_inbox/630.

Sara Shackleton and I are the primary swap team assigned to the preparation of swaps to be placed into the Raptor structures. We have previously worked with Sefton and Chin in coordinating the processes involved. Having completed Raptor 1 swaps, and some of the Raptor 2 and 3 swaps, I discussed with Sefton what I considered to be an improvement to the processes and work allocation between the various groups involved. We were to have a meeting with the various people involved last week, but given the changes in staff in your group and Andrea Reed's move, I thought it best to wait a

week. My assistant, Chaundra Woods, will be coordinating the meeting. I would request that either you, or another attorney who will assist in the future, or both, attend. We have retained Julia Chin on the working group list, but she did not originally work on Raptor. Thanks. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

*Message 715 of 1118***Re: Valentis and CD Holdings**

Sender	caroline.abramo@enron.com
Recipients	['Fred Lagrasta/HOU/ECT@ECT', 'sara.shackleton@enron.com', 'Paul Radous/Enron@EnronXGate']
File	shackleton-s/abramo/14.

wil do..

From: Sara Shackleton@ECT on 04/25/2001 09:03 AM To: Caroline Abramo/Corp/Enron@ENRON cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate

Subject: Re: Valentis and CD Holdings

Caroline:

No Deemed ISDA, we decided that yesterday for the long-dated deal.

We are working on the draft masters for emailing. Please send me the information about your counterparties' lawyers so we can begin negotiating.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/25/2001 06:42 AM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Fred Lagrasta/HOU/ECT@ECT, Paul Radous/Corp/Enron Subject: Valentis and CD Holdings

Please send the draft ISDAS to:

Marty Lifgren- mlifgr@wexford.com Charles Davidson- cdavid@wexford.com

We agreed that the fastest way to proceed wwas to send the ISDA or can we still send the deemed ISDA?.

*Message 716 of 1118***Comments on your comments**

Sender	awaskow@exchange.ml.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/4546.

Dear Sara:

Attached are our proposed revisions to your revised annex I, which should appear in blue text.

ASSIGNABILITY: We understand Enron's desire to have flexibility to assign obligations between affiliates, but cannot give consent to such assignment in advance, without considering all of the facts and circumstances of a particular assignment

proposal. As an accommodation and clarification, we propose restoring the parenthetical. As we discussed earlier, we cannot agree to a listing of reasons why withholding of consent would not be considered unreasonable.

LIMITED LIABILITY: We wish to ensure that paragraph 11(g) remains in full effect.

I hope these revisions are acceptable. Please call me and we can coordinate the preparation of execution documents. Thanks, and best regards.

Andy Waskow

<<EnronAnnex1.doc>>

Andrew V. Waskow Vice President and Counsel Merrill Lynch & Co., Inc. 4 World Financial Center, Floor 12 New York, NY 10080 Phone: 212-449-5828 Fax: 212-449-0265 awaskow@exchange.ml.com

- EnronAnnex1.doc

Message 717 of 1118

Re: CFD Confirmation

Sender	sara.shackleton@enron.com
Recipients	['dennis@ddecuir.com']
File	shackleton-s/all_documents/4937.

Dennis:

You have attached a form of confirmation for a very specialized derivative transaction, namely, a CREDIT derivative. The transaction that Enron and So. Cal. would be executing would be a COMMODITY derivative (that commodity being power). The confirmation format is similar. I will send you an example later. Sara

Dennis De Cuir <dennis@ddecuir.com> 11/28/2000 08:19 PM

To: Sara Shackleton <sara.shackleton@enron.com> cc: Dave Kolk <dkolk@compenergy.com> Subject: CFD Confirmation

Sara,

Is the attachment the form of confirmation that would be employed for a Enron/SCWC "contract for differences" transaction? I pulled it from the ISDA website you mentioned. For Dave's benefit, the site is www.isda.org. Sara, Dave advises SCWC on energy matters.

-- Dennis

Dennis W. De Cuir A Law Corporation 2999 Douglas Boulevard, Suite 325 Roseville, California 95661

(916) 788-1022 Telephone (916) 788-1023 Facsimile dennis@ddecuir.com Email

This is a privileged and confidential communication.

- shortconf_matrix.pdf

Message 718 of 1118

Re: updated authorised trader list

Sender sara.shackleton@enron.com

Recipients ['samantha.boyd@enron.com']

File shackleton-s/sent/2048.

yes, you can call Laurel for details.

Samantha Boyd@ENRON 09/19/2000 03:03 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: updated authorised trader list

Is this a new request? Please call me to discuss.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Sara Shackleton@ECT 09/19/2000 02:20 PM

To: Samantha Boyd/NA/Enron@Enron cc: Tana Jones/HOU/ECT@ECT Subject: updated authorised trader list

are you handling? ----- Forwarded by Sara Shackleton/HOU/ECT on 09/19/2000 02:19 PM -----

Laurel Adams 09/19/2000 12:51 PM

To: Sara Shackleton/HOU/ECT@ECT cc: John Weakly/Corp/Enron@ENRON Subject: updated authorised trader list

Sara,

We will need John Weakly added to the authorized trader list for ECT Investments and ENA (similar to Selena Gonzales and David Vitrella) Please let me know what info you may need from me to make this happen. Thanks for your help!

Message 719 of 1118

Enron North America Swaps: Project Raptor

Sender mary.cook@enron.com

Recipients ['sara.shackleton@enron.com', 'mark.taylor@enron.com', 'jnaughto@cwt.com']

File shackleton-s/all_documents/3559.

Pursuant to our conversation of today, attached are the form of swaps we developed for shares and warrants. These can be used as a basis for the development of forms for the other types of equity investments which will be subject to additional swaps. As I obtain the source information evidencing the different types of equity investments I will fax the materials to you. Thus far I know we will need swaps for (a) LLC membership interests, (b) LP partnership interests, (c) "income participation certificates." As I mentioned, the valuation commercial department is working on "Final Price" language evidencing how a valuation will be conducted for these various equity investments on any Valuation Date.

Please feel free to call with questions. As I mentioned, we would like to have the forms developed by mid next week. Thank you for your attention to these matters. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 720 of 1118

Re: Futures Agreements

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'theresa.brogan@enron.com']
File	shackleton-s/notes_inbox/2328.

Sara, SSB, I agree with Tania who sent us the docs

Morgan: Jeff Jennings is the guy who runs the futures trading desk on the FI side, Michael Kustra runs the Futures Trading desk on the Equity Side. We should only need one agreement on the FI side which should cover the limited products needed on the Equity side. I called Michael Kustra to get a name of a legal contact for you.

Goldman Sachs, I sent the agreement to you yesterday. Thanks Sheila

From: Sara Shackleton on 05/01/2001 09:41 AM To: Sheila Glover/HOU/ECT@ECT cc: Subject: Futures Agreements

Sheila:

I want to send legal comments to SSB and Morgan Stanley today. Since I do not have the names of any lawyers, please verify that I should begin with:

- (1) SSB: Tania Meyer Wilson, VP Investments
- (2) Morgan: Joseph A. Marovich (his card was attached to the documents)

Have you received anything from Goldman Sachs?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 721 of 1118

FW: Credit Suisse First Boston International ("CSFBI")

Sender	sara.shackleton@enron.com
Recipients	['julia.murray@enron.com']
File	shackleton-s/sent_items/768.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, October 25, 2001 4:50 PM To: Freeland, Clint Cc: Armogida, Jim; Rogers, Rex; Nogid, Jeff Subject: Credit Suisse First Boston International ("CSFBI")

I have reviewed the following documents from CSFBI:

- (1) Cancellation letter for five (5) swaps (which were never confirmed)
- (2) Equity Swap on 400,000 shares ENE
- (3) Two (2) Equity Forwards on 1,025,000 shares and 1,672,000 shares ENE, respectively

The forwards contain \$40 price triggers which will be adjusted through either an amendment or put. This will be documented after the swap and forwards are signed.

Please review the trade details for the swap and forwards, including share caps, floating amounts payable by ENE, spreads, etc. You have an email version of the CSFBI documents.

The documents are in the format agreed to with CSFBI on October 2.

Let me know if you have any questions. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 722 of 1118

Bank Brussels Lambert (acquired by ING)

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com', 'pushkar.shahi@enron.com']
File	shackleton-s/sent/6005.

Tanya:

Once again, we need a master for Pushkar's FX trading. The counterparty's name is:

ING Barings (U.S.) Capital Markets LLC

I am constantly receiving calls for this agreement. Please assign. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/11/2001 08:42 AM -----

Sara Shackleton 10/31/2000 09:50 AM

To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: Bank Brussels Lambert (acquired by ING)

Tanya: This is the master referred to in my vm. Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 10/31/2000 09:50 AM -----

Sara Shackleton 10/02/2000 08:29 AM

To: William S Bradford/HOU/ECT, Tanya Rohauer/HOU/ECT, Paul Radous/Corp/Enron cc: Subject: Bank Brussels Lambert (acquired by ING)

Don't know if I have the name spelled correctly but I received a call requesting an ISDA Master (for Pushkar Shahi) for trading rate/currency. Thanks. Sara

Message 723 of 1118

Re: online GTC's for the BOFC day/seasonal financial "swaps"

Sender	justin.rostant@enron.com
Recipients	['william.stuart@enron.com', 'sara.shackleton@enron.com', 'susan.musch@enron.com']
File	shackleton-s/notes_inbox/2697.

Attached is the final version of the product long description highlighting a few changes. Let me know if you approve. Thanks jr

From: Sara Shackleton on 03/29/2001 10:07 AM To: William Stuart/HOU/ECT@ECT, Justin Rostant/HOU/ECT@ECT, Susan Musch/Enron@EnronXGate cc: Subject: online GTC's for the BOFC day/seasonal financial "swaps"

All:

Attached are the two (2) final version GTC's. The legal terminology is identical for each product. However, Stuart needs to provide a title for each product which will also appear in the Paragraph 1.

The former Paragraph 2 has been deleted (it contained the "confirmation terms") and the remaining paragraphs renumbered.

Justin: Will you circulate the revised long description (since your conversation with Stuart yesterday afternoon)? Also, will you let us all know when we are completely done?

Please call with comments as soon as possible.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 724 of 1118

Questions regarding Confirmations

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/sent/5905.

FYI

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/27/2001 04:06 PM -----

Tana Jones 03/27/2001 12:50 PM

To: Linda Sietzema/CAL/ECT@ECT, Sharon Crawford/CAL/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Peter Keohane/CAL/ECT@ECT, Greg Johnston/CAL/ECT@ECT, Dianne Seib/CAL/ECT@ECT
Subject: Questions regarding Confirmations

Linda & Sharon,

My primary job responsibility is to online trading, and right now EnronOnline is quite a beast of a customer. Because of that I please ask that you direct any future questions you may have with respect to confirmations to our two paralegals who handle the day to day trading, Susan Bailey at x34737 and Stephanie Panus at x53249.

With respect to the two current Canadian confirmations, Sara Shackleton, an attorney in our Group, is working with Credit to resolve the questions on the Slater Steel and Casco credit worksheets.

Message 725 of 1118

ITG Corp Service Provider,

Sender	sara.shackleton@enron.com
Recipients	['cheryl.nelson@enron.com']
File	shackleton-s/all_documents/8694.

Cheryl: I'll deliver to you. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/10/2001 05:37 PM -----

Sheila Glover 01/10/2001 04:12 PM

To: Sara Shackleton/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron cc: William S Bradford/HOU/ECT@ECT, David Port/Market Risk/Corp/Enron@ENRON, Selena Gonzalez/HOU/ECT@ECT Subject: ITG Corp Service Provider,

Sara, ECT Investments Inc currently has a service agreement in place with ITG Corp for POSIT Trading. ITG also offers an enhanced platform, known as the Quantex Trading application. The intent would be to use the enhanced platform replacing the POSIT application.

We are forwarding the trading application agreement onto you for the appropriate person's legal review and approval. Please do not hesitate to call Selena, 3-5168, if you need additional information. We would appreciate an estimated timeframe for completion. Many thanks. Sheila

Message 726 of 1118

RE: Emergency Password Reset

Sender	kaye.ellis@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9932.

Janette Oquendo only resets Lotus Notes Passwords. She is finding someone to reset the computer logon password.

Kaye ----- Forwarded by Kaye Ellis/HOU/ECT on 03/19/2001 04:24 PM -----

Janette Oquendo/ENRON@enronXgate 03/19/2001 04:19 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Emergency Password Reset

Done. Lotus Notes Pw=changeyourpassword

Thanks, Janette

-----Original Message-----

From: Shackleton, Sara Sent: Monday, March 19, 2001 4:04 PM To: Oquendo, Janette Subject: Emergency Password Reset

Samantha Boyd had a death in her family early this morning and I do not know when she will return to work. I do not know her computer password she is working on time sensitive documents with correspondence being done through email. Please reset her computer password and lotus notes password so I may access the correspondence. Please notify me of the new passwords.

Thank you,

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 727 of 1118

Enron Credit Custody Account

Sender	sara.shackleton@enron.com
Recipients	['cathy.moehlman@enron.com']
File	shackleton-s/sent/6334.

FYI from earlier today.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/04/2001 06:03 PM

Sheila Glover 06/04/2001 11:08 AM

To: Mary Perkins/Enron@EnronXGate cc: Sara Shackleton/HOU/ECT@ECT, Richard Sage/Enron@EUEnronXGate, Anna McAndrew/Enron@EUEnronXGate Subject: Enron Credit Custody Account

Mary, Based upon our recent discussions with you regarding the set up of a Global Custody account, you may want to have the same discussions with Enron Credit who are pursuing a Global Custody Account with BONY. Richard Sage is the Contoller for the Business unit and Anna is the Settlements person who is working to get the account established.

Richard and Anna, Sara, Laurel and I have been having discussions regarding our requested Global Custody account with Mary. Mary has some specific concerns which she may want to make sure are addressed with your set up of the account as well.

Thanks. Sheila

Message 728 of 1118

Enron/McGarret D

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/3924.

Attached in Word and WordPerfect is a draft of the A&K General Opinion marked against the McGarret C transaction.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 260177.wpd - 260177.doc

Message 729 of 1118

Talon/Raptor K&E Swap Comments

Sender	mary.cook@enron.com
Recipients	['andrea.reed@enron.com', 'anne.yaeger@enron.com', 'sara.shackleton@enron.com', 'chris.loehr@enron.com']
File	shackleton-s/notes_inbox/923.

I have left you each a voice mail, but wanted to be sure to try to catch the issue with you by email as well. We received a fax today at 3 with some comments from K&E on the swaps. Please note that we have processed most all of the swaps and are now working on Merlin and Catalytica which are more complex. Julia Chin and I have reviewed the comments and feel that they are not substantive and only reflect different wording styles. At this juncture we would request that you assess whether or not our time is well spent reprocessing all of the swaps on the basis of the K&E comments. Please consider these matters as soon as you can obtain a copy of their mark-ups and advise me. In order that I be most productive I intend to continue my work on the Merlin Credit Derivative while awaiting your direction on these other

nonsubstantive changes. Therefore, the subject swaps will not now be reprocessed. Thank you. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 730 of 1118

Re: Allegheny/Enron side letter re: ISDA Agreement

Sender	sara.shackleton@enron.com
Recipients	['teiglandl@sullcrom.com']
File	shackleton-s/sent/5838.

Lauren:

(1) Par. 3(xiii) second and fourth lines: the word "Guaranty" should be replaced by the word "guaranty" and the words "the Guaranty" should be replaced with "that guaranty", respectively.

(2) Exhibit B Guaranty, first and final paragraphs: change the date to "March 19, 2001"

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

TeiglandL@sullcrom.com 03/19/2001 01:21 PM

To: Sshackl@enron.com cc: Subject: Allegheny/Enron side letter re: ISDA Agreement

Sara, attached is a blackline which shows some minor changes we have made to the above to fix some nits/clarify exhibit references. Let me know if you have any questions or comments.

<<Allegheny ENRON ISDA SIDE LETTER(v4).DOC>>

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

- Allegheny ENRON ISDA SIDE LETTER(v4).DOC

Message 731 of 1118

Electronic Pay Stubs

Sender	enron.payroll@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/306.

Get ready. Beginning in November, electronic pay stubs will be available to all employees who have their paychecks direct deposited into their bank account. Electronic pay stubs are an easy, fast, and efficient way for you to get your payroll information. They will also help Enron to realize a considerable savings in time and dollars spent over traditional printed pay stubs.

If you prefer to receive a hardcopy of your pay stub, click on the link below to complete a request form. This form must be submitted to Payroll by October 15, 2001. Unless you submit a form your pay stub information will default to electronic viewing.

Please click on the link below.

Name: SARA SHACKLETON Personnel number: P00500661 Phone: 7138535620

If you have questions about electronic pay stubs, please contact Janice Priddy (Payroll) 713-853-7839 or Marie Newhouse (ClickAtHome) at 713-345-4185 or send an email to Enron.Payroll@enron.com (Enron Payroll in Outlook).

Stay tuned for more details in the coming weeks.

<http://etcsurvey.corp.enron.com/wi/p0810709/i.asp?r=19738&s=LDQWOCHC&l=9>

Message 732 of 1118

Re: Guaranty for Merrill Lynch International Bank

Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9522.

Sara - I have not been able to locate a copy of the assignment, only the letter agreement from Merrill Lynch that we executed. Should I have the assignment re-executed?

From: Sara Shackleton@ECT on 03/01/2001 08:28 AM To: Stephanie Panus/NA/Enron@Enron cc:

Subject: Guaranty for Merrill Lynch International Bank

Stephanie: Did you locate a copy of our ML assignment?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/01/2001 08:27 AM -----

Jason R Williams/ENRON@enronXgate 03/01/2001 07:31 AM

To: Sara Shackleton/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron cc: Subject: Guaranty for Merrill Lynch International Bank

Sara and Stephanie -

I got a call this morning from Todd Gibson at Merrill Lynch International Bank, following up on the status of our \$150 MM guaranty.

Can you please give me a call sometime today and let me know where we are on this? I want to give him a call back to advise on status.

Thanks,

Jay

Message 733 of 1118

Securities Loan Agreement

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'ameytina@bear.com']
File	shackleton-s/all_documents/9270.

Anna:

I have not seen the executed Enron Corp. guaranty this afternoon and I'll check with Enron Corp. when we reopen for business. We should talk first thing on Tuesday. A couple of items:

(1) The Securities Loan Agreement is between Bear, Stearns & Co. Inc. and Enron North America Corp. You requested The Bear Stearns Companies Inc. as the guaranty beneficiary (although that party is incorrectly stated as being party to the Securities Loan Agreement). I just wanted to verify your preference and we may want to modify the first page to be accurate.

(2) As you requested that I prepare the Schedules A and B, I ask the following:

(i) as to Schedule A, please submit your notice information

(ii) as to Schedule B, we propose the default interest rate to be the Federal Funds Rate as defined in your agreement.

Please respond and we can finalize the agreement. Please let me know if there is anything further you require. Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 734 of 1118

Revision to Schedule

Sender	sara.shackleton@enron.com
Recipients	['dick.varner@eweb.eugene.or.us', 'jdeason@chbh.com']
File	shackleton-s/all_documents/8652.

Dick:

After our conversation, I spoke with our settlements people again who requested an EWEB invoice when Enron owes money to EWEB. I propose that we add a section to the Schedule entitled "Accounts" (Part 3(h)) as follows:

"Prior to each payment date for any Transaction, Party A (ENA) shall provide Party B with an invoice reflecting the net payment owed by a party. Notwithstanding the foregoing, Party B shall provide Party A with an invoice prior to any payment date on which Party A owes a net payment to Party B. With respect to all payments hereunder, and except as otherwise directed in writing, the parties shall comply with the following payment instructions:

[bank, account no., ABA no.]"

Please provide me with EWEB's account data and let me know if you have any comments. I'll send the blackline immediately after I hear from you.

Also, I have not received EXECUTED CONFIRMATIONS. Have these been sent to anyone at Enron? Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 735 of 1118

SEC 13-F Filing as of 12/31/2000, submission date 2/14/2001

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com']
File	shackleton-s/sent/5518.

Mark: What lawyer should review the securities filing (and other securities issues) for Gary's group? Is it Alan or a different lawyer?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/08/2001 10:27 AM

Sheila Glover 02/07/2001 06:17 PM

To: Donna Lowry/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Michael W Bradley/HOU/ECT@ECT, John Greene/LON/ECT@ECT cc: Jeffrey A Shankman/HOU/ECT@ECT, Mike McConnell/HOU/ECT@ECT, Mark Koenig/Corp/Enron@ENRON, Brent A Price/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT Subject: SEC 13-F Filing as of 12/31/2000, submission date 2/14/2001

Enclosed you will please find our SEC 13-F filing for the quarter ending 12/31/2000. This submission is due on 2/14/2001. We have also included the overview of 13-F filing requirements for your reference, if desired.

If you have any questions please feel free to give me, 3-3210, or Theresa Brogan, 3-1439, a call.

Thanks, Sheila

Message 736 of 1118

RE: Jefferson Smurfit Corp.

Sender	tanya.rohauer@enron.com
Recipients	['bob.crane@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/deleted_items/638.

Based on last night's mids...we show that ENA owes \$21,541. Deals go out to 2004 and remaining tonnage is approx 22,500. Approx notional difference per ton of \$26 seems to be a reasonable bid-offer spread (being that the fixed prices on the deals were \$810 and \$825). Bob, do you agree with my assessment? I cannot imagine 16 Bleached Folding Carton has much liquidity (what the hell is it???). Sara, you may want to forward the calcs to Bob...if we have any other 16 BFC deals (although I have a hard time believing we do) this may be a useful price point for other valuations. Sara, can we present a counterparty's calcs in lieu of standard quotes?

tanya -----Original Message----- From: Shackleton, Sara Sent: Friday, January 04, 2002 5:03 PM To: Rohauer, Tanya; Crane, Bob Subject: Jefferson Smurfit Corp.

Termination letter setting Termination Date as 1/25/02. Terminates the ISDA Master Agreement and deal nos. Y23821.1 and Y20976.1. ENA owes \$604,957.62 and "calculations" are attached.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 737 of 1118

RE: Mexican counterparties - in the money positions

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com']
File	shackleton-s/sent_items/339.

Francisco tells me that all of the Mexican ISDA Master Agreements provide for automatic early termination (as of the day prior to filing). Valuation would have occurred as of Friday, Nov. 30, 2001.

The valuation info. that I had (for the parties below) must have come from the commercial people and incorrect.

-----Original Message-----

From: Rohauer, Tanya Sent: Tuesday, January 29, 2002 10:20 AM To: Shackleton, Sara; Moran, Tom Subject: RE: Mexican counterparties - in the money positions

Have they been terminated? Our file is as of 11/30, but if they have not terminated, the value could be vastly different from that file.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, January 29, 2002 9:45 AM To: Moran, Tom; Rohauer, Tanya Subject: Mexican counterparties - in the money positions

I just wanted to verify that the following parties are out of the money (as of 11/30/01):

Compania Minera Autlan Copamex Galvak

I was told that these are now in the money to ENA.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 738 of 1118

Juniper Partnership Interest Swap--Raptor

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1035.

Sara, attached is my draft for partnership interests based upon the Juniper LP. Andrea has agreed that as to partnership interests, the mutual termination right is only for the entire interest and we do not need to draft in partial termination rights so the Notice, if given, will always be for the entire interest. I have fixed Equity Notional Amount and this makes the numbers work. I modified Method of Adjustment to cover any event of dilution or conversion (but did not specifically say in sole discretion of Calc Agent)--this will cover primarily the effect of the addition of new partners to the partnership. I also left in Extraordinary Events as we have previously syled same since partnership interests could be sold, exchanged, rolled up to a master partnership etc. It is not perfect, but it seems to cover those types of events adequately. Give me a call Monday morning and we can call Jean. Again, thanks for your help on Friday. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 739 of 1118

RE: Requests for return of cash collateral

Sender	sara.shackleton@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	shackleton-s/sent_items/58.

yes, earlier this year (posted in the form of "up front collateral").

-----Original Message-----

From: Mellencamp, Lisa Sent: Thursday, December 27, 2001 1:13 PM To: Shackleton, Sara Subject: RE: Requests for return of cash collateral

was the cash margin given to us pre-petition?

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 27, 2001 11:03 AM To: Mellencamp, Lisa Cc: St. Clair, Carol Subject: Requests for return of cash collateral

Lisa:

ENA has received a second written request from a financial counterparty (Union Spring Fund Ltd.) for the return of \$150,000 cash collateral plus interest. The cash was posted as initial margin on trade date of the swaps. We have confirmed that all trades were terminated as of mid-December, 2001. The counterparty has not sent a "termination letter" as there was nothing to terminate, but has sent a letter requesting return of the collateral.

Although we may not want to return the cash, aren't we obligated to do so?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 740 of 1118

RE: ENA exposures for FX/rate desk

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'tom.moran@enron.com', 'clara.carrington@enron.com']
File	shackleton-s/sent_items/30.

How about 9:30 on the 30th floor? Sara

-----Original Message-----

From: Moran, Tom Sent: Wednesday, December 12, 2001 5:29 PM To: Shackleton, Sara Cc: Glover, Sheila; Carrington, Clara Subject: RE: ENA exposures for FX/rate desk

Can we get together on Thursday morning to discuss ?

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, December 12, 2001 4:35 PM To: Moran, Tom Cc: Glover, Sheila; Carrington, Clara Subject: ENA exposures for FX/rate desk

Tom:

Further to my voice mail, attached is a "short list" of FX/rate desk financial counterparties. We will need an aggregate ENA exposure before attempting to negotiate ENA's in-the-money positions on a commodity by commodity basis (i.e., the FX/rate exposure, in particular). I will speak with Clara Carrington about segregation of the terminated trades from their books.

I'd like to sit down with you and Sheila Glover as soon as possible to strategize.

Thanks. Sara

<< File: FX Rate Desk - Terminations.doc >>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 741 of 1118

Re: Total International Ltd.

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com', 'brant.reves@enron.com']
File	shackleton-s/sent/6061.

Did you speak with your ECTRIC credit counterpart? Who is it? Did he make this inquiry already? One of you needs to speak with Total. The "due diligence" issue is a credit responsibility. Please let us know how we can help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brant Reves/ENRON@enronXgate 04/17/2001 05:01 PM

To: Sara Shackleton/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Adam Gross/HOU/ECT@ECT Subject: Total International Ltd.

Did we ever get any further on ECP issues related to ENA subs, i.e. ECTRIC business with Total International Ltd, an unsupported subsidiary of TotalFina.

I have left two emails with my contact regarding ECP issues, with no reply. What are our choices to do with trade v34062, a trade not yet confirmed with this customer. I don't see this as a credit issue, but more of a legal issue. From a credit standpoint, I am ok with the trade.

Adam - consider these guys on the No Trade list until we can finalize handling status.

brant

Message 742 of 1118

Re: Catalytica

Sender	mary.cook@enron.com
Recipients	['brian.schwertner@enron.com', 'sara.shackleton@enron.com', 'andrea.reed@enron.com', 'barton.clark@enron.com',...]
File	shackleton-s/notes_inbox/1034.

Sara Shackleton is handling Catalytica. Please include her on all emails re same. Mary

sara, see below.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Brian Schwertner/ENRON 09/17/2000 11:50 PM

To: Barton Clark/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Brenda Whitehead/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT Subject: Re:

Due to options outstanding for Catalytica that have a separate value from the preferred shares that we already carry, we have created two Raptor proposal sheets for the assets. One for the Catalytica options and one for the preferred shares.

Please review the following documents and let me know if you have any questions.

Brenda Whitehead@ECT 09/15/2000 02:25 PM To: Brian Schwertner/NA/Enron@ENRON cc: Hope Vargas/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT

Subject:

per the request of Bart Clark, please see these attachments:

Message 743 of 1118

Re: Raptor Process Meeting

Sender	mary.cook@enron.com
Recipients	['chaundra.woods@enron.com', 'brian.schwertner@enron.com', 'crystal.reyna@enron.com']
File	shackleton-s/notes_inbox/610.

For those new to the team, I thought you might want to review the following prior to the meeting. For those of you who received these documents before, please note that a few revisions have been made, and the Raptor Process memo has been modified on the basis of discussions with EGF. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Chaundra Woods 10/19/2000 10:53 AM

To: Jordan Mintz/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Michael S Galvan/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron, L'Sheryl Hudson/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Darlene C Forsyth/HOU/ECT@ECT, Maricela Trevino/HOU/ECT@ECT, Crystal Reyna/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Nicole Mendez/HOU/ECT@ECT, Linda J Simmons/HOU/ECT@ECT, Linda J Noske/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT Subject: Raptor Process Meeting

The Raptor process meeting is scheduled for Tuesday, October 24, 2000 at 10:00 a.m. in EB38C1.

Message 744 of 1118

Amendment to Enron Corp. \$25 Million guaranty of Enron Credit Inc.

Sender	sara.shackleton@enron.com
Recipients	['cheryl.nelson@enron.com', 'tom.doukas@enron.com', 'schernick@bear.com']
File	shackleton-s/sent/6206.

Sharon:

I didn't have your phone or fax numbers to keep you in the loop so I am sending this email by way of explanation.

You may recall that Anna Meytina and Cheryl Nelson negotiated one or more agreements between the Bear companies and Enron Credit Inc. These documents included the above referenced \$25 Million guaranty. I understand that our respective commercial groups have agreed to an increased guaranty cap (\$100 Million). I have learned that Anna is on vacation. I don't know which Bear lawyer will look into this recent guaranty development so I hope that you will advise us in that regard.

Effective May 15, 2001, Enron Corp. executed an amendment to the March 29, 2001 guaranty to increase the guaranty cap. I have faxed a copy of this amendment to both Bill Carik and Cheryl Lewis. Please provide me with your fax number and I will fax the amendment to you.

Cheryl Nelson and I look forward to hearing from you. Please let us know how we can further assist.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 745 of 1118

Mercado Gas Services, Inc.

Sender	sara.shackleton@enron.com
Recipients	['sandy.olitsky@enron.com', 'eric.moon@enron.com', 'barry.tycholiz@enron.com', 'larry.hunter@enron.com']
File	shackleton-s/sent/6037.

All:

(1) Joe and I have reviewed the Termination Agreement for Mercado and it looks fine.

(2) I suggest that the following language be added to the bottom of a revised invoice (revised because the comment section which indicates the NF1164.Y is an annuity completed on 04/11/01 is inaccurate):

Mercado Gas Services, Inc. acknowledges that payment for Deal No. NF1164.Y is made in partial consideration of that certain Assignment and Assumption Agreement dated as of April 5, 2001 by and among Mercado Gas Services, Inc., Williams Energy Marketing & Trading Company and Enron North America Corp.

MERCADO GAS SERVICES, INC.

By: _____ Name: _____ Title: _____

(3) Joe and I have the following questions:

(a) If the assignment to Williams was effective 4/5/01, why are we looking at figures from 4/9/01 and 4/11/01, respectively?

(b) In lieu of (a) above, have ENA and Mercado already agreed to the numbers appearing on the invoice?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 746 of 1118

Re: ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC

Sender	sara.shackleton@enron.com
Recipients	['nicole.russell@mirant.com']
File	shackleton-s/sent/5777.

Nicole:

I hope you and Frank can finalize everything tomorrow. Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

"Russell, Nicole" <nicole.russell@mirant.com> 03/08/2001 10:08 AM

To: "'Sara.Shackleton@enron.com'" <Sara.Shackleton@enron.com> cc: "Satterly, Kenneth" <ken.satterly@mirant.com>

Subject: ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC

<<ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC>>

Sara,

I have a couple quick comments on the letter you sent this morning. In general, we need to make clear that we are replacing the credit support provider under the ISDA. Otherwise, I am concerned that we could face a possible default under the ISDA once the VRI parental guaranty is terminated. Otherwise, the letter looks very agreeable to me. I am anticipating we can get this executed today so please keep in touch with me in regards to any further changes you would

like to make.

Many thanks for all your help.

Best regards,

Nicole Russell

- ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC

Message 747 of 1118

Catequil Confirm

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'larry.hunter@enron.com']
File	shackleton-s/all_documents/9824.

Joe: Per my voice mail. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/15/2001 10:39 AM -----

Mog Heu@ENRON 03/15/2001 10:29 AM

To: Sara Shackleton/HOU/ECT@ECT, cstclai@enron.com cc: Caroline Abramo/Corp/Enron@Enron Subject: Catequil Confirm

Please let me know if there is anything else needed in order to get the confirms for these deals to go out... They need to go out today.

Here are all the tickets for the trades we have done with Catequil:

QV0879.1 QV0879.5 3/2/01 Catequil sell 1 a day AECO for Nov-March 02 @ -.19

QV0879.2 QV0879.6 3/2/01 Catequil buy 1 a day NGI-Chicago Citygate for Nov-March 02 @ 0.255 + .005

QV4865.1 QV4865.5 3/6/01 Catequil sell 1 a day AECO for Nov-March 02 @ -.195

QV4865.2 QV4865.6 3/6/01 Catequil buy 1 a day NGI-Chicago Citygate for Nov-March 02 @ 0.245 + .005

QW3079.1 QW3079.2 3/9/01 Catequil sell 1 a day AECO for May-Oct 01 @ -.195

QW8413.1 QW8413.2 3/13/01 Catequil sell 1 a day AECO for May-Oct 01 @ -.25

Mog :)

Message 748 of 1118

RE: financial trading auction

Sender	sara.shackleton@enron.com
Recipients	['louis.dicarlo@enron.com']
File	shackleton-s/sent_items/493.

My assistant Becky Spencer will have copies made for you both.

-----Original Message-----

From: Dicarlo, Louis Sent: Thursday, March 21, 2002 1:12 PM To: Shackleton, Sara Cc: Bridges, Michael Subject: RE: financial trading auction

Thanks for the notice.

Do you have the referenced process in electronic format? If so, please forward. Otherwise, can you have a hardcopies made and forward to Mike and I?

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, March 21, 2002 12:13 PM To: Dicarlo, Louis; Bridges, Michael Subject: financial trading auction Importance: High

Do not proceed with any action relating to a potential auction of financial trading contracts. You will need to have the process approved internally, with the creditors' committee and by our bankruptcy lawyers.

I have copies of "processes" which were implemented by the physical power group which you may want to see and use as a template.

Mike: the "teaser letter" has not been approved by Weil and we will need approvals before we can go forward.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 749 of 1118

(01-153) NYMEX HOLDINGS, INC. CANDIDATES FORUM

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10950.

Notice No.: 01-153 May 4, 2001

To: All NYMEX Holdings, Inc. Stockholders

From: Donna M. Talamo, Director Office of the Corporate Secretary

Re: NYMEX HOLDINGS, INC. =01) CANDIDATES=01, FORUM

Please be advised that a NYMEX Holdings, Inc. candidates=01, forum is sched= uled=20 to be held on WEDNESDAY, MAY 9, 2001 at 3:45 P.M. on the 10th floor in the= =20 Boardrooms of the Exchange, One North End Avenue, New York, New York=20 10282-1101.

At that time, each candidate will be given the opportunity to address the= =20 audience regarding his position in connection with the special elections o= f=20 Board Directors scheduled to be held on Wednesday, May 23, 2001.

Inquiries regarding the aforementioned may be directed to Donna Talamo at= =20 (212) 299-2372.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D\(01-153\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(01-153))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 750 of 1118

Re: Addi to transfer of funds authorization for ENA

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/all_documents/10182.

Stephanie, please send a one page one line note to Bear, Morgan and Goldman informing them of the addition.

Sara, for your interest, note the addition.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Stephanie Panus 03/29/2001 01:55 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Theresa T Brogan/HOU/ECT@ECT Subject: Re: Addi to transfer of funds authorization for ENA

No problem to add him to the list.

Cheryl Nelson Sent by: Cheryl Nelson 03/29/2001 01:46 PM

To: Stephanie Panus/NA/Enron@Enron cc: Subject: Addi to transfer of funds authorization for ENA

Stephanie, can you make this change?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 03/29/2001 01:45 PM -----

Theresa T Brogan@ECT 03/29/2001 11:51 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Addi to transfer of funds authorization for ENA

Cheryl, We would like to add David Vitrella as an authorized signatory for the commercial side on transfer of funds for ENA . He is currently on the authorized list for ECT Investments. Please let me know what you need from me to make this happen.

Thanks, Theresa

Message 751 of 1118

Re: Raptor Meeting - Tuesday, August 22, 2000

Sender	sara.shackleton@enron.com
Recipients	['carolyn.george@enron.com']
File	shackleton-s/sent/1868.

The swap group has a meeting every other Tuesday, including Aug. 22. Either Mary or I will try to attend.

Carolyn George@ENRON 08/21/2000 03:03 PM

To: Stuart Zisman/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Scott Sefton/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT, Gordon McKillop/NA/Enron@ENRON, AnnMarie Tiller/Corp/Enron@ENRON, Stephen H Douglas/HOU/ECT@ECT, Jordan Mintz/HOU/ECT@ECT cc: Tamara Davis/HOU/ECT@ECT, Joyce Dorsey/HOU/ECT@ECT, Darlene C Forsyth/HOU/ECT@ECT, Linda J Noske/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT, Chaundra Woods/HOU/ECT@ECT Subject: Raptor Meeting - Tuesday, August 22, 2000

Please note that a meeting in reference to Raptor will be held Tuesday, August 22, 2000 at 2:00 p.m. The meeting will be held in EB2990.

Attendees: Mary Cook Steve Douglas Gordan McKillop Julia Murray Andrea Reed Scott Sefton Sara Shackleton AnnMarie Tiller Stuart Zisman

If you are unable to attend, please let me know.

Thank you,

Carolyn George Sr. Administrative Assistant Enron North America - Legal 1400 Smith, EB3830 Houston, TX 77002 (713) 853-3439 Fax: (713) 646-3393 email: carolyn.george@enron.com

Message 752 of 1118

RE: Frontera - ISDA Agreement

Sender	sara.shackleton@enron.com
Recipients	['paul.radous@enron.com', 'mike.curry@enron.com']
File	shackleton-s/sent/6267.

Mike: I sent a request for a credit worksheet to Paul Radous on May 16.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Mike Curry/ENRON@enronXgate 05/24/2001 12:49 PM

To: David Portz/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Frontera - ISDA Agreement

David, Have not heard anything on the ISDA Agreement lately....do you know who I can call to see what the status is?

Thanks, - Mike

-----Original Message-----

From: Portz, David Sent: Tuesday, May 15, 2001 5:19 PM To: Shackleton, Sara Cc: Curry, Mike Subject: Frontera - ISDA Agreement

Sara-- Are you still the swaps lawyer to assist with this? If not, would you pass it to the person who can help Mike Curry with this? Thanks.

----- Forwarded by David Portz/HOU/ECT on 05/15/2001 05:11 PM -----

Mike Curry/ENRON@enronXgate 05/15/2001 04:47 PM To: David Portz/HOU/ECT@ECT cc: Subject: Frontera - ISDA Agreement

David, We want to be able to start performing financial trades with Frontera so could you please prepare an ISDA Agreement for their review. Thanks, - Mike

Message 753 of 1118

FW: President and Fellows of Harvard College

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent_items/641.

Susan: Can you please have a copy of the Harvard ISDA sent to Tanya. Thanks.

-----Original Message-----

From: Bradford, William S. Sent: Friday, November 02, 2001 9:09 AM To: Shackleton, Sara; Rohauer, Tanya; Williams, Jason R (Credit) Cc: Suttle, John Subject: RE: President and Fellows of Harvard College

Please send a copy of the executed document to Tanya Rohauer. We will review the amendment but need the original document.

-----Original Message-----

From: Shackleton, Sara Sent: Friday, November 02, 2001 8:51 AM To: Rohauer, Tanya; Williams, Jason R (Credit) Cc: Bradford, William S.; Suttle, John Subject: President and Fellows of Harvard College

All:

Just spoke with Harvard's lawyer Kim Noble who appreciated speaking with Bill earlier this week.

ENE has triggered an Additional Termination Event under the ISDA (commercial paper rating at A-2 and ENE placed on "watch" status) but Harvard does not want to terminate.

Harvard will propose an amendment to the effect that our Threshold will drop to 0 as long as a short term rating is at A-3.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 754 of 1118

EGM Monthly Legal Report for April 2001

Sender	sara.shackleton@enron.com
Recipients	['kaye.ellis@enron.com']
File	shackleton-s/sent/6003.

Kaye: Can you please email the prior report to me? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/10/2001 06:21 PM -----

Nita Garcia@ENRON 04/10/2001 05:56 PM

To: Daniel R Rogers/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Coralina Rivera/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Ned E Crady/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, John Viverito/Corp/Enron@Enron, Matthias Lee/SIN/ECT@ECT, Michael A Robison/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Brent Hendry/NA/Enron@Enron, Lou Stoler/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Robert Quick/LON/ECT@ECT, Wayne Gresham/HOU/ECT@ECT, Justin Boyd/LON/ECT@ECT, Rahul Saxena/LON/ECT@ECT, Randy Young/NA/Enron@Enron cc: Alan Aronowitz/HOU/ECT@ECT Subject: EGM Monthly Legal Report for April 2001

At Alan's request, please provide to me by e-mail (with a cc: to Alan) by Thursday of this week your suggested changes to the March 2001 Monthly Report, so that we can issue the April 2001 Monthly Report by the end of this week. Thanks for your attention to this matter.

Nita

*Message 755 of 1118***Re: ISDA Master Agreement between ENA and The Ospraie Portfolio**

Sender	sara.shackleton@enron.com
Recipients	['Jason Peters/Corp/Enron@Enron', 'Sara', 'jason.peters@enron.com', 'Per Sekse/NY/ECT@ECT']
File	shackleton-s/sent/1684.

Jason: did you call Per? If not, please bring him up to date. Thanks. SS ----- Forwarded by Sara Shackleton/HOU/ECT on 07/21/2000 11:22 AM -----

Per Sekse 07/14/2000 02:36 PM

To: dharris@shearman.com, Jason Peters/Corp/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Rod Nelson/HOU/ECT@ECT cc: Susan Flynn/HOU/ECT@ECT Subject: Re: ISDA Master Agreement between ENA and The Ospraie Portfolio Ltd.

I know Susan is out on leave right now. Can anyone tell me what the state of play with ISDA docs is? Thanks. Per

Susan Flynn 06/22/2000 09:46 PM To: dharris@shearman.com cc: Jason Peters/Corp/Enron@Enron, Per Sekse/NY/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Rod Nelson/HOU/ECT@ECT Subject: ISDA Master Agreement between ENA and The Ospraie Portfolio Ltd.

Pursuant to your telecon with Jason Peters, attached are clean and redlined versions of the Schedule and Credit Support Annex to the referenced agreement. We are also faxing the redline version to you.

Please contact Jason Peters at (713)853-9720 or me with your questions and comments.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

*Message 756 of 1118***AEP Master Amendments**

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com']
File	shackleton-s/sent/6242.

Frank:

Did I hear you mention that you were going to work on the "EOL no written confirmation" letter? Or is Mark? Please let me know. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/21/2001 04:00 PM -----

Larry Joe Hunter 05/21/2001 03:28 PM

To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: AEP Master Amendments

Mark/Sara,

We are attempting to get two amendments to the ISDA with AEP right now. Mark, you are working on the Amendment allowing for EOL Transactions to not need written Confirmations and Sara is working on an amendment that will change the Confirming Party to ENA (for some reason, AEP was allowed to be the Confirming Party when the Master was drafted.) At any rate, is it possible that we send both of these amendments to AEP at the same time? We want to make sure that AEP views these amendments together and sign off on both. We think they'll be more comfortable signing them

both at once rather than a couple of weeks apart.

Let me know.

Thanks, Joe Hunter

Message 757 of 1118

Re: Bear Stearns guaranty

Sender	clement.abrams@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9125.

Sara,

I left you a voice mail message regarding the above. If Bear Stearns is insistent on its consents/waiver provision, does that mean that ENE cannot modify the provision or does it mean that there is some opportunity to counter with minor changes. The provision in totality does not need to be deleted, but in order to have our setoff/counterclaim provision work properly, we cannot waive all of our defenses. I am assuming that there are mutual obligations on both sides of the table. If that is the case, then it is not unreasonable for ENE to request having reservation of defenses of its subs. I have taken the liberty of modifying the Bear Stearns provision as appropriate. Let me know your thoughts.

Clem

Sara Shackleton@ECT 02/12/2001 09:59 AM

To: Clement Abrams/Corp/Enron@ENRON cc: Subject: Bear Stearns guaranty

Clem:

Just wondering if I could have a response today on Bear Stearns. Gary Hickerson is anxioius to get this resolved today so that ENA can begin reducing margin rates with Bear. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 758 of 1118

RE: San Diego Gas & Electric Co. ("CP")

Sender	russell.diamond@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2792.

Sara, in this situation we make a point to make the trader aware of this situation and if it persists we raise the issue to management. The trader is Keith Holst on the West Desk, and I have not spoken to him. I was waiting to hear back from you.

Thanks for your help.

Russell.

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, March 21, 2001 11:21 AM To: Diamond, Russell Subject: San Diego Gas & Electric Co. ("CP")

Russell:

I received your voice mail about the one (1) year financial trade done between ENA and CP. The three-month limitation on trades is only an internal ENA control which was imposed by credit some years ago. Please refer to Lotus Notes for a more comprehensive explanation.

The Master Agreement has been executed. However, CP was unable to render a legal opinion vouching for "blanket" enforceability of the trades due to conflicting PUC orders which are still in effect today.

What is credit's position when your internal policy is violated? Who was the trader? Have you spoken with the trader?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 759 of 1118

Enron/McGarret D

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/3873.

With respect to the McGarret D transaction, attached for your review are two additional documents which relate to the payoff of the McGarret B series:

Termination of Independent Auctioneer Ltr Agmt (260162); and Receipt.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 260166.wpd - 260162.wpd - 260166.doc - 260162.doc

Message 760 of 1118

Re: ISDA Master between MSCS and Enron Nth America

Sender	sara.shackleton@enron.com
Recipients	['matthew.flett@morganstanley.com']
File	shackleton-s/sent/6069.

Hi, Matthew, sorry for the late response but I am the right person for receipt of your inquiry. Please advise what products we will trade. Thanks very much.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Matthew.Flett@morganstanley.com 04/10/2001 06:24 AM Please respond to Matthew.Flett

To: sara.shackleton@enron.com cc: Jason Pugh <Jason.Pugh@morganstanley.com>, Christopher Mitchell <Christopher.Mitchell@morganstanley.com> Subject: ISDA Master between MSCS and Enron Nth America

Dear Sara,

I now attach a draft schedule to an ISDA Master Agreement between Morgan Stanley Capital Services Inc. and Enron North America Corp. I would be grateful if you could review the revised draft and revert with any comments that you may have. I will also be forwarding you a draft Credit Support Annex for your review in due course.

I would be grateful if you could acknowledge receipt of this email and confirm that you are the appropriate contact at Enron North America to negotiate this ISDA.

Do not hesitate to contact me with any queries that you may have.

Regards, Matthew Flett

- 1_0211934.01

Message 761 of 1118

Enron Corp. subsidiaries: return of cash balances

Sender	sara.shackleton@enron.com
Recipients	['edmund.cooper@enron.com', 'mlehman@bear.com']
File	shackleton-s/sent_items/28.

Mark:

Per our conversation, attached is a short "recap" of the companies and amounts involved.

With respect to prime brokerage accounts, the following approximate cash balances are held by Bear Stearns & Co. ("Bear") in accounts for the following companies:

Enron North America Corp. \$159,022 [filing debtor]

ECT Investments, Inc. \$3,923,970.84 [has not filed]

Enron Credit Inc. \$10,500,000 [has not filed]

I understand that one of our U.K. companies, Enron Credit Limited, has been in touch with one of your employees with respect to the return of the Enron Credit Inc. cash and was told that Bear wished to offset that amount against the amount owed by Enron Credit Limited to Bear under OTC trades, approx. \$1,500,000, for a net balance of approx. \$9,000,000.

ECT Investments Inc. sent a demand letter to you via facsimile on November 30, 2001 requesting return of its cash balance. I do not believe that ECT Investments, Inc. has any OTC trades with Bear but I will need to verify.

We would like to resolve the return of cash issues. Please feel free to contact me.

Thanks for your assistance.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 762 of 1118

Cargill Alliant financial deal # 495432.01

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/sent/5340.

Sam: We need to send Sharen Cason the Deemed ISDA format to reconfirm this transaction. It is a domestic deal and I'd like to review your template before sending to Sharen. Please email to me on Monday so that we can send to Sharen. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/19/2001 05:44 PM -----

Melissa Ann Murphy 01/19/2001 05:28 PM

To: Sara Shackleton/HOU/ECT@ECT, Sharen Cason/HOU/ECT@ECT, Kimberly Hundl/Corp/Enron@Enron cc: Subject: Cargill Alliant financial deal # 495432.01

Hello Sara, Sharen Cason can be reached at 3-3001 and Kimberly Hundl at 3-1647.

Sharen and Kimberly, One of the financial paralegals (Stephanie Panus, Susan Bailey, or Samantha Boyd) will be sending you a different template format in order to send a revised confirm to Cargill (deal # 495432.01). The template is called a deemed ISDA. They want to change the format of the confirmation letter that we already sent them. Sara will want to see this before it is sent out. Call and find me in Portland if you have any questions.

Thanks, Melissa

Message 763 of 1118

Creditor Protected Investments - Newsletter

Sender	info@martincapitalmgmt.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/525.

=20 =09=09 [IMAGE] Click on the banner above to go directly to our website. = =09 Creditor Protected Investments - Newsletter Did you know that pursuant to Article 21.22 of the Texas Insurance Code the cash value of a life insurance policy can be protected from a claim arising from the professional malpractice of an attorney, accountant, or other professional in the State of Texas? Simply put, for Texas residents Life Insurance may afford the opportunity to shelter part of your assets from creditor's claims. We believe you would benefit by learning more about how life insurance may fit into your long-term financial strategy. Martin Capital Management, Ltd. 15600 San Pedro Avenue, Suite 102 San Antonio, Texas 78232 Ph. (210) 494-6733 = Toll Free (800) 426-1293 outside San Antonio We specialize in investments which preserve value and protect assets from creditor's claims. Creditor Protected Investments | Professional Liability Insurance | Request Information | Employee Benefits | Contact | FAQ Securities offered through registered representative of Jefferson Pilot Securities Corporations, Member SIPC. =09=09=09 =09=09=09 =09=09=09

If you don't want to receive mails click here

Message 764 of 1118

Questions regarding Confirmations

Sender	sara.shackleton@enron.com
Recipients	['sharon.crawford@enron.com', 'linda.sietzema@enron.com']
File	shackleton-s/sent/5908.

Hi, Linda and Sharon:

Please let me know if Russell sent revised worksheets to you guys. I left a message for him a few minutes ago. I know he goes on vacation Thursday. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/27/2001 06:55 PM -----

Tana Jones 03/27/2001 12:50 PM

To: Linda Sietzema/CAL/ECT@ECT, Sharon Crawford/CAL/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Peter Keohane/CAL/ECT@ECT, Greg Johnston/CAL/ECT@ECT, Dianne Seib/CAL/ECT@ECT
Subject: Questions regarding Confirmations

Linda & Sharon,

My primary job responsibility is to online trading, and right now EnronOnline is quite a beast of a customer. Because of that I please ask that you direct any future questions you may have with respect to confirmations to our two paralegals who handle the day to day trading, Susan Bailey at x34737 and Stephanie Panus at x53249.

With respect to the two current Canadian confirmations, Sara Shackleton, an attorney in our Group, is working with Credit to resolve the questions on the Slater Steel and Casco credit worksheets.

Message 765 of 1118

FW: Limitation of Liability

Sender	sara.shackleton@enron.com
Recipients	[]
File	shackleton-s/sent_items/85.

Hi, Mark:

Hope you're doing well. Mark Taylor had suggested that I ask you the question below. If you suggest that I ask someone else, please let me know. Thanks. Sara

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, September 20, 2001 4:13 PM To: Evans, Mark (London Legal) Cc: Glover, Sheila
Subject: Limitation of Liability

Hi, Mark:

ECT Investments, Inc. is trying to finalize a "Terms of Business Letter" with Goldman Sachs International ("GSI") in London (for trading foreign listed equity options). GSI is resisting the inclusion of any limitation of liability language in the agreement. Our agreement is governed by English law. I have requested the following simple statement:

"Neither party shall have any liability arising from this Letter or from any obligations which relate to this Letter for any indirect, special, punitive, exemplary, incidental or consequential loss of damage."

Do you even use such a provision in your documents goverened under English law? What language (if any) would you propose for use with an English party?

I'd appreciate your insight.

Regards, Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 766 of 1118

RE: confirmation templates

Sender	legal <taylor@enron.com>
Recipients	['frank.sayre@enron.com', 'sara.shackleton@enron.com', 'brent.hendry@enron.com', 'mary.cook@enron.com']
File	shackleton-s/inbox/317.

Sara:

I also received a message from an AA person asking for rate/FX templates. I know we are supposed to come up with a set of approved templates but we don't yet have a process in place. I thought we had until next year sometime. My guess is that the most current source is the work you did a couple of years ago on confirms.

Scary, huh?

Mark

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 02, 2001 1:00 PM To: Taylor, Mark E (Legal) Cc: Cook, Mary; Sayre, Frank; Hendry, Brent Subject: confirmation templates

Mark:

I'm getting calls from different people with AA requesting copies of all "legally approved" confirmation templates. I've had requests today from two different people with respect to power and rate/FX. Do we have a formal process for approving templates? Where are the templates kept and how does legal know if they have been changed? Have similar requests been made for other products? There does not seem to be any sort of AA uniform deadline for submitting the templates.

I've asked AA to advise you so that we can all be consistent in our responses.

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 767 of 1118

(01-106) MARGIN RATE CHANGE FOR EUROTOP 100 FUTURES CONTRACTS

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10047.

Notice No. 01-106 March 23, 2001

TO: ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS ALL COMEX DIVISION CLEARING FIRMS ALL COMEX DIVISION OPERATIONS MANAGERS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: MARGIN RATE CHANGE FOR EUROTOP 100 FUTURES CONTRACTS

Effective Date: Friday, March 23, 2001 (close of business) Futures Contract: FTSE Eurotop 100 Futures Contract Months: All Months Rate Change:

COMEX Division Margins on FTSE Eurotop 100 Futures Contracts Clearing Member (Maintenance Margin): Old: \$11,000 New: \$8,000 Non-Member Customer (Initial Margin): Old: \$11,000 New: \$8,000

Should you have any questions regarding these changes, please contact Arthur McCoy at (212) 299-2928 or Joe Sanguedolce at (212) 299-2855. This notice supersedes all previous notices regarding outright margins for the COMEX FTSE Eurotop 100 Futures Contract.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-106)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 768 of 1118

(01-105) MARGIN RATE CHANGE FOR EUROTOP 300 FUTURES CONTRACTS

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10046.

Notice No. 01-105 March 23, 2001

TO: ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS ALL COMEX DIVISION CLEARING FIRMS ALL COMEX DIVISION OPERATIONS MANAGERS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: MARGIN RATE CHANGE FOR EUROTOP 300 FUTURES CONTRACTS

Effective Date: Friday, March 23, 2001 (close of business) Futures Contract: FTSE Eurotop 300 Futures Contract Months: All Months Rate Change:

COMEX Division Margins on FTSE Eurotop 300 Futures Contracts

Clearing Member (Maintenance Margin): Old: \$9,000 New: \$6,500 Non-Member Customer (Initial Margin): Old: \$9,000 New: \$6,500

Should you have any questions regarding these changes, please contact Arthur McCoy at (212) 299-2928 or Joe Sanguedolce at (212) 299-2855. This notice supersedes all previous notices regarding outright margins for the COMEX FTSE Eurotop 300 Futures Contract.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-105)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 769 of 1118

Re: Calpine Natural Gas Company Assignment to Calpine Energy

Sender	sara.shackleton@enron.com
Recipients	['edward.sacks@enron.com', 'susan.bailey@enron.com']
File	shackleton-s/all_documents/8711.

Ed: Please make sure that Susan knows the effective date of the assignment and that you are comfortable with having captured all outstanding trades as of that date. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Edward Sacks@ENRON 01/11/2001 04:27 PM

To: Bob Bowen/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT, Wendy Conwell/NA/Enron@ENRON cc: Subject: Calpine Natural Gas Company Assignment to Calpine Energy Services, L.P.

We are currently in the process of preparing contracts to assign all of our financial transactions with Calpine Natural Gas Company to the ISDA with Calpine Energy Services, LP. The following is a listing of the transactions by ID:

NT9757.1 NT3576.1 NT3576.2 NT9825.1 NH4646.1 NH8862.1 NT3576.1 NT3576.2 NT9757.1 NT9825.1

Bob is in the process of gathering deal date information and will provide this to Susan on Friday (tomorrow morning). As I have mentioned to you, the results of this transfer will reduce our exposure by approximately \$27MM. Comments or questions, please call.

Rgds, Ed Sacks x5-7712

Message 770 of 1118

Enron Inversiones de Energia S.C.A.

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com']
File	shackleton-s/all_documents/2496.

Sheila: Looks like Rafael never read the email that Susan Flynn sent to Nancy a few days ago. I don't know where this stands. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 06/23/2000 10:37 AM -----

Susan Flynn 06/21/2000 08:33 AM

To: Nancy Muchmore/NA/Enron@ENRON cc: Rafael Rangel/NA/Enron@Enron, Robert H George/SA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron Subject: Enron Inversiones de Energia S.C.A.

The email that you sent to me below does not pertain to to the referenced entity. Did you send me this email in error? In order to open to the brokerage account for Rafael Rangel, we need corporate resolutions and an authorized traders list for the referenced entity. On June 1, 2200, I emailed our form of corp. resolutions and authorized traders list to you and Rafael. I will send the email to you again. Please advise me of when I should expect to receive these documents so that we can open the account. Please call me if you have any questions.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Nancy Muchmore@ENRON 06/20/2000 06:16 PM

To: susan.flynn@enron.com cc: Subject: Certificate

Message 771 of 1118

FW: Raptor 2 - Sale of CEG/RioGas

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com']
File	shackleton-s/sent/5703.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/28/2001 04:41 PM -----

Joel Ephross/ENRON@enronXgate 02/28/2001 11:31 AM

To: Sara Shackleton/HOU/ECT@ECT, Brenda L Funk/ENRON@enronXgate cc: Subject: FW: Raptor 2 - Sale of CEG/RioGas

-----Original Message-----

From: Baker, Ron Sent: Thursday, February 15, 2001 9:12 AM To: Siurek, Ryan; McKean, George; McKillop, Gordon; Ephross, Joel Subject: Raptor 2 - Sale of CEG/RioGas

FYI I was just notified that the sale of CEG and RioGas which are hedged in Raptor 2 will likely close next week. Current estimates indicate that the loss on the sale will be around \$30MM. It is expected that the sale of the one remaining South American LDC will result in gains that will more than offset this loss. Obviously, those expectations can change, but I wanted to keep everyone informed on this.

Ryan - This expected realized loss is exactly the situation which most concerned us in the meeting with Patti this week. Is there anything we can do to push them towards resolving that timing of realized losses is irrelevant, and this is not an issue?

Message 772 of 1118

Re: please prepare draft ISDA for Credit Suisse First Boston

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'tanya.rohauer@enron.com']
File	shackleton-s/all_documents/8789.

Tanya: I believe that CSFB International is located in the UK. Can you please verify and indicate if it is a "financial institution". Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/23/2001 06:09 PM -----

Stephanie Panus@ENRON 01/23/2001 05:15 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: please prepare draft ISDA for Credit Suisse First Boston International and Enron Corp.

Sara - A couple of questions: 1) for tax reps, are they a US or foreign entity? and 2) are they a financial institution (there are certain clauses in the Schedule to include/exclude for financial institutions)?

Thanks.

Sara Shackleton@ECT 01/23/2001 04:48 PM To: Stephanie Panus/NA/Enron@Enron cc:

Subject: please prepare draft ISDA for Credit Suisse First Boston International and Enron Corp.

Stephanie to prepare draft ISDA based upon the following: no CSA, bilateral cross-default at US\$100million, no guaranties, add 1996 equity definitions and FX language, delete commodity definitions.

Click on this link to view the document in the Financial Trading Agreements database-->

Message 773 of 1118

RE: Morgan Stanley Capital Group Inc. ("Morgan")

Sender	john.viverito@enron.com
Recipients	['tanya.rohauer@enron.com', 'mary.cook@enron.com', 'sara.shackleton@enron.com', 'tom.moran@enron.com', 'paul.s...]
File	shackleton-s/inbox/962.

Sara-

I have spoken with Mary Cook this morning and she has informed me that we will need to add some additional language into the netting agreements to be entered into with Morgan Stanley for the purposes of certain contemplated financings.

I'll keep you informed as to our progress.

Thanks,

John

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 30, 2001 7:25 PM To: Aronowitz, Alan; Viverito, John; Moran, Tom; Williams, Jason R (Credit) Cc: Simons, Paul; Rohauer, Tanya Subject: Morgan Stanley Capital Group Inc. ("Morgan")

I spoke with Beth Ng (who is not a lawyer!). Beth would like for Enron Gas Liquids Inc. and ERAC to sign the "mini-netting" agreements she has already negotiated with EEFT through Paul Simons. Morgan does not need to execute this "mini-netting" agreement with ENA. Morgan would be interested, however, in seeing the ENA form of Master Netting Agreement which they may also agree to sign. But for the immediate future, the EEFT version is their primary goal.

ENA will execute an assignment with ELFI and Morgan to accept ELFI's positions in the four financial trades.

Hope this helps.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 774 of 1118

Exchange of Futures for Swap (EFS)

Sender	sara.shackleton@enron.com
Recipients	['dmitchel@cwt.com']
File	shackleton-s/sent_items/772.

David:

Attached is a draft confirm for a natural gas EFS under the new NYMEX rules. Please review the redlined language.

The new NYMEX amendment permitting EFS transactions was originally part of a pilot program for Brent Crude contracts (NYMEX Rule 6.21) effective September 5, 2001.

NYMEX Notice No. 01-372 effective November 1, 2001 discusses the application of the EFS for natural gas futures contracts but I cannot find a specific reference to a NYMEX rule (I assume it is NYMEX Rule 6.21). Thus, I didn't know whether it was necessary to cite a particular rule.

I also didn't know if I need to reference the number of NYMEX contracts in my "Special Provisions" section.

Further, if Rule 6.21 is applicable to the natural gas futures contracts, then I suppose that the confirm should (?) recite the information required of the Clearing Member by the Exchange. On the other hand, maybe the Clearing Member's report

should contain information such as appearing in Rule 6.21A(C), if applicable, and it need not be repeated in the confirmation.

Can you give this a quick review? Trading in the nat gas contract terminates in a day or so. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 775 of 1118

Form of Legal Opinion

Sender	ttaylor@llgm.com
Recipients	['sara.shackleton@enron.com', 'rxrenche@llgm.com', 'ntaylor@llgm.com']
File	shackleton-s/deseret/3.

Sara:

Pursuant to our telephone conversation with Ron Rencher this afternoon, attached hereto for your review and comment is a revised draft copy of the form of legal opinion to be issued by outside counsel to Deseret Generation & Transmission Co-Operative (the "Counterparty"). The attached document is formatted in MS Word for Windows 97.

We talked on the telephone about a letter or opinion regarding the Counterparty being subject to the Utah Nonprofit Corporation and Co-operative Association Act (the "Utah Nonprofit Act") and the Counterparty having authority under the Utah Nonprofit Act and its Articles of Incorporation and Bylaws to enter into the Confirmation and perform the Transaction. In that regard, the attached form of opinion requests those opinions from the Counterparty's outside counsel (see paragraphs 1, 2 and 3). I think the Counterparty's outside counsel is in a much better position to give Enron these opinions, and, I believe, its counsel should be able to give those opinions with a minimum amount of research and due diligence.

Please convey any comments or questions you may have at your convenience.

Tom Taylor LeBoeuf, Lamb, Greene & MacRae, L.L.P. 801-320-6700 801-359-8256 (fax) ttaylor@llgm.com

- #52311 v2 - Op Ltr Enron.doc

Message 776 of 1118

Merrill Lynch guaranty

Sender	sara.shackleton@enron.com
Recipients	['jason.williams@enron.com', 'clement.abrams@enron.com']
File	shackleton-s/sent/5327.

Clem: Do you want to prepare or would you prefer that I handle? Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/17/2001 06:23 PM -----

Jason R Williams@ENRON 01/16/2001 11:07 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Merrill Lynch guaranty

Sara -

I have spoken again to Merrill Lynch about the guaranty for FX trading. They agreed with your assessment of damages as they relate to the swap agreement, but they have asked us to provide a larger guaranty to cover the possibility of damages related to non-transfer of funds at settlement (we can discuss this issue, but I'm comfortable with their request on this).

So, the long and the short of this is that Merrill Lynch is asking for a \$150 million guaranty from Enron Corp. to cover this trading. Can you please prepare the guaranty document to reflect this? As we have discussed the guaranty should be from Enron Corp. to cover FX trading of Enron North America. The beneficiary of the guaranty should be Merrill Lynch International Bank Ltd.

Please let me know if you have any questions on this.

Thanks for all your help,

Jay

Message 777 of 1118

Florida Power & Light Company - Attached Files

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com', 'russell.diamond@enron.com']
File	shackleton-s/sent/1130.

Attached are comments to the Schedule but not the CSA. Russell: Have you had any conversations with FP&L credit?

----- Forwarded by Sara Shackleton/HOU/ECT on 03/27/2000 12:44 PM -----

"Serge Martin" <Sgm@Steelhector.com> on 03/27/2000 12:22:07 PM To: Sara.Shackleton@enron.com cc: Subject: Florida Power & Light Company - Attached Files

Sara: Enclosed are clean and marked copies of a revised schedule for the proposed ISDA master agreement between Enron and FP&L. I have only reviewed and commented at this time on the master agreement's schedule itself (I have left the credit support annex attached within the same document, as you sent it, but have not yet reviewed or commented on it, so ignore it for now). I have reviewed many such schedules and found your form to be quite good (as you may know, those of some large market-makers are not so good, so please don't take this as patronizing; it's a sincere compliment). Hopefully you will find the revisions equally acceptable. I look forward to your comments or approval. Regards, -Serge

Serge G. Martin smartin@steelhector.com Steel Hector & Davis LLP 200 South Biscayne Blvd. Miami, Florida 33131-2398 (305) 577-7097 voice (305) 577-7001 fax

- 570710_2.DOC - 572856_1.DOC

Message 778 of 1118

Counterparty List & ISDA Agreements

Sender	sara.shackleton@enron.com
Recipients	['Jonathan McKay/CAL/ECT@ECT', 'susan.musch@enron.com']
File	shackleton-s/all_documents/9413.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/23/2001 04:04 PM -----

William Stuart 02/14/2001 05:17 PM

To: Sara Shackleton/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Tom Moran/HOU/ECT@ECT, David Forster/Corp/Enron@Enron, Carlos Alatorre/NA/Enron@Enron, Justin Rostant/HOU/ECT@ECT cc: Subject: Counterparty List & ISDA Agreements

I'm forwarding ECT Canada's top 15 counterparties. We will use this list with the exception of J. Aaron, BP Amoco, PG&E, Morgan Stanley and Bank of Montreal as our target list for the USD/CAD products. Please ensure that a GTC is drawn up to allow EOL trading of these currency products. I would like to have the legal work done by March 6 in order to meet Gary's deadline.

David: I talked to Goldman today. They have developed a mechanism to feed live rates from their website into Excel. They will be here in 2 weeks to do a demo.

W.Stuart

----- Forwarded by William Stuart/HOU/ECT on 02/14/2001

03:31 PM -----

Jason Garvey 02/13/2001 02:59 PM To: William Stuart/HOU/ECT@ECT cc: Jonathan McKay/CAL/ECT@ECT Subject: ISDA Agreements

Message 779 of 1118

Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and

Sender	rod.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'Tanya Rohauer/Enron@EnronXGate', 'Rod Nelson/LON/ECT@ECT']
File	shackleton-s/all_documents/9459.

Let me know if you don't receive response.

From: Sara Shackleton on 27/02/2001 09:43 CST To: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Cheryl Nelson/NA/Enron@Enron, Mark Greenberg/NA/Enron@ENRON, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Anne C Koehler/HOU/ECT@ECT, Denis O'Connell/LON/ECT@ECT cc: Tanya Rohauer/Enron@EnronXGate, Rod Nelson/LON/ECT@ECT

Subject: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Is anyone familiar with an ISDA Master Agreement executed between ENA and the above company? I have received a Security Agreement executed by this party seeking ENA's signature and the document references the Endorsement (to a policy - what policy?) issued to ENA on 10/19/00 which defines the ISDA agreement. This could be related to credit activity in London. I am waiting to hear from Jeff Kinneman and Denis O'Connell.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 780 of 1118

Re: Confidentiality Agreement with Scana

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/all_documents/9302.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/20/2001 11:45 AM -----

Guenther Klar 02/16/2001 08:24 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Janine Juggins/LON/ECT@ECT, Richard Sage/LON/ECT@ECT, Denis O'Connell/LON/ECT@ECT, Tana Jones/HOU/ECT@ECT Subject: Re: Confidentiality Agreement with Scana

Sara

You are right about the tax issue - in fact, we are in the process of replacing the UK directors and officers of Enron Credit Inc with US directors and officers.

The entity that signs up to the confidentiality agreement ought to be the one that owns the information to be supplied. Based on conversations I have had with Richard Sage, I had formed the impression that the owner of the information was Enron Credit Ltd. If this is right, we should pursue your first suggestion. Otherwise, given that the tax issue is being rectified and this should therefore be an isolated incident, I think we can wear the tax risk inherent in your second suggestion. Though I do wonder whether an officer of Enron Credit Inc, such as Richard Sage (currently), could sign, rather than a director?

Kind regards

Guenther Klar

Message 781 of 1118

FW: Enervest

Sender	pinto.leite@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/565.

Sara:

I will stop by and will prepare a memo summarizing what I have been doing but this is the most recent one I got (i.e. just got it)

Francisco Pinto-Leite Enron Americas 1400 Smith Street, EB 3888 Houston, TX 77002-7361

Tel: 713-345-7942 Fax:713-646-3490 fleite@enron.com

-----Original Message-----

From: Gilbert, George N. Sent: Monday, January 14, 2002 12:40 PM To: Leite, Francisco Pinto Subject: Enervest

Francisco,

Enervest Energy & Enervest Management are two counterparties ENA has NG hedges on with. These hedges extend until the year 2004 (approximately) and ENA is "out of the money" (we owe them). The customer has requested that the year 2002 portion of the hedges be extended until the year 2003. We would do this transaction at a price that leaves ENA's exposure to the counterparties unchanged. ENA's exposure to the counterparties is 5,355,728 as 12/11/01 and it would be the same after the change. The customer wants to do this to "buy time to let the bankruptcy settle out" (right or wrong). This would be a good thing for ENA because it defers cash flows and also the market could turn around in the future.

The attached file contains the MTM of the counterparties deals as of 12/11/01.

Please let me know if you have any questions.

Thank You, George N Gilbert (X5222)

Message 782 of 1118

Re: Goldman Sach \$ repo docs

Sender	derek.lee@enron.com
Recipients	['sara.shackleton@enron.com', 'simon.brooks@enron.com']
File	shackleton-s/notes_inbox/2081.

Sara, I have been dealing with GSI in Euros for a month now. There is no problem there. However, for me to deal in US\$ with GS, ECL must have another ISMA in place with GS&Co. I cannot do US\$ transactions right now based on what I have between ECL and GSI. and GSI will not finance US\$ and US treasury repos. That has to be done by GS & Co. I thought you were aware of these differences. thanks Derek

From: Sara Shackleton@ECT on 05/30/2001 11:05 AM CDT To: Derek Lee/EU/Enron@ENRON cc: Mark Evans/Enron@EUEnronXGate, Mark Taylor/HOU/ECT@ECT

Subject: Re: Goldman Sach \$ repo docs

Derek: Gail Shanley (Goldman Sachs & Co. in N.Y.) sent me Enron Credit Inc. documents (with Goldman Sachs & Co.). Enron Credit Limited will be dealing with Goldman Sachs International in London. I'll try to find out who the London lawyer is and have the docs sent to Denis O'Connell who is the lawyer for Enron Credit Limited.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Derek Lee@ENRON 05/30/2001 10:34 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Goldman Sach \$ repo docs

Sara, it is between ECL and GS & Co. but GS ;s Gail shandley sent over the docs to you.

Message 783 of 1118

RE: coordination with London

Sender	alan.aronowitz@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/666.

We need to get with Mark Ellenberg to discuss his resources over there so we can tie them in through Mary Nell/Ted.

Alan

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, February 05, 2002 10:31 AM To: Aronowitz, Alan; Moran, Tom; Hagelmann, Bjorn Cc: Tweed, Sheila Subject: coordination with London

I had a conversation with Ted Murphy and Mary Nell Browning this morning re: ECTRIC and the London process.

Ted has generated both an in and out -of-the-money list which he will forward so that Houston can review for counterparty termination accuracy. I think that London can use our newly established processes as a template. Ted and others will participate in the 9:30 a.m. conference call Feb. 6.

Tom and Bjorn: Can you provide a Ted with a copy of the "Star Gas Propane, L.P." template, or if this has been replaced, a copy of the most recent template? Also, the "Liquidation of Price Risk Management Book" template?

Alan: Can you provide Ted and Mary Nell with a copy of the decision tree and settlement process flowchart?

If the handouts for tomorrow will be ready and incorporate the above, the handouts are all that London will need.

Thanks. SS

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 784 of 1118

blackline of master

Sender	sara.shackleton@enron.com
Recipients	['delene.travella@funb.com']
File	shackleton-s/all_documents/9190.

Dee:

We are working on the blackline. Since the "deal" that you mentioned yesterday has no bearing on the master between ENA and FUNB, there is no emergency at hand. A few things to note:

(1) regarding "Procedures for entering into Transactions," my suggestion is that you consider a reasonable time period in which to respond upon receipt of a confirmation. It is in both parties best interest to have an executed (and therefore enforceable) writing This can be accomplished by under the NY General Obligations law by our agreement as to a "deemed response" if a party will not sign a trade confirmation.

(2) regarding the concept of "Specified Transaction", ENA has reconsidered the earlier concession to exclude most Termination Events as Specified Conditions. It is not ENA's position to unwind Transactions upon the occurrence of these events, and, therefore, each party ought to be able to rely upon the protections afforded it under the related provisions. Regarding the Credit Event Upon Merger, FUNB is protected with the amendment which we make to Section 5(b)(iv).

I hope that the blackline will resolve our outstanding issues.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 785 of 1118

Re: TD crude swap

Sender	sara.shackleton@enron.com
Recipients	['robert.bruce@enron.com']
File	shackleton-s/sent/2384.

Yes, because Treasa told me this morning that this could "make or break the deal"!

Of course, you are absolutely welcome to join me (and Marcus if he is available).

Sara

Robert Bruce@ENRON Sent by: Robert Bruce@ENRON 11/16/2000 04:42 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: TD crude swap

Sara, I would like to sit in on this if I can -- I have a 10 a.m. conference call myself and I don't know how long it will last.

Does the fact that you put the phrase "no big deal" in quotations indicate a certain amount of skepticism on your part?

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Sara Shackleton@ECT 11/16/2000 04:37 PM

To: Marcus Von Bock Und Polach/LON/ECT@ECT cc: Treasa Kirby/LON/ECT@ECT, Rod Nelson/LON/ECT@ECT, Robert Bruce/NA/Enron@Enron Subject: TD crude swap

Marcus:

TD has scheduled a conference call with me at 10:30 am Houston time to discuss the crude swap (related to the prepay). Mataly Sahoni (?) said that they wanted to discuss some "credit issues" and that it was "no big deal."

You are welcome to join me. Sara

P.S. Bob Bruce (Ext. 57780; EB 3880D) will back me up while I am out of the office tomorrow afternoon, Monday and Tuesday. I'll be back on Wednesday, Nov. 22.

Message 786 of 1118

Consolidated Edison Company of New York, Inc.

Sender	sara.shackleton@enron.com
Recipients	['janelle.scheuer@enron.com', 'edward.sacks@enron.com', 'tom.may@enron.com']
File	shackleton-s/all_documents/8811.

Janelle and Tom: Ed Sacks and I need to speak with you in the a.m. about a few issues.

I have questions about market disruption because Con Ed has asked:

(1) that Market Quotation apply rather than Loss (in the event of Early Termination) Is this a very liquid market? ENA agrees to market quotation only for FX and short term deals in liquid markets (e.g., gas)

(2) to jointly determine when a Market Disruption has occurred (after consultation) Usually ENA as the Calculation Agent makes this determination in good faith.

(3) to identify two brokers/pricing platforms for purposes of determining the daily MTM Each party typically assesses its own MTM for valuation purposes (whether for collateral calls or termination, etc.). Sounds like Ed and I need to know what was said to Con Ed about marking

(4) I think Con Ed was headed in the direction of asking that we each provide dealer quotes (rather than ENA coming up with two quotes in good faith) as a Disruption Fallback. Tom, I think we discussed this in a different situation.

Ed and I agreed to conference at 10 am Houston time to discuss these and the draft docs (which were e-mailed to you).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 787 of 1118

Bridgeline master - Additional Event of Default

Sender	sara.shackleton@enron.com
Recipients	['brant.reves@enron.com', 'jpeters@andrews-kurth.com']
File	shackleton-s/all_documents/8776.

Jason:

Here's my suggestion for item (ix) [Additional Event of Default] event on page 2 of the Schedule:

"In the case of Party B, Enron North America Corp. owns less than a majority interest in Party B unless within five (5) Local Business Days of such occurrence, Party B posts collateral with Party A (i) in an amount equal to Party A's Exposure under this Agreement plus \$250,000, but in no event greater than 125% of Party A's Exposure, and (ii) in a form satisfactory to Party A in Party A's reasonable discretion.

"Exposure" shall mean for any relevant date for which Exposure is calculated, the amount, if any, that would be payable to Party A by Party B pursuant to Section 6(e)(ii)(2)(A) of this Agreement as if all Transactions were being terminated as of the relevant date; provided that Market Quotation will be determined by Party A using its estimates at mid-market of the amounts that would be paid for Replacement Transactions (as that term is defined in the definition of "Market quotation") in order to ensure that Party A does not suffer an economic penalty."

I think that we agreed on everything else.

Please send new blackline. Thanks.

Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 788 of 1118

RE: Garden State Paper

Sender	shifali.sharma@enron.com
Recipients	['sara.shackleton@enron.com', 'cheryl.lindeman@enron.com']
File	shackleton-s/inbox/863.

Thanks for your reply Cheryl.

Could you both clarify something for me.

We use the termination log as the basis for terminating our physical and financial deals. Now, if the log shows the counterparty as terminating the ISDA - do we terminate only financial deals? Does this mean physical deals, unless specified in the log, remain as live deals?

We're just a bit confused as to how we should be using the log to terminate deals.

Thanks, Shifali x35170

-----Original Message-----

From: Lindeman, Cheryl Sent: Monday, March 25, 2002 3:19 PM To: Sharma, Shifali Subject: RE: Garden State Paper

I think that the termination on Dec. 14th may have been a termination of the GSP - ENA financial ISDA, not the physical deal.

Cheryl Lindeman 1400 Smith Street EB 3842 Houston, Texas 77002 Phone: (713) 345-2849 Fax: (713) 646-3393
cheryl.lindeman@enron.com

-----Original Message-----

From: Sharma, Shifali Sent: Monday, March 25, 2002 3:16 PM To: Lindeman, Cheryl Subject: Garden State Paper

Cheryl,

We have a physical recycled paper deal (YM6441.1) with Garden State that was done on 02 February, 2002.

The Termination log that Stephanie Panus sends us shows the termination date for Garden State as 14 December, 2001. Does this mean that this particular deal is valid and do we keep it on the books as a live deal?

Thanks, Shifali x35170

Message 789 of 1118

Hess Energy Services Company, LLC ("HESC")

Sender	sara.shackleton@enron.com
Recipients	['louis.dicarlo@enron.com', 'angelo.miroballi@enron.com', 'michael.bridges@enron.com']
File	shackleton-s/sent_items/484.

ENA executed an "Assignment and Novation of Transactions" effective 9/1/01 as to certain derivative transactions appearing on the attached Exhibit A reflecting that the HESC position would be assumed by Energy Marketing, a division of Amerada Hess Corporation. ENA was never provided with an executed version of this instrument by the two Hess parties. The assignment does not state that the transactions will be subject to the ENA ISDA with Amerada Hess Corporation.

Amerada Hess Corporation terminated its ISDA with ENA on 12/3/01.

(1) Louis/Mike:

(i) We need a copy of the fully executed assignment document. Please forward to Samantha. (ii) You need to verify that all outstanding transactions appear on the attached Exhibit A to that assignment.

(2) Samantha:

When we receive the fully executed assignment document, we need to insert into the Amerada Hess Corporation file and conduct a contract review. If all outstanding transactions were assigned, we need to note in the Hess Energy Services Company, LLC file that no further action is required in that file.

(3) Angelo:

If all of the above occurs, then we will conclude that the invoices should actually be paid by Amerada Hess Corporation which has terminated.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 790 of 1118

FW: UCC searches

Sender	mary.cook@enron.com
Recipients	['rick.antonoff@enron.com', 'alan.aronowitz@enron.com', 'morris.clark@enron.com']
File	shackleton-s/inbox/1030.

Please see below. -----Original Message----- From: "Lech Kalembka" <Lech.Kalembka@cwt.com>@ENRON Sent: Monday, November 05, 2001 3:21 PM To: Cook, Mary; Korkmas, Deb; Heinitz, Mary J.; Heard, Marie; Van Hooser, Steve Subject: UCC searches

Because of the, somewhat Byzantine, transition rules under the new UCC, if the location of the chief executive office of any party against which we are searching was different on July 1, 2001 than it is today, I would appreciate it if you would let me know. Thank you.

Lech Kalembka Cadwalader, Wickersham & Taft 100 Maiden Lane New York, NY 10038 Tel.: (212) 504-6918 Fax: (212) 504-6666 E-mail: lech.kalembka@cwt.com

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virus or other defect that might affect any computer system into which it is received and opened, it is the responsibility of the recipient to ensure that it is virus free and no responsibility is accepted by Cadwalader, Wickersham & Taft for any loss or damage arising in any way from its use.

Message 791 of 1118

Re: Hedge Fund and CTA list

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com', 'mark.greenberg@enron.com']
File	shackleton-s/all_documents/8825.

Mark and Mark:

Per is continuing to pursue hedge funds offline and called me yesterday about EOL hedge fund trading. Credit referred me to Mark's earlier message addressing the issues. As you can see, Per will want to meet next week to discuss.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/26/2001 08:43 AM -----

Per Sekse 01/26/2001 08:30 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Caroline Abramo/Corp/Enron@Enron Subject: Re: Hedge Fund and CTA list

Thanks Sara. I don't remember seeing some of this so the full background was helpful. As we discussed, it appears that the reluctance to trade online was not in the context of full ISDA docs, due dil, etc that we have done to trade with the hedge funds we currently talk to. I'll give some thought to this and talk to Caroline. More than likely we'll need to have a meeting in Houston with credit and legal to discuss not if but how to set up hedge funds on EOL. Trading with them is a business decision we made already, executing online seems to be a logical extension and doesn't add any further legal risk, just monitoring issues.

I'm in Houston next week. If you're available and Mark has time on his schedule, let's get together.

Per

Message 792 of 1118

Re: Representative Agreement between Enron Japan Corp. and Enron

Sender	jane.mcbride@enron.com
Recipients	['sara.shackleton@enron.com', 'mark.taylor@enron.com', 'alan.aronowitz@enron.com', 'susan.musch@enron.com']
File	shackleton-s/japan/9.

Dear Sara,

I am not sure of what the relevant considerations are for selecting a governing law for an internal agreement but if EJ agrees to NY or Texas then this should work, particularly given the identity and location of the counterparty and the location of the head office of Enron Corp.

Hope this is helpful.

Jane McBride

Tel.: 81-3-5219-4500 (Main) 81-3-5219-4553 (Direct) Fax: 81-3-5219-4510

Sara Shackleton@ECT 2001/02/17 08:45

To: Jane McBride/AP/Enron@Enron cc: Mark Taylor/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Representative Agreement between Enron Japan Corp. and Enron North America Corp. (the "Services Agreement")

Jane:

Susan is trying to revise the Services Agreement once again and the "governing law" issue was raised. I do not have any memoranda addressing which choice of law would be binding on Enron Japan Corp. However, I note that the draft ISDA marked by our Japanese counsel for use by Enron Japan Corp. and IBJ elects New York law (AA email to me dated 9/21/00). Are either Texas or New York law preferable for the Services Agreement?

Thanks for your assistance. Regards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 793 of 1118

ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com']
File	shackleton-s/sent/5763.

Frank: FYI. Let's tell her that we can execute the :

(1) letter (2) the separate ISDA amendment (3) our understanding (together with Vastar's) of the "old" guaranty.

I have a doctor's appointment at noon but I'll be back afterwards.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/08/2001 11:05 AM -----

"Russell, Nicole" <nicole.russell@mirant.com> 03/08/2001 10:08 AM

To: "Sara.Shackleton@enron.com" <Sara.Shackleton@enron.com> cc: "Satterly, Kenneth" <ken.satterly@mirant.com>
Subject: ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC

<<ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC>>

Sara,

I have a couple quick comments on the letter you sent this morning. In general, we need to make clear that we are replacing the credit support provider under the ISDA. Otherwise, I am concerned that we could face a possible default under the ISDA once the VRI parental guaranty is terminated. Otherwise, the letter looks very agreeable to me. I am anticipating we can get this executed today so please keep in touch with me in regards to any further changes you would like to make.

Many thanks for all your help.

Best regards,

Nicole Russell

- ENRON MIRANT SOCO ISDA AMENDMENT LTR MIR LCMTS.DOC

Message 794 of 1118

RE: KCS - VC0917 & VC09

Sender	sara.shackleton@enron.com
Recipients	['cris.sherman@enron.com']
File	shackleton-s/sent/6277.

Chris:

Regarding Tanya's comment No. 3 below, is there a problem referencing the assignment to Brazos if the VPP is consummated? Please let me know. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/29/2001 08:40 AM -----

Tanya Rohauer/ENRON@enronXgate 05/29/2001 08:05 AM

To: Diane Anderson/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: RE: KCS - VC0917 & VC09

Comments:

1. We should not have a threshold for these transactions - only KCS 2. Do we need to reference that the Master has been amended in the opening paragraph 3. Is there any way to reference the assignment to Brazos? I just want to make sure everyone understands that there are two outcomes for these deals on Jun 15: 1) Termination if VPP not done or 2) assignment of swap to Brazos if VPP is done. There should never be a time where ENA has a trades with KCS beyond Jun 15.

Thanks, Tanya

-----Original Message-----

From: Anderson, Diane Sent: Friday, May 25, 2001 4:08 PM To: Rohauer, Tanya; Bailey, Derek Subject: KCS - VC0917 & VC09

Attached please see for your review the KCS confirms with the additional provision provided by Sara Shackleton:

<< File: KCS-VC0917.1.doc >> << File: KCS-VC0975.1.doc >>

-Diane

Message 795 of 1118

ISDA and Enron Corp. Guarantee

Sender	sara.shackleton@enron.com
Recipients	['jason.williams@enron.com']
File	shackleton-s/sent/5608.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/16/2001 02:07 PM -----

John Suttle 01/18/2001 05:05 PM

To: Jane McBride/AP/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: ISDA and Enron Corp. Guarantee

Jane -

Attached is a worksheet in response to a request from Australia New Zealand Bank for an ISDA and Enron Corp. guaranty covering FX trading. The contact is Michael Midden, whose e-mail is below. I said we would e-mail the draft documents to him for comments.

Please let me know if you have any questions.

John

----- Forwarded by John Suttle/HOU/ECT on 01/19/2001 01:02

AM -----

"Midden, Michael" <mmidden@anz.com> on 01/18/2001 10:31:14 AM To: "john.suttle@enron.com" <john.suttle@enron.com> cc: Subject: Enron Corp. Guarantee

John,

Australia New Zealand Bank has put in place FX limits for Enron North America Inc.(on behalf of Enron Japan) of USD 2 million (R/13 months) and the corresponding USD 27.5 million in settlement limits (R/3-day) (subject the full guarantee of Enron Corporation). It would be greatly appreciated if you could assist us in implementing a guarantee from Enron Corp. to support these trading lines.

Regards,

Michael Midden

Message 796 of 1118

RE: Frontera - ISDA Agreement

Sender paul.radous@enron.com

Recipients ['susan.bailey@enron.com', 'sara.shackleton@enron.com', 'mike.curry@enron.com', 'stephanie.panus@enron.com', '...']

File shackleton-s/notes_inbox/2125.

Sorry for the delay. Attached is the worksheet.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, May 24, 2001 4:03 PM To: Curry, Mike Cc: Radous, Paul Subject: RE: Frontera - ISDA Agreement

Mike: I sent a request for a credit worksheet to Paul Radous on May 16.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Mike Curry/ENRON@enronXgate 05/24/2001 12:49 PM To: David Portz/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: Frontera - ISDA Agreement

David, Have not heard anything on the ISDA Agreement lately....do you know who I can call to see what the status is?

Thanks, - Mike

-----Original Message-----

From: Portz, David Sent: Tuesday, May 15, 2001 5:19 PM To: Shackleton, Sara Cc: Curry, Mike Subject: Frontera - ISDA Agreement

Sara-- Are you still the swaps lawyer to assist with this? If not, would you pass it to the person who can help Mike Curry with this? Thanks.

----- Forwarded by David Portz/HOU/ECT on 05/15/2001 05:11 PM -----

Mike Curry/ENRON@enronXgate 05/15/2001 04:47 PM To: David Portz/HOU/ECT@ECT cc: Subject: Frontera - ISDA Agreement

David, We want to be able to start performing financial trades with Frontera so could you please prepare an ISDA Agreement for their review. Thanks, - Mike

Message 797 of 1118

Consolidated Edison Company of New York, Inc. ("ConEd") as	
Sender	sara.shackleton@enron.com
Recipients	['clement.abrams@enron.com']
File	shackleton-s/sent/5436.

Clem:

Per my voice mail, please respond to the remaining issues raised by ConEd's lawyer:

(1) "Guarantor agrees that its obligations are unconditional and will not be discharged except by complete payment of the amounts payable under the Contract, [without setoff of the amount payable under the Contract] irrespective of any claims as to the Contract's validity, regularity or enforceability or the lack of authority of Enron to execute or deliver the Contract, or any change or amendment to the Contract (whether or not approved by or known to Guarantor)."

Response: the bracketed language is unacceptable. What about the bolded language?

(2) "This Guaranty shall continue to be effective if the Guarantor merges or consolidates with or into another entity, loses its separate legal identity or ceases to exist."

Response: not sure if this will remain effective if a merger occurs and therefore not binding (e.g., merger without assumption)

(3) What are you looking for when requiring an "explanation of why such payment is due" in the demand section (paragraph 2)? Is it to identify the type of default suffered by ENA?

Thanks for your response and I'll let you know if this particular guaranty is still a rush. SS

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 798 of 1118

RE: Lehman Bros. "puts"	
Sender	rex.rogers@enron.com
Recipients	['jim.armogida@enron.com', 'sara.shackleton@enron.com', 'jeff.nogid@enron.com']
File	shackleton-s/notes_inbox/2478.

Sara: Thanks for your message; I have not received any fax relating to this issue (perhaps you sent it to Jim--if so, I will get it from him). Any contractual language that affects our equity securities is high on my list of priorities; I am usually surprised and disappointed at the lack of expertise that I see from the banks' counsel in this area (also their lack of concern for our issues). As soon as Jim forwards to me what you sent to him, I will take a look at it. As always, thanks for your help. Regards, Rex.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, April 17, 2001 4:47 PM To: Armogida, Jim; Rogers, Rex Cc: Nogid, Jeff Subject: Lehman Bros. "puts"

Jim and Rex:

The Lehman Bros. form of "put" works fine from a legal perspective. Yesterday, I faxed to you one of the "puts" with underlined language reflecting differences in securities language from our prior swap/forward deals with Lehman. The differences may be alright for purposes of the "puts".

Please let Jeff know if the "puts" are acceptable for execution (from the securities perspective). I have already initialed the documents from the swap perspective. Let me know if you have any questions.

As usual, thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 799 of 1118

Re: Waste Management, Inc.

Sender	tracy.ngo@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/584.

yes

From: Sara Shackleton on 10/24/2000 10:12 AM To: Tracy Ngo/PDX/ECT@ECT cc:

Subject: Re: Waste Management, Inc.

Tracy: Netting (payment or closeout) only applies between the parties under a single master agreement. Are you asking about the right of setoff in the event of an early termination under one of the masters?

Tracy Ngo 10/24/2000 11:29 AM

To: Susan Bailey/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Chris H Foster/HOU/ECT@ECT Subject: Re: Waste Management, Inc.

Susan, Thanks for your prompt response to Waste Management!

Sara, per my voice message, I wanted to check with you re. our "netting rights" btw the Waste Management ISDA and a potential ISDA between ENA and a sub of Waste Management, Wheelabrator Shasta Energy Company Inc. (ENA to get a gty from Waste Management)...however, I told Chris Foster to try and have the cp do an intracompany swap transfer.

Thanks! Tracy

From: Susan Bailey on 10/24/2000 08:26 AM To: Tracy Ngo/PDX/ECT@ECT cc:

Subject: Waste Management, Inc.

Tracy,

Per your request, attached is the excerpt from the ISDA Master Agreement dated February 2, 1999, between ENA and Waste Management, Inc., which provides notice information.

Hope this is sufficient.

Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Message 800 of 1118

Tokhiem	
Sender	sara.shackleton@enron.com
Recipients	['laurel.adams@enron.com']
File	shackleton-s/sent/1813.

here it is ----- Forwarded by Sara Shackleton/HOU/ECT on 08/14/2000 02:09 PM -----

bbb@debt-masters.com 08/14/2000 01:58 PM Please respond to bbb

To: <sara.shackleton@enron.com> cc: Subject:

? Regards, Ben Bedell ESBIN & BEDELL, LLP 495 South Main St. New City, New York 10956 Phone: 845-634-7909 Fax: 845-634-4160 ?

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? ? - 224-86.Funding Memo.xls

Message 801 of 1118

Re: can you please look over	
Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com', 'frank.sayre@enron.com']
File	shackleton-s/all_documents/9883.

Sorry, Frank Sayre will call you or feel free to contact him (X57894).

Caroline Abramo@ENRON 03/16/2001 11:52 AM To: Sara Shackleton/HOU/ECT@ECT cc: Fred Lagrasta/HOU/ECT@ECT, Per Sekse/NY/ECT@ECT Subject: Re: can you please look over

sara- can you please reassign this -- i've been waiting 2 weeks on this.. the counterparty can not trade without it...we are losing business.. we look bad..

From: Sara Shackleton@ECT on 03/15/2001 04:16 PM To: Caroline Abramo/Corp/Enron@ENRON cc:

Subject: Re: can you please look over

Am in the middle of a closing. Can't promise anything.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 03/15/2001 02:40 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Per Sekse/NY/ECT@ECT, Fred Lagrasta/HOU/ECT@ECT Subject: can you please look over

S- before we have our confo call at 2, we need to get them something.

We are losing a lot of trades with Global because we have not signed some form of POA. ----- Forwarded by Caroline Abramo/Corp/Enron on 03/15/2001 03:37 PM -----

Caroline Abramo 03/12/2001 04:22 PM To: Sara Shackleton/HOU/ECT@ECT cc:

Subject: can you please look over

I've just omitted the offensive language on the lines....

i need to get something back to them.....thanks, ca

Message 802 of 1118

RE: Valentis

Sender	paul.radous@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2424.

a) We have used language (Catequil Partners, LP for example) where the MAC applies first the S&P rating, if no S&P rating exists, then Moody's, then if Enron has no rating from either agency. Please use the same language here. I expect this will be the standard for the hedge funds.

b) Let's try for Events of Default. If they protest, I'm okay with making them Termination events.

c) Yes, my thinking on the deal changed when I realized we would be holding cash and not LCs. So there will be two way margining.

Yes, we want the monthly statement language, and the engineering/reserve reports.

All of the above also applies for CD Holdings. -----Original Message----- From: Shackleton, Sara Sent: Monday, April 23, 2001 9:56 AM To: Radous, Paul Subject: Valentis

Paul:

With respect to Valentis:

(a) Does the MAC apply to both S&P and Moody's? (not clear from worksheet) (b) Are the financial covenants Events of Default or Termination Events? (looks like these were Termination Events in AIG) (c) Is this deal two-way margining? You have set 0 Thresholds but indicated Return/Delivery for both parties. Our discussion of last week may have changed (we discussed one-way margining for CP only).

I'll have the same questions for CD Holdings.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 803 of 1118

Re: Boeing Credit Worksheet

Sender	sara.shackleton@enron.com
Recipients	['Tracy', 'Sara Shackleton/HOU/ECT@ECT', 'stephanie.panus@enron.com', 'john.malowney@enron.com@ENRON']
File	shackleton-s/sent/5954.

Let's send out this in the morning (if possible). Is the worksheet attached? I couldn't access it. We'll need address info from John Malowney (Portland) if Wendy doesn't have it.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/03/2001 04:52 PM -----

Wendy Conwell@ENRON 04/03/2001 11:41 AM

To: Sara Shackleton/HOU/ECT@ECT cc: john.malowney@enron.com, Tracy Ngo/PDX/ECT@ECT, Edward Sacks/Corp/Enron@Enron, Paul Radous/Enron@EnronXGate Subject: Re: Boeing Credit Worksheet

Sara,

How would you like to handle the outgoing guaranty for this. Would you like someone in your group to negotiate it directly with the customer prior to sending it up to Clement for sign off, or would you prefer that I go to Cindy Richardson and Clement Abrams directly. Please advise,

WEndy

John Malowney@ECT 04/03/2001 09:51 AM To: Wendy Conwell/NA/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT, john.malowney@enron.com@ENRON, Tracy Ngo/PDX/ECT@ECT, Edward Sacks/Corp/Enron@Enron, Paul Radous/Enron@EnronXGate@ENRON

Subject: Re: Boeing Credit Worksheet

Wendy, I appreciate you knocking out the CWS so quickly.... Thanks !! John

Sara, do you prefer to e-mail or mail a hard-copy to Boeing ? Let me know and I'll supply you with the accompanying address.

John

Message 804 of 1118

Re: WEXFORD- Valentis/ CD Holdings

Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com']
File	shackleton-s/sent/6081.

Caroline: Please give me a call when you're off the phone. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/19/2001 02:20 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Carol St Clair/HOU/ECT@ECT, Paul Radous/Corp/Enron, Fred Lagrasta/HOU/ECT@ECT Subject: WEXFORD- Valentis/ CD Holdings

We are trying to do a deal with Valentis Investors LLC (we have an LLC agreement for this entity) and CD Holdings (I do not have the LLC agreement for them- do you need?). Valentis is part of Wexford V- a fund owned by Wexford Capital. Paul Radous has all these linkage documents- he originally sent them up to Carol.

Valentis and CD Holdings jointly own some oil and gas properties. They would like to transact a hedge of these properties- they would like to sell natural gas forward for 8 years.

The total notional on the deal is about 34M.. I have discussed this with Paul Radous.. he has suggested that we do this deal as a stand alone for the Valentis and CD Holding entities.. he is requesting initial margin of 2million with a cap of 5

million.

They wanted to do this deal today (actually for the last week)... but we need to know if there are any legal objections... we will need a deemed ISDA like AIG.

Please give Paul and I a call when you have a minute.

Thanks, Caroline

Message 805 of 1118

Re: Bank of Montreal- Early Termination Letter

Sender	sara.shackleton@enron.com
Recipients	['jorge.garcia@enron.com']
File	shackleton-s/all_documents/9092.

Jorge:

The Bank of Montreal ("BMO") master agreement provides for Market Quotation in the event of early termination for non-commodity based products. BMO prepared the letter to document our agreement to a different valuation methodology for the terminated transaction. Please execute the letter.

P.S. Do know the difference between Market Quotation and Loss?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Jorge A Garcia@ENRON 02/09/2001 04:22 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Laurel Adams/HOU/ECT@ECT Subject: Bank of Montreal- Early Termination Letter

Good Afternoon Sara,

I wanted to document our discussion this afternoon regarding the Early Termination Letter for our Deal No. M368796 that settled on 2/2/01, with the Bank of Montreal. You stated that the Master ISDA Agreement states that the valuation method for early termination should be the process of obtaining Market Quotations from Reference Market Makers. This Early Termination Letter reflects that BMO determined the value through its ordinary valuation methods instead. This was agreed upon by, the trader, Ellen Su. Therefore, you provided your approval for us to execute this letter. Please respond with your agreement for our files.

Many Thanks,

Jorge A. Garcia Manager- Risk Management Enron Global Markets LLC 713/853-5596

Message 806 of 1118

Enron North America Corp. ("ENA") Global Custody and Clearance

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'mperkins@ix.netcom.com']
File	shackleton-s/sent/6317.

Mary:

Attached is the latest draft from Chase.

In particular, please take a look at the following paragraphs:

2.A (the definition of "Securities") 5.B (lien on securities) 5.C (setoff)

The ENA contact is Gennaro Contella. Please leave me or Sheila a voice mail and we can arrange a conference call on Monday with Gennaro, Nancy Callahan, if necessary (Chase legal) and anyone that you need to conference in on behalf of Enron Corp. The traders are anxious to have this account in place.

Irrespective of which Enron entity takes ownership of this agreement, we were looking to you for information regarding existing Chase accounts (in ENA's name).

Thanks for your help.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 06/01/2001 04:38 PM -----

Nancy.K.Callahan@chase.com 05/31/2001 01:45 PM

To: Sara.shackleton@enron.com cc: Gennaro.Contella@chase.com Subject: Enron Global Custody and Clearance Agreement

As requested, attached is the final Agreement which I believe reflects the revisions we discussed this morning. If this is acceptable, please have the Agreement executed on behalf of Enron and return the necessary counterparts to me for signature by Chase. I will then return fully executed copies to you. (See attached file: Enron.doc) - Enron.doc

Message 807 of 1118

Re: Meeting in Houston

Sender	susan.musch@enron.com
Recipients	['Susan', 'sara.shackleton@enron.com', 'Guenther Klar/LON/ECT@ECT', 'Robert Bruce/NA/Enron@Enron']
File	shackleton-s/notes_inbox/3166.

Sara,

I left Janine a phone message but didn't get to talk with her. I can make this time work.

Best regards, Susan

----- Forwarded by Susan Musch/ENRON_DEVELOPMENT on
02/22/2001 02:31 PM -----

Janine Juggins@ECT 02/22/2001 11:35 AM To: Sara Shackleton/HOU/ECT@ECT cc: Robert Bruce/NA/Enron@Enron, Guenther Klar/LON/ECT@ECT, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Re: Meeting in Houston

Slight amendment to your proposal:

(1) Credit Tuesday 27th at 10 am (2) Softs Tuesday 27th at 11 am

Already have a meeting scheduled at 9am that day. Will this work for you ? Thanks Janine

From: Sara Shackleton on 22/02/2001 10:08 CST To: Janine Juggins/LON/ECT@ECT cc: Robert Bruce/NA/Enron@Enron, Guenther Klar/LON/ECT@ECT, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Meeting in Houston

Janine: I would like to meet with you (and Guenther) regarding two topics:

(1) softs trading (together with Bob Bruce)

(2) credit trading (do we need anyone else?)

Either of Tuesday or Friday morning works fine. Let me propose 9 am Tuesday for softs and 10 am for credit (and I am flexible). Bob and I are located only several offices apart on the 38th floor of the Enron building.

We look forward to hearing from you.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 808 of 1118

RE: Con Ed of NY

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/sent/6078.

Thanks. We amended the guaranty yesterday to do just that. We are trying to have the guaranty executed.

Stephanie: We will ultimately need to attach the "Clement approved" form of guaranty to the Confirmation. Also, we may as well note the new guaranty in the amendment to the first transaction.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Edward Sacks/ENRON@enronXgate 04/19/2001 12:49 PM

To: Stephanie Panus/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: RE: Con Ed of NY

Looks good to me. We will need to amend our outgoing gty by increasing the amount from \$10MM to \$20MM and also expand gty coverage to cover all agmts which are financially settled w/ ENA.

Ed Sacks

-----Original Message-----

From: Panus, Stephanie Sent: Thursday, April 19, 2001 11:25 AM To: Sacks, Edward Cc: Shackleton, Sara Subject: Con Ed of NY

Ed,

Please review the attached revised confirm for Con Ed. The revision is to the Exposure Threshold/Credit Ratings on page 1 of Annex B-1. As ENA does not have a credit rating above BBB+, we have inserted \$20 mil. (the BBB+ threshold) for those ratings above BBB+.

Please contact either Sara or myself.

Thanks, Stephanie

<< File: 153Aconf (Con Ed NY).doc >>

Sara - I spoke to Clement about the revised guaranty and have emailed him clean and blacklined copies.

Message 809 of 1118

Re:	
Sender	carol.clair@enron.com
Recipients	['akasha.bibb@enron.com', 'sara.shackleton@enron.com', 'denis.o'connell@enron.com']
File	shackleton-s/all_documents/10034.

Akasha: I would reword the first sentence as follows:

In response to your e-mail dated March 21st and based on all of the information that we have received from you thus far which essentially has only demonstrated that the debt of our Reference Entity's affiliates has been repudiated, we still lack proof of the repudiation by our Reference Entity (and the guarantor of such debt) of its obligations under the Guaranty that supports such debt. Please provide us such information to demonstrate that a Credit Event has occurred.

I will be out of the office tomorrow but will be checking my voice mail. If you need to consult with someone right away, please contact Sara Shackleton who is familiar with this deal.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Akasha R Bibb@ENRON 03/22/2001 12:39 PM

To: Carol St Clair/HOU/ECT@ECT cc: Subject:

Carol, can you check the note below. Thanks Akasha

In response to your email dated March 21st, you have not proven whereby the guarantor(ie. the reference entity) has repudiated its obligations under the guarantee for the obligations mentioned in the documents sent to us, in your notice of Publicly Available Information..

We are still awaiting a copy of the Prospectus for the ISIN XS0109296011 US\$22.4MM floating rate notes due 2000 and a copy of the guarantee. Again, we do not believe a Credit Event has yet occurred.

Regards,

Message 810 of 1118

RE: ENRON/ALLEGHENY ISDA	
Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com', 'msternberg@aeglobalmarkets.com', 'tracy.ngo@enron.com']
File	shackleton-s/sent_items/117.

Michelle: Received your voice mail a few minutes ago. We are still reviewing your request. We may require other changes to the agreement. Will let you know our decision. Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: "Sternberg, Michelle" <MSternberg@aeglobalmarkets.com>@ENRON [mailto:IMCEANOTES+22Sternberg+2C+20Michelle+22+20+3CMSternberg+40aeglobalmarkets+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, September 26, 2001 11:14 AM To: Shackleton, Sara Cc: Heard, Marie Subject: ENRON/ALLEGHENY ISDA

Sara -

As per Marie's instructions, please find attached a blackline incorporating the changes that will be required to be made in the final form of ISDA (modifications to the Notice and Set-Off provisions). The attached is the last version that I have but if the changes are acceptable, I would suggest that you take the changes and incorporate it into your form of agreement

since it is the final version.

<<ENRON ISDA.REVISED 9.26.01.doc>>

Once reviewed, please let me know if the changes are acceptable - at which point you can forward to me a revised Schedule (without the signature page) via e-mail and I can have the agreement countersigned and replace the Schedule with your revised Schedule.

Thank you for your patience.

Regards, Michelle

- ENRON ISDA.REVISED 9.26.01.doc << File: ENRON ISDA.REVISED 9.26.01.doc >>

Message 811 of 1118

RE: Payment Date for financial power transactions

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com']
File	shackleton-s/sent_items/751.

Evelyn Aucoin (financial gas & power settlements) I left her a message to provide a more detailed explanation.

-----Original Message-----

From: Rohauer, Tanya Sent: Thursday, November 15, 2001 1:45 PM To: Shackleton, Sara Subject: RE: Payment Date for financial power transactions

where is this coming from? are counterparties asking to be paid throughout the month? or is this coming from our side?

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, November 15, 2001 1:27 PM To: Sacks, Edward; Radous, Paul; Rohauer, Tanya Subject: Payment Date for financial power transactions

All:

I am trying to resolve a recurring issue in the financial power group.

In the past, we have withheld payment for all swaps with the same counterparty terminating during a calendar month until the fifth Business Day after the floating price is determinable at the end of a month. As a practical matter, calculation of the payment of an aggregate of daily transactions would conceivably wait until the last Business Day of the month when a floating price was needed for one or more of the swaps.

How do you feel about payment for multiple trades with a party having varying termination dates throughout a given month? Is this a cash flow issue? Do I need to involve someone from Treasury or Settlements?

Please let me know. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 812 of 1118

(01-158) MARGIN RATE CHANGE FOR EUROTOP 100 AND 300 FUTURES

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10974.

Notice No. 01-158 May 9, 2001

TO: ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS ALL COMEX DIVISION CLEARING FIRMS ALL COMEX DIVISION OPERATIONS MANAGERS

FROM: Neal Wolkoff Executive Vice President

SUBJECT: MARGIN RATE CHANGE FOR EUROTOP 100 AND 300 FUTURES CONTRACTS

Effective Date: Thursday, May 10, 2001 (close of business) Futures Contract: FTSE Eurotop 100 and 300 Futures

Contract Months: All Months Rate Change:

COMEX Division Margins on FTSE Eurotop 100 Futures Contracts Clearing Member (Maintenance Margin): Old: \$8,000
New: \$9,500

Non-Member Customer (Initial Margin): Old: \$8,000 New: \$9,500

COMEX Division Margins on FTSE Eurotop 300 Futures Contracts Clearing Member (Maintenance Margin): Old: \$6,500
New: \$7,500

Non-Member Customer (Initial Margin): Old: \$6,500 New: \$7,500

Should you have any questions regarding these changes, please contact Arthur McCoy at (212) 299-2928 or Joe Sanguedolce at (212) 299-2855. This notice supersedes all previous notices regarding outright margins for the COMEX FTSE Eurotop 100 and 300 Futures Contract.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(01-158\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-158))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 813 of 1118

PRELIMINARY Raptor Proposal sheets (PRIVATE)

Sender	mary.cook@enron.com
Recipients	[sara.shackleton@enron.com', 'stuart.zisman@enron.com', 'mark.taylor@enron.com', 'julia.murray@enron.com']
File	shackleton-s/notes_inbox/1160.

See attached. I advised Brian that we would await FINAL sheets prior to preparation of swaps so as to not redo them all as we had to do on the publics. I will review the sheets today and provide comments on them as to swap preparation and request source data as we may need to figure out what some of these items are and how to write the swaps (for example, "income participation certificates"). For those that fit neatly into our template, I will get paralegal support on first drafts. For the other items I will discuss with Sara how we will split them between us. Stuart, will you distribute them to the appropriate persons for legal review comments and then provide the comments back to Brian Schwertner for FINAL sheet preparation.

Sara, will you handle Catalytica? Based upon prior emails I think you worked on this with Bart Clark.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 09/11/2000 08:20 AM -----

Brian Schwertner@ENRON 09/08/2000 04:49 PM

To: Mary Cook/HOU/ECT@ECT cc: Hope Vargas/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT Subject: PRELIMINARY Raptor Proposal sheets (PRIVATE)

Mary,

Attached are the PRELIMINARY Proposal sheets for the PRIVATE assets going into Raptor.

I will also send you these files via multiple emails, which may be easier for you to forward if need be.

Message 814 of 1118

Enron/Project Tahiti

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/3471.

Attached, in Word format, are the following documents with respect to the Tahiti transaction:

- Sale and Auction Agreement (255084); - Trust Agreement of Tahiti Series Trust (254424); - LLC Agreement of Fiji Z LLC (254423); - Trust Agreement of Bali Trust (255146); and - Subscription Documents (255729).

The documents have been revised to reflect many of the comments received to date; however, we realize that there are still a few open issues to be resolved.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 255729.doc - 254424.doc - 255084.doc - 255146.doc - 254423.doc

Message 815 of 1118

More infoFW: UBS erroneous payment

Sender	laurel.adams@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/52.

Sara, the money was swept from the below BofA account to Enron Corp.'s BofA account 3750494015. From there it was sent to another Enron Corp account at Citibank 00076486. Presumably, this is it's final resting place.

-----Original Message-----

From: Adams, Laurel Sent: Friday, December 07, 2001 9:32 AM To: Shackleton, Sara Subject: RE: UBS erroneous payment

Sara, ENA had one trade which matched this amount. ENA deal number 674047.

The money came into our account at Bank of America, acct. number 3751443337 account name "Enron Corp--ENA Cash Services"

The money is swept at the end of every day to a Citibank account, which I believe is in the name of Enron corp. I am verifying with treasury to be sure. As for the whereabouts of that specific parcel of cash, there's just no telling. It would have been merged with everything else that gets swept into the account.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 06, 2001 4:54 PM To: Adams, Laurel Subject: UBS erroneous payment

Laurel:

Please call me in the morning. I need to verify:

1. Was this an ENA transaction?
2. What is the actual account number?
3. What happened to the money when it hit the BofA account? I think you said it was swept into a Citibank account. Was this an ENA or ENE account?
4. Where is the money today?

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 816 of 1118

(01-145) May ATOM Processing Schedule

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10885.

Notice # 01-145 April 30, 2001

TO: ALL NYMEX/COMEX DIVISION MEMBERS ALL NYMEX/COMEX DIVISION MEMBER FIRMS ALL NYMEX/COMEX DIVISION CLEARING FIRMS ALL NYMEX/COMEX DIVISION OPERATION MANAGERS

FROM: George Henderson, Vice President Michael Campanelli, Vice President

RE: May ATOM Processing Schedule

DATE BUSINESS DAY EVENT

5/1 1 Preliminary ATOM reports 5/3 3 Last day for adjustments. 5/4 4 Final ATOM reports. 5/7 5 CMs debited for brokerage. 5/9 7 NYMEX gets confirmation of available Funds in escrow account and initiates Transfer to Brokers. 5/10 8 Funds are deposited to broker accounts.

5/11 9 Brokers who check their morning Balances will see the ATOM deposits Reflected in their bank balances.

NOTE: Broker enrollments for June cycle must be received by the Membership Department no later than 10:00 A.M., on May 30, 2001.

If you have any questions regarding NYMEX, please contact Juan Serrano or Gerard Taibi at (212) 299-2626. If you have any questions regarding COMEX, please contact David Sherman at (212) 299-2061.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-145)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 817 of 1118

Enron/Project Tahiti

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/notes_inbox/1138.

Attached, in WordPerfect format, are the following documents with respect to the Tahiti transaction:

- Sale and Auction Agreement (255084); - Trust Agreement of Tahiti Series Trust (254424); - LLC Agreement of Fiji Z LLC (254423); - Trust Agreement of Bali Trust (255146); and - Subscription Documents (255729).

The documents have been revised to reflect many of the comments received to date; however, we realize that there are still a few open issues to be resolved.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

CONFIDENTIALITY NOTICE: The information in this e-mail (including any attachments) is confidential, legally privileged and intended only for the use of each recipient named above. If you are not an intended recipient, you must not read, use or disseminate this information. If you have received this e-mail in error, please notify the sender immediately by reply e-mail and delete this e-mail from your computer. VIRUS WARNING: Although this e-mail (including any attachments) is not intended to contain any virus or defect that may affect your computer, you are responsible for ensuring that no virus or defect exists. The sender disclaims any responsibility for any loss or damages arising from any virus or defect associated with this e-mail.

- 255729.wpd - 254424.wpd - 255084.wpd - 255146.wpd - 254423.wpd

Message 818 of 1118

Re: EOL confirmations

Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com', 'mark.taylor@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/all_documents/9651.

I am not aware of what has occurred since the DECAF group meeting. Mark Taylor has participated in some further meetings. You should contact him. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Laurel Adams 03/06/2001 03:55 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Subject: EOL confirmations

Ladies,

Could one of you please tell me what is Legal's position on generating confirms for EOL trades? I was under the impression (evidently false) that we did NOT send confirms for gas deals done on EOL. I did hear that legal was currently reviewing this issue. Do you know where it stands, or who the best person to contact about this would be? Please let me know.

We are looking to do some confirm automation (at last, at last!) and one of the issues we are looking at is do we REALLY need to send paper confirms for trades done on EOL. It seems that it would just give someone one more chance to dispute the trade.

Mary, I was at the DCAF conference where you spoke on the issue of electronic confirmations and on line trading, but I don't remember how far Enron was on these issues.

Sara, It seems like we talked about this as part of a larger conversation on web-based confirms.

I would be grateful to hear both of your thoughts/concerns related to the above.

Thanks very much for your help!

Message 819 of 1118

Re: ISIS - FSA (Senior) - URGENT

Sender	sara.shackleton@enron.com
Recipients	['stephanie.panus@enron.com']
File	shackleton-s/sent/5200.

----- Forwarded by Sara Shackleton/HOU/ECT on 12/22/2000 10:16 AM -----

Denis O'Connell 12/22/2000 09:58 AM

To: Jeff Kinneman/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT, Robina Barker-Bennett/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT cc: Subject: Re: ISIS - FSA (Senior) - URGENT

Jeff/Laurel

Please find attached the Trade Confirmation and Schedule to the ISDA Master Agreement.

Please print up the Trade Confirmation, sign and fax to the counterparty at the number below.

In regard to the Schedule - two copies should be printed. The Schedule should then be attached to the printed form of ISDA Master Agreement. I have left a voicemail for Sara Shackleton - Sara should be able to provide this to you. Page 18 of the ISDA Master Agreement and page 29 of the Schedule should then be signed.

Page 1, Page 18 of the ISDA Master Agreement and all pages of the Schedule should then be faxed to the counterparty at the number below. Later this evening I would be grateful if you could courier both copies of the ISDA Master Agreement & Schedule to the counterparty at the address below with a covering letter requesting that one original copy be returned to me duly signed.

Please call Ed Newman once you have sent the docs.

Give me a call if you have any questions.

Tks,

Denis

FSA Administrative Services LLC Legal Department Attn: Edward Newman 350 Park Avenue New York, NY 10022

Tel. 212 339 0837 Fax. 212 339 0892

Message 820 of 1118

Final Transaction Documents - Hawaii I (Word)

Sender	murielmcfarling@akllp.com
Recipients	['alan.quaintance@enron.com', 'annmarie.tiller@enron.com', 'angela.davis@enron.com']
File	shackleton-s/all_documents/5033.

Attached in Word, at long last, are the final transaction documents for Hawaii I. These documents are marked to show minor, clean up changes from the documents that were last circulated on the closing date, November 20. These changes are largely clean up in nature. Additionally, the Form of Swap Confirmation and waterfall in the Trust Agreement were revised to cap the amount of money to be swapped up to Enron Corp on payment dates other than the Final Distribution Date, such that any amounts received by the Trust in excess of an amount necessary to pay interest will be used to pay current yield to the Certificate Hoder, and the remainder will be retained in the Collection Account. This change will only have any impact if the asset is generating cash flow in excess of the amount due as interest on the Notes.

Final closing binders will be distributed later this week.

The documents are identified as follows:

Trust Agreement (266236) RADA (266238) Facility Agreement (266253) Ex G1 - TRS Confirm (268741) Ex G2 - Schedule (Permitted Swap Party) (268744) Ex G3 - Schedule (Enron) (268748) Ex H - Transfer & Auction Agmt (266256) Ex I, Part A - Asset LLC Agmt (266270) Ex I, Part B - Transferor LLC Agmt (266276)

Muriel C. McFarling Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, TX 75201 (214) 659-4461 (direct line) (214) 659-4784 (direct fax)

- 266236.doc - 266238.doc - 266253.doc - 266256.doc - 266270.doc - 266276.doc - 268741.doc - 268744.doc - 268748.doc

Message 821 of 1118

Final Transaction Documents - Hawaii I (WordPerfect)

Sender	murielmcfarling@akllp.com
Recipients	['alan.quaintance@enron.com', 'annmarie.tiller@enron.com', 'angela.davis@enron.com']
File	shackleton-s/notes_inbox/113.

Attached in WordPerfect, at long last, are the final transaction documents for Hawaii I. These documents are marked to show minor, clean up changes from the documents that were last circulated on the closing date, November 20. These changes are largely clean up in nature. Additionally, the Form of Swap Confirmation and waterfall in the Trust Agreement were revised to cap the amount of money to be swapped up to Enron Corp on payment dates other than the Final Distribution Date, such that any amounts received by the Trust in excess of an amount necessary to pay interest will be used to pay current yield to the Certificate Hoder, and the remainder will be retained in the Collection Account. This change will only have any impact if the asset is generating cash flow in excess of the amount due as interest on the Notes.

Final closing binders will be distributed later this week.

The documents are identified as follows:

Trust Agreement (266236) RADA (266238) Facility Agreement (266253) Ex G1 - TRS Confirm (268741) Ex G2 - Schedule (Permitted Swap Party) (268744) Ex G3 - Schedule (Enron) (268748) Ex H - Transfer & Auction Agmt (266256) Ex I, Part A - Asset LLC Agmt (266270) Ex I, Part B - Transferor LLC Agmt (266276)

Muriel C. McFarling Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, TX 75201 (214) 659-4461 (direct line)
(214) 659-4784 (direct fax)

- 266236.wpd - 266238.wpd - 266253.wpd - 266256.wpd - 266270.wpd - 266276.wpd - 268741.wpd - 268744.wpd -
268748.wpd

Message 822 of 1118

Forms of Enron Raptor Swaps: Review/Comment

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/sent/2083.

----- Forwarded by Sara Shackleton/HOU/ECT on 09/22/2000 06:38 PM -----

Mary Cook 09/22/2000 11:18 AM

To: jnaughto@cwt.com cc: Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT Subject: Forms of Enron Raptor Swaps: Review/Comment

Attached are the swap forms we have utilized in round one of the raptor off balance sheet swap project. I have tried to clean them, and have also incorporated comments received thus far from Kirkland & Ellis, firm for Talon. Please review these forms and provide any further comments or suggestions to them by Tuesday morning of next week. As I mentioned, we plan to forward to you proposal sheets as and when received for all the remaining swaps to be placed into the raptor vehicles for preparation of the swaps by your firm. We should know more about the timing of the next round of swaps next week. As other and varied investments may be placed in the vehicles, we will ask that your firm develop the forms to be used on the basis of the proposals and any documents applicable to the underlying investment. Finally, please finalize the memorandum on termination and forward to my attention next week, if possible.

Thank you for your continued assistance. Please confirm receipt and ability to have comments to me by Tuesday.

Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 823 of 1118

NUI

Sender	sara.shackleton@enron.com
Recipients	['diane.anderson@enron.com']
File	shackleton-s/sent/6012.

Just a head's up on NUI - I'll let you know when I hear from Stacy.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/11/2001 11:16 AM -----

Tanya Rohauer/ENRON@enronXgate 04/11/2001 11:09 AM

To: Sara Shackleton/HOU/ECT@ECT, Stacy E Dickson/HOU/ECT@ECT cc: Rudwell Johnson/ENRON@enronXgate, Mark Breese/HOU/ECT@ECT Subject: NUI

Since NUI Utilites, Inc. is the rated entity, we are no longer requiring the \$50MM NUI Corp gty for this transaction. However, the financial swap (which should be 40,000/day total for May-Oct) is being documented under the NUI Energy Brokers, Inc. existing ISDA. Sara has modified to cross default the confirmation to the Credit Agreement. Stacy, please share the language you are using for the Transaciton Agreement to compensate for the Credit Agreement expiry in December with Sara so the financial confirmation can be modified as well. We also need to modify the financial confirmation to state that for this transaction only, NUI must be the Guarantor not NUI Capital. Then we must get a deal specific gty from NUI Utilites to cover this trade - probably \$10MM. This all arises because the finc/phys gty we were working on is out the window since NUI Utilities is the rated entity with associated balance sheet and the NUI Corp is not needed. Please advise asap and call with any questions.

Thanks, Tanya

Message 824 of 1118

EOL confirmations

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/sent/5752.

Mary: Do you want to answer Laurel? I haven't heard anything further about "paperless confirms". I'll also ask Mark for an update. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/06/2001 06:36 PM -----

Laurel Adams 03/06/2001 03:55 PM

To: Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Subject: EOL confirmations

Ladies,

Could one of you please tell me what is Legal's position on generating confirms for EOL trades? I was under the impression (evidently false) that we did NOT send confirms for gas deals done on EOL. I did hear that legal was currently reviewing this issue. Do you know where it stands, or who the best person to contact about this would be? Please let me know.

We are looking to do some confirm automation (at last, at last!) and one of the issues we are looking at is do we REALLY need to send paper confirms for trades done on EOL. It seems that it would just give someone one more chance to dispute the trade.

Mary, I was at the DCAF conference where you spoke on the issue of electronic confirmtions and on line trading, but I don't remember how far Enron was on these issues.

Sara, It seems like we talked about this as part of a larger conversation on web-based confirms.

I would be grateful to hear both of your thoughts/concerns related to the above.

Thanks very much for your help!

Message 825 of 1118

RE: First Union National Bank ("FTU") ISDA with Enron Corp.

Sender	sara.shackleton@enron.com
Recipients	[tanya.rohauer@enron.com]
File	shackleton-s/sent_items/147.

Tanya: I think we sent the ENA ISDA to you but I'm going to refax since First Union is calling daily. We sent them a "blank" Paragraph 13 and they are asking for credit terms. Thanks for your help. Sara

-----Original Message-----

From: Rohauer, Tanya Sent: Monday, October 01, 2001 8:51 AM To: Shackleton, Sara Subject: RE: First Union National Bank ("FTU") ISDA with Enron Corp.

can you fax me the schedule and csa for the ena isda (853-9476) and I will decide if similar terms are appropriate

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 01, 2001 8:42 AM To: Rohauer, Tanya Subject: FW: First Union National Bank ("FTU") ISDA with Enron Corp.

Tanya: Enron Corp. wants to transact with FTU. I sent FTU a "blank" Paragraph 13 subject to ENA's credit review. Can you give me a call about this one? The FTU lawyer is calling me and already has comments to our draft Paragraph 13. Thanks. Sara

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, September 25, 2001 6:34 PM To: Rohauer, Tanya Cc: Bailey, Susan Subject: First Union National Bank ("FTU") ISDA with Enron Corp.

Tanya: FTU has asked to resume negotiations on the ISDA. We originally sent our draft without a Paragraph 13 and FTU wants a Paragraph 13 (similar to the one FTU negotiated with ENA). If you are agreeable to credit, can you please propose a credit worksheet?

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 826 of 1118

FW: 11/30/01 FMTM credit file for ENA, ECC and EPMI

Sender	sara.shackleton@enron.com
Recipients	[tom.moran@enron.com]
File	shackleton-s/sent_items/335.

-----Original Message-----

From: Rohauer, Tanya Sent: Tuesday, January 22, 2002 1:01 PM To: Shackleton, Sara; Moran, Tom Subject: RE: 11/30/01 FMTM credit file for ENA, ECC and EPMI

is this the file I sent last week? NYMEX - I would talk to Elaine Schield or Greg Whiting; however, this data is as of 11/30 before terminations and the like - so we may well have had open positions on the nymex. I suspect it is made up of the forward value to the contracts, accrued interest, etc. I have no idea what the number is today - again Elaine or Leslie Reeves would be the best contact. I suspect there are entries for both JPM and Chase Man because our back office was booking to both places even though that was not correct. If the back office doesn't move the deals over, the data will be in both places. It is all about data integrity - there will be many issues like this, I suspect.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, January 22, 2002 12:40 PM To: Rohauer, Tanya; Moran, Tom Subject: 11/30/01 FMTM credit file for ENA, ECC and EPMI

A few questions:

(1) Where does the NYMEX amount come from (I understand that ENA has no open futures positions)? Is it margin? Also, what is that number today?

(2) Why are there entries for both "JPMorgan Chase Bank" and "The Chase Manhattan Bank"? What is the difference? For example, we have a termination notice from Chase but not JPMorgan Chase.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 827 of 1118

Deutsche Bank Securities

Sender	samantha.boyd@enron.com
Recipients	['sara.shackleton@enron.com', 'eddie.cotto@db.com']
File	shackleton-s/all_documents/3797.

Eddie:

This e-mail is being sent to your attention in response to your request to execute an Agreement for Prime Brokerage Clearance Services with Deutsche Bank Securities (clearing through Morgan Stanley, Bear Stearns and Goldman Sachs). Unfortunately, I am not familiar with the tax ID numbers that you provided. I am assuming that these are the numbers assigned to the brokerage firms and not the Enron Corp. entity. Our numbers are totally different.

In order for me to have the appropriate individuals execute the Agreement and for me to provide you with all the corresponding documents required to open the account, it is imperative that we determine which Enron entity this account is being open for.

Please provide me with the name(s) of the individuals that you have had contact with at Enron so that I can research this matter on my end. If you have any additional questions or comments, please contact me at (713) 853-9188.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

eddie.cotto@db.com 09/22/2000 12:16 PM

To: Samantha.boyd@enron.com cc: Subject: Tax ID

Here are the three tax id's for the three diffrent accounts: Account Names Account # Tax ID Goldman Sachs 2080319290 135108880 Bear Stearns 6011402990 133604093 Morgan Stanley 6012907390 132655998

Anything else let me know. Eddie

Message 828 of 1118

RE: Requests for return of cash collateral

Sender	lisa.mellencamp@enron.com
Recipients	['sara.shackleton@enron.com', 'carol.st.@enron.com']
File	shackleton-s/inbox/175.

they will need to file a proof of claim for this amount. the money was not segregated so they have a claim just like any other unsecured creditor. we should call them and advise that they will need to file a claim for the funds.

-----Original Message-----

From: Shackleton, Sara Sent: Thu 12/27/2001 4:32 PM To: Mellencamp, Lisa Cc: Subject: RE: Requests for return of cash collateral

yes, earlier this year (posted in the form of "up front collateral").

-----Original Message-----

From: Mellencamp, Lisa Sent: Thursday, December 27, 2001 1:13 PM To: Shackleton, Sara Subject: RE: Requests for return of cash collateral

was the cash margin given to us pre-petition?

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 27, 2001 11:03 AM To: Mellencamp, Lisa Cc: St. Clair, Carol Subject: Requests for return of cash collateral

Lisa:

ENA has received a second written request from a financial counterparty (Union Spring Fund Ltd.) for the return of \$150,000 cash collateral plus interest. The cash was posted as initial margin on trade date of the swaps. We have confirmed that all trades were terminated as of mid-December, 2001. The counterparty has not sent a "termination letter" as there was nothing to terminate, but has sent a letter requesting return of the collateral.

Although we may not want to return the cash, aren't we obligated to do so?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 829 of 1118

RE: FIMAT Canada, Inc. Customer Agreement

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'ellen.su@enron.com']
File	shackleton-s/inbox/513.

Sara,

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 29, 2001 11:25 AM To: Glover, Sheila Subject: FIMAT Canada, Inc. Customer Agreement

Sheila: attached is the markup I am preparing to send to FIMAT Canada. Some of the redlining reflects ENA's prior agreement with FIMAT USA, Inc. A few things for you to note and we can chat quickly:

(1) Par. 5 - will we agree to a fee schedule now or "as agreed to from time to time"? [Glover, Sheila] AGREED "from Time to time" okay. We are requesting commission fee schedule. We will want to have before we sign. [Glover, Sheila] I have

requested.

(2) Par. 7 - I have requested the interest rate schedule. Alternatively, I have "borrowed" language from the FIMAT USA, Inc. agreement. Which do you think is best? [Glover, Sheila] We think the max legal rate or 150% sounds high. We want to see the interest rate schedule. I will request.

(3) Par. 8 - is the reference to CAD50,000 for speculative accounts alright? Or will this be simply a hedge account and that particular language is extraneous? [Glover, Sheila] We have already ticked it off on the application as a hedge account so language should be extraneous.

(4) Par. 14 - will you need to object by phone (or is fax sufficient)? [Glover, Sheila] Trade differences are identified over the phone during as part of the daily broker check-out process.

<< File: Fimat Derivatives CanadaR1.DOC >>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 830 of 1118

Re: Energy New England LLC ("ENE")

Sender	brant.reves@enron.com
Recipients	['sara.shackleton@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/all_documents/9120.

Sara & Ed,

Jennifer Sabine, the trader who originally asked me to prepare a worksheet no longer works for Fred Lagrasta, so I doubt she is the one pushing this. Unless Ed knows something else or has already addressed the question of agency ISDA's with utilities/munis, I am of similar opinion with you Sara. That being, if the individual munis/utilities desire to trade term financial business, we should pursue individual contracts with them directly and not through affiliated agencies.

None of Fred's people are pushing this. And I am not pushing this. Ed, unless you have reason to pursue this, I would advise holding off any further effort until an origination/trading function can be identified.

brant

From: Sara Shackleton on 02/12/2001 10:21 AM To: Edward Sacks/Corp/Enron@Enron, Brant Reves/HOU/ECT@ECT
cc: Subject: Energy New England LLC ("ENE")

Ed & Brant:

I'm being hounded by ENE but no Enron traders seem interested. Brant prepared a new worksheet based upon which we sent a new ISDA. ENE "represents" four municipal utilities and is trying to negotiate ISDA's on behalf of those utilities. I think the agent is off-base and I'm not sure that any of the utilities really want to trade financial.

Ed, Shari suggested that you may have some insight into ENE. Should I drop this one altogether? Or are we interested in pursuing?

Either Ed or Brant please let me know. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

*Message 831 of 1118***Re: Selling Dribble of Cynet Stock**

Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com', 'Samantha Boyd/NA/Enron@Enron', 'Stephanie Panus/NA/Enron@Enron']
File	shackleton-s/notes_inbox/2998.

Sara, Per your below message, I have not done anything on this as your message was directed to Cheryl to respond to this request.

From: Sara Shackleton@ECT on 02/22/2001 04:04 PM To: Cheryl Nelson/NA/Enron@Enron cc: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron

Subject: Selling Dribble of Cynet Stock

Cheryl: Will you please respond to this new request. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/22/2001 03:53 PM -----

Claude Tellis/ENRON@enronXgate 02/22/2001 02:52 PM

To: Sara Shackleton/HOU/ECT@ECT cc: John Godbold/ENRON@enronXgate, Theresa T Brogan/HOU/ECT@ECT, James Grace/Corp/Enron@ENRON Subject: Selling Dribble of Cynet Stock

Sara,

I work with Enron Investment Partners and would like to set up an account so that EIP can sell dribble out of its position in Cynet (CYNE.OB). We currently hold preferred stock, and intend to convert to common for sale into the public market. We intend to begin selling dribble in the middle of March, so I would like to set up the administrative end now.

It is my understanding that I need:

? Your existing templates for setting up a new account.

These documents include: ? Prime Broker Agreement ? Corporate Resolution ? Form W-9 ? Trading Authorization ? Authorization to Transfer Funds

Please send this information to me as soon as possible.

Best,

Claude Tellis Enron Investment Partners (713) 345 - 5382

*Message 832 of 1118***Re: Wine and Friends**

Sender	sara.shackleton@enron.com
Recipients	['donna_j_mullen@dom.com', 'carlew@flash.net']
File	shackleton-s/sent/6233.

Hey, I felt like I was in L.A., oh, wow, like, it was really cool ... re-ending is my thing, it's soooooo California, yea I'm gonna get re-ended as soon as possible. I'm not even gonna wait until Donna gets re-ended.

P.S. Can't wait to drink some port in those special glasses!

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Donna_J_Mullen@dom.com 05/18/2001 09:26 AM

To: "R. Carson Llewellyn" <carlew@flash.net>, Sara Shackleton <Sara.Shackleton@enron.com> cc: Subject: Re: Wine and Friends

It was great to see both of you and drinking Sara's wine is always fun. (Thanks again, Sara). At my soon-to-be-age and with my level of coordination and grace, I think it may be more likely that I'll slip, fall or wreck than go on a vacation before the "important day." If I'm lucky, I may even get re-ended before then!

"R. Carson Llewellyn" <carlew@flash.net> on 05/17/2001 05:39:26 PM

To: Sara Shackleton <Sara.Shackleton@enron.com>, Donna J Mullen/HQ/PC/CNG@CNGNOTES cc:

Subject: Wine and Friends

Thanks for letting me share Sara's wine and half of the meal last night. After my re-ending experience it was a very welcome evening, indeed. You both look great and live interesting lives. I hope we can get together for Donna's important day some time around July 12th. I am saving the Cakebread reserve for the occasion. Maybe, we will have some more interesting vacations, wrecks, or slip and falls to discuss by then.

Carson

Message 833 of 1118

EWEB

Sender	sara.shackleton@enron.com
Recipients	['holli.krebs@enron.com', 'melissa.murphy@enron.com', 'sharen.cason@enron.com', 'kimberly.hundl@enron.com']
File	shackleton-s/sent/5998.

Holli:

EWEB's Board Resolution of December 5, 2000 permits financial hedging in general and authorizes:

"The General Manager or other authorized officers as noted in the Power Risk Management Guidelines to execute confirmations of transactions within the limits specified in the Power Risk Management Guidelines."

Each time ENA trades with EWEB, the trader must verify whether the EWEB trader is authorized under the then current version of the Power Risk Management Guidelines. Each date you execute a trade: (1) you will need a list of authorized traders (authorized to enter into derivative transactions) certified by EWEB's secretary to be correct as of the Trade Date and (2) a statement certified by EWEB's secretary that the Transaction falls within the limits specified in the most current version of the Power Risk Management Guidelines, effective as of the Trade Date.

We have only a portion of the Power Risk Management Guidelines and it is dated April 19, 1999. Our version is incomplete and probably outdated. Maybe EWEB will provide you with the current version.

It would be a lot easier if EWEB's resolution simply authorized it to enter into financial trades documented under the ISDA (which is what most resolutions permit). However, EWEB did not obtain a broad resolution.

To Melissa, Sharen and Kim: We should also verify that our confirmations contain these representations. Please talk to me.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 834 of 1118

RE: RMT Trial Balance Information

Sender	susan.musch@enron.com
Recipients	['john.laborde@enron.com', 'stuart.zisman@enron.com', 'greg.whiting@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/inbox/544.

Greg said that the cash was not initially swept back up to ENA or Enron Corp. but he doesn't know where it went. He is going to follow up on this point in the morning with someone else in his group.

-----Original Message-----

From: Laborde, John Sent: Wednesday, January 09, 2002 5:08 PM To: Musch, Susan; Zisman, Stuart; Shackleton, Sara Subject: RE: RMT Trial Balance Information

Susan,

Did Greg say that the cash is still in ERMT or was it "swept" back up into ENA or Enron Corp.?

-----Original Message-----

From: Musch, Susan Sent: Wednesday, January 09, 2002 5:02 PM To: Zisman, Stuart; Laborde, John; Shackleton, Sara Subject: RE: RMT Trial Balance Information Importance: High

I just confirmed with Greg Whiting in Accounting that RMT made \$ 250 MM contribution to ERMT. (RMT obtained such funds through a capital contribution from ENA, which in turn received a \$250 MM contribution from Enron Corp.)

Best regards, Susan

-----Original Message-----

From: Musch, Susan Sent: Wednesday, January 09, 2002 3:34 PM To: Zisman, Stuart Cc: Laborde, John; Shackleton, Sara Subject: RMT Trial Balance Information Importance: High

Stuart,

Would you please send me your fax number so I can fax you the November 30th Trial Balance for RMT?

Thanks, Susan

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, January 09, 2002 2:53 PM To: Laborde, John; Musch, Susan; Zisman, Stuart Subject: RMT memo

<< File: RMT risk memo.dot >>

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 835 of 1118

WEXFORD- Valentis/ CD Holdings

Sender	sara.shackleton@enron.com
Recipients	['paul.radous@enron.com']
File	shackleton-s/sent/6083.

Paul: Were you going to send me a worksheet or email? Given that this is a long term deal, do you want to set a deadline for negotiating an ISDA (and make it an event of default)?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/19/2001 04:19 PM -----

Caroline Abramo@ENRON 04/19/2001 02:20 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Carol St Clair/HOU/ECT@ECT, Paul Radous/Corp/Enron, Fred Lagrasta/HOU/ECT@ECT Subject: WEXFORD- Valentis/ CD Holdings

We are trying to do a deal with Valentis Investors LLC (we have an LLC agreement for this entity) and CD Holdings (I do not have the LLC agreement for them- do you need?). Valentis is part of Wexford V- a fund owned by Wexford Capital. Paul Radous has all these linkage documents- he originally sent them up to Carol.

Valentis and CD Holdings jointly own some oil and gas properties. They would like to transact a hedge of these properties- they would like to sell natural gas forward for 8 years.

The total notional on the deal is about 34M.. I have discussed this with Paul Radous.. he has suggested that we do this deal as a stand alone for the Valentis and CD Holding entities.. he is requesting initial margin of 2million with a cap of 5 million.

They wanted to do this deal today (actually for the last week)... but we need to know if there are any legal objections... we will need a deemed ISDA like AIG.

Please give Paul and I a call when you have a minute.

Thanks, Caroline

Message 836 of 1118

RE: Commodity Futures Customer Agreement

Sender	sara.shackleton@enron.com
Recipients	['tammy.botsford@morganstanley.com']
File	shackleton-s/sent_items/176.

Tammy:

Your redraft is fine with two exceptions:

(1) We need to define "business day" which is used throughout the agreement and is never defined. I propose capitalizing the term throughout your document and using the ISDA definition or one which recognizes those days on which banks are open in NY and Houston.

(2) ENA cannot agree to arbitrate before the National Futures Association and you are no longer required to use that forum for arbitration. The situs is fine. I would like to again suggest the language which I originally proposed. If we cannot agree, can we be silent as to jurisdiction?

Please let me hear from you.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Tammy.Botsford@morganstanley.com@ENRON

[mailto:IMCEANOTES-Tammy+2EBotsford+40morganstanley+2Ecom+40ENRON@ENRON.com] Sent: Tuesday, October 02, 2001 3:26 PM To: Shackleton, Sara Subject: Commodity Futures Customer Agreement

Sara,

I'm attaching a draft of the futures agreement to "get the ball rolling" again. I believe I have included the terms you indicated were most important. One item I would like to bring to your attention is the arbitration clause. Morgan Stanley prefers to litigate disputes, but I can agree to NFA arbitration rather than litigation. I know New York is our preferred location, and Texas is yours, so I thought that holding the arbitration in Chicago might equally inconvenience us. Please let me know if this works for you.

Regards,

Tammy

- 1_Redline Enron Cust Agr.doc << File: 1_Redline Enron Cust Agr.doc >>

Message 837 of 1118

RE: ECT Investments, Inc. ("ECT") agreement with Monument

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/967.

Sara, Let's put Monument on hold for a bit.... I am sure there are higher uses of your time at this point. Regards, Sheila

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 30, 2001 9:50 AM To: Glover, Sheila Subject: ECT Investments, Inc. ("ECT") agreement with Monument Derivatives Limited ("MDL")

Sheila:

A few points:

(1) I've sent a request to London to review the SFA reps and LIFFE provisions; Jonathan Marsh is out of the office until Nov. 5. Jonathan is the regulatory expert.

(2) Page 5 - 7.1 (MDL and CLR fees/charges) and 7.2 (direct payment by CLR of MDL costs). Do you already have a fee schedule? Since ECT will be clearing through GSI and MC&Co., should we delete references to CLR? or should we mark up the CLR references as if we would be clearing through CLR? I suppose you may decide to clear through CLR.

(3) Page 6 - 7.5 (account debit for fees)

(4) Page 11- 15.2. I don't think we would object if CLR had the right to assign to Credit Lyonnais, but does ECT need to right to assign to another entity (without first obtaining consent)?

(5) Page 16- 4 and 5.2. Also, will we be settling outside the U.K. per 6.2? I didn't know if this could be an issue.

(6) Page 19- 8.1. Have you agreed to alternative interest arrangements?

(7) What exchanges will you be trading on through MDL? This terms of business contains a Schedule 3 (LIFFE terms) and 7.3 of that Schedule will apply to all other exchanges per 3.3 on page 3 of the terms of business.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

*Message 838 of 1118***Re: Project Crane**

Sender	sara.shackleton@enron.com
Recipients	[william.stuart@enron.com', 'Jay Boudreaux/HOU/ECT@ECT', 'Carlos Ruiz/NA/Enron@Enron']
File	shackleton-s/sent/5362.

Stuart:

Can we talk about the situation when you have about 15 minutes? Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

William Stuart 01/23/2001 12:30 PM

To: Fatimata Liamidi/NA/Enron@ENRON, Gustavo Junqueira/HOU/ECT@ECT, Carlos Ruiz/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: Project Crane

Since your plan is to assume the existing hedges, you need to determine from Sara Shackleton, our legal advisor, the issues related to assignability. Also, you should reduce the amount of CAD that you need to hedge by assigning the existing hedges.

Sara: What should we do if there is a position with a bank in which we do not deal with or have agreements with?

W. Stuart

To: William Stuart/HOU/ECT@ECT cc: Jay Boudreaux/HOU/ECT@ECT, Carlos Ruiz/NA/Enron@Enron Subject: Re: Project Crane

Stuart:

Would it be possible for you to send us a tradeable forward curve (we need to use it for our base case and run sensitivities from there)?

Also here are some answers to the questions you asked earlier this morning.

1) Will the asset be in a mark-to-market book? If so, will you need mark-to-market accounting for this hedge? Answer: We will plan to review with Kent Castleman

2) Under what entity name will the hedge be executed? Answer: Not yet determined

3) What will be done with the existing hedges that the entity currently has in place? Will they be assigned to Enron? Liquidated? Answer: Yes, we plan to assume the existing hedges on the date of purchase

Thanks a lot.

Fati and Carlos

*Message 839 of 1118***Re: ISDA confirms.**

Sender	stephanie.panus@enron.com
Recipients	[sara.shackleton@enron.com', 'carol.clair@enron.com']
File	shackleton-s/notes_inbox/2639.

Carol and Sara,

Susan forwarded this message to me. It looks like a counterparty is requesting our form of confirmation. ----- Forwarded by Stephanie Panus/NA/Enron on 04/03/2001 01:38 PM -----

Susan Bailey@ECT 03/30/2001 04:38 PM

To: Stephanie Panus/NA/Enron@Enron cc: Subject: Re: ISDA confirms.

Stephanie,

Please check with Sara or Carol to see if we can furnish such sample information to a Counterparty.

I do not if this would be considered proprietary information, because it is in association with our form of confirmation, but they may feel differently.

Thanks for the help.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 03/30/2001 04:33 PM -----

Katalin_Kiss@transalta.com 03/30/2001 04:28 PM

To: Susan.Bailey@enron.com cc: Subject: Re: ISDA confirms.

Sorry that would be the Long Form thanks again , Katalin ----- Forwarded by Katalin Kiss on 2001/03/30 03:33 PM

Katalin Kiss 2001/03/30 03:27 PM

To: Susan.Bailey@enron.com cc: Subject: Re: ISDA confirms. (Document link: Katalin Kiss)

Hi, thanks it would be a preISDA, I am actually looking for some samples. We have an ISDA in place with you so we've been using the short form, however I was looking for some language on a long form in particular for periods greater than : Calculation periods greater than one month. I would appreciate whatever you could provide, Thank you so much for your prompt response and assistance. Katalin

Message 840 of 1118

Phibro Guaranty Format

Sender	sara.shackleton@enron.com
Recipients	['nidia.mendoza@enron.com', 'robert.bruce@enron.com']
File	shackleton-s/sent/2141.

Bob: Can you please handle? Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 10/02/2000 09:58 AM -----

Nidia Mendoza 09/28/2000 05:05 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Phibro Guaranty Format

Please review the attached guaranty format. It will cover physical and financial transactions for natural gas, oil products, crude, electricity, natural gas liquids and metals. Please let me know if you have any comments/changes on it.

Thanks,

Nidia x3-4868 ----- Forwarded by Nidia Mendoza/HOU/ECT on 09/28/2000 04:52 PM -----

"Warten, Catherine" <wartenc@phibro.com> on 09/26/2000 02:44:53 PM To: "nidia.mendoza@enron.com" <nidia.mendoza@enron.com> cc: "Warten, Catherine" <wartenc@phibro.com> Subject: Enron- SSBHI Form of Gty

Dear Nidia-

Please find attached per our phone conversation today.

Sincerely-

Katie Warten Phibro Inc. 500 Nyala Farms Westport, CT 06880-6262 Ph: 203-221-5888 Fax: 203-221-6771 Email: wartenc@phibro.com

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- Cover letter new SSBHI gty format.doc - Template for more than one cp.doc

Message 841 of 1118

Re: Article 9 Chnages

Sender	david.mitchell@cwt.com
Recipients	['sara.shackleton@enron.com', 'mary.cook@enron.com', 'carol.st.clair@enron.com']
File	shackleton-s/all_documents/11335.

I have asked Lech Kalemkba to give you a call.

Carol.St.Clair @enron.com To: david.mitchell@cwt.com Office: cc: Mary.Cook@enron.com, Sara.Shackleton@enron.com 05/31/01 01:45 Subject: Article 9 Chnages PM

David: Have you done any memos outlining the changes to Article 9 and if so, is it something that we can see? Also, is it your view that New York will adopt the new Article 9 and if so, when? Finally, given the fact that Enron's primary type of collateral are LC's and cash, and we rely on perfection by possession, do you think that there is anything about the new Article 9 that we should be worrying about? If this question requires more time to analyze let's talk first. Thanks. Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

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Message 842 of 1118

RE: Enron Credit Inc.

Sender	edmund.cooper@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/242.

Sara, here is the excerpt from the book with all (and I mean all!) the details from the book. Let me know if you wish to discuss particular trades in more detail. Many thanks for your help with this. Regards, Edmund

-----Original Message-----

From: Shackleton, Sara Sent: 10 December 2001 14:48 To: Cooper, Edmund Subject: RE: Enron Credit Inc.

Edmund:

(1) I thought you said that there were specific transactions in the U.S. entities. I need a list of trades booked in the names of Enron Credit Inc. and Enron North America Corp.

(2) I need someone to walk me through the numbers appearing on the charts which you sent me.

(3) I don't understand what happened with the Anker Coal position. I know that London used that entity for the purpose of transferring this position to ECTEF Inc.

Sara

-----Original Message-----

From: Cooper, Edmund Sent: Friday, December 07, 2001 12:56 PM To: Shackleton, Sara Subject: RE: Enron Credit Inc. Importance: High

<< File: ENA ECI ECTEF at 30 Nov 01.xls >>

-----Original Message-----

From: Shackleton, Sara Sent: 07 December 2001 18:26 To: Cooper, Edmund Subject: Enron Credit Inc.

Edmund:

I have not received anything from anyone in London or anywhere else regarding positions, etc.

I did speak with a Weil bankruptcy lawyer and there were many issues especially with respect to ENA positions (and I don't know where the high value credit positions are booked). They believe that we may have structuring issues working through London and not directly with a purchaser.

Can you send the information over here?

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 843 of 1118

Re: Enron Credit Inc.

Sender	janine.juggins@enron.com
Recipients	['sara.shackleton@enron.com', 'guenther.klar@enron.com', 'susan.musch@enron.com']
File	shackleton-s/notes_inbox/3181.

By copy of this mail, I am asking Guenther Klar to give you an update on the back office procedures with respect to the Enron credit business and to follow up on the call you had re booking a deal in the name of ENA. Guenther and I will be in Houston next week (Tues 27, Weds 28 and Fri 2 March), and I think it would be a good idea to set up a meeting to update you in more detail on the plans for the Credit business. Tuesday or Friday morning would be the better times - please can you let me/Guenther know what time would suit you best ? Thanks and look forward to seeing you Janine

From: Sara Shackleton on 21/02/2001 13:34 CST To: Janine Juggins/LON/ECT@ECT cc: Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Enron Credit Inc.

Janine:

Congratulations on your promotion!

I need an update on the back-office relationship between Enron Credit Inc. (ECI) and Enron Credit Ltd. (ECL) Does London confirm the ECI trades? If so, I assume there is a power of attorney from ECI to someone in London. Or will ECI trades be confirmed in the U.S.?

I received a call from someone in London inquiring as to whether Greg Whalley could sign for ENA because he was in London. I believe this was in relation to the credit business. Are U.K. traders booking credit deals in the name of ENA or is this some type of back-office function performed on behalf of ENA? Any reason not to use ECI or ECL here?

Also, can you send a copy of the services agreement (if any) between any companies performing services on behalf of either ECI or ECL?

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 844 of 1118

RE: opening brokerage accounts

Sender	donna.lowry@enron.com
Recipients	['cassandra.schultz@enron.com', 'tanya.rohauer@enron.com', 'joseph.henry@enron.com', 'sara.shackleton@enron.co...]
File	shackleton-s/inbox/366.

I am aware of the transaction and agree the account should be established. After the securities are settled, I strongly suggest we close the account and will follow up to make sure that happens. Donna

-----Original Message-----

From: Melman, Gil M. Sent: Monday, October 08, 2001 7:04 PM To: Shackleton, Sara; Henry, Joseph Cc: Lowry, Donna; Schultz, Cassandra; Rohauer, Tanya Subject: RE: opening brokerage accounts

This request to open a brokerage account is in connection with ENA's sale of Hanover Compressor Company Common Stock . The transaction involves several components. We are being asked to open a brokerage account with Bear Stearns International Limited so that Bear is able to obtain favorable tax treatment on the specific types of transactions that we are doing. We are attempting to enter into these transactions on a "one-off" basis to avoid negotiating a brokerage agreement that would govern any future transactions.

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 08, 2001 5:31 PM To: Melman, Gil M.; Henry, Joseph Cc: Lowry, Donna; Schultz, Cassandra; Rohauer, Tanya Subject: opening brokerage accounts

Gil:

Before any brokerage account can be opened, you need to advise the RAC group. Please send an email to the three persons ("Cc") above explaining what accounts Enron North America Corp. ("ENA") requires and the purpose of those accounts (if you have not already done so). ENA has a brokerage agreement with Bear Stearns Companies, Inc. but not with Bear Stearns International Limited. ENA already has resolutions for opening brokerage accounts.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 845 of 1118

ClickAtHome Pilot 3 Program - An Invitation

Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/sent/5349.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/22/2001 01:50 PM -----

ClickAtHome Project Team@ENRON Sent by: Enron Announcements@ENRON 01/12/2001 10:27 PM

To: ClickAtHomePilot3 mailing cc: Subject: ClickAtHome Pilot 3 Program - An Invitation

Want to Get Innovative at Home?

We are excited to extend an invitation to you to participate in Pilot 3 of Enron's new ClickAtHome program.

The ClickAtHome program is Enron's innovative solution to provide eligible employees with a high-end computer and high-speed Internet connection. If you are interested in participating in the ClickAtHome pilot program, please read about "How to get started in Pilot 3" by clicking the link below.

<http://home.enron.com:84/messaging/pilot3.ppt>

ClickAtHome Ordering

PC Ordering for Pilot 3 is now available with select Internet Service Provider (ISP) ordering available by the end of the month. To get more information about the program or place your order, visit <http://clickathomepilot.enron.com>. If you have problems launching the site, please copy and paste <http://clickathomepilot.enron.com> directly into Internet Explorer (Internet Explore is required to access the site).

Dell will be in Houston to assist you with any questions you may have :

1/16/2001 8:00:00 AM-5:00:00 PM 1/17/2001 8:00:00 AM-5:00:00 PM 1/18/2001 8:00:00 AM-5:00:00 PM 1/19/2001 8:00:00 AM-2:30:00 PM

Location: EB568 and EB560

If you have questions, please send them to clickathomepilot3@enron.com.

We look forward to enabling you to Get Innovative at Home!

ClickAtHome Project Team

Message 846 of 1118

Re: FW: Frontera - ISDA Agreement

Sender	frank.sayre@enron.com
Recipients	['sara.shackleton@enron.com', 'Curry', 'Mike']
File	shackleton-s/notes_inbox/2087.

Sara - I reviewed it last night, and it looks fine. The only problem is that it's a limited partnership and I need to talk to you about how we deal with authority issues, etc. in those situations. Give me a call. Frank

Sara Shackleton@ECT 05/29/2001 06:18 PM

To: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Mike Curry/Enron@EnronXGate Subject: FW: Frontera - ISDA Agreement

Frank: I know you just received the credit worksheet. Can you give Mike Curry some idea of when the ISDA can be sent? Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/29/2001 05:55 PM -----

Mike Curry/ENRON@enronXgate 05/29/2001 05:44 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Frontera - ISDA Agreement

Now that you have received the credit worksheet from Paul, what is the status/timeline of getting an ISDA agreement I can forward to the customer? Thanks for your assistance with this, - Mike

-----Original Message-----

From: Portz, David Sent: Tuesday, May 15, 2001 5:19 PM To: Shackleton, Sara Cc: Curry, Mike Subject: Frontera - ISDA Agreement

Sara-- Are you still the swaps lawyer to assist with this? If not, would you pass it to the person who can help Mike Curry with this? Thanks.

----- Forwarded by David Portz/HOU/ECT on 05/15/2001 05:11 PM -----

Mike Curry/ENRON@enronXgate 05/15/2001 04:47 PM To: David Portz/HOU/ECT@ECT cc: Subject: Frontera - ISDA Agreement

David, We want to be able to start performing financial trades with Frontera so could you please prepare an ISDA Agreement for their review. Thanks, - Mike

Message 847 of 1118

Prime Broker Letter

Sender	sara.shackleton@enron.com
Recipients	['Mike Fowler/Corp/Enron@ENRON', 'jpeters@andrews-kurth.com', 'Paul Radous/Corp/Enron@ENRON']
File	shackleton-s/sent/2176.

----- Forwarded by Sara Shackleton/HOU/ECT on 10/05/2000 10:57 AM -----

Mike Fowler@ENRON 10/05/2000 10:21 AM

To: Samantha Boyd/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT, Paul Radous/Corp/Enron@ENRON Subject: Prime Broker Letter

Assuming that this relates to a request from one of the online trading sites (Buy Side Direct, Trading Edge or LIMITrader), Sara is correct that we intend to use Morgan Stanley as our prime broker to clear our trades through the site's clearing broker.

Mike x39990

----- Forwarded by Mike Fowler/Corp/Enron on 10/05/2000

10:15 AM ----- From: Sara Shackleton@ECT on 10/05/2000 10:13 AM To: Samantha Boyd/NA/Enron@ENRON cc: Mike Fowler/Corp/Enron@ENRON, Paul Radous/Corp/Enron@ENRON

Subject: Re:

I'd stick with Anthony. I didn't think that Prudential was one of our clearing brokers (remember, the letter must come from our clearing broker). Please keep Mike Fowler and Paul Radous informed. Thanks. Sara

Samantha Boyd@ENRON 10/05/2000 09:32 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re:

Sara,

I have Kevin Enright at Prudential Securities, Incorporated and Anthony Capolongo at Morgan Stanley researching the "Prime Broker Letter".

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Sara Shackleton@ECT 10/03/2000 06:53 PM

To: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Subject:

Paul Radous has requested that we seek a "Prime Broker letter" to send to the CP.

Click on this link to view the document in the Financial Trading Agreements database-->

Message 848 of 1118

Enron/Hawaii II 125-0 Trust

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/notes_inbox/506.

Attached in Word format are Hawaii II 125-O Trust documents marked against the previous version circulated last week:

Closing Checklist (266026) Distribution Agreement (265277) Schedule to ISDA Master Agmt (265279) Beneficial Interest Certificate (265276) RADA (265275) Second Amended and Restated Trust Agmt (265272) Facility Agreement (265273) Ex. F to Facility Agmt (Independent Auctioneer) (266746) Ex. G to Facility Agmt (Swap Confirmation) (266745) Ex. H to Facility Agmt (Transfer and Auction Agmt) (266163) Ex. I, Part A to Facility Agmt (LLC Agmt) (266143) Ex. I, Part B to Facility Agmt (LLC Agmt) (266137) Subscription Agmt (265278)

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 266746.doc - 265273.doc - 265275.doc - 265276.doc - 265277.doc - 265278.doc - 265279.doc - 266026.doc - 266137.doc - 266143.doc - 266163.doc - 266745.doc - 265272.doc

Message 849 of 1118

Re: Wine Celler

Sender	carlew@flash.net
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/notes_inbox/2397.

Great. I can not wait to see you guys. Looks like I will have to postpone my wine cellar plans. Us poor struggling title lawyers!! I doubt if you knew Bill Perkins from Tulane Law School. He graduated with Monty's class. Monty called me today to tell me that he died a week or so ago. Liver problems!! Bill was not into moderation.

I invited Monty to join us on the 16th and told him that Southwest has a special now with \$41 flights to and from New Orleans. He said he would look into it. However, if you called him, I would suspect that the odds of him showing up would increase dramatically. Sort of a belated B'day. He thought it was funny that you and Donna had to look forward to May 16th to have a mutually open date. I told him that attractive, single, open minded, mature females are in much demand in the big city.

Carson

Sara.Shackleton@enron.com wrote:

I can't remember exactly - maybe \$4000 - \$5000 Sure looks like you like to pry!!! (just kidding, Carson) I've picked out a variety of wine for the 16th, by the way Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com "R. Carson Llewellyn" To: Sara Shackleton

<Sara.Shackleton@enron.com>

<carlew@flash cc: .net> Subject: Wine Celler 04/24/2001 11:32 AM Sara: I hate to pry but I might be doing some remodeling to my house in July and wonder what it would cost to duplicate your closet wine cellar. Do you recall a ball park figure on the costs. See you on May 16th. Carson

Message 850 of 1118

Final Transaction Documents - Hawaii II (Word)

Sender	murielmcfarling@akllp.com
Recipients	[alan.quaintance@enron.com', 'annmarie.tiller@enron.com', 'angela.davis@enron.com']
File	shackleton-s/notes_inbox/111.

Attached in Word, at long last, are the final transaction documents for Hawaii II. These documents are marked to show minor, clean up changes from the documents that were last circulated on the closing date, November 20. These changes are largely clean up in nature. Additionally, the Form of Swap Confirmation and waterfall in the Trust Agreement were revised to cap the amount of money to be swapped up to Enron Corp on payment dates other than the Final Distribution Date, such that any amounts received by the Trust in excess of an amount necessary to pay interest will be used to pay current yield to the Certificate Hoder, and the remainder will be retained in the Collection Account. This change will only have any impact if the asset is generating cash flow in excess of the amount due as interest on the Notes.

Final closing binders will be distributed later this week.

- * Trust Agmt (265272)
- * RADA (265275)
- * Subscription Documents (265278)
- * Facility Agreement (265273)
- * Ex G1- TRS Confirm (268099)

- * Ex G2 - Schedule (Permitted Swap Party) (265279)
- * Ex G3 - Schedule (Enron) (266279)
- * Ex H - Transfer and Auction Agmt (266163)
- * Ex I, Part A - Amended and Restated LLC Agmt (266143)
- * Ex I, Part B - Amended and Restated LLC Transferor (266137)
- * Omnibus Amendment - McGarret A (266755)
- * Omnibus Amendment - McGarret C (266950)
- * Omnibus Amendment - McGarret D (267037)
- * Omnibus Amendment - Danno B (267271)

Muriel C. McFarling Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, TX 75201 (214) 659-4461 (direct line)
(214) 659-4784 (direct fax)

- 265272.doc - 265273.doc - 265275.doc - 265278.doc - 265279.doc - 266137.doc - 266143.doc - 266163.doc -
266279.doc - 266755.doc - 266950.doc - 267037.doc - 267271.doc - 268099.doc

Message 851 of 1118

Final Transaction Documents - Hawaii II (WordPerfect)

Sender	murielmcfarling@akllp.com
Recipients	[alan.quaintance@enron.com', 'annmarie.tiller@enron.com', 'angela.davis@enron.com']
File	shackleton-s/notes_inbox/112.

Attached in WordPerfect, at long last, are the final transaction documents for Hawaii II. These documents are marked to show minor, clean up changes from the documents that were last circulated on the closing date, November 20. These changes are largely clean up in nature. Additionally, the Form of Swap Confirmation and waterfall in the Trust Agreement were revised to cap the amount of money to be swapped up to Enron Corp on payment dates other than the Final Distribution Date, such that any amounts received by the Trust in excess of an amount necessary to pay interest will be used to pay current yield to the Certificate Holder, and the remainder will be retained in the Collection Account. This change will only have any impact if the asset is generating cash flow in excess of the amount due as interest on the Notes.

Final closing binders will be distributed later this week.

The documents are identified as follows:

* Trust Agmt (265272) * RADA (265275) * Subscription Documents (265278) * Facility Agreement (265273) * Ex G1- TRS Confirm (268099) * Ex G2 - Schedule (Permitted Swap Party) (265279) * Ex G3 - Schedule (Enron) (266279) * Ex H - Transfer and Auction Agmt (266163) * Ex I, Part A - Amended and Restated LLC Agmt (266143) * Ex I, Part B - Amended and Restated LLC Transferor (266137) * Omnibus Amendment - McGarret A (266755) * Omnibus Amendment - McGarret C (266950) * Omnibus Amendment - McGarret D (267037) * Omnibus Amendment - Danno B (267271)

Muriel C. McFarling Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, TX 75201 (214) 659-4461 (direct line)
(214) 659-4784 (direct fax)

- 265272.wpd - 265273.wpd - 265275.wpd - 265278.wpd - 265279.wpd - 266137.wpd - 266143.wpd - 268099.wpd -
267271.wpd - 267037.wpd - 266950.wpd - 266755.wpd - 266279.wpd - 266163.wpd

Message 852 of 1118

RE: WEXFORD- Valentis/ CD Holdings

Sender	paul.radous@enron.com
Recipients	['Paul Radous/Corp/Enron', 'sara.shackleton@enron.com', 'Carol St Clair/HOU/ECT@ECT', 'Fred']
File	shackleton-s/notes_inbox/2455.

I will send you a worksheet, but it's not done yet.

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, April 19, 2001 4:22 PM To: Radous, Paul Subject: WEXFORD- Valentis/ CD Holdings

Paul: Were you going to send me a worksheet or email? Given that this is a long term deal, do you want to set a deadline for negotiating an ISDA (and make it an event of default)?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/19/2001 04:19 PM -----

Caroline Abramo@ENRON 04/19/2001 02:20 PM To: Sara Shackleton/HOU/ECT@ECT cc: Carol St Clair/HOU/ECT@ECT, Paul Radous/Corp/Enron, Fred Lagrasta/HOU/ECT@ECT Subject: WEXFORD- Valentis/ CD Holdings

We are trying to do a deal with Valentis Investors LLC (we have an LLC agreement for this entity) and CD Holdings (I do not have the LLC agreement for them- do you need?). Valentis is part of Wexford V- a fund owned by Wexford Capital. Paul Radous has all these linkage documents- he originally sent them up to Carol.

Valentis and CD Holdings jointly own some oil and gas properties. They would like to transact a hedge of these properties- they would like to sell natural gas forward for 8 years.

The total notional on the deal is about 34M.. I have discussed this with Paul Radous.. he has suggested that we do this deal as a stand alone for the Valentis and CD Holding entities.. he is requesting initial margin of 2million with a cap of 5 million.

They wanted to do this deal today (actually for the last week)... but we need to know if there are any legal objections... we will need a deemed ISDA like AIG.

Please give Paul and I a call when you have a minute.

Thanks, Caroline

Message 853 of 1118

SNL Master Agreement and other info.

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'selen.gonzalez@enron.com', 'cheryl.nelson@enron.com', 'mike.fowler@enron.com']
File	shackleton-s/all_documents/11306.

Cheryl, Attached is a DATA Provider agreement to be reviewed. There is a one page Subscription agreement which I will forward to you. This does not require RAC approval. The agreement should be in the name of ECT Investments, Inc. and not Enron Corp. Please call if questions. Thanks. Sheila

Chris, There is a technical link below. Info is accessed via the web and also the data base which is installed once (on a local pc or server for multiple access). The database is then updated nightly. Please let me know. Ellen at SNL said you

can call her with questions. Sheila

----- Forwarded by Sheila Glover/HOU/ECT on 05/30/2001 03:02

PM -----

"Ellen Gulczynski (NY 206)" <EGulczynski@snl.com> on 05/30/2001 02:48:00 PM To: ""sheila.glover@enron.com"" <sheila.glover@enron.com>, ""selena.gonzalez@enron.com"" <selena.gonzalez@enron.com> cc: Subject: SNL Master Agreement and other info.

Sheila and Selena-

Attached you will find the agreement document and the link to the technical requirements section of our website.

<<NEWMMASTER.doc>> http://www.snl.com/ds/techinfo_docs.asp

I'll provide a revised contract reflecting the the renewal percentage increase shortly.

Thanks.

Ellen

Ellen A. Gulczynski SNL DataSource egulczynski@snl.com t - 201-963-1000 f - 804-244-4608

SNL Securities is the leading information and research company focusing on the banking, thrift, real estate, insurance, specialized financial services and energy industries. SNL collects financial, market, corporate, M&A and operating data on the public and private companies in these industries and transmits it to the sectors' top executives, investors, securities analysts, investment bankers, ratings and regulatory agencies, credit analysts, consultants, and attorneys.

- NEWMMASTER.doc

Message 854 of 1118

RE: KCS 2 Into Brazos: The Swaps

Sender	joan.quick@enron.com
Recipients	['rainj@tklaw.com', 'nora.dobin@enron.com', 'Sara; Lagrasta', 'Shackleton', 'tim.proffitt@enron.com', 'Fred']
File	shackleton-s/notes_inbox/2009.

in case you hadn't heard. KCS II is dead. i believe probs re price between kcs and union.

-----Original Message-----

From: Cook, Mary Sent: Monday, June 04, 2001 3:50 PM To: Bushman, Teresa; rainj@tklaw.com; Dobin, Nora; Proffitt, Tim; Melendrez, Jesus; Eubank, Marshall; Quick, Joan; Hudler, Shirley A.; Adams, Laurel; Shahi, Pushkar; Boyt, Eric; Garcia, Santiago; Fondren, Mark; Hunter, Larry Joe; Anderson, Diane Cc: Shackleton, Sara; Lagrasta, Fred Subject: KCS 2 Into Brazos: The Swaps

See the attached drafts for your review and comment. The preswaps on gas and crude have been distributed for execution by Diane Anderson. As discussed last week, and approved by the gas structure desk, the basis swap has been imbedded in the gas swap for the outyears and in the gas assignment and amendment document. Should you have any comments, please advise.

I will need prices and schedules to complete the swap paper. Remember, schedules are to be at 97%. Further, Jesus is to advise of how the 3% volumes remaining between KCS Energy and ENA under the preswaps are to be handled so that appropriate paper can be drafted.

As and when a closing day is set, please advise.

Diane Anderson: By copy of this memo, would you please distribute the final unexecuted versions of the preswaps to the captioned working group by email? (VC0975.1 and VC0917.1) Thank you.

Thank you everyone.

<< File: brazos KCS 2 crude confirm.doc >> << File: Brazos KCS 2 crude assignment.doc >> << File: brazos KCS 2 gas confirm.doc >> << File: Brazos KCS 2 gas assignment.doc >> << File: Brazos Interest Rate Swap KCS 2.doc >> << File: ECRDesk KCS 2.doc >>

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 855 of 1118

Re: Goldman Sachs/UBS Warburg

Sender	darren.delage@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9201.

Thank you Sara. I am awaiting response from both counterparties.

Sara Shackleton@ECT 02/15/2001 12:37 AM

To: Darren Delage/AP/Enron@Enron cc: Sheila Glover/HOU/ECT@ECT Subject: Goldman Sachs/UBS Warburg

Darren:

(1) Goldman Sachs ENA executed the Client Access Agreement with Goldman, Sachs & Co. on June 15, 2000. Since you are trading in the name of ENA, you should not need to execute an additional agreement. I confirmed this with Ted Leh this morning. At Ted's suggestion, please forward to me the fax number and email address of the Goldman person requesting that you execute further documentation. I can fax to him a copy of the agreement and correspond by email. I will also copy Ted Leh and Vivian Siao (keeps track of agreements and authorized traders) so that everyone is up to date.

(2) UBS Warburg I spoke with Sheryl Gallant. ENA and other Enron affiliates are already trading on the UBS electronic websites for OTC transactions. Interestingly enough, UBS does not require an electronic trading agreement to be signed by a customer for online trading. In other words, ENA has an executed ISDA with UBS dated May 31, 1993, you are an authorized trader for ENA and UBS is happy to let you access their platform. Sheryl does not know why Jun Ishi requested execution of a "Client User List" (i.e., an authorized trader list) and said to forget it. If you would like for me to speak to Jun Ishi or correspond with him (please send his email address), just let me know.

Please let me hear from you if you would like for me to pursue further. As a representative of ENA, you will probably have most agreements already in place.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 856 of 1118

RE: ConfirmLogic Target Customer List-Legal Entity Name

Sender	s..theriot@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/504.

Sorry for the late reply...you may already have your answer...

PacifiCorp Power Marketing, Inc. This is the entity they use for Physical. I do not see that they trade any Financial Power. They have done Nat. Gas financial Swaps with ECC.

Kim

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, October 10, 2001 5:33 PM To: Theriot, Kim S. Subject: RE: ConfirmLogic Target Customer List-Legal Entity Name

Kim:

Is the legal entity for PacificCorp: PacificCorp Power Marketing, Inc.? Is there only an entity for financial power?

Thanks. Sara

-----Original Message-----

From: Theriot, Kim S. Sent: Tuesday, September 18, 2001 12:30 PM To: Shackleton, Sara Cc: Cordes, Kathryn; Taylor, Mark E (Legal); Greenberg, Mark; Hansen, Leslie Subject: ConfirmLogic Target Customer List-Legal Entity Name Importance: High

Sara, See attached spreadsheet which shows the legal entity names by counterparty for each commodity. Name differences between the commodities are highlighted in Blue.

Kim Theriot

<< File: Top20 Legal Entity Names.xls >>

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 17, 2001 9:56 AM To: Theriot, Kim S. Cc: Greenberg, Mark; Cordes, Kathryn; Taylor, Mark E (Legal); Hansen, Leslie Subject: ConfirmLogic Target Customer List

Kim:

I am reviewing the list of 20 target customers dated 9/14/01 in an effort to set up a document drafting timetable.

For financial trading purposes, I need an accurate list of trading counterparties reflecting the complete name of each legal entity. Also, if a company is split into more than one legal entity (such as power and gas) for financial trading purposes, I need the names of both entities.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 857 of 1118

FW: Delta III - Enron-Citi FAA

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/all_documents/3137.

----- Forwarded by Sara Shackleton/HOU/ECT on 08/23/2000 05:22 PM -----

Mark Taylor 08/23/2000 03:31 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Delta III - Enron-Citi FAA

----- Forwarded by Mark Taylor/HOU/ECT on 08/23/2000 03:31 PM -----

MDunn1@milbank.com 08/23/2000 12:42 PM

To: doug.mcdowell@enron.com, craig.clark@enron.com, ryan.siurek@enron.com, gareth.bahlmann@enron.com, clint.walden@enron.com, kevin.d.jordan@enron.com, mark.taylor@enron.com, carol.stclair@enron.com,

brent.vasconcellos@enron.com, annmarie.tiller@enron.com, Fcochran@velaw.com, acurry@velaw.com, rick.caplan@ssmb.com, steve.incontro@ssmb.com, amanda.angelini@ssmb.com, fdevine@jonesday.com, jnr@maples.candw.ky, tmusarra@ustrust.com cc: MDunn1@milbank.com Subject: FW: Delta III - Enron-Citi FAA

??????? Please find attached a marked copy of the Enron/Citibank Fiscal AgencyAgreement.? Please ignore the marked copy of the Fiscal Agency Agreement that was part of the last distribution as it was a reversed blackline of the document.? We apologize for any inconenience this may have caused.

<<Enron-Citi FAA - Compare.rtf>>

Michael B. Dunn, Esq.

Milbank, Tweed, Hadley & McCloy LLP

1 Chase Manhattan Plaza

New York, NY? 10005

Telephone: (212) 530-5435

Facsimile: (212) 530-5014

E-Mail: mdunn1@milbank.com

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- Enron-Citi FAA - Compare.rtf

Message 858 of 1118

FW: Raptor 2 - Sale of CEG/RioGas

Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'Sara', 'Shackleton']
File	shackleton-s/sent/5704.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/28/2001 04:43 PM -----

Joel Ephross/ENRON@enronXgate 02/28/2001 11:36 AM

To: Ron Baker/Corp/Enron@ENRON, Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Raptor 2 - Sale of CEG/RioGas

-----Original Message-----

From: Funk, Brenda L. Sent: Wednesday, February 28, 2001 11:35 AM To: Ephross, Joel Cc: Shackleton, Sara Subject: RE: Raptor 2 - Sale of CEG/RioGas

Just an update... I spoke with V&E this morning and the sale has been put on hold. The negotiations broke down last week and, with the holiday, there has been no further progress.

I'll let you know when I get an update.

Thanks, B

-----Original Message-----

From: Ephross, Joel Sent: Wednesday, February 28, 2001 11:31 AM To: Shackleton, Sara; Funk, Brenda L. Subject: FW: Raptor 2 - Sale of CEG/RioGas

-----Original Message-----

From: Baker, Ron Sent: Thursday, February 15, 2001 9:12 AM To: Siurek, Ryan; McKean, George; McKillop, Gordon; Ephross, Joel Subject: Raptor 2 - Sale of CEG/RioGas

FYI I was just notified that the sale of CEG and RioGas which are hedged in Raptor 2 will likely close next week. Current estimates indicate that the loss on the sale will be around \$30MM. It is expected that the sale of the one remaining South American LDC will result in gains that will more than offset this loss. Obviously, those expectations can change, but I wanted to keep everyone informed on this.

Ryan - This expected realized loss is exactly the situation which most concerned us in the meeting with Patti this week. Is there anything we can do to push them towards resolving that timing of realized losses is irrelevant, and this is not an issue?

Message 859 of 1118

(01-128) INTRODUCTION OF BRENT CRUDE OIL FUTURES CONTRACT

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10460.

Notice 01-128 April 11, 2001

TO: All Exchange Members/Member Firms All Exchange Clearing Members

FROM: Neal Wolkoff Executive Vice President

RE: INTRODUCTION OF BRENT CRUDE OIL FUTURES CONTRACT

--

At the recommendation of its crude oil advisory committee, the board of=20 directors of the New York Mercantile Exchange, Inc., this morning voted to= =20 develop a 15-day Brent Blend crude oil futures contract that will be traded= =20 in the ring alongside the Exchange=01,s benchmark light, sweet crude oil fu= tures=20 contract.

The new contract will be cash-settled based on an index currently under=20 development by the Exchange staff and crude oil advisory committee.

This contract is a natural fit for our marketplace since many of our=20 customers and traders are already participating in this market. Net=20 margining between the two benchmark crudes and an aggressive program to=20 reduce other trading costs will benefit our customers, members, and the=20 marketplace as a whole. Being offered on the New York Mercantile Exchange= =20 will enhance this market through absolute neutrality and our demonstrated= =20 liquidity and expertise in creating efficient energy markets.

For more information, please call Robert Levin, Senior Vice President of=20 Planning and Development at (212) 299-2390, or Daniel Brusstar, Director of= =20 Energy Research, at (212) 299-2604.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D\(01-128\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(01-128))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 860 of 1118

CMPC - ISDA contract

Sender	sara.shackleton@enron.com
Recipients	['Sara Shackleton/HOU/ECT@ECT', 'stephanie.panus@enron.com', 'Paul Radous/Corp/Enron@ENRON', 'Bob']
File	shackleton-s/all_documents/8654.

Stephanie: Below is forwarding info for both Lotus Notes and sending this ISDA. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/04/2001 05:28 PM -----

Gustavo Junqueira 01/04/2001 12:15 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: CMPC - ISDA contract

Sara, If you are going to email the agreement you can send it to Alejandro Espinosa and Francisco Ruiz-Tagle. Their emails are listed below. In case you are going to mail a hard copy I will talk to Francisco later today and get the correct address. Thanks, Gustavo x37630

----- Forwarded by Gustavo Junqueira/HOU/ECT on 01/04/2001

12:16 PM -----

Scott Griffin@ENRON 01/04/2001 11:13 AM To: Gustavo Junqueira/HOU/ECT@ECT, Jay Epstein/HOU/ECT@ECT cc: Paul Radous/Corp/Enron@ENRON, Sara Shackleton/HOU/ECT@ECT, Bob Crane/HOU/ECT@ECT Subject: CMPC Fiancial Deal

Gustavo,

CMPC would like to sell us fixed financial newsprint for 3 years (2000-3000 tons per month). I quoted a bid of \$596/mt based on the RISI East index and \$598/mt based on the PPW index. Going forward all price questions should be referred to Jay, and the final price would need to be confirmed at the time of deal closure.

Alejandro and Francisco would like to review a draft of a contract, and a draft is currently being completed in Legal. You should call to confirm where they would like the legal documents sent. I presume that they would like one set to go to their attorneys in NY and one set to themselves in Chile.

Their Contact information:

Alejandro Espinosa 56-24-41-2271 aespinos@gerencia.cmpc.cl Francisco Ruiz-Tagle 56-24-41-2271 fruiztagle@gerencia.cmpc.cl

Thank you,

Scott Griffin

Message 861 of 1118

Paralegal items

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/all_documents/8856.

A few items to consider for the paralegals:

(1) We need to organize the various country opinions (ISDA closeout netting, ENA jurisdictional survey, others) so that they are accessible to the group. We should also have a checkout process for the opinions. We should have access to the ECTRIC opinion database (which I believe is organized online). I know that I can look in a particular file cabinet located near Susan for the various volumes of opinions, but where can I find an updated listing of all of the above?

(2) Impress upon everyone the importance of entering information into Lotus Notes (for ALL types of agreements).

(3) I believe that Sam is in charge of the unanimous consents (for all Enron affiliates). I for one would like an UPDATED book of the consents (kept updated). These consents must be maintained and kept current. If Sam is out of the office, we need access to the book.

(4) We should create a "paralegal manual" as we go. Each person could be responsible for drafting sections (and you could review their drafting skills!). Given some time, I could probably help to identify relevant sections.

(5) Agreement checkout. We need to create a "checkout card" for each file so that when files are returned to the file cabinet, the checkout card is retired and placed inside the file for the next checkout. I will volunteer my assistant to help out but I don't want to step out of turn here so I'll wait to hear from you.

(6) I have the sense from some of the legal-credit meetings that everyone needs to be reminded to follow up on outstanding ISDA's (mainly the Top Ten and high priority items).

I'll send additional items as they occur to me. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 862 of 1118

info on Coweta-Fayette and Sawnee

Sender	sara.shackleton@enron.com
Recipients	['frank.sayre@enron.com']
File	shackleton-s/sent/5992.

Per my voice mail.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/10/2001 09:15 AM -----

Lucy Ortiz 04/10/2001 09:08 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: info on Coweta-Fayette and Sawnee

Per my voicemail: We'd like to use an Omnibus contract if possible.

----- Forwarded by Lucy Ortiz/HOU/ECT on 04/10/2001 09:04 AM -----

Enron North America Corp.

From: Lucy Ortiz 03/28/2001 09:25 AM

To: Brant Reves/HOU/ECT cc: Subject: info on Coweta-Fayette and Sawnee

----- Forwarded by Lucy Ortiz/HOU/ECT on 03/28/2001 09:24 AM -----

Enron North America Corp.

From: Lucy Ortiz 03/26/2001 04:56 PM

To: Jason R Williams/NA/Enron cc: Subject: info on Coweta-Fayette and Sawnee

Coweta-Fayette Electric Membership Coweta-Fayette Electric Membership Corporation serves one of America's fastest-growing communities with a progressive attitude toward provision of power and customer service. From residential to manufacturers and commercial businesses, all of our over 55,000 customers are also members and owners of EMC. Here's the website: <http://www.utility.org/>

Sawnee

Sawnee EMC is a non-profit, member owned cooperative that prides itself on reliable, competitively priced electric service. In our seven county service area, we provide dependable electricity to over 100,000 members. Maintaining 8,000 miles of line answering approximately 600 calls a day, and processing an average of 3,000 payments per day, exemplifies our superior abilities to serve our members with ease and convenience.

<http://www.sawnee.com/aboutsawnee.htm>

Message 863 of 1118

Re: Government agencies

Sender	sara.shackleton@enron.com
Recipients	['Tim Abasov/HOU/ECT@ECT', 'laurel.adams@enron.com', 'Jonathan Le/HOU/ECT@ECT']
File	shackleton-s/all_documents/8671.

To my knowledge, we will trade these instruments via internal broker platforms (i.e., ENA traders will trade online rather than over the phone), such as Goldman Sachs, or directly over the phone. All trades will be confirmed either online or verbally and ENA will receive a daily statement reflecting trades done the previous day. ENA does not prepare a confirmation but will need to check out the broker statements.

I believe that these debt securities are issued in either book-entry form (in variable denominations) or as registered certificates (e.g., undivided interests in a mortgage pool).

We will trade US agencies and Japanese bonds with Goldman.

Please let me know if you have any questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Laurel Adams 01/08/2001 09:08 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Government agencies

Sara, I'm at home sick this morning, but plan to go into work this afternoon. Could you take a look at the email below and give me your thoughts? I'm not at all familiar with these instruments. Thanks. ----- Forwarded by Laurel Adams/HOU/ECT on 01/08/2001 08:59 AM -----

From: Sheila Glover 01/08/2001 08:55 AM

To: Ellen Su/Corp/Enron@Enron, Kevin Lee/Corp/Enron@Enron, Clara Carrington/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT cc: Jonathan Le/HOU/ECT@ECT, Tim Abasov/HOU/ECT@ECT Subject: Government agencies

Gary has gotten approval to use Government Agencies as hedging vehicles. Per Ellen, they will use Fannie Mae, Freddie Mac, and Federal Home Loan Bank instruments. What do we need to do to trade, confirm and settle these instruments? We will get together at 4:30 today to discuss the changes required. Thanks. Sheila

*Message 864 of 1118***Re: Raptor Swap deadline**

Sender	mary.cook@enron.com
Recipients	['gordon.mckillop@enron.com', 'chris.loehr@enron.com', 'andrea.reed@enron.com', 'hope.vargas@enron.com']
File	shackleton-s/all_documents/3652.

We are working to meet your deadline which you advised last week was this Friday. We are staffed to meet the Friday deadline. If you have any questions call Mary Cook.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Gordon McKillop@ENRON 09/18/2000 05:53 PM

To: Andrea V Reed/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Michael S Galvan/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT cc: Julia H Chin/NA/Enron@Enron, Ryan Siurek/Corp/Enron@ENRON, Scott Sefton/HOU/ECT@ECT, Chris Loehr/HOU/ECT@ECT Subject: Re: Raptor Swap deadline

Attached is an update of what has been complete and what is outstanding. We are missing 4 valuations; Amerada Hess, LSI Preferred (We have the warrants), Merlin Credit Derivative and Chewco SLP. Of the 31 privates plus Chewco SLP, we have proposal sheets and confirms for only 7. The publics have all been received.

We need to have the valuations, proposal sheets and confirms to Talon by Wednesday for their lawyers to review. The deadline is still to have everything completed by this week.

Please call me if you have any questions.

Thanks, Gordon

Gordon McKillop 09/15/2000 01:51 PM To: Andrea V Reed/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT cc: Julia H Chin/NA/Enron@Enron, Ryan Siurek/Corp/Enron@ENRON, Scott Sefton/HOU/ECT@ECT, Chris Loehr/HOU/ECT@ECT

Subject: Raptor Swap deadline

I have been informed that all the documentation for the Raptor swaps and confirmations needs to be completed and finalized by next week, 9/18-22. Talon will not accept any documentation after this date. Please let me know if there are any problems.

Thanks, Gordon

*Message 865 of 1118***FW: Quantlab**

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/sent_items/322.

-----Original Message-----

From: Glover, Sheila Sent: Thursday, January 24, 2002 4:13 PM To: Shackleton, Sara Subject: FW: Quantlab

-----Original Message-----

From: Glover, Sheila Sent: Tuesday, January 22, 2002 9:15 AM To: 'Bruce Eames <beames@quantlab.com>@ENRON'
Subject: RE: Quantlab

Bruce,

I sent a quick memo out on Friday and followed up this morning with your e-mail below. Hopefully, there will be a beneficial match on both sides.

Regards, Sheila -----Original Message----- From: Bruce Eames <beames@quantlab.com>@ENRON Sent: Friday, January 18, 2002 5:07 PM To: Glover, Sheila Cc: cdibiase@quantlab.com (Cassie DiBiase) Subject: Quantlab

To: Sheila Glover, Enron Corp. Dear Sheila: Thanks for taking time to speak with me today. Quantlab Capital Management is a small but growing Houston-based hedge fund management firm. The firm currently applies its quantitative trading technologies to over \$110 million in assets in both offshore and domestic funds that it manages. Our affiliated company, Quantlab Financial, LLC, is a research and development company specializing in the design, development, and application of advanced quantitative modeling and trading technologies for the financial markets. We are currently seeking candidates to help us develop our trading and back office operations as well as to support and grow our captive broker-dealer which is currently in formation. As I mentioned, we have spoken with several ex-Enron people from the hedge fund group including Jeff Kinneman, Samantha Davidson, and Aneela Charania. We have been impressed with the caliber and experience of your people and would be happy to speak with others that are looking for opportunities in the hedge fund arena. Best regards, Bruce Eames -- Quantlab Capital Management, Ltd. 4200 Montrose Blvd., Suite 450 Houston, TX 77006 USA Tel: 713.523.9394 x11 Fax: 713.526.2432 Email: beames@quantlab.com

Message 866 of 1118

RE: ECT Investments, Inc. ("ECT") agreement with Monument

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com']
File	shackleton-s/sent_items/608.

at your convenience. I understand entirely. SS

-----Original Message-----

From: Glover, Sheila Sent: Tuesday, October 30, 2001 10:26 AM To: Shackleton, Sara Subject: RE: ECT Investments, Inc. ("ECT") agreement with Monument Derivatives Limited ("MDL")

Sara, It is unlikely I will be able to get back to you today on this. I have some other requests I have to fulfill today. Thanks, Sheila

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 30, 2001 9:50 AM To: Glover, Sheila Subject: ECT Investments, Inc. ("ECT") agreement with Monument Derivatives Limited ("MDL")

Sheila:

A few points:

(1) I've sent a request to London to review the SFA reps and LIFFE provisions; Jonathan Marsh is out of the office until Nov. 5. Jonathan is the regulatory expert.

(2) Page 5 - 7.1 (MDL and CLR fees/charges) and 7.2 (direct payment by CLR of MDL costs). Do you already have a fee schedule? Since ECT will be clearing through GSI and MC&Co., should we delete references to CLR? or should we markup the CLR references as if we would be clearing through CLR? I suppose you may decide to clear through CLR.

(3) Page 6 - 7.5 (account debit for fees)

(4) Page 11- 15.2. I don't think we would object if CLR had the right to assign to Credit Lyonnais, but does ECT need to right to assign to another entity (without first obtaining consent)?

(5) Page 16- 4 and 5.2. Also, will we be settling outside the U.K. per 6.2? I didn't know if this could be an issue.

(6) Page 19- 8.1. Have you agreed to alternative interest arrangements?

(7) What exchanges will you be trading on through MDL? This terms of business contains a Schedule 3 (LIFFE terms) and 7.3 of that Schedule will apply to all other exchanges per 3.3 on page 3 of the terms of business.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 867 of 1118

Broker Name Change

Sender	tana.jones@enron.com
Recipients	['sara.shackleton@enron.com', 'mark.taylor@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/all_documents/10415.

Per notice below, please note that E.D.F Man International Inc.has changed= =20 its name to Man Financial Inc. (you may already know this, but I didn't!) ----- Forwarded by Tana Jones/HOU/ECT on 04/09/2001 03:05 PM -----

=09exchangeinfo@nymex.com =0904/09/2001 03:57 PM =09=09=20 =09=09 To: tana.jones@enron.com =09=09 cc:=20 =09=09 Subject: (MS-20) NOTICE OF INTENTION TO TRANSFER MEMBERSHIP

Member Services Notice No. MS-20 April 9, 2001

COMMODITY EXCHANGE, INC.

NOTICE OF INTENTION TO TRANSFER MEMBERSHIP

Notice of Intention to Transfer Membership has been posted on the bulletin= =20 board of the Exchange by:

Mark Cricco (MEC-7995)

In connection therewith, notification of any claims against the=20 aforementioned individual arising out of transactions executed on the=20 Exchange up to the close of business on April 9, 2001, must be submitted to= =20 the Corporate Secretary's Office within ten (10) days.

Inquiries regarding the above should be directed to the Member Services=20 Department at (212) 299-2370.

NAME CHANGE FOR CLEARING MEMBER FIRM

Please be advised that the Exchange has been notified that effective April = 2,=20 2001, Geldermann, Inc. (#358) has changed it=01,s name to Man International= Inc.

Furthermore, be advised that the Exchange has been notified that effective= =20 April 2, 2001, E.D.F. Man International Inc. (#330) has changed it=01,s nam= e to=20 Man Financial Inc.

Inquiries regarding the above should be directed to the Member Services=20 Department at (212) 299-2370.

Please click on the link below to indicate you have received this email.

" [http://208.206.41.61/email/email_log.cfm?useremail=3Dtana.jones@enron.com&r=efdoc=3D\(MS-20\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dtana.jones@enron.com&r=efdoc=3D(MS-20))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 868 of 1118

confidentiality language

Sender	sara.shackleton@enron.com
Recipients	['richard.sanders@enron.com']
File	shackleton-s/all_documents/9130.

Richard:

Highlighted below are changes to our standard confidentiality language requested by a banking counterparty to an ISDA agreement. Would you let me know if it is acceptable?

(i) Confidentiality. The contents of this Agreement and all other documents relating to this Agreement, and any information made available by one party or its Credit Support Provider to the other party or its Credit Support Provider with respect to this Agreement is confidential and shall not be disclosed to any third party (nor shall any public announcement relating to this Agreement be made by either party), except for such information (i) as may become generally available to the public, other than as a result of a disclosure in violation of the terms hereof (ii) as may be required or appropriate in response to any summons, subpoena, or otherwise in connection with any litigation or to comply with any applicable law, order, regulation, ruling, or accounting disclosure rule or standard, whether in response thereto or upon initiation by either party in defending itself, reducing its liability, or protecting or exercising any of its claims, rights, remedies or interests under or in connection with this Agreement or any Transaction (ii) as may be obtained from a non-confidential source that disclosed such information in a manner that did not violate its obligations to the non-disclosing party or its Credit Support Provider in making such disclosure, or (iv) as may be furnished to the disclosing party, its Affiliates and to each of such person's auditors, attorneys, advisors or lenders which are required to keep the information that is disclosed in confidence.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 869 of 1118

ClickAtHome Internet Service & PC Ordering Now Available!

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/sent/5390.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/24/2001 06:03 PM -----

ClickAtHomePilot3@ENRON Sent by: Kevin Whitehurst@ENRON 01/22/2001 08:47 PM

To: ClickAtHomePilot3@Enron cc: (bcc: Sara Shackleton/HOU/ECT) Subject: ClickAtHome Internet Service & PC Ordering Now Available!

Internet Service is now available for ordering! As a Pilot 3 Invitee of the ClickAtHome program, you can now order your PC and Broadband Internet Service through the ClickAtHome Pilot website, which may be accessed at <http://clickathomepilot.enron.com> (launch through Internet Explorer only). All Pilot participants are encouraged to place their PC order by January 25th.

Many of our Internet Service vendors are ready to begin providing service to you today, while all vendors will be ready by late February. ? The ClickAtHome Internet Service Providers whom are currently available for internet service are: ?

Time-Warner in Houston, (cable modem) Kingwood Cable, (cable modem) AT&T - Portland. ?(cable modem)

MSN, providing both dial-up and DSL service nationwide, and Cox Cable - Omaha, providing cable modem service, ?will be available in late February. ?We will provide further communication as soon as MSN and Cox Cable - Omaha orders can be placed. We appreciate your patience in advance.

To pre-qualify and sign up for service in your area today with Time Warner Houston, Kingwood Cable or AT&T- Portland, refer to <http://clickathomepilot.enron.com> for specific provider information and instructions on how to place your order. ?If you have problems launching the site, please copy and paste <http://clickathomepilot.enron.com> directly into Internet Explorer.

The ClickAtHome Team is excited to bring you these options.

ClickAtHome Team

Message 870 of 1118

RE: REMINDER OF THE ATTY ROUNDTABLE LUNCH MEETING TODAY FROM 12-1

Sender	sara.shackleton@enron.com
Recipients	['joanne.rozycki@enron.com']
File	shackleton-s/deleted_items/73.

Have no idea

-----Original Message-----

From: Rozycki, Joanne Sent: Wednesday, September 26, 2001 9:01 AM To: Shackleton, Sara Subject: RE: REMINDER OF THE ATTY ROUNDTABLE LUNCH MEETING TODAY FROM 12-1 (OR 1:30) PM IN EB3824

WHO WILL BE HOSTING IT?

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, September 26, 2001 8:52 AM To: Rozycki, Joanne Subject: RE: REMINDER OF THE ATTY ROUNDTABLE LUNCH MEETING TODAY FROM 12-1 (OR 1:30) PM IN EB3824

I can't make it today

-----Original Message-----

From: Rozycki, Joanne Sent: Wednesday, September 26, 2001 8:37 AM To: Taylor, Mark E (Legal); Cook, Mary; Sayre, Frank; Hendry, Brent; Leite, Francisco Pinto; Greenberg, Mark; Koehler, Anne C.; Gray, Barbara N.; Nelson, Cheryl; Farrell, Keegan Cc: Keiser, Holly; Gonzalez, Esmeralda; Spencer, Becky; Griffin, Vanessa; George, Carolyn Subject: REMINDER OF THE ATTY ROUNDTABLE LUNCH MEETING TODAY FROM 12-1 (OR 1:30) PM IN EB3824 Importance: High

At the request of Sara Shackleton, I am forwarding this message to you.

ORIGINAL MESSAGE - IF YOU DIDN'T RECEIVE IT Please mark your calendars for the swap group's "Attorney Roundtable" to meet on the second and fourth Wednesdays of each month from 12 pm until 1pm (or 1:30 pm) in Conference Room 3824. Box lunches will be available. The meetings will provide an informal forum for the exchange of ideas and discussion of topics of interest and importance to the swap lawyers. We presently have no format. Should we decide that an agenda is necessary, I will be glad to keep a current agenda, log of potential topics, etc. These lunches are strictly voluntary. Please let my assistant, Joanne Rozycki, know if you cannot attend (head count for lunches).

Joanne Rozycki Senior Administrative Assistant Enron North America Corp. 1400 Smith Street, EB3880D Houston, TX 77002 Phone: (713) 853-5968 Fax: (713) 646-3490 Email: joanne.rozycki@enron.com

Message 871 of 1118

ISDA Master Agreement prepared by Enron North America Corp. ("ENA")

Sender	sara.shackleton@enron.com
Recipients	['susan.bailey@enron.com']
File	shackleton-s/sent/5331.

Susan:

Regarding "Energy New England LLC", I found the attached. Please let me know what we actually prepared in the past (if anything). In any event, we will need the latest update as well as an update from credit. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/18/2001 10:40 AM -----

Sara Shackleton 10/25/2000 02:13 PM

To: jimdelani@aol.com cc: Joe Gordon/Corp/Enron@Enron, Edward Sacks/Corp/Enron@Enron, Susan Bailey/HOU/ECT@ECT Subject: ISDA Master Agreement prepared by Enron North America Corp. ("ENA")

Jim:

Pursuant to our recent conversation, I have attached below a DRAFT of ENA's standard (1) municipal ISDA Schedule and (2) Paragraph 13 to the ISDA Credit Support Annex. These two documents are intended to supplement the boilerplate for the ISDA Master Agreement and the ISDA Credit Support Annex. The forms are generic, that is, they have not been tailored for use by a specific municipal counterparty; they would necessarily be the subject of specific negotiations.

Energy New England's agency relationship with the various municipalities appears to cover physical trading. Notwithstanding the agency agreement, the financial trading world requires much more specificity, including but not limited to, evidence of authority to execute a master financial agreement and transactions thereunder. Additional information, including a legal opinion, is also required.

I assume from our prior conversation that you already have in your possession copies of the ISDA boilerplate. Please advise otherwise.

You should feel free to contact Ed Sacks with questions regarding collateral support documentation. As I mentioned, the attached Paragraph 13 has not been customized.

Please feel free to call if you have any questions.

Sara

Message 872 of 1118

FW: Orlando Utilities Commission

Sender	sara.shackleton@enron.com
Recipients	['rudwell.johnson@enron.com', 'richard.friedman@enron.com']
File	shackleton-s/sent_items/142.

Rich: I'm waiting to hear from credit. Sara

-----Original Message-----

From: Johnson, Rudwell Sent: Thursday, October 04, 2001 10:14 AM To: Shackleton, Sara Cc: Rohauer, Tanya Subject: RE: Orlando Utilities Commission

I have been out, however, I will be looking at this today and will get back to you asap.

Rudwell.

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 1, 2001 9:05 AM To: Rohauer, Tanya Cc: Johnson, Rudwell Subject: RE: Orlando Utilities Commission

I can wait; just didn't want it to slip through the cracks. Thanks. Sara

-----Original Message-----

From: Rohauer, Tanya Sent: Monday, October 01, 2001 8:50 AM To: Shackleton, Sara Subject: RE: Orlando Utilities Commission

he is out until thursday due to death in the family. if urgent, let me know and I will reassign

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 01, 2001 8:40 AM To: Johnson, Rudwell Cc: Rohauer, Tanya Subject: FW: Orlando Utilities Commission

Hi, Rudwell. Can you please resond to me email. Thanks. Sara

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, September 19, 2001 2:51 PM To: Johnson, Rudwell Cc: Friedman, Richard Subject: Orlando Utilities Commission

Rudwell:

You are handling this counterparty from a credit perspective. Rich Friedman from Global Markets has called to inquire about the status of this ISDA request. Please refer to Lotus Notes to review the last action taken by Russell in February, 2001. Please determine whether we can eliminate the Credit Support Annex from this agreement before we send another version. You will note that this counterparty wants to rely entirely on the form used by Aron. Russell has a copy of this agreement.

Do you want to put this on the legal credit list for follow up?

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 873 of 1118

Financial Trading Agreements Database Link

Sender	sara.shackleton@enron.com
Recipients	['kim.ward@enron.com']
File	shackleton-s/sent/5787.

Kim: See if this link works. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/13/2001 11:29 AM

Tana Jones 03/07/2001 01:05 PM

To: Melissa Ann Murphy/HOU/ECT@ECT, Kim S Theriot/HOU/ECT@ECT, Rhonda L Denton/HOU/ECT@ECT, Jefferson D Sorenson/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT, Kevin Meredith/Corp/Enron@ENRON, Bruce Mills/Corp/Enron@ENRON, Derek Bailey/Corp/Enron@ENRON, Jean Bell/HOU/ECT@ECT, Diane Anderson/NA/Enron@Enron, Souad Mahmassani/Corp/Enron@ENRON, Andrea R Guillen/HOU/ECT@ECT, Sheetal Patel/HOU/ECT@ECT, Jarrod Cyprow/HOU/ECT@ECT, Scott Tackett/Corp/Enron@Enron, Gordon Heaney/Corp/Enron@ENRON, Pamela Sonnier/HOU/ECT@ECT, David P Dupre/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT cc: Brent Hendry/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Susan Flynn/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Michael Neves/HOU/ECT@ECT Subject: Financial Trading Agreements Database Link

Attached is the link that will allow you access to referenced database. Please note, that we have just upgraded the database to add the ISDA definitions, branch offices approved for trading, and market disruption provisions. This information should be inputted for the new master swap agreements on a going forward basis, but we still need to go back and repopulate the data for the existing master swap agreements.

Also, FYI, the "See" drop down is our nickname for the name changes and mergers reference. If an item is filled in for that entity it should show you any prior or new names for the counterparty.

If there is anyone else who would like the link, please let me know and I will forward it to them.

We hope you find the information provided in this database helpful.

Link -->

Message 874 of 1118

1999 Mid Year Performance Feedback

Sender	perfmgmt@ect.enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11943.

NOTE: YOU WILL RECEIVE THIS MESSAGE EACH TIME YOU ARE SELECTED AS A REVIEWER.

You have been selected to participate in the 1999 Mid-Year Performance Feedback process by providing meaningful feedback on specific employee(s) that have been identified for you. Your feedback plays an important role in the performance evaluation process, and your participation is very critical to the success of ECT's Performance Management goals.

Please provide feedback on the employee(s) listed below by accessing the Performance Management System and completing an online feedback form as was described in the "ECT Performance Management Quick Reference Guide". You may begin your feedback input immediately. Please have all feedback forms completed by the date noted below.

If you have any questions regarding the Performance Management System or your responsibility in the process, please call the Performance Management User Support Hotline at the following numbers:

For U.S. Payroll Employees - 713-853-4777, Option 4 For Canada Payroll Employees - 403-974-6724

Thank you for your participation in this important process.

The following list of employees is a CUMULATIVE list of all feedback requests, by operating company, that have an "OPEN" feedback status. An employee's name will no longer appear once you have completed the feedback form and submitted as "COMPLETE" in the Performance Management System.

Review Group: ENRON CAPITAL & TRADE RESOURCES Feedback Due Date: Jul 02, 1999

Employee Name Supervisor Name Date Selected ----- GOSNELL, MARY G JEFFERSON D
SORENSEN Jun 14, 1999 HARRELL, WILLIE L JEFFERSON D SORENSON Jun 14, 1999 NEUNER, DALE R
JEFFERSON D SORENSON Jun 14, 1999 RODRIGUEZ, BERNICE C JEFFERSON D SORENSON Jun 14, 1999

Message 875 of 1118

Enron/McGarret D Transction

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/3923.

Attached in Word format are the following documents marked against the previous version. The changes are all minor and the majority of the changes reflect the name change from McGarret IV to McGarret II and Big Island IV to Big Island IV:

Series Certificate (258191) Series Supplement (258196) Drawdown Request (258198) Total Return Swap Confirmation (258201) Put Option Agreement (258202) Put Option Assignment (258215) Notice of Put Option Assignment (258218) Second Amended & Restated LLC Agreement of McGarret II (258239) Second Amended & Restated LLC Agreement of Big Island II (258206) Independent Auctioneer Letter Agreement (258302) Am. No. 1 to Sale & Auction Agreement (258307) Direction Letter to Owner Trustee (260012).

Please call Muriel McFarling (Thursday and Friday) in Houston at (713) 220-4242 if you have any questions.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

CONFIDENTIALITY NOTICE: The information in this e-mail (including any attachments) is confidential, legally privileged and intended only for the use of each recipient named above. If you are not an intended recipient, you must not read, use or disseminate this information. If you have received this e-mail in error, please notify the sender immediately by reply e-mail and delete this e-mail from your computer. VIRUS WARNING: Although this e-mail (including any attachments) is not intended to contain any virus or defect that may affect your computer, you are responsible for ensuring that no virus or defect exists. The sender disclaims any responsibility for any loss or damages arising from any virus or defect associated with this e-mail.

- 260012.doc - 258191.doc - 258196.doc - 258198.doc - 258201.doc - 258202.doc - 258215.doc - 258218.doc -
258239.doc - 258260.doc - 258302.doc - 258307.doc - 258187.doc

Message 876 of 1118

Enron/McGarret D

Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/notes_inbox/815.

Attached in WordPerfect format are the following documents marked against the previous version. The changes are all minor and the majority of the changes reflect the name change from McGarret IV to McGarret II and Big Island IV to Big Island IV:

Series Certificate (258191) Series Supplement (258196) Drawdown Request (258198) Total Return Swap Confirmation (258201) Put Option Agreement (258202) Put Option Assignment (258215) Notice of Put Option Assignment (258218) Second Amended & Restated LLC Agreement of McGarret II (258239) Second Amended & Restated LLC Agreement of Big Island II (258206) Independent Auctioneer Letter Agreement (258302) Am. No. 1 to Sale & Auction Agreement (258307) Direction Letter to Owner Trustee (260012).

Please call Muriel McFarling (Thursday and Friday) in Houston at (713) 220-4242 if you have any questions.

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 260012.wpd - 258191.wpd - 258196.wpd - 258198.wpd - 258201.wpd - 258202.wpd - 258215.wpd - 258218.wpd - 258239.wpd - 258260.wpd - 258302.wpd - 258307.wpd - 258187.wpd

Message 877 of 1118

Equity Swap Roll

Sender	sara.shackleton@enron.com
Recipients	['jim.armogida@enron.com', 'rex.rogers@enron.com']
File	shackleton-s/all_documents/8554.

FYI only - no response required Please advise if I'm copying you on too many "equity related" emails. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 12/18/2000 05:38 PM -----

Jeff Nogid 12/18/2000 05:32 PM

To: Shackleton Sara cc: Subject: Equity Swap Roll

Jeff Nogid Enron Global Finance 713-853-4782 ----- Forwarded by Jeff Nogid/HOU/ECT on 12/18/00 05:28 PM -----

Christine.Lee@ubsw.com 12/18/00 04:56 PM

To: jeff.nogid@enron.com cc: Subject: Equity Swap Roll

Jeff,

We rolled the equity swap today with the following terms:

Trade Date: December 18, 2000 Maturity Date: June 18, 2001 Reset Date: March 19, 2001 Initial Equity: \$79.5625 LIBOR: 6.53625% Spread: 0.90% Expected Div Rebate: 0.6215% All in Rate: 6.81475% # of Shares: 205,000

Please call me if you have any questions.

Regards, Christine

Visit our website at <http://www.ubswarburg.com>

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Message 878 of 1118

Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and

Sender	denis.o'connell@enron.com
Recipients	['sara.shackleton@enron.com', 'Sara Shackleton/HOU/ECT@ECT']
File	shackleton-s/all_documents/9524.

Sara - apologies - I thought my original mail to yourself and Jeff explained. I would be grateful if you could have this couriered today. I attach my original mail for convenience.

many tks,

Denis

Denis O'Connell 21/02/2001 18:55 To: Jeff Kinneman/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT

Subject: RVI - Portfolio CDS No.1 (Equity Tranche)

Jeff - you should receive in the next day or so a Security Agreement from our lawyers in Bermuda (Appleby Spurling) which has to be executed on behalf of ENA. I have approved these docs - in short the agreement grants us security in a Reinsurance Contract which supports RVI's obligation under the Credit Default Swap.

I would be grateful if you could sign where necessary and forward all copies by courier directly to Sharon White at the following address:

Sharon White Conyers Dill & Perman Clarendon House PO Box HM 666 Hamilton Bermuda

Sara - I would be grateful if you could provide the requisite legal initials. On a separate point - Sara - can you confirm that Greg Whalley has the authority to sign on behalf of ENA - if so can you have someone fax me a copy of the signatory authority.

If you have any questions give me buzz.

Many tks

Denis

PS - Drop me a mail when the docs have gone so I can chase-up with Sharon.

From: Sara Shackleton on 01/03/2001 08:27 CST To: Denis O'Connell/LON/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron

Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

No - you never answered my email of 2/27.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Denis O'Connell 03/01/2001 07:38 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: R.V.I. Guaranty Co., Ltd., a Bermuda reinsurance company and Continental Insurance Company

Sara - Has this been sent to Bermuda yet ? - tks Denis

Message 879 of 1118

RE: Enron Corp. Guaranty

Sender	sara.shackleton@enron.com
Recipients	['lauri.goodwyn@sgfimat.com']
File	shackleton-s/sent_items/739.

Lauri:

We are in the midst of obtaining the certificate.

Also, I just noticed that the effective date is missing the year "2001". Would you like to insert it and we will initial?

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: "Lauri GOODWYN" <Lauri.GOODWYN@sgfimat.com>@ENRON Sent: Monday, November 12, 2001 12:21 PM To: Shackleton, Sara; Wesner-Soong, Sarah; Warwick, Todd Cc: Steve FORMAN; Warren Tashnek Subject:

Would it be possible for you to forward a corporate resolution indicating that the signatory on the guaranty has full authorization? Thanks in advance for your help

----- Forwarded by Lauri GOODWYN/NYC/FIMAT on 11/12/2001

01:23 PM -----

Lauri GOODWYN 11/08/2001 10:54 AM (Embedded image moved to file: pic24464.pcx)

To: Sara.Shackleton@ENRON.com, sarah.wesner@enron.com, todd.warwick@enron.com cc:

Subject:

apparently there has been a technical issue with the e mail i sent. it hasnt picked up all of the changes. i am bolding instead of using highlighting. the changes should be in para 1(b), 3(c), 4 and 7. i had a question in para 6.

(See attached file: enronguarred.doc)

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- pic24464.pcx << File: pic24464.pcx >> - enronguarred.doc << File: enronguarred.doc >>

Message 880 of 1118

Re: Execution of brokerage Agreements

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/all_documents/10328.

S, thanx, please send the person her an email, in addition to the voice mail. I would find out also, in light of the exigent circumstances, whether there is any one else that you can call since we now have been trying to reach her for days; Also,

is there any else say, in the tax department who can help us?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Stephanie Panus 04/04/2001 03:50 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Cheryl Nelson/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT Subject: Re: Execution of brokerage Agreements

I have left messages regarding the tax id, etc. but have not heard back from anyone.

Cheryl Nelson Sent by: Cheryl Nelson 04/04/2001 03:48 PM

To: Stephanie Panus/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Execution of brokerage Agreements

Hey Stephanie, I can see that you are super super swamped, so I am trying to help by doing some of the paralegal work to get several of the URGENT brokerage agreements done. I do need your help on the following:

1. As I mentioned earlier today, the last few tasks I left for you for Enron Credit Inc. are critical. I jsut need for you to call that contact to find out when they will have the tax I.D. number and let her know that we corrected the final slate of officers via Richard Sage and not by the info in the system and we want the info in the system updated right away. We were able to get certain key documents to Bear in order to open the account but that stunt was contingent on our getting to them the outstanding information immediately thereafter and they are calling us on it. Sara represented to me that this work was extremely urgent.

Sara, maybe you can provide some guidance to Stephanie about whether she should put extra focus on these other tasks.

2. As per my previous emails yesterday and today, please have the documents ready for Goldman International by the end of the day Thursday.

thanx. Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 881 of 1118

Execution of NASDAQ, AMEX and NYSE Agreements for ITG/ECTI

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'selena.gonzalez@enron.com']
File	shackleton-s/all_documents/10044.

Hi Sara, since I will be out of the office for a chunk of the day to attend the funeral, I wanted you to know what is going on with this. I had completed the legal review of these documents but we needed some technical information from Julie. (See attached). Julie had provided all of the information except one task. I have asked her and Stephanie to coordiate getting this information and to get it to Selena's assistant for execution.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 03/22/2001 09:48 PM -----

Cheryl Nelson Sent by: Cheryl Nelson 03/22/2001 09:44 PM

To: Julie Pechersky/Enron@EnronXGate, Stephanie Panus/NA/Enron@Enron cc: Selena Gonzalez/HOU/ECT@ECT Subject: Execution of NASDAQ, AMEX and NYSE Agreements for ITG/ECTI

Julie, the agreements are ready for Gary Hickerson's signatures. Can you pick them up from Stephanie Panus, Senior Legal Specialist (I have left them on Stephanie's chair), and walk them down to Gary for signature -- please turn them over to Selena's assistant. Selena is at EB3072. Selena is out of the office today but her assistant will help get the documents executed, as per Selena's instructions before she left. We have to get this done today. Gary has to initial at every tab I have marked.

But before you walk them down, there is one piece of info I need you to fill out and one that I need Stephanie to do; this is probably why it is a good idea that you guys hook up.

Julie, as per my email, I need the answer to question 2 on page 17: List the URL address locations of the NASDAQ Subscriber Agreement for any sites that you support.

Stephanie, can you insert the tax i.d. number for ECT Investments- this information had to be placed on the NYSE agreement.

I will be back in the office tomorrow morning between 8 a.m. and 10 p.m., then I am leaving to attend a funeral. I do not know what time I will return but I will call in to make sure that these agreements get executed.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 882 of 1118

First Union National Bank ("FUNB")

Sender	sara.shackleton@enron.com
Recipients	['tanya.rohauer@enron.com']
File	shackleton-s/all_documents/9132.

Tanya: There are a few issues left:

(1) [re: legal name of our counterparty] According to FUNB, there is no legal entity named "First Union National Bank, Charlotte". If S&P is including the city where FUNB is headquartered as part of their legal name, then S&P is wrong. FUNB has asked that we forward the S&P document that you are looking at.

(2) [re: FUNB request to provide us with First Union Corp. financials and your response that it's OK if First Union Corp. signs on as a guarantor] FUNB says that First Union National Bank doesn't prepare annual statements. FUNB can provide quarterly call reports (with YTD info) which is also available on the FDIC page (www.fdic.gov). FUNB annual financials also available on EDGAR. I don't know what a call report is and FUNB did not offer up First Union Corp. as a guarantor.

(3) [re: 10 year bonds which you agreed to accept as Eligible Credit Support] I don't know what the "usual haircut" is on these issues. You said 90% or 95%. Legal no longer offers up bonds in our documents which is why we haven't discussed haircuts lately.

(4) [re: the Specified Conditions of Tax Event, Tax Event Upon Merger and Credit Event Upon Merger] FUNB would rather terminate than collateralize Transactions (and eliminate obligations to transfer in avoidance of termination). If a Specified Condition exists, then there is no obligation to deliver collateral to that party (experiencing the Specified Condition) and a Secured Party could exercise all remedies available to it against the Pledgor. (I think that we have a different philosophy in that we would prefer to preserve Transactions). I'm more willing to give in on the tax events (but global mergers could force that issue and the agreement basically requires the Affected Party to try to transfer the Transaction to avoid termination).

Please let me know if you have any questions. Thanks. Sara

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Message 883 of 1118

Re: Raptor Process - Mariner and Raptor 2 swaps

Sender	mary.cook@enron.com
Recipients	['george.mckean@enron.com', 'sara.shackleton@enron.com', 'gordon.mckillop@enron.com', 'angela.davis@enron.com']...
File	shackleton-s/all_documents/9732.

1. Carol St Clair will be handling whatever is finally decided to be done with the Raptor 2 South American swaps (assignment or termination). Please coordinate with her. Carol, attached below is our general form of notice of termination which has to be customized depending upon the type of investment etc. Sara had done the original South American swaps of which I do not have copies.

2. Depending on the timing of the Mariner transaction, Angela Davis or I will assist. I will be out of the office March 17 to 25. If the swap needs to be written in my absence, please contact Angela Davis.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Gordon McKillop@ENRON 03/09/2001 05:32 PM

To: Gordon McKillop/NA/Enron@ENRON cc: Brenda L Funk/Enron@EnronXGate, George McKean/NA/Enron@Enron, Hope Vargas/Enron@EnronXGate, Joel Ephross/Enron@EnronXGate, L'Sheryl Hudson/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Maria LeBeau/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Ron Baker/Corp/Enron@Enron Subject: Re: Raptor Process - Mariner

It looks like that we will be proceeding with putting Mariner into Raptor. Please start preparing the preliminary information. Thanks, Gordon

Gordon McKillop 02/28/2001 04:52 PM

To: L'Sheryl Hudson/HOU/ECT, Maria LeBeau/HOU/ECT, Lisa Mellencamp/HOU/ECT, Hope Vargas/HOU/ECT, Mary Cook/HOU/ECT cc: Joel Ephross/Enron@EnronXGate, Brenda L Funk/Enron@EnronXGate, George McKean/NA/Enron@Enron, Ron Baker/Corp/Enron@ENRON Subject: Raptor Process - Mariner

There is a possibility that Mariner will be going into Raptor. In preparation for that, I am proposing that we start the Raptor process for Mariner by preliminarily completing the Raptor proposal sheet and the Raptor legal checklist response form. Attached is an update from the Raptor process that was developed by Mary Cook after Raptor 1 swaps were done. Please contact me if you have any questions or comments on the process.

Thanks, Gordon

Message 884 of 1118

FW: Deutsche Banc Alex. Brown Futures Agreement

Sender	sheila.glover@enron.com
Recipients	['jason.fischer@enron.com', 'sara.shackleton@enron.com', 'frank.cernosek@enron.com']
File	shackleton-s/inbox/431.

Sara, I spoke with Frank Cernosek. Frank felt that the 5 day review window was okay since we are doing a daily check out and confirmation with futures brokers. Sheila

-----Original Message-----

From: Glover, Sheila Sent: Tuesday, October 16, 2001 5:32 PM To: Shackleton, Sara Cc: Cernosek Jr., Frank; Dallmann, Shane Subject: RE: Deutsche Banc Alex. Brown Futures Agreement

Sara, Shane and I are okay with: 1 okay 2 okay 3 okay. we have schedule and are okay with it. It is competitive with other Futures clearing charges. 4 okay, we do not do external position reporting 5 Does Metals, Enron Metals Limited, qualify as an FCM? There was some talk about using metals as a futures clearer for GAs so it may be. They cleared our Softs trading for Agri on LIFFE in the uk. 6 okay for trader change notification 7 I have a call into Frank Cernosek, Financial Operations. 5 days from receipt on monthly statement sounds very restrictive. Sara, Is this consistent with other futures agreements?

Thanks, Sheila

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 16, 2001 1:36 PM To: Glover, Sheila Subject: Deutsche Banc Alex. Brown Futures Agreement

Sheila:

Just a few notes from the Agreement:

(1) Par. 2(d) - DBAB will use its "reasonable judgment" to value securities or other assets posted as margin (2) Par. 2(e) - DBAB will use its then current rates of exchange for any currency conversions (probably not applicable to ENA) (3) Par. 3 - Have we agreed to commissions and brokerage charges? These are to be agreed "from time to time" (4) Par. 5 - Position Limits: ENA must promptly notify DBAB if ENA is required to file position reports. Can you explain, please? (5) Par. 7(b) - Not sure why we're being asked to make this rep. What is ENA's relationship to the Enron FCM these days? (6) Par. 9(a) - Trader changes binding on DBAB upon receipt of written confirmation (7) Par. 9(d) - verify binding nature of trades

Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 885 of 1118

RE: Bear Stearns International Ltd.

Sender	tanya.rohauer@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/323.

EGM will be doing the financial deal which i understand is a collar on South American ADRs - so ENA would be my guess.

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, October 03, 2001 11:16 AM To: Rohauer, Tanya Subject: RE: Bear Stearns International Ltd.

Yes, I've been contacted by Paul Puchot in Global Finance. There is some type of meeting this afternoon. It is not clear to anyone which Enron company is involved. FYI - I was in the midst of negotiating an ISDA with BSIL for Enron Corp. with respect to potential forward deals.

Sara

-----Original Message-----

From: Rohauer, Tanya Sent: Wednesday, October 03, 2001 10:51 AM To: Shackleton, Sara Subject: FW: Bear Stearns International Ltd.

Are you working on Bruin? Davis Thames told me Kristina Mordaunt is leading, but if involves ENA ISDA makes sense for you to be working with them on that portion.

Thanks, Tanya

-----Original Message-----

From: Boyd, Samantha Sent: Tuesday, October 02, 2001 2:36 PM To: Dawson, Matthew; Cooper, Edmund Cc: Jones, Tanya; Rohauer, Tanya Subject: Bear Stearns International Ltd.

I received a phone call from Nancy Bauer with Bear Stearns International Ltd. ("Bear Stearns"). Nancy has informed me that Bear Stearns will be doing a large trade with Enron North America Corp. ("ENA") very soon. Their goal is to get an ISDA Master Agreement in place quickly. Bear Stearns would like for the ISDA Master Agreement with ENA to mirror the ISDA Master Agreement dated July 3, 2000 between Enron Credit Limited and Bear Stearns.

My review of our Lotus Notes database did not reveal that Enron Credit Limited has a Master Agreement with Bear Stearns. If this Master Agreement has been executed, please make an entry for it in Lotus Notes. Also, please e-mail me a copy of the execution version of the Enron Credit Limited and Bear Stearns Master Agreement for legal and credit in Houston to review. Since time is of the essence, your attention to this matter is greatly appreciated.

Samantha M. Boyd Senior Legal Specialist Enron Wholesale Services 1400 Smith Street, EB3803 Houston, Texas 77002
Ph: (713) 853-9188 Fax: (713) 646-3490

Message 886 of 1118

Org Announcement - Enron Global Markets

Sender	sara.shackleton@enron.com
Recipients	['andrew.edison@enron.com']
File	shackleton-s/sent/5335.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/19/2001 09:32 AM -----

Enron Global Markets LLC - Office of the Chairman@ENRON Sent by: Enron Announcements@ENRON 08/17/2000 07:14 AM

To: North America cc: Subject: Org Announcement - Enron Global Markets Enron Global Markets LLC - Office of the Chairman

After having conducted our first of several business reviews, Enron Global Markets - Office of the Chairman would like to outline the following organizational changes effective immediately.

The Global Risk Markets group under Jere Overdyke illustrates enormous opportunities given the size of those businesses. To better focus on the different commercial functions and to capture market share and value, the group is being realigned. Jere will continue to manage Global Risk Markets and build on our insurance capabilities. Mark Tawney is responsible for our weather business and will now report to the EGM Office of the Chairman.

Brent Price will be joining Enron Global Markets as Vice President of Operations and Chief Accounting Officer. He will report to the EGM Office of the Chairman, and to Sally Beck, Vice President of Global Risk Management Operations. In his role as Chief Accounting Officer, Brent will also report to Rick Causey, Executive Vice President and Chief Accounting Officer for Enron Corp. Reporting to Brent in his new position will be Sheila Glover, business controller for Financial Products; Todd Hall, business controller for weather; and Scott Earnest, business controller for global products and coal. In addition, Tom Myers will join Brent's management team as Director of Accounting. Brent and his team are responsible for all accounting, risk reporting and trading operations for all the businesses within EGM.

Cindy Skinner will join the Enron Global Markets team with responsibility for Human Resources. She will also report to David Oxley and the HR organization.

Please join us in congratulating everyone in their assignments.

Message 887 of 1118

FW: Enron Corp - Forward Transaction - Draft Confirmation

Sender	mark.skinner@csfb.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/522.

Dear Ms Shackleton

Further to your e-mail to Stephen Haratunian of Friday evening please find below an e-mail that I sent earlier on Friday.

Regards

Mark Skinner

-----Original Message----- From: Skinner, Mark Sent: Friday, October 27, 2000 2:49 PM To: Jim Armogida (E-mail); Clint Freeland (E-mail) Cc: Haratunian, Stephen; Emerson, Michael; Chiodi, Maria Subject: Enron Corp - Forward Transaction - Draft Confirmation Dear Mr Armogida and Mr Freeland Further to your recent discussions with my colleague, Stephen Haratunian, please now find attached herewith a draft Confirmation in respect of the Forward Transaction between CSFBi and Enron Corp. <<Fwd001027.doc>> We look forward to discussing this draft with you further. Regards Mark Skinner Email: mark.skinner@csfb.com Vice President and Counsel CREDIT | FIRST TEL. (212) 325 8655 SUISSE | BOSTON FAX. (212) 325 8036 Credit Suisse First Boston Corporation 11 Madison Avenue, New York, N.Y. 10010

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- Fwd001027.doc

Message 888 of 1118

Re: New Futures Execution and Clearing Agreements

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'Cheryl Nelson/NA/Enron@Enron']
File	shackleton-s/notes_inbox/2361.

Sara, Thats great. Sheila

From: Sara Shackleton on 04/25/2001 06:30 PM To: Sheila Glover/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron Subject: Re: New Futures Execution and Clearing Agreements

Sheila:

Please send the futures and repo agreements to me. What futures products will Gary be trading and which exchanges?

Please continue to send brokerage agreements to Cheryl.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Sheila Glover 04/25/2001 08:19 AM

To: Cassandra Schultz/NA/Enron, Cheryl Nelson/NA/Enron@Enron, David Port/Market Risk/Corp/Enron cc: Sara Shackleton/HOU/ECT@ECT, Mary Nordstrom/ENRON@enronXgate, Theresa T Brogan/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, William S Bradford/HOU/ECT, Greg Whiting/Corp/Enron, Kim S Theriot/HOU/ECT@ECT, Gerri Gosnell/HOU/ECT@ECT Subject: New Futures Execution and Clearing Agreements

Cassandra, Cheryl and David, Gary requested this morning that we add Goldman Sach's Futures Clearing capability as well. I will request account opening information from them and forward to legal. Sheila ----- Forwarded by Sheila Glover/HOU/ECT on 04/25/2001 08:18 AM -----

From: Sheila Glover 04/24/2001 03:02 PM

To: Cassandra Schultz/NA/Enron, Cheryl Nelson/NA/Enron@Enron, David Port/Market Risk/Corp/Enron cc: Sara Shackleton/HOU/ECT@ECT, Mary Nordstrom/ENRON@enronXgate, Theresa T Brogan/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, William S Bradford/HOU/ECT, Greg Whiting/Corp/Enron, Kim S Theriot/HOU/ECT@ECT Subject: New Futures Execution and Clearing Agreements

Cassandra, Cheryl and David,

Gary has requested that we establish new futures execution and clearing agreements with Solomon Smith Barney/Citigroup and Morgan Stanley. I will forward the agreements when we receive them to Cheryl Nelson in Legal for review.

Prudential is exiting the business and the prior people at Pru have moved to SSB.

Please do not hesitate to call, 3-3210, if you have any questions. Sheila

Message 889 of 1118

Re: job referral

Sender	krifisher@hotmail.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/fisher__kristina/2.

Sara: Thank you ever so much! I will go to the website over the weekend and look over the application. Dad is home safe and sound. Hope you have a good weekend and I will definately keep you up to speed and any communications I've had with Eron...I'm keeping my fingers crossed! Thanks for the nice words about my resume...I'm not as self confident about it as I should be....it's the MBA competitive thing I guess?!? Regards, Kristina

From: Sara.Shackleton@enron.com To: krifisher@hotmail.com Subject: job referral Date: Fri, 20 Apr 2001 15:24:37 -0500 Hi, Kristina: It was great speaking with you last night! Hope your dad is home and doing well. I have contacted two different offices within Enron. The first is Human Resources in Houston. I suggested to them that you might be a good candidate for the associate/analyst program but they may think of other positions as well. I don't know how quickly that office might respond so let me know. The second "office" is directly to London. There is a woman in London named Anna Jansson who is currently leading efforts for the associate/analyst program in the Eastern Hemisphere. I have spoken with Anna and she has asked that you visit the website "www.enroncareers.com" and apply through the site. She already knows your name and I am trying to fax your resume (business resume) to her as well. When you visit the site, you may decide to use a different resume; just let me know. Just in case you would like to call directly, Anna's number in London (dialed from the U.S.) is 011-44-20-7783-5912. The company directory shows her email address as "anna.jansson@enron.net" (which looks a little weird to me). Please keep in touch and let me know if you receive responses (or don't hear back) so that I can follow up internally. By the way, you have an impressive resume. Please feel free to call me at anytime. I hope we get to meet soon. Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax)

sara.shackleton@enron.com

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Message 890 of 1118

Re: FW: Raptor 2 - Sale of CEG/RioGas

Sender	sara.shackleton@enron.com
Recipients	['joel.ephross@enron.com', 'brenda.funk@enron.com']
File	shackleton-s/sent/5697.

Brenda: Thanks. Also, do you have a Raptor IV minibook? We don't have any Raptor IV documentation. Do both swap parties intend to transfer positions?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brenda L Funk/ENRON@enronXgate 02/28/2001 11:50 AM

To: Joel Ephross/ENRON@enronXgate, Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Raptor 2 - Sale of CEG/RioGas

Just to clarify... the transfer of the swap has not been put on hold, but the sale of the assets hedged by the swaps. I have been working on the asset sale out of Rawhide, but I'm not familiar with the transfer of the swap.

Sara,

I will send executed copies of the swaps shortly.

Thanks, B

-----Original Message-----

From: Funk, Brenda L. Sent: Wednesday, February 28, 2001 11:35 AM To: Ephross, Joel Cc: Shackleton, Sara Subject: RE: Raptor 2 - Sale of CEG/RioGas

Just an update... I spoke with V&E this morning and the sale has been put on hold. The negotiations broke down last week and, with the holiday, there has been no further progress.

I'll let you know when I get an update.

Thanks, B

-----Original Message-----

From: Ephross, Joel Sent: Wednesday, February 28, 2001 11:31 AM To: Shackleton, Sara; Funk, Brenda L. Subject: FW: Raptor 2 - Sale of CEG/RioGas

-----Original Message-----

From: Baker, Ron Sent: Thursday, February 15, 2001 9:12 AM To: Siurek, Ryan; McKean, George; McKillop, Gordon; Ephross, Joel Subject: Raptor 2 - Sale of CEG/RioGas

FYI I was just notified that the sale of CEG and RioGas which are hedged in Raptor 2 will likely close next week. Current estimates indicate that the loss on the sale will be around \$30MM. It is expected that the sale of the one remaining South American LDC will result in gains that will more than offset this loss. Obviously, those expectations can change, but I wanted to keep everyone informed on this.

Ryan - This expected realized loss is exactly the situation which most concerned us in the meeting with Patti this week. Is there anything we can do to push them towards resolving that timing of realized losses is irrelevant, and this is not an issue?

Message 891 of 1118

RE: Kaiser US/UK Setoff w/MG and ENA

Sender	tracy.ngo@enron.com
Recipients	['carol.clair@enron.com', 'justin.boyd@enron.com', 'mark.evans@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/11213.

It's actually with ENA, not EPMI. Sorry for the confusion. -Tracy

-----Original Message-----

From: St Clair, Carol Sent: Thursday, May 24, 2001 6:47 AM To: Ngo, Tracy Cc: Evans, Mark; Boyd, Justin; Shackleton, Sara Subject: Re: Kaiser US/UK Setoff w/MG and ENA Importance: High

Tracy: Where does EPMI fit in if we are doing a financial power swap? Who are the Enron entities that are involved and what contracts are currently in place with the Kaiser entities? Are we netting overall exposures and using one collateral threshold? Are we cross defaulting all of the contracts? What exactly do you want to accomplish with the netting agreement?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Tracy Ngo/ENRON@enronXgate 05/23/2001 06:17 PM To: Carol St Clair/HOU/ECT@ECT cc: Greg Wolfe/ENRON@enronXgate Subject: Kaiser US/UK Setoff w/MG and ENA

Carol,

West power is looking to do a financial swap with Kaiser Aluminum & Chemical Corporation ("Kaiser Aluminum") whereby Kaiser Aluminium would buy the swap and pay ENA float. Kaiser Aluminum International Inc. ("Kaiser International") has a big market presence in the UK and MG has significant forward financial and physical metals positions with Kaiser International which I believe are quite out-of-the-money.

Can we find out whether or not we can perform a bilateral, affiliate NETTING AGREEMENT between Kaiser International and Kaiser Aluminum with MG and EPMI? If the UK is going to continue to do short-term new metals business with Kaiser International and if we can get comfortable with metals forward positions that are OTM, we would like to use this position and leverage off of it for trading liquidity in the states. Secondly, does the netting need to just pertain to global financial business or can it include physical as well?

If possible, I'd like to see if you and a UK trading attorney can speak about the overall concept and briefly address any UK and domestic law conflicts. Please call when you have a opportunity to discuss. ENA is looking to enter into a power swap for June '01. I'm not sure if this concept is achievable, and if it is, in the time frame we're facing. However, if we can't do a June swap, then we'll try for a July swap.

Regards, Tracy

Message 892 of 1118

New Prepay with Chase

Sender	teresa.bushman@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/80.

The structure for the Mahonia is changing. Please call and let's discuss.

Thanks.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 12/07/2000 01:39 PM -----

Joseph Deffner 12/06/2000 11:00 PM

To: William S Bradford/HOU/ECT@ECT, Cris Sherman/HOU/ECT@ECT, Teresa G Bushman/HOU/ECT@ECT, Morris Richard Clark/HOU/ECT@ECT cc: Subject: New Prepay with Chase

Here is an update on the current prepay we are structuring with Chase for \$500mm prior to year end.

In the prior transactions, we have received a prepayment from Mahonia on a forward delivery schedule of fixed volumes. We have hedged ourselves by buying fixed price physical commodity from Chase Manhattan. There is a fundamental difference in this transaction than prior deals though. In prior transactions, Chase provided the funding to Mahonia entirely from its own balance sheet. This year end, Chase is balance sheet constrained and must bring in additional lenders.

Having additional lenders provide financing to Mahonia is a concern to Chase from a securities perspective. Consider the alternative structure and give me your thoughts. I am expecting Chase to provide a term sheet on this by tomorrow.

ENA enters into a prepaid fixed volume gas supply contract with Chase Manhattan, not Mahonia. Chase sells participations in the contract to the additional two banks. Essentially, our contract has been split into three equal parts. While the purchaser of record is still Chase, 2/3rds of the beneficial interests have been sold to the other lenders. The bank group engages Chase as its agent to remarket the gas at delivery.

ENA hedges itself by entering into a fixed price forward purchase contract with Mahonia.

This is essentially a reversal of the historical transaction.

Specific issue for Bill: ENA now has an at the money 5-year trade with Mahonia with substantial mark-to-mark exposure. We would need to arrange margining capability through Mahonia to make Enron comfortable. My initial thought is to rely on the rehypothecation agreement as our form of protection.

Thoughts? I will follow up with the draft term sheet as soon as I receive it.

Thanks. Joe

Message 893 of 1118

Re: Enron Corp. ISDA master agreements

Sender	sara.shackleton@enron.com
Recipients	['Clint Freeland/Corp/Enron@Enron', 'stephanie.panus@enron.com', 'Stephanie', 'Samantha Boyd/NA/Enron@Enron']
File	shackleton-s/sent/5466 .

CSFB International

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2001 01:58 PM -----

Tanya Rohauer 10/26/2000 02:43 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Clint Freeland/Corp/Enron@Enron, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Susan Bailey/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT Subject: Re: Enron Corp. ISDA master agreements

The only change from our previous conversation is the addition of a bilateral additional event of default tied to a debt rating (below BBB-) of the counterparty or the guarantor if applicable.

Guarantors: 1. Lehman Brothers Holdings Inc. 2. not required; entity rated AA 3. not required; entity rated AA 4. Bear Stearns Cos. Inc. 5. Morgan Stanley Dean Witter & Co. 6. not required; entity rated AA

Please call if you have any questions.

Thanks, Tanya

From: Sara Shackleton on 10/26/2000 01:25 PM To: Tanya Rohauer/HOU/ECT@ECT cc: Clint Freeland/Corp/Enron@Enron, Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Susan Bailey/HOU/ECT@ECT Subject: Enron Corp. ISDA master agreements

Tanya: Based upon our earlier conversation, I will begin preparing masters for the following parties with (1) no CSA, (2) bilateral cross-default at US\$100 million and (3) uncapped (or min US\$100 million cap) guaranties for counterparties required to post guaranties. The parties on Clint's list are:

(1) Lehman Brothers Finance S.A. [have form of master and a form of guaranty from Lehman Brothers Holdings Inc.] - Stephanie Panus

(2) Credit Suisse First Boston International [no form of master]

(3) Deutsche Bank AG [have a form of master from ENA negotiations]

(4) Bear Stearns International Limited [no form of master] - Samantha Boyd

(5) Morgan Stanley Capital Services Inc. [may develop form from ENA negotiations]

(6) Credit Agricole Indosuez S.A.

Tanya: Please let me know if any of the foregoing require parent guaranties.

Clint: Please identify the lawyer to whom I should address comments. Also, are there any others? ENE has an agreement with Toronto Dominion, NY Branch.

Samantha: Please assign Credit Suisse and Deutsche Bank and let me know who is handling.

Message 894 of 1118

Re: Las Vegas Cogen - Nevada Power Response to RFP

Sender	tracy.ngo@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'dale.rasmussen@enron.com']
File	shackleton-s/notes_inbox/3176.

You will shortly. I've informed Dale of the status that it is coming.

Tracy

From: Sara Shackleton on 02/22/2001 07:44 AM To: Dale Rasmussen/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT cc: Stephanie Panus/NA/Enron@Enron

Subject: Re: Las Vegas Cogen - Nevada Power Response to RFP

Dale and Tracy:

We have never received a credit worksheet for preparation of a draft ISDA in either the name of Nevada Power (Company) or Sierra Pacific Resources.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Dale Rasmussen 02/22/2001 03:03 AM

To: Jim Gilbert/PDX/ECT@ECT, Ed Clark/PDX/ECT@ECT, Christopher F Calger/PDX/ECT@ECT, Tracy Ngo/PDX/ECT@ECT, Shari Stack/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Herman Manis/Corp/Enron@ENRON, Sara Shackleton/HOU/ECT@ECT cc: tmoore@llgm.com Subject: Las Vegas Cogen - Nevada Power Response to RFP

In a mad dash to meet the RFP response deadline, a draft of the Response to RFP to be submitted by Las Vegas Cogeneration Limited Partnership and ENA to Nevada Power is attached.

The Response to RFP is due tomorrow by overnight delivery.

This is my first foray into the EEI Master, and particularly in connection with unit-firm power / tolling contracts. I would greatly appreciate a review and comment by Shari and/or Elizabeth, given the size and duration of the proposed transaction. One of the attachments is a partial cover sheet reflecting certain of the changes to the documents requested by Nevada Power. The full list of requests, as incorporated into the RFP form, is attached for reference.

I am not satisfied with the provisions of the "unit firm" contract regarding availability/power delivery. We need to adequately document that the plant is allowed to be off-line, and not to make power deliveries, during maintenance periods. The "unit firm" definition should cover other unscheduled outages. Suggestions would be greatly appreciated.

Please note that the form of ISDA contract is not attached. I understand Tracy has done the credit worksheet, and I hope to have a copy of the contract for attachment by noon tomorrow.

Apologies to all for the rushed nature of this project. It has been one of those things. Your help is greatly appreciated.

Message 895 of 1118

Catalytica S-1 PDF

Sender	barton.clark@enron.com
Recipients	['sara.shackleton@enron.com', 'stuart.zisman@enron.com']
File	shackleton-s/notes_inbox/1253.

I've asked my secretary to give you a copy of the omnibus agreement dated as of August 29,2000, delivered to Catalytica today, among ENA, Sundance Assets,L.P. (holder of the Catalytica Combustions Systems, Inc. Class B Preferred Stock and option to purchase), Catalytica Combustion Systems, Inc. and Catalytica, Inc., together with a copy of the 1998 Preferred Stock Purchase Agreement pursuant to which Enron Ventures, predecessor to Sundance, acquired the stock and option. The attached is an S-1 registration statement filed yesterday by Catalytica Combustion Systems, Inc. with the SEC related to the distribution of CCSI shares held by its parent, Catalytica Inc, to its stockholders in connection with the merger of the parent with DSM, N. V. A merger proxy statement summarizing the DSM transaction will follow. The S-1 and merger proxy statement may be overkill for your purposes, but they will help make sense of the omnibus agreement if you have questions about that agreement. Note that modifications to the share transfer restriction and assignment provisions in the 1998 Agreement to accommodate Raptor and the grant of the right to exercise the option on a cashless basis are included in the omnibus agreement. The S-1 and proxy statement should be of interest in analyzing the disclosure obligations under the securities laws with respect to the Raptor transaction. ----- Forwarded by Barton Clark/HOU/ECT on 08/31/2000 04:46 PM -----

RR Donnelley Financial <paloalto@rrdfin.com> 08/28/2000 05:46 AM Please respond to paloalto

To: ergun.gen@us.pwcglobal.com, linda.keenan@us.pwcglobal.com, barton.clark@enron.com, rbl@mv.catalytica-inc.com, ckitchen@mv.catalytica-inc.com, pevans@mv.catalytica-inc.com, jmessers@mv.catalytica-inc.com, ewh@mv.catalytica-inc.com, wgorml@cgsh.com, jsorkin@cgsh.com, bburns@cgsh.com, jolson@hewm.com, ralexander@hewm.com, tnoordermeer@hewm.com, kguse@hewm.com, john.eicholz@ey.com, lwb@mv.catalytica-inc.com, jcp@mv.catalytica-inc.com, rishii@wsgr.com, sliu@wsgr.com, louis.pugliese@ey.com, eric.krickhan@ey.com, scott.leahy@ey.com, michael.brandt@ey.com cc: Subject: Catalytica S-1 PDF

-- RR Donnelley Financial Customer Service 855 California Avenue Building A Palo Alto, CA 94304 (650) 845-6600 Fax (650) 845-6700 paloalto@rrdfin.com

- 21276acr.PDF - paloalto.vcf

Message 896 of 1118

Re: Deutsche Bank Securities - BT Alex Brown (previous

Sender	samantha.boyd@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/notes_inbox/856.

Sara,

Per my conversation with Sheila on yesterday and my review of our files, we only have an agreement in place for ENA. We still need to review the Agreement for Prime Brokerage Clearance Services in order to get an agreement in place for ECT Investments, Inc.

I will provide Stephanie with a copy of the executed agreement between Deutsche Bank (f/k/a BT Alex Brown Incorporated) and ENA so that she can forward it to Jason along with their new form of Agreement for Prime Brokerage Clearance Services.

Samantha M. Boyd Sr. Legal Specialist Enron North America, Corp. 1400 Smith, EB3802A Houston, TX 77002 Phone: (713) 853-9188 Fax: (713) 646-3490 email: samantha.boyd@enron.com

Sara Shackleton@ECT 09/26/2000 08:14 AM

To: Samantha Boyd/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Subject: Deutsche Bank Securities - BT Alex Brown (previous relationship)

Sam: Please let me know ASAP whether Jason should be marking the Deutsche docs based on Sheila's message! -----
Forwarded by Sara Shackleton/HOU/ECT on 09/26/2000 08:12 AM -----

Sheila Glover 09/25/2000 01:30 PM

To: Ted Murphy/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT cc: John Greene/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT, Stephanie Panus/NA/Enron@Enron Subject: Deutsche Bank Securities - BT Alex Brown (previous relationship)

For clarification. Deutsche Bank is the new Name.. ENA currently has an agreement in place with BT Alex Brown who has been assumed by Deutsche. It appears that only an agreement with ENA was set up previously. ECT Investments should have one, as well. sheila

----- Forwarded by Sheila Glover/HOU/ECT on 09/25/2000 01:21

PM -----

From: Sheila Glover 09/25/2000 11:43 AM

To: Ted Murphy/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT cc: John Greene/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT Subject: Deutsche Bank Securities

Equity Trading is requesting an Executing Broker Agreement be set up for ECT Investments, Inc. and Enron North America Corp with Deutsche Bank Securities. We do not have one currently in place and we have done a significant amount of business with them in 2000 (included in top 10 for 8/2000 YTD in brokerage commissions). Thanks. Sheila

*Message 897 of 1118***RE: Merchant Energy Deal**

Sender	sara.shackleton@enron.com
Recipients	['Chris H Foster/HOU/ECT@ENRON', 'Susan Bailey/HOU/ECT@ECT', 'brent.hendry@enron.com']
File	shackleton-s/sent/6191.

Brent, can you bring me up to date, please? Just stop by. Thanks.

P.S. Also, what's going on with Caroline Abramo and the hedge funds?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/14/2001 01:41 PM -----

Melissa Ann Murphy 05/14/2001 11:55 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Chris H Foster/Enron@EnronXGate Subject: RE: Merchant Energy Deal

Hi Sara, see the message below about the Merchant Energy deal. I believe this deal has not been completed yet.

Thanks, Melissa ----- Forwarded by Melissa Ann Murphy/HOU/ECT on 05/14/2001 11:54 AM -----
----- From: Chris H Foster/ENRON@enronXgate on 05/08/2001 10:22 AM To: Melissa Ann Murphy/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT cc: Susan Bailey/HOU/ECT@ECT, Chris H Foster/HOU/ECT@ENRON Subject: RE: Merchant Energy Deal

Mega just called and said they are going to hold off on this deal until later in the week. I spoke to Brent Hendry who gave me some good information re: the confirm and said we could just work directly with the Confirms Group to get the Confirm out if and when the deal is done. Sorry for the fire drill.

Thanks

C

-----Original Message-----

From: Murphy, Melissa Ann Sent: Tuesday, May 08, 2001 8:00 AM To: St Clair, Carol Cc: Bailey, Susan; Chris H Foster/HOU/ECT@ENRON Subject: Merchant Energy Deal

Hello Carol, I know Sara is on vacation. Below is a draft confirmation letter that Sara and I prepared for a deal that Chris Foster in the Portland office may do today. If he does do this deal will you be the attorney to look at the confirm?

Thanks, Melissa 3-1886 ----- Forwarded by Melissa Ann Murphy/HOU/ECT on 05/08/2001 08:51 AM -----
----- From: Chris H Foster/ENRON@enronXgate on 05/08/2001 08:26 AM To: Sara Shackleton/HOU/ECT@ECT cc: Melissa Ann Murphy/HOU/ECT@ECT Subject:

Sara:

I received a call from Mega today. That financial gas/power deal could come together today. Attached is the draft confirm you prepared. Let me know ASAP if you have any "issues" with closing this deal pursuant to the language you prepared. I will contact you immediately if it closes.

Thanks!

Chris

<< File: swapcontract.doc >>

Message 898 of 1118

Re: PLEASE READ: Sonoco Products Company

Sender	sara.shackleton@enron.com
Recipients	['tana.jones@enron.com']
File	shackleton-s/sent/6057.

The prior trading dispute resulted from a plastics deal and Doug Friedman was the trader. I would check with Doug.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Tana Jones 04/17/2001 01:41 PM

To: Mark Taylor/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron cc: Tom Moran/Enron@EnronXGate, Walter Guidroz/Enron@EnronXGate Subject: PLEASE READ: Sonoco Products Company

The referenced counterparty is on the list below for online approval to trade us gas financial products. This counterparty came through before on the 1/20/00 list and we did not approve them for financial trading because of a "payment dispute". Is anyone out there aware of the payment dispute with this counterparty, and has it been resolved? Can we open this counterparty up to trade financial? They are an ESP... ----- Forwarded by Tana Jones/HOU/ECT on 04/17/2001 01:21 PM -----

Walter Guidroz/ENRON@enronXgate 04/12/2001 05:21 PM

To: Karen Lambert/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Samuel Schott/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Brant Reves/ENRON@enronXgate, Debbie R Brackett/HOU/ECT@ECT, David Hardy/LON/ECT@ECT, Lesli Campbell/ENRON@enronXgate, Cynthia Clark/ENRON@enronXgate, Enron Europe Global CounterParty/LON/ECT@ECT, Stephanie Sever/HOU/ECT@ECT, Tom Moran/ENRON@enronXgate, Claudia Clark/HOU/ECT@ECT, William S Bradford/ENRON@enronXgate, Lisa Lees/HOU/ECT@ECT, Juana Fayett/Corp/Enron@Enron, Jana Morse/Corp/Enron@Enron, Trang Le/HOU/ECT@ECT, Paul Maley/LON/ECT@ECT, Sonya Clarke/LON/ECT@ECT, Tim Davies/LON/ECT@ECT, Karen O'Day/NA/Enron@Enron, Tanya Rohauer/ENRON@enronXgate, Kelly Lombardi/NA/Enron@Enron, Brian Lindsay/Enron Communications@Enron Communications, EOL Call Center@ECT, Bernice Rodriguez/HOU/ECT@ECT, Bill D Hare/HOU/ECT@ect, Amy Heffernan/Enron Communications@Enron Communications, Molly LaFuze/Enron Communications@Enron Communications, Danny Clark/Enron Communications@Enron Communications, Stephanie Panus/NA/Enron@Enron, Mandola@/O=ENRON/OU=NA/CN=RECIPIENTS/CN=NOTESADDR/CN=BCBC586C-1D5A658C-862568C D-532EF3@EX@enronXgate, Kyle@/O=ENRON/OU=NA/CN=RECIPIENTS/CN=NOTESADDR/CN=97746094-1B0A69C0-86256945-5 803A9@EX@enronXgate cc: Subject: EOL approvals, 04-12-01

Please see attached.

Message 899 of 1118

Valentis/CD Holding

Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com', 'paul.radous@enron.com']
File	shackleton-s/sent/6104.

Caroline:

I am in the midst of preparing these annexes now. You should take special note of the credit that Paul is insisting upon (seems to be similar to AIG). This is all credit - but note his Additional Termination Event if the ISDA is not executed within 60 days. You must discuss all of the items with your counterparty.

Also, if you do the deal(s), give me the name, phone/fax numbers, email addresses of all commercial and legal for your counterparties.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 04/23/2001 09:45 AM -----

Paul Radous/ENRON@enronXgate 04/19/2001 05:43 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Caroline Abramo/Corp/Enron@Enron Subject: Valentis

Here are the credit worksheets for Valentis (25% of the trade and Independent amount should be allocated here) and CD Holdings (75% allocated here). This will work for the ISDA, and I am hearing from Caroline that they are ok with posting this up front amount in cash. So, for purposes of the Deemed ISDA, we may as well include all of the credit provisions, but make the \$2MM a "Special Independent Amount" applicable to the counterparty, which may be increased by Enron up to \$5MM. This Special Independent Amount should be added to the Independent Amount as that term is used in the ISDA in order to give us the ability to demand more collateral at will with respect to the long term hedge. Given the fact that the c/p can post cash instead of LC's I see no reason for us to always have the Special Independent Amount in cash. That is, if we are \$2MM out of the money on the position, I do not have a problem returning their cash, so long as it is in increments of the rounding amount.

So I think we should just go ahead and put credit into these Deemed ISDAs, and require that the failure of the parties to execute an ISDA within 60 days will constitute a termination event.

Caroline, again, the c/p will have to verbally agree to Loss instead of market quotation, to the special margining provisions with respect to this particular long term trade, etc. Let's discuss how this will work, since it is different from what I proposed on the phone.

Sara, after you have had a chance to look at these, give me a call so we can discuss.

Thanks. Paul

Message 900 of 1118

(01-101) ARGIN RATE CHANGE FOR CRUDE OIL, HEATING OIL, AND UNLEADED

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10049.

Notice No. 01-101 March 23, 2001

TO: ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS ALL NYMEX DIVISION CLEARING FIRMS ALL NYMEX DIVISION OPERATIONS MANAGERS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: MARGIN RATE CHANGE FOR CRUDE OIL, HEATING OIL, AND UNLEADED GASOLINE FUTURES CONTRACTS.

Effective Date: Friday, March 23, 2001 (close of business) Futures Contracts: Crude Oil Futures Unleaded Gasoline Futures Heating Oil Futures Contract Months: All Months Rate Change:

NYMEX Division Margins on Crude Oil, Unleaded Gasoline, and Heating Oil Futures Contracts Clearing Member (Maintenance Margin): Old: \$3,000 New: \$2,500 Member Customer (Initial Margin): Old: \$3,300 New: \$2,750

Non-Member Customer (Initial Margin): Old: \$4,050 New: \$3,375

The margin credit for NYMEX Light Sweet Crude/IPE Brent Crude Oil futures spread positions will also be decreased, from \$2,500 to \$2,000 (at the Clearing Member level), as of Thursday, March 21, 2001. The net margin after the spread will remain unchanged.

NYMEX Light Sweet Crude/IPE Brent Crude Oil Futures Spread

NYMEX Light Sweet Crude: Clearing Member (Maintenance Margin): \$2,500 Member Customer (Initial Margin): \$2,750
Non-Member Customer (Initial Margin): \$3,375

Less: NYMEX Light Sweet/IPE Brent Crude Spread Credit: Clearing Member (Maintenance Margin): \$2,000 Member
Customer (Initial Margin): \$2,200 Non-Member Customer (Initial Margin): \$2,700

Net Spread Margin: Clearing Member (Maintenance Margin): \$500 Member Customer (Initial Margin): \$550 Non-Member
Customer (Initial Margin): \$675

Should you have any questions regarding these changes, please contact Arthur McCoy at (212) 299-2928 or Joe Sanguedolce at (212) 299-2855. This notice supersedes all previous notices regarding outright margins for the NYMEX Crude Oil, Unleaded Gasoline, or Heating Oil Futures Contracts and the margin credit for the NYMEX Light Sweet Crude Oil/IPE Brent Crude Oil futures spread positions.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(01-101\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-101))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 901 of 1118

FW: National Energy Group, Inc.

Sender	stephanie.panus@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/345.

FYI - Jay's message last week.

Stephanie Panus Senior Legal Specialist Enron Wholesale Services 1400 Smith Street, EB3803C Houston, Texas 77002
ph: 713.345.3249 fax: 713.646.3490 email: stephanie.panus@enron.com

-----Original Message-----

From: Williams, Jason R (Credit) Sent: Saturday, October 06, 2001 11:41 AM To: Panus, Stephanie Cc: Sonnonstine, Max
Subject: FW: National Energy Group, Inc. Importance: High

Stephanie -

Where do we stand with respect to getting a document into National Energy Group, Inc.? I need to push this forward, as this is a critical document. Please let me know how we are proceeding on this.

As a reminder, I want to have the ability to call for margin if NEGI's positions are any less than \$4 million dollars in their favor. I had put \$3 million dollars in my prior email, but this figure should actually be \$4 MM.

I will be out Monday and Tuesday, but please contact Max Sonnonstine with any questions.

Thanks,

JRW

-----Original Message-----

From: Williams, Jason R (Credit) Sent: Monday, October 01, 2001 9:31 AM To: Panus, Stephanie; Shackleton, Sara
Subject: National Energy Group, Inc. Importance: High

Stephanie and Sara -

We currently have several deals on the books with National Energy Group, Inc. that we confirmed under omnibus confirms. The initial two deals that we did with them, TAGG numbers QY8453 and QY9133, required independent amounts and had the credit language attached. I have attached those annexes below. We have since executed the following trades:

VH0606 VH0931 VH0969 VH0982 VT5854 VT5861

Our positions with this counterparty have gone deep in the money to them, and they have asked us to send them back the collateral. While I am not thrilled about doing this, I understand that this is a commercial issue and we probably need to do this to be responsive to the customer. If you hadn't guessed by now, this is a Lagrasta customer, so I am getting the requisite incentive from Fred to get this done.

In concert with the return of their collateral, I want to send them a document that allows us to call for margin again if their positions start moving back in ENA's favor. I want to be able to call them if their position moves any less than \$3 million in their favor. Right now, the positions are over \$6 MM in National Energy Group's favor; I want to call them if that exposure changes to anything less than \$3 MM in their favor. This would still give us some "cushion".

What do we need to do to make this happen?

JRW

Message 902 of 1118

FW: Enron Corp - Forward Transaction - Draft Confirmation

Sender	clint.freeland@enron.com
Recipients	['jim.armogida@enron.com', 'sara.shackleton@enron.com', 'jeff.nogid@enron.com']
File	shackleton-s/all_documents/4375.

I received this friday afternoon. Let me know what you think. CF

----- Forwarded by Clint Freeland/Corp/Enron on 10/30/2000 08:51 AM -----

"Skinner, Mark" <mark.skinner@csfb.com> 10/27/2000 01:55 PM

To: "Clint Freeland (E-mail)" <clint.freeland@enron.com> cc: Subject: FW: Enron Corp - Forward Transaction - Draft Confirmation

Mr Freeland

The message below was returned to me marked "undelivered". I am attempting a resend. I apologise if it comes through as a duplication.

Regards

Mark Skinner

-----Original Message----- From: Skinner, Mark Sent: Friday, October 27, 2000 2:49 PM To: Jim Armogida (E-mail); Clint Freeland (E-mail) Cc: Haratunian, Stephen; Emerson, Michael; Chiodi, Maria Subject: Enron Corp - Forward Transaction - Draft Confirmation Dear Mr Armogida and Mr Freeland Further to your recent discussions with my colleague, Stephen Haratunian, please now find attached herewith a draft Confirmation in respect of the Forward Transaction between CSFBi and Enron Corp. <<Fwd001027.doc>> We look forward to discussing this draft with you further. Regards Mark Skinner Email: mark.skinner@csfb.com Vice President and Counsel CREDIT | FIRST TEL. (212) 325 8655 SUISSE | BOSTON FAX. (212) 325 8036 Credit Suisse First Boston Corporation 11 Madison Avenue, New York, N.Y. 10010

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- Fwd001027.doc

Message 903 of 1118

Enron/Project Tahiti	
Sender	krecc@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/all_documents/4490.

Attached in WordPerfect format are the following revised documents marked against the Project/Hawaii II documents unless otherwise indicated:

Closing Checklist (255001); Trust Agmt of Tahiti (254424); Beneficial Interest Certificate (254806); Series Supplement (254816) against McGarret C Tahiti Series A Certificate (254975) against McGarret C Tahiti Promissory Note (254802) Clean Direction Letter to Owner Trustee (265976) against McGarret C Amended and Restated LLC of Fiji I (254423); Amended and Restated LLC of Bora Bora (254978); Bora Bora Promissory Note (254979); against McGarret C Transfer and Auction Agmt (255084); B Interest Assgnmt Agmt (254982); against McGarret C Put Option Agreement (267684); against McGarret C Put Option Assignment (267685); against McGarret C Notice of Put Option Asgnmt (267686) against McGarret C Independent Auctioneer Letter (255097); Trust Agreement of Bali (267679) against Ghost RADA (255563); Beneficial Interest Certificate (254983) against Ghost Demand Note (267896) against Ghost Facility Agreement (267683); Promissory Note (267687) Clean Direction Letter (254980) against McGarret C Drawdown Request (267688) Clean Swap Schedule (267689) Total Return Swap Confirmation (267690)

Chris Krecek, Secretary/Legal Assistant Andrews & Kurth L.L.P. 1717 Main Street, Suite 3700 Dallas, Texas 75201
Phone: (214) 659-4481 Fax: (214) 659-4401 Email: ckrecek@andrews-kurth.com

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- 267896.wpd - 254424.wpd - 254802.wpd - 254806.wpd - 254816.wpd - 254975.wpd - 254976.wpd - 254978.wpd - 254979.wpd - 254980.wpd - 254982.wpd - 254983.wpd - 255001.wpd - 255084.wpd - 255097.wpd - 255563.wpd - 267679.wpd - 267683.wpd - 267684.wpd - 267685.wpd - 267686.wpd - 267687.wpd - 267688.wpd - 267689.wpd - 267690.wpd - 254423.wpd

Message 904 of 1118

FW: Project Bruin

Sender	sara.shackleton@enron.com
Recipients	['David', 'Koogler', 'legal <.taylor@enron.com>']
File	shackleton-s/sent_items/103.

Mark: In case Global Finance is desperate in the next two days, I'm forwarding the project in this email and a following email. Thanks. Sara

-----Original Message-----

From: Puchot, Paul Sent: Monday, September 24, 2001 10:45 AM To: Shackleton, Sara Cc: Koogler, David Subject: Project Bruin

Sara,

Attached is the initial draft of the term sheet prepared by Bear Stearns for use in connection with Project Bruin. I hope that the e-mails I am forwarding to you are sufficient to give you an idea of the nature and intended accomplishments of the exercise.

Now that I am re-reading the message from Tom Blair of Bear Stearns, I see that he intended to follow up with additional detailed term sheets. I will ask whether those have been provided to us and forward them to you in the event we have them.

Paul

-----Original Message-----

From: Howard, Kevin A. Sent: Tuesday, September 18, 2001 5:25 PM To: Koogler, David; Puchot, Paul Subject: FW: Very preliminary termsheet idea

fyi.

-----Original Message-----

From: Blair, Tom (Exchange) [mailto:blair@bear.com] Sent: Tuesday, September 18, 2001 5:19 PM To: 'Kevin A. Howard' Subject: FW: Very preliminary termsheet idea

Kevin,

Please find following an indicative term-sheet for your/team's review. While there are three simultaneous trades occurring at the same time, Davis wanted one term-sheet to use for your internal conversations for simplicity sake. We will have additional term-sheets available for all three components of the trade tomorrow. I will make sure you have a summary pitch book available to discuss the merits/risks of the trade by Friday.

Speak with you in the am.

Best.

Tom

Thomas C. Blair Managing Director Bear, Stearns & Co. Inc. 245 Park Avenue New York, New York 10167 212-272-2833 (office) 212-272-6227 (Facsimile) tblair@bear.com

-----Original Message----- From: Guinchard, Claude (Exchange) Sent: Monday, September 17, 2001 5:08 PM To: Blair, Tom (Exchange) Subject: FW: Very preliminary termsheet idea -----Original Message----- From: Guinchard, Claude (Exchange) Sent: Monday, September 17, 2001 4:48 PM To: 'davis.thames@enron.com' Subject: Very preliminary termsheet idea <<Basket Collared Swap Termsheet.doc>> Davis, I am sending this to you so that we can discuss the structure together. Work through it and tell me what you think. It is probably best to assume that dividends are zero for the time being but we should begin to focus on the impact of dividends relatively soon. Claude

Message 905 of 1118

RE: Contract request

Sender	stacey.richardson@enron.com
Recipients	['georgi.landau@enron.com', 'sara.shackleton@enron.com', 'anthony.campos@enron.com']
File	shackleton-s/inbox/982.

Sara,

I'll be happy to bring you the agreements that Georgi pulled out of Livelink yesterday. I'm not trying to push off any responsibility with AA, but I'd feel more comfortable if you controlled the information going out due to the confidentiality concerns we discussed yesterday. Please let me know if this works for you.

Thanks, SBR x30569

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, October 31, 2001 5:04 PM To: Richardson, Stacey Subject: RE: Contract request

Let's try to not duplicate work efforts. I just sent a copy of the BMO repo agreement to Laurel Adams who requested this for the AA audit. Who's in control of the AA process? Just give me a call. Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Richardson, Stacey Sent: Wednesday, October 31, 2001 4:18 PM To: Shackleton, Sara Cc: Landau, Georgi; Campos, Anthony Subject: FW: Contract request

Oops! I forgot my attachment. Please see below.

<< File: Contract Request 103101.xls >>

-----Original Message-----

From: Richardson, Stacey Sent: Wednesday, October 31, 2001 4:13 PM To: Shackleton, Sara Cc: Landau, Georgi; Campos, Anthony Subject: Contract request

Sara,

I've been working with Carrie Richardson (Andersen auditor) regarding master contracts covering interest rate and foreign currency transactions. The Global Contracts group has been able to find almost all the contracts with a few exceptions.

The first, between ENA and HSBC Futures Inc., was set up in the Legal tracking database but we never did receive the actual documents. The record in Global Contracts was finally trade suspended (as a result of a previous audit) until we can locate that documentation. We do have an agreement between the CP and RMT. [Shackleton, Sara] This agreement is a Futures Agreement [Shackleton, Sara] ; I'm confused about RMT's arrangement with HSBC (we only use RMT for ISDA agreements with ENA)

We also cannot locate a master agreement between ENA and BMO Nesbitt Burns Corp. Georgi Landau has checked the Legal tracking database and didn't find anything there either. Carrie has requested two transactions for this CP. [Shackleton, Sara] This agreement is a repo agreement.

Can you please try to locate master agreements for these counterparties? If you are not the person I need to speak to, can you please direct me to someone else? I'd like to give Carrie an answer as soon as I can.

Thanks, SBR x30569

Message 906 of 1118

FW: EGM in the money, terminated counterparties

Sender	alan.aronowitz@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/728.

FYI.

-----Original Message-----

From: Smida, Ed Sent: Wednesday, February 20, 2002 6:10 PM To: Aronowitz, Alan Cc: Sacchi, Martin; Sweeney, Kevin
Subject: RE: EGM in the money, terminated counterparties

No problem. Ed

-----Original Message-----

From: Aronowitz, Alan Sent: Wednesday, February 20, 2002 6:02 PM To: Smida, Ed Subject: FW: EGM in the money, terminated counterparties

Let's discuss tomorrow at meeting being scheduled.

Alan

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, February 20, 2002 5:16 PM To: Aronowitz, Alan Subject: FW: EGM in the money, terminated counterparties

Alan: We need Ed Smida's help with prioritizing the EGM in-the-money requests from Beth Apollo's group. Beth is only focused on physical gas and power appearing on Don Miller's list. Ed S. can really help me and PWC in bringing a small but discrete number of EGM parties to the top of the list.

Sara

-----Original Message-----

From: Shackleton, Sara Sent: Friday, February 15, 2002 2:37 PM To: Apollo, Beth; Hall, Bob M. Cc: Moran, Tom; Hagelmann, Bjorn Subject: FW: EGM in the money, terminated counterparties

ENA has ITM terminated positions with six bank counterparties (identified below). Settlement is part of the ongoing EGM liquidation.

We have an approximate \$70 million ITM position with Goldman Sachs Capital Markets, L.P. I have collected all confirms for rate/currency and weather. We need the MTM values and confirm list now because we cannot have PWC validate or pursue negotiations with Goldman. This is the most urgent matter.

With respect to the remaining five bank counterparties, I have collected rate/currency confirms. I need nat gas and liquids confirms, MTM values, etc.to proceed.

Can you please identify Goldman confirm numbers and MTM values now? PWC will also need.

Also, can we establish a priority for the remaining bank counterparties?

I know you guys are busy so let's talk soon. Thanks. Sara

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, January 31, 2002 4:29 PM To: Moran, Tom; Gonzalez, Veronica Subject: EGM in the money, terminated counterparties

The following parties have terminated their financial masters with ENA and we need the list of outstanding trades generated by credit:

Goldman Sachs Capital Markets LP Royal Bank of Canada Skandinaviska Enskilda Banken AB West LB J. Aron CIBC

Let me know if you have any questions. Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 907 of 1118

Re: ISDA and Enron Corp. Guarantee

Sender	sara.shackleton@enron.com
Recipients	['Sara Shackleton/HOU/ECT@ECT', 'jason.williams@enron.com']
File	shackleton-s/sent/5609.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/16/2001 02:08 PM -----

John Suttle 01/19/2001 10:04 AM

To: Jane McBride/AP/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: ISDA and Enron Corp. Guarantee

Darren Delage is the interest rate/fx trader in your office - I presume he has been in contact with Australia and New Zealand Bank. He will have details on the transaction, but it sounds like we will have several transactions on a go-forward basis. I presume this is why the counterparty is requesting a guaranty and an ISDA.

Jane McBride@ENRON 01/18/2001 07:18 PM To: John Suttle/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: ISDA and Enron Corp. Guarantee

A few questions but firstly which commercial person here in Tokyo knows about this? Where can I get the background to and full explanation of the deal? Thanks.

Jane McBride Senior Legal Counsel Enron Japan Corp.

Otemachi 1st Square Bldg. West 11th Floor 1-5-1 Otemachi, Chiyoda-ku Tokyo 100-0004 Japan

URL: www.enron.co.jp

Tel.: 81-3-5219-4500 (Main) 81-3-5219-4553 (Direct) Fax: 81-3-5219-4510

Assistant (Maggy Yamanishi) Tel.: 81-3-5219-4554 Email: Yo.Yamanishi@enron.com

John Suttle@ECT 2001/01/19 08:05

To: Jane McBride/AP/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: ISDA and Enron Corp. Guarantee

Jane -

Attached is a worksheet in response to a request from Australia New Zealand Bank for an ISDA and Enron Corp. guaranty covering FX trading. The contact is Michael Midden, whose e-mail is below. I said we would e-mail the draft documents to him for comments.

Please let me know if you have any questions.

John

----- Forwarded by John Suttle/HOU/ECT on 01/19/2001 01:02

AM -----

"Midden, Michael" <mmidden@anz.com> on 01/18/2001 10:31:14 AM To: "john.suttle@enron.com"
<john.suttle@enron.com> cc: Subject: Enron Corp. Guarantee

John,

Australia New Zealand Bank has put in place FX limits for Enron North America Inc.(on behalf of Enron Japan) of USD 2 million (R/13 months) and the corresponding USD 27.5 million in settlement limits (R/3-day) (subject the full guarantee of Enron Corporation). It would be greatly appreciated if you could assist us in implementing a guarantee from Enron Corp. to support these trading lines.

Regards,

Michael Midden

Message 908 of 1118

Re:ANZ - ISDA and Enron Corp. Guarantee

Sender	sara.shackleton@enron.com
Recipients	['Sara Shackleton/HOU/ECT@ECT', 'jason.williams@enron.com', 'Darren Delage/AP/Enron@Enron', 'Susan']
File	shackleton-s/sent/5610.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/16/2001 02:08 PM -----

John Suttle 01/19/2001 10:09 AM

To: Jane McBride/AP/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT, Darren Delage/AP/Enron@Enron, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT@ENRON Subject: Re:ANZ - ISDA and Enron Corp. Guarantee

Whichever Enron entity is the transacting entity needs an ISDA over the deals. I don't know how Dependency Agency arrangements alter our documentation, but we should make certain we have collateral rights/credit in place whichever way we go.

Jane McBride@ENRON 01/18/2001 08:47 PM To: John Suttle/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, Darren Delage/AP/Enron@Enron, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Re:ANZ - ISDA and Enron Corp. Guarantee

Hi John,

I have followed up on this with Darren Delage and it seems that this is the situation: The trades with ANZ will be done by Enron Japan but only by virtue of "dependant agency" arrangements with ENA. (These arrangements are still being documented.)

I think this means that ENA and not Enron Japan will need to enter into agreements with ANZ.

I think Darren will follow up from his side but could you go back to Micheal on this.

Jane

John Suttle@ECT 2001/01/19 08:05

To: Jane McBride/AP/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: ISDA and Enron Corp. Guarantee

Jane -

Attached is a worksheet in response to a request from Australia New Zealand Bank for an ISDA and Enron Corp. guaranty covering FX trading. The contact is Michael Midden, whose e-mail is below. I said we would e-mail the draft documents to

him for comments.

Please let me know if you have any questions.

John

----- Forwarded by John Suttle/HOU/ECT on 01/19/2001 01:02

AM -----

"Midden, Michael" <mmidden@anz.com> on 01/18/2001 10:31:14 AM To: "john.suttle@enron.com" <john.suttle@enron.com> cc: Subject: Enron Corp. Guarantee

John,

Australia New Zealand Bank has put in place FX limits for Enron North America Inc.(on behalf of Enron Japan) of USD 2 million (R/13 months) and the corresponding USD 27.5 million in settlement limits (R/3-day) (subject the full guarantee of Enron Corporation). It would be greatly appreciated if you could assist us in implementing a guarantee from Enron Corp. to support these trading lines.

Regards,

Michael Midden

Message 909 of 1118

Merger of Raptor 2 and 3

Sender mary.cook@enron.com

Recipients ['Brent', 'AnnMarie Tiller/Corp/Enron@ENRON', 'sara.shackleton@enron.com', 'angela.davis@enron.com', 'Ryan Siu...]

File shackleton-s/notes_inbox/460.

FYI. How all of this may work with respect to the swaps in these structures (which I believe to have been signed, but still have not been provided executed copies) is unclear.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 11/07/2000 09:57 AM -----

Joel Ephross@ENRON 11/06/2000 07:28 PM

To: Mary Cook/HOU/ECT@ECT cc: mspradling@velaw.com Subject: Merger of Raptor 2 and 3

FYI.

Mark -- lets give some thought to how this effects both structure and the ability to give the FAS 125 opinions on the sale of the notes on Raptor 3.

----- Forwarded by Joel Ephross/Corp/Enron on 11/06/2000 07:14 PM -----

Jordan Mintz@ECT 11/06/2000 06:52 PM

To: Joel Ephross/Corp/Enron@ENRON cc: Ryan Siurek/Corp/Enron@ENRON, AnnMarie Tiller/Corp/Enron@ENRON, Brent Vasconcellos/Corp/Enron@ENRON, brenda.funk@enron.com@ENRON Subject: Re: Raptor 2 and 3

At AMT's and/or Brent's convenience, I would like to better understand the tax issue and discuss what steps we can take to mitigate as this proposal has real momentum.

Thanks. Jordan

From: Joel Ephross@ENRON on 11/06/2000 05:59 PM To: Jordan Mintz/HOU/ECT@ECT cc: Ryan Siurek/Corp/Enron@ENRON, AnnMarie Tiller/Corp/Enron@ENRON, Brent Vasconcellos/Corp/Enron@ENRON,

brenda.funk@enron.com Subject: Re: Raptor 2 and 3

From discussing this with Brent and AnnMarie, there may some tax issues with merging these 2 structures. As best I can articulate this, the merger of Timberwolf into Porcupine would be treated as a reissuance of debt by LJM, causing them to recognize gain [made all the worse by no associated distribution of tax]. The TIA executed in connection with Raptor 3 would require indemnification by ENE based on LJM's demand in this case, without the need for the Service to take a position on the issue.

Jordan Mintz@ECT 11/06/2000 02:08 PM

To: rastin@velaw.com, Joel Ephross/Corp/Enron@ENRON cc: AnnMarie Tiller/Corp/Enron@ENRON Subject: Raptor 2 and 3

At his staff meeting this morning, Andy raised the possibility of some type of "merger" between Raptor 2 and 3 so as to provide support for the hedge on TNPC warrants. My understanding is that Ryan is currently reviewing the feasibility of this type of arrangement from an accounting perspective. I wanted to provide you with a heads-up in the event that this takes on some urgency in the next few days/weeks.

Please let me know if you have any questions or comments. Jordan

Message 910 of 1118

Re: HEDGE FUND NAMES/ meeting next week

Sender	caroline.abramo@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/abramo/10.

was hoping for tuesday morning - paul mentioned you were having a hedge fund meeting then... i am flexible...

From: Sara Shackleton@ECT on 04/20/2001 03:36 PM To: Caroline Abramo/Corp/Enron@ENRON cc:

Subject: Re: HEDGE FUND NAMES/ meeting next week

Caroline:

Fred wants to meet in the afternoon. Does Tuesday afternoon work for you (after 3 pm)?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 04/20/2001 03:30 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Paul Radous/Corp/Enron, Russell Dyk/Corp/Enron@ENRON Subject: HEDGE FUND NAMES/ meeting next week

I look forward to meeting with you both on Tuesday. Here's a list of the funds we have in the pipeline and the status:

MACRO FUNDS- 1.Harvard (Docs done)- We have been dealing with them in crude, products, and natural gas- we just need to keep track of their credit line.

2. Tudor- we have docs with Ospraie, Tudor Proprietary, Tudor Offshore (Bermuda)- dealing regularly..

3. Catequil (Negotiating) docs with Offshore and Onshore- waiting for response from Brent and Paul on their latest comments to the ISDA. Confirms from all the deals we have done have been returned to Carol. They are set up in the system; we hold margin.

4. AIG (Negotiating)- Offshore, Onshore- need to get documents out to them- credit work sheet in legal.. still have not gotten out a confirm to them on the trades they have done....we have them set up in the system and hold margin.

5. Union Spring (Negotiating)- Offshore, Onshore- should be done on this one.

6. SAC Capital - possibly only one vehicle in Anguila- need to get the document to them- credit work sheet in legal.
7. Quark Power (Negotiating)- 2 entities- Quark Power and Amaranth. Held by Paloma Partners- waiting for their comments on a few points.
8. Valentis and CD Holdings- Held by Wexford Capital - need to get document to them- credit work sheet in legal. They want to proceed with the 8 year deal Monday.
9. Global Advisors- trade through Cargill.. Frank Sayre working on POA.. waiting for this back.
10. Argonaut- onshore, offshore vehicles- sending documents.. no credit assessment yet.
11. SOROS- brought through system by credit derivative group.. but need a credit opinion for ENA (to do energy trades).
- PROGRAM FUNDS- 12. Renaissance - credit worksheet in legal- need to get docs to them. 13. Campbell+ Co - will likely want to look at a three way transaction between Enron, themselves, and a bank 14. Sunrise Capital - getting documentation.

Message 911 of 1118

(01-437) NYMEX ACCESS

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/244.

Notice No. 01-437 December 20, 2001

TO: All ACCESS/C21 Frame Relay Users

FROM: J. Robert Collins, Jr., President

SUBJECT: NYMEX ACCESS and C-21 Frame Relays

Thank you for your patience and understanding concerning the frame relay equipment issue. I'm pleased to inform you that the Exchange has made a final decision on the disposition of this equipment.

Please be advised that AT&T will be contacting you shortly to arrange for disconnection and removal of the router and modem only for those NYMEX ACCESS and C-21 users connecting to our systems via frame relay. This is AT&T's equipment and they will arrange for its pickup. Users are responsible for the costs associated with any AT&T equipment that might be damaged or lost.

All NYMEX ACCESS terminal holders must contact their telephone carrier to arrange for the discontinuance of phone service to their terminal. Since the user set up the account with AT&T, they are responsible for contacting the carrier and making arrangements for this service to be discontinued. The Exchange will not do this. This should be completed as quickly as possible since the Exchange will not pay for any reimbursement costs incurred after December 31, 2001.

Finally, with reference to the NYMEX ACCESS and C-21 terminal equipment itself, the Exchange requires that NYMEX ACCESS and C-21 frame relay holders write or email the NYMEX Customer Service Call Center (NCSCC) with their intention to return the equipment to the Exchange at their own cost, or to keep the equipment and continue using it for NYMEX ACCESS and / or C-21 usage.

To contact NYMEX Customer Service, call: #1-800-438-8616 or e-mail: CUSTCARE@nymex.com. To send your response via post, please mail to: New York Mercantile Exchange Customer Service Department World Financial Center One North End Avenue 14th Floor New York, NY 10282 Attention: Robert Dagistino, Director and/or Mildred Rodriguez, Business Analyst

Should you decide to keep the equipment and continue to use C-21 and/or NYMEX ACCESS , please be advised that effective December 31, 2001 any license granted to the C-21 and NYMEX ACCESS software programs or any third-party

software that may be accessed via the terminal equipment shall terminate. Any use of these software programs after that date or any copying or re-distribution of these programs is strictly prohibited. To continue using the equipment, you must format the hard drive and install any operating system that supports Internet Explorer 5.1 or greater.

Should you have any questions please contact the NCSCC at 1-800-438-8616 or e-mail at CUSTCARE@nymex.com.

Thank you for your continued support.

Message 912 of 1118

Re: New Futures Execution and Clearing Agreements

Sender	sheila.glover@enron.com
Recipients	['clara.carrington@enron.com', 'sara.shackleton@enron.com', 'greg.whiting@enron.com', 'larry.hunter@enron.com']...
File	shackleton-s/notes_inbox/2345.

Sara, We spoke with Greg Whiting. We will not open a futures account for ECT Investments Inc. We will only need one account for Enron North America. We will internally take care of the allocation to the business. This avoids having separate margin balance maintenance.

For products: Equity: S&P 500, dow and Nasdaq futures Fixed Income Futures and Options: Treasuries, euro dollar, bunds, gilts, libor, fed funds, bax, cad 10 yr, london short sterling, euribor ECU - 3 month, TSE JGB, EuroYen, etc.

Thanks, Sheila

From: Sara Shackleton on 04/25/2001 06:30 PM To: Sheila Glover/HOU/ECT@ECT cc: Cheryl Nelson/NA/Enron@Enron
Subject: Re: New Futures Execution and Clearing Agreements

Sheila:

Please send the futures and repo agreements to me. What futures products will Gary be trading and which exchanges?

Please continue to send brokerage agreements to Cheryl.

Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Sheila Glover 04/25/2001 08:19 AM

To: Cassandra Schultz/NA/Enron, Cheryl Nelson/NA/Enron@Enron, David Port/Market Risk/Corp/Enron cc: Sara Shackleton/HOU/ECT@ECT, Mary Nordstrom/ENRON@enronXgate, Theresa T Brogan/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, William S Bradford/HOU/ECT, Greg Whiting/Corp/Enron, Kim S Theriot/HOU/ECT@ECT, Gerri Gosnell/HOU/ECT@ECT Subject: New Futures Execution and Clearing Agreements

Cassandra, Cheryl and David, Gary requested this morning that we add Goldman Sach's Futures Clearing capability as well. I will request account opening information from them and forward to legal. Sheila ----- Forwarded by
Sheila Glover/HOU/ECT on 04/25/2001 08:18 AM -----

From: Sheila Glover 04/24/2001 03:02 PM

To: Cassandra Schultz/NA/Enron, Cheryl Nelson/NA/Enron@Enron, David Port/Market Risk/Corp/Enron cc: Sara Shackleton/HOU/ECT@ECT, Mary Nordstrom/ENRON@enronXgate, Theresa T Brogan/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, William S Bradford/HOU/ECT, Greg Whiting/Corp/Enron, Kim S Theriot/HOU/ECT@ECT Subject: New Futures Execution and Clearing Agreements

Cassandra, Cheryl and David,

Gary has requested that we establish new futures execution and clearing agreements with Solomon Smith Barney/Citigroup and Morgan Stanley. I will forward the agreements when we receive them to Cheryl Nelson in Legal for review.

Prudential is exiting the business and the prior people at Pru have moved to SSB.

Please do not hesitate to call, 3-3210, if you have any questions. Sheila

Message 913 of 1118

Re: Enron/Project Cerberus

Sender	sara.shackleton@enron.com
Recipients	['angela.davis@enron.com']
File	shackleton-s/sent/5324.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/17/2001 09:27 AM -----

Clint Freeland@ENRON 01/16/2001 02:23 PM

To: "Barbour, David" <davidbarbour@akllp.com>, "Sullivan, Danny" <dannysullivan@akllp.com> cc: annmarie.tiller@enron.com, bill.bowes@enron.com, brenda.l.funk@enron.com, brent.vasconcellos@enron.com, clint.walden@enron.com, gareth.bahlmann@enron.com, tara.rafter@enron.com, Sara Shackleton/HOU/ECT@ECT
Subject: Re: Enron/Project Cerberus

All - Just wanted to let you know that Rabobank got their final approval today to become the swap counterparty in the Cerberus financing. We are moving forward on the documentation with a target close of early next week (probably Tuesday).

Issues that I am aware of that remain are: 1) For the tax folks, we need to assign EAH's interest in both Aeneas and Psyche to either EES or EBS (an Enron operating subsidiary), then have that entity contribute the Aeneas 0.01% economic interest to Psyche. As I understand it, this will provide the sale for tax purposes that Tammy needs in order to spring the desired gain. I am working with Mark Lindsay to arrange for one of the Enron operating entities to take the A shares. Danny and David, please start putting the necessary assignment documents together to facilitate this. I'll give you the name of the Enron entity when I get it.

2) Due to certain things going on in the default swap market (which Rabo is using as one of the factors in its pricing formula), we have agreed to pay RBC an additional 10bp upfront and raise the spread on the deal to L + 85bp from L + 75bp. David and Danny, please make the necessary adjustments.

3) Rabo has requested that a couple of business points be changed. Those are that they would like to have an assignment over the A share of Aeneas, and they would like the Sales Agency Agreement to be triggered upon an Enron bankruptcy (if it occurs before maturity). David, I agree with you that we should not agree to these requests. We must maintain control of the A share in Aeneas since that is where the EOG stock is housed, and an Enron bankruptcy should not trigger the SAA because Aeneas is a bankruptcy-remote entity which should survive a bankruptcy of Enron. Besides, requiring them to wait until maturity of the deal to trigger the SAA was the business deal we agreed to a long time ago.

If there are other issues that I have left out, please let me know. I am in Austin all week, but will be checking in periodically so send me either an e:mail or a voicemail if you need me. Talk to you soon. CF

Message 914 of 1118

RE: Raptor	
Sender	joel.ephross@enron.com
Recipients	['mary.cook@enron.com', 'sara.shackleton@enron.com', 'ron.baker@enron.com', 'maricela.trevino@enron.com']
File	shackleton-s/inbox/217.

Ron, do you have copies of these?

-----Original Message-----

From: Cook, Mary Sent: Friday, September 21, 2001 2:44 PM To: Ephross, Joel; Trevino, Maricela; Shackleton, Sara; Mckean, George; Vasconcellos, Brent; Mckillop, Gordon; Siurek, Ryan Subject: RE: Raptor Importance: High

Gordon and Joel, give me a call re the Enron Corp EITF 0019 swaps. I have no executed versions and do not know how many we actually consummated. Please advise and provide me executed copies. Further, are these to be terminated? If so do you want me to prepare the termination for these?

-----Original Message-----

From: Ephross, Joel Sent: Friday, September 21, 2001 2:25 PM To: Trevino, Maricela; Shackleton, Sara; Cook, Mary; Mckean, George; Vasconcellos, Brent Cc: 'mspradling@velaw.com' Subject: Raptor

Maricela, attached is a draft of one of the Purchase Agreements in connection with the Raptor unwind. Similar agreements are envisioned for each of the other Raptor structures. The plan is to dissolve each Raptor entity [except for the entities involved in Raptor 3, namely Pronghorn I LLC and Porcupine, LLC] the day following the LJM buyout -- in other words, prior to the end of the quarter. [In the case of Raptor 3, since the note is monetized into Hawaii, this will need to remain in place until the take out of the note.] Please prepare the necessary documents for filing with the Secretary of State to dissolve the following entities:

Grizzly I LLC, Timberwolf, LLC Roadrunner I LLC Bobcat, LLC Harrier I LLC Talon, LLC

-----Original Message-----

From: Spradling, Mark [mailto:MSpradling@velaw.com] Sent: Friday, September 21, 2001 10:48 AM To: Mckean, George; Ephross, Joel; Vasconcellos, Brent Cc: Osterberg, Edward; McCulloch, Bruce C. Subject: Revised Purchase Agreement

Attached are the clean and redlined versions of the Purchase Agreement.

Mark R. Spradling Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Houston, Texas 77002 713-758-2828 713-615-5545 (fax)

For more information about the full range of services offered by Vinson & Elkins, including our latest publications on legal topics, please visit our website at www.velaw.com. ++++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

Message 915 of 1118

Premstar Energy Canada Ltd. - Financial Transaction Nos. QF3405.1,	
Sender	mary.cook@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9064.

Especially item 4. As I had noted previously the payment date issue is arising often in Canada.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 02/08/2001 04:49 PM -----

Peter Keohane Sent by: Sharon Crawford 02/08/2001 03:11 PM

To: Peggy Hedstrom/CAL/ECT@ECT, Melinda Whalen/CAL/ECT@ECT, Laura E Scott/CAL/ECT@ECT, Cheryl Dawes/CAL/ECT@ECT, Mary Cook/HOU/ECT@ECT, Russell Diamond/HOU/ECT@ECT cc: Grant Oh/CAL/ECT@ECT
Subject: Premstar Energy Canada Ltd. - Financial Transaction Nos. QF3405.1, QG7130.1, NY2665.1 and NY5271.1

Premstar Energy Canada has requested that the Payment Dates for the above noted financial transactions be amended to conform with physical settlement from "The fifth (5th) Business Day following the date on which the Floating Price is determinable" to "The twenty fifth (25th) day of the month following each Determination Period. Should the Payment Date fall on a weekend or statutory holiday, payment shall be made on the next Business Day."

My comments are as follows:

1. Russell, kindly confirm that there is no credit concern with extending the financial payment cycle;
 2. Laura/Cheryl, kindly confirm that it is something that we have done in the past for financial transactions;
 3. Melinda, assuming that Russell, Laura/Cheryl do not have concerns, please prepare an amendment to each of the Confirmation Letters as requested by Premstar, except that the final sentence of their requested amendment should read: "Should the Payment Date fall on a Saturday or statutory holiday other than a Monday, then payment shall be made on the immediately preceding Business Day, and if the Payment Date is a Sunday or statutory holiday falling on a Monday, then payment shall be made on the immediately following Business Day.". This will make the Payment Dates consistent with physical gas settlement.
 4. Melinda, if this amendment is not approved by Russell, Laura or Cheryl, I think that an amendment is nonetheless necessary to the Payment Date, as it is not the fifth (5th) Business Day following the date on which the Floating Price is determinable, but rather the fifth (5th) Business Day of the month following each Determination Period.
 5. If possible, Premstar would like the amendment to be effective for the February, 2001 Determination Period.
 6. Premstar would also like this provision to extend to any and all future Financial Swap transactions done with them.
- Mary, is there any amendment required to the ISDA to effect such a permanent amendment, or is this a matter that can be dealt with in each subsequent confirmation letter?

Regards, Peter

Message 916 of 1118

Details on Enron North America

Sender	sara.shackleton@enron.com
Recipients	['angela.davis@enron.com']
File	shackleton-s/all_documents/8720.

Just in case you couldn't locate the Rabobank info.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/12/2001 05:29 PM -----

Leslie Linares@ENRON 01/08/2001 11:17 AM

To: Jeff Nogid/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: Details on Enron North America

Jeff,

Here is the e-mail that accompanies the voicemail message you received.

Thanks, Brenda Funk ----- Forwarded by Leslie Linares/Corp/Enron on 01/08/2001 11:16 AM -----

"Hoekema, AH (Andries)" <HoekemaA@RABO-BANK.COM> 01/03/2001 11:21 AM

To: "gareth.bahlmann@enron.com" <gareth.bahlmann@enron.com> cc: "Thomas, JA (Jane)" <thomasja@RABO-BANK.COM>, "Lauber, M (Mark)" <LauberM@RABO-BANK.COM> Subject: Details on Enron North America

Dear sir,

Your name and email address were forwarded to me by Jane Anne Thomas in our Legal department. We are working on a structured trade with the Royal Bank of Canada (project Cerberus) that involves Rabobank entering into a derivative contract with Enron North America. I am looking for the following information on Enron North America that we need to start the processes of opening counterparty accounts and preparing an ISDA master agreement:

- Full legal name; - Registered Address; - Telephone Number/Fax Number; - Legal/Documentation contact name.

I would be very grateful if you could supply me with this information.

Regards,

Andries Hoekema Structured Products Group +44 20 7664 9803 +44 7879 487 550 (mobile)

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The presence of this footnote also confirms that this email has been automatically checked by Rabobank International for the presence of computer viruses prior to it being sent, however, no guarantee is given or implied that this email is virus free upon delivery.

Message 917 of 1118

Re: Assignment and Novation Agreement between HS Resources, Inc.,

Sender	sara.shackleton@enron.com
Recipients	['susan.flynn@enron.com']
File	shackleton-s/all_documents/2627.

Susan: Please forward your two emails (re: HS Resources, et al) to Bill Bradford and John Suttle. SS

Susan Flynn 07/06/2000 07:35 PM

To: Jefferson D Sorenson/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT, Andrea R Guillen/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT, David P Dupre/HOU/ECT@ECT, Chris Walker/HOU/ECT@ECT, Jarrod Cyprow/HOU/ECT@ECT, Pamela Sonnier/HOU/ECT@ECT, Sheetal Patel/HOU/ECT@ECT, Souad Mahmassani/Corp/Enron, Gordon Heaney/Corp/Enron, Kevin Meredith/Corp/Enron, Derek Bailey/Corp/Enron, Bruce Mills/Corp/Enron, Jean Bell/HOU/ECT@ECT, Harry Bucalo/HOU/ECT@ECT, Charlie Hoang/HOU/ECT@ECT, Bob Bowen/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Debbie R Brackett/HOU/ECT@ECT, Nidia Mendoza/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT, Brant Reves/HOU/ECT@ECT, Rod

Nelson/HOU/ECT@ECT, Russell Diamond/HOU/ECT@ECT, Tracy Ngo/HOU/ECT@ECT, John Suttle/HOU/ECT@ECT, Tracy Ngo/HOU/ECT@ECT, Lesli Campbell/HOU/ECT@ECT, Molly Harris/HOU/ECT@ECT, Christopher Smith/HOU/ECT@ECT, Tom Moran/HOU/ECT@ECT, Molly Harris/HOU/ECT@ECT, Veronica Espinoza/Corp/Enron@ENRON, Edward Sacks/Corp/Enron@Enron, Wendi LeBrocq/Corp/Enron@Enron, Paul Radous/Corp/Enron@ENRON, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Mary Cook/HOU/ECT@ECT, Mary Solmonson/HOU/ECT@ECT, Marilyn Colbert/HOU/ECT@ECT, Yolanda Cordova-Gilbert/HOU/ECT@ECT, Diane Ellstrom/HOU/ECT@ECT, Lynn E Shivers/HOU/ECT@ECT, Willie Harrell/HOU/ECT@ECT, Bill D Hare/HOU/ECT@ect, Jason Moore/HOU/ECT@ECT, Leslie Reeves/HOU/ECT@ECT, Dianne Seib/CAL/ECT@ECT, Samuel Schott/HOU/ECT@ECT, Anthony Campos/HOU/ECT@ECT, Mary G Gosnell/HOU/ECT@ECT, Bernice Rodriguez/HOU/ECT@ECT, Karen Lambert/HOU/ECT@ECT, Willie Harrell/HOU/ECT@ECT, Anthony Campos/HOU/ECT@ECT, Carrie Southard/HOU/ECT@ECT, Frank L Davis/HOU/ECT@ECT, Sheri Thomas/HOU/ECT@ECT, Amber Ebow/HOU/ECT@ECT, Adnan Patel/Corp/Enron, Stephanie Sever/HOU/ECT@ECT, Melissa Ann Murphy/HOU/ECT@ECT, Linda S Bryan@Enron cc: Subject: Assignment and Novation Agreement between HS Resources, Inc., HS Energy Services, Inc. and ENA

We received the executed Assignment and Novation Agreement between HS Resources, Inc., HS Energy Services, Inc. and ENA, effective at 12:00 p.m. on June 30, 2000. Under the terms of this agreement, HS Resources, Inc. assigns to HS Energy Services, Inc. all of its right, title and interest in certain Transactions it has entered into with ENA. Such Transactions will be governed by the ISDA Master Agreement, dated as of June 28, 2000, between ENA and HS Energy Services, Inc. Copies will be distributed.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 918 of 1118

Re: ISDA Master Agreement between ENA and Paribas

Sender	sara.shackleton@enron.com
Recipients	['susan.flynn@enron.com']
File	shackleton-s/all_documents/2601.

Susan: Which Paribas are you referring to? ----- Forwarded by Sara Shackleton/HOU/ECT on 07/05/2000 06:10 PM -----

Sara Shackleton 06/27/2000 08:15 AM

To: Susan Flynn/HOU/ECT cc: Subject: Re: ISDA Master Agreement between ENA and Paribas

Susan: Which Paribas are you referring to?

Susan Flynn 06/26/2000 04:50 PM

To: Jefferson D Sorenson/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT, Andrea R Guillen/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT, David P Dupre/HOU/ECT@ECT, Chris Walker/HOU/ECT@ECT, Jarrod Cyprow/HOU/ECT@ECT, Pamela Sonnier/HOU/ECT@ECT, Sheetal Patel/HOU/ECT@ECT, Souad Mahmassani/Corp/Enron@ENRON, Gordon Heaney/Corp/Enron@ENRON, Kevin Meredith/Corp/Enron@ENRON, Derek Bailey/Corp/Enron@ENRON, Bruce Mills/Corp/Enron@ENRON, Jean Bell/HOU/ECT@ECT, Harry Bucalo/HOU/ECT@ECT, Charlie Hoang/HOU/ECT@ECT, Bob Bowen/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Debbie R Brackett/HOU/ECT@ECT, Nidia Mendoza/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT, Brant Reves/HOU/ECT@ECT, Rod Nelson/HOU/ECT@ECT, Russell Diamond/HOU/ECT@ECT, Tracy Ngo/HOU/ECT@ECT, John Suttle/HOU/ECT@ECT, Tracy Ngo/HOU/ECT@ECT, Lesli Campbell/HOU/ECT@ECT, Molly Harris/HOU/ECT@ECT, Christopher Smith/HOU/ECT@ECT, Tom Moran/HOU/ECT@ECT, Molly Harris/HOU/ECT@ECT, Kevin P Radous/Corp/Enron@Enron@ECT, Veronica

Espinoza/Corp/Enron@ENRON, Edward Sacks/Corp/Enron@Enron, Wendi LeBrocq/Corp/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Mary Solmonson/HOU/ECT@ECT, Marilyn Colbert/HOU/ECT@ECT, Yolanda Cordova-Gilbert/HOU/ECT@ECT, Diane Ellstrom/HOU/ECT@ECT, Lynn E Shivers/HOU/ECT@ECT, Willie Harrell/HOU/ECT@ECT, Bill D Hare/HOU/ECT@ect, Jason Moore/HOU/ECT@ECT, Leslie Reeves/HOU/ECT@ECT, Dianne Seib/CAL/ECT@ECT, Samuel Schott/HOU/ECT@ECT, Anthony Campos/HOU/ECT@ECT, Mary G Gosnell/HOU/ECT@ECT, Bernice Rodriguez/HOU/ECT@ECT, Connie Sutton/HOU/ECT@ECT, Karen Lambert/HOU/ECT@ECT, Willie Harrell/HOU/ECT@ECT, Anthony Campos/HOU/ECT@ECT, Carrie Southard/HOU/ECT@ECT, Frank L Davis/HOU/ECT@ECT, Sheri Thomas/HOU/ECT@ECT, Amber Ebow/HOU/ECT@ECT, Adnan Patel/Corp/Enron@ENRON, Stephanie Sever/HOU/ECT@ECT, Melissa Ann Murphy/HOU/ECT@ECT cc: Subject: ISDA Master Agreement between ENA and Paribas

On May 23, 2000, Paribas merged with and into Banque Nationale De Paris, the surviving entity which changed its name to BNP Paribas. As a result of the merger, BNP Paribas assumes all of the rights and obligations of Paribas (and becomes our Counterparty) under the ISDA Master Agreement, dated June 28, 1995 between ENA and Paribas. Copies of the notice of merger will be distributed.

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490

Message 919 of 1118

Brokerage Agreement Files & Management/Legal Assistant Tasks

Sender	cheryl.nelson@enron.com
Recipients	['marie.heard@enron.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'mary.cook@enron.com']
File	shackleton-s/all_documents/11354.

Sara, as per our discussion this morning, we should schedule a meeting with the paralegals to discuss the matters discussed in the memo below as well as other related matters.

Stephanie, Marie had asked me about copies of some sent/executed brokerage agreements. Please let Marie know where you are keeping copies of brokerage agreements sent out & received back.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/> ----- Forwarded by Cheryl Nelson/NA/Enron on 05/31/2001 05:05 PM -----

Cheryl Nelson Sent by: Cheryl Nelson 05/22/2001 06:04 PM

To: Stephanie Panus/NA/Enron@Enron, Marie Heard/Enron Communications@Enron Communications, Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT Subject: Brokerage Agreement Files & Management/Legal Assistant Tasks

Hello Team,

Now that we have sent for execution or executed close to 50 new agreements and we have to refer back to these agreements and documents, it is all the more important that we make sure that the administrative tasks we previously discussed are in fact accomplished. I suggest that we schedule a meeting to make sure

(1) that, as per our previous discussions, Stephanie or whichever legal assistant working on brokerage agreements are tracking the agreements sent out and creating the brokerage agreement files once the Agreements are executed. Also, we want to make sure everyone knows where to go when you need certain documents/where these files are located and what is supposed to be in them. (I think they were just moved from Samantha's desk to Stephanie's desk, right?)

(2) I recommend that once we get the executed documents, we need a legal assistant to record the account numbers and execution dates in lotus notes when she receives the documents.

(3) Also, I want to make sure that we are keeping a file on Authorized Trader announcements and changes. I want to resuggest that the legal assistant also needs to send some type of form letter to the pre-existing firms to give notice when the list of authorized traders changes - this is critical, especially now that there are so many accounts and so many changes. Maybe we can draft a form letter and have a template or something. We should also create a list of contact persons to whom such a list has to go to.

(4) Also, now that we have more another legal assistant, we should meet to discuss how the assistant can "take back" some of the tasks I had taken on to make life easier without such help - getting signatures, preapring the documents, calling the counterparty etc. This will free-up some much needed time to review ISDA's, Confirms etc.

(5) Which legal assistants will work on what?

Sara may have additional topics, this is just some of immediate concern.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Message 920 of 1118

RE: payment date for financial power transactions

Sender	evelyn.aucoin@enron.com
Recipients	['sara.shackleton@enron.com', 'kimberly.hundl@enron.com', 'ann.murphy@enron.com', 's..theriot@enron.com']
File	shackleton-s/inbox/11.

I apologize for not returning the call. I discussed the issue further with = Melissa M. and Kimberly H. I think we currently have two separate issues: First: Melissa and Kimberly H. I think would prefer to have one paragraph of settl= ement language to use on all power financial confirms (rather than the two = current versions) so they could have a "one size fits all" description that= still addressed the two types of deals - 1) deals less than one month and = 2) deals one month and greater. Melissa - can you confirm if this is the id= ea behind what we discussed? Second: The language being used currently actually requires I invoice separately th= e two classes of deals (as specified above) - because the language we uses = makes deals less than one month due on the fifth workday of the month and m= akes Month + deals due on the seventh business day because indices are not = known until second workday. Invoicing these types of deals separately woul= d be more time consuming that any benefit that would result. I have yet an= other challenge - I have a counterparty that demands their remittance perio= d of five days starts over if the index is revised after original publicati= on. Then I have Williams (who we exchange paper with - confirms are not sig= ned) - who puts net 10 on all their deals. I really cannot come to a soluti= on. I have only a handful of power counterparties - they end up doing both = classes of deals - and the settlement date becomes a negoiation every month= . This is the going to be the third month my department has been responsibl= e for this area - so the whole situation is rather new. So at this time I t= hink the probability of solving my problem is remote. So while I appreciate= your offer of assistance - I am not entirely sure what to do. Given the ot= her priorities I have right now - addressing these is going to be in the fu= ture for me. =20 I have not had an external request to change the language. I think the main= request was from confirms and my issue(s) are secondary - and for which I= have no good solution. =20 I apologize for the long email - I am trying to do this from home to get ca= ught up. Thanks Evelyn =20

-----Original Message-----=20

From: Shackleton, Sara=20 Sent: Tue 11/27/2001 1:21 PM=20 To: Aucoin, Evelyn=20 Cc: Hundl, Kimberly; Theriot, Kim S.=20 Subject: payment date for financial power transactions

Evelyn:=20

I left a voice mail for you in mid-November inquiring about your request fo= r language in financial power confirms (same counterparty) for payment upon= termination of deals rather than aggregation of multiple deals with paymen= t at the end of a calendar month. Credit is inquiring as to whether this r= equest is internal or external.

Can you please call and explain the issues?=20

Thanks.=20

Sara Shackleton=20 Enron Wholesale Services=20 1400 Smith Street, EB3801a=20 Houston, TX 77002=20 Ph: (713) 853-5620=20 Fax: (713) 646-3490

Message 921 of 1118

FW: FW: FW: Raptor 2 - Sale of CEG/RioGas

Sender	joel.ephross@enron.com
Recipients	['Joel', 'sara.shackleton@enron.com', 'Ephross', 'brenda.funk@enron.com']
File	shackleton-s/all_documents/9500.

-----Original Message-----

From: Baker, Ron Sent: Wednesday, February 28, 2001 2:30 PM To: Ephross, Joel Subject: Re: FW: FW: Raptor 2 - Sale of CEG/RioGas

Joel, Yes, the swap would need to be transfered by both parties. I don't know anything about a "minibook" or the documentation being requested. Let me know if you have more questions. Thanks, Ron

Joel Ephross/ENRON@enronXgate 02/28/2001 01:21 PM To: Ron Baker/Corp/Enron@ENRON cc: Subject: FW: FW: Raptor 2 - Sale of CEG/RioGas

Ron, do you know the answer to this? -----Original Message----- From: Shackleton, Sara Sent: Wednesday, February 28, 2001 12:05 PM To: Funk, Brenda L. Cc: Ephross, Joel Subject: Re: FW: Raptor 2 - Sale of CEG/RioGas

Brenda: Thanks. Also, do you have a Raptor IV minibook? We don't have any Raptor IV documentation. Do both swap parties intend to transfer positions?

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Brenda L Funk/ENRON@enronXgate 02/28/2001 11:50 AM To: Joel Ephross/ENRON@enronXgate, Sara Shackleton/HOU/ECT@ECT cc: Subject: FW: Raptor 2 - Sale of CEG/RioGas

Just to clarify... the transfer of the swap has not been put on hold, but the sale of the assets hedged by the swaps. I have been working on the asset sale out of Rawhide, but I'm not familiar with the transfer of the swap.

Sara,

I will send executed copies of the swaps shortly.

Thanks, B

-----Original Message-----

From: Funk, Brenda L. Sent: Wednesday, February 28, 2001 11:35 AM To: Ephross, Joel Cc: Shackleton, Sara Subject: RE: Raptor 2 - Sale of CEG/RioGas

Just an update... I spoke with V&E this morning and the sale has been put on hold. The negotiations broke down last week and, with the holiday, there has been no further progress.

I'll let you know when I get an update.

Thanks, B

-----Original Message-----

From: Ephross, Joel Sent: Wednesday, February 28, 2001 11:31 AM To: Shackleton, Sara; Funk, Brenda L. Subject: FW: Raptor 2 - Sale of CEG/RioGas

-----Original Message-----

From: Baker, Ron Sent: Thursday, February 15, 2001 9:12 AM To: Siurek, Ryan; McKean, George; McKillop, Gordon; Ephross, Joel Subject: Raptor 2 - Sale of CEG/RioGas

FYI I was just notified that the sale of CEG and RioGas which are hedged in Raptor 2 will likely close next week. Current estimates indicate that the loss on the sale will be around \$30MM. It is expected that the sale of the one remaining South American LDC will result in gains that will more than offset this loss. Obviously, those expectations can change, but I wanted to keep everyone informed on this.

Ryan - This expected realized loss is exactly the situation which most concerned us in the meeting with Patti this week. Is there anything we can do to push them towards resolving that timing of realized losses is irrelevant, and this is not an issue?

Message 922 of 1118

Re:ANZ - ISDA and Enron Corp. Guarantee

Sender	sara.shackleton@enron.com
Recipients	['Sara Shackleton/HOU/ECT@ECT', 'jason.williams@enron.com', 'Darren Delage/AP/Enron@Enron', 'Susan']
File	shackleton-s/all_documents/9262.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/16/2001 02:14 PM -----

Jane McBride@ENRON 01/20/2001 02:26 AM

To: John Suttle/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Darren Delage/AP/Enron@Enron, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Re:ANZ - ISDA and Enron Corp. Guarantee

We cant really do an ENA ISDA here I don't think, it will need to be done out of Houston. Sara, Alan, any thoughts? Jane
John Suttle@ECT 2001/01/20 01:09

To: Jane McBride/AP/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT, Darren Delage/AP/Enron@Enron, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT@ENRON Subject: Re:ANZ - ISDA and Enron Corp. Guarantee

Whichever Enron entity is the transacting entity needs an ISDA over the deals. I don't know how Dependency Agency arrangements alter our documentation, but we should make certain we have collateral rights/credit in place whichever way we go.

Jane McBride@ENRON 01/18/2001 08:47 PM To: John Suttle/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, Darren Delage/AP/Enron@Enron, Susan Musch/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Re:ANZ - ISDA and Enron Corp. Guarantee

Hi John,

I have followed up on this with Darren Delage and it seems that this is the situation: The trades with ANZ will be done by Enron Japan but only by virtue of "dependant agency" arrangements with ENA. (These arrangements are still being documented.)

I think this means that ENA and not Enron Japan will need to enter into agreements with ANZ.

I think Darren will follow up from his side but could you go back to Micheal on this.

Jane

John Suttle@ECT 2001/01/19 08:05

To: Jane McBride/AP/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: ISDA and Enron Corp. Guarantee

Jane -

Attached is a worksheet in response to a request from Australia New Zealand Bank for an ISDA and Enron Corp. guaranty covering FX trading. The contact is Michael Midden, whose e-mail is below. I said we would e-mail the draft documents to him for comments.

Please let me know if you have any questions.

John

----- Forwarded by John Suttle/HOU/ECT on 01/19/2001 01:02

AM -----

"Midden, Michael" <mmidden@anz.com> on 01/18/2001 10:31:14 AM To: "john.suttle@enron.com" <john.suttle@enron.com> cc: Subject: Enron Corp. Guarantee

John,

Australia New Zealand Bank has put in place FX limits for Enron North America Inc.(on behalf of Enron Japan) of USD 2 million (R/13 months) and the corresponding USD 27.5 million in settlement limits (R/3-day) (subject the full guarantee of Enron Corporation). It would be greatly appreciated if you could assist us in implementing a guarantee from Enron Corp. to support these trading lines.

Regards,

Michael Midden

Message 923 of 1118

Re: Vaulation Date Raptor Language: RUSH

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com', 'Mark Taylor/HOU/ECT@ECT']
File	shackleton-s/all_documents/3365.

----- Forwarded by Sara Shackleton/HOU/ECT on 09/06/2000 04:01 PM -----

Mary Cook 09/06/2000 02:52 PM

To: Ryan Siurek/Corp/Enron@ENRON cc: Andrea V Reed/HOU/ECT@ECT, AnnMarie Tiller/Corp/Enron@ENRON, Julia H Chin/NA/Enron@Enron, Julia Murray/HOU/ECT@ECT, Kristina Mordaunt/Enron Communications@Enron Communications@ENRON, Ryan Siurek/Corp/Enron@ENRON, Sara Shackleton/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT Subject: Re: Vaulation Date Raptor Language: RUSH

Everyone, please advise if Ryan's change is acceptable.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Ryan Siurek@ENRON 09/06/2000 02:31 PM

To: Mary Cook/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Kristina Mordaunt/Enron Communications@Enron Communications, AnnMarie Tiller/Corp/Enron@ENRON, Ryan Siurek/Corp/Enron@ENRON, Andrea V Reed/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: Vaulation Date Raptor Language: RUSH

Mary,

Per your e-mail, I would like to delete (ii) in the definition of "reasonably withheld" as there is only one party that has a possibility to have a material unhedged position (ie. Enron).

Thanks,

Ryan

The (i) Termination Date and (ii) each date specified as such in a written notice from either party to the other party with respect to a designated Number of Shares specified in the notice (the "Notice"), to which the party receiving such notice consents, which consent shall not be unreasonably withheld. For purposes of this Confirmation, the parties agree that consent shall be deemed reasonably withheld (i) if the party receiving the Notice has a reasonable business purpose for maintaining the Transaction (excluding any business purpose relating specifically to the existing or anticipated value of the Transaction or any other Transaction subject to the Agreement) or (ii) if consenting to the Notice would result in a material unhedged exposure or liability for the party receiving the Notice. For the avoidance of doubt, a Notice shall be sent from either party to the other party on the Termination Date.

----- Forwarded by Ryan Siurek/Corp/Enron on 09/06/2000

02:25 PM -----

MARY COOK@ECT 09/06/2000 01:06 PM To: Julia H Chin/NA/Enron@Enron, Kristina Mordaunt/Enron Communications@Enron Communications, AnnMarie Tiller/Corp/Enron@ENRON, Ryan Siurek/Corp/Enron@ENRON, Andrea V Reed/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT

Subject: Vaulation Date Raptor Language: RUSH

Kristina, please forward as you deem necessary to EBS persons for final approval. Thank you.

Please see attached language concerning the Raptor swaps in respect of the Valuation Date mechanism and advise me as soon as possible of your approval or comments, if any. We are trying to finalize all public swaps (save Active Power) today, so your timeliness will be GREATLY appreciated by me! Mary

Message 924 of 1118

Municipalities Memo

Sender	sara.shackleton@enron.com
Recipients	['william.bradford@enron.com', 'tanya.rohauer@enron.com', 'mark.taylor@enron.com']
File	shackleton-s/sent/6231.

Bill and Tanya:

I am resending this memo to you in light of what I understand is a 3-year deal that Craig Breslau has done with MARTA (Metropolitan Area Rapid Transit Authority). I need to advise Mark Haedicke of the details as soon as possible since MARTA is a public entity and we do not have an executed Master Agreement with MARTA. We sent a draft document to MARTA on May 11, 2001. Until we resolve the "capacity" or "authority" issue, there is significant legal risk attached to transactions with governmental entities.

I left a message for Jay Williams to please advise me of trade details.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/17/2001 05:19 PM -----

Sara Shackleton 09/21/2000 04:14 PM

To: William S Bradford/HOU/ECT cc: Dorothy Youngblood/HOU/ECT@ECT Subject: Municipalities Memo

Bill: The attached memo was distributed to legal last week. We have had a number of questions arise on the power side lately regarding financial transactions (ranging from short term to quarterly) with governmentals. As you will see in the memo, the risks are significant. Please let me know if you have any questions. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 09/21/2000 04:09 PM -----

Brenda Whitehead 09/11/2000 09:16 AM

To: Alan Aronowitz/HOU/ECT@ECT, Peggy Banczak/HOU/ECT@ECT, Sandi M Braband/HOU/ECT@ECT, Teresa G Bushman/HOU/ECT@ECT, Bob Carter/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT, Barton Clark/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT, Shonnie Daniel/HOU/ECT@ECT, Peter del Vecchio/HOU/ECT@ECT, Stacy E Dickson/HOU/ECT@ECT, Shawna Flynn/HOU/ECT@ECT, Barbara N Gray/HOU/ECT@ECT, Wayne Gresham/HOU/ECT@ECT, Mark E Haedicke/HOU/ECT@ECT, Leslie Hansen/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Dan J Hyvl/HOU/ECT@ECT, Dan Lyons/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Janet H Moore/HOU/ECT@ECT, Janice R Moore/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Gerald Nemec/HOU/ECT@ECT, David Portz/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Lance Schuler-Legal/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Shari Stack/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Sheila Tweed/HOU/ECT@ECT, Steve Van Hooser/HOU/ECT@ECT, Ann Elizabeth White/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT, Roger Balog/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Anne C Koehler/HOU/ECT@ECT, Michael A Robison/HOU/ECT@ECT, Lou Stoler/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Angela Davis/NA/Enron@Enron, James Grace/Corp/Enron@ENRON, Mark Greenberg/NA/Enron@ENRON, Brent Hendry/NA/Enron@Enron, Kay Mann/Corp/Enron@Enron, Martin W Penkwitz/NA/Enron@Enron, John Viverito/Corp/Enron@Enron, Karen E Jones/HOU/ECT@ECT, Alan Larsen/PDX/ECT@ECT, Dale Rasmussen/HOU/ECT@ECT, Christian Yoder/HOU/ECT@ECT cc: Subject: Municipalities Memo

per the request of Mark Haedicke/Elizabeth Sager, please see this attachment:

Message 925 of 1118

Details on Enron North America	
Sender	sara.shackleton@enron.com
Recipients	['angela.davis@enron.com', 'tanya.rohauer@enron.com', 'gareth.bahlmann@enron.com', 'hoekemaa@rabo-bank.com']
File	shackleton-s/sent/5269.

Per the voice and emails left for Gareth Bahlmann, you may direct ISDA documentation to my attention.

Enron North America Corp. is the legal entity.

You may use the address information below. Our ISDA template will provide notice information pursuant to Paragraph 12 of the multicurrency form. You may use me as a contact lawyer initially; the transaction lawyer should contact you shortly.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/08/2001 11:37 AM -----

Leslie Linares@ENRON 01/08/2001 11:17 AM

To: Jeff Nogid/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: Details on Enron North America

Jeff,

Here is the e-mail that accompanies the voicemail message you received.

Thanks, Brenda Funk ----- Forwarded by Leslie Linares/Corp/Enron on 01/08/2001 11:16 AM -----

"Hoekema, AH (Andries)" <HoekemaA@RABO-BANK.COM> 01/03/2001 11:21 AM

To: "gareth.bahlmann@enron.com" <gareth.bahlmann@enron.com> cc: "Thomas, JA (Jane)" <thomasja@RABO-BANK.COM>, "Lauber, M (Mark)" <LauberM@RABO-BANK.COM> Subject: Details on Enron North America

Dear sir,

Your name and email address were forwarded to me by Jane Anne Thomas in our Legal department. We are working on a structured trade with the Royal Bank of Canada (project Cerberus) that involves Rabobank entering into a derivative contract with Enron North America. I am looking for the following information on Enron North America that we need to start the processes of opening counterparty accounts and preparing an ISDA master agreement:

- Full legal name; - Registered Address; - Telephone Number/Fax Number; - Legal/Documentation contact name.

I would be very grateful if you could supply me with this information.

Regards,

Andries Hoekema Structured Products Group +44 20 7664 9803 +44 7879 487 550 (mobile)

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The presence of this footnote also confirms that this email has been automatically checked by Rabobank International for the presence of computer viruses prior to it being sent, however, no guarantee is given or implied that this email is virus free upon delivery.

Message 926 of 1118

FW: JP Morgan Chase ("Chase") and Morgan Stanley Capital Group,

Sender	sara.shackleton@enron.com
Recipients	['mary.cook@enron.com']
File	shackleton-s/sent_items/651.

only Jay can answer your question

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, November 01, 2001 10:50 AM To: Williams, Jason R (Credit); Rohauer, Tanya Cc: Davis, Angela; Cook, Mary; St. Clair, Carol Subject: JP Morgan Chase ("Chase") and Morgan Stanley Capital Group, Inc. ("Morgan")

Jay and Tanya:

Legal would like to speak with one of you about the "Chase" and "Morgan" issues surrounding the Master Netting Agreement requests. There seems to be some confusion. I think the Chase request came from credit and the Morgan request came directly from Morgan. The items below summarize what I know about the two different counterparties.

(1) At the request of Chase and with Jay's approval, ENA terminated the Morgan Guaranty Trust Company of New York Master Energy Price Swap Agreement. All outstanding trades have been transferred to the April 5, 1994 Interest Rate and Currency Exchange Agreement between The Chase Manhattan Bank and ENA ("the Chase Master). When the merger is

complete (anticipated around November 10, 2001), the survivor JP Morgan Chase Bank will be ENA's counterparty under the Chase Master. [See Letter Agreement dated October 24, 2001]

(2) The Chase Master has been amended several times, most recently to provide for FX forward trades and resolve multibranch issues.

(3) Chase recently agreed that ENA propose a new ISDA Schedule/CSA. Legal has requested a credit worksheet.

(4) Among other things, it appears that the Chase Master currently provides for First Method. This has never been amended.

(5) The Chase Master is used for FX/rate and commodity trades.

On a different note,

(5) Morgan Stanley Capital Group, Inc. has signed "mini-netting" agreements with ECTRIC. Morgan now wants to sign similar "mini-netting" agreements with ERAC and EGLI. I believe that John Viverito is working on these agreements. Morgan is currently satisfied with its status with ENA but would like to see our Master Netting Agreement and may decide to execute. Three outstanding ELFI financial trades will be reconfirmed under ENA and I am waiting for Morgan to forward that documentation.

(6) Both ENA and Enron Corp. have been in the process of negotiating ISDA agreements with Morgan Stanley Capital Services, Inc. Nothing has been executed. ECTRIC has an executed ISDA with that entity.

(7) The names "Morgan Stanley & Co., Inc." and "Morgan Stanley & Co. International Limited" also appear in our database but you can check that out if necessary.

QUESTION: The Master Netting Agreement assignment list contains the name "J.P.Morgan". Legal is waiting for direction from credit for preparation of the JP Morgan Chase Master Netting Agreement.

QUESTION: Does credit also want to send a Master Netting Agreement to Morgan? Or should legal merely send Morgan a blank template to see if Morgan has any interest in executing such an agreement?

Sorry for the length of this message but the word "Morgan" raises all kinds of questions. I hope this explanation helps to identify some of the issues for anyone involved.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 927 of 1118

RE: POA/ Cargill line...

Sender	sara.shackleton@enron.com
Recipients	['caroline.abramo@enron.com', 'mark.taylor@enron.com', 'wendi.lebrocq@enron.com']
File	shackleton-s/all_documents/9707.

Caroline:

Sorry I wasn't able to reach you today and I will be out of the office tomorrow. If this can wait until Monday, please contact my assistant Kaye Ellis (X35968) and get on my calendar early Monday. If this cannot wait, please contact Mark Taylor (X37459) and he may be able to find a lawyer to assist you.

In general, I thought that Wendi was waiting to hear back from Cargill Incorporated credit. Once we understood what Cargill was looking for, I was hoping to speak with their lawyer and agree to eliminate all of the provisions appearing in the draft POA which did not really concern ENA. Recall that ENA does not want to monitor Cargill's agent: that's an internal job for Cargill.

I hope that we can speak on Monday. Maybe you can coordinate tomorrow with Wendi. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Caroline Abramo@ENRON 03/07/2001 06:09 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: RE: POA/ Cargill line...

Sara- I am going to suggest to Cargill that we will call them before any deal with Global gets booked.. they will have to approve it.. and then I'll go ahead with the Global deal... they will have to strip out all the references to the line... need to ask you a few other things though.... ----- Forwarded by Caroline Abramo/Corp/Enron on 03/07/2001 07:07 PM -----

Joe_Lardy@cargill.com on 03/02/2001 10:39:03 AM To: Caroline.Abramo@enron.com cc: dlm@globaladvisors.co.uk, Sara.Shackleton@enron.com, Wendi.LeBrocq@enron.com

Subject: RE: POA/ Cargill line...

Currently Cargill and Enron have a 15MM collateral threshold. If possible, I think the cleanest way to run this biz would be to put a box around the prime broker biz. We would still operate under the master isda but could set up a mutually agreeable credit support annex for this biz. We would still keep the 20,000,000 line referenced in Schedule B of the POA agreement. The line in the POA is a seperate and distinct measure from the daily collateral. The 20 mill reflects gross exposure. Let me know if you think this is reasonable and workable. We too, are open to suggestion as the Global and Enron relationships are very important and a high priority to us.

Thanks Joe

-----Original Message-----

From: Caroline.Abramo@enron.com [mailto:Caroline.Abramo@enron.com] Sent: Friday, March 02, 2001 7:26 AM To: lardy, joe /xtwn Cc: dlm@globaladvisors.co.uk; Wendi.LeBrocq@enron.com; Sara.Shackleton@enron.com Subject: POA/ Cargill line...

Joe- a few things regading the POA/ Cargill line..

I am going to find out how much line we currently have available... you probably already have this. We should allocate a piece to Global which would solve the problem of other Cargill people using the line, putting us over the limit, without me knowing...

We could change the language of the POA to this... we will not go over Global's piece of the Cargill line...I think this would solve our main concern...

Please let me know... we are eager to keep trading with Global and yourselves...

Regards, Caroline

Message 928 of 1118

RE: Total International Ltd.

Sender	sara.shackleton@enron.com
Recipients	[justin.boyd@enron.com]
File	shackleton-s/sent/6195.

Justin:

What lawyer handles daily financial trading issues? I need to speak with that person about US swap eligibility rules governing US companies, specifically, ECTRIC, and who evaluates ECTRIC's counterparties for eligibility. The specific issue has to do with Total as you will see from the string of emails attached. I look forward to hearing from you. Thanks.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 05/14/2001 06:22 PM -----

Brant Reves/ENRON@enronXgate 05/08/2001 02:23 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Paul Maley/LON/ECT@ECT Subject: RE: Total International Ltd.

Sara,

ECTRI is a UK registered company. As a subsidiary of ENA, which is registered under US law, can my trader sleeve deals through ECTRI to get around the eligibilty issue. We are working with Total to get a confidentiality agreement signed but it is taking awhile and we will not be receiving financial statements to evidence eligibility for another three weeks.

thanks brant

-----Original Message-----

From: Maley, Paul Sent: Tuesday, May 08, 2001 10:56 AM To: Reves, Brant Subject: RE: Total International Ltd.

Brant For SFA purposes as they are ulitimately owned by a quoted company on a recognised stock exchange then this is sufficient to sign them off. I don't really know whether this makes them an elligible swap participant for the US though. Paul

From: Brant Reves/ENRON@enronXgate on 07/05/2001 09:59 CDT To: Paul Maley/LON/ECT@ECT cc:

Subject: RE: Total International Ltd.

I am not quite sure I understand. Does SFA requirements mean you have a guaranty, financial statements, or other material that establishes them as an eligible derivative customer. One of our marketers continues to try and trade with them and I still don't fully understand how they are open in London. Does meeting SFA requirements establish this customer as an eligible counterparty under US statutes?

brant

-----Original Message-----

From: Maley, Paul Sent: Friday, May 04, 2001 7:53 AM To: Reves, Brant Cc: Jackson, Lee; Shackleton, Sara Subject: Re: Total International Ltd.

Brant We have passed them for SFA requirements in London so yes they can trade through London no problem at all. (see Regulatory tab in CAS) Any problems, let me know. Paul

From: Brant Reves/ENRON@enronXgate on 03/05/2001 08:30 CDT To: Paul Maley/LON/ECT@ECT cc: Lee Jackson/ENRON@enronXgate, Sara Shackleton/HOU/ECT@ECT

Subject: Total International Ltd.

Paul,

I have a trader that is trying to trade financially with Total International Ltd., but we have asked that he not until we can sort our some eligibility issues. Prior to speaking with Ben Hamida at Total last week, we had never approached them for financial statements or a guaranty that would establish them as elible contract parties. I noticed that we have significant financial trading with them in London. How have you established eligibility? My trader is asking, since he cannot trade under ENA with Total, if he can sleeve deals through London.

Any ideas or insight would be helpful.

thanks brant

Message 929 of 1118

Re: Valuation Date Raptor Language: RUSH

Sender	mary.cook@enron.com
Recipients	['julia.chin@enron.com', 'annmarie.tiller@enron.com', 'andrea.reed@enron.com', 'ryan.siurek@enron.com']
File	shackleton-s/notes_inbox/1204.

As to ENA swaps, upon discussion with Andrea and Ryan there will be no language included in the provision in respect of trying to define when something is or is not deemed reasonably withheld. See below. Sara is discussing the Avici swap with EBS. I am going to prepare the ENA confirms on this basis.

The (i) Termination Date and (ii) each date specified as such in a written notice from either party to the other party with respect to a designated Number of Shares specified in the notice (the "Notice"), to which the party receiving such notice consents, which consent shall not be unreasonably withheld. For the avoidance of doubt, a Notice shall be sent from either party to the other party on the Termination Date.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Ryan Siurek@ENRON 09/06/2000 02:31 PM

To: Mary Cook/HOU/ECT@ECT, Julia H Chin/NA/Enron@Enron, Kristina Mordaunt/Enron Communications@Enron Communications, AnnMarie Tiller/Corp/Enron@ENRON, Ryan Siurek/Corp/Enron@ENRON, Andrea V Reed/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Subject: Valuation Date Raptor Language: RUSH

Mary,

Per your e-mail, I would like to delete (ii) in the defininition of "reasonably withheld" as there is only one party that has a possibility to have a material unhedged position (ie. Enron).

Thanks,

Ryan

The (i) Termination Date and (ii) each date specified as such in a written notice from either party to the other party with respect to a designated Number of Shares specified in the notice (the "Notice"), to which the party receiving such notice consents, which consent shall not be unreasonably withheld. For purposes of this Confirmation, the parties agree that consent shall be deemed reasonably withheld (i) if the party receiving the Notice has a reasonable business purpose for maintaining the Transaction (excluding any business purpose relating specifically to the existing or anticipated value of the Transaction or any other Transaction subject to the Agreement) or (ii) if consenting to the Notice would result in a material unhedged exposure or liability for the party receiving the Notice. For the avoidance of doubt, a Notice shall be sent from either party to the other party on the Termination Date.

----- Forwarded by Ryan Siurek/Corp/Enron on 09/06/2000

02:25 PM -----

MARY COOK@ECT 09/06/2000 01:06 PM To: Julia H Chin/NA/Enron@Enron, Kristina Mordaunt/Enron Communications@Enron Communications, AnnMarie Tiller/Corp/Enron@ENRON, Ryan Siurek/Corp/Enron@ENRON, Andrea V Reed/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT

Subject: Valuation Date Raptor Language: RUSH

Kristina, please forward as you deem necessary to EBS persons for final approval. Thank you.

Please see attached language concerning the Raptor swaps in respect of the Valuation Date mechanism and advise me as soon as possible of your approval or comments, if any. We are trying to finalize all public swaps (save Active Power) today, so your timeliness will be GREATLY appreciated by me! Mary

Message 930 of 1118

Re: Enron OTC trade with MAPLLC

Sender	jennifer.shipos@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/3122.

Here is the long history. Marathon-Ashland's comments are at the end of this.

Thanks, Jennifer

----- Forwarded by Jennifer Shipos/HOU/ECT on 08/22/2000

01:44 PM ----- From: Harry M Collins on 08/17/2000 02:27 PM To: Jennifer Shipos/HOU/ECT@ECT cc: Subject: Re: Enron OTC trade with MAPLLC

FYI

I have forwarded your message to Sara Shakleton for further handling , as her group is the appropriate one for these matters.

Jennifer Shipos 08/17/2000 11:08 AM

To: Harry M Collins/HOU/ECT@ECT cc: Subject: Enron OTC trade with MAPLLC

Harry,

I had Souad fax you the GTC agreement that we sent to Marathon-Ashland. Also, the following are the comments that they had about the agreement.

Please let me know what other steps I need to take in resolving this issue.

Thanks for your assistance.

Jennifer Shipos X 3-5538

----- Forwarded by Jennifer Shipos/HOU/ECT on 08/17/2000

11:04 AM -----

"Dale A Barwig" <dabarwig@mapllc.com> on 08/14/2000 12:58:27 PM To: Jennifer.Shipos@enron.com cc: Subject: Enron OTC trade with MAPLLC

Jennifer below are MAP's legal department's comments on the Enron OTC agreement from July 14..

1. On the address at the top of page 1 the address for MAP should be correctly identified. I don't believe "Document Department" is correct. CHANGE TO ATTENTION DALE BARWIG
2. Under the provision titled "Floating Amount Details", "Floating Price" at line 3, change the word "entitled" to "titled".
3. Under Governing Law change "Texas" to "New York".

On the last page, information should be inserted for notices for MAP and another provision for communications. Under "Communications" insert "Prior to the close of business on the next business day following the trade date, ENA will prepare and forward this contract electronically (faxed or attached to an email in a mutually acceptable format) to MAP's trader with a copy to the supervisor of Feedstock Acquisition and Derivative Accounting as listed below under Contractual Invoices".

Then for "Contractual Invoices":

Marathon Ashland Petroleum LLC (MAP) Name: Fred L. Bennett Title: Supervisor, Feedstock Acquisition and Derivative Accounting Address: Room 444-M, 539 South Main Street, Findlay, Ohio 45840 Tel No: (419) 421-4200 Fax No: (419)

421-5040 Email: FLBennett@MAPLLC.com"

4. Under Annex A General Terms and Conditions under the provision titled "Market Disruption Event", line 3, change "ENA" to "both parties".

Here starts my comments on the contract language.

5. As we talked about I am confused that which crack sale has occurred. The fixed price referencing the attachment should indicate USGC 74 Grade (Pipe) Heating Oil. I am unclear where in the document we mention Low Sulfur.

Floating Price: The average of USGC platts oilgram midpoint for USGC Pipeline No. 2 74 Grade Oil, multiplied by 42, less the First Nearby NYMEX WTI Crude Oil futures settlement prices

Where is the settlement paragraph? Something like:

If the Fixed Amount exceeds the Floating Amount for such calculation period, the fixed price payor shall pay the floating price payor an amount equal to such excess. If the floating amount exceeds the fixed amount for such calculation period, the floating price payor shall pay the fixed price payor an amount equal to such excess.

Thanks for you help.

Message 931 of 1118

(01-42) Extension of Resolution Governing Price Fluctuation Limits

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3346.

Notice No. 01-42 January 31, 2001

MEMORANDUM

TO: ALL NYMEX AND COMEX MEMBERS

FROM: Neal L. Wolkoff , Executive Vice President

DATE: January 31, 2001

RE: Six-Month Extension of Resolution Governing Price Fluctuation Limits Applicable to Trading on NYMEX ACCESS

On December 12, 2000, the Exchange issued Notice to Members #421, which consisted of a reminder to Members of an Exchange Resolution in effect that concerned Exchange price fluctuation limit rules as those rules apply to trading on NYMEX ACCESS(; That notice stated that the Resolution would continue until February 1, 2001, unless Members were notified otherwise by the Exchange.

The purpose of this Notice is to advise Members that the Exchange has extended this Resolution, which is attached below, for another six months. Thus, this Resolution will continue through August 1, 2001, unless Members are notified otherwise by the Exchange.

If you have any questions, please contact Rick Taibi, Director, NYMEX ACCESS Operations, NYMEX ACCESS Department, at (212) 299-2677; or Brian Regan, Senior Associate General Counsel, at (212) 299-2207.

* * * *

APPROVED RESOLUTION OF THE EXECUTIVE COMMITTEE OF THE BOARD OF DIRECTORS REGARDING PRICE FLUCTUATION LIMITS FOR EXCHANGE CONTRACTS

The Executive Committee of the Board of Directors hereby

Resolves that, until further notice, the price fluctuation limit rules for each futures contract that is listed for trading on NYMEX ACCESS(r) and that has such applicable rules shall continue in effect except as amended below with regard to market activity occurring on NYMEX ACCESS(r):

The initial and subsequent price fluctuation limits (for each Exchange futures contract that has such limits) shall be expanded to 200% of the initial and subsequent price fluctuation limits applicable to the first two contract months of that futures contract that have price limits under the applicable rule.

This expanded limit (200% of the limits for the first two months with limits) shall be applicable to all contract months for that futures contract.

In the event that such a price fluctuation limit is reached by a bona fide bid at the high price fluctuation limit or a bona fide offer at the low price fluctuation limit, trading on NYMEX ACCESS(r) shall be halted immediately except as directed otherwise by the President or the President's designee. Following resumption of trading, the price limits in effect shall be 200% of the limits applicable to RTH trading. In the event that a limit is touched during the last 90 minutes of a NYMEX ACCESS(r) session, the market shall be halted briefly, and price limits shall be expanded thereafter

In addition, in the event that a contract trading on NYMEX ACCESS(r) traded for five minutes during the NYMEX ACCESS session at a price fluctuation limit applicable to the Regular Trading Hours session, then the RTH session shall open with expanded price fluctuation limits as provided under the applicable rule, even though no temporary cessation of trading occurred during the NYMEX ACCESS(r) trading session.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(01-42\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-42))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 932 of 1118

Re: ISDA between Enron & MGI

Sender	paul.radous@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3285.

Sara,

I think we need to explain the collateral transfer provision to Rose. I don't think she understands what the \$0 transfer amount means. We do not want to wait until we have \$500,000 of exposure to Global. We are happy to exchange collateral in \$250,000 increments. So if Global owes Enron \$1, we want the first \$250,000 in collateral. If Enron owes Global \$1, we are willing to post the first \$250,000. The reality is that we will not call if the exposure is immaterial. It's not worth our time. But since we are already taking intra day credit risk, we have no desire to add another \$500,000 to that exposure.

As far as the cross default goes, we see it as a matter of proportion. Enron has \$53 Billion in assets: Moore has \$1.3 Billion. Accordingly, a default of \$100 Million would have substantially different implications for each of these entities. So to say that they have been willing to go as high as 2 to 1 puzzles me. I don't really know what the basis for that ratio is.

Anyway, we will no doubt have to talk through these issues with the counterparty. I am ready when you are.

Paul

From: Sara Shackleton@ECT on 02/09/2001 12:00 PM To: Paul Radous/Corp/Enron@ENRON cc:

Subject: ISDA between Enron & MGI

Paul: I'll begin reviewing the comments but you'll have to think about the credit related issues. Let me know if you'd like to schedule some time to discuss.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 02/09/2001 12:03 PM -----

Rose Liu <rose.liu@moorecap.com> 02/09/2001 09:35 AM

To: "'sara.shackleton@enron.com'" <sara.shackleton@enron.com> cc: Joe Hamilton <joe.hamilton@moorecap.com>, Jeff Popock <jeff.popock@moorecap.com> Subject: ISDA between Enron & MGI

Sara - Please find attached the latest version of the ISDA document between Enron & Moore Global Investments, Ltd. as well as our comments which can be found below as well as written on the document itself. Please note that also included in the fax are some revisions to the legal opinion. I will send to you any comments regarding the guaranty once our lawyer has completed his review.

Schedule: Part 1 (c) "Threshold Amount" - We are willing to accept your proposal for the flat number of \$100 million for Enron, but we cannot accept \$2 million for the Moore Global. The majority of our documents are bilateral in nature, but we have accepted a 2:1 ratio, thus we have proposed \$50 million for Moore Global. Please reconsider.

Part 3(b) Documents to be delivered - I have added the legal opinion language, but I just wanted to confirm that Enron will pay for these requested legal opinions. I found out that FIF Master Fund, Ltd also uses Graham Thompson as outside counsel.

Credit Support Annex: Paragraph 13 (b)(iv) - Thresholds - We are willing to accept a \$0 Threshold even though with most of our counterparties, we have at least a \$5 million threshold. On the other hand, we find it to be a operational nuisance to have to transfer collateral back and forth with a "minimum transfer amount" of zero, thus we would like to stick with \$500,000 since we do not think \$500,000 is an unreasonable amount of exposure for either party and it would eliminate the nuisance factor.

Thank you very much for your help in this matter and we look forward to hearing from you.

Regards-

Rose

- fax1.tif

Message 933 of 1118

FW: [Fwd: Mail Order Group Request]

Sender	sara.shackleton@enron.com
Recipients	['mcklaw@bellsouth.net']
File	shackleton-s/deleted_items/252.

Patricia:

Please print for Mr. McKeogh. Thanks. Sara

-----Original Message-----

From: sshackl@swbell.net@ENRON Sent: Monday, December 17, 2001 10:24 PM To: Shackleton, Sara Subject: [Fwd: Mail Order Group Request]

Content-transfer-encoding: 7bit Return-path: <flowersw@mail.mcn.org> Received: from mta2.rcsntx.swbell.net (mta2-pr.rcsntx.swbell.net) by sims1.rcsntx.swbell.net (Sun Internet Mail Server sims.3.5.2000.01.05.12.18.p9) with ESMTP id <0GOI00H8B70OG6@sims1.rcsntx.swbell.net> for sshackl@sims-ms-daemon; Mon, 17 Dec 2001 13:48:37 -0600 (CST) Received: from mail.mcn.org ([204.189.12.13]) by mta2.rcsntx.swbell.net (Sun Internet Mail Server

sims.3.5.2000.01.05.12.18.p9) with ESMTP id <0GOI0010576S5F@mta2.rcsntx.swbell.net> for sshackl@Sims1.rcsntx.swbell.net; Mon, 17 Dec 2001 13:52:04 -0600 (CST) Received: from officemgr (ha-10-pw-p4-m22.mcn.org [66.52.189.106]) by mail.mcn.org (8.12.1/8.12.1) with ESMTP id fBHJmKml001699 for <sshackl@swbell.net>; Mon, 17 Dec 2001 11:48:21 -0800 (PST) Date: Mon, 17 Dec 2001 11:25:52 -0800 From: flowersw <flowersw@mail.mcn.org> Subject: RE: Mail Order Group Request In-reply-to: <200112170209.fBH29sUo024330@mail.mcn.org> To: sshackl@swbell.net Reply-to: info@flowerswinery.com Message-id: <001d01c18734\$4ece32f0\$6900a8c0@officemgr> MIME-version: 1.0 X-Mailer: Microsoft Outlook CWS, Build 9.0.2416 (9.0.2911.0) Content-type: text/plain; charset="iso-8859-1" Importance: Normal X-MSMail-Priority: Normal X-MimeOLE: Produced By Microsoft MimeOLE V5.50.4522.1200 X-Priority: 3 (Normal) X-Mozilla-Status2: 00000000

Happy Holidays to you and Welcome to Flowers Mail Order Group. We have received your request and will add you to our Waiting List. We plan to send out two Newsletters during the year, our Spring Offer mails in February, our Fall Offer mails in August. We have just completed our Fall 2001 Offer, the wines sold out quickly. Currently there is no wine available for purchase. We hope to be able to include you in our Spring 2002 offer. We will do our best. Our wines are offered on a first come, first served basis. When you receive an offer and you decide to order, fax it back immediately to avoid disappointment. Until then, please keep us informed of any address changes. Your patience is appreciated. We invite you to visit our website at www.flowerswinery.com for more information on all of our releases. For special questions or observations about the wines, send us an e-mail us for the quickest response. Thanks for your interest in Flowers wines. We look forward to hearing from you. Regards, Michelle

P.S. We are located in such a remote area of the Sonoma Coast that our County Permit does not allow us visitors. Once our wine is bottled, it is shipped off premise to the warehouse until release. We have no bottled wine on premise and no tasting facility. We respect these conditions of our permit to enable us to continue to grow great wine in this area. The best way to visit is through our website. Thanks.

-----Original Message-----

From: maillist@www.flowerswinery.com [mailto:maillist@www.flowerswinery.com] Sent: Sunday, December 16, 2001 6:10 PM To: info@flowerswinery.com Subject: Mail Order Group Request

First Name: Sara Initial: Last Name: Shackleton Address: 3915 Coleridge Apt/Suite: City: Houston State: TX Zip: 77005 Country: USA Int'l Zip: Home Phone: 713-664-3207 Work Phone: 713-853-5620 E-Mail: sshackl@swbell.net Fax:

Heard of Flowers Wines: read about the winery, restaurant and purchased bottle on windbid.com

Message 934 of 1118

Avalon Northwest Wine News- December 21, 2001

Sender	info@avalonwine.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/236.

AVALON NORTHWEST WINE NEWS Dec 20, 2001 Go to Home page ----- Go to NewsLetter page Sale wines from famous NW winemakers Wow! The economy has hit = the NW wine industry, or are our wonderful winemakers feeling generous? There are dozens of highly rated wines on sale this month, just in time to = treat yourself for the holidays. On to the list..... NW Sale Wines.... There are orii Mor-- Panther Creek -- Adea -- Argyle --- Ponzi Raptor Ridge -- Gordon = Brothers --- Sagelands and lots more! Highest Rated and Award Winning NW= Wines New top rated wines from Oregon, Washington, and Idaho- over 200 wines in stock. New Releases- Over 100 new wines So many Great New Wines= from Artisan Winemakers People we have not heard from for a year or more = are showing up at the store with wonderful wines! Quilceda Creek Red Table Wine in Stock! Andrew Rich Mesalliance, Pinots, Dessert wines Thomas Winery 1999 Pinot Noir rocks! Evesham Wood--Burgundian complex Pinot noir= s Lemelson--Pinot Noir, Chardonnay, Pinot Gris Hamacher--Robert Parker = raves--99 Pinot Noir Adea Pinot Noirs luscious and on sale Andrew Will = Cabs, Merlots, Sorella Broadley 2000 reserve is out, Claudia's Coming! C= ameron Clos Electrique and Abbey Ridge The incredible Chehalem 99 Rion Reserve Delille D2 99, Doyenne Syrah 99 Dunham 99 Cab and Tre Marie Trut= ina Elemental Syrah

2000 from the Witness Tree guy Witness Tree 99 Pino= t Noir and Chardonnay, last call on 98 Vintage Select 98 Pinot Noir (Excell= ent) Stonecroft Pinot Noir 2000 from Brian Croft Fiddlehead Cellars 98= from Kathy Joseph Gordon Brothers Syrah- juicy inky black slurper High= Pass Pinot Noir Walnut Ridge 99 - Can Not Miss! Ken Wright 2000 Pinot No= irs in stock Matthews Cellars Yakima Red and Cab Reserve 99 Top 100 Win= es of Year Winemaker Lynn Penner Ash's Own Label- Penner Ash Pinot Noir 99 = Pepper Bridge Cabernet Sauvignon Ponzi Vino Gelato, Abetina PN and Rese= rve PN 99 Reininger Merlot and Cab 99's Shea Vineyards Pinot Noir 99- D= ick Shea's own blends, made by Ken Wright, Mike Etzel, and Patricia Green = Spring Valley "Uriah" back in stock- limited Woodward Canyon Charboneau= Red 99, Old Vine Cab 98 [IMAGE] Christina Kelly on Chehalem- don't miss= the Rion Reserve! [IMAGE] Cole Danehower on Dessert Wines for t= he Holidays =09Call us! 541-752-7418 What do you think of the new= email format? Can you see it? Does it load quickly? We want to know! EM= AIL US! WINE SPECTATOR TOP 100 WINES OF THE WORLD 2001 #60 [IMAGE] = Beaux Freres Yamhill Pinot Noir 99\$59.99 #89 [IMAGE] Rex Hill Pinot Noi= r 99\$27.99 Quilceda Creek Red Table Wine is in! [IMAGE] Very much a Qui= lceda Creek wine, this is a younger, "drink me now and be merry" version of= their Cab. It is mostly Cab, and is a dark, rich wine, concentrated, smoot= h and ready to slurp. [IMAGE] Ken Wright 2000 Pinot Noir and 2001 Future= s Introducing [IMAGE] Januik Winery [IMAGE] Rabbit Corkscre= w \$59.95 and free shipping Heirloom English Picnic Baskets [IMAGE] = =09

www.Oregongourmet.com www.Avalonwine.com Avalon of Oregon 201 SW 2nd St= reet Corvallis OR 97333 541-752-7418 Site Meter ----- [IMAGE] =09O= UR CUSTOMERS GIVE US OUR BEST IDEAS - ALWAYS! - E-mail us at info@avalonwi= ne.com Wines priced at \$0.00 are out of stock and are not available at tha= t price. Complete contents copyright 2000, 2001 Jean Yates Inc. all right = reserved. We reserve the right to refuse service to anyone. We reserve the = right to correct any pricing or informational mistakes. =09 Customer Ser= vice Search Shipping info About us =09

--- Click here to unsubscribe from future mailings... <http://news.AvalonWin.com/leave?avalon-news&sara.shackleton@enron.com>

Message 935 of 1118

Re: LME	
Sender	sara.shackleton@enron.com
Recipients	['Enron London - EOL Product Control', 'carlos.alatorre@enron.com', 'Amita Gosalia/LON/ECT@ECT']
File	shackleton-s/sent/5740.

looks fine

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Carlos Alatorre@ENRON 02/27/2001 06:07 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Anna Gardiner/LON/ECT@ECT, Justin Rostant/HOU/ECT@ECT Subject: Re: LME

Sara: We need to change the Prod Description fro the LME Product. The change is mainly on the Settlement Date text, which instead of "...Two business days after the date of the Transaction..." shall read as follow: For Curr LME LME (Spot) 01Mar01 JPY/USD A currency Transaction with Enron Europe Finance & Trading Limited ("EEFTL") as agent for Risk Management & Trading Corp. under which either (A) for the case in which Counterparty submits an offer to buy from EEFTL, Counterparty shall receive the Base Currency Amount and shall pay the Foreign Currency Amount, or (B) for the case in which Counterparty submits an offer to sell to EEFTL, Counterparty shall pay the Base Currency Amount and shall receive the Foreign Currency Amount. The Base Currency Amount shall equal the volume submitted by the Counterparty via the Website. The Foreign Currency Amount shall equal the Base Currency Amount, multiplied by the daily London Metal Exchange (LME) fixing rate as published by Reuters on page MTLE on the date of the transaction, modified by the price submitted by the Counterparty via the Website.

The term of the Transaction shall correspond to the date(s) set forth in the Product description on the Website.

The Settlement date shall be the date(s) set forth in the Product description on the Website.

The price is quoted in JPY (the 'Foreign Currency') per US Dollar (the 'Base Currency'). The unit of measure against which the price is quoted shall be US Dollars.

Please let me know your approval before we make any changes. Thanks Carlos

----- Forwarded by Carlos Alatorre/NA/Enron on 02/27/2001

04:56 PM -----

Anna Gardiner@ECT 02/27/2001 02:07 PM To: Carlos Alatorre/NA/Enron@ENRON cc: Amita Gosalia/LON/ECT@ECT, Enron London - EOL Product Control Group/LON/ECT@ECT, Lara Fields/LON/ECT@ECT

Subject: Re: LME

Carlos

This looks as we agreed on the phone. I apologise for me being a little slow on the uptake. It has been a long day and my brain is a little tired. Let me know one this is approved and I will make the changes.

Thanks

Anna

To: Anna Gardiner/LON/ECT@ECT cc: Shane Dallmann/LON/ECT@ECT, Justin Rostant/HOU/ECT@ECT

Subject: LME

Anna/Shane: Below is the Prod Description that I am going to take to Legal, please review before I have it approved and let me know if you are Ok or if you have any comments/questions, Thanks Carlos

For Curr LME LME (Spot) 01Mar01 JPY/USD

A currency Transaction with Enron Europe Finance & Trading Limited ("EEFTL") as agent for Risk Management & Trading Corp. under which either (A) for the case in which Counterparty submits an offer to buy from EEFTL, Counterparty shall receive the Base Currency Amount and shall pay the Foreign Currency Amount, or (B) for the case in which Counterparty submits an offer to sell to EEFTL, Counterparty shall pay the Base Currency Amount and shall receive the Foreign Currency Amount. The Base Currency Amount shall equal the volume submitted by the Counterparty via the Website. The Foreign Currency Amount shall equal the Base Currency Amount, multiplied by the daily London Metal Exchange (LME) fixing rate as published by Reuters on page MTLE on the date of the transaction, modified by the price submitted by the Counterparty via the Website.

The term of the Transaction shall correspond to the date(s) set forth in the Product description on the Website.

The Settlement date shall be the date(s) set forth in the Product description on the Website.

The price is quoted in JPY (the 'Foreign Currency') per US Dollar (the 'Base Currency'). The unit of measure against which the price is quoted shall be US Dollars.

Message 936 of 1118

LIQUID, new work by Dornith Doherty

Sender	contactus@jamesgalleryhouston.com
Recipients	[]
File	shackleton-s/all_documents/11251.

LIQUID

new work by Dornith Doherty

1 june d 7 july 2001

LIQUID, new work by Dornith Doherty, featuring color photographs and video work, opens June 1 from 6-8:30 P.M. at James Gallery. The exhibition is accompanied by a color brochure with an essay by Susie Kalil. James Gallery is located in Houston's Museum District between West Alabama and Richmond Avenue, east of Montrose Boulevard. Gallery hours are Wednesday-Saturday 10 A.M. to 5:30 P.M.

"... The tableaux Doherty creates for the camera can evoke the odd curiosities assembled by 19th century scientific explorers. But Doherty's reconfigurations, her re-filling of the skins of things, are nothing less than acts of reincarnation. As master of her fabricated world, Doherty breathes new existence into the most ordinary materials and detritus. By focusing on the tension between chaos and order, perception and illusion, Doherty folds systems of understanding back on themselves to confound seemingly distinct categories. Her photographs investigate the world rather than represent it, reminding us of seasonal change and the transience of existence. They engender something akin to sensory whiplash. We come up close and peer at the large-scale images - searching, scrutinizing, scanning - much the way she must have done while setting her sights through the viewfinder camera's ground glass. They bring the viewer's eye up short with shadowy projections that belie illusion. It's not a violent phenomenon, but a captivating one, a persistent reckoning of the friction between form and void, solid and phantasm.

In photography, however, paradox is paramount, the lie is taken for truth, and the real is understood only in terms of its simulation. Accordingly, Doherty's images attend to the lonely but pleasurable activity of looking. They concentrate on the duration of vision - time, the memory of time, the specific lunar radiance of dreams. She reminds us that those things touch us in a deeper desire; it's as if she peels off layers of the apparent richness of ourselves, arguing us back to the realm of great, raw, objectless longing . . ."

01. from Liquid an essay by Susie Kalil

Dornith Doherty (a native Houstonian) studied Spanish and French language and literature at Rice University (BA, 1980), and photography at Yale University (MFA, 1988). She received a William J. Fulbright-García Robles Lecture/Research Fellowship (Mexico, 1995), and a Society for Contemporary Photography Fellowship (1993). Her many solo exhibitions include Dornith Doherty, McDonough Museum of Art, Youngstown State University, (2000); Dornith Doherty, University Gallery, Texas A&M University (2001); Dornith Doherty: Fragmentary Evolutions (FotoFest '98), James Gallery (1998), and Dornith Doherty, Traces, University of Notre Dame Photography Gallery (1997). Group exhibitions include FotoFest 2000: 10 x 2 + 2: 22 Texas Artists, DiverseWorks (2000); The Shelf-Life of Objects: Contemporary Still Life Photography, University of Texas at Dallas (2000); Dornith Doherty & Sybil Miller, Rhode Island College (1999); Flora and Fauna, Museum of Fine Arts, Houston (1999), and Material World, James Gallery (1999). Upcoming exhibitions include a solo at the University of Notre Dame's Isis Gallery (January 2002) and Aspects of Human Agency in the Landscape (with Sally Packard and Gary Retherford) at the Arlington Museum of Art, TX (April 2002). Doherty's work can be found in the permanent collections of the Museum of Fine Arts, Houston; the Minneapolis Institute of Arts; the Museum of Fine Arts, Milwaukee; the Art Museum of Southeast Texas, Beaumont, and the Sheldon Swope Art Museum, Terre Haute, among numerous other public and private collections nationally. Doherty is currently an Associate Professor of Art at the University of North Texas.

james gallery

307 sul ross | houston 77006 | 713.942.7035

<http://www.jamesgalleryhouston.com>

- Liquid @ James Gallery

Message 937 of 1118

Re: Premstar Energy Canada Ltd. - Financial Transaction Nos.

Sender	russell.diamond@enron.com
Recipients	['melinda.whalen@enron.com', 'peter.keohane@enron.com', 'laura.scott@enron.com', 'peggy.hedstrom@enron.com']
File	shackleton-s/all_documents/9070.

Peter,

I do not show that this counterparty has an executed ISDA, which would make me hesitant with respect to No. 6 below. I think we should pursue an ISDA if they want to do this going forward.

Russell

Enron Capital & Trade Resources Canada Corp.

From: Peter Keohane 02/08/2001 06:05 PM

To: Peggy Hedstrom/CAL/ECT@ECT, Melinda Whalen/CAL/ECT@ECT, Laura E Scott/CAL/ECT@ECT, Cheryl Dawes/CAL/ECT@ECT, Russell Diamond/HOU/ECT@ECT cc: Grant Oh/CAL/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT Subject: Re: Premstar Energy Canada Ltd. - Financial Transaction Nos. QF3405.1, QG7130.1, NY2665.1 and NY5271.1

FYI note from Mary Cook. Although the ISDA would not need to be amended, each individual confirm would have to be amended from our normal procedure. It also seems that the convention of settling financials on the fifth BD after determination is something that has developed after much consideration. P. ----- Forwarded by Peter Keohane/CAL/ECT on 02/08/2001 05:00 PM -----

MARY COOK 02/08/2001 03:54 PM To: Peter Keohane/CAL/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: Premstar Energy Canada Ltd. - Financial Transaction Nos. QF3405.1, QG7130.1, NY2665.1 and NY5271.1

You would not need to amend the ISDA. Payment Dates are stated in the confirmations. Regarding your item 4, you might wish to talk to Sara concerning the history of the payment date as 5th after determinable. The issue has been discussed often over the years between settlements and treasury. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Peter Keohane Sent by: Sharon Crawford 02/08/2001 03:11 PM

To: Peggy Hedstrom/CAL/ECT@ECT, Melinda Whalen/CAL/ECT@ECT, Laura E Scott/CAL/ECT@ECT, Cheryl Dawes/CAL/ECT@ECT, Mary Cook/HOU/ECT@ECT, Russell Diamond/HOU/ECT@ECT cc: Grant Oh/CAL/ECT@ECT Subject: Premstar Energy Canada Ltd. - Financial Transaction Nos. QF3405.1, QG7130.1, NY2665.1 and NY5271.1

Premstar Energy Canada has requested that the Payment Dates for the above noted financial transactions be amended to conform with physical settlement from "The fifth (5th) Business Day following the date on which the Floating Price is determinable" to "The twenty fifth (25th) day of the month following each Determination Period. Should the Payment Date fall on a weekend or statutory holiday, payment shall be made on the next Business Day."

My comments are as follows:

1. Russell, kindly confirm that there is no credit concern with extending the financial payment cycle;
2. Laura/Cheryl, kindly confirm that it is something that we have done in the past for financial transactions;
3. Melinda, assuming that Russell, Laura/Cheryl do not have concerns, please prepare an amendment to each of the Confirmation Letters as requested by Premstar, except that the final sentence of their requested amendment should read: "Should the Payment Date fall on a Saturday or statutory holiday other than a Monday, then payment shall be made on the immediately preceding Business Day, and if the Payment Date is a Sunday or statutory holiday falling on a Monday, then

payment shall be made on the immediately following Business Day.". This will make the Payment Dates consistent with physical gas settlement.

4. Melinda, if this amendment is not approved by Russell, Laura or Cheryl, I think that an amendment is nonetheless necessary to the Payment Date, as it is not the fifth (5th) Business Day following the date on which the Floating Price is determinable, but rather the fifth (5th) Business Day of the month following each Determination Period.

5. If possible, Premstar would like the amendment to be effective for the February, 2001 Determination Period.

6. Premstar would also like this provision to extend to any and all future Financial Swap transactions done with them.

Mary, is there any amendment required to the ISDA to effect such a permanent amendment, or is this a matter that can be dealt with in each subsequent confirmation letter?

Regards, Peter

Message 938 of 1118

Re: IPE Brent language	
Sender	sara.shackleton@enron.com
Recipients	['carol.clair@enron.com', 'Souad Mahmassani/Corp/Enron@ENRON=20']
File	shackleton-s/all_documents/2430.

Don't worry - I already spoke to Souad. SS

=09Carol St Clair =0906/16/2000 05:19 PM =09=09=20 =09=09 To: Sara Shackleton/HOU/ECT@ECT =09=09 cc:=20
=09=09 Subject: Re: IPE Brent language

Sara: This is Greek to me. Can you help? carol

----- Forwarded by Carol St Clair/HOU/ECT on 06/16/2000 05:18 PM -----

=09Souad Mahmassani =0906/16/2000 04:17 PM =09=09 =09=09 To: Carol St Clair/HOU/ECT@ECT =09=09 cc: Susan
Flynn/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT =09=09 Subject: Re: IPE Brent language

Carol, Please advise on the below matter. I currently have 5 Dated IPE Brent deal= s=20 where a confirm has not gone
out yet. =20 Thanks,=20

Susan Flynn@ECT 06/14/2000 05:17 PM To: Carol St Clair/HOU/ECT@ECT cc: Souad
Mahmassani/Corp/Enron@ENRON=20

Subject: Re: IPE Brent language

Carol - can you respond to this for Souad? Thank you!

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax:
713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 06/14/2000 05:06 PM -----

=09Souad Mahmassani =0906/14/2000 04:02 PM =09=09 =09=09 To: Susan Bailey/HOU/ECT@ECT =09=09 cc: Susan
Flynn/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT =09=09 Subject: Re: IPE Brent language

Susan=20 We need your help on this language. Please see the below blue paragraphs,= =20 particularly "Common
Pricing" clause. =20 London wants us to add this in our Dated vs IPE brent spreads. This allows= =20 the settlement of the
deal to be based on only good business days for both= =20 indices. =20 We got the permission from our (ENA) trader to
use the language in the bel= ow=20 ENA-ECTInternational deals, but we are not sure about all other Dated vs IP= E=20
brent deals. Our trader has agreed to this because he has no position, but= =20 ECTInternational is going to want this
clause in all similar spread deals. = =20 Please advise

=20 =09Enron North America Corp. =09 =09From: Larry Joe Hunter @ ECT 06/09/2000 09:30= AM =09

To: Sheetal Patel/HOU/ECT@ECT, Souad Mahmassani/Corp/Enron@ENRON cc: =20

Subject: Re: language? =20

Souad/Sheetal,

Do not revise these deals. Show this language to our Crude guys. We have= =20 had a problem recently with the below. The "Common Pricing" clause below= =20 would mean that when IPE is closed then the price Platt's publishes that da= y=20 would be void. Our guys do not like that ideology. Therefore, check with= =20 them before doing this. Also, we should get approval from legal before usi= ng=20 the below.

Joe

Sheetal Patel 06/09/2000 09:18 AM To: Souad Mahmassani/Corp/Enron@ENRON cc: Larry Joe Hunter/HOU/ECT@ECT=20 Subject: Re: language?

Hi Souad,

The following deal numbers need to be revised. They need to have the blue= =20 language below in the confirms. Let me know if you have any questions.

NJ1204 NJ1271 NJ1285 NJ1296

Thanks, Sheetal :) ----- Forwarded by Sheetal Patel/HOU/ECT on 06/09/2000 09:= 15=20 AM
----- From: Christopher Shapland on 06/09/2000 08:54 AM GDT To: Sheetal Patel/HOU/ECT@ECT cc:
=20 Subject: Re: language? =20

Sheetal

I'm sorry - here you are!

Floating Price:

The mean of the arithmetic average of the daily high and low quotations for= =20 Crude Oil Assessments published in the table entitled =01&Crude Price=20 Assessments: International US\$/BBL: Brent (DTD)=018 in the issue of Platt= =01,s=20 Crude Oil Marketwire ("Platts") that reports prices effective for such=20 Business Days during the Calculation Period minus the average of the daily= =20 settlement prices for the prompt month of the IPE Brent Futures Contract fo= r=20 each Commodity Business Day for the applicable Calculation Period, with the= =20 exception of the last Commodity Business Day of the prompt month on which d= ay=20 the settlement price for the Second Nearby Month will be used.=20

Common Pricing:

Pricing to be effective only on the days when both the IPE is open and Plat= ts=20 publish their dated Brent assessment.

Cheers

Chris :)

Sheetal Patel 08/06/2000 22:51 To: Christopher Shapland/LON/ECT@ECT cc: =20

Subject: language?

Hi Chris,

I have not received any language from you. Just wanted to make sure you=20 didnt forget. =20

Thanks, Sheetal :)

Message 939 of 1118

RE: Raptor

Sender	joel.ephross@enron.com
Recipients	['clement.abrams@enron.com', 'l.funk@enron.com', 'teresa.callahan@enron.com', 'maricela.trevino@enron.com', '...]
File	shackleton-s/inbox/218.

Teresa, I think Brenda has initiated the internal procedure for the purchase of several of these entities [those that are not already 100% Enron owned.] We have received the request from accounting to dissolve the entities on an expedited basis prior to the quarter close. If there are valid reasons for not doing so, we will simply need to communicate with the affected groups.

Needless to say, we need to hold off on filing until after we effect the purchases, and paid LJM for the member interests.

-----Original Message-----

From: Callahan, Teresa Sent: Friday, September 21, 2001 3:15 PM To: Trevino, Maricela Cc: Essig, Carol; Abrams, Clement; Ephross, Joel Subject: RE: Raptor Importance: High

Maricela: The procedure for dissolving entities is that you notify us - which you have done - we are required to send a notice of intent to dissolve to the business, legal, tax and accounting groups and give them time to respond - in the event someone has a reason that entities can not be dissolved (which appears to be unlikely) we normally give them 10 days to respond - but we can make that shorter if necessary. If we do not receive any objections to the dissolutions then Corp. Legal prepares the appropriate documentation (which I will ask to have expedited) - Clement Abrams reviews and initials - and I circulate documents for signature. Upon receipt of signed documents I file the Certificates of Cancellation with the Secretary of State of Delaware. I will send out the Notice of Intent to Dissolve/Cancel this entities today. If you or Joel have any questions regarding the above - please call me. Teresa

Carol/Clement: Just giving you a heads-up that we may need some rush cancellations of the below LLC's prepared. Carol I will touch base with you on Monday - to give you the information you may need to prepare documentation. Teresa

-----Original Message-----

From: Trevino, Maricela Sent: September 21, 2001 3:02 PM To: Callahan, Teresa; Bailey, Lillian Subject: FW: Raptor

Gina advised that I check with you for procedures on dissolving entities. As Joel indicates below, 6 entities need to be dissolved next week. What do I need to do for this to take effect.

-----Original Message-----

From: Ephross, Joel Sent: Friday, September 21, 2001 2:25 PM To: Trevino, Maricela; Shackleton, Sara; Cook, Mary; Mckean, George; Vasconcellos, Brent Cc: 'mspradling@velaw.com' Subject: Raptor

Maricela, attached is a draft of one of the Purchase Agreements in conection with the Raptor unwind. Similar agreements are envisioned for each of the other Raptor structures. The plan is to dissolve each Raptor entity [except for the entities involved in Raptor 3, namely Pronghorn I LLC and Porcupine, LLC] the day following the LJM buyout -- in other words, prior to the end of the quarter. [In the case of Raptor 3, since the note is monetized into Hawaii, this will need to remain in place until the take out of the note.] Please prepare the necessary documents for filing with the Secretary of State to dissolve the following entities:

Grizzly I LLC, Timberwolf, LLC Roadrunner I LLC Bobcat, LLC Harrier I LLC Talon, LLC

-----Original Message-----

From: Spradling, Mark [mailto:MSpradling@velaw.com] Sent: Friday, September 21, 2001 10:48 AM To: Mckean, George; Ephross, Joel; Vasconcellos, Brent Cc: Osterberg, Edward; McCulloch, Bruce C. Subject: Revised Purchase Agreement

Attached are the clean and redlined versions of the Purchase Agreement.

Mark R. Spradling
Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Houston, Texas 77002 713-758-2828
713-615-5545 (fax)

For more information about the full range of services offered by Vinson & Elkins, including our latest publications on legal topics, please visit our website at www.velaw.com. +++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

Message 940 of 1118

Re: IPE Brent language

Sender	sara.shackleton@enron.com
Recipients	['Souad Mahmassani/Corp/Enron@ENRON=20', 'souad.mahmassani@enron.com']
File	shackleton-s/all_documents/2428.

I made some changes to the language below assuming use for an ISDA. My only problem is that I am not certain that the IPE description is what we use (I'll defer to your verification) but it appears each monthly calculation incorporates pricing from three different delivery month contracts. Sara

P.S. I would like a copy of the Platt's marketwire if you can locate ----- Forwarded by Sara Shackleton/HOU/ECT on 06/19/2000 10:25 AM -----

Carol St Clair 06/16/2000 05:19 PM To: Sara Shackleton/HOU/ECT@ECT cc: 20
Subject: Re: IPE Brent language

Sara: This is Greek to me. Can you help? carol

----- Forwarded by Carol St Clair/HOU/ECT on 06/16/2000 05:18 PM -----

Souad Mahmassani 06/16/2000 04:17 PM To: Carol St Clair/HOU/ECT@ECT cc: Susan Flynn/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT Subject: Re: IPE Brent language

Carol, Please advise on the below matter. I currently have 5 Dated IPE Brent deals where a confirm has not gone out yet. Thanks,

Susan Flynn 06/14/2000 05:17 PM To: Carol St Clair/HOU/ECT@ECT cc: Souad Mahmassani/Corp/Enron@ENRON=20

Subject: Re: IPE Brent language

Carol - can you respond to this for Souad? Thank you!

Susan D. Flynn Enron North America Corp. 1400 Smith Street, EB3806 Houston, Texas 77002 Phone: 713-853-0975 Fax: 713-646-3490 ----- Forwarded by Susan Flynn/HOU/ECT on 06/14/2000 05:06 PM -----

Souad Mahmassani 06/14/2000 04:02 PM To: Susan Bailey/HOU/ECT@ECT cc: Susan Flynn/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT Subject: Re: IPE Brent language

We need your help on this language. Please see the below blue paragraphs, particularly "Common Pricing" clause. London wants us to add this in our Dated vs IPE Brent spreads. This allows the settlement of the deal to be based on only good business days for both indices. We got the permission from our (ENA) trader to use the language in the below ENA-ECT International deals, but we are not sure about all other Dated vs IPE Brent deals. Our trader has agreed to this because he has no position, but ECT International is going to want this clause in all similar spread deals. Please advise

=20 =09Enron North America Corp. =09 =09From: Larry Joe Hunter @ ECT 06/09/2000 09:30= AM =09

To: Sheetal Patel/HOU/ECT@ECT, Souad Mahmassani/Corp/Enron@ENRON cc: =20

Subject: Re: language? =20

Souad/Sheetal,

Do not revise these deals. Show this language to our Crude guys. We have= =20 had a problem recently with the below. The "Common Pricing" clause below= =20 would mean that when IPE is closed then the price Platt's publishes that da= y=20 would be void. Our guys do not like that ideology. Therefore, check with= =20 them before doing this. Also, we should get approval from legal before usi= ng=20 the below.

Joe

Sheetal Patel 06/09/2000 09:18 AM To: Souad Mahmassani/Corp/Enron@ENRON cc: Larry Joe Hunter/HOU/ECT@ECT=20 Subject: Re: language?

Hi Souad,

The following deal numbers need to be revised. They need to have the blue= =20 language below in the confirms. Let me know if you have any questions.

NJ1204 NJ1271 NJ1285 NJ1296

Thanks, Sheetal :) ----- Forwarded by Sheetal Patel/HOU/ECT on 06/09/2000 09:= 15=20 AM ----- From: Christopher Shapland on 06/09/2000 08:54 AM GDT To: Sheetal Patel/HOU/ECT@ECT cc: =20 Subject: Re: language? =20

Sheetal

I'm sorry - here you are!

Floating Price:

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Common Pricing:

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Cheers

Chris :)

Sheetal Patel 08/06/2000 22:51 To: Christopher Shapland/LON/ECT@ECT cc: =20

Subject: language?

Hi Chris,

I have not received any language from you. Just wanted to make sure you=20 didnt forget. =20

Thanks, Sheetal :)

Message 941 of 1118

[Fwd: eService Online Flight Purchase Confirmation]

Sender	sshackl@swbell.net
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10218.

Return-path: <accthelp@cooltravelassistant.com> Received: from mta1.rcsntx.swbell.net (mta1-pr.rcsntx.swbell.net) by sims1.rcsntx.swbell.net (Sun Internet Mail Server sims.3.5.2000.01.05.12.18.p9) with ESMTP id <0GB000478S1D9K@sims1.rcsntx.swbell.net> for sshackl@sims-ms-daemon; Fri, 30 Mar 2001 10:48:49 -0600 (CST) Received: from smtpout.expedia.com ([207.46.184.92]) by mta1.rcsntx.swbell.net (Sun Internet Mail Server sims.3.5.2000.01.05.12.18.p9) with ESMTP id <0GB0007WHRWDNK@mta1.rcsntx.swbell.net> for sshackl@Sims1.rcsntx.swbell.net; Fri, 30 Mar 2001 10:45:51 -0600 (CST) Received: from [207.46.184.156] ([207.46.184.156]) by smtpout.expedia.com with Microsoft SMTPSVC(5.5.1875.185.18); Fri, 30 Mar 2001 08:48:02 -0800 Date: Fri, 30 Mar 2001 08:48:03 -0800 From: accthelp@cooltravelassistant.com Subject: eService Online Flight Purchase Confirmation To: sshackl@swbell.net Message-id: <0bd190248161e31CPTRSMTP01@smtpout.expedia.com> X-Mozilla-Status2: 00000000

Thank you for booking your travel with Continental Airlines. Below is a copy of your flight information. Please refer to your complete online itinerary for the respective details on your hotel and car reservations.

For flight check-in and departure information, please contact your airline directly.

FLIGHT SUMMARY

-- E-Ticket Confirmed Itinerary Number: 1352208144 Round Trip Booking ID: 4EFSXN 1 adult USD 228.84 Taxes: USD 25.66

Total Cost: USD 254.50

Flight: from Houston, TX (IAH-Bush Intercontinental) to Washington, DC (DCA-Ronald Reagan National) Depart: 27-Apr-01 at 1:14 PM Arrive: 27-Apr-01 at 5:15 PM

Depart: Houston (IAH), 27-Apr-01 at 1:14 PM Arrive: Washington DC (DCA), 27-Apr-01 at 5:15 PM Flight: Continental 1448 Aircraft: Boeing MD80 Meal Service: Snack Duration: 3hr 1mn Distance: 1204 mi Economy/Coach Class

Flight: from Washington, DC (DCA-Ronald Reagan National) to Houston, TX (IAH-Bush Intercontinental) Depart: 29-Apr-01 at 8:50 AM Arrive: 29-Apr-01 at 11:01 AM

Depart: Washington DC (DCA), 29-Apr-01 at 8:50 AM Arrive: Houston (IAH), 29-Apr-01 at 11:01 AM Flight: Continental 1453 Aircraft: Boeing MD80 Meal Service: Breakfast Duration: 3hr 11mn Distance: 1204 mi Economy/Coach Class

If you have chosen the E-ticket option for your flight(s), a Travel Itinerary and Receipt will be delivered within 3 - 5 days via U.S. mail. If you have specified an alternate delivery location for your E-ticket, we will send a Travel Itinerary and Receipt to the address you specified, plus a Payment Receipt to the address that appears on your credit card statement.

When you arrive at the airport on the day of your flight please provide the ticket agent with your last name, flight number and photo identification to receive your boarding pass(es). For curbside check-in, present your passenger receipt or a printout of this message and photo ID.

E-Ticket customers can also use one of our automated eService Centers or ESC. Our ESCs allow customers to check-in and receive a boarding pass for all Continental U.S. domestic flights. ESCs are conveniently located near the ticket counter and gate areas in most of our U.S. cities. Baggage check is available at those ESCs located at the ticket counter.

If E-Tickets are not available for your flight(s), or you have elected to receive a paper ticket, we will send your ticket(s) and receipt(s) to the address you specified during the booking process. If your date of departure is:

-- within 3 days and E-Ticket is available for your flight(s), an E-Ticket will be issued. If E-Ticket is not available, you will have been prompted online to call Continental Airlines eService Online at 1 (888) 815-2665 to arrange the delivery of your tickets. -- between 3 and 7 business days from today, by 2nd day or overnight mail. -- more than 7 business days from today, by U.S. mail.

Photo identification will be required upon check-in, such as a Driver's License, Military ID, Passport or an official identification card issued by a government authority. For questions concerning this requirement, please contact Continental Airlines or visit our web site at <http://www.continental.com>.

A valid passport is required for international travel. Some countries also have visa and/or health requirements. Please check with the embassy of the country to which you are traveling, contact Continental Airlines or visit our web site at <http://www.continental.com>.

If you wish to change hotel and car reservations, use Continental Airlines eService Online at <http://www.continental.com>. To change airline flights or for en-route assistance, call 1 (888) 815-2665. Please have your itinerary number available for the agent.

We wish you a pleasant trip and look forward to serving you again soon.

Continental Airlines <http://www.continental.com/>

Message 942 of 1118

RE: Clorox

Sender	jarrod.cyprow@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/510.

What time and day works for you?

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 29, 2001 9:06 AM To: Cyprow, Jarrod Subject: RE: Clorox

bad day

-----Original Message-----

From: Cyprow, Jarrod Sent: Monday, October 29, 2001 8:51 AM To: Shackleton, Sara Subject: Clorox

Can you get together today to discuss Clorox and the meeting you had with credit last week?

I have a meeting today at 11:00 but other than that I am wide open, so just let me know what works for you.

Thanks,

Jarrod Cyprow Enron Forest Products 1400 Smith Houston, TX 77002 (713) 853-5700 jcyprow@enron.com

Message 943 of 1118

Update on Brokerage Agreements

Sender	cheryl.nelson@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com', 'theresa.brogan@enron.com', 'stephanie.panus@enron.co...']
File	shackleton-s/all_documents/10167.

Aneela, thank you again for attending our meeting today. My assistant, Keegan Farrell, is going to update the Brokerage Agreement list to reflect our report today and distribute it by the end of the day tomorrow.

The updated list will indicate that the agreements completed recently include:

ING Barrings Lehman Jeffries Salomon Frost (Deutsche Bank) Simmons Robertson Stephens Raymond James JP Morgan

Perhaps by the end of the week we will have Goldman Sachs International ready by Friday and Sanford Bernstein by Monday or Tuesday. I will keep you posted.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 944 of 1118

Goldman Sachs International

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com', 'keegan.farrell@enron.com']
File	shackleton-s/all_documents/10530.

Stephanie, from our end, we have executed a brokerage agreement between ECT and GSI. I am forwarding to you the two originals to send back. If possible, please put in the mail today since there is a huge rush on getting it back.

The fed ex envelope attached has the address. Send to Sarah Stowey's attention.

Please make sure that the accompanying documents are all there. I asked Keegan to get Kate Cole's signatures for the Consent Form so please follow up to get that form from Keegan.

I will fax a copy of the executed versions to Sarah in London as per her request.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 945 of 1118

Updated List

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10157.

Hey Sara, Keegan stopped by my office right before lunch to indicate that you had requested from her the updated brokerage list. But reminder that I have the updated list and have an updated version. Reminder that Keegan will not start updating the list until after today's meeting. When I talked to Aneela by phone today, I gave her an update and reminded her that she would get a formally updated list after today's meeting. Also, as I indicated yesterday, most of the agreements on the list -- the vast majority -- have been executed.

I stopped by your office a few times but you seem to have gone to lunch so I am leaving a version on your chair.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 946 of 1118

FW: ECT Investment Inc. 13F filing for March 31, 2002, due for

Sender	sara.shackleton@enron.com
Recipients	['h..george@enron.com']
File	shackleton-s/sent_items/288.

fyi

-----Original Message-----

From: Glover, Sheila Sent: Friday, January 11, 2002 1:52 PM To: Art Boos (E-mail) Cc: Lowry, Donna; Shackleton, Sara
Subject: ECT Investment Inc. 13F filing for March 31, 2002, due for submission on May 15, 2002

Art,

As discussed this morning, we would like you to prepare the Proof for our SEC 13F filing for March 31, 2002. When we approve, we will request that you hold until the required release date of May 15, 2002.

Please do not hesitate to call if questions.

You can bill ECT Investments Inc. for both the December and March filings now. Please send to my attention at Enron Corp, 1400 Smith Street, EB 3066d, Houston, TX 77002-7361.

Regards, Sheila Glover 713-853-3210

Message 947 of 1118

RE: Corporate Guaranty's Meeting

Sender	terri.greenlee@enron.com
Recipients	['tanya.rohauer@enron.com', 'kaye.ellis@enron.com', 'jeffrey.hodge@enron.com', 'russell.diamond@enron.com', 'm...']
File	shackleton-s/all_documents/10075.

I suppose it would help if you had the time of the meeting. It is 3:00-4:00 (2:00-3:00 for Peter Keohane). Sorry about that.

Terri Greenlee x33565 -----Original Message----- From: Greenlee, Terri Sent: Monday, March 26, 2001 8:35 AM To: Rohauer, Tanya; Diamond, Russell; Hodge, Jeffrey; Shackleton, Sara; Abrams, Clement; Keohane, Peter Cc: Gil, Mercy; Ellis, Kaye Subject: Corporate Guaranty's Meeting

Please mark your calendars...

Corporate Guaranty's Meeting Wednesday, March 28 EB 2868

Attendees: Clement Abrams Jeff Hodge Sara Shackleton Peter Keohane (Conference Call: 713.345.3324) Tanya Rohauer Russell Diamond

If you have any questions or conflicts, please contact me at x33565.

Thank you.

Terri Greenlee

Message 948 of 1118

(01-111) NYMEX ACCESSc Web Site UPDATE

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10099.

As of Monday, March 26, 2001, the NYMEX ACCESSc web site remains unavailable. We expect to have the web site available on Sunday, April 1st for trade date April 2nd. We will inform you if the web site becomes available earlier.

Please call the NYMEX ACCESSc Control Center (NACC) for all NYMEX ACCESSc price information at 1-800-438-8616.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(01-111\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-111))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 949 of 1118

Dell Battery Recall

Sender	clickathome@enron.com
Recipients	[clickathome@enron.com]
File	shackleton-s/all_documents/11146.

As you may have heard, Dell is voluntarily recalling certain batteries from some of the Dell Inspiron laptops. The recalled batteries were sold with the Inspiron 5000 series notebook computers, comprising both the Inspiron 5000 and the Inspiron 5000e models (please see the bottom of your computer for model ID). The systems and/or batteries were shipped to customers between January 7, 2000 and March 21, 2001.

As a result, you will have the opportunity to return your battery in exchange for a new one. We appreciate your patience through this process. Dell is committed to your continued service and is sincerely apologetic for the situation.

Please visit <http://support.dell.com/i5000battery/>, or call Dell at 866-220-3355 for further information.

Message 950 of 1118

enron credit inc. and others

Sender	cheryl.nelson@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10020.

Hey Sara, thanx for your words of encouragement. It is very important to me that you think that I am doing a good job, the positive feedback offsets all the frantic calls from the people downstairs.

The Authroized Traders List for Enron Credit Inc. is done -- we really just need to finalize the agreements with the brokers which i think can happen quickly since we are not trying to reinvent the wheel.

I just realized that my conference call with Anna is 10 New York time and then I have a conference call with Claude on his deal. So, I am going to get on your calendar tomorrow but it might not be until late morning, not first thing. At the meeting, I can let you know where we stand with the other tasks.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 951 of 1118

Cynet Deal: Urgent Signature Required

Sender	cheryl.nelson@enron.com
Recipients	['mary.nordstrom@enron.com', 'cassandra.schultz@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/10064.

Hi Mary,

It is my understanding that Cassandra is out on vacation until Monday.

Thank you for passing the Morgan Stanley brokerage account agreement and Officers and Authorized Trader List on to Cassandra to sign. As per the Deal Sheet attached, we need to open the account immediately so that Enron Investment Partners, Inc. can meet the Securities and Exchange Commission requirements and sell-dribble the stock on the planned date.

Enron Investment Partners has requested that we have the documents executed before they meet with Cynet late Monday morning.

If possible, please help me insure that Cassandra signs the documents first thing Monday morning. I will call to follow up. Thank you again for all of your help.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 952 of 1118

Re: Merchant Energy Deals

Sender	brent.hendry@enron.com
Recipients	['chris.foster@enron.com', 'sara.shackleton@enron.com', 'melissa.murphy@enron.com']
File	shackleton-s/all_documents/11066.

I would slightly modify the First and Second Floating Amount definitions as follows.

An amount equal to \$2,787,500 plus the sum of the products of (i) the First Floating Price for each day during the Calculation Period and (ii) the Notional Quantity per Calculation Period.

An amount equal to the sum of the products of (i) the Second Floating Price for each hour during the Calculation Period and (ii) the Notional Quantity per Calculation Period.

Let me know if you think this works. Regards, Brent

Melissa Ann Murphy@ECT 05/16/2001 04:41 PM

To: Chris H Foster/Enron@EnronXGate cc: Sara Shackleton/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron Subject: Merchant Energy Deals

I have attached the new drafts below:

Let me know if any further changes are needed.

Thanks, Melissa (713) 853-1886

Message 953 of 1118

(MS-21) SWITCH OF STATUS - COMMODITY EXCHANGE, INC.

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10461.

Member Services Notice No. MS-21 April 11, 2001

COMMODITY EXCHANGE, INC.

SWITCH OF STATUS

Please be advised that effective immediately, April 11, 2001, Henry Chandler (CHAN-7043) will switch his status from an option member to a licensee member. However, Mr. Chandler will remain a member guaranteed by Rosenthal Collins Group.

Inquiries regarding the above should be directed to the Member Services Department at (212) 299-2370.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(MS-21\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(MS-21))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 954 of 1118

Re: BEAR Guarantee letter

Sender	tom.doukas@enron.com
Recipients	['sara.shackleton@enron.com', 'cheryl.nelson@enron.com', 'david.wall@enron.com', 'richard.sage@enron.com']
File	shackleton-s/all_documents/10186.

That is wonderful. However my Prime Broker contact at Bear has still not been advised of the pending changes. It would seem to me it will still take time for Bear to make the adjustment to the account.

This will likely delay getting the margin relief we so desperately need.

Could you please confirm that they are ready to fully enact the agreement and lower the margin requirements as of tomorrow?

Thanks,

Tom

03/29/2001 02:53 PM Cheryl Nelson Cheryl Nelson Cheryl Nelson 03/29/2001 02:53 PM 03/29/2001 02:53 PM Sent by: Cheryl Nelson To: Tom Doukas/NA/Enron@ENRON cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Richard Sage/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT

Subject: Re: BEAR Guarantee letter

The Agreements will be ready first thing in the morning for signatures. Final edits are being completed by Bear Stearns; all the negotiating is done.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 955 of 1118

Survey	
Sender	customer.care@dynegy.com
Recipients	[]
File	shackleton-s/all_documents/10217.

Dear Dynegydirect Customer:

In our efforts to provide you the best on-line trading product in the industry, we would like to request your participation in the following survey. The survey contains questions regarding functionality, performance and customer service of Dynegydirect.

Please follow the steps below to complete the survey. The survey should take less than 5 minutes to complete.

1. Please click the link below to go to the survey. 2. Enter your Dynegydirect ID on the first page and click on START. We use your ID to ensure that only Dynegydirect customers participate in the survey. 3. Complete the survey and click on SUBMIT.

<http://www.dynegydirect.com/content/survey/satisfactionsurvey.htm>

Your participation in the survey is greatly appreciated by Dynegydirect. If you encounter any difficulty with the link or need assistance with the survey, please call e-Care at 1-877-396-3493.

Many thanks,

e-Care Center Dynegy, Inc.

Message 956 of 1118

(01-107) NYMEX ACCESSc Web Site UPDATE	
Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10037.

Notice No. 01-107 March 22, 2001

TO: All Exchange Members

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: NYMEX ACCESSc Web Site

As of Thursday, March 22, 2001, the NYMEX ACCESSc web site remains unavailable for the NYMEX ACCESSc session for trade date March 23rd.

Please call the NYMEX ACCESSc Control Center (NACC) for all NYMEX ACCESSc price information at 1-800-438-8616.

We will provide an update regarding the status of the web site on Friday, March 24th.

Should you have any questions or require any further information, please contact exchangeinfo@nymex.com

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(01-107\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-107))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 957 of 1118

(MS-25) NOTICE OF INTENTION TO TRANSFER MEMBERSHIP

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10847.

Member Services Notice No. MS-25 April 26, 2001

COMMODITY EXCHANGE, INC.

NOTICE OF INTENTION TO TRANSFER MEMBERSHIP

Notice of Intention to Transfer Membership has been posted on the bulletin board of the Exchange by:

Steven Furman (SONY-4787)

In connection therewith, notification of any claims against the aforementioned individual arising out of transactions executed on the Exchange up to the close of business on April 26, 2001, must be submitted to the Corporate Secretary's Office within ten (10) days.

Inquiries regarding the above should be directed to the Member Services Department at (212) 299-2370.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(MS-25\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(MS-25))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 958 of 1118

(MS-24) NOTICE OF INTENTION TO TRANSFER MEMBERSHIP

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10721.

Member Services Notice No. MS-24 April 23, 2001

COMMODITY EXCHANGE, INC.

NOTICE OF INTENTION TO TRANSFER MEMBERSHIP

Notice of Intention to Transfer Membership has been posted on the bulletin board of the Exchange by:

Joseph Augello (ELLO-7102)

In connection therewith, notification of any claims against the aforementioned individual arising out of transactions executed on the Exchange up to the close of business on April 23, 2001, must be submitted to the Corporate Secretary's Office within ten (10) days.

Inquiries regarding the above should be directed to the Member Services Department at (212) 299-2370.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(MS-24\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(MS-24))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 959 of 1118

RE: MLMG shares in Bears

Sender simon.hemsley@enron.com

Recipients ['sara.shackleton@enron.com']

File shackleton-s/inbox/131.

Ok

-----Original Message-----

From: Shackleton, Sara Sent: 20 December 2001 17:28 To: Hemsley, Simon Subject: RE: MLMG shares in Bears

Left a message earlier for Alex and have not heard back. Sara

-----Original Message-----

From: Hemsley, Simon Sent: Thursday, December 20, 2001 9:34 AM To: Shackleton, Sara Cc: Fiala, Markus; Cooper, Edmund; Seyfried, Bryan Subject: MLMG shares in Bears

Sara

We have a bid on the 91,674 MLMG shares held in account # 102-25786-USD-27 at Bear Stearns. . Paul Voigt from Jefferies (00 1 203 708 5800) showed us a bid of \$2.25 several days ago. The bid now may be \$1.50 only due to size of the holding & illiquidity in the name.

We've discussed selling this position with Mike Breughel & Alexander Sheers at Bear Stearns, and Alexander has asked for you to talk to Bears directly.

Can you call Alex & ask if one of the Bears prime brokers can contact Jefferies to execute the trade, and also to arrange for the proceeds to be paid back to our Citibank account in London.

Thanks Simon

Message 960 of 1118

(MS-33) REINSTATEMENT OF MEMBERSHIP PRIVILEGES

Sender exchangeinfo@nymex.com

Recipients ['sara.shackleton@enron.com']

File shackleton-s/all_documents/10964.

NYMEX Membership Services May 7, 2001 Notice # MS-33

REINSTATEMENT OF MEMBERSHIP PRIVILEGES

Please be advised that effective with the close of business, May 7, 2001, the following member(s) have reinstated their membership privileges:

David Boim (BOIM-5215) as a Lessee Member with a qualified trader guarantee= 20 provided by Spear, Leeds & Kellogg.

Members and Member Firms have (10) days from the date of this notice to advise the Corporate Secretary's Office of any claims in accordance with Rule 2.51.

Inquiries regarding the above should be addressed to the Member Services= =20 Department at 212-299-2379.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(MS-33)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 961 of 1118

RE: American Express credit

Sender	sara.shackleton@enron.com
Recipients	['charles.okechukwu@enron.com']
File	shackleton-s/sent_items/1.

11001

-----Original Message-----

From: Okechukwu, Charles Sent: Tuesday, November 27, 2001 11:17 AM To: Shackleton, Sara Subject: RE: American Express credit

Sara- Please provide me with the last four digits of your American Express Card as soon as possible. I will need this information in order trace on these charges. Thanks.

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, November 27, 2001 10:47 AM To: Okechukwu, Charles Subject: American Express credit

This is an email from SARA SHACKLETON <mailto:sara.shackleton@enron.com> for additional information. Please confirm it and send a response as soon as possible.

FirstName: SARA LastName: SHACKLETON Subject: American Express credit From: sara.shackleton@enron.com <mailto:sara.shackleton@enron.com> Phone: 713-853-5620

Comments/Questions: Two unsuccessful orders on 11/13/01 in the amounts of \$94.71 and \$83.35 were charged to my credit card and should be credited to the account. The online ordering problem was corrected the following day and my account was charged \$83.35.

Message 962 of 1118

FW: MLMG shares in Bears

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'mnierva@bear.com']
File	shackleton-s/inbox/165.

Mike, This is the updated status I had on the Position still in the Enron Credit Inc. account at Bear Stearns.

Thanks for the follow-up. Sheila

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, December 20, 2001 10:08 AM To: Glover, Sheila Subject: FW: MLMG shares in Bears

-----Original Message-----

From: Hemsley, Simon Sent: Thursday, December 20, 2001 9:34 AM To: Shackleton, Sara Cc: Fiala, Markus; Cooper, Edmund; Seyfried, Bryan Subject: MLMG shares in Bears

Sara

We have a bid on the 91,674 MLMG shares held in account # 102-25786-USD-27 at Bear Stearns. . Paul Voigt from Jefferies (00 1 203 708 5800) showed us a bid of \$2.25 several days ago. The bid now may be \$1.50 only due to size of the holding & illiquidity in the name.

We've discussed selling this position with Mike Breughel & Alexander Sheers at Bear Stearns, and Alexander has asked for you to talk to Bears directly.

Can you call Alex & ask if one of the Bears prime brokers can contact Jefferies to execute the trade, and also to arrange for the proceeds to be paid back to our Citibank account in London.

Thanks Simon

Message 963 of 1118

FW: Ken Wright Pinot Noir 2001 Futures SALE!

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/sent_items/706.

-----Original Message-----

From: "Avalon News" <Info@AvalonWine.com>@ENRON Sent: Thursday, November 08, 2001 3:50 PM To: Shackleton, Sara Subject: Ken Wright Pinot Noir 2001 Futures SALE!

KEN WRIGHT CELLARS 2001 PINOT NOIR FUTURES SAVE \$90 A CASE BY ORDERING BEFORE DECEMBER 2001
<http://www.oregongourmet.com/kenwrightcellars.html>

We are offering a special discount on orders of Ken Wright's 2001 Pinot noir futures through December 1, 2001. Save \$90 off our regular \$470/case price. Save now, the 2001 vintage was excellent, and Ken is very happy with the wines. He told me he is particularly excited about the Carter and Canary Hill Vineyard wines. Also note, a new vineyard site, Meredith Mitchell, available from Ken for the first time.

Read about the wines and order here: <http://www.oregongourmet.com/kenwrightcellars.html>

Feel free to email or call with questions!

Jean Yates Ann Crowley Avalon Northwest Wine and Gourmet 201 SW 2nd Street Corvallis OR 97333 541-752-7418
www.avalonwine.com www.oregongourmet.com

--- Click here to unsubscribe from future mailings...

<http://news.AvalonWine.com/leave?avalon-news&sara.shackleton@enron.com>

Message 964 of 1118

Update on ITG Ancillary Agreements/Quantex Installation

Sender	cheryl.nelson@enron.com
Recipients	['sheila.glover@enron.com', 'selenagonzalez@enron.com', 'sara.shackleton@enron.com', 'theresa.brogan@enron.co...']
File	shackleton-s/all_documents/10197.

Hi Selena,

I received a phone call today from ITG indicating that their business persons overlooked a step in the procedural/legal process of getting Quantex installed. As you know, I executed the NASDAQ, AMEX etc. agreements that accompanied the Quantex agreement itself. ITG indicated that they never faxed to us one more of these such agreements that has to get done and that they are going to fax it on Monday when the requisite operations person returns. Once this last statement is executed on Monday they will be able to stall the equipment.

They further indicated that, in practical terms, there overnight should not cause any further delay because they are just shipping the equipment today for installation on Monday or Tuesday. I will keep you posted.

Feel free to call me Monday afternoon for an update and to insure that we are getting this last agreement executed.

Julie, if I have any business-IT questions, I will call you on Monday. I anticipate that in light of all the other agreements, everything will be straight forward and I will get the agreement reviewed and executed pretty quickly.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 965 of 1118

Quicksilver/JEDI

Sender	donna.lowry@enron.com
Recipients	['theresa.brogan@enron.com', 'aneela.charania@enron.com']
File	shackleton-s/all_documents/4666.

To make sure we are all on the same page and talking to the same Bear Stearns people (I'm getting calls from Chicago and NY. I told NY to go away and talk to Chicago), please have all the paperwork to open the account and all the paperwork to transmit the actual shares flow through one person. I nominate Aneela Charania to take all pieces of paperwork and make sure they get to the right person. I spoke with Mike Bruegel at Bear (312) 663-3253 and I think he fully understands what we are trying to do, which is simply to sell these shares and move the cash out of the account once the trade is settled. I also told him the account will not stay open once the trade is done. Obviously this is what is causing BS heartburn since they want more business, and if it weren't for the fact that BS is the investment banker, we would not be using BS at all. We would go with the existing account with Morgan Stanley.

I really appreciate everyone's help with this, but to avoid any more confusion, please use Aneela as the point person for all document submission. Her phone number is 30951. If anyone has any concerns, please respond to the group. Thanks again. Donna

Message 966 of 1118

Enron/Alberta

Sender	bpechersky@velaw.com
Recipients	['dkeyes@velaw.com', 'peter.keohane@enron.com', 'greg.johnston@enron.com', 'eshube@velaw.com', 'clement.abrams...']
File	shackleton-s/notes_inbox/970.

Attached are drafts of the Vinson & Elkins legal opinions for the two swap transactions pursuant to which Enron Corp. will be issuing guarantees. Other than conforming changes to reflect the particular swap transaction at issue, the opinions are the same.

Clement, I will also fax to you shortly some comments that we have on the guaranty. I only made the comments on one of the guaranty agreements, although the comments apply equally to both.

Please do not hesitate to contact me if you have any questions.

Bryan J. Pechersky Vinson & Elkins L.L.P. 1325 Avenue of the Americas 17th Floor New York, NY 10019 (917) 206-8105

THE INFORMATION IN THIS E-MAIL MAY BE CONFIDENTIAL AND/OR PRIVILEGED. IF YOU ARE NOT THE INTENDED RECIPIENT, YOU ARE NOT AUTHORIZED TO REVIEW, DISSEMINATE OR COPY THIS E-MAIL OR ANY ATTACHMENTS HERETO. PLEASE NOTIFY THE SENDER BY RETURN E-MAIL IF YOU HAVE RECEIVED THIS E-MAIL IN ERROR AND DELETE THIS E-MAIL FROM YOUR SYSTEM.

<<Enron/Alberta Swap VE Legal Opinion (Bow River).DOC>> <<Enron/Alberta Swap VE Legal Opinion (Royal Bank of Canada).DOC>>

- Alberta Swap VE Legal Opinion (Bow River).DOC - Alberta Swap VE Legal Opinion (Royal Bank of Canada).DOC

Message 967 of 1118

Re: Prime Broker Accounts

Sender	cheryl.nelson@enron.com
Recipients	['tom.doukas@enron.com', 'sara.shackleton@enron.com', 'david.wall@enron.com', 'richard.sage@enron.com']
File	shackleton-s/all_documents/10863.

Hi Tom, at your request the execution of these agreements have been on hold. Most of the leg work has been done. I completed the negotiations on the agreement so moving forward is a matter of getting a document ready for signatures and getting it signed, having lawyers on both side proof read it and getting the agreement and accompanying documents (which are complete) executed. This process, which is mainly administrative, could take two or three days if I focused on as a priority to make sure it gets done.

Let me know how you want to proceed.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Tom Doukas/ENRON@enronXgate 04/26/2001 05:16 PM

To: Sara Shackleton/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron cc: Sheila Glover/HOU/ECT@ECT, David A Wall/Risk Mgmt/LON/ECT@ECT, Richard Sage/LON/ECT@ECT Subject: Prime Broker Accounts

Sara & Cheryl,

Could you please provide a status on where we stand on the transfer of the Credit book from ENA/ECT to ECI at Goldman and Morgan.

I had previously asked you to hold up on Morgan until the Bear issue was resolved. I am hoping we do not have to much effort ahead of us to move these two accounts over.

Thanks,

Tom

Message 968 of 1118

The Power of Who - expertfinder

Sender	enron.expertfinder@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10597.

The Enron Corporate Policy Committee introduces Expertfinder.

Expertfinder allows you to locate people within the Enron community by organization structure, skills, reporting relationships, languages, school attended, and prior work experience.

Expertfinder is a secured HR application that is available upon completion of your Certificate of Compliance. Expertfinder can be accessed on the Enron Intranet by typing the following URL at the Internet Explorer command line and Log In using the HRGIS Id provided below:

<https://hrglobal.enron.com>

Your HRGIS Id: 90009692 Your Password: Date of Birth (Format YYYYMMDD) *Current users of the Global Launch Zone will maintain the same password.

If you don't remember your password, click on Forgot ID/Password below the Log In button. Should you have any questions regarding access or data issues in Expertfinder contact the HRGIM Line (HR Global Information Management) at 713-853-5666.

Expertfinder is only as good as the data provided. Does your personal data need updating? Go to eHROnline.enron.com or home.enron.co.uk/hrol_caller.htm (Enron Europe Limited only) to update your data today. Or, contact your HR Generalist for business unit related updates.

Message 969 of 1118

Re: Enron Credit Inc. ("ECI")	
Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'tom.doukas@enron.com']
File	shackleton-s/all_documents/10117.

Hi Sara & Tom,

Sara, I stopped by your office to discuss ECI but you are in a meeting.

As per our discussion yesterday, I had a scheduled conference call with Anna Meytina of Bear Stearns to discuss ECI. (Sara, the call was not at 1:30 but rather took place before noon today). In light of our calls with Anna, here is where we stand:

1. Brokerage Agreement: I asked her how we are doing on getting the final draft of the Agreement to me. She indicated that she was trying to send a redlined version today as promised. She still has get approval on the arbitration provision and limited liability provision from her Managing Director. this is what is manily holding up the process, not any lack of diligence on our part.
2. Assignment: Anna and I discussed my comments to the Assignment Agreement -- she agreed to make all of the changes and to do so by the end of the day.
3. Guaranty: Anna and I have a scheduled conference call to discuss my comments to the redlined guaranty she sent back to me.

Anna represented that, in light of the hold-up from her Managing Director, it was unlikely that she could get any agreement signed by the end of the day today but agreed that Wednesday was a realistic possibility.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

*Message 970 of 1118***(MS-38) Reinstatement of Trading Privileges**

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com']
File	shackleton-s/all_documents/11371.

Member Services Notice No. 01-38 June 1, 2001

COMMODITY EXCHANGE, INC.

REINSTATEMENT OF TRADING PRIVILEGES

Please be advised that effective immediately, June 1, 2001, Michael Carboni (OSCR-7512) will reinstate his trading privileges as a member guaranteed by FC Stone, LLC.

SWITCH OF GUARANTEE

Please be advised that effective immediately, June 1, 2001, Thomas Stuart (STEW-7972) will no longer be guaranteed by Spear, Leeds & Kellogg. However, Mr. Stuart will remain a member guaranteed by Pioneer Futures, Inc.

In connection therewith, notification of any claims against the aforementioned individual arising out of transactions executed on the Exchange up to the close of business on June 1, 2001, must be submitted to the Corporate Secretary's Office within ten (10) days.

Inquiries regarding the above should be directed to the Member Services Department at (212) 299-2370.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(MS-38\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(MS-38))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

*Message 971 of 1118***Re: Credit Set-up for EnSight Resources**

Sender	sara.shackleton@enron.com
Recipients	['mark.smith@enron.com']
File	shackleton-s/sent/1255.

Mark: Nice to meet you too! When Credit sends us the creditworksheet, we can generate an ISDA master to send to the counterparty. Sara

From: Mark Smith @ ENRON 04/20/2000 09:51 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Credit Set-up for EnSight Resources

Sara, I just joined Enron about 1 month ago and am just getting use to the process. Could you start the ISDA process with EnSight Resources. The address and phone number and contact information are below in the John Suttle memo. Thank you very much.

Mark ----- Forwarded by Mark Smith/Corp/Enron on 04/20/2000 09:49 AM -----

Enron North America Corp.

From: Mark Smith 04/07/2000 02:26 PM

To: John Suttle/HOU/ECT@ECT cc: Jennifer Fraser/HOU/ECT@ECT

Subject: Credit Set-up for EnSight Resources

John, Could you set up EnSight Resources an account with Enron, so they can transact some NYMEX NG fixed price swaps with us in the near future. Karen Anthony is the CFO and she can provide you any financials that you need to get them set-up.

The address is:

Karen Anthony CFO EnSight Resources, LLC 333 Texas St, Suite 1175 Shreveport, LA 71101 318-429-2226

Thanks for your help in this matter.

Mark Smith

Message 972 of 1118

Statex Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['Ann' <AWALKER@coxsmith.com>, 'susan.flynn@enron.com', 'Walker']
File	shackleton-s/sent/1094.

Please follow up. Also, we need to follow up with Chuck Gilbert (counsel for CP) for docs. Thanks. Sara -----
Forwarded by Sara Shackleton/HOU/ECT on 03/21/2000 04:46 PM -----

"Gallaway, Ray" <REGALLAW@coxsmith.com> on 03/21/2000 04:00:01 PM To: "sshackl@enron.com"
<sshackl@enron.com> cc: "Walker, Ann" <AWALKER@coxsmith.com> Subject: Statex Master Agreement

Sara:

Please send me a fully executed copy of the Master Agreement dated March 21, 2000, between Statex Petroleum I, L.P. and Enron North America Corp. for my files.

I enjoyed working with you on this matter and appreciate all of your help on such short notice to complete the agreement.

Raymond Gallaway, Jr. COX & SMITH INCORPORATED 112 E. Pecan, Suite 1800 San Antonio, Texas 78205 (210) 554-5314 regallaw@coxsmith.com www.coxsmith.com

THIS ELECTRONIC MAIL MAY CONTAIN INFORMATION THAT IS SUBJECT TO THE ATTORNEY-CLIENT PRIVILEGE, THE ATTORNEY WORK PRODUCT PRIVILEGE OR BE OTHERWISE CONFIDENTIAL AND EXEMPT FROM DISCLOSURE UNDER APPLICABLE LAW. ANY DISSEMINATION, DISTRIBUTION, COPYING OR USE OF THIS E-MAIL BY OR TO ANYONE OTHER THAN THE DESIGNATED AND INTENDED RECIPIENT(S) IS UNAUTHORIZED AND STRICTLY PROHIBITED. IF YOU HAVE RECEIVED THIS MESSAGE IN ERROR, PLEASE DELETE IT FROM YOUR SYSTEM IMMEDIATELY.

Message 973 of 1118

Procter & Gamble

Sender	sara.shackleton@enron.com
Recipients	['robert.bruce@enron.com']
File	shackleton-s/sent/2367.

Bob: I'm only sending this message so that you can see all correspondence. This doc will be useful to you. ----- Forwarded by Sara Shackleton/HOU/ECT on 11/15/2000 01:20 PM -----

Ed Quinn 10/16/2000 11:39 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Procter & Gamble

Sara,

P&G (largest buyer of pulp and linerboard in orth America) has received Board approval to financially hedge pulp using OTCs instruments. They want to put an ISDA in place with Enron. I will be the contact for the business group.

P&G's lawyer, Libby Rutherford, has requested that we start where we left off. I told their business representatives that we preferred starting from scratch but that you would contact her directly to discuss. Her number is 513-983-2513 and e-mail is rutherford.em@pg.com.

Susan Bailey compared the 1999 negotiated document to our latest schedule for our review - see below. Please give me a call to discuss when you get a chance ext 30418. Thanks.

Ed Quinn

Ed,

Attached is blacklined version comparing ENA's latest version (dated 8/9/2000), which was sent to Roger Larsh @ P&G and the version dated 5/25/99. The biggest difference between the two versions is that the 8/9/2000 version includes (a) ENA's newest changes, and (b) the inclusion of a credit support annex.

Hope this helps.

Message 974 of 1118

Re: Update List	
Sender	aneela.charania@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com', 'theresa.brogan@enron.com', 'cheryl.nelson@enron.com']...
File	shackleton-s/all_documents/10112.

Cheryl,

Please add the RBC Dominion Securities Corp. (ECTI) and Merrill Lynch (ENA) to our list. Also, please send the status updates in electronic format.

Thanks for all your help!

Aneela :-)

03/22/2001 12:58 PM Cheryl Nelson@ENRON Cheryl Nelson@ENRON Cheryl Nelson@ENRON 03/22/2001 12:58 PM
03/22/2001 12:58 PM Sent by: Cheryl Nelson@ENRON To: Aneela Charania/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT, Selena Gonzalez/HOU/ECT@ECT Subject: Update List

Hi Aneela,

I have agreed to have my assistant work with me to send updates for the Legal Agreement Status memo to you. I have gotten several of the Agreements on the list in "executed" or "sent for execution" status and you will get an updated memo next week confirming this.

In cleaning up our lotus notes this week, I noticed that several agreements were not on your list but remain unexecuted. Can you let me know whether or not they remain a priority or interest? If so, let me know so I can proceed on them during the first week in April (at which time I predict ALL of the other Agreements will be executed).

They include:

RBC Dominion Securities Corp. (ECTI)

Sakura Dellsher, Inc. (not sure which Enron company)

Societe General (ENA)

BuySideDirect (ENA)

Merrill Lynch (ENA)

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 975 of 1118

(MS-23) NOTICE OF INTENTION TO TRANSFER

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10396.

NYMEX Membership Services April 6, 2001 Notice # MS-23

NOTICE OF INTENTION TO TRANSFER

Please be advised that effective with the close of business, April 6, 2001, the following member(s) have given notice of intention to transfer their sole Membership within the Exchange:

Albert H. Helmig (ALBT-4536)

NOTICE OF INTENTION TO LEASE ORIGINAL MEMBERSHIP

Please be advised that effective with the close of business, April 6, 2001, the following member(s) have given notice of intention to lease their sole membership privileges:

Gerard Cunningham (JERR-4455)

SWITCH OF LESSOR

Please be advised that effective with the close of business, April 6, 2001, the following member(s) will switch their lessor within the Exchange:

Thomas Ryan (NUTZ-6125)

Members and Member Firms have (10) days from the date of this notice to advise the Corporate Secretary's Office of any claims in accordance with Rule 2.51.

Inquiries regarding the above should be addressed to the Member Services Department (212) 299-2379.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(MS-23)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 976 of 1118

(MS-42) Switch of Lessor

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11377.

NYMEX Membership Services June 1, 2001 Notice # 00-042

SWITCH OF LESSOR

Please be advised that effective with the close of business, June 1, 2001, the following member(s) will switch their lessor within the Exchange:

Brian O'Neil (ADB-508)

SWITCH OF STATUS

Please be advised that effective with the close of business, June 1, 2001, the following member(s) will switch their status within the Exchange:

John Ketcham (JKAY-4667) from a Licensee Member to a Full Member with a qualified trader guarantee provided by Man International, Inc.

NOTICE OF INTENTION TO TRANSFER

Please be advised that effective with the close of business, June 1, 2001, the following member(s) have given notice of intention to transfer their membership privileges:

Oliver Alma (OLVR-3260)

Members and Member Firms have (10) days from the date of this notice to advise the Corporate Secretary's Office of any claims in accordance with Rule 2.51.

Inquiries regarding the above should be addressed to the Member Services Department at 212-299-2379.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(MS-42)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 977 of 1118

Statex - Enron Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['susan.flynn@enron.com', 'Ann', 'Walker', 'cgilbert@jw.com'] <cgilbert@jw.com>
File	shackleton-s/all_documents/1489.

This is the "format" for the exhibit to change payment accounts from the CP to the bank ----- Forwarded by Sara Shackleton/HOU/ECT on 03/20/2000 02:23 PM -----

"Gallaway, Ray" <REGALLAW@coxsmith.com> on 03/20/2000 02:14:10 PM To: "sshackl@enron.com" <sshackl@enron.com> cc: "cgilbert@jw.com" <cgilbert@jw.com>, "Walker, Ann" <AWALKER@coxsmith.com> Subject: Statex - Enron Master Agreement

Sara:

Attached is a form of Letter in Lieu that is being used in connection with the Statex loan transaction. You may wish to use the basic form as an attachment to the Master Agreement to allow International Bank of Commerce ("IBC") to request assignment/payment of any proceeds payable to Statex under any hedge contracts, directly to IBC. Please call if you have any questions.

Raymond Gallaway, Jr. COX & SMITH INCORPORATED 112 E. Pecan, Suite 1800 San Antonio, Texas 78205 (210) 554-5314 regallaw@coxsmith.com www.coxsmith.com

THIS ELECTRONIC MAIL MAY CONTAIN INFORMATION THAT IS SUBJECT TO THE ATTORNEY-CLIENT PRIVILEGE, THE ATTORNEY WORK PRODUCT PRIVILEGE OR BE OTHERWISE CONFIDENTIAL AND EXEMPT FROM DISCLOSURE UNDER APPLICABLE LAW. ANY DISSEMINATION, DISTRIBUTION, COPYING OR USE OF THIS E-MAIL BY OR TO ANYONE OTHER THAN THE DESIGNATED AND INTENDED RECIPIENT(S) IS UNAUTHORIZED AND STRICTLY PROHIBITED. IF YOU HAVE RECEIVED THIS MESSAGE IN ERROR, PLEASE DELETE IT FROM YOUR SYSTEM IMMEDIATELY.

<<LETTER IN LIEU - STATEX.doc>>

- LETTER IN LIEU - STATEX.doc

Message 978 of 1118

(01-139) Revised Policy / Exchange Provided Order Tickets

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10786.

Notice No. 01-139 April 25, 2001

TO: All COMEX Division Brokers

FROM: Michael Campanelli

RE: Revised Policy / Exchange Provided Order Tickets

Please be advised that at this time NYMEX will continue to provide order tickets to the COMEX division members. The Exchange will not guarantee inventory on form types (futures/options, 3-part/4-part); it will only guarantee a supply of order tickets. As the current inventory is depleted it is permissible to interchange remaining forms in stock. There are no restrictions concerning the recordation of option orders on future order tickets or future orders being recorded on option order tickets; provided all relevant order information is recorded. Should the current inventory become totally depleted, the Exchange will only provide a 3-part generic order ticket (no 4-part tickets and no future/option specific tickets will be provided).

The Exchange will provide adequate notice regarding the discontinuance of providing order tickets, so that members and firms currently using these order tickets have sufficient time to purchase their own.

Should you have any questions concerning this matter, please contact me at (212) 299-2072.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(01-139\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-139))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 979 of 1118

Brokerage Accounts

Sender	cassandra.schultz@enron.com
Recipients	['sheila.glover@enron.com', 'mary.nordstrom@enron.com', 'cheryl.nelson@enron.com', 'sara.shackleton@enron.com']...
File	shackleton-s/all_documents/10335.

Cheryl - you're doing a great job of trying to keep us in the loop - Mary's going to be working with you on the administration of this brokerage account process from a RAC perspective, so going forward, would you please copy her on all correspondence you'd normally include me in? She's the one who will actually be reviewing and discussing related issues with you and Sheila.

As you and I have discussed in the past, but haven't had time to tackle, I asked Mary to facilitate a meeting with you both to talk about the account opening process, and to formulate our game plan on reviewing existing brokerage accounts (is each specific account still needed, is our documentation re: authorized traders and products accurate and up to date, etc.).

Thanks, Cassandra. -----Original Message----- From: Nelson, Cheryl Sent: Wednesday, April 04, 2001 5:53 PM To: Glover, Sheila; Charania, Aneela; Brogan, Theresa; Shackleton, Sara; Panus, Stephanie Cc: Schultz, Cassandra Subject: Sanford Bernstein Electronic Agreement

We are now ready to execute a prime broker account agreement with SB for ENA. This is a prerequisite for opening the electronic agreement. Stephanie, I will forward the agreement to you for signatures first thing in the morning.

Sheila, can you forward to me a brief explanation as to why the electronic agreement is important. Cassandra Schultz reminded me this week that these are critical in order for her to authorize the opening of the account.

The electronic agreement should be ready for execution next week.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 980 of 1118

(01-170) Special Meeting of Stockholders - Wednesday, May 23, 2001

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2189.

Notice No.: 01-170 May 17, 2001

To: All Stockholders of NYMEX Holdings, Inc.

From: Donna M. Talamo, Director Office of the Corporate Secretary

Re: Special Meeting of Stockholders - Wednesday, May 23, 2001

Please be reminded that a Special Meeting of Stockholders of NYMEX Holdings, Inc. will be held on Wednesday, May 23, 2001 at 4:00 p.m. (New York Time), at One North End Avenue, Boardroom 1010, New York, New York 10282-1101 for the following purposes:

1. To elect three (3) Equity Holder directors to terms that each expire in the years 2004, 2003 and 2002; and
2. To elect one (1) Futures Commission Merchant director which term ends in the year 2003, and one (1) Public director which term ends in the year 2002.

The foregoing items of business are more fully described in the Proxy Statement that was sent to you on May 3, 2001.

All Stockholders are eligible to and are encouraged to vote. If you are unable to attend the Special Meeting, you are urged to mark, sign, date and return the proxy card and proxy in accordance with the voting instructions contained within the Proxy Statement.

If you have any questions in connection with the aforementioned, please contact me at (212) 299-2372.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(01-170)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 981 of 1118

Re: Contractor Service Agreement

Sender	cheryl.nelson@enron.com
Recipients	['sheila.glover@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/11390.

Sheila, attached is a revised version of the agreement -- most of the changes reflect the revisions that we added to the final version of Pystech. Two quick additional issues to doublecheck:

1. I assume that based on the short term of the agreement, you did not want to include the right to terminate the agreement at any time? (the draft does not so say -- so let me know if you want to add this).
2. The Agreement indicates that payment is \$30,000 a month but the term is for 10 weeks or so. So, do you want me to add a statement that this amount will be pro-rated? I ASSUMED SO - SEE EDITS. Do we mean \$30,000 every 30 days on a pro-rated basis or will he get the full sum for the "month" of August?

In case these are non-issues, here is the revised version. Please review and let me know if it is okay and I will send an initialed version down to you.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Sheila Glover@ECT 06/01/2001 09:18 AM

To: Cheryl Nelson/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT cc: Subject: Contractor Service Agreement

----- Forwarded by Sheila Glover/HOU/ECT on 06/01/2001 09:15

AM -----

From: Sheila Glover 06/01/2001 09:15 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Contractor Service Agreement

Cheryl, Please do a legal review of this Contractor Service Contract. The agreement is based on the Psytech agreement which had been previously reviewed by legal. If possible, I would like to get this turned around today. Thanks. Sheila

Message 982 of 1118

(01-169) Declaring the FTSE Eurotop 100c Options Contract Dormant

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/11053.

Notice No.: 01-169 May 16, 2001

TO: ALL COMEX DIVISION MEMBERS

FROM: M. Dawn Lowe Vice President and Assistant Corporate Secretary

Re: Declaring the FTSE Eurotop 100c Options Contract Dormant

At the request of the COMEX Governors Committee, the NYMEX Board of Directors has voted to declare the FTSE Eurotop 100c Options Contract dormant. There has been no trading in this contract for more than one year; and there is no expectation that there will be interest in it in the future.

The FTSE Eurotop 100c Options Contract Terms and Conditions affect a Special Matter under the terms of the COMEX By-Laws. Accordingly, COMEX Division Members have ten (10) days to submit a petition signed by owners of at least 155 COMEX Division Memberships requesting a vote for the COMEX Division Members to disapprove the amendments, pursuant to the procedures set forth under COMEX By-Law 205(D). Following this 10-day period, if a petition is not received, or if the amendment is not disapproved, the Proposed Contract Terms and Conditions and the Rule Amendments will be submitted to the Commodity Futures Trading Commission (CFTC).

If you have any questions, please contact Jay Gottlieb at 212-299-2607.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D\(01-169\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-169))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 983 of 1118

RE: FW: Master purchase/sale agreement

Sender kim.ward@enron.com

Recipients ['sara.shackleton@enron.com', 'marussel@srpnet.com']

File shackleton-s/notes_inbox/2593.

Sara,

Salt River Project has attached their Schedule to the Master and their Credit support Annex to this email. I know we have sent them our docs in the past so I don't know where this will take us. It doesn't look like they have entered the pertinent credit information into the annex. Are they expecting us to do this? Please let me know what you think. The guy that sent this to me is Mark Russell and his email address is below.

Thanks,

Kim

----- Forwarded by Kim Ward/HOU/ECT on 04/05/2001 06:53 PM

marussel@srpnet.com on 04/05/2001 03:28:19 PM To: <Kim.Ward@enron.com> cc: <marussel@srpnet.com> Subject: RE: FW: Master purchase/sale agreement

I have attached our standard CSA and Schedule. Thanks.

-----Original Message-----

From: Kim.Ward@enron.com [mailto:Kim.Ward@enron.com] Sent: Thursday, April 05, 2001 9:13 AM To: marussel@srpnet.com Subject: Re: FW: Master purchase/sale agreement

Mark,

The best person to talk to about the ISDA is me. I discussed an ISDA with Tim Roberts when I was in the Salt River offices on March 23rd. A draft ISDA was sent to Bill Abraham on November 17, 1999. I requested for a new legal review on 3/28/01. Let me know if you need a new draft and I can send you or Tim a copy. My number is 713-853-0685.

Thanks for your inquiry -

Kim Ward

marussel@srpnet.com on 04/05/2001 08:20:15 AM

To: <Kim.Ward@enron.com> cc: <marussel@srpnet.com> Subject: FW: Master purchase/sale agreement

I have been trying to get an ISDA going with Enron for several months. Who is the best contact to call?

-----Original Message-----

- 01101.sample credit annex isda.doc - 011101.sample isda schedule.doc

Message 984 of 1118

FIA Boca Announcements/Reservations

Sender	info@futuresindustry.org
Recipients	[info@futuresindustry.org]
File	shackleton-s/deleted_items/529.

FIA Boca is only 12 days away! We would like to thank all of the sponsors and exhibitors for their support of this event. For a complete listing, and the most up-to-date program, visit www.futuresindustry.org <<http://www.futuresindustry.org>>. It's not too soon to call ahead and make reservations for dinner at one of the many fine Resort restaurants including the new Chauncey's located on the 2nd floor of the new golf clubhouse; 27 Ocean Blue at the Top of the Tower; Lucca's; or Nick's Fishmarket at the Beach Club. The Resort recently completed Spa Palazzo offering a full line of spa activities including facials, massages, balneotherapy, body wraps, and more. And remember, you can sign up on-site for the Golf and Tennis tournaments that will be held on Friday afternoon. Phone (561) 447-3000 for all reservations. And we can now confirm that the legendary Tony Bennett will be the featured entertainer at the Eurex Late Night on Thursday evening at 10:00 p.m. Golf information can be found at: <http://www.bocaresort.com/leisure/newsletter/Clubhouse_teaser.htm> Spa information can be found at: <<http://www.spapalazzo.com/>> Please e-mail Julie Greenway jgreenway@futuresindustry.org <<mailto:jgreenway@futuresindustry.org>> or Marsha Saunders msaunders@futuresindustry.org <<mailto:msaunders@futuresindustry.org>> if you have questions about this conference. We look forward to seeing you in Boca Raton. If you do not wish to receive information from us in the future, you may opt out by notifying us via e-mail at or optout@futuresindustry.org <<mailto:optout@futuresindustry.org>> by writing us at 2001 Pennsylvania Avenue N.W., Suite 600, Washington, DC 20006.

Message 985 of 1118

(01-120) Proposed Amendments

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10392.

Notice No. 01-120 April 6, 2001

TO: ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS

following the NYMEX ACCESS trading session during which the negligent action allegedly occurred.

If you have any questions concerning this change, please contact Rick Taibi, Assistant Director, NYMEX ACCESS Operations, at (212) 299-2677.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-141)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 987 of 1118

FW: Two New Executing Brokers

Sender	sheila.glover@enron.com
Recipients	['marie.heard@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/inbox/293.

SS and MH. See addition of Deutsche below. thanks.sg

-----Original Message-----

From: Glover, Sheila Sent: Monday, October 01, 2001 9:13 AM To: Shackleton, Sara; Heard, Marie Subject: FW: Two New Executing Brokers

Sara and Marie, How is Monument coming along? They use Credit Lyonnais as their back office. We will use MSDW and GSI for Futures and Options. We will use Carr [Glover, Sheila] and Deutsche for Futures.

I had given you a contact of Jackie Tokley, 207-3385740. Thanks, Sheila

-----Original Message-----

From: Glover, Sheila Sent: Wednesday, September 05, 2001 4:05 PM To: Lowry, Donna; Schultz, Cassandra; Shackleton, Sara; Bradford, William S. Cc: Heard, Marie; Hickerson, Gary; Towarek, Michael Subject: FW: Two New Executing Brokers

We are expanding our trading in the European Market.

We will be forwarding to legal the documentation related to these two new Executing Brokers which will be utilized for order flow and research.

I will send to legal the required documentation and legal contacts.

Sheila

-----Original Message-----

From: Hopley, Kimberly Sent: Wednesday, September 05, 2001 7:27 AM To: Glover, Sheila Cc: Brogan, Theresa T.; Charania, Aneela Subject: Two New Executing Brokers

Sheila,

Mike would like the following two Institutions set up as executing brokers for our foreign business :

Monument Derivatives Ltd 11 Old Jewry London EC2R 8DU Contacts : Andy Ash or Robert Green (0207 338 0825)

Metzler : Grosse Gallustrasse 18 60311 Frankfurt/Main Germany Contacts : Daniela Tresin (0039 02 777 1552)

I have a copy of Monument's "Terms of Business Agreement" which asks for a signature, do you want me to forward this document to you?

Please let me know if you would like me to do anything from this side.

Many thanks Kimberly Hopley Financial Trading Tel : +44(0)20 7783 2644 Fax : +44(0)20 7783 1913 Email : kimberly.hopley@enron.com

Message 988 of 1118

FW: Avalon Northwest Wine and Gourmet- New Releases October 18

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/deleted_items/84.

-----Original Message-----

From: "Avalon News" <Info@AvalonWine.com>@ENRON Sent: Wednesday, October 17, 2001 3:07 PM To: Shackleton, Sara Subject: Avalon Northwest Wine and Gourmet- New Releases October 18

AVALON NORTHWEST WINE AND GOURMET NEW RELEASES OCTOBER 18, 2001

This week: --- Cole Danehower's Oregon harvest update
<http://www.avalonwine.com/coledannehauerCURRENTcolumn.htm>

--- Best value and sale wines- Syrah, Cab, closeouts <http://www.oregongourmet.com/bestvaluenorthwestwines.html>

--- Highest rated NW wines- Wine Spec Hot Wines for October <http://www.oregongourmet.com/highestratednwwines.html>

--- Andy Perdue's Wine of the Week <http://www.avalonwine.com/andyperduecolumns.htm>

--- A new Wine Tale from Christina Kelly <http://www.avalonwine.com/christinakellycolumns.htm>

--- Bob Woehler on Caterina Winery <http://www.avalonwine.com/Woehler-on-wine-CURRENT2001.htm>

--- Andrew Will Single Vineyard Cabs are in! <http://www.avalonwine.com/andrewwillwinery.htm>

--- St Innocent wine tasting Saturday October 27th! At the store, 12-4PM, come try these wonderful wines!
<http://www.avalonwine.com/stinnocentwinery.htm>

--- Tazo tea sale- order \$35 of Tazo, get free sampler and free shipping!
<http://www.oregongourmet.com/tazo-tea-tazo.html>

--- Cranberry Sweets in stock- jelly candies from the Oregon coast
<http://www.oregongourmet.com/cranberry-sweets-candy-oregon.html>

--- Optima English Picnic baskets and Ascot Backpacks- new sale items!
<http://www.avalonwine.com/picnic-at-ascot-winebags.htm>

Best wishes from all of us at Avalon-

Jean, Ann, Ward, Teresa, and Summer Avalon Northwest Wine and Gourmet 201 SW 2nd Street Corvallis OR 97333
541-752-7418

--- Click here to unsubscribe from future mailings...
<http://news.AvalonWine.com/leave?avalon-news&sara.shackleton@enron.com>

Message 989 of 1118

(MS-30) REINSTATEMENT OF MEMBERSHIP PRIVILEGES

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/all_documents/10914.

NYMEX Membership Services May 1, 2001 Notice # MS-30

REINSTATEMENT OF MEMBERSHIP PRIVILEGES

Please be advised that effective with the close of business, May 1, 2001, the following member(s) have reinstated their membership privileges:

Peter Sepe (SEPE-3496) as a Lessee Member with a qualified trader guarantee provided by MBF Clearing Corp.

SWITCH OF LESSOR

Please be advised that effective with the close of business, May 1, 2001, the following member(s) will switch their lessor within the Exchange:

Michael Frenda (MFR-6272)

Randy Rechten (RDEL-4287)

Robert Essig (STX-3371)

NOTICE OF INTENTION TO SWITCH QUALIFYING CLEARING MEMBER

Please be advised that effective with the close of business, May 1, 2001, Man International Inc., will no longer guarantee the following member(s):

Stephen P. Willner (SPW-247)

James Sims (JMS-7307)

However, the above mentioned will remain a member guaranteed by Pioneer Futures, Inc. In connection therewith, notification of any claims against the aforementioned individuals arising out of transactions executed on the Exchange up to the close of business May 1, 2001, must be submitted to the Corporate Secretary's Office within (10) ten days.

Members and Member Firms have (10) days from the date of this notice to advise the Corporate Secretary's Office of any claims in accordance with Rule 2.51.

Inquiries regarding the above should be addressed to the Member Services Department at 212-299-2379.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=3D\(MS-30\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=3D(MS-30))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 990 of 1118

Re: Brokerage Account

Sender	bruce.harris@enron.com
Recipients	['robert.george@enron.com', 'nancy.muchmore@enron.com']
File	shackleton-s/all_documents/764.

I am a GM. I'll call Sara and we'll get the right people in place for confirms etc. I do not handle confirmations.

Regards, Bruce

Robert H George 10/22/99 05:41 PM To: Sara Shackleton@ECT cc: Bruce Harris/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Nancy Muchmore/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Brokerage Account

The resolution is being circulated for signature. Nancy will fax you a copy as soon as it is executed. I have attached the schedule of authorized traders which probably needs more information on it for the traders. Please take a look at it and, if appropriate, include the info for the ENA/Corp people that are traditionally involved. Nancy has a director's certificate to attach to the schedule as soon as it is finalized.

----- Forwarded by Robert H George/ENRON_DEVELOPMENT on
10/22/99 08:23 PM -----

Enron International Structuring Group

From: Bruce Harris 10/22/99 01:17 PM

To: Robert H George/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Bruce Harris/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Brokerage Account

Help! Fax number for Susan is 713-646-3490. If you left me in that last paragraph of the resolution, does that allow me to sign the brokerage agreement or should I have it faxed down to you and you or Kish sign it?

Regards, Bruce ----- Forwarded by Bruce Harris/ENRON_DEVELOPMENT on 10/22/99 10:12 AM

Sara Shackleton@ECT 10/22/99 09:59 AM To: Bruce Harris/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Susan Bailey/HOU/ECT@ECT

Subject: Brokerage Account

Sorry, but I still can't talk. Although Marie is not in today, I can have Susan Bailey (Ext. 34737) contact Morgan to alert them that the faxed docs are coming. We also will need a signature on the agreement itself and I can't recall if Marie sent that already. Please call Susan so that we can be more specific about what might happen today (and whether it can wait until Monday morning when Marie returns). I have not received anything from Robert. Thanks. Sara

Message 991 of 1118

Brokerage Account

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com', 'Bruce Harris/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT', 'Nancy']
File	shackleton-s/all_documents/763.

Please take a look and call. SS ----- Forwarded by Sara Shackleton/HOU/ECT on 10/25/99 08:31 AM

Robert H George@ENRON_DEVELOPMENT 10/22/99 05:41 PM To: Sara Shackleton@ECT cc: Bruce Harris/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Nancy Muchmore/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Brokerage Account

The resolution is being circulated for signature. Nancy will fax you a copy as soon as it is executed. I have attached the schedule of authorized traders which probably needs more information on it for the traders. Please take a look at it and, if appropriate, include the info for the ENA/Corp people that are traditionally involved. Nancy has a director's certificate to attach to the schedule as soon as it is finalized.

----- Forwarded by Robert H George/ENRON_DEVELOPMENT on
10/22/99 08:23 PM -----

Enron International Structuring Group

From: Bruce Harris 10/22/99 01:17 PM

To: Robert H George/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Bruce Harris/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Brokerage Account

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Regards, Bruce ----- Forwarded by Bruce Harris/ENRON_DEVELOPMENT on 10/22/99 10:12 AM

Sara Shackleton@ECT 10/22/99 09:59 AM To: Bruce Harris/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Susan Bailey/HOU/ECT@ECT

Subject: Brokerage Account

Sorry, but I still can't talk. Although Marie is not in today, I can have Susan Bailey (Ext. 34737) contact Morgan to alert them that the faxed docs are coming. We also will need a signature on the agreement itself and I can't recall if Marie sent that already. Please call Susan so that we can be more specific about what might happen today (and whether it can wait until Monday morning when Marie returns). I have not received anything from Robert. Thanks. Sara

Message 992 of 1118

(MS-29) NOTICE OF INTENTION TO TRANSFER

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10884.

NYMEX Membership Services April 30, 2001 Notice # MS-29

NOTICE OF INTENTION TO TRANSFER

Please be advised that effective with the close of business, April 30, 2001=, =20 he following member(s) have given notice of intention to transfer their sol= e=20 Membership within the Exchange:

William Bongiorno (ING (US) Securities, Futures & Options, Inc.)

Margaret McGrath (ING (US) Securities, Futures & Options, Inc.)

TERMINATION OF CLEARING/MEMBER FIRM PRIVILEGES

Please be advised that effective with the close of business, April 30, 2001, ING (US) Securities, Futures & Options, Inc., has voluntarily terminated its clearing/ member firm privileges.

NOTICE OF INTENTION TO LEASE ORIGINAL MEMBERSHIP

Please be advised that effective with the close of business, April 30, 2001, the following member(s) have given notice of intention to lease their sole membership privileges:

Robert Norchi (RJN-683)

NOTICE OF INTENTION TO SWITCH QUALIFYING CLEARING MEMBER

Please be advised that effective with the close of business, April 30, 2001, FC Stone LLC., will no longer guarantee the following member(s):

Jonathan Martin (TRAM-3402)

However, the above mentioned will remain a member guaranteed by Spear, Lee & Kellogg. In connection therewith, notification of any claims against the aforementioned individuals arising out of transactions executed on the Exchange up to the close of business April 30, 2001, must be submitted to the Corporate Secretary's Office within (10) ten days.

Members and Member Firms have (10) days from the date of this notice to advise the Corporate Secretary's Office of any claims in accordance with Rule 2.51.

Inquiries regarding the above should be addressed to the Member Services Department at 212-299-2379.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D\(MS-29\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(MS-29))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 993 of 1118

(MS-20) NOTICE OF INTENTION TO LEASE ORIGINAL MEMBERSHIP

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10028.

NYMEX Membership Services March 21, 2001 Notice # MS-20

NOTICE OF INTENTION TO LEASE ORIGINAL MEMBERSHIP

Please be advised that effective with the close of business, March 21, 2001, the following member(s) have given notice of intention to lease their sole membership privileges:

Daniel Rappaport (RAP-966)

NOTICE OF INTENTION TO TRANSFER

Please be advised that effective with the close of business, March 21, 2001, the following member(s) have given notice of intention to transfer their sole Membership within the Exchange:

William Perlman (BYTE-4469)

NOTICE OF INTENTION TO SWITCH QUALIFYING CLEARING MEMBER

Please be advised that effective with the close of business, March 21, 2001, Refco, Inc., will no longer guarantee the following member(s):

Michael Visconti (VSKO-3331) Mark L. Stefanelli (STEF-3488) Peter Bonello (BNLO-4852) Donald Murray (MURY-4130) Mark Cricco (MEC-7995)

Also, Please be advised that effective with the close of business, March 2= 1,=20 2001, Pioneer Futures, Inc., will no longer guarantee the following member(= s):

Vincent DiAngelo (MAD-3250) Robert Adelstein (ADEL-3019) Joel Finegold (JOEL-4346)

However, the above mentioned will remain a members guaranteed by Banc One= =20 International Corp. In connection therewith, notification of any claims=20 against the aforementioned individuals arising out of transactions executed= =20 on the Exchange up to the close of business March 21, 2001, must be submitt= ed=20 to the Corporate Secretary=01,s Office within (10) ten days.

Furthermore, the foregoing members will be affiliated with Barclays Bank P= lc.

Members and Member Firms have (10) days from the date of this notice to=20 advise the Corporate Secretary=01,s Office of any claims in accordance with= Rule=20 2.51.

Inquiries regarding the above should be addressed to the Member Services= =20 Department (212) 299-2379.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron= .com& refdoc=3D(MS-20)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 994 of 1118

FW: Agreements between Enron North America and The Chase Manhattan

Sender	laurel.adams@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/436.

Please find attached the documents to proceed with Chase online trading. The eNetMatch relates to online confirmations. Shane would like to proceed as quickly as possible on the online trading front with Chase. He is in Houston this week and next Mon-Thurs should you wish to get together and talk with him about the documents.

-----Original Message-----

From: DALE.NEMETZ@chase.com@ENRON Sent: Wednesday, October 17, 2001 3:47 PM To: Adams, Laurel Subject: Agreements between Enron North America and The Chase Manhattan Bank Importance: High

At the request of Anna Bell-Booth, attached please find the:

Access Agreement ChaseFX - Electronic Trading Service Authorized Users - Single FX Trade eNetMatch Schedule eNetMatch Authorized Users

between Enron North America and The Chase Manhattan Bank.

Please print, review and complete the Address for Notices which is located on page five of the Access Agreement as well as the Designation of Authorized Users Form(s) and have an authorized officer of your organization sign each of the agreements and return two (2) hard copy executed agreements to the attention of Dale Ann Nemetz, The Chase Manhattan Bank, 270 Park Avenue, 40th Floor, New York, New York 10017 for further execution.

Please provide an incumbency certificate signed by the Corporate Secretary for the person or persons who sign the agreements and form.

Should you have any questions, please contact John Vollkommer at (212) 270-5945.

Dale Nemetz Assistant

Protected files. Can be viewed and printed but not edited. 5 documents attached.

#1 (See attached file: Enron North America Access Agreement.DOC)

#2 (See attached file: Enron North America ChaseFX Electronic Trading Service.DOC)

#3 (See attached file: Enron North America Authorized Users Single FX Trade.DOC)

#4 (See attached file: Enron North America eNetMatch Schedule.DOC)

#5 (See attached file: Enron North America eNetMatch Authorized Users.DOC)

- Enron North America Access Agreement.DOC - Enron North America ChaseFX Electronic Trading Service.DOC - Enron North America Authorized Users Single FX Trade.DOC - Enron North America eNetMatch Schedule.DOC - Enron North America eNetMatch Authorized Users.DOC

Message 995 of 1118

RE: FW: Master purchase/sale agreement

Sender	kim.ward@enron.com
Recipients	['sara.shackleton@enron.com', 'marussel@srpnet.com']
File	shackleton-s/notes_inbox/2434.

Sara,

Attached is Salt River Projects ISDA attachments. I know that we have previously sent them our attachments (in 1999). Mark Russell of SRP will be contacting you to negotiate this agreement. I hope it is ok that I have him your name. Please let me know if there is anything that I can do to help and keep me posted on developments.

Thanks!

Kim ----- Forwarded by Kim Ward/HOU/ECT on 04/20/2001 03:59 PM

marussel@srpnet.com on 04/05/2001 05:28:19 PM To: <Kim.Ward@enron.com> cc: <marussel@srpnet.com> Subject: RE: FW: Master purchase/sale agreement

I have attached our standard CSA and Schedule. Thanks.

-----Original Message-----

From: Kim.Ward@enron.com [mailto:Kim.Ward@enron.com] Sent: Thursday, April 05, 2001 9:13 AM To: marussel@srpnet.com Subject: Re: FW: Master purchase/sale agreement

Mark,

The best person to talk to about the ISDA is me. I discussed an ISDA with Tim Roberts when I was in the Salt River offices on March 23rd. A draft ISDA was sent to Bill Abraham on November 17, 1999. I requested for a new legal review on 3/28/01. Let me know if you need a new draft and I can send you or Tim a copy. My number is 713-853-0685.

Thanks for your inquiry -

Kim Ward

marussel@srpnet.com on 04/05/2001 08:20:15 AM

To: <Kim.Ward@enron.com> cc: <marussel@srpnet.com> Subject: FW: Master purchase/sale agreement

I have been trying to get an ISDA going with Enron for several months. Who is the best contact to call?

-----Original Message-----

From: Kim.Ward@enron.com [mailto:Kim.Ward@enron.com] Sent: Friday, March 30, 2001 2:59 PM To: kaprice@srpnet.com Subject: Master purchase/sale agreement

Kent,

Attached is a draft copy of our Master Purchase/Sale Agreement for physical natural gas transactions. As I mentioned before, we can enter into transactions for less than one year out. However, for those outside of a year and for longer terms, we need to have a master in place. Hopefully, we can get this one in place so that we will be prepared when/if we get ready to transact.

Let me know if you have any questions. I will have our legal guys standing by to help, too.

Thanks,

Kim Ward

(See attached file: Master_NG_draft_contract.doc)

(See attached file: Master_NG_draft_contract.doc)

- 01101.sample credit annex isda.doc - 011101.sample isda schedule.doc

Message 996 of 1118

Anonymous Reporting Facilities

Sender	office.chairman@enron.com
Recipients	['all.worldwide@enron.com']
File	shackleton-s/all_documents/762.

To: All Employees From: Ken Lay, Jeff Skilling, and Joe Sutton Department: Office of the Chairman Subject: Anonymous Reporting Facilities Date: October 22, 1999

This is to remind you that various anonymous reporting facilities are available for you to report violations of Company policy and suspected criminal conduct by any officer, employee, or agent of the Company relating to the performance of his or her duties. These reporting facilities are also available for your questions, messages, comments, and suggestions.

Any policy violation or criminal conduct may be reported by letter, E-mail or voice mail, as set forth below, describing the suspected violation or criminal conduct with as much detail as possible to allow the Company to conduct an investigation of the reported matter.

1. Letters should be sent to the Confidential Post Office Box:

Enron Compliance Officer Confidential - Conduct of Business Affairs P. O. Box 1188 Houston, Texas 77251-1188

2. E-mails should be sent to the Office of the Chairman's E-mail box: Employees with Enron E-mail can access this box by sending an E-mail to the Office of the Chairman. Simply type &Office of the Chairman=018 in the address box, type your message, and send. Your message will be completely anonymous. If, however, you copy your message and E-mail it to someone else, the copy will not be anonymous.

3. Voice mail messages should be left with the Office of the Chairman's PhoneMail Box. You can access the Office of the Chairman's PhoneMail Box by calling (713) 853-7294. If you call from your extension or an outside line, your message will be completely anonymous. If, however, you access the PhoneMail Box while you are in the PhoneMail system, your message will not be anonymous.

You may, but are not required to, identify yourself. If you would like to identify yourself, please submit your name and phone number with your letter or message. All anonymously reported matters will be investigated and acted upon in the same manner as those that contain signatures.

The Company takes great pride in ensuring that Enron is a great place to work. We encourage each employee to continue to conduct the business affairs of the Company in accordance with all applicable laws and in a moral and honest manner.

Message 997 of 1118

Innova Pure Water Dismisses Lawsuit Against Brita

Sender	newsdesk@shareholder.com
Recipients	[]
File	shackleton-s/notes_inbox/2954.

INNOVA PURE WATER DISMISSES LAWSUIT AGAINST BRITA

OAKLAND, Calif., March 9, 2001 -- The Brita Products Company today announced that it has reached a settlement agreement with Innova Pure Water, Inc., and that Innova has dismissed its patent infringement lawsuit against Brita in which it claimed the water filter in the Brita Fill & Go(R) sports bottle infringed on one of Innova's patents. Under the terms of the settlement, Brita may continue to market the Brita Fill & Go(R) sports bottle under a newly issued Innova patent.

"We're pleased that this settlement opens the doors for Brita and Innova to establish a cooperative relationship and work productively together in the future," said Scott Weiss, vice president-general manager, Brita Products.

Innova Pure Water, Inc. (OTCBB: IPUR) is a developer and producer of consumer water treatment products. Innova currently markets its products through Culligan and other distributors.

The Brita Products Company is a wholly owned subsidiary of The Clorox Company. The Clorox Company (NYSE: CLX) (PSE: CLX) is a \$4 billion, multinational manufacturer and marketer of household products and products for institutional markets.

Except for historical information, matters discussed above, including statements about future growth, profitability, costs or expectations, are forward-looking statements based on management's estimates, assumptions and projections. Important factors that could cause results to differ materially from management's expectations are described in "Forward-Looking Statements and Risk Factors" and "Management's Discussion and Analysis of Financial Condition and Results of Operation" in the company's SEC Form 10-K for the year ending June 30, 2000, as updated from time to time in the company's SEC filings. Those factors include, but are not limited to, marketplace conditions and events, the company's costs, risks inherent in litigation or international operations, the success of new products, integration of acquisitions, and environmental, regulatory and intellectual property matters.

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Media Contact Kathryn Caulfield, Corporate Communications (510) 271-7209

To unsubscribe click here <http://www.shareholder.com/visitors/unsubscribe.cfm?companyID=CLX&BroadcastJobID=48200>

Service provided by Shareholder.com.

Message 998 of 1118

Conflict of Interest Policy Mailing to Vendors

Sender	ken.skilling@enron.com
Recipients	['all.employees@enron.com']
File	shackleton-s/all_documents/889.

Attached is a copy of a letter which we are sending to our Corporate, Enron North America Corp., Enron Energy Services Operations, Inc., and Portland General Electric Company vendors as an additional step toward implementing our commitment to conduct our business affairs in accordance with the highest ethical standards.

We are sending you a copy of this letter so that you will be aware that your vendors will be receiving this letter and so that you will be reminded that Enron does enlist the cooperation of its vendors in adhering to its Business Ethics Policy.

We appreciate your efforts in contributing to an Enron work environment of which we can all be proud.

SAMPLE

XXXXXXXX, 19XX

OFFICE OF THE CHAIRMAN NAME ADDRESS CITY/STATE/ZIP

Dear Sir or Madam :

Enron Corp. ("Enron") believes in conducting its business affairs in accordance with the highest ethical standards. Accordingly, employees of Enron and its subsidiaries are required to comply with Enron's Business Ethics Policy which requires an employee to conduct himself/herself in a manner which is not detrimental to the best interests of Enron and which does not bring to the employee financial gain separately derived as a direct consequence of his/her employment with Enron. Further, Enron's Business Ethics Policy states that no lavish entertainment or gifts are to be given or received by Enron employees for special position, price, or privilege.

Not only is it incumbent upon our employees to follow this policy, but your cooperation in respecting these standards is also critical. Enron expects each of its vendors and contractors to maintain adequate records that document its work relationship with Enron. Enron's auditing department will routinely conduct business ethics compliance audits of certain vendors and contractors with whom Enron does business. Your recognition of our ethical standards allows Enron employees to work with you via arm's length transactions and avoids potentially embarrassing and unethical situations. If you ever become aware of variances from our policy, please advise:

James V. Derrick, Jr. Executive Vice President and General Counsel (713) 853-5550 or report anonymously to: Enron Compliance Officer CONFIDENTIAL-Conduct of Business Affairs PO Box 1188 Houston, Texas 77251-1188.

Your business relationship is important to us, and we look forward to maintaining that relationship with you.

Very truly yours,

Message 999 of 1118

(01-143) Proposed Amendments to Supplement No. 1...

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/10891.

April 30, 2001 Notice Number: 01-143

TO: ALL COMEX DIVISION MEMBERS AND MEMBER FIRMS ALL NYMEX DIVISION MEMBERS AND MEMBER FIRMS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: Proposed Amendments to Supplement No. 1, =01&Official List of Approved Refi= ners=20 and Brands=018 of the Gold and Silver Futures Contracts and Supplement No. = 2=20 =01&Official List of Approved Assayers and Assayer/Refiners of the Platinum= and=20 Palladium Futures Contracts

The Exchange proposes to amend Supplement No. 1, =01&Official List of Appro= ved=20 Refiners and Brands=018 of the Gold Futures Contract and Supplement No. 1,= =20 =01&Official List of Approved Refiners and Brands=018 of the Silver

Futures= =20 Contract. The proposed amendments change the status of the gold and silver= =20 brands produced by Golden West Refining Corporation Limited/Handy & Harman= =20 Refining Group, Inc. to no longer produced by adding an asterisk (*) next t= o=20 the brand. The Handy & Harman Refining Group gold brand and silver brand m= ay=20 not be delisted since there are bars of silver and gold bearing this hallma= rk=20 on deposit in Exchange Licensed Depositories.

The Exchange proposes to amend Supplement No.2, =01&Official List of Approv= ed=20 Assayers and Assayer/Refiners=018 of the Platinum and Palladium Futures=20 Contracts. The proposed amendments delists Golden West Refining Corp.=20 Ltd/Handy & Harman Refining Group Inc as an Approved Assayer/Refiner from t= he=20 Exchange=01,s Palladium Futures Contract and as an Approved Assayer for the= =20 Platinum Futures Contract. There are no assay certificates issued by Handy= &=20 Harman Refining Group for platinum or palladium in any Exchange Licensed=20 Depository nor are there any platinum or palladium bars hallmarked by Handy= &=20 Harman Refining Group.

The proposed amendments must be approved by the Commodity Futures Trading= =20 Commission (=01&CFTC=018) before becoming effective. The Exchange membersh= ip will=20 be notified upon receipt of CFTC approval and the effective date of the=20 amendments.

A copy of the proposed amendments can be found at=20 http://www.nymex.com/refernce/notices/2001/ntm_143.htm

If you have any questions, please contact Albert J. Getz at 212-299-2608.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D\(01-143\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron=.com&refdoc=3D(01-143))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1000 of 1118

Re: FX Transactions

Sender	sara.shackleton@enron.com
Recipients	['donna.lowry@enron.com', 'Mark Taylor/HOU/ECT@ECT', 'Alan', 'Trena McFarland/LON/ECT@ECT']
File	shackleton-s/sent/1815.

----- Forwarded by Sara Shackleton/HOU/ECT on 08/14/2000 03:28 PM -----

Trena McFarland 08/10/2000 10:05 AM

To: Sara Shackleton/HOU/ECT@ECT, Donna Lowry/HOU/ECT@ECT cc: Subject: Re: FX Transactions

----- Forwarded by Trena McFarland/LON/ECT on 10/08/2000

16:07 -----

Jon Barrett@MGLTD 10/08/2000 06:38 To: Justin Boyd/LON/ECT@ECT cc: Trena McFarland/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT, Marcus Nettelton/NA/Enron@ENRON, Kevin Rhodes/MGLTD_London/MGLTD@MGLTD, Alfred Pennisi/NYC/MGUSA@MGUSA, Tim Poullain-Patterson/LON/ECT@ECT

Subject: Re: FX Transactions

Justin

Our understanding is that FX traded from the US is effectively unregulated. If we use MG London Inc, there would be the possibility that the CFTC would have some type of oversight on the unregulated business. Only the posting of the IMM EFPs needs to be done through the FCM.

There are other practical issues here in that that MG London Inc currently lacks the infrastructure needed to do the outright FX business as it has no bank FX lines and no bank accounts for all the currencies. There are other issues where the main settlements/back office expertise is here in London. These are obviously not insurmountable but we need to do a lot of work to get either MG London Inc or, for example, MG Newco Inc ready for the business. Is there an angle for using Enron North America, for example, as I understand they already have existing FX lines and settlements or would that be a non-starter? There are currently some UK and EU customers on Wolff's books who would need to be routed via an SFA regulated arranger. Will we be able to use EEFT for this?

Rgds

Jon

Justin Boyd@ECT 09/08/2000 18:54 To: Jon Barrett/MGLTD_London/MGLTD@MGLTD cc: Trena McFarland/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT, Marcus Nettelton/NA/Enron@ENRON

Subject: Re: FX Transactions

Jon,

I had a glance over the written paper from Sullivan & Cromwell as to FX Transactions, and it seems to me that there would be fewer US regulatory issues (should there be any), if we were to use MG Brokers Inc, the FCM entity. Are there any other reasons why we would not want to use this entity?

[Mark/Alan/Marcus - I have separately sent you by email the Sullivan & Cromwell paper]

Thanks. Justin

----- Forwarded by Justin Boyd/LON/ECT on 09/08/2000 18:49

Jon Barrett@MGLTD 09/08/2000 16:37 To: Justin Boyd/LON/ECT@ECT, Janine Juggins/LON/ECT@ECT cc: Trena McFarland/LON/ECT@ECT, Kevin Rhodes/MGLTD_London/MGLTD@MGLTD, Sid Tipples/MGLTD_London/MGLTD@MGLTD, Andrew Cornfield/LON/ECT@ECT

Subject: Re: FX Transactions

----- Forwarded by Jon Barrett/MGLTD_London/MGLTD on

09/08/2000 16:36 ----- From: Alfred Pennisi@MGUSA on 09/08/2000 06:50 EDT To: Jon Barrett/MGLTD_London/MGLTD@MGLTD cc:

Subject: Re: FX Transactions

Jon,

My suggestion would be for the FX business be run out of a NON FCM firm in the states (NY) since it is a non-regulated product.

If you have an questions please call me at x5845.

regards,

Alfred Pennisi MG London Inc. 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845 E-mail: alfred.pennisi@mglondon.com

Message 1001 of 1118

Avalon Northwest Wine News- January 16 2002

Sender	info@avalonwine.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/deleted_items/307.

Avalon Northwest Wine News January 16, 2002

Rex Hill winemaker Lynn Penner-Ash resigns after 14 years Amicable parting for her own winery, Penner-Ash Cellars ---"a dream come true" Rex Hill awash in recent awards and medals for their wines About Penner-Ash Winery

<http://www.avalonwine.com/Penner-Ash-Wine-Cellars.htm> About Lynn

Penner-Ash<http://www.avalonwine.com/rexhillwinery.htm> Order the wines of Rex Hill and Penner-Ash

<http://www.oregongourmet.com/rexhillvineyards.html> ++++++===== Highest Rated Wines

We have many new and exciting wines on the site- Here's a list with links to some of the wine reviews and winery info, or check out the "Highest Rated Wines" page to see everything in one place!

Highest Rated Wine List <http://www.oregongourmet.com/highestratednwwines.htm> New Beaux Freres 2000 Pinot Noirs

<http://www.oregongourmet.com/beauxfreres.html> Andrew Rich - Many New Wines

<http://www.oregongourmet.com/andrewrichwinery.html> Broadley Pinot Noirs Harvest report and new 2000 vintage

wines<http://www.avalonwine.com/Broadley.htm> Chehalem Pinot Noir and Gris Rion Reserve 99 his best ever, new 2000

Gris<http://www.avalonwine.com/chehalem.htm> Fiddlehead Cellars- 96, 97, 98 Pinot Noirs in stock We are so thrilled to

have received a stock of all of Kathy's Oregon Pinot Noirs- available now and drinking beautifully!

<http://www.avalonwine.com/fiddlehead.htm> Hamacher Pinot Noir- A rising star! Parker 93+

<http://www.avalonwine.com/hammacherscellars.htm> High Pass- Sleeper winery, two highest rated wines A dessert wine

and a reserve Pinot Noir that are going to put this winery on the map<http://www.avalonwine.com/highpass.htm> Mike

Januik's new Winery (Former winemaker Columbia Crest)<http://www.avalonwine.com/JanuikWinery.htm> Ken Wright 2000

Pinot Noirs in Stock and on sale! <http://www.oregongourmet.com/kenwrightcellars.html> Ken Wright 2001 Pinot Noir

Futures on sale! <http://www.oregongourmet.com/kenwrightcellars.html> Lemelson: Wine Spectator Hot Wine of the Week!

Beautifully designed new winery now in full operation <http://www.avalonwine.com/Lemelson-Vineyards.htm> Penner-Ash

Cellars Lynn goes fulltime, New Syrah and Pinot Noirs <http://www.avalonwine.com/Penner-Ash-Wine-Cellars.htm>

Quilceda Creek Red Table Wine New offering from the famous winery <http://www.oregongourmet.com/quilcedacreek.html>

Rex Hill- Single Vineyard Pinot Noirs Top 100 Wine of the World! <http://www.avalonwine.com/rexhillwinery.htm> Rex Hill

Jacob Hart "Wine of the Week" WPNW<http://www.avalonwine.com/andyperduecolumns.htm> Seven Hills Merlot and Syrah

on Sale All about this pioneering Washington Winery<http://www.avalonwine.com/seven-hills-winery.htm>

SALE WINES: PRICE REDUCTIONS AT ALL LEVELS Well, maybe the economy, or maybe a slow Xmas, but prices are at great levels this month, with lots of wines reduced to the lowest I've seen in seven years. Check out the sales here:

<http://www.oregongourmet.com/bestvaluenorthwestwines.html> Woodward Canyon, Stone Wolf, Seven Hills, Snoqualamie, Reininger, Preston, Patton Valley, Argyle, Panther Creek, Ken Wright, Gordon Brothers, and many, many more.

Nest week- new releases, pre-orders, and futures galore!

Rabbit Corkscrew, Silver or black color, \$59.99 and free shipping Includes foil cutter and storage case.

<http://www.avalonwine.com/rabbitcorkscrew.htm> Thanks for shopping with us!

Jean, Ann, Carl, and Teresa Avalon Wine and Oregon Gourmet 201 SW 2nd Street Corvallis OR 97333

541-752-7418www.avalonwine.com www.oregongourmet.com

--- Click here to unsubscribe from future mailings...

<http://news.AvalonWine.com/leave?avalon-news&sara.shackleton@enron.com>

Message 1002 of 1118

FW: Avalon Northwest Wine News- February 12, 2002

Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/sent_items/377.

-----Original Message-----

From: "Avalon News" <Info@AvalonWine.com>@ENRON Sent: Monday, February 11, 2002 9:23 AM To: Shackleton, Sara Subject: Avalon Northwest Wine News- February 12, 2002

Avalon Northwest Wine and Gourmet News February 12, 2002

Andrew Will Merlots, Penner-Ash purchases vineyard, Interview with Tony Soter

NEWS and ARTICLES

Tony Soter: Return of an Oregon Native by Cole Danehower, Oregon Wine Report Tony Soter is one of the most respected winemakers in the business. His consulting clients have included such elite California labels as Araujo Estate, Niebaum-Coppola, Dalla Valle, Moraga Vineyards, Spottswoode, and Viader Vineyard-not to mention his own Pinot noir-focused creation, Etude Winery (recently sold to Beringer Blass). <http://www.avalonwine.com/soter-vineyards.htm>

Penner-Ash has purchased vineyard land near Beaux Freres and Patty Green Cellars

<http://www.avalonwine.com/Penner-Ash-Wine-Cellars.htm> NW Wine of the Week from Andy Perdue: Powers Parallel 46 This affordable red blend was ranked No. 1 last week at the annual Pacific Northwest Wine Fair in Toronto. Other wines in the judging included 97 Ridge Montebello, 1998 Hedges Red Mountain Reserve, Gordon Brothers Tradition, and pepper Bridge Cabernet Sauvignon. At \$30, the Powers wine was the least expensive of the entrants! Gorgeous bottle, too. <http://www.avalonwine.com/andyperduecolumns.htm>

NEW RELEASES <http://www.oregongourmet.com/northwestwine.html>- the whole list

Highlights: Andrew Will 2000 Merlots- Pepper Bridge, Seven Hills, Klipsun, Ciel du Cheval, Sheridan Chris Camarda's delicious and hard to get Merlots- 2000 vintage is made from "his best fruit ever". Robert Parker says of Chris's wines: "Andrew Will's wines have virtually perfect tannins. They are present but buffered by the loads of dominating sweet fruit. Furthermore, what is amazing about Chris Camarda's wines is that they are concentrated yet grateful. Camarda's (wines) blend power with elegance, concentration with finesse, and supersweet fruit with definition. Chris Camarda is a brilliant winemaker." Vintage notes: <http://www.avalonwine.com/andrewwillwinery.htm> Tasting notes and pricing: <http://www.oregongourmet.com/andrewwillwinery.html> Adelsheim Pinot Noir Goldschmidt Vineyard Pinot from the vineyard owned by the former governor of Oregon <http://www.oregongourmet.com/adelsheim-pinot-noir-goldschmidt.html> Beaux Freres single vineyard Belle Soeurs Sale is almost over Temperance Hill, Shea, Wild Thing Pinot noirs- We are in love with them, don't miss the great prices! My employees have raved about these wines?? esp the Shea- massive raspberry nose, hedonistic! <http://www.oregongourmet.com/beauxfreres.html> Also just in: Domaine Coteau Pinot Noir 2000, Domaine Lemoyne Pinot Gris, Eugene Wine Cellars new vintages, Fiddlehead 96 back in stock, Hamacher 99, Januik Cabernets, L'Ecole Apogee- L'Ecole entire product line now in stock! New vintages from Reininger, Powers, Pepper Bridge, Shea Vineyards Pinot noir, Stonecroft. <http://www.oregongourmet.com/northwestwine.html>

COMING SOON

Woodward Canyon Old Vine Cab, Merlot 2000 available next month- Email us to reserve? Highest Rated Wines <http://www.oregongourmet.com/highestratednwines.html>

Sale Wines <http://www.oregongourmet.com/bestvaluenorthwestwines.html>

Thanks so much for your patronage- Jean, Ann, Carl, and Teresa

Jean Yates www.avalonwine.com www.oregongourmet.com 201 SW 2nd Street Corvallis OR 97333 541-752-7418

--- Click here to unsubscribe from future mailings...

<http://news.AvalonWine.com/leave?avalon-news&sara.shackleton@enron.com>

Message 1003 of 1118

RE: termination list for deals to be moved to bankruptcy book

Sender	cecilia.cheung@enron.com
Recipients	['sara.shackleton@enron.com', 'c..gossett@enron.com', 'patrick.mulvany@enron.com', 's..theriot@enron.com']
File	shackleton-s/inbox/605.

I was busy yesterday and just got back from UBS meeting. Will start working on this now.

-----Original Message-----

From: Miller, Don (Asset Mktg) Sent: Tuesday, January 22, 2002 6:36 PM To: Theriot, Kim S.; Cheung, Cecilia Cc: Mulvany, Patrick; Gossett, Jeffrey C.; Shackleton, Sara; Brackett, Debbie R. Subject: RE: termination list for deals to be moved to bankruptcy book

This should help clean things up a lot. Please let me know when they have been removed, such that I can get credit to rerun the list of active deals. It would be great if it is ready early tomorrow as I would like my guy to create the spreadsheet with gas/power/crude/etc/total for our meeting tomorrow.

Don

-----Original Message-----

From: Theriot, Kim S. Sent: Tue 1/22/2002 5:50 PM To: Cheung, Cecilia Cc: Mulvany, Patrick; Gossett, Jeffrey C.; Miller, Don (Asset Mktg) Subject: RE: termination list for deals to be moved to bankruptcy book

For clarification, the request below is to move active Natural Gas Financial Transactions as of 12/1/01 to the Bankruptcy Book.

Kim

-----Original Message-----

From: Mulvany, Patrick Sent: Tuesday, January 22, 2002 3:58 PM To: Cheung, Cecilia Cc: Gossett, Jeffrey C.; Theriot, Kim S.; Miller, Don (Asset Mktg) Subject: termination list for deals to be moved to bankruptcy book

Cecilia,

Here is the list of Counterparties that have been requested:

CP ID Counterparty

504 Alabama Gas Corporation 8 Amerada Hess Corporation 64516 Avista Corporation 55265 Avista Energy, Inc. 68247 Bankers Trust International PLC 65291 BP Corporation North America Inc. 410 Burlington Resources, Inc. 23848 Cabot Oil & Gas Marketing Corporation 79689 Calpine Energy Services, L.P. 5264 Cargill, Incorporated 881 Central Illinois Light Company 65599 CMS Field Services Inc. 69 Columbia Energy Services Corporation 56630 Consolidated Energy Solutions, Inc. 26427 Consumers Gas Company, LTD. 74362 Continental Gas, Inc. 52577 Cornerstone Propane, L.P.

1424 Florida Power Corporation 55109 Hess Energy Trading Company LLC 3796 Hunt Petroleum Corporation 1901 Kaztex Energy Management Inc. 2094 Marathon Oil Company 53782 National Energy & Trade, L.L.C. 5563 New York Mercantile Exchange 64141 NJR Energy Services Company 155 Noble Gas Marketing Inc. 151 Northern Illinois Gas Company 69121 NRG Power Marketing Inc. 63665 Occidental Energy Marketing, Inc. 54438 PG&E Energy Trading, Canada Corporation 58402 PG&E Energy Trading-Gas Corporation 46709 Phibro Inc. 55776 Pioneer Natural Resources USA, Inc. 33367 PMI Trading, LTD 49262 Questar Energy Trading Company 65268 Reliant Energy Services, Inc. 187 San Diego Gas & Electric Company 103469 Sequent Energy Management, L.P. 3996 Sithe Energies, Inc. 26146 Societe Generale 11134 St. Mary Land & Exploration Company 3022 Texaco Natural Gas Inc. 81385 The New Power Company

37810 Venoco, Inc. 96651 Vitol Capital Management Ltd. 46924 Vitol S.A. 232 Western Gas Resources, Inc. 237 Wisconsin Power And Light Company

Message 1004 of 1118

Corporations or LLCs

Sender	sara.shackleton@enron.com
Recipients	['jeff.blumenthal@enron.com']
File	shackleton-s/sent/2424.

FYI re: my voice mail ----- Forwarded by Sara Shackleton/HOU/ECT on 11/27/2000 06:57 PM -----

Richard Sage 11/27/2000 04:08 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Corporations or LLCs

We would like to make progress as soon as possible on setting up these legal entities, as other tax-driven restructurings are about to be unleashed and getting the operational side of the transfer into a new entity will take the longest to execute. shows the step we wish to take. I have deliberately not placed ECCL anywhere because it is probably moving around. On what basis should we decide whether to create ECHI and ECCI as LLCs or Corporations?

Many thanks, Richard London x37546 011-44-7990-973428 (cellphone - any time)

Message 1005 of 1118

Merry Christmas from Blue Mountain!

Sender	thescoop@maildb.bluemountainarts.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/9.

[IMAGE] We Wish You a Merry Christmas [IMAGE] Check out our most popular interactive holiday greetings! Looking for a sing-a-long? Carolers and a reindeer with a glowing nose? A team of mischievous mice? Our Christmas cards offer something for everyone, including the catch-a-snowflake game and 12 days of Christmas. Send these great cards plus many more from BlueMountain.com! Celebrate Christmas with Blue Mountain [IMAGE] [IMAGE] [IMAGE] [IMAGE] [IMAGE] [IMAGE] Christmas Sing-a-Long Christmas Treats All Through the House Catch a Snowflake 12 Days of Christmas Quick Gifts for Christmas Blue Mountain offers gifts and gift certificates to save you time this season! Brighten holiday tables with flowers. Or include a gift certificate from GiveAnything.com with your eCard and let the recipient choose their own gift. Quick Gifts are only a click away in the Blue Mountain Gift Center! [IMAGE] We hope you enjoyed this edition of the Scoop! When you recently sent a Blue Mountain eCard, you agreed to receive email newsletters from us. If you do not want to receive future newsletters, please send an email with 'remove' in the Subject line to: unsubscribe_bma@maildb.bluemountainarts.com ? 1996-2001 1996-2001 EGCB, Inc. All rights reserved. Blue Mountain, Blue Mountain Arts, and the Blue Mountain logo are service marks or registered service marks of BMA Holdings, LLC in the United States and other countries. Terms of Service | Privacy Policy [IMAGE] [IMAGE] [IMAGE]

[IMAGE]

Message 1006 of 1118

Thousands of Free eCards

Sender	thescoop@maildb.bluemountainarts.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/349.

[IMAGE] Stay in Touch With Free eCards [IMAGE] To help you stay in touch with friends and family, many of the everyday cards on BlueMountain.com will always be free. Some of your favorite cards, in top categories like Friendship and Say Hi, are still available for free - every day! Take the time to let someone know you're thinking of them, and send a Blue Mountain eCard today. Check out our FREE eCards [IMAGE] [IMAGE] [IMAGE] [IMAGE] [IMAGE] [IMAGE] [IMAGE] [IMAGE] It's Just Me Happy Day What's Up? Twinkle, Twinkle Super-Duper Day Free Music Greetings from Beatgreet Blue Mountain proudly features free music videos of greetings of all your favorite songs - courtesy of our friends at Beatgreet! From playful sentiments like Rod Stewart's "Do Ya Think I'm Sexy?" to the more serious "Hero" by Enrique Iglesias, Beatgreet offers a wide variety of music styles with a wide variety of sentiments. Check out all the new music greetings! [IMAGE] Advertisement Get a FREE Tide Kick [IMAGE] [IMAGE] [IMAGE] [IMAGE] [IMAGE] Get a FREE Tide Kick? PLUS a \$.50 off coupon for Tide Liquid Tide Kick is a pretreating & measuring device that helps liquid Tide penetrate deep into stains. Tide Kick and Tide Deep Clean Formula completely remove more stains than any other leading pretreater and other regular liquid laundry detergent combined. Kick-start the pretreater in your Tide -- Get yours now! Quick Gifts for Winter [IMAGE] Brighten someone's day with flowers. Or include a gift certificate from GiveAnything.com with your eCard - and let the recipient choose their own gift. Gifts and gift certificates are only a click away in the Blue Mountain Gift Center! We hope you enjoyed this edition of the Scoop! When you recently sent a Blue Mountain eCard, you agreed to receive email newsletters from us. If you do not want to receive future newsletters, please send an email with 'remove' in the Subject line to: unsubscribe_bma@maildb.bluemountainarts.com ? 1996-2002 1996-2002 EGCB, Inc. All rights reserved. Blue Mountain, Blue Mountain Arts, and the Blue Mountain logo are service marks or registered service marks of BMA Holdings, LLC in the United States and other countries. Terms of Service | Privacy Policy [IMAGE] [IMAGE]

[IMAGE]

Message 1007 of 1118

(02-21) Business Assistance to the Membership

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/263.

Notice No. 02-21 January 10, 2002

To: All Exchange Members and Member Firms

From: J. Robert Collins, Jr., President

Subject: Business Assistance to the Membership

In order to keep members updated on possible avenues of financial assistance, we have listed below the phone numbers and contact information to both the NYS and NYC Economic Development Corporations. Both NYS and NYC are making funds available to small businesses in the form of Grants and Bridge Loans with participating banks.

The requirements for a grant is as follows (must fulfill all points listed below): 1. Must have had a business as of September 11, 2001 south of Houston Street, 2. Employ 50 or fewer people, 3. Provide professional or business services; or engage in manufacturing, distribution or other non-retail business, 4. Submitted a complete application to the U.S. Small

Business Administration or other approved lender for disaster recovery.

To apply for a grant, call the EDC hotline at 866-227-0458. To obtain an application online visit www.newyorkbiz.com. Or you may visit the walk-in center at 110 Maiden Lane Monday ?Friday, 9 a.m.- 5 p.m. In addition, you can visit The New York State Economic Development Corporation at www.empire.state.ny.us/.

A brief summary of other grant and loan programs are also listed below as follows:

Grant Programs:

Charitable Organizations * New York City Partnership/Civic Capital Corporation Financial Recovery Fund. Provides grants of \$ 25,000 to \$ 250,000. (212) 493-7760 www.nycif.org/recoveryfund. * Seedo Grant/Lower Manhattan Small Business and Workforce Retention Project. Provides grants of up to \$25,000 for retailers and manufacturers. (212) 473-0255 ext. 378, or visit www.seedo.org. * Safe Horizons. Provides grants of up to \$1,500 for small business owners of displaced workers. (212)-577-7777 or (800) 621-HOPE. * Nonprofit Financial Fund. Provides grants to non-profit organizations. (212) 868-6710 or visit www.nonprofitfinancefund.org.

Other * Manhattan Chamber of Commerce Small Business Recovery. Provides emergency grants of \$500- \$1,000 to businesses with fewer than 10 employees. (212) 410-1071 or visit www.manhattancc.org.

WTC Disaster Recovery Bridge Loan Participating Banks and Lenders:

Accion New York City (718) 599-5170 Banco Popular (212) 445-1991 The Bank of New York (800) 621-3443 Chase (888) 842-8786 Citibank, N.A. (800) 328-2484 Community Capital Bank (718) 802-1212 Fleet (212) 703-1850 Fund for City of New York (212) 925-6675 HSBC Bank USA (800) 975-4722 Nonprofit Finance Fund (212) 868-6710 REDAC (718) 522-4600 Renaissance EDC (212) 964-6022 SEEDCO (212) 473-0255 Washington Hts. & Inwood Dev. Corp. (212) 795-1600

* Eligible Applicants: Businesses and non-for-profits that have suffered economic or physical damage due to the WTC disaster. * Loan Amount: Up to \$100,000 from banks; up to \$50,000 from other lenders. * Eligible Uses of Funds: Loans may be used for working capital, for acquiring or improving real estate, machinery or equipment, or for physical rehabilitation of business. * Terms: Lenders use more relaxed lending criteria and charge lower interest and reduced or zero closing fees. Interest payments may also be deferred.

Small Business Administration (SBA) Loans

The SBA offers disaster loan programs, and has representatives taking business information and distributing applications at 110 Maiden Lane (between Pearl and Water). Call the SBA at (800) 659-2955 or visit their Web site: www.sba.gov/disaster/newyorkfires.html for more information on financial assistance for disaster recovery.

Message 1008 of 1118

Hawaii 125-0, Series McGarret D (Revised Docs in Word)

Sender	mcfam@andrews-kurth.com
Recipients	['mcfam@andrews-kurth.com', 'lowed@andrews-kurth.com', 'barbd@andrews-kurth.com', 'therman@wilmingtontrust.com...]
File	shackleton-s/all_documents/3779.

Attached, in Word format, for immediate execution are the following three documents:

Asset Notice (258187) (clean and marked against latest draft circulated earlier today); Prepayment Notice w/respect to McGarret B (259570) (clean-only change was to correct date from June 22 to September 23); and Direction Letter to Owner Trustee (258312) (clean-deleted references to all documents except Prepayment Notice)

Please ignore instructions in previous e-mail and proceed as follows:

Brenda Funk - Please (i) coordinate with Charles to determine the final debt and equity amounts for Series McGarret D, (ii) complete the blanks in the Asset Notice, and (iii) send an executed, clean copy of the Asset Notice to Mercy Arango.

Mercy Arango - Please execute the Direction Letter and fax the executed copy directly to:

(i) Tiffany Herman (fax 302-427-4749; phone 302-651-8631), (ii) Glen Kenton (fax 302-658-6548; phone 302-651-7726), (iii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iv) Brenda Funk (fax 713-853-9252; phone 713-853-6950).

Tiffany Herman/Glen Kenton - When you receive the executed copy of the Direction Letter, please execute the Prepayment Notice (attached to this e-mail as doc #259570) and fax the executed notice immediately to:

(i) Mercy Arango (fax 212-885-4909; phone 212-856-3862), (ii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iii) Brenda Funk (fax 713-853-9252; phone 713-853-6950).

I will be out of the office tomorrow, and will therefore not be available to coordinate the delivery of the above documents. If you have any questions, comments or concerns, please call David Barbour at 214-659-4444.

- 258312.doc - 258187rl.doc - 258187.doc - 259570.doc

Message 1009 of 1118

Hawaii 125-0, Series McGarret D (Docs in WordPerfect)

Sender	mcfam@andrews-kurth.com
Recipients	['barbd@andrews-kurth.com', 'lowed@andrews-kurth.com', 'mcfam@andrews-kurth.com']
File	shackleton-s/notes_inbox/920.

To catch everyone up, we have changed the Danno C transaction to McGarret D. The debt and equity received by the trust in McGarret D will be used to repay the McGarret B series, which will then be terminated, and the excess funds will go to Enron pursuant to the Total Return Swap executed in connection with the McGarret B closing.

Attached, in WordPerfect format, for immediate execution are the following three documents:

Asset Notice (258187) (clean and marked against latest draft); Prepayment Notice w/respect to McGarret B (259570) (clean); and Direction Letter to Owner Trustee (258312) (clean and marked against latest draft).

Gina Karanthanos - Please (i) coordinate with Charles to determine the final debt and equity amounts for Series McGarret D, (ii) complete the blanks in the Asset Notice and the Direction Letter, (iii) send an executed, clean copy of the Asset Notice to Mercy Arango, and (iv) send a clean copy of the Direction Letter to Mercy Arango for execution.

Mercy Arango - When you have the clean copy of the Direction Letter (or alternatively know the amounts to fill in as debt and equity), please execute the Direction Letter and fax the executed copy directly to:

(i) Ann Roberts (fax 302-427-4749; phone 302-651-8681), (ii) Glen Kenton (fax # 302-658-6548; phone 302-651-7726), (iii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iv) Gina Karanthanos (fax 713-853-9252; phone 713-853-3376)

Ann Roberts/Glen Kenton - When you receive the executed copy of the Direction Letter, please execute the Prepayment Notice (attached to this e-mail as doc #259570) and fax the executed notice immediately to:

(i) Mercy Arango (fax 212-885-4909; phone 212-856-3862), (ii) Muriel McFarling (fax 214-659-4784; phone 214-659-4461), and (iii) Gina Karanthanos (fax 713-853-9252; phone 713-853-3376)

I will be out of the office tomorrow, and will therefore not be available to coordinate the delivery of the above documents. If you have any questions, comments or concerns, please call David Barbour at 214-659-4444.

- 258312rl.wpd - 258187rl.wpd - 258312.wpd - 258187.wpd - 259570.wpd

Message 1010 of 1118

RE: Return of LC

Sender	lisa.mellencamp@enron.com
Recipients	['sara.shackleton@enron.com', 'carol.st.@enron.com']
File	shackleton-s/inbox/172.

if the margin was a letter of credit and the contract has been terminated and we agree that we owe them money and letter of credit only covers that contract so could not draw if they owed us other money somewhere else, i think we will need to return. my view as to cash is likely to be different and thinking about that. do you all agree re the letter of credit??

-----Original Message-----

From: St. Clair, Carol Sent: Thursday, December 27, 2001 11:15 AM To: Mellencamp, Lisa Cc: Shackleton, Sara Subject: FW: Return of LC

Lisa: Another return of collateral request.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Brackett, Debbie R. Sent: Friday, December 21, 2001 2:44 PM To: Rohauer, Tanya; St. Clair, Carol Subject: RE: Return of LC

Looks like one deal, #VS4707.1 where we owe approx \$222,309.

-----Original Message-----

From: Rohauer, Tanya Sent: Friday, December 21, 2001 1:52 PM To: St. Clair, Carol Cc: Brackett, Debbie R. Subject: RE: Return of LC

debbie will have to check - deals have been removed from book so I do not have any feeds - I can't remember where the file is.

-----Original Message-----

From: St. Clair, Carol Sent: Thursday, December 20, 2001 4:30 PM To: Panus, Stephanie; Rohauer, Tanya; Brackett, Debbie R. Cc: Shackleton, Sara Subject: RE: Return of LC

Tanya and/or Debbie: What is the exposure situation with this counterparty?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Panus, Stephanie Sent: Thursday, December 20, 2001 12:08 PM To: Rohauer, Tanya; Brackett, Debbie R. Cc: Shackleton, Sara; St. Clair, Carol Subject: Return of LC

FYI -

I received a call from Ryan Youngblood of Kona Ltd. (281-820-7889) requesting the return of the letter of credit Kona posted to ENA in connection with an ISDA Master Agreement.

Message 1011 of 1118

FW: gas Counterparties

Sender	carol.st.@enron.com
Recipients	[edward.sacks@enron.com', 's..bradford@enron.com', 's..theriot@enron.com', 'leslie.reeves@enron.com']
File	shackleton-s/inbox/150.

Leslie: Could you please let me know if any of these counterparties owe us a payment before the 31st or if they have failed to pay us any amounts recently? Also, please let me know when you receive LG&E Marketing's payment today.

Ed and Bill: Have you heard anything from Enserco, El Paso Electric or LG&E Marketing? Let's talk later about what the next step is on all of the 12/31 LC's as I will be in today but out the rest of the week. Sara will fill in for me while I am gone. Is someone calculating a Termination Amount for Enserco?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: St. Clair, Carol Sent: Friday, December 21, 2001 2:32 PM To: Reeves, Leslie Cc: Shackleton, Sara; Mellencamp, Lisa Subject: gas Counterparties

Please check on:

Metromedia Energy, Inc. The Energy Authority Inc.

Also, can you verify that the following are current on financial payments:

Niagra Mohawk Energy Marketing Inc. Energy Production Corp. Rising Star Energy LLC

Thanks and have a great holiday!

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1012 of 1118

RE: Prime Brokerage Clearance Services Agreement

Sender	tom.doukas@enron.com
Recipients	[marie.heard@enron.com', 'sara.shackleton@enron.com', 'grice@enron.com', 'regan.grice@funb.com']
File	shackleton-s/inbox/392.

Regan,

The document is currently in our legal department for review and execution. Once they have reviewed the document and made any needed changes they will forward it on to you. Please let me know if you require this urgently.

Thanks,

Tom Doukas 713/853-9074

-----Original Message-----

From: Grice, Regan [mailto:regan.grice@funb.com] Sent: Friday, October 12, 2001 9:58 AM To: Doukas, Tom Subject: FW: Prime Brokerage Clearance Services Agreement

Mr. Doukas:

I'm just checking on the status of this agreement. Have you been able to take a look at it yet?

Thanks for your help,

Regan Grice Corporate & Investment Banking, Documentation Phone: 1-800-735-1470 or 704-593-7024 Fax: 704-593-7032

-----Original Message----- From: Grice, Regan Sent: Tuesday, October 02, 2001 12:10 PM To: 'tom.doukas@enron.com' Subject: Prime Brokerage Clearance Services Agreement Mr. Doukas: On September 27, we opened a prime brokerage account in the name Enron Credit Inc. Bear Stearns is acting as Prime Broker on this account, and First Union Securities, Inc. is executing your securities. The SEC requires the Clearing Broker (us) to have the attached agreement on file for our prime brokerage clients. If you would be so kind as to have this agreement signed, I would greatly appreciate it. If you have any questions, you can call me at 704-593-7024. Once it is completed, it can be faxed back to my attention at 704-593-7032. Thank you and best regards, Regan Grice First Union Capital Markets, Documentation Phone: 1-800-735-1470 or 704-593-7278 Fax: 704-593-7032 <<Enron Credit 151.doc>>

Message 1013 of 1118

FW: LC's and Collateral

Sender	carol.st.@enron.com
Recipients	['sara.shackleton@enron.com', 'brent.hendry@enron.com', 'r..brackett@enron.com', 'elizabeth.sager@enron.com', ...]
File	shackleton-s/inbox/70.

There are a handful of counterparties that have posted LC's with us that expire in december (some this week). What can we do if anything? If these relate to ISDA's might they have an obligation to renew since we are inside the 20 day period?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Brackett, Debbie R. Sent: Monday, December 10, 2001 4:38 PM To: St. Clair, Carol Subject: RE: LC's and Collateral

Carol,

This file represents in and out collateral, cash, LC, sureties and securities. The Onicas are still trying to reconcile the cash position with acctng and is subject to correction. I've sent you a margin report via interoffice mail....the downloaded file is pretty messy.

Let me know if you need anything else.

Thanks

-----Original Message-----

From: St. Clair, Carol Sent: Monday, December 10, 2001 10:53 AM To: Brackett, Debbie R.; Rohauer, Tanya Cc: Shackleton, Sara; Panus, Stephanie; Bailey, Susan Subject: LC's and Collateral

Debbie and/or Tanya: Could you please send me an updated list of LC's that we have posted and that have been posted to us. Also, could you please send me a margin report that sets forth margin posted to and from our trading counterparties? We will be beginning the process of responding to termination letters and this information will be helpful to us. Thanks.

Susan and Stephanie: For the global chart please set up a column for margin as we need to track margin that we have posted and margin that has been posted to us. Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1014 of 1118

FW: Confidentiality Waiver

Sender	sara.shackleton@enron.com
Recipients	[david.portz@enron.com]
File	shackleton-s/sent_items/720.

David: I left Debbie a message to get the scoop (netting issues with CP, etc.). Sara

-----Original Message-----

From: St. Clair, Carol Sent: Monday, November 12, 2001 12:38 PM To: Shackleton, Sara; Portz, David Cc: Brackett, Debbie R. Subject: FW: Confidentiality Waiver

Sara and David: Could you please handle this?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Brackett, Debbie R. Sent: Friday, November 9, 2001 4:36 PM To: St. Clair, Carol Subject: FW: Confidentiality Waiver

Tell us what you think...on Monday. Thanks for being there for us.

-----Original Message-----

From: Barbara_Morgen@aigi.com@ENRON Sent: Friday, November 09, 2001 4:27 PM To: Rohauer, Tanya; Bradford, William S.; Brackett, Debbie R. Cc: Peter_Galbraith@aigi.com; Brent_Gundlah@aigi.com; barbara.gray@enron.com Subject: Confidentiality Waiver

I am one of the attorneys with AIG Energy Trading Inc., which currently has various financial gas transactions with Enron North America Corp. and physical power transactions with Enron Power Marketing, Inc., subject to Enron's general terms and conditions. We have been approached by a third-party which would like to discuss with us the possibility of having us assign some or all of our positions to them. We would be interested in pursuing these discussions with the third party, subject to Enron's consent to waive the confidentiality restriction in the general terms and conditions with respect to these discussions. For your information, the third party has a credit rating of AA-/Aa3. We recognize, of course, that any assignment would be subject to Enron's consent.

Please call Brent Gundlah in our credit department at (203) 861-3368, or me, at (203) 861-3349 to discuss this.

Regards, Barbara Morgen AIG Energy Trading Inc. Assistant General Counsel & Vice President Tele: (203) 861-3349 Fax: (203) 861-3822 email: bmorgen@aigi.com

Message 1015 of 1118

Enron In Action 07.31.00

Sender	enron.announcements@enron.com
Recipients	[all.houston@enron.com]
File	shackleton-s/notes_inbox/1530.

Are you ready Mark your calendars for Who Wants To Help Millions?, the United Way to play? Kick-off 2000, Wednesday, August 9 at 11:30 a.m., following the employee meeting. The game show, made-up of Enron employee contestants, will be hosted by Channel 13's Don Nelson and features guest star lifelines. The kick-off will be followed by a free lunch in Antioch Park.

Enron, is that your final answer? If you have any questions please call Community Relations at 713.853.3908.

Enron Night At Tickets are STILL AVAILABLE On-line! Join us for the Astros game on Tuesday, August. Tickets are Enron Field only \$8 each, limit 1 pair per employee. Come support our own Jeff Skilling who will be throwing out the ceremonial 1st Pitch and Monica Rodriguez who will be singing the National Anthem. In addition, Enron and Polaroid will hand out Polaroid PopShots One Time Use Instant Cameras to the first 10,000 adults at the game. Click here to purchase your tickets or go through the Signature Shop on-line. For more information about the game, go to home.enron.com/cr.

17th Annual Celebrate the fight against crime with Houston's law enforcement authorities, Tuesday, August 1 from National Night Out 11:00 a.m. - 1:00 p.m. in Antioch Park. For more information, contact Marcia Broom at 713.853.5362.

The United Way Our big event is just around the corner and we need volunteers! If you are available on August 9 Kick-Off from 11 a.m.- 2 p.m. and are interested, please contact Rachel Feldt at 713.345.7629.

Astros Wives Gala The Houston Area Women's Center needs volunteers to assist with their formal fundraiser at Enron Field on Thursday, August 17. If you are interested, please contact Liz Garza at 713.528.6798, extension 273.

The Chairman's It's that time again! To help out with the communication launch of this annual employee-driven program, Award contact Rachel Feldt at 713.345.7629.

The Proyecto The Harris County Hospital District is seeking volunteers to assist new mothers and infants to initiate Leche de Vida breast-feeding. This project involves examining the relative cost of several intervention methods to increase breast-feeding rates and to promote healthy families by the year 2010. If you are interested, contact Judy Hopkinson at 713.798.7008. For more information, click here <http://home.enron.com/cr>.

Festa Italiana! The Federation of Italian-American Organizations of Houston is now recruiting volunteers for its annual Italian Festival held September 15-17. If you are interested, contact Rachel Feldt at 713.345.7629. For more information, click here <http://home.enron.com/cr>.

Hearing Screening Hear Ye! Hear Ye! It's time to get your hearing checked. Register now! Cost: \$10 Enron, August 22 \$25 Contractors. Checks only made payable to Enron Corp. Call the Health Center at 713.853.6100 to schedule an appointment.

The United Way touches 1 out of every 2 Houstonians.

Last year, Enron raised \$4.4 million for the United Way.

Message 1016 of 1118

Bear Stearns Payable to ENA for \$159,022

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/59.

Sara, ENA does not have a big balance with BS. I am taking a look at Enron Credit and will let you know. sg

Bear Stearns Balances and positions as of 11/30/01

Enron North America Cash Balances Positions

102-06157-1-0 - 750,000 Shares Kafus Industries, delisted on Canadian Dealing network, ceased trading on 1/18/2001
102-06157-2-8 6.78 USD 102-06159-1-8 (2,226,347.38) CAD 102-06159-2-6 2,226,347.38 CAD 102-06159-1-8
1,407,299.23 USD 102-06159.2.-6 (1,249,889.52) USD 102-06179-2-2 1,606.37 USD USD

159,022.86 payable to Enron North America

Message 1017 of 1118

FW: Need Approval to transact

Sender	carol.st.@enron.com
Recipients	['sheetal.patel@enron.com', 'sara.shackleton@enron.com', 'brent.hendry@enron.com', 'tana.jones@enron.com']
File	shackleton-s/inbox/63.

Brent: Please handle this per my voice mail message

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Patel, Sheetal Sent: Monday, December 10, 2001 3:19 PM To: St. Clair, Carol Cc: Aronowitz, Alan; Breslau, Craig
Subject: Need Approval to transact Importance: High

Carol/Alan:

Attached is a spreadsheet which contains details of the AirCanada deals we would like to unwind and receive payment.

We are unwinding a Dec01-Mar02 WT1 calendar month average swap that we sold to AirCanada. Rob Fuller's bid to unwind this deal is \$18.97 and it is discounted at Libor-flat.

Please call if you have any questions.

Thanks,

Sheetal

Sheetal Patel Enron North America Senior Analyst 713-853-6740 office 713-408-6443 cellular

Message 1018 of 1118

RE: Need Approval to transact

Sender	sheetal.patel@enron.com
Recipients	['sara.shackleton@enron.com', 'carol.st.@enron.com', 'brent.hendry@enron.com', 'craig.breslau@enron.com', 'tan...']
File	shackleton-s/inbox/77.

Carol/Brent:

AirCanada is ready to do this deal. Can we complete this transaction?

Thanks, Sheetal

-----Original Message-----

From: St. Clair, Carol Sent: Tuesday, December 11, 2001 9:13 AM To: Hendry, Brent Cc: Shackleton, Sara; Jones, Tana; Patel, Sheetal Subject: FW: Need Approval to transact Importance: High

Brent: Please handle this per my voice mail message

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Patel, Sheetal Sent: Monday, December 10, 2001 3:19 PM To: St. Clair, Carol Cc: Aronowitz, Alan; Breslau, Craig
Subject: Need Approval to transact Importance: High

Carol/Alan:

Attached is a spreadsheet which contains details of the AirCanada deals we would like to unwind and receive payment.

We are unwinding a Dec01-Mar02 WTI calendar month average swap that we sold to AirCanada. Rob Fuller's bid to unwind this deal is \$18.97 and it is discounted at Libor-flat.

Please call if you have any questions.

Thanks,

Sheetal

<< File: Air Canada Unwind_12.10.2001.xls >>

Sheetal Patel Enron North America Senior Analyst 713-853-6740 office 713-408-6443 cellular

Message 1019 of 1118

Re: AIG	
Sender	carol.clair@enron.com
Recipients	['caroline.abramo@enron.com', 'sara.shackleton@enron.com', 'frank.sayre@enron.com']
File	shackleton-s/notes_inbox/2164.

Caroline, The original AIG-Bermuda confirms that I did a few weeks ago that were sent to them had the opinion attached. They have seen it because they commented on it.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Caroline Abramo@ENRON 05/22/2001 07:37 AM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: Re: AIG

They do not have the document yet.. do they need for the confirm??

Carol St Clair @ ECT 05/21/2001 06:00 PM

To: Caroline Abramo/Corp/Enron@ENRON cc: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Paul Radous/Enron@EnronXGate, Sara Shackleton/HOU/ECT@ECT

Subject: Re: AIG

We need the Bermuda law legal opinion. What is the hold up?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Caroline Abramo@ENRON 05/21/01 03:33 PM

To: Carol St Clair/HOU/ECT@ECT cc: Paul Radous/Corp/Enron Subject: AIG

Carol= Paul is OK with raising the cross default amount... can we get out draft ISDAs to them???? AIG Commodity Arbitrage Ltd. and AIG Commodity Fund L.P.

Thanks, Caroline ----- Forwarded by Caroline Abramo/Corp/Enron on 05/21/2001 04:29 PM

----- Carol St Clair @ ECT 05/10/2001 09:00 AM

To: Caroline Abramo/Corp/Enron@Enron cc: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate

Subject: AIG

Caroline: I have received and reviewed their comments. On the legal front, they are objecting to the Bermuda law opinion. We cannot do this without an opinion. If we need to recommend Bermuda counsel to them we can. On the credit side, for AIG Commodity Arbitrage Fund LP they want to increase the cross default threshold from \$1,500,000 to \$2,500,000. Paul,

are you okay with this? I am okay with their other comments.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 1020 of 1118

RE: Revised Draft of SSB Trading Agreement

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/nelson/102.

Welcome Back Stephanie.

While you were out, I prepared "execution packages" for several brokerage agreements. I will forward to you the remaining ones that need to be sent out today and Monday. (See yesterday's email and report).

Please check the package to make sure everything is there and mail the originals SSB agreements to Sharon at the address on the top of the agreement. I have already faxed a copy to her.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 04/13/2001 10:12 AM -----

"Lawrance, Sharon D [EQTY]" <sharon.d.lawrance@ssmb.com> 04/11/2001 01:38 PM

To: "Cheryl.Nelson@enron.com" <Cheryl.Nelson@enron.com> cc: Subject: RE: Revised Draft of SSB Trading Agreement

Cheryl,

We can accept a the signed copy via fax. My fax number is 212 723-8695. I would request you send the originals to me in the mail and I will return a countersigned copy to your attention.

Sharon

-----Original Message-----

From: Cheryl.Nelson@enron.com [mailto:Cheryl.Nelson@enron.com] Sent: Tuesday, April 10, 2001 6:47 PM To: Lawrance, Sharon D [EQTY] Subject: Re: Revised Draft of SSB Trading Agreement

Sharon, we can live with this level of compromise. Thanx. so, I will print this and get signatures for execution.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

"Lawrance, Sharon

D [EQTY]" To: "cheryl.nelson@enron.com" <cheryl.nelson@enron.com> <sharon.d.lawrance cc:

@ssmb.com> Subject: Revised Draft of SSB Trading Agreement

04/10/2001 03:11

PM

Cheryl,

Please review the attached draft. As mentioned on the phone, a large portion of your requests were granted but there may be those that require further conversation. Should you have any questions call me.

<<SSMB_ETrade_Enron1.doc>>

Sharon Lawrance Electronic Trading Salomon Smith Barney (212) 723-7905 (212) 723-7700 desk (212) 723-8695 fax sharon.d.lawrance@ssmb.com

(See attached file: SSMB_ETrade_Enron1.doc)

Message 1021 of 1118

RE: Enron/APS ISDA

Sender	kathleen.muller@pinnaclewest.com
Recipients	['rod.nelson@enron.com', 'kim.ward@enron.com', 'susan.bailey@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/all_documents/2162.

Susan - Hope you enjoyed the Holiday! I was hoping to hear back from you by Tuesday of this week regarding our requested changes to your form ISDA. Please give me a call or and email so that we can finalize this ISDA.

Thanks and I look forward to hearing from you.

Kathleen Muller Senior Attorney Pinnacle West Capital Corporation Law Dept. Phone: (602) 250-2584 fax : (602) 250-3393 mail station: 8695 email: kathleen.muller@pinnaclewest.com

-----Original Message-----

From: Muller, Kathleen (Z69706) Sent: Thursday, May 25, 2000 11:06 AM To: 'Susan Bailey' Cc: Sara Shackleton; Rod Nelson; Kim Ward; McAdams, Steve R(Z70410); Young, Angela (Z99133); Murphy, Steve (Z69945); Paulk, Carol (Z73852); Muller, Kathleen (Z69706) Subject: RE: Arizona Public Service Company Importance: High

Susan - attached is our mark-up of your document - our requested changes are shown in red. We would very much like to get this document executed by tomorrow if possible. If it would help expedite the process please call me at 602 250-2584. Thanks very much for your quick turn around on this.

Kathleen Muller Senior Attorney Pinnacle West Capital Corporation Law Dept. Phone: (602) 250-2584 fax : (602) 250-3393 mail station: 8695 email: kathleen.muller@pinnaclewest.com

Message 1022 of 1118

Re: Yen Documentation

Sender	sara.shackleton@enron.com
Recipients	['Clement Abrams/Corp/Enron@Enron', 'shari.stack@enron.com']
File	shackleton-s/sent/6374.

I just received a message from Anna Chung (?) at Merrill re: the ENE master. Her number is 212-449-7494. I also left vm for Jeff to send down deemed ISDA's or other confirms. SS ----- Forwarded by Sara Shackleton/HOU/ECT on 02/02/2000 01:52 PM -----

Enron Global Finance

From: Jeff Nogid 02/02/2000 01:20 PM

To: Sara Shackleton/HOU/ECT@ECT, Shari Stack/HOU/ECT@ECT cc: Clement Abrams/Corp/Enron@Enron Subject: Re: Yen Documentation

Sara/Shari-

My contact @ MSDW is Anthony Barklam he will forward our ISDA to his legal dept.

Phone: 011-44-171-425-7705 Fax: 44 171 425 7994

The contact at Sumitomo Bank Securities is Matt Finch 212-224-5021 The contact at CSFB is Keith McNally 212-325-3633

I am waiting for ML to get back to me.

Thanks for your help

Jeff

----- Forwarded by Jeff Nogid/HOU/ECT on 02/02/2000 01:10 PM

Anthony.Barklam@msdw.com on 02/02/2000 01:03:36 PM To: Jeff Nogid/HOU/ECT@ECT cc: Subject: Re: Yen Documentation

If you want to send them over, send them to me and I'll nominate someone to oversee it. The guy that runs or legal side is called Harry Stanley on the same fax number, but I would address it to me and I'll forward it and make sure they understand the background. Is that OK ?

"Jeff Nogid" <Jeff_Nogid@enron.com> on 02/02/2000 18:45:27

To: Anthony Barklam/barklama/MSDW@MSDW

cc:

Subject: Re: Yen Documentation

Can I get a contact name and number in your documentation department? There has been a change of personnel on my side.

Thanks

Jeff

Message 1023 of 1118

FW: Master Netting priorities

Sender	mary.cook@enron.com
Recipients	['rick.antonoff@enron.com', 'athena.alexander@enron.com']
File	shackleton-s/inbox/1094.

if you are assigned to one of these, please advise Carol of the status and whether you are waiting on anything from credit, or need credit's assistance in moving forward.

THANKS.

-----Original Message-----

From: St. Clair, Carol Sent: Tuesday, November 13, 2001 12:52 PM To: Cook, Mary; Heard, Marie Subject: Master Netting priorities

Mary and Marie: Here is the list of priority agreements. Let me know which ones we are waiting on credit to proceed further.

TXU Coral Williams El Paso Calpine Mirant

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1024 of 1118

RE: Consensual Terminations

Sender	r..brackett@enron.com
Recipients	['tanya.rohauer@enron.com', 'sara.shackleton@enron.com', 'carol.st.@enron.com']
File	shackleton-s/inbox/53.

Carol,

We're still trying to collect all the documentation on exactly what was liquidated. We've asked the confirm to desk to provide what they have, and asked Tana to try to collect the outstanding.

We'll make sure to copy you guys so we're all in the same loop.

Thanks for your help,

Debbie

-----Original Message-----

From: St. Clair, Carol Sent: Thursday, December 06, 2001 7:12 PM To: Brackett, Debbie R.; Rohauer, Tanya Cc: Shackleton, Sara Subject: Consensual Terminations

Tanya or Debbie: Has this list been sent to Kim Theriot so that they can pull all of these out of the book?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1025 of 1118

RE: Coal Termination

Sender	alan.aronowitz@enron.com
Recipients	['sara.shackleton@enron.com', 'carol.st.@enron.com', 'michelle.bruce@enron.com', 'scott.earnest@enron.com', 'w...]
File	shackleton-s/inbox/49.

Wayne:

Please reply to Carol after you have been able to investigate.

Thanks, Alan

-----Original Message-----

From: St. Clair, Carol Sent: Thursday, December 06, 2001 1:24 PM To: Aronowitz, Alan; Gresham, Wayne Cc: Shackleton, Sara Subject: Coal Termination

Alan and Wayne: We received a letter from AEP Energy Services Inc. terminating all coal transactions with ENA as of 12/1. The letter states that they shall begin liquidating the contracts on 12/3. We have been instructed by Sally Beck's group to identify any terminated transactions that should be taken out of the book. Should these and if so, which transactions are these?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1026 of 1118

FW: Shipment [#733384]

Sender	sshackl@swbell.net
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/702.

-----Original Message-----

From: info@winebid.com [mailto:info@winebid.com] Sent: Wednesday, February 13, 2002 2:32 PM To: sshackl@swbell.net Subject: Shipment [#733384]

Dear Auction Winner,

This is to confirm that we have shipped your auction winnings, on 2/13/02 UPS 2nd Day.

The charge to your credit card is \$105.50 shipping and handling for the wine from the following auction:1/27/02

Please have an individual of at least 21 years of age available to sign for the shipment.

If you have any questions please call us at 888-638-8968 from within the US or 707-226-5893 from outside the US or reply to this email. Thank you very much for your patronage.

Best Regards,

Sandra Garcia Customer Support Phone: 866-946-3243 Ext. 228 Fax: 630-832-3733 <http://www.winebid.com> E-mail: info@winebid.com

Message 1027 of 1118

FW: Shipment [#733963]

Sender	sshackl@swbell.net
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/717.

-----Original Message-----

From: info@winebid.com [mailto:info@winebid.com] Sent: Monday, February 18, 2002 2:28 PM To: sshackl@swbell.net Subject: Shipment [#733963]

Dear Auction Winner,

This is to confirm that we have shipped your auction winnings, on 2/18/02 via UPS 2nd Day.

The charge to your credit card is \$26.50 for shipping and handling for the wine from the following auction:2/10/02

Please have an individual of at least 21 years of age available to sign for the shipment.

If you have any questions please call us at 888-638-8968 from within the US or 707-226-5893 from outside the US or reply to this email. Thank you very much for your patronage.

Best Regards,

Sandra Garcia Customer Support Phone: 866-946-3243 Ext. 228 Fax: 630-832-3733 <http://www.winebid.com> E-mail: info@winebid.com

Message 1028 of 1118

LC Docs	
Sender	carol.st.@enron.com
Recipients	['s..bradford@enron.com', 'sara.shackleton@enron.com', 'lisa.mellencamp@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/inbox/159.

Sara: Here are drafts of the Certificates and Sight Drafts for Niagara Mohawk, El Paso electric, LG&E Energy Marketing and Energy Production Corp. (just in case it wasn't renewed). I have put together files for each of these that include copies of the LC, the underlying trading docs and any correspondence that has been sent. Except for Niagara Mohawk which requires copies of the invoices and that the certificate be on "letterhead" there don't appear to be any other special requirements. Leslie Reeves will be faxing the invoices to us. I will be in tomorrow until around 11. Thanks for your help on this.

All of these docs are in a file called Enron Restructuring.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1029 of 1118

Enserco energy Inc.	
Sender	carol.st.@enron.com
Recipients	['tanya.rohauer@enron.com', 'sara.shackleton@enron.com', 's..bradford@enron.com', 'leslie.reeves@enron.com']
File	shackleton-s/inbox/138.

Bill: Here is what Enserco is willing to do:

They are willing to extend the term of the \$million LC to January 31st if we agree to extend the January due dates on settlement payments for physical gas and financial trades to January 31st. They believe that they have a good argument against our right to declare an Event of Default based on their failure to renew and the LC will expire on 12/31. It is questionable under the ISDA whether they are required to renew while we are in default.

Leslie:

I need to know what payments are owed in December and January between ENA and Enserco for physical gas and financial trades under the ISDA.

Lisa, Julia and Lou: Would EY need to approve this?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1030 of 1118

RE: LC Cancellations	
Sender	carol.st.@enron.com
Recipients	['veronica.gonzalez@enron.com', 'r..brackett@enron.com', 'wendy.conwell@enron.com', 'monica.reasoner@enron.com...']
File	shackleton-s/inbox/109.

Veronica: Please fax me copies of the LC's. What do they support? What is our exposure under each contract? What other trading relationships does Enron have with these entities?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Gonzalez, Veronica Sent: Tuesday, December 18, 2001 6:52 PM To: St. Clair, Carol Cc: Brackett, Debbie R.; Reasoner, Monica; Conwell, Wendy Subject: LC Cancellations Importance: High

Carol,

Sapient Energy Corp. and Edison Mission Marketing & Trading, Inc. have requested their Letter of Credit to be cancelled. Please advise.

Details: Sapient Energy Corp issued to Enron North America Corp. in the amount \$1,250,000, expiry 1/03/02

Edison Mission Marketing & Trading, Inc. issued to Enron Power Marketing, Inc. in the amount \$10,000,000, expiry 1/31/02

Thanks, Veronica

Message 1031 of 1118

RE: Entergy-Koch

Sender	lisa.mellencamp@enron.com
Recipients	['s..bradford@enron.com', 'sara.shackleton@enron.com', 'carol.st.@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/inbox/157.

if we agree. they are the calculation agent i am sure, but is this amount in the ballpark?? if we agree that do not have grounds to contest, then i think we are just collecting money unless you have heard something i haven't???

-----Original Message-----

From: St. Clair, Carol Sent: Wednesday, December 26, 2001 12:19 PM To: Bradford, William S.; Sacks, Edward Cc: Mellencamp, Lisa; Shackleton, Sara Subject: Entergy-Koch Importance: High

Bill and Ed: On 12/21, we received a letter from Entergy-Koch stating that their calculation of the Final Settlement Amount under the Master Netting Agreement results in a payment from them to Enron of \$10,384,673. They are awaiting payment instructions.

Can we verify this amount?

Lisa,

If we are okay with this amount, can they pay it to us without getting E&*Y's approval?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

Message 1032 of 1118

Collateral and LC Issues	
Sender	carol.st.@enron.com
Recipients	['sara.shackleton@enron.com', 'brent.hendry@enron.com', 'r..brackett@enron.com', 'elizabeth.sager@enron.com', ...]
File	shackleton-s/inbox/75.

Brent and Sara: Here is where we ended up yesterday after discussing the LC situation with Debbie:

1. Debbie and her group will initially review each LC that has been posted to Enron to determine if it is "transaction specific" or if it covers all trades with the counterparty. If it is transaction specific and the counterparty has performed, then no further action is required. If the counterparty has not performed then Debbie will work with us to see if a draw can be made.

2. If the LC covers all trades, Debbie will send copies of the LC and the transactions docs to me and we will determine what rights, if any, we have to draw. Each month, we will focus on those LC's that are due to expire that month.

Call me if you have any questions. We will distribute the work to the trading lawyers as the need arises.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1033 of 1118

RE: agreement	
Sender	rhackman@lehman.com
Recipients	['clint.freeland@enron.com', 'sara.shackleton@enron.com', 'tim.despain@enron.com']
File	shackleton-s/inbox/993.

Please fax the agreement to 646-758-4411 and 201-524-2080

Russell F. Hackmann, CFA Lehman Brothers Corporate Equity Derivatives (201) 524-2279 phone (917) 596-2936 cell rhackman@lehman.com

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Message 1034 of 1118

Re: Micron	
Sender	marie.heard@enron.com
Recipients	['sara.shackleton@enron.com', 'tanya.rohauer@enron.com']
File	shackleton-s/all_documents/4796.

I don't have copies of anything.

Marie Heard Senior Legal Specialist Enron Broadband Services Phone: (713) 853-3907 Fax: (713) 646-8537

Marie_Heard@Enron.net

Tanya Rohauer@ECT 11/20/00 10:26 AM

To: Marie Heard/Enron Communications@ENRON COMMUNICATIONS@ENRON cc: Sara Shackleton/HOU/ECT@ECT

Subject: Re: Micron

Can't you just make changes to the one we did for ENA?

Marie Heard@ENRON COMMUNICATIONS 11/20/2000 10:06 AM To: Tanya Rohauer/HOU/ECT@ECT cc: Michael

Moulton/Enron Communications@Enron Communications Subject: Micron

Tanya,

Will you send me a worksheet?

Thanks!

Marie Heard Senior Legal Specialist Enron Broadband Services Phone: (713) 853-3907 Fax: (713) 646-8537

Marie_Heard@Enron.net ----- Forwarded by Marie Heard/Enron Communications on 11/20/00 10:09 AM -----

Michael Moulton 11/20/00 09:56 AM

To: Marie Heard/Enron Communications@Enron Communications cc: Subject: Micron

Marie,

Can you put together an ISDA for Micron Technologies. I hope you had a great weekend. Please let me know if you need any additional information.

Thanks, ,

Mike

Message 1035 of 1118

RE: LC's

Sender	tom.moran@enron.com
Recipients	['carol.st.@enron.com', 'a..robison@enron.com', 'wayne.gresham@enron.com', 'j..leskowitz@enron.com', 'alan.aro...]
File	shackleton-s/inbox/117.

? Energy Service Providers LLC was set for payment of \$420,000 on 12-14-01. I have asked Mark Leskowitz to verify that payment was received.

? The \$3,922,500 L/C is associated with domestic crude deliveries to Trafigura AG. ERAC has shorted Trafigura on the deliveries and on a net basis, we owe them money on 12/20. We should let this l/c expire.

Regards, tm

-----Original Message-----

From: St. Clair, Carol Sent: Wednesday, December 19, 2001 3:23 PM To: Moran, Tom Cc: Aronowitz, Alan; Gresham, Wayne; Robison, Michael A.; Shackleton, Sara; Sager, Elizabeth Subject: LC's Importance: High

Tom: EGLI is holding a \$420,000 LC that expires 12/21/01 covering a deal with Energy Service Providers LLC. According to our records, this deal has terminated. Have we been paid? Are we owed anything? Would we have any grounds for drawing prior to the expiry date?

ERAC is also holding a \$3,922,500 LC that expires on 12/21. What is the status of this deal? Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax)

carol.st.clair@enron.com

Message 1036 of 1118

LC Update	
Sender	carol.st.@enron.com
Recipients	['s..bradford@enron.com', 'sara.shackleton@enron.com', 'lisa.mellencamp@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/inbox/155.

Bill and Ed:

Here's an update:

- Enserco Energy has renewed their LC. I should be getting a faxed copy shortly and bill will receive the original. - Kim Theriot confirmed that there are no outstanding trades with Simpson Tacoma Kraft Company. - Leslie Reeves confirmed that there are no outstanding amounts due by Metromedia Energy. Has anyone found the LC? I have asked Kim T. to locate the trade docs. - Leslie Reeves confirmed that The Energy Authority closed out their positions with ENA. - Energy Production Corp.'s LC automatically renews for 1 year periods unless we received a notice from Chase of its intention not to renew 90 days prior to expiration.

Is all of this info consistent with credit's records?

That leaves Niagra Mohawk Energy Marketing, El Paso Electric, Rising Star Energy LLC and LG&E Energy Marketing. Out of those CP's, only LG&E owes us a payment. I am waiting to hear back from Leslie regarding payments owed by Niagra and Rising Star. I have asked Kim to send me the trading docs from Niagra.

Alan Aronowitz is working with someone in credit on settlements on the Vitol LC.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1037 of 1118

RE: Texex Energy Partners	
Sender	carol.st.@enron.com
Recipients	['max.sonnonstine@enron.com', 'lisa.mellencamp@enron.com', 't..hodge@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/inbox/536.

Max: Have you sent to Sara a copy of the LC? If not, please do so ASAP.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Mellencamp, Lisa Sent: Tuesday, January 8, 2002 10:02 PM To: Sonnonstine, Max; Hodge, Jeffrey T.; St. Clair, Carol Subject: RE: Texex Energy Partners

did this get taken care of as not sure i understand all the facts??

-----Original Message-----

From: Sonnonstine, Max Sent: Fri 1/4/2002 4:24 PM To: Hodge, Jeffrey T.; Mellencamp, Lisa; St. Clair, Carol Cc: Subject: Texex Energy Partners

Good Afternoon, Credit has an issue with Texex Energy Partners that you should be aware of. We received an amendment of an LC that reduces the coverage amount to \$4mm and extends the expiry date to 1/15/02. It covers physical MTM which we are in the money approx \$2mm. I assume that we are not performing on these contracts (some go out to 6/02), but Texex has not terminated. I believe we should call Texex to extend the LC to protect the value of these contracts and if they refuse, we terminate and draw on the current LC. Do you buy into this strategy? Please advise at your convenience.

Thanks,

Max Sonnonstine x58261

Message 1038 of 1118

ENE- Forward Termsheet and Forward Confirmation Template

Sender	jeff.nogid@enron.com
Recipients	['sara.shackleton@enron.com', 'jill.erwin@enron.com']
File	shackleton-s/all_documents/2935.

Sara/Jill -

Here is a termsheet and sample confirmation for the termination of the Total Return Swaps and the booking of a Forward Purchase contract.

JEff ----- Forwarded by Jeff Nogid/HOU/ECT on 08/09/2000 04:11 PM

"Lyons, Maureen (CICG - Equity Linked Capital Markets)" <malyons@exchange.ml.com> on 08/09/2000 04:17:50 PM To: "jeff.nogid@enron.com" <jeff.nogid@enron.com> cc: Subject: ENE- Forward Termsheet and Forward Confirmation Template

Hi Jeff,

Per our conversation this afternoon, I have attached the draft forward purchase termsheet and forward transaction confirmation template for your review. Please give us a call to discuss terminating the Total Return Swap as of Friday, 08/04/2000, and entering into a forward purchase contract at your earliest convenience.

If you have any questions or need additional information, please let us know. We are looking forward to speaking with you soon!

<<ENE-Forward-Draft termsheet.doc>> <<Forward-Confirmation-Template-8-9.doc>>

Thank you, Maureen Lyons Merrill Lynch Equity Linked Capital Markets 212-449-6763 (T) 212-738-1069 (F)

Maureen Lyons Merrill Lynch Equity Linked Capital Markets 212-449-6763 (T) 212-738-1069 (F)

- ENE-Forward-Draft termsheet.doc - Forward-Confirmation-Template-8-9.doc

Message 1039 of 1118

Ethical Concerns for Corporate Counsel -- Online CLE Program -

Sender	info@attorneysed.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2265.

TO FIND OUT MORE INFORMATION ABOUT WHETHER THIS PROGRAM IS ELIGIBLE FOR CLE CREDIT IN YOUR STATE CLICK HERE: <http://www.celesq.com/index.asp?cat=19906>

Hi,

Earn three hours of CLE credit in Ethics by reading this course, Ethical Concerns for Corporate Counsel, by Robert J. Anello, Esq. & Catherine Foti, Esq.(see link below), and completing the Affirmation of Self-Study. Mail your Affirmation with a check for \$59. You will receive a CLE Certificate of Completion from Celesq within three weeks. If you wish to have quicker turnaround of your certificate, please call us at 800/989-3834. Click here to view this course:
<http://www.celesq.com/index.asp?cat=18373>

Special Platinum Subscription offer - Because you are In-House Counsel, you are eligible for a special discount pricing offer. Click here for details: <http://www.celesq.com/index.asp?cat=19735>

For more information and/or to review our complete course catalog, please visit:
<http://www.celesq.com/index.asp?cat=19735>.

For your convenience, you will receive a different CLE course delivered right to your e-mail box monthly at a discounted price.

Sincerely,

customer.care@celesq.com 561/241-1919

This email was sent to sara.shackleton@enron.com. If you have received this e-mail in error, please reply to this e-mail and type remove in the subject line.

Message 1040 of 1118

TD prepay guarantees

Sender	robert.bruce@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/55.

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com
----- Forwarded by Robert Bruce/NA/Enron on 12/11/2000 12:37 PM -----

Robert Bruce Sent by: Robert Bruce 12/11/2000 12:20 PM

To: Clement Abrams/Corp/Enron@ENRON cc: Sara Shackleton/HOU/ECT; mvonbock@enron.com Subject: TD prepay guarantees

Clement, as we discussed this morning, Credit Suisse First Boston International (CSFBI) and Morgan Stanley Capital Group are requesting unlimited guarantees of ENA's obligations under the prepay swaps. We already have an unlimited guaranty in place for the benefit of Toronto Dominion (issued in connection with the 1998 master); word from London is that we are arguing with them as to whether we have to provide a stand-alone unlimited guaranty specific to this transaction.

In any event, we will have to execute at least two new unlimited guaranties on behalf of Enron Corp. (assuming Ben Glisan approves). Enclosed is a draft that I propose using as a template, red-lined to show revisions from our standard form of financial trading guaranty:

By copy to Sara and Marcus, I ask them to provide any comments to this draft that they feel appropriate. I would like to get your approval before I send clean drafts based on this form to the counterparties. Thanks -- Bob

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 1041 of 1118

Re: DKR (AIG)

Sender	carol.clair@enron.com
Recipients	['paul.radous@enron.com', 'russell.dyk@enron.com', 'caroline.abramo@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/carol_stclair/12.

Caroline: We still do not have a Bermuda law legal opinion from them and I spoke to Russell and e-mailed you about this some time ago.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Caroline Abramo@ENRON 05/21/01 06:56 AM

To: Carol St Clair/HOU/ECT@ECT cc: Russell Dyk/Corp/Enron@ENRON, Robyn Zivic/NA/Enron@Enron, Paul Radous/Corp/Enron Subject: DKR (AIG)

Carol- I know you are out today.. but can you let me know today if we have answered DKR (AIGs) questions and received back confirms from them.. We did another deal with them on Friday. I'd like to get them ISDA's for their two entities.. why have we not sent these out again???

Regards, Caroline ----- Forwarded by Caroline Abramo/Corp/Enron on 05/21/2001 07:49 AM

From: Russell Dyk 05/07/2001 06:10 AM

To: Carol St Clair/HOU/ECT@ECT cc: Caroline Abramo/Corp/Enron@Enron, Robyn Zivic/NA/Enron@Enron

Subject: DKR

Carol, Hope you had an enjoyable retreat in San Antonio. While you were away I spoke to a guy named Jeff Kahl, who is handling trade confirmations for DKR (the energy fund of AIG). He had some questions about confirms that we sent him for a fuel oil crack spread trade done in April. I directed him to you, and asked him to call you on Monday. You can call me in NYC (212 702 3914) if you have any questions. Jeff's number is 203 324 8480. Regards, Russ

Message 1042 of 1118

AIG

Sender	carol.clair@enron.com
Recipients	['frank.sayre@enron.com', 'sara.shackleton@enron.com', 'caroline.abramo@enron.com']
File	shackleton-s/carol_stclair/10.

Frank and/or Sara: I am now fully engaged on power deals. Given the fact that an ISDA has not yet been sent out, could one of you please handle this?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 05/21/01 05:57 PM -----

Caroline Abramo@ENRON 05/21/01 03:33 PM

To: Carol St Clair/HOU/ECT@ECT cc: Paul Radous/Corp/Enron Subject: AIG

Carol= Paul is OK with raising the cross default amount... can we get out draft ISDAs to them???? AIG Commodity Arbitrage Ltd. and AIG Commodity Fund L.P.

Thanks, Caroline ----- Forwarded by Caroline Abramo/Corp/Enron on 05/21/2001 04:29 PM

----- Carol St Clair @ ECT 05/10/2001 09:00 AM

To: Caroline Abramo/Corp/Enron@Enron cc: Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Paul Radous/Enron@EnronXGate

Subject: AIG

Caroline: I have received and reviewed their comments. On the legal front, they are objecting to the Bermuda law opinion. We cannot do this without an opinion. If we need to recommend Bermuda counsel to them we can. On the credit side, for AIG Commodity Arbitrage Fund LP they want to increase the cross default threshold from \$1,500,000 to \$2,500,000. Paul, are you okay with this? I am okay with their other comments.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 1043 of 1118

RE: Texex Energy Partners

Sender	max.sonnonstine@enron.com
Recipients	['sara.shackleton@enron.com', 't..hodge@enron.com']
File	shackleton-s/confirm____hickerson/3.

Jeff, I am faxing the LC and amendments to you this morning to 646-3490. Sara, to what number shall I send this to?

thanks,

Max

-----Original Message-----

From: St. Clair, Carol Sent: Friday, January 04, 2002 5:17 PM To: Sonnonstine, Max Cc: Brackett, Debbie R.; Rohauer, Tanya; Hodge, Jeffrey T.; Shackleton, Sara Subject: RE: Texex Energy Partners Importance: High

Max: Please send to Sara Shackleton and Jeff Hodge copy of the LC and all amendments.

Tanya and Debbie: Is Monica working on sending us copies of all of the LC's that expire this month?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Sonnonstine, Max Sent: Friday, January 4, 2002 4:24 PM To: Hodge, Jeffrey T.; Mellencamp, Lisa; St. Clair, Carol Subject: Texex Energy Partners

Good Afternoon, Credit has an issue with Texex Energy Partners that you should be aware of. We received an amendment of an LC that reduces the coverage amount to \$4mm and extends the expiry date to 1/15/02. It covers physical MTM which we are in the money approx \$2mm. I assume that we are not performing on these contracts (some go out to 6/02), but Texex has not terminated. I believe we should call Texex to extend the LC to protect the value of these contracts and if they refuse, we terminate and draw on the current LC. Do you buy into this strategy? Please advise at your convenience.

Thanks,

Max Sonnonstine x58261

Message 1044 of 1118

RE: EPMI LC's

Sender	lisa.mellencamp@enron.com
Recipients	[david.portz@enron.com', 'carol.st.@enron.com', 'harlan.murphy@enron.com', 'elizabeth.sager@enron.com']
File	shackleton-s/inbox/136.

i have spoken to bill and he is getting his group to go thru these today. i realize there may be valuation issues but the counterparty can raise and we discuss. -----Original Message----- From: Rohauer, Tanya Sent: Thursday, December 20, 2001 3:03 PM To: St. Clair, Carol Cc: Sager, Elizabeth; Portz, David; Murphy, Harlan; Hansen, Leslie; Mellencamp, Lisa; Nettelton, Marcus; Shackleton, Sara; Bradford, William S.; Reasoner, Monica; Brackett, Debbie R. Subject: RE: EPMI LC's

I doubt it as I do not believe any margin calls have been made since our filing; Monica should confirm this. Unfortunately, we do not have clarity on the valuations, thus we do not know if we are truly entitled to continue to hold the LCs. We can always call for a renewal assuming the same exposures and wait for them to dispute it.

Tanya

-----Original Message-----

From: St. Clair, Carol Sent: Thursday, December 20, 2001 12:00 PM To: Rohauer, Tanya Cc: Sager, Elizabeth; Portz, David; Murphy, Harlan; Hansen, Leslie; Mellencamp, Lisa; Nettelton, Marcus; Shackleton, Sara; Bradford, William S. Subject: EPMI LC's Importance: High

Tanya: The LC's that have been posted to us by El Paso, LG&E and Niagra Mohawk have language that permits us to draw if we have made a request for alternate security, none has been provided and fewer than 20 days are left prior to expiration. Was this done?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 1045 of 1118

nan

Sender	robert.bruce@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/notes_inbox/554.

Sara, below is the "floating price" definition we discussed. FYI, I talked to Joe on two other issues: (1) He agreed that longer-term it would be desirable to come up with a form-generating technology such that a definition of "Delivery Date" is inserted only when relevant (i.e., triggered by the particular reference price mentioned), so we will keep that in mind, and (2) He is aware of the errors in the "Cash Settlement Amount" definition ("Multiplied" is capitalized; "price" in "Strike Price Differential" is not; a couple of spaces don't belong, etc.). I didn't completely understand his explanation, but it was something to the effect that this had snuck in from an ERMS form and he is already talking to the right person about getting it fixed.

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com
----- Forwarded by Robert Bruce/NA/Enron on 10/26/2000 11:48 AM -----

Robert Bruce Sent by: Robert Bruce 10/26/2000 11:48 AM

To: Larry Joe Hunter/HOU/ECT@ECT cc: Subject:

As we discussed, here is the language for the "Floating Price" definition:

The arithmetic average of the daily prices for all calendar days during the Calculation Period, the price for each such calendar day being the "Flow date: Midpoint: Citygates: Chicago - LDCs, large e-us" price as published under the heading "Daily Price Survey" in Gas Daily

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 1046 of 1118

RE: Draft Execution Copy - Enron PrimeTrade Agreement /Installati

Sender	guillaume.dedalmas@csfb.com
Recipients	['gary.hickerson@enron.com', 'sara.shackleton@enron.com', 'ellen.su@enron.com', 'jacqueline.didier@csfb.com', ...]
File	shackleton-s/notes_inbox/1068.

Good morning Sarah and Jackie. ? Do we now have an agreement on the PrimeTrade access agreement ?? If yes could you fax it to me @ 603-250-4916. This will then allow us to focus on the clearing docs.? Please note that these clearing docs are signed by a large number of international/supranational organizations as well as US government agencies. As such they should not represent any difficulties and should not be contentious. Thanks for the list of traders received yesterday, I will start the process of getting them logins as soon as the documents are signed and the software installed I plan to fly to?Houston and train everybody. ? ? PS Ellen could you give me the name of the person who will install the CD I sent you on your network...he should contact my IT colleague Mr. Sachin Joshi? 212-325-8926? & sachin.joshi@csfb.com and get assistance from him to install the software. ? Please do not hesitate to call me with any questions ? Regards ? Guillaume -----Original Message----- From: Didier, Jacqueline Sent: Wednesday, September 13, 2000 12:20 PM To: 'sara.shackleton@enron.com' Cc: De Dalmás, Guillaume Subject: Draft Execution Copy - Enron PrimeTrade Agreement Importance: High

Please review the attached and let me know if it is acceptable for the preparation of execution copies.? I will be sending a revised draft of the Futures Clearing Agreement based on Enron's comments this afternoon.? Thank you. ?

Jacqueline Didier Legal and Compliance Department CREDIT | FIRST SUISSE | BOSTON Phone: 212-325-4129 Fax: 212-325-8282

Message 1047 of 1118

FW: Societe Generale Letter of Credit Drawing due to Vitol's

Sender	carol.st.@enron.com
Recipients	['sara.shackleton@enron.com', 'lisa.mellencamp@enron.com', 'edward.sacks@enron.com']
File	shackleton-s/inbox/158.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Aronowitz, Alan Sent: Wednesday, December 26, 2001 1:04 PM To: Hagelmann, Bjorn Cc: Bradford, William S.; Moran, Tom; Bruce, Michelle; Nowlan Jr., John L.; St. Clair, Carol; Rohauer, Tanya Subject: Societe Generale Letter of Credit Drawing due to Vitol's failure to pay Importance: High

Pursuant to my discussion with you earlier today, attached are the following items for your use in preparing for the drawing:

1) Sight Draft form ("Sight Draft"); 2) Statement of Beneficiary (Enron Clean Fuels Company) ("Statement").

Please make sure that the amount is completed in the form of the Sight Draft before it is signed by a representative of Enron Clean Fuels Company. The dollar amount should be spelled out just like a check on the line below "Pay to the Order".

Also, please make sure that the amount is typed in for the first paragraph of the Statement. Then, have the Statement signed by a representative of Enron Clean Fuels Company.

As we discussed, in order to do a draw under the L/C we must present at SG's counters in NY on or before December 28, 2001 the following:

A copy of the commercial invoice covering 30,000 barrels plus or minus 5% of MTBE delivered basis Houston, Tx at USD 0.7225 per gallon delivered during November 2001 (telex/telecopy acceptable); Copy of document(s) issued or cosigned by an independent inspector indicating quantity and quality as invoiced (telex/telecopy acceptable); Signed Statement Signed Sight Draft

If you have any questions, please call me.

Regards, Alan

Message 1048 of 1118

calculation

Sender	rhackman@lehman.com
Recipients	[clint.freeland@enron.com', 'jim.armogida@enron.com', 'angie.karna@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/inbox/1064.

Clint,

Here is the calculation again. As discussed, the forward price was dropped from the 1/4/02 settlement date level back to the unwind settlement date of 11/6/01. For a note issued on 11/6/01, interest should be calculated to the note maturity date of 12/3/01.

Please let us know when the note is ready to be picked up, and we will send someone over.

Regards,

Russell F. Hackmann, CFA Lehman Brothers Corporate Equity Derivatives (201) 524-2279 phone (917) 596-2936 cell rhackman@lehman.com

-----Original Message----- From: Hackmann, Russell Sent: Thursday, November 01, 2001 4:45 PM To: Clinton Freeland (E-mail); Timothy Despain (E-mail) Subject: calculation <<unwind value.xls>> This is the calculation for the forward price on 11/6. It does not include the value of the additional consideration. Russell F. Hackmann, CFA Lehman Brothers Corporate Equity Derivatives (201) 524-2279 phone (917) 596-2936 cell rhackman@lehman.com

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- unwind value.xls

Message 1049 of 1118

FW: Enron Net Works and Enron Global Strategic Sourcing announce

Sender	sara.shackleton@enron.com
Recipients	[sshackl@swbell.net]
File	shackleton-s/sent_items/253.

-----Original Message-----

From: ENE-NS03/Enron@ENRON On Behalf Of Derryl Cleaveland.@ENRON Sent: Thursday, October 25, 2001 6:07 PM
To: All Enron Worldwide@ENRON Subject: Enron Net Works and Enron Global Strategic Sourcing announce new procedure for using 800-97-Enron telephone number

As you know, Enron Net Works (ENW) and Enron Global Strategic Sourcing (GSS) recently executed a two-year agreement, whereby MCI WorldCom would serve as Enron's primary telecommunications provider. In our previous communication, we indicated that we would provide you with more detailed information as it became available.

Beginning Friday, October 26, 2001 at 9 a.m. C.S.T, the procedure for calling Enron's Houston offices from international locations, excluding Canada, using the 800-97-Enron phone number will change. The new procedure is as follows:

1. Please dial the WorldPhone International Access number for the country where you are located (country access code), which is available on the attached wallet card, accessible through the following link:
<http://home.enron.com:84/messaging/mciannouncement.doc>. 2. You will then be prompted for your PIN number. Since calling cards and pin numbers are not required to use this service, all users should respond by dialing 1-800-97-ENRON or 1-800-973-6766. 3. You will then be asked to enter your destination. Please dial 0-800-97-Enron (800-973-6766) to reach Enron's corporate offices in Houston.

This procedure can only be used to call 800-97-Enron from WorldPhone International locations. If you are calling from the U. S. or Canada, please continue to dial 1-800-97-ENRON.

If you have questions regarding commercial aspects of this agreement, please feel free to contact Tom Moore, GSS senior contract manager at 713-345-5552. For technical issues, please contact Hasan Imam, ENW IT manager at 713-345-8525.

Message 1050 of 1118

CSFB Prepay

Sender	dan.boyle@enron.com
Recipients	[mary.cook@enron.com', 'sara.shackleton@enron.com', 'mark.fondren@enron.com', 'e-mail <james@enron.com']
File	shackleton-s/inbox/236.

Please consider the distribution list of this email as the Enron working group for the CSFB Prepay. I have included James Moran at CSFB and ask that James advise us as to the individuals within CSFB that should receive documents.

Mary Cook, in coordination with Sara Shackleton, hopes to distribute this evening a marked copy of the swap confirmations that address the margin issues that were discussed today.

Term, rates, amount, and settlement dates will be blank but will need to address the expanded transaction. The existing \$150 will mature in one year while the incremental \$200 will mature the first week of April 2002. The confirmations will be based on the CSFB International Master ISDA agreement. We will have to determine the optimal method to address the CSFB Cayman Island entity.

James Moran:

We would like to schedule a time with your internal counsel as early as possible on Tuesday to discuss the modifications. Please advise us as to availability.

Treasa:

We have a call scheduled for 7:30 am Houston time with Houston (Paul Garcia) and London (Ann Hicks) cash management to discuss the funds flow mechanics.

Could you confirm with your traders the appropriate settlement period and any limitations of the existing deal. I assume that we have to price the existing \$150 and the incremental \$200 on September 26 to settle on Friday September 28. There can be no slippage.

Could you also distribute a draft of the prepay script?

Mary and Sara:

We will need to confirm who will be executing the documents for Enron, confirms as well as corporate guaranty?

Mary Perkins:

I will need to update you as well and discuss some other aspects of the transaction.

My contact information is below. My home phone number is 281-480-5968.

Dan O. Boyle Vice President Enron Global Finance Phone: 713-853-1532 Mobile: 713-417-3532 Pager: 877-390-2838 Skytel PIN: 880FBF5

Message 1051 of 1118

Re: Allegheny: Draft Side Letter and Amendment Agreement

Sender	janice.moore@enron.com
Recipients	['sara.shackleton@enron.com', 'aklodow@alleghenyenergy.com', 'teiglandl@sullcrom.com']
File	shackleton-s/all_documents/9813.

Lauren -- Just to confuse things a bit more, I'm only doing the physical power side of this deal. Sara Shackleton, a colleague in our Swaps Group, will be handling the financial trades piece of this deal. Her email address is "sshackl@enron.com" and I've copied her on this email so she can see the side letter you drafted. Regards, Janice

EB3811 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-3490) ----- Forwarded by Janice R Moore/HOU/ECT on 03/15/2001 08:47 AM -----

Shari Stack 03/15/2001 08:40 AM

To: TeiglandL@sullcrom.com@ENRON cc: aklodow@alleghenyenergy.com, EveraertN@sullcrom.com, GilbergD@sullcrom.com, IMCEAGWISE-GWGateB+2ENYGWIA01+2E+22YYaish+40exchange+2Eml+2Ecom+22@sullcrom.com, lpeddic@alleghenyenergy.com, torr@exchange.ml.com, Tracy Ngo/PDX/ECT@ECT, Janice R Moore/HOU/ECT@ECT
Subject: Re: Allegheny: Draft Side Letter and Amendment Agreement

Lauren -

Thank you for your VM. One of my colleagues, Janice Moore, will be handling this matter instead of me from now on. If you need to contact her - she can be reached on (713) 853-1794. Her email address is "Janice.R. Moore@enron.com".

I have copied Janice on this email.

Thanks,

Shari Stack Senior Counsel Enron North America, Legal Department Tel: (713) 853-9477

TeiglandL@sullcrom.com 03/15/2001 12:06 AM

To: sstack@enron.com cc:

IMCEAGWISE-GWGateB+2ENYGWIA01+2E+22YYaish+40exchange+2Eml+2Ecom+22@sullcrom.co m,
GilbergD@sullcrom.com, EveraertN@sullcrom.com, lpeddic@alleghenyenergy.com, aklodow@alleghenyenergy.com,
torr@exchange.ml.com Subject: Allegheny: Draft Side Letter and Amendment Agreement

Dear Shari: Per my voicemail, please find attached drafts of the above agreements (in one document) which we have prepared on behalf of our client, Allegheny Energy. I have attempted to incorporate the credit terms that were agreed late this evening between Tracy Ngo and Tom Orr; however, please note that these drafts have not been reviewed by them nor by anyone at Allegheny. Therefore these drafts remain subject to their review and comment. Please let me know if you have any questions or comments. Thanks.

<<Allegheny ENRON side letters(v1).DOC>>

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

- Allegheny ENRON side letters(v1).DOC

Message 1052 of 1118

Enron -- Goldman Sachs Futures Documentation

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'ficc-nyfutlegal <ficc-nyfutlegal@ny.email.gs.com>', 'Wenger', 'Lynsey']
File	shackleton-s/notes_inbox/2336.

Sara. Goldman agreement. sg ----- Forwarded by Sheila Glover/HOU/ECT on 04/30/2001 06:34 PM

"Mordini, Elisa" <elisa.mordini@gs.com> on 04/30/2001 03:49:49 PM To: "sheila.glover@enron.com"
<sheila.glover@enron.com> cc: ficc-nyfutlegal <ficc-nyfutlegal@ny.email.gs.com>, "Wenger, Lynsey"
<lynsey.wenger@gs.com> Subject: Enron -- Goldman Sachs Futures Documentation

Sheila,

As requested by Lynsey Wenger, attached for your review and use is our futures documentation (in pdf format). Booklet I contains the actual futures account agreement; Booklet II contains disclosures for your review and retention.

I am providing you with the below checklist to facilitate your efforts in gathering the appropriate supporting documentation to provide us when opening a futures account.

Supporting Documentation to be provided with fully executed Futures Account Agreement

* IRS Form W-8 or W-9, as applicable, must be fully completed/executed..

* Documents that authorize the use of futures and establish the client's existence:

For the corporation, a certified resolution, internal investment guidelines and/or operating agreement.

For a pension - a trust agreement.

* Audited financials.

* Signature authority (generally in the form of a resolution).

Please call me at 212 902-0861 if you have any questions.

<<BOOK 1 MASTER JANuary 1999 (2).pdf>> <<BOOK 2 MASTER FEB 2001.pdf>> <<fw8ben.pdf>> <<iw8ben.pdf>>
<<fw9.pdf>>

Elisa ~~~~~ Elisa Mordini Legal Dept - Futures Services Goldman, Sachs & Co. Tel: (212) 902-0861 Direct Fax: (212) 428-1645 Dept Fax (212) 357-1049 elisa.mordini@gs.com

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- BOOK 1 MASTER JANuary 1999 (2).pdf - BOOK 2 MASTER FEB 2001.pdf - fw8ben.pdf - iw8ben.pdf - fw9.pdf

Message 1053 of 1118

ABN AMRO Futures Agreement

Sender	shari.stack@enron.com
Recipients	['marie.heard@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/australia/23.

Can one of you pls respond to him? His telephone no. in Sydney is 612 9259 5886. I spoke with Shane Dallman (our trader in Sydney) today and he asked again about this agreement.

Thanks,

Shari ----- Forwarded by Shari Stack/HOU/ECT on 03/30/2000 05:45 PM -----

David.Kennedy@au.abnamro.com on 03/30/2000 05:36:23 PM To: "Shari Stack" <Shari.Stack@enron.com> cc: Subject: Re: Execution agreement

Shari,

Thought I might just touch base to see if you received the documents that I sent to you. If by chance you haven't received them, then please let me know and I will see what happened to them. Talk to you soon.

Regards Dave

"Shari Stack" <Shari.Stack@enron.com> on 15/03/2000 02:13:15

To: David Kennedy/AU/ABNAMRO/NL cc: "Shane Dallmann" <Shane.Dallmann@enron.com> Subject: Re: Execution agreement

Hello David - Nice to hear from you. We would be happy to have a futures agreement with ABN in Sydney and we will be dealing in the name of Enron North America Corp.

As you know we have a futures agreement in place with ABN AMRO Inc. and it was heavily negotiated. I would appreciate it if you could have a look at that agreement since we will be asking for substantially the same changes in the ABN AMRO Sydney Agreement. I negotiated it with Maureen Guilfoyle who is a Sr. VP in your Chicago office. Her fax no is 312-855-5284. Tel: 312-855-3772.

My contact details are: tel: 713-853-9477/fax: 713-646-3490 and you already know my email address. You are welcome to send me the document either by fax or ny email.

Kind regards,

Shari Stack

David.Kennedy@au.abnamro.com on 03/13/2000 11:18:50 PM

To: Shari Stack/HOU/ECT@ECT cc: Subject: Execution agreement

Shari,

Hello, my name is David Kennedy of ABN AMRO Futures in Sydney. I met with Shane Dallman of your Sydney branch and had discussions regarding doing some execution into the Australian market. He seems comfortable with us doing this, and therefore has asked me to make contact with you, in regards to documentation. We presently have documents in place for the U.S, but for Shane to be able to trade in the Australian market we require new documents for the Sydney branch. If possible, it would help if you could supply me with the correct name that need to be on the documents. Once I have received this info I will send the documents to you for signing.

Please feel free to email me with any questions you have regarding this process, or call on 612 9259 5886.

Yours faithfully

David Kennedy Director Head of Futures

Message 1054 of 1118

Enron -- Goldman Sachs Futures Documentation

Sender	sheila.glover@enron.com
Recipients	['sara.shackleton@enron.com', 'michael.kustra@morganstanley.com']
File	shackleton-s/notes_inbox/2317.

Michael, This is the documentation I received from Goldman Sachs for Futures Account opening docs. Thanks Sheila
----- Forwarded by Sheila Glover/HOU/ECT on 05/01/2001 02:59 PM -----

"Mordini, Elisa" <elisa.mordini@gs.com> on 04/30/2001 03:49:49 PM To: "sheila.glover@enron.com" <sheila.glover@enron.com> cc: ficc-nyfutlegal <ficc-nyfutlegal@ny.email.gs.com>, "Wenger, Lynsey" <lynsey.wenger@gs.com> Subject: Enron -- Goldman Sachs Futures Documentation

Sheila,

As requested by Lynsey Wenger, attached for your review and use is our futures documentation (in pdf format). Booklet I contains the actual futures account agreement; Booklet II contains disclosures for your review and retention.

I am providing you with the below checklist to facilitate your efforts in gathering the appropriate supporting documentation to provide us when opening a futures account.

Supporting Documentation to be provided with fully executed Futures Account Agreement

* IRS Form W-8 or W-9, as applicable, must be fully completed/executed..

* Documents that authorize the use of futures and establish the client's existence:

For the corporation, a certified resolution, internal investment guidelines and/or operating agreement.

For a pension - a trust agreement.

* Audited financials.

* Signature authority (generally in the form of a resolution).

Please call me at 212 902-0861 if you have any questions.

<<BOOK 1 MASTER JANuary 1999 (2).pdf>> <<BOOK 2 MASTER FEB 2001.pdf>> <<fw8ben.pdf>> <<iw8ben.pdf>>
<<fw9.pdf>>

Elisa ~~~~~ Elisa Mordini Legal Dept - Futures Services Goldman, Sachs & Co. Tel: (212) 902-0861 Direct Fax: (212) 428-1645 Dept Fax (212) 357-1049 elisa.mordini@gs.com

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- BOOK 1 MASTER JANuary 1999 (2).pdf - BOOK 2 MASTER FEB 2001.pdf - fw8ben.pdf - iw8ben.pdf - fw9.pdf

Message 1055 of 1118

RE: Forward Confirmation

Sender	sara.shackleton@enron.com
Recipients	['jeff.nogid@enron.com']
File	shackleton-s/sent/5215.

----- Forwarded by Sara Shackleton/HOU/ECT on 12/27/2000 05:43 PM -----

"Chiodi, Maria" <maria.chiodi@csfb.com> 12/27/2000 05:38 PM

To: "sara.shackleton@enron.com" <sara.shackleton@enron.com> cc: "Haratunian, Stephen" <stephen.haratunian@csfb.com> Subject: RE: Forward Confirmation

Sara:

I attach a copy of the confirmation with the trade details for the two outstanding transactions. Please let me know if you have any further comments. I will wait to hear from Jim as to whether or not he is happy with the jurisdiction language.

<<Fwd (12-27Trade2).doc>> <<Fwd (12-27Trade1).doc>>

Maria Chiodi Legal and Compliance Department CREDIT | FIRST SUISSE | BOSTON Phone: 212-325-6724 Fax: 917-326-7763 -----Original Message----- From: Chiodi, Maria Sent: Wednesday, December 27, 2000 5:19 PM To: 'jim.armogida@enron.com'; 'sara.shackleton@enron.com' Cc: Haratunian, Stephen Subject: Forward Confirmation Jim and Sara: Jim, I received your voice mail and apologize for taking so long to get back to you. I attach a copy of the last draft we discussed that contains the new jurisdiction language. I used some of your suggested language, ISDA's section 13 wording and then just lifted the rest from the language in the indemnity to the engagement letter that I faxed to you earlier today. Please let me know if this is acceptable. Thanks, Maria Chiodi Legal and Compliance Department CREDIT | FIRST SUISSE | BOSTON Phone: 212-325-6724 Fax: 917-326-7763 << File: Fwd (12-27Trade1 BL to 12-22).doc >>

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- Fwd (12-27Trade2).doc - Fwd (12-27Trade1).doc

Message 1056 of 1118

Re: Confirmation Letter

Sender	janice.moore@enron.com
Recipients	['sara.shackleton@enron.com', 'kim.theriot@enron.com']
File	shackleton-s/notes_inbox/1647.

Thanks for persisting and getting to the bottom of this -- Sara and I will discuss and get back to you. It will probably be next week. Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842)

Kim S Theriot 27/06/2000 12:42

To: Janice R Moore/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT Subject: Re: Confirmation Letter

Janice/Sara,

I had a message from Joe Hunter regarding the attached proposed letter. He said that this has not been implemented yet. This is a proposal and it was based on Southern's format that they sent us for review. He said that they are only going to use this for 4-5 financial counterparties.

So the real question is....Does legal approve of this method?

If approved, then we will target certain counterparties for Power (probably some of the major players).

It will eliminate the need to sign the confirmations. It will not eliminate the need to check the commercial terms and legal terms of the confirms. It will not eliminate the need to send a copy of the confirmation to the file. It will not eliminate the need to send a copy of the "list" to the file (there will need to be a copy made for each deal to be placed in each file).

I do not see where we are gaining a great deal of time savings with this method. In instances where we send our confirm when we are the Seller and the Counterparty sends their confirm when we are the Buyer...both of us would be preparing this schedule.

Overall, I am not opposed to this method. I do want to talk to commercial and make sure they are in agreement. Just let me know the final word from legal. Thanks!

Kim Theriot

Janice R Moore 06/19/2000 02:28 PM To: Kim S Theriot/HOU/ECT@ECT cc: Subject: Confirmation Letter

fyi Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842) ----- Forwarded by Janice R Moore/HOU/ECT on 19/06/2000 14:27 -----

Elizabeth Sager 19/06/2000 14:25

To: Janice R Moore/HOU/ECT@ECT cc: Subject: Confirmation Letter

----- Forwarded by Elizabeth Sager/HOU/ECT on 06/19/2000 02:25 PM -----

Carol St Clair 06/16/2000 09:25 AM

To: Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Stacy E Dickson/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Leslie Hansen/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT cc: Larry Joe Hunter/HOU/ECT@ECT Subject: Confirmation Letter

Joe Hunter has asked me to draft a form of confirmation reply letter that we could send to our counterparties in lieu of signing their confirmations. This form of letter with the appropriate changes could also be used by those counterparties that we confirm. Please let me know if you have any comments on this form or any concerns about implementing this process. Thanks. Carol

Message 1057 of 1118

FW: BSD revisions in blue

Sender	mike.fowler@enron.com
Recipients	[petej@andrews-kurth.com], 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1221.

Attached are Buy Side Direct's responses to our comments. In response to my suggestion, Lisa O'Connor has attempted to highlight additions per the attachment (deletions from the original documents are not shown).

Please let me know when we can discuss.

Jason, hope you had a great vacation.

Thanks.

Mike x39990 ----- Forwarded by Mike Fowler/Corp/Enron on 09/05/2000 01:12 PM -----

"Lisa O'Connor" <lisa@imarkets.com> on 09/05/2000 02:34:00 PM To: <mike.fowler@enron.com> cc:

Subject: FW: BSD revisions in blue

Here it is.

-----Original Message-----

From: Lisa O'Connor [mailto:lisa@imarkets.com] Sent: Friday, September 01, 2000 5:53 AM To: mkfow@cs.com Subject: BSD revisions in blue

We have made the changes as marked with the following exceptions/clarifications:

Section 2. Limit Orders only? Yes

Section 3. Let's discuss.

section 4.1. OK on Insert 1 plus some additional language regarding court order/subpoena procedures. Insert 2 is OK with a slight modification:

BuySideDirect acknowledges that various affiliates of Subscriber already own and operate other trading facilities, such as EnronOnline and Clickpaper.com, which contain features that are similar to those contained in the BuySideDirect System. In addition, BuySideDirect acknowledges that Subscriber has disclosed to it that Subscriber or its affiliates are planning to launch several other trading facilities (which are not currently operational), but which may contain features that are similar to those contained in the BuySideDirect System. In this regard, Subscriber acknowledges that it has not disclosed to BuySideDirect, orally or in writing, any information or specifications regarding the features or any other aspect of any such trading facility.

Section 4.4. Let's discuss.

Insert 4.6 - This is unnecessary because BSD has, pursuant to Rule 10b-10(a) under the Securities Exchange Act of 1934, the obligation to provide a confirmation to the Subscriber "at or before completion of [the] transaction."

"4.7 Insert". Let's discuss.

Section 5.1. Let's discuss.

Section 5.2. Let's discuss.

Section 5.4. Let's discuss.

Section 6. Made parallel, made strike out excepting affiliates--added our clearing firm to the indemnity clause in lieu of the strike out. Struck Incidental, left consequential.

8.1. Did not make strike out, added exception, made 8.1 insertion with following modification:

However, BuySideDirect is liable for the accuracy, as entered by Subscriber, of all orders and trade terms placed by Subscriber.

Section 17.1 Can't make this change.

Insert 17.2 - Let's discuss

18. Limitation of Liability. Struck the word 'consequential', otherwise made insertion

Regards,

Mike Minnich Lisa O'Connor 415-369-5016 415-369-5018

Lisa Mears O'Connor, CFA BuySideDirect LLC a subsidiary of Intelligent Markets, Inc. 415-369-5020 Phone
415-369-5021 Fax

- Mike Fowler - additions in blue.doc

Message 1058 of 1118

The new edition of the Euromoney Capital Markets Directory

Sender	specialistdirectories@euromoneyplc.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/deleted_items/537.

Dear Ms Shackleton

The launch date of the 2002 Euromoney Capital Markets Directory is approaching fast and I am taking this opportunity to invite you to reserve your copy of the directory.

The Euromoney Capital Markets Directory has been the definitive contact resource for the financial markets over the past 30 years. The directory is the best way to find the names and contact details of CEO's, Heads of Departments, Traders, Compliance Officer and Marketing Manager in financial institutions around the world.

Now, for the first time you can purchase The Euromoney Capital Markets Directory separately, or as part of The Euromoney Financial Markets Box Set. New for 2002 the box set extends coverage to include the Capital Markets and Commercial and Private Banking.

The Financial Markets Box Set includes:

- 1) The Euromoney Capital Markets Directory both in print and on the Internet, remains the definitive contact resource for the capital markets covering some 60,000 people. It provides you with telephone and fax numbers, email and postal addresses.
- 2) The Euromoney Directory of Commercial & Private Banking completes the picture of global wholesale banking. Coverage extends from senior banking executives to heads of corporate banking, loan officers, trade finance as well as administrative roles.
- 3) The Financial Markets Index is a reference resource that enables you to locate the contacts in the first two volumes quickly and easily, along with a guide to services offered by banks by country.

UPDATED EVERYDAY ONLINE Subscribers receive not only the print editions of these directories but also get direct access to our online databases which means that they benefit from our team of professional researchers who work constantly updating and expanding the directories all year round.

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If you require any further information please feel free to reply to this email or call us on +44 (0) 870 906 2600 in the UK or +1 212 224 3570 in the USA.

Sincere regards, Chris Brown President Institutional Investor inc 201JBVIM6AAA

If you do not wish to be contacted again please send a reply to this email and simply write unsubscribe.

Message 1059 of 1118

Goldman, Sachs & Co.

Sender	sara.shackleton@enron.com
Recipients	['susan.flynn@enron.com', 'Harry Arora/HOU/ECT@ECT']
File	shackleton-s/all_documents/1879.

Susan: Attached are the electronic agreements for ENA trading with Goldman. Not much to do here because we'll need only a signature (get Gary Hickerson to sign). I have two changes to the Client Access Agreement which I will give you to add. We do not need certificates or our typical authorized trader list to send back. However, we will have to authorize password applicants on Goldman's form. How does EOL keep track of this? We will have to track because Harry Arora will be the password applicant (there may be more) and I think he's still ENA. I know that we will want to receive the password very soon. Thanks. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 05/05/2000 10:41 AM -----

Pushkar Shahi 04/13/2000 01:14 PM To: Sara Shackleton/HOU/ECT@ECT cc: Harry Arora/HOU/ECT@ECT Subject: Goldman, Sachs & Co.

As discussed please take a look at the agreement. Roy Ibasco will be following up with you after you speak to Harry. Please call me if you have any questions at 853-9199.

Regards,

Pushkar Shahi

----- Forwarded by Pushkar Shahi/HOU/ECT on 04/13/2000 01:11 PM -----

"Siao, Vivian" <vivian.siao@gs.com> on 04/12/2000 04:35:08 PM To: "pushkar.shahi@enron.com" <pushkar.shahi@enron.com> cc: Subject: Goldman, Sachs & Co.

The Goldman Sachs Client Access Agreement (the "Agreement") and/or Schedule A -- Electronic Trading Services ("Schedule A") are attached for your review and signature. The Agreement and Schedule A are required for each legal entity whose trading personnel are enabled to access Goldman Sachs' electronic trading systems. The documents must be signed by an authorized signatory of the legal entity(ies) on whose behalf each enabled person is authorized to trade. The list of persons within your organization that have been enabled to access Goldman Sachs electronic trading systems and their associated legal entity(ies) are listed below. If the Legal Entity name is incorrect, please indicate the appropriate

name for purposes of this Agreement and Schedule A.

Enabled users Legal Entity

<<...>>

Please complete, date and sign both the Agreement and Schedule A separately. Please pay special attention to the following points:

* At the top of the document -- "Client:" Fill in the legal name and the address of the entity that will execute both the Agreement and Schedule A. If the document is intended to cover more than one entity, please list in a separate annex each entity that the document covers.

* Next to the line "Attn:" Fill in the name and title of the authorized person that is signing the document on behalf of the legal entity.

Please return the completed and signed documents via fax to:

GS contact: Vivian Siao

Fax: 212-428-1872

Phone: 212-902-1429

Any questions regarding the Agreement or Schedule A should be directed to the GS contact listed above.

<<Client Access Agreement.pdf>> <<Schedule A E-Trading.pdf>>

Vivian Siao Stephan Fixed Income, Currency & Commodities Compliance Tel: (212) 902-1429 Fax: (212) 428-1872

- Client Access Agreement.pdf - Schedule A E-Trading.pdf

Message 1060 of 1118

RE: short dated puts

Sender	rhackman@lehman.com
Recipients	['clint.freeland@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/2860.

This is a slightly revised version of this: <<ENRON.issuerput.03.15.01b.doc>>

Russell F. Hackmann, CFA Corporate Equity Derivatives Lehman Brothers Inc. (212) 526-8398 (212) 526-2755 (fax)
rhackman@lehman.com

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-----Original Message----- From: Hackmann, Russell Sent: Thursday, March 15, 2001 1:03 PM To: Clinton Freeland (E-mail)
Cc: Sara Shackleton (E-mail) Subject: short dated puts Clint, Here is the confirm for the proposed put options without net share settlement, << File: ENRON.issuerput.03.15.01.doc >> Russell F. Hackmann, CFA Corporate Equity Derivatives Lehman Brothers Inc. (212) 526-8398 (212) 526-2755 (fax) rhackman@lehman.com This message is intended only for the personal and confidential use of the designated recipient(s) named above. If you are not the intended recipient of this message you are hereby notified that any review, dissemination, distribution or copying of this message is strictly prohibited. This communication is for information purposes only and should not be regarded as an offer to sell or as a solicitation of an offer to buy any financial

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- ENRON.issuerput.03.15.01b.doc

Message 1061 of 1118

Merrill/Allegheny deal Pre/post transfer invoicing

Sender	janice.moore@enron.com
Recipients	['sara.shackleton@enron.com', 'tracy.ngo@enron.com', 'Sara.Shackleton@enron.com; Tracy.Ngo@enron.com;', 'rhond...]
File	shackleton-s/all_documents/9942.

Here we go again. I guess it hasn't dawned on them that if we do separate invoicing for March, we'll still have M-L credit risk until the invoice is paid in April, so we're not going to be interested in letting go of their collateral..... What do we usually do w/ this? Do we need to talk to someone in Settlements? Please let me know so we can work out this detail for them..... Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842) ----- Forwarded by Janice R Moore/HOU/ECT on 03/19/2001 08:05 PM -----

TeiglandL@sullcrom.com 03/19/2001 07:39 PM

To: Janice.R.Moore@enron.com cc: GilbergD@sullcrom.com Subject: Pre/post transfer invoicing

Janice, one final (we hope) point to think about from Yair. He is concerned about how invoicing will be done for the month of March by Enron with respect to the "Transactions". Would it be operationally possible for Enron to invoice MLCS for obligations incurred prior to the transfer date, and Allegheny for the post-transfer? If not, we need to figure out how a single monthly invoice w/ pre- and post- transfer obligations will get paid and address it in the Transfer Agt. Any thoughts you have on this would be helpful.

-----Original Message-----

From: <Janice.R.Moore@enron.com> Sent: Monday, March 19, 2001 3:16 PM To: Teigland, Lauren Cc: Sara.Shackleton@enron.com; Tracy.Ngo@enron.com; yyaish@exchange.ml.com Subject: Re: Power Master - blacklined

Just got all these docs to print -- at last. Are we really going to close this puppy today? The physical power master amendment is ok , but I think we really ought to refer to the FERC Order (see below for wording), and we need quotes around the text of the definition amendments in para. 2(v). I still can't understand why Global is part of the 2d para. as one of the parties that "agree as follows" or on the signature page -- look at the first full para. on page 3 -- there, it's just Supply and EPML. And, after all, this really is just Allegheny Energy Supply's master -- at least for now. To add a reference to FERC Order, just add the following to the end of the second sentence in the second para. on page 1, so it reads: " ... (the "Transfer Agreement"), as approved by the Federal Energy Regulatory Commission March 14, 2001 Order issued in connection with Global's acquisition of the MLCS energy trading business." Thanks, Lauren. Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842)

TeiglandL@sul

lcrom.com To: Janice.R.Moore@enron.com cc:

03/19/2001 Subject: Power Master - blacklined 01:36 PM

Here is a blackline showing our recent changes. Note the spacing nit which I have fixed in 2(i) (Yair caught this one when I cc'd him on the execution copy earlier). If you are OK w/ this, I will re-send you a clean copy.

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

(See attached file: Allegheny ENRON Physical Master amendment(vRED).DOC)

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This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

Message 1062 of 1118

fyi -- who the leading investment banks are in food deals

Sender	robert.bruce@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/5128.

here's that news item I was telling you about

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com
----- Forwarded by Robert Bruce/NA/Enron on 12/11/2000 05:00 PM -----

Robert Bruce Sent by: Robert Bruce 12/06/2000 01:17 PM

To: Dan Feather/NA/Enron@Enron, Billy Lemmons/Corp/Enron@ENRON, Darren Maloney/Corp/Enron@ENRON, Ted Noble/HOU/ECT@ECT, Elsa.Piekielniak@enron.com, Erin.Willis@enron.com, Lisa Yoho/NA/Enron@Enron cc: Subject: fyi -- who the leading investment banks are in food deals

Monday December 4, 5:33 pm Eastern Time UBS on top of feeding frenzy in food consolidation By Jamie LaReau NEW YORK, Dec 4 (Reuters) - UBS (NYSE:UBS - news), Switzerland's largest bank, is the big cheese of investment banking in the consolidating U.S. food industry. The firm's investment banking arm, UBS Warburg, advised on eight merger deals worth nearly \$75 billion so far this year, according to market research firm Thomson Financial Securities Data. Taking the second biggest bite among investment banks this year is Merrill Lynch and Co. Inc. (NYSE:MER - news), which has advised corporations in five U.S. food mergers valued at about \$55 billion, Thomson said. There is a definite feeding frenzy in the U.S. food sector at this time, and investment banks are likely to come back for second helpings because the sector has many companies that need to merge to better compete. Wall Street itself has consolidated, leaving just a few investment banks at the top of the food chain. But corporations should still have enough choice in determining which investment bank they hire for their their deals, Arning said. "I don't think ... you have a conflict of interest. They (investment banks) each have their specialty," said Rob Arning, national industry director for accounting firm KPMG's banking practice. "I don't see any shortening of the list or limitations on opportunities when it comes to choosing an appropriate investment bank to execute your deal." But in the big food deals, the same Wall Street names appear on the menu. Merrill is the lead advisor on the latest merger, beverage and snack maker PepsiCo Inc.'s (NYSE:PEP - news)

agreement to buy Quaker Oats Co. (NYSE:OAT - news) in a \$13.4 billion stock deal. Goldman Sachs Group Inc. (NYSE:GS - news), which served as lead advisor to Quaker Oats, ranked third on Thomson's list this year, dropping from the No. 2 slot in the food sector last year. Goldman advised on more deals than Merrill Lynch, eight in total this year, but the deals have been smaller, bringing the value of Goldman's deals to about \$51 billion. Merrill Lynch has its hand in yet another potential big food industry merger involving Tyson Foods Inc. (NYSE:TSN - news). Tyson, the world's largest chicken producer, on Monday hired Merrill Lynch to advise it on an offer it made to buy IBP Inc. (NYSE:IBP - news), the No. 1 beef processor, for about \$2.8 billion. The bid trumps an earlier offer from the nation's biggest pork processor, Smithfield Foods Inc. (NYSE:SFD - news). In October, cereal giant Kellogg Co. (NYSE:K - news) agreed to buy No. 2 U.S. cookie and cracker maker, Keebler Foods Inc. (NYSE:KBL - news) for about \$3.6 billion to expand into the fast-growing snack food business. Salomon Smith Barney, which ranks fifth so far this year with \$30 billion in the eight deals it worked on, had a hand in that deal as financial advisor to Kellogg. Goldman, Sachs also advised Kellogg in that transaction. UBS and Morgan Stanley Dean Witter served as financial advisors to Flowers Industries, which had a 55 percent stake in Keebler. Prior to that deal, Merrill Lynch and Salomon Smith Barney advised Bestfoods (NYSE:BFO - news), the maker of Skippy peanut butter and Hellman's mayonnaise, when it accepted a \$20.3 billion takeover bid from Anglo-Dutch group Unilever Plc. (quote from Yahoo! UK & Ireland: ULVR.L) in June. Already ranked No. 3 among world food companies, Unilever jumped ahead of Philip Morris Kraft Foods and challenges Nestle AG for the top spot, all under the investment advice of Goldman Sachs and UBS.

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Message 1063 of 1118

Re: Draft term sheet for oil-power spread option purchase from FPL

Sender	sara.shackleton@enron.com
Recipients	['melissa.murphy@enron.com', 'Robert Bruce/NA/Enron@Enron']
File	shackleton-s/all_documents/3879.

I just received a message that the deal is in a "holding" pattern

Melissa Ann Murphy 09/26/2000 11:55 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Draft term sheet for oil-power spread option purchase from FPL

Hello, I have never done a deal like this. I did not work on the Moosehead deal. I will look at it incase he does want a confirm after the counterparty looks at the term sheet.

Thanks, Melissa

From: Sara Shackleton on 09/26/2000 11:44 AM To: Melissa Ann Murphy/HOU/ECT@ECT cc: Robert Bruce/NA/Enron@Enron Subject: Draft term sheet for oil-power spread option purchase from FPL

Melissa: It looks like we'll need GTC's for a yet to be named FP&L counterparty to do this daily call option (spread). Credit (Ed Sacks) knows about this deal. You may want to think about the format. Have we done this before? Did you work on the Moosehead (Merrill Lynch) deal? Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 09/26/2000 11:40 AM -----

Janice R Moore 09/26/2000 10:13 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Joe Gordon/Corp/Enron@Enron, Edward Sacks/Corp/Enron@Enron, Edward D Baughman/HOU/ECT@ECT Subject: Draft term sheet for oil-power spread option purchase from FPL

Further to my voicemail, here's the deal that John Llodra is trying to present today. As I mentioned, I didn't get any definitive answers this a.m., but I think this deal has to be documented on an ISDA or ISDA-like form. Let me know if I can help. Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842) ----- Forwarded by Janice R Moore/HOU/ECT on 09/26/2000 10:05 AM -----

John Llodra@ENRON 09/25/2000 10:31 PM

To: Mark Dana Davis/HOU/ECT@ECT, Edward D Baughman/HOU/ECT@ECT, Paul J Broderick/HOU/ECT@ECT, Pearce W Hammond/Corp/Enron@ENRON, Joe Gordon/Corp/Enron@Enron, Janice R Moore/HOU/ECT@ECT, Edward Sacks/Corp/Enron@Enron cc: Subject: Draft term sheet for oil-power spread option pruchase from FPL

All:

Attached is a draft of a term sheet for a financial resid-power spread option purchase by EPMI from FPL for NEPOOL. I am hoping to share this term sheet with the customer sometime early-mid afternoon on Tuesday 9/26, so I'd appreciate any comments you all might have. I will be out of the office in the morning at a customer meeting, but will be available by cell 978-314-5614 or pager 877-246-3206 (i'll be in the car for a good 3-4 hours between 8 AM-2 PM Eastern traveling to and from the mtg). If you have trouble reaching me, please feel free to go through Joe Gordon at 5-8956; Joe is an Associate newly assigned to the Northeast mid-market team (Joe will only be around in the AM though).

Some specific points I'd like to raise:

Oil price index/curve -- Pearce Hammond (structuring) and I spoke with Dave Botchlett (our resid trader) Monday about: (1) the most appropriate resid oil index to use; and (2) the "correct" resid curve consistent with that index. Dave did not sufficiently answer these two questions, so I called Paul Racicot and asked him what he thought. Paul suggested using the Platts Daily New York Harbor Resid Cargo Mean index (which i've included in the term sheet attached), as that was probably the most hedegable index. Other alternitives that I am aware of include Platts Daily New York Harbor Barge Mean and perhaps others. We have the daily option to "dispatch" the energy or not, so I think we want to use a daily oil index rather than a first of the month index, etc. Paul Broderick - do you have any thoughts on this? Assuming the Cargo Mean is the right index, we then need to make sure the resid curve we use is consistent with that index. Pearce - could you perhaps connect with Dana/Paul Broderick/Ed Baughman/Joe Gordon to see if we can come to agreement on index and appropriate curve. Resid-power coorelation -- Dana - what coorelation do you want to assume; Pearce, please connect with Dana to confirm that number. Janice/Ed -- if it's not evident, this proposed transaction is with the unregulated marketing sub of Florida Power & Light, not the regulated utility. We have done other trades with this entity so I'm assuming we're all set with Master Agreement, etc. Does our basic Master cover financial structures like the one outlined in the attached?

Any comments/feedback you have would be much appreciated. Thanks

Regards John

Message 1064 of 1118

IBJ Master Discussion

Sender	sara.shackleton@enron.com
Recipients	['sshackl@swbell.net']
File	shackleton-s/sent/2081.

----- Forwarded by Sara Shackleton/HOU/ECT on 09/22/2000 06:36 PM -----

Alan Aronowitz 09/22/2000 12:04 PM

To: John Viverito/Corp/Enron@Enron, Jane McBride/AP/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: IBJ Master Discussion

Sara is prepared to speak with you both at 11:00 a.m. Monday morning (Tokyo time)/9 p.m. Sunday evening (Houston time). Please call her at home. Her home number is 713-664-3207. Sara has also touched base with John Suttle of Credit after reading the e-mail thread (and comments) forwarded by you yesterday.

Sara: John's office number is 011-813-5219-4578; Jane's is 011-813-5219-4553.

Regards.

Message 1065 of 1118

Lotus Notes

Sender	petej@andrews-kurth.com
Recipients	['samantha.boyd@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1107.

Samantha,

Please make the following updates to Lotus Notes:

Brokerage Agreements:

BuySideDirect - 9/11 - Phone Conference w/ M. Minnich and M.Fowler re: Outstanding Issues (Governing Law, Arbitration, Consequential Damages and Submission to Jurisdiction)

Frost Securities - 9/8 ENA Comments Rejected; Call placed to Terry Finn 410-895-3602

ING Barings - 9/8 Called Mark Seffinger. Mark won't be back in the office until 9/13.

Lehman Brothers - 9/12 Called Karen Brown 201-524-5680 to follow up. She is still waiting on her legal department.

Jeffries & Company Inc. - 9/12 Left message with Bob Eisner 310-914-1310 to follow-up.

Thanks,

Jason

Message 1066 of 1118

Re: EDEN Deemed ISDA

Sender	rodolfo.freyre@enron.com
Recipients	['sara.shackleton@enron.com', 'jeff.kabel@enron.com', 'brent.hendry@enron.com']
File	shackleton-s/argentina_isda/6.

Sara,

E-mail: gbanderet@aesc.com

Address: Diagonal 80, 1001 La Plata 1900 Argentina

Phone: 54221.4292309 Fax: 54221.4292205

Rolo

Sara Shackleton@ECT 11/12/99 12:05 PM To: Rodolfo Freyre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jeff Kabel/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Brent Hendry/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: EDEN Deemed ISDA

Rodolfo and Jeff: Would you please e-mail the name, address, fax and phone of the person or persons to whom this Deemed ISDA should be directed. We'll be ready to send this out shortly. Thanks. Sara

P.S. I have a conference call for the next hour. If you have any questions, please call Marie Heard at EXT. 33907 or call me after 11 am Houston time.

Message 1067 of 1118

Buy Side Direct

Sender	mike.fowler@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/2959.

The legal contact for Buy Side Direct is Michael Minnich at 415-369-5016.

Lisa O'Connor, our business contact, suggested that comments / issues be forwarded to her as Michael is out of the office today. Lisa's #s are 415-369-5020 (phone) and 415-369-5021 (fax). Could you please copy me on any communication ?

The clearing firm will be Weiss Peck & Greer, an affiliate / sub of Rabobank. Lisa confirmed that the clearing firm will be the counterparty for all trades, allowing trading on an anonymous basis. Lisa was not sure if the current agreement acknowledges the clearing firm's obligations in the event of a failed trade.

I will review the document and call / email you with my comments shortly.

Thanks.

Mike x39990

Message 1068 of 1118

Agreement for Prime Brokerage Clearance Services

Sender	regan.grice@wachovia.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/inbox/1174.

Hi, Sara. I hope you had a wonderful holiday weekend.

During our discussion on 11/14, you asked that we provide you with a prime brokerage fee schedule. I'm working with one of the trading assistants to find one for you, but we're having some difficulty.

If I'm unable to supply you with a fee schedule, is there a specific way you would like to word Paragraph 9 "Fees and Charges" (other than the phrase "as agreed by the parties from time to time")? If you would like to keep your previously proposed wording, I can run it by Legal one more time with an explanation of the difficulty we're having.

Thanks so much for your patience,

Regan Grice Corporate & Investment Banking, Documentation Phone: 1-800-735-1470 or 704-593-7024 Fax: 704-593-7032 regan.grice@wachovia.com

Message 1069 of 1118

Convertible book assignment

Sender	t..brogan@enron.com
Recipients	['marie.heard@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/deleted_items/210.

Marie, Below is the information you requested.

Morgan Stanley:

Current ENA account: 038-C12278 Contact: Joe Marovich email address: joseph.marovich@msdw.com mailing address: Morgan Stanley & Company Attn: Joe Marovich 1221 Avenue of the Americas - 28th floor New York, NY 10020

Goldman Sachs:

Current ENA account: 002-070076, 002-257830, 033-671710 Contact: Joe Arens email address: joe.aren@gs.com mailing address: Goldman Sachs Attn: Joe Arens 1 New York Plaza - 48th floor New York, NY 10004

Also, for Morgan Stanley Dupe letter you can reference the energy book account # 038-038592 as an example of an account that rolls under the ECT Investments family. If you need anything else give me a call at ext. 31439.

Thanks, Theresa

Message 1070 of 1118

nan	
Sender	joaniem5770@yahoo.com
Recipients	['sshackl@enron.com']
File	shackleton-s/all_documents/1334.

Hi Everyone!!!

As you already know Neil and Robyn are getting married March10,2001 at the Four Seasons in Palm Beach. The Chestnovs have reserved a block of rooms for the wedding.

If you want to make your reservation now, at the Four Seasons, their phone # 1-800-432-2335. The rate is \$335.00 per nite (Friday and Saturday 3/9 and 3/10).

There is a Hilton next door to the Four Seasons. I do not know what their rate is, but the phone number is (516) 586-6542. There is also a Howard Johnson. That phone # is (561) 582-2581.

I know you probably think it's too early to make a reservation, but the Four Seasons only has 200 rooms, and the guest list is about 250.

Let us know if we can help you with any arrangements.

Joan and Gary

Do You Yahoo!? Talk to your friends online with Yahoo! Messenger. <http://im.yahoo.com>

Message 1071 of 1118

ISDA with Enron/OEMI	
Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com', 'mary.cook@enron.com']
File	shackleton-s/notes_inbox/1982.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 06/06/2001 10:39 AM -----

"Michael Pate" <mpate@gablelaw.com> 06/06/2001 10:14 AM

To: carol.st.clair@enron.com cc: Subject: ISDA with Enron/OEMI

Carol:

I left Oxy at the end of March, but have been asked to continue to do some work for them, including trying to put the ISDA "to bed".

If you are still at this address, I will try to get you a redraft based on your last comments in a few days, at which point we can discuss where we need to go from there.

Mike Pate

MICHAEL L. PATE Attorney at Law Gable & Gotwals Direct Phone: (918) 595-4854

THE ATTACHED MEMORANDAUM IS CONFIDENTIAL AND MAY BE ATTORNEY-CLIENT PRIVILEGED. IF YOU ARE NOT THE INTENDED RECIPIENT OF THE E-MAIL, PLEASE NOTIFY THE SENDER EITHER BY PHONE OR RETURN E-MAIL.

Message 1072 of 1118

Media News	
Sender	jarrod.cyprow@enron.com
Recipients	['joe.jure@enron.com', 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/1872.

I have attached a copy of the Media News Confirmation. They agree to everything but want to add one more condition.

If ENA closes on the KPM Lasara L.P. newsprint mill before the expiration date of the Swaption, and all the other conditions in the current agreement are met, then ENA must give Notice of Exercise to Counterparty. I am not sure about all of the details of the KPM Lasara L.P. newsprint deal. It is my understanding that Kafus is raising money to build the mill and we are helping them out. If you have any questions about the project contact Joe Jure ext. 30658 (he is the deal maker on this Transaction) or Dick Robinson, ext 36657, he is working on the KPM Lasara project, you can also talk to Bob Crane.

I will be out tomorrow so if you have any questions please leave me a voice mail or contact Gordon Heaney, ext 58175. I will be back in the office on Friday.

Thank you,

Jarrold

Message 1073 of 1118

FW: Enron / Tri-Met Legal Follow Up	
Sender	sara.shackleton@enron.com
Recipients	['joanne.rozycki@enron.com']
File	shackleton-s/sent_items/602.

Please print. -----Original Message----- From: Van Gelder, John Sent: Monday, October 29, 2001 7:14 PM To: 'playfair@tri-met.org' Cc: Shackleton, Sara; Yoder, Christian; Malowney, John Subject: Enron / Tri-Met Legal Follow Up

Brian:

Thank you for meeting with myself and John Malowney today to discuss the opportunities for Enron and Tri-Met to work together. As we discussed, in order for Enron to provide either physical or financial products as an Oregon Direct Access ESS provider, the EEI and ISDA contracts that we left with you today will need to be executed.

Please feel free to contact the following individuals in our legal department at Enron to discuss the documents in more detail.

ISDA Sara Shackleton Enron - Houston 713-853-5620

EEl Christian Yoder Enron - Portland 503-464-7845

Thank you and please call with any questions. John

John Van Gelder Enron North America - West Desk 503-464-3708

Message 1074 of 1118

FW: Navajo Refining Company

Sender	sara.shackleton@enron.com
Recipients	['bestes@cwt.com']
File	shackleton-s/sent_items/487.

fyi -----Original Message----- From: Dicarlo, Louis Sent: Wednesday, March 20, 2002 1:23 PM To: Shackleton, Sara Cc: Bailey, Susan; Panus, Stephanie Subject: Navajo Refining Company

I spoke w/ Johnny Nor at Navajo today. I told him that ENA could not wait any longer for Navajo's decision. They have until 4PM Houston time TODAY, 3/20/02 to get a termination to ENA (via Stephanie Panus' fax: 713-646-4818). He understands that if they do not terminate today ENA will terminate Navajo TODAY. He gave me his fax number, 505-748-6742 (note that this is different from the fax number used for the demand letter).

Susan: Notes for the DDL.

Stephanie: Please watch the fax for a document from Navajo.

Sara: Based on the conversation w/ Nor I think we should be prepared to send a termination. (Don't think Navajo will terminate.) Call if you have questions.

Louis R. DiCarlo ENA Gas Structuring Phone: 713-345-4666 Email: louis.dicarlo@enron.com

Message 1075 of 1118

Our Documentation Contact

Sender	sara.shackleton@enron.com
Recipients	['samantha.boyd@enron.com']
File	shackleton-s/all_documents/2732.

Here's the name of our contact for Lotus Notes. SS ----- Forwarded by Sara Shackleton/HOU/ECT on 07/24/2000 02:46 PM -----

Madhur Dayal 07/21/2000 03:57 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Our Documentation Contact

----- Forwarded by Madhur Dayal/HOU/ECT on 07/21/2000 04:43

PM -----

"Lisa O'Connor" <lisa@imarkets.com> on 07/10/2000 12:58:25 PM To: "Madhur Dayal" <madhur.dayal@enron.com> cc: Subject: Our Documentation Contact

Dear Madhur,

I just want to forward to you the name and number of our documentation contact. Mike Minnich is our director of operations and he can be reached at 415-369-5016. He is handling all questions/negotiations on the user agreements.

Please feel free to forward this on to your legal department. Thanks again and please let me know if anyone else would be interested in seeing the demo and I'll set them up with a username and password.

Regards,

Lisa O'Connor

Lisa Mears O'Connor, CFA BuySide Direct LLC a subsidiary of Intelligent Markets, Inc. 415-369-5020 Phone
415-369-5021 Fax

Message 1076 of 1118

Enron put amendment notice

Sender	rhackman@lehman.com
Recipients	['tim.despain@enron.com', 'jacobe@enron.com', 'clint.freeland@enron.com', 'sara.shackleton@enron.com', 'guenth...']
File	shackleton-s/inbox/953.

Please execute before 4 pm and fax back to 646-758-4819.

<<Confirm modification r1.doc>>

Russell F. Hackmann, CFA Lehman Brothers Corporate Equity Derivatives (201) 524-2279 phone (917) 596-2936 cell
rhackman@lehman.com

This message is intended only for the personal and confidential use of the designated recipient(s) named above. If you are not the intended recipient of this message you are hereby notified that any review, dissemination, distribution or copying of this message is strictly prohibited. This communication is for information purposes only and should not be regarded as an offer to sell or as a solicitation of an offer to buy any financial product, an official confirmation of any transaction, or as an official statement of Lehman Brothers. Email transmission cannot be guaranteed to be secure or error-free. Therefore, we do not represent that this information is complete or accurate and it should not be relied upon as such. All information is subject to change without notice.

- Confirm modification r1.doc

Message 1077 of 1118

CSFB Prepay

Sender	dan.boyle@enron.com
Recipients	['mary.cook@enron.com', 'travis.winfrey@enron.com', 'barry.schnapper@enron.com', 'david.mitchell@enron.com']
File	shackleton-s/inbox/222.

Barry:

We have calls into both Anne and Treasa to discuss the pending rollover and need for a \$200 million increase of the existing CSFB prepay. As soon as I hear from them, I will let you know.

CSFB and our internal counsel independently agree that the mechanism is in place to quickly and efficiently handle the increase, but as yet CSFB does not have credit approval. While Osmar and James committed to give me an update on the credit approval process over the weekend, they were clear that the final answer likely will not come until Monday.

As a fallback, can Joe's deal with Chase be increased under the terms and conditions we discussed Friday evening? Is DB (Paul Cambridge) an alternative? Aside from CSFB, Chase, Citi and DB, I don't know if any of the other tier one institutions have the ability or capability to respond in the time available. Possibly Barclays but I understand that their commodity derivative group is just getting started.

If you have any thoughts let me know. I will give you an update when I speak to London or CSFB.

Dan O. Boyle Vice President Enron Global Finance Phone: 713-853-1532 Mobile: 713-417-3532 Pager: 877-455-0730

Message 1078 of 1118

Docs to File

Sender	cheryl.nelson@enron.com
Recipients	['marie.heard@enron.com', 'sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/nelson/363.

Marie, also as per below re: ECI, please get a copy of the tax i.d. form from Stephanie. Also can someone please send a copy to me for my file.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/> ----- Forwarded by Cheryl Nelson/NA/Enron on 05/31/2001 04:54 PM -----

Cheryl Nelson Sent by: Cheryl Nelson 05/23/2001 06:14 PM To: Marie Heard/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron cc: Subject: Docs to File

Marie, I am forwarding to you for Brokerage files

1. A copy of the executed copy of the Javelin Technologies Agreement that was faxed to me. We need to follow up to get the original. In the meantime, we'll put this doc in the executed file.

2. A copy of the ECI - Bear Stearns guaranty that I had faxed to the office while I was in New York.

Also, Stephanie, reminder that I believe that we still have not sent a signed Tax Form to Bear re: Enron Credit Inc. (although we did so for Morgan). In any case, Mike Bruegel at Bear says he does not have it. Please send one to him. His phone number is 312-663-3253. This did not affect the opening of the account but they still need it. Please make sure that in fact we also sent one to Goldman.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Message 1079 of 1118

Re: Alcoa Master Agreement

Sender	sara.shackleton@enron.com
Recipients	['noel.petterson@enron.com', 'Sara Shackleton/HOU/ECT@ECT']
File	shackleton-s/sent/1729.

Is the question for online and offline products (to the extent that we gear up for metals online)?

Noel Petterson@ENRON 07/31/2000 08:05 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Alcoa Master Agreement

Sara, Would you please take a look at the email below regarding Alcoa's Master Agreement with Enron. Thank you. - Noel
----- Forwarded by Noel Petterson/Corp/Enron on 07/31/2000 08:00 AM ----- Carol St Clair @ ECT 07/30/2000 09:22 AM

To: Noel Petterson/Corp/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT

Subject: Re: Alcoa Master Agreement

Noel: I am on maternity leave. Please contact Sara Shackleton about this.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Noel Petterson@ENRON 07/28/00 02:56 PM

To: Carol St Clair/HOU/ECT@ECT cc: Frank L Davis/HOU/ECT@ECT Subject: Alcoa Master Agreement

Carol,

Tim Reyes of Alcoa would like to make sure that their current master agreement with Enron will encompass trading metal products, specifically, aluminum products on EOL. I am hoping that you are the correct person to answer his question.

If you require more information Please contact Mr. Reyes at 865-594-4734.

Thank you,

Noel

Message 1080 of 1118

(00-351) REVISED Platinum Margin Change

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/4128.

Notice No. 00-351 October 10, 2000

TO: ALL NYMEX MEMBERS AND MEMBER FIRMS ALL NYMEX CLEARING FIRMS ALL NYMEX OPERATIONS MANAGERS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: MARGIN RATE CHANGE

Effective Date: Wednesday, October 11, 2000 (close of business)

Futures Contract: Platinum

Contract Months: October

Rate Change:

NYMEX Division Margins on Platinum Futures Contracts

Effective Date: October 11, 2000

Clearing Member (Maintenance Margin) Old: \$1,600 New: \$3,600

Member Customer (Initial Margin) Old: \$1,760 New: \$3,960

Non-Member Customer (Initial Margin) Old: \$2,160 New: \$4,860

Should you have any questions regarding these changes, please contact Artie McCoy at (212) 299-2928, Bill Doherty at (212) 299-2925, or Joe Sanguedolce at (212) 299-2855. This notice supersedes all previous notices regarding outright margins for the NYMEX Platinum Futures Contract.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=\(00-351\)](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=(00-351))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1081 of 1118

(00-351) MARGIN RATE CHANGE for October 2000 Platinum Futures

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/4130.

Notice No. 00-351 October 10, 2000

TO: ALL NYMEX MEMBERS AND MEMBER FIRMS ALL NYMEX CLEARING FIRMS ALL NYMEX OPERATIONS MANAGERS

FROM: Neal Wolkoff, Executive Vice President

SUBJECT: MARGIN RATE CHANGE for October 2000 only

Effective Date: Wednesday, October 11, 2000 (close of business)

Futures Contract: Platinum

Contract Months: October 2000

Rate Change:

NYMEX Division Margins on Platinum Futures Contracts

Effective Date: October 11, 2000

Clearing Member (Maintenance Margin) Old: \$1,600 New: \$3,600

Member Customer (Initial Margin) Old: \$1,760 New: \$3,960

Non-Member Customer (Initial Margin) Old: \$2,160 New: \$4,860

Should you have any questions regarding these changes, please contact Artie McCoy at (212) 299-2928, Bill Doherty at (212) 299-2925, or Joe Sanguedolce at (212) 299-2855. This notice supersedes all previous notices regarding outright margins for the NYMEX Platinum Futures Contract.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=document reference](http://208.206.41.61/email/email_log.cfm?useremail=sara.shackleton@enron.com&refdoc=document%20reference)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1082 of 1118

Prepaid swap

Sender	brenda.funk@enron.com
Recipients	['sara.shackleton@enron.com', 'Cori_Novellino@TDBANK-US.tdsecurities.com']
File	shackleton-s/notes_inbox/391.

And I forgot to mention that "Marcus" is Marcus von Bock und Polach, an attorney in London.

Thanks,

Brenda Funk (713) 853-6950 (713) 853-9252 (fax) ----- Forwarded by Brenda L Funk/HOU/ECT on 11/10/2000 04:12 PM -----

Treasa Kirby 11/10/2000 10:04 AM

To: Brenda L Funk/HOU/ECT@ECT cc: Subject: Prepaid swap

Brenda, Please find attached a copy of the ISDA. ENA will execute the prepay and as discussed our deadline has been brought forward to next Friday. I will send you a copy of the term sheet as soon as I have received it. The contact on the trading side in Houston is John Wilson. Toronto Dominion Texas are funding the Prepay with Morgan Stanley Capital Group Inc and Enron Corp guarantees will be required for the WTI swaps.

Regards

Treasa ----- Forwarded by Treasa Kirby/LON/ECT on 10/11/2000 16:01

Enron Capital & Trade Resources Corp.

From: carrd2@tdcibg.com 09/11/2000 19:06

To: tkirby@enron.com cc: Cori_Novellino@TDBANK-US.tdsecurities.com,
Graeme_Francis@TDBANK-UK.tdsecurities.com

Subject: Prepaid swap

At the request of Graeme Francis in our London office, attached please find a copy of the ISDA Master Agreement b/w Enron Capital & Trade Resources Corp. (I believe this is now Enron North America??) and Toronto Dominion (Texas), Inc.

Regards, Dan Carr (416) 983-9473

(See attached file: Enron.doc)

- Enron.doc

Message 1083 of 1118

Re: Goldman Sachs - ECI

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/nelson/339.

Stephanie, please follow - up to find out the account number, confirm the execution date and get the documents back.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

Stephanie Panus 05/21/2001 12:29 PM To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: Goldman Sachs - ECI

I have left a message with Nikki Kroll today.

Cheryl Nelson Sent by: Cheryl Nelson 05/21/2001 10:50 AM To: Stephanie Panus/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT Subject: Goldman Sachs - ECI

Stephanie,

I have asked a couple of times but still have not heard back from you about what happened to the Goldman Sachs completed agreements I gave you on Thursday 10th to get signatures and send to Goldman. When Tom and I spoke this morning he expressed angst that Goldman did not have the Agreement yet. Can you tell me today where those documents are and whether or not they went out to Goldman?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/> ----- Forwarded by Cheryl Nelson/NA/Enron on 05/21/2001 10:45 AM -----

Cheryl Nelson Sent by: Cheryl Nelson 05/17/2001 11:37 AM To: Stephanie Panus/NA/Enron@Enron cc: Tom Doukas/Enron@EnronXGate Subject: Goldman Sachs - ECI

Hi Stephanie, can you call Pam Coleman or whomever you sent the agreement to at Goldman last Thursday to get an account number and confirmation? Thanx.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 <http://gss.enron.com/>

<Embedded StdOleLink>

Message 1084 of 1118

revised forward confirm

Sender	rhackman@lehman.com
Recipients	['clint.freeland@enron.com', 'sara.shackleton@enron.com', 'philip.franz@enron.com', 'angie.karna@enron.com']
File	shackleton-s/inbox/260.

Clint,

Per our discussions, we need to agree to some modifications to the confirmation this week in order to proceed with the roll.

These modifications involve making sure we can receive the cash due to us if you net share settle, and should not impact your accounting for the transactions. This clauses are standard - I'm not sure how they got dropped from the confirmation.

Here is a blackline version of the confirm: <<Enron confirm blackline 9-26-01.doc>>

Best regards,

Russell F. Hackmann, CFA Lehman Brothers Corporate Equity Derivatives (201) 524-2279 phone (917) 854-2147 cell (914) 833-0432 home

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- Enron confirm blackline 9-26-01.doc

Message 1085 of 1118

FW: form of Note

Sender	sara.shackleton@enron.com
Recipients	['jim.armogida@enron.com', 'rex.rogers@enron.com', 'clint.freeland@enron.com']
File	shackleton-s/sent_items/646.

Jim: I thought Enron Corp. would prefer to have an Enron Corp. lawyer review the form of note. I will ask Russ to ensure that you receive the draft Sara

-----Original Message-----

From: "Hackmann, Russell" <rhackman@lehman.com>@ENRON Sent: Friday, November 02, 2001 2:16 PM To: Freeland, Clint; Shackleton, Sara Cc: Despain, Tim; Jacobe, Lee; Guenther, Todd; Karna, Angie Subject: form of Note

Clint and Sara,

Our attorneys are preparing the form of note for delivery on Tuesday. We will send you the draft later today or Monday morning.

FYI our internal attorney dealing with this is Angie Karna, cell # 917-596-0671.

Regards,

Russell F. Hackmann, CFA Lehman Brothers Corporate Equity Derivatives (201) 524-2279 phone (917) 596-2936 cell rhackman@lehman.com

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Message 1086 of 1118

Dow Jones Interactive

Sender	ect.security@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/messages/2.

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In an increasingly competitive global business environment, knowledge of major industry changes is essential for growth and profitability. Use Dow Jones Interactive today to stay informed. You can put this valuable desktop tool to work for you immediately.

Here's how:

o Access DJI by launching your web browser on the URL below.

Your user name and password are:

URL: <http://djinteractive.com> User Name: sshackl Password: ene796627

Note: Please keep this information for future reference. User Name and Password are case sensitive.

o In Business Newsstand, scan the latest news on the energy industry. o In the Publications Library, search over 6,000 publications including those covering the energy industry. o In CustomClips, set up alerts to competitor activity from around the world. o In Company & Industry Center, analyze a potential merger with a full review of a company's performance.

If you need help getting started, please contact Dow Jones Customer Service at 800-369-7466, support@wsj.dowjones.com, or one of the following Dow Jones representatives:

? Lynn Yost, 713-840-1432, lynn.yost@dowjones.com ? Idella Attuquayefio, 713-626-1592, idella.attuquayefio@dowjones.com

You may also click on the following URL address and follow the self-directed tutorial:
<http://ask.djinteractive.com/SAS/eTraining/etweb/index.htm>

Message 1087 of 1118

SMUD ISDA Master Agreement and Schedule

Sender	stewart.rosman@enron.com
Recipients	['sara.shackleton@enron.com', 'tracy.ngo@enron.com', 'Marino Monardi <MMONARD@smud.org>']
File	shackleton-s/notes_inbox/1467.

SMUD is working on a weather transaction with Enron which may get completed shortly - since this is a financial deal we need to get a ISDA in place asap. I believe this is a blacklined copy of the ISDA. Feel free to call me or Gary Taylor at 713-853-1511 to get more info on the weather deal.

Stewart

PS I hope this leads to us getting the power schedule as well!

----- Forwarded by Stewart Rosman/HOU/ECT on 08/08/2000

12:04 PM -----

Enron Capital & Trade Resources Corp.

From: Gary Richardson <GRichar@smud.org> 08/08/2000 09:53 AM

To: "'Stewart Rosman - Enron'" <stewart.rosman@enron.com> cc: Marino Monardi <MMONARD@smud.org> Subject: SMUD ISDA Master Agreement and Schedule

Marino Monardi asked me to send a copy of our ISDA Master Agreement and Schedule for your review. He would like to have these agreements in place to facilitate the precipitation hedge he is discussing with Enron. We have not included a Credit Support Annex. Since we are a municipality, pledging assets as collateral involves complications that could possibly impact the schedule Marino has established for finalizing the precipitation hedge agreement. As an alternative, I believe he is open to making periodic payments during the year in lieu of providing collateral as financial positions change.

Gary W. Richardson Project Manager - Wholesale Power Credit Sacramento Municipal Utility District Phone (916) 732-5265 Fax (916) 732-6194

<<ISDA Master Agreement (Local Currency) FORM.doc>> <<Schedule to Master Agreement (SMUD).DOC>>

- ISDA Master Agreement (Local Currency) FORM.doc - Schedule to Master Agreement (SMUD).DOC

Message 1088 of 1118

Welcome to CustomClips, a Service of Dow Jones Interactive. Your

Sender	djcustomclips@djinteractive.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/messages/1.

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We want you to get the most out of the service. Here's how you may contact us to get help and provide feedback. (If you send e-mail, please explain your problem and remember to include your name, telephone number and user name.)

By Telephone: 800-369-7466 (Select Option 3). Outside the U.S. and Canada, call 609-452-1511 (Select Option 6).

By E-mail: custom.news@wsj.dowjones.com

By Fax: 609-520-4775

We invite you to contact us for assistance with your folder or to have one created for you by our expert staff. Help files also are available on Dow Jones Interactive on the Web (<http://www.djinteractive.com>).

Again, welcome to Dow Jones CustomClips. Our goal is to be your first and best choice for business news and research. Please feel free to contact me with your comments or suggestions.

Best regards,

Timothy M. Andrews Vice President and Editor, Dow Jones Interactive Dow Jones & Company, Inc. E-mail: tandrews@wsj.dowjones.com

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Message 1089 of 1118

RBC Swap Amendment

Sender	sara.shackleton@enron.com
Recipients	['Hirasawa', 'greg.johnston@enron.com', 'Marchis', 'Ruth-Ann' <RUTH-ANN.MARCHIS@RBCDS.COM>, 'Tim']
File	shackleton-s/all_documents/8607.

Tracy Ross at RBC (I spoke with her this morning). SS ----- Forwarded by Sara Shackleton/HOU/ECT on 12/27/2000 11:44 AM -----

Greg Johnston 12/27/2000 11:42 AM

To: Sara Shackleton/HOU/ECT@ECT, Tana Jones/HOU/ECT@ECT cc: Subject: RBC Swap Amendment

Sara/Tana, will you guys be preparing the amended confirms to include the language? Once they are prepared, if you e-mail them to me, I will get them executed and sent to Tracy for execution by RBC.

Thanks

Greg ----- Forwarded by Greg Johnston/CAL/ECT on 12/27/2000 10:40 AM -----

"Ross, Tracy " <TRACY.ROSS@ROYALBANK.COM> on 12/27/2000 09:26:01 AM To: "greg.johnston@enron.com" <greg.johnston@enron.com>, "sara.shackleton@enron.com" <sara.shackleton@enron.com> cc: "Marchis, Ruth-Ann" <RUTH-ANN.MARCHIS@RBCDS.COM>, "Hirasawa, Tim" <TIM.HIRASAWA@RBCDS.COM> Subject: RBC Swap Amendment

As discussed, the RBC/Enron swap confirmation needs to be amended so that the Pricing Dates are subject to the Preceding Business Day Convention.? As the original commodity swap confirmation was prepared by Enron therefore, can you please send out an amended confirmation which deletes Floating Price and Pricing Date(s) in its entirety and replaces it with the attached.? The amended confirmation should be sent to Ruth-Ann Marchis for signature.? Her fax number is 416-842-4314.

Please call me with and questions or comments.

<<amend.doc>> Tracy Ross, Counsel, Royal Bank of Canada Phone: 416-974-5503; Fax: 416-974-2217 File - SW Enron

This email may be privileged and confidential.? Any dissemination or use of this information by a person other than the intended recipient(s) is unauthorized.? If you receive this in error, please advise me immediately.

- amend.doc

Message 1090 of 1118

1999 Year End Performance Feedback

Sender	perfmgmt@ect.enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/performance_management/2.

NOTE: YOU WILL RECEIVE THIS MESSAGE EACH TIME YOU ARE SELECTED AS A REVIEWER.

You have been selected to participate in the 1999 Year End Performance Feedback process by providing meaningful feedback on specific employee(s) that have been identified for you. Your feedback plays an important role in the performance evaluation process, and your participation is very critical to the success of Enron's Performance Management goals.

Please provide feedback on the employee(s) listed below by accessing the Performance Management System and completing an online feedback form as was described in the "Performance Management Quick Reference Guide". You may begin your feedback input immediately. Please have all feedback forms completed by the date noted below.

If you have any questions regarding the Performance Management System or your responsibility in the process, please call the Performance Management User Support Hotline at the following numbers:

In Houston - 713-853-4777, Option 4 In Calgary - 403-974-6724 In London - +44-171-316-6777

Thank you for your participation in this important process.

The following list of employees is a CUMULATIVE list of all feedback requests, by operating company, that have an "OPEN" feedback status. An employee's name will no longer appear once you have completed the feedback form and submitted as "COMPLETE" in the Performance Management System.

Review Group: ENRON YEAREND 1999 Feedback Due Date: Nov 26, 1999

Employee Name Supervisor Name Date Selected ----- CYPROW, JARROD DALE NEUNER
Nov 02, 1999 LOZANO, MELBA DALE NEUNER Nov 03, 1999 NEUNER, DALE JEFFERSON SORENSON Nov 02, 1999

Message 1091 of 1118

(01-391) Emergency Rules - ScotiaMocatta Warrants

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/674.

Notice Number: 01-391 November 21, 2001

TO: ALL COMEX DIVISION MEMBERS ALL NYMEX DIVISION MEMBERS

FROM: J. Robert Collins, Jr., President

SUBJECT: Emergency Rules - ScotiaMocatta Warrants

As a result of the attack on the World Trade Center and the inaccessibility of the precious metals stored at ScotiaMocatta Depository ("SMD"), an Exchange Licensed Depository, located in Four World Trade Center ("4WTC"), the NYMEX Board of Directors implemented emergency rules pertaining to the warrants issued by SMD. In summary, these emergency rules permitted an individual or firm taking delivery the option to reject a warrant for metal on deposit at the SMD vault at 4WTC.

SMD has successfully relocated, using an Exchange Approved Carrier, all of the precious metals stored at 4WTC to an SMD custodial account at the Brink's Inc Exchange Licensed Depository and has applied to the Exchange to establish a new Licensed Depository in New York City.

Therefore, the Exchange has, effectively immediately, rescinded the emergency rules pertaining to the warrants issued by SMD. As a result, the Exchange Rules relating to warrants are those which were in effect prior to the declaration of the emergency.

Prior to the establishment of its new facility as an Exchange-licensed depository, SMD will offer its clients the options of leaving the metal in storage; selling it to SMD; exchanging depository receipts for those of another Exchange-licensed depository acceptable to ScotiaMocatta, with any ounce differential cash-settled on the basis of a published price determined by SMD; or delivering replacement metal to a mutually agreeable location, in exchange for the metal at the ScotiaMocatta depository, subject to payment by the client of the current price differential, as quoted by SMD.

Should you have any questions please contact Thomas LaSala at 212-299-2897, Albert J. Getz at 212-299-2608 or Nick Galati at 212-299-2920.

Message 1092 of 1118

Re: Alcoa Master Agreement

Sender	tana.jones@enron.com
Recipients	['sara.shackleton@enron.com', 'tom.moran@enron.com', 'stephanie.sever@enron.com', 'frank.davis@enron.com']
File	shackleton-s/all_documents/2796.

Alcoa Inc. has contacted us and would like to trade Aluminum online. It appears Frank was on this initial email. I don't know what progress, if any, has been made in getting the counterparty signed up online. The person that contacted us is on the bottom of this email. I will wait to see this counterparty come through on the Credit list. P.S. We do have a financial master in place with them in and there is nothing in it that should restrict metals trading. ----- Forwarded by Tana Jones/HOU/ECT on 07/31/2000 09:14 AM -----

Sara Shackleton 07/31/2000 08:19 AM

To: Tana Jones/HOU/ECT@ECT cc: Noel Petterson/Corp/Enron@Enron Subject: Re: Alcoa Master Agreement

Tana: per my voice mail re: EOL. ----- Forwarded by Sara Shackleton/HOU/ECT on 07/31/2000 08:18 AM -----

Noel Petterson@ENRON 07/31/2000 08:05 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Re: Alcoa Master Agreement

Sara, Would you please take a look at the email below regarding Alcoa's Master Agreement with Enron. Thank you. - Noel
----- Forwarded by Noel Petterson/Corp/Enron on 07/31/2000 08:00 AM ----- Carol St Clair @
ECT 07/30/2000 09:22 AM

To: Noel Petterson/Corp/Enron@ENRON cc: Sara Shackleton/HOU/ECT@ECT

Subject: Re: Alcoa Master Agreement

Noel: I am on maternity leave. Please contact Sara Shackleton about this.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Noel Petterson@ENRON 07/28/00 02:56 PM

To: Carol St Clair/HOU/ECT@ECT cc: Frank L Davis/HOU/ECT@ECT Subject: Alcoa Master Agreement

Carol,

Tim Reyes of Alcoa would like to make sure that their current master agreement with Enron will encompass trading metal products, specifically, aluminum products on EOL. I am hoping that you are the correct person to answer his question.

If you require more information Please contact Mr. Reyes at 865-594-4734.

Thank you,

Noel

Message 1093 of 1118

Re: Execution of Deutsche Bank (Frost) Agreement

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com', 'stephanie.panus@enron.com']
File	shackleton-s/nelson/77.

Stephanie, I left Terry, the attorney a note asking him to confirm that he sent us BOTH agreements -- one for ENA and one for ECT since it appears that he did not. I will keep you posted.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 04/03/2001 01:23 PM -----

Cheryl Nelson Sent by: Cheryl Nelson 04/03/2001 01:22 PM

To: Stephanie Panus/NA/Enron@Enron cc: Subject: Re: Execution of Deutsche Bank (Frost) Agreement

Did we resolve this? Its both. The one marked account number 70900497 is ECT. We should also have one marked acct number 70901071 for ENA. Let me know where we stand and whether we need for me to call them back.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Stephanie Panus 03/30/2001 08:25 AM

To: Cheryl Nelson/NA/Enron@Enron cc: Aneela Charania/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT Subject: Re: Execution of Deutsche Bank (Frost) Agreement

Which entity is this agreement for? It does not indicate on the agreement.

Thanks

Cheryl Nelson Sent by: Cheryl Nelson 03/29/2001 11:04 AM

To: Stephanie Panus/NA/Enron@Enron cc: Sara Shackleton/HOU/ECT@ECT, Aneela Charania/HOU/ECT@ECT, Theresa T Brogan/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT Subject: Execution of Deutsche Bank (Frost) Agreement

Hi Stephanie,

I thought the execution process was complete on this one but actually we are still in the process of executing. DBAB has sent to us two copies signed by them and hence, ready for our signatures. I am forwarding to you so that you could get the signatures and prepare the Authorized Officers List and the Consent Form for signatures as well.

Cassandra wants an explanatory blurb about why the account is necessary, please check in to get some justification from Aneela, Sheila or Theresa.

Thank you,

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 1094 of 1118

Final Term Sheet

Sender	sara.shackleton@enron.com
Recipients	['jim.armogida@enron.com', 'rex.rogers@enron.com']
File	shackleton-s/all_documents/4989.

FYI only. We will execute the Lehman ISDA Master Agreement shortly. Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 12/01/2000 08:25 AM -----

"Rosica, Paul" <prosica@lehman.COM> 11/30/2000 05:21 PM

To: "clint.freeland@enron.com" <clint.freeland@enron.com>, "David Vitrella (E-mail)" <david.j.vitrella@enron.com>, "Sara Shackleton (E-mail)" <sara.shackleton@enron.com>, "John Greene (E-mail)" <john.greene@enron.com> cc: "Hackmann, Russell" <rhackman@lehman.com> Subject: Final Term Sheet

Please find attached final term sheets for the forwards we executed today and yesterday. The fixed price forward amount in each is based upon our average hedge execution of \$69.7576 on 850,000 shares today and \$72.5478 on 1,000,000 shares yesterday. As discussed, we currently have approval to execute 3 month forwards on an additional 1,150,000 shares.

Thank you again for the business. Please call us with any questions.

Best Regards, Paul

<<Forward_ENE_11_29_00.doc>> <<Forward_ENE_11_30_00.doc>>

Paul S. Rosica Lehman Brothers 212-526-8887 Phone 212-526-2755 Fax 917-822-9797 Cell prosica@lehman.com This message is intended only for the personal and confidential use of the designated recipient(s) named above. If you are not the intended recipient of this message you are hereby notified that any review, dissemination, distribution or copying of this message is strictly prohibited. This communication is for information purposes only and should not be regarded as an offer to sell or as a solicitation of an offer to buy any financial product, an official confirmation of any transaction, or as an official statement of Lehman Brothers Inc., its subsidiaries or affiliates. Email transmission cannot be guaranteed to be secure or error-free. Therefore, we do not represent that this information is complete or accurate and it should not be relied upon as such. All information is subject to change without notice.

- Forward_ENE_11_29_00.doc - Forward_ENE_11_30_00.doc

Message 1095 of 1118

Fwd: Online Trading Agreements

Sender	mfowler2@aol.com
Recipients	['jeff.kinneman@enron.com', 'petej@andrews-kurth.com', 'sara.shackleton@enron.com', 'madhur.dayal@enron.com']
File	shackleton-s/all_documents/4270.

Sara,

In response to your voice mail message, we would like to execute legal agreements (for ENA and ECT Investments) with Buy Side Direct and Trading Edge.

Discussions with LIMITrader are on hold given the departure of their point person for legal issues. We have been waiting for several weeks for feedback from Doug Ford (212-499-1390), our LIMITrader sales contact, as to how to proceed.

We expect to resume discussions with MarketAxess when that site is nearer to launching high yield bond trading. (Paul, have you asked Julie Rogoff (212-235-0835) to notify you when this date approaches ?)

My cell phone and email are noted in the email below.

Sara, I understand that our litigation manager has been busy. However, as noted below, the consequential damage issue has been outstanding for more than a month. Please let us know when this issue is resolved and when we can expect discussions with Buy Side Direct and Trading Edge to be completed.

Jason, as we've discussed, please provide Madhur and Paul an opportunity for a final review - before executing - when Legal is comfortable with these agreements.

Thanks.

Mike Fowler

Content-Transfer-Encoding: 7bit Return-path: <MFowler2@aol.com> From: MFowler2@aol.com Full-name: MFowler2 Message-ID: <c4.a81b3c3.271dbf6c@aol.com> Date: Tue, 17 Oct 2000 10:42:52 EDT Subject: Online Trading Agreements To: sara.shackleton@enron.com CC: PETEJ@andrews-kurth.com, jeff.kinneman@enron.com, madhur.dayal@enron.com MIME-Version: 1.0 Content-Type: text/plain; charset="US-ASCII" X-Mailer: Windows AOL sub 125

Sara, per Jason Peters, our litigation manager was unable to meet with Jason during your vacation to discuss consequential damages. This is the only material issue outstanding with regard to the Buy Side Direct agreement. In addition, Jason has been waiting for our position on this issue to be clarified before he continues discussions with Trading Edge.

Sara, we have been aware of the consequential damage issue for more than a month. When can we expect this issue to be resolved ? When can we expect to complete legal discussions with Buy Side Direct and Trading Edge ?

Please call me at 713-412-5890 or email me at mfowler2@aol.com.

Thanks.

Mike

Message 1096 of 1118

Re: BEAR Guarantee letter

Sender	cheryl.nelson@enron.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/nelson/62.

Sara, I confirmed with Mike Bruegel that he will be opening the account for us and has understood this since Tom Doukas and I addressed this issue yesterday. I will edit your lotus notes entry to reflect this correction.

Also, he asked me whether I knew what documents have to accompany the agreement. I told him yes, since I do this all the time. I have in my electronic file folder the blank account form and tax form. If you would like for me to send electronic copies to you if you do not have copies then let me know.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 03/30/2001 04:13 PM -----

Tom Doukas 03/29/2001 03:46 PM

To: Cheryl Nelson/NA/Enron@Enron cc: Subject: Re: BEAR Guarantee letter

Mike Bruegel in Chicago.

03/29/2001 03:41 PM Cheryl Nelson Cheryl Nelson Cheryl Nelson 03/29/2001 03:41 PM 03/29/2001 03:41 PM Sent by: Cheryl Nelson To: Tom Doukas/NA/Enron@ENRON cc:

Subject: Re: BEAR Guarantee letter

Tom, I left message addressing these concerns with Anna Meytina, their lawyer. Who is your contact?

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Tom Doukas 03/29/2001 03:34 PM

To: Cheryl Nelson/NA/Enron@Enron cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Richard Sage/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT Subject: Re: BEAR Guarantee letter

That is wonderful. However my Prime Broker contact at Bear has still not been advised of the pending changes. It would seem to me it will still take time for Bear to make the adjustment to the account.

This will likely delay getting the margin relief we so desperately need.

Could you please confirm that they are ready to fully enact the agreement and lower the margin requirements as of tomorrow?

Thanks,

Tom

03/29/2001 02:53 PM Cheryl Nelson Cheryl Nelson Cheryl Nelson 03/29/2001 02:53 PM 03/29/2001 02:53 PM Sent by: Cheryl Nelson To: Tom Doukas/NA/Enron@ENRON cc: David A Wall/Risk Mgmt/LON/ECT@ECT, Richard Sage/LON/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT

Subject: Re: BEAR Guarantee letter

The Agreements will be ready first thing in the morning for signatures. Final edits are being completed by Bear Stearns; all the negotiating is done.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 1097 of 1118

(02-61) Accurate Reporting of Open Interest by Clearing Members

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/inbox/729.

Notice No. 02-61 February 21, 2002

TO: ALL NYMEX DIVISION MEMBERS ALL NYMEX DIVISION MEMBER FIRMS ALL NYMEX DIVISION CLEARING MEMBERS

FROM: J. ROBERT COLLINS, JR., PRESIDENT

RE: Accurate Reporting of Open Interest by Clearing Members

Exchange rules require clearing members to carry all customer accounts accurately at the clearinghouse. The previous three monthly contract expirations for NYMEX energy futures has shown open interest on the business day following the (EFP only session) for crude oil and the products, and discrepancies in open interest as compared to delivery notices for natural gas and propane. The Exchange attributes this overstating of open interest to incorrect reporting of gross positions by clearing members and thus a failure to bring down these positions at the clearinghouse in a timely manner, i.e., by the 10:00 a.m. Exchange cutoff time for open interest calculation.

As a reminder, clearing members are required to process, on a daily basis, correct open interest figures. NYMEX Rule 9.04(P) - Clearing Procedure, states, in pertinent part, that "(1) concurrent long and short positions in the current delivery month may not be offset by netting, transfer, expit, adjustment or any other bookkeeping procedures, but each side must

be offset by normal floor transactions in accordance with Exchange Rules. Provided however, that a clearing member will be exempt from this requirement if: (i) one side of the concurrent position is established the business day prior to the date... [of] the offset [adjustment]...with the Clearing House...

(2) For the purposes of this Rule 9.04(P), the current delivery month for energy futures contracts commences on the open of trading on the third business day prior to the respective futures contract, including the termination date. "

Therefore, for concurrent positions established within this three-day period, position adjustments must be processed via the C-21 terminals no later than 10:00 a.m. on the following business day, (including the business day following contract termination), in order to correctly reflect open interest in the expiring contract month.

If you have any questions concerning this matter, please contact Nick Galati at (212) 299-2920, Nick Falcone at (212) 299-2919 or Bonnie Yurga at (212) 299-2879.

Message 1098 of 1118

Fwd: BuySideDirect

Sender	petej@andrews-kurth.com
Recipients	['Mike Minnnich' <minnich@imarkets.com>, 'sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/532.

FYI Received: from mail.buysidedirect.com (w219.z064220135.sjc-ca.dsl.cnc.net [64.220.135.219]) by tfsgateway.andrews-kurth.com; Fri, 27 Oct 2000 13:35:53 -0500 Received: from pc10 (pc10.buysidedirect.com [192.168.0.110]) by mail.buysidedirect.com (8.9.3/8.9.3/buysidedirect-20000308) with SMTP id LAA27855; Fri, 27 Oct 2000 11:35:44 -0700 (PDT) From: "Lisa O'Connor" <lisa@imarkets.com> To: <jpeters@andrews-kurth.com> Cc: "Mike Minnnich" <minnich@imarkets.com> Subject: BuySideDirect Date: Fri, 27 Oct 2000 11:34:44 -0700 Message-ID: <NEBBJKCDAMCKKPLIOOJAMEMFCCAA.lisa@imarkets.com> MIME-Version: 1.0 Content-Type: multipart/mixed; boundary="-----_NextPart_000_0009_01C04009.E764A530" X-Priority: 3 (Normal) X-MSMail-Priority: Normal X-Mailer: Microsoft Outlook IMO, Build 9.0.2416 (9.0.2910.0) X-MimeOLE: Produced By Microsoft MimeOLE V5.50.4133.2400 Importance: Normal

Dear Jason,

Getting back to you on the points still outstanding on the BuySideDirect agreement.

4.1 - comma, not a period, on the 11th line (Change included) 4.6 - Addition of following language -- (Change included)

In the event that any component of a BSD executed trade is deemed Clearly Erroneous (by BuySideDirect, the NASD or any ATS or ECN through which BuySideDirect executes trades), the entire BSD trade, including both bond and equity components on all sides of the trade, will be cancelled.

5.1 Enclosed are Broker Dealer Attachments 1 & 2

5.2 Modification of previous language - (Change included)

After trade affirmation, BuySideDirect shall cause its clearing firm to be responsible for the clearance and settlement of all affirmed trades executed on the BuySideDirect trading system.

17.2 You requested the phrase, at Subscriber's election, which we have not included.

Consequential -- You also requested the deletion of the term consequential from sections 6.1and 6.2. We would like to keep the language as is in sections 6.1, 6.2 and 18.

Please give me a call if you would like to discuss the document further. You can reach me at 415-369-5020. Thanks

Regards,

Lisa O'Connor

Lisa Mears O'Connor, CFA BuySideDirect LLC a subsidiary of Intelligent Markets, Inc. 415-369-5020 Phone
415-369-5021 Fax

- BSD BD Attachment 2.DOC - BuySideDirect Attachment 1.DOC - Enron BuySideDirect Subscriber Agreement Dated
August 25 2000.doc

Message 1099 of 1118

FW: UBS FX payment

Sender	sara.shackleton@enron.com
Recipients	['sheila.glover@enron.com', 'clara.carrington@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/sent_items/21.

Please review for accuracy. Thanks. Sara

-----Original Message-----

From: Ellen.Schubert@ubsw.com@ENRON Sent: Thursday, December 06, 2001 12:53 PM To: Shackleton, Sara Cc: Bryan.Murtagh@ubsw.com; Stephen.Thatcher@ubsw.com Subject: UBS FX payment

Sara-thank you for looking into this issue for us. Here is a brief summary of what occurred.

UBS and Enron entered into a Sterling-UBS spot transaction on 11-19-01, which both parties confirmed and settled on 11-21. (UBS pays USD 7,083,500 and receives 5 mio sterling).

On 11-21 UBS and Enron erroneously confirmed the same trade again for settlement on 11-21. UBS made a second USD 7,083,500 payment to Enron's account at BA-Dallas on 11-21 (payment reference: FED IMA 1121B1Q8052C001081).

UBS did not receive the Sterling it was expecting and for the next few days Enron and UBS tried to resolve the non-payment based on a mistaken assumption that Enron owed 5 mio Sterling to UBS.

On 11-28, UBS realized that the trade was duped and on 11-29 informed Enron of the nature of the error and requested that the USD payment be returned. Enron agreed to return the USD payment on 11-29. The returned payment was never received.

If you need additional information please contact me at 203-719-1141 or Bryan Murtagh 203-719-8955. Here are our contacts at Enron who are aware of this issue.

Laurel Adams - operations - (713-853-7035)

Clara Karrington - operations - (713-853- 9224)

Visit our website at <http://www.ubswarburg.com>

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Message 1100 of 1118

(01-87) ANNUAL ELECTION - TUESDAY, MARCH 20, 2001

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9688.

Notice No: 01-87 March 8, 2001

TO: All Stockholders/Class A Members

FROM: The Board of Directors

RE: ANNUAL ELECTION =01) TUESDAY, MARCH 20, 2001

This past week you received a NYMEX Holdings, Inc./NYMEX Exchange, Inc.=20 Ballot for the upcoming election and REFERENDUM vote. In response to certa= in=20 inquiries, the Exchange would like to make several clarifications:

P The Board endorses the REFERENDUM and recommends that you vote =01&FOR=01= 8 the=20 REFERENDUM.

P Passage of the Referendum will increase the Board by creating three (3)= =20 Equity Member slots. In essence, you may lease out your last seat and may= =20 sit on the Board if this referendum is passed.

P Passage of the Referendum requires a majority of the eligible votes (at= =20 least 409 =01&FOR=018 votes).

P You must vote on the Referendum as BOTH a Stockholder AND a Class A membe= r=20 on the Ballot. If you wish to vote in favor of the Referendum, you must=20 check =01&FOR=018 in both boxes.

P Only individuals who own or ABC a seat may vote. Lessees are not eligibl= e=20 to vote.

P For each membership that you own or ABC, you should have received one (1)= =20 blue Ballot and one (1) Proxy envelope.

P If you own or ABC multiple seats, you must place only one (1) ballot in a= =20 Proxy envelope. Do not place more than one (1) ballot in one (1) Proxy=20 envelope.

P You may Fax your Ballots and Proxy Forms to the Office of the Corporate= =20 Secretary up until 4:00 PM on Election Day (March 20th) to (212) 301-4645. = =20 Your name and signature must be included on each Proxy Form.

P If you are not sure that you voted correctly, you may vote again at any= =20 time prior to or on Election Day. Your last vote is the one that counts.

Voting machines cannot handle multiple votes by multiple seat owners. =20 Therefore, they will not be available this year. A table will be set up in= =20 the Members=01, Lounge on the 3rd Floor on Election Day (March 20th) beginn= ing=20 at 8:30 a.m. to accept ballots. If you need further clarification or if yo= u=20 need replacement Ballots, please contact the Office of the Corporate=20 Secretary (Donna Talamo at 212-299-2372 or Dawn Lowe at 212-299-2370).

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron= .com& refdoc=3D(01-87)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1101 of 1118

(01-65) Proposed Amendment to COMEX Rule 4.47, Position Limits

Sender	exchangeinfo@nymex.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/notes_inbox/3188.

Notice Number: 01-65

February 20, 2001

TO: ALL COMEX DIVISION MEMBERS

FROM: M. Dawn Lowe Vice President and Assistant Corporate Secretary

SUBJECT: Proposed Amendment to COMEX Rule 4.47, Position Limits.

Attached please find a proposed amendment to COMEX Rule 4.47, which would reduce the maximum number of futures contracts, options on such futures contracts, or any combination thereof which any person may own or control in the spot month of the Grade 1 Copper Futures Contract from 2500 to 1500.

The proposed amendment to COMEX Rule 4.47, Position Limits affects a Special Matter under the terms of the COMEX By-Laws. Accordingly, COMEX Division Members have ten (10) days to submit a petition signed by owners of at least 155 COMEX Division Memberships requesting a vote of the COMEX Division Members to disapprove the amendments, pursuant to the procedures set forth under COMEX By-Law 205(D). If a petition is not received, or if the amendment is not disapproved, it will be submitted to the Commodity Futures Trading Commission (CFTC).

If you have any questions, please contact Dawn Lowe at 212-299-2370, Thomas LaSala at 212-299-2897 or Albert J. Getz at 212-299-2608.

Proposed Rule Amendments (## indicates additions: bracketing indicates deletions)

COMEX Rule 4.47, Position Limits

(b) Applicable Limits. The maximum number of futures contracts, options on such futures contracts, or any combination thereof (collectively referred to as a "position") which any person may own or control is as follows:

Commodity Spot Month Limit* Net Futures Equivalent Limit

Gold 3000 Subject to Position Accountability

Silver 1500 Subject to Position Accountability

Aluminum 350 Subject to Position Accountability

Copper [2500] ##1500## Subject to Position Accountability

Eurotop 100 Stock Index None 10,000

Eurotop 300 Stock Index None 5,000

*Effective as of the close of business on the second last business day of the calendar month preceding the delivery month.

The remainder of COMEX Rule 4.47 remains unchanged.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-65)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1102 of 1118

RE: NSPI - ISDA _Update

Sender	jennifer.fraser@enron.com
Recipients	['sara.shackleton@enron.com', 'richard.lassander@enron.com']
File	shackleton-s/notes_inbox/2167.

Folks let's review the facts and get an answer to the customer. 1- In July of 1999, we sent a draft ISDA to NSPI (10MM Line because their= =20 excellent credit) 2- In October 1999, NSPI sent comments back-- No one from Enron ever=20 responded. 3- In July 2000 I sold NSPI q1-01 and q4-01 weather put 4- On February=01;13th, 2001i sent an email to Braves, T Jones and=01; asking that=20 an updated ISDA be sent to the customer as they had undergone a name change= e=20 and we wanted the ISDA to cover weather deals. (a copy is attached) 5- The customer is still without a document and their letter of October 199= 9=20 remains unanswered. 6- Can we please get this issue resolved.=20

From: Jennifer Fraser 13/02/2001 15:10

=01; =01;=20 =01;

To: Tana Jones/HOU/ECT@ECT, Brant Reves/HOU/ECT@ECT, Kevin=20 McGowan/Corp/Enron@ENRON

cc: "Don Keith" <dona1d keith,=20

Subject: ISDA for Nova Scotia Power

Tana and Brant:

We sent an ISDA to NSPI (Nova Scotia Power Inc) on July 28, 1999. The CP= =20 would like to get an updated copy in order to have an agreement in place. W= e=20 have done some financial deals (2 weather puts). I believe they are also an= =20 active counterparty with us in coal (physical).

Can you please send an updated agreement to

Don Keith

Treasurer

Nova Scotia Power Inc.

1894 Barrington St 9th Floor

Scotia Square

Halifax NS

Canada

B3J 3 A8

Phone 902- 428-6848

fax; 902-428-6181

The website for the CP is <http://www.nspower.ca/>

Their financials can be found at <http://www.emera.com/>

Please note that NSPI (Emera) is a publicly traded utility -- they are not= =20 gov't owned.

=01; =01; -----Original Message-----=20 From: Lassander, Richard=20 Sent: Mon 21/05/2001 18:33=20 To: Fraser, Jennifer=20 Cc:=20 Subject: NSPI - ISDA

Jen,=20 An update with regards to the Nova Scotia Power ISDA. After several days of= =20 trying to hunt down Brant Reves he referred me to Rudwell Johnson in Credit= .=20 He in turn sent me back to Tana Jones because there is an ISDA issued and y= ou=20 don't have to renew it if it is already in place. I go back to Tana Jones t= o=20 see if the ISDA sent to Nova Scotia in July 1999 included Weather=20 Derivatives. Tana Jones referred me back to Sara Shackleton. I left a voice= =20 mail with Sara this afternoon. Through this process I found out that the IS= DA=20 sent to NSPI in July 1999 was never executed and we need to execute it befo= re=20 we can do any deals with them. I was under the impression that we already= =20 have been doing deals with them.

=01;

Richard Lassander=20 Enron Global Markets=20 Phone: 713-345-7600=20 Fax: 713-758-8400

Message 1103 of 1118

FW: Put Confirmations: ENE as "Seller" and Lehman Brothers Finance

Sender	sara.shackleton@enron.com
Recipients	['jim.armogida@enron.com', 'rex.rogers@enron.com', 'clint.freeland@enron.com']
File	shackleton-s/sent_items/238.

Rex, Jim and Clint:

You may recall that ENE has been in the process of documenting two forwards, effective 10/3/01, and two puts, effective 10/1/01. The forwards consisted of rolls of outstanding forwards with Lehman. These transaction confirmations were signed by Tim DeSpain on Friday, October 19, 2001.

In that regard, I have faxed to your attention the two (2) REVISED put confirmations prepared by Lehman per the email attached below. I received the confirmations by fax today. The confirmations were revised to provide for physical settlement on the Expiration Date. There are two different Expiration Dates; one is October 30, 2001 (Strike Price of USD15.5246) and the other is December 28, 2001 (Strike Price of USD15.6947). You will see the details on the confirmations. As Seller of the options, ENE will be obliged to pay Lehman upon delivery of the shares if the options are automatically exercised on the Expiration Date(s). Please note that there are also changes to the confirmations with respect to "Regulation M/Tender Offer Event" appearing on page 4 (i.e., Cash Settlement will apply instead).

Clint: please verify that the confirmation changes conform to your discussions with Russ.

Please let me know if you have any questions.

Thanks. Sara

-----Original Message-----

From: "Fleming, Matthew" <mfleming@lehman.com>@ENRON Sent: Monday, October 22, 2001 10:54 AM To: Freeland, Clint Cc: Hackmann, Russell; Shackleton, Sara Subject: Put Confirmations

Clint,

Just FYI, we are revising the two put confirmations we sent out to you earlier to reflect the discussions you previously had with Russ around settlement. We will correct the confirms to include only physical settlement at maturity, and we will send them out shortly.

Regards, Matt

Matt Fleming Lehman Brothers Corporate Equity Derivatives P: 201-524-2279 F: 646-758-4819 C: 917-553-8757

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offer to sell or as a solicitation of an offer to buy any financial product, an official confirmation of any transaction, or as an official statement of Lehman Brothers. Email transmission cannot be guaranteed to be secure or error-free. Therefore, we do not represent that this information is complete or accurate and it should not be relied upon as such. All information is subject to change without notice.

Message 1104 of 1118

FW: FX confirmation info	
Sender	sheila.glover@enron.com
Recipients	['donna.lowry@enron.com', 'sara.shackleton@enron.com', 'laurel.adams@enron.com']
File	shackleton-s/inbox/299.

Sara, I spoke with Laurel about the attached...

We have an existing Master Agreement with UBS. This request allows Confirmations to confirm FX trades on-line as an alternative to the Confirmation desk calling on the phone.

We are not establishing a new broker relationship.

The documents required include: Participant declaration Basic Conditions for Use of Electronic Devices List of Authorized Users.

I would not think that this request would require the notice which I send for a new Broker relationship. Regards, Sheila

-----Original Message-----

From: Shackleton, Sara Sent: Monday, October 01, 2001 11:38 AM To: Glover, Sheila Cc: Heard, Marie Subject: FW: FX confirmation info

Sheila: Please send your usual message on this one as well. There are several written agreements involved. Thanks. Sara

-----Original Message-----

From: Shackleton, Sara Sent: Thursday, September 06, 2001 10:56 AM To: Summers, Kelly Cc: Adams, Laurel Subject: RE: FX confirmation info

Kelly: Please send the paperwork to me. I will also need to review the site and legal works through an internal Networks person (for consistency purposes). Please forward contact information to me (name, phone, email, etc.). Thanks.

-----Original Message-----

From: Summers, Kelly Sent: Thursday, September 06, 2001 10:25 AM To: Adams, Laurel; Shackleton, Sara Subject: FW: FX confirmation info

Laurel and Sara. UBS has an Internet Module that they are going to start using for "Verbal Confirms" on FX trades. You can see a little of what it contains, but they have informed me that we have to be set up with ID's and passwords, sign a contract etc. The contact at UBS is Max Squire and he will provide me with more info when needed. Max has explained to me that as the trades are entered into the system we will go in and mark confirmed when we agree. It sounds very interesting to me. Let me know what you think. I can ask Max to send me the paperwork for your review.

Thank you.

Kelly Summers

-----Original Message-----

From: valerie.lambelet@ubs.com@ENRON
[mailto:IMCEANOTES-valerie+2Elambelet+40ubs+2Ecom+40ENRON@ENRON.com] Sent: Thursday, September 06, 2001 9:55 AM To: Summers, Kelly Subject: FX confirmation info

Kelly,

As per your request, please find enclosed information about our FX confirmation tool as well as our URL to be able to have a look at our module in Internet.

<http://www.ubs.com/e/cc/keylink/modules/confirmation.html>

Please feel free to call me if you need further information.

Regards Valerie

Valerie Lambelet Relationship Manager UBS KeyLink Sales & Support Americas

Helpdesk: +1 203 719 3800 Direct: +1 203 719 3283 Fax: +1 203 719 5510 <http://www.ubs.com/keylink>

- Confirmations.pdf << File: Confirmations.pdf >>

Message 1105 of 1118

Exchange in Support of Feinstein Amendment

Sender	officeofthechairman@nymex.com
Recipients	['officeofthechairman@nymex.com']
File	shackleton-s/inbox/807.

Dear Member:

As you may be aware, Senator Feinstein has proposed an amendment to the Senate energy bill. The amendment seeks to redress some serious regulatory gaps which are significant to the energy and metals marketplaces:

1) the differential treatment of electronically traded energy and metals futures 2) the inability to get critically needed information from over-the-counter (OTC) market operators

The New York Mercantile Exchange is supporting the Feinstein amendment. We want to explain our reasons.

Electronic trading systems offering traditional over-the-counter products for energy and metals trading are currently exempt from any regulation. The CFTC is without jurisdiction to oversee fair play, or to examine records, establish standards and deter misconduct as occurs on a traditional exchange like NYMEX.

As these systems have gained importance in the price discovery process for many instruments, and as they are accepted as centralized marketplaces by the customers using them, we find the exemption from regulation of the platforms and their operators to be troubling.

The Feinstein amendment is aimed squarely at the system operators, who take on the role of operators of a central marketplace. The amendment does not seek to impose restrictions on where OTC market participants might trade but provides some limited record keeping requirements, which are more than likely already part of their daily business. Instead, the amendment seeks to create a duty for system operators to report to the CFTC and be subject to the "Regulatory Lite" scheme set forth in the Commodity Futures Modernization Act.

Imagine a situation where a large market participant held a substantial volume of crude oil in private storage, and then leased Cushing pipeline capacity for its own use or to move additional oil into storage. Market demand could be unmet by this company, and the ability of others to meet it could be frustrated, thus driving the price up. Suppose this company held a large long position on an over the counter system, and profited handsomely from this conduct. Would you really want that market user to be able to hide behind the unregulated status of the platform where those trades occurred to impede investigation? Is that the type of deterrent to misconduct that the industry wants? We do not think so.

We urge you to notify Senator Feinstein and the bill's co-sponsor, Senator Fitzgerald of your support. Contact information is as follows:

Senator Dianne Feinstein Contact Warren Weinstein 202-224-3841 fax 228-3954

Senator Peter Fitzgerald Contact Terry Van Doren 202-224-2854 fax 228-1371

Chairman Jeff Bingaman Senate Energy and Natural Resources Committee Contact Shirley Neff 202-224-4103 fax 224-9026

We appreciate your support on this important issue.

Yours,

Vincent Viola Chairman of the Board

Message 1106 of 1118

Re: Autex London

Sender	laurel.adams@enron.com
Recipients	['sara.shackleton@enron.com', 'Laurel Adams/HOU/ECT@ECT', 'Judi Hemsley/LON/ECT@ECT']
File	shackleton-s/all_documents/4126.

FYI-just keeping you in the loop. ----- Forwarded by Laurel Adams/HOU/ECT on 10/11/2000 08:27 AM

John Greene 10/11/2000 05:41 AM Sent by: John Greene To: Julie Pechersky/HOU/ECT@ECT cc: Laurel Adams/HOU/ECT@ECT, Judi Hemsley/LON/ECT@ECT Subject: Re: Autex London

Julie,

I just spoke to Emma Clasby (011-44-207-369-7307) at Autex re: the installation on my desktop in London. I gave her your name and number to help coordinate this install. Apparently the setup here will be the same as the setup in Houston. In other words no new permissioning, contracts, etc. will be required. As the app is on the network in Houston I would think it would be fairly easy to "recreate" the script or whatever it is to work in London. I will leave all that in your capable hands.

For your information, I have now had Win 2K installed and am using it almost exclusively. Therefore, you may need to direct the Autex people to the Win 2K rollout team (I've been working with Judi Hemsley) to get it on my desktop. Also, for your information, there are apparently still issues with Reuters Kobra so I have had to get Bridge Telerate installed and it appears to be working fine in the Win 2K environment.

Please let me know if and when you hear from Emma and/or if anyone wants to discuss any of this further.

Thanks and regards, John ----- Forwarded by John Greene/HOU/ECT on 11/10/2000 11:34

John Greene 13/09/2000 12:40 To: Julie Pechersky/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT cc:

Subject: Re: Autex London

Julie/Laurel,

I just spoke with Neil Allen regarding getting Autex installed here in London. I gave Neil both of your names as contacts to get the installation process and any related contractual issues going. Neil promised me that someone would be in contact with either me or one of you today. Please let me know if someone has not contacted either of you in the next few days.

Thanks and regards, John

Julie Pechersky 12/09/2000 14:02 To: John Greene/LON/ECT@ECT cc:

Subject: Re: Autex London

I spoke with a Neil Allen with Autex about 2 weeks ago and asked him to call you. I also sent him an email last week to find out if he had contacted you yet but have gotten no response. I called the head of the London Autex office who is Tony Booth but he is currently in Sweden. I asked that either Neil or someone make contact with you as soon as possible. Let me know if you do not hear from someone. The number to the Autex office in London is 171 369 7103 and I believe that

Neil Allen's number is 207 369 7352.

Thanks,

Julie

John Greene 09/12/2000 02:39 AM To: Julie Pechersky/HOU/ECT@ECT cc: Subject: Autex London

Julie,

Have balls in the air with both Instinet and ITG. Thanks. Have not heard anything from Autex, though. Can you please chase up with someone there for me because I do not have a contact there.

Thanks and regards, John

Message 1107 of 1118

RE: Equity Forward Contract

Sender	clint.freeland@enron.com
Recipients	['jim.armogida@enron.com', 'jeff.nogid@enron.com']
File	shackleton-s/inbox/268.

Christine - Sara is out of the office for the rest of the week, but I understand why you guys have trouble with me specifically being listed. Instead of my number being put in there, can we just use the general Enron Corp phone number (1-800-973-6766) and have UBS ask to be connected to the Treasurer's office. There will always be a person there to take the call, and you will always be directed to the right person regardless of what employee reassignments may occur between now and then.

Jim, what do you think of this? Christine, since Sara is out, would you please include Jim Armogida on the distribution list. Thanks. CF

-----Original Message-----

From: Christine.Lee@ubsw.com [mailto:Christine.Lee@ubsw.com] Sent: Thursday, September 27, 2001 9:06 AM To: Shackleton, Sara Cc: Freeland, Clint; Nogid, Jeff; Annette.Spencer@ubsw.com Subject: Equity Forward Contract

Sara,

Thank you for reviewing and returning the equity forward confirmations so promptly. We have reviewed the handwritten comment on page 8 of the contract and unfortunately cannot accept the language as presented. Our concern is that if we are unable to get through to Clint for any reason (either speaking to him directly or getting voice mail), the termination notice would not be effective.

We propose to insert the following language instead:

"Such Non-Affected Party will use commercially reasonable efforts to promptly confirm the transmission of such facsimile notice by telephone (telephone number 713-345-7538) to the Affected Party, provided however, that failure to so confirm will not in anyway invalidate the effectiveness of a notice by facsimile transmission."

(insert as the last sentence of the third paragraph under "Additional Termination Event".)

Please let me know if this works for you. If so, we will produce new contracts with the language and send it back to you for another round of signatures.

Please call me if you have any questions. I apologize for any inconvenience this may cause.

Regards, Christine 203-719-8354

Visit our website at <http://www.ubswarburg.com>

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E-mail transmission cannot be guaranteed to be secure or error-free as information could be intercepted, corrupted, lost, destroyed, arrive late or incomplete, or contain viruses. The sender therefore does not accept liability for any errors or omissions in the contents of this message which arise as a result of e-mail transmission. If verification is required please request a hard-copy version. This message is provided for informational purposes and should not be construed as a solicitation or offer to buy or sell any securities or related financial instruments.

Message 1108 of 1118

(01-54) Final Determination of Categories of Eligibility of

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/9167.

February 13, 2001 Notice No.: 01-54

Final Determination of Categories of Eligibility of Proposed Nomineesfor=20 Election to the Board of Directors of NYMEX Holdings, Inc.

Please be advised that the Membership Subcommittee has made the following= =20 determinations as to the positions and/or categories for which those=20 individuals who were recommended as proposed candidates for the 2001=20 elections:

1. Recommended as Proposed Nominees for =01&CHAIRMAN of the Board=018: (ONE three-year term)

Gerald Rafferty (RAFT) Vincent Viola (OLA)

2. Recommended as Proposed Nominees for =01&Public Director=018:

PUBLIC (TWO three-year terms)

Stewart Brown George Burman Melvyn Falis Howard Gabler Harley Lippman Dale Lucas Todd Sloan Matthew Solof Robert Steele Paul Tortorella Lee White

3. Recommended as Proposed Candidates for =01&Director*=018: (ONE three-year term: Floor Broker/Local/FCM/Trade/At Large)

Stephen Ardizzone (ZONE) =01) Floor Broker Madeline Boyd (MJB) =01) Local Michael Cardelfe (MFC) =01) Floor Broker/Trade James Collins (BO) =01) Trade Thomas Cunningham (TAC) =01) Floor Broker Daniel Dicker (DANO) =01) Local Kenneth Garland (CASH) =01) Local Adam Hersch (ADAM) =01) Local Stanley Meierfeld (STAN) =01) FCM Gary Rizzi (RAZZ) =01) FCM Gordon Rutledge (OPEC) =01) Floor Broker William Schaeffer (IRON) =01) Floor Broker Mark Spanakos (SHRK) =01) Local Howard Tanney (TANN) =01) Local Mark Tolette (SKI) =01) FCM David Wender (WHEN) =01) Local

*In addition to the categories specified above, ALL of these individuals ar= e=20 eligible to be nominated for Director service are also eligible to be=20 nominated for the category of =01&At Large.=018 If an individual has no ca= tegory=20 listed next to his name, he or she is only eligible to run for the =01&At L= arge=018=20 category.

TO BE OFFICIALLY NOMINATED, EACH PROPOSED NOMINEE WILL BE REQUIRED TO FILE= =20 WITH THE OFFICE OF THE CORPORATE SECRETARY A DECLARATION WHICH STATES THAT= =20 CATEGORY IN WHICH THE PERSON INTENDS TO STAND FOR ELECTION. FAILURE TO=20 SUBMIT A DECLARATION TO THE OFFICE OF THE CORPORATE SECRETARY BY 5:00 P.M. = ON=20 TUESDAY, FEBRUARY 20, 2001 WILL RENDER THE PROPOSED NOMINEE INELIGIBLE TO R= UN=20 IN ANY CATEGORY.

Note, only those persons who were proposed by February 2, 2001 will be permitted to be officially nominated.

Ballots will be mailed no later than February 27, 2001.

The election will be held on Tuesday, March 20, 2001.

Should you have any questions regarding the above, please contact Christopher Bowen at (212) 299-2200, M. Dawn Lowe at (212) 299-2370 or Donna Talamo at (212) 299-2372.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-54)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1109 of 1118

Online Trading Agreements - Credit Exposure

Sender	sara.shackleton@enron.com
Recipients	[paul.radous@enron.com', 'Sara Shackleton/HOU/ECT@ECT']
File	shackleton-s/sent/2015.

Paul: I have several online trading agreements to be negotiated. Are you still reviewing credit issues? Sara ----- Forwarded by Sara Shackleton/HOU/ECT on 09/13/2000 03:35 PM -----

Mike Fowler@ENRON 09/13/2000 02:27 PM

To: PETEJ@andrews-kurth.com cc: Sara Shackleton/HOU/ECT@ECT Subject: Online Trading Agreements - Credit Exposure

The online bond trading sites we are evaluating have stated that they and their clearing broker are our nominal counterparties. However, I was informed yesterday by Weiss, Peck & Greer that our exposure on affirmed trades is to our prime broker. (Our prime broker has exposure to the site's clearing firm.) We confirmed this with our prime broker and with Sheila Glover.

Thus, statements that 1) transactions will be cleared through our prime broker and 2) the site is responsible for the accuracy of terms of offers and executed trades (as Buy Side Direct added) may sufficiently address the issue of our exposure.

Please let me know if you would like to discuss.

Thanks.

Mike 713-853-9990

----- Forwarded by Mike Fowler/Corp/Enron on 09/13/2000

02:08 PM -----

Mike Fowler 09/12/2000 03:49 PM To: PETEJ@andrews-kurth.com cc: Sara Shackleton/HOU/ECT@ECT

Subject: Weiss, Peck & Greer Agreement

Weiss, Peck and Greer (WPG) has addressed the fee and margin issues noted in my previous email.

Fees: We will not be assessed any fees from WPG. Thus, I suggest that section 9 state this, or be removed.

Margin: Section 14 should note that margin for our transactions through Buy Side Direct would be maintained at our prime broker. WPG would only request margin if our prime broker disaffirms a trade.

Has the WPG attorney agreed to a time to discuss their agreement ?

Thanks.

Mike 713-853-9990

----- Forwarded by Mike Fowler/Corp/Enron on 09/12/2000

02:33 PM -----

Mike Fowler 09/11/2000 02:41 PM To: PETEJ@andrews-kurth.com cc: Sara Shackleton/HOU/ECT@ECT

Subject: Weiss, Peck & Greer Agreement

My only suggestion regarding your comments on the WPG agreement would be not to change the 2nd line of 5a from "your Prime Broker" to "the exchange".

Mike Minnich emailed you and me the following language to incorporate WPG's obligation as our nominal counterparty:

WPG is responsible for the clearance and settlement of all affirmed trades executed on the BuySideDirect trading system.

This appears reasonable to me (unless you or Sara feel that this could be interpreted as excluding trades for which the other counterparty fails).

Rather than waiting until my issues regarding fees (#9) and margin (#14) are resolved, I suggest that you forward your comments to Mike Minnich (who will provide to WPG's attorneys) and note that we have requested an opportunity to discuss fees (#9) and margin (#14) with Mike Minnich and WPG. We suggest deleting #9 as our understanding is that we would not incur charges from WPG. Regarding #14, we would incorporate our Buy Side Direct trading activity into our margin account with our prime broker. Jason, I'll provide additional feedback after I discuss these issues with WPG.

Please call me (713-853-9990) if you would like to discuss.

Thanks.

Mike

Message 1110 of 1118

(02-43) POSITION ADJUSTMENT DEADLINES

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/409.

Notice No. 02-43 February 5, 2002

TO: ALL NYMEX/COMEX DIVISION MEMBERS ALL MEMBER FIRMS ALL CLEARING MEMBERS

FROM: J. ROBERT COLLINS, JR., PRESIDENT

RE: POSITION ADJUSTMENT DEADLINES FOR THE MARCH 2002 METAL AND ENERGY CONTRACTS [NYMEX RULE 9.04(P) AND COMEX RULE 4.37(A)]

As a reminder, position adjustments for both NYMEX and COMEX Division metals contracts are prohibited beginning on the tenth business day prior to the first business day of the delivery month, and throughout the delivery month. Therefore, all position adjustments of concurrent futures positions for the March 2002 metals contracts must be completed prior to February 14, 2002.

Additionally, position adjustments of concurrent futures positions for NYMEX Division energy contracts are not permitted during the last three trading days of the respective contracts. Rules 9.04(P) and 4.37(A) are attached.

If you have any questions concerning this matter, please contact Nick Galati at (212) 299-2920, Nick Falcone at (212) 299-2919, or Bonnie Yurga at (212) 299-2879.

NYMEX RULE 9.04 - CLEARING PROCEDURE

(P) Concurrent Futures Positions

(1) Concurrent long and short positions in the current delivery month may not be offset by netting, transfer, expit, adjustment or any other bookkeeping procedures, but each side must be offset by normal floor transactions in accordance with Exchange Rules. Provided, however, that a clearing member will be exempt from this requirement if: (I) one side of the concurrent position is established the business day prior to the date that the offset memoranda are filed with the Clearing House; (II) a clearing member filing such offset memoranda can satisfy the Exchange at its request that the delay in effecting the offset is attributed to an error in the filing of its clearing sheets; and (III) by 10:30 a.m. on the same date that a clearing member files such offset memoranda, the clearing member also files with the clearing house an updated and accurate Long Open Interest Report.

(2) For the purposes of this Rule 9.04(P), the current delivery month for energy futures contracts commences on the open of trading on the third business day, prior to termination of the respective futures contract, including the termination date. The current delivery month in platinum and palladium commences on the tenth (10th) business day prior to the first business day of the delivery month.

COMEX RULE 4.37A - CONCURRENT FUTURES POSITIONS

(1) Concurrent long and short positions in the current delivery month may not be offset by netting, transfer, expit, adjustment or any other bookkeeping procedures, but each side must be offset by normal floor transactions in accordance with Exchange Rules. Provided, however, that a clearing member will be exempt from this requirement if one side of the concurrent position is established the business day prior to the date that the open positions are filed with the Clearing House.

(2) For the purposes of this Rule 4.37A, the current delivery month for metals futures contracts commences on the open of trading on the tenth (10th) business day, prior to the first business day of the delivery month. The current delivery month for Eurotop futures commences on the open of trading on the tenth (10th) business day prior to the termination of the respective futures contract, including the termination date.

Message 1111 of 1118

(02-67) POSITION ADJUSTMENT DEADLINES

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/550.

Notice No. 02-67 March 5, 2002

TO: ALL NYMEX/COMEX DIVISION MEMBERS ALL MEMBER FIRMS ALL CLEARING MEMBERS

FROM: J. ROBERT COLLINS, JR., PRESIDENT

RE: POSITION ADJUSTMENT DEADLINES FOR THE APRIL 2002 METAL AND ENERGY CONTRACTS [NYMEX RULE 9.04(P) AND COMEX RULE 4.37(A)]

As a reminder, position adjustments for both NYMEX and COMEX Division metals contracts are prohibited beginning on the tenth business day prior to the first business day of the delivery month, and throughout the delivery month. Therefore, all position adjustments of concurrent futures positions for the April 2002 metals contracts must be completed prior to March 15, 2002.

Additionally, position adjustments of concurrent futures positions for NYMEX energy contracts are not permitted during the last three trading days of the respective contracts. Rules 9.04(P) and 4.37(A) are attached.

If you have any questions concerning this matter, please contact Nick Galati at (212) 299-2920, Nick Falcone at (212) 299-2919, or Bonnie Yurga at (212) 299-2879.

NYMEX RULE 9.04 - CLEARING PROCEDURE

(P) Concurrent Futures Positions

(1) Concurrent long and short positions in the current delivery month may not be offset by netting, transfer, expit, adjustment or any other bookkeeping procedures, but each side must be offset by normal floor transactions in accordance with Exchange Rules. Provided, however, that a clearing member will be exempt from this requirement if: (I) one side of the concurrent position is established the business day prior to the date that the offset memoranda are filed with the Clearing House; (II) a clearing member filing such offset memoranda can satisfy the Exchange at its request that the delay in effecting the offset is attributed to an error in the filing of its clearing sheets; and (III) by 10:30 a.m. on the same date that a clearing member files such offset memoranda, the clearing member also files with the clearing house an updated and accurate Long Open Interest Report.

(2) For the purposes of this Rule 9.04(P), the current delivery month for energy futures contracts commences on the open of trading on the third business day, prior to termination of the respective futures contract, including the termination date. The current delivery month in platinum and palladium commences on the tenth (10th) business day prior to the first business day of the delivery month.

COMEX RULE 4.37A - CONCURRENT FUTURES POSITIONS

(1) Concurrent long and short positions in the current delivery month may not be offset by netting, transfer, expit, adjustment or any other bookkeeping procedures, but each side must be offset by normal floor transactions in accordance with Exchange Rules. Provided, however, that a clearing member will be exempt from this requirement if one side of the concurrent position is established the business day prior to the date that the open positions are filed with the Clearing House.

(2) For the purposes of this Rule 4.37A, the current delivery month for metals futures contracts commences on the open of trading on the tenth (10th) business day, prior to the first business day of the delivery month. The current delivery month for Eurotop futures commences on the open of trading on the tenth (10th) business day prior to the termination of the respective futures contract, including the termination date.

Message 1112 of 1118

(02-09) POSITION ADJUSTMENT DEADLINES

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	shackleton-s/deleted_items/230.

Notice No. 02-09 January 8, 2002

TO: ALL NYMEX/COMEX DIVISION MEMBERS ALL MEMBER FIRMS ALL CLEARING MEMBERS

FROM: J. ROBERT COLLINS, JR., PRESIDENT

RE: POSITION ADJUSTMENT DEADLINES FOR THE FEBRUARY 2002 METAL AND ENERGY CONTRACTS [NYMEX RULE 9.04(P) AND COMEX RULE 4.37(A)]

As a reminder, position adjustments for both NYMEX and COMEX Division metals contracts are prohibited beginning on the tenth business day prior to the first business day of the delivery month, and throughout the delivery month. Therefore, all position adjustments of concurrent futures positions for the February 2002 metals contracts must be completed prior to

=3D=3D=3D=3D=3D=3D=3D=3D

Please be advised that beginning on Friday, February 16, 2001, the Exchange= =20 will offer a new end of week trading session. The new program applies only = to=20 the NYMEX Division and does not affect COMEX=01,s existing post-settlement= =20 session.

This new End of Week Session is being offered only for the crude oil, heati= ng=20 oil, unleaded gasoline and natural gas futures contracts. It is not=20 available for options contracts in these commodities. In addition, the End= =20 of Week Session is not available for NYMEX Division metals contracts nor wi= ll=20 it be offered for the Exchange=01,s propane futures contract.

Specifically, the new program provides for a special trading session (the= =20 "End of Week Session") to be offered on certain days after the close as a= =20 substitute on such days for the NYMEX Division post-close trading session. = =20 This End of Week Session will be offered on Fridays and additionally on the= =20 day before any mid-week Exchange holiday, e.g., Thanksgiving.

This End of Week Session shall be offered (20) minutes after the close of= =20 trading in all futures contracts and shall be ten minutes in duration. Thu= s,=20 on most Fridays, the End of Week Session will be offered from 3:30 to 3:40= =20 p.m. However, because next Friday is the Friday before an Exchange holiday= =20 (President=01,s Day), early closing hours shall be in effect.

Therefore, for this reason, the End of Week Session to be offered next Frid= ay=20 on February 16 shall be commence at 1:20 p.m. and shall continue until 1:30= =20 p.m. On the following Friday, the End of Week Session shall be offered at t= he=20 3:30-3:40 time slot.

The new End of Week Session is both similar to and different from the prese= nt=20 post-close trading session. Like the current post-close session, the End o= f=20 Week Session is limited to the first four listed contract months. Also, li= ke=20 the current post-close session, trading transacted during the new End of We= ek=20 Session shall not be included in the calculation of settlement prices.

Unlike the current post-close session, the trading range for the new End of= =20 Week Session shall be the trading range for the entire day. The more=20 expansive trading range should provide a better opportunity for unfilled=20 orders to be executed and for market participants to get flat in the market= =20 for that trading session.

Also, unlike the current post-close session, there shall be no restrictions= =20 on participation in the new End of Week Session. However, only orders=20 submitted after regular trading hours may be executed in the End of Week=20 Session.

If you have any questions concerning the new End of Week trading session,= =20 please contact George Henderson, Vice President, NYMEX Floor Department, at= =20 (212) 299-2071; Rob Stasi, Manager of Trading Floor Systems, NYMEX Floor=20 Department, at (212) 299-2067, or Brian Regan, Senior Associate General=20 Counsel, at (212) 299-2207.

Please click on the link below to indicate you have received this email.

"http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron= .com&refdoc=3D(01-56)"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1114 of 1118

(01-47) Final List of Proposed Nominees for Election to the Board

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/all_documents/8960.

February 2, 2001 Notice No.: 01-47

Final List of Proposed Nominees for Election to the Board of Directors of NYMEX Holdings, Inc.

Please be advised that the following represents the final list of those=20 persons who were recommended as proposed nominees for the 2001 elections:

1. Recommended as Proposed Nominees for "CHAIRMAN of the Board": (ONE three-year term)

Vincent Viola (OLA) Gerald Rafferty (RAFT)

2. Recommended as Proposed Nominees for "Director":

PUBLIC (TWO three-year terms)

Stewart Brown George Burman Melvyn Falis Howard Gabler Christopher George Harley Lippman Dale Lucas Todd Sloan
Matthew Solof Robert Steele Paul Tortorella Lee White

FLOOR BROKER (ONE three-year term)

Stephen Ardizzone (ZONE) Michael Cardelfe (MFC) Thomas Cunningham (TAC) Gordon Rutledge (OPEC) William
Schaeffer (IRON)

LOCAL (ONE three-year term)

Madeline Boyd (MJB) Daniel Dicker (DANO) Kenneth Garland (CASH) Adam Hersch (ADAM) Mark Spanakos (SHRK)
Howard Tanney (TANN)

FCM (ONE three-year term)

Stanley Meierfeld (STAN) Gary Rizzi (RAZZ) Mark Tolette (SKI)

TRADE (ONE three-year term)

Michael Cardelfe (MFC) James Collins (BO) Thomas Costantino (CSMO) Mark Tolette (SKI)

AT LARGE (ONE three-year term)

Madeline Boyd (MJB) Michael Cardelfe (MFC) Daniel Dicker (DANO) Kenneth Garland (CASH) Howard Tanney (TANN)
David Wender (WHEN)

On February 5, 2001, the Subcommittee will convene to make its determinatio= n=20 as to the eligibility of the proposed nominees to run in the category for= =20 which they were proposed or otherwise. Such determination will be=20 immediately posted. Should the Subcommittee determine that a proposed=20 candidate is ineligible to run in the category for which he was recommended= ,=20 written notice thereof shall immediately be submitted to that person. To= =20 assist the Subcommittee, NYMEX members may submit information regarding the= =20 eligibility of a proposed nominee to the Subcommittee. All such submission= s=20 must be received by 5:00 p.m. on February 9, 2001 at the Office of the=20 Corporate Secretary. In addition, a proposed nominee may appeal the=20 Subcommittee=01,s categorization. Such appeal must be made by 5:00 p.m. on= =20 February 9, 2001. The Subcommittee will consider the appeal and make a fin= al=20 ruling no later than February 13, 2001. At that time, the Subcommittee wil= l=20 assign the proposed nominee! s ! to the proper categories, regardless of the category for which the proposed= =20 nominee was originally recommended; however, only persons who were recommended to be=20 candidates for Chairman are eligible to run for that office.

TO BE OFFICIALLY NOMINATED, EACH PROPOSED NOMINEE WILL BE REQUIRED TO FILE= =20 WITH THE OFFICE OF THE CORPORATE SECRETARY A DECLARATION WHICH STATES THAT= =20 CATEGORY IN WHICH THE PERSON INTENDS TO STAND FOR ELECTION. FAILURE TO=20 SUBMIT A DECLARATION TO THE OFFICE OF THE CORPORATE SECRETARY BY 5:00 P.M. = ON=20 TUESDAY, FEBRUARY 20, 2001 WILL RENDER THE PROPOSED NOMINEE INELIGIBLE TO R= UN=20 IN ANY CATEGORY.

Note, only those persons who were proposed by February 2, 2001 will be=20 permitted to be officially nominated.

Ballots will be mailed no later than February 27, 2001.

The election will be held on Tuesday, March 20, 2001.

Should you have any questions regarding the above, please contact Christopher Bowen at (212) 299-2200, M. Dawn Lowe at (212) 299-2370 or Donna Talamo at (212) 299-2372.

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D\(01-47\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-47))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.

Message 1115 of 1118

(02-59) Members' Group Long Term Disability Renewal

Sender	marketing@nymex.com
Recipients	[marketing@nymex.com]
File	shackleton-s/deleted_items/460.

Notice No: 02-59 February 15, 2002

To: NYMEX Division and COMEX Division Members

From: Barry Loyal Human Resources Department

Subject: Members' Group Long Term Disability Renewal

Effective March 1, 2002 the Members' Group Long -Term Disability plan will be renewed with UNUM insurance company. As a result of poor claims experience, the cost to maintain disability coverage for the membership has increased dramatically. As a result, changes had to be made in order to maintain this program for our Members.

The changes that will take effect March 1, 2002 are set forth below:

_ Mental/Nervous Disorder or Alcohol/Drug related disabilities would be covered for 12 months instead of 24 months.

? The Elimination/Waiting period before one starts to receive benefits will increase from 90 to 180 days.

? The final change relates to the offset of payments under the members' disability policy should a member have other Group Disability insurance policies. Commencing March 1, 2002 the policy will provide that if a Member begins to receive benefits and has another Group Disability policy, payments received under such other Group Disability policies would reduce benefits received under the NYMEX policy. Please note that if you own an individual policy that is not issued through a group or association it will not be effected or reduced by any group policy.

These changes were necessary in order to keep our program in place for the future. The rates that we were able to negotiate are only guaranteed for one year and we hope that our claims experience improves so that we can maintain this program at a competitive price for years to come.

For your information a summary sheet on the benefits offered members is attached.

If you have any questions regarding these plan changes and how they might affect you, please contact Warren Rosen at 212.949-9200. You may also call me at 212-299-2203.

NEW YORK MERCANTILE EXCHANGE, INC. MEMBER BENEFIT SUMMARY SHEET

Eligibility: All NYMEX Division members of record who own, lease or hold a membership seat. This does not include commercial associate members or equity owners who have leased their last seat. All COMEX Division regular members of record who own or hold a membership seat, including equity owners. COMEX lessees are not included. COMEX Division Option members are entitled to those benefits listed below.

Life and Accidental Death and Dismemberment (AD&D) Insurance

\$300,000 life insurance coverage, plus \$300,000 accidental death and dismemberment (AD&D). At age 70, life insurance reduces to \$75,000 and AD&D reduces to \$50,000. COMEX Division Option members-\$35,000 life insurance, plus \$35,000 AD&D. Reducing to 65% of the original amount at age 70, 45% at age 75, 30% at age 80.

Voluntary Optional Group Term Life Insurance

All members can now purchase term insurance up to four times Annual Earnings up to a maximum of \$1,500,000. A total of \$500,000 is issued Guaranteed without Evidence of Insurability required. This amount is combined with your current coverage under the NYMEX basic life plan. The competitive premiums are Group rates.

Long-Term Disability NYMEX and Comex Division NYMEX Division Owners/ABC Holders Lessees Minimum Service 1 year 1 year Requirement:

Benefits Amount 60% of income, up to: 60% of income, up to: (per month) \$3,000 (1-3 yrs. service) \$2,000 (1-3 yrs. service) *\$6,000 (over 3 yrs. service) \$4,000 (over 3 yrs. service)

Elimination period: 180 days 180 days

Occupation Limitation: 1 year own occupation 1 year own occupation

Benefits Reimbursement Program

Eligible members who enroll in major medical, dental, individual life or long-term care plans coordinated through Warren Rosen & Co. will receive a \$150 monthly allocation to be applied to their premium payment. Please contact Mr. Rosen at 212-949-9200.

You will receive a 1099 for all premium payments made on your behalf. Members with multiple memberships receive only single benefit coverage.

*COMEX Division Option members receive a maximum benefit of 60% of income up to \$5,000 per month.

Message 1116 of 1118

RE: Put Confirmations: ENE as "Seller" and Lehman Brothers Finance

Sender	jim.armogida@enron.com
Recipients	[sara.shackleton@enron.com]
File	shackleton-s/inbox/479.

You are welcome. Hope the stock price stays "up".

-----Original Message-----

From: Shackleton, Sara Sent: Wednesday, October 24, 2001 3:05 PM To: Armogida, Jim Subject: RE: Put Confirmations: ENE as "Seller" and Lehman Brothers Finance S.A. as "Buyer" (or "Lehman")

Thanks for your help, as usual. Sara

-----Original Message-----

From: Armogida, Jim Sent: Wednesday, October 24, 2001 3:02 PM To: Rogers, Rex Cc: Shackleton, Sara Subject: RE: Put Confirmations: ENE as "Seller" and Lehman Brothers Finance S.A. as "Buyer" (or "Lehman")

Rex--I did get with Bob, and he sees no problems with the puts. He does want you to be aware of them, which I said you are.

Sara--I think that is it. Please let me know if you need anything else.

-----Original Message-----

From: Rogers, Rex Sent: Wednesday, October 24, 2001 2:30 PM To: Armogida, Jim Subject: FW: Put Confirmations: ENE as "Seller" and Lehman Brothers Finance S.A. as "Buyer" (or "Lehman")

Armo: I won't be able to get in the loop on these confirms----I am sure that you are already assisting Sara, but if not, could you jump in and help her with any questions or issues she has? As always, if you need additional support you can call on Baird. Thanks----I need all the help I can get these days!!

-----Original Message-----

From: Shackleton, Sara Sent: Tuesday, October 23, 2001 4:40 PM To: Rogers, Rex; Armogida, Jim; Freeland, Clint
Subject: FW: Put Confirmations: ENE as "Seller" and Lehman Brothers Finance S.A. as "Buyer" (or "Lehman")

Rex, Jim and Clint:

You may recall that ENE has been in the process of documenting two forwards, effective 10/3/01, and two puts, effective 10/1/01. The forwards consisted of rolls of outstanding forwards with Lehman. These transaction confirmations were signed by Tim DeSpain on Friday, October 19, 2001.

In that regard, I have faxed to your attention the two (2) REVISED put confirmations prepared by Lehman per the email attached below. I received the confirmations by fax today. The confirmations were revised to provide for physical settlement on the Expiration Date. There are two different Expiration Dates; one is October 30, 2001 (Strike Price of USD15.5246) and the other is December 28, 2001 (Strike Price of USD15.6947). You will see the details on the confirmations. As Seller of the options, ENE will be obliged to pay Lehman upon delivery of the shares if the options are automatically exercised on the Expiration Date(s). Please note that there are also changes to the confirmations with respect to "Regulation M/Tender Offer Event" appearing on page 4 (i.e., Cash Settlement will apply instead).

Clint: please verify that the confirmation changes conform to your discussions with Russ.

Please let me know if you have any questions.

Thanks. Sara

-----Original Message-----

From: "Fleming, Matthew" <m Fleming@lehman.com <mailto:m Fleming@lehman.com>>@ENRON Sent: Monday, October 22, 2001 10:54 AM To: Freeland, Clint Cc: Hackmann, Russell; Shackleton, Sara Subject: Put Confirmations

Clint,

Just FYI, we are revising the two put confirmations we sent out to you earlier to reflect the discussions you previously had with Russ around settlement. We will correct the confirms to include only physical settlement at maturity, and we will send them out shortly.

Regards, Matt

Matt Fleming Lehman Brothers Corporate Equity Derivatives P: 201-524-2279 F: 646-758-4819 C: 917-553-8757

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Message 1117 of 1118

Paper & Pulp Master for Japanese CP "Itochu"

Sender	susan.bailey@enron.com
Recipients	['sara.shackleton@enron.com', 'Mark Taylor/HOU/ECT@ECT', 'carol.clair@enron.com']
File	shackleton-s/japan/6.

Sara or Carol,

In anticipation of the deal, I have already prepared a "sample" ISDA for Japanese counsel's review. Let me know which of you will be heading this up, so you can review the "sample" document before same is submitted to Japanese counsel. FYI -- for ENA's legal surveys we used Akihiro Wani of Mitsui, Yasuda, Wani and Madedo.

Susan ----- Forwarded by Susan Bailey/HOU/ECT on 03/06/2000 11:15 AM -----

Shari Stack 03/06/2000 11:03 AM To: Susan Bailey/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT Subject: Paper & Pulp Master for Japanese CP "Itochu"

Sara & Carol:

While you both were out last week, this paper & pulp deal was in discussion. Since it was in such early stages - nothing was ever done from a Legal standpoint as per Bob Crane's request. I just got an email this morning from Tanya that they would like to go ahead and proceed now. Both she and the commercial people are aware that we will need to speak with Japanese counsel before sending a document out.

Susan Bailey is the paralegal on this and I have asked her to ask one of you to handle this file.

Many thanks,

Shari

----- Forwarded by Shari Stack/HOU/ECT on 03/06/2000 10:55 AM -----

Tanya Rohauer 03/06/2000 10:47 AM To: Paul Radous/Corp/Enron@ENRON cc: William S Bradford/HOU/ECT@ECT, Shari Stack/HOU/ECT@ECT Subject: Re: Fixed price

I am inclined to approve Itochu for a one year 6,000 tpy trade (approximate potential exposure of 500K) without requiring upfront collateral. Paul, we probably need to rethink the ISDA terms. Also, Shari needs to send the ISDA to outside Japanese counsel for review before we proceed,

Thanks, Tanya ----- Forwarded by Tanya Rohauer/HOU/ECT on 03/06/2000 10:38 AM -----

From: Scott M Shields on 03/03/2000 02:53 PM To: "tsutomu yamauchi" <t.yamauchi@itochu.com> @ ENRON cc: Tanya Rohauer/HOU/ECT@ECT, Chris Croom/HOU/ECT@ECT Subject: Re: Fixed price

Yamauchi:

I look forward to seeing you next Friday. It is too bad you can't come to Houston the night before, because I could show you the Houston Night life! Let me know if you change your mind.

As of right now, and given the appropriate credit security from Itochu, we can sell a fixed price swap based upon the NBSK PPW c.i.f. Japan Index, starting in May 2000 for 1 year, 500 MT/month at \$774 / MT. This price is based of course on the fact that there are mulitple increases promised throughout the next year.

I am in Chicago through Wednesday next week, so call me on my cell phone if you have questions. I look forward to seeing you next week. 713-817-4151

Regards,

Scott

"tsutomu yamauchi" <t.yamauchi@itochu.com> on 03/02/2000 12:43:15 PM To: <Scott.M.Shields@enron.com> cc:
Subject: Re: Fixed price

Scott,

Yes, I will fly to Houston and arrive in Houston/George Bush at 11am on Friday, March 10th. Then I will take a cab to your office. How long will it take from Airport to your office??

Anyway, I will come to your office around noon so let's have a lunch if available.

And I will fly back to New York by evening flight, which will depart at 3:37pm.

Please confirm your availability.

Yamauchi

----- Original Message -----

From: <Scott.M.Shields@enron.com> To: <t.yamauchi@itochu.com> Sent: Thursday, March 02, 2000 11:07 AM Subject:
Re: Fixed price

Yamauchi:

We are still working up a price on the terms and index that you requested. I hope that we will be finished by today or tomorrow at the latest. Have you thought about your travel plans to Houston?

Scott

"tsutomu yamauchi" <t.yamauchi@itochu.com> on 03/01/2000 09:56:50 AM

To: "Shields, Scott (Enron)" <Scott.M.Shields@enron.com> cc: "Croom, Chris (Enron)" <chris.croom@enron.com>
Subject: Fixed price

Scott,

Please consider the following terms and let me know your quotation.

1) Grade : Northern Softwood Full Bleached Kraft Pulp 2) Volume : 500 ADMT/month (6,000 ADMT/year) 3) Period : May 2000 - April 2001 (one year) 4) Index price : NBSK price for Japan in Pulp & Paper Week (Price Watch:Market pulp)

Regards,

Tsutomu Yamauchi Pulp & Paper Dept. ITOCHU International Inc. 212.818.8233 212.818.8243 fax

Message 1118 of 1118

(01-64) Implementation of NYMEX Resolution

Sender	exchangeinfo@nymex.com
Recipients	['sara.shackleton@enron.com']
File	shackleton-s/notes_inbox/3210.

Notice No. 01-64 February 20, 2001

MEMORANDUM

TO: ALL NYMEX AND COMEX MEMBERS

FROM: Neal L. Wolkoff, Executive Vice President

DATE: February 20, 2001

RE: Implementation of NYMEX Resolution

The purpose of this Notice is to advise Members that an Exchange Resolution, which is attached, confers upon COMEX Division Members (owners and those members who hold a seat pursuant to an A-B-C agreement) trading privileges for the execution of customer orders by open outcry in the Platinum Ring for the following NYMEX Division contracts: Platinum Futures; Palladium Futures; Liquefied Propane Gas Futures and Platinum Options. The Resolution further provides that such trading privileges are revocable upon 90 days notice by the Exchange's Board of Directors.

The Exchange has also made related, conforming amendments to NYMEX Rules 6.43A (Broker Association Registration Requirements); 6.44 (Registration for Billing of Floor and NYMEX ACCESS Brokerage) and 8.66 (Billing and Commissions).

The new Resolution and the amendments to the NYMEX rules shall become effective on Wednesday, February 21, 2001.

Please be advised that before a COMEX Member can exercise these trading privileges, the COMEX Member must first comply with the applicable requirements for NYMEX Division Floor Members, including training for trading on the NYMEX floor and obtaining a guarantee from a NYMEX Clearing Member.

If you have any questions, please contact M. Dawn Lowe, Vice President, NYMEX Membership Department, at (212) 299-2370; George Henderson, Vice President, NYMEX Floor Dept., at (212) 299-2071; or Suellen Galish, Vice President, NYMEX Legal Dept., at (212) 299-2215.

RESOLUTION OF THE BOARD OF DIRECTORS TO CONFER ADDITIONAL TRADING PRIVILEGES TO COMEX MEMBERS FOR PLATINUM, PALLADIUM AND PROPANE

RESOLVED that the COMEX Division Members (owners and those members who hold a membership pursuant to an A-B-C Agreement) shall be conferred the privilege to trade Platinum Futures, Palladium Futures, Liquefied Propane Gas Futures and Platinum Options for customers in the Platinum ring by open-outcry; and

IT IS FURTHER RESOLVED that this trading privilege is revocable upon 90 days notice by further act of the Board of Directors in its sole discretion.

NYMEX AMENDMENTS TO NYMEX RULE 6.43A

(Asterisks indicate additions; brackets indicate deletions)

Rule 6.43A BROKER ASSOCIATION REGISTRATION REQUIREMENTS

(A) The term "broker association" shall mean two or more Trading Members at least one of whom is acting as a Floor broker, who: i) engage in floor brokerage activity on behalf of the same employer; ii) have an employer relationship which relates to floor brokerage activity; iii) share profits and losses associated with their floor brokerage or trading activity; iv) are officers, directors and/or ten percent (10%) shareholders of the same corporation which relates to floor brokerage activity; or v) regularly share a deck of orders. ** For the purposes of this rule only the terms "Floor Broker" and "Trading Member" shall include COMEX Members who have NYMEX Division trading privileges. **

[The balance of the rule remains the same.]

Rule 6.44 REGISTRATION FOR BILLING OF FLOOR AND NYMEX ACCESS BROKERAGE

Member Firms and Floor Members engaged personally in floor brokerage or operating brokerage businesses on the Exchange floor are required to register with the Membership Department, their names and the names of the entities under which brokerage will be billed, and the names of all persons having ownership interests in such entities, including the percentage of their ownership interests, and to provide upon request any supporting information requested by the Membership Department or the Compliance Department. ** For the purposes of this rule the terms "Member", "Member Firm" and "Floor Member" shall include COMEX Members who have NYMEX Division trading privileges. **

[The balance of the rule remains the same.]

Rule 8.66 BILLING AND COMMISSIONS

(A) Any bill for services rendered on the trading floor or on NYMEX ACCESS shall be issued in the name of, and as payable to a Member or Member Firm. * For the purposes of this rule the terms "Member" and "Member Firm" shall include COMEX Members who have NYMEX Division trading privileges. *

[The balance of the rule remains the same.]

Please click on the link below to indicate you have received this email.

"[http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D\(01-64\)](http://208.206.41.61/email/email_log.cfm?useremail=3Dsara.shackleton@enron.com&refdoc=3D(01-64))"

Note: If you click on the above line and nothing happens, please copy the text between the quotes, open your internet browser, paste it into the web site address and press Return.
